

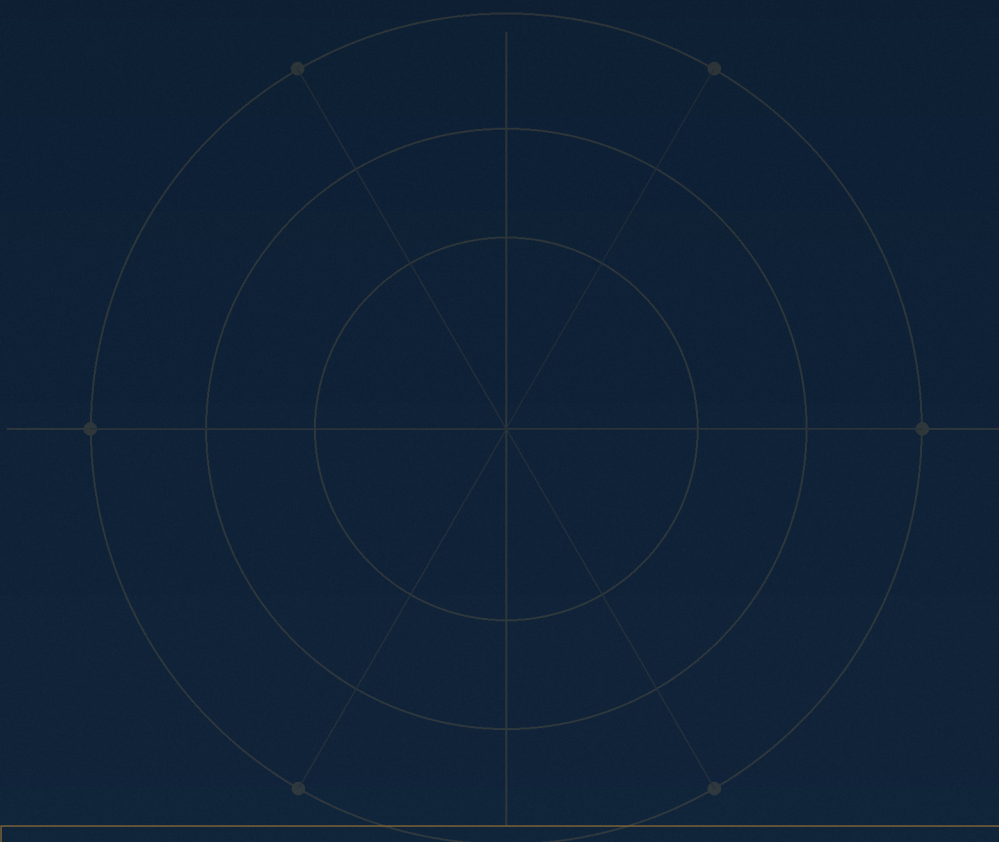
A MAITHILI COURTROOM NOVEL



NAVYA NYAYA AND THE OFFSHORE GAMBLING WEB



ORIGINAL MAITHILI NOVEL
TRANSLATED INTO ENGLISH BY THE AUTHOR HIMSELF



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001 Dawn at Garh En Arikel

The first light of dawn fell upon the pond at Garh En Arikel as though new letters were being inscribed on an ancient palm-leaf manuscript. Aditya Jha stood barefoot on the raw earth of the courtyard. Through the mist rising from the direction of Simaria, the Ganges could not be heard; yet he felt that even within the water some argument went on.

All night, three things had lain on his writing desk: a report on a sealed solid-state drive, an inventory of magnetic storage, and a copy of the High Court's order. The language of the report was cold: secure-access indicators, administrative control panel, customer-identification verification, tax-deduction-at-source details, deleted mail archive, hash values, timestamps. Yet between those cold words, the hot blood of commerce showed through—money moving in the name of gaming, concealment built in the name of money, and within concealment the craft of escaping justice.

His father had once told him, "Justice needs sequence, not haste." As a boy, Aditya had taken the sentence for no more than a household lesson. Now he understood it as the inherited discipline of the land of Gangesha Upadhyaya. No inference without perception; no analogy without inference; no boundary without testimony; no justice without boundary.

The telephone call from Delhi had come at two in the morning. The Joint Director's voice carried fatigue, and beneath the fatigue, fear. "Jha ji, the operators have retained five senior advocates. The High Court's order opens a path for us, but a Special Leave Petition is being prepared. You will have to read the file and give us a brief submission tomorrow."

Aditya asked only, "What is the fundamental question?"

"They say the material comes from a lawyer's office. The shield of privilege. We say the investigation is not into the lawyer's profession, but into his alleged role. But before the court, the language must be exceedingly careful."

After the call ended, Aditya opened the report. A caution stood on the first page: a secure-access indicator is not proof of a successful login. A network-operations history is not a complete session log. A deleted file is not a conviction. He smiled. Forensic language was standing at the threshold of Navya Nyaya. What is, is; what is not has a name of its own; and if a thing is inference, look first at the feet on which it stands.

Malini Karna, his young analyst of computational material, had sent him a message that very night: "Jha ji, a chronology is taking shape—Akshapath, Samudrika, Kridajal, a service associate of a private financial institution, the customer-identification verification spreadsheet, the deleted mail archive. But the offshore connection is not yet established. They are only indications." Aditya replied: "Call an indication an indication, and proof proof. The court does not tolerate the arrogance of an indication."

At dawn, after drinking tea made by his mother, he set out. His mother asked, "Will you fight people this powerful?" Aditya laughed. "I will not fight people. I will fight sentences. If a sentence speaks falsely, I will separate its predicate. If it speaks truth, I will stand by its side."

When the train pulled away, fields, mango orchards and brick kilns began to race backward. There was a computer in Aditya's bag, but in his mind burned an old lamp of logic. It seemed to him that modern crime might be born on a server, yet it was still caught in the confusions of the human mind. The knife that cuts through confusion is not a computational formula. It is method.

When he reached Delhi, the first meeting room was heaped with files. Senior officers, a representative of the tax department, members of the cyber cell, and an adviser from the Ministry of Law. The same question stood on every face: "When the other side has the country's most expensive legal team, what can one officer from a village possibly do?"

Aditya opened the file. "First, perception," he said. "What each report says, and what it does not say. Second, inference—only what can arise from perception. Third, non-apprehension—the limits even of what has not been found. We will not write a story of crime; we will write the grammar of evidence."

For a while, the room was silent. Then an officer said softly, "Will this work in a courtroom?"

Aditya looked out of the window. Sunlight had caught on the glass. "If a court is truly a court," he said, "method will certainly work."

002 The Shadow of Evidence — Chapter 2

Delhi's dawn was nothing like dawn at Garh En Arikel.

Here the sun rose, but before its first ray the voices of vehicles had already begun to rise. Dew lay on the leaves, yet what settled over the road was not dust but smoke. Aditya Jha sat in the small dining room of the State Guest House. Before him, his cup of tea was going cold, and on his writing pad the notes from yesterday's meeting lay divided into three parts—

What is directly perceived.

What may be inferred from what is directly perceived.

What, for now, is only a question.

Malini Karna arrived a little before seven.

A computer bag hung from one hand, two slim files were tucked beneath her arm, and on her face was the impatience of someone who had spent the whole night putting scattered things into order and was now restless to place that order before another mind.

"Jha ji, the chronology is ready."

Aditya did not look at the clock.

"A chronology—or a conclusion?"

Malini paused for a moment.

"A chronology."

"Then show me."

She opened the computer. On the screen ran a long sequence of dates, times, file paths, network-operation traces, fragments of emails, spreadsheet file-details, and payment references. In a column on the right, Malini had placed coloured markers.

"Look at this," she said. "Online complaints came from three districts of Mithila. Each complaint names a different web location, but after payment the format of the support message is almost the same. Then, in the network-operation traces from the computer seized in Delhi, we found text resembling that format. And in this spreadsheet—"

Aditya raised a hand.

"Stop."

Malini fell silent.

"What did you see?"

"Three complaints."

"Good."

"The support messages."

"Good."

"Similar text on the seized computer."

"Good."

"In the spreadsheet, the payment—"

"So far, good. Now you were about to say: all this belongs to one and the same network."

Malini said quietly, "Yes."

"Did you see that?"

Malini looked at the screen.

"No."

"Then it is not perception."

"But the similarity—"

"The similarity may itself be perceived. The cause of the similarity will be an inference. Do not turn the two into one."

Malini leaned a little back from the chair.

Aditya bent toward the screen.

"This network-operation trace is direct evidence only that this entry was found in the image. It is not direct evidence that a particular person opened the web location himself. This spreadsheet is direct evidence that a file of this name was present on that storage device. It is not direct evidence that every figure in the file is true. This email fragment directly shows that the recovered computational material contains this sequence of words. But the sender's actual identity, the server of origin, the context, and the whole conversation—each requires separate proof."

Malini began, slowly, to write notes.

Aditya said, "What does a hash prove?"

"That the forensic image has remained unchanged from the image taken at acquisition."

"And what does it not prove?"

This time Malini did not answer at once.

Then she said, "A hash does not prove that the material inside it is true."

A faint satisfaction entered Aditya's eyes.

"That is all. Navya Nyaya teaches first of all where the object of knowledge ends. If you do not understand the boundary, even evidence grows arrogant."

Outside, a horn sounded on the road.

Malini looked at the coloured markers on her screen and began deleting some of them, one by one.

"Jha ji, last night I thought I had caught the network."

"Last night you had caught a pattern."

"Is the difference really so great?"

"In a courtroom, as great as life and death."

By ten o'clock the corridors of the High Court were crowded.

Black advocates' gowns, white neckbands, thick files, the muted chime of mobile phones, whispers, last-minute instructions being marked down—all of it together created a strange, disciplined unease.

Aditya sat inside the courtroom in the designated place behind the party. Before him were counsel for the State. On the other side sat Vidyanand Mishra with his juniors.

It was difficult to guess Vidyanand Mishra's age from his face. His hair had begun to turn white, but his eyes were not tired. He opened a file as though he already knew the place of every page.

Justice Arya took the bench.

The matter was called.

Vidyanand rose first.

"My Lady, the question is not whether the investigation should stop. The question is where its limits are to be drawn. There is a serious possibility that the seized computational material contains, intermingled, communications between lawyer and client, legal advice, litigation strategy, and confidential information belonging to unrelated clients. To place the whole body of material directly in the hands of the investigative team, merely in the name of investigation, may render privilege meaningless."

Counsel for the State rose.

"My Lady, the State is not suggesting that the investigating agency should have an unrestricted right to read privileged legal advice. But the seized devices are said to contain financial tables, payment references, traces of administrative control panels, access indicators, and other material. A process is necessary to separate what is privileged from what is not."

Justice Arya closed the file.

"Both sides are using the word 'material' with remarkable ease. I want to know: what is it?"

Counsel for the State moved forward to answer.

Justice Arya stopped her.

"No. Not allegations. Description."

For a moment the courtroom fell silent.

Counsel for the State looked at her notes.

"One forensic image. Images of two storage devices. Network-operation traces. Certain accounting tables. Fragments of recovered email material. Secure access-related credential markers. And some documentary records."

"Does the presence of secure access credentials prove a successful login?"

"No, My Lady."

"Does network-activity history prove the identity of the user?"

"Not by itself."

"Does the existence of an accounting table prove the truth of its contents?"

"No."

Justice Arya looked toward Vidyanand.

"And merely because a device was seized from a lawyer's office, does every binary unit on it become privileged?"

Vidyanand answered without delay. "No, My Lady. But if the investigative team reads every binary unit before any filtering takes place, the protection of privilege will thereafter survive only as a theory."

Justice Arya leaned slightly forward.

"Then the dispute is not about principle. It is about process."

Something like an old bell rang inside Aditya.

Object. Relation. Boundary.

Back in Garh En Arikel, his father used to say while measuring paddy, "If the measure is wrong, the quarrel will no longer be about grain; it will eat justice itself."

Here, in place of paddy, there was computational material.

But the danger lay in the measure all the same.

Counsel for the State placed a sealed cover on the writing desk.

Justice Arya looked at it.

“What is this?”

“Certain portions of the case diary and a computational inventory, My Lady.”

“Why sealed?”

“The direction of the investigation, potential witnesses, technical routes—”

Justice Arya stopped her again.

“Saying ‘sealed’ is not a reason.”

At the back of the courtroom, Malini’s pen stopped.

Justice Arya said, “There may be a need for confidentiality. There may be witness protection. There may be investigative integrity. There may be privilege. But each thing will require its own reason. A court does not decide by the colour of a closed envelope.”

Vidyanand said, “That is precisely our submission, My Lady. The court may see sealed material, but the core investigative team should not—not until the question of privilege has been filtered.”

Counsel for the State said, “We are in a position to accept a separate review team whose members have no part in the principal investigation.”

Justice Arya looked at Aditya.

“Is the investigating officer present?”

Aditya stood.

“Yes, My Lady.”

“Your name?”

“Aditya Jha.”

“Do you agree with this proposal?”

“Yes, My Lady.”

“Why?”

The question was simple. The answer could not be.

Aditya said, “Because the purpose of an investigation is not to read the maximum possible quantity of computational material. It is to obtain material lawfully.”

Again the courtroom was silent.

Justice Arya’s face did not change.

“And if, through that filtering, some useful material remains beyond your reach?”

“Then the investigation must find a lawful route to it. Unlawful proximity cannot substitute for lawful evidence.”

For the first time, Vidyanand looked directly at Aditya.

There was no admiration in his gaze.

Nor was there distrust.

There was only attention.

Justice Arya asked, “How have you preserved the integrity of the forensic image?”

“The original medium was acquired under write-blocking. The image hash has been recorded. Working analysis is being conducted not on the original but on a verified image. Access logs are being maintained. Disputed categories can be placed under separate seal.”

“The hash?”

Aditya understood what she meant.

“The hash shows only that the specified copy of the computational material has not changed since acquisition. It does not establish the truth of the statements written inside it.”

For the first time, Justice Arya gave a slight nod.

“Good.”

Malini watched from the back.

Until yesterday, a hash had seemed to her a seal upon computational truth.

Now she understood: a hash seals integrity, not truth.

The journey toward truth begins only after that.

Vidyanand Mishra raised the next question.

“My Lady, the portions of the case diary that the State wishes to place under seal must not be used against us without our knowing what they are.”

Counsel for the State said, “A case diary is not itself evidence of guilt. It is the working record of an investigation.”

“But what if an order is sought on its basis?”

Justice Arya said, “Then the court must make clear which conclusion rests on which public, or judicially testable, foundation. Confidentiality cannot take the place of judicial reasoning.”

Vidyanand said, “That is the assurance we require.”

Justice Arya began to write her order.

The words emerged slowly—

The integrity of the computational material shall be preserved.
 Claims of privilege shall be identified category by category.
 Disputed material shall remain outside the core investigative team and within a separate review process.
 Where confidentiality is said to be necessary, the reason shall be recorded.
 Neither the existence of the case diary nor its sealed character shall, by itself, establish any allegation.
 No judicial observation shall be treated as a final fact.
 The investigation shall continue, but investigative curiosity cannot erase every boundary of confidentiality.
 Nor can a claim of confidentiality close every lawful question of an investigation.
 Aditya listened.
 It seemed to him that the order was not a compromise between two sides but an attempt to make language exact.
 In Navya Nyaya, victory is sometimes not the finding of an answer.
 Sometimes it is the defining of the proper boundary of the question.
 The hearing ended.
 Journalists were waiting in the corridor outside.
 A camera moved forward.
 “Jha ji, has the court accepted that evidence of an offshore gambling network has been found?”
 Aditya did not stop.
 “The court has made no such finding.”
 Another question—
 “Do the computational files contain the names of foreign operators?”
 “I will not comment on material under investigation.”
 A third—
 “Is this the country’s biggest online gambling scandal?”
 Aditya’s pace did not change.
 “The size of a scandal is not proved by an adjective in the news.”
 The journalists fell behind.
 Malini walked beside him.
 As they descended the stairs, a reporter suddenly boxed her in.
 “Ma’am, are you with the computational-material team? At least tell us this—was a foreign server found?”
 Malini opened her mouth.
 Yesterday’s Malini might have said, “Yes, there is a foreign connection.”
 Today she stopped.
 “Certain server-related indicators are under investigation. An indicator and proved ownership are different things.”
 The reporter looked disappointed.
 “How can a story be made if everyone is this careful?”
 For the first time, Malini smiled.
 “I did not come here to make a story.”
 Aditya was waiting for her at the foot of the stairs.
 He said nothing.
 Malini understood that her answer had been right.
 By afternoon, four screens were lit in the secure analysis room.
 This time Malini had added a new line above her chronology—
 Direct material ≠ direct proof of crime.
 Aditya read it.
 “Good.”
 Malini said, “One more thing.”
 “Go on.”
 “The payment reference recorded in the three rural complaints shares its final four characters with several entries in this accounting table.”
 “What is proved?”
 “A match.”
 “That much only?”
 “That much.”
 “And what is possible?”
 “The possibility of a common payment route. But that is still an inference.”
 “And how will you test it?”
 “A lawful response from the financial institution or payment intermediary. The original ledger. A time correlation. Verification of the account holder. Server records, if available. And the complainants’ statements.”
 Aditya said, “And if nothing is found?”

Malini paused.

"Then the value of this match diminishes."

"Remember that answer."

"Why?"

"Because an investigator needs the courage to watch a favourite inference die."

Malini looked at the screen.

After a while she said, "Jha ji, are you never afraid that a month's work may end with a single answer?"

Aditya turned his chair toward the window. Outside, the glass of Delhi's buildings flashed in the light.

"I am."

"Then?"

"In the village, after rain, footprints would appear along the edge of the fields. As a child I would say at once: those are so-and-so's feet. My father would ask, 'Did you see the footprint—or did you see the person?'"

Malini listened in silence.

"One day I named the wrong person. That day I learned that to respect a footprint is to accept its boundary."

"And the fear?"

"The fear is not that an inference may die. The fear is that I may bend a fact in order to keep the inference alive."

Malini erased a red line from her screen.

"I drew this line because I had treated it as a conclusion."

"And now?"

"A hypothesis."

"Good."

By evening, five indicators stretching from village to city had come to rest beside one another.

A payment reference recorded in a complaint from Madhubani.

The time shown in a mobile-phone screenshot from Darbhanga.

An entry in a recovered spreadsheet on the computer seized in Delhi.

A reference to the relevant time-period in an old public domain-name record for a mirrored web location.

And the syntax of a customer-support message.

All five seemed almost to speak to one another.

But not one of the five yet said who owned the alleged network, from where it was operated, where the money ultimately went, or which person knowingly played which role.

Malini drew five circles on the whiteboard.

At first she had joined all the circles with a single heavy line.

Now she erased the heavy line and placed a question mark in the middle.

Aditya said, "Do not mistake that question mark for weakness."

"Why?"

"It is the most honest symbol in an investigation."

At that moment the Joint Director came in.

A file tied with a red ribbon was in his hand.

"The certified copy of the High Court's order has arrived."

Aditya took the file.

"And the other news?"

The officer's face tightened a little.

"The lawyers on the other side have accelerated preparations for the Supreme Court."

Malini looked at Aditya.

"A Special Leave Petition?"

"A draft is being prepared," the Joint Director said. "They are saying the High Court's order does not adequately protect privilege."

Aditya turned the pages of the order.

"Then they will carry their question upward."

"And us?"

"Not our answer."

The Joint Director looked surprised.

"Then what?"

"We will carry our method."

At nine that night, the secure room was closed.

The hash of every working copy was verified again.

The access log was signed.

The disputed set of files was entered on a separate sealed inventory.

The portions of the case diary containing the identities of potential witnesses were placed under restricted access.

Before shutting down the screen for the last time, Malini looked at the whiteboard.

Direct material ≠ direct proof of crime.
Beneath it she wrote a new sentence—
Say only as much as you have seen.
Aditya read it and said, “That is not the whole of Gangesha’s philosophy.”
Malini laughed.
“But it can be a beginning, can it not?”
“Yes.”
They went out.
Delhi’s night was bright with neon. Vehicles streamed away into the distance. The metropolis seemed almost proud of its speed.
For a moment, Aditya’s mind travelled back again to Garh En Arikel.
The earthen courtyard.
His mother’s tea.
The pond at dawn.
Footprints in the soil.
He knew the struggle ahead would be difficult. The limits of sealed material could now travel all the way to the Supreme Court. Expensive lawyers would strike at every word. Impatience would rise within the State as well. The media would demand conclusions when the investigation still held more questions than answers.
But one thing had become clear that day.
There was no need to fear the shadow of evidence.
The danger began when a human being mistook the shadow for the thing itself.
An old lesson from Garh En Arikel sounded again within him—
First, look.
Then say: what did you see?
And for what you did not see, have the courage to remain silent in its name.
That same night, in the office of a senior Supreme Court advocate, a new file was opened.
Written across its cover were the words—
SPECIAL LEAVE PETITION — DRAFT.
In another corner of Delhi, Aditya Jha was closing his case diary.
The two files were still far from one another.
By the next dawn, that distance would be only a few pages of law.

003 The Shadow of Evidence — Chapter 3

On the following morning in Delhi, the same dispute awoke at two different desks in two different languages.

On one side, in Vidyanand Mishra's office, the final copy of the Special Leave Petition for the Supreme Court lay open. On the other, in the secure room at investigation headquarters, Aditya Jha had before him the High Court's order, the computational inventory, and the chronology revised through the previous night.

There was paper on both desks.

There was fear on both desks.

But the reasons for the fear were different.

Vidyanand feared that if the limits of the investigation were not clarified now, a single crack in lawyer-client privilege might become a passageway through many future cases. Aditya feared that if the investigation abandoned the limits of direct material and began manufacturing a story in court, even what had been lawfully gathered might lose its credibility.

Before leaving for the Supreme Court, Vidyanand asked his junior, "What does the first sentence of the petition say?"

The junior read, "The petitioner seeks special leave of this Hon'ble Court because the order of the High Court—"

"Stop," Vidyanand said. "Does it say the order is erroneous?"

"No, sir."

"Then our language must know its limits too. We are asking for leave to appeal; we are not writing the judgment in advance."

With a red pencil he struck out two words.

"And this?"

"Illegal search."

"The court has not yet called the search illegal. Write: 'the disputed search and seizure.' An adjective must not take the place of the court."

The junior began making the correction in silence.

Vidyanand's face was stern, but another difficulty, of a different order, was working within him. The previous night an old client had told him over the telephone, "Mishra ji, do not reduce this case to procedure. Attack the State. Tell the media that everything is false."

Vidyanand had not answered.

He knew that advocacy proceeds on a client's instructions, but an advocate's sentence is not a transcript of the client's anger. Once a word enters the court record, responsibility for it belongs to the person who spoke it.

He closed the file and said, "Let us go. The petition will be filed. What follows belongs to the Registry, the Bench, and the law—not to my wishes."

At that same hour, in investigation headquarters, Malini Karna stood before the whiteboard.

Yesterday's five circles had become seven.

Two new indications had arrived from the villages.

The first: a complainant from Sitamarhi had produced a certified copy of his financial-institution statement, recording the date and time of a disputed payment reference.

The second: a young man from a market town not far from Garh En Arikel had shown an old message preserved on his mobile phone; but whether the phone's clock had been synchronised automatically with the network or altered by hand had not yet been verified.

Malini was excited.

"Jha ji, the payment chronology is becoming much stronger now."

Aditya examined the financial statement.

"What does this document directly establish?"

"That the specified sum left the complainant's account at the specified time."

"Good. The recipient?"

"The statement contains only an abbreviated description. For complete beneficiary data we need the financial institution's response."

"Then does this prove a payment to the alleged network?"

Malini slowed her answer.

"Not yet. It proves the payment. The identity of its destination requires separate proof."

Aditya did not smile, but some of the hardness left his eyes.

"And the other phone?"

"The message is there."

"The time?"

"Device time."

"Is the device time reliable?"

"That still has to be tested."

"Then what colour does it get on the chronology?"

Malini removed the blue marker and replaced it with yellow.

"Provisional."

Aditya said, "Perception does not mean merely that the eye has seen. It also means that what stands before us must be seen together with both its qualities and its limits."

Malini added a line to the whiteboard—

Date observed $\neq$ time verified.

At that moment the Joint Director entered.

"The petition has been filed."

Every gaze in the room turned toward him.

"The Special Leave Petition?" Malini asked.

"Yes. Filed in the Supreme Court Registry. A diary number has been assigned. Urgent relief has also been sought, but there is no stay order yet."

Aditya asked only, "Do we have an official copy?"

"No. When it comes through counsel."

"Then no reaction yet to media copies."

The Joint Director said, "Outside, the media are already saying: 'Offshore gambling case reaches Supreme Court,' 'High Court order under threat,' 'Investigation may be stayed.'"

Aditya kept his eyes on the file.

"May' is a very convenient word for the news."

"The news crew wants an answer."

"Give them this: the petition has been filed; no official information of any stay order has yet been received from the Court; the investigation continues within the limits of the Court's existing order. Nothing more."

"That little?"

"Only as much as is directly established."

Malini glanced slowly toward the whiteboard.

Yesterday's sentence seemed to shine there again: Say only as much as you have seen.

By noon, cameras had lined up outside the Supreme Court. Advocates in black gowns climbed and descended the steps, and every face was being pursued for a scrap of news.

A young journalist, Ananya Kashyap, stood by the entrance with her channel's microphone in her hand. She had been waiting two hours for "breaking news." Her editor had already told her three times over the telephone, "Bring me one big sentence. Viewers will not watch legal nuance."

From a distance Ananya saw Vidyanand Mishra.

"Jha ji! Jha ji! One minute!"

Vidyanand stopped.

"Have you told the Supreme Court that the entire investigation is illegal?"

"I will say nothing here that goes beyond the record before the Court."

"But you have filed a Special Leave Petition?"

"Yes."

"Meaning the High Court's order is wrong?"

"Meaning that on one question of law we seek the Supreme Court's consideration."

"Will the investigation stop immediately?"

"No such order is known to me."

"Is the seized material false?"

For the first time Vidyanand looked directly into the camera.

"I have not used that word. The existence of material, its authenticity, its meaning, and its legal admissibility may be four different questions. To collapse all four into one sentence is not judicial process."

The answer seemed too long to Ananya. In her editor's ear, perhaps, the demand was already ringing: short sentence, sharp sentence, conflict!

She tried again. "Jha ji, then is this State versus advocate?"

A tired smile appeared on Vidyanand's face.

"If the Court functions properly, it is not State versus advocate. It is question versus answer."

He moved on.

Ananya switched off the camera, irritated.

The cameraman asked, "What did you get?"

“Nothing. The man does not give headlines.”

“Perhaps he is right,” the cameraman said.

Ananya looked at him.

“Are you a cameraman or a philosopher?”

“These days one has to be both.”

Even after that light remark, the unease inside Ananya remained. She knew that viewers would go to whichever channel first declared a “solid revelation.” But she also knew that a careless word spoken outside the Court could be running across a screen as fact the next day, when inside the Court it was only a claim.

She opened her notebook and wrote four lines—

Petition filed—fact.

Stay—not yet.

Investigation illegal—may be an argument of the petitioner; not an established fact.

Computational material proves the crime—no such judicial conclusion yet.

She kept looking at the page.

There was less “breaking news.”

There was more truth.

Early that evening, an official copy of the petition reached the State’s legal team. Aditya was not given a copy immediately; counsel read it first. Then counsel for the State called him into a meeting.

The Special Leave Petition lay open on the writing table.

“Jha ji,” counsel said, “the petition raises three principal points. One: privileged communications are intermingled with the seized computational material. Two: the filtering process is not sufficiently independent. Three: there is an apprehension that adverse assumptions may be drawn against the petitioner from the sealed case diary and the investigation’s purportedly confidential material.”

Aditya asked, “What do they say about the facts of the investigation?”

“They say the meaning of several items is disputed. Some computational indicators, they say, lack complete context.”

“That is a legitimate question.”

An officer in the room looked startled.

“Legitimate?”

Aditya turned toward him.

“A question may be legitimate without the answer necessarily favouring them. They are entitled to ask for the context of investigative material. Our task is not to take offence. Our task is to prepare an answer.”

Counsel for the State turned a page.

“They also say that indicators of control are being inferred from secure-access credentials and network-operation history.”

Aditya answered at once. “Where in my case diary does it say that secure-access credentials prove control?”

Malini opened the computer.

“Nowhere. We wrote: ‘Access-credential markers recovered; successful use and user identity not yet established.’”

“Good. Keep that sentence exactly as it is.”

“The other side will say in Court that you yourself admit use has not been proved.”

Aditya said, “To acknowledge what has not been proved is not weakness. Weakness would be to call proved what has not been proved.”

Counsel for the State leaned back against her chair.

“That sentence will be useful in Court.”

Aditya said quietly, “I did not say it because it would be useful. I said it because it is true.”

The room grew serious again.

Against every allegation in the petition, Aditya drew five columns—

Statement in the petition.

Direct material on the record.

The investigation’s present inference.

Gap/limitation.

Answer sought from the Court.

Malini kept looking at the structure.

“Jha ji, this is almost a complete Navya Nyaya table.”

Aditya said, “There is no need to give it a name. If the method is sound, it will work even without carrying its name.”

“But Gangesha—”

“There is no need to quote Gangesha in Court. Let Gangesha’s discipline appear in the answer itself.”

He filled the first row.

Petition’s statement: the investigative team saw privileged material.

Direct material: order establishing a separate review process; access logs; a limited set of files; disputed categories segregated from the original investigative team.

Gap: the extent of access before the order will require factual verification.

Conclusion: no broad claim at this stage.

The second row—

Petition's statement: the meaning of the computational material has been exaggerated.

Direct material: the original language of the report; hash; file path; timestamp; network-operation markers.

Limitation: attribution to a user, truth of the contents, and questions of control remain subject to separate examination.

Malini stopped in the middle of writing.

"Jha ji, suppose the Supreme Court asks, 'What is your strongest fact at this moment?'"

Aditya did not answer immediately.

"Then I would be wary of the words 'strongest fact.' Direct material comes in different kinds. Financial records show the movement of money; device markers show computational presence; a witness gives an account of personal experience; a hash establishes integrity. It would be improper to crown one of them king."

"But the Court will want a summary."

"A summary must not murder the truth."

Evening was descending beyond the window. A thin film of dust lay over Delhi's sky. Aditya's mind went suddenly to the pond at Garh En Arikel, where in the evening the sky descended cleanly upon the water.

The village elders used to say: a pond does not create the truth; it only receives the image of what is above it. When the wind moves, the image breaks. The sky does not.

The court record was something like that.

What was written there would cast its reflection a long way. The water of words had therefore to be kept still.

At eight that night, the prime-time bulletin began on Ananya Kashyap's channel. A red banner ran across the screen—

"OFFSHORE GAMBLING CASE REACHES SUPREME COURT"

The studio anchor asked, "Ananya, can the investigation now be stopped?"

Ananya had expected the question. Yesterday she might have said, "A very grave crisis."

Today she said, "The petitioner may seek relief, but according to the official information available to me, there is no stay order at present. The filing of a Special Leave Petition does not by itself nullify the High Court's order. What the Court will hear at the next stage depends on the judicial process."

The anchor asked again, "But has the network already been proved by the computational evidence?"

For a moment Ananya looked into the camera.

"Some computational material is part of the investigative record. But finding material, authenticating its source, determining its meaning, and establishing the guilt of a particular person are four separate stages. There is no final judicial conclusion yet."

There was a momentary pause in the studio.

The anchor had perhaps been expecting sensation.

"Then what is today's big story?"

Ananya said, "The big story is that the dispute has now reached the doors of the Supreme Court; but judgment should not be delivered on television before it is delivered by a court."

When the broadcast ended, her editor telephoned.

"You have become very cautious today."

Ananya asked, "Is that bad?"

There was silence for a few moments at the other end.

"The ratings will tell us."

The call ended.

Ananya looked out of the window. For the first time she understood that courage in journalism did not consist only in questioning power; sometimes it also meant saying "I do not know" in the presence of an incomplete fact.

That same night at investigation headquarters, Malini was saving the final computational-material sheet. She named it—

Direct Material—Master, Third Version

Aditya looked at it.

"Why the third version?"

"In the first, I had mixed fact and inference. In the second, I wrote down the limitations. In the third, I separated the types of source."

"Tomorrow there may be a fourth version too."

Malini laughed.

"Will the truth change then?"

"No. Our access to it will."

She began closing the file, then suddenly asked, “Jha ji, what if the Court stops the investigation?”

Aditya looked at her. The question was not technical. A young analyst’s months of labour, fear, reputation—everything was inside it.

“Then we obey the order that is made.”

“And if all our work goes to waste?”

“Obeying lawful process is not wasted work.”

“But the network—”

Aditya said quietly, “Malini, our task is not to prove some predetermined network. Our task is to go as far as the truth can lawfully be proved. If the conclusion turns out smaller than our first suspicion, the method will still have won.”

Malini said nothing.

Her eyes remained on the screen.

After a while she wrote a new line on the whiteboard beneath yesterday’s sentence—

Truth does not have to be made larger; only clearer.

Night deepened.

The petition filed in the Supreme Court was, for now, only a petition.

The High Court’s order remained in force.

The investigation was still a journey of examination, not a journey of accusation.

The indications that had travelled from Garh En Arikel to Delhi were drawing nearer to one another, but Aditya was not forcing them into a single thread.

In his own way he remembered one of Gangesha Upadhyaya’s fundamental disciplines: knowledge cannot be fully warranted unless its source, its object, and its limits are clear.

Aditya wrote in his notebook—

Perception takes us to the object; not to the offender.

To reach the person, the relation must be proved.

He capped his pen.

Beyond the window, the city lights in the direction of the Supreme Court could not be distinguished from the rest.

Among Delhi’s millions of lights, the Court too was only one light.

But Aditya knew that from tomorrow the struggle would change.

The investigation would no longer face computational material alone.

Before every proposed meaning of that material, trained argument would now stand.

And that was right.

For in Navya Nyaya, evidence ripens only on the day it acquires the strength to endure the questions raised against it.

004 The Shadow of Evidence — Chapter 4

The morning after the Special Leave Petition was filed in the Supreme Court, a new word began circulating through Delhi's legal corridors—"team."

Not merely advocates. A team.

One senior advocate for the question of privilege, another for constitutional limits, a third for the admissibility of computational evidence, a fourth for the interpretation of financial transactions. With them came junior advocates, researchers, forensic consultants, specialists in corporate records, and several boxes of documents. The news in the city was not that the petitioners had retained counsel; the news was that some of the country's most distinguished names had converged upon the same file.

Aditya Jha read the list and folded the sheet of paper.

The Joint Director asked, "You saw the names?"

"I did."

"Did they tell you anything?"

"Yes."

"What?"

"That I shall have to keep my file clear."

Impatience flashed across the officer's face. "That is all?"

Aditya said, "The number of senior advocates will neither enlarge nor diminish a fact. But one careless sentence of mine will now have to survive ten trained questions. That is not a bad thing."

Malini Karn was seated at the other end of the room. She had spent the night reading, side by side, the publicly available particulars of the Special Leave Petition, the High Court's order, and her own table of direct material. There were faint shadows beneath her eyes.

"Jha ji," she said softly, "what if they say our understanding of the computational material is wrong?"

Aditya looked at her.

"Then we shall examine whether it is wrong."

"And if they break my analysis apart in court?"

"If an analysis can be broken, it ought to be broken."

Malini fell silent.

Aditya opened his notebook. At the top he had written—

The test of perception does not fear opposition.

"Malini," he said, "do you remember the five indicators you joined together yesterday?"

"Yes."

"And what did I tell you?"

"That correspondence may be direct; the relation of cause is inference."

"Today that sentence has become more valuable. The people who will stand before us are trained to find holes in our language. Our task is not to plaster over a hole; if there is a hole, we must call it a hole."

Malini opened her screen. The file was now named Direct Material—Master, Fourth Version.

She added a new column—

"Questions the other side may ask."

Aditya smiled.

"There is no better preparation."



Elsewhere, the stacks of files in Vidyanand Mishra's office had grown higher.

Raghav Sethia was not himself present. His name appeared in certain internal investigative hypotheses and in references to alleged financial links, but no court had yet reached any finding of guilt against him. Vidyanand placed particular emphasis on that distinction.

"Do not write 'network operator,'" he told his junior. "Write: 'a person alleged by the investigating agency to be connected.' Until it is proved, language shall not deliver judgment."

A junior advocate asked, "Mishra ji, the media are already running his name."

Vidyanand removed his spectacles and laid them on the writing board. "The media will not draft my pleading."

At that moment one of the newly retained senior advocates, Arvind Mehra, came in. In the fictional world of the case, he was renowned for incisive cross-examination and compressed constitutional argument.

“Mishra ji,” he said, opening the file, “I want three questions, not three hundred. One: the lawful basis of seizure and forensic imaging. Two: when and how privileged material was separated from ordinary material. Three: what bridge does the State show between a computational trace and attribution to a particular person?”

Vidyanand said, “There is a fourth question too.”

“What?”

“Do not turn what the State is not saying into something the State has said.”

Mehra laughed faintly. “Are you defending your opponent?”

“I am defending the court record.”

For a moment the room was silent.

Vidyanand continued, “The investigating officer is not careless. He himself does not call a secure-access indicator a successful login. He does not call a hash proof of truth. He does not call a network-operations history proof of a person’s identity. If we refute a proposition he is not making, the Court will see through us.”

Mehra placed his thumb on a page of the file.

“Then where is the weak point?”

Vidyanand took his time before answering.

“At the boundary. Always at the boundary. An investigation begins with a lawful question, but in the computational world a question very quickly begins to imagine itself as a right to read an entire life. I want the Court’s attention on that drift.”

“And the facts?”

“Where the facts are, concede them. Where the interpretation is disputed, fight.”

Mehra nodded.

“Good. Then this will not be a war of noise, but of definitions.”

Vidyanand looked towards the window. A slight unease stirred within him. His professional duty was clear—the strongest defence of his client’s rights. Yet there were passages in the file that raised questions even in his own mind. A question did not prove a crime; but neither could the existence of the question be erased.

He left that unease in his private room. Only law would go with him to court.



That afternoon a meeting was convened in the South Block offices of the Home Ministry.

Before Home Minister Shiveshwar Prasad lay three files—the High Court’s order, the available copy of the Special Leave Petition, and the investigating agency’s brief status note. The political advisers had a different set of anxieties.

One adviser said, “Minister, the opposition will say the State has gone weak before foreign gambling companies.”

Another said, “The State should take an aggressive line in the media. We should say plainly that a major network has already been caught.”

Shiveshwar Prasad listened in silence.

Then he lifted the first page of the status note.

“It says here—‘alleged network.’”

“Yes, sir.”

“It says here—‘computational indicators.’”

“Yes, sir.”

“It says here—‘final attribution remains under examination.’”

“Yes, sir.”

The Minister closed the file.

“Then how can we say in the media that it ‘has already been caught?’”

The political adviser replied, “Political language is different, sir.”

Shiveshwar Prasad’s voice was not harsh, yet the room fell quiet.

“A court file does not move by political language.”

A senior officer said, “Minister, there is a very expensive legal team on the other side. The State too needs representation at the highest level.”

The Minister thought for a moment.

“It does. But first understand this—what exactly do we mean by ‘victory?’”

No one answered.

He answered himself. “The lawful power of investigation must survive. The lawful boundary of privilege must survive. The integrity of computational evidence must survive. And the Court must retain confidence that the State has not written its conclusion in advance. If all four survive, the State’s case is stronger. If only the State’s prestige survives and the Court’s trust is lost—that is defeat.”

The Law Ministry officer began taking notes.

Shiveshwar Prasad continued, “For now, no formal move in the name of the Attorney General or the Solicitor General. First prepare the entire record. If the case requires representation at that level, the request will go through the proper channel. I will not turn them into part of a political announcement.”

That sentence altered the direction of the meeting.

“And one more thing,” the Minister said. “Tell the investigating officer: what is not proved must not be written in the file as though it were proved. Not because the opposing lawyers may catch it, but because the Court’s trust may break.”



By evening the Ministry’s directions had reached Aditya’s writing desk.

He read them and passed the sheet to Malini.

“Look.”

Malini read: record-based presentation; computational material arranged by category; privilege review; chain of source; limits of attribution; and language before the Court free of exaggeration.

“Did the Minister write all this himself?”

“Hard to say. A file speaks in the language of an institution. I need to see the direction, not the author.”

“Will this reduce the pressure?”

“The pressure will only change its shape.”

At that moment Devvrat, an officer from the cyber cell, entered. He held a printed sheet in his hand.

“Something new.”

Aditya took the printout.

“What?”

“A match between an old domain-name resolution from a mirror site and the time of one of the seized network-operation events.”

Malini immediately drew her chair forward. “How close?”

“Seven minutes.”

“Then this—”

She stopped.

Aditya watched her.

Malini revised the sentence herself.

“Then the temporal correspondence is direct. It does not prove the identity of the user.”

Devvrat looked faintly disappointed. “Why do you people make everything sound weaker than it is? A seven-minute correspondence is not ordinary.”

Aditya said, “We are not weakening anything. We are writing only the weight it actually bears.”

“But investigation also has intuition.”

“It does. Intuition gives direction, not evidence.”

Devvrat sat down.

“Fine. What next?”

Malini answered, “Verify the reliability of the source of the domain-name record. Normalise the time zone. Examine the type of timestamp used in the network-operation event. Determine whether the computer clock had any drift. See whether the related network record is available. Then compare.”

Aditya looked at her.

Yesterday Malini would have grown excited at the phrase “foreign server.” Today she was asking about clock drift.

Learning the limits of fact can sometimes look like the loss of enthusiasm. In truth, it was the maturation of intelligence.



The legal-strategy meeting began at eight that night.

The State’s senior law officer wrote the other side’s likely questions on the board.

“First—seizure.”

Aditya placed the documents on the table. “Order, seizure memorandum, inventory of items, seal details.”

“Second—forensic image.”

Malini said, “Record of the write-blocking device, acquisition time, hash of the original and the image, separate hash of the analysis copy.”

“Third—privilege.”

“Separate review process, restricted access, hold placed on the disputed group of files.”

“Fourth—secure-access indicator.”

Aditya said, “On our side the phrase ‘a login occurred’ will not be used. Only: ‘a secure access-credential marker was found.’”

“Fifth—network-operations history.”

“An indicator of presence. User identity is a separate question.”

“Sixth—the spreadsheet.”

“The existence of the file, its metadata, and its contents will be described directly. The truth of the contents remains under examination through independent sources.”

The senior officer was silent for a few moments.

“You are making your own case sound weak.”

Aditya said, “I am describing the size of our case.”

“There will be five senior advocates before you in the Supreme Court.”

“Then we need five times the clarity, not five times the swagger.”

A few people in the room smiled. The senior officer did not.

“Jha ji, the Court will not listen only to philosophy. The question of relief will arise.”

“I shall not present philosophy. I shall present the record.”

“And if the Bench asks whether allowing the investigation to continue will cause irreparable harm to the petitioners?”

Before Aditya could answer, counsel for the State said, “Then we shall say that the safeguards ordered by the High Court are in force; disputed privileged material has been separated from the primary investigative team; the remaining lawful part of the investigation need not be stopped. But that is a legal answer, and we shall give it. Jha ji will state the facts.”

Aditya nodded.

In that division he saw one of the grave beauties of Navya Nyaya. Every proposition had its own support. Facts belonged to the officer. Legal submissions to counsel. Judicial conclusions to the Court.

When those three boundaries collapse, a case becomes propaganda.



Elsewhere in the city, the petitioners’ legal team was holding a late-night conference in a five-star hotel.

On the writing board were diagrams of computational flow, the sequence of seals, email chains, corporate structures, and maps of payment flows.

Arvind Mehra told his team, “At this hearing the State does not yet bear the burden of proving anyone guilty. Keep our questions narrow. What is the limit of the investigation? Is privilege adequately protected? Has the State exaggerated the meaning of the computational material?”

A junior said, “Mishra ji, should we tell the media that the whole case is collapsing?”

Vidyanand, seated on the other side of the board, answered at once, “No.”

“Why?”

“Because the filing of a Special Leave Petition does not mean the case has collapsed. The Court has not even heard it yet.”

“But the media narrative—”

“The Court does not proceed on narrative.”

Mehra looked at Vidyanand.

“I think both sides are learning the same sentence today.”

“Which one?”

“Say only as much as you can say.”

Vidyanand smiled faintly.

“Perhaps the real adversary in this case is the exaggeration within both sides.”



The night deepened.

In the secure laboratory Malini was rechecking a timestamp. The computer clock proved to have a drift of three minutes and twelve seconds. The seven-minute correspondence that had seemed exciting earlier had now changed in meaning.

She telephoned Devvrat.

“Do not write seven minutes.”

“Why?”

“There is clock drift. Once normalised, the interval is ten minutes and twelve seconds.”

“Then the correspondence is gone?”

“No. The measure of the correspondence has been corrected.”

The call ended.

Malini remained looking at the screen for a long time. There was a strange calm within her. Earlier, whenever she found an error, she had feared that the case was growing weaker. Now she understood: correcting an error was not an act against the case. It was an act for the truth.

Aditya spoke from behind her. “Not going home?”

“I am saving this last line.”

“What did you write?”

Malini read aloud—

“Previously estimated temporal correspondence revised; after adjustment for computer-clock drift, interval is 10 minutes 12 seconds. This fact does not, by itself, establish ownership, operation, or the identity of any person.”

Aditya said, “Very good.”

“Very weak.”

She was smiling.

Aditya smiled too.

“Very strong, because it will not break.”



That night in Garh En Arikel, Aditya’s mother telephoned him.

“Have you eaten?”

“Yes, Ma.”

“They showed so many advocates on television. They were saying it is a big case.”

Aditya looked out at the lights of Delhi.

“The advocates are eminent. The case is only as large as the record.”

His mother laughed. “I do not understand this language. Take care of yourself.”

“I will.”

“And you are not afraid?”

At that question Aditya was silent for a few moments.

“I am.”

“Then remember the village.”

“I do.”

After the call ended, he remained silent for a long time.

The soil of Garh En Arikel had given him no miraculous fearlessness. Fear remained. But that soil had taught him one thing—keep looking at where you place your feet.

The perception of Navya Nyaya said much the same.

First, the ground.

Then, the step.

Then, the direction.

Do not declare the destination merely because you can see a direction.



The next morning, word came from the Supreme Court Registry that the Special Leave Petition was in the process of being listed. The precise time of hearing had not yet been fixed.

The media waited outside.

The petitioners’ legal team was ready.

The State was sorting its files not by colour as decoration, but by category of proof.

Red—judicial orders.

Blue—computational acquisition and integrity.

Green—verification sought from independent institutions.

Yellow—investigative hypotheses only, not yet established facts.

Malini lifted the yellow file. “This is the thickest.”

Aditya replied, “It always is at the beginning.”

“And at the end?”

“Some yellow may turn blue. Some will go into the discard bin. Some will remain questions.”

“And victory?”

Aditya closed the file.

“If the colours remain true—that is the first victory.”

At that moment a one-line message arrived from the Home Minister’s office—

“Before the Court, let only the record speak.”

Aditya read the message and turned his phone face down.

Outside, the city was waking. An immense team of highly paid advocates, the machinery of the State, journalists, officers, analysts—each was making its own preparations.

But once they reached the Court's door, every voice would be weighed on the same scale: what is the basis for what is being said?

In Aditya's mind, the tradition of Gangesha Upadhyaya rose once more without words.

Perception is the servant of no side.

It is witness only to what is present.

Whoever honours its limits receives its strength.

Whoever stretches it to suit desire is left, in the end, with nothing but a shadow in his hands.

००५ The Shadow of Evidence — Chapter ५

The listing of the Special Leave Petition in the Supreme Court was still awaited, but the clock of the investigation had not stopped. Aditya Jha had been sitting in his room since dawn. Before him lay four bundles—the response to the court requisition, the verification certificate for the forensic image, the chain-of-custody record, and a list of everything that, as yet, remained only a question.

Until yesterday, the size of the legal team had been a subject of discussion. Today Aditya wanted the record itself to grow smaller, while the weight of every page increased.

Malini Karna came in. In her hands were two sealed covers and one slender file.

“The first response has arrived,” she said.

“From whom?”

“The payment intermediary. It is not complete.”

Before opening the cover, Aditya examined the custody record. “When was it received?”

“At four eighteen this morning. In the secure mail room. The entry register bears the signatures of two witnesses.”

“The seal?”

“Intact.”

“Any copy?”

“The original has not yet been opened. Video recording of the opening is ready.”

Aditya nodded. “Then open it.”

The cover was opened in the presence of two officers, Malini, and the records custodian. Inside was a reply from a service entity within a financial-institution network. It stated that certain transaction references named in the court requisition had been located in its system, but that some details concerning the ultimate beneficiary were held by another institution.

Malini had barely read the first page when she said, “Jha-ji, this is beginning to connect the payment trail.”

Aditya raised a hand.

Malini stopped herself.

“I understand,” she said quietly. “What is directly established here is only that the cited references are recorded in their system. The ultimate beneficiary remains a separate matter for verification.”

“And?”

“The response is incomplete. Incompleteness is not proof of an offence.”

“Good.”

Malini pointed to a sentence printed in the corner of the page: ‘The remaining records will be supplied within seven working days.’

“Then we wait seven days,” Aditya said.

“What if they send another incomplete response?”

“Then we use the remedy provided by law. Not anger.”

A faint smile touched Malini’s face. “Why are your answers always so short?”

“Because the record speaks a great deal. It is better if the officer speaks less.”



That afternoon there was a limited hearing on compliance with the High Court’s earlier order. The petition had already been filed in the Supreme Court, but no stay had yet been granted. The existing protective arrangement therefore still had to be observed and tested.

Vidyanand Mishra rose from his place. His voice was not harsh, only precise.

“My Lady, I seek an answer on two matters. First—how was the forensic image of the seized device created, and against what hash value was it verified? Second—was the core investigating team truly kept separate from the files disputed on grounds of privilege, or was the separation merely on paper?”

Counsel for the State turned towards Aditya.

Justice Arya said, “The officer may answer, but only as to fact.”

Aditya stood.

“The original storage medium was acquired through a write-blocking device. The hash value was recorded at the time of acquisition. Two verified images were then created—one for secure preservation, the other for analysis. Every subsequent reproduction of the analysis copy has its own recorded hash value and timestamp.”

Vidyanand asked, “Is the hash of the original and the analysis copy identical?”

“The hash of the original acquisition image and its intact preservation copy is identical. If the structural wrapper of a working analysis copy is altered by the analytical process, its hash may differ; therefore the provenance of every level is documented in a verified chain of custody back to the original image.”

“So the Court should not be satisfied merely by hearing that ‘the hashes match?’”

“It should not, My Lady,” Aditya said, turning towards the Bench. “The Court must also know what object the hash belongs to, when it was taken, how it was generated, and where that object stands in the chain of custody.”

Justice Arya continued writing.

Vidyanand asked again, “And the privilege segregation?”

Counsel for the State placed a register before the Court. “A separate review team. Members of the core investigating team are prohibited from entry. The access register is annexed.”

Vidyanand turned the pages. “Kindly note this name. Devvrat Sen. This officer attended technical meetings of the original team.”

A murmur moved through the courtroom.

Malini was seated behind them. Her body tightened at once. Devvrat had attended two of the early meetings. If he had also entered the privilege-review area, the question raised by the other side was serious.

Aditya asked for the register.

Counsel for the State whispered, “Do you know about this?”

“Not yet.”

Those two words reached Malini clearly.

Aditya studied the entry. Time in, time out, purpose—‘device verification’.

Vidyanand said, “Is that not a breach of the boundary?”

Aditya replied, “If he had access to the disputed material, it is a serious question. If his entry was controlled and solely for verification of the hash of a separate device, the facts would be different. The register, at present, establishes only entry. It does not establish what material he saw.”

“You are not defending your own officer?”

“I am defending the record.”

The courtroom fell still.

Justice Arya asked, “How soon can you give me a clear answer?”

“By this evening we can obtain the entry footage, the device log, the work description, and the access-rights report.”

“Then no inference. Give me the report.”

“Yes, My Lady.”



The moment they came out of court, the Joint Director’s face was flushed with anger.

“Remove Devvrat immediately. They will turn this single entry into a mountain.”

Aditya kept walking, slowly.

“First let us find out what happened during that entry.”

“His name has been spoken in open court!”

“His name has been spoken. Guilt has not.”

“What if he crossed the boundary?”

“Then it will be recorded.”

“And if he did not?”

“That too will be recorded.”

The Joint Director stopped. “Jha-ji, do you never get angry?”

Aditya looked at him. “I do. But an investigation diary is not the place for anger.”

Malini, a little distance away, had heard the exchange. Until yesterday, she had thought courage meant defending one’s own team. Today she began to understand that sometimes courage meant raising a question against one’s own team as well.



Devvrat Sen was waiting in the secure laboratory. His face had gone pale.

“Jha-ji, I did not open a single file.”

Aditya drew out a chair and sat down. “Do not give me your defence. Give me the sequence.”

“The hash was not matching on the review team’s storage medium. They called me. I connected an external verification device and recalculated only the hash of the original image. The file list was open on the screen, but I did not open any file.”

“You saw the list on the screen?”

Devvrat paused. “Yes.”

“Could you read the file names?”

“Some of them.”

“Do you remember any of the names?”

Devvrat lowered his eyes. “Two or three.”

Malini held her breath.

Aditya’s voice did not change. “Then it would be wrong to write that you ‘saw no material’. Write this: no file was opened, but file names were visible on the screen; some names were seen.”

Devvrat grew alarmed. “Jha-ji, that will damage the case.”

“Not writing what happened will damage it.”

“I did not do it knowingly—”

“Purpose is one question. Perception is another.”

Devvrat’s eyes filled. “Will I lose my job?”

Aditya was silent for a moment. “That decision is not mine. But write clearly what you saw. Do not make the fact smaller because you are afraid.”

Malini opened the custody register. The video record linked to the verification time was played. Devvrat stood beside the device. A file list was visible on the screen, but the preview window was closed. His access rights were restricted to a read-prohibited verification device.

Aditya said, “We will now record three things separately. One—the designated restricted area was entered. Two—the file list was visible; some names could be seen. Three—at present there is no direct indication that any file was opened or its contents read. The Court will decide the legal significance of the breach, if any.”

Devvrat covered his face with his hands.

Malini kept looking at the screen. This was the kind of moment in which an institution might twist a sentence to preserve its reputation. Aditya had kept the sentence straight, even if the institution had to take the blow full in the face.



The second problem that evening was stranger still.

The hash value of one subfolder in the analysis copy did not match the previous day’s record.

Malini called Aditya at once.

“Jha-ji, look at this. The original image hash is correct. The preservation copy is correct. But there is a difference in this subfolder of the working copy.”

“The cause?”

“Not yet known.”

“Stop the analysis.”

“All of it?”

“All of this branch.”

“But our reply is due tomorrow.”

“Then the reply will say that verification is in progress.”

For a moment Malini looked stricken. Several days of work had gone into that branch.

The technical log was opened. At last the cause emerged: an automated indexing tool had altered directory attributes in the working copy. The binary-unit level of the original material remained intact, but the hash at the subfolder level had changed.

Malini let out a long breath. “Then the material is safe.”

“On the original?”

“Yes.”

“The working copy?”

“It will be rebuilt for reliable analysis.”

“The earlier conclusions?”

“Anything dependent on this subfolder will be withdrawn provisionally.”

Her face clouded as she said it.

Aditya asked, “Does it hurt?”

“Yes. Three days’ work.”

“Was the work lost, or the illusion?”

Malini looked at him.

“If the original is safe, the work can be done again. If we hide the discrepancy, tomorrow it may not be three days that sink in court. It may be the entire investigation.”

Malini began the process of creating a fresh copy. “What shall we call it?”

Aditya said, “Give it an ordinary name. We need no pride of version.”

Malini laughed. “Very well—‘Direct Working Copy, Dated’.”

“That will do.”



At eight that night, the compliance statement for filing before the High Court was ready. Counsel for the State was reading every sentence.

One line read: ‘Privilege protection remained wholly intact.’

Aditya struck it out in red.

Counsel asked, “Why?”

“We have no basis for saying ‘wholly’. File names were visible.”

Another line read: ‘The hash chain remained entirely unaffected.’

He struck that out as well.

“Write this instead: the original acquisition and preservation copy remain intact; a discrepancy caused by indexing was found in one branch of the working copy; analysis of that branch was stopped; a fresh verified copy is being created.”

The Joint Director grew impatient. “The other side will use these two lines against us.”

Aditya remained calm. “If we do not write them and they discover them, it will not be two lines they use against us. It will be our credibility.”

“Sometimes you make the other side’s work very easy.”

“I do not want to make the Court’s work difficult.”

Silence spread through the room.

Counsel for the State said quietly, “File it in this form. We can bear the wound of a fact. Not the wound of concealment.”



That night the news channels were alive with speculation. Some said the investigation was collapsing; others said ‘decisive evidence’ of the offshore gambling network had been found. Both claims ran ahead of the record.

A question came from Ananya Kashyap’s newsroom to Aditya’s office: “Has the State admitted that the computational evidence was contaminated?”

Aditya sent a written reply: “The integrity of the original forensic acquisition and the securely preserved copy stands verified. After a technical discrepancy was found in a subfolder of one working copy, analysis of that branch was stopped and a fresh verified copy is being prepared. This fact does not establish guilt against any person.”

A second question followed: “Was lawyer–client privilege breached?”

The reply: “The fact of a technical member’s entry into the restricted review area is being disclosed to the Court. It is recorded that file names were visible; at present there is no direct indication that contents were read. The legal assessment is for the Court.”

Malini read the answers and said, “Any audience will flee from sentences this careful.”

Aditya lifted his cup of tea. “Truth is not an industry for catching audiences.”



At eleven that night his mother called from Garh En Arikel.

“Late again today?”

“Yes, Ma.”

“Have you eaten?”

“I will now.”

“You sound tired.”

Aditya opened the window. The Delhi night was warm. Somewhere far away there seemed to be the smell of rain, though no rain had fallen.

“Ma, if one of your own people makes a mistake, should you protect the person, or write down the mistake?”

For a few moments there was silence at the other end.

His mother said, “If you do not write down the mistake, what are you saving—the person, or the mistake?”

Aditya smiled.

“That is all I wanted to understand.”

“Is that such a large question in Delhi?”

“Sometimes.”

“In the village it is simple.”

“That is why I remember the village.”



The next morning the compliance statement was filed. Its language did not glitter. It contained two facts inconvenient to the State itself. But beside every fact stood the limit of what that fact could bear.

Response to the court requisition—partial; remainder awaited.

Original forensic image—hash verified.

One branch of the working copy—under reconstruction because of a technical discrepancy.

Technical entry into the privilege-review area—acknowledged; visual limits described; no direct indication presently available of content being read.

Ownership of the alleged offshore network—not yet established.

Guilt of any particular individual—a matter for judicial determination; the investigation remains at the evidence-gathering stage.

Malini read the final copy and said, “This report does not look like victory.”

Aditya closed the file.

“That is why it is good.”

“Why?”

“An investigative report is not a victory proclamation.”

“Then what is victory?”

Aditya looked towards the window. Dawn was settling upon the glass.

“When fear, reputation, anger, allegiance—none of them can alter a sentence in the record.”

Malini said nothing.

She was beginning to understand that, in Navya Nyaya, perception was not merely what the eye had seen. The hardest discipline of perception was this: write only as much as was seen; do not fill with desire the empty space of what was not seen.

On Aditya’s writing desk, the next court requisition was already prepared.

Records from the overseas service entity had yet to arrive. The Supreme Court listing was drawing near. The legal team’s assault would become sharper still.

But that day the investigation passed a subtler test—not by hiding its own weakness, but by measuring it.

The language of revenge is fast.

The language of method is slow.

Yet in a court of law, the words that endure longest are those whose feet remain planted upon evidence.

006 The Shadow of Evidence — Chapter 6

Early on the morning of the second day after the compliance statement had been filed, a message arrived from the Ministry of Law. The principal investigation file, the High Court's order, a copy of the special leave petition filed before the Supreme Court, a summary of the privilege dispute, and the custody record of the digital evidence were to be assembled and sent to the Ministry.

The Joint Director read the message and said, "This is no longer merely an investigation."

Aditya Jha kept his eyes on the list of files. "It was never merely an investigation."

"The Ministry is asking for strategy."

"Then send them the facts."

"Strategy is a different thing from facts."

Aditya raised his head. "Different, yes. But not contrary to them."

Five separate bundles were made on the table. The first contained the High Court's order and the record of compliance. The second held the special leave petition and the principal legal questions raised by the other side. The third contained the forensic chain of custody. The fourth, the privilege-segregation framework. The fifth held material that mattered to the investigation but had not yet been fully verified.

On the fifth bundle, Malini Karn wrote: "UNDER VERIFICATION."

The Joint Director said, "That phrase will make the file look weak."

Malini stopped her pen.

Aditya said, "You do not strengthen a weak fact by changing its name."

"The Ministry will ask what has been proved after all this time."

"Then write what has been proved, and write what has not."

"At the political level, it is difficult to answer like that."

Aditya said softly, "At the judicial level, it is harder still to give an inaccurate answer."



By noon the file had reached the vast building in the North Block. In the Ministry of Law conference room sat representatives of the Home Ministry, the Law Ministry, the Financial Investigation Cell, the Cyber Crime Branch, and the State's legal team.

Aditya sat farthest from the head of the table. A thick file lay open before him, but in his small notebook he had written only five words:

Object. Source. Relation. Limit. Status.

The Law Secretary opened the meeting.

"The petition is already before the Supreme Court. The opposing side's principal contention is that examining material seized from a lawyer's office violates the bounds of privilege, and that the safeguards ordered by the High Court are inadequate. Our answer cannot simply be that the investigation is necessary. We must show that even while being necessary, it remains conscious of its limits."

A senior officer said, "But if we set out every error ourselves, the other side will use it against us."

The Law Secretary turned a page in the file. "And if we do not set it out, and the Court discovers it for itself, who benefits then?"

Silence spread through the room.

The Additional Secretary from the Home Ministry asked, "What is the position on Devvrat Sen's access incident?"

Aditya replied, "There was access. The file index was visible. Some names could have been seen. At present we have no direct indication that the contents were opened or read. The complete account of the incident has been disclosed before the High Court."

"So privilege was not breached?"

"I cannot say that."

The officer looked mildly startled. "Why not?"

"Because 'breach' is a legal evaluation. I can state the directly observed facts. The Court will determine their legal consequence."

The Law Secretary looked at Aditya. "That distinction will remain in the written response."

Another officer asked, "And the hash discrepancy in the working copy?"

This time Malini spoke for herself. "The original acquisition image and the preservation copy are intact. In one subfolder of a working copy prepared for analysis, an automated indexing process altered metadata; use of that branch

was stopped and a new verified working copy was created. Conclusions that had depended upon the old branch were temporarily withdrawn.”

“So the evidence was not contaminated?”

Malini did not look towards Aditya.

She answered directly. “There is no direct basis to say that the original forensic acquisition was contaminated. But the affected branch of the working copy was treated as unfit for analysis. Those are two different propositions.”

Aditya placed a small dot in his notebook.

Malini was no longer merely hearing the discipline of factual limits; she had begun to carry it inside her own sentences.



During the first hour of the meeting, the State’s old legal posture began, little by little, to come apart.

Until then the main emphasis had been that the High Court’s order had furnished a lawful route for the investigation, and that the State would therefore defend the order before the Supreme Court. But the Law Secretary’s question was different.

“If the Supreme Court asks how the State itself classifies its material, what will the answer be?”

One lawyer said, “Evidence.”

Aditya’s pen stopped.

The Law Secretary spoke at once. “All of it?”

“No. I mean—investigative material.”

“That phrase is far too broad.”

The five words before Aditya came alive again: object, source, relation, limit, status.

The Law Secretary said, “I want a classification. We will not tell the Court that because a seized object exists, the allegation is therefore true. We must state which object is proved only as an existing object; which source has been verified; which relation remains inferential; which material is disputed on privilege; and which proposition is, at present, no more than an investigative question.”

Aditya said quietly, “That is what the strategy should be.”

Every face turned towards him.

The Home Ministry officer asked, “What do you propose?”

Aditya opened the file.

“An ‘Evidence-Status Table’. Five columns for every major item. First: what is the object? Second: where was it obtained? Third: what is the status of integrity or source verification? Fourth: what is the nature of its relation to the allegation? Fifth: what are its legal or factual limits?”

A senior counsel gave a faint smile. “Are we going to teach philosophy through a table in court?”

Aditya remained calm. “Not philosophy. We are going to reduce confusion.”

“An example?”

Malini opened her computer. Aditya said, “Saved access credentials were found on the seized storage device. Object: a record of saved credentials. Source: the verified image of the seized device. Integrity: verified against the acquisition hash. Relation: a possible connection with the specified online location. Limit: a successful login, the identity of the user, or control is not proved by that fact alone.”

The Law Secretary said, “Another.”

“The spreadsheet. Object: certain payment references and customer-identification entries. Source: the seized storage device. Integrity: image verified. Relation: partial correspondence with some responses received to external requisitions. Limit: the truth of the entries, their author, the ultimate beneficiary, and the legal character of the business remain matters for independent verification.”

“The deleted mail archive?”

“Object: recovered fragments of mail. Limit: the fact that material was in a deleted state does not prove a guilty mind. Sender identity, the full communication, context, and verification against the original service records remain under examination.”

The senior counsel’s smile disappeared.

“This table concedes half the other side’s questions before they are even asked,” he said.

The Law Secretary replied, “We do not become stronger by denying a question that is real.”

At that moment, the direction of the meeting changed.

The State would no longer seek the maximum possible meaning from the seized material. It would begin with the minimum undisputed fact. Every further conclusion would require a separate bridge. Where that bridge was incomplete, the record would say “under verification.” Where privilege was disputed, the distance maintained by the principal investigative team would be shown. Where the Court had made an earlier observation, it would not be repeated as though it were a final proved fact.

The strategy began to move away from an aggressive answer and towards a structural one.



In the second phase of the meeting, Home Minister Shiveshwar Prasad arrived.

His arrival changed the atmosphere of the room, but he gave no signal for anyone to stand. Taking his seat, he said, “Do not give me politics. Tell me the crisis.”

The Law Secretary briefly set out the questions in the special leave petition, the privilege dispute, the hash discrepancy, and the present state of the investigation.

The Minister did not interrupt even once.

At the end he asked, “Has the investigative team said anything before the Court that goes beyond the record?”

Counsel for the State said, “The formal submissions have remained careful so far. Some early internal observations were broader, but they were narrowed in the filed record.”

“In the news?”

“There has been a great deal of speculation.”

The Minister looked at Aditya. “Officer, do you speak to the media?”

“Only through written factual responses, when necessary.”

“And even in a matter this large, you do not say that ‘the network stands proved’?”

“Because, as of now, there are indications of certain connections, there is material, and some external records partially correspond with it; but we are not yet in a position to say that ownership and control of the entire network, or the guilt of any particular person, stand proved.”

The Minister leaned back in his chair.

“Good. That sentence makes me uncomfortable, but perhaps that is precisely why the Court will listen to it.”

No one in the room spoke.

The Minister continued, “I do not want advice on how to save the prestige of the State. I want to know how to preserve the Court’s trust. If the State hides its own errors, enlarges the limits of what it can say, or presents an allegation as a proved fact, it may win one case and still lose institutional trust.”

An officer said, “Sir, the other side will call this restraint weakness.”

Shiveshwar Prasad replied, “What the other side chooses to call it is their right. What the Court sees in the record is our responsibility.”

For the first time, Aditya studied the Minister’s face closely. The fatigue of political office was plainly visible. Party, press, industry, administration—pressure must have been coming at him from every direction. Yet in that moment his question was not how to preserve power, but how to preserve process.

The Minister asked the Law Secretary, “Is the strategy changing?”

“Yes. We will not merely defend the High Court’s order. We will place the whole investigative structure before the Court in a form that can be tested: classification of the material, privilege safeguards, the chain of custody, points still under verification, and claims kept within their proper limits.”

“Will you need additional legal assistance for that?”

The Law Secretary said, “Possibly. Let today’s restructured note be completed first. After that, the need will be clearer.”

The Minister nodded. “Complete it. Let there not be a single sentence before the Supreme Court whose feet are not planted in the file.”

Beneath the five words in his notebook, Aditya added a sixth:

Trust.



By evening, a small room in the Ministry had become an informal war room, though Aditya disliked the phrase. In war, the object is the defeat of the other side. In a judicial response, the object ought to be to face the question.

Malini was building the Evidence-Status Table. After every row she asked herself:

“Is this directly observed?”

“Has this been verified from its source?”

“Is this relation only an inference?”

“Is privilege claimed over this?”

“Are we giving an improper meaning to the absence of something?”

At one point she wrote: “Connection with offshore service server established.”

Aditya picked up the red pen.

Malini spoke at once. “Wait. ‘Indication of a possible technical connection; original service records awaited.’”

Aditya put the pen down again.

“You are taking my work away from me now.”

Malini laughed. “You taught me yourself.”

“Which is why I am pleased.”

The next row read: "Foreign payment route."

Malini changed it again: "Indication in intermediary records of an overseas service entity; ultimate beneficiary under verification."

The third row read: "Administrative control."

She stopped.

"There are saved access credentials and remnants of certain administrative pages, but the person exercising control has not been proved."

Aditya said, "Then write only that much."

Three hours passed in this slow cutting-away. The table grew shorter, but clearer. Many alluring sentences vanished. What remained could be repeated before a court with less shame.



By eight that night, the Ministry corridors were nearly empty. Aditya stood on the outer veranda looking at the city lights when his phone vibrated. It was his mother calling from Garh En Arikel.

"Have you eaten?"

"Not yet."

"Do people in Delhi not eat at night?"

Aditya laughed. "They do. I am the one who forgets."

"Your father is in the fields. Do you want to speak to him?"

A few moments later his father's voice came through. Crickets sounded behind him.

"How are things?"

"Work is going on."

"Do you have to hurry so much?"

Aditya rested a hand on the veranda rail. "Everyone wants haste."

"Does the soil accept haste?"

Aditya fell silent.

His father said, "I ploughed the field today. It looked dry on top, but there is moisture underneath. If I look once and say the soil has dried, the seed will be ruined. If I see only the colour on the surface and decide it has had enough rain, that too is an error. You have to take the soil in your hand and press it. Only then do you know how much water remains within."

The village fields rose before Aditya's eyes: dark brown earth, the lines of the plough, the slick clay clinging to his feet, dusk beyond the mango tree.

"I understand," he said.

His father laughed. "I am talking about farming."

"So am I."

After the call ended, Aditya stood there for a while. The stone of the Delhi building was cold, but in his mind he could feel the soil of Garh En Arikel.

Do not decide from the surface alone. Test the moisture within.

One view does not reveal the whole field.

One entry does not reveal the whole network.

Patience is not idleness; patience is also the discipline of withholding judgment until the proper time.



At nine that night, the Law Secretary sat down to read the restructured note. Its title was: "The State's Factual and Legal Position before the Supreme Court."

The first paragraph still contained a sentence from the old draft: "The seized material presents direct evidence of a wide offshore gambling network."

Aditya's eyes stopped on it.

The Law Secretary asked, "A problem?"

"Yes."

"Say it."

"'Direct evidence of a wide network' says more than we can presently say."

An officer said wearily, "Then what do we write?"

Aditya answered, "The seized material contains multiple digital and financial indicators whose interrelationship remains under investigation; some points are partially supported by external records; ownership, control, the ultimate beneficiary, and the legal responsibility of any particular individual remain matters for separate examination."

"That is very long."

The Law Secretary said, "But it is accurate."

The old sentence was struck out.

The second paragraph said: "Complete protection of attorney-client privilege has been ensured."

Aditya said, "Remove the word 'complete'."

"Then?"

"A separate review mechanism has been created for material disputed on privilege; the fact of one technical access event, and its limits, have been disclosed before the Court; the legal consequence remains under judicial consideration."

The third paragraph said: "All digital evidence is intact."

Malini spoke before anyone else. "That too is broader than the record permits. The original acquisition image and preservation copy have been verified; one branch of a working copy was reconstructed. Write only that."

The Law Secretary looked at Malini. "Your name?"

"Malini Karn."

"How long have you been on this matter?"

"From the beginning."

"Then carry this caution all the way to the end."

Malini lowered her head.



By eleven that night, the new strategic note was complete. Its governing position rested on five points.

The State would remain firm on the lawful necessity of the investigation, but would treat privilege not as an obstruction, but as a legal boundary.

The State would keep the existence of seized material separate from the meaning attributed to it.

On questions of digital integrity, source, and chain of custody, the State would claim no more than had actually been verified.

The State would not present points still under verification as proved facts.

The State would answer every adverse question from the record—not from the tone of the news, nor from political expectation.

The Home Minister read the final copy once more. It was very late, but he was still in the Ministry.

"Where is the victory in this?" he asked suddenly.

No one in the room could tell whether the question was irony or a test.

The Law Secretary said, "This is not a note of victory. It is the State's position."

A tired smile appeared on the Minister's face. "Then it is correct."

He looked at the final page. "Tomorrow, consider whether the nature of this matter has reached the point where the direct assistance of the Union's highest law officer is required before the Supreme Court. Send no request yet. First let this file become completely clear."

Aditya did not record that sentence in his investigation diary. It was an administrative consideration, not evidence.

He recorded only this: "Legal strategy restructured. Evidence-Status Table approved. Points under verification segregated. Privilege safeguards and custody records to remain central to the State's response before the Supreme Court."

Then he stopped his pen.

Malini asked, "Only that?"

"Only that."

"Nothing about what the Minister said?"

"That is not a fact for the investigation diary."

Malini smiled. "Object, source, relation, limit, status."

Aditya showed her his notebook. A new word had been written underneath: "Trust."

"The sixth?" Malini asked.

"It is not a category of evidence."

"Then what is it?"

"If the first five are right, perhaps the sixth survives."



After midnight, when Aditya returned to the guest house, he took off his shoes and sat on the veranda. Weariness had settled into his body. On the writing desk lay a small cloth bag that had come from the village. A few days earlier his mother had sent fox nuts, satt, and dried tulsi from home. Fine dust from the village soil clung to one corner of the bag.

Aditya touched it with his thumb.

He remembered his father's words: not the colour of the surface—look for the moisture within.

Perhaps Gangesha Upadhyaya's idea of perception was also a name for this patience. What the eye sees must not be proclaimed by the mind as the whole truth at once. Let the object remain an object; let the bridge of relation be built; and where the bridge is incomplete, have the courage to call it incomplete.

Delhi's night outside was loud. Within, Aditya's mind was growing quiet.

The file had reached the Ministry. The strategy had changed. The matter was becoming larger still. The next day, perhaps, still greater legal names would become attached to the file.

But the soil of Garh En Arikel had taught him one thing again:

A judgment delivered in haste has a loud voice.

The roots of a sound judgment run deep.

And roots make no noise while they grow.

007 The Shadow of Evidence — Chapter 7

By seven in the morning, the marble corridors of the Law Ministry had not fully awakened, but a light was already burning in the small conference room on the third floor. The restructured note prepared overnight, the evidence-status table, the brief on the privilege dispute, and a copy of the special leave petition pending before the Supreme Court lay on the same table in separate bundles.

Aditya Jha arrived first. Malini Karn came in behind him. She carried a fresh copy of the chronology, with the status of every digital indicator written beside it—directly observed, under verification, inferential, or disputed on grounds of privilege.

Malini said, “I rechecked three entries from last night. An external response has come in on one payment reference.”

“What does it say?”

“A payment reference matching the number mentioned in the seized ledger also appears on a receipt submitted by a complainant from the village.”

“And what does that prove?”

Malini answered without hesitation. “A match in one reference number across two independent sources. Not the ultimate beneficiary, not the operator, and not ownership of the network.”

Aditya nodded.

“Your sentences are shorter now.”

“Once you understand the limit, the sentence becomes shorter.”

“And often truer.”



At eight, the Law Secretary, a representative of the Home Secretariat, and the State’s legal team arrived. A little later came Home Minister Shiveshwar Prasad. In his hand was the final note from the previous night, small red-pencil marks running along the margins of several pages.

As he sat down, he asked directly, “Has anything changed since last night?”

The Law Secretary replied, “Factually, one small external match has come in. Strategically, no. The State will stay with limited claims.”

The Minister looked at Malini. “External match?”

Malini explained, “The reference number on a complainant’s payment receipt matches an entry in the seized ledger. It is only a match. The payment’s ultimate destination and any person-specific link remain under verification.”

The Minister looked at Aditya. “Why do you people add so many words even to a small thing like this?”

Aditya said, “Because it is easy to make a small thing large. It is much harder to make it small again in court.”

A faint smile touched the Minister’s face, but he turned at once to the file.

“Yesterday I asked whether direct assistance from the Union’s highest law officers is necessary before the Supreme Court. I want an answer today.”

The Law Secretary opened the page before him.

“The matter is no longer confined to the admissibility of seized articles. It now reaches attorney-client privilege, the segregation of digital material, the distinction between originals and working copies, the limits of sealed material, access by the investigation team, and the adequacy of the safeguards devised by the High Court. The special leave petition places all of these questions before the Supreme Court together.”

“Is the State’s ordinary counsel team not enough?”

“It is capable. But the institutional importance of the questions is greater. One overbroad and mistaken submission could affect not merely this case, but the future course of digital seizures and privilege disputes.”

The Minister’s finger tapped the table once.

“Then send the request.”

No one in the room spoke at once.

The Minister continued, “To both offices—the Attorney General and the Solicitor General. But remember: we are not asking them to ‘win the case’. We are requesting them to examine the record, test the legal questions, and assist the State if they consider it necessary.”

The Law Secretary said, “The formal letter can be prepared today itself.”

“Before the letter, prepare a short factual brief. No more than two pages. No language of accusation. No language of headlines. Only the court record, the verified digital position, the privilege question, and the legal points in the pending petition.”

An officer asked, "Sir, should we mention the political sensitivity?"
Shiveshwar Prasad's voice hardened.
"No. Show the court's law officers the legal sensitivity, not the political sensitivity."
Aditya wrote in his notebook: "Request: administrative decision. Not evidence."
Malini glanced across and smiled softly.



At that same hour, on the other side of Delhi, Vidyanand Mishra was stalled by a single sentence in his chamber.
Before him lay a supplementary note for the special leave petition. A junior counsel had drafted a paragraph:
"The seized office material is wholly protected by privilege; therefore any examination whatsoever by the investigation team is unlawful."
With a red pen, Vidyanand struck out the word "wholly."
The junior looked startled. "Sir, that sentence is the centre of our case."
"The centre of a case cannot stand outside the truth."
"But the seizure was from a lawyer's office."
"That does not turn every record into legal advice."
"The State will take advantage of that distinction."
Vidyanand removed his spectacles and laid them on the table.
"I will not put a falsely sweeping principle before the court merely to prevent the State from gaining an advantage. My question is that the segregation of privileged and unrelated material must be fair, limited, and protected in advance. I will not say that every letter inside the four walls of an office is sacred."
The representative of Raghav Sethia, seated in the room, shifted uneasily. He was not a lawyer but a financial adviser, and for the past three days he had been attending meetings with the legal team.
He said, "Mishra ji, if we concede so much ourselves, half the investigation's work becomes easier."
Vidyanand looked at him.
"My work is not to make the investigation more difficult. My work is to protect my client's lawful rights."
"And the result?"
"The result is in the court's hands."
The representative lowered his voice. "The client will not be satisfied with that answer."
"The client may buy my legal opinion, not my conscience."
The juniors fell silent.
Vidyanand bent over the papers again.
"Write this: 'The seized material appears to contain an admixture of privileged communications, legal work product, information belonging to unrelated clients, and potentially non-privileged material; therefore the segregation process must ensure that the original investigation team does not read disputed material in advance.' That is our real question."
The junior began to write.
At that moment Vidyanand's phone vibrated.
His daughter Nandita's name glowed on the screen.
He answered.
"Yes?"
The voice on the other end was trying to sound ordinary, but it trembled.
"Babu, I have brought Ma to the hospital."
Vidyanand's hand went still over the pen.
"What happened?"
"She has had pain in her chest since last night. She kept saying it must be acidity. It became worse in the morning. The doctor says some tests are needed immediately. Can you come?"
For a few moments Vidyanand did not answer.
The Supreme Court list lay on the table. The supplementary note had to be completed by noon. There was also preparation for a possible urgent mentioning.
"Which hospital?"
Nandita gave him the name.
"I am coming."
The call ended.
Vidyanand rose, then stopped.
The juniors were looking at him.
"Finish this paragraph. And listen—write 'full protection has not been assured', but do not write 'the State deliberately breached privilege'. The record does not yet say that much."
One of the juniors said, "Sir, you are going to the hospital. We can look at this later."

Lifting his gown, Vidyanand said, “There will be less time later. A wrong sentence can have a very long life.”



At the Ministry, the formal request began to take shape.

The heading of the first draft read: “Request for Appearance in an Important Matter Concerning an Offshore Gambling Network.”

Aditya read it and said, “The word ‘network’ sounds like a conclusion already.”

An officer said, “That is how the matter is being referred to.”

“An informal name is one thing. In a formal letter, write the question, not the conclusion.”

The Law Secretary agreed. The heading was changed:

“Request for Legal Assistance in the Special Leave Petition Concerning Digital Seizure, Attorney-Client Privilege, and the Limits of Investigation.”

The Minister read the draft himself.

The first paragraph stated that the High Court had permitted the investigation to continue while prescribing a separate arrangement for the protection of privilege.

The second set out the challenge in the petition—the seized office material, the segregation process, access by the original investigation team, and the sealed record.

The third set out the State’s position—the investigation was necessary, but the boundaries of privilege and custody were equally imperative.

The fourth began: “In view of the matter’s wide national importance...”

The Minister stopped his pen at that line.

“Why ‘national importance?’”

The officer replied, “Offshore business, complaints across several states—”

The Minister cut him off.

“Those are still at the level of allegation and indication. Write: ‘In view of the recurring nature of the legal questions raised and the potentially wider implications of privilege safeguards in digital seizures.’”

The Law Secretary smiled. “You have been reading the evidence-status table too.”

The Minister said, “Officer Jha is corrupting everyone.”

Aditya replied, “If the words are becoming more accurate, I accept the charge.”

For the first time a light laugh passed through the room.

But it died quickly. The time had come to sign the formal request.

Shiveshwar Prasad picked up the pen, read the entire page once more, and signed.

“Send it to both offices at once. Enclose the factual brief, the High Court order, a copy of the special leave petition, and a concise extract from the evidence-status table. Not the entire investigation file. Only what is necessary.”

Aditya said, “The copy should omit witness identities and irrelevant private material.”

“Agreed. The Attorney General’s office, too, should receive only what is required for legal examination.”

The Minister looked at the Secretary.

“And state in the letter that any decision to appear or offer an opinion rests entirely on their own legal judgment.”

With that sentence, the request ceased to resemble an order and became an institutional invitation.



In the hospital waiting room, Vidyanand Mishra’s black advocate’s gown hung over the back of a chair. He had put his white bands into his pocket. His wife Shailaja was inside the examination room. Nandita sat beside him.

“Your case?” his daughter asked.

“The case will not run away.”

“Ma has been hiding the pain for three days.”

Vidyanand fell silent.

“Why did you not tell me?”

“She kept saying—you are in the middle of a very important case.”

Vidyanand closed his eyes for a moment.

“No case is that important.”

Nandita said nothing.

The phone vibrated again. This time it was a junior counsel.

“Sir, we have heard that the State is sending a request for assistance to the Attorney General and the Solicitor General.”

Vidyanand kept looking at the wall.

“What is the source?”

“There is talk in the court corridors.”

“Then do not treat it as fact.”

“But if it turns out to be true?”

“Then the State will strengthen its legal team. We will strengthen our argument. The title of an office does not alter a fact.”

The junior was silent for a few seconds.

“Sir, the client wants us to issue an immediate press statement—that the State is applying political pressure.”

Vidyanand’s face hardened.

“No statement. I have no direct basis for saying that the request amounts to political pressure. Asking the State’s highest law officers for assistance is not inherently improper.”

“But the client—”

“I am the client’s lawyer, not his echo.”

After the call ended, Nandita kept looking at him.

“Are all the people you defend actually innocent?”

Vidyanand smiled faintly, but the smile was tired.

“If the profession of advocacy were to depend on that question, justice would survive only for half the people.”

“Then what is it that you protect?”

“Sometimes a person. Sometimes a right. Sometimes a process. Sometimes only the principle that an allegation must not be called a proved fact.”

Nandita fell silent.

After a while she said, “And if the client asks you to cross the line?”

Vidyanand touched the red pen in his pocket.

“Then I must tell him where the line is.”

The examination-room door opened. The doctor came out.

Shailaja’s condition was stable, but there appeared to be a possible obstruction in one of the arteries of the heart. Further tests, and perhaps immediate treatment, would be necessary.

Vidyanand’s throat went dry.

“May I go in?”

“In a few minutes.”

He sat down again. The Supreme Court, privilege, the seized computer, sealed material—all those words receded very far for a few moments.

There are forms of direct perception in human life that require no inference. A daughter’s trembling hand. A doctor’s grave face. A wife’s empty chair.

For the first time, Vidyanand understood that “perception” was not merely an instrument of jurisprudence; sometimes it placed a human being face to face with his priorities.



At noon an electronic message arrived at the Ministry. The Attorney General’s office confirmed receipt of the request and asked for an index of the complete court record. It also sent a set of questions—the precise operative portions of the High Court order, the relief sought in the special leave petition, the present status of the State’s counter-affidavit, and the exact process for segregating privileged material.

A little later, a separate response came from the Solicitor General’s office. It requested the chronology, the legal basis of the seizure, a description of the original forensic acquisition, and a concise explanation of the alleged working-copy discrepancy.

The Joint Director said, “Both offices have sent difficult questions.”

Aditya replied, “Good.”

“Good?”

“What is not asked now, the Bench will ask later.”

Malini opened the chronology.

“Date of seizure, creation of the forensic image, verification of hash values, date the privilege dispute arose, the High Court’s interim order, constitution of the separate review team, the working-copy discrepancy, its rectification, and the new verified copy—shall I put all of it in one sequence?”

“Yes. But every line must identify its source.”

“The investigation diary?”

“Where appropriate. For a court order, cite the order. For a forensic event, the examination record. For an administrative decision, the Ministry’s letter. Not every fact has the same source.”

Malini added a new column on the right: “Source.”

“So this is the sixth column now?”

Aditya smiled. “The source was always there. You have only begun to see it.”



Signals from the village, too, were arriving slowly.

A response to a summons came from a bank branch in Madhubani. The name of the payment intermediary to whom money had gone from one complainant's account bore a phonetic resemblance to an abbreviated name in the seized ledger. But the name was incomplete, and the bank record showed only the first intermediary, not the ultimate beneficiary.

A junior investigator said excitedly, "Sir, the chain is connected now."

Aditya picked up the paper.

"What chain?"

"The village payment to the seized ledger."

"There is a match. Not a chain."

"The same intermediary appears in both."

"A possible match to an abbreviated intermediary name."

"But the probability is strong."

"A strong probability is still not a directly established fact."

The investigator's excitement dimmed a little.

Aditya said gently, "There is nothing wrong with enthusiasm. It simply has no place in the file. Send the next summons to the intermediary. Ask for the original ledger, recipient identification, timestamps, and, if possible, the subsequent flow of funds. When the answer comes, we will see."

Malini wrote on the paper: "Possible name match across two sources; flow of funds unproved."

The investigator read it and said, "Written like that, it sounds very small."

Malini replied, "Showing a thing at the size it actually is does not make it smaller."

Aditya looked at her. The sentence had become Malini's own now.



At the hospital, Shailaja was brought for a while into a private room. A decision about treatment was expected by evening. Vidyanand sat beside her bed.

Shailaja opened her eyes and looked at him.

"You did not go to court?"

"You are in hospital."

"So the world has stopped for that?"

"One part of my world is here."

Shailaja smiled faintly. "Lawyers do not stop arguing even at home."

For a few moments there was quiet.

Then Shailaja asked, "Whose case is it?"

"Seized digital material, privilege, the limits of investigation."

"People say it is a gambling case."

Vidyanand grew serious.

"There are many other allegations. But in court, what matters is not the list of accusations; it is the limit of what the evidence can bear."

"Do you believe the people you are fighting for are innocent?"

Vidyanand did not answer at once.

"My profession should not depend on my private belief in innocence or guilt. I believe that if the State adopts an improper method, justice can be corrupted even against someone who is in fact guilty."

Shailaja closed her eyes.

"Remember one thing."

"What?"

"The dignity of the profession lasts only as long as you do not turn the client's fear into your truth."

Vidyanand's face became still.

A little later Shailaja fell asleep.

Still sitting beside the bed, Vidyanand opened his supplementary note. His eyes returned to the paragraph where the junior had earlier written: "The entire material is protected by privilege."

In the margin, with his red pen, he wrote: "Claims must be category-specific. By source and subject. No sweeping assertion."

It seemed to him that his wife's sentence and the discipline of the court had come to meet at the same point.

◆

At four in the evening, a second communication arrived from the Attorney General's office. The office offered a time for a joint consultation the next morning, on condition that the State first send a concise record bundle. The Solicitor General's office also agreed to send a representative. This was not a final decision to appear; the file would first be examined.

The Home Minister's secretary said with excitement, "Sir, both offices are ready for a meeting."

Shiveshwar Prasad remained calm.

"Do not turn this into news."

"Yes, sir."

"And no line should go out saying, 'The State has deployed its heaviest legal artillery.'"

"Yes, sir."

"This is not a war. It is legal consultation to assist the court."

Aditya stood a little distance away. The Minister's sentence reminded him of his own discomfort the previous night with the phrase "war room." An interpretation of the Minister's intention rose in his mind, but he immediately placed it in the category of inference. The directly observable fact was only this: the Minister did not want an aggressive media framing.

Aditya smiled faintly at himself. Method does not merely cut down other people's sentences; it must also cut down the sentences forming inside one's own mind.

◆

At the evening meeting, the evidence-status table was being prepared in a form fit to send to the Attorney General's office. One line read:

"Offshore operation established from remnants of administrative pages."

Aditya struck it out at once.

Malini said, "How many times does this old wording keep coming back?"

"Because the mind likes conclusions."

A new sentence was drafted:

"Certain remnants of administrative pages and secured access indicators were found in the seized forensic image; a possible connection with the related network location remains under examination; the identity of the operator and the locus of geographical control remain unproved."

The second line:

"Foreign flow of funds established."

It was changed to:

"Certain payment-intermediary records indicate a possible link with an overseas service entity; the ultimate destination of funds and the beneficiary remain under verification."

The third line:

"The lawyer's office was the operational centre of the crime."

This time silence fell over the room.

Aditya's voice hardened.

"Where did this sentence come from?"

A junior officer said, "An early internal summary."

"Remove it."

"Entirely?"

"Entirely. There is no direct basis. The place of seizure is one thing; calling it the operational centre is another."

The Law Secretary said, "Mark every copy of this old summary. This sentence is not to appear in any submission to the court or the Ministry."

Malini wrote across the page in bold letters: "Unsupported internal conclusion—use prohibited."

Aditya said, "Once an unsupported sentence settles on someone's reputation, it is very difficult to lift its weight later."

For a moment the scale of the case shrank—one sentence, one human being, one reputation. Yet it is in such small places that justice breaks, or survives.

◆

At seven that evening, Vidyanand returned from the hospital to his chamber. Shailaja's treatment had moved onto a stable plan; the doctors considered the immediate crisis controlled, though the next two days would remain important. Nandita had insisted on staying at the hospital.

The junior lawyers stood as soon as he entered.

"Sit," Vidyanand said. "What changed?"

"The State's request has been confirmed. The Attorney General and Solicitor General will examine the file."

"Good."

"The client wants us to use the privilege question as a ground for setting aside the original seizure itself."

"The record?"

"The High Court did not set aside the seizure. It created safeguards."

"Then before the Supreme Court we may say the safeguards are inadequate, that the process exposes privilege to risk, and that a proper independent segregation mechanism is required. But 'the seizure is void by itself'—that needs a separate legal basis."

The junior handed him a note.

"The client's comment says: 'If we do not seek a complete halt, the investigation will destroy us.'"

Vidyanand read the page.

"That is fear. Not legal reasoning."

"What should we answer?"

"Write that counsel will place before the court only submissions that can be supported. The client's commercial fear will be respected, but it cannot take the place of a judicial fact."

For a moment there was admiration in the junior's eyes.

Vidyanand saw it, but said nothing. Professional dignity is not for admiration. It is for keeping the boundary.



At eight that night, Raghav Sethia himself came to Vidyanand's chamber. For the first time he was not present through a representative; he had come in person. Quiet clothes, measured steps, a gentle voice. His face bore the practiced composure of a man who knew how to keep fear behind courtesy.

"Mishra ji, I hope everything is all right at home?"

Vidyanand looked at him for a moment. He did not ask how news of the private crisis had reached him.

"Treatment is under way."

"If you wish, we can postpone the meeting."

"When that becomes necessary, I will say so myself."

Raghav sat down.

"The State is bringing in the country's highest law officers. This is no longer only a legal question."

"The second half of that sentence is your inference."

Raghav gave a small laugh. "Aditya Jha's influence?"

Vidyanand's eyes sharpened.

"No. A lawyer's training."

"I want a clear strategy. Stop the investigation."

"On what basis?"

"Privilege."

"Privilege is a shield, not a right to total darkness."

For the first time, something shifted in Raghav's face.

"Are you on my side or the State's?"

Vidyanand leaned slowly back against the chair.

"I am your lawyer. That is precisely why I will not tell you what sounds good but will not survive in court."

"What if I add another senior counsel?"

"That is your right."

"One who is more aggressive?"

"That too is your right."

"Would you withdraw?"

"If the client expects me to assert a fact the record does not support, yes."

The ticking of the chamber clock became distinctly audible.

Raghav said quietly, "Do you know how large the risk is?"

For an instant Vidyanand's mind went to the hospital bed—Shailaja's pale face, Nandita's trembling hands.

He replied, "Today I understand the meaning of a large risk very well. That is why I will not bury a small truth beneath a large fear."

Raghav stood up.

"We will meet in court tomorrow."

"If the matter is listed."

"And if the Attorney General appears in person?"

"The question will still be the same."

Raghav left.

For a while Vidyanand kept looking at the closed door. Professional dignity often sounds simple in speeches; in actual life it is a narrow straight line drawn through fees, fear, family, reputation, exhaustion, and uncertainty.

Walking that line was difficult.

But once a lawyer steps away from it, all that remains is a voice.



At nine that night, the Ministry's record bundle was transmitted through a secure channel to both senior law offices. Every document was itemized in the transmission list. Copies with witness identities redacted were separately marked. The privilege-disputed material itself was not enclosed; only its category, volume, segregation process, and the details of the court order were supplied.

Malini asked, "What if they want to see the original material?"

Aditya said, "Then according to legal permission and the prescribed process. A claim of necessity does not erase the boundary."

"Even the Attorney General's office?"

"Office does not erase limits. Office increases the responsibility to observe them."

The Joint Director signed the list.

"Transmitted."

Behind that small word stood the weight of an entire apparatus of State: the Home Minister's decision, the Law Secretary's scrutiny, the investigation team's facts, the court's order, and now the possible participation of the country's highest law offices.

But in his diary Aditya wrote only:

"Law Ministry transmitted a request for legal assistance to the offices of the Attorney General and Solicitor General. Enclosures limited to relevant court records and factual brief. Appearance/opinion presently under consideration."

Malini read it and asked, "No mention of the Home Minister?"

"The sender is the Ministry. Why manufacture a political story?"

Malini said, "People want names."

Aditya replied, "The investigation diary is not written for public curiosity."



At ten that night, the Supreme Court's supplementary list for the following day arrived. The special leave petition appeared in a possible sequence for mentioning. A full hearing was not assured, but the Bench might raise preliminary questions.

The State team stirred into motion again.

An officer asked, "What if the Attorney General's office does not take a final decision by morning?"

The Law Secretary replied, "The State's present counsel will appear. The court does not wait for anyone's office."

Aditya said, "Nor will the facts change."

Malini was printing the final page of her chronology.

"What will the Bench ask first?"

No one answered.

Aditya looked through the window. The city at night cast multiple reflections in the glass. One building appeared as two, two as four. Even perception can sometimes be crowded with reflections; that is why source, direction, and medium must be understood.

"Perhaps," he said, "the Bench will ask: what the State is saying—is it suspicion, evidence, or allegation?"

The Law Secretary looked at him.

"And the answer?"

Aditya placed his hand on the table before him.

"A different answer for every sentence."



When Vidyanand returned to the hospital that night, Shailaja was awake. The first phase of treatment had gone well. Her face was tired, but her voice was steady.

"Ready for court?"

"Yes."

"Did you say anything untrue?"

For the first time Vidyanand laughed openly.

"You cross-examine even when you are ill."

"Answer me."

“No. Today I cut out two large sentences.”

“Then perhaps you are being treated too.”

Vidyanand sat beside the bed.

For a while neither spoke. Outside, in the hospital corridor, came the slow sound of a wheeled bed being moved.

In Vidyanand’s mind was the next day’s court. On the State’s side, perhaps the assistance of the Attorney General or the Solicitor General. On his own side, the client’s fear, the genuine question of privilege, and the limits of his profession. In private life, his wife’s treatment.

Under pressure from so many directions, one thing remained clear—before the court, he would say only as much as the record could bear.

Shailaja closed her eyes and said, “If the truth is small, let it remain small.”

Vidyanand answered softly, “Today everyone seems to be teaching me that lesson.”



Shortly before midnight, Aditya returned to the guest house. The dust-streaked cloth bag from the village still lay on the table. He opened the day’s diary.

He wrote the final entry of the day:

“Records transmitted for examination by the offices of the Attorney General and Solicitor General. One reference-number match found between a village complainant’s receipt and the seized ledger; flow of funds and ultimate beneficiary unproved. Response from bank/intermediary awaited. Supreme Court supplementary list received. In the next stage, the separation of allegation, suspicion, directly available material, inference, and proved fact will be of particular importance.”

For a few moments his eyes rested on the word “today.” The speech of the village, the language of the courtroom, digital records—all belonged to different worlds, yet the discipline of truth was the same everywhere.

For Aditya, Gangesha Upadhyaya’s idea of perception no longer meant merely “what the eye sees.” Perception was what is genuinely present from its source, whose limits are known, and upon which the mind does not impose its desire.

The city night was deepening.

In one direction, the State had sought the assistance of the country’s highest law offices.

In another, Vidyanand Mishra had himself cut the most aggressive sentence his client wanted.

The two sides opposed each other.

Yet without knowing it, both had placed the same touchstone on their tables: how much the record says, and how much more a human being wishes to make it say.

The court would open in the morning.

Then perhaps the first question would not be about power, but about words.

Where does suspicion end?

Where does allegation begin?

From what point does the burden of proof rise?

And at what point will the court say: up to here, perception; beyond this, inference.

008 The Shadow of Evidence — Chapter 8

The morning light was descending upon the old walls of the High Court as though the stone itself were slowly waking. In the corridors, the tread of advocates, the rustle of paper, and low-voiced consultations mingled into that peculiar kind of silence in which there is much noise, yet every person continues to listen alone within himself.

Aditya Jha had taken his assigned seat behind the State's counsel even before the presiding courtroom opened. He carried no thick file. Only a slim chart with four columns. The first—direct material. The second—source. The third—limit. The fourth—so far, inference only.

Malini Karn sat beside him. The fatigue of a night's labour was in her eyes, but something within them had changed. Earlier, whenever two entries matched, a gleam of discovery would rise to her face. Now that gleam had been replaced by questions—how far did the match go? Were the sources independent? Was the time the same? And what, in fact, did the match say?

On the other side, Vidyanand Mishra was arranging his papers. Shailaja's medical condition had remained stable through the night, but the crisis at home had not released him. Even so, his face showed no private anguish, only professional discipline.

The matter was called.

Justice Arya took the Bench. For a few moments she looked through the papers, then raised her head.

"Today I want to understand the boundary between three words."

The courtroom stilled.

"Suspicion. Allegation. Proof."

Counsel for the State rose.

Justice Arya gestured with one hand. "Not definitions first. Tell me how these three are used in an investigation."

State counsel considered for a moment. "Suspicion gives rise to an investigative question. An allegation is a specific assertion made by a person or party, whose truth requires testing. Proof is material lawfully obtained and capable of being tested, which tends toward supporting or rebutting the fact asserted."

"And a judicial conclusion?"

"That follows the evaluation of the evidence, within the limits of the decision or observation made by the court under the applicable legal standard."

Justice Arya looked toward Vidyanand. "Do you agree?"

Vidyanand stood. "I agree with the basic distinction, My Lady. But my objection is that in some investigative correspondence the word 'indicator' slowly becomes 'connection,' and on the next page 'connection' becomes 'role.' If that transformation occurs without carrying forward the limits of the source, suspicion takes very little time to become accusation."

"An example?"

Vidyanand opened a page. "A seized computer file contains the name of a certain merchant identifier. The direct fact is only that the name appears in that file. But the investigation note says, 'This merchant appears to be connected with the financial structure of the network.' I do not object to the word 'appears.' I object if, in the next record, this sentence is treated as an established connection."

Justice Arya turned to State counsel.

"Is the investigating officer present?"

Aditya rose. "Yes, My Lady."

"Have you seen this page?"

"Yes."

"Your position?"

Aditya opened his four-column chart. "My Lady, the presence of the name in the original computer file is a direct documentary fact. Control, ownership, or knowing participation by the person or entity bearing that name in the alleged network has not yet been directly established. The sentence just quoted has been revised in my note to read 'a testable hypothesis.'"

For a few moments Justice Arya looked at Aditya's sheet.

"Place this chart on the court record. But let it be clear—the chart is not itself evidence. It is the investigating officer's classification."

"Yes, My Lady."

Aditya's answer was brief.

Malini felt inwardly that this single small sentence was teaching her the lesson again. Even an investigation's orderliness was not a synonym for truth before a court. Method was useful; a paper produced by method did not, by itself, establish guilt.



The first witness was called in.

His name was Deepnarayan Mandal. In a small market town in Madhubani district, he ran a mobile-phone repair and computer-service shop. There was the unstudied ease of the village in the way he stood, but his fingers kept locking into one another.

The formalities of the oath were completed.

State counsel asked, "When did you first make a complaint to the investigation team?"

Deepnarayan gave the date.

"Why?"

"Two customers came to my shop. Both said that after depositing money on a website they could not withdraw it. One customer showed me a payment receipt on his phone. I printed a copy for him. Later he said that support messages kept coming, but the money did not."

"Did you make the payment yourself?"

"No."

"Did you yourself play on that website?"

"No."

"Then what did you directly see?"

Deepnarayan paused. He had perhaps not expected the question in that form.

"I saw the receipt on the customer's phone. I saw the support messages. On the second customer's phone I saw similar messages too."

"And what do you know of your own knowledge?"

"I had made a copy of that receipt."

State counsel lifted a document. "Is this that copy?"

Deepnarayan examined it closely. "It looks like the same one."

Vidyanand rose at once. "My Lady, 'looks like the same one' states the limit of the identification."

Justice Arya nodded. "The record will preserve those exact words. The witness has not said, 'This is certainly the same copy.'"

There was sweat on Deepnarayan's forehead.

State counsel asked, "In your earlier statement you wrote that behind this business there is 'a large external group.' Where did that information come from?"

For an instant Deepnarayan's eyes went toward the door.

"Everyone in the market said so."

"Did you yourself see anything?"

"No."

"Did you meet anyone who told you this from direct personal knowledge?"

"No. It was what people were saying."

State counsel fell silent.

Justice Arya said, "Then the 'external group' is not within your direct knowledge. It is something said and heard in the market."

Deepnarayan said softly, "Yes."

Vidyanand rose to cross-examine. "When you first met the investigation team, were you frightened?"

"Yes."

"Afraid of whom?"

Deepnarayan's voice went dry. "I received two anonymous calls. I was told: do not get involved in what you do not understand."

A faint stir passed through the courtroom.

Vidyanand's voice did not change. "Do you know the identity of the caller?"

"No."

"Can you establish that the call came from the alleged network?"

"No."

"Then your fear may be real, but the source of that fear remains unknown?"

Deepnarayan lowered his eyes. "Yes."

Justice Arya looked at the record. "That distinction is necessary. The experience of fear is the witness's experience. An allegation about the cause of that fear is a different matter."

Aditya wrote only three words in his note: fear direct; source unproved.

After cross-examination Deepnarayan left the room. As the door closed behind him, his shoulders seemed slightly lower than before, but his gait was steady.

Malini said softly to Aditya, "He wanted to name the cause of his fear, but he did not know it."

Aditya answered in a whisper, "The human mind cannot endure an empty space. It supplies a cause at once. An investigation must not fill that space with imagination; it must draw a boundary around it."



The second witness was Naresh Mahato. He had once worked as a junior accounts assistant at a payment-intermediary institution and had since left the service. There was no fear like Deepnarayan's in his gait, only a kind of sharpened vigilance—as though he weighed the price of every sentence before giving it.

State counsel began. "Did you give the investigation team a table of merchant identifiers?"

"Yes."

"Was this table your personal compilation?"

"No. It was an internal exported list of the institution, available to me in the course of my work."

"Were you entitled to retain a copy?"

Naresh's expression changed. "No."

"Then how did a copy remain with you?"

"Before leaving the service I took some of my work material with me."

"Knowingly?"

"Yes."

Vidyanand rose. "My Lady, let the questions of lawful provenance and custody remain reserved."

Justice Arya said, "Reserved."

State counsel asked, "Did you understand what this list meant?"

"Merchant code, settlement reference, date, amount, status."

"Did you know the ultimate beneficiaries?"

"Not all of them."

"The code that concerns this investigation?"

Naresh paused.

"I thought that—"

Justice Arya spoke at once. "'Thought' comes later. First: did you know?"

"No, My Lady."

"Good. Now tell us—why did you think so?"

Naresh said, "The abbreviation of the name, repeated settlements, and talk of a familiar intermediary."

"Whose talk?"

"Colleagues in the office."

"Any written record?"

"Not with me."

Justice Arya set down her pen. "Then we have the same problem again. What the witness saw in the list is one thing. The meaning he draws from it is another. Office talk is a third."

State counsel moved on. "Did you expect any consideration in return for giving information to the investigation team?"

Naresh's face hardened. "I wanted only protection."

State counsel showed him a letter. "Is this your letter?"

Naresh looked at it. "Yes."

"In it you wrote: 'If the information proves useful, please inform me whether any provision exists for a government reward or remuneration.'"

The courtroom stirred again.

Naresh's throat went dry. "My financial condition was poor."

"So you did hope for a reward?"

"Yes, but that does not mean I spoke falsely."

State counsel said at once, "I am not suggesting that you did."

Vidyanand rose. "My Lady, nevertheless greed or the expectation of gain may be relevant when credibility is assessed."

Justice Arya said calmly, "It may be. But the presence of greed does not, by itself, make a statement false, just as the presence of fear does not, by itself, make a statement true. The court will remain cautious in both directions."

Naresh's shoulders loosened slightly.

Vidyanand began his cross-examination. "You supplied the list. The list contains merchant identifiers. Does the list contain my client's name?"

"Not by direct name."

"The name of the alleged offshore network?"

"There are two abbreviations which the investigation team is attempting to match."

"Did you make that match yourself?"

"No."

"Did you ever see my client issuing settlement instructions for those merchant identifiers?"

"No."

"Did you ever speak with him?"

"No."

"Did you ever hear him personally admit any role?"

"No."

Vidyanand closed the page. "Then your direct knowledge extends only to the list."

Naresh said reluctantly, "Yes."

Aditya wrote in his note: expectation of gain—a credibility question; existence of list separate; ownership unproved.

Malini kept looking at that line. She remembered that only a few weeks earlier she would have coloured an entire network map the moment she saw a list like this. Now she felt that every colour required its own evidentiary source.



The third witness was Kusum Jha, about forty years old. For several years she had worked as a records assistant at a legal-accounting services firm. The firm allegedly handled papers for many legitimate clients as well as for certain merchants whose names had surfaced in the investigation as indicators.

When Kusum entered, she did not look toward the court. Her eyes were fixed straight down.

After the oath, State counsel asked, "In your statement, did you say that you had deleted certain mail files?"

Kusum's voice was very low. "Yes."

"On whose instruction?"

She remained silent.

Justice Arya said, "Give the witness time."

Kusum drank some water.

"My senior said: remove the old mail; the storage is full."

"Name of the senior?"

She gave the name. It belonged to a minor, wholly fictional character in the story.

"Were you instructed specifically to delete mail connected with this investigation?"

"No. I was not told anything of the sort."

"Then why did you write in your statement, 'I now feel that something important may have been removed'?"

Kusum's eyes filled. "Because later I heard the names in the news. Then the investigating officers asked where the mail from a particular period was. I began to think—perhaps I had done something wrong."

Justice Arya asked gently, "Do you feel guilty now?"

"Very much."

"What is the guilt about?"

"That I deleted things."

"And at the time, did you know that the material was connected with a crime?"

"No."

"Then your present guilt is not proof of your knowledge in the past."

Tears fell from Kusum's eyes.

State counsel lifted the next page. "In forensic examination, fragments of some deleted mail were recovered. Were they shown to you?"

"Yes."

"Do you recognise them?"

"Some subject lines seem familiar. But not the complete emails."

"Are you certain that you yourself deleted them?"

Kusum shook her head. "No. I deleted a great many old emails. Which files I deleted and which went in automated cleanup—I cannot say now."

Malini looked involuntarily toward Aditya.

How easy it would have been to write: 'Evidence destroyed by employee.' Yet the witness's own words said only this much—she used to delete old mail; some fragments were later recovered; knowledge of any specific criminal purpose had not yet been established.

Vidyanand rose.

"Kusumji, did the investigation team treat you harshly?"

"No."

“Did they tell you that if you did not cooperate, they would make you an accused?”

“No.”

“Did anyone tell you, ‘All this was a conspiracy to destroy evidence?’”

Kusum thought for a moment. “Once an officer asked, ‘Was this a deliberate cleanup?’ But I said: I do not know.”

“And was that answer recorded?”

“Yes.”

Vidyanand looked at the State’s copy of the record. The sentence was indeed there: ‘Witness does not know the purpose.’

Vidyanand closed the page. “That is all.”

Justice Arya looked at Kusum. “Do not let guilt weigh upon your memory. The court needs what you remember; what you now think may perhaps have been the case must be kept separate.”

For the first time Kusum looked directly at the judge. “Yes, My Lady.”

When she left, her step was lighter than when she had entered. The guilt had not disappeared, but its name had changed. It was no longer ‘guilt proved’; it was ‘uncertain memory and regret.’



During the midday recess, Malini sat with Aditya in a corner of the court courtyard. Before them, the shade of a neem tree made broken lines upon the ground.

“Adityaji,” Malini said, “data was simpler.”

Aditya smiled faintly. “Data was simpler?”

“It does not feel fear. It does not feel greed. It does not feel guilt.”

“But it has no context.”

Malini fell silent.

“A computer entry says: at this time, this mark was recorded. A human being says: I saw this, I understood this, I was afraid, I wanted something, I regret it. The two forms of direct perception are different. Both have limits.”

“Then is a witness’s emotion evidence?”

For a moment Aditya looked at the neem leaves. “Emotion, as a mental state, may itself be a directly experienced fact for the witness. But that emotion does not by itself establish an external event. Deepnarayan’s fear may be real; the identity of whoever caused it is another question. Naresh’s desire for gain may be real; his list does not thereby become false. Kusum’s guilt may be real; it does not, by itself, establish criminal knowledge in the past.”

Malini said softly, “The subject is separate; the attribute is separate.”

Aditya looked at her.

“Exactly. And the delimiter of the relation is separate too. Gangesha is useful here: know a thing only as far as knowledge actually reaches.”

“In other words, the limits of perception.”

“If we refuse to honour the limits of perception, inference puts on a disguise and calls itself perception.”

Malini wrote in her notebook: ‘The most dangerous form of inference is the one that calls itself direct perception.’

Aditya read it and said, “Keep that line. But not in the investigation report—in your notebook.”

They both laughed.



The hearing resumed after the recess.

Justice Arya placed the State’s four-column chart before her.

“I will now take the examples one by one. The court wants to see whether the parties are using the same words in the same sense.”

She read the first line.

“Reference to a merchant identifier in a seized computer file.”

State counsel: “A directly observed documentary fact.”

Vidyanand: “Presence admitted; connection disputed.”

“Very well.”

The second line.

“The same payment reference in two independent sources.”

The State: “The match is direct; the possibility of a common financial pathway is inference.”

Vidyanand: “The actual independence of the sources remains under examination.”

Justice Arya: “Very well. Then use the word ‘independent’ with care for now.”

The third line.

“Partial recovery of deleted mail.”

The State: “The existence of the recovered fragments is direct; deliberate intent to destroy remains unproved.”

Vidyanand: “Agreed, subject to our rights on custody and full context.”

The fourth line.

“Market talk of an external network.”

State counsel was silent for a moment. “Part of the witness’s statement, but not direct proof of the underlying fact.”

Justice Arya put down her pen.

“The whole dispute turns on this distinction.”

She looked across the courtroom.

“Suspicion may open the door to investigation; suspicion is not itself proof of guilt. An allegation is a claim fit to be tested; repetition does not increase its truth. The value of evidence depends on source, lawful acquisition, integrity, context, and testing. And a judicial observation extends only as far as the order expressly says.”

No one in the courtroom moved.

Justice Arya continued, “This Bench is not at present giving any final conclusion as to any person’s guilt or innocence. It is only clarifying the boundaries of language in investigation and judicial testing.”

Vidyanand lowered his head and made a note.

So did State counsel.

A strange calm came over Aditya. The court had not taken his side. Nor had it taken the other side’s. The court stood guard over the boundaries of words. That was all Aditya had wanted.

Then Vidyanand rose. “My Lady, one additional request. When the investigation team links a witness’s statement with computer material, may there be a clear direction that expressions such as ‘proved by the statement’ are not used unless there has been independent testing.”

State counsel said, “We propose to use language such as ‘supported by the statement’ or ‘consistent with the statement,’ according to context.”

Justice Arya said, “Language can alter substance. ‘Proved,’ ‘supported,’ ‘consistent,’ ‘indicated’—these are not synonyms. Whatever word is chosen in an investigative record must have a basis.”

Hearing this, Malini almost sat straighter. For the first time in the entire matter, she felt that language itself was a forensic instrument. An imprecise word could alter the value of a fact just as an incorrect timestamp could alter an entire chronology.



Before the hearing ended, Justice Arya raised one final question.

“Investigating officer, why does your case diary record the emotional condition of witnesses?”

Aditya stood.

“My Lady, if a witness changes a statement because of fear, expects a benefit, or begins, out of guilt, to draw conclusions beyond the limits of memory, then recording the circumstances may help us assess the reliability of the questioning and the need for re-examination. But I do not treat emotion as a means of proving the underlying event.”

“An example?”

“The source of Deepnarayan’s fear is unknown; therefore it would be improper to write ‘threat issued by the network.’ Naresh’s expectation of reward raises a question about motive; the list he supplied must still be verified separately. Kusum’s guilt is her present state of mind; it is not proof that in the past she deliberately intended to destroy material.”

Justice Arya said, “Good. Let distinctions of that kind remain clear in the diary.”

“Yes, My Lady.”

The Bench rose.

The air in the courtroom seemed suddenly to slacken. People began to stand. Papers were gathered. In the outer corridor, the bustle of reporters waiting for news increased.



Outside, a reporter surrounded Vidyanand with questions.

“Has the court raised doubts about the State’s evidence?”

Vidyanand stopped. “The court clarified the boundaries of words.”

“So the investigation is weak?”

“I did not say that.”

“Then the State is strong?”

A tired smile came to Vidyanand’s face. “Your question has only two rooms. The court record has many.”

He walked away.

On the other side, Aditya and Malini were stopped.

“Has the court accepted that a gambling network exists?”

Aditya answered, “No. The court has not given any such final conclusion.”

“But three witnesses have spoken of the system?”

"The three witnesses have spoken on different subjects. The limits of each statement are on the record."

"Were threats issued?"

"One witness has spoken of anonymous calls. The identity of the source is unproved."

"Was evidence destroyed?"

"Fragments of some deleted computer material have been recovered. Purpose, actor, and legal effect remain under examination."

The reporter was silent for a moment. "It is difficult to make a headline out of your answers."

This time Malini spoke before Aditya could. "Truth does not change its shape to suit the convenience of a headline."

Aditya looked at her. Malini immediately wondered whether she had said too much. But Aditya only smiled faintly.



That evening, when the investigation team returned to its office, Aditya had all the witness statements classified again.

On the board he wrote five headings—

Direct perception.

Documentary direct evidence.

Hearsay information.

Inference.

Unproved allegation.

Malini asked, "Should judicial observation not be separate?"

Aditya added a sixth heading—Judicial observation: no further than the words of the order.

"And established fact?"

Aditya wrote a seventh heading—Established fact: awaiting the final test.

Malini said, "That compartment is nearly empty at present."

"Let it remain empty."

"People will say the investigation has proved nothing."

"An empty compartment at the beginning of an investigation is no disgrace. Filling it with what is not proved is."

For a while Malini kept looking at the board.

"Deepnarayan?"

"Direct—saw the receipt, saw the messages. Hearsay—the external group. Fear—a mental state. Source of threat—unproved."

"Naresh?"

"Availability of the list—a documentary matter, custody under examination. Expectation of gain—admitted. Ultimate beneficiary—unknown."

"Kusum?"

"Routine deletion of old mail—admitted. Deliberate destruction of specific material—unproved. Recovered fragments—under forensic examination."

Malini closed her notebook. "Once you cut a story down this finely, it becomes very small."

Aditya said, "But what remains can bear weight."



That night Vidyanand Mishra did not go to the hospital. Word had come that Shailaja's condition was stable, and he had to prepare a detailed note on privilege for the next hearing.

In his office, junior advocates were separating different kinds of records—legal opinions, client communications, business instructions, ordinary accounting material, and mixed records containing both legal and commercial elements.

One junior asked, "Mishraji, should we claim privilege over every communication?"

Vidyanand looked up.

"Why?"

"For protection."

"Protection does not extend beyond the boundary of truth."

"But if the State reads it?"

"What is genuinely legal advice, we will protect with all our strength. What is a business instruction does not become privileged merely because it happened to pass through a lawyer's office."

The junior fell silent.

Shailaja's words from the night before returned to Vidyanand: if the truth is small, let it remain small.

He marked the list in three categories—legal advice; mixed; ordinary commercial.

He knew the real conflict at the next hearing would arise here. The State would say: lawful access for investigation. He would say: the limits of privilege. But the court's question that day had begun to follow both sides—whatever claim you make, what is its direct basis?



By the time Aditya reached the guest house, much of the night had passed. The small cloth pouch of earth from the village still lay on the table. He did not open it. He merely rested his palm upon it.

A scene from childhood in Garh En Arikel rose suddenly in his memory. After the rains the earth beside the courtyard had softened. One day his father had pointed to a footprint and asked, "Whose is this?"

The child Aditya, without thinking, had named a neighbour.

His father had asked, "Did you see the name?"

"No."

"Did you see the foot?"

"The print."

"Then say 'print.' Why name the person?"

The shame of that day was still clear.

Aditya opened the diary.

He wrote—

"The first duty of perception is to accept what is present together with its limits. Fear may be observed, but its cause requires separate proof. The desire for gain may be admitted, but the truth of the statement requires independent testing. Guilt may be a fact of the mind, but it is not a synonym for criminal intent in the past. Today the court clarified the boundary in language between suspicion, allegation, and proof; it gave no final conclusion of guilt."

He stopped his pen.

Then added another line—

"What I have seen, I will state only as far as I have seen it. What I have thought, I will call inference. What another person has said, I will name its source. What the court has said, I will not carry one letter beyond its words."

Outside, the city night was falling quiet.

Aditya opened the window. From somewhere far away came the smell of rain. For an instant it seemed like the earth of his village.

Then a message arrived on his phone: Vidyanand Mishra's side had filed a detailed privilege list in court for the next hearing.

Aditya read the message.

He knew that today the court had asked about the boundary between suspicion and proof. The next conflict would be subtler still.

Which words lie within a client's confidence?

Which record is legal advice?

Which material is only a business fact?

And when both are present on the same page, where will the boundary be drawn?

The pouch of earth on the table remained silent.

The diary lay open.

Aditya wrote the final line—

"The hardest task in justice is not merely to find the truth; it is also not to draw a false boundary around it."

009 The Shadow of Evidence — Chapter 9

The old gallery of the High Court was unusually quiet that morning. The rain outside had stopped, but here and there, on the marble floor, fine marks of dampness carried in on the soles of shoes still shone. Aditya Jha looked at those traces once, then lowered his eyes to the list in his hand.

At the top of the list was written: Claims of Privilege — Category-wise Particulars.

Below it, Vidyanand Mishra's side had created three classes—legal advice, mixed communications, and ordinary commercial material. Against each entry were the date, medium, sender, recipient, a brief indication of subject, and the basis of the privilege claimed. Some lines were blank. Some said only: "Further particulars may disclose the subject matter."

Malini Karn sat beside Aditya. In her hands was the forensic inventory.

Leaning slightly toward him, Malini said, "Jha ji, there is a problem with item forty-six."

"What?"

"The privilege list says 'legal advice.' Our forensic inventory says the original name was 'Merchant-Settlement-Fourth-Quarter.' There is no lawyer's name anywhere in the record."

Aditya asked, "What does that contradiction prove?"

Instead of answering at once, Malini read the line again.

"Only that the connection between the claim and the original name is not apparent."

"Exactly. Not that the claim is false."

"Yes."

"The name of a record is not final proof of its nature. But the party asserting the claim must state its basis. We have seen the name—that is direct perception. We have not read the disputed material inside the file—that, too, is a directly known condition. So the conclusion?"

"Reserved."

Aditya gave a slight nod.

"One form of perception is seeing. Another is acknowledging as unseen what one has not seen."

Malini wrote in her notebook: 'Restraint of inference over unseen material.'

Ahead of them, Vidyanand Mishra was speaking quietly with his junior counsel. His face bore the marks of a night without sleep. Shailaja's condition was stable, but the doctor had advised complete rest. The family had urged him to stay at home. At five that morning Vidyanand had opened a court file instead of sitting at the hospital. He was not pleased with his choice; he was only reassured that Shailaja was safe in the care of their daughter and the doctors.

His junior leaned toward him. "Mishraji, the State will read this list very narrowly."

"It is the State's work to question."

"But what if they call everything commercial records and seek access to the contents?"

Vidyanand closed the list.

"Then we will show why what is truly legal advice is legal advice. We will not misuse the name of privilege to protect what is not."

There was dissatisfaction in the junior's voice. "But will the other side show the same restraint?"

Vidyanand looked at him.

"If professional dignity depends on the conduct of one's opponent, it ceases to be dignity and becomes a bargain."

The court usher entered and called the matter.

Everyone rose.



When Justice Arya took the bench, two thick files lay before the parties: one belonging to the State, the other to Vidyanand's side. Between them, set apart, lay a slender sealed file.

Justice Arya looked first at the slender file.

"What is this?"

Vidyanand rose. "My Lady, a category list of the twelve disputed records, with a brief basis for each claim. The original material has not been produced unless and until the Bench directs otherwise."

Counsel for the State said, "We face one difficulty here. The original names and forensic locations of some records make them appear to be ordinary commercial accounting material."

Justice Arya asked, "They appear so—what is directly established?"

Counsel for the State paused for a moment.

"Directly established: the original filenames, file paths, creation times, and the available metadata."

“And the contents?”

“My team has not read the disputed portions.”

“Then ‘ordinary commercial accounting material’ is, at present?”

“A preliminary classification.”

“Good. The court will correct the language of the record: preliminary classification, not final conclusion.”

Aniruddh, seated beside Vidyanand, immediately made a note.

Justice Arya turned to Vidyanand.

“And item forty-six on your list—legal advice. The basis?”

Vidyanand said, “My Lady, the record itself may be a commercial table, but our claim is not over the existence of the table. It is over the legal opinion sought by the client upon that table, and the annotations attached to it.”

“So the entire table is privileged?”

“We make no such sweeping claim. If underlying fact and legal advice can be separated, segregation would be proper.”

Counsel for the State said at once, “That is a significant admission.”

Vidyanand’s face did not harden.

“It is not an admission. It is our position from the beginning.”

Justice Arya raised a hand and stopped them both.

“The court requires less ornament of argument and more structure. Where a record was found is one fact. Who made it is a second question. For what purpose it was made is a third. Which part is legal advice is a fourth. And which part existed independently beforehand is a fifth. Fold all five into one sentence and all that will rise is smoke.”

A word flashed in Aditya’s mind—*avacchedaka*: the delimiting condition.

The boundary by which a thing is identified. The kind of relation by which a relation is identified. The old, difficult language of *Navya Nyaya* suddenly came alive in the court’s plain questions.

Justice Arya asked counsel for the State, “What does the investigation seek? Complete access?”

“No, My Lady. An independent review of the disputed material, so that genuine legal advice remains segregated from the principal investigative team, while non-privileged underlying facts, commercial records, and possible transaction leads may lawfully enter the investigation.”

“Who will conduct the independent review?”

“A team not involved in the principal investigation.”

“Will that team record reasons for its classification?”

“Yes.”

“And whatever remains disputed?”

“Before the Bench under seal.”

Justice Arya looked at Vidyanand.

“Objection?”

“Not in principle. But the review team must not look only at the title of a record. It must also consider the context of the communication, the purpose of the advice, and the limits of the client-lawyer relationship. And where a record is mixed, only the minimum necessary portion should reach the principal investigative team.”

Counsel for the State said, “My Lady, the word ‘context’ must not become a cloak under which an entire commercial file is shut away again.”

Vidyanand replied, “And the words ‘underlying facts’ must not become a cloak under which all legal advice is opened.”

For a few moments the Bench was silent.

Justice Arya said, “Neither side will turn its fear into a principle of law. The court will devise a process.”



The argument then caught upon a single electronic message.

It had been sent in the name of the alleged client’s finance officer to the assistant of a lawyer. The subject line was ordinary: ‘Settlement Structure.’ Attached was a table setting out four routes of payment. The message ended with one sentence: “Please advise what legal impediment, if any, may arise in this structure.”

The State said: the table was a pre-existing commercial fact; the question sought legal advice; the table did not become privileged by itself.

Vidyanand’s side said: the table had been prepared in the context of that specific legal question; the selection of what it contained might itself form part of the advice-seeking process.

Justice Arya asked, “What proves that the table existed before the question?”

Counsel for the State said, “The metadata records an earlier creation time.”

“How much earlier?”

“Approximately three days.”

“And modification?”

“One hour before the message was sent.”

“What changed in the modification?”

Counsel for the State paused. “Without reading the disputed material, I cannot say.”

Justice Arya said, “Then caution. Creation time is one direct indicator; the subject of the modification is unknown. At this stage the court will say neither that the table was certainly an independent commercial record nor that the whole record was certainly legal advice.”

Malini, seated behind, was taking notes. It came to her suddenly that even a timestamp did not tell a story; it only marked a point on a clock. What happened between one time and another required other proof.

Vidyanand said, “My Lady, that is precisely why we accept a separate review.”

Counsel for the State looked toward Aditya and then said to the Bench, “A brief clarification from the investigating officer may assist—what exactly is the investigative team seeking?”

Justice Arya signalled Aditya to rise.

“Mr Jha, do you wish to read the lawyer’s legal opinion?”

“No, My Lady.”

“Then what?”

“Facts that have an existence independent of legal advice—payment structures, account links, dates, transaction paths, records of administrative access, commercial instructions—may become subjects of investigation if obtained lawfully. But legal advice sought by a client from counsel, counsel’s answer, or litigation strategy is not the object of our investigation.”

“And if a commercial fact is quoted in a letter seeking legal advice?”

Aditya thought for a few moments before answering.

“Then we should try to find an independent source for that fact. It would not be proper to use the protected part of the letter as an easy road to it.”

“And if no independent source is found?”

“Then we record that it was not found. Absence does not entitle us to trespass upon the protected portion.”

Several pens moved at once across the courtroom.

Justice Arya asked, “Does this boundary make the investigation harder?”

“Yes.”

“Then why accept it?”

Aditya’s voice was quiet. “Difficulty does not alter legality.”

For the first time, Vidyanand looked directly at Aditya. This time there was not only attention in his gaze, but a measure of respect held within reservation.

Counsel for the State closed her papers.

Justice Arya said, “The court is not treating this statement as a binding undertaking on behalf of the State. It records the method represented by the investigating officer. Actual compliance will remain independently testable.”

Aditya inclined his head.

He liked that sentence. The court had not declared trust in his intention; it had recorded the method and preserved the test of compliance.

Perception asks for a test of process in place of faith in a person.



During the midday recess, Malini stood in one corner of the court compound. A copy of an old complaint from the village had arrived on her phone. One complainant had written: “I was told that the money had been sent abroad.”

Until yesterday, Malini would have placed that sentence under the heading ‘Foreign Payment.’ Today she changed the heading to: ‘Complainant’s statement: independent verification pending.’

Aditya saw it from behind her.

“You changed the heading?”

“Yes.”

“Why?”

Malini chose her own words carefully. “Because what I have seen is only the statement. I cannot say where the money actually went without bank records.”

“Good.”

“I am beginning to understand something, Jha ji. We often give a fact a name that has already become the conclusion.”

“Naming is the first judgment.”

“In Navya Nyaya too?”

Aditya said, “Before identifying a thing, use fewer adjectives. The more adjectives you add, the greater the burden of proof.”

Against the line from the complaint, Malini wrote: ‘Reported statement; external record required.’

“And this?”

“Correct.”

“So the first test of all the signals we are gathering from village to city is a test of names?”

“Name, source, time, relation—all four.”

Malini laughed. “You turn everything into a list.”

“Lists reduce the panic of the mind.”

At that sentence Malini was silent for a while. She had a fear of her own: if privilege kept important material outside the investigation, months of work might remain incomplete. For the first time, she gave that fear a separate name within herself—‘the fear that something important may be missed.’

Once the fear had a name, it ceased to be a fact; it became only a condition of the mind.

Perhaps that, too, was one benefit of perception.



After the recess, Vidyanand’s side placed a second example before the court.

It was a photocopy of a notebook. The outer pages carried dates of the client’s business meetings. In the middle, two pages bore the lawyer’s handwriting—possible legal questions, possible responses, and objections that might be raised in court. The remaining pages contained commercial figures.

The State said the remaining pages might be capable of examination.

Vidyanand said the original notebook was physically one object; division might destroy context.

Justice Arya asked, “Why must the entire notebook be closed in order to protect context? Seal the sensitive pages separately and provide the rest in controlled copy—is that an option?”

Vidyanand said, “If page sequence, physical markings, and the integrity of the copy remain verifiable, it is worth considering.”

Counsel for the State said, “We agree.”

Justice Arya did not smile, but her voice softened slightly.

“Good. At last the objectives of both sides meet at one point: as much access as necessary; as much protection as necessary.”

Then Aniruddh, Vidyanand’s junior, passed a slip of paper forward. Vidyanand read it. His face changed slightly.

Justice Arya noticed. “A personal emergency?”

Vidyanand hesitated for a moment. “My Lady, there is health-related news from home. But I can complete the hearing.”

The Bench said, “Ignoring a personal crisis is not professional fortitude. If necessary, we can adjourn the matter until tomorrow.”

Vidyanand lowered his eyes. Within him two duties were colliding—the beat of Shailaja’s heart, the smell of the hospital, and the cold file of the court.

“Thank you, My Lady. Five minutes’ recess would be enough.”

The Bench rose.

Vidyanand stepped into the gallery and made a call. His daughter answered: “Ma is awake. She asked for you.”

Vidyanand leaned against the wall and closed his eyes for a few moments.

“Tell her I am coming as soon as the hearing ends.”

“Baba, if you want, you can come now.”

“In these five minutes a boundary will be fixed. Once it is fixed, much that follows will rest upon it.”

His daughter fell silent.

Then Aniruddh said from behind him, “Mishraji, I can handle it.”

Vidyanand looked at him.

It came to him suddenly that professional dignity did not mean doing everything oneself; it also meant knowing when to divide responsibility.

“You take the next point,” he said. “I will remain for the final reply.”

It was a small decision, but perhaps this was the first clear shape courage had taken inside his private fear.



When the hearing resumed, Aniruddh rose. His voice trembled in the first sentence; by the second it was steady.

“My Lady, our submission is only this: the review team should not classify a record by its location alone. Material found in a lawyer’s office is not privileged merely for that reason; but a protected legal annotation inside a file bearing a commercial name should not become unprotected merely because of the name.”

Justice Arya said, “That is a properly limited proposition.”

Counsel for the State did not object.

The word returned to Aditya’s mind—boundary.

The lawyer’s office—location.

The client's name—relation.

The title of the record—indicator.

Legal advice—nature.

An underlying fact capable of examination—a different nature.

Many relations may inhabit a single object; each relation requires its own proof.

Gangesha Upadhyaya's Navya Nyaya no longer seemed like dry pages of a book. It was like a lamp on the court's table, separating the shadows cast by a record.

Justice Arya began to dictate the order.

"At this stage, the Bench makes no final determination of privilege with respect to any disputed record. First, the independent review team shall remain separate from the principal investigative team. Second, the classification of each disputed item shall be recorded with reasons. Third, genuine legal advice, or communications seeking legal advice, shall remain protected from the principal investigative team unless the court directs otherwise. Fourth, independently existing commercial facts or records shall not become protected merely because they were found in a lawyer's office; however, any disputed context will remain subject to examination by the Bench. Fifth, where mixed material permits segregation, segregation shall be adopted, and only the minimum necessary portion shall reach the investigative team. Sixth, no part of this interim arrangement shall be treated as a final finding concerning guilt, innocence, conspiracy, ownership, or control."

The Bench stopped her pen.

"Do both sides understand?"

"Yes, My Lady," came the answer from both sides.

Justice Arya added, "And one more thing. Privilege will not be allowed to become smoke before the court; nor will investigation become fire in the name of authority. Both must accept a boundary."

The hearing ended.



Outside the court, reporters were waiting. After the questions of the previous day, they were hoping for "big news" today.

One reporter ran toward counsel for the State. "Has the court ordered that the financial records found in the lawyer's office be handed over to the investigation?"

Counsel for the State said only, "Read the order. It provides for category-wise review."

Another went after Vidyanand. "Has the court accepted that the material is privileged?"

Vidyanand stopped.

"No. The court has prescribed a process. The final position will be determined record by record."

"Then who won?"

A faint smile appeared on Vidyanand's tired face.

"If the order is read correctly, that question cannot yet be answered."

He left directly for the hospital.

Malini watched the scene.

"Jha ji, everyone wants a winner."

"Because process does not make a headline."

"But in the end?"

"Even in the end, if the method survives, whether a person won or lost may become secondary."

Malini asked, "Do you truly believe that?"

Aditya was silent for a while.

"I try to."

"Try?"

"I am human. I too want my investigation to prove true. But desire is not evidence."

At that admission Malini said nothing.

For the first time before her, Aditya had named the bias within himself.

Perhaps self-knowledge, too, was one of the harder forms of perception.



That evening Aditya had to travel east. The local team was waiting for two original receipts linked to the complaints from the village and a certified copy of an old ledger. A meeting was fixed for the following morning. Late at night the train moved toward the Ganga.

When the carriage lights dimmed, most of the passengers fell asleep. Aditya could not. Every sentence of the High Court's order kept circling in his mind.

Location is not the nature of a thing.

A name is not proof of relation.

A file path is not the identity of an author.

Metadata is not the final answer to purpose.

And the protection of legal advice is not a defeat for investigation.

Near midnight the train halted for a few minutes at a small station. Aditya could not step down, but damp air entered through the open window. Far away in the darkness, the breadth of the river could only be inferred.

He remembered an old night beside the Ganga.

Many years earlier, before entering service, he had wandered between the songs of Vidyapati and the works of Gangesha Upadhyaya, searching for the meaning of his own future. One teacher had sat with him on the riverbank. The night had deepened. A single lamp on a boat was moving slowly over the water.

The teacher had asked, "What do you see?"

Aditya had answered, "A boat."

The teacher had laughed. "Did you see the boat, or the lamp?"

"The lamp."

"Then why did you say boat?"

"Because the lamp is moving in the middle of the river."

"That is inference. Nothing wrong with it. But give it the right name."

That night the teacher had spoken of Gangesha: purity of knowledge was not merely arriving at a correct answer; it was giving the proper name to the kind of knowledge one possessed. Do not call inference perception, or perception inference. Do not turn a word into the object itself. Do not make non-apprehension into an invented story about emptiness.

At the time, Aditya had understood the philosophy, not life.

Today, inside the High Court, he had heard that teacher's voice again.

A record was found in a lawyer's office—directly known location.

It is legal advice—a claim requiring examination.

It is a commercial fact—another claim requiring an independent basis.

It is an instrument of crime—a conclusion still far away.

To abandon the ladder of names and leap straight upward is not justice.

The train began to move again.

Outside the window, the darkness was dense.

Aditya sat upright in his seat. The small pouch of earth was still in his bag on this journey. He took it out and placed it on his palm. The smell of soil was distinct from the metallic smell of the train.

The courtyard at Garh En Arikel, the marks of his father's feet, his mother's soft voice—all rose together in memory.

He understood that if Gangesha Upadhyaya's Navya Nyaya became merely a name by which Mithila took pride, its use would be over. Its true dignity lay in being able to restrain a person even from the conclusion he most desired.

Method, then, is not a weapon for one's own side. It is also a restraint upon one's own side.

Aditya took out his diary. The train swayed; the letters trembled slightly as he wrote—

"The duty of perception is not merely to see what is available, but to identify the manner in which it is available. A record's location, name, time, author, recipient, purpose, contents, and use are all separate questions. Do not steal the answer to one from the answer to another."

Then he wrote again—

"Privilege is not the enemy of investigation; it is a boundary upon investigation. If the boundary is lawful, respecting it does not weaken evidence—it purifies it. And if a claim of privilege is baseless, that claim too must be tested through lawful method, not anger."

As he closed the diary, his phone vibrated. It was a message from Malini: the order constituting the independent review team had been issued. The first list of disputed material would arrive by tomorrow evening.

Aditya replied: "Before any record comes in, let the process remain inside the boundary."

After sending the message, he looked out of the window again.

The Ganga was not yet clearly visible. There was only, somewhere in the darkness, the felt presence of a vast body of water.

He remembered an old sentence of his teacher: "Do not say you have seen what is not visible. But what is visible—do not make it smaller or larger according to your desire."

The night deepened.

Aditya closed his eyes.

He inferred that the court's next conflict would be over sealed material and the confidentiality of the investigation diary. The order had said only that there would be review. What would arise next would be told by the records that came next.

The diary lay closed beside him.

At the top of its first page was a single word—Perception.

Beneath that word, today, a new meaning had been added—Boundary.

oio The Shadow of Evidence — Chapter 10

Delhi dawned grey that morning. A faint mist had filmed the guest-house window, and Aditya Jha sat at the table with the first list sent by the independent review panel spread open before him. It was not a very long list, yet every line concealed two questions within itself.

The first column gave the item number. The second, the place from which it had been obtained. The third, the digital hash value. The fourth, a brief description of the material. The fifth contained the review panel's preliminary classification—"possibly legal advice," "business record," "mixed," "personal," "presently undecided."

Malini Karn sat opposite him. There was weariness in eyes that had been awake all night, but curiosity remained in her voice.

"Aditya ji, the review panel has marked seventeen of the forty-six items as undecided."

Aditya did not lift his eyes from the list.

"What does undecided mean?"

"That they cannot yet say whether the material forms part of legal advice or of a business transaction."

"Good. Then let what is undecided remain undecided."

Malini grew a little impatient. "But in four of those seventeen, a payment table and a lawyer's note occur in the same file. Raghav Sethia's name appears in one of them as well."

Aditya did not close the list.

"Is the name directly present?"

"Yes."

"Is the note directly present?"

"Yes."

"Are both in the same file?"

"Yes."

"Then write those three facts. Do not manufacture a fourth."

Malini fell silent.

"The fourth?"

"That every note written over a payment table was advice given in aid of a crime. That proposition does not yet exist."

Malini nodded slowly.

Aditya said, "The hardest lesson of perception is not that one must open one's eyes. It is that the sentence must travel no farther than the eye has seen."



At ten o'clock, the independent review panel met in a secure room at the investigation headquarters. Two separate tables had been placed inside—one for the original investigation team, the other for the review panel. A strip of empty space had been deliberately left between them.

A representative from Vidyand Mishra's office was also present—Advocate Padmakar Chaudhary. In his hand was a thick list setting out, item by item, the defence claims of privilege.

The chair of the review panel, retired judicial officer Rama Devi, made the ground rules clear at the outset—

"This meeting will not consider anyone's guilt, innocence, or role in any offence. We are here only to determine which material may pass to the original investigation team, which material must be withheld, and which material requires directions from the court."

Aditya listened. He liked the way the meeting had begun.

Padmakar Chaudhary raised the first objection. "File number twenty-seven is entirely legal advice."

Rama Devi asked, "On what basis?"

"The words 'Legal Review' appear at the head of the file."

"Is the heading enough?"

Padmakar paused. "No. There are also comments by counsel inside."

"On every page?"

"No."

"Then why claim privilege over the whole file?"

Padmakar opened his list. "Because the business table was sent to counsel for advice."

Rama Devi said, "That is possible. But the review will examine whether the underlying business facts existed independently before the request for legal advice. Seeking legal advice does not, by itself, wrap pre-existing business facts in privilege."

Malini wrote in her notebook: "The thing and its use are separate."

Aditya's eyes fell upon the line, but he said nothing.

Item twenty-eight was opened. This time the review panel read only a description of a single page; the material itself was not shown to the original investigation team.

"This page contains counsel's opinion," Rama Devi said, "but the attached table appears to be an independent business record. We shall classify it as mixed. The opinion portion will remain separate; the underlying table will be considered again."

Padmakar said, "We will object before the court."

"Do so. The review panel is not the final bench of decision."

Aditya made another note: "Classification is not adjudication."

Malini copied that line into her notebook as well.

The meeting ran for two hours. Some items were clear. Others remained disputed. Five items were left in such a state that it would be difficult to proceed without directions from the court.

After the meeting Malini said to Aditya, "I had thought the review panel would separate truth from falsehood. Now I see that it only separates limits of access."

Aditya said, "There is a great difference."

"And truth?"

"Truth still has a long road ahead of it."



That afternoon, a short application by the State was listed before the High Court. The principal question before Justice Arya was how sealed material and information recorded in the investigation diary should be handled where full disclosure might affect witness safety or the course of the investigation, but where some interim direction from the court might nevertheless be sought on the strength of that material.

As soon as Justice Arya took her seat, she said, "I do not want governance by sealed cover. But neither do I say that every investigative fact must instantly be made public. The State must articulate a clear principle."

Senior law officer for the State rose.

"My Lady, the State proposes three categories. First, material whose disclosure will not prejudice any current investigative step; that should come onto the ordinary record. Second, material requiring limited confidentiality, but of which a summary can be given to the opposing side. Third, sensitive material whose immediate disclosure may cause real harm to witness safety, reveal a source, or prejudice an ongoing investigation; that may remain sealed under the court's supervision."

Vidyanand Mishra rose.

"My Lady, the words are elegant. The question is how they operate. If the State shows the court a confidential item, obtains an adverse order against us on that basis, and we are not even given its substance, the opportunity to answer becomes little more than a name."

Justice Arya said, "Quite. State?"

"We accept that if material becomes a decisive basis of a judicial order, the opposing side should, so far as possible, receive an adequate summary or the substance of it—unless genuine safety concerns make even that impossible."

Vidyanand replied at once, "The phrase 'so far as possible' cannot be left to the convenience of the State."

Justice Arya did not smile, but her voice sharpened slightly.

"It will not be. The court will decide."

Then she asked the State, "Is the State saying that what is written in the investigation diary is evidence?"

The State's law officer answered, "No, My Lady. The diary records the course of the investigation, information received, questions arising, and steps taken. Every statement in it is not, by itself, an established fact."

"Then if the diary says that a particular person attended a particular meeting, is that fact proved?"

"No. It requires independent corroboration."

"If the diary says that a particular network location appeared to connect to a remote computer abroad?"

"Appeared' would be an investigative observation. Actual location, control, and use would each require separate proof."

Justice Arya looked toward Vidyanand.

"Does that answer reduce your concern?"

Vidyanand said, "On paper, yes. In practice, only if the court's order keeps that distinction explicit."

"It will."

For a moment silence spread across the bench.

Justice Arya asked another question. "Does the mere fact that material is sealed increase its reliability?"

Both sides answered together, “No.”
A faint rustle moved through the courtroom.
Justice Arya said, “That will be written into the order.”
Malini sat at the back with her notebook open before her. She wrote—
“Confidentiality ≠ truth.”
After a moment’s thought, she added—
“The diary = a record of the route; not proof of the destination.”
Aditya saw the line. This time he said quietly, “Keep that sentence.”



In the middle of the hearing came an unexpected turn. Referring to a sealed page, Vidyanand Mishra said that the State’s diary contained a summary of a witness statement, although the witness’s full statement had not been shared with the defence.

The State’s law officer replied, “There are concerns for the witness’s safety.”

Vidyanand said, “I am not asking for the name. But if that statement, or its summary, is used to build a judicial impression against my client, what am I to answer?”

Justice Arya said, “State, balance is needed here. The name may be withheld; the substantive core of the summary perhaps may not be. But I will decide that after seeing the material.”

The State agreed.

The court rose for five minutes. The sealed material went into the chamber. The original investigation team remained outside.

In the corridor, Malini stood close to the wall. Her hands were cold.

Aditya asked, “What happened?”

“Nothing.”

“There is something.”

Malini said softly, “I had prepared the initial chronology for that witness. The first version of the summary in the diary came from my note.”

Aditya remained silent.

“At the time, I had given one entry too much importance. A second record arrived later and shifted the time by half an hour. We corrected it, but I am afraid the old summary may still survive somewhere.”

Aditya’s face did not harden.

“When did you correct it?”

“The same day the second record came.”

“Is the correction recorded?”

“Yes.”

“What was the status of the old note?”

“Marked ‘preliminary—unverified.’”

“Then what are you afraid of?”

Malini did not answer.

Aditya said, “You wish the first mistake had never happened?”

Malini lowered her eyes.

“Perhaps.”

“Investigation does not permit that wish. The question is not whether a first view may be wrong. The question is whether, when a second fact arrived, you changed the first view or protected it.”

“I changed it.”

“Then that is the test of courage.”

Malini leaned against the wall.

“But what if the court sees the old line?”

“Beside it, the court will also see the date of correction. If it does not, we will tell the court. Truth does not hide its own revisions.”

Malini breathed out slowly.

“I had thought that once a fact was found, it stayed fixed.”

“The fact may be fixed. Our access to it can improve by degrees.”

“Then does perception also change?”

Aditya said, “The object does not change; the field of what is available to perception may grow. What was seen in the first moment was bounded by that first moment. When a second source arrives, the circumference of knowledge widens. Navya Nyaya accepts that widening; it does not turn one’s first sentence into divine revelation.”

For the first time, a little calm came over Malini’s face.

◆

The bench resumed. Justice Arya said, “I have seen the sealed material. Full disclosure is not appropriate at present. But the summary presented by the State refers to an initial chronology that was subsequently revised. The order will rely only on the revised position. The earlier note will not be treated as final fact.”

Malini closed her eyes for a moment.

Justice Arya continued, “This episode makes a broader point clear. An investigation diary may be a living record—questions arise in it, possibilities are recorded, corrections follow. The court cannot treat each line of it as fixed truth.”

Vidyanand Mishra said, “My Lady, we welcome that observation.”

The State’s law officer also said, “The State agrees.”

“Agreement does not make something true,” Justice Arya said at once. “But the principle is sound here.”

A faint smile rose in Aditya’s mind, but did not reach his face.

The bench dictated the order—

Use of sealed material shall be exceptional, not the ordinary method.

Every claim of confidentiality shall be supported by reasons.

Claims of privilege shall remain subject to separate examination.

The investigation diary is not, by itself, proof of guilt.

If any proposition recorded in the diary is to become a basis of judicial action, its independent corroboration or an appropriate summary must be clearly placed before the court.

So far as possible, the opposing side must be given a substantive opportunity to answer.

Witness safety and the integrity of the investigation may constitute genuine reasons; mere inconvenience may not.

And the secrecy surrounding sealed material is not an additional seal of truth.

As the order was dictated, the courtroom grew so still that even the turning of paper could be heard distinctly.

◆

Outside, the reporters were waiting again.

One correspondent asked, “Has the court accepted the State’s secret evidence?”

Vidyanand Mishra stopped. So did Aditya.

They looked at one another.

Vidyanand spoke first. “The court has not used the expression ‘secret evidence.’”

Aditya added, “Sealed material and proved evidence are not the same thing.”

The correspondent asked again, “Then has the State’s case been weakened?”

Aditya answered, “A judicial boundary is not anyone’s weakness. Without boundaries, evidence loses value.”

A second correspondent asked Malini, “We hear the State’s chronology was wrong?”

For a moment Malini looked at Aditya. He said nothing.

Malini answered for herself. “There was a time correction in a preliminary chronology. The correction is on record. The preliminary note was not treated as final fact.”

“So there was an error?”

Malini said, “The initial information was incomplete. When new information arrived, the chronology was revised. That is all the record says.”

The reporter was probably hoping for something sharper. Malini moved on.

As they went down the steps, she said softly to Aditya, “Earlier I had thought of avoiding that question.”

“And now?”

“Now I understand that hiding a correction already recorded would do more harm.”

“Learning the dignity of fact does not mean merely speaking less. It means speaking the proper thing fully.”

◆

By evening a new classification sheet reached the investigation headquarters. Of the five disputed items, the court had allowed limited access to two; privilege claims over two remained under examination; one had been kept wholly separate.

Malini read the summaries of the two records to which access had been allowed. The first contained a chronology linked to payments. The second was a list of remote digital access events.

She said at once, “If these two are put together—”

Then she stopped herself.

Aditya looked up.

“Then?”

Malini smiled. “Then a new question arises.”

“Good.”

“Earlier I would have said: this proves the network.”

“And now?”

“Now I would say: two independent records show proximity in time. One shows a payment reference, the other remote access. To establish a relationship between them, we still need the user, source, time zone, device identity, and further corroboration.”

Aditya leaned back in his chair.

“Your sentence has grown longer.”

Malini laughed. “Perhaps truth is afraid of short sentences.”

“Sometimes it is short. But do not cut off a limb merely to shorten it.”

Malini turned again to the screen. “One more thing. In this access list there are three entries that look like missing intervals. If there is nothing during those times—”

Aditya stopped her again.

“‘There is nothing’ and ‘we have not found it’ are different.”

Malini wrote it immediately in her notebook.

“Right. We have not found it yet.”

“And this is not yet the chapter of absence,” Aditya said quietly. “For now, the discipline is perception. State clearly the form of what is available. What is unavailable, call a gap for now.”

Malini understood.

The tradition of Gangesha Upadhyaya rose again in Aditya’s mind: modes of knowledge do not take one another’s place. If the ground of perception is not firm, the building of inference will sway in the first gust of wind.



At ten that night, a small meeting was held in the Joint Director’s room. The Home Ministry had asked how the State’s presentation should change after the court’s new directions. An officer from the Law Department said—

“From now on, every application will have separate headings: directly observed record, investigative inference, unverified information, judicial observation, and established fact. Any reference to sealed material will also carry its classification.”

The Joint Director looked at Aditya.

“Will that not become too cumbersome?”

Aditya replied, “I am not afraid of heavy paper. I am afraid of unclear paper.”

“Senior counsel will say the State is writing its own case weakly.”

Aditya said, “If writing down the limits weakens the case, the problem is not in the writing. It is in the foundation.”

The room was quiet for a few moments.

The Law Department officer said softly, “This style will be useful in the Supreme Court.”

Aditya did not answer. The shadow of the Special Leave Petition lay in everyone’s mind. The filing process had already begun; when and how the next hearing would take place was still uncertain.

He said only, “Wherever the record stands, write only as much as it bears.”



When the meeting ended, Aditya stepped outside alone. The night air was cold. Behind the government building, the kachnar trees stood silent in the small garden.

A little distance away, Malini was speaking to her mother on the phone—in Maithili, her voice low. “Yes, I have eaten... no, it is not very late yet... please do not worry...”

Aditya’s thoughts travelled toward Garh En Arikel.

In the village, his grandmother used to say while opening the grain store: “Count what you have seen. Keep inference separate.” In childhood it had seemed no more than a household precaution. Now, amid Delhi courts, digital records, sealed files, and preparations in the Attorney General’s office, the sentence had grown vast.

Malini ended the call and came over.

“I learnt a great deal today,” she said.

“What?”

“That a confidential thing is not more true because it is confidential. What is written in a diary is not automatically evidence. What was written first does not stand above correction. And if we have not found something, that does not mean it does not exist in the world.”

Aditya smiled.

“Four lessons are a great many for one day.”

“At the price of one mistake.”

“Not a mistake, if it was corrected. Then it is a lesson.”

Malini was silent for a while.

“Do you ever find it difficult to abandon your first view?”

Aditya did not answer at once.

“Many times.”

“Then what do you do?”

“I read the diary. I look at the old line. My own words tell me what I believed yesterday. Then I look at today’s record. If the two no longer fit, I do not run to rescue yesterday’s version of myself.”

Malini looked up at the sky. In Delhi’s glow, few stars were visible.

“There are fewer stars here.”

“There are not fewer stars. Fewer can be seen.”

Malini smiled. “Perception again.”

“Perception again.”



At eleven that night, Aditya opened his diary in his room. On the page for the day he wrote five lines—

“A seal signifies confidentiality, not truth.”

“The diary is the memory of an investigation, not a treasury of established facts.”

“Correction is not weakness; hiding correction is.”

“The opportunity to answer is part of judicial fairness.”

“The dignity of perception: give what is available its proper name.”

He set down his pen.

Far outside, the sound of a vehicle rose somewhere and then softened away. On the table lay the High Court’s order. Beside it was a notice relating to the Special Leave Petition filed in the Supreme Court. The paper distance between the two courts was small; the distance between their legal questions was large.

Aditya knew that the next conflict might sharpen again at the doors of the Supreme Court. Reporters would turn it into a story; lawyers would hone the edge of words; the State would defend its records, the defence its rights.

But for him, the lesson of the day was simpler.

Justice often survives in the moment when a person, before placing a full stop at the end of a favourite sentence, asks—

“Is this all that I have seen, or am I saying more than I have seen?”

Aditya closed the diary.

On its first page the word written there—Perception—still remained.

Beneath it stood the word added the previous night—Boundary.

Today Aditya added a third word—

“Revision.”

on The Shadow of Evidence — Chapter II

Dawn had not yet fully settled over Delhi, but the road leading toward the Supreme Court was already lined with vehicles. Aditya Jha sat in his room at the State Guest House. On the desk lay the High Court's latest order, the State's legal note, and a fresh communication that had arrived in the night. Its first line was simple: Vidyanand Mishra's side had decided to file a supplementary Special Leave Petition challenging the High Court's new directions.

Aditya read the sheet three times. The first time, the words. The second, the limits of the words. The third, what the words did not say.

A petition would be filed—that was information. It had been admitted—that was not. A hearing might take place—that was a possibility. There was no fact to suggest that the High Court's order had been stayed. The question of the State having lost did not arise at all.

His diary lay open at one side of the desk. Three words from the previous night—perception, limit, correction—stood one beneath another. Today he did not add a fourth. Some words, written before their time, cease to be thought and become prophecy.

There was a light knock on the door.

"Come in."

Malini Karn entered. She carried no laptop, only a thin paper file.

"Sir, fresh material has come from Mithila."

Taking the file, Aditya asked, "Material—or evidence?"

Malini smiled. "Material. Its evidentiary value is still to be tested."

A faint satisfaction crossed Aditya's face. "Good. Tell me."

"A young man from a village has submitted a screenshot from his mobile phone with his complaint. The screenshot shows a web address. There is a timestamp as well. A fragment of the same address appears in browser history obtained from another source."

"A fragment?"

"Yes. Not the complete information. The final segment of the path matches."

"What does that show?"

"It shows that the same sequence of characters appears in two sources."

"And what does it not show?"

"It does not show that both sources were connected to the same web server. It does not show that any transaction actually took place from that young man's phone. It does not show that the user of the seized computer opened that web address. It does not show who owned the site."

Aditya handed the file back to Malini. "Preserve this paper for now. If the original phone is available, take a lawful forensic image. Record the source of the timestamp. Test whether alteration was possible after the screenshot was created. Seek the site's historical records separately. The weight of one matching string must never exceed the weight of its source."

Malini nodded. "Once, I would have thought this was a very big match."

"It is. But 'big' and 'proved' are not the same word."

Outside, the sky was brightening.

Malini asked softly, "And the supplementary Special Leave Petition?"

"That too is only material—until the Court hears it and says something."

"By then the newsrooms will already have delivered judgment."

Aditya looked toward the window. "Then our own words will have to grow smaller."



That morning moved at a different pace in Vidyanand Mishra's office. Junior advocates were checking tables, counting copies, repairing the index. On one side the High Court's orders were arranged in sequence. On the other lay copies of submissions concerning seizure, segregation, sealed material, and the case diary.

Vidyanand sat apart in his chamber. Before him lay a page from the draft petition. A sentence had been underlined in red ink: "All records on the investigating side are protected by advocate–client privilege."

He rang the bell. A junior advocate entered.

"Delete this sentence."

"But, Mishra ji—"

Vidyanand raised his eyes. The junior stopped at once.

"How did 'all' get into this sentence?"

“Our argument was that whatever was seized from the office—”

“An office is a place. Privilege is a relationship. A place is not a synonym for a relationship.”

The junior said quietly, “Then what should I write?”

Taking the red pen, Vidyanand said, “We claim privilege over records created as confidential communications between client and counsel for the purpose of legal advice. Material that is administrative, financial, public, or independently created by a third party must be classified according to its nature. We will ask the Court for our right, not for an exaggeration.”

The junior wrote as he spoke.

For a moment Vidyanand fell silent. He remembered the hospital message from the previous day—his younger brother was stable now. He had spent much of the night speaking to the family by telephone. Anxiety about home and the Supreme Court deadline stood together in the same morning.

The junior asked, “Won’t you go home?”

“After we get the hearing date.”

“Your family—”

“My family will not grant me permission to write a false sentence.”

The junior went silent.

Vidyanand turned the next page of the draft. “And this line?”

The junior read, “The High Court’s order grants the investigating side unrestricted access.”

“Is it in fact unrestricted?”

“No. There is a separate review team.”

“Then remove ‘unrestricted’. We can say the safeguards are inadequate. But we will not deny the existence of safeguards that are actually in the order.”

A trace of confusion remained on the junior’s face. “Will the petition still have enough edge if we are this restrained?”

Vidyanand spoke softly. “Falsehood does not make an edge sharper. It may make the blade shine; it does not give it an edge.”

He set down the red pen.

“File it.”



Before noon, the supplementary Special Leave Petition was filed in the Supreme Court registry. With it were the High Court’s new order, details of the earlier petition, records of the segregation process, and a list of questions concerning privilege.

The news reached the newsrooms before the papers had properly settled in the registry.

A reporter who had been pursuing the matter for several days typed a headline on the screen in the editorial room

—
“Supreme Court Stay on Offshore Gambling Network?”

He stared at the headline for a few moments.

Then he called his source.

“Has a stay been granted?”

The voice at the other end said, “No. A petition has been filed.”

“Urgent hearing?”

“Requested.”

“Admitted?”

“Not yet.”

“High Court order stayed?”

“No.”

The reporter deleted the headline. Then he wrote—

“Supplementary Challenge in Supreme Court to High Court’s Fresh Directions.”

His editor read it from behind him and said, “There is no fire in that headline.”

The reporter did not close the screen. “If the record contains fire, I’ll write fire. Why should I strike my own match?”

The editor laughed, though there was little pleasure in it. “People won’t read it.”

“Then fewer people will read it. But fewer people will misunderstand it.”

For a few moments after that sentence, the room was still.

The reporter surprised himself. Until a few days earlier, he too had expected a great sensation from the case. Every sealed cover had looked to him like a mystery; every foreign web address like a criminal flag; every objection by counsel like a tactic of escape. But one thing had returned again and again in the Court’s recent hearings: first allow a written word to mean only what it actually says.

Truth is not always slow in speech. It is human beings who keep trying to make it speak faster.



A copy of the supplementary petition reached the State's legal chamber before evening. The earlier request sent to the Attorney General and the Solicitor General was reopened for reference. A limited meeting was convened with senior law officers, and Aditya was called only to clarify the factual background.

As soon as the meeting began, one officer asked, "What are the principal grounds in the supplementary petition?"

The State's counsel replied, "Inadequate protection of privilege; limited opportunity to answer material placed under seal; and objections to the separate-review arrangement."

Another officer asked, "The State's response?"

Before Aditya spoke, the State's counsel looked at him.

Aditya said, "I will not give the legal answer. The factual position is only this: a protected forensic image of the original medium has been created; hash values are recorded in the chain of custody; the disputed category is segregated from the primary investigation team; some material is claimed to be privileged; the nature of some other material remains disputed; and the case diary itself has not been treated as proof of established fact."

A senior officer asked, "In your view, is the privilege claim defective?"

"I cannot say that every claim is defective. Nor can I say that every claim is valid. Each category has to be tested on its own."

"And the alleged offshore network?"

"There are some indicators. There are some correlations. Some financial and computational paths are under examination. The complete structure is not yet an established fact."

Someone in the room grew a little impatient. "Then what will the State say in the Supreme Court? 'We know nothing?'"

Aditya's tone did not change. "The State will say that what it knows comes from the record. What it does not yet know is being tested. That is not weakness; it is the stage of the investigation."

"But the other side will say the State is shooting arrows in the dark."

"Then we will not show arrows. We will show lamps—one at a time."

"Lamps?"

"Directly perceived material. The original device. A lawfully created forensic image. Timestamps. Chain of custody. Independent corroboration. If an inference can properly arise from these, we will call it an inference. If it cannot, we will not."

The senior officer looked at Aditya for several seconds. Then he said, "Good. I want the written factual note in precisely that language—without exaggeration."

Aditya nodded.

As the meeting ended, one officer asked quietly, "Jha ji, are you not afraid that with so much caution the other side will seize control of the story?"

Aditya replied, "Whoever controls the story, the record must remain in the Court's hands."



That night in Garh En Arikel, Aditya's mother placed a lamp beside the tulsi plant outside the door. Her son called from Delhi.

"Have you eaten?" his mother asked.

"Yes."

"Don't lie. Your voice says you haven't."

Aditya laughed. "I will now."

"Has the case grown even bigger?"

"The Court has grown bigger. The question is the same."

"What question?"

Aditya thought for a moment.

"How far may one speak from what one has actually seen?"

His mother said, "It is the same in the fields here. From far away the paddy looks green, but whether the ear is full or hollow—you have to take it in your hand and see."

Aditya fell silent.

His mother's ordinary sentence had travelled through many books to reach him.

"Ma, say that again."

"What?"

"The paddy thing."

His mother laughed. "Have you gone to Delhi and forgotten village talk?"

"No. Sometimes it takes Delhi to understand what the village says."

After the call ended, Aditya looked for a while through the dark window. He remembered Gangesha Upadhyaya: perception establishes a relation with an object, but knowledge remains incomplete until the nature of that relation is made clear. The eye sees the green field; whether the grain is full requires another test.

Navya-Nyaya had never been far from the village. Only its vocabulary was difficult.



The next day, a crowd of reporters waited outside the Supreme Court complex. No decision had yet been taken on listing the petition, but cameras, mobile phones, breaking-news banners and inferences were already prepared.

When Vidyanand Mishra emerged from the building, questions broke over him all at once.

“Are you saying the High Court’s order is unconstitutional?”

“Is the investigation unlawful?”

“Is the State breaching advocate–client confidentiality?”

“Was the alleged evidence of the offshore gambling network manufactured?”

Vidyanand stopped. Worry about his family, too little sleep, and many hours of legal labour were visible on his face. His voice, however, was steady.

“My side has filed a supplementary Special Leave Petition. We say that certain procedural safeguards are inadequate. The Supreme Court has not yet reached any conclusion. The lawfulness of the investigation, the evidentiary value of the material, and the limits of privilege are all matters for judicial examination. Ask your questions; write only as much of the answer as I have actually given.”

A reporter shouted, “Then are you saying your client is innocent?”

Vidyanand looked at him.

“The legal presumption of innocence and factual proof are different questions. I am here on an issue of procedure.”

“But the public wants an answer!”

Vidyanand said quietly, “A court does not weigh evidence at the speed of public impatience.”

He walked on.

Behind him, the reporter who had changed his headline that morning said to a colleague, “Write that sentence in full. Not half of it.”

“Which one?”

“‘The Supreme Court has not yet reached any conclusion.’ Put that in the first line.”

“Readers will lose interest.”

“Let them. Better that than letting falsehood gain interest.”



By evening Malini had completed the first examination of the newly received village material and came to Aditya’s room.

“The original phone from which the screenshot was taken has been made available. The timestamp corresponds with the device’s local-time record. No clear sign of subsequent alteration appears in the screenshot file, but that means only that no sign of alteration appears in the copy available to us.”

Aditya nodded. “And the site?”

“The same path appears in historical records. But the ownership details sit behind a privacy intermediary. We will need a separate order.”

“The transaction?”

“The complainant showed a payment-debit message. The financial institution’s own record has not yet arrived.”

“Then where do we stand?”

Malini opened her sheet.

“One—the complainant says he opened the site. That is his statement. Two—the relevant screenshot exists on the phone. That is computational material. Three—the timestamp accords with the available device record. That is one piece of corroboration. Four—the same fragment of the web path appears in another source. That is similarity, not ownership. Five—there is a debit message, but the financial institution’s independent record is still awaited. Six—none of this yet proves the complete connection with the alleged offshore network.”

Aditya said nothing.

Malini asked, “Right?”

“Today you wrote the limits before I had to ask for them.”

Malini smiled. “Perhaps it is becoming a habit.”

“Be careful with habits. When method becomes habit, sometimes we stop asking questions.”

“Then?”

“Look at every new thing as if you were seeing it for the first time.”

Malini closed the paper. “Perception, for the first time again?”

“Perception is always for the first time.”



At midnight Aditya opened his diary. The supplementary Special Leave Petition had been filed. Different headlines were running across the news media. Some said, “State Investigation Under Supreme Court Scrutiny.” Others, “Privilege versus Investigation.” Some had gone as far as, “Decisive Turn in Offshore Gambling Case.”

Reading the word “decisive,” Aditya wrote one line in his diary—

“To call decisive a moment in which no decision has yet been made is to run ahead of truth.”

Beneath it he wrote—

“A petition is not an answer to an allegation; it is a vehicle for a judicial question.”

“Filing is not decision.”

“Listing is not hearing.”

“Hearing is not conclusion.”

“An indicator is not an established fact.”

He stopped his pen.

He remembered the fields of Garh En Arikel. Green from a distance. The ear of grain in the hand. Kernel apart. Husk apart. The eye’s perception and the hand’s perception disclosed different states of the same thing.

Below the earlier words in his diary, he added a fourth tonight—

“Sequence.”

Perception.

Limit.

Correction.

Sequence.

Outside, the great city was still awake. The Supreme Court building lay quiet in the dark. No judicial conclusion had yet formed within it. A petition had only been filed. Questions had only arrived.

As he switched off the lamp, Aditya thought: truth may move slowly, but slowness is not its defect. The defect begins when human beings carry it to a place it has not yet reached.

And that night, between the harsh brightness of the news and the quiet darkness of the Court, the shadow of evidence lengthened once more—but the shadow had still not become the thing itself.

012 The Shadow of Evidence — Chapter 12

In the first hour of dawn, Delhi's sky was grey. Rain threatened, but had not yet arrived. In the room at the State Guest House, Aditya Jha stood by the window. On the desk lay a copy of the supplementary Special Leave Petition filed before the Supreme Court, the High Court's previous order, the sealed inventory, and a separate copy of the investigation diary.

The night before, he had felt that the questions had finally reached the Court. At dawn, fresh information arrived: the offshore operators had engaged an extensive team of senior counsel for their defence. Different lawyers for different subjects—privilege, digital evidence, jurisdiction, financial flows, contracts, and procedure.

Malini Karna arrived at seven. In her hand was a sheet on which there were no names, only subjects—

Privilege.

Chain of custody.

Digital integrity.

Ownership of network routes.

Financial connection.

Jurisdiction.

"What is this?" Aditya asked.

"The objections that team is likely to raise," Malini said. "I have left out the names. We should keep our eyes on the questions."

Aditya took the sheet.

"Good. A crowd of people can frighten you. A list of questions gives you work to do."

"But the senior counsel will raise separate points. Five different questions about the same record."

"That is not bad for an investigation."

Malini looked at him in surprise.

"Why?"

"Because if a record cannot bear five questions, we have no right to make it carry the weight of five answers. Our task is not to defeat the other side. It is to test our own ground."

Malini pulled out a chair and sat down.

"So, perception again today?"

"So far, perception remains the spine of this section. First, the nature of whatever is actually before us. The defence will want to alter its meaning; the State will want to enlarge its meaning. We keep our distance from both impulses."

Aditya wrote two lines on a sheet of paper—

"Object first."

"Interpretation afterwards."

He slid the paper across to Malini.

"Today we have to defend these two lines."



The corridors of the Supreme Court were not yet completely crowded, yet the case had created an unusual stir. Junior lawyers hurried about carrying thick files, indexes, written submissions, collections of precedents, and notes on digital evidence. In one corner, three senior advocates spoke quietly with their juniors. In another, Vidyanand Mishra was checking page numbers with his team.

On the State's side, a senior law officer from the Attorney General's office was present. The Attorney General himself was expected when the matter was called. Officers from the Home Ministry's legal cell sat behind them. Aditya's task was not to argue before the Court, but to provide immediate clarity whenever the record raised a question.

Malini sat in the back row. In her hand was a table—

Record.

Source.

Date of acquisition.

Digital hash.

Chain of custody.

What it directly states.

What it does not establish.

Aditya himself had added that final column.

At first Malini had thought the column negative. Now she felt it was the most necessary column in the entire table.

The matter was called.

The first senior advocate for the other side rose. His voice was calm, but his choice of words had an edge.

“My Lords, the State presents this matter as a vast network. Yet when we look at the primary records, three things emerge. First, some material came from a lawyer’s office. Second, the link between certain digital fragments and any particular individual is not direct. Third, the alleged offshore character still rests on inference.”

The senior law officer for the State prepared to rise, but the Attorney General, who had by then taken his place before the Bench, stopped him with a gesture.

Counsel for the other side continued—

“In such a situation, the very breadth of the investigation becomes a question. If every suspicion of the State is allowed to wear the clothes of evidence, the rights of individuals, institutions, and the legal profession are all affected.”

One of the judges on the Bench asked, “What precisely are you asking for?”

“Strict segregation of sealed material, complete insulation of potentially privileged material from the principal investigating team, and independent corroboration before any adverse inference is drawn from digital material.”

The Attorney General rose.

“The State does not oppose any of those three principles.”

A faint murmur ran through the courtroom. A few junior lawyers on the other side looked at one another.

The Attorney General continued, “The dispute is whether segregation should become a pretext for suspending a lawful investigation altogether. The limits of every piece of material on which the State relies are recorded on the file. A saved login credential does not prove a successful login. Network history does not independently prove the user’s identity. The existence of a digital sheet does not make every number written on it true. And the alleged offshore connection remains under examination.”

Another judge asked, “Then what is the State’s direct foundation?”

The Attorney General glanced back at Aditya. Aditya passed forward a brief note.

“The direct foundation is this: forensic images lawfully acquired from specified devices; the chain of custody; the existence of particular sheets and records; an independent statement from the complainant; available copies of certain financial communications; and limited network records. The relationship among these materials, and their ultimate relationship to any person, remain matters under investigation.”

The Bench asked, “So the State itself says the final link is not established?”

“Yes, My Lords. Not yet.”

The silence that followed those three words mattered to Aditya.

Not yet.

Power usually wants a yes. News wants a yes or a no. But in the world of evidence, sometimes the truest answer is: not yet.



A second senior advocate for the other side rose. His subject was the digital material.

“The State says the forensic image is intact. But integrity and authenticity are not the same thing. A hash may show that a copy has not changed. It does not show who created the original material, in what context it was created, or whether what it says is true.”

“The State agrees on that point too,” the Attorney General said.

“Then why has this material been given such public importance?”

“Publicity is not part of the State’s record.”

One member of the Bench smiled faintly.

Counsel for the other side said, “But an investigative hypothesis has been formed around it.”

The Attorney General replied, “Forming a hypothesis is not an offence in an investigation. Calling that hypothesis an established fact could become a serious error. The State is not making that error.”

An old image from Garh En Arikel rose inside Aditya.

After the rains, two sets of footprints on the edge of the pond. One human, the other animal. As a child, looking from a distance, he had said, “Those are Uncle So-and-so’s footprints.” His father had asked, “Did you see the footprints, or did you see the uncle?”

At the time the question had seemed severe. Today its meaning stood before the Bench.

Counsel for the other side held up a page. “What does the State say about this alleged payment table?”

The Attorney General looked at the note.

“It is a sheet found in a specified digital source.”

“Is it proof of an actual payment?”

“Not by itself.”

“Is it the operator’s account?”

“Not yet established.”

“Has its author been identified?”

“Not yet.”

“Then the investigation is proceeding on an unauthenticated sheet by an unknown author?”

This time the Attorney General did not look at the note.

“The investigation is not proceeding on one sheet. It is proceeding on the question whether that sheet, an independent complaint, financial records, network routes, and other materials are related to one another. What you have asked are proper questions. The purpose of an investigation is precisely to find their answers.”

The Bench continued taking notes.

Beside the entry for the payment sheet, Malini wrote—

“Existence directly established.”

“Author—unknown.”

“Actual payment—independent corroboration awaited.”

Never before had she seen so clearly the distance between those three lines.



During the lunch recess, the State’s team gathered in a small room within the court complex. The Attorney General, a representative from the Solicitor General’s office, the Home Ministry’s legal adviser, Aditya, Malini, and two other officers.

Files lay spread across the table.

The senior legal adviser said, “Their team is wide-ranging. They will cut through each item of material separately.”

“That is all right,” Aditya said.

“You are saying ‘all right’ again?”

“Yes. If we use five pieces of material to build one story, they will ask for the separate value of each of the five. We should have asked ourselves first.”

The Attorney General looked at Aditya.

“I liked the last column in your table—‘What it does not establish.’ Make it mandatory in every file.”

The Home Ministry officer shifted uneasily.

“My Lord, will the State not appear weaker if we record so many limitations?”

Aditya answered before the Attorney General could.

“Recording a limit does not weaken the record. Hiding a limit weakens trust.”

The Attorney General nodded.

“Before a court, the State’s standing will be built not by quantity, but by accuracy.”

After that sentence, the Home Ministry officer fell silent.

Malini asked, “What if the other side says the very word ‘offshore’ is prejudicial?”

The Attorney General said, “Then wherever ownership is not established, write ‘alleged offshore structure.’ Wherever there is only an indication of network infrastructure located abroad, write no more than that. An excess of language is as dangerous as an excess of evidence.”

Aditya remembered the resolution he had made on the first night: I will not write a story of crime; I will write the grammar of evidence.

That grammar was now lying on the table before the Supreme Court.



At the same hour, another kind of meeting was taking place in the Home Ministry.

Three political colleagues sat before Home Minister Shiveshwar Prasad. The debate running in the news media had agitated them. One of them said—

“Minister, the impression outside is that the Court is tying the investigation’s hands. The State should issue a strong statement.”

Another added, “At least say that this is a matter of national interest.”

Shiveshwar Prasad remained silent for a moment. Before him lay not newspaper clippings, but a copy of the Court’s order.

“What is the first element of national interest?” he asked.

No answer came at once.

“Trust in the Court,” the Minister answered himself. “The authority to investigate belongs to the State, but the Court will determine the limits of that authority. We will put our case through argument. It is not the State’s business to cast insinuations on the Court’s intent.”

One colleague said, “But the political cost?”

“The State will pay for many years for whatever political gain comes from destroying trust in the Court.”

“The opposition will say the State is bending.”

“Due process is not surrender.”

The Minister directed that no officer of the Ministry make an inflammatory public statement on any question under judicial consideration. The authorised statement would say only this: the State respects the Court’s order; the investigation is proceeding according to the record; no person or institution will be declared guilty without a judicial finding.

The Secretary asked, “Any special instruction for the Attorney General’s office?”

“Only one,” the Minister said. “Not a word beyond the record.”

“And the political position?”

“There is no political position in a courtroom.”

The Minister’s voice was not loud. Its effect inside the room was.

The colleagues rose and left. The Secretary remained.

“Minister, what if the order goes against us?”

Shiveshwar Prasad looked towards the window.

“Then we take the remedy the law permits. Respect for the Court is not something shown only when the order suits us.”



The hearing resumed in the afternoon. This time a third senior advocate for the other side rose on jurisdiction.

“Some parts of the alleged network lie outside the territory; some network infrastructure is in other countries; some financial intermediaries are in different jurisdictions. On what basis does the investigating officer of the State combine all of this into one case?”

The Attorney General replied, “The State is not yet declaring a single established network. It is examining possible relationships.”

“Then why the broad summonses?”

The Attorney General looked at Aditya. Aditya passed forward a list.

“Each summons was issued on a separate foundation,” the Attorney General said. “Some sought financial records, some digital records, some institutional identity records. The State accepts that a response to a summons is not, by itself, proof of guilt.”

The Bench asked, “Were the subjects of the summons limited?”

“Yes. The list is available.”

Counsel for the other side displayed one summons. “The expression ‘associated entity’ here is broad.”

The Attorney General took the paper.

“That objection deserves consideration. The State can provide a clearer limitation.”

There was movement at the other side’s table. Perhaps they had expected resistance, not acceptance.

One judge said, “If the State is prepared to correct its own language, part of the dispute may disappear.”

“The State’s object is not to save a phrase,” the Attorney General said. “It is to save a lawful investigation.”

Aditya wrote in the diary—

“Defending a defective phrase is not the dignity of the State.”

“Correction is not defeat.”

At that moment he remembered the boundary ridge of his father’s field. Once the measurement had been wrong. A neighbour had said, “The ridge should not be here; it should be two cubits back.” His father had measured again and shifted the ridge. People in the village had laughed, “So you lost?” His father had smiled. “The measurement won.”

The sentence from that day rose again inside Aditya—

Let the measure win, not the man.



The final part of the hearing returned to privilege. Vidyanand Mishra himself rose. His voice was less combative than on the first day, but more exact.

“My Lords, I want one thing clearly on the record. I do not say that every item found in a lawyer’s office is privileged. I say that legal advice, a client’s confidential instructions, litigation strategy, and material belonging to unrelated clients must be protected. The process of classification must remain independent.”

The Bench asked, “And business records?”

“If they are purely business records, they do not become privileged merely because they were found in a lawyer’s office.”

A junior lawyer on the other side leaned towards Vidyanand and whispered something. Vidyanand stopped him with a gesture.

Aditya watched carefully.

Here, too, the defence was accepting a limit.

“The State accepts that statement on the record,” the Attorney General said.

The Bench said, “Then the independent review team will continue classification. A reasoned list of disputed entries will be prepared. The principal investigating team will not see material marked privileged. Business records and other unprotected material will be examined separately.”

Vidyanand asked, “And if the State seeks a judicial order on sealed material?”

The Bench replied, “Then, as far as possible, the other side must receive a sufficient summary to answer it. Confidentiality cannot become an invisible foundation for judicial decision-making.”

“The State agrees,” the Attorney General said.

For a few moments the courtroom seemed to be building a structure instead of staging a contest.

Aditya found it strange: expensive senior advocates, mountains of files, sharp arguments—and yet, in the end, the questions returned to the same place. What is each thing? Which relationship is established? Which relationship remains inference? Which material is protected? Which material is open to examination?

Navya Nyaya’s pratyaksha—perception—was no longer merely an ancient term. It stood in a modern courtroom as the discipline of classification.



The hearing was adjourned. Outside, reporters had gathered in a crowd. A question cut through the air—

“Has the Supreme Court expressed distrust in the State’s investigation?”

The Attorney General walked on without stopping. The authorised spokesperson read only the written statement

—
“The Court heard procedural questions. No final finding of guilt has been made. The State will comply with the order.”

Another reporter asked, “Is the State under pressure from such a large and expensive legal team?”

The spokesperson replied, “In court, the strength of a party is not measured by the number of lawyers it has.”

Aditya stood at a distance, listening.

Malini said softly, “Sir—”

She stopped herself and corrected it. “Aditya Babu, may I say something?”

Aditya smiled. “Go on.”

“I used to think that if a formidable legal team appeared, we would have to make our evidence look formidable too.”

“And now?”

“Now I think evidence does not have to look big. It has to look clear.”

“Remember that.”

“Were you not afraid?”

Aditya thought for a moment before answering.

“The numbers frightened me. Then I looked at the list of questions. Fear became questions.”

“And the questions?”

“The questions became work.”

Malini smiled.

“A Garh En Arikel remedy?”

“An old Mithila remedy. Give fear a name, and it can become work.”



By evening, the authorised note reached the Home Ministry. The Secretary gave the Home Minister a brief account.

“The Court accepted some of the State’s procedural proposals and asked for clarification on others. The other side was exceptionally well prepared.”

Shiveshwar Prasad asked, “Did the State remain within the record?”

“Yes.”

“Any exaggeration?”

“The Attorney General himself said twice: ‘Not yet established.’”

The Minister leaned back in his chair.

“Good.”

The Secretary looked surprised. “Good?”

“To call unproved things proved may make the State look strong for a few hours, but in the end it will make the State weak. If the Court sees that we understand our own limits, trust in a lawful investigation will increase.”

“The political reaction is fierce.”

“There are other people for that. In this file, I will protect the Court’s trust.”

The Minister signed a note directing that all public communication from the Ministry keep the language of allegation, investigative indication, and judicial finding strictly separate.

Below it, in his own hand, he added one line—
“The strength of the State lies in recognising the limits of truth.”



At ten that night, Aditya, Malini, and two officers sat again in the investigation room. One by one, the questions raised in the Supreme Court were written on the whiteboard.

Jurisdiction.

Limits of summonses.

Authorship of the payment sheet.

Ownership of the network route.

Privilege classification.

Authenticity of the digital material.

Independent corroboration.

“Do not treat these as attacks from the other side,” Aditya said. “Treat them as a list of unfinished work.”

One officer said, “But some questions may simply be defence tactics.”

“They may be. But before you judge the purpose of a question, judge its validity. If it is valid, answer it. If it merely creates confusion, cut through it with the record. Do not react to the person.”

Beside the payment sheet Malini wrote: “Original record from financial institution awaited.”

Two days earlier, the waiting would have made her impatient. Today the waiting itself felt like evidentiary discipline.

Aditya looked at the line. “Whatever has not arrived yet, leave its place empty.”

“Empty spaces make people restless.”

“That is why people fill them with inference.”

“We will not fill it?”

“No.”

“And if someone else does?”

“We will write: ‘Record unavailable.’ Nothing more.”

Malini left a small square empty on the whiteboard. Above it she wrote—

“Awaited.”

That empty square was the most honest mark in the room that night.



After midnight, Aditya sat alone. Rain had begun outside the window. The city lights broke and scattered in the water on Delhi’s roads.

His diary for the day lay open before him.

He wrote—

“Expensive lawyers do not increase or diminish the value of evidence.”

“Numbers are not a multiplier of truth.”

“An objection is not an enemy; a valid objection is an instrument of testing.”

“The dignity of the State is tied to the Court’s trust.”

“The first duty of perception: say only as much as has been seen.”

His pen stopped.

The memory of Garh En Arikel returned. In the village market of his childhood, a trader kept a shining weight on one pan of his balance. It looked large, but it was hollow inside. His father had said, “Shine is not weight.”

Today the towering files in court, the rows of senior lawyers, the loud headlines in the news—all could be like that shining weight. Weight would emerge only from measurement.

Aditya wrote the last line in the diary—

“Not shine. Measure.”

Outside, the rain grew harder.

There had been no final victory inside the Court. The State had not won. The defence had not lost. The full shape of the offshore network had not been established. No individual role had been established. Some records existed, some relationships were possible, some corroboration was still awaited.

But one thing had become clearer over the course of the day: however much legal power stood on the other side, the language of evidence could not change merely because of its numbers.

By dawn, the rain had stopped.

The city streets had been washed clean.

And on the investigation whiteboard, one small square was still empty.

To protect that empty space was also to protect the truth.

013 The Shadow of Evidence — Chapter 13

After the rain stopped, the Delhi morning was clear. The previous night's water had pressed the dust down along Rajpath, and the first light falling upon the High Court's walls seemed as though some quiet had entered even into the stone.

Aditya Jha had been awake since before dawn in his room at the State Guest House. Three files lay open on the table—the sequence of summonses, the record of how the forensic image had been created, and the verification sheet for the chain of hashes. The day before, the opposing side had raised many questions in court. Some were sharp, some repetitive, some traps of language. But before Aditya today stood not the shape of the questions, but the ground of the answers.

On the first page he wrote—

“Answer not from argument, but from the record.”

Then he stopped.

The sentence felt too hard. Argument had its place too. But argument must walk behind perception, not in front of it. He struck out the line and wrote again—

“First the record. Then the argument.”

Outside the window, water shone on the leaves of the ashoka tree. In Garh En Arikel, on mornings like this, his father would return after inspecting the ridges of the fields. How often he had said, “If the ridge stays straight, the water will know its own way.”

It came to Aditya that investigation, too, did the work of a field ridge. Where the water of evidence might flow, where it might not—those boundaries had to be made first.

There was a soft knock at the door.

Malini Karn came in. A blue file was in her hand. Her face carried the fatigue of a sleepless night, but her eyes were alert.

“Verification is complete,” she said.

Aditya gestured toward the file.

“Take it in order.”

Malini sat down.

“First—the hash value recorded when the original digital medium was seized remained the same when it was verified before the seal was opened in storage. Second—the hash of the forensic image created through the write-blocking device was the same at the time of creation and immediately before analysis began. Third—a separate working copy was made, and its hash was also recorded. No analysis was performed on the original medium. Fourth—the access register records every person, time, and purpose.”

“Any discrepancy?”

Malini paused for a moment.

“One.”

Aditya looked at her.

“Tell me.”

“In the seizure memo for one external storage device, the time is 18:42. In the initial laboratory register, it is 18:47. A difference of five minutes.”

“Reason?”

“Not certain yet. It may be that the time of signing at the place of seizure and the time entered in the laboratory intake register refer to two different events. But I have not written an inference. I have left both times exactly as they stand.”

Aditya gave a slight nod.

“Good.”

Malini said quietly, “The other side will make a great deal out of those five minutes.”

“Let them.”

“You are not worried?”

“Let the concern be with the discrepancy, not with how the other side uses it. If the five minutes can be explained with a reason, we will write the reason. If they cannot, we will write—reason unknown. We will not invent five hours of story to defend five minutes.”

Malini did not close the file.

“Mr Jha, may I ask something?”

“Ask.”

“What if this five-minute difference puts the entire chain in question?”

“Then the Court will ask the question, and we will answer it. Whether the chain is broken, or whether only two records show different times—that will be tested as fact. The discipline of perception is not to magnify everything favourable to us and diminish everything against us. Its discipline is: as much as there is, no more.”

In her notes Malini wrote: “Do not conceal discrepancy; present it with its limits.”

Aditya opened the file.

“The summonses?”

“The sequence is complete. Which institution was served when, under what legal basis, what was asked for, what response came, what did not come—everything is separated.”

“And what did not come?”

“Awaited.”

Aditya remembered the empty square drawn on the whiteboard.

“Good. Today, in court, we have to protect that empty space.”



The courtroom was full. Since the previous hearing, the case had occupied large spaces in the newspapers. Reporters crowded the outer corridor, lawyers filled the room, State officers sat at the back. But the moment Justice Arya took the bench, the entire noise settled into disciplined silence.

Senior counsel for the opposing side rose first. Before him lay a thick file bristling with coloured slips.

“My Lady, yesterday the State said its investigation was record-based. Today we seek answers on three questions. One—the legality and scope of the summonses. Two—the integrity of the original digital medium and the so-called image. Three—the actual continuity of the hash chain. If the State fails on these three, the rest of its story remains no more than conjecture.”

Counsel for the State began to rise, but Justice Arya stopped her with a gesture.

“Very well. Question one first. The summonses.”

Senior counsel for the opposing side lifted a page.

“This summons went to a payment intermediary. It uses the expression ‘linked account’. No linkage had yet been established. The State was therefore demanding records after first presuming its conclusion.”

Counsel for the State said, “My Lady, the word ‘linked’ was used as an investigative descriptor, not as a judicial conclusion.”

“But the language?” Justice Arya asked. “Does the language of the summons reflect investigative neutrality, or a conclusion already reached?”

Counsel for the State looked toward Aditya.

“The investigating officer is present.”

Aditya stood.

Justice Arya asked, “Do you consider that expression appropriate?”

Aditya opened the file.

“My Lady, reading it today, I would phrase it more neutrally—‘an account potentially connected with transactions under investigation’. The word ‘linked’ was not used to mean that the connection had already been established. But the language could have been more careful.”

Counsel for the opposing side rose at once. “So the officer accepts that the language was defective.”

Aditya opened his mouth to answer, but Justice Arya herself said, “He has accepted that the language could have been more neutral. The conclusion you wish to draw from that is your argument. The record will contain the officer’s complete answer.”

A murmur passed lightly through the courtroom and subsided.

Counsel for the opposing side opened a second summons.

“Fourteen months of records were demanded from this institution. The alleged period of occurrence is only seven months. Why the remaining seven?”

Aditya’s answer was brief.

“To see the sequence of transactions before and after the relevant period. But material received outside that period has not automatically been used to construct an allegation.”

“Then what is the limit?”

“As much as was sought to answer the investigative question, no more. Material that is unrelated will not be made the basis of an allegation.”

Justice Arya asked, “Has unrelated material been separately identified?”

Behind counsel, Malini opened her page. Counsel for the State said, “Yes, My Lady. There is a segregation list.”

“Place it on record.”

Counsel for the opposing side was silent for a moment. Then he said, “Our objection is not concluded.”

“It need not be concluded,” Justice Arya said. “Proceed.”



With the second question, the air in the courtroom changed.

This was a question of forensic method. Here even a small error could acquire a large meaning.

Another lawyer for the opposing side rose. His expertise in digital forensics was immediately apparent. He placed a chart before the bench.

“My Lady, the State says an image of the original medium was created. The questions are: with what device? With which version of the tool? Was the original medium write-protected when the image was made? When was the hash taken? By what method? And where is the original medium now?”

Justice Arya looked toward the State.

Counsel for the State said, “The investigating officer will answer.”

Aditya remained standing.

“The original medium was brought to the laboratory in a sealed packet after seizure. Once the seal was verified, a write-blocking device was attached. The hash value of the original medium was recorded before imaging. After the image was completed, the hash value of the image was recorded. Analysis was carried out on a separate working copy. The original medium is again in sealed storage.”

Counsel for the opposing side asked, “Is the hash of the original medium identical to the hash of the image?”

“In the verification performed by the method used to create the bit-level image, the expected identity was recorded.”

“Expected?”

“Yes. Because values produced by different hash algorithms are not supposed to be identical to one another; what must match is like with like, under the same method. The report records the values together with the method used.”

A few junior lawyers glanced at one another. Justice Arya turned a page.

“The report uses two hash algorithms?”

“Yes. Both values are recorded.”

“Why?”

“For multiple verification.”

Counsel for the opposing side said at once, “That answer does not establish integrity. It is merely the officer saying so.”

Without agitation, Aditya replied, “My statement is not the proof. The report, the automated log, the laboratory register, the seal record, and the image itself available for testing—those can all be examined. My answer merely tells the Court where they are.”

Justice Arya stopped writing.

“That distinction is important. An officer’s statement is not the same thing as a record capable of being tested.”

Counsel for the opposing side moved to his next page.

“Then the five minutes?”

Malini sat a little straighter behind them.

Aditya’s face did not change.

“Which five minutes?” Justice Arya asked.

“The seizure memo says 18:42. The laboratory’s initial register says 18:47. Five minutes in the State’s chain remain unexplained.”

Justice Arya looked at Aditya.

“Answer?”

“Both times are in the record. It has not yet been established whether the first is the time when signing at the seizure site was completed and the second the time of an entry in the custody register before the vehicle departed, or whether there is some other explanation. Verification is under way. I will not offer a guessed reason.”

Counsel for the opposing side raised his voice slightly.

“So there is a five-minute void?”

“There is a five-minute difference between two records. The word ‘void’ is your interpretation.”

“Could the medium have been changed during those five minutes?”

“Many things are imaginable.”

“Answer the question—could it have been changed or not?”

“If the question is about possibility in the abstract, many things are possible in the world. If the question concerns this medium, there is at present no direct evidence on record of such a substitution.”

Justice Arya said, “Very well. Keep possibility and evidence separate.”

The silence in the courtroom thickened.

Malini remembered yesterday’s empty square. The five minutes were another shape of that emptiness. She wanted Aditya to produce a reason at once, to blunt the edge of the other side’s attack. But Aditya did not manufacture one.

A strange calm came over Malini.

To admit uncertainty was not weakness.

It was the discipline of evidence.



During the midday recess, several officers in the State's consultation room were uneasy.

"Those five minutes will become the headline," one officer said.

Another said, "A simple explanation could have been given. Time on the seizure memo, time on the vehicle register—that is all."

Aditya was drinking water. He set down the glass and said, "If the vehicle register proves that, we will say it. Not before."

"But the other side is gaining from it."

"They have the right to."

"We have to protect our case."

"We cannot change facts to protect a case."

For a few moments the room was still.

A senior officer spoke in a somewhat harder voice. "Mr Jha, this is not merely a philosophical exercise. We are dealing with transactions worth crores, offshore structures, public harm—"

Aditya did not interrupt. When the officer had finished, he said quietly, "Which is precisely why greater care is required. The larger the allegation, the cleaner its foundation must be. If we invent a reason for five minutes because public harm may be involved, we will not be defending the public from that harm—we will be destroying confidence in the investigation."

Malini sat listening in a corner of the room.

The senior officer rose from his chair.

"You proceed with an extraordinarily severe method."

"The method is not mine."

"Whose, then?"

For a moment Aditya smiled.

"Truth's."

There was displeasure on a few faces, but no answer came.

At that moment Malini's phone vibrated. A message had come from the laboratory: the handwritten field diary of the seizure-team leader had been found. It noted the seal number at 18:42 and, at 18:47, recorded "handover completed" in the vehicle.

Malini moved toward Aditya.

"Look at this."

Aditya read it.

Every face in the room changed.

The senior officer said, "That settles it! Now it will be clear in court."

Aditya answered at once, "First verify the original diary. Signature, page sequence, custody. A message is not evidence."

The officer sat down again.

Malini had to suppress a laugh.

"Do you never allow yourself to be pleased quickly?" she asked softly.

"Pleasure is private. The record is a public responsibility."



After the recess, argument began on the third question—the hash chain.

Senior counsel for the opposing side rose again.

"My Lady, the State uses the word 'hash' as though it were a magical seal. Let us be clear—a hash establishes only that two copies are the same; it does not establish that the original content is true, lawful, created by the right person, or connected with an offence."

Counsel for the State said, "The State does not disagree with that proposition."

A stir passed through the courtroom.

Counsel for the opposing side paused for a moment. He had perhaps not expected that answer.

Justice Arya asked, "Then what is the dispute?"

Counsel for the State said, "The dispute is that the opposing side seeks to turn the limited function of a hash into proof that it is meaningless. A hash does not test the truth of content; it is a tool for testing integrity. Meaning, authorship, control, connection—those require other evidence."

Justice Arya looked at Aditya.

"Officer, put that in your own words."

Aditya replied, “My Lady, if an object is placed in a sealed jar, the inventory and the seal can show whether the jar has been altered; they do not prove who owns the object inside. A hash, likewise, is one instrument for integrity. We will say from it only as much as it is capable of saying.”

Justice Arya smiled faintly.

“The analogy is useful, but the Court will decide from the record, not from analogies.”

“Yes, My Lady.”

Counsel for the opposing side moved to the next question.

“Analysis was conducted on a working copy. Were new files created during analysis?”

Malini knew the question was necessary. Analytical tools often created auxiliary files.

Aditya said, “The analytical tools did create auxiliary files within the working environment. Therefore the hash of the working copy is not expected to remain identical to that of the original image. The verified original image remains preserved and unchanged. The tool details and export paths have been recorded so that each analysis can be reproduced.”

Counsel for the opposing side said, “Then the screenshots shown by the State are not the original?”

“A screenshot is a mode of presentation. The original digital artefact is within the verified image. The screenshot is not itself the original evidence.”

“So you accept that a screenshot may mislead?”

“Any image can mislead if its context is cut away. That is why we preserve the original path, time, source, and export record with it.”

Justice Arya wrote something down.

“In future presentations, this Court will not accept reliance on screenshots alone. The original source context must remain available.”

Both the State and the opposing side said, “Yes, My Lady.”

Malini wrote in her notebook: “Image for convenience; source for proof.”

In that moment she understood that Navya-Nyaya was not merely an ancient vocabulary. Behind every digital page it asked: “What is this? What is it in relation to? In what form does it exist? What does it prove? What does it not prove?”



The final part of the hearing became unexpectedly sharp.

Counsel for the opposing side raised a new point.

“My Lady, the investigating team has referred in an internal summary to a foreign network-hosting indicator. Yet no foreign service provider has responded, nor has ownership of that network host been established. Why, then, does the State use the expression ‘offshore network?’”

There was movement at the State’s table. The public image of the entire case rested heavily upon that expression.

Justice Arya asked directly, “State?”

Counsel for the State turned a few pages.

Aditya said quietly, “My Lady, if I may.”

“Go on.”

“The internal summary uses the words ‘offshore indicator’, not ‘offshore ownership established’. Wherever the public pleadings use ‘offshore network’, it is stated as an allegation, not as an established fact. At present we have certain foreign-hosting indicators, some domain-registration indicators, some external references along payment routes, and public technical records. Control, beneficial ownership, and individual responsibility require separate verification.”

Counsel for the opposing side said, “Then the very title is exaggerated.”

Aditya did not answer. Justice Arya said, “The title of a case is not evidence. The Court will look only at the record.”

A grave silence spread through the courtroom.

With that one sentence, many possible headlines died in the reporters’ minds.

Justice Arya began dictating the order.

She said: the legality of each summons would be tested on the basis of its authority, scope, and the nature of the material sought; merely because a question had been raised, records obtained under a summons would not automatically become invalid, but unrelated portions produced in response to an overbroad demand would be segregated. The integrity of a forensic image would be tested through records capable of examination—the seal, the hashes, the access register, and reproducibility. A hash did not establish the truth or authorship of content, but remained relevant to the question of integrity. The reason for the five-minute time difference would be examined; until verified, neither side would present it as established tampering or established harmlessness.

Then she paused.

“And one more thing,” Justice Arya said. “In its next summary, the State will maintain five separate headings—allegation, directly observed material, investigative inference, verification awaited, and judicial finding. There will be no mixing of one with another.”

In Aditya’s mind the ridge of Garh En Arikel rose again.

The water would know its way.

“Yes, My Lady.”



After the hearing ended, reporters tried to stop Aditya in the corridor.

“What do you say about the five-minute difference?”

“Has the foreign network host been established or not?”

“Has the State’s case weakened?”

“Has the opposing side’s objection failed?”

Aditya stopped.

“What the Court recorded is in the order. The five-minute difference is under verification. Foreign control is not yet an established fact. And declaring victory for either side today would be premature.”

A reporter asked, “Then who won today?”

Aditya looked at him for a few moments.

“If anything won, it was the method of asking questions.”

“That won’t make a headline,” the reporter said with a laugh.

“Then change the headline.”

Aditya walked on.



That evening, in accordance with the Court’s order, the original field diary arrived at the laboratory for verification. The page sequence was intact. The signature matched the seizure-team leader’s specimen signature. The seal number was the same. At 18:42 there was an entry recording that the packet had been sealed at the site. At 18:47 there was an entry recording that handover of the sealed packet to the vehicle officer had been completed.

Malini came into Aditya’s room, visibly excited.

“The five minutes are explained.”

Aditya looked at the page.

“Now verify three things—that the diary was not filled in later, that the page sequence is continuous, and that the receiving custodian’s register matches.”

“Two checks are complete. The third is under way.”

“Then write: ‘Explanation pending confirmation.’”

Malini let out a long breath.

“Today I think I understand that patience is also an instrument of scientific testing.”

Aditya laughed.

“Without patience, evidence is crushed beneath the weight of premature conclusions.”

Malini laughed too. For a moment, the ease between them lightened the strain of the entire day.

Then Malini became serious again.

“There is one more thing. The payment intermediary has replied.”

Aditya’s face became still again.

“What does it say?”

“Of the three transactions we had thought might have followed the same route, two did in fact pass through a sub-system of the same intermediary group. The third took a different route.”

“Meaning?”

“Our initial hypothesis was partly correct and partly wrong.”

“Good.”

Malini looked startled. “Good—that it was wrong?”

“Yes. Because now we have avoided the error of calling three things one. Facts do not exist to serve our hypothesis.”

“And the connection between the two transactions?”

“Write only as much as the direct record says. These two share the same intermediary route. What that means is the next question.”

On the whiteboard Malini drew three circles. Between two of them she drew a solid line. She erased the line to the third.

Then, for the first time, she said to herself—

“Now comes the time for inference.”

Aditya heard her, but said nothing.



Night deepened. Most windows in the government buildings had gone dark, but there was still light in Aditya's room. Before him lay the Court's order of the day, the verified handover diary, and the response from the payment intermediary.

He opened his journal.

He wrote—

"A summons is an instrument for asking a question; it is not a declaration of a conclusion."

"A forensic image does not take the place of the original; it becomes a testable representation of the original."

"A hash speaks to integrity, not truth."

"If a discrepancy is concealed, suspicion becomes poison; if a discrepancy is tested, it may become a door to knowledge."

"The dignity of an investigation does not lie in its first hypothesis proving correct; it lies in its capacity to abandon a hypothesis the moment it is shown to be wrong."

His pen stopped.

He remembered a night in Garh En Arikel—the ridges of the fields, the sound of frogs by the distant pond, and his father's words: "You lose only when, even after knowing the measure is wrong, you go on selling by that measure."

Aditya understood: a mind bent on revenge cannot relinquish a wrong measure. It needs a person, a fault, a victory. Method needs only a verified measure.

In this case, Raghav Sethia had not been proved guilty. Not every item found in Vidyanand Mishra's office was evidence of an offence. The full chain of offshore control had not been established. Some payment routes were connected; some were not. Some digital indicators were present; the meaning of others remained unclear. Some witnesses had made statements; there was also fear, and self-interest.

But one thing was changing—the investigation was no longer the prisoner of its own story.

It was becoming answerable to the record.

This was not defeat.

It was release.

Aditya wrote the final line—

"The final discipline of perception: abandon what is shown to be wrong."

He closed the journal.

At that moment a brief message arrived on his phone from the Home Ministry: the Court's order of the day and the updated record-summary were to be presented at the Ministry the next morning. A review of legal strategy had been scheduled.

Aditya read the message and put the phone down.

Outside the window, the Delhi night was still.

The shadow of the first part was slowly losing its shape. The things that had been gathered separately as objects of perception—the summonses, payment routes, forensic image, hashes, witness statements, network-host indicators, time discrepancy, empty spaces—now lay beside one another.

It was not yet proper to join them together and call the result a conclusion.

But the question had changed.

At first the question had been: "What was seen?"

Now the next question stood before them—

"How are the things seen to be connected with one another?"

The lesson of perception that had risen from the soil of Garh En Arikel had completed its first circuit.

The next dawn would spread the net of inference.

014 The Web of Inference — Chapter 1

Before dawn had fully disclosed itself, Aditya Jha had already reached the old building of the Home Ministry. The Delhi sky was grey. There was no promise of rain, yet the air held a dampness, as though the night had kept too many things sealed inside itself.

The file in his hand had been opened many times before. New slips, dates, seals, notes, and checklists had gathered upon it. But today its weight had not increased because of paper. It was heavier because the question had changed.

Until yesterday, the discipline of the investigation had been this—what had been seen, and what had not been seen.

Today the Ministry's question was—what conclusions could validly be drawn from what had been seen?

There was temptation in that question, and danger too. At the stage of perception, carelessness distorts the object; at the stage of inference, it distorts meaning.

Climbing the steps of the building, Aditya remembered an old sentence of his father's: "If you see water in one corner of a field, don't decide that the whole field is drowned. First look at the embankments, the slope, the soil, the run of the water."

That lesson from Garh En Arikel was no less useful inside this vast building.

In the conference room sat officers from the Home Ministry, the Law Ministry, the Financial Investigation Unit, the computational examination team, and counsel for the State. Malini Karn was already seated with her tables open. Before her were not five colours of paper but five classes of record—payments, network infrastructure, forensic images, witness statements, and legal correspondence.

The Home Secretary entered and said at once, "Today I want a conclusion."

Aditya remained seated.

The Home Secretary continued, "If not a conclusion, at least a direction. The matter is moving quickly in the Supreme Court. The State cannot merely say that certain things were seen. We will have to say what these things mean in relation to one another."

Malini looked toward Aditya.

Aditya said quietly, "A direction can be given. A conclusion too. But the category of the conclusion must remain clear."

"Category?"

"A directly observed fact, an inference under examination, a corroborated inference, and an established fact are not the same thing."

The Joint Secretary from the Law Ministry said, "That distinction looks elegant on paper. In court the other side will ask: what is the State's case?"

Aditya replied, "The State's case can be only as large as the record can bear. A sentence larger than the record is not the State's case. It is the State's desire."

For a moment, silence spread through the room.

The Home Secretary leaned back in his chair. "Very well. Begin."

Malini brought the first table forward.

"One: complaints from three districts concern different websites, but the phrasing of the customer-support messages is similar. Two: near-identical versions of that language were found in the seized computational material. Three: the final markers of certain payment references correspond with entries in a spreadsheet file. Four: two websites are registered in the names of different entities, yet for one period they show traces of the same distribution channel. Five: one witness says that instructions came from a 'central team,' but independent corroboration of that statement is not yet complete."

The Home Secretary said at once, "Then there was central control."

Aditya raised a hand. "Not yet."

"Why not? All five points are moving in the same direction."

"Direction and proof are different things."

Aditya said to Malini, "Write three words on the whiteboard—paksha, hetu, sadhya."

Malini wrote them down.

Aditya said, "The subject about which we seek a conclusion is the paksha. The mark that carries us toward the conclusion is the hetu. The proposition to be established is the sadhya. But those three words do not complete an inference. The question is whether an invariable relation between hetu and sadhya has been established—or whether we are merely looking at an attractive resemblance."

An officer from the Financial Investigation Unit said, "You are speaking of vyapti."

“Yes. But in this matter, vyapti must be found not in a philosophy text but in the record.”

The Home Secretary’s brow tightened slightly.

Aditya gave an example. “The same support sentence appears on three different websites. That may serve as a hetu. The sadhya would be: the same operating team. But is that kind of sentence used only by one operating team? Could it be a common template supplied by a third party? Could an old copy have travelled from one place to another? Until those alternatives are tested, the hetu does not necessarily carry us to the sadhya.”

Malini said softly, “Then similarity is a doorway to inference, not a conclusion.”

“Exactly.”

Aditya pointed to the second line. “The matching payment reference. Are the last four markers enough?”

The financial officer said, “No. We need the full ledger, the intermediary’s response, time correlation, and the account relationship.”

“Then for now the hetu is incomplete.”

The Home Secretary said, “But the next Supreme Court hearing will not wait.”

Aditya replied, “The court may not wait; the record will still form at its own pace. Lack of time cannot take the place of fact.”



In the second phase of the meeting, the Ministry’s legal strategy was placed on the table.

Until yesterday, the State’s principal response had concerned the lawful limits of investigation, the segregation of privileged material, the integrity of computational evidence, and the restrained use of sealed material. Today the Law Ministry proposed that the State use the expression “coordinated offshore structure” in its reply.

Aditya asked at once, “What is the basis for the word ‘coordinated’?”

A legal adviser said, “Payment routes, websites, support messages, and the witness statement. Put them together.”

“They have been put together. But ‘coordinated’ is a conclusion. The record can safely go only as far as ‘possible interrelationship’ at present.”

“With so much caution, the State will look weak.”

Aditya’s voice did not change. “Unwarranted certainty makes the State weaker.”

The Home Secretary tapped a finger on the table. “Mr Jha, the language of politics and the language of a courtroom are different.”

“I am preparing a court record.”

“So is the Ministry.”

At that moment Home Minister Shiveshwar Prasad himself entered the room. Everyone rose. He motioned them back into their seats.

“Continue the discussion,” he said.

The Home Secretary summarised the issue. “There is disagreement over the State’s language. Some officers wish to write ‘coordinated offshore structure.’ The investigating officer says ‘possible interrelationship’ would, at present, be more accurate.”

The Minister looked at Aditya. “Your reason?”

Aditya pushed three pages across the table. “Honourable Minister, one matching payment reference has not been independently corroborated. External support for one witness’s statement about a ‘central team’ is incomplete. In the similarities of network infrastructure, a shared third-party service remains possible. Taken together, these things strengthen the question, but they do not yet establish a complete chain of control.”

The Minister kept reading.

“Then what should be written?”

“What has been directly verified should be written as such. What is inference should be accompanied by its hetu. And if the hetu itself remains under examination, that must also be written.”

The Minister smiled faintly. “You mean the State should write down its own weakness?”

“Its limits.”

“The difference?”

“A weakness can be hidden. A limit is acknowledged.”

The Minister’s smile disappeared, but no hardness came into his eyes. He turned toward the Home Secretary.

“The court will not trust the State because we make every sentence heavier. Revise the pages in the manner Mr Jha suggests. The legal strategy may move into the stage of inference, but it must not dress inference as fact.”

The Law Ministry’s Joint Secretary asked, “Then what will be the principal line in the brief for the senior law officers?”

The Minister said, “Not a principal line. A principal sequence. Direct fact—its basis—its possible conclusion—its limit.”

Aditya remained silent.

The soil of Garh En Arikel was not present in the Minister's words in Delhi, yet somewhere its discipline had reached them.



After noon, Malini and Aditya sat in a small room in the Ministry. Outside, officers were preparing the revised legal summary. Inside, Malini had drawn a network map. A circle stood at the centre; around it were different websites, payment intermediaries, a customer-support panel, and several names of individuals.

"Look at this," Malini said. "If we keep only verified connections, the network becomes very small."

"Let it become small."

"And if we include possible connections, it becomes enormous."

"Make both maps."

"Two?"

"One for verified connections. The other for inferences under examination. Do not rely on colour; make the titles explicit."

Malini wrote: "Verified Relationship Network" and "Inferential Relationship Network—Under Examination."

"Sir, sometimes I am afraid the other side will hold up the second map and say that the investigation is running on inference."

Aditya said, "An investigation does run on inference. The fault begins when inference is called proof."

"In Navya Nyaya, is knowledge incomplete without inference?"

"Inference can be a valid means of knowledge, but its hetu must be sound, its vyapti tested, and contrary instances examined. You see smoke and infer fire because the relation between smoke and fire has been tested through both presence and absence. But in the computational world, a great deal of smoke is made by machines, and the fire may be somewhere else."

Malini laughed. "Then vyapti is more difficult in network crime."

"Much more."

"Because the same sign can arise from many causes."

"Exactly. One website was bought by one entity—that is one layer of ownership. Who put content on it is another. Who controlled the payments is a third. Who received the benefit is a fourth. Who gave instructions is a fifth. A leap from the first layer to the fifth may not be inference at all; it may be imagination."

Malini slowly began to alter the network map.

Beside one name she placed a question mark.

"Raghav Sethia," she said. "His name appears in two financial records, one witness says he saw him at a meeting, and the initials R.S. occur in one payment table. What can be said if all this is put together?"

Aditya replied, "First ask each question separately. Is the record original or a copy? What is its context? Is the witness's account of his presence independently corroborated? Has the link between the initials R.S. and a particular person been established? If not, then 'Raghav Sethia exercised control' is at present only the sadhya, not a proved conclusion."

"But a possibility?"

"Write the possibility, with its reasons. Do not make a person guilty by possibility."

Malini thickened the question mark.

"How strange," she said. "I used to think that more lines meant more truth."

Aditya said, "Sometimes more lines mean only more questions."



At that hour, Vidyanand Mishra was looking at a different kind of web in his office. His junior counsel was waiting for the State's affidavit for the forthcoming Supreme Court hearing. Outside, the first two drops of rain struck the glass and then stopped.

The junior said, "Sir, the State is changing strategy. We hear they will now put forward a theory of interrelationship."

Vidyanand removed his glasses and set them on the table.

"We will examine the distance between theory and proof."

"We can say that the State has built its entire case on inference."

"I will not say that."

The junior looked surprised. "Why?"

"Because inference is not invalid in itself. The question is whether the basis of the inference is reliable, and whether the conclusion travels farther than that basis permits."

"But for the attack—"

Vidyanand stopped him. "In court, attack the relationship, not the word. If the State tries to prove control from one payment reference, ask: where is the vyapti? If it tries to prove ownership from one website, ask: who is the

intermediary service? If it tries to prove criminal participation from one witness statement, ask: where is the corroboration? But to say ‘inference is bad’ would be childish.”

The junior slowly wrote down the note.

Vidyanand’s phone vibrated. A message from home: his mother’s condition was stable, but tests were continuing. He closed his eyes for a moment. For the past week, private crisis and professional duty had been pressing into one another.

The junior asked, “Do you want to go home?”

“Finish preparing for the hearing.”

“But—”

“The two duties are not enemies. They need order.”

Even as he said it, the sentence surprised him. Order—the word was entering every side of this case now.



By evening, the Ministry’s revised summary lay before Aditya. The opening paragraph had changed.

The old draft had said: “The investigation has disclosed a coordinated offshore gambling structure operating through multiple websites and payment routes.”

The new draft said: “The computational, financial, and testimonial material verified thus far indicates certain interrelationships among multiple websites and payment references. Conclusions concerning the nature of those relationships, the structure of control, and the chain of beneficiaries remain under investigation.”

Aditya read the passage twice.

The Home Secretary asked, “Now?”

“Now the record can bear that sentence.”

“Is it not too gentle?”

“Not gentle. Accurate.”

The Home Secretary said nothing. He signed the paper.

After that, a new outline of legal strategy was placed before them. In the Supreme Court the State would answer on three levels: first, the lawful authority of the investigation and the safeguards ordered by the High Court; second, material directly verified; third, limited inferences arising from that material whose testing remained in progress. No inference would be presented as a final finding of criminality.

Aditya listened carefully.

The change was not a small one. Until now the Ministry had wanted to defend the investigation. Now it wanted to defend the method of the investigation.

The difference was subtle, but in court such subtleties could carry enormous weight.



That night, when Aditya returned to the State Guest House, he did not ask for dinner. On the table lay a small postal packet from Garh En Arikel, his name written in his mother’s hand.

He opened it. Inside were two dried tulsi leaves from the courtyard, a little roasted makhana, and a small cloth bundle. When he untied the bundle, there was soil inside.

With it was a note: “From beside the courtyard, newly plastered with earth and cow-dung. Where will you find soil in Delhi?”

Aditya laughed.

He brought the soil near his nose. The scent was faint, yet memory opened at once—the field embankment after rain, young rice plants, the edge of the pond, the veranda of home, the sound of his mother’s feet.

Once, when he was a child, his father had pointed from a distance to a strip of green in the field and asked, “Is there more water there?”

Aditya had answered, “It is greener, so there must be more water.”

His father had taken him there. The green was not caused by water at all, but by a difference in soil and an old heap of manure.

“When you see a sign, do not decide that it has only one cause,” his father had said. “A cause needs a hetu, and the hetu must survive the other possibilities.”

At the time Aditya had not understood the word hetu in the sense of logic. Today he did.

He set the little bundle of soil beside the table.

He opened his journal.

He wrote—

“Inference is not the enemy of perception; it is perception disciplined into extension.”

“However compelling a hetu may appear, the sadhya is not established until rival possibilities have been tested.”

“Similarity may indicate relationship; it is not proof of a common cause.”

“The investigation’s next error may be this—the eagerness to turn scattered points into one picture.”

His pen stopped. He looked toward the soil.

In Delhi everyone wanted speed—the Ministry wanted legal direction, the news media wanted a headline, counsel wanted the weakness of the other side, officers wanted progress, and victims wanted an answer. But soil does not obey haste. After a seed is sown, the shoot emerges in its own time; too much water can rot it.

Inference was like that too.

A conclusion forced into being is not truth.



The next morning Malini arrived with a new result.

“The payment intermediary has replied.”

Aditya took the letter.

Of the three complaints, two payment references were connected with the same intermediary merchant identifier. The third was not. The intermediary had written clearly that the merchant identifier belonged to a service group, but further records would be required to identify the actual sub-merchant.

Malini was excited. “Two of them are connected.”

“What is connected?”

“Two payments—to the same service group’s merchant identifier.”

“That is all.”

“But this is the first corroborated connection.”

“Yes.”

“Then the network is no longer so small.”

Aditya read the final line of the letter. “The third payment takes a different route.”

Malini fell silent.

“Give that equal weight on the map.”

“It may run against our theory.”

“That is why it matters more.”

Malini smiled. “Vyatireka?”

Aditya smiled too. “You are learning.”

On the whiteboard he wrote—

“Anvaya: two payments—same service-group identifier.”

“Vyatireka: the third payment—a different route.”

Below that: “Unified control? Undetermined at present.”

Malini said, “What if the third payment later reaches the same beneficiary?”

“Then the inference will grow stronger.”

“And if it does not?”

“Then we will have to change the theory.”

“You say that so easily—we will have to change it.”

“It becomes difficult only when we begin to love the theory.”



That afternoon, the Home Ministry’s new legal summary was sent to the offices of the Attorney General and the Solicitor General. With it went a covering letter asking that, at the forthcoming hearing, the State’s response be presented together with the limits of the record.

Aditya’s role did not appear in the covering letter. His name stood only in the verification list in the annexure.

That gave him relief.

Let the individual’s name remain small and the order of the method remain clear—that seemed to him more proper.

Malini asked, “Sir, what if the senior law officers find this structure of inference too complicated?”

“Then let them simplify it, but not erase the limits.”

“And if the court asks directly—does the State say there is one single network?”

Aditya thought for a few moments.

“The answer should be: the State’s investigation has verified certain shared relationships; the question of fully unified control remains under examination.”

“That answer will not become a news headline.”

“That is all right.”



At the final meeting of the evening, the Home Minister returned. Before him lay the revised summary, the payment intermediary's new response, and the two relationship maps—one verified, one inferential.

He studied both maps. The inferential map was crowded with colours, lines, and question marks. The verified map was much smaller, sparse.

The Minister asked, "People will look at the first map and say there is nothing here. They will look at the second and say there is an empire. Where is the truth?"

Aditya said, "Between the two, but not at an equal distance from each. What is verified is the foundation. What is inferential is the direction of investigation. After verification, some lines will move into the first map; others will disappear."

For a long time the Minister kept looking at the maps.

"In politics, people are frightened by empty spaces," he said softly.

"In justice, only evidence has the right to fill them."

The Minister looked at Aditya. "Does everyone in your village speak this slowly?"

A faint smile came to Aditya's face. "No. But a field does not answer quickly."

The Minister laughed too. "Very well. Keep both maps under separate names. Do not mix them in any meeting."

He turned toward the Home Secretary. "The legal strategy is clear now. We shall place inference before the court, but we shall not dress it in the clothes of fact."

The meeting ended.



That night, the little bundle of soil again lay on Aditya's table.

He opened the window. Outside was the glow of the metropolis. Inside was the scent of the village.

Before him lay the day's new record—the corroborated connection between two payments, the divergence of the third, the Ministry's revised summary, the two network maps, and a list of questions for the next round of verification.

In the first part, he had learned: say only as much as you have seen.

The first day of the second part was teaching him something new: if you connect two things, say why you connected them.

A relationship without reason is only a story.

A reason without testing is only convenience.

Vyapti without contrary instances is only desire.

And desire does not become judicial knowledge.

Aditya wrote the final line in his journal—

"The first discipline of inference: before drawing a line, ask whether a bridge truly exists between these two points, or only in my mind."

He closed his pen.

The soil of Garh En Arikel lay still on the table.

The Delhi file had already moved from the Ministry toward the highest law offices of the State.

For the first time, the scattered signs had begun to open one another's meanings.

But the web was still being woven.

Aditya knew that the most dangerous thread in a web is not necessarily the one a criminal spins.

The most dangerous thread may be the one an investigator adds in haste.

And so the next dawn's work had already been written down—

Find the hetu of every inference.

For every hetu, find the rival possibility.

And erase every line that cannot survive the test.

o15 The Web of Inference — Chapter 2

Before the morning's first meeting began, three files lay open in the long room of the Law Ministry. The first contained the High Court's order; the second, the papers of the Special Leave Petition; the third, Aditya Jha's revised summary of inference from the previous day.

Until yesterday, the Ministry's question had been: what is the lawful limit of the investigation? Today the question had shifted slightly: once scattered facts have been verified, what are the legal limits of connecting them with one another?

When Aditya entered the room, Malini was already seated. Before her lay a two-page table. Across the top, in bold letters, were the words—

“Verified relationship.”

To its right—

“Inferential relationship.”

And in the third column—

“Rival possibility.”

Aditya lifted the first page.

“You looked at it again last night?”

Malini said, “Three times. I erased two lines.”

“Why?”

“One time-match involving a payment reference had looked very strong at first. But when the original records arrived, it became clear that during that same time-window many unrelated transactions had also passed through the same intermediary. Coincidence in time alone is not a sufficient *hetu*.”

Aditya rested his thumb on the page and said quietly, “Good. The dignity of inference lies not in drawing lines, but in erasing the lines that are wrong.”

Malini showed him the second page. “These two relationships still survive. One is between the payment indicator found in the seized computational copy and the intermediary's independently verified response. The other is between a time of administrative access and a time recorded in the service logs. But in neither case has the final identity of the user been established.”

“Then write: ‘Relationship verified; individual role unproved.’”

“I have.”

Aditya smiled. “Those five words are worth more than five pages of argument.”

Malini looked toward the window. “Until yesterday I thought inference would be easier than perception. The things would appear before us, and then we would simply join them.”

“Perception demands discipline of the eye. Inference demands discipline of the mind.”

“Does the mind deceive more?”

“The mind cannot bear an empty space. Where there is no fact, it wants to fill the gap with a story.”

Malini did not close the table. “Then should we leave the empty spaces empty?”

“Until there is a lawful reason to fill them.”

At that moment the Law Secretary entered. In his hand was a note from the Home Ministry.

“The first reference has reached the offices of the Attorney General and the Solicitor General. Both have asked for a concise factual summary—especially yesterday's new inferential structure. The Minister wants a supplementary reference to go today.”

Aditya was silent for a moment.

“The supplementary reference should contain only verified relationships. Not the inferential map?”

The Law Secretary said, “That is precisely the question. If the senior law offices are to understand the full shape of the dispute, they may need to know the inferential relationships as well.”

Aditya replied, “They may need to know them. But their colour, title, and language must be such that they cannot dissolve into the verified map.”

Malini said, “Two separate annexures?”

“Yes. First: verified relationships. Second: inferences under examination. With every line in the second, the rival possibility.”

The Law Secretary pulled out a chair and sat down. “With this much caution, the letter will become very long.”

Aditya said evenly, “Length is not a defect. Ambiguity is.”



The first draft of the supplementary reference reached Home Minister Shiveshwar Prasad's chamber before noon.

The opening line read: "The investigation is increasingly revealing the structure of an offshore gambling network."

The Minister read the line and put down his red pen.

"How clear is 'revealing'?"

The officers seated in the room fell silent.

Aditya said, "Not yet clear enough for that word to be safe."

The Minister struck out the sentence. "Then write: 'The investigation has disclosed certain verified relationships and certain inferences still under examination.'"

The Home Secretary agreed.

The second paragraph said: "Payment routes, administrative access, and service records indicate unified control."

The Minister paused again. "Unified control—proved?"

Malini, seated toward the back, said, "No. At present, the investigation has only a possibility of shared coordination."

The Minister wrote: "Certain records give rise to the possibility of interrelationship; the nature of control and the role of any individual remain separately under verification."

He put down his pen and looked at Aditya. "Is this the language of inference?"

"It is the language of inference under restraint."

"The difference?"

"Inference says: from this fact, this conclusion is possible or strong. Restraint adds: why, to what extent, and which rival possibilities still survive."

The Minister leaned back. "Sentences like that will not be popular in a political room."

"A courtroom is not a place for popular sentences."

The Minister smiled faintly. "You have told me that many times."

"Then perhaps it is working."

For a moment the room relaxed, but almost at once the files opened again.

The final form of the supplementary reference was divided into three parts—

First, verified material of perception.

Second, limited inferences arising from that material.

Third, the rival possibility for each inference, together with the verification still required.

Before signing the last page, the Home Minister read it once more.

"Let both offices understand clearly that the State is not asking them to endorse a predetermined conclusion."

The Law Secretary wrote: "For legal examination and such representation as may be necessary."

The Minister nodded. "And add one more sentence: 'The State will not press a conclusion that the record does not support.'"

Aditya's eyes lifted for a moment.

"Keep that sentence."

The Minister signed.

The supplementary reference was sent to the offices of the Attorney General and the Solicitor General.

The paper moved, but no conclusion moved with it.

Only questions, facts, limited inferences, and limits went forward.



At that same hour, on the other side of the city, Vidyanand Mishra stood in a hospital corridor.

Shailaja's pain had returned during the night. The doctors had increased their watch. Nandita sat beside her mother. Vidyanand held two things: a small cloth bag containing Shailaja's necessities, and a black file containing the draft supplementary grounds for the Special Leave Petition.

Nandita came out.

"Babu, the doctors say they need to watch her a little longer."

"All right."

"Are you going back to the office?"

Before answering, Vidyanand looked at her face. His daughter was tired.

"For two hours. Then I will come back."

"If Ma wakes, she will ask."

"Tell her I have not run away."

Nandita watched him for a few moments. "You always say the case will not run away. But you keep running."

The sentence was simple. The answer was difficult.

Vidyanand's hand tightened around the edge of the file.

"You are right."

Nandita looked startled.

"I will be back in two hours. If the doctor calls, tell me at once."

He turned, then stopped. "And if Ma wakes, tell her—this time I shall not let her hide anything from me."

A faint smile came into Nandita's eyes, but the tiredness remained.



The junior advocates were waiting in Vidyanand's office.

A thick draft lay open on the table. Beneath the title on the first page was written: "The State's investigation rests on inference, conjecture, and prejudice."

Vidyanand read it.

"Who wrote this?"

One junior slowly raised his hand. "Sir, we received word of yesterday's Ministry summary. The State is constructing a framework of inference. I thought—"

"Thinking is proper. What is the basis of what you wrote?"

"They are using inference."

"Inference can be a lawful instrument of reasoning. The word 'inference' does not by itself mean 'conjecture.'"

The junior fell silent.

Vidyanand picked up his red pen and struck out the entire sentence.

"We shall attack the hetu of the State's inference. We shall question the vyapti. We shall show the rival possibility. But words that merely make noise will not go with us into court."

Another junior said, "Sir, the client's instructions are very strong. He wants us to say that the investigation team is selecting material to fit a predetermined conclusion."

Vidyanand looked at him.

"Direct basis for that statement?"

"Not direct. But the sequence of events—"

"The sequence may raise a question. It does not establish mala fides."

"The client says the State is under political pressure."

"We will not turn every fear of the client into an affidavit."

The room went still.

Vidyanand lowered himself into the chair. The sleepless night was visible on his face.

"The dignity of counsel does not lie in raising the client's voice. It lies in placing the strongest lawful form of the client's case before the court—without stepping outside the record."

A junior asked, "What if the client is dissatisfied?"

"Let him be."

"What if he engages another counsel—"

Before the sentence was finished, Vidyanand replied, "That is his right."

The juniors looked at one another.

Vidyanand did not close the file. He read the next paragraph—

"Similarity of payment references alone does not establish common control; a time of administrative access alone does not establish the identity of the actor; storage in an office alone does not establish an advocate's knowledge or participation."

He did not touch that passage with the red pen.

"Keep this."

"Why, sir?"

"Because it rests on the limits of the record. A strong rebuttal does not invent the other side's weakness; it identifies the weakness that is actually there."

His phone vibrated. A message from Nandita: "Ma is awake. She asked about you."

Vidyanand looked at the clock. Fourteen minutes remained before the two hours were up.

He closed the file.

"The rest of the draft this evening. I am leaving."

The junior looked surprised. "Sir, the State's supplementary reference has gone to the Attorney General's office. There may be a response today itself—"

"The court is tomorrow. Shailaja is today."

He lifted the black cloth bag, then changed his mind and left it on the chair.

"Let this stay in the office."

He took only the thinner copy of the file with him.



When the supplementary reference reached the Attorney General's office, the first question raised was not about guilt but about structure.

A senior law officer turned the pages and said, "Why is the State's verified map so small, while the inferential one is so large?"

The Law Ministry representative replied, "Because verification is still continuing."

"Then in court, will the language describing the large map remain small?"

Aditya, seated opposite him, said, "Yes. A line still under examination will be described as a question, not as a conclusion."

"And the two relationships you call verified?"

Malini opened the record. "The first relationship is between a payment reference recorded in the seized copy and the independent records of the intermediary, matched by time and reference. The second is between a time of administrative access and a service-side record. But in both, the identity of the user and any final conclusion about control require separate verification."

The senior officer asked, "In other words, Fact A and Fact B connect, but there is no line yet reaching Person C?"

"Not yet."

"Then the use of the word 'network' in the reply to the petition?"

Aditya replied, "Not where it would carry the force of a formal conclusion. The case may retain its working name, but the legal language will remain separate."

The officer narrowed his eyes slightly. "A State officer is shortening his own case. My experience is usually the opposite."

Aditya said, "A small truth is safer than a large inference."

For the first time, a light silence entered the meeting.

The senior officer opened the third annexure—the rival possibilities.

"This is interesting. The State is writing the opposition to its own inference?"

"If an opposing possibility is real, ignoring it is not reasoning."

"And if the rival possibility turns out to be stronger?"

"Then the inference will change."

"The case may become weaker."

"Then it must be called weaker."

Malini looked toward Aditya. She had heard that answer from him before, yet in the quiet chamber of a senior law office it sounded harder.

The senior officer closed the page.

"I shall place this structure before the Attorney General. Coordination with the Solicitor General's office will be necessary. But let one thing be clear: the legal admissibility of inference may be debated before the court; the incompleteness of the investigation cannot be concealed."

The Law Secretary said, "That is also the State's request."

"Good. Then in the next brief note, answer four questions. One: what is the perceptual basis of each inference? Two: what is the logical bridge from the basis to the *sadhya*? Three: what contrary examples are available? Four: what relief is the State actually asking the court for at this stage?"

Aditya wrote the questions down.

Those four questions were not verses from Gangesha's treatise.

Yet it seemed to him that the whole discipline of *Navya Nyaya* was present within them.



By evening, the light in Shailaja's hospital room had dimmed.

Vidyanand sat beside her and watched his wife. Shailaja was tired, but alert.

"Nandita said you had gone to the office," she said softly.

"I had. I came back."

"The case?"

"Exists."

"And I?"

Vidyanand smiled faintly. "You exist too."

Shailaja closed her eyes and opened them again. "That is a lawyer's answer."

"Then hear a husband's answer—I was frightened."

Something changed softly in Shailaja's face. "You?"

"Yes."

"Lawyers are not frightened?"

“More than anyone. They merely choose better words.”

Shailaja laughed quietly, then placed a hand on her chest and went still. Vidyanand leaned forward at once.

“Pain?”

“Not now. Tiredness.”

They were silent for a while.

Then Shailaja asked, “In your case, whose side is the truth on?”

Vidyanand looked toward the window. Evening was descending outside.

“At present, the whole truth is not in any one side’s bag.”

“Then what are you fighting for?”

“For limits. So that what is not proved is not called proved. So that what is protected is not improperly opened. And so that a lawful investigation is not stopped merely because it inconveniences my client.”

Shailaja watched him for a few moments.

“Then you are against your client too?”

“No. I am telling him the proper limits of his own interest.”

“Does he understand?”

Vidyanand laughed. “Not always.”

“Then you chose a difficult profession.”

“A very long time ago.”

Shailaja reached for his hand and held it. “Home is difficult too. But there is no appeal here.”

This time Vidyanand’s laughter opened fully.

His phone vibrated again. He did not pick it up.

A few moments later a message arrived from a junior advocate. He had obtained the summary of the State’s supplementary reference. The offices of the Attorney General and the Solicitor General were coordinating.

Vidyanand read the message and turned the phone face down.

Shailaja asked, “Necessary?”

“Important.”

“The difference?”

“Necessary is what must be done now. Important is what must be done at the proper time, in the proper form.”

Shailaja closed her eyes. “That answer is real.”



At nine that night, Aditya, Malini, and the Law Secretary sat again in the small room. The four questions from the Attorney General’s office lay before them.

First: what is the perceptual basis of each inference?

Malini opened the first map.

“Line one. Payment reference. Perceptual basis: an entry in the seized copy, the intermediary’s independent record, and a time-match. Limit: identity of the actor unproved.”

Aditya wrote it down.

“Line two?”

“Administrative access. Perceptual basis: service-side time records and a corresponding indicator on the seized device. Limit: identity of the user and the purpose for which the access right was exercised remain unproved.”

“Line three?”

Malini paused.

“I erased it.”

“Why?”

“Similarity of time does not create vyapti. We found contrary instances of unrelated transactions.”

The Law Secretary said, “Will this erased line be disclosed in court?”

Aditya replied, “If the other side raises a question of selectivity, yes. The credibility of an investigation is built not only by what it retains, but also by what it rejects, and why.”

Second question: what is the bridge from the basis to the sadhya?

The debate over this lasted a long time. One officer proposed the phrase “ordinary behaviour.” Aditya stopped him.

“What fact supports ‘ordinary behaviour?’”

“In a network like this—”

“By saying ‘a network like this,’ we are assuming the conclusion first. Rewrite it.”

Malini said, “If a matching payment reference, matching time, and matching service-side record converge from independent sources, an inference of shared procedural relationship may arise. But an inference of control requires an additional hetu.”

Aditya nodded. “That is right.”

Third question: contrary examples?

Malini listed instances of unrelated payments, ordinary use of common service providers, and the possibility of shared office equipment.

Fourth question: what does the State presently seek from the court?

At that, everyone fell silent.

At last the Law Secretary said, "An opportunity for the investigation to continue, examination of lawfully obtained computational material, protected segregation of privileged material, and freedom from a prior restraint."

Aditya added, "Not a judicial declaration of guilt."

"Is it necessary to write that?"

"Very."

The answers to the four questions were ready.

Aditya read the final page.

Nowhere was the word 'proved' used without cause. Nowhere did 'network' appear as a formal conclusion. Nowhere was an individual's role carried beyond inference.

He put down his pen.

"Send it."

The Law Secretary asked, "To both offices?"

"Yes. Identical copies to the Attorney General and the Solicitor General. Let any difference arise in legal opinion, not in the factual record supplied to them."

This was the second supplementary reference, but not a repetition of the first.

The first had asked for assistance.

This one sent forward the raw material of reasoning, clearly arranged.



By the next morning, rumour had reached the courthouse corridor before anyone else.

"The Attorney General himself is appearing."

"The Solicitor General too."

"The State has turned the case into a matter of prestige."

"Now there will be a major clash."

The journalists were choosing words. The lawyers were choosing inferences. The parties were choosing fears.

As Aditya crossed the corridor, he said only one sentence to Malini—

"Nothing is certain yet."

"But the reference has gone."

"The sending of the reference is a directly observed fact. Their appearance is still an inference."

Malini smiled. "I am learning."

"When you think the learning is finished, be afraid."

In the distance, Vidyanand Mishra appeared with his juniors. His face was tired; his stride was steady.

The two men passed close to one another.

Vidyanand paused for a moment and said, "I hear the State has sought the highest level of legal assistance."

Aditya replied, "The reference has gone."

"Appearance?"

"Their decision."

Vidyanand nodded. "A proper answer."

Aditya asked, "Shailaja ji?"

Vidyanand's eyes softened for a moment. "Under observation. Stable."

"May all be well."

"Thank you."

Then the two went on in their separate directions.

Neither side changed in that brief exchange, nor did the dispute grow smaller.

But both men knew that what lay ahead would not be fought merely by force of language.

One side would demand the hetu behind every inference.

The other would expose the limit of every hetu.

And the court might ask, between them: how necessary is the relationship you see? How much of it is merely possible? And if it is only possible, why is that possibility sufficient for a judicial order?



That night, Aditya took the little bundle of soil from Garh En Arikel into his hand once more.

Yesterday's map was no longer as colourful as before. Many lines had been erased. What remained was less, but clearer.

He remembered the fields of his village. After the rains, when the water receded, frog-prints, children's footprints, goat-hooves, and the wheels of bullock carts all left marks upon the same earth. The mind of a child would instantly invent a story for each mark. His father used to say—

“Do not create an actor from a mark. First ask whether the same mark could have been made by another cause.”

Anvaya.

Vyatireka.

In childhood, he had not possessed the words. He had possessed the method.

Aditya opened his journal. He wrote—

“The second restraint of inference: a cause that cannot survive a rival possibility cannot bear the weight of a court.”

Beneath it, one more line—

“The test of authority is like inference as well: the fact that power is available does not establish that its use is justified. A reason is required.”

He closed his pen.

The supplementary reference had already gone to the offices of the Attorney General and the Solicitor General.

Vidyanand Mishra was drawing a new boundary between his home and his profession.

Malini was learning not merely the art of drawing lines between facts, but the greater art of erasing them.

And for the first time the Ministry was beginning to accept that the State's dignity was safer in limited, verifiable statements than in large claims.

Scattered bodies of data were beginning to open one another's meanings.

But meaning was not yet decision.

The web of inference had grown a little denser.

And at every knot in the web hung a question—

“What is the hetu of this relationship?”

016 The Web of Inference — Chapter 3

That morning the corridors of the Supreme Court seemed quieter than on an ordinary day. There was a crowd, there were lawyers, files, the tremor of telephones, yet everything appeared to move with its voice held back. The matter had risen high on the list of special leave petitions, and through the night every news bulletin had repeated the same sentence—the State’s investigation had reached “decisive evidence” of an offshore gambling web.

Aditya Jha had read that sentence three times.

All three times it had caused him the same discomfort.

The word “decisive” came from no judicial order. The word “evidence” rested on no newly verified material. And “had reached” was a conclusion the investigating team itself could not yet accept.

Malini Karn, walking beside him, said, “Every news channel has been running this since last night.”

Aditya did not look at the screen. “What does our record say?”

“Some verified relationships. Some inferences. Some rival possibilities.”

“Then that is the whole of our world.”

“But the court will see the atmosphere outside.”

“The court may hear the atmosphere outside. It will make its order on the record.”

Malini was silent for a moment. Then she said, “What if they ask whether this case has moved beyond suspicion?”

Aditya stopped.

“I will not answer that question in one word.”

“Then how?”

“Suspicion about which point? Allegation about which point? Evidence about which point? The subject of each may be different. A relationship may be proved, while the role of a person inferred from it remains only an inference. A statement may support an allegation, yet without independent verification it does not become an established fact. If language mixes all these together, the investigation will cut its own feet from under itself.”

Malini said softly, “The web of inference.”

Aditya nodded. “A web is useful only when its knots remain visible.”



The Bench assembled.

A Bench of three judges. Justice Devvrat Sen in the centre, Justice Meera Kaushal and Justice Faizan Karim on either side.

On the petitioners’ side Vidyanand Mishra rose. His face looked more tired than before, but there was no tiredness in his voice. For the State, the Solicitor General was present; a written note from the Attorney General’s office had been placed on the file, though the Attorney General himself was engaged before another Constitution Bench. The Home Ministry’s reference had served its purpose, but Aditya did not wish to enlarge the meaning of that appearance beyond what it was.

Justice Sen asked the first question—

“What, finally, is the State’s case?”

The Solicitor General replied, “My Lord, the State is not at this stage placing before the Court a final conclusion of guilt. The investigation has found verified relationships among certain digital and financial materials, certain service records, and certain statements by individuals. Those relationships give rise to limited inferences, which remain under examination.”

Justice Kaushal immediately asked, “Limited inferences—that sounds elegant. What is the limit?”

The Solicitor General turned a page. “For example, the correspondence between a payment reference and an intermediary record is verified. From that arises an inference concerning the payment flow. But that does not establish the control or culpability of any particular person.”

Vidyanand Mishra stood. “The difficulty with that answer, My Lady, is this: in public language the State employs words such as ‘network’, ‘coordination’, ‘flow’, ‘administrative access’, and then comes to court and says—we draw only limited inferences. If the inferences are so limited, what justifies wide seizure, interrogation, screening of privileged material, and the burden cast upon individual reputations?”

Justice Karim said, “Then the question cuts both ways. The State must show its limit. But the petitioners cannot say that because no conclusion is yet final, every step of investigation is forbidden.”

Vidyanand inclined his head courteously. “I do not say every step is forbidden. My submission is that the Court should make clear the boundary between suspicion, allegation, and evidence.”

Justice Sen put down his pen.

“Very well. Today, then, we shall remain with that question.”

The rustle of papers in the courtroom ceased.

Justice Sen said, “State, three words recur throughout this record—suspicion, allegation, evidence. What working distinction do you draw among them in this case?”

The Solicitor General was silent for a few moments. The answer had to be more than a definition. Aditya sat behind him, but in his mind an old lesson from Garh En Arikel seemed to rise again—which is the paksha? Which the hetu? Which the sadhya? Where lies the vyapti?

The Solicitor General said—

“Suspicion is a question or possibility that justifies investigation but is not yet sufficiently supported by material. An allegation is a specific assertion about the role of a person, institution, or act, but an allegation is not its own proof. Evidence is material or testimony whose authenticity, relevance, and lawful use are capable of examination. And the existence of evidence does not, by itself, establish the truth of every allegation.”

Justice Kaushal said, “And inference?”

“A conclusion drawn by lawful reasoning from a proved or verified fact, with both the hetu and rival possibilities kept in view.”

Vidyanand said quietly, “If the State truly followed that distinction, half our dispute would disappear.”

Justice Sen looked at him. “And the other half?”

“The State’s conduct.”

A faint murmur passed through the courtroom.



The Court asked the State for an example.

The Solicitor General looked back at the law officer seated behind him. The officer passed forward a single page Aditya had prepared. Its heading read: “Example: Verified Relationship and the Limit of Inference.”

The Solicitor General read—

“In a forensic copy of seized digital material, a payment reference was found. In response to an independent statutory requisition, the payment intermediary verified the existence and timing of that reference. The correspondence between those two facts is a proved relationship. But that does not by itself establish who used the seized device, who was the ultimate beneficiary of the payment, or whether the transaction had a criminal purpose.”

Justice Karim asked, “What, then, does the State infer?”

“Only this: that there is a real relationship between the seized material and the verified payment record, sufficient to justify further lawful investigation.”

“What is the vyapti of that inference?”

The Solicitor General paused. “If a specific payment reference found in the digital copy is independently verified in the intermediary’s record by the same value, the same time-band, and the same transaction identifier, then the two records point to the same transaction—unless some rival cause, such as error or copying, is found.”

Justice Kaushal immediately asked, “And if the same payment intermediary serves a thousand unrelated customers?”

“Then the mere identity of the intermediary is not a hetu for common control.”

“If the time is the same?”

“Similarity of time alone is not enough either.”

“If the amount is the same?”

“Nor that by itself.”

Justice Sen said, “Then the State accepts that between a collection of indicators and a conclusion there must be a bridge of reasoning?”

“Yes.”

“And that bridge is not beyond judicial scrutiny?”

“No.”

Vidyanand rose. “My Lord, the difficulty begins precisely there. It is welcome if the investigating team preserves such fine distinctions in its own room. But when a witness is asked—‘You worked for this network, did you not?’—the question has already assumed the conclusion.”

Aditya’s eyes lifted.

The point mattered.

Justice Sen asked, “State?”

Before answering, the Solicitor General looked toward Aditya. On a small slip Aditya wrote four words and sent it forward through the officer—

“Separate review of questioning method.”

The Solicitor General said, “If any such assumption-laden question has been asked, the State will not defend it. The method of questioning can be reviewed.”

No look of victory came over Vidyanand's face. He merely said, "That is the answer we expected."

Justice Kaushal made a note.

A discomfort rose within Aditya. To assume that every officer in the team had observed his discipline of language was itself an inference. If a conclusion had entered someone's question in advance, its effect would have to be examined separately.

The web of inference could ensnare not only the opponent, but the investigator as well.



When the hearing adjourned, Aditya immediately sent instructions to the investigating team: the question lists used in witness examinations over the previous three weeks were to be separately reviewed. Particular attention was to be paid to questions in which words such as "network", "operator", "beneficiary", "control", "foreign entity", or "illegal payment" had appeared in the investigator's question before they appeared in the witness's answer.

By noon Malini had marked five questions.

"Three are ordinary questions of context," she said, "but in two, the conclusion may already have been assumed."

Aditya read the sheet.

The first had been put to a former accounts assistant—

"When did you first realise that this money was for an offshore gambling network?"

Aditya placed the paper on the desk.

"This question is defective."

Malini said, "The witness answered: 'I did not realise that. I was told it was a marketing service.'"

"Then the answer saves us, not the question."

The second question—

"Which payments did you enter under other names on Raghav Sethia's instructions?"

Aditya drew a long breath.

"This is worse."

"The witness remained silent, then said, 'I do not know Raghav personally.'"

"The structure of the question has already assumed his instructions."

Malini asked, "Do these two questions contaminate the entire statement?"

"Not necessarily. But the answers to those questions require separate evaluation. An answer volunteered independently, an answer given from memory without being shown records, an answer capable of verification by external material—those stand differently. An assent produced by an assumption-laden question stands differently."

"Will the Court be told?"

"If we rely upon those statements, certainly."

Malini was silent for a moment. "An error by our own team will become a weapon in the other side's hands."

"Conceal the error and it becomes a weapon. Identify it and it becomes method."

At the top of the paper he wrote—

"Defect in question = separate testing of the answer's independent value."

Malini read it softly.

"The rule of inference applies to witnesses too."

"More strictly to human beings."



The first witness was recalled that afternoon.

His name was Manoj Mahto. He was about thirty-four, originally from a small market town in a border district. For five years he had worked as an accounts assistant for various commercial establishments. During that period, through a consultancy firm, he had prepared certain entries for digital advertising payments—that much of his employment history had been verified. No guilt had yet been established against him.

When Manoj entered the room, his face was pale. His thumb and forefinger kept rubbing against each other's nails.

Aditya sent out the officer from his team who had conducted the first examination. This time only Aditya, Malini, an independent accounts officer, and the clerk remained.

Aditya began, "Let me make one thing clear. I will not question you on the assumption that there was a network, or that you were part of it. I will ask only about your work, the papers you saw, and your memory."

Manoj looked up.

"Last time—"

"Two questions last time were not proper. We are marking that on the record."

Surprise crossed Manoj's face. "You will write down that your own questions were wrong?"

"If they were wrong, yes."

The room fell silent.

Manoj said slowly, "Then ask."
Aditya put the first question. "For which establishments did you prepare accounting entries?"
Manoj gave four names. Three matched earlier employment records; the fourth had not yet been verified.
"This fourth establishment?"
"I found the name on paper. I do not know what its office was like."
"Who gave you the paper?"
Manoj hesitated.
"A man."
"Name?"
"He called himself Vikas."
"Full name?"
"I don't know."
"Would you recognise his face?"
Manoj's hands trembled again.
"Perhaps."
"Are you afraid?"
Manoj said at once, "No."
With that "no", his throat went dry.
Aditya gestured toward the water. "Being afraid is not a crime. I only want to understand whether fear is affecting your memory."
Manoj drank some water.
"They knew where my house was."
That was the first new statement.
Malini's pen stopped.
Aditya did not change his tone. "Who are 'they'?"
"I don't know."
"Then what do you mean by 'they'?"
Manoj closed his eyes. "Twice I received calls. I was told not to say too much. They named my son's school."
"The telephone number?"
"Not saved."
"Any message?"
"No."
"What date?"
Manoj gave an approximate week.
Aditya wrote: "Statement of fear; independent verification required."
He looked at Manoj. "This statement is important, but at present it is only your statement. We will verify it against call records, the school reference, and whatever other material is available."
A strange expression came into Manoj's eyes—gratitude or disappointment, it was hard to tell.
"You don't believe me?"
"Believing a person and assigning evidentiary value to a statement are two different things. I am listening to you. Verification is a form of respect for what you have said."
After a long while Manoj nodded.



The second witness was Rajat Pal.

In his first statement he had said that he had been paid additional money in exchange for classifying certain payments as "special services". The investigating team had noted this as a possible motive of greed, but Rajat later changed parts of his statement.

This time he entered the room looking meticulously composed. Clean clothes, neatly scented hair, eyes held straight.

"I want to correct my first statement," he said as soon as he came in.

"Which part?" Aditya asked.

"The additional money."

"What correction?"

"It was an incentive payment. It was misunderstood."

"Whose incentive?"

"The office's."

"Which office?"

Rajat gave a name.

The accounts officer wrote on a slip: the establishment under that name was registered, but Rajat's employment relationship with it had so far been only partly verified.

Aditya asked, "Why did you call it 'additional money' the first time?"

Rajat smiled faintly. "Because of the way the question was asked."

"Shall we read the question?"

The clerk opened the earlier statement.

The question had been: "Were you paid a separate amount for entering payments under different names?"

Rajat said, "Yes. That is why."

The same point rose again in Aditya's mind: the question had presupposed both "different names" and a "separate amount".

"Very well. Now, without the influence of that question—did you receive any payments in addition to your regular salary?"

"Yes."

"How many times?"

"Six or seven, I think."

Aditya stopped him at once. "Only as far as you remember."

"Five times for certain. Two more may have happened."

"Mode of payment?"

"Into my account."

"Are the records available?"

"They should be."

"What reason was stated?"

"Work incentive."

"Was there any oral instruction that these payments were being made in exchange for particular entries?"

Rajat fell silent.

"I don't remember now."

"In your first statement you said yes."

"I was afraid then."

"Afraid of whom?"

Rajat pressed his lips together.

"Of the investigation."

The air in the room changed at that answer.

Malini looked at Aditya.

Aditya asked only, "Were you threatened?"

"No."

"Pressured?"

"Too many questions."

"Sleep?"

"None."

"How many hours did the questioning last?"

"Seven."

Malini checked the record. "Five hours and forty-two minutes in total, including breaks."

Rajat said, "It felt like seven."

Aditya wrote: "Experienced duration versus recorded duration; statement of psychological pressure; external verification limited."

Then he asked, "There is a difference between your first statement and today's statement. I will not declare either one true at this stage. We will examine the bank records, payroll, incentive policy, and statements of colleagues."

For the first time Rajat looked slightly unsettled.

"Then what is the point of what I say today?"

"It has meaning. It is not final truth."

"And the first statement?"

"That too has meaning. It too is not final truth."

Disappointment showed on Rajat's face. Perhaps he had hoped the new statement would wash the old one away. But in the world of evidence, remorse, fear, or greed may alter the position of a statement; they cannot erase its history.



The third witness—Sudip Ghosh—was the most difficult.

On the first two occasions he had said almost nothing. He had admitted only that his telephone number was present in a group message thread. The investigators had found an incomplete copy of that thread in the seized digital material, but independent verification of the participants' actual identities remained incomplete.

This time Sudip arrived with an old diary in his hand.

"I want to give this voluntarily," he said.

"What is it?"

"Some dates."

"Dates of what?"

"Meetings."

Aditya did not touch the diary. He first asked the clerk to arrange gloves and a receipt form. Instructions were given that every page of the diary be imaged, the condition of the original described, and the time of receipt recorded.

Sudip grew restless.

"Why so much procedure? I am giving it voluntarily."

Aditya said, "Precisely because you are giving it voluntarily, the procedure matters. Tomorrow you may say this page was not there; we may say it was. The record protects both sides."

The diary was received.

Four dates had been marked. Two were close to travel records already known. For one date there was a public record placing Sudip in the city. The fourth date was doubtful.

Aditya asked, "What do these dates mean?"

Sudip's eyes filled.

"I did not understand at the time."

"What do you understand now?"

"That I was used."

"By whom?"

Sudip was silent.

"A name?"

Silence.

"Do you feel guilty?"

Sudip suddenly said, "Yes."

The word came out so forcefully that Malini started.

"Guilty about what?"

"I signed."

"On what document?"

"A consultancy service."

"Was the service real?"

"Some of it was. Some, perhaps, was not."

"Why 'perhaps'?"

"Because I did not see all the work myself."

"Then what you did not see cannot be called false by you."

Tears came into Sudip's eyes.

"But I feel—"

Aditya softened his voice. "Your sense of guilt is an important human fact. But guilt-feeling is not proof of a crime. An innocent person may regret that he was not careful. A guilty person may feel no regret at all. There is no fixed vyapti between emotion and legal conclusion."

Sudip began to weep.

For a while the room held only the sound of his broken breathing.

Malini had lowered her eyes.

Aditya pushed the water toward him. "If you wish, we can pause."

Sudip shook his head.

"No. Today I want to speak."

"Then tell us what you saw. Tell us when you came to understand what you understood. And what is inference, call it inference."

Sudip looked at the first date in the diary.

"On this day I went to a restaurant. There were three people. I heard one of them referred to only as 'R.S.' Whether that was Raghav Sethia or not—I do not know."

Malini's pen moved faster.

"His face?"

"I saw only part of it. To be honest, if you showed me photographs today, I might become confused."

Aditya said at once, "Then no photographic identification for now."

"Why?"

"Because you yourself say your memory is uncertain. If it later becomes necessary, a lawful identification procedure can be considered."

Sudip looked at the next date.

"That day there was a discussion about a payment schedule."

"You were present?"

"Yes."

"Do you remember any words?"

"‘Splitting’, ‘limit’, ‘consultancy’. But not the word ‘gambling’."

"‘Foreign’?"

"No."

"‘Raghav’?"

"I don't remember."

"Then do not add words you did not hear."

Wiping his eyes, Sudip said, "I am afraid I waited too long."

Aditya replied, "Delay can be a fact. It is not proof of a crime."



Three witnesses.

Three emotions.

Manoj—fear.

Rajat—the possibility of greed, and a complaint of pressure during investigation.

Sudip—guilt.

By evening Malini had prepared three separate sheets. At the top of each were the same four headings—

"Statement."

"Independent support."

"Rival possibility."

"Emotional effect."

Aditya studied the sheets.

"You kept emotion separate?"

"Yes. Earlier I was treating it as a direct indicator of credibility."

"And now?"

"Fear can accompany truth or falsehood. Greed may alter an earlier statement, but it does not by itself prove or disprove the existence of an extra payment. Guilt may arise from an actual role, or merely from regret at having been careless."

"Good."

Malini pointed to Manoj's sheet. "Verification of the calls will be difficult. No number."

"There is a time window. If the service-provider records can lawfully be obtained."

"And the reference to the school's name?"

"That gives the statement some specificity. If the alleged caller truly knew his son's school, a question of connection arises. But also check whether the school's name was available from public sources. Rival possibility."

Malini looked at Rajat's sheet. "Shall we seek the bank records?"

"Yes. But do not write the purpose as 'to prove greed'. Write: to verify the nature of the payments."

He lingered longer over Sudip's diary.

"The ink, the sequence of pages, contemporaneity of the dates?"

"We can send it for preliminary forensic examination."

"Keep the original secure. Minimum-intervention testing. And remember—finding an old diary does not prove that the writing is old. The paper may be old and the writing later."

Malini smiled. "The enemy of inference."

"No. The test of inference."



The next day the hearing resumed in the Supreme Court.

On behalf of the State, a short supplementary note was placed before Justice Sen—an internal review of witness questioning. The note identified two assumption-laden questions asked by the investigators and stated that, without independent support, no reliance would be placed on answers to those questions.

Vidyanand Mishra read the page.

For a few moments he said nothing.

Justice Kaushal asked, "Mr Mishra?"

Vidyanand said, “My Lady, I welcome this candour from the State. But the question is this—if the investigation accepts that two of its questions were defective, how do we know there are no others?”

The Solicitor General said, “That is precisely why a complete review of the questioning is continuing.”

Vidyanand turned the phrase back. “Continuing—that is, after the Court saw this?”

Justice Karim intervened. “The source of the correction is secondary if the correction is genuine. But the State has a duty to tell the Court the result.”

Justice Sen returned to the original question.

“We want a working structure for the boundary between suspicion, allegation, and evidence. State and petitioners, both of you attend to this. Suppose a person is afraid and says he was threatened. What is that?”

Solicitor General: “A statement.”

Vidyanand: “A possible basis for an allegation, if a specific person or event is identified.”

Justice Sen: “Evidence?”

Vidyanand: “The statement itself may be a form of testimony, but questions of credibility, admissibility, and corroboration remain.”

Solicitor General: “And if external verification is found, its weight may change.”

Justice Sen: “Very well. Suppose a person expresses guilt.”

Vidyanand: “An emotion.”

Solicitor General: “Not proof of his role.”

Justice Kaushal: “Suppose his diary bears a date.”

Vidyanand: “The authenticity of the writing, the time, the meaning—all are open to examination.”

Solicitor General: “If the date and an independent record of presence correspond, the inference of a relationship may become stronger.”

Justice Karim: “Suppose a payment also occurred on that date.”

Solicitor General: “An additional hetu.”

Vidyanand: “But causation does not prove itself.”

Justice Sen smiled faintly. “I think both sides are beginning to speak the same language.”

Vidyanand replied, “Speaking the same language need not mean reaching the same result, My Lord.”
“Nor should it.”

A light silence settled over the Bench.

Then Justice Sen said—

“The Court’s concern is this: an investigation may begin with suspicion; a specific allegation may give direction to the inquiry; evidence and testimony test it; inference proposes relationships among facts. But if these four are treated as synonyms for one another, the process becomes unjust. In every request the State must say at which level it stands.”

It was a judicial observation.

Not a final decision.

Aditya wrote it in his notebook exactly that way—

“Judicial observation—not final conclusion.”



Before the hearing ended, Vidyanand raised a sensitive point.

“My Lord, the identities of some witnesses in this matter are circulating in the media. If a frightened person is under public pressure, the independence of his statement may be affected.”

The Solicitor General said, “The State is prepared to conduct the necessary assessment.”

Justice Kaushal said, “Do so. If protection is required, assess it. But protection must not become a means of teaching a witness the State’s narrative.”

“Certainly.”

Vidyanand added, “Nor should there be contact by the petitioners’ side or anyone representing them.”

Justice Sen looked at him. “You give that assurance for your side?”

Vidyanand answered without hesitation, “Yes.”

“State?”

“Yes.”

“Then put it in the order.”

Aditya’s gaze went to Vidyanand. In the midst of professional conflict, here was a shared line—a witness belonged to neither side.

No statement belonged to the State.

No silence belonged to the petitioners.

The person came before either.



Outside the court, the journalists were waiting.

The first question was put to the Solicitor General: “Has the Court accepted that the State’s evidence is strong?”

He replied, “The Court has reached no such final conclusion.”

The second question went to Vidyanand: “Has the State’s investigation been shown to be weak?”

Vidyanand said, “The Court asked questions about process and limits. The result is a later matter.”

The third question came before Aditya—

“Three witnesses have broken down. Is the case proved now?”

Aditya stopped.

The words “broken down” stung him.

“Human beings break down,” he said. “Evidence does not. A witness’s fear, greed, or guilt is part of his human condition. We will respect that condition, but we will not substitute it for proof of culpability.”

The reporter asked again, “But do all three support the State’s story?”

“I do not accept the expression ‘the State’s story’. Each statement is under separate examination.”

“Then what is the headline?”

For a moment Aditya looked at him.

“If the fact is small, keep the headline small too.”

He walked on.

Malini followed and said softly, “They won’t run that sentence.”

“That is their decision.”

“Doesn’t it make you angry?”

“It does.”

“Then?”

“Anger is not a hetu.”



That night three new pieces of information reached the investigation headquarters.

First—in the week Manoj had approximately identified, two internet-based calls from unknown sources were recorded on his telephone, but the ultimate identity of the callers was unavailable. The name of the school was publicly available on the web.

Malini wrote—

“Partial support between statement of threat and existence of calls. Caller and purpose unproved. Specificity of school knowledge weakened by public availability.”

Second—five payments in addition to Rajat’s regular salary were verified in his account. Three were described as “work incentive”; two only as “other payment”. During the same period two other employees also received incentives, though in different amounts.

Malini wrote—

“The existence of additional payments is established. The claim that they were made in exchange for particular entries is unproved. The rival possibility of an ordinary incentive scheme has partial support.”

Third—two dates in Sudip’s diary corresponded with his travel records. On the third, location matching was unclear. On the fourth, there was a strong possibility that he had been in another city.

Malini looked at the fourth sheet for a long time.

“If the fourth date is wrong, does the value of the diary fall?”

Aditya said, “In what sense?”

“Memory?”

“A diary is not memory; it is writing. But if one date conflicts with an independent record, then find the reason—a writing error, an error in the travel record, a date filled in later, or an unreliable diary. One error does not destroy everything. One match does not prove everything.”

“The web of inference again.”

“Yes.”

Malini began drawing lines among the four sheets. Then she stopped.

“No.”

“What?”

“First, I’ll mark them by category.”

Beside each fact she made a mark—

Directly verified.

Statement.

Inference.

Rival possibility.

Unproved.

Only after that did she draw the lines.

Aditya watched.

A few months earlier, the young woman would have looked at a coloured map and announced a conclusion at once. Now she formed categories first, relationships afterward.

“Aditya ji.”

“Yes?”

“What is the hardest thing about inference?”

“To stand the conclusion you most want before the strongest rival possibility.”

“And if it falls?”

“Then be grateful.”

“Why?”

“One false conclusion less.”



The night deepened.

Aditya sat alone. The lights of the metropolis reflected against the glass outside. On the desk lay the sheets for the three witnesses. Across them, human fear, greed, remorse, self-protection, and memory were knotted into one another.

He remembered an old incident from Garh En Arikel.

When he was a child, a brass lota had disappeared from a house in the village. By evening suspicion had settled upon a poor herdsman. The reason: he had been seen near the veranda at noon. One child said, “He was looking toward the house.” Another said, “He had a bag in his hand.” A third said, “Yesterday in the market he needed money.”

Suspicion.

Allegation.

Three things that looked like hetus.

Some villagers started toward the herdsman’s house.

Aditya’s father had stopped them.

“Did you see the lota in his bag?”

“No.”

“Did you see him selling it?”

“No.”

“Was it found in his house?”

“No.”

“Then?”

Everyone fell silent.

The next morning the lota was found in the grass beside the well. A child from the household had carried it there while playing and then forgotten it.

That day, for the first time, Aditya had seen how, once suspicion finds the mouth of a crowd, it does not wait for evidence before becoming accusation.

He did not yet understand the name of Gangesha Upadhyaya then.

But the discipline of questioning was already present at home.

“Did you see it?”

“How much did you see?”

“Does what you are saying necessarily follow from what you saw?”

It seemed to him that Navya-Nyaya was not merely an object preserved in a hall of texts. Its shadow lived in the ordinary life of Mithila—in distrust of excessive conclusions, in the limits of terms, in clarity about relations.

Now those same questions had returned inside a courtroom of the Supreme Court.

Where does suspicion end?

Where does allegation begin?

Where does evidence acquire weight?

Where is inference valid?

And how far away is decision still?

Aditya opened his journal.

He wrote—

“The third restraint of inference: emotion may be a hetu, but not proof; a statement may be evidence, but not establishment; correspondence shows relation, not cause; where a rival possibility survives, language must leave it room.”

Beneath that he wrote—

“Do not turn a judicial observation into a judgment.”

And at the end—

“Suspicion gives the right to ask; allegation creates the need for an answer; evidence provides the ground for testing; inference proposes a relationship; establishment comes only when law has borne its full weight.”

He put down his pen.

A little later Malini came in. She had a fresh verification sheet in her hand.

“One more thing.”

“What?”

“The fourth date in Sudip’s diary—the travel record shows a different city, but the ticket had been cancelled. Whether the journey actually occurred is still unclear.”

Aditya took the sheet.

“Then what was a contradiction yesterday has become the possibility of a contradiction today.”

“Yes.”

“And tomorrow?”

“Perhaps a new fact.”

Aditya looked out of the window.

“That is why judgment must not be hurried.”

Malini smiled. “The soil of the village leaves its influence.”

“Not the soil. The memory of error.”

For a few moments they were both silent.

Outside, the metropolis continued through the night.

Inside the web of inference, one knot had opened and two new knots had formed.

The story was moving forward.

But the discipline of evidence determined its pace.

017 The Web of Inference — Chapter 4

In the first light of dawn, Malini Karna placed a sheet on Aditya Jha's file. Three lines stood at the top:

"Sudip's travel record: a ticket was purchased, but the journey is not established."

"Entry log for that date: presence at the office is doubtful, not certain."

"Email timestamp: an external instruction message was received two hours before the alleged meeting."

Aditya read the sheet and then looked at Malini.

"What conclusion have you written?"

"None."

"Why?"

"Because all three facts illuminate one another, but as yet no single meaning is necessary."

A faint smile touched Aditya's lips. "Inference no longer frightens you?"

"Not inference. What frightens me is the moment when inference forgets its limits and sits down in the chair of fact."

This was Malini's first answer since yesterday's hearing in which Aditya did not hear his own language echoed back at him. It was hers.

On a second sheet in the file, they had drawn a new table. On one side were verified things—timestamps, payment references, access logs, records found in the forensic image, and third-party responses lawfully obtained. On the other were only possible relations—alleged control, alleged joint operation, an alleged chain of instruction, an alleged beneficiary.

Between the two sides there was not a thick line, but a blank space.

Aditya said, "Keep that blank space alive. In the High Court today, the dispute is about that space."

Malini understood. Privilege would be argued again, but this time the question was not merely the nature of a record. The question was this: if separate pieces of evidence give rise to an inference of relationship, does that inference entitle an investigation to look behind the screen of privilege?

The answer was not simple.



The High Court was unusually quiet that day. Vidyanand Mishra sat at his place. Before him were three files—one asserting privilege, one containing a segregation schedule, and one a new report in which the investigating team, relying on external metadata, temporal correspondences and financial references, had proposed an inference of a wider relationship among certain records.

When Justice Arya took the bench, her first question was to counsel for the State—

"What, precisely, is the central request in your new report?"

Counsel for the State rose. "My Lady, some records are presently being kept apart from the principal investigating team because privilege has been claimed over them. But external records—dates, times of transmission, correspondence in financial entries, and third-party responses—suggest relationships that may make it necessary to test the actual purpose of those records."

Justice Arya asked at once, "Suggest, or establish?"

"Suggest."

"Then it is inference."

"Yes."

"And does inference extinguish privilege?"

Counsel paused for a moment. "Not by itself."

Vidyanand rose. "My Lady, that concession disposes of half the controversy. If confidential legal communications can be opened merely because of an external coincidence, privilege will be emptied of its real meaning."

Justice Arya stopped him. "Mr Mishra, 'merely because of an external coincidence' is also your conclusion. First let us see what the State actually places before us."

Vidyanand sat down.

Counsel for the State continued. "There are three kinds of relationship. First, temporal correspondence between a financial entry and the date of legal consultation. Second, correspondence between a third-party record associated with the name of an alleged operator and the creation time of a document kept in counsel's chambers. Third, external transmission details of an email chain in which some senders and recipients are said to be connected with an entity whose financial role is under investigation."

"Are said to be connected?" Justice Arya asked.

"The third-party records indicate a connection. Control, or a role in any offence, has not been established."

"Good. Continue."

"The State asks only that the independent review committee be permitted to examine the functional character of these records—whether they are legal advice, ordinary business activity, or activity that falls outside the scope of privilege."

Vidyanand rose again.

"My Lady, such an examination of purpose may be necessary, but the State's own inference must not prejudice the review committee's mind in advance. If the report begins by saying that a criminal financial relationship lies behind these records, the independence of the review will remain independent in name alone."

Justice Arya looked toward Aditya.

"Is the investigating officer present?"

"Yes, My Lady."

"Your report uses the phrase 'possible common control.' What is the hetu for that phrase?"

Aditya stood.

"My Lady, not one hetu. There are five independent groups of indicators. But I should make clear that 'common control' is not yet the sadhya; it is a hypothesis under examination."

"Why should control follow from five groups of indicators?"

"It need not follow necessarily."

A slight stir went through the courtroom.

Justice Arya said, "Then why did you use that phrase in your report?"

Aditya replied, "Because the investigative question arose in that direction. But if the Court permits, I would revise the language to 'points for examination relating to the possibility of common control.' The present material does not establish control."

For a moment Vidyanand's eyes rested on Aditya.

An officer seated behind the State's counsel shifted uneasily. He seemed to feel that Aditya was weakening the State's case. Aditya could read the expression on his face, but turned his gaze away.

In Navya-Nyaya, a hetu is defended not by inflating it, but by showing its boundary.

Justice Arya said, "Let that correction be taken on record. An inference can be acceptable only when both its foundation and its limits are explicit."



Vidyanand began his argument.

"My Lady, the foundation of privilege is not merely secrecy; it is trust in the judicial system. If a client must fear that later, on the basis of some external coincidence of time, his legal communications may be opened, independent legal advice becomes impossible."

Justice Arya asked, "And if a document is simply stored in a lawyer's office, but its purpose was not legal advice?"

"Then location alone does not make it privileged."

"If it was created in the name of legal advice but was, in substance, an ordinary financial instruction?"

"Then its actual character must be examined."

"And if examining that actual character requires reading the material?"

Vidyanand fell silent.

The question was simple. The answer was difficult.

"Then," he said slowly, "the right to read it should not belong to the principal investigating team, but to an independent review under the Court's control. And the review should go no further than is necessary for classification."

Justice Arya said, "Then the distance between the parties is not as great as it first appeared."

Vidyanand replied, "The distance lies in the process, My Lady. If the process is flawed, even a true conclusion may be contaminated."

Within himself, Aditya agreed with the sentence.

Counsel for the State said, "Our request too concerns process. A claim of privilege should not itself remain beyond verification. Let there be review, but let it be separate, limited and recorded."

Justice Arya wrote something. Then she asked—

"At this stage of inference, the Court will put three questions. First: are the external facts on which the inference rests verified? Second: what is the rival possibility to the relationship proposed from those facts? Third: does the process sought on the strength of that inference intrude upon the right no more than is minimally necessary?"

The courtroom was quiet again.

Aditya wrote all three questions in his notebook.

The language was not classical, but the structure was familiar—testing paksha, hetu, sadhya and vyapti; and alongside them, qualification, contradiction and limit.

Vidyanand said, “My Lady, by that test the State’s first group is incomplete. A financial entry falling on the same date as a consultation may be coincidence.”

Counsel for the State replied, “Accepted. That is why we do not treat it as an independent basis. We test it alongside the other records.”

“But the second record itself depends on the disputed relationship.”

“That is why third-party verification has been sought.”

“And until the answer comes?”

“Until then, no conclusion.”

Justice Arya nodded.

“Let that sentence remain on the record: ‘Until then, no conclusion.’”



In the middle of the hearing, something happened that shook Malini deeply.

Vidyanand’s junior handed him a sheet. It contained the external metadata of a document—the creation time, last modification time, author-name field, and file location. The investigating team had earlier treated these details as grounds for believing that the document might be linked to a legal consultation on a particular date.

Until yesterday, Malini had regarded that connection as strong.

Vidyanand said, “My Lady, the author-name field has been inherited automatically from an old template. Dozens of documents in this office appear under the same name, irrespective of who actually authored them.”

Counsel for the State looked at Malini.

Malini immediately opened her records. That point had not been investigated before.

Justice Arya asked, “Can the State verify this?”

Malini rose. “Not at present, My Lady. Until the original template file is examined, the evidentiary value of that author field cannot be stated with certainty.”

“Then?”

“Then one hetu in our earlier inference has weakened.”

A few people in the courtroom glanced at one another.

Malini sat down, but her palms had gone cold. For the first time in a month of work she had been required, publicly, to admit that an important link in her analysis might have been an artefact produced by the system itself.

Aditya passed a small slip of paper toward her.

On it he had written—

“Removing a weak hetu is not defeat.”

Malini read it and folded the slip.

Justice Arya said, “This is why the Court asks for the basis of an inference. A name written in a digital field is not proof of a human being’s actual authorship.”

Vidyanand wanted to say: that is why the entire report is unreliable. But he stopped himself. He too understood that the weakness of one link was not the death of every link. Professional courage sometimes lies in refusing to make an opponent’s error larger than it is.

He said, “I ask only that this particular basis be removed.”

The State agreed.

The Court directed that the basis be removed, for the present, from the list of matters relied upon; it could be reconsidered only after independent verification.

Aditya wrote on his page—

“Vyapti is not built from favourable instances alone.”



After midday the argument moved to another class of records. Here legal advice and business instructions were interwoven in the same email chain. Some lines plainly concerned litigation strategy; others dealt only with sums, dates and modes of transfer.

Vidyanand said, “Legal and non-legal portions may coexist in a single communication. The State cannot read the whole communication.”

Counsel for the State said, “But an independent review can separate the business portions.”

“What if a sentence derives its meaning from the legal context before and after it?”

“Then the review will seek the Court’s directions.”

Justice Arya asked, “Can the parties agree on a process under which the review committee records the classification, reason and minimum necessary context for each disputed portion, but does not disclose privileged portions to the principal investigating team?”

Vidyanand said, “If the schedule is sufficient for us to raise an objection.”

The State said, “Provided that objections do not become a means of suspending the investigation indefinitely.”

Justice Arya said, “Then the Court will prescribe time limits.”

At this point the shape of the dispute changed. Until then the parties had been colliding over the limits of right; now they were fashioning a process.

Aditya again remembered his father’s words—

“If the boundary is not settled, even a field becomes a quarrel.”

In law, a boundary line is not only a restraint. It can also be a road.



The evening order was brief, but exacting.

The Court held—

Verified external facts may furnish the initial basis of an inference, but they do not extinguish privilege by themselves.

A claim of privilege will not be established merely by the location of a record, a name, or the office of a sender; a limited review of actual purpose is permissible.

The review shall remain separate from the principal investigating team.

The reason for classifying each disputed portion shall be recorded.

Any basis whose truth remains incomplete or disputed shall not be presented as a conclusion.

Entry into protected material on the strength of an inference shall extend only as far as is minimally necessary.

And no judicial observation shall be understood as a final finding of guilt.

As the order was read out, Aditya felt no sense of victory. If anything, the burden of responsibility had increased. The Court had given the investigation a path, but on both sides of that path it had also raised hard embankments of restraint.

Malini said as they stepped outside, “One of my hetus collapsed today.”

Aditya said, “And did the inference survive?”

“Some of it.”

“Then what remains has a clearer value now.”

“Because the weak link was removed?”

“Yes. When false strength is stripped away, real strength becomes visible.”

Vidyanand was coming up behind them. He stopped beside the two of them for a moment.

“Mr Jha.”

“Yes?”

“Today you revised the language of your own report.”

“I cut what was excessive.”

“Not every officer does that.”

Aditya replied, “Nor does every lawyer keep an opponent’s error within its proper limits.”

Vidyanand smiled faintly. “Then perhaps the work of a court is to bring those two rare habits into the same room.”

He walked on.



That night Aditya did not remain in Delhi. He needed to travel east for a verification at dawn. The train would cross the Ganga late in the evening. The officers urged him to stay in the capital and take the morning flight, but Aditya chose the train.

In the darkness of night the train climbed slowly onto the bridge. Beyond the window, the Ganga stretched like a black band; here and there the small lights of fishermen trembled on the water.

Aditya rose and stood near the doorway. Cold air touched his face.

At the sight of the Ganga, old stories of Mithila returned to him. The name of Gangesha Upadhyaya, which in childhood had seemed merely the name of an ancient scholar, now felt like a living method.

Gangesha would not merely have asked, “What is true?”

He would perhaps first have asked—

About whom?

About which property?

On what basis?

Up to what limit?

What rival possibility remains?

And do the words actually say as much as we think they say?

The day’s hearing returned to Aditya’s mind. An author-name field on which Malini had relied might prove to be no more than residue from a template file. Had they leapt from that single name to actual authorship, then to actual

purpose, then to relationship, then to control, then to crime, a tiny digital field might have poisoned an entire judicial narrative.

The Ganga kept flowing below.

Water does not carry everything in its path along with it; some things it leaves behind, some it bears away, some it holds beneath the surface. Evidence was like that too. Not every sign reaches a conclusion. Some signs point only toward a direction; some perish midway; some are altered by contrary facts.

Aditya remembered a night in Garh En Arikel. He had gone with his father to the edge of a waterlogged field outside the village. The moon's reflection quivered in the water. The boy Aditya had said:

"The moon is in the water."

His father had laughed.

"What appears before you need not be the thing itself."

"Then what is it?"

"First tell me this—what did you see?"

"Light."

"That much. Then say light. Think about the moon afterward."

Standing at the train doorway, Aditya closed his eyes.

The first movement, perception, was complete. Now, in the movement of inference, the same old lesson was returning in another form—it is possible to travel from light to moon, but the relation between them requires a method of proof.

The dispute over privilege was no different. From the location of a record to its purpose, from purpose to relationship, from relationship to role—each step was separate. Skip even one step and the conclusion may become swift; it does not thereby become true.

The bridge was ending. The darkness of the Ganga was falling behind.

Aditya drew the small journal from his pocket and, in the tremor of the train, wrote—

"The fourth restraint of inference: an inferred relationship does not erase the limits of a right. Let the hetu be verified, let the rival possibility be recorded, and let intrusion be minimal."

Then a second line—

"Location is not privilege; a name is not authorship; time is not cause; correspondence is not control."

He thought for a while and added a third—

"To remove a weak hetu is not the defeat of an inference, but its purification."

The train continued eastward.

Behind the night lay dawn.

But Aditya knew that the web of inference had only begun. In the next stage, sealed material, the case diary and the weight of what could not be seen inside confidentiality would themselves become questions.

And a question, when rightly framed, is the most innocent thing that arrives before justice.

018 The Web of Inference — Chapter 5

The verification at dawn was briefer than expected, but its consequence was not small.

After crossing the Ganga and travelling east, Aditya Jha was permitted to inspect only three entries in a regional financial archive. The order was narrow; so was the question. Of those three entries, the transaction identifiers of two matched a table in the computational image seized in Delhi. The third entry carried the same amount and the same date, but a different identifier.

The moment Malini Karn heard this over the telephone, she said, “Then two links have been confirmed.”

Aditya replied, “The correspondence between two records has been confirmed. The nature of the link is still a question.”

“But an independent source—”

“An independent source increases the weight of the correspondence. It does not prove ownership. It does not prove control. Guilt is much farther away.”

The other end of the line fell silent.

“Write this down,” Aditya said. “Two entries—verified through an independent record. The third—only a similarity of amount and date. No conclusion.”

Malini said softly, “Yes.”

The archive officer placed a sealed copy before Aditya. The outer sheet said only that the copy contained the financial identity of a third party and was not to be circulated without the court’s permission.

Aditya took the envelope in his hand.

There had been a time when a seal had seemed to him like safety. Now he understood: a seal could be safety, and it could also be indolence. Some things were confidential because disclosure could place a human being in danger. Some things remained sealed merely because classifying them was difficult. The two were not the same.

In the vehicle returning to Delhi, he wrote on a small sheet—

“Confidentiality requires a reason. A seal is not a reason.”

And beneath it—

“The investigation diary shows the road; it is not itself the road’s end.”



By midday, four piles had formed before Malini Karn in the secure review room in Delhi.

First—material segregated, under the court’s direction, for a privilege review.

Second—the identities, residences, family information of witnesses, and facts whose disclosure might endanger their safety.

Third—the financial identities of third parties, account references, contact details, and limited personal information.

Fourth—the investigation diary.

The fourth pile was the thinnest, yet to Malini it felt the heaviest.

She opened one page. An officer had written on it: “Possible common operational centre.” Beneath that were three network names, two payment references, one telephone number, and a diagram of an inferred relationship.

Malini pushed the page toward Aditya.

“This matches my chronology.”

“What matches?”

“Three network locations, the two payment identifiers, and the presence of that telephone number.”

“And the ‘common operational centre?’”

Malini paused for a moment.

“That is the officer’s conclusion.”

“A conclusion, or an inference?”

“An inference.”

“Based on what?”

“On these five indications.”

“And the competing possibility?”

Malini looked at the page again. “It is not written.”

“Then this diary page is not proof. It is an investigator’s working hypothesis.”

“But if the court sees it?”

“The court will ask why it is being shown. Seeing it will not make it true.”

Malini closed the page slowly.

“I used to think that something written in an investigation diary was more trustworthy because it was an official State record.”

Aditya said, “An official paper is still a paper written by a human being. Its legal status may be different; its sentences do not become reality by themselves.”

Malini looked again at all four piles.

“Then facts, inferences, confidentiality, and privilege can all exist together inside one sealed packet?”

“That is why classification is necessary. One seal cannot turn all four into one thing.”

At that moment a member of the review committee, retired judicial officer Ramanikant Chaudhary, came in. He carried a list in his hand.

“Mr Jha, there is a problem.”

Aditya stood. “What?”

“Two passages mentioned in an earlier State report now fall within the privilege-disputed category. The original investigation team was not given the full passages, but it was given summaries. The question is whether any inference was built on those summaries.”

Malini opened her computer at once.

Aditya said, “First find out who received the summaries, when they received them, and which report changed afterward.”

Malini began striking the keys rapidly.

Chaudhary said, “And the matter may be mentioned before the court this evening. Vidyanand Mishra has filed a written objection.”

Aditya did not look at the clock.

“Then we will say what we know. What we do not know, we will say we do not know.”

Malini raised her head.

“What if the inference was influenced by the summary?”

“Then the inference will be built again. Preserving a conclusion that rests on a contaminated foundation is not investigation.”



The High Court courtroom remained full through the evening list. When Justice Arya took the bench, Vidyanand Mishra was already prepared. Before him lay a slim file, several marked pages, and a handwritten list.

The Solicitor General appeared for the State. Aditya sat behind in the designated place; Malini sat beside him, four words written on her page—

“Object. Source. Limit. Use.”

The matter was called.

Vidyanand rose.

“My Lady, after yesterday’s order we have received the review committee’s classification. My objection is not to the seal; it is to use. If material is withheld from us as confidential, but its summary or its effect becomes the foundation of the State’s inference and is then used to seek an adverse order from the court, the right to answer becomes merely nominal.”

The Solicitor General said, “The State does not ask that confidential material be treated as proof.”

Vidyanand replied at once, “Yet the investigation diary uses language of greater certainty than the public record supports.”

Justice Arya asked, “Which language?”

Vidyanand looked at a page. “For example: ‘strong indication of a common operational centre.’ The external records, however, presently show only certain corresponding computational and financial indications.”

Justice Arya looked toward the Solicitor General.

“State?”

The Solicitor General replied, “The basis of that wording is being examined. The investigation diary is an investigator’s working record; the State does not call every sentence in it an established fact.”

“Then the question is simple,” Justice Arya said. “If the court relies on any sealed material for an order, how much of it must be disclosed to the other side? And if the State itself does not rely on that material, why should it enter the court’s decision-making process?”

The courtroom fell silent.

Vidyanand said, “My Lady, some confidentiality may be legitimate—witness safety, private information belonging to third parties, the sensitive direction of an unfinished investigation. But confidentiality cannot become the secret foundation of an adverse conclusion.”

The Solicitor General said, “The State does not dispute that principle. But there may also be situations in which full disclosure would compromise a witness’s safety or defeat a verification yet to be completed.”

Justice Arya said, “Then not the whole thing, but a fair summary of it?”

“That may be possible,” the Solicitor General said.

Vidyanand replied, “As much of a summary as gives a genuine opportunity to answer.”

Justice Arya looked at Aditya.

“Is the investigating officer present?”

Aditya stood.

“Yes, My Lady.”

“The State’s diary says ‘strong indication of a common operational centre.’ Do you agree with that conclusion?”

Before answering, Aditya did not look at Malini. He looked inward at the order of his own reasoning—perception, reason, pervasion, competing possibility.

“Not in that form, My Lady.”

A faint stir ran through the courtroom.

The Solicitor General turned toward Aditya but said nothing.

Justice Arya asked, “Why?”

“Because the presently verified material shows certain similarities and two independent correspondences. On that foundation, a shared infrastructure or a coordinated process may be a possible inference. But to say ‘common operational centre’ requires proof of control, administrative authority, a chain of instructions, or an equivalent independent basis. That remains incomplete.”

“So the diary overstates the matter?”

“That line is stronger than the presently available foundation permits.”

Justice Arya wrote something down.

Vidyanand’s eyes lifted for a moment. There was no gleam of victory on his face; only attention.

Justice Arya asked again, “Which officer wrote this line?”

“A member of the investigation team. The diary formed part of a collective review, but the author of the line is identifiable.”

“Was any further step taken on the basis of it?”

Aditya said, “We are examining the record now. If any portion of a report is found to have been influenced by that line, it will be reassessed.”

Justice Arya looked toward the Solicitor General.

“Will the State be bound by that answer?”

The Solicitor General said clearly, “Yes, My Lady.”



The argument moved to the next question—the sealed financial copy.

The Solicitor General said, “In the independent verification conducted this morning, two transaction identifiers matched entries in the computational image. The original copy contains sensitive financial identifiers of a third party; for that reason the full copy has not been made public.”

Vidyanand asked, “Can we be given the date, the amount, that portion of the transaction identifier, and the nature of the source, so that we may respond to the asserted match?”

Counsel for the State turned back and asked Aditya something in a low voice.

Aditya replied, “It can be done if the third party’s identity is removed.”

The Solicitor General said, “The State is prepared to provide a redacted summary—the date, the amount, a partial identifier, and the method of verification, with the account holder’s private details removed.”

Justice Arya said, “Put this distinction on the record. The word ‘sealed’ is not an answer in itself. The question is: which part is confidential, why is it confidential, and which part is necessary to preserve the right to answer?”

Malini kept writing.

Then Vidyanand raised the next point.

“The investigation diary contains a summary of one witness’s statement. The original statement has been supplied to us, but the diary gives its meaning a broader reach.”

Justice Arya asked, “An example?”

Vidyanand read: “Original statement—‘Some instructions regarding the payment process used to reach me by telephone.’ Diary—‘The witness confirms a centralised system of instructions.’”

The courtroom fell silent again.

Something seemed to prick Malini from within. She had prepared the initial chronology based on that summary. She remembered that she had once created a column called “chain of instructions.” Later Aditya had told her that the witness’s actual words were “some instructions”; “chain” was her own addition.

Justice Arya asked, “State?”

The Solicitor General replied, “The original statement is primary. The diary’s interpretation should not be treated as independent proof.”

“Then the court will not read the diary and adopt language which the witness did not himself use.”

“Yes.”

Vidyanand said, “That is all we ask.”

Malini wrote on her page—

“The witness’s words ≠ the diarist’s meaning.”

Then she stopped.

Within that one sign lay the weight of several past weeks. Earlier she had thought of a fact as something fixed—once caught, it remained in one’s hand. Now she understood that a fact too had a journey. Device to image, image to extraction, extraction to list, list to summary, summary to report, report to court. At every step, language introduced a new risk.

The object might not have changed; its meaning could.



Justice Arya called Ramanikant Chaudhary, chair of the review committee.

“You have made four categories?”

“Yes, My Lady.”

“Privilege-disputed material, witness-safety material, private financial information of third parties, and the investigation diary?”

“Yes.”

“I want a fifth category.”

Chaudhary listened closely.

“Which one?”

“Material on which the State wishes to rely in seeking an adverse judicial order.”

The Solicitor General rose. “My Lady, what would that mean in practice?”

“It means that classification by confidentiality alone is not sufficient. Material must also be classified by use. If the State keeps an item only to guide the direction of the investigation, that is one thing. If it relies on that item to seek an adverse order from the court against a person or a party, that is another. In the second situation, the question arises whether the opposing side can be given an adequate summary, so far as possible.”

Vidyanand said, “I agree.”

The Solicitor General said, “The State will comply within practical limits.”

Justice Arya said sharply, “The court will determine the practical limits, not the State. But the State’s concerns about safety will be heard.”

In Aditya’s mind returned that night beside the Ganga—an inference of relationship does not erase the limits of authority.

Here it had another form—confidentiality does not erase the right to answer; the right to answer does not erase every legitimate reason for confidentiality.

It was easy to turn the two into enemies. Justice was difficult because it had to keep both within one structure.

Justice Arya began dictating the order.

First—the reason for confidentiality shall be recorded separately for each category of sealed material.

Second—an officer’s interpretation recorded in the investigation diary shall not be treated as independent evidence or as an established fact.

Third—where the State proposes to rely on confidential material in seeking an adverse judicial order, the review committee shall place before the court the possibility of providing the opposing side, as far as practicable, with an adequate summary.

Fourth—privilege-disputed material shall remain segregated from the original investigation team until its status is clarified by the court or by the designated review process.

Fifth—witness-safety information and private information of third parties shall not be unnecessarily exposed.

Sixth—if any interpretation originating in the investigation diary has entered a State report as though it were a fact, a separate list of such instances shall be prepared and corrections shall be filed within seven days.

At the end she said, “The court’s purpose is neither to tie the hands of the investigation nor to accept invisible conclusions in the name of confidentiality. Let the record speak only as far as it must.”

Malini raised her head and looked toward the bench.

“Let the record speak only as far as it must.”

That one sentence settled inside her.



As they came out of court, the media crowd was there again. But today the questions were sharper.

“Has the court held the State’s diary unreliable?”

“Is the sealed material being removed?”

“Has the evidence of the gambling network weakened?”

Malini first stepped back. Then she stopped.

One journalist recognised her. “You are from the computational analysis team. Tell us one thing—do the two financial entries match or not?”

Malini looked at Aditya. Aditya remained silent. The choice was hers.

Malini said, “What has been placed on the court record is the proper limit of what may be said. The State has stated that two entries were independently verified; beyond that, no conclusion of ownership, control, or criminality has yet been reached.”

The journalist asked again, “So is there a network or not?”

Malini replied, “At present, there is an investigation.”

“That answer is very dull.”

“Truth sometimes looks pale because it does not need adjectives.”

She walked on.

After they had gone some distance, Aditya said, “Today you did not merely understand the limits of fact; you kept faith with them.”

Malini smiled faintly. “I used to think truth was a short sentence—‘this happened’, ‘he did that’. Now I think truth is sometimes an entire paragraph, in which one has to write ‘for now’, ‘to this extent’, ‘according to this source’, and ‘this point is not confirmed’.”

Aditya said, “Navya Nyaya is not opposed to short sentences. It is opposed to incomplete relations.”

“And the seal?”

“A seal does not create a relationship.”

Malini nodded.



At the evening meeting, work began on the seven-day correction list.

Every sentence that had travelled from the investigation diary into a report was traced. Many were proper—they merely recorded process. Some were too strong. In one place “possible known intermediary” had become “intermediary” in the report. Elsewhere “possibility of a common network infrastructure” had become “shared infrastructure”. In a third place, “the witness says that instructions used to come” had become “centralised system of instructions”.

Malini marked the lines one by one.

The Joint Director’s face tightened.

“If this list reaches the other side, they will say the entire investigation rests on language.”

Aditya said, “Where the language outruns the foundation, cut it back. Where there is a foundation, it will remain.”

“But public opinion?”

“The cure for public opinion is not to preserve a defective sentence.”

The Joint Director remained silent for a while. Then he said, “All right. Mark everything.”

Malini looked at him. Only a few weeks earlier this same man had grown impatient at the thought that two defective lines might go outside. Now he himself was saying “everything.” Fear changed everyone; courage did too.

By eight at night, the first part of the correction list was ready.

Malini wrote its heading—

“From Investigation Diary to Report: Fact, Interpretation, and Correction.”

She wanted to write the word “error”, then stopped. Not every change was an error; some were only a more accurate classification. She left the heading as it was.

Aditya looked at the page.

“Good.”

Malini asked, “Mr Aditya—”

She stopped at once and smiled. “Mr Jha, may I ask you something?”

Aditya smiled too. “Go on.”

“What if, seven days from now, most of my inferences have changed?”

“Then the limits of what you wrote seven days earlier will remain on record. And new inferences will be built on new foundations.”

“Then what is stable?”

Aditya replied, “Method.”



Late into the night, the office began to empty. Malini sat alone in her room. Before her were the same four piles—privilege, safety, private financial information, diary. A new file had now been created for the fifth category: “Possible Judicial Reliance.”

She took out an old page—the first chronology she had made several weeks earlier. Across it ran thick lines, arrows, circles, and at many places decisive words: “shared”, “controlled”, “connected”.

She looked at each word.

So much confidence.

So few questions.

Beside that page now lay a new chronology. This one recorded status: directly observed, independently verified, under inference, competing possibility open, privilege-disputed, confidential, possible judicial reliance.

The first page was more beautiful.

The second was truer.

Malini did not tear up the old page. She placed it in the diary.

Because an error forgotten can return. An error remembered can become method.

In her private notes she wrote—

“The limits of fact can break at five points: while choosing the source, during extraction, while making the summary, while adding meaning, and while using it in court. A seal sanctifies no error at any of those five points.”

Then another line—

“An inference may be born in a diary; to become established, it must face examination in the world outside the diary.”

She put down her pen.

Outside, Delhi’s night was not still. Vehicles were moving, news was moving, legal teams were preparing their next submissions. Somewhere a new annexure was being added to the Supreme Court file. Somewhere Vidyanand Mishra was reading every word of this order with his junior. Somewhere the Home Ministry was preparing yet another note on the court’s confidence.

Malini only kept looking at the five files before her.

Those five files did not contain the whole truth of the network.

But neither did they contain the same false certainty as before.

And perhaps that was the investigation’s real progress.



At half past ten that night, when Aditya stepped outside, there was a short message from Vidyanand Mishra on his telephone—

“Certified copy of the order received. Direction received to add supplementary grounds in the special leave petition. Filing likely tomorrow morning.”

Aditya read the message and switched off the telephone.

The next contest was moving toward the steps of the Supreme Court.

But one line from today’s order still spoke inside him—

“Let the record speak only as far as it must.”

The web of inference was growing denser.

Now the test would begin of bringing every knot of it into the light.

019 The Web of Inference — Chapter 6

Dawn was spreading slowly across the Supreme Court precinct. Sunlight had not yet climbed fully over the red sandstone walls, yet in the stride of the lawyers the day had already begun. Someone was tying up a brief, someone scanning a list of mentions, someone murmuring a final sentence into a junior's ear.

When Vidyanand Mishra stepped out of his chamber, he was not carrying the original file of the Special Leave Petition but its supplementary grounds. The original petition had already been filed. Since then, two new orders had come from the High Court, an independent review team had been constituted, sealed material had been classified, limits had been drawn around the investigation diary and judicial reliance, and now a new question had surfaced: how far could an inference drawn from material withheld from the opposing side become the foundation of a judicial order?

The junior advocate, Neelabh Jha, asked, "Mishraji, should the heading say 'new Special Leave Petition' or 'supplementary grounds'?"

Without breaking stride, Vidyanand said, "Do not give a second birth to what already exists. The original petition is there. This is a supplementary statement of grounds."

"But the news will again call it a 'new petition'."

"The convenience of the news cannot alter the truth of our record."

He went down the stairs toward the Registry.

On the first page of the supplementary grounds, he had to place his signature. He read—

"At this stage, the petitioner seeks no final judicial conclusion in these proceedings on the truth or falsity of the underlying allegations. The challenge is confined to the question of what procedural safeguards must govern the use of inferences arising from confidential or privilege-disputed material."

He stopped.

Neelabh asked, "Would you like to change something?"

"After 'the truth or falsity of the underlying allegations,' add 'in these proceedings.' Otherwise the sentence becomes far too broad."

The junior took out his pen.

Vidyanand read again.

"And here it says, 'proves the operation of the network.' Who has proved it?"

Neelabh started. "That was a reference to the opposing side's record."

"A reference is one thing; our own assertion another. Write: 'the State relies upon it to infer the operation of the network.'"

"But the argument will look weaker."

For the first time Vidyanand looked at him. "A true sentence is not weak. If our argument cannot stand without a false adjective, it was weak already."

Neelabh fell silent.

The supplementary grounds were signed.

A few moments later the Registry accepted them. Technical defects were checked, the sequence of annexures was matched, a certified copy of the High Court order was attached, and the document's relation to the original Special Leave Petition was recorded.

The act of filing was entirely ordinary. No gavel sounded, no declaration was made. A receipt emerged, a number was entered, and the file moved on.

But outside, the microphones of the news channels were already louder.



Ananya Kashyap had been standing outside the court since half past eight. Over the past several weeks the case had become a permanent shadow in her news world. At first she had looked for a "decisive turn" in every foreign web address, every sealed cover, every arrival of a senior advocate. Now she understood that the word decisive might live for five minutes in the news and carry weight for years in a courtroom.

Even so, her editor called.

"Ananya, has it been filed?"

"The supplementary grounds have been filed."

"So, a new petition?"

"No. The original Special Leave Petition is already pending. These are supplementary grounds after the High Court's new order."

“The audience won’t understand so fine a distinction.”

“Then we must explain it.”

For a few moments there was silence at the other end.

“We need a headline: ‘Gambling-Network Case Back in Supreme Court.’ All right?”

Ananya said, “Not back. The case was already there.”

“Then: ‘Challenge in Supreme Court to State’s Secret Evidence?’”

Ananya closed her eyes.

“The challenge concerns the limits on the use of confidential material. Even the word ‘evidence’ needs care.”

The editor snapped, “Are you writing news or a judgment?”

“That is why I am writing news—so that I do not write the judgment.”

The call ended.

Ananya lowered the microphone. Fear stirred inside her: if she kept striking out every sharp headline, would the editor one day send another correspondent? In journalism, the price of patience with the truth is rarely written into a promotion letter.

At that moment Vidyanand Mishra emerged. The cameras swung toward him. Questions fell all at once—

“Is the State’s investigation being proved defective?”

“Is the confidential material unlawful?”

“Does the entire offshore gambling-network case rest on privilege?”

Vidyanand stopped.

“Supplementary grounds have been filed. Filing is not a decision. Our side raises a procedural objection. The Supreme Court has not yet reached any conclusion on the truth of the underlying allegations.”

A reporter shouted, “But is your side innocent?”

Vidyanand’s face hardened.

“Proceedings are not conducted by declarations of innocence or guilt outside the courtroom.”

Ananya wrote in her notebook—

“Filing ≠ decision.”

Below it—

“Procedural challenge ≠ refutation of the allegation.”

Between those two lines she felt the whole education of the past several weeks compressed.



At that same hour, on the other side of Delhi, Aditya Jha, Malini Karn, and the Joint Director stood before a long glass board. There were fifteen circles on it now. Once there had been five.

Not every circle represented a directly observed fact. Some were verified computational traces, some financial references, some correspondences in time, some witness statements, some corporate records, some public web records, and some merely testable hypotheses.

Malini had removed the colours from the circles. Colour can lend the mind more certainty than classification deserves. Beneath each circle now stood a word—

Directly observed.

Independently verified.

Inferential.

Contrary possibility open.

Unverified source.

Privilege-disputed.

Aditya said, “Now show me the first inference.”

Malini pointed to the first cluster.

“The structure of payment references is similar across three separate user groups. On two dates, the same intermediary identifier appears. In one verified account record, that intermediary is named. On that basis, the possibility of a shared payment arrangement becomes stronger.”

Aditya asked, “Sadhya—the proposition to be proved?”

“A shared payment arrangement.”

“Hetu—the reason?”

“The same intermediary identifier, temporal correspondence, and the verified account record.”

“Vyapti—the invariant relation?”

Malini paused.

“That is precisely the difficulty. Many unrelated businesses may use the same intermediary.”

“Then the hetu may be deviant—vyabhichari.”

“Yes.”

“Upadhi—the limiting condition?”

On the glass board Malini wrote—

“Common payment-service provider.”

Then another—

“Multiple unrelated users employing the same intermediary.”

A third—

“Time-zone conversion error.”

A faint brightness entered Aditya’s eyes. “Until all three are eliminated, no conclusion of common operation.”

The Joint Director said, “But can we at least speak of a shared payment arrangement?”

“That too needs a boundary. A shared intermediary and a shared arrangement are not the same thing.”

Beside the first inference Malini wrote—

“Status: probability strengthened, not proved.”

The second cluster concerned web records. For certain periods, the name-server histories of two mirror domains pointed to the same provider. An old computational image of an administrative page carried the same small emblem.

The Joint Director brightened. “That is a major basis for common control.”

Aditya asked, “Does using the same provider establish an invariant relation with common control?”

“No.”

“The same emblem?”

Malini said, “It could also be a copied template.”

“Then?”

“An inference of a shared structural source. Not shared ownership.”

Aditya drew a long line across the glass board.

“This line protects us. On this side lies the record. On that side—the story. If the story is true, the record will bring it across, slowly, to this side.”

A little impatiently, the Joint Director said, “But in court we will have to say something.”

Aditya did not smile.

“We will. What is proved, we will call proof. What is inference, we will call inference. What remains a contrary possibility, we will not conceal. Truth does not need to be enlarged in order to become impressive.”



At eleven, a message came from the Ministry of Law: the State had received a copy of the supplementary grounds. A draft reply was required within twenty-four hours.

The meeting reconvened. This time three files lay on the table—the High Court order, the original grounds of the Special Leave Petition, and the new supplementary grounds.

The State’s legal adviser read the first issue—

“The petitioner says that because certain material placed before the court has remained wholly undisclosed to the opposing side, the opportunity for a fair response is diminished.”

The Joint Director said, “We can say the court itself has seen it; that should be enough.”

Aditya said at once, “No.”

“Why?”

“Because the court’s seeing it and the court’s using it for an adverse conclusion are separate questions. The chap—” He stopped. There was no chapter in his world, only events. He recast the sentence. “The previous order has drawn a clear boundary. Confidentiality must have reasons, and if the material is to be relied upon adversely, the question of an adequate gist remains open.”

The legal adviser nodded. “Correct. The State cannot retreat behind the limits of its own order.”

The second ground was read—

“Judicial reliance upon inferences recorded in the investigation diary without external corroboration.”

Aditya said, “We will not contest that. The diary guides the investigation; it is not independent proof.”

Displeasure crossed the Joint Director’s face. “Then we are conceding half the opponent’s argument ourselves.”

“If half the argument is lawful, we will concede it. To be a party is not to become the adversary of truth.”

The room fell still.

The legal adviser smiled. “That sentence is not for the affidavit, but it is worth remembering.”

The third ground—

“The inference of common control drawn from the interrelationship of computational traces is excessively broad.”

Malini opened her notes.

“The State should not yet rely on the phrase ‘common control.’ We can say ‘testable indications of certain structural and financial relationships.’”

“Will language that cautious be effective in the Supreme Court?” an officer asked.

Malini looked at Aditya, then answered for herself—

"If effectiveness requires removing the boundary of truth, the effect is no longer legal."

Aditya said nothing.

For the first time Malini had stood at that boundary without his help.



After noon, the argument flared again in Ananya Kashyap's newsroom. The editor set three headlines before her—

"Supreme Court Tightens Noose on Offshore Gambling-Network Mystery."

"Petitioner Attacks State's Secret Evidence."

"New Supplementary Grounds in Special Leave Matter; Judicial Use of Confidential Material Questioned."

The editor tapped the third. "No one will stop to read that."

Ananya said, "They will stop for the first two, but the record says neither of them."

"News is not merely a transcript of the court."

"No. But neither is it invention."

The editor leaned back. "What has happened to you, Ananya? You used to be a very sharp reporter. Now every sentence comes with 'yet,' 'possible,' 'claim,' 'inference.'"

Something pierced her. The question was not merely professional. Many times in this case she had already felt ashamed of her old language. "Decisive proof," "network exposed," "major revelation"—phrases she once wrote without effort now showed her how often news outruns the pace of fact.

Softly she said, "Being sharp and running ahead are not the same thing."

The editor's face did not soften. "The audience does not move at the speed of truth."

"The court does."

A few moments of silence.

At last the editor circled the third headline.

"Fine. But simplify the copy inside."

Ananya sat down at her desk. Her hands were trembling slightly. It was a small victory, but it had a price—she might no longer remain the editor's favourite correspondent.

She began the report—

"In the pending Special Leave matter before the Supreme Court, the petitioner has filed supplementary grounds challenging the High Court's latest directions concerning confidentiality. The filing of supplementary grounds does not by itself amount to interim relief, factual acceptance, or a determination of guilt."

Then she stopped.

There was less sensation in that sentence.

More truth.



At four in the afternoon, a brief opportunity for mentioning arose in the Supreme Court. Vidyanand Mishra's junior sought early listing of the petition. Counsel appearing for the State said that the supplementary grounds had only now been received and requested time for a short response.

The Bench asked only this—

"Is there any immediate irreparable consequence?"

Vidyanand rose.

"My Lords, further investigative steps may be contemplated on the basis of the disputed material. In view of the questions of privilege and confidentiality, limited protection may become necessary."

The Bench asked, "At present, is any seizure, disclosure, or coercive step fixed under the new order?"

Vidyanand looked at his junior.

"No fixed date, My Lords."

"Then let the response come first. The Registry will consider early listing. No interim order today."

That was all.

The matter ended. The next case was called.

The moment they came outside, camera lights flashed.

"Has the Supreme Court refused to stop the State's investigation?"

"Has the petitioner's relief been rejected?"

"Has the Court accepted the gambling-network allegations?"

Vidyanand paused for a moment.

"The Court passed no interim order today. Neither was relief granted nor was the underlying dispute dismissed. Listing will follow after the response. That is all."

From a distance Ananya kept writing down the sentence. She knew that within five minutes some screen would run NO RELIEF in red and the audience would read it as DEFEAT.

On her broadcast she said—

"It would be wrong to read today's development as victory or defeat. The Bench merely did not consider an immediate interim order necessary at this stage; the substantive questions remain open."

The anchor asked, "Then what is the big story?"

Ananya was silent for a moment.

"The big story may be that the Supreme Court record moves more slowly than the news ticker."

The anchor wanted to smile, but Ananya did not.



At the evening meeting, Malini placed a new relationship before them.

"An old verified financial entry and a computational access log are separated by thirty-four minutes. Earlier we treated them as unrelated. But a third source—a user-support message—mentions activation of the payment during that interval."

The Joint Director said at once, "Then all three are part of the same process."

Malini replied, "Possibly. Not yet."

There was a faint satisfaction on Aditya's face.

"Contrary possibilities?"

"The timestamp on the message may not be local. The computational access log may reflect an automated process. The financial entry may record accounting time rather than actual settlement time."

"Test?"

"The original time zone, system configuration, the intermediary's settlement record, and the message headers."

"Then the status of the inference?"

"Relationship-indicating, not decisive."

On the glass board Aditya wrote—

"Temporal correspondence is not causal correspondence."

Then he asked, "But if four independent sources show the same sequence?"

Malini said, "Then the weight of the inference increases, if a common third cause can be excluded."

"This is where vyapti is born—not from repetition, but from eliminating deviation."

The Joint Director leaned back in his chair. "This method is very slow."

Aditya said, "A slow test is better than speed in the wrong direction."

Malini made a new column on the glass board—

"Testing the upadhi."

In that column she wrote the first three entries—

Common provider.

Automated process.

Time-zone difference.

The web on the glass board now looked more intricate than before. But intricacy was not its defect. The real world seldom moves in clean lines. Clean lines are what human beings draw afterward.



At eight that night, Vidyanand Mishra sat alone in his chamber. The juniors had left. The supplementary grounds had been filed, the matter mentioned, no immediate order obtained. The client's representative had called twice. The third time, he answered.

"Mishraji, the news says we got no relief. Is that a bad sign?"

"News can create a sign. The Court did not hear the substantive question today."

"But we should say publicly that the State's case is collapsing."

"On what basis?"

"You yourself say there is a question over confidential material."

"A procedural question concerning confidential material does not mean the State's entire investigation has collapsed."

The voice at the other end hardened. "Are you our lawyer, or are you speaking the State's language?"

Very slowly Vidyanand replied, "I am your lawyer. That is precisely why I will not say something false on your behalf."

"Another lawyer will say it."

"Let him."

The call ended.

For a few moments Vidyanand remained motionless. Professional dignity is often tested not in lofty courtroom arguments, but in small rooms of solitude like this.

He closed the file.

Beyond the window, Delhi glittered at night.



At half past nine, the first draft of the State's response reached the Home Ministry. Shiveshwar Prasad stopped over one sentence as he read—

"The available record proves common control of the offshore gambling consortium."

He picked up a red pen and struck out "proves."

Beneath it he wrote—

"Which record? Which relationship? Within what limit?"

The legal officer said, "Sir, this draft came from external counsel's office."

The Minister said, "Outside office or inside, it will go to court in the State's name."

He read the next sentence—

"Multiple independent indicators compel the conclusion of an integrated criminal structure."

Again the red pen moved.

"Compel?"

He added a question mark.

"An inference is not compelled while contrary possibilities remain alive."

The officer in the room looked at him in surprise.

"Sir, have you studied logic?"

Shiveshwar Prasad gave a tired laugh. "No. But for the past week I have been reading Aditya Jha's files."

On the last page of the draft he wrote—

"The State's response shall remain within these limits: what is verified shall be described as verified; what is inferential shall state both its basis and the contrary possibilities; what remains under examination shall not be presented as a conclusion."

Then he closed the file.

Such language was unusual in a political office.

But he had begun to understand: to preserve the court's trust, the State must sometimes reduce its own adjectives.



The next morning Ananya Kashyap's report was published. The headline was the third one after all—

"New Supplementary Grounds in Special Leave Matter; Judicial Use of Confidential Material Questioned."

Beside the editorial page, a smaller item appeared under a much sharper headline—"Gambling-Network Case at Decisive Turn in Supreme Court."

Ananya looked at it. At first envy rose in her—the sharper story would be read more. Then she looked back at her own report.

There were three lines in it—

"The filing of supplementary grounds is not judicial acceptance."

"No interim order was passed today."

"The Supreme Court has not yet reached any conclusion on ownership of the network or individual guilt."

All three lines reduced the glitter of the story.

All three preserved its credibility.

She folded the page.

Truth speaks slowly—the sentence no longer seemed philosophical to her. It felt like professional experience.



At the final meeting of the afternoon, Aditya looked again at the fifteen circles on the glass board. Some relationships had grown firmer. Some had broken. One web domain that had once seemed to indicate common control now turned out to be tied to a common infrastructure provider. A financial entry that had once seemed central moved two hours away after time-zone conversion. But another relationship—the sequence appearing across three independent sources—was becoming more coherent.

The Joint Director asked, "So are we moving forward or backward?"

Aditya said, "Both."

"What kind of answer is that?"

"Where a mistaken relationship has broken, we have gone backward. Where a corroborated relationship survives, we have gone forward. An investigation does not progress in a straight line."

Malini said, "I understand now. When building a web of inference, progress does not mean joining every thread. Cutting some threads is also progress."

In a corner of the glass board Aditya wrote—

"Without vyapti, inference is only an attractive resemblance."

Below it—

“Look for the upadhi.”

“Search for deviation.”

“Preserve the contrary possibility.”

“Then decide the weight of the conclusion.”

The glass board was full.

Outside, the news moved fast. The Supreme Court file moved at its own pace. The Ministry moved with its draft. The lawyers with their strategy.

But the question before Aditya was still simple—

The points drawing near one another: were they in fact marks of a single cause?

There was no answer yet.

But the question was cleaner than before.

Perhaps this is where inference truly begins.

By nightfall the news ticker had changed five times.

Only one new annexure had been added to the Supreme Court file.

Aditya kept looking at that difference.

Words spoken quickly can travel around the world.

For truth to move forward by a single line, many sources may have to undergo examination.

For the next hearing, both the State and the petitioners were enlarging their ranks of counsel again. Confidentiality, computational evidence, financial relationships, jurisdictional limits—separate specialists were being readied for each question.

The web of inference was now about to enter not merely the investigative frame, but the reasoning of the court.

020 The Web of Inference — Chapter 7

The morning at the Supreme Court felt unusually heavy today.

As Aditya Jha entered the precincts, he first saw the multitude of lawyers, then the piles of case files. Questions that, until the previous hearing, could have been compressed into two or three lines now had separate senior counsel, digital specialists, financial-record examiners, jurisdiction experts, and advisers on privilege present to argue them.

Malini Karn paused for a moment.

"So many people?"

Walking through the glass door, Aditya said, "Numbers do not increase the weight of evidence."

Malini replied softly, "But they can increase the number of questions."

"That is a good thing."

Malini looked at him.

Aditya said, "If our inference cannot survive questions, it needs to break."

After that sentence, both were silent for a while.

On the other side of the precinct stood Vidyanand Mishra with his team. Five separate files lay open before him - privilege, digital material, financial links, jurisdiction, and procedure. Alongside the original petition, the supplementary grounds had now become an elaborate legal architecture.

A junior counsel for the petitioners came to Vidyanand and said, "The principal client's representative wants us to say at the outset that the State's entire web of inference is unreliable."

Vidyanand did not lift his eyes from the page.

"Entire?"

"Yes."

"Have you read the entire thing?"

The junior fell silent.

Vidyanand looked at him now.

"It is not a lawyer's work to call false what is sound. Attack where the conclusion has run ahead of the evidence."

"But the strategy—"

"Strategy is not a substitute for truth."

The junior gathered his file and stepped back.



When the hearing began, the first senior counsel for the opposing side rose on the question of network infrastructure.

A large diagram stood before him. At its centre were separate circles: mirror sites, content-delivery services, network locations, domain registration, contact records, and payment routes.

"My Lords," he began, "the State reads several similarities as indications of common control. But similarity and common control are not the same thing."

One of the judges on the Bench asked, "A specific example?"

Counsel pointed to the first circle.

"Two websites use the same content-delivery infrastructure. The State calls that an indication of a connection between them. But millions of unrelated websites use the same service."

Counsel for the State made to rise, but the Bench stopped him with a hand.

The opposing counsel continued.

"Second - two domain registrations use the same privacy service. That too does not prove common control."

The third circle.

"Third - several pages share a similar visual layout. Similar design may result from a common developer, a purchased template, or imitation."

The fourth.

"Fourth - the wording of payment messages is similar. That may simply be the standard language of a common payment intermediary."

The fifth.

"Fifth - several timestamps are close. But the State does not tell us how often such temporal proximity may arise by chance among independent events."

Justice Arya asked in a quiet voice, "Your submission is that an alternative explanation is possible for each of these similarities?"

"Yes."

"And are you saying that none of the State's connections has been verified?"

The senior counsel paused for a moment.

"I am not saying that. Some external connections may well have been verified. My submission is only that the Court must not leap from an external connection to internal control."

Aditya's pen stopped in his hand.

He had said that same sentence to his own team many times.

Malini leaned towards him and whispered, "He is using our language."

Aditya said, "Language belongs to whoever stands closest to the truth."



The second senior counsel for the opposing side turned to the financial links.

He displayed a table. Several entries had passed through the same payment intermediary. In the State's file this had been described as an "indication of a shared financial route."

Counsel said, "A common route and a common destination are different things."

The Bench asked, "Is the State saying here that there was a common destination?"

Counsel for the State consulted his file.

"No, My Lords. The records presently verified show that some transactions passed through the same intermediary. Certain responses concerning the ultimate beneficiary are awaited."

The opposing counsel immediately asked, "Then how did a phrase such as 'financial unity of the network' come to be written?"

Counsel for the State turned a page.

A faint line appeared on Aditya's forehead.

That sentence was not in the investigation team's formulation, but in an old draft prepared for legal use. The Home Minister had struck it out the previous week. The opposing side, however, had obtained the earlier version.

Counsel for the State said, "That sentence was in a preliminary draft. It is not in the final affidavit."

"Why was it removed?"

The Bench's question was direct.

Counsel for the State looked towards Aditya.

Aditya's name was called.

He stood.

"Because the available record could not bear the weight of that sentence."

For a few moments the courtroom fell quiet.

Opposing counsel asked, "So the State accepts that its preliminary conclusion was exaggerated?"

Aditya replied, "One sentence in the preliminary draft went beyond the available material. It was removed from the final version. I do not support that sentence."

"Was that not an error by the State?"

"If the question concerns the language - yes, it was an error in the draft. If the question concerns the facts of the investigation - the facts are separate."

Justice Arya said, "Let that distinction remain on the record."

The court clerk began to write.

Something invisible loosened inside Malini.

Only a few weeks earlier she had thought that admitting an error in court would be weakness. Now she could see that, sometimes, denying an error was the greater weakness.



The third senior counsel rose on the digital material.

"One of the principal foundations of the State's inference is the common names, formats, and stored access information found in seized digital material. But there are three questions."

He raised his fingers one by one.

"First - does stored access information prove a successful login?"

The State: "No."

"Second - does the appearance of a website's name in a browser record prove control of that website?"

"No."

"Third - does the presence of a spreadsheet on a device prove its author or the truth of its contents?"

"Not by itself."

The opposing counsel smiled faintly.

"Then where does the State's web survive?"

This time Aditya sought permission to answer.

The Bench allowed him.

"The web is not made from one thing."

"Then from what?"

"Each item has its own limited meaning. Some connections have been verified through independent external responses. Some are still inferences. Some remain under examination. Our presentation rests on that classification."

Counsel asked, "You accept that the presence of a common name, by itself, does not prove control?"

"Yes."

"A common payment intermediary does not prove ownership?"

"Yes."

"A common content-delivery service does not prove a common operator?"

"Yes."

"Then what has been proved?"

Aditya paused.

"The question at this stage is not whether an 'entire network has been proved.' The question is what lawful inference arises when certain verified connections are read together, and what limited next step is justified in order to test that inference."

The senior counsel said, "That is a game of words."

Aditya's voice did not change.

"No. It is a distinction of evidentiary weight."

One of the judges leaned forward.

"Explain."

Aditya said, "One example. If three separate websites merely use the same content-delivery service, the inference of common control is weak because many alternative explanations exist. But if the verified administrator contact number for all three is the same, the verified signatory on the payment agreements is the same, and change requests for all three arrive through the same authenticated communication channel within a close span of time - then each connection carries a different weight. Even then common control is not finally proved, but the strength of the testable inference increases."

The judge asked, "And if the signatory turns out merely to be the service provider?"

"Then the weight of the inference decreases."

"If the telephone number belongs to a shared accounting office?"

"The weight decreases again."

"If the communication channel is an automated third-party service?"

"Then the *hetu* may be deviant—*vyabhichari*."

There was a slight movement on the Bench.

The opposing counsel said, "In other words, your entire inference is crowded with *upadhis*—limiting conditions."

Aditya replied, "That is precisely why we are looking for the *upadhi*."



Malini Karn's turn came after midday.

She was not giving witness testimony; the Court had permitted questions to be put to her as the designated analyst for technical clarification.

The opposing side's digital expert placed five alternative explanations before her.

"Similar layout - a template."

"Possible."

"Similar image archive - a common vendor."

"Possible."

"Similar code notation - copying."

"Possible."

"Similar customer-identification format - a shared service provider."

"Possible."

"Similar timestamps - the result of time-zone conversion."

"Possible."

With a faint air of triumph, the expert asked, "Then what remains in your relationship table?"

Malini looked at her page.

"Whatever survives those alternative explanations."

"And what survives?"

"The intermediary for two transactions was the same—this could have been an ordinary service. I treated that as a weak ground. But in the intermediary's independent response, two different customer numbers were found linked to the same verified administrator contact. That is a new relationship. Yet ownership of that administrator contact

remains disputed. Therefore I describe this not as common control, but as a verified relationship through a shared administrative contact.”

The expert asked, “Did you add this caution in wording later?”

Malini was silent for a moment.

“Some caution was added later.”

“Why?”

“Because the first draft said too much.”

A murmur rose in the courtroom.

Malini continued—

“On the first glass panel I had added some lines too quickly. Later, some lines were struck out. What remains is more reliable.”

Counsel for the opposing side asked, “Do you admit that your first analysis was erroneous?”

“The weighting of some relationships was erroneous.”

“Then why should the Court trust your present analysis?”

Malini did not look toward Aditya.

She looked directly at the Bench.

“Because in the present analysis I have not concealed my earlier error. The reason, source, and time for every changed relationship are recorded. If another error is found in the present analysis, that too will be corrected.”

Justice Arya asked, “For you, how does the reliability of an inference increase?”

Malini said softly, “When it confronts a contrary possibility and survives it.”

The Bench remained silent.

In that silence, Malini felt for the first time that her fear was diminishing.

So many questions were not making her smaller.

They were clarifying the limits of her work.



During the midday recess, a crowd of reporters gathered outside the Court.

One broadcaster shouted, “Has the State’s digital case collapsed?”

Another asked, “Have all the alleged links in the offshore gambling network been proved false?”

A third: “Has the State been cornered by an army of expensive lawyers?”

Aditya said nothing.

The State spokesperson gave a brief answer -

“The Court has questioned the basis and limits of certain inferences. The hearing continues. There is no final conclusion.”

One reporter said in disappointment, “That will not make news.”

Ananya Kashyap was standing behind them.

She wrote in her notebook -

“More questions = case collapsed. That equation is false.”

Then another line -

“The State conceded some weak links; testing of the remaining links continues.”

She thought for a few moments.

Then wrote the headline -

“Inference Under Severe Scrutiny: Supreme Court Debates Alternative Explanations.”

A correspondent standing beside her said, “Such a dull headline?”

Ananya smiled lightly.

“Not dull. Limited.”

“Will people read it?”

“Those who do will not be reading a falsehood.”



At the same time, another kind of pressure was rising in Shiveshwar Prasad’s office at the Home Ministry.

A political adviser closed a file and said, “Sir, the opposition is saying that the State is retreating before expensive counsel. We should issue a public statement this evening. A strong one.”

The Minister asked, “What does strong mean?”

“Say that the State will uproot the offshore gambling network.”

“Has the root been proved?”

The adviser fell silent.

“Then?”

“Political language is different.”

Shiveshwar Prasad leaned back in his chair.

"If political language runs ahead of the evidence while the matter is before the Court, the State's credibility will fall."

"But the public needs reassurance."

"Reassure them that the investigation will proceed according to law. Action will follow where guilt is proved. We will not do the Court's work by declaring proved what has not yet been proved."

The adviser said, "That sounds very soft."

The Minister replied quietly, "Sometimes soft words make an institution harder to bend."

He looked towards the Secretary.

"No declaration of victory this evening. No names. No accusation. Only process."

The Secretary nodded.

The political adviser rose in disappointment and left.

When the door closed, silence settled over the Minister's office.

Shiveshwar Prasad read the Court's observation lying before him - the exaggerated sentence from the State's preliminary draft had now been formally marked on the record.

He understood that there was no easy road to earning trust.

Trust is often built in precisely this way: power learns to stop its own sentence at the boundary of the evidence.



The final part of the hearing turned to jurisdictional limits.

The fourth senior counsel for the opposing side rose.

"On the basis of inference, the State is extending its reach towards distant entities, service providers, account intermediaries, and foreign records. If the foundational inference is still under examination, what is the limit on the expansion of the investigation?"

The Bench looked towards counsel for the State.

State counsel said, "Every further step rests on a separate legal basis - summons, statutory notice, judicial authorisation, or voluntary production of records."

Opposing counsel asked, "But is inference not what prompts the selection of the question?"

"It may be."

"Then a weak inference can give birth to a wide investigation."

Justice Arya called Aditya again.

"What is the limiting principle in your method?"

Aditya said, "Inference can generate a question. It cannot generate authority."

The Bench: "And authority?"

"Comes from law."

"So if your inference suggests that a particular entity may be connected, you cannot simply demand all of its records?"

"No. The scope of the question and the legal power to compel an answer are separate."

"Do all your summons satisfy that standard?"

Aditya paused.

"Some have been challenged by the opposing side. We will place the specific legal basis for each before the Court."

Opposing counsel immediately said, "Then let the State produce, by the next date, a complete schedule of summons."

State counsel rose to object - "Some aspects involve investigative confidentiality-"

The Bench raised a hand.

"Not the entire material. A classified schedule. For each summons: the legal basis, the scope of material sought, the related inference, and the verified grounds for that inference. Sensitive portions may remain confidential where necessary."

Aditya wrote it down.

Justice Arya continued -

"And as to digital material - make clear the relationship among original acquisition, forensic image, hash verification, chain of custody, and the analytical copy."

Malini looked at Aditya.

This was the direction of the next hearing.

The opposing side's vast legal team had pulled at every thread of the inference.

And the Court was now telling the State: if the thread survives, show us the knot.



That evening, the glass board in the investigation room filled again.

This time Malini did not draw circles.

She made four columns -

"Fact."

"Inference."

"Alternative explanation."

"Next lawful test."

Aditya added a fifth column -

"Legal basis."

Malini said, "Earlier we looked only at the connection. Now we have to look at the authority alongside it."

"Yes."

"Suppose the inference is sound, but the means chosen to test it is improper?"

"Then the means must change."

"And if a proper means produces an answer against the inference?"

"Then the inference must change."

Malini gave a faint laugh.

"What survives in this method?"

Aditya said, "Whatever can survive verification."

Just then the Joint Director came in.

"There is very little time before the next date. The summons schedule, image details, hash chain, custody register - everything has to be prepared."

Aditya said, "First divide the work."

"We will be short of people."

"Then the night will be longer."

The Joint Director laughed wearily.

"On the other side there are five senior counsel, ten experts, dozens of juniors."

Aditya looked at the glass board.

"We need only as many people as can read the record correctly."



At eleven that night only three people remained in the room - Aditya, Malini, and Rameshwar, the records custodian.

A copy of an old summons lay before them.

Malini read -

"All related entities, subsidiary entities, associated persons, representatives, advisers, service providers, and others-"

She stopped.

"This is far too broad."

Aditya said, "The objection to this may be justified."

Rameshwar asked, "Then what do we do?"

"Look at the original legal basis. Write down what was actually needed. If the wording is broader than necessity, do not defend the excess."

In the corner of the page Malini wrote -

"Scope requires revision."

The second summons was narrower. The basis of the third was clear. In the fourth, one date had been entered incorrectly, though the attached order carried the correct date.

Malini held her head in her hands.

"The opposing side will raise all of this."

"Let them."

"How are you so calm?"

Aditya looked at the page for a while.

"I am not calm."

Malini looked up in surprise.

"You are afraid?"

"Yes."

"Of what?"

"That I may begin defending something improper merely because it sits in my file."

Rameshwar said softly, "Then that is a good fear."

Aditya looked at him.

"Perhaps."



After midnight, a message arrived from the Ministry.

The Home Minister's office had sent a draft of the State's public statement -

"The matter is sub judice. The State remains committed to an impartial investigation, due process of law, confidentiality, privilege, and full respect for judicial orders. No final conclusion regarding the guilt of any person or entity should be assumed before the competent judicial process is complete."

Malini read it and said, "There is nothing sensational in this statement."

Aditya replied, "That is precisely why it is useful."

Outside, the Delhi night had deepened.

Five columns shone on the glass board.

Fact.

Inference.

Alternative explanation.

Next lawful test.

Legal basis.

The vast and expensive legal team on the other side had opened many weak knots in the State's inference today.

Some threads had snapped.

Some remained.

Some had become clear for the first time.

Aditya felt that this was not defeat.

Perhaps the true shape of a web appears only when it is pulled.

At the next hearing, he would need fewer words and more records.

The legal basis of each summons.

The integrity of the forensic image.

The continuity of the hash chain.

Every signature in the custody register.

The next test of inference would not be by brilliance of argument, but by an ordered record.

And that night, at nearly one o'clock, Aditya opened the first file.

On its cover was written -

"Summons: Legal Basis and Scope."

He lifted his pen.

The answer to the next question had begun.

021 The Web of Inference — Chapter 8

The first light of dawn was settling on the glass facades of Delhi, but in Aditya Jha's room the night had not yet ended. Five files lay open on the long wooden table. Between them, on a white sheet of paper, four lines had been written—

The legal basis of the summons.

The integrity of the forensic image.

The continuity of the hash chain.

Every signature in the chain-of-custody register.

Yesterday the Court had asked for no more than this. No narrative. No fear. No weighty words. Only sequence.

With the tip of his pen Aditya drew a short line beneath the first entry.

"Whatever an inference is to stand upon," he said inwardly, "must first be made to show its own feet."

There was a soft knock at the door. Malini Karn came in. Sleeplessness had left shadows beneath her eyes, but the register in her hand was orderly.

"I have cross-checked everything again," she said. "The original acquisition register, the imaging record, hash values, transfer register, seal numbers—everything."

Aditya looked at her.

"Be careful with the word 'everything.'"

Malini stopped at once.

"Everything in the records available to me."

"This time, correct."

Malini did not smile. Over the past several weeks she had learnt that a correction of this kind mattered more than praise.

"There is one thing," she said quietly.

Aditya put down his pen.

"Tell me."

"In the custody register for the third storage medium, the transfer time is recorded as 18:42. But the acquisition device's automated log shows the forensic image beginning at 18:39."

For a few moments the room was silent.

"The difference?"

"Three minutes."

"The reason?"

"Not established yet."

"Possibilities?"

"The register may have been signed at the formal time of transfer while physical possession occurred a little earlier. Or there may be a difference between the device clock and the office clock. But neither explanation has yet been proved."

Aditya wrote a fifth line on the paper—

Three minutes: cause uncertain.

Malini said, "The other side will certainly raise this."

"They should be allowed to."

"Should we state it ourselves first?"

"Yes."

"Won't that weaken our case?"

Aditya held her in a steady gaze.

"If our case can survive only by hiding three minutes, it was weak already."

Malini fell silent.

"The rule of inference," Aditya said, "does not apply only to what helps us. What may contradict our inference must also be given its place. A pervasion is trustworthy only to the extent that the possibility of deviation has been tested."

Malini copied the fifth line into her own notes.

Outside, the light had strengthened. Inside, the shadows cast by the files were growing shorter.



The forenoon meeting was held in a narrow conference room in the Ministry of Law. There were no pictures on the walls, only the national emblem and a clock. Its ticking was so distinct that even the turning of paper seemed measurable between beats.

Two law officers had come from the Attorney General's office. A representative from the Solicitor General's office sat with a separate file. The Joint Secretary from the Home Ministry, an officer from the tax department, members of the cyber-investigation team, and Aditya's own team were present.

The senior law officer from the Attorney General's office asked the first question.

"Do all the summons rest on the same kind of legal foundation?"

"No," Aditya replied.

"Then classify them."

Aditya opened the table he had placed before him.

"Category one: limited records sought to verify a complaint. Category two: information for a fixed period and specified accounts, sought on the basis of payment references already independently verified. Category three: telecom or service records sought to confirm independently indications found in the digital material. Category four: requests kept subject to prior judicial permission or specific directions."

"Which summons were broad?"

Aditya separated one page from the file.

"The wording of two early summons was broader than necessary. They were later narrowed. Both the original and the amended versions are on record."

The Joint Secretary raised his eyebrows slightly.

"You are putting that in yourself?"

"Yes."

"Why?"

"Because the Court has asked whether the exercise of power was limited. If the original wording was broad, failing to say so would make the answer itself unreliable."

The law officer from the Attorney General's office marked the page.

"Good. Second—the forensic image."

Malini moved forward.

She did not begin with a single conclusion.

"The seized storage medium was not analysed directly," she said. "A bit-stream image was created through a write-blocking device. The hash value of the original medium at acquisition was recorded. The image hash was compared with it. Working analysis was carried out on a verified copy. Every subsequent copy has its own hash and usage log."

An officer asked, "What does a matching hash establish?"

"It establishes whether the compared digital material is identical at the bit level," Malini replied. "It does not establish that the statements inside it are true. Nor does it by itself establish who created the material."

Without turning towards her, Aditya knew this was no longer the Malini who, in the first week, had thought of a hash as 'the seal of truth.'

The representative from the Solicitor General's office asked, "And if the copy is identical but the original seizure itself is questioned?"

"Then the integrity of the image is only one part of the answer," Aditya said. "The legal basis of seizure, location, witnesses, inventory, seal, transfer and custody register remain separate questions."

"In other words, an accurate hash cannot make an unlawful seizure lawful?"

"No."

"And a procedural defect does not automatically make every item of content false?"

"Nor that. The nature of the defect, its effect, whether it can be cured, and its legal consequence are separate matters for examination."

The meeting moved slowly, yet Aditya felt that the real strength for the next hearing was being made precisely in that slowness.

Not through declarations by either side. Through the clean order of questions.



By noon, the first contradiction had become clear.

One summons bore a date of the seventh. The acknowledgment of service was dated the eighth. Yet the service provider's automated system showed the request entered at 11:58 p.m. on the seventh. The other side had already described this as "receipt before service."

Malini said, "The automated entry may be an intake record, while the formal acknowledgment of service may have been generated the next day."

"May be?" Aditya asked.

"Yes."

"Then for now it is an inference."

"I have asked the service provider for a certified description of its process."

"Has the reply come?"

"No."

Aditya wrote in the remarks column of the table—

Date difference between intake entry and formal acknowledgment of service. Independent confirmation of the cause awaited.

The Joint Secretary said, "A sentence like that will become a weapon in the other side's hands."

The law officer from the Attorney General's office looked at him.

"And if it is in the record and we do not write it, the weapon will become a sword."

For a few moments the room was silent.

Aditya's face revealed nothing. But inside him an old scene from Garh En Arikel returned.

Once, while paddy was being weighed, the pointer of the scale had not rested at zero. His father had already weighed half a sack. The customer had said, "Leave it. It can't be more than a couple of seers." His father emptied the whole sack again. He set the pointer straight. Then he began the weighing anew.

"It is not about two seers of paddy," his father had said. "It is about trust in the measure."

Aditya returned to the present.

"Whether the difference is three minutes or one day," he said, "write exactly as much difference as there is. No less. No more."



The next day the High Court courtroom was full. Since the previous hearing, the media had spun every manner of interpretation. For some, the State's investigation had already "collapsed"; for others, "decisive evidence" had been found. Inside the courtroom, both exaggerations had to be left outside the door.

Justice Arya took the bench.

This time, four senior advocates stood with Vidyanand Mishra, each carrying a file on a different issue. Behind the State's counsel sat Aditya, Malini, and the other officers.

Vidyanand rose first.

"My Lady, we welcome the table the State has filed in compliance with the previous order. But the table itself opens several questions."

"The purpose is also to open questions," Justice Arya said.

Vidyanand inclined his head. "Quite. First—the scope of the summons. Second—the timing discrepancy in the custody register. Third—the sequence of image creation. Fourth—the inferences drawn from alleged connections among certain materials."

Counsel for the State rose.

"We will answer each point."

"In order," Justice Arya said. "First, the summons."

Counsel for the State placed Aditya's table before the Court. The original broad wording, the later narrowing, the period of records sought, purpose, legal basis—each was set out in a separate row.

Vidyanand asked, "Does the State accept that two of the early summons were broad?"

"The State accepts that their language was later made more limited," counsel replied. "That does not by itself establish that every earlier request was unlawful; but the question of scope has been placed clearly on record."

Justice Arya looked towards Aditya.

"When was this correction made?"

Aditya stood.

"After the first review meeting, My Lady. The boundary between investigative necessity and the privacy rights of others was made more explicit."

"Was material received under the broad wording used?"

Before answering, Aditya looked at the file.

"Material falling outside the amended scope was segregated. Its usage record shows zero access. One entry is still under verification, however; on that I will not make a final statement."

A moment of silence settled over the courtroom.

"Good," Justice Arya said. "'I do not know yet' is an acceptable answer in court, if it is true."

Vidyanand turned a page.

"Now the three minutes."

Malini sat a little straighter.

Counsel for the State said without prompting, “The transfer time in the custody register is 18:42. The acquisition device’s automated log shows image creation beginning at 18:39. The State has not yet independently confirmed the reason for the difference.”

Vidyanand asked, “So the chain of custody was broken?”

Counsel for the State began to rise, but Justice Arya raised a hand.

“No. First make the language of the question exact. There is a three-minute ambiguity. ‘The chain was broken’ is a conclusion. What is the reason that takes you to that conclusion?”

Vidyanand smiled faintly.

“That, precisely, is my submission, My Lady—that when the State draws connections, it too must be held to this test.”

“Certainly,” Justice Arya said. “And so must your conclusion.”

Inside Aditya, something settled into place like the old discipline of Navya Nyaya.

Paksha—the three-minute difference.

Hetu—the differing times in the register and the device log.

Sadhya—the unreliability of the chain of custody?

Where was the vyapti?

Did every difference in time prove a broken chain?

No.

Was every difference in time meaningless?

No to that as well.

Then it had to be tested.

This was the true discipline of inference.



The next question concerned the forensic image.

An affidavit from the other side’s digital expert stated that the naming convention of one working copy differed from that of the original image. On that basis, it suggested that an “uncontrolled copy” might have been created in between.

Malini was not called to the witness stand; she was the investigation team’s technical digital analyst. Counsel for the State answered through the record.

“The name is different. The hash is the same.”

A senior advocate assisting Vidyanand asked, “Why is the name different?”

“Because the working copy was named according to the internal naming protocol when it was created.”

“Was that protocol in writing?”

“Yes.”

“Beforehand?”

“In the standard operating procedure issued before the acquisition.”

“And the hash of the working copy?”

Counsel for the State read from the record.

“It matches the verified hash of the original image.”

Justice Arya asked, “What does that match prove?”

“Only identical bit-level content, My Lady. Not ownership, not authorship, not the truth of the statements within it.”

“Good.”

Sitting behind them, Malini drew a long breath. She had learnt that sentence many times over the past month; today its limited meaning was being spoken in court by the State itself.

Then counsel for the other side lifted a page. “My Lady, why does one entry appear twice in the hash chain?”

Counsel for the State paused briefly.

Aditya opened the file. The question had been expected.

“A re-verification,” counsel said. “The first comparison immediately after acquisition. The second before placement in sealed storage. Both values are identical.”

“So the two entries are not an error?”

“No. The reason is recorded in the register.”

Counsel for the other side sat down.

Disappointment showed on several faces in the gallery. Perhaps they had wanted an explosion. The Court was looking not for explosions, but for explanations.



After lunch, the questions reached the most difficult ground—inference.

One line in the State's table read:

"Occurrence within the same period, common payment references, similarity of support phrasing, and links to the same digital tools increase the possibility of coordinated operation."

Vidyanand rose.

"My Lady, this line takes four distinct facts and drives them towards one conclusion. My question is whether independent alternative causes have been tested for each of those facts."

Justice Arya looked towards the State.

"Some have been tested; some are still under examination," counsel for the State said.

"Details?"

Following Aditya's note, the State answered.

A common payment reference could also arise from a shared intermediary.

Similarity in support phrasing could arise from a common third-party service manual.

The same digital tool could result from a multi-client service arrangement.

Similarity in time did not, by itself, establish similarity of cause.

Vidyanand said, "Then what remains as the basis of the State's inference of 'coordinated operation'?"

"Not a single indication," counsel for the State replied. "The mutual consistency of several indications, each of which is being independently verified in sequence. The State does not say that coordinated operation has been proved. It says the available material gives sufficient reason for a limited investigation to continue."

Justice Arya wrote for some time.

Then she said, "That distinction matters. The threshold for beginning or continuing an investigation is not the same as the standard of proof for conviction."

"I agree, My Lady," Vidyanand replied, "provided that a lower-order reason is not transformed in public language into a higher-order proof."

"The Court has already made itself clear on that."

Aditya looked towards Vidyanand. The two sides stood opposed, yet in moments like this he felt that method occupied a third seat between them—one to which both were answerable.



In the final part of the hearing, Justice Arya examined the custody register herself.

Signature by signature.

Time by time.

Seal number by seal number.

In one place the ink was faint. In another a name was illegible. Elsewhere lay the three-minute difference.

"This register is not perfect," Justice Arya said.

Counsel for the State rose.

"My Lady—"

"Sit down. I am saying it is not perfect. But imperfection and unreliability are not the same thing. The Court will examine the effect of each defect."

She looked towards Vidyanand.

"Nor may you call every defect a break in the chain."

Then back towards the State.

"And the State may not dismiss every defect as clerical."

A sentence formed with absolute clarity in Aditya's mind—

The naming of an error is itself part of the evidence.

Justice Arya began dictating the order.

The legal basis and scope of every summons would remain separately recorded.

The hash verification, creation sequence and usage logs of the forensic images would be preserved.

Independent explanations would be sought for every time discrepancy in the custody register; wherever no explanation was obtained, the entry would be marked "unexplained."

For every conclusion in the inference table, the contrary possibility and the status of its testing would also be recorded.

No internal investigative inference would be described, publicly or judicially, in the language of an established fact.

And—

"At this stage the Court neither certifies the investigation nor the accusation. It is concerned only with whether the investigation is proceeding within lawful limits, documentary integrity, and rational grounds."

The courtroom was silent.

There was no proclamation of victory for either side in the order.

Yet Aditya felt that in this silence something had been protected for which he had been labouring all these days.

Method.



The moment they stepped outside, reporters surrounded them.

“A victory for the State?”

“A defeat for the other side?”

“Has the Court held the investigation to be valid?”

Aditya did not stop.

Malini was walking behind him. A reporter flung a question at her—

“Did the State get away with the three-minute discrepancy?”

Malini stopped.

“‘Got away with it’ is not the right phrase.”

“Then what is?”

“The three-minute discrepancy is on the record. Its cause will be examined. We will say only as much as is established.”

The reporter said, “That’s all?”

“That’s all.”

She walked on.

At the foot of the steps, Aditya was waiting.

“Good answer,” he said.

Malini smiled.

“I understand now. Truth is often a short sentence.”

“And falsehood?”

“It usually needs adjectives.”

For the first time Aditya gave a small laugh.



That evening in the Home Ministry, Shiveshwar Prasad read the order. His advisers were excited.

“Minister, this is a clear success. The other side’s principal attack has not survived.”

Shiveshwar Prasad did not lift his eyes from the page.

“On which line is the word ‘success’ written?”

There was no answer.

“The Court has said that the investigation may proceed within lawful limits, while the defects must continue to be tested. Write exactly that much.”

“A political response?”

“No.”

“The media are saying—”

“Let the media do their work. The State’s work is to preserve the Court’s trust.”

He closed the order.

“Tell Aditya that I do not want to be informed whether the reason for those three minutes has been found until it has been verified. Half an inference does not become whole merely by entering a minister’s room.”

The advisers rose and left.

Shiveshwar Prasad remained alone. Evening was descending beyond the window. Power, he thought, usually wanted answers quickly; justice demanded sequence from it.

Today he chose the side of sequence once again.



At ten that night only Aditya and Malini remained in the investigation room. The independent answer to the three-minute discrepancy had still not arrived. The explanation for the service-provider date difference was also awaited.

“Aditya ji,” Malini asked, “what if we never find the reason for those three minutes?”

“Then the record will say that no reason was found.”

“And if the other side says that makes the entire image unreliable?”

“That will be their argument. We will provide an assessment of the effect. The Court will decide.”

“Don’t you ever get angry?”

“With whom?”

“When it is obvious that some of these points are being raised only to obstruct the investigation.”

Aditya was silent for a moment.

"I have no right to read the questioner's mind before asking whether the question itself is proper. Is the question legitimate? That is what we examine. Do we have an answer? That is what we examine. No more."

"But what if all they want is delay?"

"Then the law has remedies for delay. I am not here for revenge."

Malini looked towards the window. Their two reflections stood in the glass outside.

"Gangesha Upadhyaya sharpened reason precisely so that the mind would not become a slave to its favourite conclusion," Aditya said. "If we call every question from the other side wickedness, we too will become slaves to our own inference."

Malini nodded slowly.

"Then who won today?"

Aditya closed the file.

"No person."

"The State?"

"No."

"The other side?"

"No."

"Then?"

Aditya's hand went to the old sheet carrying the four lines—the summons, the image, the hash chain, the custody register. The fifth line read: Three minutes: cause uncertain.

He did not fold the paper. He did not destroy it. He fastened it to the first page of the file.

"Method," he said.

Silence spread through the room again.

Outside, Delhi's night went on. Somewhere far away computers glowed in blue light, financial pathways kept moving, anonymous signals sought meaning in one another.

But in this room the web of inference had, for the first time, subjected itself to its own test.

Aditya understood that the next stage would no longer concern records alone. The file would climb once more to the Ministry's higher desks, and the legal strategy would change again.

Yet whatever came next, one boundary had been fixed today: the strength of an investigation lay in giving what survived its proper name, and discarding what did not.

022 The Web of Inference — Chapter 9

As the first light of dawn spread across Delhi's grey sky, Aditya Jha reached the investigation room. The air inside was warm from having remained open all night, but the file on the table was cold. Beneath the red band lay the previous hearing's order, the custody register, hash values, reconciliations of timestamps, witness statements, payment trails, and summaries of forensic images, all resting one upon another.

On the first page of the file, the line he had written in his own hand was still there—

Three minutes: cause not fully established.

Malini Karn came in carrying a new verification report.

"The independent examiner's response has arrived," she said.

Aditya took the page.

"What does it say?"

"Where the original device timestamp differs by three minutes from the external service record, there are indications that the device clock had shown roughly that degree of drift before as well. But the examiner writes that this alone does not justify shifting every event by three minutes."

Aditya read the line again.

"So a plausible cause has been found, not the complete cause."

"Yes."

"Write only that much in the file."

Malini smiled.

"Will the Ministry be satisfied with only that?"

"The Ministry's satisfaction is not a category of evidence."

In the margin of the page he wrote—

Independent examination supports the possibility of clock drift; the effect of the specified three minutes on each individual event remains under separate examination.

For a few moments Malini kept looking at him.

"Until yesterday I thought those three minutes were a hole in our case."

"And today?"

"Today it seems less like a hole than a boundary."

Aditya nodded.

"Do not fear a boundary. Without boundaries, inference is orphaned."



At ten, the file reached the Home Ministry's Special Legal Cell. It was not the first time the matter had come to the Ministry's table, but this time the file had changed its shape. Earlier it had resembled a sprawling narrative—many names, many network locations, many payment trails, separate devices, countless timestamps. Aditya had now divided all of it into four parts.

First—verified facts.

Second—inferable relationships arising from those facts.

Third—alternative possibilities.

Fourth—propositions not yet established.

Joint Secretary Devvrat Sinha stopped while turning the pages.

"Jha, you have made your case smaller."

"No," Aditya said. "I have made its dimensions clear."

"Earlier this page said, 'Strong indications of an integrated offshore operation.' Now it says, 'A working inference of interrelationship among certain components, still under examination.'"

"Only as much of the first sentence as was actually established has been retained."

Meera Upadhyay, Additional Secretary in the Ministry of Law, set down her pen.

"But in the Supreme Court the other side will call this revision a retreat by the State."

Aditya replied, "If the earlier wording was too broad, correcting it is not retreat. Clinging to an inaccurate word would be weakness."

Meera Upadhyay remained silent for a few moments.

"We shall have to change the strategy."

The Home Ministry's adviser asked, "How much?"

"Fundamentally."

She pulled the page with the file's four divisions toward her.

“Until now we have tried to show the Court that the investigation’s overall direction is justified. Now we must show the path to every major conclusion—what fact, what reason, what basis of pervasion, what alternative possibility, and what limit.”

Devvrat Sinha said, “So, not a story—a formulation?”

Aditya said quietly, “The Court may hear a story. A decision will rest on the formulation.”

Meera Upadhyay looked at him.

“Is this your Navya-Nyaya?”

“It is not mine. It is an old way of avoiding faulty inference.”

By noon the meeting-room whiteboard had filled into four sections. The first contained payment trails. Certain account references appeared to connect separate platforms. The second contained digital records—pages with similar formats, matching code names, some recurring network locations. The third contained people—witnesses, employees, service providers, intermediaries. The fourth contained legal questions—privilege, confidentiality, jurisdiction, and the integrity of seized material.

Meera Upadhyay pointed to the first section.

“These three payment trails lead to the same external intermediary. Can we therefore say there was common financial control?”

Aditya answered at once, “No.”

“Why?”

“The same intermediary may serve many unrelated clients. A common intermediary does not prove common ownership.”

“Then what do we say?”

“We say that one stage in all three pathways passes through the same service structure. Beyond that, the beneficiary, the person giving instructions, and the actual controller require separate verification.”

Meera changed the line.

The next question concerned network locations.

Malini said, “Some pages from four platforms were found on the same content-delivery infrastructure.”

Devvrat Sinha asked, “Common operation?”

“Possible,” Malini said, “but not necessary. A single service provider may serve many clients.”

“Then what is its use?”

“The fact of shared infrastructure is useful in itself. A conclusion about control needs additional support.”

Aditya looked at Malini. Earlier, on a question like this, enthusiasm would have carried her into the next conclusion. Now she supplied the limit herself.

Meera Upadhyay did not smile, but her voice softened.

“Good. Put ‘alternative cause’ in a separate column against each of these.”

New headings appeared on the whiteboard—

Anvaya: positive concomitance.

Vyatireka: negative concomitance.

Upadhi: limiting condition.

Exception.

Half in jest, Devvrat Sinha said, “The Ministry has become a school of logic.”

Aditya replied, “If the weight of a sentence in court can fall upon a person’s liberty, the Ministry ought to be a school of logic.”

The second part of the meeting was more difficult. The question was no longer only evidentiary; it was strategic.

Senior officers of the State wanted a clear, forceful submission before the Supreme Court: the subject of the investigation was broad; there was a cross-border financial structure; several digital indicators corresponded with one another; therefore the investigation should be given full room to proceed.

Meera Upadhyay said, “Legally, that argument can be made. But there is a problem. If at the outset we assume an ‘integrated network,’ the other side will say the State has reached its conclusion first and is now searching for evidence.”

Silence spread through the room.

In Aditya’s mind rose the old fields of Garh En Arikel. During rice planting his father would look at a row from a distance and say, ‘One patch turning green does not mean the whole field is ready.’

Meera asked, “Jha?”

Aditya returned to the present.

“The strategy should ask for investigative authority in proportion to the facts, not in proportion to the inference.”

“Explain.”

"We need authority to examine whatever lawfully obtained material exists. We need the opportunity to pursue, by lawful means, the cross-border responses that are still pending. Wherever a relationship remains inferential, we should not ask for authority by treating it as established. We should ask for authority so that verification can be completed."

Devvrat Sinha stopped his pen.

"That is a very restrained argument."

"A restrained argument is not a weak argument."

Meera Upadhyay said, "And privilege?"

"Compliance with the independent filtering order. Protect what is privileged. Lawfully examine ordinary commercial material. Where material is disputed, subject it to judicial or independent review."

"Sealed material?"

"Wherever an adverse order relies on any part of it, give the other side, as far as possible, an adequate summary. Protect witness safety and third-party privacy separately."

"The investigation diary?"

"An investigator's thought is not evidence."

"The three minutes?"

"There is support for possible clock drift; the specific effect on each event is not fully established."

Meera Upadhyay drew a long breath.

"Then our new strategy in one word?"

Aditya said, "Levels."

"Levels?"

"The level of fact. The level of inference. The level of judicial observation. The level of proof. Keep them separate."



After the strategy changed, Meera Upadhyay made an unexpected proposal.

"Today we will not read this file from our own side. We will read it from the other side."

Devvrat Sinha frowned.

"Meaning?"

"We divide ourselves into two groups. One will advance the State's argument. The other will try to break every inference. Any inference that cannot survive cross-examination inside its own house will not be taken to court."

Aditya agreed at once.

Malini was placed in the first group. Meera herself became the questioner for the second.

The first subject was the common payment intermediary.

Malini said, "The payment pathways of three platforms pass, at one stage, through the structure of the same intermediary. This gives rise to the possibility of an operational relationship."

Meera asked, "How many unrelated merchants does that intermediary serve?"

"We do not have the full list."

"Then where is the vyapti—the necessary pervasion?"

Malini paused.

"The pervasion is not yet established. At present it is only a reason to test the relationship."

"Then why use the words 'operational relationship'?"

Malini looked at her page.

"The phrase is too broad. 'Possible shared service infrastructure' would be more accurate."

Meera struck out the line.

The second subject was the similarity of page design and code names.

An officer arguing for the State said, "The same kind of internal name recurs across several platforms."

Meera asked, "Could those names have come from a publicly available template?"

"They could."

"What investigation has been done on that possibility?"

"So far, limited."

"Then a common developer?"

"Not established."

"A common source?"

"A possibility."

"Write only that."

The third subject was a witness statement. The witness had said that payment instructions came from 'people above.'

Meera asked, "Who are the 'people above'?"

"The witness gave no names."

"Then why is this statement placed beside the name of a specific person in the file?"

Silence.

Aditya picked up the page.

“Change the layout. Keep the witness statement separate. Keep the basis for linking it to a particular person separate. Putting the two in one line creates an artificial proximity.”

Malini asked, “Can visual arrangement itself influence inference?”

Aditya replied, “The mind constructs relationships from placement as well as from words. The architecture of a file must therefore be neutral too.”

Meera Upadhyay smiled faintly.

“We will remember that especially in the presentation before the Court.”

The fourth subject was the temporal correspondence between the name of an offshore entity and the payment record of a domestic service provider.

This time Devvrat Sinha took the opposing side.

“Two events occurred on the same day. Does that establish causation?”

Malini said, “No.”

“Within the same hour?”

“Still no.”

“At the same instant?”

Malini thought for a moment.

“The force of temporal correspondence would increase, but causation would still require an additional link.”

Aditya said, “Exactly. Temporal proximity can be a reason; it is not a vyapti.”

Meera wrote the sentence into her notes.

The internal cross-examination lasted an hour. By the end, the language of four of the State’s original twelve inferences had been narrowed; two had been reduced to working hypotheses; one had been removed as inadequately supported; and five survived in limited form.

One officer said with disappointment, “We are cutting down our own case.”

Aditya replied, “No. We are purifying it before the Court’s questions do so.”

“But the other side will never see the inferences we removed.”

“I do not need the other side’s praise. I need the record’s credibility.”

Meera Upadhyay added, “The strength of the State is not that every first impression survives. Its strength is the capacity to remove, on its own, what does not survive.”

There was fatigue in the room, but also a kind of clarity. Fewer lines remained on the whiteboard; what remained was sharper.

Aditya remembered the village fields again—after planting, some seedlings always died, and the farmer replanted those places. Declaring a dead seedling green did not save a field.

He said to himself: inference too is like planting. Not every shoot becomes a crop.



By evening the file had reached the office of Home Minister Shiveshwar Prasad. In the waiting room outside lay political papers, reports from the states, security briefs. The Minister opened this file first.

Meera Upadhyay explained the strategic change.

Shiveshwar Prasad interrupted with a question. “So the State is stepping back from some of its earlier language?”

“From the language, insofar as it went beyond the evidence,” Meera said. “Not from the investigation.”

The Minister looked at Aditya.

“Do you agree with this change?”

“Yes.”

“The effect on your team’s morale?”

“If morale depends on sweeping adjectives, it will not endure.”

Shiveshwar Prasad leaned back in his chair.

“Politically, I am under pressure. People ask: after so many months, why is the State still saying ‘possibility,’ ‘inference,’ ‘under examination?’”

Aditya remained silent.

“Your answer?” the Minister asked.

“Because where something is not established, writing the word ‘established’ would be false.”

For a few moments the only sound in the room was the low hum of the air conditioner.

Shiveshwar Prasad closed the file.

“Very well. Rewrite the legal strategy on this basis. No public statements. Whatever we say in court, we say from the record.”

An adviser asked, “Consultation with the senior-most law officers?”

The Minister paused for a moment.

“First complete the revised strategy paper. Half-formed thinking should not travel upward.”

Aditya understood: the next stage had not yet arrived, but its door was opening.

◆
At eight that night Aditya left the Ministry. Long lines of light stretched across Delhi's roads. Vehicles moved quickly, people walked while speaking on their phones, and the city repeated itself many times over in the glass of its buildings.

Suddenly his mind felt tired.

All day he had defended the limits of fact, but within him another question kept rising: how many days of limits, possibilities, waiting? How many days with a new question behind every answer?

He did not return to the guest house. He walked a little way and sat in a quiet garden.

There was a message from his mother in the village.

"We had the first rain here today. The earth in the courtyard is fragrant. Water is standing beneath the neem your father planted."

With it was a small photograph—the wet courtyard, the deepened colour of the soil, drops on the neem leaves, and the old earthen water jar in the corner of the veranda.

Aditya looked at the photograph for a long time.

Garh En Arikel was not geography to him. It was an apprenticeship in waiting. Once a seed had been sown, it could not be pulled upward by hand. The soil opened in its own time. Too much water could rot the roots; too little could dry the shoot. A farmer's patience was not passivity—it was the art of understanding time, measure, and limit.

He remembered his father's voice—

"You cannot make rice grow taller by pulling at it."

Something in Aditya eased.

He wrote back to his mother—

"The scent of the earth has reached here too."

Nothing more.

◆
The next morning the new draft of the strategy paper was ready. There was no language of victory in the heading. Four sentences stood on the first page—

An allegation under investigation is not an established fact.

Verified digital or financial connections do not, by themselves, establish common control.

An inference is usable only after its stated basis, testable pervasion, and alternative possibilities have been examined.

A judicial observation is not a final finding of guilt.

After reading it, Meera Upadhyay said, "This looks less like a defence paper and more like a charter of self-restraint."

Aditya said, "That is why it will endure."

Malini placed a new table before them. Opposite every major inference were five columns—

Fact.

Reason.

Basis of pervasion.

Alternative possibility.

Next verification required.

Devvrat Sinha said, "This format may be useful in the Supreme Court."

Meera Upadhyay replied, "It may. But for now, make it the Ministry's approved strategy."

On the last page she wrote—

The State's object is not to prove a predetermined narrative, but to reach verifiable conclusions on the basis of lawfully obtained material.

Aditya kept his eyes on that sentence for a long time.

Amid days of sleeplessness, the sharpness of hearings, the clamour of the media, the assault of expensive counsel, the pressure of the Ministry, that one line felt to him like the wet earth of his village. Cool. Steady.

He knew that in the next stage this strategy would travel to an even higher legal forum. Every inference would once again enter a ring of questions. Some would survive, some would break, some would change.

But he was no longer afraid of that.

The earth of Garh En Arikel had taught him again: what is true at the root needs time; what is only grass may rise quickly above the soil.

The work of investigation was not to call grass rice.

Its work was to wait, to test, and, when the identity of the shoot became clear, to give it only that name.

023 The Web of Inference — Chapter 10

The next morning Delhi's sky was clear, but on the fourth floor of the Home Ministry the light seemed heavy. When Aditya Jha reached the Special Legal Cell, Meera Upadhyay was already seated. Before her lay three copies of the strategy paper approved the previous night—one for the Home Ministry, one for the office of the Attorney General, and one for the office of the Solicitor General.

On the first page of the strategy paper, four lines still stood with the same clarity—

An allegation under investigation is not an established fact.

Verified digital or financial connections do not, by themselves, establish common control.

An inference is usable only after its stated basis, testable pervasion, and alternative possibilities have been examined.

A judicial observation is not a final finding of guilt.

Without extending the formalities of greeting, Meera Upadhyay said, "The question now is not whether the senior-most law officers should see the record. That stage is already past. The question is—should the State ask them for formal representation, or only for advice?"

Aditya pulled out a chair and sat down.

"That decision is not within my field."

"True. But the limits of fact are. If the State claims more in its request than necessity permits, the first questions from the senior law officers will be directed at us."

Malini Karn entered with fresh copies of the chronology and the verification summary. Silently, she distributed the three sets.

Meera asked, "The three-minute discrepancy?"

"Where it existed, it remains," Malini said. "Independent testing supports the possibility of clock drift, but there is no basis for automatically treating the time of every event as corrected."

"The common payment intermediary?"

"Common service infrastructure verified. Common control unproved."

"The similar network structure?"

"Some repetitions verified. Common ownership unproved."

"The witness's 'people above'?"

"An unidentified group reference. No direct identification with any particular person."

Meera Upadhyay grew grave.

"Then the language of the request can be drafted."



At ten o'clock the meeting began in Home Minister Shiveshwar Prasad's chamber. The Law Secretary, the Home Secretary, Meera Upadhyay, Aditya, Malini, and two senior officers were present. At the centre of the table lay the strategy paper that, until yesterday, had been merely an internal direction of the Ministry; today it was to become the formal basis placed before the country's senior-most law officers.

The Home Minister read the first page. Then the second. Then the third.

"I had asked for assistance earlier," he said slowly. "At that time the file was immature. Later, a supplementary factual summary was sent. The Supreme Court proceedings have now moved into the next stage. The question is—should the Attorney General and the Solicitor General be formally requested to appear for the State?"

The Home Secretary said, "Given the institutional importance of the matter, that would be appropriate."

The Law Secretary added, "Privilege, sealed material, the limits of digital seizure, cross-border verification, and the investigation diary—each of these questions may affect many future cases."

Shiveshwar Prasad looked at Aditya.

"Mr Jha, what do you think?"

Aditya was silent for a moment.

"The decision on representation belongs to the State. My only request is that the letter contain no sentence suggesting that the State's conclusion is already fixed."

"For example?"

Aditya lifted the draft before him. One sentence had been marked in red—

'Sufficient evidence is available of integrated operation of the offshore gambling network.'

"This sentence is too broad at present," he said.

One senior officer disagreed.

“There are sufficient indications.”

“There are indications,” Aditya replied. “There are also some verified connections. But ‘integrated operation’ and ‘sufficient evidence’ are claims at two different levels.”

The Minister asked, “Then what do we write?”

Aditya read the sentence slowly—

“On the basis of several verified digital, financial, and procedural connections, the possibility of coordinated operation remains under examination; conclusions concerning ownership, ultimate control, and individual responsibility are not yet fully established.”

For a few moments there was silence in the room.

The Home Minister said, “It is long.”

“Truth seldom becomes a short slogan,” Meera Upadhyay said.

Shiveshwar Prasad looked at her, then smiled faintly.

“Very well. Let it remain that way.”



The next part of the request set out what the State sought—

“The Attorney General and the Solicitor General are requested to accept representation of the State before the Supreme Court.”

Meera Upadhyay said, “This will be the first explicit request for representation. What went earlier belonged to the stage of consultation and examination of the record.”

The Home Minister nodded.

“This time let it be explicit. But should we write ‘present the State’s case’ or ‘accept representation’?”

“The second is institutionally more appropriate,” the Law Secretary replied.

Shiveshwar Prasad corrected the line with his own pen.

“The State’s request is not that the senior law officers defend a predetermined conclusion. The request is that, on these important legal questions, the State’s position be presented effectively within the limits of the record.”

Aditya’s eyes lifted for a moment.

The Minister continued, “We are a political State, but in court the language of the State will not be political. What is established is established; what is inference is inference. The Attorney General and the Solicitor General will fight within that boundary—if they accept.”

Aditya repeated the phrase inwardly—if they accept.

The direct fact, for now, was only that a request would be sent. Their appearance belonged to the future.

In his notebook he wrote—

Formal request for representation = administrative fact.

Acceptance = awaited.

Appearance = inference, for now.



The request was signed. A sealed index of records was attached for the Attorney General’s office. An identical copy of the same factual summary was prepared for the Solicitor General’s office. Meera Upadhyay took particular care that the two offices should not receive different versions of the facts.

“Legal opinions may differ,” she said. “The facts supplied must not.”

Malini performed the final verification.

“Chronology identical.”

“Hash summary identical.”

“Index of confidential annexures identical.”

“List of alternative possibilities identical.”

“List of unproved propositions identical.”

The Home Secretary asked, “Why so much caution? The senior offices will examine everything themselves.”

“Because different starting facts create different inferences,” Aditya replied. “We can accept differences of legal opinion; we cannot manufacture differences of fact.”

The request was dispatched.

There was no announcement. No media release. Within the Ministry, only the dispatch number was entered.

Malini said softly, “Such a large step, and no one outside knows.”

“The size of a step is not measured by the news it makes,” Aditya replied.



At that hour Vidyanand Mishra was not in his office. He stood once again in the familiar corridor of the hospital whose very walls, after so many weeks, had become known to him by colour.

Shailaja's condition was stable, but after the new tests the doctor had said the next stage of treatment should not be delayed. Nandita sat beside her mother. Vidyanand held a small file in his hand, but had not opened it.

Nandita came out.

"Baba, Ma is asking whether you are going to court."

Vidyanand looked at his watch.

"Nothing is listed today. There is a consultation."

"Then?"

"Then I am here."

Nandita kept looking at him.

"Your office called three times."

"I know."

"Anything urgent?"

Vidyanand smiled faintly.

"In a lawyer's office everything is called urgent. Life teaches you to sort the categories."

Nandita went back inside.

Vidyanand sat on a chair against the wall. His phone vibrated again. This time it was a message from his senior junior counsel—

The State has sent a fresh formal request to the Attorney General and the Solicitor General for representation. Reliable information. The client wants an immediate meeting.

Vidyanand read the message.

The instinctive professional response rose within him—the State was assembling its highest legal force; a counter-strategy had to be prepared.

At once came a second thought—'reliable information' was not, by itself, a fact before the Court.

He typed a reply—

Change strategy only after certified information or a court mention confirms the request. No public or judicial statement based on inference at this stage.

The junior replied at once—

But the client says this proves political pressure.

Vidyanand's fingers remained still for a few moments. Then he wrote—

No. Seeking assistance from senior law officers does not, by itself, prove political pressure. No such sentence is to enter the draft.

He turned the phone face down.



Shailaja had been moved to a private room. When Vidyanand went in, she was awake. Her face was drawn, but her eyes were steady.

"Have you brought the file again?" Shailaja asked.

Vidyanand looked at the file in his hand.

"I haven't opened it."

"That is progress."

"Will all of you never stop mocking lawyers?"

"Not while you remain one."

They both laughed softly.

After a few moments Shailaja asked, "Has anything changed outside?"

Vidyanand pulled a chair closer and sat down.

"The State appears to have sent a request asking the senior-most law officers to represent it directly."

"Appears?"

"There is information. No certified record yet."

Shailaja closed her eyes and opened them again.

"So you can still say 'appears.' Illness has not entirely ruined your profession."

Vidyanand did not laugh.

"The client wants me to call it a political attack."

"And you?"

"There is no basis."

"Then don't say it."

“As simple as that?”

“At home?” Shailaja said. “Yes. In court, you people make simple things difficult.”

Vidyanand took her hand.

“Sometimes a client’s fear is real, Shailaja.”

“Fear can be real. Its explanation is not always true.”

Vidyanand fell silent.

The sentence settled inside him like an unbidden aphorism of Navya-Nyaya. Fear may be a direct experience; the conclusion about its cause is a separate inference.

He had to argue against Aditya Jha, yet in that moment he was hearing a fragment of the officer’s method in his own home.



At noon the request reached the Attorney General’s office. The outer cover bore only the case number, the Ministry reference, and the words ‘for urgent legal consideration.’ Inside, the first annexure was the strategy paper; the second, a chronology of judicial orders; the third, a verification summary of digital material; the fourth, a graded list of financial links; the fifth, alternative possibilities; and the sixth, a segregation note concerning confidentiality and privilege.

For the first half-hour the senior law officer in the office looked only at the index.

One officer said, “The State’s language has changed since its first presentation.”

Another replied, “Not changed—narrowed.”

“Is that weakness?”

The senior officer lifted a page of the strategy paper.

“Not necessarily. If the narrowing is caused by the record, it may increase credibility.”

He placed a finger on one line—

‘Common service infrastructure does not establish common ownership.’

“The State has written this itself?”

“Yes.”

“Good. Then the question will be—after making this concession, how far does the State justify extending the investigation?”

The Attorney General’s office began to frame its note—

One: what is the State’s lawful investigative interest?

Two: what are the least intrusive measures for privacy, privilege, and third-party confidentiality?

Three: in each major chain of inference, what is the stated reason and what are the alternative possibilities?

Four: where does the absence of cross-border verification require the conclusion to stop?

Five: is the relief sought from the Court limited to what verification actually requires?

“If representation is accepted,” the senior officer said, “we will not utter a sentence without answers to these five questions.”



The response in the Solicitor General’s office was slightly different. They first questioned the precision of the technical vocabulary.

“‘Digital connection’ is written here. What exactly does that mean?”

An assisting officer replied, “Some common identifiers, structural similarities, temporal correspondences, and service pathways.”

“Then the word ‘connection’ may itself be read as implying causation. Write instead—‘similarity or cross-reference, the cause of which remains under examination.’”

On another page appeared the phrase ‘financial chain.’

“Is the chain complete?”

“No. Two intermediate stages are verified; the ultimate beneficiary is unproved.”

“Then ‘partial financial trail’ is more accurate.”

On the third page appeared ‘possibility of coordinated operation.’

“What are the competing explanations for that possibility?”

“A common service provider, a public template, an ordinary payment intermediary, an external vendor.”

“Write all of them. If an inference hides competing causes, it is not reasoning; it is insistence.”

The office’s final note read—

The record is fit for consultation. A joint legal conference is required before a decision on representation.

It was not acceptance. Nor was it refusal.

Only the next door had opened.

◆

At four in the evening the preliminary responses from both offices reached the Ministry. Meera Upadhyay first read the Attorney General's five questions, then the Solicitor General's revisions of terminology.

A brief meeting was convened again in the Home Minister's chamber.

"Acceptance?" Shiveshwar Prasad asked.

"Not yet," Meera replied. "They have asked for a joint legal conference."

"Meaning?"

"Directly, only this much," Aditya said. "Both offices are taking their examination of the record further."

The Minister smiled.

"And your inference?"

"If the conference is satisfactory, the likelihood of representation increases. But it would be improper, at this stage, to write 'appearance confirmed.'"

The Home Minister nodded.

"Good. No public reaction. Complete preparation internally."

A political adviser who had remained silent until then said softly, "Minister, if the news gets out, the opposition will say the State is deploying the country's senior-most counsel to save the case."

Shiveshwar Prasad's face hardened.

"The State is seeking the assistance of senior law officers to present its legal position before a court. That is constitutional arrangement, not war. You may hear words such as 'deploying' outside; not in this room."

Aditya watched the Minister's face. Sometimes keeping distance between power and the Court is not merely a line in the Constitution; it is an act of human restraint.

◆

That evening a meeting of the client's side began in Vidyanand Mishra's office. Raghav Sethia was present in person, along with two new senior advocates, three juniors, and a financial adviser.

Vidyanand had come directly from the hospital. The exhaustion beneath his eyes was plain, but his clothes were orderly and his voice steady.

Raghav began at once. "The State is calling in the Attorney General and the Solicitor General. This is no longer an ordinary investigation."

"It was never ordinary," Vidyanand replied.

"I want a hard position."

"On what basis?"

"The State is descending on us with its full power."

Vidyanand turned a page.

"Evidence?"

Raghav's expression shifted slightly.

"You do not believe me?"

"Belief and a statement in court are different things."

"The information is confirmed."

"Assume the request has been sent. How does that establish 'political vendetta'?"

One of the newly engaged senior advocates intervened. "Strategically, a sharper statement may be useful."

Vidyanand looked at him.

"Useful to whom—the media or the Court?"

Silence settled over the room.

Raghav said, "You have become very restrained in this case."

"I am counsel in this case."

"And on my side?"

"Yes. Which is precisely why I will not carry an unsustainable sentence of yours into court."

Raghav's voice hardened.

"I am not paying you this much to improve the State's language."

Vidyanand's eyes became still.

"You pay me to present your legal case in the best possible form. Not to purchase a right to place false or baseless allegations before the Court."

A junior's hand stopped over the paper.

For a few moments Raghav studied Vidyanand's face.

"What if I want different representation?"

Vidyanand leaned back slightly in his chair.

"You are free to do so."

The two words fell heavily into the room.

For a moment Vidyanand's mind went to Shailaja's hospital bed. The next treatment, its cost, the instability at home, a month of sleeplessness—all rose together within him. He knew that losing a client like this would not be merely a question of prestige; there would be financial consequences as well.

But his next sentence did not change.

"As long as I remain counsel, I will not say in court what is not in the record."

Raghav rose slowly from his chair.

"We will meet again tomorrow."

He walked out.



After the door closed, a junior advocate asked softly, "Sir, what if he really changes representation?"

Vidyanand removed his spectacles and placed them on the table.

"Then let him."

"The case is enormous."

"Is that a reason for the boundary to become larger?"

The junior said nothing.

Vidyanand rested his head against the back of the chair.

"The dignity of a profession is not the number of victories. Sometimes it is only this: you do not permit your client to say before the Court what cannot stand there."

His phone rang. It was a message from Nandita—

Ma's treatment has been scheduled. The doctor says you should stay here tonight.

Vidyanand closed his eyes for a moment.

The junior asked, "The joint conference tomorrow?"

"That belongs to the State, not to us."

"Our preparation?"

"Tonight you will prepare a category-wise summary of privilege. No all-embracing claim. What is legal advice, separate it. What is ordinary business material, do not call it protected merely because it was found in a lawyer's office. What is disputed, ask for independent review."

"And you?"

Vidyanand closed his file.

"I am going to the hospital."

The junior bowed his head slightly.



At ten that night the hospital room was quiet. Shailaja was asleep. Nandita sat by the window with a book open before her, though she was not reading.

Vidyanand drew up a chair quietly.

Nandita whispered, "The meeting?"

"Over."

"Good?"

Before answering, Vidyanand looked at his wife.

"Not clear yet."

Nandita looked at him in surprise.

"You are saying 'not clear yet'?"

"These days I am learning to say that about many things."

Nandita smiled faintly.

"Ma will be pleased."

Vidyanand's face softened.

"She is the sternest judge among us."

A little later Nandita went outside. Vidyanand remained alone beside the bed. A pale stripe of light lay across Shailaja's hand.

Raghav's sentence circled in his mind—"I am not paying you this much to..."

The dignity of a profession is often written in books as a principle. In real life it stands among hospital bills, answers meant to reassure a daughter, a client's pressure, a colleague's gaze, and the fear inside oneself.

Vidyanand's fear was real.

What if the client left? What if his income fell? What if Shailaja's treatment went on for months?

But he understood this much—fear may be directly experienced; obedience to fear is not therefore required.

Slowly he took the red pen from his pocket, then put it back. Tonight was not for cutting sentences on paper. It was for cutting sentences written by his fear.



The next morning a joint legal conference began among the Attorney General, the Solicitor General, the Home Ministry, and the Law Ministry. The meeting was confidential. Aditya, Meera Upadhyay, and the Law Secretary were present to assist on the facts.

The Attorney General asked the first question directly—

“What, precisely, does the State want from the Supreme Court?”

Meera Upadhyay replied, “Adequate room for a lawful investigation to continue; independent segregation of privileged material; protected review of disputed material; an opportunity to complete cross-border verification; and, if an adverse order is to be based on sealed material, the principle that an adequate summary should be provided as far as possible.”

“A declaration of guilt?”

“No.”

“Judicial confirmation of an integrated network?”

“Not yet.”

“A prior finding that a specific individual exercised control?”

“No.”

The Attorney General looked at Aditya.

“Officer, if the Court asks—after so many months, what is the State’s principal inference?”

Aditya replied, “Certain digital, financial, and procedural similarities and cross-references raise the possibility of coordinated operation. But independent verification remains incomplete as to common ownership, ultimate control, and individual responsibility.”

“And if the Court asks—then why should the investigation continue?”

“Because lawfully obtained and verified facts raise questions whose answers are necessary before the true nature of these relationships can be understood. The investigation should continue not to protect a conclusion, but to verify those questions.”

The Solicitor General asked, “Alternative possibilities?”

Aditya counted them one by one—

“A common service provider without common ownership. A public or third-party digital template. Independent clients using the same payment intermediary. Temporal proximity without causal connection. An employee’s individual act without institutional direction. Unrelated third-party information within seized material.”

“Are all of these recorded in the file?”

“Yes.”

“Which major inference has the State itself removed?”

Aditya gave the example of the witness whose phrase ‘people above’ had been placed beside the name of a specific person, creating an artificial proximity.

The Attorney General was silent for a few moments.

“Good. If the State can demonstrate the ability to remove its own weak inferences, the inferences that remain may be presented with greater credibility.”

The Solicitor General added, “But before the Court we will make one thing clear: however strong a chain of inference may be, if its final link remains unverified, the conclusion must stop at that boundary.”

Aditya inclined his head.

“That is exactly what I would expect.”



The conference went on for two hours. Question after question. Some answers immediate. In several places: ‘awaited.’ In several others: ‘record insufficient.’ At one point the Attorney General himself struck out a line—

‘Overseas control room.’

He asked, “Is the control room directly verified?”

Malini replied, “No. There is an indication of a remote administrative interface, but its geographical location has not been fully verified.”

“Then not ‘overseas control room.’ Write—‘indication of remote administrative access; geographical location under verification.’”

Meera Upadhyay changed the line.

Elsewhere the Solicitor General asked, “What is meant here by ‘similar financial instructions?’”

Malini said, “Payment instructions with the same structure appear in three records.”

“Author?”

“Unproved.”

“Origin?”

“Two verified, one awaited.”

“Then call it a similar method of instruction, not a common issuer.”

The meeting continued in this manner.

Slowly Aditya understood that senior legal assistance was not merely the art of making forceful sentences; sometimes it was the art of removing weak ones.



At last the Attorney General closed the file.

“I will accept representation.”

No one in the room applauded.

“But on three conditions,” he continued.

Every eye turned toward him.

“First—the State’s factual summary will remain updated until the hearing; no new fact, adverse or favourable, will be withheld.”

“Second—if an inference is revised or abandoned, the record of that revision or abandonment will be preserved; there will be no merely convenient present-tense version.”

“Third—in court we will say no more than the evidence permits. Political expectation, media pressure, and the emotional conviction of the investigative team will have no place.”

The Home Minister was not present, yet his earlier instruction seemed to sound once more in the room—preserve the Court’s trust.

“Accepted,” the Law Secretary said.

The Solicitor General said as well, “I accept supporting representation. The division of issues will be settled beforehand.”

Meera Upadhyay looked at Aditya.

Aditya wrote in his notebook—

Acceptance of representation = direct fact.

Outcome of the case = unknown.

Senior appearance may strengthen advocacy; it does not increase the quantity of evidence.

He underlined the sentence.



The news did not take long to get out. By afternoon headlines were running across the media—the State’s ‘largest legal mobilisation yet,’ ‘Attorney General himself enters the field,’ ‘decisive battle over offshore network.’

Aditya switched off his phone.

Malini showed him one headline.

“‘Decisive battle?’”

Aditya did not smile.

“If a courtroom were a battlefield, we would not need rules of evidence.”

“Should we respond?”

“No.”

“But people will think—”

“We cannot control what people think. We can control the record.”

Malini switched off her phone.



That evening Vidyanand Mishra reached his office. Shailaja’s treatment had been fixed for the following morning. Nandita had told him plainly to spend the night at the hospital. But Vidyanand felt he needed one hour with his team.

The juniors informed him—the Attorney General and the Solicitor General had accepted representation.

Vidyanand asked only, “Official?”

“Yes. Their names are being entered in the listing notice.”

Vidyanand nodded.

“Then it is now a direct fact.”

One junior said, “Sir, do we now need a more aggressive strategy?”

Vidyanand took out his red pen.

“No. Now we need a more exact strategy.”

On the whiteboard he wrote three headings—

Privilege.
Limits of investigation.
Validity of inference.

“The Attorney General’s appearance has not increased the State’s evidence. The Solicitor General’s appearance has not made our privilege claim automatically valid. The weight of office will not substitute for reasoning.”

A junior asked, “Then how do we stop them?”

Vidyanand turned and looked at him.

“We do not stop a person. We show the limits of an argument.”

“And if the Court accepts the State’s position?”

“Then we read the order, examine the reasons, and challenge it if necessary. Anger against the Court is not a professional strategy.”

Raghav Sethia was not present at this meeting. His representative had sent a message—‘Client will speak tomorrow.’

Vidyanand did not reply.

He looked at his watch.

“That is enough. The rest tomorrow.”

The junior was surprised.

“Sir, the hearing is close.”

“I know.”

“Then?”

Vidyanand closed the file.

“My wife is in hospital.”

This time there was no explanation.

He stood and walked out.



That night, sitting beside Shailaja’s bed, Vidyanand read nothing for a long time. Footsteps came and went in the corridor outside.

Shailaja woke.

“What happened now?”

“The Attorney General and the Solicitor General will appear for the State.”

“Are you afraid?”

Vidyanand paused before answering.

“Yes.”

Shailaja looked at him.

“I like that answer.”

“Why?”

“Because you could have said ‘no.’”

Vidyanand laughed softly.

“So much pleasure in a confession of fear?”

“Giving fear a name does not make it an order.”

Vidyanand’s eyes settled on Shailaja’s hand.

“The client may leave too.”

“Then?”

“There will be a financial impact.”

“I know.”

“The treatment—”

Shailaja stopped him midway.

“Vidyanand, the crisis at home will not buy your professional honesty. If it does, then even if the treatment succeeds, we will have lost.”

Vidyanand fell silent.

After a few moments he said, “You are very severe.”

“That is why you married me.”

They both laughed.

The laughter was brief, but that night it was enough.



Late that night Aditya sat alone in his room at the guest house. Before him lay the Ministry’s official communication—the Attorney General and the Solicitor General had accepted representation.

Beside it lay Malini's new table. One inference had been narrowed again in that day's testing. A fresh reply from a bank was awaited. Records from a foreign service provider had still not arrived.

Outside, the world was calling the senior legal appearance a decisive turn. Inside, the file was still full of questions.

Aditya opened the window. Night air entered the room. Beyond Delhi's distant lights he remembered the darkness of his village—the darkness in which, on Gangesha's land, people could see the stars because there was less light.

His father's old sentence returned to him—

“Rice does not ripen because important men arrive. It needs its season.”

Aditya smiled faintly.

The Attorney General and the Solicitor General would now stand for the State. That mattered. But truth's season does not become smaller or larger with office.

He wrote the final line in his notebook—

Not today.

Below it he added—

For now, only representation is certain. The conclusion is not.

He closed the notebook.

The web of inference had now reached the highest judicial forum. But each of its knots still remained to be tested separately.

024 The Web of Inference — Chapter 11

Delhi's dawn was unusually quiet that day. Grey clouds lay over the sky, but there was no rain. As Aditya Jha entered the Supreme Court complex, he remembered those days in Garh En Arikel when clouds would gather, the wind would fall still, and people in the fields would keep looking up at the sky—whether it would rain was inference; the existence of the clouds was perception.

The question today was the same.

What had actually been seen?

What could properly be said?

And what did not become true merely because many signs seemed to point in the same direction?

Aditya carried three slim files. Manoj Mahato. Rajat Pal. Sudip Narayan.

All three names had emerged earlier in the investigation for different reasons: Manoj's fear, Rajat's statement about extra payments, Sudip's guilt. After the testing in Chapter Sixteen, the investigation team had checked every statement again against independent records. Some things had been confirmed, some narrowed, some still remained question marks.

Malini Karn walked beside him. In her hand was a table with four headings—

Direct fact.

Ground of inference.

Alternative possibility.

Conclusion not yet established.

Aditya glanced once at the table.

"Manoj?"

Malini said, "Records of two unidentified internet-based calls are available. Their timing is close to his first statement. The school's name was available on a public webpage. So the inference that 'only an insider could have known the school's name' does not survive."

"Rajat?"

"An additional amount was received. But there is no independent support for the claim that the money was paid 'for entering payments under another name.' The incentive policy can also be read as an ordinary sales-growth reward."

"Sudip?"

"His private diary appears genuine, and its sequence of dates is consistent. But the reason for the remorse recorded in it is unclear. Did he see an irregularity, or only his own negligence? Both possibilities remain open."

Aditya said quietly, "Then three witnesses. Three emotions. Three limited facts. And not one of those emotions proves guilt."

Malini nodded.

"The Court will probably ask precisely that today."

Aditya said, "Whatever the Court asks, the record will answer. Not I."

On the Bench sat Justice Sen, Justice Kaushal, and Justice Karim. The Attorney General appeared for the State, with the Solicitor General beside him. In the front row for the petitioners sat Vidyanand Mishra.

Raghav Sethia was not personally present. His legal representative was. The order was explicit: at this stage the Court was not considering the guilt or innocence of any person. The questions concerned the lawful limits of investigation, confidential material, privilege, and the judicial use of inference.

With his first sentence, Justice Sen fixed the direction of the hearing.

"We must begin today with three words—suspicion, allegation, proof. In the State's written report the three are used separately. In the petitioner's report, at several places, they have run into one another. We want the distinction made clear."

The Attorney General rose.

"My Lords, suspicion generates a question. An allegation formally asserts a claimed fact concerning a person or an act, but does not by itself establish it. Proof is material whose admissibility, authenticity, context, and legal value are capable of being tested. And inference—"

Justice Kaushal interrupted. "Is inference proof?"

The Attorney General paused for a moment.

“Inference is not a substitute for proof. It is a method of reasoning by which a relationship is proposed between facts already proved or capable of being tested. Its force depends on the strength of its ground and of the pervasion claimed for it.”

Justice Karim said, “And if the ground itself is unproved?”

“The inference falls.”

“If the ground is proved, but the pervasion is not?”

“Then the conclusion must remain limited, or it may not stand at all.”

“If an alternative cause is possible?”

“Then the limiting condition—the upadhi—must be tested.”

Justice Sen looked toward Vidyanand Mishra.

“Mr Mishra?”

Vidyanand rose.

“I do not disagree with that structure in principle. My objection is that, in practice, the State has repeatedly given an accumulation of indicators the force of a conclusion. Five signs appear together; merely from that, all five are treated as having arisen from the same cause. That is legally dangerous.”

Justice Sen said, “An example?”

Vidyanand opened a page.

“One payment reference. One similar turn of phrase. One webpage timestamp. One digital filename. One witness’s memory. The State calls them ‘mutually corroborative.’ But each may have an independent cause.”

The Solicitor General stood.

“My Lords, in the revised report the words ‘mutually corroborative’ have been removed wherever an independent connection has not been established. The State accepts correction on that point.”

A light stillness settled over the Bench.

Justice Kaushal said, “That matters. A party’s credibility before a court grows on the day it can abandon one of its weaker sentences.”

A slight smile appeared on Vidyanand’s face, but it was not a smile of victory.

“Then today we can speak about the real distinctions.”



The discussion began with the statement of the first witness, Manoj Mahato. He was not present in court; his verified statement, call records, and request for protection were in the file. Unnecessary details of his identity had been kept sealed.

The Attorney General said, “Manoj stated that he received two anonymous calls in which the name of his son’s school was mentioned. That frightened him.”

Justice Sen asked, “Do we take the statement as true?”

“The statement was made—that is a fact. The event described within the statement is fully established—not yet.”

“The calls?”

“Entries for two calls exist in the records. The caller’s final identity is not available.”

“The school’s name?”

The Solicitor General answered, “It was available on a public webpage.”

Justice Kaushal set down his pen.

“Then the State cannot infer ‘inside knowledge.’”

“No.”

Vidyanand said, “But the investigation’s first note said: ‘Knowledge of personal details indicates probable close contact.’”

Inside Aditya, that line rose like an old mark. It had been an early note. During later review he had struck it out and replaced it with: ‘Alleged use of personal details; source unproved; public availability possible.’

The Attorney General placed the revised page before the Court.

“The earlier note was corrected.”

Justice Karim said, “Correction is not weakness. But the question is this—did such an early inference influence Manoj’s later statements?”

Vidyanand responded at once, “That is precisely my concern.”

The Solicitor General said, “That is why the later questionnaire was rewritten. The investigation team was instructed not to question him on the assumption that the source of the call was a threat. They were to ask only about the words used, the timing, his memory of the voice, and his immediate reaction.”

Justice Sen said, “Then Manoj’s fear is a human fact. The legal conclusion about the cause of that fear remains open. Correct?”

Both sides agreed.

The Bench recorded—

A witness’s fear may raise a question of protection; it does not prove the offence.

A scene from a rainy night in Garh En Arikel came back to Aditya. As a child, when the dogs barked he would assume there was a stranger outside the courtyard. His father would say, “The barking is perception. The thief is inference. First look at the door.”

Today the Supreme Court was saying the same thing in the language of law.



The second witness was Rajat Pal.

His case was more difficult because he had in fact received additional money. Bank records showed the amount. His name appeared on his employer’s incentive list. In his first statement he had said, “Extra money was paid for entering payments under different names.” In a later statement he stepped back from that sentence and said he had received ordinary incentives, not payment for relabelling transactions.

Justice Sen said, “What is direct here?”

The Attorney General replied, “The additional amount was received. An employment relationship existed. Some entries in the payment schedule correspond with periods when Rajat had access rights.”

“And the allegation?”

“That the amount was paid in return for entering payments under altered names arose from Rajat’s first statement, but has not been independently established.”

Justice Kaushal turned to Vidyanand.

“You say greed produced the first statement?”

Vidyanand replied, “I say that possibility cannot be excluded. When he first spoke, he may have wanted to minimise his role; later, he may have wanted to preserve his benefit. Self-interest is possible in both directions.”

“Then which statement is true?”

“Without the records, I cannot say.”

Justice Karim smiled faintly.

“I like that answer. Counsel is not declaring even his own witness’s statement wholly true.”

Vidyanand remained grave.

“My Lord, advocacy and blind faith are not the same thing.”

Seated on the State’s side, Aditya looked at Vidyanand when he heard that sentence. They disagreed, but in moments like this Aditya understood that the dignity of a court is preserved not only by judges, but also by honest opposition.

Justice Sen asked again, “Does the State treat Rajat’s additional payment as proof of control by the alleged offshore network?”

“No.”

“Of a common payment system?”

The Attorney General said, “Limited circumstantial material, if it corresponds with other independent records. Not by itself.”

“And if the incentive policy proves to be ordinary?”

“Then the force of this ground diminishes, perhaps disappears entirely.”

Justice Sen made a note.

“That is the proper form of inference—the condition for the conclusion, and also the condition for its failure, must both be stated.”

Seated behind them, Malini wrote that sentence into her notebook.

The condition for a conclusion. The condition for its failure.

It suddenly struck her that without those two lines, most digital analysis was little more than an attractive picture.



The discussion of the third witness, Sudip Narayan, was conducted in the quietest voice of all.

His diary contained a few dates, a few initials, several question marks, and, in two places, sentences of regret. On one page he had written: “I saw it, but I did not ask.” On another: “These accounts are not straight.”

The first investigation team had treated those lines as possible indications of inside knowledge. Later Aditya had questioned that classification.

Justice Kaushal asked, “Is the diary genuine?”

The Solicitor General said, “The handwriting expert’s preliminary opinion, the sequence of the paper, the manner in which it was received, and the consistency of the dates point toward authenticity. The final expert opinion has not yet been filed.”

“This ‘I saw it’—what did he see?”

“Unclear.”

“‘These accounts are not straight’—which accounts?”

“Unclear.”

Justice Karim said, “Then we have the language of guilt, but not a description of the offence.”

Vidyanand said, “My Lords, a person may feel remorse for many reasons. Negligence, fear for his job, private conflict, the later realisation that his own decision was mistaken—”

Justice Sen looked toward the State.

“Your answer?”

The Attorney General said, “The State agrees that guilt-feeling is not proof of guilt. But some of the dates mentioned in the diary correspond with unusual entries in the financial records. The reason for that correspondence is capable of being tested.”

“Use the word ‘correspond’ carefully,” Justice Sen said. “The fact that dates coincide does not establish unity of cause.”

“Accepted.”

“Then Sudip’s emotional state?”

“Context for assessing the witness’s credibility; not a foundation for the conclusion.”

The Bench recorded another observation—

An expression of guilt, unless connected with a specific event and independent material, is not a sufficient ground for an inference of culpability.

A kind of calm descended within Aditya.

Manoj’s fear. The possibility of Rajat’s greed. Sudip’s guilt.

All three men could break.

The method had no right to.



After noon, the Court’s questions grew harder.

Justice Sen placed the State’s diagram before the Attorney General.

“In this diagram, six digital indicators are drawn as arrows pointing toward a single centre. The image itself creates a psychological effect. The Court is concerned that the picture may outrun the reasoning.”

From a distance Malini looked at the diagram. She herself had prepared its first version. A circle stood at the centre; around it were arrows from payments, access logs, filenames, timestamps, witness statements, and webpage connections.

That day the diagram had seemed beautiful to her. Today it looked frightening.

The Attorney General said, “My Lords, if permitted, the State is prepared to withdraw this visual. The arrows imply ‘causal connection’ when most of the relationships remain under examination.”

Justice Kaushal said, “Do not withdraw it. Correct it. The Court wants to see how you classify your inferences.”

At Aditya’s signal, Malini stepped forward. With the Court’s permission, she presented a new version of the diagram.

This time there was no person or institution at the centre. There were four independent columns—

Verified digital facts.

Verified financial facts.

Witness statements.

Inferred connections.

Beside every line under inferred connections were two additional boxes—

Alternative possibility.

Next verification.

Justice Sen studied the diagram.

“This is more honest.”

Vidyanand said, “But less beautiful.”

A faint ripple of laughter passed across the Bench.

Malini smiled too.

Justice Karim said, “Beauty has its uses in law, but not the beauty that manufactures illusion.”

Malini returned to her seat. Something within her was changing. At first, digital material had seemed to her a mass of truth. Then she had learned that digital material is not fact until source, integrity, context, and meaning are clear. Now she was learning something else: even the visual form of facts is not neutral. Which arrow is drawn, which colour is used, which centre is chosen—each can alter the psychology of inference.

She wrote in her notebook—

A picture also argues.

And beneath it—

Therefore a picture, too, must obey the limits of proof.



In the next phase of the hearing, Justice Kaushal offered a hypothetical example.

“Suppose five separate establishments use the same payment intermediary. Four have no connection with one another. A witness has contact with an employee of the fifth. Are all five then a single network?”

The Attorney General said, “No.”

“Suppose all five also have the same webpage architecture?”

“Still no. A common service provider is possible.”

“Suppose they use the same timestamp format?”

“A common software system is possible.”

“Suppose the wording is similar?”

“Copying, an outside consultant, a shared template—alternative causes are possible.”

“Then when does the inference grow strong?”

Before answering, the Attorney General looked at Aditya’s written note.

“When several grounds arrive from independent sources, and their alternative causes progressively diminish, and when their coexistence is explained not merely by copying but by an independently established relationship. Even then, the limits of the conclusion must be stated.”

Justice Sen said, “That is the question of pervasion. Similarity of appearance does not establish sameness of cause.”

Vidyanand added, “And the danger in an investigation is that once the word ‘network’ enters the file, every new fact begins to be read as confirmation of it.”

The Solicitor General said, “For that reason the State has adopted the ‘alternative possibility’ column.”

Justice Karim said, “It is easy to make a column on paper. Harder to make one in the mind.”

At those words Aditya unexpectedly remembered his father.

While weeding the paddy field, his father used to say, “Once you decide what a plant is, every plant that comes later begins to look like it. The mind makes its mistake before the eye.”

At the time Aditya had been a child. Today he understood: it had been a village language for confirmation bias.



Before the hearing adjourned, something unexpected happened.

Counsel for the State placed a brief note before the Bench. Manoj Mahato had given a fresh clarification from the protection unit. One line of his first statement—“I was told that they knew where my son studied”—had not, in fact, been a precise word-for-word memory. He now said the anonymous caller may have mentioned not the school’s name but the name of the market near the school.

Vidyanand rose immediately.

“My Lords, this is not a minor alteration. The State’s first presentation relied upon the fear created by personal information.”

Without resistance, the Attorney General said, “We place the clarification on record. To the extent that the earlier statement is affected by it, the State accepts that its force is reduced.”

Justice Kaushal asked, “Why did Manoj change his statement?”

“He says that after repeated questioning and public discussion in the news, he became uncertain of the exact words he had heard. For that reason the State has not yet sought an independent psychological or memory expert’s opinion; the change has simply been recorded.”

Vidyanand said, “This shows that fear can alter memory.”

Justice Sen stopped him at once.

“No, Mr Mishra. That too is an inference. It shows only that the statement changed. The cause may be fear, time, the effect of questioning, genuine correction of memory, or something else. The limit we are teaching the State applies equally to the petitioner.”

Vidyanand was silent for a moment.

Then he inclined his head.

“Accepted, My Lord.”

Aditya understood the importance of that moment. The Court was not cutting away one side’s excess only to leave the other side’s inference unexamined. The rule was the same.

Method does not take sides.



When the Court rose in the evening, reporters were waiting outside. Ananya Kashyap was there too.

One reporter called out to the Attorney General—

“Has the Court accepted that the witnesses are unreliable?”

The Attorney General did not stop.

Ananya came over to Aditya.

“One question.”

Aditya stopped.

“If Manoj’s statement has changed, has the State’s whole inference become weaker?”

Aditya said, “Which inference?”

Ananya was silent for a moment.

“The one about the offshore network.”

"There is no single inference of that kind in the file. There are several separate questions. Any ground that depended on the part of Manoj's statement that has changed will change in force. The remaining material will be tested on its own basis."

Ananya said, "That answer will not make a headline."

"Then teach the headline patience."

Ananya laughed.

"You people cut inference into so many pieces in court that the reader will run away."

Aditya replied, "Better the reader run away than the truth."

Ananya's laughter stopped. She closed her notebook.

"I will not print that sentence."

"Why?"

"Because it is too beautiful. People will mistake it for proof."

This time Aditya laughed.



That night the State's team sat down again in a small room in the Ministry. The Attorney General had instructed that before the next hearing, every inference must have its "condition of failure" written beside it.

Malini opened a new table.

First line—the same payment intermediary.

Condition of failure—if the intermediary is widely used by unrelated establishments and no specific instruction or flow of benefit is found.

Second—the same webpage structure.

Condition of failure—if a common service provider or publicly available template is established.

Third—the same timestamp sequence.

Condition of failure—if it is a routine feature of a common system configuration.

Fourth—Manoj's alleged personal information.

Malini stopped.

Aditya said, "Write—weak in its present form. Memory of the words has changed. Public sources were available. No independent identification of the source."

"Remove it?"

"No. History is also part of the record. What was first thought, and why it was later changed—that must remain."

"People will say the investigation is confused."

"Hiding confusion does not make a method straight."

Malini wrote the next line.

Fifth—Rajat's additional payment.

Condition of failure—if the ordinary incentive policy fully explains it and no independent connection with altered naming is found.

Sixth—the correspondence between Sudip's diary and the financial dates.

Condition of failure—if the coincidence of dates is explained by the ordinary accounting cycle, or if the subject of the diary entry proves unrelated to the financial entry.

Malini stopped suddenly in the middle of writing.

"Adityaji—"

Then, realising her own slip, she corrected herself—

"Adityaji, one thing."

Aditya looked at her.

"Earlier I used to add facts to make an inference stronger. Now I am adding questions to make it fall."

"That is how the strength of an inference is tested," Aditya said.

"And if they all fall?"

"Then let them fall."

"And a month of work?"

"Labour has no right to stand against truth."

Malini was silent for a while.

Then she said, "Then an investigator should not become attached to his own theory."

"He will."

"Then what?"

"Then he needs a method against attachment."



That same night Vidyanand Mishra also remained in his chamber until late. Shailaja's condition was stable now, but the treatment would be long. The financial anxiety had not ended. Raghav Sethia's representative had sent another message: "The witnesses are changing. The State's story is collapsing. We need a hard line in the media tomorrow."

Vidyanand read the message and put down his phone.

A junior counsel asked, "The reply?"

"Write: 'We will not comment outside the record on a matter presently before the Court.'"

"The client will be displeased."

"Let him be."

"He will say we are not aggressive."

Vidyanand looked toward the window.

"Aggression is not an advocate's duty. Accuracy is."

The junior fell silent.

Vidyanand added quietly, "We will cut away the State's weak inferences. But if, in order to cut away weak inferences, we manufacture false certainty of our own, what difference remains?"

He remembered Shailaja's words: a crisis at home will not purchase your professional integrity.

Today its meaning had widened before him—the client's fear would not purchase it either.



Very late that night Aditya returned to the guest house. On the table lay the draft of the day's order. The Court had written—

Suspicion may initiate an investigation, but by itself it does not establish the truth of an allegation.

An allegation is a matter for testing, not a conclusion.

The value of evidence depends upon its source, integrity, context, admissibility, and the opportunity for cross-examination.

Inference is a logical relation among facts; its strength depends upon testing its ground, pervasion, limiting conditions, and alternative possibilities.

A witness's fear, greed, or guilt is a human condition; it must not automatically be treated as proof of culpability.

Aditya kept reading the order.

Outside, the night deepened. Delhi's sounds were slowly thinning away.

He opened his notebook.

First he wrote—

Suspicion grants the right to ask a question; it does not confer ownership of the answer.

After a while he added a second line—

The discipline of inference does not lie in reaching a conclusion; it lies in showing the path by which one travels toward it.

He put down his pen.

Tomorrow the question of privilege versus investigation would rise again in the High Court. The web of inference was now about to touch not only facts, but the limits of authority itself.

Aditya opened the window.

Somewhere far away, thunder rolled.

Whether it would rain, he did not know.

But there were clouds.

That much was perception.

The rest was inference.

025 The Web of Inference — Chapter 12

The first light of dawn was spreading across Delhi's grey sky, but the darkness of the night still stood upon Aditya Jha's writing board. The summary of the previous day's Supreme Court proceedings, the statements of three witnesses, the Ministry's revised legal file, and the privilege dispute listed for hearing in the High Court that day lay in separate piles.

Above them all he had placed a single sheet. On it were written only five words.

Location. Name. Relationship. Purpose. Content.

Malini Karn came in. In her hand was a classification list prepared through the night.

"This is the new list," she said. "The portion of the seized digital material over which privilege has been claimed."

Aditya took the list.

"How have you made the categories?"

"First, clear legal advice. Second, records in which legal and commercial matters are mixed. Third, external identifying information only—sender, recipient, timestamp, file name, size, and path. Fourth, material whose privileged status is disputed."

Aditya ran his thumb over the first page.

"And the fifth?"

Malini looked startled. "The fifth?"

"What we do not know."

She was silent for a few moments, then added an empty line to the list.

"Unclassified."

"No," Aditya said. "That is merely an administrative word. Write: 'As yet undecided.' Uncertainty has to be named, or the list will quietly turn it into certainty."

Malini wrote it down.

"I have a question," she said.

"Ask."

"If a record is titled 'Legal Opinion,' and it is found on a lawyer's computer, is an inference of privilege not justified?"

Aditya looked at her.

"The inference may be justified. The conclusion is not."

"Meaning?"

"The name may be a ground, not the proposition to be proved. The location may be a ground, not the proposition. The sender-recipient relationship may be a ground, not the proposition. To understand the purpose, one may need to ask what the content is; but the process of looking must not itself destroy the privilege."

Malini said softly, "So to determine privilege, we must open the record; and by opening it, we may breach the privilege. It is a circle."

"Exactly."

"Then what is the answer?"

"Let someone outside the original investigative team conduct a limited review. Whatever is seen must remain bounded in use. Whatever is truly legal advice must stay away from the original team. And whatever is merely a business record must not be made sacred simply because it sat in a lawyer's office."

Malini closed the list.

"Inference runs both ways here."

"That is why it is difficult."

Aditya looked towards the window.

The Supreme Court's questions from the previous day were still in his mind. Fear was not evidence. Greed was not guilt. Remorse was not truth. A human condition acquired legal meaning only when it joined itself to the record.

That day, in the High Court, another form of the same principle was about to appear before them. A lawyer's office. Legal language. A client's name. Advisory fees. Commercial tables. External identifying information. Everything stood close together. But proximity was not identity.



Justice Arya's courtroom was full.

Vidyanand Mishra sat quietly in his place. Three files lay open before him: the first contained the High Court's earlier order, the second the classification made by the independent review team, the third the State's response.

The senior law officer for the State rose.

“My Lady, today we do not challenge the existence of privilege. The dispute concerns its boundary and the method by which it is identified.”

Vidyanand rose at once.

“Nor is our quarrel with the power to investigate. The question is how far, on the basis of inference, one may lawfully enter confidential legal communication.”

Justice Arya said, “Then there is agreement at the outset that neither right is absolute?”

“Yes,” came the answer from both sides.

“Then leave generalities aside. Come to the thing itself.”

A court officer carried a sealed list to the Bench.

Justice Arya read the first entry.

“Record saved under the name ‘Legal Opinion, Final.’ Recovered from the forensic image of the lawyer’s office computer. The State says its external identifying information contains the names of persons said to be connected with the alleged offshore business structure. Mr Mishra, your position?”

Vidyanand stood.

“The name, the location, and the recipient are all strong indicators of privilege. The content, too, is legal advice. The State cannot permit the original investigative team to read it.”

The State’s officer said, “We are not asking for the content. We seek a limited examination of the external relationships.”

“What is being asked under the name of ‘external relationship’ ultimately pushes towards the conclusion that the lawyer participated in the alleged business structure.”

The State’s officer replied, “We do not presently advance that conclusion.”

Justice Arya immediately asked, “Not presently—or never?”

The room went still.

Choosing his words, the State’s officer said, “The material presently available does not establish such a conclusion. The external relationships merely raise questions for investigation.”

Justice Arya nodded.

“That distinction will remain on the record.”

Vidyanand was about to speak, but the judge raised a hand and stopped him.

“Let us look at the second entry.”

She read.

“‘Client Review, Tax Structure.’ It contains both legal commentary and a table of fund transfers.”

Vidyanand said, “It is a mixed record. The legal portion should remain protected.”

The State agreed.

Justice Arya asked, “The commercial portion?”

Vidyanand replied, “If it can be independently separated, we will not claim privilege over it merely because it sits inside a legal record.”

Aditya sat behind them, listening.

The sentence struck him as important. Vidyanand was himself acknowledging the boundary of his own case.

Justice Arya noticed it too.

“Good. Then location does not create privilege. Nor does the title. The governing considerations are the purpose of the legal relationship and the nature of the confidential communication. Equally, material that is an independent commercial fact does not become protected merely because it resides on a lawyer’s computer.”

Vidyanand said, “Yes, provided the process of separation is trustworthy.”

“That is the real question here.”

The State then placed a four-row table before the Court.

First	row:	the	place	from	which	the	record	was	obtained.
Second:			external			identifying			information.
Third:		facts	verified		from		independent		sources.
Fourth:	the inference proposed by the State.								

Vidyanand studied the table.

“The problem lies in this fourth row,” he said. “The State writes: ‘The similar fund-transfer pattern indicates the possibility of commercial control under cover of legal services.’ The inference has travelled beyond its foundation.”

The State’s officer said, “We have written ‘possibility,’ not ‘proved.’”

“The word ‘possibility’ does not confer limitless authority.”

Justice Arya looked towards Aditya.

“Is the investigating officer present?”

Aditya rose.

“Yes.”

“Is this inference your team’s?”

“Yes, in its preliminary form.”

“Do you still maintain it in this form?”

Aditya looked at the table.

“No, My Lady.”

A faint movement passed along the State’s row.

Justice Arya’s voice did not change.

“Why?”

“Because three alternative explanations have been found for the similar transfer pattern. One: the same accounting-service provider. Two: the same tax-advisory template. Three: standardised presentation of legal fees. It would be improper to move to ‘commercial control’ without first excluding those alternatives.”

For the first time, Vidyanand looked directly at Aditya.

Justice Arya asked, “Then what do you maintain?”

“Only that the pattern is similar. Its cause remains undecided. Whatever has been verified from an independent source should be kept separately.”

“The State’s table will be revised.”

“Yes.”

Justice Arya turned to Vidyanand.

“Your position on that revision?”

Vidyanand said, “It is the more accurate position.”

The tension in the room did not diminish, but its character changed.

The contest was no longer over who could speak more sharply. The question was which sentence could bear the weight of its own foundation.



During the midday recess, Malini sat beside the courtroom corridor. Five circles had been drawn in her notebook.

Location. Name. Relationship. Purpose. Content.

Between the lines joining the five, she had drawn question marks.

Aditya came and sat beside her.

“Did you understand something?”

Malini said, “Earlier I thought that several closely placed facts, taken together, made a strong inference.”

“And now?”

“Proximity alone is not enough. If they all arise from the same source, or if a single alternative explanation accounts for them all, then even five indicators may amount to only one.”

Aditya smiled.

“Without pervasion, number can be mere noise.”

“And privilege?”

“It is a right, not magic.”

“Meaning?”

“It should protect what it was created to protect. It should not make an independent fact invisible merely because that fact stands nearby.”

Malini wrote in her notebook.

Even to understand the boundary of privilege requires inference; but to understand the boundary of inference requires procedure.

She read the line and stopped herself.

“Too philosophical?”

Aditya said, “Not if it can be put into practice.”



After the recess, the dispute moved to the third group.

This group contained several emails addressed jointly to the lawyer, the client, an accountant, and outside business advisers.

Vidyanand claimed that the confidentiality of legal advice could still survive if the outside adviser had been a necessary participant in the process of obtaining legal advice.

The State said that the necessity of the third party’s presence was itself a matter requiring separate examination.

Justice Arya asked, “You are both speaking in generalities again. Take one example.”

One email was selected.

Its subject line was in ordinary commercial language. The content had been seen only by limited members of the review team, not by the original investigative team. The review team’s report stated that half the email consisted of tax-law analysis and half of operational instructions.

Justice Arya asked, “Can the two parts be separated?”

Counsel for the review team said, “Yes.”

“Then the legal analysis remains protected. The operational instructions, if they constitute independent commercial facts, may enter the category of ordinary investigable material. But they may not be used by themselves to establish guilt; only as verifiable facts.”

Vidyanand considered this for a moment.

“We will not oppose that limited arrangement, provided the original legal passages remain redacted.”

The State agreed.

A strange calm came over Aditya.

At times the success of a court lay not in the severity of its order, but in the exactness of its boundary.

◆
The dispute then reached an entry at which every eye stopped.

The file was named “Strategy, Private.”

It had been recovered from the lawyer’s personal work computer.

The external identifying information showed that the file had been modified three times. The final modification was on the same day that one website belonging to the alleged business group was said to have suddenly gone offline.

The State raised a question about this coincidence in time.

Vidyanand immediately said, “That is an exceedingly weak inference. Two events occurring on the same day do not create a causal relation.”

Justice Arya asked Aditya, “Why did your team mark this temporal coincidence?”

“Because the events were close in sequence.”

“That alone?”

“So far, yes.”

“Then write ‘temporal coincidence.’ Not ‘relationship.’”

Aditya bowed his head.

Vidyanand said, “And the content?”

The review-team officer replied, “Pure legal case strategy.”

Justice Arya gave a clear order. “The original investigative team shall have no access. The existence of the external timestamp may remain on the record, but no operational role shall be inferred merely from coincidence in time.”

Seated behind them, Malini wrote.

To happen at the same time is not to have the same cause.

It was a simple sentence. Yet in the web of an investigation, simple sentences such as this were often the hardest.

◆
In the final part of the hearing, Justice Arya asked both sides a question.

“What is privilege meant to protect?”

Vidyanand said, “The client’s freedom to seek legal advice without fear.”

The State’s officer said, “So that the judicial system remains worthy of trust.”

Justice Arya asked again, “And what is the power to investigate for?”

The State replied, “For lawful access to verifiable facts.”

Vidyanand added, “Within the limits of that power.”

“Then the final purpose of the two systems is not to destroy one another.”

No one answered.

Justice Arya said, “Independent commercial facts cannot be made to disappear behind privilege. Nor can legal confidentiality be broken in the name of investigation. If the State makes an inference, it must state its ground, demonstrate the pervasion it relies upon, acknowledge limiting conditions, and record contrary possibilities. If privilege is claimed, what must be shown is not merely location or title, but purpose and the nature of the communication. The review shall remain independent.”

Then she looked towards Aditya.

“And an inference the State itself comes to regard as weak?”

“We will withdraw it,” Aditya said.

“Erase it from the record?”

Aditya replied, “No. We will retain it with the reason for its revision, so that the process remains visible.”

A faint approval appeared on Justice Arya’s face.

“Good. The integrity of an investigation lies not only in reaching accurate conclusions, but also in preserving the history of possibilities that proved mistaken.”

◆
When the Court rose that evening, Vidyanand stopped beside Aditya in the corridor.

“May I say something?”

“Please.”

“Today you struck down two of your own inferences.”

“Yes.”

"Does everyone in your department accept that so easily?"

Aditya gave a quiet laugh.

"Nothing is easy."

"Then why do it?"

"An inference that requires me to alter facts in order to save it ceases to be my inference. It becomes my vanity."

Vidyanand remained silent for a few moments.

"The same happens with lawyers," he said. "Sometimes a client wants me to turn his fear into a right. Fear can be protected, but it cannot take the place of truth."

"Then today we were standing on different sides of the same principle."

Vidyanand smiled.

"Perhaps."

He walked on.

Malini came up beside Aditya.

"That conversation will not go on the record?"

"No."

"But it was important."

"Not everything important is evidence."

Malini opened her notebook again.

"May I write that?"

"For yourself, yes."



Night deepened.

As Aditya's car crossed the Yamuna on the way back to the guesthouse, his mind travelled much farther east.

An old night by the Ganga returned to him. He had been a student then. His father had taken him on a pilgrimage. There were very few people on the ghat steps at night. The water looked black, but the reflection of a distant lamp kept breaking and reforming upon the ripples.

Pointing to one light on the water, his father had asked, "Where is that lamp?"

Aditya had answered, "In the water."

His father had laughed.

"Is everything where it appears to be?"

The boy Aditya had looked up then. The real lamp was on the wall of the ghat. In the water there was only its reflection.

That night his father had spoken the name of Gangesha Upadhyaya.

"Gangesha's work was not merely to argue. He asked: how was knowledge formed? What you saw—was it the thing, or a reflection? The relation you accepted—what was its cause? The cause you accepted—how far did its pervasion truly extend?"

The boy Aditya had understood half of it. The other half he had not.

Now, after so many years, he could hear those questions again inside the courtroom.

A record was found on a lawyer's computer. That was a fact of location.

The record bore a legal name. That was a fact of naming.

Another event occurred on the same day. That was temporal coincidence.

Sender and recipient knew one another. That was an indication of relationship.

But between all this and propositions such as "commercial control," "knowledge," "participation," or "guilt," an entire bridge was required.

A leap without that bridge was not inference. It was desire.

Aditya did not ask the driver to stop. The lights of the city streamed across the glass. But in his mind he was seated by the Ganga.

He did not remember word for word any passage from a work of Gangesha Upadhyaya. What he remembered was a method that had changed shape and remained alive—in the household, in the fields, in his father's sentences, and now in the questions of a court.

First make the subject clear.

Then the proposition to be established.

Examine the ground.

Ask about pervasion.

Look for limiting conditions.

Invite contrary possibilities.

And if the bridge breaks, do not pretend you have crossed.



In the last watch of the night, Aditya reached the guesthouse. Malini had already sent him a revised table.

He opened it.
First entry:
Location: lawyer's work computer.
Name: Legal Opinion.
Content: privilege-protected.
External relationship: recorded in limited form.
Inference: no operational role established.
Second:
Location: mixed file.
Content: legal portion separated; commercial portion capable of verification.
Inference: subject to independent verification.
Third:
Temporal coincidence: present.
Causal relation: unproved.
Fourth:
Similar transfer pattern: present.
Alternative explanations: three.
Commercial control: as yet undecided.
For a long time Aditya looked not at the screen, but at the printed copy.
Then he lifted his pen.
At the bottom he wrote:
Privilege is not the enemy of investigation; it is the enemy of unauthorised sight.
And beneath it:
Inference is not the enemy of rights; unrestrained inference can become their enemy.
He stopped his pen.
The next day there would again be argument over sealed material and the confidentiality of the investigation diary. The question would no longer be only what may be seen, but also how, within what is sealed, fact is to be kept distinct from the investigator's interpretation.
Aditya extinguished the lamp.
The room went dark.
That old lamp by the Ganga shimmered again in his mind.
There had been a reflection in the water.
There had been a lamp on the wall.
Both were visible.
But they were not the same.

026 The Web of Inference — Chapter 13

By the time the first light of dawn touched the red walls of the Delhi court complex, the day's question had already entered the building. At the previous hearing, the Court had tried to clarify the limits of privilege; now the question had come to rest upon sealed material and the confidentiality of the investigation diary.

Aditya Jha had been awake through the night. Two files lay open on the writing table—one containing the Court's previous order, the other the classification chart prepared by the independent review team. Against every line of the chart stood four columns:

Direct material.

The investigator's interpretation.

The reason for confidentiality.

The limit of judicial use.

Malini Karn sat across from him. Sleeplessness showed in her eyes, but her voice was steadier than before.

"Look at this third line again," Aditya said.

Malini read aloud, "One payment reference, one abbreviated name, and in the investigation diary the words —'possible point of coordination.'"

"Are all three the same kind of fact?"

"No."

"Separate them."

Malini lifted her pen.

"Payment reference—direct record."

"Correct."

"Abbreviated name—directly present, but the identity remains unproved."

"Correct."

"Possible point of coordination'—the investigator's interpretation."

"And if all three are inside the same sealed cover?"

Malini paused for a moment.

"Then the fact that they are under the same seal does not give all three the same evidentiary weight."

A faint satisfaction touched Aditya's face.

"That is all we need to say in court today. A seal can protect; it cannot prove."



When the hearing began, Vidyanand Mishra was the first to rise. His voice was calm, but every word had been weighed.

"My Lady, under the label of sealed material, the State is placing before the Court interpretations that the opposing side cannot test. If an adverse order is founded on such interpretation, confidentiality will have taken the place of a fair hearing."

The Solicitor General rose for the State.

"The State does not contend that an investigation diary should itself become evidence. The diary is a record of the path of investigation. But some portions concern witness safety, the privacy of third parties, or the integrity of future investigative steps. Complete disclosure may itself be improper."

Justice Arya intervened. "Then the question is not disclosure versus confidentiality. It is the manner in which the material is used?"

"Yes, My Lady."

"And the Court must remain clear about what is direct material and what is merely the investigator's interpretation?"

"Yes."

Vidyanand said, "That is precisely our objection. In the previous file, one line contained a direct record and the next used language that sounded like an investigator's conclusion. Without the seal being opened to us, we cannot know which of the two the Court is relying upon."

Justice Arya looked toward the State.

"Investigating Officer?"

Aditya stood.

"Present, My Lady."

"Your diary contains the words 'possible point of coordination'?"

"Yes, My Lady."

"Is that a fact?"

“No. It was an investigative hypothesis.”

“And now?”

“Even now, it remains only a hypothesis. Some supporting indications have emerged, but neither control nor a participatory role has been proved.”

“Then if the Court were to use that line, in what capacity could it use it?”

“At most, to understand the direction of the investigation; not as an adverse fact.”

Justice Arya wrote something down.

“That answer will remain on the record.”

Malini sat in the row behind them. She remembered her first day—when a hash had seemed to her like a seal upon digital truth. Then she had learned that a hash spoke only to integrity. Now another layer was opening before her: sealing, too, was not a seal of truth. It was a procedure of confidentiality.

Justice Arya said, “I want four categories. First—material capable of independent verification. Second—interpretations recorded in the investigation diary. Third—information whose disclosure may endanger a witness or harm a third party. Fourth—material over which privilege is claimed. Each category will be governed by a different rule of use.”

Vidyanand nodded in agreement, but said, “And if the State’s adverse submission rests on the second category?”

“Then,” Justice Arya said, “the State must provide enough of a summary to enable a meaningful answer by the opposing side, so far as that can be done without unnecessarily compromising witness safety or privacy.”

The Solicitor General said, “The State agrees with that principle.”

“Agreement is not enough,” Justice Arya said. “Against every line of the chart, the source, status, purpose of use, and limitation must be stated.”

Aditya opened his notebook.

This time he wrote four headings—

Source.

Status.

Use.

Limit.

Malini watched from a distance. It seemed to her that four words from the Court could alter the language of an entire investigation.

During the midday recess, Malini sat with Aditya on the outer veranda of a small canteen. Taking a sip of water, she asked, “If we write in the diary—‘this person probably knew’—is it proper to leave that sentence there at all?”

“If the basis for that possibility was recorded at the time, leave it.”

“But what if the basis later turns out to be weak?”

“Then record in a later entry that the basis weakened.”

“We do not erase the earlier line?”

“Why should we?”

Malini fell silent.

Aditya said, “An investigation diary is not a victory scroll. It is a record of a journey. If we took a wrong turn, that too is part of the history. Erase it, and the diary becomes a story.”

“But the opposing side will lift out that old line and say the investigation was prejudiced.”

“Then we will show how the possibility of prejudice was tested and how the view was revised. If there truly was prejudice, we will acknowledge that too.”

Malini said softly, “That is difficult.”

“Truth needs rules precisely because protecting it is difficult.”

At the afternoon hearing, one page from the sealed file was placed before the Court. It contained the name of a witness, the location of the witness’s family, and a summary of the witness’s statement. Vidyanand immediately said, “We are not asking for the name. But if the substance of the statement is to be used against our client, we must have an opportunity to answer it.”

The State replied, “Disclosure of the name may create a real danger to the witness.”

Justice Arya looked toward Aditya.

“Which portions of the witness’s statement correspond with independent material?”

Aditya was ready.

“Of the three points, two—the timing and the pattern of amounts—partially correspond with independent records. The third point, concerning a personal instruction, has not yet been independently confirmed.”

“Then what status did the State give that third point in its adverse statement?”

The Solicitor General looked at the file.

"The preliminary draft described it as 'supported.'"

Justice Arya's gaze hardened.

"Why?"

Aditya answered at once. "That word is inaccurate. It should read: 'unsupported witness statement.' A corrected copy is ready."

Vidyanand removed his spectacles and looked at Aditya.

"Then the State accepts that its first formulation was stronger than the material justified?"

"Yes."

"And how was the error caught?"

"While preparing the source-status-use-limit chart."

Justice Arya said, "That is why classification is necessary. Confidentiality is not a means of making error invisible."

The sentence cut deep into Malini.

Confidentiality is not a means of making error invisible.

She wrote it in her notebook, then drew a circle around one word—invisible.



The final part of the hearing centred on the judicial use of the investigation diary.

Vidyanand said, "A diary records the movement of an officer's mind. The movement of the mind cannot take the place of fact."

The Attorney General himself rose.

"The State agrees that the diary is not independent evidence. But the Court may examine it in a limited way to understand the lawfulness, direction, and care of the investigation, provided that inferences recorded in the diary are not treated as proved facts."

Justice Arya said, "Then we will make the principle explicit in the order. Judicial sight of sealed or confidential material does not, merely for that reason, increase its evidentiary value. The investigation diary may illuminate the process of investigation; it does not prove guilt. Any fact forming the basis of an adverse order should, so far as possible, be capable of independent testing."

Vidyanand said, "That boundary matters to us."

"It matters to the Court as well," Justice Arya replied.



That evening, in the review room, Malini opened the old chart again. This time she added four new columns of her own:

Direct fact.

The investigator's interpretation.

Independent confirmation.

Residual uncertainty.

Aditya came in.

"What changed?"

Instead of the computer screen, Malini handed him the printed chart.

"Earlier I thought we only needed a line between fact and conclusion. Now I see there are many steps in between."

"How many?"

"Fact. Relationship. Possibility. Rival possibility. Independent confirmation. Remaining uncertainty. And only then, a limited inference."

Aditya said, "That is how a web of inference is made. One thread may break without the whole web collapsing. But where the thread has broken, no weight should be placed."

Malini looked at one line.

"We had placed too much weight on this payment reference."

"And now?"

"The amounts correspond. So do the times. But the identity of the recipient is still incomplete. So no inference of control."

"Correct."

"This second one—the witness statement. Two parts confirmed, the third unconfirmed."

"Correct."

"And this line in the diary—'point of coordination.' Only the investigator's interpretation."

"Correct."

Malini smiled.

"And the seal?"

Aditya smiled too.

"Protection. Not proof."

By nightfall, the draft order arrived. The Court had directed the State to provide a four-tier list—verifiable material, investigators’ interpretations, protected private information, and privileged material. No adverse judicial submission was to be made beyond the point at which the opposing side had a sufficient opportunity to answer; witness safety and third-party privacy were not to be unnecessarily breached.

Aditya was reading the order when a message arrived from the Ministry.

The legal team handling the pending special-leave matter in the Supreme Court wanted to prepare revised grounds addressing the effect of this new order. The question was whether the new confidentiality structure would itself become a fresh ground in the appeal, or whether the High Court’s classification regime would quiet some part of the dispute.

Malini asked, “What do you think?”

Aditya closed the order.

“First we see what the order actually says. Then we infer.”

“And if both sides read their own victory in the same order?”

“Then the Court will ask again where the words end.”

Malini closed her notebook.

She now understood that evidentiary restraint was not merely a caution imposed by a court. It was a test of the investigator’s character: the courage to call a small fact small; the patience to call an incomplete inference incomplete; the discipline to keep confidential material confidential without increasing its evidentiary weight.

Outside, the Delhi night had spread across the city. Distant lights fractured against the glass. Malini watched them for a moment, and then remembered Aditya’s old sentence—both the reflection and the lamp can be seen, but they are not the same.

Now she understood another meaning of the sentence.

A seal and evidence can both exist on paper.

A diary and a fact can both live in the same file.

Confidentiality and truth can both be present in the same courtroom.

But justice begins only when each is recognised in its proper place.

That night the web of inference grew finer still.

And at the next dawn, one of its threads would rise again toward the Supreme Court.

027 The Map of Analogy — Chapter 1

The first light of dawn was settling upon Delhi's glass and stone, but night had not yet ended on Malini Karn's display screen. Three domain names, five payment routes, seven timestamps, two custody registers, and several name-resolution records lay beside one another. The lines joining them were the same lines drawn the week before, but their colours had changed. A connection independently confirmed was drawn thick; one that remained only a possibility was pale as a whisper; and whatever existed solely as an investigator's interpretation was enclosed in a dotted ring.

Malini raised her hand to draw a new line, then stopped.

Aditya Jha came in. He carried two paper files, and on his face was the weariness of a man who had slept little but was not looking for a reason to trust his own conclusion more than the evidence allowed.

"Why did you stop the line?"

Malini looked at the display.

"The architecture of these two domains is almost identical. The sequence of the login page, the method of payment requests, the format of customer-identification checks, even the timing-pattern of administrative replies. Until yesterday I kept this on the side of inference. Today it feels as though there is something more than inference here."

"What?"

"Resemblance."

Aditya pulled out a chair and sat down.

"You have seen the resemblance?"

"Yes."

"Have you seen the cause of the resemblance?"

"No."

"Have you seen the owner?"

"No."

"Have you seen a single operations centre?"

"No."

Malini smiled faintly.

"Which means we are at the boundary again."

"Not at a boundary," Aditya said. "At a new door."

He opened the paper file. At the top, in small letters, was written: Analogy.

Malini read the word and asked, a little surprised, "Now?"

"Inference taught us how far we may travel from an observed fact. Analogy will ask: by placing the unknown beside something known, what may we understand—and what may we not?"

"Then these two architectures?"

"They may become material for analogy. Not the end of proof."

Malini looked back at the display. The matching lines suddenly seemed less luminous.

"If two websites were built from the same template?"

"Then we may say there is similarity of template."

"If the stages of two payment routes move in the same sequence?"

"Then similarity of process."

"If the language of replies, their timing, the error messages, and the customer-identification checklist are also the same?"

"Then the force of the resemblance increases."

"But ownership?"

"Not yet."

"Control?"

"Not yet."

"Raghav Sethia's role?"

Aditya looked directly at her.

"Still a question."

For a few moments the room was silent. Footsteps sounded in the corridor outside. Within, an old discipline of reasoning was taking its first seat before a modern computational map.

At that same hour, on the other side of the city, night had not fully ended in Vidyanand Mishra's office either.

The consolidated amended copy in the pending special-leave matter lay open before him. After the High Court's later orders, separate supplementary grounds had been filed from time to time; now they were preparing a single, ordered text for the Supreme Court Registry—one that would place together the original questions in the petition, the subsequent orders, confidentiality classifications, privilege, and the State's inference-based submissions.

His junior, Neeraj Jha, was reading a paragraph aloud.

"The State infers an integrated offshore operation from the alleged similarity of computational architecture, payment pathways, timing patterns, and records.' Do we keep this?"

Vidyanand removed his spectacles and placed them on the wooden writing board instead of the desk.

"The State infers'—that is correct. Do not write 'an integrated operation stands proved.'"

"I have not written 'proved.'"

"Read the next sentence."

Neeraj read: "These similarities make the petitioners' alleged operational connection clear."

Vidyanand shook his head.

"Not clear. Indicated, in the State's view. Disputed, in ours."

"The language will become very soft."

"Softness is not a defect in court. Vagueness is."

Neeraj began revising the sentence.

Vidyanand turned toward the window. In Delhi's grey dawn, the buildings in the distance looked like one another: the same colour, the same height, the same glass. Yet he knew that buildings identical from outside could have wholly different owners, uses, contracts, debts, and inner lives.

A thought came to him abruptly: where did the legal value of the similarities the State was counting come to an end?

"Neeraj," he said, "add a separate ground."

"What?"

"Similarity and identity are different questions. If the State uses two computational architectures as analogues of one another, it must first state: in what attributes are they alike, in what attributes do they differ, and what intermediate proof carries the argument from resemblance to ownership?"

Neeraj gave a small laugh.

"Mishraji—"

Vidyanand raised an eyebrow.

Neeraj corrected himself at once. "Mishraji, that argument could strengthen the State as well. What if they establish each of those attributes separately?"

"Then let it strengthen them."

"We are to strengthen the opposing side's argument?"

Vidyanand's voice dropped.

"We are to strengthen the Court's question. Polluting a question in order to win is not the dignity of an advocate."

Neeraj fell silent.

Vidyanand bent over the papers again.

A new paragraph entered the consolidated amended copy: similarity is not ownership; resemblance is not control; analogy may be an instrument of testing, not independent proof of guilt.

Before noon, the amended copy had been lodged in the court registry.

It was not a new case. It was a new legal turn in the same journey of the pending special-leave petition, in which the High Court's subsequent orders and the State's method of inference would now be read together before the Supreme Court.

At the afternoon meeting were present representatives of the Home Ministry, officers of the Law Ministry, a legal assistant from the Attorney General's office, a member of the Solicitor General's team, Aditya, Malini, and two computational analysts.

A large paper map had been pinned to the wall. It did not show the actual locations of the computational centres—only symbolic marks: A, B, C, D. The lines between them were of different kinds as well: independent confirmation, similarity of time, similarity of payment, similarity of code or writing, and relations that were merely hypothetical.

The assistant from the Attorney General's office asked, "How do we use this map in court?"

Aditya said, "First we make clear that the map is not itself evidence. It is a means of displaying the arrangement of evidence."

"But it creates a story."

"Creating a story is the danger."

"Then what is the value of the map?"

Aditya pointed to two circles on the paper.

"These circles are A and B. The customer-identification processes on both sites have seven stages. Five stages are word-for-word identical; two differ. That is direct comparison."

“And from that?”

“Only that there is procedural resemblance.”

“The same developer?”

“A possibility.”

“The same operator?”

“A different possibility.”

“The same owner?”

“A more distant possibility still.”

“Then how is resemblance useful?”

Malini spoke for the first time.

“Analogy places the unknown beside the known and helps us form a question. If an attribute independently verified in the known structure is also found in the unknown, we gain a direction for testing. But resemblance does not by itself tell us the cause of the resemblance.”

The assistant studied her.

“Example?”

Malini wrote on the paper: ‘the same error message.’

“Suppose site A contains a distinctive spelling error. The identical error appears on B. The resemblance is interesting.”

“And an indication of the same author?”

“Possibly. But what if both use the same off-the-shelf template? What if both use a common third-party service? What if one copied the other? What if it is independently coincidental? Until rival possibilities are tested, identifying an author would be unjustified.”

Aditya said, “The discipline of analogy is this: mark the site of resemblance, and mark the site of difference as well.”

The member of the Solicitor General’s team turned to another section of the map.

“Why do these three payment routes end with the same intermediary?”

Malini answered, “Independent records confirm the common intermediary. But the institution may serve many clients. Similarity of intermediary does not yield the identity of the beneficiary.”

“And this similarity of time?”

“At 9:14 p.m., configuration changes are recorded on A, B, and C.”

“The same administrator?”

“The possibility becomes stronger, especially if the sequence of changes is also the same. But at present we have only timestamps and similarity of configuration. Independent proof of administrative identity is incomplete.”

For several moments everyone in the room looked at the map.

It no longer looked like a picture of accusation. It was a disciplined geography of uncertainty.



After the meeting, Aditya took Malini with him to the records room. A photocopy of an old work of jurisprudence had been sent from his village. It was copied from a manuscript kept in his father’s old trunk: the letters not entirely clear, the margins stained by time.

Malini asked in surprise, “Why did you have this sent here?”

“Because of the map.”

“There is a computational map in this manuscript?”

Aditya laughed.

“No. An exercise in seeing relations.”

He turned the pages. A few sutras, a few notes, a few definitions. Aditya did not give a lecture. He merely showed her an old diagram drawn in the margin of one page—a term, its attribute, its relation, then a second term.

“Look,” he said. “The old scholars did not see an object in isolation. What qualifies what, what is qualified, what relation binds them, what the limit is—they separated each of these. In modern network investigation, we often see a line and assume that both ends of it belong to the same owner.”

Malini held together in her mind the old page and the modern map on the display.

“So old jurisprudence gives us the language of a modern map?”

“Not the language. The restraint.”

“Analogy?”

“Yes. If you see an unknown thing resembling a known one, first ask: in what property does the resemblance lie? Then ask: in what property do they differ? And do not assume that the cause of the resemblance is also the same.”

Malini said slowly, “Like two villages having the same kind of drainage channel—it does not follow that the same mason built both.”

“Exactly.”

“But if the measurements, the turns, the order of the bricks, and even the same peculiar defect are identical?”

“Then the question grows sharper. Not the answer.”

Malini did not close the manuscript.

In that moment she understood that analogy was not ordinary comparison. It was a curb upon the seduction of similarity. It was easy to see what looked alike and declare it one thing; harder to see resemblance and still search for the place of difference.

By evening, the consolidated amended copy of the special-leave petition had reached the State's legal team. After reading Vidyanand's new ground, the Attorney General's assistant came to Aditya's room.

"The other side has itself raised the question of analogy."

Aditya read the paper.

"It is the right question."

"They say the State is mistaking similarity for identity."

"Where we have done so, we will correct it."

"And where we have not?"

"We will show the record."

"The opposing side's ground is very carefully structured."

Aditya handed the paper back.

"A carefully structured argument from the other side benefits the Court."

The assistant smiled.

"Are you never afraid that the other side's question will break your whole map?"

Aditya remained silent for a moment.

"If the map breaks, we will make another. What would we gain by preserving a defective map?"

"Political pressure?"

"Not in my file."

"The news cycle?"

"Its time is different."

"The Court?"

"The time of the record."

The assistant left.

Aditya saw his blurred reflection in the window glass. The web of inference from the previous night was changing into a map of analogy. The lines were still there, but beside each line a new question was being written: 'Like what?' And immediately after it: 'How far?'

That night, three headlines lay before Ananya Kashyap in the newsroom.

The first: "Single Foreign Operations Centre Exposed."

The second: "Three Websites, One Owner?"

The third: "Similar Computational Architecture Raises New Question in Supreme Court."

The editor put his thumb on the first headline.

"This will run."

Ananya read the sheet.

"It goes beyond the record."

"Aren't the two architectures similar?"

"There is similarity."

"Aren't the payment routes similar?"

"There is some overlap of intermediaries."

"Similarity of time?"

"Yes."

"Then what is the problem with writing 'one operations centre'?"

Ananya lifted the third headline.

"Because similarity is not identity."

The editor said impatiently, "Readers are not going to study philosophy."

"I am not writing philosophy. I am writing the boundary of fact."

"Then the story will become dull."

"If truth moves slowly, a headline cannot make it run."

The editor leaned back in his chair.

"Then what is your headline?"

Ananya wrote on the paper: "Map of Similarities, Ownership Still Unproved; New Legal Question in Special-Leave Matter."

The editor read it and made a face.

"That won't stop anyone."

"But it will not send anyone in the wrong direction either."

There was silence for a few moments. In the end the third headline was chosen, shortened slightly.

Ananya returned to her desk. As she wrote the report, she knew that relinquishing excitement was a small form of courage—especially when an entire city wanted guilt and innocence settled in one sentence.

She wrote: the State is examining similarities in computational architecture and certain financial patterns; the opposing side disputes any inference of ownership or control from similarity alone; the issue has now been expressly raised in the pending special-leave proceeding before the Supreme Court. There is, as yet, no final judicial conclusion.

The sentence was small. The restraint inside it was large.

The legal team assembled again the next day. This time a new symbol stood at the centre of the map—the known structure, K. Beside it, the unknown structure, Kh.

Malini began the presentation.

“Five facts about structure K are confirmed by independent records: the sequence of administrative replies, the seven stages of the customer-identification checklist, the name of the payment intermediary, the timing of the nightly configuration change, and one distinctive error message.”

“Kh?”

“Four similarities appear in Kh. The payment intermediary is different.”

“Then?”

“It would not yet be proper to describe Kh as a member of the same operational family as K. But the resemblance is fit for testing.”

“G?”

“Only two similarities in G.”

“Then why is G on the map at all?”

Malini paused for a moment.

“Because until yesterday we had coloured all three as one group.”

“And today?”

She erased the thick ring that had surrounded G.

“Today, G stands apart.”

One of the officers at the meeting asked, “Doesn’t that weaken our position?”

Aditya answered, “If the position depended on an improper grouping, it ought to be weakened.”

“But the other side will say the State keeps changing its map.”

“We will say the map changed after new testing. That is not a defect.”

“Public perception?”

“A court does not calculate a hash value from public suspicion.”

A light laugh passed through the room, then vanished at once.

Aditya added in a grave voice, “Remember: the strength of analogy is not in seeing similarity. It is in seeing the limit of similarity.”

In one corner of the map Malini wrote: ‘Resemblance begins the test; it does not end the proof.’

Later that afternoon, the officially registered consolidated amended copy reached the State’s advocates. The next listing date was not yet fixed, but the language of the legal contest had changed.

Vidyanand Mishra’s side now said: too many lines on the State’s map, too little proof. The State replied: every line belongs to a different category—what is confirmed is confirmed, what is inference remains inference, what is comparison remains comparison.

Both sides were circling the same word: similarity.

But perhaps the Court’s question would not be similarity at all.

The question would be: what may lawfully be known from similarity?

That evening Aditya stood alone before the map. A, B, C, D. Some lines thick, some faint, some erased.

He remembered a scene from his childhood in Garh En Arikel. From a distance, two oxen had looked exactly alike—the same colour, the same height. Once, as a boy, Aditya had untethered the wrong one. From afar his father had called, “You saw the colour; you did not see the curve of the horns.”

It had been a small lesson then. Now its meaning seemed immense.

Resemblance can open the door to identification.

But the name of what lies beyond the door must be learned from separate evidence.

He wrote one line beneath the map—

“Like what?—that question will give direction. Which one?—that answer will come from proof.”

Then he set down his pen.

The web of inference had not been left behind. Over it, a map of analogy was beginning to form—a map in which resemblance was a road, not the destination.

028 The Map of Analogy — Chapter 2

Delhi's dawn had not yet fully brightened, but movement had already begun along the roads near the Supreme Court. The shadows of the trees lay long, the stone-paved ground, sprinkled with water, held a faint sheen, and groups of advocates in black moved slowly towards the gates.

Aditya Jha had been awake for some time, seated in his room at the State Guest House. Before him lay a copy of yesterday's map—A, B, C, D. Some lines were thick, some faint, some erased. Beneath the map, a sentence in his own hand still remained—

"What is this like?—that question may give direction. What is it?—that answer must come from evidence."

All night the sentence had kept circling within him.

It was easy to see resemblance. It was harder to understand why the resemblance existed.

The page layouts of two websites could look identical because both had bought the same ready-made template. Two payment gateways could use the same wording because a third-party service supplied that language. The security certificates of two digital addresses could have been issued by the same intermediary, yet that did not make their ownership one. Two people might travel to the same city in the same week, yet that did not prove they had met.

The enemy of analogy was not difference.

The enemy of analogy was intoxication with likeness.

There was a light knock at the door. Malini Karn entered. In her hand was a three-page table.

"The night's testing is complete," she said.

Aditya took the table.

"How many similarities remain?"

"At first I had listed seventeen points of connection. Now only nine remain in which comparison may still be useful. In five, the possibility of a common service provider is strong. In three, the metadata is incomplete."

"And of those nine, how many point towards ownership?"

Malini was silent for a moment.

"Not one, standing by itself."

Aditya set the table on the writing desk.

"Then that is good."

Malini looked at him in surprise. "Good?"

"Yes. If none of seventeen similarities independently proves ownership, we ought to understand that before we enter court. Defeat is not being shown wrong in court; defeat is carrying something false into court believing it to be true."

Malini sat down. "The list of the other side's new team has come."

"How many?"

"Four senior advocates. Two digital-forensics experts. One cross-border commercial-law specialist. One privacy-law specialist. And separate teams of juniors."

Aditya's face did not change.

"Their numbers neither increase nor diminish our evidence."

"But the number of questions will increase."

"Let it."

"You aren't worried?"

Aditya looked out through the window. Delhi's sky was a pale grey.

"I am worried. I am afraid too. But if fear makes us turn comparison into proof, they will not need to do anything in order to win."



At that same hour, on the other side of the city, Vidyanand Mishra's office was unusually crowded.

The legal team representing Raghav Sethia had been expanded. On one wall of the long conference room hung a printed copy of the digital map. Red circles, blue arrows, green dots—the visual language of the State's presentation had now itself become an object of the defence's scrutiny.

The newly arrived senior advocate, Devvrat Sen, stood before the map. His voice was quiet, but the edge in it was unmistakable.

"This map is visually impressive," he said, "but impression is not evidence."

Vidyanand said, "The State now says as much: that this is a map for testing, not for proof."

"Changing the language is not enough. We must see how the map was made."

The digital specialist Padmanabh Rai lifted a page. “A and B have similar page layouts. But that template was openly available in the market. C and D have similar naming structures. But their domain-registration services are different. A, B and C use the same content-delivery network. But that provider serves millions of customers.”

Devvrat placed his thumb on three lines on the map.

“Then these three lines can go.”

Vidyanand said, “The State has already faded two of them.”

“Even a faint line influences a judge’s eye.”

Silence settled over the room.

Devvrat continued, “My argument will be simple. If analogy is called a means of knowledge, the first questions must be these: what is the subject of the analogy? In what property does the similarity lie? Is that property common or distinctive? And does the conclusion being drawn from the similarity cross beyond the limits of that property?”

Vidyanand smiled slightly.

“Have you been reading Navya-Nyaya?”

Devvrat said, “How else can one see the limits of an opponent’s argument without understanding the method that produced it?”

Raghav Sethia sat in the last chair at the meeting. He seldom spoke. He had listened to today’s discussion in silence too. At last he asked—

“Are we simply going to say that every similarity is generic?”

Vidyanand looked at him.

“No.”

“Why?”

“Because calling what is distinctive merely generic would be as improper as calling a generic resemblance proof of ownership.”

Raghav’s brows tightened. “Are you on my side or theirs?”

Vidyanand’s voice was not harsh, only impersonal.

“I represent your legal case. Not falsehood.”

Devvrat Sen watched Vidyanand in silence. Then he said—

“Then my team will do one thing. We will divide every comparison made by the State into three classes—generic similarity, distinctive similarity, and misleading similarity. We will show the Court which line belongs to which class.”

Raghav leaned back.

“And if some distinctive similarities remain?”

Vidyanand replied, “Then we will answer them with evidence. Not fear.”



At the Home Ministry, two files lay open before Shiveshwar Prasad. One concerned the coming hearing in the Supreme Court. The other contained media reports and a compilation of political reactions.

His private secretary said, “Minister, the other side is fielding four senior advocates. The discussion outside is that the State should now issue a strong public statement.”

Shiveshwar Prasad closed the second file.

“What will a strong statement change?”

“Public perception.”

“The Court is not sitting to manage public perception.”

“But the opposition is saying the State’s investigation is collapsing.”

The Minister opened the first file.

“Whether it is collapsing or improving will be shown by the judicial record. If two of our comparisons are wrong, remove them. If five inferences are incomplete, call them incomplete. If one connection is confirmed, say only that much.”

The secretary remained silent.

The Minister went on—

“In this case, the prestige of the State is not greater than the truth. Our task is to preserve the Court’s trust. If we proclaim victory outside while the file inside says ‘incomplete’, we will destroy the credibility of our own case.”

“A question has come from the Attorney General’s office—what legal status is the State giving to visual similarity in the map?”

“And the answer?”

“A draft is being prepared.”

“Write this: similarity may guide the direction of an investigation; by itself it proves neither ownership nor guilt. Every comparison shall remain subject to an independent foundation.”

The secretary wrote it down.

The Minister looked towards the window. Outside in the garden, two gardeners were trimming trees in the same row. From a distance all the trees looked alike; close up, the branches of one differed from the next.

He said quietly—

“In politics, people see a resemblance and leap to a conclusion. The duty of a court is the opposite: when resemblance appears, the questions begin.”



On the day of the Supreme Court hearing, the first listed issue was the permissible use of the State's digital map.

The Bench consisted of three judges. Justice Arya was not among them, but the High Court's orders lay before the Bench as part of the record. The Attorney General appeared for the State; with him were the Solicitor General, the State counsel, and, seated behind in their designated places, Aditya and Malini. On the other side were Vidyanand Mishra, Devvrat Sen, and several senior advocates.

Devvrat rose first.

“My Lords, the State presents a map. Its visual effect is that several separate websites, payment routes and digital indicators appear to converge upon a single centre. But we will demonstrate that many of those lines rest only upon generic similarities of service.”

The presiding judge asked, “Does the State call the map evidence?”

The Attorney General rose.

“No, My Lord. The State's latest submission is explicit: the map is a visual aid to investigation. Where a line has been independently verified, its foundation has been given separately. Where there is only a comparison, it has been marked as a comparison.”

Devvrat said, “That is precisely the difficulty. Once a visual line is drawn, the comparison becomes, in the mind, a relationship.”

The second judge asked, “Then do you want the map removed?”

“If the source, quality and limitation of every line are not stated with it, yes.”

The Attorney General said, “The State accepts one part of that objection.”

There was a slight stir along the defence benches.

The presiding judge lowered his spectacles. “Which part?”

“It is not proper to leave visual resemblance in an undefined category. The State is prepared to submit a revised map in which every line will bear one of four classifications—independently verified connection, hypothesis under test, generic service-similarity, and rejected or insufficient similarity.”

Devvrat spoke at once. “That concession proves our central objection.”

The Attorney General did not look towards him.

“It is not a concession; it is a purification of method.”

The third member of the Bench asked, “Is that language the investigating officer's?”

The Attorney General looked behind him. Aditya stood.

“Yes, My Lord.”

“How did you make the map?”

Aditya said, “The directly observable properties of each entity were listed separately—domain registration, content-delivery network, payment reference, page layout, digital metadata, temporal concurrence, and any available contact markers. Comparisons were then drawn on the basis of similarity between those properties. But no conclusion of common ownership was drawn from comparison without independent verification.”

The presiding judge asked, “Were there lines in the first version on which you no longer rely?”

“Yes.”

“How many?”

“Eight lines have been removed or placed in a different category.”

“Why?”

“Because a common service provider, an open template, or incomplete metadata meant that the resemblance was no longer distinctive.”

Another murmur passed through the courtroom.

Devvrat Sen said, “My Lords, this matters. The State is taking back eight lines.”

With the Bench's permission, Aditya replied—

“I am removing unjustified weight. I am not saving a map.”

Devvrat turned towards him.

“And the lines that remain?”

“Where they are comparisons, they remain comparisons. Where there is a verified connection, it has an independent foundation.”

“For example?”

The Attorney General intervened. “Where the answer can be given in open court, the State will give it.”

The presiding judge agreed.

Aditya said, “The same payment-reference sequence was found in two different user records. That establishes only that both records contain the same reference number. It does not establish that the ultimate beneficiary is the same person. A lawful response identifying the beneficiary would be separate evidence.”

“Another?”

“The same email marker appears in the administrative contact details of two domains. But that marker could also have been produced by an automated system belonging to a third-party service provider. So the comparison remains under test.”

“A third?”

“A digital image contains a document whose structure resembles a public webpage. But the existence of that document does not prove authorship.”

The second judge said, “So you have written objections against your own map?”

“Yes.”

“Why?”

“Because analogy, if it shows similarity alone, can deepen error. A useful analogy shows dissimilarity alongside similarity.”

The Bench remained silent for a few moments.

Devvrat Sen turned a page.

“My Lords, let me give one example. A and B use the same content-delivery network. In its initial record the State described that as an indicator of connection.”

The Attorney General said, “Initially. In the revised version: ‘generic service-similarity.’”

“Exactly. Then the initial inference was wrong.”

Aditya said, “Incomplete.”

Devvrat seized upon the word at once. “Why the reluctance to call it erroneous?”

Aditya answered without hesitation—

“If the conclusion was, ‘same content-delivery network, therefore same owner,’ it was wrong. If the question was, ‘beyond the common content-delivery network, is there another connection?’ then the question was valid.”

The third judge leaned forward slightly.

“That distinction is important. The validity of an investigative question and the validity of a conclusion are not the same thing.”

Devvrat fell silent, then said—

“But the initial picture formed in an officer’s mind can influence the testing that follows.”

Aditya agreed.

“It can. That is why alternative hypotheses have been recorded in writing.”

“Your alternative hypotheses may run against the State’s own interest.”

“Truth is not subordinate to the State’s interest.”

The silence in the courtroom deepened.

For a moment the Attorney General looked at Aditya. The officers seated in the Home Ministry’s gallery remained still as well.

The presiding judge said quietly—

“Let that sentence remain on the record.”



During the midday recess the outer courtyard of the Court was crowded with reporters. The question was the same everywhere: was the State’s map falling apart, or becoming stronger?

Ananya Kashyap said to a colleague, “Both words are wrong.”

“Then what is the headline?”

“The Court is testing the boundary between similarity and ownership.”

“That headline won’t sell.”

“Then write what sells. Just don’t put my name on it.”

In her notebook she wrote—

‘Eight lines have been removed. That may be called a defeat for the State, but the record shows that the State itself removed them. The value of the lines that remain is still under examination. The Court has reached no conclusion on ownership or guilt.’

She paused, then added another line—

‘The colours of a map are news; the meaning of the colours is not evidence.’



In the afternoon session, Devvrat Sen began his principal attack.

“My Lords, there is a serious defect in the State’s approach built upon analogy: it distinguishes distinctive attributes from generic ones too late. Take, for example, the same phrase appearing in two payment messages. That phrase may have been fixed by a third-party service provider. The same placement of an image on two webpages may come from an open template. The same suffix in two names may arise from a marketing convention. An accumulation of such similarities does not become distinctiveness merely by accumulation.”

The second judge asked, “Is cumulative effect never useful?”

"It may be useful, but if every foundation is generic, a pile of generic features does not become proof of distinctive ownership."

The Attorney General replied—

"The State does not disagree with that proposition. But the defence is moving towards the opposite excess: that wherever an alternative cause for each similarity is conceivable, every similarity becomes meaningless. That too is untrue. The question is whether several independent features converge in the same direction and whether their alternative explanations survive testing."

The Bench called Aditya again.

"How do you test cumulative similarity?"

Aditya said, "First, the independent distinctiveness of each feature. Second, whether the features are mutually dependent or independent. Third, any common cause capable of producing the similarity. Fourth, dissimilarity. Fifth, external corroboration."

"Why dissimilarity?"

"Because if two things are alike in five respects but differ in three decisive ones, the five similarities may be misleading."

Devvrat said, "Precisely. The websites of A and B are similar, but their payment beneficiaries are different."

Aditya replied, "If the beneficiaries are in fact shown to be different and independent, that dissimilarity will weaken the hypothesis of connection."

"And if the beneficiary names differ, but ultimate control remains unclear?"

"Then the conclusion is suspended."

"How long will this investigation remain suspended?"

"As long as the evidence requires."

"Will the State keep suspicion alive indefinitely?"

"No. Each hypothesis has a written termination condition."

The presiding judge showed interest. "For example?"

"If lawful records from the payment intermediary show the two beneficiary structures to be wholly independent, and no additional evidence of shared control is found, the shared-payment-control hypothesis closes. If the primary domain-registration records establish different owners and different payment sources, the inference of common registration control closes."

"So you write the rule for ending an inference before the inference is complete?"

"Yes."

The presiding judge said, "That will be useful to the Court. In the revised table, give the failure condition alongside each comparison."

Devvrat smiled. "My Lords, the defence's objection is causing the State to rewrite its own map."

The Attorney General replied—

"If rewriting takes us closer to the truth, the State has no objection."



After the hearing ended, another meeting was held at the Home Ministry.

Shiveshwar Prasad had asked for an in-person meeting rather than a video call. He said, "A sheet of paper does not show a face. Today I want to understand who is afraid, who wants to declare victory, and who has actually read the file."

In the room were a representative from the Solicitor General's office, officials from the Law Ministry, the Joint Director, Aditya and Malini.

One official said, "Minister, the public reaction is adverse. The news everywhere is that eight lines have been removed."

The Minister asked, "Eight erroneous or insufficient lines have been removed?"

"Yes."

"Then that is good."

"But politically—"

"I do not want a political answer. I want a judicial one."

Another official said, "The defence lawyers are calling the State's revision a weakness."

Shiveshwar Prasad looked at Aditya.

"What do you say?"

"If the revision is accurate, it is not weakness. If the old lines were wrong and we kept them only to save face, that would be weakness."

The Minister nodded.

"Do not turn that sentence into a public statement. Say it in court where necessary."

Malini said, "The revised map is being prepared. Four categories, and for every line: source, dissimilarity, alternative cause, and failure condition."

The Minister said, "Add a fifth column."

“What?”

“What this line does not prove.”

For a moment the room was silent.

A faint brightness came into Aditya’s eyes.

“That will be useful.”

The Minister said quietly—

“People want definite sentences from the State. But in this case our credibility lies in saying that where we are not certain, we are not certain. A court’s trust is built not by speeches, but by restraint.”



At ten that night, Malini and Aditya were once more standing before the map.

There were fewer lines now. But beside each line five things were written in small letters—source, category, dissimilarity, alternative cause, failure condition.

Malini placed her thumb on one line.

“A and C. Same payment reference. Earlier I wanted to make this a thick line.”

“And now?”

“Medium. The reference is the same, but verification of the ultimate beneficiary is pending. This line shows the possibility of a shared payment route, not shared ownership.”

“Good.”

She moved to another line.

“B and D. Similar page layout. But an open template. So: generic similarity.”

“Third?”

“A and D have the same administrative contact marker. But automated mediation by a third-party service provider is possible. Under test.”

Aditya asked, “Doesn’t the map look ugly now?”

Malini laughed. “It was beautiful before. Now it is closer to the truth.”

“Sometimes truth is a badly drawn picture.”

“And a beautiful falsehood?”

“That makes a very clear map.”

Malini grew serious.

“Aditya Babu, may I ask something?”

Aditya smiled. “Ask.”

“What if all these comparisons fall apart in the end?”

“Then we will know the things were not the same.”

“And all these days of labour?”

“Removing an illusion is not wasted labour.”

In the last corner of the map, Malini wrote the fifth column—

‘What this does not prove.’

The first entry beneath it was—

‘Similarity ≠ ownership.’

The second—

‘Same service ≠ shared control.’

The third—

‘Temporal concurrence ≠ proof of causation.’

The fourth—

‘Similarity of name ≠ identity of person.’

The fifth—

‘Map ≠ conviction.’

Aditya looked at those lines for some time.

He remembered again the bull at Garh En Arikel—the same colour, the same size, but a different turn to the horns. The boy’s mistake that day had been only to untie the wrong bull. An officer’s mistake today could untie a false meaning upon another human being.

Outside, Delhi’s night lay heavy. Beyond the glass, thousands of lights shone alike. From a distance all the windows seemed the same. But behind each window was a different life.

Aditya said softly—

“Analogy tells me, ‘this is like that.’ Justice asks me, ‘how much alike, in what sense, and how far?’”

Malini replied—

“And after that?”

“After that, evidence.”

He folded the map and placed it in the file.

All day the questions of highly paid advocates had cut into it. Eight lines had disappeared. Some inferences had weakened. But what remained now had clearly marked limits.

That day the State defeated no person. Nor was the defence defeated.

Only the map had become less beautiful and more true.

And perhaps that was the first condition of earning a court's trust.

029 The Map of Analogy — Chapter 3

The first light of dawn was reaching the window, but on the map spread before Aditya Jha, night still remained.

After yesterday's hearing, eight lines had been erased. Two had been thinned. Beside three connections, in red letters, was written—'Independent verification awaited.' The map was no longer as dense as before. But now, behind every line, there stood a question: on what direct foundation does this line stand?

Malini Karn came in. She carried three files.

"Aditya Babu, the division required by the Court is ready."

"How many parts?"

"Four. First—the legal basis of the summons. Second—the creation and verification of the forensic image. Third—the hash chain and custody register. Fourth—the sources of the comparisons that remain on the map."

Aditya looked at the map.

"And the fifth?"

Malini thought for a moment.

"The fifth?"

"What none of this proves."

Malini smiled. "I have prepared that page separately."

"Not separately. Keep it with every part."

"Why?"

"Because a limit is not an appendix added at the end. The limit lives inside the evidence."

Malini opened the file. On the first page were recorded the summons number, date of issue, statutory provision, identity of the recipient, confirmation of receipt, and time allowed for response.

Aditya asked, "Which summons is most disputed?"

"Three of them. The other side says the questions went beyond what was necessary."

"Our answer?"

"That the questions were confined to financial flows, user identification, and limited details of digital access."

Aditya nodded.

"That answer is not enough. Show which question was asked, and why. And do not hide the questions that later proved useless."

Malini turned back through the first file.

"One question was: 'On whose instruction was the identical support message issued?' It later became clear that the wording could also have come from a standard template of an external service provider."

"Then?"

"The basis of that question is now weak."

"Write—weak."

Malini wrote it down.

Aditya said, "The first test of analogy is not similarity, but the cause of similarity. Two houses may have walls of the same colour; that does not prove they have the same owner. The paint may have come from the same merchant. In the digital world, a service provider is like that merchant."

Malini replied, "And with every similarity we first ask—could there be a third, common cause?"

"Exactly."

At that moment, Legal Officer Nilabh Thakur entered.

"Today the principal question in Court will concern the forensic image. Counsel for the other side have filed an expert note saying that analysis of an image rather than the original storage can strip material of context."

Aditya asked evenly, "Could the note be right?"

Nilabh was silent for a moment. "In some situations, yes."

"Then our answer will not be defence. It will be process."

"Meaning?"

"We will say why the image was made, how it was made, who made it, what tool was used, how the original was protected, how the hashes were compared, and what portions, during analysis, may lose some of their original context. If there is a limit, we will state the limit."

A trace of relief came over Nilabh's face.

"The other side will ask very sharp questions."

"Sharp questions do not cut evidence. They cut its covering."



Inside the courtroom, the atmosphere was harder than it had been the day before. Two rows of advocates appeared for the offshore operators. One team concentrated on legal authority, another on digital examination, a third on financial links. After eight of the State's comparisons had been found weak at the previous hearing, the defence had grown more confident.

Justice Arya sat on the Bench. Before her lay a copy of yesterday's revised map.

"State," she said, "yesterday you removed eight connections."

The Solicitor General replied, "Yes, Your Ladyship."

"I see two things in that. First, the original map was overextended. Second, the State is willing to correct itself. Today I want to know the basis of the lines that remain."

Senior counsel for the other side rose at once.

"Your Ladyship, our submission goes further. The State's entire map is built on resemblances—same words, same payment references, same services, same timing. All of these may be ordinary occurrences on the internet. If eight lines can disappear in one day, why should any faith be placed in the lines that remain?"

Justice Arya said, "Faith is too early a word. Let us first see the basis."

The Solicitor General gestured to Aditya Jha.

Aditya came to the witness stand. The oath was administered.

Counsel for the other side put the first question—

"Your map is based on a forensic image, not on the original device. Correct?"

"The analysis was conducted on a verified forensic image. The original device remains in secure custody."

"So you do not look at the original?"

"At the time of acquisition, the physical presence and details of the original storage were recorded. Examination is ordinarily carried out on the image so that the original is not altered."

"That is easy to say. How do you prove the image is the same as the original?"

Aditya replied, "Cryptographic hash values were recorded before and after acquisition. The hash of the image created from the original storage matched. It also matched on subsequent verification."

Counsel smiled.

"So the hash tells you that everything written inside is true?"

"No."

"That the person who created a file is necessarily its author?"

"No."

"That the name appearing there belongs to the real person?"

"No."

"That the timestamp is necessarily the time of the real-world event?"

"Not necessarily."

"Then what use is the hash?"

Aditya's voice remained steady.

"It serves the limited purpose of showing that a specified digital copy has not changed since acquisition. It does not prove the truth of the contents, authorship, intention, or crime."

On the Bench, Justice Arya stopped her pen.

"Let that sentence stand clearly on the record."

Counsel resumed.

"You also added to this map material obtained through summons?"

"Only with verified source references."

"Verified? Suppose a service provider replies that two different websites used the same network route. Would you infer common control from that?"

"No."

"Why not?"

"Because a shared service provider, a shared distribution infrastructure, a shared security service, or an external contractor could also explain it."

"But yesterday there was such a line on your map."

"There was."

"And it was removed."

"Yes."

"Then the investigation was wrong?"

Aditya was silent for a moment.

"The initial inference was too broad. On testing, its basis proved inadequate, so the line was removed."

"Was it wrong or not?"

"It was not sustainable in that form."

"I repeat my question—wrong?"

"If by 'wrong' you mean that it would have been wrong to treat it as a final conclusion, then yes. But in an investigation, an inference may be formed for testing, tested, and abandoned when it fails. That is not concealment of error. It is method."

A low murmur moved through the courtroom.

Justice Arya said sharply, "Silence."



A second counsel for the operators stood. Before him lay only the custody register.

"Mr Jha, from seizure of the original storage until it reached the laboratory, how many transfers occurred?"

"Four recorded stages."

"The first?"

"From the seizing officer to the sealed-custody officer."

"The second?"

"From the custody officer to the transport team."

"The third?"

"From the transport team to the central store."

"The fourth?"

"From the central store to the examination laboratory."

"Time recorded at every stage?"

"Recorded."

"Every signature?"

"Recorded."

"Seal number?"

"Recorded."

Counsel lifted a page.

"Here the transport team records receipt at 18:42, while the next page records release at 18:41. The item left one minute before it arrived?"

The courtroom stirred again.

Aditya examined the page.

"This is a discrepancy."

"One minute?"

"Yes."

"Broken chain of custody?"

"At present, all that can be said is that there is a discrepancy in the time record. Whether the chain was broken or whether this is a recording error requires independent verification."

"Why did you not notice it earlier?"

"In the primary reconciliation of the register, the sequence numbers and signatures were verified. This conflict of minutes became clear in the comparison placed before us today."

"So the State's examination was incomplete?"

"On this point, yes."

A faint satisfaction showed along the defence row.

The Solicitor General rose.

"Your Ladyship, the State seeks immediate independent verification of this discrepancy. Until that is completed, any conclusion concerning this particular transfer interval may be treated as limited."

Justice Arya asked, "Is the State seeking an adjournment?"

"Only brief verification on this specific point."

Senior counsel for the operators said, "Your Ladyship, this is again the same pattern—confidence first, revision later."

Justice Arya looked at him.

"And if revision is made impartially, does the Court treat that as weakness or as credibility?"

Counsel replied, "That depends on the circumstances."

"Exactly. Then examine the circumstances."



During the midday recess, Malini and Aditya stood in a narrow court corridor.

Malini said softly, "One minute."

"Yes."

"Why was this not caught earlier?"

“Because we too are human.”

“That answer is not enough for a court.”

“Then find the answer that is.”

Malini was silent for a few moments.

“The original register, the gate-entry time record, the vehicle-presence log, the store’s seal inspection, and the laboratory receipt record.”

“And?”

“Independent statements from both signatories.”

“And?”

“If available, the building-access record.”

Aditya smiled.

“Good. Analogy is here too.”

“How?”

“Once we see a one-minute conflict, we may say—it looks ‘like’ a break in custody. But looking like a break and being a break are not the same thing. We need another independent sign.”

Malini said, “And if the independent sign points to a break?”

“Then we accept it.”

“And if it points to a recording error?”

“Then we accept that too.”

“And the State’s reputation in either case?”

Aditya looked out at the sky.

“Let reputation be the servant of truth, not its master.”



In the afternoon, the Attorney General himself appeared before the Court. Before him lay the State’s revised map, the summons list, the verification certificate for the forensic image, and the custody register.

He began—

“Your Ladyship, the State’s position is simple. Analogy may point an investigation in a direction, but analogy is not itself proof of guilt. Every comparison here requires an independent source behind it. If the source is weak, the comparison is weak. If the source is absent, the line must go.”

Justice Arya asked, “And the one-minute discrepancy?”

“It is under verification. Until then, the State will not make a complete assertion about the integrity of that stage.”

Senior counsel for the operators rose immediately.

“Your Ladyship, this admission makes the entire chain of custody doubtful.”

The Attorney General answered calmly, “No. One specific time entry is doubtful. To call the entire chain doubtful would be to draw more conclusion than that single point permits.”

Justice Arya looked at Aditya.

“Mr Jha, you use the language of analogy. Can you give the Court a simple example?”

Aditya thought for a moment.

“Your Ladyship, in a village two oxen may be of the same colour. From a distance, a child may take them for the same animal. But up close, the turn of the horns, the marks on the hooves, the gait, and the knot of the rope may differ. Colour gives direction; it does not establish identity. On a digital map, the same service, the same name, the same time, or the same format is like that colour. A real connection requires independent signs.”

“And the hash?”

“It is a specific mathematical marker of identity—but only for the integrity of the digital copy. It does not tell us a human being’s intention.”

“And the custody register?”

“It tells the journey of the object. The journey must be clean, because even an accurate copy loses judicial trust if its custody is obscure.”

“And the summons?”

“It identifies the lawful route by which material came from an external source. The legality of the source route does not automatically prove the truth of the material, but it makes clear how the material came.”

Justice Arya continued writing.



By evening, a preliminary answer to the one-minute discrepancy arrived. The transport team’s handwritten register showed 18:42. The building-entry record showed 18:39. The central store’s receipt book showed 18:47. The disputed entry of 18:41 appeared in a later copy. On the original pressure-copy sheet, the upper stroke of the digit ‘7’ was incomplete, making it appear that the number had been read as ‘1’ when the copy was made.

Malini laid the records out one by one.

"This looks like a transcription error."

Aditya answered at once, "Looks like."

Malini corrected herself.

"The possibility of a transcription error is strong. Confirmation from the original writer is still pending."

"Good."

A little later, the statement of the custody officer who had written the original register was recorded by telephone. He said that the time entered had been 18:47; the copied digit had become unclear. The State did not treat the statement alone as sufficient. It added a high-resolution image of the original pressure-copy sheet, the building-entry record, seal inspection details, and the store's internal sequence numbers.

Malini asked, "Now?"

Aditya replied, "Now we can say—the more likely cause of the discrepancy is an error in reading the copy. But I do not want the word 'proved' in our proposed order unless the Court itself reaches that assessment."

"So much caution?"

"Not caution. A limit."



At the next sitting, the Court reconvened.

The Solicitor General placed the new material on record. The defence sought inspection. The Court permitted it.

The defence expert examined the image of the original pressure-copy sheet.

"The digit is unclear," he conceded, "but it could be a seven."

Justice Arya asked, "Then would you say the entire chain of custody stands broken?"

The expert replied, "Not on the basis of this one point."

"State, would you say the entire chain has been proved flawless?"

The Solicitor General replied, "On the basis of this material, we say only that the more probable explanation for the disputed time difference is an error in reading the copy; the other custody indicators are consistent with that explanation."

Justice Arya said, "The Court accepts that formulation."

She began dictating the order.

The State's revised map shall be considered only to the extent that each connection is supported by an independent source.

A shared service, shared format, shared name, or temporal concurrence shall not by itself establish common control, common ownership, or participation in an offence.

A hash match of a forensic image is only one mathematical indicator of the integrity of that copy; it does not establish the truth of the contents or human intention.

Verification of the material relating to the time discrepancy in the custody register shall continue. The material presently available indicates a strong probability that the discrepancy arose from a copy-reading error, but this observation shall not be treated as a final finding.

The statutory basis of a summons is one question; the truth and relevance of material received in response are separate questions.

Neither side shall convert the language of similarity into the language of conviction.

Aditya listened to the order.

The defence had wanted victory from the eight lines removed yesterday. The State might have wanted victory from the lines that survived. The Court stayed apart from both desires and fixed only the measure.

In that moment Aditya remembered an old measuring pole at Garh En Arikel, kept beside a heap of paddy. The pole belonged neither to the farmer nor to the trader. Whoever held it, the measure did not become his.

Perhaps justice too was such a measure.



At night in the office, Malini opened the revised map.

"Yesterday eight lines were removed. Today a time discrepancy appeared. Then its limit became clear. Aren't you tired?"

"I am."

"Then where does all this end?"

Aditya turned a page.

"The end is not in reaching a decision; it is in reaching material fit for a decision."

Malini said, "I used to think a strong investigation was one in which every line survived."

"No."

"Then?"

“One in which a false line is erased in time, a true line survives with its limits marked, and no line is drawn merely to protect an officer’s reputation.”

In the corner of the map, Malini wrote a new sentence—

‘Analogy gives direction; integrity gives a foundation; verification gives weight.’

Aditya read it.

“And the last line?”

Malini added it herself—

‘Revenge is not evidence.’

A tired smile came to Aditya’s face.

Yesterday, the defence had asked hard questions. An error in the State’s case had been exposed. Lines had been erased. A discrepancy had been acknowledged. Then, through independent material, its cause had been clarified within limits.

This was no heroic saga. No enemy had been conquered. No officer had won a personal triumph.

Only this had been shown: if method is truly method, it can cut away even the errors of its own side.

The map lay spread across the table. Malini folded it and placed it in the file. Outside, in the darkness, thousands of Delhi’s windows again shone alike. But now they both understood—similarity from a distance is only the first signal.

The right to identify must be earned by evidence.

And justice, in the end, asks for an account of that earning.

030 The Map of Analogy — Chapter 4

Delhi at dawn was grey. After the night's light rain, the stones in the Ministry courtyard had been washed clean, but the air held none of that smell of earth Aditya Jha associated with the first rain at Garh En Arikel. Here, the scent was smothered beneath cement, wet leaves, and the fumes of vehicles.

And yet, there was earth in his mind.

A certified copy of yesterday's order, the revised network map, a summary of the hash chain, and a list of reasons for the eight connections that had been removed lay together in a thick file. Across its cover, in red letters, only this had been written—

"Comparison is not proof."

Before taking his seat in the Ministry of Home Affairs' legal room, Aditya read the sentence once more. It seemed to him that the warning was not for the opposing side; it was first for the State itself.



The meeting was attended by Home Minister Shiveshwar Prasad, the Home Secretary, a representative of the Ministry of Law, two officers from the Attorney General's office, an assistant to the Solicitor General, Malini Karn, and Aditya.

The network map lay spread across the centre of the long table. Until yesterday, its lines had made some people see a single network; today, the map held more empty space. Eight lines had already been removed. Some had been thinned. Beside others stood question marks.

The Home Secretary asked the first question. "In this form, does the map help the State before the Court, or does it display the State's weakness?"

Before Aditya could answer, an officer from the Attorney General's office said, "A weakness becomes a danger when it is concealed. A weakness written into the record becomes a limit."

Looking at the map, Home Minister Shiveshwar Prasad said, "I do not want a political picture. I want a legal presentation in which the Court can see at first glance what the State knows, what it is merely comparing, and what it does not yet know."

Malini opened her writing pad.

"Then three categories?"

"Not three," Aditya said. "Four."

Every face turned toward him.

"First—connections verified through independent sources. Second—comparative similarities that provide a direction for investigation. Third—contrary possibilities that offer alternative causes for those similarities. Fourth—connections removed or unsupported, on which the State will no longer rely."

The Home Secretary asked, "Will we show the lines that were removed as well?"

"Yes."

"Why?"

"Because the credibility of the map will be built not only from the lines that survive, but also from the reasons the others were cut."

For a few moments, the room was silent.

The Home Minister said quietly, "This is not for a public statement. It is for the Court."

"Yes, sir," Aditya replied.

"And no officer outside will say the network has been proved?"

"No."

"No one will say that a shared service proves shared ownership?"

"No."

"No one will say that an identical format proves an identical operator?"

"No."

The Home Minister tapped the table lightly with his thumb.

"Then consider the strategy changed."



The Ministry's old strategy had been built around one principal question—did the scattered digital and financial signals point toward a common offshore gambling network?

The new strategy broke that question into pieces.

Which connections had been directly verified?
 Which appeared only through analogy?
 Which similarities could also arise from a shared service, a public template, a third-party provider, or ordinary industry practice?
 Which connections required an additional lawful summons before they could be verified?
 Which conclusions would, at this stage, be legally premature to state?
 The Solicitor General's assistant said, "Our presentation must be such that if the other side cuts one line, the entire structure does not collapse."
 Aditya said, "Then let the structure be built on categories, not on lines."
 Malini asked, "Where does analogy enter?"
 "In direction."
 "Not in proof?"
 "Not by itself."
 Malini pointed to two places on the map.
 "Here, two websites with different names show the same design language, the same payment sequence, and the same phrasing in customer support. Which category is this?"
 Aditya answered, "Comparative similarity."
 "What if the name servers of both also belong to the same provider?"
 "The similarity grows stronger, but ownership does not follow."
 "What if the structure of their administrative access paths also matches?"
 "The direction of investigation grows stronger."
 "What if traces connected with both are found on the same computing device?"
 "Then the question changes. But first, the custody of the device, its user, the relevant time, and the source of the material must each be verified separately."
 The Home Secretary smiled faintly.
 "You never give a simple answer."
 Aditya's voice remained calm.
 "If a simple answer is larger than the material, it is not an answer. It is an insistence."



By noon, four new tables had been prepared.
 The first table—verified connections.
 The second—investigative directions based on analogy.
 The third—contrary possibilities and dissimilarities.
 The fourth—abandoned conclusions.
 Malini read the heading of the fourth table and paused.
 "Is it necessary to write down abandoned conclusions?"
 "Yes," Aditya said.
 "The other side will use this against us."
 "Let them."
 "You are not worried?"
 "I am. But if we do not record our own mistaken inferences, the history of correction will remain invisible before the Court. One day it could then be said that the State showed only the lines that survived and concealed the lines it had cut."
 Malini looked at him for some time.
 "Then a history of error in the file is also part of the integrity of evidence?"
 "Error is not evidence. Acknowledging error is the integrity of method."



As the Ministry changed its strategy, another question arose—how was the old jurisprudential idea of upamana, analogy, to be expressed before a modern court through a digital map without making it appear that the State was staging a display of philosophy?
 The representative of the Ministry of Law objected on that ground.
 "A philosophical exposition of the word 'upamana' will become lengthy in court. We need plain legal language."
 Aditya agreed.
 "There is no need to utter the philosophical name. Let the method remain."
 "Meaning?"

“When making a comparison, first state the similarity. Then the dissimilarity. Then the alternative possibility of a common cause. Then state the fact that can carry the comparison beyond mere direction. That much discipline of analogy is enough.”

The officer from the Attorney General's office added, “And beneath every comparison, one sentence—‘What this comparison does not by itself prove.’”

The Home Minister said at once, “Make that sentence mandatory.”

The Home Secretary asked, “The State will itself write in its presentation what its material does not prove?”

Shiveshwar Prasad turned toward him.

“If we do not write it, the Court will. The only difference will be whether we acknowledged the limit honestly in advance or the Court forced us to acknowledge it.”



When the meeting ended, everyone left except Aditya and Malini.

Outside the window, the rain had begun again. Drops met one another on the glass, then separated and took different paths downward.

Malini said, “Could this too be an analogy?”

Aditya looked outside.

“Of what?”

“Drops that look as though they came from one source, yet follow different paths.”

Aditya smiled.

“Fine for a poem. Not for a file.”

Malini laughed.

“So, in the chapter of analogy, you are rejecting analogy?”

“No. I am only saying that analogy's first enemy is an attractive resemblance.”

“And the second?”

“The desire not to see dissimilarity.”



That evening Aditya's telephone rang. It was his mother calling from Garh En Arikel.

“You have not come home for so many days.”

“Work has grown, Ma.”

“Work will always grow. The earth will never walk into the city by itself.”

Aditya remained silent.

His mother asked, “Did it rain there?”

“Yes.”

“It rained heavily here last night. The earth in the courtyard is fragrant. The second round of paddy transplanting is under way.”

Before Aditya's eyes opened the fields of his childhood—water up to the knees, tender paddy seedlings, feet sunk in mud, and his father's voice calling from a distance: “Do not transplant before the earth has taken hold. A plant set in haste may look straight from above, but beneath it the roots have not caught.”

His mother went on over the telephone, “If your father were here, he would say—first understand the mind of the soil.”

Aditya said softly, “That still helps me.”

“Where is there soil in Delhi?”

“Right in the middle of the file.”

His mother laughed.

“You have become such a senior officer that you have started speaking in riddles.”

“No, Ma. I am only learning patience.”

After the call ended, Aditya stood for a while looking toward the dark window.

The earth of Garh En Arikel had not come to Delhi. But its rule lived within him—a straight line without roots was only an outward form.

The network map was the same. From above, two lines could look straight. The question was not whether the line was elegant. The question was whether its roots lay in independent evidence.



The next day, a new presentation was prepared at the Ministry. The old title was removed—“Structure of the Common Offshore Network.”

The new title was—“Checklist for Testing Comparative Connections.”

The Home Secretary objected to the change again.

"This title is far too cautious. It will lose impact."

The Home Minister said, "We do not need impact in court. We need credibility."

The officer from the Attorney General's office read the first page.

"Category one—independently verified. Category two—comparative similarity. Category three—contrary possibility. Category four—abandoned connection. Good."

Malini opened the next page.

"Here is the first comparison—the similarity in payment sequence between two different websites."

Aditya read aloud—

"Similarity: the sequence of steps matches."

"Dissimilarity: the intermediary institutions have different names."

"Alternative cause: a shared third-party infrastructure is possible."

"Independent support: two time-stamped records and one response letter."

"What this does not prove: common ownership, a common beneficiary, or the same human operator."

The Home Minister said, "Keep it in this form."

The second comparison was read. Then the third. The fourth.

At the fifth, Aditya stopped.

"Remove this."

Malini looked startled.

"Until yesterday this was a medium-strength similarity."

"A new response arrived last night. The similarity of names we took to be structural turns out to be automated naming by the service provider."

The Home Secretary put a hand to his head.

"Another line gone!"

Aditya said, "A line has not gone. A mistaken interpretation has."

"The State's map is growing thinner by the day."

"Then perhaps it is moving toward the shape of truth."

The room fell silent again.



After noon, a sensitive question arose. Some senior officers wanted the Ministry to stress before the Court that the aggregate of many similarities could itself carry sufficient weight, even if no single similarity was decisive on its own.

Aditya did not reject the proposal at once.

He drew four circles on a sheet of paper.

"An aggregate can matter," he said, "but only if all four circles are not echoes of the same error."

"Explain," said the Home Secretary.

"If four similarities all arise from the same shared service provider, then we do not have four independent reasons. We have four forms of one reason. If two similarities are based on copies of the same source document, it would be wrong to call them two independent supports. An aggregate gains weight only when the sources are independent."

The officer from the Attorney General's office wrote it down immediately.

"This point will be useful in court—number does not prove independence."

Malini said, "So ten similar signals could still be ten shadows cast by one original cause?"

"Yes."

"And two independent signals could sometimes carry more weight than ten shadows?"

"Yes."

The Home Minister looked again at the map spread across the table.

"Then our strategy is not to enlarge the map, but to separate the original sources."

"Exactly," Aditya said.



By evening, a revised briefing note had been prepared for the offices of the Attorney General and the Solicitor General.

There was no sentence of victory in it. No "proved network." No "unified operator." No "definite ownership."

There were only questions and categories.

Which similarities were independently supported?

Which similarities could be explained by a shared technical service?

Which connections were no more than temporal concurrence?

For which financial routes was the ultimate beneficiary still known only indirectly?

Which identifier had been lawfully linked to an actual person?

On which connections would the State remain silent for now?

On the final page, Malini wrote—

“Purpose of analogy: investigative direction and comparative testing. Limit of analogy: it does not independently establish identity, ownership, control, intention, or guilt.”

Aditya read it and said, “Keep that.”

The Home Minister’s private secretary asked, “Will the Honourable Minister see the final copy?”

“Yes,” said the Home Secretary.

A little later Shiveshwar Prasad came back into the room. He read the final page, then picked up a pen and added one line—

“The State’s credibility does not lie in its first assumption always proving correct; its credibility lies in correcting that assumption when new material arrives.”

He did not sign it. In the margin he wrote only two words—“Approved principle.”

Aditya read the line.

For the first time, he felt that the Ministry’s strategy had truly changed.

The State was no longer going to defend the map.

It was sending every line on the map to be tested.



At nine that night, Aditya left the office. The rain had stopped. Beside the road was a narrow strip of wet earth where grass had begun to grow. In the middle of Delhi it was insignificant, almost invisible.

Aditya stopped for a moment.

The edge of his shoe touched the wet soil.

He remembered his mother’s voice—“The earth will never walk into the city by itself.”

He smiled faintly.

The earth had indeed not come.

But patience had.

And within patience lived Gangesha’s old discipline—the thing seen, the relation understood, comparison, dissimilarity, cause, limit.

At the next hearing, the opposing side would attack again. New similarities would be questioned. The lines removed from the map would be cited against the State. The Attorney General’s team would have to weigh every sentence.

But something had now changed in the file.

It contained not only the State’s story.

It also contained the State’s objections to its own story.

And Aditya knew—only when a party itself makes room for contrary possibilities does the weight of its words increase before a court.

Like the earth of Garh En Arikel—the roots take hold first; green leaves are visible only later.

Analogy would give direction.

Dissimilarity would give limits.

Independent evidence would give weight.

And patience—patience would give the time required to reach a truth fit for decision.

031 The Map of Analogy — Chapter 5

The dawn had not yet fully climbed the glass of Delhi's buildings. In the long chamber of the Ministry of Law, three files had lain since the night before—the High Court's latest order, the consolidated copy of the pending Special Leave matter in the Supreme Court, and the newly revised comparative network map.

The map was no longer as dense as before. Many lines had been removed. Some nodes had been greyed out. Beside several links, in red letters, were written: "similarity only," "independent confirmation awaited," "shared service provider possible," "ownership not established," "human identity unproved."

Aditya Jha arrived first. He opened the file and rested his hand on the first page, but did not begin reading at once. A light mist hung beyond the window. He remembered mornings in Garh En Arikel when a thin grey sheet lay over the fields and distant trees seemed all of one shape. Up close, each tree was different—one trunk split in two, one branch drooping low, one crown thick with leaves, another sparse. Similarity from afar. Difference at close range.

He said softly, "The first condition of analogy: do not decide on resemblance seen from a distance."

Malini Karn entered. In her hand was the night's list of revisions.

"Two more lines have been removed," she said. "One similarity of names turned out to be an automated entry generated by a shared accounting-service firm. The other was a similarity of time, but the original clocks differed by eight minutes."

Aditya took the list.

"And independent confirmation?"

"None."

"Then removing them was right."

Malini smiled faintly. "The map is thinner again."

"A thin truth is greater than a dense illusion."

At that moment the Home Secretary, the Law Secretary, and two officers from the Attorney General's office entered. Home Minister Shiveshwar Prasad came last.

A short letter lay atop the file on the table.

The Home Secretary said, "The Honourable Minister has directed that the revised comparative brief be formally sent to the Attorney General and the Solicitor General. The earlier representation has already been accepted. This new submission is for their joint consideration, under that representation, of the analogy-based presentation."

Aditya nodded.

"Let the wording be clear," he said. "It must not suggest that the State is claiming to have found new evidence."

The Law Secretary read from the draft—

"Judicial presentation of comparative similarities appearing in digital architecture, payment paths, temporal correspondence, access records, and connected source documents—"

Aditya stopped him midway.

"After 'appearing comparative similarities,' add: 'some independently verified, some under examination, and some serving only as investigative direction.' Otherwise the very first sentence will carry more weight than it should."

Home Minister Shiveshwar Prasad said, "Add it."

The Law Secretary moved his pen.

Malini pointed again to the four categories written beside the map—

"Independent confirmation."

"Comparative similarity."

"Alternative possibility."

"Discarded link."

The Home Minister asked, "Do we send all four to the Attorney General?"

"All four," Aditya said. "The discarded links too. If the State shows only the lines that survived, the Court will not know how many failed under examination."

For a moment the room was silent.

Shiveshwar Prasad said quietly, "The State's defeated inferences should remain in the State's own record?"

"Yes."

"Why?"

"Because the Court has a right to know how the investigation recognized its own error. Changing a conclusion is not weakness; refusing to change it when its basis changes is weakness."

The Home Minister read the final line of the letter.

"Then send it."

He signed.

The letter left for the offices of the Attorney General and the Solicitor General.



Before noon, a time was fixed for joint consideration. The Attorney General's long library chamber was lined with rows of legal volumes. At its centre stood a long table on which, instead of piles of paper, only six slim files had been placed.

Attorney General Devvrat Sinha read the first page and said, "This time the State is more careful than before."

Solicitor General Mrinal Dhar kept studying the map.

"Care is not enough," he said. "Analogy is attractive in court because a map gives the eye an instant story. That is precisely why its danger is greater."

Aditya said, "That is why each line carries its dissimilarity and its limit beside it."

Mrinal Dhar placed his thumb on one node.

"Here it says the access architecture of two web pages is similar. Source?"

Malini answered, "An older publicly archived copy of one web page, and browser residue from the other found in the seized forensic image."

"Are the two directly linked to the same original source code?"

"No."

"Then 'similarity of structure' is right. Not 'shared source.'"

"Agreed."

The Attorney General read the next point.

"Same sequence of stages in the payment process?"

Aditya said, "Based on time stamps from two different complaints and a response letter from one intermediary institution."

"The intermediary institution is the same?"

"At one stage, yes. The final beneficiary remains unproved."

"Then the sentence in court will be 'procedural similarity,' not 'shared financial control.'"

"Yes."

Devvrat Sinha set his pen down on the table.

"Remember this," he said. "My designation does not add a grain to the weight of evidence. If I utter a sentence whose source is unstable, the Court will question not my office, but the basis of the sentence."

The Home Secretary said quietly, "The political pressure is intense."

Shiveshwar Prasad spoke at once. "Political pressure stays outside. In this room, only the record."

Solicitor General Mrinal Dhar looked at him.

"Then one more rule. There will be no separate statement for the media that goes beyond the limited sentence we place before the Court."

The Home Minister said, "Accepted."

The meeting moved on.

Each link was examined in turn.

Which similarity might arise from an ordinary commercial structure?

Which similarity had an independent source?

Where was the dissimilarity so large that comparison itself became misleading?

Which point supplied only a direction for investigation?

Which point was worth mentioning in court but not worth drawing a conclusion from?

Which line should be removed now?

Three hours later the map had grown thinner still.

Malini looked at it for a moment.

"Earlier I was afraid because the lines were disappearing," she said softly. "Now it feels as though the weight is increasing."

The Attorney General smiled.

"A line that can withstand questioning does not need to be drawn thicker."



At that same hour, at the other end of the city, Vidyanand Mishra sat in his chamber amid an entirely different crisis.

Raghav Sethia's representative, Samarjit Mehta, sat opposite him. He usually spoke in a mild voice, but today there was hardness inside every sentence.

"Mishraji, the State is activating the Attorney General and the Solicitor General again. It is a clear sign that the case has become a matter of political prestige."

Vidyanand removed his glasses and placed them on the table.

“From which record is ‘political prestige’ established?”
Samarjit laughed.
“Not everything exists on paper.”
“Then not everything can be said in court either.”
“I want a hard rebuttal. Say that the State’s entire comparative map was built out of prejudice.”
Vidyanand remained silent.
Samarjit continued, “And I want clear language in the media as well—that the State’s investigation is biased.”
“What is the basis for the word ‘biased?’”
“Our experience.”
“Experience is not evidence.”
Samarjit’s face changed.
“Are you our lawyer or the State’s editor?”
Vidyanand’s voice dropped slightly.
“I am your legal representative. That is precisely why, in your interest, I am stopping the sentence that would collapse under the Court’s first question.”
“You have become excessively cautious.”
“Caution is a professional duty.”
“And if we do not want this kind of representation?”
The chamber went still.
Vidyanand understood what the sentence meant. The standing retainer could be terminated. A major source of fees could disappear. Shailaja’s long treatment was not yet fully over. The household savings were already thin. Nandita had cut down her own work while giving more time to her mother.
Samarjit said, “We need a lawyer who knows how to win.”
Vidyanand slowly put his glasses back on.
“Then you may have to remove me.”
Samarjit stared.
“What?”
“I will not state in court a fact that is not in the record. I will defend privilege. I will oppose investigative overreach. I will break apart weak analogies. But I will not level an unsupported charge of bias.”
“Do you understand what that means?”
“Yes.”
“Other matters from our group may also leave your chambers.”
Vidyanand’s hand was still for a moment.
He remembered the figures on Shailaja’s medicine list. The household accounts. The next round of medical tests. Then he looked at Samarjit.
“Professional dignity does not survive on the subsidy of fees.”
Samarjit rose from his chair.
“I’ll think about it.”
“Do.”
The door closed.
Vidyanand remained seated for a long time.
Only the slow sound of the clock remained in the chamber.
He opened his palm and closed it again. It is easy to speak a fearless sentence in court when its cost exists only as principle. It becomes harder when the price of principle enters the household ledger.
His phone vibrated. It was a message from Nandita—
“Mother’s evening examination was fine. But the doctor wants more tests next month. Have you eaten?”
Vidyanand typed a reply—
“Not yet. I will.”
A few moments later a second message came from Nandita—
“Bring the worry of work home, but do not mix the worry of home into the work.”
Vidyanand kept looking not at the screen, but at the meaning of the message.
That night two kinds of analogy lay before him.
One—the similarities in the State’s digital network.
The other—the similarities in human life.
In both, the danger was the same: what appears alike need not have arisen from the same cause.
A client’s anger does not prove bias.
The State’s use of its highest law officers does not prove political conspiracy.
A multitude of similar digital traces does not prove common ownership.
And private fear does not mean the end of professional commitment.
Vidyanand opened the file. At the top he wrote—

“Limit of analogy: similarity may be a basis; it is not a conclusion.”



The next morning, a brief mentioning opportunity arose in the Supreme Court. Attorney General Devvrat Sinha appeared for the State. Solicitor General Mrinal Dhar stood beside him. Vidyanand stood for the opposing side.

The senior judge on the Bench asked, “Is the State’s new comparative brief new evidence?”

Devvrat Sinha answered, “No, My Lord. It is a classified presentation of material already on the record. Some links are independently verified, some are merely comparative, and some have been discarded.”

“Discarded links have also been filed?”

“Yes.”

“Why?”

“So that the Court may see which comparisons the State itself rejected upon examination.”

The judge looked toward Vidyanand.

“Your objection?”

Vidyanand said, “The presentation may be acceptable, provided that every similarity is accompanied by its dissimilarity, its source, its alternative cause, and an express statement of what that similarity does not establish.”

The Attorney General said at once, “The State agrees.”

For a moment Vidyanand looked at him. He had perhaps expected sharper resistance.

The second judge on the Bench asked, “If both sides agree on these limits, where is the dispute?”

Vidyanand answered, “The dispute will not lie in writing the limits. It will lie in observing them.”

Devvrat Sinha said, “For that reason the State will keep the source of each conclusion separately identified.”

The judge dictated the order: the comparative map may be used only for investigative direction, limited legal presentation, and the contextual presentation of verified links; similarity alone shall not yield a conclusion of ownership, control, intent, or guilt; every material comparison shall indicate its source, dissimilarities, alternative cause, and status of independent confirmation.

Aditya sat behind them, listening.

It seemed to him that the Court was looking not at the colours of the map, but at its grammar.



After the hearing, Vidyanand and Aditya came face to face in the corridor.

For a few moments neither spoke.

Aditya said, “Your phrase about ‘observing the limits’ was right.”

Vidyanand smiled faintly.

“And filing the discarded links was right too.”

“If both sides start praising each other, the media will be disappointed.”

“You worry about the media.”

“I don’t.”

Both smiled slightly.

Then Aditya noticed that Vidyanand looked tired.

“Is everything all right at home?”

Vidyanand paused a moment before answering.

“‘All right’ is too large a phrase. Things are going on.”

Aditya asked no more.

Vidyanand, in turn, asked no further question about the State’s file.

They walked away in their separate directions.



That evening a revised guidance note arrived at the Ministry from the offices of the Attorney General and the Solicitor General. On its first page was a single sentence—

“The power of analogy lies in opening a relation between the known and the unknown; its discipline lies in refusing to mistake relation for identity.”

Malini read it and looked at Aditya.

“That could be the governing sentence for this entire section.”

Aditya said, “A principle is useful only when it survives application to the next line.”

He opened the map.

One node was still marked yellow. Beside it was written: “high similarity; independent confirmation awaited.”

Malini asked, “Keep it until the next hearing?”

Aditya said, “No. First look for an alternative explanation.”

“And if none is found?”

“Then the weight of the similarity increases.”

“And if one is found?”

“Then the line changes.”

Malini folded the map.

Night was deepening. Outside, the lights of the buildings resembled one another, but Aditya knew that identical rectangles of light in windows did not prove that the same life was being lived inside them.

In Garh En Arikel too, at dusk, lamps in distant houses flickered alike. Yet within every lamp’s circle was a different family, a different anxiety, a different story.

Analogy gives the mind a path.

Difference gives intelligence a boundary.

Evidence gives judgment its weight.

And professional dignity gives a human being the courage to stand upright among them all.

032 The Map of Analogy — Chapter 6

At first glance, the Supreme Court that morning looked much like it had at the earlier hearings—black robes, thick files, instructions spoken under the breath, the rustle of turning pages, and that waiting silence which, in the few moments before court begins, lays the same colour over every face.

But Aditya Jha knew that today's question was not an old one.

The digital network map had already undergone enough cutting and pruning. Many similarities had been discarded; some had been limited; some were supported by independent confirmation. Before Attorney General Devvrat Sinha lay the revised brief. Beside each major connection, Solicitor General Mrinal Dhar had written three words—

“Similarity.”

“Dissimilarity.”

“Evidentiary value.”

Vidyanand Mishra stood for the opposing side. There were no multicoloured marks on his file; only the corners of pages had been folded. Watching him, Aditya understood—once an advocate has fully understood his question, he needs colour less.

The Bench assembled.

The senior judge began at once. “On the last occasion we stopped comparison from becoming a conclusion of ownership or control. Today the question is more fundamental—where is the boundary between suspicion, accusation, and proof, especially when the State employs analogy?”

Devvrat Sinha rose.

“My Lords, the State's revised submission makes that boundary explicit. Similarity will provide only a direction for investigation; an accusation against a particular person will still require independent material.”

Vidyanand answered immediately. “The boundary is clear on paper. In practice, the State's questions still sometimes leap from similarity to identity, from identity to role, and from role to guilt.”

The second judge asked, “Example?”

Vidyanand opened a list of three names.

“Manoj Mahato. Rajat Pal. Sudip Ghosh.”

Aditya's eyes went involuntarily to Malini Karn. She had already opened the latest verification summaries of all three witnesses.

The judge said, “Take the three in order. But on one condition—we will not turn human emotions into legal categories. Fear, greed, remorse: these may be circumstances surrounding a statement; they are not evidence by themselves.”

A line became clear in Aditya's mind.

Analogy shows similarity.

Justice asks for the boundary.



Manoj Mahato's case came first.

Two facts in the State's fresh record had now been independently verified. First, during that week Manoj's phone had received calls from two unfamiliar numbers. Second, one of those two numbers had accessed the public information page of the school where Manoj's son studied. But it was still not proved that the caller had used the school's name in order to threaten him, or that the caller had any connection with the alleged gambling network.

Devvrat Sinha said, “Manoj's account of fear is no longer wholly unsupported.”

Vidyanand replied, “Not unsupported—but not causally determined either.”

“The State says no more than that.”

The judge looked at the summary prepared by Malini.

“It says here: ‘Circumstances of fear partially corroborated; identity of source unverified; network connection unverified.’ That language is proper.”

Vidyanand lifted a sheet.

“But an earlier investigative note said: ‘Direct improper influence of the network upon the witness.’”

Aditya himself rose.

“That note has been revised, My Lord.”

“Why?”

“Because the words ‘of the network’ went beyond the material available. The experience of fear and some external circumstances supporting it are established; the identity of whoever caused that fear, and any connection with the alleged network, are not.”

The senior judge asked, “When did you make that revision?”

“After the new call records arrived.”

“The new material strengthened the connection. Why, then, did the language become weaker?”

Aditya paused for a moment.

“Because the new material strengthens the circumstances of fear, not the identity of the offender.”

Silence entered the courtroom.

The judge nodded.

“Let that distinction be recorded.”

Vidyanand looked at Aditya. There was opposition on his face, but within that opposition there was acceptance too—on this one line, at least.

The judge asked, “What does the State infer from Manoj’s statement?”

Devvrat Sinha answered, “That fear may have affected the witness’s willingness to speak.”

“And what does it not infer?”

“Not that any particular accused or operator caused that fear.”

“Good. Suspicion may provide a direction here. An accusation requires a link to a person. Proof requires an independent chain of evidence.”

Aditya made a note—three steps. Not one of them could be skipped.



Rajat Pal’s case was more difficult.

The bank records now verified five additional payments. They were separate from his regular salary, and the description read “work incentive.” The dates fell close to weeks in which certain disputed accounting entries had been prepared. But the establishment’s internal policy also contained a general incentive scheme providing for additional payments for sales, timely closure of accounts, and special projects.

The State’s first story could have been simple—special entries, special payments, therefore an incentive resembling an unlawful reward.

The danger of analogy lay precisely there.

Same period.

Same employee.

Extra money.

But similarity is not causation.

Vidyanand said, “The State had earlier presented these payments as money given in return for the disputed entries.”

Mrinal Dhar replied, “Not anymore. The category now is ‘additional payments—cause undetermined.’”

“So the State’s inference has collapsed?”

“In one form, yes; in another, the examination continues.”

The judge asked, “The distinction?”

Mrinal Dhar said, “Earlier there was a tendency to treat temporal proximity as cause. Now proximity only generates a question. To establish cause, we are examining the policy document, approval records, work instructions, and comparative payments to other employees.”

The judge looked toward Vidyanand.

“You?”

“My objection is that even the word ‘suspicious’ must be used carefully.”

Devvrat Sinha said, “Agreed. Even ‘unusual’ should be used only if there is a comparative baseline for the normal distribution. For now, ‘additional payment’ is sufficient.”

Aditya glanced at Malini. In her record she struck out “unusual” and wrote “additional.”

That change of a single word was small.

But the story changed.

Aditya remembered the market at Garh En Arikel—if two bullock carts reached the square at the same time, it did not prove that both journeys had begun in the same village. Similarity of time asks for a direction; the origins may still be different.

The judge said, “The allegation of greed against Rajat?”

Vidyanand said, “My side says the State treated him as greedy and interpreted his statement through that character judgment.”

Aditya rose.

“The investigation diary said ‘possible financial motive,’ not ‘greedy.’”

“What is the difference?” the judge asked.

“The first is an inquiry into circumstance. The second is a judgment upon character.”

“And the Court will not make the second.”

Against Rajat’s name the order sheet recorded: additional payments verified; purpose of payments disputed; change in statement verified; cause of change unverified; greed not a proved fact of character.

Malini let out a slow breath.

There were not fewer facts.

The limits of the facts had become clearer.



When Sudip Ghosh’s case arose, the atmosphere changed.

His old diary had by then undergone forensic examination of the paper. The age of the ink could not yield exact dates, but several entries appeared to have been written within the same period. Three dates matched the travel records. A fourth remained inconsistent. A restaurant payment record supported Sudip’s presence. But the identity of the person called “R.S.” was still uncertain.

Sudip was not physically present in court; his affidavit and a summary of his earlier statement lay before the Bench.

One sentence in the affidavit read—

“I feel guilty for my own carelessness.”

Vidyanand read it aloud.

“What does the State make of this guilt?”

Devvrat Sinha answered, “A human circumstance.”

“An admission of guilt?”

“No.”

“Knowledge of a conspiracy?”

“No.”

“Then what is its significance?”

Aditya was given the signal to answer.

“We need to understand the reason for the guilt. What exactly does he regret—signing a paper without reading it, remaining silent in a meeting, recognising suspicious circumstances only later, or knowing of an actual unlawful act? These are different things. The emotion is one; its causes may be many.”

The judge said, “Analogy?”

Aditya answered, “The same emotion can arise from different causes. Similarity of emotion alone cannot establish identity of cause.”

“Example?”

“An innocent person may regret not having been more careful. A guilty person may regret something too. And sometimes a guilty person feels no regret at all. There is no fixed pervasion between guilt-feeling and legal guilt.”

The senior judge said, “Then the Court will not make remorse an analogy for crime.”

For the first time, Vidyanand smiled faintly.

“On that sentence, I agree entirely.”

The argument returned to Sudip’s reference to “R.S.” An assistant investigator had written in an earlier note: “possibly Raghav Sethia.”

Vidyanand asked, “Basis?”

Malini’s fresh summary was placed before the Court—similarity of initials, similarity of period, some similarity in contacts; but no direct identification, no independent visual evidence, and no verified presence at the location.

Aditya himself said, “On that basis, it would be improper to identify a person.”

Devvrat Sinha asked, “Does the State withdraw the note?”

“Yes.”

Vidyanand said, “Entirely?”

Aditya answered, “The original record will not be erased. A corrective note will remain beside it: ‘Insufficient basis; personal identity not established.’”

The Bench appeared satisfied.

“Do not erase history, do not conceal error, and make the correction explicit.”

Something steadied inside Aditya.

This Court was not asking only about crime.

It was asking about the character of the record.



During the midday recess, Malini stood with Aditya beside the court steps.

“One thing is clear to me now,” she said.

“What?”

“Earlier I thought: the more similarities, the stronger the story.”

“And now?”

“The more similarities, the more questions. But if the dissimilarities cannot be answered, the story is weak.”

Aditya said, “And if there is independent confirmation?”

“Then part of the similarity may become a connection.”

“And a connection?”

“Is not guilt.”

Aditya smiled.

“Right.”

Malini was silent for a few moments. Then she said, “Manoj, Rajat, Sudip—the three of them changed amid fear, money, and regret. Sometimes I think a human statement is harder than a digital record.”

“Because digital records are made by human beings too.”

“But they do not feel fear.”

“Their sources do.”

Malini looked at Aditya.

Aditya added, “A record appears fearless, but its creation, selection, preservation, interpretation—all are human. That is why method is necessary.”

A few reporters stood on the steps. One question came—“Have the State’s three principal witnesses weakened?”

Aditya did not answer.

Neither did Malini.

Because the word “weakened” would create the same old problem again: once a boundary has been clarified, the clarification gets called a defeat.



In the afternoon hearing, the judge directed that a new table be prepared.

Four columns—

“Statement.”

“External corroboration.”

“Alternative possibility.”

“Legal limit.”

The row for Manoj—

Statement: fear and warning.

External corroboration: calls from unfamiliar numbers; access to school information.

Alternative possibility: other reasons for the calls; school information publicly available.

Legal limit: identity of the person making the threat, or of any network, not proved.

The row for Rajat—

Statement: additional payments; change in statement.

External corroboration: five payments verified; incentive policy available.

Alternative possibility: ordinary work incentive.

Legal limit: unlawful purpose of the payments not proved.

The row for Sudip—

Statement: meeting; reference to “R.S.”; remorse.

External corroboration: limited support for some dates and presence.

Alternative possibility: another person with those initials; error of memory; ordinary business meeting.

Legal limit: Raghav Sethia’s identity, knowledge, participation, or guilt not proved.

The judge read the table and said, “Now I can see the suspicion, I can see the possible direction of accusation, and I can also see how far the evidence actually goes. These three must not be merged into a single sentence.”

Vidyanand said, “My Lord, this arrangement resolves a substantial part of my principal objection.”

Devvrat Sinha said, “The State also wishes to proceed in this form.”

The second judge asked, “Then you are all agreed?”

Vidyanand replied, “On the boundary. Not on the result.”

Devvrat Sinha said, “That is enough for a beginning.”

Aditya thought: perhaps this is where Navya-Nyaya remains alive—not in ending disagreement, but in making clear what the disagreement is about.



Before the hearing ended, the senior judge said, “Let one thing be explicit on the record. The Court is not at present reaching any final conclusion on the existence of any alleged offshore network, its ownership, its operation, or the

criminal guilt of any person. We are concerned only with the classification, comparison, and permissible use of investigative material.”

Hearing that sentence, Aditya felt not relief but the weight of discipline.
Because the Court had drawn the boundary.
Now the responsibility of observing it was his.



That night, in the Ministry’s secure room, Malini placed the revised table beside the network map.

Some lines were thick.
Some were thin.
Some points lay close to one another.
Some far apart.
Now, beside every line, there was a small notation—
“Verified.”
“Comparative.”
“Alternative possibility available.”
“Identity unverified.”
“Purpose unverified.”
“Investigative direction only.”
Malini said, “The map looks less beautiful now.”
Aditya replied, “Good.”
“Why?”
“Because truth is rarely symmetrical.”
Malini laughed.
“And a story?”
“A story wants symmetry.”
“An investigation?”
“An investigation must not be afraid of crooked lines.”

At that moment Aditya remembered the grass growing beside the pond in his village. From a distance every blade looked equally green. Go closer, and each had a different vein, a different edge, a different height. Analogy gives the first recognition; difference gives the second sight.

Human beings are the same.
Manoj’s fear is not Rajat’s fear.
Rajat’s extra money is not Sudip’s remorse.
Sudip’s remorse is not an admission of guilt.
And to paint all three in one colour may make for literary simplicity—but not justice.
Aditya wrote one last note—

“Suspicion	generates	a	question.
Accusation	points	toward	responsibility.
Proof	carries	the	burden.

Analogy shows the road—it does not carry the burden.”

He put down his pen.
Malini asked, “What tomorrow?”
Aditya closed the file.
“The question of privilege will rise again.”
“Again?”
“Yes. But this time together with the similarities on the network map.”

Malini understood—the next conflict would be one in which comparison, confidentiality, and the lawyer-client relationship would collide with one another.
Outside, the night had deepened.
Inside, the map held many lines.
Some verified.
Some suspected.
Some discarded.
Some still unnamed.
And justice waited among them to learn how far each line truly went.

033 The Map of Analogy — Chapter 7

The first light of morning was climbing the glass of Delhi's buildings, but in Aditya Jha's mind some of the night's deep darkness still remained. The revised network map Malini Karn had prepared lay spread before him. Beside each line there were now three small marks—source, dissimilarity, and limit.

At the previous day's hearing, the Court had made one thing clear: similarity can raise a question, but similarity is not its own answer. Today's question was harder still. Some of the lines on the network map led to digital material seized from Vidyanand Mishra's law office. The State said that some of it might be ordinary business records; Vidyanand maintained that legal advice, confidential communications with clients, and case strategy could not be opened merely to satisfy an investigation's general curiosity.

Malini asked quietly, "If the same kind of payment table was found on another device and here as well, what is the value of the similarity?"

Aditya said, "Its value is only this: it may make a question legitimate—what was the purpose of this record? But the answer has not yet been found."

"And if the name is the same too?"

"Similarity of name."

"The time as well?"

"Temporal similarity."

"The structure too?"

"Similarity of form."

Malini grew impatient. "Then how many similarities are needed before a connection can be accepted?"

Aditya placed his thumb on one line of the network map. "Do not count the similarities; examine the reason for them. The same template may be sold in the market. The same name may belong to many people. The same time may simply reflect proximity to an event. The question is not how many marks coincide. The question is whether there is a reason for the coincidence that competing possibilities cannot withstand."

Malini fell silent.

Aditya went on. "And in a question of privilege there is another boundary. If the material contains legal advice, the State needs far more than similarity before it can be opened: judicial permission, a method of segregation, and a clear legal basis. Analogy can lead you to the door; it does not give you the right to open it."



The High Court courtroom was full. Vidyanand Mishra stood quietly in his place. Before him lay two thick files, a slim notebook, and a copy of that day's order. Devvrat Sinha appeared for the State. Aditya sat behind at the assigned place; Malini was beside him.

Justice Arya drew the boundary in her very first sentence.

"Today the Court will not hear the question of any person's guilt. It will hear only the classification of the material and the limits of privilege."

Vidyanand said, in a tone of formal respect, "My Lady, my principal objection is that the State wishes to treat material inside a law office as ordinary business material on the strength of a comparative network map. Similarity does not prove purpose."

Devvrat Sinha replied, "The State makes no such general claim. We ask only that material which is not on its face legal advice be segregated impartially."

Justice Arya asked, "By whom?"

"By an independent review team, separate from the original investigation team."

"And when will the original team receive the contents?"

"When the review team has classified them and access is permitted in accordance with the Court's directions."

Vidyanand said, "But what are the criteria of classification? Only similarity on the network map?"

"No," Devvrat said. "Location, the relationship between sender and recipient, the purpose of the record, its contents, the circumstances in which it was created, and independent corroboration from external records."

Justice Arya stopped her pen. "Good. Then let us proceed category by category."

The State placed the first item before the Court—a table containing a number of payment references. A similar table had been found on another seized device.

Devvrat said, "The two tables have several corresponding columns. Their periods are close as well."

Vidyanand responded at once, "It may also be an ordinary accounting format."

Justice Arya looked toward Aditya. "Investigating officer?"

Aditya rose. “My Lady, the State does not treat this similarity as proof of ownership or participation. It merely raises a question of classification. If the contents contain legal opinion, case strategy, or client advice, the claim of privilege must be examined independently. If it is merely a pre-existing business accounting record, its character does not change solely because it was present in a lawyer’s office—that is the State’s submission; the final determination is for the Court.”

Vidyanand gave a slight nod. “In that limited form, I do not object.”

Justice Arya said, “Let the record show: location is not decisive; purpose and content are primary. Similarity may assist preliminary sorting, but it is not determinative.”

Malini wrote in her notebook: “Analogy = direction of entry, not breach of privilege.”



The second item was an email chain. Its subject line looked like ordinary business correspondence, but in the middle of the chain appeared a question seeking legal advice.

The State said only the subject line and the attachment name resembled another point on the network map.

This time Vidyanand’s voice hardened. “If the contents are opened on the strength of that similarity, the privilege is broken first and adjudicated afterward.”

Justice Arya said, “The State?”

Devvrat replied, “We are not seeking direct access for the original team. The independent review team would examine it first.”

Vidyanand said, “That review team is also an organ of the State.”

“Then a court-appointed assisting counsel, or a separate legal examiner?”

For a moment the courtroom was still.

Justice Arya said, “We will determine the arrangement today; the individual later. The principle will be this: where a record is mixed, the portion containing legal advice will be treated as *prima facie* protected until the Court holds otherwise. External metadata—time, size, storage location, and the like—raises a separate question; but even that cannot be used without legal basis.”

Aditya listened. It seemed to him that the Court was not opening the material; it was drawing a boundary around it. In Navya-Nyaya, a thing is never merely a thing: its attribute, relation, locus, purpose—each can become a distinct delimiting condition.

Malini asked softly, “Aditya ji—” then stopped herself. “Aditya ji, what if the metadata similarity is very strong?”

Aditya whispered, “Then the question is strong. The authority is not automatic.”



The dispute over the third item was subtler still. It was a template letter bearing no name of the law office, but its linguistic construction resembled a record obtained from a shell entity associated with the alleged offshore gambling network. The State considered the resemblance significant.

Vidyanand said, “Linguistic similarity is not proof that a lawyer wrote it. The template may have been shared, copied from an older record, or drafted by a junior employee.”

Justice Arya asked, “The State’s independent basis?”

Devvrat was silent for a moment. “At present, the direct independent basis is insufficient.”

“Then?”

“Let this point remain only a comparative indicator under examination.”

Something eased inside Aditya. Counsel for the State was not trying to rescue a weak point simply because it was theirs.

Vidyanand said, “My request is only that this indicator not become a route into privileged material.”

Justice Arya wrote the order: “Linguistic similarity alone, without corroboration of an independent source of origin, is not sufficient ground to open protected content.”

Malini drew two lines beside that sentence.

Aditya noticed. “Why?”

“Because until yesterday we gave linguistic similarity a great deal of weight.”

“And today?”

“It still matters—but within limits.”

“The first lesson of analogy.”

“Similarity together with dissimilarity?”

“And the second—the reason for the similarity.”

◆

During the midday recess, Vidyanand came to Aditya in a quiet corner of the corridor. For a moment neither spoke. Such silence was rare in the middle of conflict.

Vidyanand said, “Jha ji, you understand that my severity is not personal?”

Aditya replied, “Even if it felt personal to me, the question on the record would remain separate.”

Vidyanand smiled faintly. “That is perhaps why arguing with you is difficult.”

“Why?”

“You rarely speak the language of winning.”

“If the word victory enters an investigation too early, evidence is left behind.”

Vidyanand looked toward the wall. “Privilege too sometimes becomes more than a shield. Clients want everything stored in a lawyer’s office to become protected. But the dignity of the law is weakened by such excessive claims as well.”

Aditya said, “Then the problem on both sides is the same—limits.”

“Yes.”

“The limits of the State’s curiosity.”

“And the limits of a claim of privilege.”

Again they fell silent. A bell rang inside the courthouse.

◆

At the afternoon hearing, Justice Arya proposed four categories.

First—direct legal advice, confidential questions from clients, and case strategy.

Second—ordinary pre-existing business records that existed before any legal advice was sought.

Third—mixed material containing both legal and non-legal portions.

Fourth—external metadata concerning not the contents themselves, but facts such as time, storage, route, size, and copying history.

Vidyanand sought complete protection for the first category. The State agreed, while reserving legal argument on possible exceptions for the future.

On the second category, the State said location does not create privilege. Vidyanand replied that if a pre-existing record is sent for the purpose of legal advice, the original record does not thereby become privileged, though disclosure of the context of the consultation may be protected.

Justice Arya said, “Keep that distinction explicit on the record.”

For the third category, the Court indicated that a separate review mechanism would be created.

The fourth category produced the greatest argument.

Devvrat said, “Metadata can sometimes reveal a record’s path of origin.”

Vidyanand replied, “But the path of origin can sometimes reveal the structure of legal advice as well.”

Justice Arya said, “Then there will be no universal rule. The Court will examine the categories separately.”

That single sentence gave the State no complete victory. It gave Vidyanand none either.

A thought rose in Aditya’s mind: perhaps this is what judicial balance looks like. The convenience of both sides remains incomplete, while the method remains whole.

◆

Before the hearing ended, Justice Arya asked one final question.

“How will the law-office point be shown on the network map?”

Malini’s map was placed before the Court. Until now that point had carried ordinary lines.

Aditya said, “My Lady, the State proposes a separate notation for this point—‘under privilege review.’ Any line emerging from it will remain only under examination until the review is complete.”

Vidyanand said at once, “And if a line rests only on protected content?”

“Then the original investigation team will not use it.”

“And if the same connection is independently corroborated from an external source?”

“Then the independent source will be recorded separately as the basis; the protected content will not be treated as the basis.”

Justice Arya said, “This arrangement is accepted on an interim basis.”

She then made the boundary explicit: “The Court is not at present reaching any conclusion on the ownership, operation, participation, or criminal culpability associated with any alleged network. Today’s order concerns only privilege, segregation, comparative indicators, and the legal limits of investigation.”

Aditya kept repeating the word in his mind.

Boundary.

Again, boundary.

And the search for truth moving within it.



That night, back at the guest house, Aditya did not eat. He ordered tea, but could not finish even half the cup. Outside lay the city's lights. Inside him, an old night on the banks of the Ganga opened again.

It was a memory from childhood. After the monsoon, the Ganga had risen. From a distance two currents looked the same colour—one the main channel, the other a slower side-current formed behind the bank. The child Aditya had asked, “Are both the same Ganga?”

His father had answered, “The water may look as though it is moving the same way, but the current has a different gait. Do not say without measuring.”

Aditya had not understood the meaning then.

Today he did.

Two records in the same form. Two payment tables with the same columns. Two emails in nearly the same language. Two network names built on the same method. Yet similarity is the colour of the current; cause is its motion.

The memory of Gangesha Upadhyaya rose again—analogy is not the complete identification of a thing, but a controlled bridge from the known toward the unknown. One may cross a bridge; the bridge itself is not a home.

Aditya opened his notebook and wrote—

“Similarity grants the right to ask a question, not the right to breach privilege. Privilege is determined not by location, but by relationship and purpose. An independent source does not take the place of protected content; it must have its own recorded path. Analogy gives direction—justice gives the boundary.”

For a while he kept looking at the lines he had written.

Then his mother called.

“Have you eaten?”

“Not yet.”

“Files again?”

Aditya laughed. “Yes.”

“If you think too much, your head will hurt.”

“Should I stop thinking?”

“No. But remember the soil from time to time.”

After the call ended, Aditya's mind travelled back to the courtyard at Garh En Arikel: the Ganga, the earth, and his father's old sentence—“Do not say without measuring.”

Among modern digital network maps, the value of that old sentence had not diminished. It had increased.

Because in an age when a thousand lines can be drawn in an instant, the patience to erase a mistaken line becomes a judicial virtue.



After midnight, Malini's message arrived: “Revised map ready. Law-office point separately marked. All lines resting on protected content suspended. Lines supported by independent sources separated.”

Aditya replied, “Beside every line write: like what, why, and how far.”

A few moments later Malini wrote, “And what it does not say?”

Aditya smiled.

“That first of all.”

Outside, the city was growing quiet.

Inside, the map was changing again.

Some lines grew shorter.

Some broke.

Some were redrawn from new sources.

And one point—the lawyer's office—was no longer an ordinary point. A legal boundary now stood around it.

Aditya understood: a boundary is not the enemy of truth.

Sometimes a boundary makes truth so clear that the illusion created by an earlier similarity falls away on its own.

And the next morning, when sealed material and the investigation diary returned before the Court, Malini would face an even harder test of that distinction.

034 The Map of Analogy — Chapter 8

The first light of dawn was spreading across Delhi's grey sky when Malini Karn entered the secure analysis room. The revised network map had been completed the previous night. The law-office node was now marked separately; lines resting on protected content were suspended; lines corroborated by independent sources were distinguished. But today's work was not the map. It was the language concealed behind it.

Three sealed files lay on the long worktable. Each bore a separate serial number, time of receipt, custody signature, and the Court's direction.

Aditya Jha was already there.

"Are all three from the same case?" Malini asked.

"From the same case," Aditya said, "but not of the same kind."

"What is in the first?"

"Certain records segregated from a forensic image. In the second, extracts from the investigation diary. In the third, material under privilege review."

For a moment Malini looked at the three envelopes.

"All three sealed."

"Yes."

"Then in the Court's eyes, the same degree of confidentiality attaches to all three?"

Aditya smiled. "You will answer that question today."

Malini understood—the examination had begun.

"The seal is the same," she said quietly, "but the reason need not be."

"Go on."

"The first may be sealed to preserve the integrity of the record or the direction of the investigation. The second may involve witness protection, investigative method, or the confidentiality of an unverified source. The third concerns attorney-client privilege."

Aditya nodded.

"And if all three are in envelopes of the same colour?"

"Colour does not alter their legal character."

"Remember only that much. Today the argument in Court will not be about colour, but cause."



As soon as the hearing began, Vidyanand Mishra rose.

"My Lady, after the previous order a segregation exercise was carried out. Yet in the State's new summary note there are sentences that place sealed material and extracts from the investigation diary within the same comparative chain. My objection is to that."

The Solicitor General appeared for the State. The Attorney General himself was scheduled for the principal hearing on the next date. In a calm voice the Solicitor General said, "The State does not seek to present any sealed extract as independent proof. The summary note merely identifies source categories."

Justice Arya said, "Source category and evidentiary value are not the same thing. I will see the paper."

A brief comparative sheet was placed before the Court. It had four columns—

Direct external source.

Sealed verified record.

Interpretation in the investigation diary.

Material under privilege review.

Justice Arya read the first page and stopped.

"This line says, 'The similarity is continuous.' Similarity between which two things?"

The Solicitor General replied, "My Lady, between a publicly available webpage layout and a template found in the seized forensic image."

"Then why is the investigation diary listed here?"

Counsel for the State began to rise to answer, but Aditya wrote something on a sheet and passed it forward. Counsel read it and said, "The diary contains the investigator's comment on this similarity. The diary is not the source of the similarity."

Justice Arya said, "Then make that distinction explicit in the summary note. The investigator's comment does not create the similarity. It merely interprets it."

Vidyanand said, “That is precisely my principal concern at this point. The fact that a document is sealed creates an unnecessary gravity in the reader’s mind. What has not been independently established does not become more credible merely because it is confidential.”

Justice Arya looked directly at Malini. “Is the analyst present?”

Malini stood.

“Yes, My Lady.”

“Your table says ‘high similarity.’ On what basis?”

Malini was silent for a moment. Until yesterday she had taken pride in that phrase. Now she could feel its weight.

“My Lady, on similarity in visual layout, sequence of fields, the manner in which payment information is presented, and certain naming conventions.”

“Are all four independent sources?”

“No, My Lady.”

“Then?”

“Some may derive from the same underlying template.”

“Then is it proper to write ‘four similarities?’”

Malini held her breath before answering. “No. A more accurate sentence would be: ‘four manifestations of one possible underlying template.’”

A light stillness spread through the courtroom.

Justice Arya said, “Let the correction be taken on record.”

Malini sat down. Her hands were cold. Yet an odd clarity had entered her. An error had been caught, but it had not been hidden. In that moment she understood: respecting the limits of fact does not mean making a fact smaller. It means giving it its true size.



The second dispute arose over the investigation diary.

Vidyanand said, “The State’s diary records an inference concerning an alleged payment chain. That inference is sealed. If the Court passes an adverse order on the basis of that inference, how are we to answer it?”

The Solicitor General said, “The State does not treat the diary as independent proof.”

“But the Court will see it.”

“The Court sees a great deal of material that does not become final evidence.”

Justice Arya intervened. “Both sides shorten your sentences. The question is clear: what is the limit on judicial use of confidential material?”

She looked over her notes for a few moments.

“An investigation diary records the direction of inquiry, reasons, suspicions, abandoned hypotheses, witness leads, and strategic decisions. It may contain verified facts, but the diary itself does not take the place of verification. If the Court uses a fact in the diary as an essential basis for an adverse order, the opposing side must, to the extent proper, be given an opportunity to know its summary or its independent basis. If the material serves only to guide the next step of investigation, confidentiality may be broader.”

Vidyanand asked, “And if even providing a summary would reveal a witness’s identity?”

“Then alter the form of the summary, not the right.”

The Solicitor General said, “The State agrees with that principle.”

Malini wrote in her notebook—

“Confidentiality = limit on access.

Evidentiary value = quality of verification.

They are not the same.”

Then Aditya said softly, “Write one more line beneath it.”

“What?”

“A seal can enforce silence; it cannot increase truth.”

Malini wrote it down.



The third argument was the hardest of all.

One sealed section contained a comparative diagram prepared by the investigation team. On a single sheet it showed five web locations, two payment intermediaries, three customer-support identities, and an external contact record linked to a law office.

Vidyanand said, “The visual force of a diagram becomes an accusation in itself. When five lines appear to meet at one point, the mind naturally assumes a ‘centre.’ But are these five lines five independent relationships?”

The Solicitor General looked toward Aditya.

Aditya stood.

“My Lady, no. Of the five, two lines arise from the same service-provider record. One rests only on temporal similarity. One is corroborated by an independent payment record. The fifth is under review.”

Justice Arya looked at the diagram.

“Then this diagram is misleading.”

Without assuming a defensive posture, Aditya said, “In this form, yes.”

For a moment Vidyand said, “It will be done.”

Justice Arya said, “Place a revised version of this diagram on record. Beside every line, state its source, independence, status of corroboration, dissimilarity, and limit.”

The Solicitor General said, “It will be done.”

Vidyand said, “And the line under privilege review?”

“In grey or by a separate notation, and without adverse interpretation.”

Justice Arya said, “This Court is not looking at the beauty of the diagram. It is looking at the logic of the diagram.”

The sentence struck Malini sharply. She remembered the diagram she had made—colour, line, thickness, all forms of visual arrangement. But visual arrangement itself could lend the mind an illusion of reasoning.

She understood that the subtlest danger of analogy is this: the moment a similarity appears before the eye, the mind begins constructing a story of causation.

The old logic had said: through similarity with what is known, the unknown becomes intelligible. But in a modern digital map, a thousand forms of similarity can be displayed in an instant. So the question is not merely “what is alike?” but also “is the likeness independent, or merely a repetition of the same source?”



During the midday recess, Malini sat in a quiet corner of the Court complex. The revised table was in her hands.

Aditya came over.

“Heavy mind?”

Malini tried to smile. “I thought I was arranging facts. Today I understood that arrangement itself can alter meaning.”

“It takes some people many years to understand that.”

“I treated five lines as five relationships.”

“You wrote them that way. You had not yet believed them that way.”

“There is a difference?”

“A written error can be corrected. An error one has believed becomes harder when it turns into pride.”

Malini fell silent.

Aditya said, “In Garh En Arikel, two mango trees used to appear identical in the pond water. One was real; the other a reflection. As a child I threw a stone at the reflection. Ripples rose, but the tree did not move.”

Malini smiled. “And what did your father say?”

“He said, ‘First look for what you can touch.’”

“That sounds like perception.”

“Yes. But knowing the shape of the reflection can begin an analogy by which you recognise the tree. The problem begins when you take the reflection for a second tree.”

Malini added a new column to her table—

“Independent source?”

Then another—

“Repetition of the same underlying source?”

And a third—

“What does this similarity not prove?”

Aditya said, “Now the map will open again.”



The hearing resumed.

Justice Arya said, “At this stage I wish to record certain principles.”

The court clerk’s pen began to move.

“One—sealed status does not give material independent evidentiary value.”

“Two—an interpretation recorded in an investigation diary remains an interpretation unless corroborated by a separate source.”

“Three—comparative similarity, especially in a network map or visual table, shall not be treated as multiplied evidence without testing the independence of its sources.”

“Four—the presence of material under privilege review shall not, by itself, form the basis of an adverse inference.”

“Five—if the Court relies on confidential material as an essential basis for an adverse order, an opportunity to answer shall be preserved to the extent judicially possible.”

Vidyanand said, “My Lady, the State’s revised summary note uses the phrase ‘similar operational method.’ I request that the limit of this phrase also be recorded.”

Justice Arya looked toward the State.

The Solicitor General said, “The State accepts that a similar operational method may also arise from a common service provider, a widely used digital architecture, a shared consultant, copying, or independent imitation. Accordingly, that phrase does not establish ownership or criminal participation.”

Justice Arya said, “Add that limitation to the summary note.”

Malini kept writing.

In that moment she understood that the Court’s severity did not diminish evidence; it gave evidence its true weight.



In the evening, every line was reviewed again in the analysis room.

One payment similarity—independently corroborated.

Two structural similarities—possibly attributable to the same service provider.

One temporal similarity—insufficient.

One contact similarity—under privilege review.

Three customer-support naming patterns—with the possibility of a common template.

Beside every line Malini wrote its limit.

“This does not establish ownership.”

“This does not establish individual control.”

“This only gives a direction for investigation.”

“This is not an independent source.”

“This is open to reassessment once the review is complete.”

Aditya watched from a distance.

At last Malini asked, “Aditya ji, one thing.”

“Tell me.”

“I used to think the more facts there were, the stronger the story. Now I understand that sometimes five facts are really five shadows of the same fact.”

“If you have understood that, half the next error has already been reduced.”

“And the other half?”

“The human mind.”

They both laughed.



That night a brief review was held at the Home Ministry. Shiveshwar Prasad was present. The revised judicial points had arrived from the Solicitor General’s office.

An officer said, “Minister, if the use of confidential material is restricted this much, the State’s case will look weak.”

Shiveshwar Prasad closed the paper.

“Confidentiality does not make weak material strong.”

No one answered.

The Minister continued, “I want the Court’s trust. If our case stands on material to which the other side cannot even respond, we may win and still lose that trust.”

Another officer said, “But public perception?”

“Public perception is not judicial evidence.”

“The political attacks will increase.”

“Let them.”

Shiveshwar Prasad’s voice was calm.

“The State’s task is not to influence the Court. The State’s task is to keep the record clear.”

He read the final line—“Analogy gives direction; confidentiality limits access; evidentiary value comes from independent verification.”

He said, “Let that line remain.”



That night Malini stayed late at the office. At one point every colleague had left. The light from the computer screen fell across her face.

She opened the revised map.

She remembered the first version—dense lines, dark colours, one centre, many signals.

Now the map was sparse.

Some lines had been erased.

Some were grey.

Some carried question marks.

Some were marked—“Independently corroborated.”

Earlier, that sparseness would have seemed like weakness to her.

Now it looked like intellectual honesty.

On the final page of her notebook she wrote—

“Respecting the limits of fact is not an insult to fact.

A seal does not increase the weight of truth.

A diary gives direction, not proof.

Similarity is a bridge, not a destination.

Many shadows of one source are not many pieces of evidence.”

A few moments later a message arrived from Aditya—

“The Supreme Court file will be updated tomorrow. Keep the comparative table with you.”

Malini replied—

“Revised. The limit of every similarity is stated.”

Aditya wrote—

“Read the limits first.”

Malini smiled.

Outside, the night deepened.

Inside, the map grew lighter.

And perhaps for the first time she understood: truth sometimes becomes clearer not by adding lines, but by taking them away.

The next morning, a copy of that sparse map was to enter the supplementary file in the pending special-leave matter before the Supreme Court.

035 The Map of Analogy — Chapter 9

The morning sun had not yet fully climbed the glass faces of Delhi's buildings. Lawyers were already moving through the Supreme Court complex, but Vidyanand Mishra walked more slowly than usual. He carried two files: an older one containing the papers of the pending special-leave matter, and a newer, slimmer file holding the High Court's latest order, judicial directions on sealed material, the limits of confidentiality in the investigation diary, and the State's revised comparative map.

Aviral, his assisting counsel, asked, "Acharyaji, should we file the new papers as a separate petition, or as a supplementary submission in the pending matter?"

Vidyanand remained silent for a few moments.

"If we create a separate case, the history breaks apart. The High Court's order is new, but the root of the dispute remains tied to the pending special-leave matter. We will file a supplementary submission. Write it clearly: this is not a fresh accusation, not a request for a fresh adjudication; it concerns only the effect of the new judicial order and the question of the scope of review."

Aviral began to write.

Vidyanand added, "And one more thing. Remove the sentence, 'The State's map proves a network structure.'"

"But the client's instructions—"

"The client may give instructions. We choose the language. The map shows similarities. Some lines are independently corroborated; some may be explained by a common service provider; some remain under review. To write similarity as ownership would be to write the conclusion before the Court has reached it."

Aviral fell silent.

Vidyanand rested not his thumb but the point of his pen on the first page of the new file.

"The first discipline of analogy: what resembles a thing is not therefore that thing."



At that moment a message flashed on Ananya Kashyap's mobile phone.

"Big development. New petition in the Supreme Court. State's secret map proves foreign betting network. Run immediately."

The message carried a blurred photograph. Only the upper part of the paper was visible—the words "supplementary submission" were half-cropped; several paragraphs below were indistinct.

In the newsroom, editor Vineet Mathur was already impatient.

"Ananya, this could be our lead. 'Secret map reaches Supreme Court'—what could be bigger than that?"

Ananya kept looking at the image.

"The paper does not say 'secret map.'"

"But the source does."

"Did the source give us the full document?"

"No."

"Is this a new petition, or a supplementary submission in the pending matter?"

"What difference does that make?"

Ananya raised her eyes.

"The difference is that if we call it a new petition, the reader will understand that a new proceeding has begun. If it is a supplementary submission, a new order has merely been placed in an existing matter. The legal meaning changes."

Vineet looked dissatisfied.

"If truth moves this slowly, every other outlet will get ahead of us."

Ananya enlarged the photograph on her screen. A date was visible in one corner. Above it ran a line: "Supplementary grounds in pending special-leave matter."

She said quietly, "Let the others get ahead. I will not get ahead by publishing what is inaccurate."

Vineet laughed. "Have you joined the Court, or are you still in a newsroom?"

"Words carry weight in both places."



The supplementary submission was accepted in the Supreme Court registry. That meant only this: the paper became part of the record in the pending matter. It did not predetermine the hearing, suspend the High Court's order, or establish any allegation.

Vidyanand repeated that limit to his juniors more than once.

“Accepted means it will be read. It does not mean that because it will be read, it has been accepted as true.”

A little later, the Bench assembled. The Attorney General and the Solicitor General appeared for the State. Aditya Jha sat in the back row beside Malini Karn. Across from them stood the team representing Raghav Sethia.

Vidyanand rose.

“My Lady, the High Court’s new order affects the scope of the pending special-leave matter, particularly on the limits governing sealed material, the investigation diary, privilege review, and the use of comparative digital maps. We have therefore placed a supplementary submission on record.”

Justice Arya asked, “What relief do you seek at this stage?”

“First, that no adverse conclusion be founded solely on sealed material. Second, that similarity shown by a comparative map not be treated as independent proof of ownership or control. Third, that where material is under privilege review, any widening of the investigation on that basis be preceded by judicial screening.”

The Attorney General rose.

“On the first two propositions, the State is substantially not in disagreement. The High Court itself has said that a seal does not increase evidentiary value and that similarity does not by itself prove ownership. The dispute concerns the breadth of the third proposition—whether, in the name of privilege, ordinary commercial records or external metadata are to remain entirely outside investigation.”

Justice Arya looked at Vidyanand.

“Then the real dispute is not merely whether similarity exists, but what legal consequence similarity may carry?”

Vidyanand nodded.

“Exactly.”

“And the State?”

The Attorney General said, “That is also the State’s position.”

A brief stillness settled over the Bench.

Malini wrote in small letters beside Aditya: “The dispute is not over the line, but over the meaning of the line.”

Aditya glanced at the note and placed a single dot beside it.



Vidyanand lifted a printed copy of the map.

“My Lady, this map contains three kinds of similarity. First, similarity of naming. Second, similarity of timing. Third, structural similarity. The difficulty is that visually all three appear as the same kind of line.”

The Solicitor General said, “After the High Court’s order, the State has assigned separate markings to each category.”

“It has,” Vidyanand acknowledged, “but the question remains. For example, two web addresses have similar login pages. Toward what does that similarity point?”

A passage from Aditya’s affidavit was read aloud: “Similar login pages may arise from a common template, the same service provider, copying, or a common operational architecture. That similarity alone does not establish ownership, control, or criminal participation.”

Vidyanand said, “That admission is important.”

The Attorney General replied, “And the State has not concealed it.”

Justice Arya asked, “So both sides agree on the limits of similarity, but disagree on the stage at which it may be used?”

Vidyanand said, “Yes. The State says similarity may justify the next investigative step. We say that where alternative explanations for the similarity remain equally possible, similarity alone cannot justify access to private or privileged material.”

The Bench looked toward Malini.

“Is the analyst present?”

Malini stood.

“Yes, My Lady.”

“Of all the similarities shown on this map, do they all come from independent sources?”

“No, My Lady.”

“How many are independent?”

“At present, of the seven principal lines, three are supported by independent sources. Two may arise from the same service provider. One is only a temporal similarity. One is tied to metadata from a contact under privilege review.”

“Then the visual map shows seven lines, but evidentially there are not seven independent foundations?”

“No.”

“Is that limitation written on the map?”

“It is now.”

“And before?”

Malini was silent for a moment.

"It was not."

A faint rustle moved through the courtroom.

Vidyanand said at once, "That is why we say visual similarity can exert greater influence on the judicial mind than its actual evidentiary basis warrants."

The Solicitor General replied, "And that is why the State corrected the map. To acknowledge and correct an error is not weakness in an investigation; it is a mark of reliability."

Justice Arya looked from one side to the other.

"Analogy is useful because it allows the unfamiliar to be understood through the familiar. But the judicial danger lies in the same place: the moment the familiar form appears, the mind says, 'This is like that, therefore it must be as that is.' The Court must guard against that second leap."

The court clerk's pen began to move.



The Court rose for a short recess. Reporters gathered in the corridor outside.

Ananya did not go first to Vidyanand. She checked the publicly available registry information. Then she obtained confirmation from the State's counsel room that the supplementary submission had been filed in the pending matter. Third confirmation: there was neither a stay order nor any new finding.

Another reporter said to her, "What headline will you run? 'Supreme Court takes hard line on secret material?'"

Ananya said, "So far the Court has asked questions. It has not passed an order."

"Four of State's seven links under suspicion?"

"If three are independently corroborated, that does not automatically make the remaining four 'suspect.' Two may share a common source, one is merely temporal, and one is under review. The four are not the same kind of thing."

"Will readers bother with that much nuance?"

"If we remove the nuance, what the reader gets will no longer be true."

The reporter shrugged.

Ananya opened her notebook and wrote a headline—

"Fresh supplementary filing in pending special-leave matter; Supreme Court questions limits of similarity."

She paused. The headline was not dazzling. It was accurate.



The hearing resumed in the afternoon.

Vidyanand offered a new example.

"Suppose two commercial groups use the same payment intermediary. The architecture of the payment page, date stamps, and certain indicators may resemble one another. Analogy says the two contain similarities worth comparing. But does that prove that one group owns the other?"

"No," Justice Arya said.

"Does it prove participation in the same offence?"

"No."

"Can it raise an investigative question?"

The Attorney General answered, "Depending on the circumstances. If the similarity is accompanied by an independent payment trail, administrative access, or a common control record, a question may arise."

Vidyanand smiled.

"Exactly. Not analogy alone."

"Has the State ever said analogy alone?"

Vidyanand opened the file.

"Paragraph fourteen of the initial presentation used the phrase 'common operational structure.'"

The Attorney General responded immediately, "That paragraph has been revised, and the State has placed the reason for the revision on record."

Justice Arya said, "A past error may be discussed, but its correction is also part of the record. The Court is not conducting a competition in fault-finding; it is examining how reliable the present presentation is."

Vidyanand inclined his head.

"Accepted."

The Bench continued, "And your supplementary submission has been taken on record. Let it remain clear, however: that acceptance is procedural. At this stage the Court neither declares the State's map true nor finally accepts your privilege objection."

"Much obliged," Vidyanand said.

Justice Arya dictated the order—

“The supplementary submission shall be taken on record. The High Court’s latest order, the revised comparative map, and the privilege-review summary shall remain for consideration at the next hearing. Neither side shall, on the basis of comparative similarity alone, present a conclusion of ownership, control, or criminal participation. If similarity is relied upon as the basis of a further investigative step, its source, alternative explanation, independent corroboration, and proposed legal consequence shall be stated with clarity.”

The order was brief. Its effect was broad.



When the hearing ended, a dozen mobile phones rose at once outside.

Within minutes, headlines began to spread—

“Secret network map reaches Supreme Court.”

“Four of State’s seven links in the dock.”

“Decisive turn in offshore betting network case.”

“Fresh clash over the shield of privilege.”

A message from Vineet arrived on Ananya’s phone: “Everyone has filed. Why is ours still not up?”

She replied, “Waiting for the order copy.”

“The oral hearing is enough.”

“The wording of the order may differ.”

“Send in five minutes.”

As soon as the authorised copy became available, Ananya opened it. She compared it with her notes from the oral hearing. In two places, the written order was narrower than the oral tenor. Where the hearing had carried the harder tone of necessity, the written order said “shall be stated with clarity.” She revised her notes again.

She filed the story.

In the first paragraph she wrote: the supplementary submission in the pending special-leave matter had been taken on record; the Court had expressed no final view on the merits.

In the second: comparative similarity alone does not prove ownership, control, or criminal participation.

In the third: the State’s revised map separately classifies independently corroborated links, possible common-source links, temporal similarity, and a contact under review.

In the fourth: the privilege dispute will continue at the next hearing.

At the end Ananya wrote, “At this stage, the judicial question is less whether a line exists than how much legal meaning the line can bear.”

She sent the report.

For ten minutes there was no response.

Twenty minutes later Vineet wrote, “The headline is dull.”

Ananya did not reply.

Half an hour later, a professor of law shared her report and wrote: “A rare account that preserves the distinction between filing and finding.”

Ananya read the sentence and turned off her screen.

Truth spoke slowly. But it spoke.



That evening Vidyanand sat alone in his chamber. The accepted copy of the supplementary submission lay before him. A message from Raghav Sethia arrived—

“I want a more aggressive position. The media is writing about the State’s weakness. At the next hearing, say clearly that the entire investigation is politically motivated.”

Vidyanand did not answer for a long time.

In the drawer of his desk lay a copy of Shailaja’s prescription. The next hospital payment was due in three days. Several important clients had already begun to distance themselves. Raghav’s case accounted for a large part of his chamber’s income.

He read the message again.

“Politically motivated”—the phrase was seductive. It would run instantly across the media. The client would be pleased. Perhaps the financial strain would ease.

But the record contained no such proof.

Vidyanand typed a reply—

“We will press rigorous objections on the limits, legality, privilege, and evidentiary weight of the State’s investigation. An allegation of political motive will be raised only if an evidentiary foundation for it emerges.”

A few moments later the response came: “Then I may have to consider a more aggressive team.”

Vidyanand turned the phone face down.

In the silence of the room he remembered the night by the Ganges when Aditya had said: an image forms upon water, but the image is not the river.

A thought came to him: a lawyer's language, too, can become trapped in the net of analogy. The distance from "it looks like this" to "it is this" seems short; professional integrity is the name for measuring that distance.

He messaged Shailaja: "I will be late."

Her reply came: "All right. I'll warm the food."

Vidyanand closed his eyes.

Professional honour is often written not in the grand sentences of a courtroom, but amid the small anxieties of home.



That same night Aditya and Malini were reviewing the State's revised table again. Four new columns had been added after the Supreme Court's order—

"Source."

"Alternative explanation."

"Independent corroboration."

"Legal consequence."

Malini asked, "A fifth column?"

"What?"

"What this does not prove."

Aditya smiled.

"Keep it."

Malini wrote: "Limit."

For some time they worked in silence.

News alerts kept arriving from outside. Some outlets wrote "decisive turn," some "setback for the State," some "victory for the petitioner."

Aditya opened none of them.

Malini opened Ananya's report and read.

"She has written, 'The supplementary submission was taken on record; no final view on the merits.'"

Aditya said, "That is accurate."

"No sensationalism."

"Truth has its own pace."

Malini looked at the final line of the table. It showed a payment similarity, but beside it was written: "Common intermediary service possible; independent control record required."

She asked, "Should I make this line lighter?"

"Not the colour. Clarify the meaning."

"Why?"

"Because the eye remembers colour. The Court will read words."

Beside the line Malini wrote: "Investigative direction only; ownership not established."

Aditya looked at it from a distance.

"Now it is right."

Night deepened.

A small proposition from an old system of logic seemed to sit silently upon the modern digital map: analogy makes the unfamiliar intelligible, but to turn intelligibility into identity, identity into ownership, and ownership into guilt requires separate proof at every step.

At the next hearing, that distinction would no longer remain merely a matter of words. The offshore operating group was preparing to enlarge its legal team still further.

036 The Map of Analogy — Chapter 10

Dawn was spreading through Delhi's grey sky. It was the day of the next hearing in the Supreme Court, yet inside Vidyanand Mishra's house even the hands of the clock seemed to move more slowly. The previous evening, the offshore gambling operators' group had added three new senior advocates—one for constitutional procedure, one for digital evidence, and the third for confidentiality and privilege. Their fees were so large that the junior advocates in the office discussed them only in whispers.

Vidyanand disliked those whispers. To him, a large fee was no proof of knowledge, and a famous name added no weight to truth. He sat down in his chair; before him lay the written submissions of the new counsel team. Across the first page, in bold letters, was written: "The Complete Failure of the State's Comparative Map."

Vidyanand turned the page. After reading two lines, he picked up his pen again. He struck out "Complete." Before "Failure" he wrote: "Disputed Limits."

The new senior advocate, Arvindnath Sen, looked at him.

"Why are you using language this mild?"

Vidyanand answered calmly, "Because we are in a court, not on a public platform. If three similarities are unsound, call them unsound. But if something is corroborated by an independent record, erasing it merely because it does not favour our side would not honour the profession."

Sen gave a faint smile. "Our client sees it differently."

"A client's view does not take the place of evidence."

For a moment silence spread through the room. Vidyanand was afraid that, among so expensive a team, his restrained language might be taken for weakness. The previous week Raghav Sethia had made it plain that he wanted "aggressive" counsel. But Vidyanand knew that aggression and truth were not the same thing.

On the final page he wrote: "The reply to analogy shall identify dissimilarity; but once dissimilarity is established, the underlying record does not thereby disappear."

◆
In the State's legal room, Aditya Jha, Malini Karna, the Attorney General's assisting team, and a representative from the Solicitor General's office had been seated since early morning. Four colours marked the board, but today the meaning of the colours had been defined differently from before.

First—facts independently verified.

Second—comparative similarities that provide investigative direction only.

Third—dissimilarity or a competing possibility.

Fourth—abandoned links, which would not be relied upon.

Beside one line Malini wrote: "Similarity possible because of the same service provider."

Aditya read it.

"Good. Treat the independent weight of this line as zero if there is no second source."

Malini asked, "Then why keep it on the map?"

"To show the history. The Court is entitled to know when we saw which similarity, and later for what reason we reduced its weight. If we erase it, it will look as though we are concealing our own error."

Malini wrote again: "Abandoned, but recorded."

A faint satisfaction came over Aditya's face. "Exactly. A method makes a record even of its own mistakes."

An assistant to the Attorney General pushed a sheet of paper forward. "This is a list of the defence's likely attacks. First—the same visual design. Second—the same payment interface. Third—the same timing pattern. Fourth—the same digital path."

Aditya said, "They will not all have the same answer. A visual design may come from a shared template. A payment interface from an external service. A timing pattern from an ordinary system-clock configuration. But if a particular record shows the same administrative intervention, then show its independent source."

Malini asked, "What if the defence says every similarity can be explained by an external service provider?"

"Then it will be offering an alternative cause. We will test it. This is the discipline of analogy: it is easy to say, 'This is like that'; but not to say why it is alike and where it differs is deception."

Malini wrote in her notebook: "Similarity without cause = appearance; similarity with a cause = a testable direction; similarity without independent corroboration = not proof."

◆
At the Ministry of Home Affairs, three kinds of advice were placed before Shiveshwar Prasad. The first group wanted the State, before the hearing, to announce to the media that its position was "strong." The second wanted the

expensive legal team retained by the offshore operators to be described as a “sign of fear.” The third argued that silence would be politically damaging.

The Minister heard them all. Then he drank some water.

“One side has retained expensive advocates—that is its right. It proves neither guilt, nor fear, nor innocence.”

An adviser said, “But public opinion—”

“Public opinion is not honoured by damaging the court record.”

Shiveshwar Prasad wrote two lines on the paper before him—

“The State’s dignity lies not in declaring victory, but in accepting limits. The Court’s trust is greater than political advantage.”

He told the Secretary, “Send this instruction to the legal team. Any similarity shown to be unsound, the State will acknowledge itself. Confidential material will not be made to carry additional weight merely because it is confidential. Privileged material will not be pressed into service for advantage.”

The Secretary asked, “What should we tell the media?”

“Only this—the matter is under consideration before the Court. The State will speak on the record.”

The Minister had his own private fear. If the State was too cautious, its supporters would say the Ministry was weak. If the State was aggressive, the Court might perceive political pressure. Between those choices, he had to choose not power, but trust.

He looked toward the window. Delhi’s sky was growing pale, but the sunlight had not yet spread fully. He remembered a saying of an elder from his village: “In transplanting paddy, the hands may move fast, but the roots must be given time.”

He smiled. “Work quickly; conclude slowly.”

When the hearing began before the Supreme Court Bench, the line of counsel for the defence did indeed look formidable. To Vidyand Mishra’s left sat Arvindnath Sen; to his right, two senior advocates; behind them, digital consultants and junior counsel. The paper bundles were thick. The names were eminent, the voices measured, the preparation meticulous.

For the State, the Attorney General appeared, accompanied by the Solicitor General, Aditya Jha, and a limited assisting team.

The Bench said at the outset, “Today we shall look not at numbers but at structure. How many advocates there are is irrelevant. How many verifiable points there are is relevant.”

A light ripple of laughter passed through the courtroom and then subsided.

Sen rose.

“My Lords, the State’s entire comparative map is built upon visual resemblance. The same visual design, the same payment page, the same digital path—all of these may arise from common service providers. If the foundation is similarity, the conclusion is unstable.”

The Bench looked toward the Attorney General.

“The State?”

The Attorney General said, “Where a similarity may have no cause other than a shared service provider, the State relinquishes any independent evidentiary weight for that point.”

Sen was silent for a moment. He had perhaps not expected so direct an admission.

The Bench asked, “How many points?”

The table lay before Aditya. The Attorney General answered, “Eight points have already been removed. The weight of four has been reduced. Seven are retained only as investigative directions. Five have independent sources, but the State does not presently say that those sources establish ownership or criminal control.”

One member of the Bench said, “Repeat that sentence—what is the State not saying?”

“The State is not saying that the five independent sources, by themselves, establish ownership, control, authorship, or guilt.”

The silence in the courtroom thickened.

Sen rose again. “But the visual resemblance across all five sources may still come from the same hosting-service arrangement.”

The Attorney General gestured toward Aditya.

Aditya said, “Some visual similarity may indeed come from there. But among the five points, two are not visual at all—they are time-stamped administrative actions; one is external corroboration of a payment trail; one is an access record preserved in a chain-of-custody-protected forensic image; and one is a match against an independent accounting summary. We do not place all five in a single category.”

Sen asked, “Do all these point to the same person?”

Aditya answered, “Not yet. They give direction to the question. A person-specific answer requires separate evidence.”

“Then what is the purpose of the map?”

“To organise similarities and dissimilarities. Not to declare guilt.”

The Bench said, “The limit on the use of analogy is clear here. Comparison may be an instrument of testing; it cannot replace adjudication.”

The defence made its second attack on the digital visual design. An expert affidavit was produced stating that certain websites could use the same pre-built template. Two lines in Malini Karna’s original map had rested on that visual resemblance.

Sen said, “Those two lines were therefore misleading.”

The Attorney General replied, “They have now been abandoned.”

“But the investigation proceeded on them.”

Aditya said, “They were directions in the preliminary investigation. After independent verification, those two lines were removed. Their removal is itself recorded.”

Sen’s voice sharpened. “In other words, the investigator was wrong?”

Aditya remained calm. “In other words, the hypothesis did not survive testing. An investigation does not mean that its first impression is its final truth.”

The Bench asked, “If the State acknowledges its own error, why does the defence say that the entire investigation collapses?”

Sen replied, “Because it shows prejudice.”

“An independent basis for that prejudice?”

“The drawing of the lines.”

“The lines were corrected. After that?”

Sen paused. “Other circumstances.”

The Bench said, “Then show the other circumstances separately. One defective analogy is not an instrument for destroying every independent record.”

Vidyanand Mishra wrote in small letters on his submission: “The true point was not lost; the exaggeration was abandoned.”

The junior advocate beside him saw it. Vidyanand folded the paper.

The third part of the hearing was more difficult. The defence’s digital expert said that the same payment interface, the same response path, and the same authentication method could all arise from a third-party service provider.

Malini Karna’s body tightened slightly. Of those three points, two were ones to which she had earlier given greater weight. Aditya looked at her. There was no consolation in the look, only a slight indication—toward the facts.

The Attorney General said, “The State accepts that possibility.”

The Bench asked, “Then what remains?”

“Timestamps independent of the service provider, an external match to the payment trail, and records of specific administrative intervention.”

Sen said, “Even administrative intervention may have been carried out by a shared employee.”

Aditya answered, “It may have been. That is why we do not say that a particular individual has been established.”

“Then where is the State’s story?”

For the first time, Aditya looked Sen directly in the eyes.

“The State is not writing a story. We are writing the grammar of evidence.”

For a moment silence descended upon the courtroom. A shadow like the memory of the first chapter crossed Vidyanand’s face. He had heard that sentence before, but today its meaning was harsher.

The Bench said, “All sides in this matter should remember that. Human beings make stories; a court requires propositions capable of being tested.”

During the midday recess, Malini stood in a corner of the outer corridor. In her hand was a copy of the old map on which eight lines had now been struck out.

She asked Aditya, “Why did I draw so many lines in the first place?”

Aditya said, “Because you saw similarity.”

“And I gave it too much weight.”

“Then your work was incomplete. Now you see its limits as well. That is not defeat.”

Malini said nothing.

“An investigator’s courage does not lie only in making an accusation,” Aditya continued. “It also lies in striking out one’s own old line.”

Malini wrote in the margin of the copy: “Line struck out ≠ truth damaged; method purified.”

She folded the page.

“And the five that remain?”

“They too remain questions until independent evidence answers them.”

After lunch, the size of the defence team again came within the Court's notice. This time, not because of the number itself, but because of the division of work. One senior advocate was raising procedural objections, another objections on confidentiality, another on custody, another on digital reliability, each in steady succession.

The Bench listened. Some objections were accepted. Some were deferred. Some were rejected.

At one point, the defence submitted that sealed material was giving the State an added presumption of reliability. The Attorney General himself said, "The State seeks no such advantage. A seal restricts access; it does not increase evidentiary value."

Vidyanand nodded slowly. To him, that answer diminished a legitimate fear on the defence side.

In the oral summary of its order, the Bench said—

"At the next hearing, the State shall provide five particulars for every major comparative point: source, similarity, dissimilarity, independent corroboration, and the conclusion that does not follow from it. The defence may offer an alternative cause for each point. The Court will not count the number of similarities; it will examine the independence of the sources and the reliability of the testing."

Then the Bench looked toward Aditya.

"Investigating Officer, at the next stage we require clear answers on the original sequence of the summonses, the forensic image, the hash chain, and the custody register. The comparative map will be useful only if the records beneath it are intact."

Aditya said, "Yes, My Lords."

The Bench immediately said, "The record shall state only, 'Acknowledged.'"

Aditya inclined his head. "Acknowledged."

By evening, headlines had spread through the media. Some wrote, "Blow to State's Network Map." Others: "Major Success for High-Priced Defence Team." Still others: "State Theory Against Offshore Group Collapses?"

In her newsroom, Ananya Kashyap was reading the available portions of the order. A colleague asked, "What headline do we give it?"

Ananya said, "Write what happened. Eight lines had already been removed. The weight of some similarities was reduced. The Court wants the integrity of the underlying records addressed at the next hearing. That is all."

"That will not attract readers."

"Truth does not move at the pace of a reader's impatience."

She wrote the headline: "Supreme Court Clarifies Limits of Comparative Map; Next Hearing to Examine Integrity of Underlying Records."

Late that night, Shiveshwar Prasad received the day's summary at the Ministry of Home Affairs. An officer said with enthusiasm, "The State's case survived."

The Minister stopped him at once.

"Do not write 'survived.' The Court has framed the questions."

"But the defence could not erase everything—"

"That is not victory either. The Court's trust does not mean that the Court has accepted our story. It means that we are keeping clear the limits of what we say."

In his private notebook he wrote—

"Expensive advocates do not make truth expensive.
The office of the State does not make evidence heavier.
Trust is born when both sides accept their limits."

Late at night, Aditya sat alone in his room. Before him lay four things for the next hearing—the summonses, the certified particulars of the forensic image, the hash chain, and the custody register. The comparative map lay folded to one side.

He opened it. He looked at the struck-out lines. He looked at the faint lines. He looked at the five heavy points.

Then, on a blank sheet of paper, he wrote—

"The strength of analogy lies not in similarity, but in knowing the limits of similarity."

Below it, a second line—

"The next question: is the foundation intact?"

Outside, Delhi's night was spreading. Inside, the map was still. Its lines no longer had to be defended; every link in the foundation beneath them would now have to withstand examination.

037 The Map of Analogy — Chapter II

The first light of dawn was settling over Delhi's grey sky. Four things lay separately on the table before Aditya Jha—a copy of the summons, the particulars of the creation of the forensic image, a summary of the hash chain, and the custody register. Yesterday's comparative map lay folded beside them.

He did not unfold the map.

The foundation first. The analogy afterward.

Malini Karn came in. She carried two fresh files.

"Were all the timestamps checked again?" Aditya asked.

"Yes. The three-minute discrepancy at one point had already been recorded. Now we have found a seven-second discrepancy at another."

Aditya raised his head. "The source?"

"The clock of the device that created the image, and the time written by hand in the custody register. The two clocks were not synchronised to the same standard."

"What does the seven seconds mean?"

"Not a breach of integrity. But if we say the chronology is exact to the second, that would be inaccurate."

"Then write this—the chronology is reliable to the level of minutes. No claim is made at the level of seconds."

Malini wrote it down.

A few moments later she asked, "Will we tell the Court even about so small a discrepancy?"

Aditya smiled. "If the other side will discover a fact and say it, the record gains trust when the State says it first. Concealing a limit is not method."

Malini opened the next page. "The language in the replies to the summons from two service providers is almost identical."

"Almost?"

"The same template. The same order of paragraphs. The same disclaimer."

"And therefore?"

"At first I thought there might be a common legal or administrative team."

"And now?"

"Both service providers use the same external compliance template. The independent weight of the similarity has diminished."

Aditya wrote in the margin—"Upamana: the form is similar; the cause may be a shared template; ownership does not follow."

Malini looked at the sentence in silence.

Until yesterday, analogy had seemed to her chiefly a line on a network map. Today she was beginning to understand that the first discipline of analogy was not to draw a line, but to ask why the line was there.



When the hearing began in the Supreme Court, the Bench first repeated yesterday's direction.

"The State shall make clear the original sequence of the summons, the forensic image, the hash chain, and the custody register. The comparative map can be discussed afterward."

The Attorney General rose. "Your Ladyship, the State will answer in four stages. The Investigating Officer will clarify the facts of record; I shall present the legal conclusions in limited form."

Vidyanand Mishra said, "The defence will question each link. Our only request is that answers concerning process not be treated as proof of the truth of the material."

The Bench agreed.

Aditya went to the witness stand.

"The first summons," the Attorney General said. "When was it issued, and for what purpose?"

Aditya replied, "Three independent complaints contained linguistic similarities in the support messages received after payment. That similarity did not establish ownership. For that reason, limited records were sought from payment intermediaries and service providers—records relating to a specified date range, specified transaction identifiers, and specified web locations."

"The complete customer records?"

"No."

"The complete servers?"

"No."

"The complete business correspondence?"

“No.”

Vidyanand rose. “The scope of the summons may have been this narrow on paper, but did the material received contain additional records?”

“Some service providers attached material beyond the scope that had been sought.”

“What happened to that additional material?”

“It was segregated. The core analysis team was given only the material within the requested scope. An inventory of the additional material was made, but its contents were not added to the general analysis.”

“Was this arrangement in place from the first day?”

Aditya paused for a moment. “No. When the first two replies were received, the written procedure for segregation was not this clear. The process was formalised after review.”

Vidyanand’s voice sharpened slightly. “So the State accepts that the initial process was incomplete?”

“Yes. Incomplete, but recorded. We also reviewed whether any of the additional material had been used in any analysis.”

The Bench asked, “And if a conclusion was affected by that incomplete process?”

“That conclusion will be removed, or tested afresh against an independent source.”

Justice Arya continued writing.

“The limit of that answer is clear,” she said. “To acknowledge an incomplete process does not amount to a finding of guilt; but the history of correction shall remain on the record.”



The second stage concerned the forensic image.

Malini was called.

The Attorney General asked, “What does an image mean, in simple terms?”

Malini said, “A protected bit-level replica of the original storage device, created so that the original need not be analysed again and again. The analysis is carried out on the replica; the original device remains protected.”

One member of the Bench asked, “If the replica looks like the original, is that analogy or identity?”

Malini thought for a moment.

“Visual similarity may be useful in the manner of analogy, but a match of hash values is a mechanical test of integrity. It does not establish what the material means, who authored it, who used it, or whether an offence occurred.”

Justice Arya said, “So at one level there is similarity; at another, a test of identity; and at a third, legal meaning?”

“Yes, Your Ladyship. The three are distinct.”

Vidyanand rose. “In what state was the original device when the image was created?”

“In a read-only state through a forensic write-blocking device.”

“Did anyone open a file on the original device?”

“Not before the imaging, according to the available records.”

“According to the available records’—meaning you were not personally present at every moment?”

“No. I rely on the process register, staff signatures, timestamps, and hash verification.”

“Then your knowledge is both direct and record-based?”

“Yes. The stages at which I was present are direct knowledge. For the remaining stages, I rely on written records and mechanical testing.”

The Bench asked, “Has the State shown this distinction in its table?”

The Attorney General said, “It has been shown in the revised table filed today.”

Vidyanand smiled. “Today?”

Without defensiveness, the Attorney General said, “The distinction was not sufficiently clear in the earlier table. The correction is on the record.”

The Bench observed—“Correction is not weakness in itself. But the Court must be allowed to see both the old form and the new.”



The argument over the hash chain became more subtle.

Malini displayed a table of four hash values.

“The original storage device, the first image, the secure working copy, and the limited copy exported for the Court.”

Vidyanand asked, “Are all four the same?”

“The hashes of the original, the first image, and the secure full copy are the same. The limited copy exported for the Court cannot have the same hash, because it is not the full storage device; its set of contents is different. That limited copy has its own hash.”

Vidyanand was silent for a moment.

“If the State were to say that all four hashes were identical?”

“That would be inaccurate.”

“And if the news were to say, ‘The hashes matched; therefore the material is true?’”

“That too would be inaccurate. A hash indicates integrity; it does not establish the propositional truth of the contents.”

A member of the Bench said, “Let that distinction appear in bold on the record.”

A ripple of laughter passed through the courtroom, then subsided at once.

A scene from *Garh En Arikel* came back to Aditya. His father was examining paddy seed. One sack bore the village trader’s seal; another did not. But his father never accepted seed merely because of the seal. He would break a grain and look inside. An external mark could be useful; whether the grain carried life was a different question.

The limit of analogy stood before him once again.

◆
The defence spent the greatest amount of time on the custody register.

In one line there was a discrepancy of three minutes, in another of seven seconds; in a third, the letters of a signature were unclear.

Vidyanand said, “The State says the chain is intact. Yet there are three discrepancies.”

Aditya replied, “The basis for saying the chain is intact is not perfect identity of every time entry. At each transfer, the person, the object, the seal number, the hash match, and the next recipient are recorded. The three-minute discrepancy has already been explained. The seven seconds arise from a difference in clock synchronisation. The person whose signature is unclear is identified by a departmental identification number and by a separate register.”

“So there are discrepancies?”

“Yes.”

“Was the chain broken?”

“The material available does not establish that it was broken. But if the Court wishes an independent examination, the State is ready.”

Vidyanand asked, “Do you draw a distinction between ‘the chain was not broken’ and ‘it has not been proved that the chain was broken?’”

“A very clear distinction.”

“Why?”

“The first sentence is certainty. The second states the limit of the available evidence.”

Justice Arya looked at Aditya. “Since the beginning of this case, your answers have grown shorter.”

Aditya said, “Perhaps the questions have grown clearer.”

A brief smile touched the Bench.

◆
After the recess, the defence raised a new point.

Arvindnath Sen said, “The State has retained five points on its comparative map. But three of those five came from the same original image. If the State presents them as three independent corroborations, the analogy will be misleading.”

The Attorney General immediately looked toward Aditya.

Aditya replied, “That objection by the defence is valid. In the revised table, all three are shown within a single root-source group. For the purpose of source independence, they are counted as one.”

Arvindnath Sen remained silent for a few moments.

“So you accept our objection?”

“To accept a real limit is not to do the opposing side a favour. It is a duty owed to the record.”

Silence again filled the courtroom.

Vidyanand Mishra looked at Aditya. Until yesterday, his client’s representatives had been saying: turn every admission by the State into the language of defeat. But here he could see that when an admission rested upon a true limit, it sometimes defended method rather than either side.

The Bench said, “Then there are not five points?”

Malini looked at the table. “From the standpoint of source independence, there are three groups, Your Ladyship. Five visible points, but three independent foundation-groups.”

“The map shall be revised in that form.”

“It will be done.”

◆
In the final part of the hearing, Justice Arya posed a question.

“What, finally, is the use of analogy here?”

The Attorney General rose to answer, but the Bench gestured toward Aditya.

Aditya said quietly, “By seeing a similarity between what is known and what is unknown, we frame a question. But the answer to that question comes from independent evidence. If, for example, two webpages have the same layout, three possibilities may arise—a shared template, a shared service, or shared control. Analogy says only this much: there is a reason to compare. Ownership, control, or an offence requires separate proof.”

“And the hash?”

“A matching hash is a more rigorous test of the integrity of the material; but even that does not, by itself, carry a criminal meaning. A matching replica tells us that the copy analysed mechanically corresponds to the original. It does not, by itself, yield the author, the intention, or legal culpability.”

“And the custody register?”

“It shows the journey of the evidence. That journey must be clean; but even when the journey is clean, the propositions contained in the material require separate testing.”

The Bench said, “Let it remain on the record—analogy gives direction; integrity tests the process; legal conclusions depend upon independent evidence.”

Vidyanand rose. “The defence asks only that one sentence be added—‘Procedural integrity does not establish the truth of the material or the guilt of the accused.’”

The Attorney General said, “The State has no objection.”

The Bench wrote it down.

As the hearing ended, a shower of questions began outside.

“Has the State’s digital evidence survived?”

“Has the defence lost?”

“If the hashes matched, does that mean guilt is proved?”

Aditya answered none of them.

Ananya Kashyap stood at a distance, writing. She had already made a headline, then struck it out.

The first headline had been—“Hash Chain Strengthens State’s Case.”

She struck out the word “Strengthens.”

She wrote a new headline—“Supreme Court Distinguishes Digital Integrity from the Limits of Legal Conclusions.”

A colleague asked, “Only that?”

Ananya said, “Only what the record says. That is enough.”

By evening, the summary reached the Ministry of Home Affairs. Shiveshwar Prasad read the entire page.

His private secretary said, “Minister, it was a favourable day for the State.”

The Minister did not close the page. “Remove the word ‘favourable.’”

“Why?”

“The Court allowed us to make one thing clear—where each item came from, how it was preserved, and what its limits are. That is not political gain.”

“The media are also writing that the defence’s objection was accepted.”

“Let them write it. The objection that was valid was accepted. That does not reduce the Court’s trust. It would have reduced it if the State had stubbornly insisted on something untrue.”

He placed his pen on the final line of the summary—“Three independent source-groups.”

“Earlier it said five?”

The Law Secretary said, “Yes.”

“Then the new number is three. Why try to save five?”

No answer was necessary.

When Aditya reached the guest house that night, fatigue had settled into his body. Malini had already sent him a revised map. The five visible points were now divided into three source-groups. Two lines were no longer heavy; they had been made faint. Beside one line was written—“Shared template possible.”

Beneath the map, Aditya wrote four lines—

“A summons marks the boundary of a question.”

“An image is a protected replica of the original.”

“A hash tests integrity, not truth.”

“The custody register is the account of a journey, not a verdict of guilt.”

After a while he added a fifth line—

“Analogy opens a question; evidence bears the weight of the answer.”

Outside, the night deepened.

The memory of Garh En Arikel returned once more—his father placing paddy seed on his palm and saying, “The grains may look alike, but they do not all sprout alike. Look at the soil, the water, the time—look at everything.”

A faint smile came to Aditya’s face.

Tomorrow a new file would reach the Ministry. The legal strategy would change again.

But for today, one thing was enough—vengeance had won no victory. The costly team of advocates had not lost. Nor had the State won.

Only method had moved one step forward.

038 The Map of Analogy — Chapter 12

As the first light of dawn touched the glass of Delhi's government buildings, the full summary of yesterday's hearing reached the Ministry of Home Affairs' legal cell. Aditya Jha's four-line note had been placed at the top—the summons defines the boundary of the question; the forensic image is a protected replica of the original; the hash tests integrity; and the custody register records the journey of evidence. A fifth line, added in another hand, stood apart: analogy opens the question; evidence bears the weight of the answer.

The Law Secretary stopped as he turned the first page. Until yesterday, the Ministry's presentation map had shown five visible connections. After the Court's questions, they had been divided into three independent source-groups. The number had diminished, but the clarity had increased.

When Home Minister Shiveshwar Prasad entered the room, the Secretary rose.

"The complete record of the hearing?"

"Yes, Minister. Along with the revised comparative table."

"Begin with the places where the State's statement has become smaller."

The Secretary looked at him for a moment. Ministers generally asked how their side could be expanded; Shiveshwar Prasad repeatedly asked where it had been cut back.

"Of the five visible points, three came from the same original forensic image. The number of independent foundations is therefore not five, but three."

"And the Court?"

"It accepted the correction. It also had recorded that analogy gives direction, integrity tests the process, and legal conclusions depend upon independent evidence."

Shiveshwar Prasad did not lean back in his chair. He turned the map lying on the desk toward himself.

"Change the name of this map."

The Law Secretary was startled. "The name?"

"Not 'Map of Connections.' The phrase itself says too much. Write: 'Comparative Source Table.'"

The Secretary wrote it down.

"And four things must appear beside every line."

"Which four?"

"What is the source? Is it independent or not? What is the dissimilarity? And what does this line not prove?"

The Law Secretary slowly nodded.

Shiveshwar Prasad said, "If the State does not write the limits of its own map, the defence will write them. The Court's trust grows toward the side that first accepts its own limits."

At ten, Aditya reached the Ministry. Malini Karn was already there. Three files lay open before her—one containing the Court's order, another the revised source table, and the third a list of the old connections the investigative team had discarded.

The Minister came straight to the point. "Jha sahib, yesterday five became three. Has that reduction weakened the foundation of the investigation?"

Aditya replied, "No. The visual density has decreased; the true number of sources has become clear."

"Visual density?"

"There appeared to be more lines on the map. But three of those lines were three forms of the same original material. To treat them as three independent confirmations would have been unsound."

The Minister looked at Malini. "Why did you not identify this error earlier?"

Without defensiveness, Malini said, "I was counting visible connections, not root sources. After yesterday's cross-examination, it became clear that multiple forms of the same source do not become independent evidence."

"Has the error itself been recorded?"

"Yes. The old table has not been erased. It is preserved in the revision register, with the reason for the correction."

"Good."

Aditya looked at the Minister. "Did you say 'good' about the error, or about keeping a record of it?"

A faint smile came to Shiveshwar Prasad's face. "The second. Error is not good; hiding error is more dangerous still."

The room remained silent for a few moments.

The Law Secretary placed a new format before them. It had four columns—comparison, root source, dissimilarity, legal limit.

Aditya read the page, then said, "We need a fifth column."

“What?”

“A contrary possibility.”

The Minister said at once, “Add it.”

Malini wrote: “Contrary possibility / alternative explanation.”

Aditya stopped her. “Leave out ‘alternative.’ Write ‘other possible cause.’”

Malini corrected it.

The Minister asked, “What do these five columns mean?”

Aditya said, “In analogy, similarity is easy to see. But a similarity may have more than one cause. Two webpages may share a layout because of a common developer, a common service, copying, a standard design in the trade, or coincidence. Comparison becomes useful only when dissimilarities and other possible causes are shown alongside the similarity.”

“And the legal limit?”

“It states how far the comparison is useful, and from what point onward independent evidence is required.”

The Minister said, “Then change the strategy. Do not show the Court a map first—show it the source table.”

The Law Secretary asked, “Should the map be removed altogether?”

“No,” Aditya said. “The map is useful for understanding direction. But do not make it the first page. First the sources, limits, and dissimilarities. Only then the visual form.”

Shiveshwar Prasad agreed. “Pictures persuade the mind quickly. In court, we need cautious belief more than quick belief.”



By noon, the entire legal strategy was being rewritten. The first version had been titled “Computational Connections of the Overseas Network.” The new title became “Independent Sources, Comparative Similarities, and the Limits of Proof.”

Malini read the first section aloud—

“Group One: the same payment layout on two webpages.”

Aditya stopped her. “Root source?”

“An independent public capture and the preserved forensic image.”

“Are those two independent sources?”

Malini thought for a moment. “No. If the public capture is a copy of the webpage from that time, and the image is also a preserved form of that same page, then the object is one; the routes by which it was obtained are two.”

“Right. Judge independence by the underlying fact, not merely by the route of acquisition.”

Malini rewrote the line.

“Other possible cause?”

“A shared payment-service provider.”

“Dissimilarity?”

“The account names, time cycles, and certain layout markers differ.”

“What does it not prove?”

“It does not, by itself, establish common ownership, common control, or participation in an offence.”

Aditya nodded.

The second group concerned the same error message on the login page.

Malini said, “Earlier I assigned more weight to this similarity.”

“And now?”

“Now we know that the error message may also be a standard form produced by the computational framework being used.”

“Then do we retain it?”

“As an investigative direction, not as an evidentiary connection.”

“Good.”

The third group concerned proximity in time. Two separate computational records showed the same kind of change at almost the same hour.

The Law Secretary became interested. “This looks stronger.”

Aditya said, “It looks stronger. That is why it requires care.”

“Why?”

“Proximity in time may indicate common direction. But a scheduled automated action, a shared external service, or a standard maintenance window may also explain it. Unless the other possible causes are tested, it would be improper to call temporal proximity common control.”

The Minister, who had been listening in silence, said, “So the five lines of yesterday are now three groups, and even the three have different weights?”

“Yes.”

“People will say the State keeps making its story smaller.”

Aditya said calmly, “If reality grows as the story becomes smaller, then becoming smaller is proper.”

Shiveshwar Prasad said quietly, "That sentence will not go into a public statement."

Malini looked at him in surprise.

The Minister added, "Nor is it a slogan for the Court. It is an internal discipline. The moment it becomes a slogan, its meaning diminishes."

◆
In the afternoon, a call came from the Attorney General's office. In light of yesterday's order, a draft of the State's next written submission had been requested.

The Law Secretary asked, "Shall we send the old strategy paper?"

Shiveshwar Prasad said, "No. Send what has changed in its changed form. Keep the old version with it, so the history of the cuts is not hidden."

Aditya said, "The history of correction is not itself evidence, but it affects credibility."

"Credibility?" the Minister asked.

"A party that shows only a final clean page does not reveal its method. A party that preserves its errors, corrections, reasons, and discarded inferences makes review possible."

The Minister instructed the Secretary, "Send all three—the old version, the revised version, and the reasons for revision. But state clearly that the discarded points are not part of the State's present position."

Malini immediately made a note.

Aditya looked at her page and placed a finger on one phrase. "Do not write 'weak connection.'"

"Then what?"

"Insufficiently supported connection."

"The distinction?"

"Weak' is an assessment. 'Insufficiently supported' creates an obligation to explain why."

Malini changed the words.

"And 'strong connection'?"

"Remove that too. Write 'supported by multiple independent sources,' or whatever is accurate."

The Minister said, "The language itself is changing the strategy."

Aditya replied, "Sometimes the language is not changing anything; it is revealing the uncertainty that had been hidden."

◆
As evening fell, the long corridor outside the legal cell grew quiet. Most of the staff had left. Malini was still revising the table.

Aditya stood by the window. Delhi's sky was grey, but in his mind the soil of Garh En Arikel returned. He remembered the slick earth after rain, sinking underfoot, so vividly that for a moment the cold stone floor of the government building seemed far away.

Before scattering seed in the field, his father used to roll the grains across his palm. As a child, Aditya had once asked impatiently, "They all look the same. Why do you examine them so much?"

His father had laughed. "The same from above. Different life within. You cannot read the harvest from the shine of the seed."

Aditya remembered his father separating two handfuls of seed that day. One handful was heavy, the other light. To the child Aditya, the two had looked almost alike.

"When will the difference become clear?" he had asked.

"After they go into the soil. Give them time."

The memory brought Aditya suddenly back to the present.

Malini asked, "What are you thinking about?"

"The limits of analogy."

"In soil?"

Aditya smiled faintly. "Yes. Seeds that look alike may yield different results. Comparison is a beginning, not the harvest."

Malini started to write something, then stopped. "Shall I put that sentence in the table?"

"No. Field-talk is good in a field. In court, write the source."

Malini laughed.

◆
At eight that night, the final strategy paper was ready. Five points of discipline stood on its first page—

One—the number of independent sources behind every visible connection shall be stated separately.

Two—multiple representations of the same underlying fact shall not be treated as multiple confirmations.

Three—each similarity shall be accompanied by its principal dissimilarities and other possible causes.

Four—beside every conclusion it shall be stated expressly what that conclusion does not prove.

Five—discarded or insufficiently supported connections shall remain preserved in the revision register, with reasons.

The Law Secretary read them and said, "This will make the State's position narrower."

Aditya said, "Not narrower—bounded."

"Its effect in Court?"

"The Court will see that."

"Its political effect?"

Shiveshwar Prasad, who had returned to the room, said clearly, "That is not my question."

The Secretary fell silent.

The Minister did not sign the page. He read the whole paper first. On the third page he stopped at one sentence: "Three source-groups indicate common control of the overseas operation."

He picked up a red pen.

"Delete this."

The Law Secretary said, "But there are similarities across the three source-groups."

"There are similarities. Is common control proved?"

"Not yet."

"Then why is this sentence here?"

The Secretary was silent.

Aditya said, "Write: 'Three independent source-groups provide a basis for investigating the question of common control; the present material, by itself, does not establish common control.'"

The Minister said, "Let it remain exactly so."

The sentence was changed.

That single revision altered the tone of the entire strategy paper. A document that had earlier tried to tell the story of a network now spoke of the limits of proof.

As Aditya left the Ministry that night, Malini was walking down the stairs beside him.

Malini said, "Jha sahib, may I ask you something?"

"Ask."

"Do you never feel that by writing so many limits, the State is blunting the edge of its own case?"

Aditya stopped midway down the stairs.

"What do you mean by an edge?"

"Something that influences the Court."

"If exaggeration influences the Court, that is not an edge—it is a slippery slope."

Malini said nothing.

Aditya said, "In Garh En Arikel, the day after paddy is transplanted, the field does not look like much. Water, mud, little shoots. An impatient person may say: nothing has happened. But roots take hold in their own time. An investigation is the same. Drawing more lines does not make a field greener."

"And if the roots do not take?"

"Then one needs the courage to abandon that transplant."

Malini slowly nodded.

The night wind was moving outside.

After reaching the guest house, Aditya opened another copy of the strategy paper. The final page contained the next action list—the revised source table, the register of discarded connections, and a separate compilation of yesterday's judicial observations were to be sent to the offices of the Attorney General and the Solicitor General.

He added one line: "The senior law officers shall be provided not only the present position, but also the path of revisions by which that position was reached."

Before sending the message to Malini, he read it again.

Then he changed one word—"conclusion" became "present position."

The reason was clear. The word conclusion was premature.

He wrote: "the path of revisions by which the present position was reached."

The message was sent.

The night beyond the window was dense. Far away, the lights of the metropolis seemed arranged in lines—like a map. But Aditya knew that lights appearing in the same line did not belong to the same house. Similarity joins things in the eye; evidence joins causes.

He opened the small box of soil from Garh En Arikel that lay on the desk. The soil was dry, but it still carried the scent of home.

He touched a little of it with his thumb.

Patience did not mean merely waiting. Patience meant having the strength to stop where the evidence stopped.

Tomorrow a new file would reach the offices of the Attorney General and the Solicitor General.

The map of analogy was no longer a collection of coloured lines. It was becoming an account of questions, dissimilarities, sources, limits, and rejected exaggerations.

Like the soil of Garh En Arikel—slowly, but making the foundation firm.

039 The Map of Analogy — Chapter 13

Before the light of dawn had fully spread, a supplementary file from the Ministry of Home Affairs reached the office of Attorney General Devvrat Sinha. Along with the sealed principal record was a thin open file bearing the words: “The Path of Revision by Which the Present Position Was Reached.”

Devvrat Sinha glanced at the first page, then not at the clock but at the next page. Before him lay yesterday’s judicial observations, a revised table of source independence, a register of discarded connections, a list of dissimilarities, and a separate section headed “What This Does Not Prove.”

Solicitor General Mrinal Dhar arrived a short while later. The moment he opened the file, he asked his first question: “Is this new evidence, or a new classification of the State’s existing material?”

Devvrat Sinha replied, “Principally a new classification. There is some supplementary verification, but the purpose of this paper is not to increase the evidence; it is to make clear how far the weight of the evidence extends.”

Mrinal Dhar turned to the page of discarded connections. “These were sent to us as well?”

“Yes. Deliberately.”

“So the Ministry now wishes to show us the lines it has itself erased.”

Devvrat Sinha said quietly, “Only by seeing them will the meaning of the lines that remain become clear.”

On the final page of the file was a note from the Law Secretary. This was not a fresh request for representation. The Attorney General and the Solicitor General had already accepted representation of the State. This time the request was limited: for the next supplementary submission in the pending Special Leave Petition, a joint view was to be settled on four legal questions, together with the necessary formulation of language.

The four questions were these: how an independent source was to be identified; what value multiple representations of the same underlying fact possessed; how dissimilarities and other possible causes were to be set beside similarities; and beside which conclusions it should be expressly stated before the Court what they did not prove.

Mrinal Dhar placed the paper on the desk.

“Of these four, the fourth is the most difficult.”

“Why?”

“Because counsel usually say to the Court: look at this. This time the State wants to say: look at this—and look also at what this does not show.”

Devvrat Sinha said, “Perhaps that is precisely why it is useful.”

At nine, Aditya Jha, Malini Karn, and the Law Secretary arrived for the joint consultation. Home Minister Shiveshwar Prasad had deliberately kept away from the opening meeting. His written direction said: “Let the law officers first formulate the legal view; the Ministry will determine the administrative action afterward.”

Devvrat Sinha placed the revised five-column table before Aditya.

“Jha sahib, until yesterday this was the discipline of the investigation. The question now is: what part of that discipline should be placed before the Court?”

Aditya replied, “Only as much as is necessary to answer the Court’s question.”

“The entire path of revision?”

“If the history of revision is relevant to understanding the credibility or limits of the State’s present position, then yes. But every erased line need not become a burden upon the Court.”

Mrinal Dhar asked, “Then what is the test?”

Aditya thought for a few moments. “Keep the path of revision for every discarded connection that is still mentioned in the defence’s argument, the State’s earlier record, or a judicial observation. If something was merely an internal preliminary thought and never became an external claim, preserve it in the register, but not in the principal submission.”

Devvrat Sinha looked toward the Law Secretary. “Write down this distinction: ‘relevant revision’ and ‘internal working path.’”

The Law Secretary wrote it down.

Malini opened the page for the first source-group. “The same payment pattern.”

Mrinal Dhar asked, “Independent sources?”

“Two routes of acquisition, but the underlying fact may be tied to the same commercial structure. It has therefore not been described as two independent confirmations.”

“Dissimilarities?”

“The account names, time cycles, and certain layout markers differ.”

“Other possible cause?”

“A shared service provider.”

“What does it not prove?”

Malini said, “Common ownership, common control, or the criminal participation of any particular person.”

Devvrat Sinha said, “Reverse the order of this line.”

Malini asked, “How?”

“Dissimilarity first. Similarity afterward.”

For a moment the room was silent.

Aditya asked, “Why?”

“Because a map makes the eye see similarity first. The written submission should counterbalance that tendency of vision. If we put similarity first, the reader’s mind will make a story before anything else; the dissimilarity that follows will look like an explanation offered in defence.”

Mrinal Dhar agreed. “A courtroom discipline of analogy: know the difference first, and only then ask how much the similarity means.”

In Aditya’s mind rose the sense of an old principle from Gangesha Upadhyaya’s method: a characteristic is useful only when its boundary too is known. He did not quote the principle. He merely said, “Then change the order of the table.”

Malini rebuilt the line: dissimilarity, similarity, root source, other possible cause, legal limit.

Devvrat Sinha said, “And the sixth column?”

Malini looked surprised. “Sixth?”

“What is the State asking the Court to do on this point?”

Aditya said at once, “That is necessary.”

The Law Secretary asked, “For example?”

“If the similarity provides only a basis for further verification, then the prayer must be no larger than that: permission for limited verification, not an inculpatory finding.”

Mrinal Dhar said, “Exactly. The judicial relief sought must not be greater than the weight of the evidence.”



The meeting moved to the second source-group. Two computational records showed the same kind of change at almost the same time. Yesterday this had been treated as a basis for asking whether there had been common direction; today the Attorney General’s office was asking how far that question could properly go.

Devvrat Sinha said, “What is the dissimilarity in the similarity of timing?”

Malini replied, “The clocks are not perfectly synchronized. The devices use different time sources. In one record, the possibility of automated maintenance remains open.”

“Other possible causes?”

“A shared external service, a scheduled automated action, or ordinary working hours.”

“Then what will the State ask the Court for?”

Aditya said, “Limited verification of the time sources and examination of the external service records. Not a declaration of common control.”

Mrinal Dhar drew a line across the page. “The State’s entire change is visible in that one sentence.”

The Law Secretary asked, “What change?”

“Earlier there was a temptation to move from the same time toward the same actor. Now the same time opens a question about a plurality of causes.”

Aditya said, “Inference required the same discipline. Analogy merely gave it visible form.”

Devvrat Sinha smiled. “Good. Do not turn this into a lesson in philosophy. The Court needs an operational test.”

He dictated four lines, and the Law Secretary wrote them down—

“One—the precise point of similarity must be clear.”

“Two—the root source must be clear.”

“Three—the principal dissimilarities and other possible causes must be clear.”

“Four—the judicial action sought on the basis of the similarity must be clear, and its limit must also be clear.”

Mrinal Dhar added a fifth: “Where there is a risk of confusion, it should also be stated which conclusion is not being sought.”

Aditya said, “The State’s language will be tested most severely on this point.”

“Why?”

“Because if we write ‘not sought’ and then, in the next paragraph, write ‘strong indications of common control,’ the limit will remain on paper but disappear in meaning.”

Devvrat Sinha told the Law Secretary, “Read the entire draft again by this test. One paragraph must not secretly destroy the limit imposed by another.”



At that very hour, Vidyanand Mishra received the State’s supplementary table in his chambers. The service copy of what the State was preparing to file in the pending Supreme Court matter had reached the defence team.

His junior, Advait, turned the pages and said, "Sir, this looks almost like an admission that the State has cut away half its own map."

Vidyanand immediately raised his head. "Not the word 'admission' here."

Advait stopped. "But they have abandoned several connections."

"The abandonment of connections is a fact. Why they were abandoned is a reason. When you say 'admission,' you are adding meaning."

"I have to build an argument."

"Build an argument. Do not manufacture evidence out of a word."

Vidyanand read the table carefully. The State was considering putting dissimilarity before similarity. Beside every point stood another possible cause and a line saying what it did not prove. There was no pleasure on his face; this was his opponent's document. Yet the lawyer within him conceded one thing: the State was narrowing its language.

Samarjit Mehta called.

"Mishraji, have you seen the document?"

"Yes."

"Very good. Now it is clear that the first map was fabricated."

Vidyanand closed his eyes. "This document does not prove fabrication."

The voice at the other end hardened. "Then what does it prove?"

"That some of the State's earlier comparisons were insufficiently supported, some rested on the same root source, and they have now been revised. From that we can raise questions about credibility, weight, delay, and the investigation's initial methodology."

"But deliberate exaggeration?"

"That requires an independent basis."

"You are saving the State's language again."

"I am saving the language of my profession."

For a few moments there was silence at the other end.

"Raghavji wants a public statement out today: the State's map has collapsed under the pressure of the Court."

Vidyanand said, "I will not approve that sentence."

"Then he will consult another senior advocate."

"Let him."

The call ended.

Advait remained silent. He knew that for the past month the group's principal retainer had been arriving late. The salaries of three juniors in the chambers, the record assistant's fee, and the library's annual dues all fell due the following week.

Vidyanand opened his account book. The figures were small, but within those small figures were gathered the anxieties of both home and chambers.

Advait asked, "Sir, if they stop the engagement?"

"Then we shall pay what is due."

"The chambers?"

"A chambers cannot be run by selling sentences."

Advait tried to say something, then stopped.

A message from Shailaja appeared on Vidyanand's mobile phone: "Do not worry about this month's household expenses. Pay the people in the chambers first. And eat on time."

He read the message twice. He did not know how Shailaja had learned the full state of the chambers. Perhaps Nandita had told her.

For a moment shame, relief, and pain rose together within him. A private crisis stood silently behind his professional decision; but he did not intend to let it acquire authority over the sentences he would speak in court.

Vidyanand looked at Advait. "Mark this page of the State's document in red."

"Where?"

"Common control not proved.' That is the State's own limit. We shall remind the Court of it. But we shall not say 'the State was false' unless there is evidence of that."

Advait wrote it down.

Vidyanand added, "The dignity of the defence lies not only in catching the State's errors, but also in restraining its own exaggerations."

◆
At the joint meeting that afternoon, Home Minister Shiveshwar Prasad now joined them. Devvrat Sinha made one thing clear at the outset: "This is not a new representation. We already appear for the State in the matter. Today's supplementary submission is only to settle the next limited legal position."

The Minister said, "That is the clarity I wanted."

Solicitor General Mrinal Dhar handed him a six-page draft. Its first heading was: "Limits on the Legal Use of Comparative Material."

Shiveshwar Prasad asked, “What is the State’s principal prayer?”

Devvrat Sinha replied, “Three limited things. One: examination should continue on points supported by independent sources. Two: a comparison that merely gives direction should not be read as an inculpatory conclusion. Three: on questions of source independence or privilege, the limits laid down in the Court’s earlier orders should remain intact.”

The Minister read the next page. “It says here: ‘The State revises its earlier comparative presentation.’ Is this sentence necessary?”

Mrinal Dhar said, “Yes. Because a revision has occurred.”

“The defence will use it.”

Devvrat Sinha said calmly, “That is their right.”

Shiveshwar Prasad read the page again, then did not interfere. “Let it remain.”

Aditya watched the Minister’s face. Yesterday’s sentence—that judicial trust was larger than political victory—was now being tested on paper.

Malini spotted a problem on the third page. “It says ‘three independent source-groups’ here. Within the first group there are two routes of acquisition, but the independence of the underlying fact is only partial. Writing ‘three’ may again make the number sound more definite than it is.”

Devvrat Sinha asked, “Then?”

“Write: ‘three distinct testing groups, within which the degree of source independence varies.’”

Mrinal Dhar said, “Good. The number remains, and so does the distinction in quality.”

The Minister looked at Malini. “Yesterday you were counting visible points. Today you are counting degrees of independence.”

Malini said respectfully, “Yesterday’s error has become today’s test.”

Aditya said, “If an error is hidden, it cannot become a lesson; if it is kept in the record, it can.”

The Minister asked, “Shall we put that sentence in the submission?”

Devvrat Sinha smiled. “No. That is an office lesson, not a paragraph for the Court.”

A slight ease came over their faces, and then the meeting grew serious again.

By evening, the supplementary legal submission had taken its final form. Three appendices accompanied it.

The first: a summary of dissimilarities and other possible causes.

The second: a classification of source independence.

The third: a register of relevant revisions from the State’s earlier presentation to its present position.

Malini asked, “The complete list of discarded connections?”

Devvrat Sinha replied, “It will remain preserved in the record. The Court’s appendix will contain only those that were touched upon in some earlier filed material or hearing.”

“And the rest?”

“If the Court asks, they will be produced. Transparency does not mean drowning the Court in irrelevant paper.”

Aditya agreed. “More material does not always mean more clarity.”

Mrinal Dhar read the final paragraph—

“Comparative similarity may provide a basis for investigative questions; it shall not be treated as independent proof of ownership, control, criminal purpose, or individual responsibility. The State undertakes to conduct its further investigation and presentation within this limit.”

Shiveshwar Prasad asked, “Is the word ‘undertakes’ too strong?”

Devvrat Sinha said, “If the State declares a limit, it should accept responsibility for observing it.”

The Minister nodded. “Let it remain.”

He gave the document administrative approval. The legal text had been settled jointly by the Attorney General and the Solicitor General; the Ministry did not alter it.

The transmission order stated expressly that it was to be presented, as necessary, as a supplementary submission in the pending Special Leave Petition—not as a new proceeding or a new Special Leave Petition.

Aditya felt relief on reading that line. The clearer the procedure, the less confused the narrative.

After evening, the service copy of the supplementary submission reached Vidyanand Mishra. Advait had expected him to dictate an immediate rebuttal. Vidyanand first read the whole document.

He paused at the final paragraph: the State was accepting the limit that comparison would not be treated as independent proof of ownership, control, criminal purpose, or individual responsibility.

Advait asked, “That helps our side, does it not?”

“In part.”

“Then can we say the State has abandoned its original theory?”

“No. They will say their method has been refined. We shall say the Court should treat the earlier presentation with caution and rigorously test the independent basis of every surviving similarity.”

“The distinction is extremely fine.”

Vidyanand said, "Much of the Court's work is the preservation of fine distinctions."

He wrote the first line of his reply: "The limit now declared by the State confirms the defence's fundamental objection that comparison by itself does not establish control or responsibility."

Then he wrote a second line: "Nevertheless, the fact of revision alone does not warrant an inference of bad faith or false fabrication; the defence confines its objection to the record, chronology, and independence of sources."

Advait looked surprised. "Are we cutting away a possible allegation of our own?"

"To cut away an allegation without a basis is not to harm one's side; it is to preserve credibility before the Court."

The mobile phone vibrated again. This time the message was from the chambers accountant: two payments had to be made the next day.

For a few moments Vidyanand looked not at the page but at the numbers. Then he instructed that the money be transferred from his personal account.

Advait protested. "Sir, you are already—"

Vidyanand raised a hand and stopped him. "What is owed to someone who has worked in these chambers does not become smaller because of my private difficulty."

His voice was not harsh, but it was final.

He bent again over the reply. Professional dignity was no longer a speech. It was each sentence written among bank figures, a client's displeasure, anxieties at home, and inconvenient truth.

At nine that night, preparations were made in the Attorney General's office for signatures on the final copy. Devvrat Sinha, Mrinal Dhar, Aditya, and the Law Secretary were present. Malini, connected by telephone, was carrying out the final factual verification.

Devvrat Sinha read once more from the first page to the last. On the fourth page his pen stopped at one sentence: "A similar computational configuration indicates a shared operating structure."

He asked, "Whose sentence is this?"

The Law Secretary said, "A remnant from the old draft."

Mrinal Dhar said, "Delete it."

Aditya added, "If we keep it, 'shared operating structure' will again cast the shadow of a conclusion we cannot state without independent evidence."

The sentence was removed. In its place they wrote: "A similar computational configuration provides reason to examine several possibilities, including a common source, a shared service, copying, a standard commercial template, or common operation."

Devvrat Sinha asked, "Too many alternatives?"

Mrinal Dhar replied, "Only as many as the principal alternatives that exist in reality. Writing fewer would not create clarity; it would create artificial certainty."

Aditya silently agreed.

The heading on the final page read: "Limited Submission to the Court."

Devvrat Sinha said, "Keep that heading. Sometimes the power of the State is visible in the limits of what it asks for."

Malini said over the telephone, "The factual summary matches the final copy. No new source has been added as a claim."

The Law Secretary asked, "The three discarded connections?"

"They are in the revision register. Not in the present position."

"And the partially independent source?"

"Clearly marked."

"And the dissimilarities?"

"Before the similarities."

Devvrat Sinha closed the document. "Then send it."

The supplementary submission was transmitted for filing in the record of the pending Special Leave Petition. No new petition, no new political declaration—only a more limited legal position within the representation already under way.

As Aditya returned to the guest house, his vehicle moved through the lights of the avenue. The lines appeared at equal distances from one another, at the same height, in the same yellowish glow.

He kept looking out of the window. Similarity makes the eye form a group at once. But Gangesha's method taught him again and again: the formation of a group does not prove a relationship; the nature, limit, and cause of the relationship must be asked separately.

Yesterday's ministerial table had today become the Attorney General's legal submission. The lines of the map were now to reach the Court in the form of words.

A new caution rose in Aditya's mind. If a line is wrong, the eye is deceived; if a word is wrong, the record itself begins to deceive.

He wrote in his notebook: “Analogy set the bounds of the question. The next test is the bounds of words.”

Then a thought that had run through the whole chapter came before him in its final form: similarity does not take the place of truth; it can only choose the proper questions by which one may travel toward truth.

Like the ridge of a field in Garh En Arikel—it directs the water, but it does not grow the paddy.

The vehicle turned slowly around a bend.

Aditya closed his eyes. The map of analogy was completing its work. Now, in court, it would not be lines but sentences that would be put to the touchstone.

040 The Touchstone of Testimony — Chapter 1

The next morning, the corridors of the High Court were no more crowded than on an ordinary day, yet the atmosphere felt different to Aditya Jha. Until yesterday the questions had been of maps, lines, similarities and sources; today the language of all those things was to be placed before the Court.

Before Justice Arya's bench lay the State's revised status summary, the defence reply, summaries of the statements of three witnesses, and the earlier orders, each in a separate file. In each file, the same fact was sometimes written in different words. Today that difference was to become the centre of the dispute.

Vidyanand Mishra sat in his place reading his final notes. For the State, Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar were present. Beside Aditya, Malini Karna had opened a slim table.

The table had five headings—"Original Statement", "Investigator's Summary", "File Classification", "Independent Support", "Legal Limit."

Looking at it, Aditya thought: the map of analogy had tested the distance between lines; the touchstone of testimony would now test the names given to those lines.

The Bench assembled. As soon as the preliminary formalities were over, Justice Arya picked up a sheet of paper.

"The State's last status summary says: 'an indication of administrative access.' The defence reply says: 'the State alleges control.' The original computational record says only: 'administrator-level login.' Do all three sentences say the same thing?"

Devvrat Sinha replied, "No, My Lady. 'Administrator-level login' is a technical record. 'An indication of administrative access' is the investigative interpretation of that record. 'An allegation of control' is a third and broader proposition, for which an independent foundation is required."

Justice Arya looked toward Vidyanand. "Why did the defence use the words 'allegation of control'?"

Vidyanand rose. "Because in some of the State's earlier submissions, the fact of access was linked with the possibility of control. But if the Court wishes us to remain confined to the exact language of the present record, we will revise our sentence."

"That is precisely what the Court wishes," Justice Arya said. "From the State as well."

She placed the paper on the lectern.

"Words are not mere ornament. 'Login', 'access', 'control', 'ownership', 'direction', 'participation'—these are terms of different meanings. If one term takes the place of another, the burden of proof itself may change."

Malini added a new line to her table—"Change of term = possibility of change in meaning."

Justice Arya continued, "Today we shall look at the limits of suspicion, allegation and proof not merely as ideas, but as sentences. Which word came from where, who said it, in what context it was said, and what it later became in the file—that sequence will be examined."

The memory of Gangeshya Upadhyaya rose within Aditya. He had read discussions of verbal testimony many times, but today, more important than any definition in a treatise was one simple question: does the record say only as much as was actually said?

The first name was that of Manoj Mahato. His fresh protected statement was before the Court in the form of an anonymised summary. The original statement remained secured in the sealed record.

Justice Arya asked the State to read the original sentence.

Mrinal Dhar read: "The person who telephoned named my son's school; I became frightened. I do not know who that person was."

Then he read an older line from the investigation diary: "Direct improper influence by the network upon the witness."

Justice Arya asked, "Where did the leap occur between these two sentences?"

Aditya rose. "My Lady, the original statement describes one circumstance that caused fear—the mention of the school. The old note linked the person who caused the fear to the alleged network, for which at that time there was no independent foundation."

"And the note now?"

"The original entry has not been erased. Beside it stands a correction line: 'Circumstance of fear partly corroborated; identity of caller unverified; alleged network connection unverified.'"

Vidyanand said, "We would ask that the words 'direct improper influence' not be used again in any future open summary."

Devvrat Sinha replied, "The State agrees, unless an independent basis emerges."

Justice Arya read Manoj's statement again.

“‘I became frightened’—whose fact is that, directly?”

Mrinal Dhar said, “The witness’s own experience.”

“‘He frightened me?’”

“An interpretation of causation.”

“‘So-and-so frightened me?’”

“A person-specific allegation requiring an independent basis.”

“‘The network frightened me?’”

“A still broader allegation.”

Justice Arya said, “Good. Fear may be real; identification of the cause of fear is a separate question. We will not deny the emotion, but neither will we turn it into proof of person-specific guilt.”

Manoj was not physically present in court, but with the Court’s permission he had been made available over a protected video link for a limited clarification. When his face appeared on the screen, Aditya noticed that the old habit of rubbing his fingernails remained.

Justice Arya asked gently, “You will be asked only what your own words mean. If there is something you do not know, say so clearly.”

Manoj nodded.

“You said, ‘I became frightened.’ Did you know on whose instructions the caller was speaking?”

“No.”

“Did he ever mention Raghav Sethia’s name?”

“No.”

“Did he mention the alleged gambling business by name?”

Manoj thought before answering. “No. He mentioned only the name of the school, the name of the old office, and said that I should not say ‘too many new things.’”

Vidyanand rose at once. “My Lady, ‘too many new things’—was that in the original statement?”

The State clerk checked the original record. Mrinal Dhar said, “It appears in the first detailed statement; it was omitted from the short summary.”

Justice Arya’s gaze hardened, though her voice remained steady. “A summary may be shorter; it may not cut away meaning. The Court is not at this stage determining the significance of this sentence, but condensation must not cause the original words to disappear.”

Malini wrote: “Summary ≠ substitute for the original.”

On the screen, Manoj’s face seemed a little calmer. His fear had not ended; but his statement was being given room to remain in his own words.

The second name was Rajat Pal’s. In an earlier State note stood the phrase “possible financial motive.” An internal defence draft had called it “a story of greed.”

Justice Arya asked, “Did Rajat himself use the word ‘greed?’”

Devvrat Sinha said, “No.”

“The State?”

“No. The State’s original note was ‘possible financial motive.’”

“The defence?”

Vidyanand looked toward his junior. The draft lay open before Advait.

“My Lady, ‘a story of greed’ is a draft heading used by our team; it is not in the filed copy. Even so, it colours the record with a judgment upon character. We will not retain it.”

Justice Arya said, “Good. The discipline of the Court applies equally to both sides.”

Rajat’s verified facts were then read out in order—five payments separate from his regular salary; the description “work incentive”; some dates close to disputed accounting entries; and the establishment’s general incentive policy, which was also available on record.

Mrinal Dhar said, “The State now uses the words ‘additional payment’, not ‘unusual payment’, because an adequate comparative basis for the ordinary pattern of distribution is still incomplete.”

Justice Arya asked, “And ‘greed?’”

“A conclusion about personal character. Not a proved fact.”

Vidyanand added, “There is a fact that Rajat changed his statement, but that the change was caused by greed—that is not proved.”

“State?”

“Agreed.”

Justice Arya looked at the order writer. “Record this: ‘Receipt of money is one circumstance; the reason for the money is a separate question; personal character is a third question.’”

These three divisions seemed simple to Aditya, yet it was precisely that simplicity which was difficult. In an investigation room, one word would offer convenience—“greed.” In court, the same word carried with it many unspoken conclusions.

A line from Rajat's written explanation was read, though Rajat himself was not present at this hearing: "I received the additional amount, but I did not understand it to be money given in return for the disputed entries."

Vidyanand said, "In this sentence, 'I did not understand' describes the witness's mental state; it is not final proof of the actual reason for the payment."

Devvrat Sinha agreed at once. "Correct."

Justice Arya said, "That distinction matters. A witness may state his belief; the actual arrangement will be tested against documents, instructions, the path of payment and other material."

Malini wrote in her table: "Belief is not an external fact."

Beside it Aditya wrote: "But belief may itself be the subject of testimony."

Malini looked at him.

Aditya said softly, "Do not cut it away. Separate the category."

When the third name, Sudip Ghosh, was called, the atmosphere in the room changed again. His affidavit contained the sentence: "I feel guilty about my own lack of care."

An old internal State summary had written: "The witness admits guilt."

The moment Vidyanand read it, he said, "This is not merely a difference of words; it is a change in legal meaning."

Aditya rose. "The State agrees. That internal summary has already been corrected."

Justice Arya asked, "Explain the distinction between a sense of guilt and an admission of guilt."

Aditya replied, "A sense of guilt is the witness's emotion. It may arise from carelessness, silence, signing a paper without reading it, a risk understood only later, or actual participation in wrongdoing—many different causes. An admission of guilt would be an acceptance of a specific act, knowledge and responsibility. Sudip has made no such specific admission."

Justice Arya said, "In other words, 'I regret it' must not be written as 'I committed the offence.'"

"Yes, My Lady."

Mrinal Dhar read the next part of the original statement: "I had signed papers for consultancy services. I saw some services; some I did not see myself."

Justice Arya asked, "What is directly established by this?"

Devvrat Sinha said, "The fact of the signatures, and the witness's own limit of perception."

"What is not?"

"That the services he did not see were false; or that the witness knew them to be false."

Vidyanand said, "And the defence cannot, from this alone, say that the services necessarily were genuine."

Justice Arya looked at him. "Correct. Absence does not create certainty in either direction."

Sudip's protected video link began. His eyes looked tired.

Justice Arya asked, "Why did you use the words 'sense of guilt'?"

Sudip remained silent for a few moments, then said, "Because I feel I should have asked questions. I did not ask. I should have read the papers. I did not read them fully. Later, when the news reports and the investigation came, I became afraid of my own judgment."

"Are you saying that you knew the papers were for unlawful work?"

"No. Even now, all I can say is that some things were not clear."

"Did you ever hear an explicit instruction from anyone to do unlawful work?"

"No."

"Then what do you mean by your sense of guilt?"

Sudip's voice trembled. "For not being careful."

At that moment Aditya understood how large a single word could become inside a human being, and how easily the record could give it another meaning.

Sudip's eyes grew moist. "I am afraid everyone thinks I am guilty."

Justice Arya said, "This Court is not deciding your guilt or innocence today. Say what you know; do not fill in what you do not know."

Sudip lowered his head. After a few moments he clarified his own words once more: "I regret what I did not examine carefully; but I cannot say that I possessed knowledge I did not have."

Malini wrote the sentence exactly as he had said it. This time she did not make a summary.

After noon, the Court changed the direction of its questions. Justice Arya read a line from an order in the State's file: "The related accounts shall be examined."

Then she read an internal direction issued by the investigative team: "Detailed examination of all network-linked accounts."

"Are 'related accounts' and 'network-linked accounts' the same category?"

Aditya's face tightened slightly. "No."

"Then where did the word 'network' enter the internal direction?"

Aditya looked at the file. "From a draft prepared by an assistant investigating officer. The exact language of the order was not carried over."

“The consequence?”

“Some accounts were brought into that broader category merely because they used the same payment intermediary. Two accounts were later removed.”

Vidyanand rose. “My Lady, this is our central objection. A single adjective widened the scope of the investigation.”

Devvrat Sinha said, “The State will not contest that point.”

Justice Arya asked, “Was any adverse action taken against the holders of those two accounts?”

Aditya replied, “Documents relating to them were sought; no punitive action was taken. After the later review, both were removed from the principal relationship list.”

“Then the error remained limited, but the principle is serious.”

She told the order writer, “A term used in a judicial order shall not acquire an expanded meaning in investigative directions unless the independent legal basis for that expansion is recorded.”

An old scene from Mithila came to Aditya’s mind—if a field boundary were described as ‘up to this ridge’ and the listener understood it as ‘up to this pond’, the dispute would spread farther than the water itself.

Words, too, make boundaries. Distort the boundary, and the act itself changes.

Vidyanand’s own examination was not yet over. Justice Arya read a line from the defence reply: “The State’s revisions show that the original narrative was artificially constructed.”

For a moment, silence spread through the room.

Justice Arya asked, “Constructed—what is the basis for that word?”

Vidyanand recognised the line. It was not in the final filed copy, but had remained in an annexure to the draft that had been placed before the Court.

He answered plainly, “In that form, there is insufficient basis, My Lady. The revisions may justify questioning the weakness or overbreadth of the original conclusions; a finding of deliberate artificial construction requires a separate foundation.”

Justice Arya said, “Then?”

“The word should be removed.”

The representative seated behind Raghav Sethia looked faintly displeased, but Vidyanand did not look toward him.

Justice Arya said, “The defence objects to exaggeration by the State; its own exaggeration is not the cure.”

Vidyanand bowed his head. “Accepted.”

Aditya’s gaze rested involuntarily on Vidyanand. The man who, yesterday, had been guarding his language between private crisis and professional pressure was today cutting away a sharp word that favoured his own side in open court.

At that moment the word “dignity” no longer seemed abstract to Aditya. Sometimes dignity also meant surrendering a sentence that served one’s advantage.

In the next part of the hearing, Justice Arya proposed that five kinds of sentences be kept distinct.

“First—direct statement: exactly what the witness or the record says.”

“Second—summary: a shortened form of the original statement, in which no new meaning is added.”

“Third—investigative interpretation: the explanation placed upon the available material by an officer.”

“Fourth—allegation: a statement concerning a specific role of a person or institution.”

“Fifth—proved fact: that which, after lawful testing and the necessary support, may at that stage be treated as undisputed or judicially established.”

Vidyanand asked, “Where does suspicion fall?”

Justice Arya said, “Suspicion may be a condition, not only a type of sentence. But if it is written, call it suspicion; do not give it the grammar of an allegation.”

Devvrat Sinha added, “And inference?”

“Mark it separately from interpretation. If an inference rests on a structure of reasoning, both its basis and its limits must be written.”

Beside the five headings Malini added a sixth—“Inference: basis + limit.”

Justice Arya looked toward her page. “Ms Analyst, remember one thing. A table is a convenience, not truth. Categories must be capable of change; the original record must remain preserved.”

Malini replied, “Yes, My Lady.”

“And if new material comes tomorrow?”

“The classification may change, but the history of the earlier classification will not be erased.”

Justice Arya nodded. “That is how the Court will see whether a change arose because knowledge increased, or because language was altered for convenience.”

In Aditya’s mind, Navya Nyaya was again present like an unnamed lecture—term, relation, qualifier, delimitation; when a word is placed upon the touchstone, its boundary can no longer remain unseen. But he left the thought within himself. Simpler language would serve the Court’s order better.

Outside, Ananya Kashyap was waiting for news of the hearing. A colleague read a proposed headline to her over the telephone: “Statements of Three Key Witnesses Collapse; State Forced to Change Its Words.”

Ananya said at once, “Cut both parts.”

“Why? The language of all three witnesses was changed during the hearing.”

“It was clarified. The statements did not ‘collapse’. Some parts were corroborated, some unverified, some wrongly summarised.”

“Then the headline?”

Ananya looked at her notes. “Court: Keep Statement, Interpretation and Allegation Distinct.”

“Far too flat.”

“But it says what happened.”

Her colleague laughed. “Then the audience will leave.”

Ananya said, “If we change the Court’s question in order to hold the audience, then we are not reporting news; we are selling a story.”

She sent the headline. Beneath it she added one line: “The Bench said fear, money or regret may be human circumstances; a conclusion of person-specific guilt requires an independent basis.”

She wrote the word “confession” once, then struck it out. Sudip had spoken of a sense of guilt; he had not confessed.

In the newsroom, it was a small correction. In the case, it was an extension of the same touchstone the Court was applying inside.

At the final hearing that evening, Justice Arya dictated interim directions.

First—wherever possible, decisive words used by a witness shall be reproduced exactly within quotation marks in future status summaries; any summary shall be separately identified.

Second—an investigator’s interpretation shall not be presented as part of the original statement.

Third—conclusive terms such as “control”, “ownership”, “direction”, “beneficiary”, “network connection”, “admission”, and “threat” shall be used only to the extent that their foundation is clear upon the record.

Fourth—a witness’s fear, financial interest, change of statement, regret or sense of guilt may be circumstances relevant to credibility; but they shall not by themselves be treated as proving an offence, a false statement, or person-specific participation.

Fifth—before the language of a judicial order is expanded in an administrative or investigative direction, the legal reason for that expansion shall be separately recorded.

Sixth—the original record, the earlier summary and the revised summary shall all be preserved in versions, so that the history of the change remains visible.

And at the end Justice Arya added a line of her own: “Suspicion shall be written in the language of suspicion, allegation in the language of allegation, interpretation in the language of interpretation, and proved fact in the language of proved fact.”

Vidyanand said, “My Lady, the defence has no objection to this principle.”

Devvrat Sinha also said, “The State agrees.”

Justice Arya looked at both sides. “Agreement is easy. I shall look for compliance in the next file.”

A faint ripple of laughter passed through the room, but Aditya did not laugh. He understood that, from now on, every word in the next file would arrive carrying twice its weight.

After the Court rose, Malini was descending the stairs with Aditya. In her hand was the same five-column table; it now had six columns.

Malini said, “I used to think the problem arose when a fact was wrong. Today I understood that even when the fact is right, a wrong name for it can create a problem.”

Aditya replied, “A name gives direction to the mind.”

“Like ‘greed’.”

“Yes. ‘Additional payment’ is an event. ‘Greed’ is a judgment upon a person’s character.”

“‘Sense of guilt’ and ‘admission of guilt’.”

“There is an entire judicial distance between them.”

Malini was silent for a few moments. “And ‘administrator-level login’ and ‘control’?”

“Between those two, one may need many independent facts.”

Malini smiled. “Now you edit your own speech as well.”

Aditya smiled too. “There is no point in keeping the touchstone outside oneself.”

At the foot of the stairs, Manoj’s lawyer was walking toward the protected passage. On the other side, Rajat’s representative was gathering papers. Sudip’s video link had already been closed. Three people, three states of mind—fear, a question of money, regret—and one danger hanging over all three: giving emotion the place of proof.

Aditya remembered yesterday’s lesson in analogy. The same emotion may arise from many causes. Today’s lesson in words went one step further—the same word may carry different boundaries in the mouths of different people.

Back at the office that night, Aditya opened the original statements again. Manoj's sentence, Rajat's explanation, Sudip's affidavit. He did not mark them in three colours. He wrote only three small headings—"What Was Said", "What Was Understood", "What Was Proved."

Malini asked, "Only three?"

"For now."

"And suspicion?"

"Not everything that is unproved is suspicion. Some things are unknown, some disputed, some interpretation. First give them the right names."

On the first record he wrote: "School named—statement. Telephone contact—partly externally corroborated. Identity of caller—unknown. Intention to cause fear—subject to interpretation. Network connection—unverified."

On the second: "Additional payment—verified. Reason for payment—disputed. Greed—character judgment, not a proved fact."

On the third: "Sense of guilt over lack of care—the witness's own experience. Admission of guilt for a specific unlawful act—none."

Malini read all three pages and said, "In this language, the story sounds less interesting."

Aditya replied, "The task of a judicial record is not to be interesting."

"Then?"

"Say only as much as is known; where it is not known, leave only that much blank."

Outside, the night was deepening. The corridors of the office had emptied. Somewhere far away came the sound of papers being set down, and then silence.

In Aditya's memory rose the old school at Garh En Arikel. Once, when he was a child, the teacher had said that a single misplaced letter could change an entire word; change the word, and the sentence changed direction. Then it had been grammar. Today it had become judicial discipline.

For him, the tradition of Gangesha Upadhyaya was no longer merely the difficult terminology of a treatise. The question was this: who is the speaker, what was said, in what context, and how far is the listener extending it for his own convenience?

He wrote the last line in his notebook: "Before a word can become evidence, it must declare its limits; otherwise it begins to make suspicion look like allegation, and allegation like proof."

Malini read the page and asked, "Shall we put this in tomorrow's meeting?"

Aditya said, "As an idea. The Court will decide the language of its order."

He closed the file.

Outside, the lights of passing vehicles were slowly thinning.

The lines of analogy lay behind them. The touchstone of testimony had begun.

04I The Touchstone of Testimony — Chapter 2

When Aditya Jha reached the Court the next morning, he saw at once that yesterday's order had already left its mark on paper. A new column had been added to every page of the State's revised status summary—"Original Words." Beside it stood another—"State's Interpretation."

Malini Karna opened the file and showed him. "Since last night, I have not written 'control' anywhere the original record says only 'access'."

Aditya said, "Good. But today the question will not remain one of words alone."

"Privilege?"

"Yes. To whom the words were spoken, for what purpose they were spoken, and who has the right to read them—all of that will arise together."

Justice Arya's bench assembled. Vidyanand Mishra rose. In his hand was a slim file dense with markings.

"My Lady, yesterday the Court clarified the boundary between an original statement and an interpretation. Today the defence wishes to place before the Court one further consequence of that discipline."

Justice Arya said, "Proceed."

"In its new status summary, the State has described twenty-seven communication records as 'operational material'. Of those twenty-seven, eleven contain requests for legal advice, the giving of legal advice, or discussion of legal strategy. Merely attaching the word 'operational' cannot extinguish privilege."

Attorney General Devvrat Sinha rose. "The State is not saying that privilege is extinguished. The State's objection is that within a single communication there may be legal advice alongside ordinary business instructions, payment information, account lists, and copies to outside persons. Giving the entire message one label—'privileged'—cannot automatically obscure facts that are properly open to investigation."

Justice Arya looked from one file to the other. "Then yesterday's lesson is useful again today. Giving a thing a name and proving what the thing is are not the same."

Vidyanand said, "The defence agrees. But if the boundary is wrongly drawn in a question of privilege, the damage may not be reversible afterwards."

The Bench asked, "What do you propose?"

"Abandon record-level general labels and examine the material segment by segment. Legal advice should be separated; ordinary business facts should be separated; where the material is mixed, access should be restricted."

Devvrat Sinha said, "The State does not oppose that method, subject to one condition: the defence should not be able to block an entire record merely by pointing to its title or the name of a lawyer."

Justice Arya said, "The Court will settle that boundary today."

Malini opened a copy of the first disputed record. The subject line read: "Crisis Review." The sender was an officer in Raghav Sethia's office; the recipient was a member of Vidyanand Mishra's legal team; three internal employees were copied.

Vidyanand said at once, "Look at the subject line—Crisis Review. This is a communication seeking legal advice."

Devvrat Sinha said, "My Lady, the first paragraph contains instructions to alter the daily limit on a payment gateway. The second gives the pending number of customer-identification verifications. The third asks: 'What is the regulatory risk in this structure?' The State seeks the facts in the first two paragraphs, not the advice in the third."

Justice Arya examined the page. "The creation history of the communication?"

Malini replied, "The initial draft first circulated within the internal operations team. Seven minutes later, the lawyer's address was added. The subject line remained unchanged. The third paragraph was added later."

Vidyanand asked, "How did the State obtain this creation history?"

Aditya rose. "From the seized forensic image, sir. The original file and three autosaved versions were preserved. At this stage the State draws no conclusion about the truth of their contents; it is stating only the sequence of the versions."

"The hashes?"

"Each version has a separately recorded hash. The hash shows only that the available copy corresponds to the stored forensic image; it does not show that the contents are true."

Justice Arya looked at Aditya. "You remember yesterday's language."

"Yes, My Lady."

The Bench turned to Vidyanand. "Are you claiming privilege solely from the subject line?"

"No. From the purpose of transmission, the recipient, and the legal question taken together."

"And the State?"

Devvrat Sinha said, “The State will not call it ‘operational’ merely because the first draft was created within the operations team. We accept paragraph-by-paragraph classification.”

Justice Arya dictated an order: “The title of a record, its subject line, or the designation of its sender or recipient shall not, standing alone, be decisive of classification. The purpose, content, context, and scope of circulation of the communication shall be considered together.”

Vidyanand said quietly, “The defence is satisfied with that sentence.”

Aditya made a note: the touchstone of words was now reaching beyond words into the relations around them.

The second record was more difficult. In a five-message chain, the first message came from the legal team; the second was a reply from finance; the third added an outside consultant; the fourth returned to the lawyer; the fifth contained only two lines: “Do not use the old route. Send the cost of the new option.”

The State treated the fifth message as a business instruction. The defence said that it arose from the earlier legal advice and therefore the chain was indivisible.

Justice Arya asked, “If a doctor tells a patient not to eat a certain food, and a member of the household then changes the shopping list, does the shopping list itself become medical advice?”

Vidyanand smiled. “Analogy with caution, My Lady. Until yesterday the Court was teaching all of us the limits of analogy.”

A soft ripple of laughter passed through the courtroom.

Justice Arya smiled too. “A fair reminder. I am not deciding the matter by this analogy; I am only sharpening the question. Are the effect of legal advice and the legal advice itself the same thing?”

Vidyanand said, “Not always.”

Devvrat Sinha added, “That is all the State says.”

Vidyanand continued, “But sometimes an implementation instruction contains so much of the legal reasoning within it that severing the two would reveal the advice itself.”

The Bench agreed. “Then the choice is not binary—privileged or wholly open. We need a third category: mixed material.”

Malini wrote a new heading in her table—“Mixed: Severance Required.”

Justice Arya noticed it. “Ms Analyst, that is for administrative convenience. The final legal classification is for the Court.”

“Yes, My Lady.”

The Bench added to the order: “In mixed communications, legal advice, portions that disclose the advice, and independent business facts shall, so far as possible, be separated. Where severance would itself reveal the substance of the advice, that circumstance shall be separately recorded with reasons.”

It seemed to Aditya that yesterday’s column, “Original Words,” was becoming today’s “Original Relation.” In Navya Nyaya, a word was not merely sound; without knowing whose utterance it was, with what intention, and within what relation it acquired meaning, the boundary remained incomplete.

The third dispute arose over the metadata of an email. The defence said the email was privileged; the State replied that it did not seek the contents, only the time, sender, recipient, size, and transmission path.

Vidyanand said, “Sometimes metadata itself may expose legal strategy. Which expert was contacted at midnight, on what day the number of lawyers increased—the State may infer strategy from that sequence.”

Devvrat Sinha replied, “That possibility may be accepted. But to say that all metadata is automatically privileged would be far too broad.”

Justice Arya asked, “What does the State actually seek at this stage?”

Devvrat Sinha read from a list: “Date and time of transmission, sender address, recipient address, number of attachments, and the fact that the email was present in the seized forensic image. Not the subject line, not the contents, not the names of the attachments, and not the legal team’s internal notes.”

Vidyanand considered this for a moment. “The recipient address identifies an outside expert.”

“The same expert’s name appears in an independent payment record,” the State said.

“The payment record does not show his legal role.”

The Bench said, “On that point, the State’s independent source shall be examined. If the identity was already lawfully available from an independent, non-privileged record, the mere existence of the email does not give it a new legal meaning. But if the State seeks to infer strategy from the sequence of emails, the boundary arises again.”

Aditya said, “The State’s investigative team will not derive an interpretation of legal strategy from this metadata. Its proposed use is limited to chronological correlation.”

Vidyanand looked straight at Aditya. “And that limitation will be in writing?”

“It will.”

Justice Arya said, “Oral restraint is useful; written restraint is more useful.”

The next line of the order took shape: “The use of metadata from a privileged communication shall not be presumed unlimited; the independent source, necessary purpose, and limits of use shall be clearly recorded.”

During the midday recess, Vidyanand Mishra stood in a corner of the corridor and spoke to Shailaja on the telephone. He kept his voice low.

“Did you take your medicine?”

An answer came from the other end.

“Yes, I will eat on time.”

He ended the call. Aditya stood some distance away; he made no attempt to listen. Vidyanand himself came over to him.

“Officer, may I say something?”

“Of course.”

“In a dispute over privilege, an investigator must sometimes see the lawyer as an obstacle.”

Aditya replied, “Sometimes a boundary does make the work harder.”

“And sometimes the boundary makes the work lawful.”

“That too is true.”

Turning a page, Vidyanand said, “I am defending my client in this case. But the dignity of the profession does not lie in hiding everything on the client’s side. Calling something privileged when it is not privileged is no dignity either.”

Aditya remained silent.

Vidyanand went on, “And abandoning what is privileged merely for investigative convenience is no dignity either.”

“Working between the two boundaries is difficult.”

“That is why there is a court.”

Weariness lay on his face, but his voice was steady. The moment on the telephone with Shailaja belonged to private concern; his argument in court belonged to his profession. Aditya remembered yesterday’s lesson—emotion must not be allowed to take the place of proof. Today another form of the same lesson stood before him: private distress must not be made to supply the meaning of a professional argument.

After the recess, the defence raised a new objection. In the State’s internal list, four records carried the notation “legal cover?” beside them.

Vidyanand said, “The question mark does not make this innocent. The words ‘legal cover’ themselves suggest that the involvement of a lawyer was treated not as genuine advice but as a device for concealment.”

Justice Arya looked toward the State. “Whose words are these?”

Malini stood. “My Lady, that was my note during the preliminary screening. It was written before I had read the full material. It was later removed, but it remains in the version history.”

“The basis?”

Without adopting a defensive posture, Malini said, “I accept now that there was insufficient basis. The only reason was that the same record had been forwarded from the operations team to the legal team. That does not establish misuse of privilege.”

Vidyanand looked at her. “You are stating that clearly before this Court?”

“Yes.”

“The State will not rely on that note?”

Devvrat Sinha said, “No.”

Justice Arya paused her pen over the order sheet. “This is not a small example. The word ‘cover’ imputes a purpose. ‘Forwarded to the lawyer’ is an event. ‘Forwarded for the purpose of obtaining privilege’ is an interpretation. ‘Legal cover’ may go still further and become language suggestive of culpability.”

Malini lowered her head. “I understand.”

The Bench said, “Acknowledging error is not a weakness of analysis; concealing error is.”

The sentence stayed in Aditya’s mind.

Vidyanand said softly, “My Lady, the defence appreciates that clarity.”

Justice Arya said, “Appreciation will not form part of the order. The boundary will.”

The courtroom again filled with gentle laughter.

The next record was an attachment to a legal-advice letter—a twelve-page account table. The advice letter was indisputably legal. The question was whether the attached table, which had earlier been created independently within the finance team, became privileged merely because it had later been sent to a lawyer.

Vidyanand said, “If the State has the same table from an independent source, we have no objection to its use. But we object to the handwritten notes and coloured markings on the lawyer’s copy.”

Devvrat Sinha said, “The State too treats the original finance table and the lawyer-annotated copy as distinct.”

Justice Arya asked, “The hashes of the two?”

Malini said, “The original spreadsheet has one hash; the exported annotated copy has another. Visually the table is the same, but because of the annotations there is no byte-level identity.”

The Bench said, “Then even calling them ‘the same record’ would be careless language.”

Aditya replied, “Yes, My Lady. Two versions of the same underlying material.”

“And the State will rely on the original version from the independent source?”

“Yes.”

“The annotated copy?”

“Subject to privilege review.”

Vidyanand said, “The defence agrees with that boundary.”

Justice Arya dictated: “A pre-existing independent business record shall not, in its original form, automatically become legal advice merely because it is later transmitted to a lawyer; however, a lawyer’s annotations, selection, arrangement, or markings that reveal the direction of legal advice shall be separately examined.”

Malini asked as she took notes, “My Lady, the boundary of the word ‘selection’?”

The Bench looked at her. “A good question.”

“If, out of a thousand records, a lawyer asks for only five, the selection of those five may itself sometimes reveal the direction of legal thought. The State therefore cannot claim a right to selection information merely by saying, ‘The underlying records were independent.’”

Malini wrote: “Underlying material ≠ meaning of selection.”

Aditya saw the distinction clearly: yesterday had been precision in words; today was precision in relations.

In the final part of the hearing, Justice Arya asked both sides to submit their proposed classifications on a single page. Five minutes later, two sheets lay before her.

The defence headings were: “Legal Advice / Mixed Material Revealing Advice / Independent Business Record / Disputed.”

The State headings were: “Fully Protected / Partly Protected / Independent Factual Material / Metadata / Under Review.”

Justice Arya read both. “The two sides have drawn different maps of almost the same terrain.”

Vidyanand said, “The shadow of analogy is still with us.”

“The shadow may remain,” the Bench said, “but we are now in the province of words.”

Devvrat Sinha smiled.

Justice Arya continued, “The Court will use the following working classification: one, clear legal advice; two, material whose disclosure would reveal the substance of legal advice; three, pre-existing independent facts or business records; four, mixed material in which severance is possible; five, disputed material to remain under sealed review. Metadata shall be considered separately, with reasons.”

Vidyanand asked, “And if the parties disagree about classification?”

“Call it disputed. Do not change the word and announce victory.”

Devvrat Sinha said, “The State agrees.”

The Bench continued, “And writing ‘privileged’ does not prove the truth of the material; writing ‘non-privileged’ does not establish a connection with an offence. This is a legal classification governing limits of access and use, not a determination of guilt.”

Aditya underlined the sentence.

Justice Arya went on, “The investigative team shall maintain a separate register for privilege review. The name of every person who accesses protected material, and the reason for that access, shall be recorded. Disputed material shall not be used in the principal investigative interpretation until its classification is clear.”

Vidyanand said, “That is an essential safeguard.”

The Bench replied, “It is not a favour to a party; it is discipline for the process.”

After the Court rose, Malini and Aditya paused outside the records room. Malini looked again at her old note: “legal cover?”

“Those two words trouble me,” she said.

Aditya replied, “Why?”

“I assumed a purpose before I had read the facts.”

“Then let it remain in the history.”

Malini was startled. “Not delete it?”

“No. Add a revised note: ‘Insufficient basis; not relied upon.’ If every error is erased, no one tomorrow will know how the method improved.”

After a moment Malini said, “The custody register shows the journey of the material. This comments register will show the journey of thought.”

“Exactly.”

“But thought cannot be hashed.”

Aditya smiled. “Nor should it be. Thought changes. The question is why it changed.”

They stepped outside. The sky was grey. There was still daylight left, but within Aditya an old memory of night was slowly waking.

That night, after dinner at the State Guest House, Aditya could not sleep. The city glowed beyond the window, but his mind was no longer in the city.

Memory carried him many years back—to a night by the Ganges. He had been a student then. The river was swollen after the rains, the current dense, and through the darkness small lamps on boats flickered far apart. On the bank, his teacher had been discussing Gangesha Upadhyaya over a single sheet of paper. “Hearing words may give knowledge,” the teacher had said, “but if you leave aside the questions—whose words are they, what competence does the speaker have, what does the speaker intend to say, and what does the listener understand—then verbal testimony may cease to be a means of knowledge and become a road to confusion.”

That night Aditya had understood half of it. The other half had remained only as memory.

Today, in Court, seeing the distance between “legal cover” and “forwarded to the lawyer,” the meaning of that sentence opened again. Words do not merely fasten names to things; words create relations. An improper relation can take the form of an accusation.

He remembered the current of the Ganges. Seen from the bank, the same water could appear still; seen from a boat in midstream, it could seem fierce. A change of viewpoint did not change the water, but it changed the relation of seeing.

He stopped himself at once. Another analogy. Analogy was not truth.

Aditya smiled. The discipline of the previous thirteen chapters had sunk so deeply into his mind that it was placing limits even upon memory.

He opened his notebook and wrote: “The meaning of words lies not only in the words, but also in the relation among speaker, context, purpose, and reception. Yet do not turn an inference about those relations into something the words themselves said.”

Then a second line: “Privilege determines limits of access; it does not by itself establish the truth or culpability of the material.”

A third: “The power of investigation may be broad, but broad language must not blur its boundaries.”

Outside the window, the sound of vehicles was diminishing. In memory he could still hear the current of the Ganges.

For Aditya that night, the name of Gangesha Upadhyaya was no philosophical ornament. It was a question: where is evidence born, and where is meaning added?

He remembered Malini’s “legal cover?” Two words. A possible prejudice contained in two words. Then her honest revision—“Insufficient basis; not relied upon.” Another cluster of words, capable of correcting the direction of an investigation.

He understood that the touchstone of testimony must not be applied only to witnesses or lawyers. It must be applied first of all to the investigator.

For the following morning, he prepared a one-page working list.

First—review disputed communications segment by segment, not merely record by record.

Second—separate original business records from lawyer-annotated versions.

Third—where an independent source exists, record its path separately.

Fourth—write down the purpose for using metadata before the use is made; do not invent the meaning afterwards.

Fifth—separately review purpose-imputing language in preliminary notes.

Sixth—keep disputed material out of investigative use until the Court clarifies its classification.

At the top of the page he wrote: “Only what was said; what is protected, with its boundary; what is open to investigation, with its source.”

Then he paused his pen and added one more line: “No classification is a finding of guilt.”

The first light of morning fell across the window. Aditya closed the file.

Yesterday the Court had applied the touchstone to differing meanings of words. Today it had drawn the limits of who might access them. The next question would now be this: when material is sealed, will its language and confidentiality be allowed to take the place of truth, or will they remain only disciplines of access?

042 The Touchstone of Testimony — Chapter 3

Before the morning hearing began, Malini Karna sat at her computer with a new table open before her. Across the top were three words—“mention,” “support,” “limit.” Until yesterday she had been sorting records into categories of privilege; today it seemed to her that the real difficulty lay not in the category, but in the weight of words.

From the other side of the desk, Aditya Jha asked, “Did you go home last night, or stay here?”

Malini smiled. “I went home. But the word ‘confirmed’ came with me.”

“Why?”

“It appears in seven places in the investigation diary. In two of them, I think the basis was only a match, not independent support.”

Aditya’s face grew serious. “Then examine all seven. Correct the two that are inaccurate. For the five that are sound, state the basis.”

“If we correct them, the defence will say the State is changing its language.”

“If the language was wrong, changing it is not weakness. Preserving an error is weakness.”

Malini remembered yesterday’s judicial sentence—concealing an error is weakness. She added a fourth column to the table: “Earlier wording / revised wording / reason.”

Just then a court attendant came in and said that the sealed box had been delivered before the Bench. Two seals gleamed on its metal surface.

Malini looked at the box. Until yesterday, a seal had seemed to her a sign of confidentiality. Today the question was different—how much weight would the seal give to the sentence inside?

The Bench assembled. Justice Arya first examined the open record, then looked toward the sealed box. “Today we must keep two things separate,” she said. “First—who is permitted to see. Second—what evidentiary value attaches to what is seen. The two questions are not the same.”

Senior counsel for the State, Devvrat Sinha, said, “The State agrees, My Lady.”

Vidyanand Mishra rose. “Agreement is useful when it is clear on paper. The State’s investigation diary says ‘connection confirmed’. Yet part of the material on which that expression rests is sealed. The defence can neither see the source nor challenge the interpretation.”

Justice Arya asked, “What precisely does the State mean by the word ‘confirmed’?”

Devvrat Sinha looked toward Aditya.

Aditya rose. “My Lady, in this entry the word is too broad. The underlying position is only this: the same contact address appears in two records, but both records came from the same computational source-group. There is no independent corroboration.”

Without raising his voice, Vidyanand said, “Then how is it ‘confirmed’?”

Aditya replied, “An inaccurate choice of word. The State will not defend it.”

For a few moments the courtroom was silent.

Justice Arya said, “The correction shall be marked in the record. The original wording shall not be erased. Beside it, with reasons, write: ‘Same mention in two records from the same source-group; no independent support.’”

Malini wrote it down.

The Bench asked again, “In the investigation diary, the words ‘established’, ‘linked’, ‘confirmed’, ‘verified’ and ‘matched’—in what fixed sense have these five words been used?”

Silence spread on the State’s side.

Malini stood. “My Lady, no uniform terminology was defined beforehand. Different officers have used them in different contexts.”

“Then a court reading the diary may take one word to have five meanings, and five words to have one meaning?”

“That is possible.”

Justice Arya said, “That is how words can cease to serve evidence and begin to alter its shape.”

Vidyanand said, “That is the whole of the defence objection.”

The Bench replied, “The objection is noted. But this is not a finding that the entire diary is inaccurate. We shall now examine, entry by entry, the source, the meaning, and the limit.”

The first sealed file was opened. Inside was an internal incident summary from a third-party service provider. The source’s identity had not been fully disclosed in the open record because, the State said, doing so could affect the computational security of other customers.

Justice Arya read the material for a few moments, then left the box open. “What proposition does the State seek to establish from this material?”

Devvrat Sinha said, "That an administrative access route was active during a specified period."

"Who operated it?"

"This material alone does not say."

"The purpose of the access?"

"No."

"Was the access successful, or was it merely an attempt?"

Devvrat Sinha looked at the paper. "There is an indication of one successful session, but the user's identity is not independently established by this material."

Justice Arya turned to Vidyanand. "Has the defence been given this much information in the open record?"

Vidyanand said, "No, My Lady. The open summary says only 'administrative link confirmed'."

The Bench's expression hardened. "Then the open summary says more, while the sealed material says less."

Malini felt a jolt within. She looked at the old version of the open summary. "Administrative link confirmed"—that line was hers.

Justice Arya said, "A seal is not a seal of truth. A seal may be only a discipline of access. If the material inside speaks to a limited fact, the open summary cannot enlarge it."

Devvrat Sinha inclined his head. "The State will file a revised summary."

Vidyanand said, "And the defence needs a summary to which we can respond—without revealing the source's confidential identity."

The Bench agreed. "The open summary must, at a minimum, state the class of source, the period, the event observed, the State's limited interpretation, and 'what this does not establish'."

Malini looked at her three-column table. It seemed to her that a fourth column was again necessary—"what it does not establish."

She added it.

Justice Arya continued, "If confidentiality keeps the opposing party away from the source's exact identity, the Court's responsibility increases to ensure that the State does not place vague conclusions behind the shelter of confidentiality."

Vidyanand said, "That was precisely our concern."

"The concern is accepted. But lawful protection of the source will remain as well. There is no need to treat adequate disclosure for challenge and protection as enemies of one another."

The second dispute arose from the investigation diary. Against one date it said: "Payment chain established up to Raghav Sethia."

Vidyanand read the line. "My particular objection is to this word 'established'."

Devvrat Sinha said, "At this point there are independent bank records."

"Up to the amount?"

"Up to the amount and the intermediary accounts."

"Up to Raghav Sethia?"

The State's senior counsel paused. "The final link rests on a name similarity and a match of a contact address."

Vidyanand said at once, "Which means the chain is not established in full."

Justice Arya looked at Aditya. "Was that distinction recorded when the diary was written?"

Aditya turned the pages of the record. "It was in a footnote, not in the main line."

"The Court will read the main line; it may read the footnote later. Discipline in language cannot depend upon a footnote."

Aditya said, "Agreed."

Justice Arya said, "The revised language?"

With permission, Malini answered, "My Lady—'Flow supported by independent bank records up to the intermediary accounts; final connection to Raghav Sethia presently based on name similarity and contact-address match, independent confirmation pending.'"

The Bench asked, "Does this wording diminish the facts?"

Malini said, "No. It shows their limit."

"And does showing the limit weaken the State?"

Malini paused for a moment. "Not if we write only as much as the facts bear. On the contrary, the Court can then see how much reliance may properly be placed on each part."

Vidyanand said quietly, "The defence does not disagree with that answer."

Malini was surprised. The agreement of the opposing side did not feel like victory; it felt only like a sentence had found its proper size.

The third entry was more difficult. The investigation diary contained a summary of a witness statement: "He paid out of fear." The original statement itself was not sealed, though part of the witness's identity was restricted for reasons of protection.

Vidyanand said, "Does the word 'fear' occur in the original statement?"

Malini looked at the text. “No. The original sentence is: ‘I was told that if I did not make the payment, my account might be closed; I made the payment.’”

“Then whose word is ‘out of fear’?”

“The officer who prepared the summary.”

Justice Arya asked, “Was the witness afraid or not?”

Vidyanand replied, “That may have been his state of mind, but the question is whether the diary is quoting the statement or interpreting it.”

The Bench said, “Exactly. ‘He was told his account might be closed’ is the statement. ‘He paid out of fear’ is an interpretation. The two should not be placed in the same line without marking the difference.”

The State agreed.

Malini remembered yesterday’s lesson again—“legal cover” had added purpose. Today “out of fear” was adding a state of mind. Two words, two different kinds of enlargement.

She noted: “When preparing a summary, keep statement, interpretation, and state of mind separate.”

Justice Arya said, “The investigation diary is an instrument for recording the course of an investigation. It is not, by itself, a storehouse of truth before the Court. When it is read, one must see whether an entry is a direct observation, another person’s statement, an analyst’s interpretation, or a direction for further investigation.”

Aditya asked, “My Lady, may the State place an indicator before each disputed entry for this purpose?”

“An indicator may be useful, provided its meaning is clear. Do not hide the category merely by changing a colour.”

Malini said, “We will write the words: ‘direct observation’, ‘quoted statement’, ‘interpretation’, ‘investigative direction’, ‘independent support’.”

The Bench added, “And where there is no independent support, write that too.”

During the midday recess, Malini sat on an empty bench in the court veranda. Sunlight lay outside; within, the marble was cool. Before her was the same line: “Administrative link confirmed.”

She said softly, “How did one line become such a problem?”

Aditya sat on the bench beside her. “Because the line was short.”

Malini looked at him. “Because it was short?”

“A short line can sometimes cut away the limits. The source disappears, the condition disappears, the ‘not established’ disappears—and the conclusion remains.”

“I thought a summary was meant to be clear.”

“Clarity and oversimplification are not the same thing.”

Malini was silent for a while. “In computational analysis, I see numbers. Time, hash, access address, payment. I thought a fact was simply a fact.”

“It is. But the limit of a fact is also part of the fact.”

“If we write every limit, the report will become heavy.”

“Then let it be heavy. What use is a light report if it gives a misleading weight?”

Malini laughed. “That answer sounds like an officer.”

“And your question sounds like an analyst.”

Then he grew serious again. “Look: a hash says the material has not changed. It does not say that the statements inside the material are true. A chain-of-custody register says whose hands the object passed through. It does not say the allegation is proved. In the same way, a table says what we saw. If, instead of ‘saw’, we write ‘proved’, the analyst becomes the judge.”

Malini wrote a new line on the page: “The analyst’s task: what was seen, with its source and limit. The task of decision: its legal weight.”

“Keep that line,” Aditya said.

“In the diary?”

“First in your head.”

Malini smiled. This time her error felt less like a cause for shame and more like a lesson in method.

After the recess, the defence made a broader demand: “A complete copy of every diary entry on which the State relies must be supplied to the defence.”

Devvrat Sinha objected. “The diary contains witness-protection information, incomplete lines of inquiry, third-party identities, and preliminary suspicions unrelated to this dispute.”

Vidyanand said, “The State cannot withhold the whole material on one side in the name of confidentiality, and on the other lift words such as ‘confirmed’ and ‘established’ from that diary and place them before the Court. That would be one-sided.”

Justice Arya said, “Both sides are taking extreme positions. The complete diary does not become open automatically; but if the State places a material proposition adverse to the opposing party before the Court on the basis of a confidential entry, it may be necessary to provide a sufficient basis for challenge.”

Devvrat Sinha asked, “In what form should that sufficient basis be given?”

The Bench said, “That will depend on the case. The identity of the source may be removed; but the source-type, time, essential summary of the statement or event, the State’s interpretation, and the limited use should appear in the open record. If even that degree of disclosure is impossible for reasons of safety, the State shall not press that material as a proved fact against the opposing party unless the Court directs otherwise.”

Vidyanand said, “At least that gives us ground on which to answer.”

Justice Arya added, “Confidentiality may confer a right to silence; it does not confer a right to an untestable conclusion.”

Malini underlined the sentence.

Devvrat Sinha said, “The State proposes to maintain an open summary register and a sealed annexure.”

The Bench asked, “How will the relationship between the two be shown?”

Malini said, “Each open entry can be given a neutral serial number. The sealed annexure will contain the detailed source information under the same number. The open register will omit sensitive identities, but record the source-class, date, claim, limit, and use.”

Vidyanand asked, “And if the open summary again states a conclusion broader than the underlying material?”

Malini replied, “Then it will be corrected in the revision register with reasons. The earlier version will not be erased.”

Justice Arya said, “An acceptable format. Ultimate control will remain with the Court.”

◆
The final exercise of the day concerned five entries. The Bench directed the State to write only one sentence against each: “What is actually available?”

First: “Technical indication of one administrative access session; user identity not independently established.”

Second: “Payment flow supported by bank records up to intermediary accounts; connection to the final individual based on partial matching, independent confirmation pending.”

Third: “The witness statement says that possible closure of the account was mentioned; ‘fear’ is an investigative interpretation, not the witness’s own word.”

Fourth: “A customer-identification list is present in one computational record; the accuracy of the list remains under independent examination.”

Fifth: “A recovered fragment of a deleted electronic mail is available; sender identity and the complete context remain incomplete.”

Justice Arya read all five. “Which of these five is a ‘proved fact’?”

Devvrat Sinha said, “Each contains some direct availability; but the broader allegation that may be associated with it is not, by itself, established by any of these five sentences.”

Vidyanand said, “The defence reserves its specific objections to this wording, but at least we can now understand what the State is saying.”

The Bench looked at Malini. “Madam Analyst, today’s lesson?”

For a moment Malini felt uncomfortable. To be asked such a question in court carried the strange memory of a classroom. Then she answered plainly.

“Facts do not need larger words to make them larger, My Lady. They need a source and a limit. If the source is one, five copies are not five corroborations. If something is sealed, the statement inside does not thereby become true. If the diary says ‘established’, the basis for that word must be seen.”

Justice Arya asked, “And an analyst’s error?”

“It should not be concealed. It should remain, with the reason for the correction.”

The Bench nodded. “That is all.”

Malini sat down. The tension that had been inside her since morning did not disappear entirely, but it changed shape. Respecting the measure of a fact was not an art of making it smaller; it was the discipline of keeping it only as large as the source could carry.

◆
By evening, the operative part of the order was ready. The Court issued five directions.

First—whenever sealed material is used, the open record shall, as far as possible, state the source-class, time, limited proposition, and “what this does not establish”.

Second—the sealed status of material shall not be presented as a synonym for evidentiary truth, reliability, or proof of guilt.

Third—a revision register shall be maintained for disputed terminology in the investigation diary; the original entry shall not be erased, and the revised meaning and reason shall be kept alongside it.

Fourth—direct observation, quoted statement, analyst’s interpretation, investigative direction, and independent support shall, as far as possible, be identified separately.

Fifth—if the State relies on confidential material for a material proposition adverse to the opposing party, it shall provide an adequate open summary for challenge; where a portion cannot be disclosed for reasons of safety, the Court shall separately determine the limits of its use.

Vidyanand said, “My Lady, the defence seeks a complete copy of the order.”

“All sides will receive it.”

Devvrat Sinha asked, "The sealed annexure to remain, as before, in the custody of the Court?"

"Yes. With an access register."

Aditya noted: history of access, history of words, history of sources. Three distinct disciplines.

The Court rose. As Vidyanand gathered his papers, he paused beside Aditya. "Today the State lost two words."

Aditya asked, "Which ones?"

"'Confirmed' and 'established'. At least in two places."

"And the facts?"

Vidyanand gave a faint smile. "They remained exactly as large as they were."

"Then that is as it should be."

Vidyanand moved on.

Back at the office, Malini reopened her old table. "Mention / support / limit / what it does not establish"—four columns. She added a fifth: "source of the wording."

In the first row she wrote: "'Confirmed'—analyst's earlier summary; not the wording of the original record."

Second: "'Out of fear'—interpretation in the diary summary; not the witness's original words."

Third: "'Established'—broad wording in the main entry; limitation stated in the footnote."

For a while she kept looking at the screen. A day earlier, all this had seemed merely editorial. Today she understood that the source of a word was also part of the chain of evidence—not physical custody, but custody of meaning.

She raised her pen to write "custody of meaning", then stopped. The analogy was elegant, perhaps more elegant than necessary.

From behind her, Aditya said, "Write it, but write the limit beside it."

Malini turned. "You read it?"

"I read your expression."

They both laughed.

Malini wrote: "Custody of meaning—only a working analogy; not the legal equivalent of a physical chain-of-custody register."

Aditya said, "Now it is right."

Outside, evening was falling. One by one, the city lights were coming alive on the office glass.

In the final report Malini added one sentence: "Where the boundary of the source ends, the analyst's sentence ends."

She saved it, increased the version number, and did not delete the older copy.

As Aditya closed his file, he saw Vidyanand's assistant carrying away a certified copy of the Court's order. One copy was for the State's legal team; one, with the sealed annexure, remained in the custody of the Court.

The legal contest ahead would no longer concern confidentiality alone. Every word of the order—its reach, its effect—would be tested at the next forum.

Malini asked, "Words again tomorrow?"

Aditya replied, "Where do words ever end?"

They stepped outside. There was wind in the veranda. For the first time that day, Malini felt that respecting the measure of a fact did not mean retreating from the fact; it meant preventing an unsupported leap toward truth.

043 The Touchstone of Testimony — Chapter 4

At five fifty-five in the morning, only two lamps were burning in Vidyanand Mishra's chamber. The road outside had not yet fully awakened, but before him lay open the certified copy of the High Court's order from the previous day.

He had already read the order's final five directions three times. On the fourth reading, his gaze halted on one line — "If the State relies upon confidential material for a material proposition adverse to the opposing party, it shall provide a adequate open summary to permit challenge."

His assistant Aviral sat opposite him. "Acharyaji, this line is in our favour."

Vidyanand did not raise his eyes. "To what extent?"

"A adequate open summary"—that means the defence has a right to receive the substance of the underlying material."

"Does the order say that much?"

Aviral fell silent.

Vidyanand placed the tip of his pen beneath the line. "Read—'case by case.' Then—'the source's identity may be withheld.' Then—'if even that degree of disclosure is impossible for reasons of safety.' The order does not lay down one rigid universal rule of entitlement; it creates a method of balance."

Aviral said, "Then what shall we challenge in the supplementary submission?"

"The ambiguity of the words, the limits of their use, and their future application. We shall not enlarge the part of the order that favours us, nor diminish the part that goes against us."

He looked toward the old thick file—the pending Special Leave matter. Inside it, the first petition, the later supplementary grounds, the comparative map, the privilege dispute, and the sealed orders were all arranged in sequence.

"Not a new petition," Vidyanand said. "A consolidated supplementary submission in this pending matter. Write clearly in the title—'Submission on the Limited Meaning and Prospective Use of the Recent High Court Order.'"

Aviral began to write.

Vidyanand added, "And do not write 'Constitutional Challenge to Secret Evidence.'"

"That title was more forceful."

"Forceful words often travel farther from fact."

At half past seven, Aditya Jha received a message from the State's legal branch—the defence was filing a supplementary submission in the pending Supreme Court matter. Along with it came an image of the public cover page of the new filing.

Malini Karna looked at the image. "The Supreme Court again?"

"The matter is already there," Aditya said. "Not again. The next link."

Malini read the words on the cover—"material proposition", "open summary", "adequate opportunity to challenge", "limited use".

"A dispute over these four expressions?"

"Possibly."

"So now, more than the record itself, the language of the order?"

Aditya smiled. "We are in the section on testimony."

Malini opened yesterday's table. "Mention / support / limit / what it does not prove / source of the wording."

She added a sixth column—"Use of the order's language."

Aditya asked, "Why?"

"Yesterday the court wrote 'material proposition'. Today, if we call everything material, the boundary of the disclosure rule will change."

"Correct. And if we call everything incidental?"

"Then the defence's right to challenge becomes hollow."

"Begin there."

Malini wrote the first line—"Classification of words must not itself become strategy."

By nine o'clock the supplementary submission had reached the Supreme Court registry. The electronic entry was clear — "Supplementary application in the pre-existing pending Special Leave matter."

Ten minutes later, three messages arrived together on Ananya Kashyap's phone.

The first—"Urgent: new Special Leave Petition filed."

The second—"Challenge in Supreme Court to confidential evidence."

The third—"High Court's confidential-evidence order in jeopardy."

Ananya read all three messages and set the phone face down on the desk. In the newsroom, Vineet Mathur's voice was already rising.

"Ananya, every outlet has run it. Why are we still waiting?"

"Because each of those three lines contains at least one inaccuracy."

"All three?"

"Not a new Special Leave Petition. No basis for calling it 'secret evidence'. And that the High Court's order is in jeopardy—the Court has not said that."

Vineet leaned back in his chair. "Then what is the headline—'A piece of paper has been filed'?"

"No. 'Supplementary challenge to sealed-material order in pending Special Leave matter.'"

"That headline has no pulse."

Ananya said quietly, "I will not add a pulse to the judicial record."

Vineet watched her for a while. "At least write—'Will the Supreme Court intervene again?'"

"A question mark does not make a false implication innocent."

She opened the registry's public entry. She matched every word. Supplementary application. Pending matter. Recent High Court order. Adequacy of the open summary. Limits on use of confidential material.

At the top of her notes, Ananya wrote—"Filing is a fact; outcome is not."

Before noon, the Attorney General, the Solicitor General, Devvrat Sinha, Aditya and Malini were seated in a small conference room. The High Court order's five directions were displayed on the wall.

The Attorney General put the first question. "The defence will try to widen the meaning of 'material proposition'. What is the State's position?"

Devvrat said, "A proposition that may form the basis of an adverse order or a decision affecting rights is material."

Malini asked, "If some material merely gives direction to the investigation?"

"Then not automatically."

Aditya added, "But if that direction is used to seek a search, seizure, or coercive step against a person, its significance may change."

The Solicitor General said, "Good. The word remains fixed; the context moves. Write that."

Malini typed on the display—"Material' is not an inherent quality of material; its legal significance may change with the judicial or investigative use proposed for it."

Devvrat asked, "Too philosophical?"

Aditya said, "Not if the next line gives an example."

The example became: an incomplete access indicator may merely point toward an investigative route; but if that same indicator is used to seek a finding of control, the need for challenge increases.

The Attorney General moved to the second word—"Rely'."

Malini said, "Mention and reliance are different."

"Explain."

"A fact may be stated in court as background. But if the State says, 'For this reason, the court should reach this conclusion,' then the State is relying on it."

Aditya added, "And if a document is merely in the case diary, but the State seeks no adverse relief on its basis, its disclosure value is different."

The Attorney General nodded. "That boundary matters. But be careful—the State cannot say 'we do not rely on it' and then smuggle its effect in through the back door."

Devvrat wrote—"Express disclaimer: material for which an adequate open summary is unavailable will not be used as the basis of an adverse conclusion."

Malini remembered yesterday's order. In a single day, one word was once again becoming a method.

At two in the afternoon, the State received a copy of Vidyanand's supplementary submission. The first paragraph was restrained. So was the second. In the third, Aditya's gaze stopped on one sentence—"The present language of the order does not provide the opposing party sufficient means to ascertain upon which confidential material the State actually relies."

Malini said, "That objection may be fair."

Devvrat looked at her. "Sitting in the State's room, you are calling the defence's line fair?"

Malini grew slightly uncomfortable.

Aditya said at once, "If it is fair, it is fair. Facts do not change sides."

Devvrat smiled. "I was only asking."

The Attorney General read the line. "The defence has identified a real problem. In answer, the State can provide a reliance schedule—what sealed material is only background, what is investigative direction, what forms the basis of an adverse proposition."

The Solicitor General said, "And also 'what the State does not rely upon.'"

Malini opened a new table.

"Serial number / source category / open summary / State's use / State relies? / limit / what it does not prove."

Aditya said, “One more column—‘available basis of challenge’.”

“Why?”

“The adequacy of an open summary cannot be judged only from the State’s assertion; one must see whether the opposing party can actually answer it.”

Malini added the column. “That is for the court to decide.”

“Yes. We prepare our answer; we do not decide.”

The first hearing that evening in the Supreme Court was only for procedural listing. The Bench was small and time was limited. Vidyanand rose.

“My Lady, this is not a new Special Leave Petition. It consists of consolidated supplementary grounds in the pending matter against the High Court’s recent order.”

Justice Arya looked at the file. “The record is clear.”

Ananya sat in the back row taking notes. Her first line—“Bench confirms: not a new Special Leave Petition.”

Vidyanand continued, “We seek a limited interim clarification on the implementation of the fifth direction of the order. ‘Material proposition’, ‘reliance’, ‘adequate open summary’—without clarity as to these expressions, the defence cannot mount a real challenge.”

The Attorney General rose. “The State does not oppose clarity in the terminology. But the defence cannot convert this procedural direction into a universal right to complete disclosure.”

Justice Arya asked, “Has the State prepared any working format after this order?”

The Attorney General gestured toward Malini. “A reliance schedule is being prepared.”

“Complete?”

“Still a draft.”

“Then the Court will not issue a final clarification on a half-made table. First let the defence’s objections, the State’s response, and the proposed format—all three come on record.”

Vidyanand said, “My Lady, in the meantime the State should not take adverse action on the basis of disputed material.”

Justice Arya looked toward the Attorney General.

The Attorney General replied, “Where challengeable open disclosure is unavailable, the State will not rely upon such material against the opposing party as a proved fact—this has been the State’s undertaking even before the High Court order.”

Vidyanand immediately said, “But the words ‘as a proved fact’ are themselves narrow. What about coercive investigative measures?”

The Bench’s gaze sharpened. “That is precisely where the difficulty of words lies. ‘Proved fact’, ‘adverse proposition’, ‘investigative direction’, ‘coercive measure’—these are different levels. We will not fold them all into one sentence.”

The court master began to write.

Justice Arya dictated the order—“The supplementary application is taken on record. Such taking on record is purely procedural. The State shall within five working days place its proposed reliance schedule; the defence shall within three working days thereafter file specific objections. In the interregnum, the limits of the High Court order shall continue to operate. Nothing in this order expresses any view on the truth, admissibility or reliability of any material, or on the guilt or innocence of any party.”

Ananya’s pen slowed over the final sentence. She knew that this disclaimer was probably the most important part of the news—and the hardest part to make the headline.

The moment they stepped out of court, phones began to light up.

One news outlet—“Supreme Court restrains use of confidential evidence.”

Another—“Setback to State; ordered to give details within five days.”

A third—“Major victory for defence in offshore network case.”

Ananya read all three.

A message from Vineet arrived—“Now there is a headline: ‘State given five days.’”

Ananya replied—“The five days are for filing the schedule, not a penalty for non-compliance.”

“The reader will not see that distinction.”

“We are here to show it.”

Vineet called. “Ananya, understand the speed of news. If truth arrives ten paragraphs later every time, people will have read the first two lines somewhere else.”

Ananya was descending the court steps. “Then put truth in the first two lines.”

“The headline?”

She paused for a few moments. Reporters ahead were packing up their cameras.

“Supplementary application taken on record in pending matter; Supreme Court seeks classification of use of confidential material.”

“Far too long.”

"I will not shorten it by cutting the meaning."

"Supreme Court's new test for confidential material?"

Ananya considered it. "No test has been settled yet. A format has been called for."

Vineet let out a long breath. "Fine. Send what you think is right."

Ananya ended the call. There was no sense of victory inside her. Only a familiar fatigue. Defending truth was not always a heroic posture; often it was the labour of writing twenty words correctly instead of cutting five.

That night, when Vidyanand reached home, Shailaja was serving dinner. Two strips of medicine lay on the table.

Shailaja asked, "What happened today?"

Taking off his shoes, Vidyanand said, "The paper was accepted."

"A victory?"

He paused.

"No. The paper was accepted."

Shailaja smiled. "Even at home you answer as though you are in court."

A faint smile appeared on Vidyanand's face. "Today the distinction carried a great price."

After dinner his phone rang again. A message from Raghav Sethia—"The media says the Supreme Court questioned the State's confidential material. This is our victory. Say so strongly in tomorrow's statement."

Vidyanand kept looking at the message. The office arrears, Shailaja's treatment, the salaries of the young associates—all entered his mind for a moment. A pleased client could mean financial security.

He typed a reply—"The Court has sought procedural classification. There is no finding on the merits. Any public statement will remain within that boundary."

A little later came the answer—"Language this cautious hurts us."

Vidyanand placed the phone face down.

Shailaja asked, "Work?"

"Yes."

"Difficult?"

"The words are small. The difficulty is large."

Shailaja asked nothing further. She merely slid the cup of tea toward him.

Vidyanand lifted the cup. What came to mind was not a sutra of Gangesha Upadhyaya, but an old lesson of his profession—become the client's voice, but not the client's impulse.

The next morning work began on the State's reliance schedule. For every sealed entry, Malini placed three levels—"background only", "investigative direction", "basis of an adverse judicial proposition."

Aditya added a fourth—"not presently for use."

Malini asked, "Does that level mean the material is weak?"

"Not necessarily. Perhaps the summary is inadequate, disclosure is impossible for reasons of source protection, or independent corroboration remains outstanding. Record why it is 'not for use'."

She added a column for the reason.

First sealed entry—a third-party service provider's incident summary. Use: investigative direction. Limit: user identity not independently established. Open challenge: time period, nature of the session, possibility of a shared service.

Second—a payment intermediary's risk alert. Use: background. Limit: a risk flag is not a finding of crime.

Third—an excerpt from a recovered electronic mail. Use: not presently. Reason: sender identity and full context incomplete.

Looking at the third row, Malini said, "Until yesterday this used to sit under the label 'supporting material'."

Aditya asked, "And today?"

"Today—'not presently for use'."

"Has the material changed?"

"No."

"Our knowledge?"

"That has not changed either. Our words have."

"And by changing the words?"

Malini answered, "Its legal position became clear."

Aditya nodded. "That is where 'word' serves evidence."

The defence's specific objections ran to thirty pages. Vidyanand had not demanded complete disclosure for every entry. For some, he treated the source category as sufficient; for some, the time period; for some, a summary close to the original statement. For three entries he said the open summary was so compressed that an answer was impossible.

The Attorney General read the copy and said, "More restrained than I expected."

Devvrat said, "Perhaps more effective for that very reason."

Aditya remained silent.

Malini read the third disputed entry—“Witness unavailable; sealed summary uses the expression ‘systematic instructions’, open summary says ‘coordinated activity’. The defence does not know the original words or context.”

She immediately opened her own record. “My Lady—‘coordinated activity’ is in our summary. In the original statement, the witness said, ‘Messages would repeatedly arrive at the same time.’ ‘Coordinated’ is my interpretation.”

Silence fell in the room.

The Attorney General asked, “Why did you write it?”

“Because of the similarity in timing.”

“Independent support?”

“No.”

Malini’s throat went dry.

Aditya said, “Correct it. The original words, our interpretation, the limit—keep all three separate.”

Malini said quietly, “This is the third time a short summary of mine has created a larger meaning than the original.”

The Attorney General’s voice was not harsh. “That is why we are building a system. Not to blame an individual.”

Malini opened the correction register. She did not erase the original entry. Beside it she wrote—“‘Coordinated activity’ is analytical interpretation; original statement describes only similarity of timing; no independent corroboration.”

Devvrat asked, “Do we accept the defence objection?”

The Attorney General replied, “Where it is right, yes. The State’s credibility before the Supreme Court will be built not by protecting an error, but by identifying and correcting it.”

On the day of the next hearing, Ananya arrived much earlier than necessary. She knew the headlines had already been drafted. Four options were circulating in the newsroom—“Disclosure of confidential evidence?”, “Questions over State’s language”, “Supreme Court takes stern view”, “Victory for defence?”

She accepted none of them.

The Bench assembled. Before Justice Arya were two tables—the State’s reliance schedule and the defence’s objection schedule.

“We will not hear the merits today,” she said at the outset. “We will see whether words are enlarging or shrinking the right to challenge.”

Vidyanand rose. “My Lady, the State’s format is useful progress. But in three entries the open summary is more conclusory than the underlying material.”

The Attorney General said, “The State has already corrected one entry on its own.”

Justice Arya looked toward Malini. “Which one?”

Malini stood. “Serial number seventeen. Original statement—‘Messages would repeatedly arrive at the same time.’ Our earlier summary—‘coordinated activity’. ‘Coordinated’ was not the witness’s word; it was our interpretation. The revised summary separates the two.”

Vidyanand said, “The defence accepts that correction. But the question is systemic. ‘Supported’, ‘organised’, ‘coordinated’, ‘established’—such words may enter from outside the underlying material.”

Justice Arya said, “Then every open summary shall keep the ‘original statement’ and the ‘State’s interpretation’ separate.”

The Attorney General agreed.

The Bench asked about the second entry. “It says ‘reliable source’. Who made the determination ‘reliable?’”

Devvrat replied, “The investigating officer’s preliminary assessment in the case diary.”

“A judicial determination?”

“No.”

“Independent corroboration?”

“Partial.”

“Then ‘reliable source’ in the open summary reads as though the court has accepted the source’s reliability.”

Vidyanand said, “That is precisely the objection.”

The Attorney General himself said, “We propose to write: ‘source treated as reliable in the case diary; no judicial determination of reliability.’”

Justice Arya said, “More words, but less confusion.”

Ananya drew two lines beneath that sentence.

The next part of the hearing concerned “reliance”.

Vidyanand said, “The State labels five entries ‘background only’. Yet the chronology in its written response cannot be constructed without those five. If the narrative itself rests upon them, is that not reliance?”

The Attorney General replied, “A background narrative and an adverse proposition are not the same. Reliance for a judicial decision is a different matter.”

Justice Arya asked, “If background material constructs the whole story in the judicial mind, how can its effect be zero?”

Silence spread through the courtroom.

In Aditya's mind flashed an old lesson from Gangesha Upadhyaya's analysis of words—the word does not create only the meaning of a sentence; it also creates a web of expectancy and relation. But he remained silent. A court was not a place to deliver philosophy; it was a place to answer the question asked.

The Attorney General said, "Then the State proposes to divide 'reliance' into two levels—direct basis of decision and narrative background. The disclosure requirements for the two may not be identical, but narrative effect should not remain invisible."

Vidyanand immediately said, "The defence will respond to that division."

The Bench said, "It may. But one thing is clear—merely writing 'background only' cannot declare the effect of material to be zero. The Court will look at how it is actually used."

Malini added a new column beside "background"—"narrative effect."

Aditya asked softly, "One more?"

"Yes."

"The table is getting large."

"The facts are not getting smaller."

Aditya smiled.

◆
The final dispute concerned the word "sufficient".

Vidyanand said, "The State cannot itself decide sufficiency."

The Attorney General said, "Agreed. But the defence cannot make an automatic rule either: 'we have not received the original material, therefore the summary is insufficient.'"

Justice Arya asked, "Then the test?"

Vidyanand replied, "Can the defence understand the proposition alleged against it? Can it understand the source category? Can it offer an alternative explanation? Can it challenge the State's interpretation? If not, the summary is insufficient."

The Attorney General added, "And at the same time—would greater disclosure genuinely affect witness safety, third-party confidentiality, or an ongoing investigation? The Court must examine that side as well."

Justice Arya dictated—"Sufficiency is not merely a count of words; it is a balanced assessment of the capacity for meaningful challenge and legitimate interests of confidentiality."

Vidyanand said, "My Lady, 'meaningful challenge' is important."

The Bench immediately said, "Do not enlarge the word 'important' again, Mr Mishra."

A light laugh moved through the courtroom. Vidyanand smiled too.

"Accepted, My Lady."

The Bench continued dictating the order—"The State's reliance schedule is taken on record in preliminary form. Each entry shall, as far as possible, identify the original statement or a summary close to the event, the State's separate interpretation, the category of use, the limit, the status of independent support, and 'what this does not prove'. The effect of material shall not be treated as nil merely because it is labelled 'background'. The sufficiency of an open summary shall be assessed by considering both the capacity for meaningful challenge and legitimate confidentiality interests. Neither party shall cite this procedural arrangement as a conclusion on the merits."

As she wrote, Ananya paused over the final sentence. She knew that the most necessary piece of news that day probably lay in that last line.

◆
As soon as court rose, a senior correspondent in the corridor said to Ananya, "This is plainly a defence victory. The Court has imposed conditions on the State's schedule."

Ananya replied, "The State's format was taken on record; some defence objections were accepted; some questions remain open. The single word 'victory' cuts all that away."

"Then a victory for the State?"

"Not that either."

"You make news tasteless."

Ananya smiled. "A court is not a dining hall."

She went and sat in her corner. She wrote the first paragraph of the report—"The Supreme Court today, in the pending Special Leave matter, took on record the State's preliminary schedule for classifying the use of confidential material, while making clear that neither side may present the procedural arrangement as a conclusion on the merits."

The second paragraph—"The Bench directed that the 'original statement' and the 'State's interpretation' be shown separately, that the narrative effect of background material be identified, and that an open summary be sufficient to enable the opposing party to mount a meaningful challenge—subject to legitimate confidentiality interests."

The third—"In one analytical summary, the expression 'coordinated activity' added more meaning than the original witness statement; the State corrected it."

She stopped at that line. Was it necessary to name Malini Karna?

No. The error had become a systemic lesson; there was no need to turn an individual into the face of fault in the news. She wrote—"a State analytical summary."

A message from Vineet arrived—"Headline?"

Ananya wrote—"Confidential material: Supreme Court directs separation of 'original statement' and 'State interpretation'."

The reply came—"Long."

Ananya wrote—"I will not shorten the meaning."

A few moments later Vineet sent only one word—"Fine."

That evening Aditya and Malini returned to the office and worked on the next version of the schedule. It now had eight columns.

Malini laughed. "One day this will consume the full width of the page."

"Then make it two pages."

"Do you never value brevity?"

"I do. Less than I value freedom from confusion."

Malini stopped at serial number seventeen. The old words—"coordinated activity." The original statement—"Messages would repeatedly arrive at the same time."

"Adityaji, I felt ashamed because of that phrase."

"Good. But let it be useful shame—the kind that stops you next time."

"I was thinking—how often in computational analysis we see patterns. Two times match, three access addresses match, four payments fall within one period. The mind immediately begins to build a story."

"The mind's work is to build stories. Method's work is to test them."

"What would Gangeshha Upadhyaya have said here?"

Aditya was silent for a few moments. "Perhaps he would first have asked—whose word is it? From where does its force arise? What is the context? What did the hearer understand? But I will not put my sentence into his mouth."

Malini smiled. "You keep evidentiary limits even in philosophy."

"One must."

Aditya looked out of the window. Evening was descending. The colour of the distant sky had deepened. He remembered evenings in a Mithila village—his father listening to the news outside the veranda, and an old teacher saying, "Son, listen to what was said; do not add from yourself what was not said." Later, when he read Gangeshha, that sentence had acquired another meaning.

Today the court was applying the same discipline to modern sealed files.

At nine that night, Ananya's report was published. At first there was little reaction. Brighter headlines were spreading much faster.

At ten, a law-school researcher shared her article—"Important distinctions: filing is not finding; summary is not source; interpretation is not original statement."

Seeing the English line, Ananya wrote in Maithili in her notes—"Filing ≠ finding; summary ≠ source; interpretation ≠ original statement."

She looked at it for a few moments. Then she removed the "≠" signs and wrote the words in full—"Filing is not finding. Summary is not source. Interpretation is not original statement."

At that moment, words seemed more necessary to her than symbols.

As Vineet was leaving the newsroom, he stopped by her desk. "Today's readership is moderate."

Ananya said, "All right."

"Not disappointed?"

"No."

"Tomorrow no one will remember this subtlety."

Ananya looked at the Court's final line on the screen—"The procedural arrangement shall not be cited as a conclusion on the merits."

"If even one reader remembers that taking something on record is not a decision, it has served a purpose."

Vineet seemed about to say something, then stopped. "Go home."

"You?"

"Me too."

Together they began switching off the newsroom lights.

At the same time, Vidyanand was in his chamber writing notes for the next hearing. No new message had come from Raghav Sethia. Silence itself seemed an answer.

Vidyanand reopened the first page of his supplementary submission. He drew his pen through one line—"The High Court order inadequately protects the rights of the defence."

He struck out "inadequately" and wrote—"In relation to certain entries, the adequacy of protection requires examination."

The political effect of the two sentences was different. So was their legal meaning.

He looked at Shailaja's prescription, then at the paper. The financial crisis had not gone away. Nor had the client's dissatisfaction. But selling language at the price set by crisis would not save the profession.

Vidyanand made a note—"Full protection of client's interests; no claim outside the record."

Then he put down his pen.

The next morning, the certified copy of the Court's written order reached Aditya's desk. Some sentences had been more expansive during the oral hearing; the written order was shorter and more measured.

Malini asked, "For the record, do we use the oral wording reported in court or the written wording?"

"Ananya will write the news," Aditya said. "We will do the work of investigation."

"I mean in our record."

"The written order governs. The context of oral questions can be kept in a separate note, if necessary."

Malini read one line of the order—"Each entry shall separately identify source material and investigative interpretation..."

She stopped at once. "Shall I prepare a Maithili working summary of the English order?"

"Do, but do not let the translator's word alter the meaning."

"The order's term 'investigative interpretation'—should I retain it as that?"

"Yes. 'Judicial finding'?"

"'Finding'?"

"Look at the context. If it is a concrete determination by the court, 'judicial finding'; if it is a general fact found, another expression may fit. Do not flatten distinct uses into one word."

Malini laughed. "The touchstone of words has reached translation too."

"Where do words not reach?"

She began preparing the working summary of the order. Opposite each English legal term she wrote its Maithili equivalent, and beside it a short note—"semantic equivalence checked."

Aditya watched from a distance. A modern court order in English, an investigator thinking in Maithili, computational records, sealed sources, and Gangesha Upadhyaya's centuries-old question—how does a word give knowledge?

The question no longer lived only on the page of a book. It was alive in process.

By noon the new schedule was complete. One line had been added at the top—"This schedule reflects the investigation's present classification of use; it is not a judicial finding of guilt."

Malini asked, "This sentence on every page?"

"Yes."

"Is that not excessive?"

"What if each page is read separately?"

Malini immediately placed the line in smaller type at the bottom of every page, like a footer.

Aditya said, "And the version number?"

"At the top."

"Correction register?"

"Attached."

"Serial number seventeen?"

"Corrected, with the original preserved."

"Good."

Malini saved the file.

Aditya read the final page. It said—"Use: not presently. Reason: source identity incomplete; independent support outstanding; open basis for challenge insufficient."

He stopped at the word "insufficient".

"Is that not a word for the Court to decide?"

Malini thought. "We could write—"The State has not presently been able to prepare an adequate open summary; use therefore deferred."

"Clearer."

She changed it.

There were not fewer words. There was less confusion.

In the evening came Ananya's next short report—the State had filed the reliance schedule within five days; the defence would respond; the Court had not yet decided the merits. This time Vineet did not argue over the headline.

Ananya was surprised. "Nothing to say today?"

Vineet said, "Yesterday I understood something—the speed of a headline can sometimes outrun the news."

"Is this reform permanent?"

"Do not hope too much."

They both laughed.

Ananya published the report. Within minutes the brighter headlines began to spread again. Her article remained behind them.

As she closed the screen, she wrote one line in her notebook—“Truth speaks softly; the journalist’s work is not to make its voice louder, but to keep it clear.”

Before closing the office that night, Aditya opened his notebook. He wrote together four lessons from the beginning of this phase on words until that day.

“The words of a statement must not become larger than the statement itself.”

“The label of privilege must not replace the material’s actual purpose.”

“A seal does not increase truth; a case diary is not a conclusion.”

“Filing is not decision; summary is not source; interpretation is not original statement.”

After a few moments he added a fifth line—“The use made of the words of an order must not become larger than the words of the order.”

Night had deepened outside. Malini had gone. Only the faint smell of paper and the low sound of the computer remained in the room.

Aditya remembered the soil of Garh En Arikel in Mithila. After sowing seed, a farmer does not keep digging up the earth to see how far the sprout has grown. He waits—but not blindly. He reads the signs of season, water, soil, all of them.

Justice, too, needs movement, but not haste. It needs words, but words with their limits.

He closed the file.

In the next phase, counsel for the foreign operating group were preparing to attack this disciplined language as weakness. The touchstone of testimony would no longer remain only a question for the courtroom; it was about to become a weapon in a strategic war.

044 The Touchstone of Testimony — Chapter 5

The first light of dawn was settling over the glass-walled law office in Delhi. The defence team for the offshore gambling-operator group had been at work since the night before.

Across the table lay not thick briefs, but a list of words.

“Received.”

“Collected.”

“Copied.”

“Confirmed.”

“Connected.”

“Suspended.”

“Abandoned.”

“Accepted.”

Arvindnath Sen placed his thumb on the list. “Today we will argue not about images, but about verbs.”

Vidyanand Mishra was turning through the five files before him. His eyes were tired, but his attention remained fixed on each sentence.

Sen said, “In one record the State says ‘confirmed’; in another, ‘matched’; in a third, ‘corresponds with an independent source’. These three are not the same.”

“Correct,” Vidyanand said.

Sen looked at him. “Why do you agree so readily?”

“Because the three are not the same.”

Pranay Sood, the senior counsel for computational matters seated beside them, said, “Then the State’s inconsistency helps us.”

Vidyanand replied, “Where there is inconsistency, it may help. Where there are merely different words for different contexts, exaggeration will hurt us.”

Sen gave a faint laugh. “Your restraint again.”

“Restraint is not the enemy of a defence.”

At the other end of the table, a junior advocate had opened a new chart. Beside every important expression in the State’s last four judicial submissions, he had entered the page number.

“Look,” he said. “‘Administrative access’ seven times, ‘administrative control’ twice, ‘administrative role’ five times.”

Pranay Sood said at once, “There. That shows the State itself does not know what its material says.”

Vidyanand turned the page toward himself. “First look at the source. ‘Administrative access’ appears in the context of browser history. ‘Administrative control’ is a sentence from an early summary that was later revised. ‘Administrative role’ is a translation of a field-name in the record.”

“Then the original ‘control’ was wrong?”

“It was broader than the source.”

“Say wrong.”

Vidyanand fell silent. Then he said, “If the source shows only access and the summary wrote ‘control’, the sentence is wrong.”

Sen straightened away from the back of his chair. “Will you make that admission in court?”

“If the record supports it, yes.”

Pranay Sood said with displeasure, “Our client’s instruction is that we remain aggressive.”

Vidyanand looked at him with calm eyes. “Aggression is not a synonym for truth.”

For a moment, the room held only the sound of turning pages.

At last Sen said, “Very well. Then this is the strategy—the State’s words must not sit like an elder brother on the head of the evidence. No word larger than what the source says.”

For the first time, Vidyanand gave a slight nod. “On that point, we agree.”

◆
In the State’s legal room, Malini Karna was preparing a new chart. Its heading read—“Word–Status Correlation.”

First column—the expression used in the original source.

Second—the working Maithili meaning assigned by the investigative team.

Third—the expression used in an earlier submission.

Fourth—the present evidentiary value.

Fifth—what it does not prove.

When Aditya Jha entered, Malini tried to rise.

"Stay seated," Aditya said. "How far?"

"One hundred and forty-seven principal entries."

"That many?"

"There are many words. Fewer facts."

A faint smile came to Aditya's face. "That is not necessarily a bad thing."

Malini showed him one row. "Here the source field said 'admin'. The old working summary rendered it as 'administrator'. Then, in one submission, it became 'administrative control'."

Aditya paused. "Does the original record identify a person?"

"No. Only a role-name."

"Then even 'administrator' requires caution."

"I have written 'administrative-role indicator'."

"Better."

"And the old sentence?"

"Do not erase it. Keep it in the revision register—when it was written, and why it was changed."

Malini asked, "The defence will say the State keeps changing its story."

"Then show that it is not the story but the weight of the word that is being corrected. If we hide the error, their allegation will grow stronger."

Malini opened another row. "Here we used the word 'confirmed'. In fact, an external record from the payment gateway contains the same transaction number. But not the purpose."

"Then?"

"External match of transaction number."

"Good. What was 'confirmed' doing?"

"Making the sentence larger than its source."

Aditya said, "That is the greatest danger in words—they can enlarge a fact without writing a single false letter."

Malini noted: "Expansion of meaning is also an error."

She moved to the next row. "In one file: 'connected entity'."

"On what basis?"

"A common payment service, common web hosting, and one external telephone contact."

"Ownership?"

"No."

"Control?"

"No."

"Then 'connected' is vague."

Malini thought for a few moments. "Shall I write—'entity showing contact at three recorded points; ownership or control not established'?"

"Yes."

The chart grew heavier, while the language grew lighter.

Malini suddenly asked, "Sir, will the court not grow tired of so much precision?"

Aditya looked toward the window. "The court may grow tired. The boundary of truth does not disappear for that reason."

"And the defence will call all these corrections a weakness in the State's case."

"Let them."

"You are not afraid?"

Aditya remained silent for a few moments before answering. "I am. But fear does not permit us to increase the weight of a word."

Malini turned back to the screen.

At that moment a message arrived from the Attorney General's office—the defence had filed a new "word-consistency list", ninety-two pages long.

Malini looked up. "Ninety-two?"

Aditya said, "Do not count pages. Count questions."

"How many questions?"

"We will know when we have read it."

At the Home Ministry, the morning summary was placed before Shiveshwar Prasad. One adviser was excited.

"The defence has engaged nine senior advocates and several experts. The media is talking about it. We can say the operator group is frightened."

The Minister looked up at once. "No."

"But—"

"The number of advocates is not proof of fear."

"The public will take it as—"

"It is not the State's work to mislead the public."

Another officer said, "Then shall we say that the State's case is strong?"

Shiveshwar Prasad drank some water. "How many points has the court accepted?"

"Procedurally, the hearing is continuing."

"Then on what basis do we say 'strong'?"

The officer fell silent.

The Minister wrote on his note-sheet: "Expensive defence team = exercise of a right; not an indicator of guilt."

Then a second line: "State restraint = not weakness; a condition of judicial credibility."

The Secretary asked, "Any particular instruction for the legal team?"

"Yes. If the defence identifies a genuine error in wording, accept it. But do not assume that one error in a word automatically destroys unrelated sources. Second—no political statement should outrun the vocabulary used in court."

"The media?"

"Procedural information only."

The adviser said again, "Minister, the opposition may gain politically from this."

Shiveshwar Prasad said without smiling, "If the court's confidence survives, political days can return. If confidence is lost, no language of victory will save anything."

He closed the file.

The fear within him had not vanished. If a case this large failed, the government would face questions; if there was excessive interference, the court's trust would be damaged. Between those two millstones, his task was not to write the result, but to keep the process from being contaminated.

The corridors of the Supreme Court were unusually crowded. The defence side formed a long row, but today what stood out more than the number was the division of work. Different advocates held different files—statements, computational records, payments, confidentiality, privilege, translation, version history.

Ananya Kashyap watched the scene from a distance. Her colleague Vineet whispered, "Headline ready—'Nine Senior Advocates versus the State'."

Ananya looked at him. "Is this a judicial question or a wrestling match?"

"The spectacle is attractive."

"A spectacle is not evidence."

Vineet laughed. "You are beginning to speak like Aditya Jha."

"Then at least something has been learned here."

The courtroom opened. The Bench took its seats. Justice Arya looked at the record, then toward the row of defence counsel.

"Today we will not comment on the number of advocates. Everyone has a right to be heard. But no repetition."

Arvindnath Sen rose. "My Lords, our point is not numbers. It is the State's language."

"Proceed."

Sen opened the chart before him. "In four different records, the State has used four expressions for the same computational material—'received', 'collected', 'copied', and 'secured'. Those words alter the procedural stage."

The Bench looked toward the Attorney General.

The Attorney General said, "Some contexts are different. But where inconsistent words were used for the same material, the State has filed a correction chart."

Sen said at once, "Meaning the State admits that its earlier language was unreliable."

Vidyanand Mishra shifted slightly in his seat.

The Attorney General replied, "The State admits that at two places the wording was broader than necessary. 'Unreliable' would be the court's conclusion, not the State's admission."

Justice Arya said, "Let us make the first test clear. 'Incorrect wording' and 'unreliable material' are not the same thing. The defence must show what effect the error in wording has upon the provenance, integrity, or meaning of the material."

Sen bowed his head. "That is exactly where I am coming."

He lifted a page. "The initial summary—'indicator of administrative control'. The later summary—'administrative-role indicator'. The State now says that the original field contained only the label 'admin'. Is that not a fundamental change?"

The Attorney General looked toward Malini. With permission, Malini rose.

"The original record contained a role field. The initial working summary used 'administrative control', which was broader than the source. It was revised to 'administrative-role indicator'. The original record remains unchanged; the old summary is also preserved in the version register."

Sen asked, "Why did anyone write that broader expression?"

Malini paused for a moment. "It was an initial interpretation by our team. The necessary limitation was not added."

"Meaning the investigation was driven by a presumption?"

"Meaning one expression in one working summary was too broad."

"Did you write that expression?"

"Yes."

A faint rustle ran through the courtroom.

Sen said, "So the young analyst herself accepts that her word was larger than the evidence."

Malini replied, "Yes. That is why it was corrected."

For a few moments Sen was silent. Perhaps he had not expected so direct an answer.

Justice Arya asked, "The original version is available?"

"Yes."

"Date of revision?"

"Yes."

"The reason for the change recorded?"

"Yes."

"Then the court will keep two questions separate—first, whether the initial wording reveals bias; second, what independent evidentiary value the original material has. The two will not be merged."

Sen said, "Agreed. But we will show whether that initial bias affected the investigation as a whole."

"Show it. Do not infer it."

Pranay Sood, the defence's second senior advocate, rose. Before him was the payment chart.

"The State described one transaction as a 'confirmed payment'. It now says 'external match of transaction number'. This is not merely a change in style."

The Attorney General said, "The State relies on the present formulation. The external source shows the same transaction number and amount; it does not establish purpose or the beneficiary's criminal knowledge."

Sood said, "Then was writing 'confirmed payment' earlier not misleading the court?"

The Bench intervened. "At what stage did that sentence appear?"

"In an investigative summary."

"In a judicial affidavit?"

"A part of it was quoted there."

The Attorney General said, "And the limitation was expressly stated in the revised filing."

Justice Arya said, "State, make a rule for the future. Never use the word 'confirmed' by itself. State what has been confirmed—the number, amount, time, source, person, or purpose."

Malini noted it immediately.

The Bench continued, "A match of one particular thing does not increase the truth-value of another particular thing. If 'confirmed' has no object, the possibility of confusion is greater."

Vidyanand Mishra underlined the sentence on his paper.

Sood raised the next point. "The State says 'connected entity'. What is the nature of the connection?"

The Attorney General replied, "Three recorded points of contact. The State does not allege ownership or control."

"Then why 'connected'?"

"An imprecise expression in an older summary. It has been removed from the current summary."

Sood smiled. "At this rate the State's entire case will become a dictionary."

Justice Arya said calmly, "If words alter the weight of facts in the case, a dictionary is not useless."

A faint laugh rose in the courtroom and died at once.

Another member of the Bench said, "In law, ambiguity is not a convenience. Whether State or defence—'connected', 'controlled', 'ownership', 'access', 'use'—each is a separate proposition."

Sood said, "That is our objection."

The Attorney General replied, "And the State's answer is that where the boundary is real, the State accepts it."

During the midday recess, Vidyanand stood in a quiet corner of the corridor. Sen came to him.

"Satisfied?"

"With what?"

"The State withdrew three of its words."

"Not withdrew. Limited them."

Sen laughed. "Are you appearing for the defence or teaching language?"

"I am serving the client's interest. That is why I will not spoil what we have gained by calling it a greater victory than it is."

Sen's face became serious. "Raghav Sethia sent a message this morning. He wants a 'complete collapse'."

"The court did not say complete collapse."

"Client morale also matters."

Vidyanand said nothing. He remembered Shailaja's medical expenses. The fee from this case was bringing real relief to his private crisis. But he could not accept false exaggeration in court as the price of that relief.

Sen said softly, "Sometimes professional dignity and a client's expectation do not move in the same direction."

For the first time, Vidyanand looked at him closely. “That is when an advocate is tested.”

“And if the client replaces the advocate?”

“Then let him.”

Sen said nothing.

Two minutes later, a message flashed on Vidyanand’s phone: “Need decisive attack today. Turn every State correction into an admission.”

He read the message, closed it, and did not reply.

After lunch, the hearing turned to computational terminology. Pranay Sood displayed four expressions on a screen.

“Secure-access indicator.”

“Access history.”

“Administrative session.”

“User activity.”

He said, “The State combined these four expressions into a narrative of control by a particular person.”

The Attorney General replied, “In its present submission, the State does not say that control by a particular person is proved.”

“But the investigation diary?”

Aditya Jha rose. “The diary records a hypothesis. Not an evidentiary conclusion.”

Sood said, “Then what does ‘administrative session’ mean?”

Aditya looked toward Malini. With permission, Malini answered, “In the web-service record, it is a role category. It shows that at the relevant time a session marked with that role was active. It does not show which physical person was the user.”

“‘User activity’?”

“A system classification. Not identification of a person.”

“Secure-access indicator?”

“Stored authentication-related markers in the computational material. By themselves they do not establish the time of use, the user, or authority to use.”

Sood changed the question. “Then what use are any of these?”

Malini said, “They help frame questions about time, system, role, and recorded sequence. Identification of a person requires independent material.”

Justice Arya asked, “Did the State’s first summary contain the sentence ‘administrative access established’?”

Malini checked the page. “It appeared in one preliminary presentation.”

“And now?”

“Session marked with administrative-role recorded.”

“The difference?”

“The first sentence more readily suggests a person or control. The second stays within the actual boundary of the source.”

The Bench said, “In this case, a word is not merely a description; it is a doorway to inference. Widen the doorway, and a conclusion may slip in silently.”

The memory of Gangesha Upadhyaya flashed through Aditya’s mind. Denotation, semantic power, intention—not formulas in a book, but a living problem in the record before him.

The Bench looked at Aditya. “Investigating officer, what rule has your team now adopted?”

Aditya replied, “The original expression, the working meaning, the investigative interpretation, and the possible conclusion are kept in four separate fields. If the original term is foreign or technical, no claim is made beyond its literal meaning without further support. A version register is being maintained.”

“The older erroneous versions?”

“Preserved.”

“Why?”

“So the court can see when the language changed and why. Correction does not mean erasing history.”

Justice Arya nodded. “Good.”

The defence’s third senior counsel, Meera Kohli, rose on the question of translation.

“My Lords, the State has used Maithili and Hindi working summaries of several foreign records. The translation of the same term has changed. If the translation is not stable, how can the court rely on meaning?”

The Attorney General said, “The original records are available. The working summaries are for convenience only.”

Kohli said, “But investigators took decisions after reading the working summaries.”

Aditya replied, “Working summaries were used for initial screening. The original source was revisited for important conclusions.”

“In every instance?”

Aditya paused. “For all principal points presently before the court, re-verification is being completed. Two older lines were found to require correction.”

Kohli said at once, “Meaning there is no complete reliability.”

“Meaning verification was continuing, and when errors were found, the corrections were recorded.”

The Bench asked, “State, if the original term has more than one possible meaning?”

Malini replied, “The working summary should show the alternatives; one meaning should not be written as certain.”

“An example?”

Malini opened a page. “One field contained the term ‘hold’. Initially it was rendered as ‘payment stopped’. But in the technical context it was a temporary status, not a legal restraint. It now reads ‘temporary hold status’, with the original term and context.”

Kohli said, “That is not a small distinction.”

Malini replied, “Correct. That is why it was changed.”

A member of the Bench said, “Record that answer. Admitting an error is not the end of credibility; concealing an error may be.”

Vidyanand Mishra slowly stopped his pen. The sentence was not wholly favourable to the defence, but it seemed right to him.

The next part of the hearing grew sharper. Sen rose again.

“The State repeatedly says—‘the present submission’. Can the State bring new language to every hearing and escape responsibility for the old?”

The Attorney General said, “No. That is precisely why the version register has been filed.”

“Then we ask the court to treat every earlier overbroad expression as an admission against the State.”

Justice Arya asked, “An admission of what?”

“Bias, exaggeration, and an unreliable investigation.”

“All three, on the basis of one word?”

“Words reveal thought.”

“Sometimes. But one must also examine context, author, time, and source.”

Sen said, “If an investigator writes ‘control’, then there was a hypothesis of control in his mind.”

“Is having a hypothesis prohibited?”

“No, but—”

“Then the question is whether that hypothesis was imposed on the evidence or kept for testing. Show the effect through separate material.”

Sen opened a file. “We will show that certain summons were issued after that hypothesis appeared.”

The Bench showed immediate interest. “The basis for those summons?”

Sen said, “The investigation diary and the earlier summary.”

The Attorney General replied, “Independent reasons are recorded for each summons.”

Justice Arya said, “Very well. Then the next stage moves from words to foundations. We want a clear sequence: which summons was issued on what material, what was sought, and what was received.”

Aditya made a note.

Sen said, “And the forensic image?”

The Bench said, “That too. Merely saying ‘image’ is not enough. Image of what, when created, what the original medium was, which hash matched what, how custody moved—everything.”

In a single moment, the full burden of the next hearing became clear before Aditya.

The court rose for a short adjournment. In the outer passage, reporters surrounded the defence’s senior advocates. Sen offered one formal sentence as he left—“The court is raising important questions about the precision of the State’s terminology.”

Within minutes, on social media the sentence had changed into—“Court questions the State’s entire investigation.”

Ananya saw both lines on her phone.

Vineet said, “This time there really are ‘important questions’.”

“Yes. But the court did not say ‘entire investigation’.”

“Headline?”

Ananya wrote—“Supreme Court directs clarification of the relation between terminology and source; next hearing to examine summons, forensic image, hash, and chain of custody.”

Vineet read it. “Long.”

“Do not cut meaning merely to shorten a fact.”

“The reader?”

“Whoever reads it will not read something inaccurate.”

In the first paragraph of her report, she wrote that the defence, through a large team of senior counsel, had raised detailed objections to the State’s use of words, but that the number of advocates was itself no evidence of anything.

Vineet asked, “Is that last sentence necessary?”

Ananya said, “Especially today.”

When the evening summary reached the Home Ministry, an officer said, “The media is saying the court made the State change the language of its investigation.”

Shiveshwar Prasad read the page.

“The court clarified the limits of certain words. That is a different thing.”

“Should we issue a clarification?”

“No, not if the written order has not yet come.”

“But the defence will fill the vacuum.”

“It is not the State’s job to fill every vacuum with publicity.”

The Minister told the Secretary, “Ask the legal team only one thing—whether the original summons, image-creation records, hash comparison, and custody register are complete for the next hearing. I want the answer as facts, not adjectives.”

The Secretary wrote it down.

The Minister added, “And the media statement—‘The matter is sub judice; the State will place the records in accordance with the court’s directions.’ Nothing more.”

A political adviser was dissatisfied. “Such language looks weak.”

Shiveshwar Prasad said, “Before the court’s confidence, appearing strong is not necessary; remaining credible is.”

His voice was not loud, but the debate in the room ended.

When Vidyanand returned to his office that evening, Raghav Sethia called.

“What happened today?” Raghav asked.

“Some of the State’s wording was limited. At the next hearing the court will examine four chains of foundation.”

“So the State’s case is collapsing?”

“No.”

Silence on the other end.

“Sen sahib said it was a major success.”

“We gained some important points. The court did not say ‘collapsing’.”

Raghav’s voice hardened. “I am spending this much, and you are correcting my words?”

Vidyanand closed his eyes. “I am defending you. False reassurance is not a defence.”

“And if I want more aggressive representation?”

“That is your right.”

“Are you telling me to change counsel?”

“I am telling you I will not describe the court’s order as larger than it is.”

Raghav ended the call.

Vidyanand sat motionless for a few moments. Shailaja’s list of medicines lay at a corner of the table. Beside the figures of those expenses, professional ideals could sometimes seem abstract. But today he understood with complete clarity—if one sold one’s words, what remained of an advocate?

In his notebook he wrote: “The client’s fear will not write the lawyer’s language.”

Then he set down his pen.

That night, in the State’s room, four files were placed on four separate tables.

First—the summons.

Second—the forensic-image creation records.

Third—the hash-comparison register.

Fourth—the chain-of-custody register.

Malini said, “All day we argued about words. Tomorrow they will ask for the foundation beneath those words.”

Aditya picked up a summons. “First question—who was this issued to?”

“To the service provider.”

“What was sought?”

“Time-limited access records, available customer-registration details, and external payment-related references.”

“What was not sought?”

Malini read the page. “Private legal correspondence. Material belonging to unrelated clients.”

“Good. Second—what was received?”

“Not everything that was sought.”

“Begin there. The word ‘received’ must not conceal what was unavailable.”

Malini nodded.

She opened the forensic-image record. “Here it says ‘complete image’.”

Aditya asked at once, “Complete in what sense?”

Malini paused. “A bit-level copy of the medium.”

“Then write that. Not ‘complete’ by itself.”

“The hash?”

“Write what was compared with what.”

“Custody?”

“When it was in whose hands, where there were intervals, where signatures are present, where there are discrepancies—everything.”

Malini gave a faint, tired smile. “The touchstone of words has finally reached the register.”

Aditya said, “Without a register, words can remain only claims.”

After a few moments he added, “And without words, a register is difficult to verify.”

Outside, the night had deepened. Beyond the glass lay the lights of the city; inside, four files.

Aditya remembered an old scene from Garh En Arikel—while measuring paddy, his grandfather would fill the measuring vessel and level the grain at the top with his hand. Too much grain benefited the buyer, too little the seller; but a measure had to remain a measure.

Gangesha Upadhyaya’s reflection on words rose in his mind in a simple form—understand a sentence to say exactly as much as it says; neither less nor more.

Malini asked, “Sir, do you regret the error I admitted in court today?”

Aditya looked at her. “Regret for an error is useful only when it makes the next line clean.”

“And the fear?”

“It will remain.”

“The defence will say we kept changing.”

“Then show the versions. What changed, and why. What did not change, show its source.”

Malini placed one slip on each of the four files—“Not the claim; show the foundation.”

Aditya read them.

“This time you chose the right words.”

Malini smiled.

In the last hour of the night, a written message arrived from the Attorney General’s office—the Bench wanted, at the next hearing, the sequence of the summons, the forensic images, the hash chain, and the custody register in particular.

Aditya read the message and placed the files in a single row.

The fifth test of testimony was not over; it had opened the door to its foundation.

The next question was now clear—when a document says, “this material came from here,” how is that statement itself to be proved?

045 The Touchstone of Testimony — Chapter 6

Before dawn, Aditya Jha reached the office. The four files that had been kept separately through the night now lay on a single table, but to him they were not four objects; they were four kinds of statement.

The first file said what had been sought from whom. The second—what copy had been made from which medium. The third—which hash of which computational portion matched which other portion. The fourth—when the object had remained where, under whose responsibility, and in what condition.

Malini Karna opened a new table. Across the top were four headings—“What the record says,” “What the record does not say,” “Source,” and “Limit.”

Aditya read it and said, “This time, no adjective comes first.”

Malini smiled. “Yesterday the court took account of our adjectives.”

“Today it will take account of the nouns.”

She opened the first summons. Date, service provider, category sought, time-limit, excluded material—each appeared on a separate line.

Malini asked, “At one place it says ‘all available records.’ Is that not another oversized phrase?”

Aditya looked at the line. “Read the context.”

“‘All available records’—within the specified account identifier, specified period, and specified service category.”

“Then in the summary, ‘all’ must not go alone. Its whole boundary must go with it.”

Malini corrected it—“Available records within the specified limits.”

Aditya nodded. “Do not cut the word; add its boundary.”

The Supreme Court courtroom was full. Arnav Sen, senior counsel for the defence, was already prepared. Before him lay five copies of the summons and a colour-marked table.

The Bench sat. Justice Arya said without preface, “Yesterday we stopped at the limits of words. Today we will examine the foundation. First—the summons.”

The Attorney General signalled to Aditya.

Aditya rose. “May it please the Bench, the State places before the Court the original summons, the record of transmission to the service provider, acknowledgment of receipt, the response, and a separate list of what was sought but not received.”

Sen said at once, “The State is now adding ‘what was not received.’ That did not appear in the earlier summary.”

Aditya replied, “The earlier summary was incomplete. The original summons and original response were always on record. The summary has now been prepared with the limits stated.”

Justice Arya asked, “Is there a distinction between an incomplete summary and an incomplete original record?”

“Yes. The original record is preserved in full; in the summary, the categories not received were not made explicit within the word ‘received.’”

“Then what is today’s first lesson?”

Aditya answered, “If we say ‘received,’ we must write—what was received, from whom, when, and what was not received.”

Another member of the Bench said, “Correct. The word ‘received’ is incomplete without identifying the source.”

Sen lifted the first summons. “Here, ‘all related access records’ were sought. Which officer decided what ‘related’ meant?”

Aditya said, “The next sentence of the summons defines it—a specified account identifier, a period of three months, and two kinds of authentication event.”

Sen said, “But the headline is broad.”

“Yes. For that reason, in the revised form the limits are repeated in the headline as well.”

“So the first form was defective?”

“It was imprecise, but its operative limits were written in the next sentence.”

Justice Arya asked, “Does the State know which sentence the service provider read when it responded?”

“Its response quotes the three-month period and the specified account identifier. From that, it appears that the limited request was understood.”

“‘Appears’ is the proper word. You are not proving the service provider’s state of mind.”

“Yes, My Lords.”

In her notes, Malini struck out “was understood” and wrote “the response quotes the limits.”

Sen moved to the second summons. “Here the State asks for ‘customer-identification records.’ Could that phrase have brought in legal advice, private correspondence, or details concerning unrelated persons?”

Aditya opened the original page. “No. The annexure contained express exclusions—legal-advice material, communications of unrelated customers, and private records unconnected with the specified account were not sought.”

Vidyanand Mishra rose. “But the service provider sent an additional attachment, one part of which lay outside the boundary.”

Aditya answered immediately, “Yes. That portion was placed in a segregation folder, outside the investigative team’s ordinary access.”

Vidyanand asked, “Was it used to frame any question?”

“No.”

“How is that established?”

Aditya looked toward the Attorney General. With permission, he said, “The segregation register, access log, and certified note of the reviewing officer are on record.”

Justice Arya asked, “The State will not say that the register by itself proves innocent use of the material. Correct?”

“Correct. The register shows only who had recorded access. If the defence demonstrates some other use, that would raise a separate question.”

Vidyanand nodded. “I have no objection to that limitation.”

Sen looked at him for a moment but said nothing.

The Bench dictated a sentence for the draft order—“The legality of the summons, the scope of the response, and the evidentiary value of material received in the response shall be treated as three separate questions.”

It seemed to Malini that yesterday’s “word” was today, in truth, opening into three different roads.

◆
In the second stage, the file relating to the forensic image was opened.

Pranay Sood rose. “The State has written ‘complete image’ at several places. Is this an image of the entire server?”

Malini sought permission to answer.

Justice Arya said, “Answer.”

“No. It is a bit-level copy of the seized solid-state medium. It is not an image of the entire remote server, cloud storage, or external payment system.”

Sood said, “Then the word ‘complete’ is misleading.”

“If the source medium is not named, yes.”

“Did the State name it?”

“In two early summaries it said only ‘complete image.’ The acquisition record always contained the medium number, capacity, start and end times, and acquisition method.”

“And now?”

“Now it says, ‘complete bit-level copy of the specified solid-state medium.’”

Justice Arya said, “So completeness is relative to the medium, not to the case as a whole.”

“Yes.”

“Let that sentence be recorded.”

Sood put the next question. “What was the condition of the original medium when the image was made?”

Aditya answered, “It was read through a write-blocking device. The device identification, functional test, start time, end time, and acquisition hash are recorded.”

“Failure of the write blocker was impossible?”

“I would not say impossible. The pre-use test is recorded as successful; the defence may examine the device-testing record if it wishes.”

Sood was silent for a moment. “You said ‘not impossible’?”

“In a technical process, it is not proper to speak of zero possibility.”

A member of the Bench said, “That answer is more useful to the Court than an adjective such as ‘completely secure.’”

Malini remembered a sentence from an old training manual—“A reliable process states its limits.” Today that sentence had become lived experience.

◆
Arnav Sen rose again. “Now the hash. The State repeatedly says—the hash matched. People hear that and think—the truth has been proved.”

The Attorney General said, “The State clarifies today that a hash match is a statement concerning the integrity and sameness of material, not the truth of its contents.”

Sen looked at Aditya. “Investigating officer, if a record contained a false statement and its hash still matches today, does the false statement become true?”

Aditya answered without hesitation, “No.”

A faint stir passed through the courtroom.

Sen asked, “Then what does a hash prove?”

“Within the specified comparison, it shows whether the computational portion at the time of calculation is the same or not. It does not prove the author of the contents, their purpose, factual truth, or a crime.”

“And if the hash of the original medium matches the hash of the image?”

“Then, at that point of acquisition, it supports a statement of bit-level sameness.”

“And after that?”

“For every material stage at which a copy is used, the separate hash or version record should be examined.”

Justice Arya asked, “In this case?”

Malini presented a table. “Three levels have been kept separate: original medium to image, image to working copy, and working copy to extracted records. Not every extracted record shares the hash of the original medium; each has its own hash.”

Sen said, “That is important. Earlier, at one place, the State wrote ‘the hash chain is intact.’”

Malini replied, “That sentence was too broad. It now says, ‘hash match at the specified copying stage.’”

“Another correction.”

“Yes.”

“How many corrections will you make?”

Malini was silent for a few moments, then said, “As many as are necessary. We will not enlarge a limit merely to save a word.”

The courtroom became utterly still.

Vidyanand Mishra lifted his eyes from the papers before him. The answer was not convenient for the defence, but professionally, he liked its simplicity.

◆
The Bench stopped at one line of the hash table.

Justice Arya asked, “Why did the hash of one extracted spreadsheet change the next day?”

Malini found the page. “On the first day, there was the original extracted copy. On the second day, the column headings were locally transformed for analysis, so the hash of the working copy changed. The original extracted copy remains preserved unchanged.”

Sen said immediately, “So the analyst altered the material.”

Malini replied, “The display headings in the working copy were changed; the original cell values were not. But yes, the working copy changed at the bit level, and therefore it has a new hash.”

“Did the State write this in the earlier report?”

“The version number was in the annexure; it was not sufficiently clear in the principal statement.”

Justice Arya said, “Do not conceal this on the assumption that it is a small matter. Original, extracted copy, working copy, and presentation copy—the four names must remain distinct.”

Malini said, “Accepted.”

The Bench asked again, “Did the transformation of the headings alter the original meaning?”

“In my testing, no; but the defence may independently compare them. Both the original and the working copy are available.”

Sen said, “We will.”

“Do so,” Justice Arya said. “That is why the source is preserved.”

A strange quiet settled inside Aditya. The questions were sharp, but the process was doing its work. No one was compelled to trust his belief; the record could be tested.

◆
After the midday recess, the custody register was brought in.

Meera Kohli rose. “The word ‘transferred’ appears six times in the State’s register. On every occasion, did the physical object move from one place to another?”

Aditya looked at the register. “No. On four occasions the physical location changed; on two occasions responsibility changed while the object remained in the same secure storage.”

“So one word was being used in two senses?”

“In the old form, yes.”

Kohli said, “That is a serious ambiguity.”

“Yes, an ambiguity for reading the register. That is why it should be read with the supporting records.”

“Could it conceal a break in custody?”

Before answering, Aditya turned the page. “As a general question of possibility, the answer may be yes; in these two specific entries, the physical location did not change, as shown by the storage register and access log.”

Kohli said, “So the State does not rely on its own register alone.”

“Not on any one register alone. Custody is a sequence—entry, seal, location, access, signature, time, and where there is a discrepancy, a note explaining it.”

Justice Arya asked, “Were the words in those two entries corrected?”

“The original register was not altered. An explanatory annexure says, ‘change of responsibility; physical location unchanged.’”

“Good. No retrospective correction of the original record. A separate explanation.”

Kohli lifted the next page. “Here the time is 22:14. The next signature is 22:37. A gap of twenty-three minutes.”

The courtroom fell silent again.

Aditya said, “During that interval, the object was in a sealed transport case. Vehicle departure was 22:16, entry into secure storage 22:34, and the register was signed at 22:37. The transport record and entry register are annexed.”

Kohli asked, “Does the hash prove that the object was not changed during those twenty-three minutes?”

“The hash supports a statement about sameness of the later image; the hash alone does not tell us what happened during those twenty-three minutes. For that, the seal number, transport register, entry record, and physical inspection must be examined.”

“So the hash is limited again.”

“Every item of evidence is limited to its own question.”

Justice Arya stopped her pen and looked at Aditya. “Repeat that sentence.”

“Every item of evidence is limited to its own question.”

The Bench said, “Let it be recorded.”

During the lunch recess, Ananya Kashyap sat on the steps outside, collating her notes. Vineet showed her a headline —“Hash Broken, State’s Evidence in Crisis.”

Ananya shook her head. “Where was the hash broken?”

“The hash of the working copy changed.”

“The reason is recorded, the original is preserved, and the Court gave an opportunity for testing. That is not ‘hash broken.’”

Another headline appeared—“State Admits Twenty-Three Minutes Vanished from Custody.”

Ananya said, “Time did not vanish. There are twenty-three minutes between two signatures in the register; there are transport and entry records. This is an interval under examination, not a void.”

Vineet asked, “Your headline?”

Ananya wrote—“Court Examines Source Sequence of Computational Material; Directs Separate Treatment of Evidentiary Value of Hash, Copy, and Custody.”

“Long again.”

“The case is not short.”

In the first paragraph she added—“The Court has not yet reached any conclusion on guilt or innocence; the hearing remained confined to the limits of documentary language and source sequence.”

Vineet said, “That sentence will reduce the sensation.”

“Then it stays.”

After the recess, Sen sharpened his tone.

“May it please the Bench, listen to the State’s own account—an imprecise summons, altered wording, a new hash, and the word ‘transferred’ carrying two meanings. Taken together, do these not show that the investigation is unreliable?”

The Attorney General rose, but Justice Arya looked at Aditya. “Officer, would you like to answer?”

Aditya said, “Each error carries its own weight. I am not dismissing any error as small. But adding all errors together into one large conclusion is proper only when their causal relation is shown.”

Sen said, “That is the language of defence.”

“It is the language of classification.”

“You are defending your investigation.”

Aditya was silent for a moment. “I am preserving the record—what is correct, as correct; what is inaccurate, as inaccurate; what is incomplete, as incomplete.”

For a few moments no sound rose in the courtroom.

Sen said again, “Is it not your objective to secure a successful prosecution?”

Aditya answered, “My objective is to present a verifiable investigation. The outcome lies within the Court’s domain.”

Vidyanand Mishra lowered his eyes slowly. He understood that this answer would not be easy to attack.

Justice Arya said, “The Court is not, at present, issuing a certificate of integrity to the investigating officer. We will examine the method. Not words—the record.”

Aditya said, “That is all that is required.”

The Bench now asked for a consolidated summary of all four files. Malini opened the lines one by one on the display.

First—“Summons: shows the lawful source and scope of the request; does not prove the truth of the response or guilt.”

Second—“Forensic image: provides a copy of the specified medium; does not prove completeness of external systems or truth of contents.”

Third—“Hash match: tests the sameness or integrity of the specified computational portion; does not prove author, purpose, legality, or crime.”

Fourth—“Custody register: shows the recorded sequence of handovers, locations, and times; does not by itself prove guilt, and any discrepancy requires separate examination.”

Sen said, "Every line of the State's summary is now full of 'does not.'"

Malini replied, "Stating a limit is not weakness."

Justice Arya asked, "By combining these four foundations, what can the State say?"

Aditya answered, "That specified material was requested or acquired from specified sources through a lawful process; the integrity of certain computational copies can be tested; a recorded chain of custody is available; and further questions may be framed on that basis. Independent material will still be required for the guilt, knowledge, purpose, ownership, or control of any particular person."

A member of the Bench asked, "And if five visual points come from three source-groups?"

"Then we will not call them five independent supports."

"Correct."

Justice Arya began writing the order.

The old dispute over analogy returned to Aditya's mind, but today the distinction was clear. Then the question had been—how far can similarity carry us? Today the question was—how far may the words of a record not travel beyond the boundary of their original source?

The order was read. The Court clarified four points.

"One—the language of a summons shall be read with its lawful basis, scope, time-limit, exclusions, and actual response."

"Two—terms such as 'complete image' shall not be used without identifying the source medium; completeness may be relative to the medium, not to the system as a whole."

"Three—a hash match is a technical test of integrity or sameness; it is not, by itself, proof of the truth of contents, authorship, purpose, or guilt."

"Four—a custody register shall record handover and preservation; the original entry containing an ambiguous term shall not be destroyed, but shall be presented with a separate explanation and supporting records."

The Bench added at the end, "Neither side shall describe a correction in wording as, by itself, an admission of guilt or proof of innocence. Its effect shall be assessed according to the material."

Sen said, "Our objection is reserved."

The Attorney General said, "The State will comply."

Justice Arya looked at Aditya. "Officer, the next report must follow these four limits."

"Yes, My Lords."

The Bench rose.

Outside in the corridor, reporters surrounded them again. Someone asked, "Did the State win?"

The Attorney General replied, "The Court clarified procedural limits."

Another asked, "Did the defence lose?"

Vidyanand Mishra said, "The Court has kept the process of examination going."

Ananya wrote down both answers. To her, the correct news of the day was simply that both sides had avoided the language of victory.

Aditya slipped out behind the crowd. Someone stopped him and asked, "Sir, after so many questions, are you satisfied?"

He did not stop. He said only, "Read the record."

As he descended the steps, he found no surge of victory within himself. Some words had been corrected, some weak points had been exposed, some foundations had held. The Court had not accepted his story; it had made his method capable of being tested.

That seemed to him more valuable.

When the order reached the Home Ministry, Shiveshwar Prasad read the complete copy. An officer said enthusiastically, "Sir, the Court accepted all four of the State's foundations."

The Minister stopped him at once. "Do not write that."

The officer was startled.

"The Court defined the limits within which the four foundations may be used. To write 'accepted' would be the same error again."

The secretary changed the wording.

The Minister said, "The summary should also state this—the hash does not prove the truth of the contents; custody does not prove guilt; a summons does not prove the truth of the response."

The political adviser asked, "Will so many 'does nots' not make the State look weak?"

Shiveshwar Prasad replied, "What the Court said is not weakness. What we exaggerate—that is weakness."

Again, he sent no congratulatory message to Aditya. Through the secretary he dictated only—"The four limits stated in the order shall be applied in the next presentation."

Aditya read the message and smiled. This was the kind of message he found appropriate.

By night the office was almost empty. Malini was still seated there. The four files again lay on the table, but now each bore a new slip.

“Summons—the limit of the request.”

“Image—the limit of the medium.”

“Hash—the limit of sameness.”

“Custody—the limit of the handover record.”

Malini said, “Sir, what the Court accepted today does not mean that we were right?”

Aditya looked toward the window. “The Court did not give us a certificate that we were right. It said—test it this way, speak of it this way.”

“Then what is victory?”

Aditya thought for a few moments.

He remembered the soil of Garh En Arikel. The stream of water may be turned many times along the ridge of a field, but the paddy survives only when measure, timing, and patience are right. A field does not take revenge; it follows method.

The memory of Gangesha Upadhyaya rose within him again—without the boundary of its meaning, a word may become not a means of knowledge but a road to error. Do not make the meaning smaller; do not make it larger. Only as much as it is.

He turned toward Malini. “If there is any victory, it is this: no one now has to depend on my belief. They will see the record, test the sequence, catch the errors, and then decide.”

Malini asked, “And toward the people behind all this—anger?”

There was no hardness on Aditya’s face. “Investigation is not for revenge. People may change; method must remain.”

“And if, in the end, the allegation is not proved?”

“Then we will accept that result too. Whatever the evidence says.”

“And if it is proved?”

“Then too, whatever the evidence says. Not my anger.”

Malini slowly aligned the four slips in a straight line.

Aditya looked once more at the hash table, then closed the custody register.

The night had deepened. Outside, the city lights were not still but flickering; inside, words were being steadied within their own limits.

As Aditya switched off the light, he thought—the memory of revenge changes with the person; the discipline of method remains in the record.

No person had been victorious in today’s hearing. Only a method capable of being tested had moved one step forward.

046 The Touchstone of Testimony — Chapter 7

By the time the certified copy of the Supreme Court's order reached the Home Ministry, it was afternoon. But Shiveshwar Prasad had been waiting for it since dawn.

A summary had already been prepared inside the Secretariat. Its first line read: "The State's computational basis accepted by the Court."

The Minister picked up a red pen and struck out the entire line.

Law Secretary Neeraj Pathak asked, "Had the sentence become too large?"

"Not large. Pointing in a false direction."

"The Court did hear us on all four bases."

"It heard us. It defined the limits of their use. It did not endorse them."

Neeraj wrote again: "The Court clarified the limits governing the use of the summons, the computational image, the hash match, and the custody register."

Shiveshwar Prasad read it. "This sentence records the Court's order, not a victory for the State. Let it remain only that."

The certified copy was placed on the table. Beside it lay a brief note from Aditya Jha: "In the next presentation, place the source and the limit of every term together."

The Minister read the note twice. It seemed to him that the Court was disciplining not only the material of the investigation, but the language of the State as well.

The meeting began at two. Shiveshwar Prasad, Neeraj Pathak, Additional Law Secretary Suchitra Rai, Aditya Jha, and Malini Karna sat around the same table.

The Minister put the first question. "What changes in our next legal strategy?"

Suchitra Rai opened her prepared note. "I think we should now build a unified account of all the computational material. Access logs, payment flows, the administrative dashboard, customer identification, tax-deduction spreadsheets—all as a single chain."

Aditya did not answer at once.

The Minister looked at him. "Your hesitation?"

"Not with the words 'unified account,' but with the method behind them. If five items come from three source-groups, that does not become a story of five independent supports."

Suchitra said, "I will not call them independent supports. But the Court will still need the whole picture."

Aditya replied, "Yes, the whole picture—but the source of every line in that picture as well. And a line joined by inference must not be shown as though it were solid."

Malini opened a new format on her screen. It had seven columns: "Original term," "Source," "Literal meaning," "State's interpretation," "Alternative meaning," "What it does not prove," and "Limited conclusion sought from the Court."

Neeraj Pathak took off his spectacles and put them on again. "Seven columns? The judicial submission will turn into a dictionary."

Malini said, "If one word opens into five meanings, hiding four meanings will make the submission shorter, not clearer."

Shiveshwar Prasad asked, "The first example?"

Malini wrote: "Administrative control."

The room suddenly grew quieter.

"Where did this term come from?" the Minister asked.

Malini answered, "A seized medium contained a secure-access indicator. Using it, an administrative dashboard opened in the test environment. In the initial report, one analyst wrote 'an indication of administrative control.'"

Neeraj asked, "Could that person operate the dashboard?"

"The specified secure indicator allowed access during testing. But by itself it does not say who the actual user of the indicator was, for how long it was used, or whether there was control over the system as a whole."

Suchitra asked, "Then do we delete 'control'?"

Aditya said, "Do not alter the original report. Limit its meaning in the revised summary. The original wording must remain in the record, so that the defence can see exactly what we corrected."

Malini wrote a new line: "During testing, the specified access indicator made access to the administrative dashboard possible; actual user, duration, wider control, or criminality is not thereby established."

Shiveshwar Prasad asked, "The State's interpretation?"

“This indicator gives a direction for further investigation—who possessed it, when it was used, and what the external access logs say.”

“The conclusion sought from the Court?”

“Only that there is a testable relationship between the specified access indicator and the specified dashboard; control by any particular person requires separate proof.”

The Minister nodded. “Good. From now on, ‘control’ is not a word for a press release.”

Neeraj smiled faintly. “The press release is becoming the most difficult record in this entire matter.”

The Minister said, “Because it has the least space, and therefore the greatest temptation to force in the largest words.”

◆
The second example concerned the payment-gateway records. An old summary contained the line: “Flow of profit transfers.”

Shiveshwar Prasad asked, “Whose word is that—the source’s?”

Malini answered, “No. The analyst’s.”

“What does the source say?”

“That amounts moved from a specified merchant identifier toward a specified group of accounts. The record shows the amounts, times, reference numbers, and status.”

“Where did ‘profit’ come from?”

“From an interpretation of the frequency and pattern of the payments.”

Suchitra Rai said, “But if this was the operating group’s income, ‘profit’ would not be incongruous.”

Aditya replied, “If. At present, the ‘if’ is itself the question. That payment occurred is one thing; that its legal or economic character was profit is another.”

Neeraj Pathak asked, “Then the new term?”

Malini wrote: “Flow of funds.”

Aditya added, “And where the merchant record itself says ‘settlement,’ that word must remain in quotation. The State’s interpretation should be written separately.”

The Minister asked, “Could the defence say this correction shows that the State has changed its story?”

“They can,” Aditya replied. “And we will provide the version history. We will not hide the change.”

“What if the old word goes against us?”

“Even then.”

Shiveshwar Prasad was silent for a few moments. “The credibility of the State does not lie in preserving favourable words. It lies in preserving unfavourable ones as well.”

Suchitra wrote the sentence into her notes.

◆
The third example was more difficult. A message recovered from a deleted mail archive said: “This will not happen again because of me.” An initial note had called it “language of admission.”

The electric light in the room remained steady, but every gaze fixed on that single sentence.

Neeraj asked, “The context?”

Malini answered, “The two messages immediately before and after it are available. In context, three possibilities remain open: delay in a customer withdrawal, responsibility of an employee, and an internal error. The writer’s identity is also certain only up to an account identifier; independent confirmation of actual authorship is incomplete.”

Suchitra asked, “Then why was ‘admission’ written?”

Malini lowered her eyes. “On the first reading, the sentence seemed more direct. After the later context was read, the limits became clear.”

The Minister said nothing.

Aditya asked, “The original message preserved?”

“Yes.”

“Recovery method, hash, source medium?”

“All preserved.”

“Then revise the summary: ‘an ambiguous statement of self-referential responsibility’; and state expressly that it does not prove an admission of criminal guilt.”

Neeraj said, “With this much caution, the statement becomes almost meaningless.”

Aditya replied, “If context limits its meaning, the limited meaning is not meaninglessness. Giving it a larger meaning would be distortion.”

Shiveshwar Prasad asked, “In Navya Nyaya, where does the evidentiary force of words come from?”

Aditya thought for a moment. “Questions arise about the trustworthy speaker, intention, syntactic relation, context. But we will not impose a philosophical formula upon the Court. We may learn only this much: a sentence by itself is not the whole house of meaning.”

The Minister said, “Then open every door of that house.”

For the first time, Malini smiled faintly.

◆
In the middle of the meeting, a secretary came in with a draft from the media cell. Its headline read: “State’s Computational Evidence Strengthened in Supreme Court.”

Shiveshwar Prasad read the draft. “Who wrote this?”

“The media cell.”

“Send it back.”

The secretary remained standing. “What correction?”

“Remove ‘strengthened.’ Write: ‘Court issues directions on limits governing use of computational material; State preparing revised summary in compliance.’”

“That will sound extremely dry.”

“Judicial process is not entertainment.”

The secretary left.

Neeraj Pathak said, “Politically, the opposition will say the State is retreating.”

The Minister replied, “Reducing a word is not retreat if the earlier word was larger than the evidence.”

“And if people take it for weakness?”

“A court does not weigh evidence by opinion poll.”

Aditya listened in silence. It mattered to him that the Ministry was once again resisting the language of victory.

The Minister turned toward him. “Officer, do not concern yourself with political consequences. Your work is to state the limits of the material.”

Aditya answered, “Yes.”

“And if those limits run against the State’s claim?”

“Even then.”

“I want that answer in writing in the next note.”

◆
When the meeting resumed, Malini displayed a new draft of the “register of terms.” Against every disputed term stood four markers: the source’s original term, the State’s translation or rendering, the investigative interpretation, and the legal conclusion.

Suchitra Rai asked, “Why keep the translation separate?”

Malini said, “Some field names in the computational records are in foreign languages. We write a Devanagari rendering or a Maithili meaning. If the translation enlarges the meaning, the source itself is altered.”

Aditya opened one example. The original field meant “role.” The old summary had rendered it as “authority.”

Neeraj asked, “The difference?”

Malini answered, “‘Role’ may simply be the name of a category within the system. ‘Authority’ can suggest an actual set of permissions. Seeing the role-name alone does not establish every permission.”

Suchitra said, “Then we examine the system’s permission list separately.”

“Yes. And link whatever permissions were actually active to the access logs.”

“Source independence again?”

Aditya said, “If the permission list and the access log both arise from the same underlying data-store on the same server, we do not call them independent sources. Their form may differ; their root is one.”

The Minister asked, “Where does that go in the register?”

Malini added an eighth column: “Source relationship.”

Neeraj laughed. “Seven has become eight.”

Malini replied, “The columns grew; the claim became smaller.”

Aditya liked the sentence.

◆
At four o’clock an old ministerial note surfaced. It said: “Raghav Sethia is the central figure in financial control.”

Shiveshwar Prasad read the line and stopped. “At what level is this conclusion?”

Neeraj answered, “An old internal note. It was never filed before the Court.”

“The basis?”

Malini opened the record. “His name or identifier appears in some spreadsheets, payment references, and the statements of two witnesses. But no separate criterion was recorded for the word ‘central.’”

The Minister looked at Aditya.

Aditya said, “This line should not go into the judicial summary. The source-specific facts should go separately—which record contains his name, what each statement says, and how much independent support there is.”

Suchitra asked, “But an investigation will have internal hypotheses.”

“It will. Their name must remain ‘hypothesis.’ Not proved fact.”

“And if a summons was issued on the basis of such a hypothesis?”

“Then record the legal basis of the summons and the material available at that time. Later material cannot retrospectively become the original justification for the earlier decision.”

Neeraj said, “A limit of time, like a limit of words.”

“Yes. What we know today must not silently enter the reasoning of yesterday’s decision.”

The Minister said, "Put this line into the procedural directions."

Malini wrote: "Every decision shall be described on the basis of the material available at the time it was made; facts obtained later shall not be presented as the contemporaneous basis of an earlier decision."

Shiveshwar Prasad read the line and said, "That is a sound rule not only for this case, but for every investigation."

By evening, the shape of the draft had changed. Where there had once been a forty-page narrative summary, there was now a twenty-page main submission with a separate source register.

Neeraj Pathak asked, "Why has the story been cut in half?"

Aditya replied, "The story has not been reduced. Interpretation has been separated from source."

Malini showed three distinct sections. The first: "What the source says." The second: "The State's limited interpretation." The third: "The question placed before the Court."

Suchitra said, "And adverse facts?"

"Inside each subject. Not on a separate final page where they can escape notice."

The Minister asked, "An example?"

Malini opened the payment section. "Support: specified flow of funds. Adverse facts: some payments may have legitimate commercial explanations; beneficiary identification for two accounts remains incomplete; records are unavailable for one period."

Neeraj said, "This sounds like a defence submission."

Aditya replied, "Adverse facts are not the property of the defence. If they exist in the State's record, they are the State's responsibility."

Shiveshwar Prasad said without delay, "Let it remain."

Neeraj fell silent.

Outside the room, the evening light was fading. Inside, word after word was being stripped of its old weight and weighed anew.

Before the meeting adjourned, Suchitra Rai raised a practical question. "The Attorney General and the Solicitor General are already representing the State. What will they need in the next supplementary submission?"

Shiveshwar Prasad said, "First decide what we are asking of them."

Neeraj said, "A legal opinion on compliance with the Court's recent order?"

Aditya added, "And on the judicial use of the register of terms. Which parts should go into the main submission, which into an annexure, and which should appear only as an index to sealed material."

Malini said, "The same discipline of words is needed when summarising privileged portions. A summary must not become a substitute for the confidential material itself."

Suchitra asked, "Then shall we send them a supplementary reference note tomorrow?"

Before answering, Shiveshwar Prasad opened the certified order again.

"Not today."

Everyone looked at him.

"Why?" Neeraj asked.

"Because otherwise we will hurry again. Let this draft rest overnight. Aditya and Malini should recheck the source register. Whatever is sent tomorrow must not contain a single word larger than its source."

Aditya said, "Agreed."

The Minister added, "No request for fresh representation to the Attorney General or the Solicitor General. They are already in the matter. This will be a specific supplementary question: after the Court's order limiting the use of terms, how should the State structure its next presentation?"

Suchitra wrote it down. The seed of the next chapter entered the record without announcement.

At nine that night, Aditya left the Ministry. Instead of calling for a car, he walked some distance. A light October chill was settling over Delhi.

The lights of the Ministry receded behind him, but the eight-column table continued to walk with him in his mind.

"Original term."

"Source."

"Literal meaning."

"State's interpretation."

"Alternative meaning."

"What it does not prove."

"Limited conclusion sought from the Court."

"Source relationship."

Suddenly he remembered Garh En Arikel. In his childhood, paddy seed was not kept in separate sacks, but in small marked bundles. His grandfather used to say: if you forget the name of the seed, the crop will still grow in the field, but you will no longer know which variety was sown where.

A name does not make a field. But without the discipline of names, knowledge of the field is corrupted.

Once the rain had come early. In haste, some people in the village mixed all the seed together in one place. His grandfather did not. "The soil does not ask you to hurry," he had said. "Sow before its time and the labour will be greater, the yield smaller."

Today that sentence sounded different to Aditya. Evidence, too, does not ask anyone to hurry. The investigator may be impatient; the record is not.

He kept walking slowly.

It seemed to him that the Ministry's strategy had not truly changed that day; it had matured. First the aim had been to gather material. Then to separate sources. Now language itself had become an object of examination.

The memory of Gangesha Upadhyaya rose in his mind. A word is not merely sound; meaning is apprehended through words, but that apprehension has conditions of its own. In the modern courtroom, those conditions appeared as source, context, authenticity, limitation, and the opportunity for cross-examination.

Aditya said to himself, "Give it a name—but weigh the burden of that name."

When he returned to the office, he found Malini still at work.

"You are still here?"

Malini looked away from the screen. "Three lines are holding me up."

"Which ones?"

"Associated account,' active user,' and 'abandoned access indicator.' All three come from different sources."

Aditya pulled up a chair and sat down. "Take them one by one."

In the first line, payment-gateway records linked two accounts through a single merchant reference. Malini had written "associated accounts."

Aditya asked, "What kind of association?"

"The same merchant reference."

"Then write only that. 'Associated' may suggest some other relationship."

She wrote: "Two accounts recorded under the same merchant reference."

In the second line, an access log showed use of an account identifier. Malini had written "active user."

Aditya asked, "Is the user proved?"

"Use of the account identifier is proved; the person is not."

"Then not even 'active account identifier' without a time-limit."

Malini corrected it: "Account identifier shown in the access log during the specified period."

The third line concerned an old secure access indicator that no longer worked when tested later. Malini had written "abandoned access indicator."

Aditya asked, "What source says it was abandoned?"

"None. It simply failed during later testing."

"Then remove 'abandoned.' It may have expired, been changed, been revoked, or the service may have changed. Do not fill what we do not know with a word."

Malini wrote: "Access indicator non-operational at the time of retesting; reason for non-operation uncertain."

She leaned back and looked at the three lines. "They have all become smaller."

Aditya said, "Not smaller. The right size."

At eleven that night, the final version of the source register was ready. Malini wrote the version number and time at the top. The older version was not deleted; it remained separately preserved.

Aditya asked, "Change log?"

"Here."

He read: "'Control' limited; 'profit' removed; 'admission' reclassified; 'authority' replaced by 'role'; 'central figure' moved to the hypothesis section; 'abandoned' replaced by 'non-operational—reason uncertain.'"

Aditya said, "Add one more line—which changes weaken the State's case."

Malini looked surprised. "Why separately?"

"So that tomorrow no one selects only the favourable corrections."

She marked two lines: economic character of the payments uncertain; actual user unproved.

Aditya said, "And link the list of adverse material from the main page."

"Already done."

For a few moments, both were silent.

Malini asked, "Sir, after adding so many limits, will the investigative story not fall apart?"

Aditya looked out of the window. "If merely writing the limits makes the story collapse, then the story was weak already."

"And if it survives?"

"Then it does not need adjectives to hold it up."

Malini closed the file.

The memory of Garh En Arikel returned once more within Aditya. When his grandfather took soil in his hand, he studied its colour, smelled it, tested its friability between his fingers. He did not like declaring it “fertile” at a glance.

“Listen to the soil before you name it,” he used to say.

Aditya thought a record was much the same. Before imposing one’s own words upon it, one had to listen to its source, its silences, its limits, and its contradictions.

That day the Ministry had changed strategy—not from hard words to soft ones, but from uncontrolled words to testable words.

On the first page of the final draft, he wrote: “No conclusion in the State’s presentation shall be larger than its source.”

Malini read it and asked, “The governing rule?”

“Yes.”

“Shall we send it to the Attorney General and the Solicitor General tomorrow?”

Aditya looked at the clock. “We will read it once more at dawn. Patience, too, is part of the discipline of evidence.”

He did not seal the file; it was a secure working file within a confidential category. After entering the time in the access register, they both left.

The night had grown very deep.

Far away, the Ministry building stood in the light, but Aditya’s mind was in the dark fields of his village—where the soil never hurried to answer, and the farmer’s first virtue was patience.

Tomorrow a new supplementary legal question would be sent. Today, only the words had returned to their proper limits.

047 The Touchstone of Testimony — Chapter 8

The first light of dawn was falling upon the glass of the Ministry's tall building, but inside the legal room the night's work had not yet ended. Aditya Jha and Malini Karna were reading once more through the final version of the source register. Until yesterday it had contained eight columns; today a new, slender sheet lay before it—"Supplementary Reference Note on the Limits of Language."

Law Secretary Suchitra Rai entered. In her hand were three copies prepared during the night.

"We have been given time at seven by the offices of the Attorney General and the Solicitor General," she said. "One final reading before we send it."

Aditya did not look at the clock. "First see whether any of the questions has grown larger than its source."

Malini read the first page—"Supplementary legal opinion concerning the limits of judicial use of disputed terms employed in the State's earlier submissions, the method of correction, transparency in translation, and source-relative interpretation."

Suchitra asked, "Is the title too long?"

Aditya said, "Let the title be long. Let the claim remain small."

Malini smiled faintly.

The first question was—"If field names, abbreviated terms, or foreign-language expressions in an original computational record are rendered into Maithili or into legal language, how should the original term, the rendering, and the State's interpretation be shown separately?"

The second—"If the State later narrows a broader term used earlier, how should the correction be recorded so that the correction remains clear, yet is not automatically treated as an admission of false representation?"

The third—"When preparing an open summary of sealed material or material disputed on grounds of privilege, what limit should be observed so that the summary does not become a substitute for the original material?"

The fourth—"What limited procedural direction should be sought from the court so that future submissions clearly distinguish the original source, the State's interpretation, alternative meanings, and the level of the conclusion sought?"

Suchitra opened the page containing the fifth question.

"Was this added during the night?"

Malini replied, "Yes. 'Should changes in the revision register that reduce the weight of the State's claim also be identified in the same manner?'"

Aditya said, "That is not a question. It is my proposal. But we need a legal opinion—how much belongs in the judicial record, and how much should remain within the internal working path."

Suchitra stopped at one word—"reduce."

Aditya asked, "What?"

"That itself is an evaluation. Perhaps write: 'changes that reduce the weight of the State's earlier interpretation?'"

Malini made the correction at once.

Aditya looked at her. "The work of this chapter has begun."

At ten minutes past seven, the reference note reached the offices of Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar. This was not a new request for representation. Both were already appearing for the State in the pending Special Leave Petition. The very first paragraph of the letter made that continuity clear.

Devvrat Sinha was reading the letter in his library room. Dawn was brightening by the window. Mrinal Dhar placed the pages separately and examined the sequence of the questions.

"This time the State has sent the scope of its sentences, not the number of its pieces of evidence," Mrinal said.

Devvrat replied, "And in court, scope is harder than number. One word can destroy the care of five pages."

Mrinal placed his thumb on the first question. "Original term, rendering, interpretation. All three separate. But the submission must not turn into a request that the court certify a dictionary."

"Exactly. We should seek a procedural direction, not an eternal meaning of words."

"Why?"

"Because the same term can confer different powers in different systems. 'Role' may mean only a name in one place, a permission-set in another, and a category of dashboard access elsewhere. To ask the court for one universal meaning of 'role' would merely reproduce the same error in another form."

Mrinal turned the next page. "Then our first opinion is this—source-specific description alongside every disputed term. Where meaning is disputed, preserve the original term, mark the rendering, and state the interpretation separately."

Devvrat said, "And if the original term is in a foreign language or is a computational marker?"

“Preserve the original image in the annexure; provide a readable form in the court text, but make clear that it is a rendering.”

Devvrat wrote one line—“A rendering is not the source; it is only the bridge by which one reaches the source.”
Mrinal read it and agreed.

At the second question, both were silent for a few moments.

“If the State corrects an earlier expression,” Devvrat said, “the defence will naturally say that the first expression was improper.”

“Where it was improper, they have every right to say so.”

“But a correction does not mean ‘knowingly false’ unless there is separate material for that state of mind.”

Mrinal said, “We should make the distinction clear through our own example. A correction from ‘control’ to ‘specified access facility’ narrows the scope. That does not by itself establish that the first author intended to deceive.”

“And if the background shows that, even after a warning, the broader term was knowingly retained?”

“Then the position is different. But that conclusion would rest on separate material—such as the warning, chronology, the author’s knowledge, and a refusal to correct—not merely on the fact that the word changed.”

Devvrat stopped his pen. “That will open the question for the next hearing—the boundary between doubt, allegation, indication, and proved fact.”

Mrinal said, “First let us finish 047.”

Both laughed lightly, then became serious again.

At nine, the joint conference began. Aditya, Malini, Suchitra Rai, Devvrat Sinha, and Mrinal Dhar sat around the table. Home Minister Shiveshwar Prasad had instructed: “Let the law officers form their opinion first. The Ministry will read it thereafter.”

Devvrat lifted the reference note. “I would like to answer the State’s first question in four rules.”

Malini readied her pen.

“One—the original term must be preserved.”

“Two—the rendering or translation must be clearly identified as such.”

“Three—the State’s interpretation must appear on a separate line.”

“Four—where another reasonable meaning is possible, it must not be concealed.”

Aditya asked, “All four in the main submission to the court?”

Mrinal replied, “To the extent necessary for every disputed term. Not a vast table for every ordinary word. Otherwise linguistic discipline itself will become a burden on the record.”

Suchitra said, “What is the test?”

“Where changing the term may alter the meaning of ownership, control, intention, participation, benefit, culpability, or judicial relief.”

Malini wrote it down.

Aditya added a fifth point—“And where the term is broader than the actual field of the source.”

Devvrat said, “Good. But who will decide whether it is ‘broader?’”

Aditya replied, “The State first. The defence will challenge it. Ultimately the court will determine the necessary limit.”

“In other words, the register is not the State’s certificate of truth; it is an instrument of testing.”

“Yes.”

Mrinal looked at Malini. “Write that line. No one should later call the register evidence in itself.”

Malini wrote—“The language register is not a substitute for evidence; it is only a discipline for presenting and challenging recorded material.”

The meeting moved to the second question. Suchitra opened the list of changes prepared during the night.

“‘Control’ narrowed. ‘Profit’ removed. ‘Admission of guilt’ reclassified. ‘Role’ substituted for ‘authority’. ‘Central figure’ moved into the hypothesis section. ‘Abandoned’ replaced by ‘inactive—reason uncertain.’”

Devvrat said, “This list needs reasons.”

Malini asked, “For every word?”

“Where the court or the other side has already seen the broader form, yes. Merely writing ‘corrected’ is not enough. What changed, why it changed, and what effect the change has on evidentiary value—all three.”

Aditya said, “The line on effect will be difficult.”

“It will. That is why it will be useful.”

Mrinal drafted an example—“‘Control’ replaced by ‘specified access facility’—reason: the available record shows access, not the complete set of powers. Effect: the weight of the State’s earlier interpretation concerning control is reduced; the fact of access, if otherwise authentic, remains intact.”

Silence spread through the room.

Malini said, “In that sentence, the State itself is reducing its own claim.”

Devvrat replied, “If the source says only that much, the State is not reducing itself; it is correcting its size.”

The soil of Garh En Arikel came back to Aditya's mind—the field is only as large as its boundary ridge. Calling a neighbour's earth one's own does not enlarge the field.

He said, "Let it remain."

Suchitra asked, "And the older versions of the revisions?"

Mrinal replied, "Do not destroy them. Preserve the version register. Place only the relevant versions before the court, but keep the necessary history available to the defence for challenge, subject to the limits of confidentiality and privilege."

Devvrat added, "If the history of correction is concealed, the correction will create suspicion, not credibility."

At that time, on the other side of the city, Vidyanand Mishra was reading a letter in his chambers. It had come from the office of Samarjit Mehta, the business representative of Raghav Sethia. The language was courteous, the meaning hard—a portion of the outstanding professional fee would remain withheld "until the next strategic decision."

Advait sat before him. Concern was plain on his face.

"Sir, is this direct pressure?"

Vidyanand read the letter again. "For now, only this much is established: payment has been withheld and its timing has been linked to a strategic decision. 'Pressure' is a conclusion about purpose. Say only what the words of the letter say."

Advait looked at him for a few moments. "You are still measuring words?"

"Especially now."

In one corner of the table, the chamber accounts register lay open. Monthly dues for two juniors, the record assistant's remuneration, renewal of the library subscription, and the advance for the next medical test at home—all the dates were falling within the same week.

Vidyanand closed the register.

Advait asked, "Should I tell Samarjitji that we will not proceed without payment?"

"I will not turn a threat to stop legal service into a tool for collecting fees. Send a formal reminder of the dues. Time, amount, work description—that is all."

"But they are taking advantage of your professional restraint."

Vidyanand removed his spectacles. "If restraint becomes something others can exploit, that does not diminish the value of restraint."

At that moment his phone vibrated. It was a message from Shailaja—"The date for the next test has been fixed for Monday. The advance has to be paid by this evening. What is in the household savings will then be reduced by half. Do not worry; just tell me in time."

Vidyanand read the message and closed his eyes.

Advait turned his face away, as if to give him privacy.

After a few moments Vidyanand said, "Open the dues list again."

Advait opened it.

"Pay all three members of the chamber staff first."

"And home?"

"I will see to home."

"Sir—"

"Advait."

The voice was not harsh, but the sentence was complete.

Advait fell silent.

For the first time Vidyanand admitted to himself that the crisis was no longer only a test of principle. It had become a number. But the number would not become the master of his sentence in court.

At ten forty-five, Samarjit Mehta came to the chambers himself. In his hand was a draft prepared for the media.

"Mishraji, today the State has again sent a supplementary letter to the Attorney General and the Solicitor General. I need this statement immediately."

Vidyanand read the draft. The first line said—"The State has already admitted its earlier false representation."

He placed the page on the table.

"I will not approve this."

Samarjit leaned back in his chair. "Why? They are changing their words."

"Changing words is a fact. To call the earlier statement 'false' requires a separate basis for knowledge or knowing misrepresentation in addition to inaccuracy."

"Why does every answer of yours end up helping the State?"

"This answer does not help the State. It marks the boundary of our own sentence."

Samarjit opened the second page. "Then write—the State's presentation is unreliable."

"Which part? For what reason?"

"All of it."

"Not all of it."

"You understand that your fee has been withheld?"

Vidyanand looked into his eyes.

"Yes."

"And the situation at home?"

Vidyanand's face hardened slightly. "My home is not the subject of your argument."

Samarjit said at once, "I am only saying that there is such a thing as practicality."

"Practicality is not another name for professional falsehood."

"Falsehood?"

"If I know there is no present basis for 'knowingly false,' then using those words would risk falsehood."

Samarjit gathered the pages. "Raghavji will consult another senior advocate for the public statement."

"Let him."

"And the main hearing?"

"So long as the engagement has not lawfully ended, I will perform my duty. If it ends, I will transfer the record in an orderly manner."

"As simple as that?"

Vidyanand said, "Not simple. Clear."

Samarjit rose and left.

After the door closed, Vidyanand's hand trembled slightly. He placed it on the table and steadied it.

Advait said softly, "Sir, this time the price is higher."

Vidyanand replied, "Dignity is rarely an expensive word; its price is usually paid in silence—when one could utter a profitable sentence, but has no basis for it."

◆
In the Ministry's joint meeting, the third question had opened—the open summary of sealed material or material disputed on grounds of privilege.

Mrinal Dhar said, "The greatest risk here is that the boundary of the original may break while preparing the summary."

Malini asked, "For example?"

"Suppose the original material only shows that legal advice was given on a certain date. The open summary says—'the structure was changed after knowledge of the risk.' That is no longer a summary; it is an interpretation created by joining two separate facts."

Aditya said, "Then the open summary should state the existence of the source, its date, its nature, and the limit of its judicial use—as much as is possible without revealing confidential contents."

Devvrat added, "And where preparing even a summary would disclose the meaning of the privilege itself, use only an indicative description instead of an open summary."

Suchitra wrote—"A summary is not a substitute for the original; it is only the minimum necessary information between confidentiality and adversarial fairness."

Devvrat read the line and said, "Even the word 'minimum' needs care. Sometimes the court will need sufficient information, not merely the minimum. Write—'only so much as is necessary for judicial testing; the confidential substance of the original shall not be unnecessarily disclosed.'"

Suchitra made the correction.

Aditya watched. The touchstone of testimony was testing not only the language of allegation, but the language of caution as well. Even 'minimum' could sometimes be inadequate.

◆
On the fourth question, Devvrat Sinha was clear.

"We should not ask the court for an order that creates a permanent dictionary for every future submission. A case-specific procedural direction is enough."

Mrinal asked, "In what form?"

Devvrat slid a page forward.

"First—where a disputed term may alter the weight of a conclusion, use it with its source-reference."

"Second—where the State's current interpretation is narrower than or different from its earlier presentation, make the correction explicit."

"Third—where relevant, state the reason for the correction and its effect on evidentiary value."

"Fourth—make clear the status of any rendering or translation."

"Fifth—an open summary of sealed or privilege-disputed material shall remain within the limits of judicial necessity."

"Sixth—this entire discipline is not a means of reducing the rights of the defence; the right to challenge remains open."

Aditya asked, "The same discipline for the defence presentation as well?"

Mrinal replied, "The court will naturally test the language of both sides. But the State should not seek an order against the defence merely to display moral symmetry in its supplementary submission. Discipline your own presentation first."

Devvrat said, "Exactly. The State's duty should begin with the State's own sentence."
Malini quietly wrote that line down.

After noon, a short draft from the Attorney General's office reached Vidyanand Mishra by way of advance service. It had not yet been filed; it had been sent for prior service on the opposing side in accordance with procedural fairness in the matter.

As soon as Vidyanand read the first page, he called Advait.

"Look here—'reason for correction and effect.'"

Advait read it. "This is useful. Shall we prepare a list of the broader terms used earlier?"

"Yes. But in three categories."

"Which?"

"One—words plainly broader than their source. Two—words with more than one reasonable meaning. Three—mere stylistic differences that do not affect evidentiary value."

Advait asked, "Why the third category?"

"So that we do not manufacture a dispute over every word. The court must see which objections we are raising reasonably."

"And we will not call the State's correction an admission?"

"Where there is an admission, we shall call it one. Where there is only a correction, we shall call it a correction."

Advait made a note.

Vidyanand added, "And one proposal—we should accept that this procedural discipline applies to our submissions as well, not only to the State's."

Advait looked startled. "To us too?"

"Yes. If we tell the State that the word 'control' must not grow larger than its source, then we too must not use words such as 'collapsed,' 'false,' or 'conspiracy' without a basis."

"Will the client like that?"

"A professional standard does not depend on the client's liking."

Advait tried to smile. "And the fee?"

Vidyanand too gave a faint smile. "That is a separate case."

At three in the afternoon, Shailaja called.

Vidyanand left the chamber and went to the far end of the veranda, where trees could be seen below the window.

"Did you pay the advance?" Shailaja asked.

"Not yet. I will by evening."

"Is there a problem at the chambers?"

Vidyanand remained silent.

Shailaja asked again, "How much?"

"That is not your question."

"The household expense is not my question?"

Vidyanand closed his eyes.

"Samarjit has withheld payment," he said at last. "For some time."

"And the reason?"

"They want sharper public language."

"And you?"

"I will not say what has no basis."

There was silence for a few moments at the other end.

Shailaja said, "Then I will postpone the test by a week."

"No."

"Why not? The world will not change in one week because of an illness."

"The doctor gave the date for a reason."

"And the people in your chambers?"

"They will be paid on time."

Shailaja laughed softly. "You will pay everyone on time except yourself."

Vidyanand said nothing.

Shailaja spoke again. "Listen. Do not let the crisis at home become the master of your sentence in court. But while preserving the dignity of that sentence, do not orphan the household either. Share the accounts with me."

Vidyanand's throat grew heavy, but he kept his voice steady. "We will talk this evening."

"Have you eaten?"

"I am about to."

"I have heard that answer before."

The call ended.

Vidyanand kept looking out of the window. Light lay on the leaves of the trees. A private crisis was not an argument; yet the human being who reasons is not emptied of private life while reasoning. Navya Nyaya, in determining the meaning of words, looks to speaker, context, expectancy, fitness, and defeating conditions—the human life behind a sentence is present as well. The difficulty is that private context must not take the place of judicial proof.

He went back inside and told Advait, “Order food first. Then we will make the list.”

For the first time, Advait smiled openly.

At four in the evening, the final opinion from the Attorney General’s office reached the Ministry. Its title was —“Supplementary Legal Note on Limits of Language, Transparency of Correction, and Source-Relative Presentation.”

Home Minister Shiveshwar Prasad now joined the meeting. He read the first page and asked, “Will this make the State’s claim smaller in court?”

Devvrat Sinha answered directly, “Where the claim is larger than its source, yes.”

The Minister asked the next question. “And the State’s position?”

“The position will not become smaller; it will become more testable.”

Shiveshwar Prasad continued turning the pages.

Mrinal Dhar added, “In this process the defence will use the State’s earlier words to raise questions. That is a valid right.”

The Minister said, “I have no objection. If the State’s words cannot withstand questions, they have no place in court.”

Aditya listened. The language of political victory had another opportunity to enter the room, but the Minister did not bring it in.

Malini pointed to a note on the fifth page. “It says here—‘A correction by the State shall not itself be treated as adverse material against the State.’ Is that not too broad?”

Devvrat immediately took the page.

He read the line and paused for a few moments. “You are right.”

The Minister asked, “Why?”

Malini replied, “Sometimes a correction really does weaken an earlier claim. If we say in advance that a correction is not adverse, we have already decided its effect ourselves.”

Mrinal said, “Write—‘The evidentiary value of a correction depends on its reason, source, and effect; the mere fact of correction does not automatically establish a knowingly false representation.’”

Devvrat changed the line.

Shiveshwar Prasad looked at Malini. “Today the analyst is correcting the advocate’s sentence.”

Malini said politely, “Every sentence has a source; the limit applies to everyone.”

Devvrat smiled. “That is why joint testing is useful.”

At five in the evening, the supplementary note was approved for use in the next procedural submission in the pending Special Leave Petition. It was not yet a conclusion of the court. It was the legal opinion of the State’s counsel and a proposed method.

Aditya made clear, “Let the first page state this status—‘Proposed procedural discipline; subject to the court’s approval.’”

Suchitra added, “So that no one later cites it as an order.”

Malini attached the revision register. Beside it was a separate list—“Changes reducing the weight of earlier interpretations.”

Devvrat read the list. “Keeping this is not an act of courage; it is an act of duty.”

The Minister said, “The right word.”

Mrinal Dhar read the final part of the page—“Upon receipt of the defence list of disputed terms, the State shall respond source by source; time shall not be wasted in word-for-word quarrels, and priority shall be given to terms that alter the weight of conclusions.”

Aditya said, “That is necessary. Otherwise the next hearing will become a collection of words.”

Devvrat replied, “And the court’s real question will disappear—which statement is doubt, which an indication, which an allegation, which evidence, and which a proved fact.”

For a moment, the room grew still.

Malini said, “The question for the next chapter rises from here.”

Aditya looked at her. “The story will rise by itself; the record does not know the name of the chapter.”

Malini smiled.

That evening Vidyanand completed the draft of his response. In the first paragraph he did not oppose, in principle, the State’s proposed language register. In the second, he sought three safeguards—adversarial access to the original source, an opportunity to object to the rendering, and the complete relevant history of correction.

In the third paragraph he wrote—"The court should read any correction of the State's earlier broader terms according to its actual effect; neither should the mere fact of correction be treated as a knowingly false representation, nor should the effect of earlier overstatement disappear under the name of correction."

Advait read it and asked, "This sentence stands between the two sides."

"No. It is a defence sentence. Because the interest of the defence lies in a credible test, not merely in a sharp adjective."

"Samarjitji will not like it."

"The court will not sit to measure the client's liking."

Vidyanand added a fourth paragraph—"The defence also accepts the obligation not to use terms larger than their source in its own submissions."

Advait kept looking at the page.

"Sir, was this necessary?"

"If we seek the same test, we cannot place ourselves outside it."

Advait said softly, "Then the headline 'State's web collapses'?"

A faint smile came to Vidyanand's face. "Leave it to the media. Not to the court."

At seven that night, the chamber staff had gone. Vidyanand was still seated. The accounts register was open again. If he broke one fixed deposit, Shailaja's test, the staff dues, and the next two weeks of chamber expenses could be covered. Beyond that lay uncertainty.

He wrote a message to Shailaja—"I will come home this evening and we will look at all the accounts together. We will not postpone the test."

The reply came at once—"All right. Food first."

Vidyanand smiled.

Then a new message from Samarjit arrived—"Another advocate is being consulted for the public statement. Instructions in the main matter continue for now."

Vidyanand read the message and placed the phone face down.

Neither relief nor victory. Only one day's reprieve.

He read the final line of his draft once more—"The weight of a word must not exceed its source."

He remembered a foundational insight from Gangesha Upadhyaya's work—the meaning of a word does not arise from uttered sound alone; relations such as expectancy, fitness, proximity, and the speaker's intention discipline the apprehension of meaning. In a modern courtroom, their equivalents may be source, context, scope, translation, the author's position, and adverse material.

Vidyanand did not quote a verse from the treatise. He only wrote in the margin of his draft—"Do not cut a word away from its context and turn it into a weapon."

Then he closed the page.

At eight that night, Aditya and Malini were checking the final service copy at the Ministry.

Malini asked, "Sir, one question."

"Ask."

"If both sides narrow their words, then what will the court do? The dispute itself will diminish."

Aditya said, "The dispute will remain over facts, not words. When the language becomes clear, the real differences in fact become more visible."

"So the difficulty will not decrease?"

"Perhaps it will increase. Because once exaggeration is removed, whatever remains must be looked at directly."

Malini turned the page. "Here there is a payment, but purpose is uncertain. Here there is access, but the person is uncertain. Here there is a statement, but independent confirmation is partial. Here there is a correction, but the author's state of mind is uncertain."

Aditya said, "And the next question is the boundary among all of these."

"Doubt, allegation, indication, evidence?"

"And proved fact."

Malini closed the register.

Night had already descended outside. The Ministry corridors were nearly empty. Aditya remembered the fields of Garh En Arikel, where after transplantation a farmer would stand at a distance and look—which row was straight, which crooked, which plant had taken hold in the soil, and which was merely standing for now. All looked green, but not all roots were the same.

Words too were like green rows—similar in appearance, rooted differently underneath.

He said softly, "Now it is time to look at the roots."

Malini asked, "What did you say?"

"Nothing. Keep tomorrow's file ready."

They both went out.

The supplementary submission sent that day to the Attorney General and the Solicitor General did not make the State's case sharper. It made it more accountable. Nor could the defence's crisis cheapen its language.

And the central question for the next hearing was now clearer—once the extra weight of words is removed, where does doubt end, where does allegation begin, and how far does evidence truly reach?

048 The Touchstone of Testimony — Chapter 9

Morning sunlight was spreading across the old stone of the High Court. Inside Justice Arya's courtroom that day there was no newly seized material, no startling computational discovery, no announcement of a great name. On the Bench lay only three slim files—Manoj Mahato, Rajat Pal, and Sudip Ghosh.

Justice Arya opened the first file. "Today I will not ask whether the allegation is true or false. First I will ask: which proposition is suspicion, which an allegation, which an indication, which evidence, and which fact may at present be said to have been proved."

For the State, Devvrat Sinha rose. Mrinal Dhar had opened his notes beside him. For the defence sat Vidyanand Mishra, Advait Sen, and two junior advocates. Aditya Jha and Malini Karna were seated in the row behind, present with the Court's permission to assist with the record.

Vidyanand said, "My Lady, the State's vocabulary is now improving. Our apprehension is that even after the improvement, an emotional statement may acquire the language of evidence."

Devvrat replied, "The State's submission is the opposite: emotion should be read as emotion, statement as statement, and independent support as independent support."

Justice Arya set down her pen. "Then today's hearing may be useful. But let one thing be clear at the outset: fear is not proof of truth; greed is not proof of falsehood; guilt is not proof of crime. These may bear on credibility. The conclusion requires a separate test."

The first file was Manoj Mahato's. His earlier statement mentioned two telephone calls—calls in which an unidentified person, after naming his son's school, had warned him not to "say too much." At the time, the investigating team had written: "Statement of fear; independent verification required."

There was now some new material. Old records from the telecommunications service provider showed the times of two incoming-call indicators within the week Manoj had described. The source number could not be fully identified; one indicator had come through an international voice gateway, and the originating number for the other was unavailable.

With the Court's permission, Malini read the summary: "Two incoming-call indicators within the week stated by Manoj. Originating caller unidentified. Content unavailable."

Vidyanand rose at once. "Which means there were calls—that much is partial support. Not the content of the threat."

"Correct," Devvrat said. "The State does not call it 'a proved threat.'"

The second item was a photocopy of the school's visitor register. At the school attended by Manoj's son, an unidentified person had, during that week, asked at the reception about the child's class and bus time—a handwritten note to that effect had later been entered by a security guard. But the visitor's name might have been false; the visual recording had by then been destroyed with age.

Justice Arya asked, "When was this note written?"

Aditya replied, "A brief note appears in the register for the day of the incident. A fuller statement was taken later, during the investigation."

"Then keep the brief note of that day separate from the later memory."

"That has been done."

Vidyanand said, "Manoj's fear may be genuine. But someone making inquiries at the school—there is no independent link connecting that to the offshore group."

Devvrat nodded. "The State agrees. The link has not yet moved beyond suspicion."

Justice Arya wrote five propositions on the file: "Telephone occurrence—partial support. Content—statement. Caller—unknown. School inquiry—independent occurrence. Coordinated threat—at present an inference."

Malini kept looking at that line. Until yesterday, the same event had lain in her mind like one deep shadow. Today the Court was giving that shadow five separate edges.

Manoj himself was present in court. He had been called not for full cross-examination, but only for two clarifications under the earlier permission.

When he came to the witness place, he was again rubbing his thumb with his forefinger. Justice Arya said, "You are safe. But I will ask not in order to declare your fear true or false; I will ask in order to understand its limits."

Manoj nodded.

"Did you first hear the name of the school over the telephone, or had someone already asked about it before then?"

"At that time I did not know about the visitor at the school."

"Did the person on the telephone give his name?"

"No."

“Raghav Sethia—or any name connected with this case?”

“No.”

“Then what gave rise to your fear?”

Manoj’s throat caught. “My son’s name, his school, and the time of his bus. I cannot take lightly a man who knows all that.”

Justice Arya was silent for a few moments. “Your fear can be understood. But the Court will identify its cause separately.”

Manoj’s eyes filled. “Then what does what I suffered mean?”

Justice Arya softened her voice. “It has meaning. The limits of a legal conclusion are a different matter. A court does not belittle anyone’s suffering; nor does it make suffering the basis for accusing the wrong person.”

Manoj lowered his head. Whether something inside him had broken or come together was difficult to say.

The second file was Rajat Pal’s.

His bank records were now before the Court. Five payments had been found apart from his regular salary. The descriptions for all of them used “work incentive” or similar words. Some of the dates lay close to accounting entries about which the investigation had raised questions, but older examples of the establishment’s ordinary incentive policy had also been found.

Devvrat said, “The State’s position is this: the additional payments are established; an unlawful purpose for those payments is not.”

Vidyanand said immediately, “And in Rajat’s first statement the words ‘special service’ emerged after a leading question.”

“The State itself has recorded that point,” Mrinal Dhar said.

Justice Arya asked, “How did the question of Rajat’s greed arise?”

Malini replied, “He had accepted money in addition to his regular salary. The first analysis used the words ‘possibility of greed.’ We later limited the language to: ‘possible influence of financial self-interest; purpose requires separate verification.’”

Vidyanand said, “Merely calling greed possible does not make a witness unreliable. Conversely, the State could choose to say that the money supports the truth of his statement. Both may be improper leaps.”

Justice Arya did not smile, but there was agreement in her voice. “Correct. Character analysis does not take the place of evidence.”

Rajat was called. He looked more composed than before.

Vidyanand asked him, “You received additional amounts?”

“Yes.”

“You wanted that money?”

Rajat was silent for a moment. “Everyone wants money.”

“Meaning greed?”

Devvrat rose. “The question imposes a value judgment.”

Justice Arya said, “Reframe the question.”

Vidyanand asked, “In order to receive additional amounts, were you willing to do something beyond your ordinary work?”

Rajat frowned. “If it was lawful work, yes. Not for unlawful work.”

“For what work did you receive the five payments?”

“I am not completely certain.”

“Then why did you speak of special entries in your first statement?”

Rajat’s voice sharpened slightly. “Because the questions were going in that direction. And I was frightened.”

“Of the investigators?”

“Of the case. Of my job. Of my name appearing in the news. Of everything.”

Justice Arya asked, “Are you saying anything today that contradicts the bank record?”

“No. The money came.”

“Do you directly know that the money was for an unlawful purpose?”

Rajat took a long breath. “No.”

“Do you directly know that the money was entirely an ordinary incentive?”

Rajat paused again. “No to that as well.”

Silence descended on the courtroom.

Rajat said quietly, “I am caught in between. Earlier everyone wanted a definite answer from me. Now you are saying that ‘I do not know’ is also an answer.”

Justice Arya said, “Sometimes ‘I do not know’ is the truest answer.”

Some of the tension on Rajat’s face eased. The shame remained. “I took the money. I liked getting it. That is difficult to say.”

Vidyanand stopped questioning him.

Devvrat too asked no further question.

Justice Arya dictated for the record: "Acceptance of financial benefit—established by bank record. Lawful or unlawful purpose of the benefit—disputed. Witness's self-assessment—a matter of credibility; not proof of crime."

When the third file was opened, Malini loosened her grip on her pen. Sudip Ghosh's diary, four dates, the indistinct reference to "R.S.," and his sense of guilt—there was more human weight here than in the earlier files.

No conclusive technical examination had been made of the age of the diary paper; but a preliminary comparison of handwriting, Sudip's acknowledgement, and correlation with external travel records for some dates were available. The Court was not, at present, calling it anything more than "a private diary presented by Sudip and appearing contemporaneous."

Vidyanand asked, "The basis for the State's use of the word 'contemporaneous'?"

Aditya replied, "Dates on some entries, similarity to older personal handwriting, and correspondence with external events. But the possibility that some writing was added later has not been wholly excluded."

Justice Arya said, "Then write 'entries appearing contemporaneous' if there has been no conclusive age examination."

Malini changed the note at once.

Sudip came in. Today his hands were empty.

He sat down, then, with Justice Arya's permission, moved to the witness place. His eyes were red, like those of a man who had been awake all night.

Justice Arya said, "You spoke earlier of guilt. Today I want to understand the cause and the limits of that feeling."

Sudip said immediately, "I am guilty."

Vidyanand rose. Devvrat did too.

Justice Arya raised a hand. "That is a legal conclusion. Tell us as facts what you did."

Tears fell from Sudip's eyes. "I signed papers without seeing all the work. I attended meetings. I did not ask questions. I received money. Now I feel I should have asked."

"Which of those things was a crime—do you know?"

"No."

"Then what do you mean by 'I am guilty'?"

Sudip's voice trembled. "I am guilty in my own eyes."

Justice Arya leaned slightly forward. "That is an important distinction."

Vidyanand asked, "Was R.S. Raghav Sethia?"

"I do not know."

"Did you see his face?"

"Half of it. If you show me a picture now, I may become confused."

"Was the word 'gambling' used in the meeting?"

"I did not hear it."

"Unlawful payment?"

"Not in those words."

"Then how is your guilt proof that the allegations in this case are true?"

Sudip was silent.

Devvrat did not intervene.

At last Sudip said, "Perhaps it is not. But I cannot sleep at night."

For the first time, Vidyanand's voice softened. "Sleep is not a legal category."

Sudip made a sound somewhere between laughter and weeping.

Justice Arya said, "A human conscience is neither larger nor smaller than a court; it belongs to a different realm. The Court will hear your remorse, but it will not declare anyone guilty on that basis."

Sudip lowered his head.

After noon, Justice Arya closed the three files and asked for a blank sheet. Across the top she drew five columns: "Direct material," "Source," "Independent support," "Alternative meaning," and "Present evidentiary status."

"Today we will not create a separate column for 'emotion,'" she said. "Emotion will be recorded as part of the context of the original statement; it has no right to become an evidentiary status."

Devvrat read the first entry: "Manoj's telephone calls."

Mrinal added, "Two incoming indicators available; caller unknown; content rests only on Manoj's statement."

Vidyanand said, "At present insufficient for an allegation of a coordinated threat."

Justice Arya wrote: "Occurrence partially supported; actor/purpose unproved."

Second: "Inquiry at the school."

Malini said, "Note in the register for that day; true identity of visitor unknown."

"Relationship to Manoj's calls?"

Aditya replied, "There is temporal proximity; a causal relationship is not established."

Justice Arya wrote: "Relationship a suspicion; not by itself an allegation."

Third: "Rajat's five payments."

"Established by bank record," Devvrat said.

"Purpose?"

"Disputed."

"Improper benefit?"

"At present a possible basis for an allegation; not a proved fact."

Fourth: "Sudip's diary."

Vidyanand said, "Some dates correspond with external events; identity of 'R.S.' unproved; subject of the meeting only partially remembered."

Justice Arya wrote: "Diary is supporting material; not a substitute for identification of a person."

Fifth: "Sudip's guilt."

The courtroom fell silent again.

Devvrat said, "Human context. Not independent proof of legal guilt."

Vidyanand added, "The defence agrees."

For the first time, Justice Arya gave a faint smile. "Let that agreement be recorded."

In the next part of the hearing, the Court raised a difficult question: "How, after all, does an allegation come into being?"

Devvrat replied, "For an allegation, every element need not already be finally proved; there must be sufficient material to create a basis worthy of an answer."

Vidyanand said, "But before suspicion is given the form of an allegation, its source, credibility, alternative explanation, and the necessary legal elements should be clear."

Justice Arya asked, "And evidence?"

Mrinal replied, "Material upon which a court may lawfully rely; its weight and conclusiveness are separate questions."

"And a proved fact?"

For a few moments no one spoke.

Vidyanand said, "A fact for which the required standard of proof at the relevant stage has been met."

Devvrat added, "And which has been expressly accepted in the adjudicatory order; not merely asserted by a party."

In the corner of the page, Justice Arya wrote: "Suspicion generates a question. An allegation demands an answer. Evidence survives testing. A proved fact crosses the judicial standard."

Watching from behind, Aditya remembered the tradition of Gangesha Upadhyaya—not merely the name of an object, but the delimitor; not the appearance of a relation, but the boundary of the relation. Before saying "known," one had to see the ground of the knowing.

Malini wrote quietly: "The same material may carry different weight for different propositions."

Aditya looked at her paper. "Keep that line."

Malini asked, "An example?"

"For Rajat, the payments may be a proved fact as to receipt of money; as to an unlawful purpose, only an indication. Manoj's calls are partial evidence of the occurrence of calls; as to the caller's identity, a suspicion. Sudip's diary supports his memory of dates; it is insufficient to identify Raghav."

Malini said, "Meaning evidence is not a permanent label attached to an object?"

A faint light came into Aditya's eyes. "Exactly. Ask: evidence with respect to which proposition?"

As the afternoon declined, Ananya Kashyap stood beside a pillar outside the courtroom, apart from the crowd of journalists. Her editor had sent three messages: "Do three witnesses strengthen the State's case?" "Threat proved?" "Confession of guilt?"

Ananya had not replied. She wrote the headline for her report: "High Court considers direction to read witnesses' emotions separately from evidentiary status."

A colleague asked, "Will that headline sell?"

"I am not writing a market."

"Sudip did say, 'I am guilty.' That could be the main headline."

Ananya looked at him. "Immediately afterward he clarified that he meant guilty in his own eyes. The Court did not treat it as an admission of legal guilt. Cutting half a sentence into a headline is cutting the fact itself."

"Manoj's son's school?"

"I will write it. And I will also write that the actor is unknown."

"Rajat's five payments?"

"I will write them. And that the purpose is disputed."

Her colleague laughed. "Every sentence in your report seems to have a semicolon after it."

Ananya said, "In a courtroom, a semicolon sometimes saves a human being."

At the brief resumed hearing in the evening, Manoj, Rajat, and Sudip sat separately in the outside veranda. None of them spoke to the others.

Manoj's wife had given him water. Rajat had switched off the screen of his telephone and put it in his pocket. Sudip stared at the wall.

Malini came out carrying papers, and Manoj stopped her. "Madam, one thing."

"Tell me."

"If those people are never found, does my fear remain only a statement?"

Malini paused for a few moments, searching for an answer. "Your fear is a real experience. The identity of the person who caused it is a different question. Both things can be true at the same time."

Manoj asked, "And justice?"

Malini said, "Sometimes justice begins by refusing to say that we know what we do not know."

Manoj fell silent.

Rajat, listening from across the veranda, suddenly said, "Then I will say this: I took five payments. But if I do not know what I took them for, then I do not know."

Sudip turned his eyes from the wall. "And I regret what I did. But I will not name a crime I did not see."

The three looked at one another. No friendship formed. No collective penance. Only three separate human beings were making the burden of their own sentences a little lighter.

As Malini went back inside, she understood that a witness who was "breaking and joining" did not necessarily mean a witness wavering between truth and falsehood; sometimes it meant someone learning to separate the language of emotion from the language of the facts he had seen.

At five in the evening, Justice Arya pronounced a short order.

"One—certain external circumstances partially support Manoj Mahato's statement concerning fear; the actor and purpose remain unproved."

"Two—Rajat Pal's five additional payments are established by bank record; an unlawful purpose for those payments is not at present proved. Financial self-interest may be relevant to testing the credibility of his statement; it is not by itself proof either of truth or falsehood."

"Three—Sudip Ghosh's private diary is supporting material on certain dates and questions of presence; the identity of 'R.S.' and the unlawful purpose of the alleged meeting require separate proof."

"Four—the fear, desire for gain, shame, or sense of guilt of a witness shall not be cited as a substitute for legal guilt."

"Five—in their next submissions, the parties shall state, against each disputed proposition, its present status: suspicion, allegation, indication, evidence, judicially accepted fact, or presently undecided."

Vidyanand rose. "My Lady, are 'judicially accepted fact' and 'proved fact' being used in the same sense?"

Justice Arya said, "Not at this stage. An accepted fact may sometimes be an undisputed procedural fact; the word 'proved' signals the relevant legal standard. Both the State and the defence will choose their words carefully."

Devvrat made a note.

Justice Arya read the next line: "No party shall declare an element of an offence proved from a witness's mental state where the record contains no independent basis for that element."

Then she closed the order. "A court is not an institution without feeling. But feeling does not alter the rules of evidence."

After the Court rose, Aditya and Malini were descending the stairs. Outside, the evening light lay long across the stone steps.

Malini asked, "Sir, did the State's case become stronger today or weaker?"

Aditya stopped. "That question is another form of the same disease."

"Then?"

"Some propositions grew stronger, some weaker, and some merely clearer. A court's task is not to form an overall mood; it is to test proposition by proposition."

"Manoj?"

"The external circumstances of his fear grew stronger. The identity of the actor did not."

"Rajat?"

"The fact of money is firm. The purpose remains open."

"Sudip?"

"His remorse is deep as a human matter. Limited as a legal one."

Malini said, "With so many boundaries, how does the story move forward?"

Stepping down from the last stair, Aditya said, "A boundary does not stop the story. It stops the improper leap."

At that moment he remembered the fields of Garh En Arikel. From a distance the paddy ears all looked the same green, but the farmer knew which field held too much water, where the soil was hard, which plant was diseased, which healthy. One colour from afar; many causes up close.

It was as though Gangesha Upadhyaya's method said the same thing: the single word "evidence" does not bear the same weight for every proposition. State the boundary of the relation, and the size of the conclusion will determine itself.

Aditya said quietly, "Before evidence, ask: evidence of what?"

Malini heard him. "And before an allegation?"

"On the basis of which fact."

"Before suspicion?"

Aditya smiled slightly. "Sometimes suspicion comes first. Method gives it a name."

They went out.

Behind them, the three files inside the courtroom had been closed, but the question remained open: whether the fear, greed, and guilt of the human mind point toward truth or toward error is not determined by emotion itself. It is determined by source, independent support, contrary possibility, and that boundary at which a court can say—this far we know; beyond this, not yet.

049 The Touchstone of Testimony — Chapter 10

That morning, three files were already lying on the High Court bench. One bore the State's blue band, another the defence's grey band, and the third a white slip from the Court. On the white slip were written only five words: "The wording of the privilege log is itself disputed."

Justice Arya took her seat. Her first glance fell upon Vidyanand Mishra's file.

"In the previous order, the Court said that the parties would separately state suspicion, allegation, indication, evidence, and fact judicially accepted. Today's question is slightly different. If the word 'privileged' is written against a record, does that word itself become the boundary?"

Vidyanand rose. "My Lady, not the word alone. Its basis lies in the purpose of the communication, the lawyer-client relationship, and the confidentiality of legal advice."

Devvrat Sinha said, "The State does not dispute that principle. The dispute is that in some entries of the log, the entire thread has been described as 'legal strategy', although the first messages in the thread were business records created before the lawyer was added."

Justice Arya asked, "How many entries?"

Mrinal Dhar answered, "Twelve."

"And what does the State seek?"

"Not the removal of privilege. First, clarity as to the boundary of the words. In each thread, the original message, the later legal question, the lawyer's reply, any pre-existing attachment, and any external source should be shown separately."

Vidyanand said, "That very separation can sometimes reveal the substance of privileged material."

"Quite so," Justice Arya said. "Then we shall put that risk into words as well."

Malini Karna sat in the second row behind the State. Before her lay a table of the twelve entries. Her brow tightened as she read the first line: "Email thread: legal strategy—wholly privileged."

She slid a note toward Aditya Jha: "Basis for the word 'wholly'?"

Aditya wrote in pencil along the margin: "Source of that word: defence. Not the State's conclusion."

Malini wrote again: "Lawyer not a recipient in first three messages of thread."

Aditya replied: "That does not automatically make them unprotected. But the justification for 'wholly' may be asked."

Malini nodded. She remembered the first privilege hearing, when the Court had separated the name of a record from its actual purpose. But today's question was finer still—sometimes the same thread contained different sentences, different attachments, different times, and different purposes.

On the bench, Justice Arya read the first entry. "Serial 27. Description—'Confidential email thread concerning legal strategy.' Date of creation?"

Vidyanand said, "Twelfth June to fifteenth June."

"When was the lawyer first added?"

"Fourteenth June."

"Then why are the materials of the twelfth and thirteenth of June also described as 'legal strategy'?"

Vidyanand looked at the file for a moment. "Because the same facts were used in the later consultation."

Devvrat did not speak at once. When the Court's gaze turned to him, he said, "The State's question is this: does later use in legal consultation alter the original character of a pre-existing record, or only the context in which it is used?"

Justice Arya looked at Vidyanand. "Answer?"

"The original character does not always change," Vidyanand said, "but the selection, arrangement, form of the question, and the lawyer's response may enter the field of privilege."

"Let that answer be placed on record," Justice Arya said. "A claim of privilege will be tested not by the name given to the whole thread, but by the reason for the portion claimed."

Malini stopped her pencil. 'Not by the name, but by the reason.' The line settled inside her.

The second entry was a payment table attached to an email. The log described it as: "Confidential financial material for counsel's analysis."

Mrinal Dhar said, "According to the State, this table was created in the accounts department six days before it was sent to counsel."

Vidyanand replied, "The selection of the table formed part of the legal question."

"Selection," Justice Arya repeated. "The original table and the reason for selecting it are different things?"

“They may be.”

“Then why does the wording of the log place both under one cover?”

Vidyanand’s junior handed forward some papers. Vidyanand read them, then said, “The description is broader than necessary. We will submit a revised log.”

No one in the State’s row whispered. Aditya merely wrote on his note: “Correction = admitted error; false intent not proved.”

Malini saw the line. She remembered Vidyanand’s recent insistence that, without evidence, one must not say “knowingly false presentation.” The State’s own discipline now stood on the same touchstone.

Justice Arya asked, “What conclusion does the State seek from this revision?”

Devvrat said, “Only that the question of the original table’s independent existence remains open. The State does not say that the broader description was knowingly erroneous.”

“Not ‘erroneous’,” Malini corrected herself inwardly—“broader than necessary.”

Justice Arya said, “Let the record say ‘broader than necessary’.”

Malini looked up at the Judge in surprise. It was as though the language of the Court and the language in her mind had, for one moment, fallen on the same line.

The third entry was difficult. The subject line of a short email read: “Situation extremely bad—urgent advice needed.” The subject line alone did not reveal the full nature of the underlying problem, but the defence said that the sender, date, recipient, and name of the attachment, read together, could disclose the legal question by inference.

Devvrat said, “The State does not seek the contents. It only needs to know whether the attachment was a pre-existing business record or a new note prepared for consultation.”

Vidyanand replied, “Even the answer to that question can sometimes disclose the subject of the consultation.”

Justice Arya asked, “Then what is the minimum description possible?”

Vidyanand remained silent.

Mrinal said, “For example—‘a pre-existing record’, or ‘a new note prepared for consultation’, without stating the subject.”

Vidyanand thought for a moment. “If the Court prescribes that language in its order, we will not object.”

Justice Arya asked, “Why should the Court prescribe it? Why can the parties not themselves give so limited a description?”

Vidyanand did not smile. “Because, My Lady, if the boundary itself later becomes disputed, the party should not then be accused of having deliberately remained vague.”

Justice Arya said, “I understand. Then we need a middle language between obscurity and disclosure.”

She wrote: “Where a detailed description would itself create a reasonable apprehension of revealing the subject of legal advice, the log may be confined to minimum structural facts; however, general adjectives such as ‘confidential’ or ‘legal’ shall not by themselves suffice.”

Words of Gangesha rose in Aditya’s mind—an adjective identifies an object, but if it is so broad that it applies to everything, it ceases to perform the work of distinction.

He did not write that thought down. In court, one needed not the name of the philosophy, but its method.

At the fourth entry, the atmosphere grew a little harder. The log described it as: “Legal advice concerning customer risk.” The State already had, from a separate source, a computational table bearing that same name.

Devvrat said, “The copy available to the State has a different hash; some rows are the same, some differ. We are not seeking the privileged copy. We ask this: does the log claim the whole table is protected merely because one version of it was sent to counsel?”

Vidyanand replied, “No. We make no claim over the copy from the external source.”

“Then the words ‘legal advice concerning customer risk’ in the log do not apply to the existence of the original table?”

“No. They apply to the version shared with counsel and to the accompanying comments.”

Justice Arya said, “Show that distinction in the log. For the Court, the ‘same name’ does not mean the same object.”

Malini then remembered an earlier table in which she had written ‘the same record’, only for hash comparison later to reveal two versions. She immediately wrote on a slip: “Identity of name ≠ identity of record.”

Aditya read it and said, “Keep that.”

“For this chapter too?” Malini asked softly.

Aditya looked at her. “We are not writing a book.”

Malini smiled. “But sometimes it feels as though the record writes itself.”

Aditya did not answer.

Before lunch, the Court moved through the fifth to the eighth entries. The dispute took different forms of the same underlying question.

In one, counsel's name appeared among those copied, but the principal message was an ordinary operational instruction.

In another, the legal question was explicit, but the accompanying attachment was a public regulatory circular.

In a third, the client's comment and counsel's answer were quoted in the same paragraph, making partial severance difficult.

In a fourth, an external accountant's factual summary had been sent to counsel, but the parties disagreed over whether the accountant was himself part of the consultative relationship or an independent service provider.

Justice Arya did not ask the same question each time. She kept changing the words.

"When was this record created?"

"For whom was it created?"

"What was the role of the person to whom it was sent?"

"Does this portion state an underlying fact or legal advice?"

"Did the attachment already exist?"

"Is it independently available from an external source?"

"If it is severed, will the remaining sentence become meaningless?"

"What description would itself disclose the subject of privilege?"

The questions changed, but Malini began to see a method. The Court was not drawing a circle around the word "privilege"; it was asking the boundary of each relationship.

Vidyanand saw it too. At one point he himself said, "My Lady, we withdraw the claim over this attachment. But the two accompanying paragraphs should remain protected as they are."

Devvrat said, "The State agrees, provided the original copy of the attachment can be verified from an independent source."

Justice Arya said, "Let that agreement be placed on record."

It was a small agreement. But the temperature of the room fell a little.

During the lunch recess, Ananya Kashyap stood in the court corridor writing notes. A media reporter asked her, "Has the State broken privilege?"

Ananya looked up. "No."

"Has the defence withdrawn the log?"

"No."

"Then what is the news?"

"The Court has said that the words written in the log are not themselves the final conclusion. The reason for each claim will be examined."

The reporter wrinkled his nose. "That won't make a headline."

Ananya said, "Then shorten the headline, not the facts."

"Crack in the shield of privilege?"

"The Court did not say that."

"Major victory for the State?"

"Not that either."

"Defence retreats?"

Ananya said, "A claim was withdrawn over one attachment. The remaining questions are open. To write 'retreats' would be to add meaning."

The reporter laughed and walked away.

Ananya wrote her headline: "High Court seeks record-by-record reasons instead of general labels in privilege log."

Then she stopped at the word 'seeks'. The order had not yet been completed. She changed the headline: "High Court questions sufficiency of general labels in privilege log."

Then she added: "Hearing continues."

After lunch, Vidyanand Mishra rose with a thin file. "My Lady, the defence has a reverse question."

"Go on."

"In the State's investigation summary, certain emails have been described as 'business'. By writing the word 'business', may the State treat the possibility of privilege as extinguished?"

Devvrat answered at once, "No."

Vidyanand looked at him. "Then we agree that general labels are insufficient on both sides."

Justice Arya said, "That is precisely the centre of the Court's question. Writing 'legal' does not protect everything; writing 'business' does not open everything. Purpose, relationship, time, source, and the nature of the material must be examined."

Malini remembered her own table. In places she had written "operational material", where legal comments were later found. She placed a note before Aditya: "Re-examine State labels too?"

Aditya wrote: "This evening."

Malini wrote again: "All?"

Aditya replied: “Wherever the label reads like a conclusion.”
In that small slip lay the hearing’s real consequence for the State.

The ninth entry concerned a deleted mail archive. In the forensic image, some headers, timestamps, and attachment names survived; the original contents were incomplete. The defence said that what remained was the external structure of legal communications, and that combining those fragments could reveal the subject of the consultation by inference. The State said that the existence, timing, and transmission path of the deleted material were independent facts of the investigation.

Justice Arya asked, “Is the State drawing meaning from the contents, or only a chronology of events?”

Mrinal said, “Primarily the chronology. But parts of the attachment names indicate source relationships.”

Vidyanand said, “Those very names may disclose the legal question.”

Justice Arya remained silent for a few moments. “Stop the open argument on this entry here. The Court will itself examine the boundary between minimum external information and possible legal substance.”

Devvrat said, “The State has no objection, provided the purpose of the inspection is narrowly recorded.”

Vidyanand agreed.

“Purpose?” Justice Arya asked.

Mrinal answered, “Only to determine what external facts may be placed before the parties without revealing privileged substance.”

Justice Arya wrote. “Beyond that boundary, the Court will draw no conclusion at this stage.”

A thought rose in Aditya’s mind: seeing something under seal does not increase its truth; it only restricts access. That had already been made clear in the first sealed-material dispute. But today a new distinction had been added—sometimes a seal exists to preserve a boundary, not to proclaim truth.

On the tenth entry, the defence itself opened the dispute.

Vidyanand said, “In this thread our log uses the word ‘strategy’. On review, we found that the first message merely fixes a meeting. We withdraw the claim of privilege over that message.”

Justice Arya asked, “Why this correction?”

“Because the fact of arranging a meeting is not legal advice.”

“And the purpose of the meeting?”

“That may possibly fall within the protected portion.”

Devvrat said, “The State seeks only the time and the names of the participants; not the subject.”

Vidyanand glanced for a moment at an unread morning message from Shailaja on his telephone. Then he turned the telephone face down. “No objection to the time and participants—if they are externally available.”

Justice Arya looked at his face, but asked nothing personal. A court may see human fatigue; it does not turn it into evidence.

She said, “Record that agreement in its limited form.”

At the eleventh entry, the argument sharpened again. It was a long record in which business risk, customer-identification procedures, blockage of a payment gateway, and some comments by counsel were mixed within the same file.

The defence said that severance would destroy the sequence of the record; the State said that non-legal factual portions could be separated.

Justice Arya asked, “After severance, will the remaining portions retain their meaning?”

Vidyanand said, “In some places, no.”

“How many?”

“Four paragraphs.”

“And the rest?”

“Nine paragraphs can probably be separated.”

Devvrat said, “The State seeks those nine, but only to the extent that they contain independent facts.”

Justice Arya said, “Then the defence will prepare a redacted copy of those nine paragraphs; for the four paragraphs it will provide the Court, under seal, with a summary of the reason—not their contents—to explain the claim.”

Vidyanand asked, “How much may the reason-summary contain?”

“Enough for the Court to test the claim; not enough to disclose the advice.”

“That boundary is difficult to put into words.”

“That is why we are testing the words, Mr Mishra.”

A faint wave of laughter moved through the room and subsided.

The twelfth entry was the shortest—only a three-line note. Yet the dispute over it was the deepest. The sender was a senior officer; the recipient, the company’s counsel; the subject: “Tomorrow’s meeting.” The note contained one sentence of fact, one sentence posing a question, and one sentence suggesting a possible answer.

The State said the first sentence was a factual statement. The defence said that the fact had been selected in that form for legal advice, and that severing it would destroy the purpose of the communication.

Justice Arya asked, "Is the fact in the first sentence available from external records?"

Mrinal said, "Partly."

"Completely?"

"No."

Vidyanand said, "And the part not found in the external record may itself be central to the selection made for consultation."

Justice Arya said, "Then the Court will not hear the substance of that sentence in open argument."

Devvrat agreed.

"But," Justice Arya continued, "the State shall not be barred from using facts it establishes independently from external sources merely because the same facts were once written in a legal communication. In this particular matter, source-independence shall be shown separately."

Vidyanand said, "We have no objection, provided the State does not cite the privileged communication as the source."

"Very well."

Malini wrote: "Same fact, different source; protected communication ≠ monopoly over the fact."

She paused at the word 'monopoly'. Then she struck it out and wrote: "Does not extinguish the fact's external existence."

Aditya saw the correction. "The second is better."

Before the hearing ended, Justice Arya read aloud the draft of her order.

"One—general labels in a privilege log are not conclusive in themselves. Words such as 'legal', 'confidential', 'strategy', and 'consultation' are not substitutes for reasons."

"Two—a pre-existing business or external record does not automatically become privileged in its original existence merely because it is later attached to a legal communication; however, selection, annotation, the framing of a question, arrangement, or counsel's response may require separate examination."

"Three—where a detailed log description would itself risk revealing the substance of legal advice, a minimum structural description may be accepted; nevertheless, sufficient reasons for testing the claim shall remain available to the Court."

"Four—the State, too, shall not reject the possibility of privilege merely on the basis of labels such as 'business', 'operational', or 'ordinary'."

"Five—the same name, subject line, or file name does not establish identity of object; version, source, time of creation, and hash, where available, shall be examined separately."

"Six—the question of using a fact independently obtained from an external source shall remain separate from the presence of the same fact in a privileged communication; the privileged communication itself shall not be cited as the source of the external fact."

"Seven—limited portions of entries nine, eleven, and twelve shall be submitted to the Court under seal. The purpose of inspection shall be only to determine access boundaries, severance, and minimum disclosure; no conclusion as to the truth of the contents shall be drawn at this stage."

"Eight—in the revised log, the parties shall separately identify the underlying record, purpose of communication, time of creation, class of recipient, pre-existing attachment, availability of an external source, and scope of the claim—where such details do not themselves disclose the subject of the consultation."

Justice Arya set down her pen. "Anything to add?"

Vidyanand rose. "One line—that correction of the log shall not by itself be treated as waiver or as admission of a false claim."

Devvrat said, "The State agrees, provided every revised version is preserved."

Justice Arya wrote. "Nine—revision may form part of transparency; the intent behind it shall be proved, if at all, by separate material."

Aditya's eyes met Vidyanand's for a moment. They were adversaries, but on this line their discipline was the same.

After the Court rose, Malini and Aditya returned to the office. The first thing Malini did was open her old classification table.

"Sir, the word 'business' appears thirty-one times."

"Do not change all of them."

"Then?"

"Where the word merely describes the purpose of the work, keep it. Where it reads like a legal conclusion denying privilege, add the reason or narrow the language."

"Ordinary correspondence?"

"Examine that too. Ordinary from whose point of view?"

"Purely operational?"

“Ask the basis for ‘purely’.”

Malini laughed. “No adjective is safe today.”

Aditya said, “The adjective is not guilty. An adjective without a boundary is dangerous.”

Malini resumed writing.

One line—“ordinary operational correspondence relating to customer identification”—became: “correspondence concerning the timetable of the customer-identification process; no legal opinion identified in the available copy; question of privilege independently reviewable.”

Another—“purely financial record”—became: “payment table; original copy obtained from accounting source; question of later legal use not determined by this copy.”

A third—“non-legal”—was deleted. In its place she wrote: “Origin: operations department; purpose: process information according to material presently available; relationship with counsel communications separate.”

Malini asked, “All this will take longer to read.”

Aditya said, “If ambiguity survives, it will take even longer in court.”

By evening, darkness had descended upon the office glass. Before Aditya lay the procedure for the sealed submission of the ninth entry. He closed it.

“The rest tomorrow,” Malini said.

“You go.”

“And you?”

“Out for a while.”

Malini understood that ‘out’ did not mean the office veranda. She asked nothing.

At night, the air by the Ganges was cold. The city lights broke across the surface of the water into small lines. Aditya sat on one of the steps. He had no file in his hand; his telephone was silent.

The day’s words returned to his mind—legal. Business. Confidential. Ordinary. Whole. Only. Independent. Attached.

Such small words, and yet each needed a boundary behind it.

He remembered the old school at Garh En Arikel, where in childhood an elderly pandit had told him, “Naming is easy; stating the distinction is hard.” At the time, the sentence had sounded like grammar alone. Later, while studying Gangesha Upadhyaya’s method, he understood: which object is limited by which qualifier, how far a relation extends—this is not merely a game of language; it is a discipline of knowledge.

The Ganges flowed slowly. The reflection of a lamp on the bank stretched long and trembled in the water. Aditya thought—the length of the reflection was not the size of the lamp. Change the medium and the form changes. Sometimes words, too, are such a medium.

If one says “legal communication”, does the whole record become legal?

If one says “business”, does the consultation disappear?

If one says “confidential”, does truth increase?

If one says “ordinary”, does risk diminish?

The answer was not always the same. That was why Gangesha’s method drew him: it did not discard words; it asked about their relations.

Aditya remembered the recent evidence of Manoj, Rajat, and Sudip. “Fear”, “greed”, “guilt”—all three could be human truths, while the boundary of legal conclusion remained different. Today “privilege” was repeating the same lesson at a higher level—what does a word protect? A sentence? A question? An answer? A pre-existing table? An attachment? Or only that relationship in which a person seeks legal advice?

A boat passed at a distance on the Ganges. For a few moments the sound of its oars could be heard, then it faded away.

Aditya said within himself, “The meaning of a word is also made by the silence around it.”

Then he checked himself. It was a beautiful sentence, but not a rule of law. Between literature and evidence, too, a boundary was needed.

He smiled. Gangesha might have been pleased by that self-correction.

At around ten that night, Vidyanand Mishra sat in the study at his home. Shailaja had taken her medicine and gone to sleep. The revised privilege log lay open on the desk.

A message came from his junior: “Sir, should we replace ‘legal strategy’ with ‘communication for counsel’s advice’?”

Vidyanand replied: “Where advice was actually sought, yes. Where counsel was merely copied, no.”

A second message: “Pre-existing attachments?”

“Separate line. State original source. If the reason for selection is protected, seal the summary of that reason.”

A third: “Will the State call the revision a weakness?”

Vidyanand did not answer for a few moments. Then he wrote: “In court, the accurate word is not a weakness.”

He put down the telephone. The door to Shailaja's room was half open. A dim light burned within. Vidyanand looked at the papers. The dignity of the profession did not always lie in defeating the other side; sometimes it lay in taking back one's own overbroad word.

The next morning, the sealed envelope reached the Court. On the white paper was written: "For limited inspection by the Court only—Entries 9, 11, 12."

A court officer placed the envelope on the bench. Devvrat, Mrinal, Vidyanand, Aditya, Malini—all their eyes rested upon it for a moment.

Justice Arya did not open the envelope.

First she asked, "Are the parties agreed on the purpose of the inspection?"

Devvrat said, "Yes—access boundary, severance, minimum disclosure."

Vidyanand said, "And no conclusion at this stage on the truth of the contents."

"Very well."

Justice Arya added one line to the order: "A seal controls access; it does not, by itself, determine evidentiary value."

For a moment, the Ganges of the previous night flashed again inside Aditya.

Justice Arya drew the envelope toward herself. "The next hearing will proceed within this boundary."

The room fell silent.

The touchstone of testimony was now to enter the sealed material—but the boundary had already been written.

०५० Inside the Sealed Envelope

A white envelope lay before Justice Arya. Along its edge was the court's seal; in the centre, a reference to Entries 9, 11 and 12; and below, a single line: "Limited inspection; no finding on the truth of the contents."

Everyone seated before the Bench understood the weight of that one line.

Devvrat Sinha rose. "My Lady, the State's submission is only this: that the Court first inspect the material within the limits already fixed. We shall not repeat the contents of the sealed portions in open argument."

Vidyanand Mishra said, "The defence also agrees to that limit. Our only request is that inspection itself should not become an acceptance of authenticity or truth."

Justice Arya said, "That is already recorded. Today I shall record one further thing. What the Court sees will not necessarily be seen by the State; and what the State does not see cannot be made the basis on which the State seeks an open finding."

Malini Karna opened her notebook. On the first line she wrote: "Judicial inspection ≠ a party's evidence."

Aditya Jha saw what she had written, but said nothing.

Justice Arya looked toward the court officer. "Read the record of the seal."

The officer read out the sequence, time, signatures and receipt details. When the envelope had been deposited, where it had come from, who had received it, and in whose judicial custody it had remained before being opened—all of it was recorded.

Vidyanand said, "This custody register concerns only this envelope?"

"Yes," the officer replied.

"Not the original computational material?"

"No."

Justice Arya said at once, "An important distinction. This register can establish only the custody of the sealed submission; not the earlier history of the original material."

Malini wrote a second line: "Custody of the envelope ≠ custody of the original source."

Aditya said softly, "In this chapter, preserve the relation before the word."

Malini nodded.

Justice Arya broke the seal. The faint sound of paper was heard in the room.

She lifted the first file from inside. "Entry 9."

Vidyanand said, "This is a communication sent to counsel. An already-existing business table is attached in the middle."

Devvrat said, "The State's question is not about the legal portion of the communication. The question is whether the original copy of the attached table existed earlier in the accounting source, and whether its time of creation can be independently established."

Justice Arya looked through several pages. Then she said, "Defence, is your claim over the entire attachment?"

Vidyanand replied, "No, My Lady. We make no absolute claim over the original table. The claim concerns its selection, the purpose for which it was sent, the accompanying question, and counsel's response."

"Then why did your list describe the whole chain as 'legal strategy'?"

Vidyanand was silent for a moment. "The list was overbroad. In the revised list we have narrowed the claim."

Devvrat said, "The State accepts that revision, but the versions should be preserved."

"They will be," Justice Arya said. "Now hear the State's question."

Without looking at the page, Devvrat said, "First—did the attached table exist before it was sent to counsel? Second—is an independent accounting source for it available? Third—can hash identity or a version difference be established between the copy obtained by the State and the copy attached here? Fourth—can the State use those facts without quoting the rest of the communication?"

Vidyanand said, "There is no objection in principle to the first two questions. As to the third, if the Court releases only a copy of the pre-existing attachment, a technical comparison is possible. But the context of its selection must not be disclosed."

Justice Arya looked at Malini. "Do you understand the limit of technical assistance?"

Malini rose. "My Lady. If the Court provides only the pre-existing table as a separate attachment, I can compare its hash and creation indicators with the copy from the independent source. I do not need the text of the communication with counsel."

"And if the hashes match?"

"Then only this much: the two copies compared are identical. Not that their contents are true."

"And if the hashes differ?"

“Then a question of version difference or alteration arises. No conclusion should be drawn without testing the cause of the difference.”

Justice Arya said, “Good. Record this in the order: the pre-existing attachment to Entry 9 may be made available separately for technical comparison; the purpose of its selection, the question accompanying it, and the legal response shall remain protected. Comparison is not a finding of truth.”

Malini wrote it down. It struck her that the same paper could, in one context, be a business record; in another, part of a legal communication; and in a third, an object of computational comparison. One object, many relations.

Gangesha’s method seemed to have risen from the book and taken its seat upon the judicial bench.

Entry 11 was the largest.

Justice Arya turned the pages. At times her gaze paused; at times it moved on. Everyone else waited.

After a while she said, “This file contains four kinds of material in the same place—an operations table, internal factual notes, questions put to counsel, and counsel’s response.”

Vidyanand said, “Our revised list has reached the same classification.”

Devvrat asked, “Is the operations table available from an independent source?”

“Some portions,” Aditya said, “from the customer-identification system; some from payment-gateway records; and some, at present, appear only in this mixed file.”

Justice Arya asked, “What does the State call the portions for which there is no independent source?”

Aditya replied, “Factual portions seen by the Court in sealed material—but not independent evidence of the State.”

Devvrat looked at him. “Good. Stay with that language.”

Malini wrote: the line between “the Court saw” and “the State proved.”

Justice Arya said, “Malini Karna, in your earlier summary did you use the expression ‘independently corroborated’ at one place?”

Malini found the page. “Yes, My Lady.”

“The source for that line?”

“An external payment record and a factual note in this mixed file.”

“If the State cannot use that note as open evidence, does the phrase ‘independently corroborated’ survive?”

Malini was silent for a moment. “No. The external payment record supports only the amount and the time. The note supplied the purpose. ‘Independently corroborated’ is too broad.”

“What will you write?”

“Amount and time supported by an external source; purpose not yet independently established.”

Justice Arya said, “Record the correction.”

Malini paused with her pen and asked, “My Lady, if my earlier language was wrong, does that make the entire analysis unreliable?”

Vidyanand looked toward her. The question could have favoured the defence, but he did not interrupt.

Justice Arya replied, “An error in one word does not automatically destroy an entire analysis. But an analyst who refuses to correct the limits of her language certainly loses credibility. Revision is not weakness; if it is transparent, it is a strength of method.”

Malini wrote: “Revision = recorded self-correction; not proof of truth, but credibility of method.”

There was a faint look of approval in Aditya’s eyes.

Justice Arya paused at the middle portion of Entry 11.

“The word ‘control’ appears here,” she said. “Whose word is it?”

Vidyanand replied, “It appears in the internal officer’s question.”

“In counsel’s answer?”

“Different language is used.”

Devvrat said, “Some of the State’s preliminary summaries also used the word ‘control’, but it was later changed to ‘administrative access’.”

Justice Arya asked, “In this sealed passage, does ‘control’ mean ownership? Technical access? Decision-making authority? The power to stop payments? Or merely a question?”

Vidyanand said, “Here it is a question, not a conclusion.”

Devvrat agreed. “The State will not quote the word as though it were an original assertion.”

Justice Arya said, “Then make it explicit in the order: a broad term used in sealed material shall not be deployed in open argument, without its context, in its broadest possible sense.”

Aditya wrote in his notes: “The range of a word must not exceed the range of its source.”

As he wrote the line, he remembered the fields of Garh En Arikel. Where one field’s boundary ridge ended, another field began. The ridge was only a small line of earth, but its clarity was necessary to prevent disputes over ownership. The boundary of a word was much the same.

Entry 12 was only three lines long.

Justice Arya read it again. “In these three lines: the first is a fact, the second a question, the third a possible answer. Do the parties agree with that classification?”

Vidyanand said, “Yes.”

Devvrat said, “The State shows partial support for the first fact from an external source.”

“And the rest?”

“The State seeks no use of it.”

Justice Arya asked, “Then what benefit does the State obtain from sealed inspection of this entry?”

Devvrat thought for a few moments. “The boundary has become clear. We now know what the State is not entitled to use.”

Justice Arya gave a faint smile. “That is an important answer. The result of judicial inspection is not always ‘more material’; sometimes it is ‘less use’.”

Malini immediately wrote: “Finding the boundary is also a result.”

Vidyanand said, “The defence particularly presses for that line.”

“Why?”

“Because the very existence of sealed material creates a story outside—as though there must necessarily be something decisive inside.”

Justice Arya said, “Then the Court will state in the open order that sealed inspection does not mean that decisive or adverse material was found.”

Ananya Kashyap, seated in the back row, stopped her pen at that sentence. A possible headline formed in her mind — “Major Revelation in Sealed File”—and she struck it out at once.

She wrote instead: “Court: sealed inspection is not itself a conclusion.”

Vidyanand now raised the question of the case diary.

“My Lady, at several places in the State’s open summary the phrase ‘verified according to the diary’ appears. If the diary is confidential and the defence cannot see its source-path, how is the word ‘verified’ to be tested?”

Devvrat said, “The diary protects the direction of the investigation. The identity of sources, incomplete leads, failed searches—not all of that can be disclosed.”

“I am not asking for the entire diary,” Vidyanand replied. “I am asking for the basis of the word on which the State relies in open court.”

Justice Arya looked at Aditya. “Who wrote ‘verified according to the diary’ in the State’s summary?”

Aditya said, “Our team, in the preliminary compilation. Some entries were later revised, but the phrase may have survived in a few places.”

“What does ‘verified’ mean?”

“In some places, only that an officer recorded a direction for checking another source. In other places, an external record was found later. The two are not the same.”

Justice Arya said, “Then one word was used for two different conditions.”

“Yes, My Lady.”

Vidyanand said, “That is our objection.”

Devvrat looked at Aditya. “Can it be corrected?”

“Yes. Where the diary merely records a direction, write ‘marked for investigation’; where an external record was found, write ‘supported by [specified] independent source’; where verification failed, write ‘no support found’.”

Justice Arya said, “Separate all three categories in the open summary. The case diary itself will not take the place of evidence.”

Malini wrote: “Direction, support, failure—three different words.”

Vidyanand said, “And if the State relies on a contradiction recorded in the diary?”

“Then,” Justice Arya said, “where the law permits, the substance of the necessary contradiction must be made available in a form that can be tested by the parties; the entire diary need not be opened. But the basis of an open allegation cannot remain concealed merely under the name of confidentiality.”

Devvrat said, “The State agrees.”

Aditya added, “What if the identity of the source is security-sensitive?”

“Then identity is a separate question. The Court will see the reason; where possible, the source category, time and nature of support should be disclosed. The name need not always be revealed, but the word ‘confidential’ is not itself evidence.”

Aditya nodded.

At that moment he remembered an old sentence from the argument over sealed material: a seal controls access, not truth. Today the second half of that sentence was becoming clear—confidentiality may protect a source; the evidentiary weight requires a separate test.

The Court rose for a half-hour recess.

The corridor outside filled at once. Journalists, junior advocates, officers—everyone spoke within their own cluster.

Ananya came over to Malini. “Was there anything inside that could become the centre of the news?”

For a moment Malini looked into Ananya's eyes. In the old days she might have said, "There is significant material." Now she stopped herself.

"I cannot speak about the sealed contents."

"Fine. What about the open order?"

"The open order says that inspection does not mean a conclusion."

Ananya smiled. "That makes for a less glittering headline."

"But it will be accurate."

"Today seems to be a day for accuracy over glitter."

"Mine too," Malini said, laughing.

Ananya closed her notebook. "One question—is the State withdrawing the word 'verified'?"

"Where the diary merely recorded an investigative direction, the language will be corrected. Where there is an external source, the source will be stated."

"Then can I write: 'State to narrow its terminology'?"

"That was said in open court."

"That is enough."

Ananya walked away. Malini watched her go. The discipline of words was becoming a touchstone not only for the courtroom, but for journalism as well.



After the recess, the Court sat again.

Justice Arya said, "I shall now set out the procedure, so that sealed inspection does not become a source of confusion in future argument."

She began dictating the points one by one.

"One—judicial inspection of sealed material is not an acceptance of the truth, authenticity, admissibility, or guilt-proving force of its contents."

"Two—where any party seeks open relief on the basis of a portion, the usable basis for that portion shall, as far as possible, be made available for adversarial testing through an open source or an adequate summary."

"Three—pre-existing business or technical attachments, if available from independent sources, may have their independent existence tested separately; privileged selection or commentary does not thereby become open."

"Four—tests of hash, creation time, version or custody answer questions concerning the identity and history of material; they do not by themselves establish the truth of its contents."

"Five—the case diary may contain the direction of the investigation, incomplete leads, failed searches and source protection; its confidentiality does not automatically increase its evidentiary value."

"Six—in open presentation, the State shall use terms such as 'verified', 'corroborated', 'control', 'admission', 'complete', and 'independent' only when the specific basis for the term is separately stated."

"Seven—where sealed material causes the State to understand the proper limit of a word, that understanding shall be used to narrow or clarify an open conclusion, not to enlarge it."

"Eight—the defence shall show a claim of privilege not merely by a category label, but by the purpose of the communication, its time of creation, recipient, original source, and the limits of the protected portion; protected legal advice need not, however, be disclosed openly."

"Nine—the Court shall not substitute its internal inspection notes for an evidentiary summary available to the parties."

"Ten—where a concealed portion makes a fair answer in open argument impossible, the Court may restrict its use, direct a summary, or defer the related claim."

Justice Arya put down her pen. "Parties?"

Devvrat said, "The State agrees."

Vidyanand said, "The defence would add two words—'as far as possible' before open summary, because sometimes even a summary can disclose the advice."

"They are already there," Justice Arya said.

Vidyanand smiled faintly. "Then there is no objection."

Mrinal Dhar said, "In point six, may 'source category' be added alongside 'specific basis'?"

Justice Arya thought for a moment. "Where the name of a source must be protected, source category will be useful. Add it."

Aditya wrote: "Not the name, but the category; not the conclusion, but the limit."



As the order was being written, Justice Arya called Malini again.

"What did you learn today?"

The question was unexpected. Malini rose.

"My Lady, earlier I classified factual material mainly according to source—computational, payment, customer-identification, communication. I now understand that judicial use requires another classification."

"Which one?"

“What only the Court has seen; what all parties have seen; what is supported by an independent source; what is merely investigative interpretation; what cannot be used because of privilege; and what remains unproved.”

“The hardest distinction?”

Malini thought. “Between what the Court has seen and what the State has proved.”

“Why?”

“Because the mind says—if the judge has seen it, the thing ‘exists’. But in legal terms, ‘seen’ and ‘proved’ are different.”

Justice Arya said, “Exactly. And that distinction is not merely legal etiquette; it is a condition of a fair answer.”

Malini sat down. In her notebook, the largest line of the day stood beside one short sentence: “Seen ≠ proved.”

Before the hearing ended, Vidyanand rose.

“My Lady, one procedural question. Today’s order may affect the pending Special Leave proceedings. Will the State place it before the Supreme Court?”

Devvrat replied, “Yes. Not as a new proceeding. As supplementary grounds in the pending matter, because today’s order clarifies the limits of sealed inspection and use of the case diary.”

Vidyanand said, “The defence should receive a copy in time.”

“Certainly.”

Justice Arya said, “The filing will be procedural. No line of today’s order shall be presented as ‘victory for the State’ or ‘defeat for the defence’. The order says what it says—no more.”

At the back, Ananya wrote: “Supplementary grounds; not a new Special Leave Petition.”

She knew that the moment she stepped outside, the media would ask: “What was inside the sealed envelope?”

The answer would probably be the least attractive one: “Not everything inside it is open evidence.”

But today, that was the right answer.

Back at the office, Malini reopened her classification table. This time she added six new columns at the top.

“Original source.”

“Court’s limited inspection.”

“Party access.”

“Independent support.”

“Investigative interpretation.”

“Permitted use.”

Aditya looked at it. “One more column.”

“What?”

“What this does not prove.”

Malini laughed. “That column has become permanent now.”

“It should.”

Against Entry 9 she wrote: “Independent existence of table: testable. Legal purpose of selection: protected. Matching hash: identical copy only. Truth: no.”

Entry 11—“Some facts supported by external sources; some aspects of purpose not independently established; broad word ‘control’ not to be used.”

Entry 12—“Partial external support for first fact; question and possible answer protected; inspection does not indicate decisive material.”

Case diary—“Investigative direction; confidentiality; source category where possible; independent basis required for an open allegation.”

Malini put down her pen. “Sir, I understood one thing.”

“Tell me.”

“Earlier we treated confidential material as falling into two parts—either it opens or it does not. Now it seems the real questions are four: who may see it, what may they see, for what purpose may they see it, and after seeing it, what may they use?”

Aditya said, “The fourth question is the hardest.”

“Why?”

“Because a human being is tempted to use what he has seen.”

Malini fell silent.

Aditya added, “Method sometimes increases what we know; sometimes it reduces what we are permitted to do with what we know.”

That evening, an open copy of the order was sent to Home Minister Shiveshwar Prasad. His secretary asked, “Sir, the media is calling this an order favourable to the State. A response?”

Shiveshwar continued reading the paper. Then he said, “The order says sealed inspection is not a conclusion. Why, then, should we speak the language of victory?”

“Then what shall we say?”

“Say that the State will comply with the Court’s directions on the limits between open and sealed material, and will correct its language wherever it is overbroad.”

The secretary wrote it down. “That much?”

“That much.”

“There will be political questions.”

Shiveshwar closed the paper. “The Court’s confidence is larger than a political answer.”

No publicity line was made out of that sentence. The secretary released it exactly as it was.

When Aditya was leaving the office at night, Malini was still wrestling with her table.

“Not going home?” Aditya asked.

“This last line.”

“The last line is never the last.”

“Even so.”

She wrote: “Sealed material: limits of access; case diary: direction of investigation; independent source: a separate evidentiary question; judicial inspection: not a judicial finding.”

Then she rose and gathered the papers.

“What would Gangesha have said today?” Malini asked.

Aditya thought for a few moments. “Perhaps he would have asked: ‘The word you uttered—what is its object? What is its limit? What relation does it bear?’”

“The answer?”

“We shall search again tomorrow.”

They walked toward the door.

Outside, night had already fallen. The city lights reflected on the glass and spilled over the files inside. Some files were open, some sealed, some existed only in lists.

Truth was not imprisoned inside all of them in one and the same form. Sometimes it lay in the original record, sometimes in the relation of the source, sometimes in contradiction, and sometimes in the admission that at this moment the Court could say only this much: this was seen; this may be stated; this is independently supported; and this is not yet proved.

The next morning, a copy of this order was to go into the pending Special Leave matter as supplementary grounds.

The sealed envelope was closed again and returned to judicial custody.

But this time, more important than what lay inside it was the boundary drawn around it.

ॐ The Touchstone of Testimony — Chapter 12

The next morning Delhi's sky was overcast. Before the Supreme Court complex opened, Vidyanand Mishra sat in his office. Before him lay a copy of the High Court's order from the previous day, the State's supplementary grounds, the privilege log, and Malini Karna's revised terminology table.

The day before, Justice Arya had written: sealed inspection is not a conclusion. Today Vidyanand's question was different—if the court saw something whose full contents the defence could not see, how far could the shadow of that material fall upon an open judicial decision?

He read one line of the order again—"an adequate summary, as far as possible."

"As far as possible," he said softly, "is not a pair of words; it is an entire boundary."

Ishan, the junior advocate, sat opposite him. "Sir, should we prepare a fresh Special Leave Petition against this order?"

Vidyanand immediately shook his head. "No. The matter is already pending. A fresh petition would fracture the record. Yesterday's order will go into that same pending matter as supplementary grounds and a limited interim prayer."

"But the heading of the prayer?"

"Do not look at the heading; look at the procedure. A court file is not a story that begins anew at every turn."

Ishan made a note: "Pending Special Leave Petition; supplementary grounds; limited interim relief."

Vidyanand dictated another line. "And write this—we do not oppose the existence of sealed inspection. We seek clarity about the limits of its use."

"What relief shall we seek?"

"One: where adverse use of material is proposed, the defence's opportunity to answer must not be curtailed without an adequate open summary. Two: necessary facts must not be concealed behind the words 'as far as possible.' Three: the court's private inspection must not take the place of a party's proof. Four: where a part cannot be summarised, its adverse use must be limited."

Ishan asked, "And a stay of the High Court's entire order?"

"No. Seeking a sweeping stay would be swinging a sword without need. Let those disciplines in the order that increase fairness remain. Ask for limited directions on the disputed language."

Vidyanand's voice was tired, but his sentences were clear.

Outside the window the city was waking. Inside, the next page of a pending case was opening.



At half past eight Shailaja telephoned.

"I have taken the medicine," she said, "but have you seen this month's bill?"

Vidyanand's hand stopped over the papers for a moment. "I have."

"Ishan said you were at the office late again last night."

"The order came yesterday."

"And the Supreme Court today?"

"Yes."

Shailaja was silent for a few moments. "I am not asking you to give up your work. Only this much—do not turn your body into an annexure to the record."

Vidyanand laughed faintly. "I will write that sentence down."

"Instead of writing it down, obey it."

After the call ended, he looked at his hands for a few moments. Professional dignity is not always a speech about grand principles; sometimes it is merely this—that private pressure must not choose the words of an argument before the court.

He returned to the draft supplementary grounds. One line read: "The State is deliberately concealing material."

He struck it out with a red pen.

In its place he wrote: "Whether the available open summary is adequate for the defence's right of scrutiny is a question fit for judicial examination."

Ishan asked, "The first line was sharper."

"To be sharp and to be proved are not the same thing."

Ishan asked, "Will the client accept language this restrained?"

Vidyanand replied, "The client's fear is not proof for my words. I will write what is established."

Ishan nodded.

Vidyanand said, “Language is not corrected only in court; even in an office, words demand their own boundaries.”



At ten, Devvrat Sinha and Mrinal Dhar were reading the supplementary copy in the State’s office. Aditya Jha and Malini Karna sat before them.

Devvrat placed his thumb on the first page. “The defence has not made a sweeping allegation this time. The question is narrow.”

Mrinal said, “And narrow questions are often difficult.”

Malini asked, “Is our open summary not adequate?”

Devvrat said, “That is not for you to decide. The court will decide. You only show which open source, which summary, or which independent record supports each open conclusion.”

Aditya said, “Yesterday we made six categories. Today we need a seventh.”

“Which one?” Malini asked.

“Adverse use proposed?”

Malini wrote it down at once.

Aditya added, “If not, the sealed material may serve only as background or direction. If yes, the defence needs a basis that can be tested.”

Mrinal said, “And the word ‘background’ must not be misused. It is easy to hide the real reason for a decision somewhere by calling it background.”

Devvrat looked at Malini. “Where does ‘background’ appear in yesterday’s summary?”

Malini opened not her mobile phone but the printed file. “In four places.”

“Ask at all four places—if this portion is removed, does the conclusion sought by the State change?”

“If it changes?”

“Then it is not merely background.”

Malini was silent for a few moments. “That is a severe test.”

“It should be severe,” Aditya said. “The less visible the use of concealed material, the clearer the words describing that use must be.”

Beside the first ‘background’ entry Malini wrote: “Conclusion sought remains unchanged if removed.”

Beside the second: “One inference weakens if removed.”

Her pen stopped.

“Then the second is not background,” she said herself.

Devvrat gave a slight nod. “We are finding today’s answer.”



Meanwhile an editorial meeting was under way in Ananya Kashyap’s newsroom.

One editor said, “The headline could be: ‘Sealed Envelope Reaches Supreme Court: Decisive Clash over Secret Material.’”

Ananya asked, “What supports the word ‘decisive’?”

“Both sides are going to the Supreme Court.”

“Both sides are already in that pending matter.”

“Then—‘Fresh Legal Battle’?”

“It is not a fresh case.”

“‘Showdown over Secret Evidence’?”

Ananya closed her notebook. “Calling secret material ‘evidence’ would be inaccurate at this stage.”

“The court made it clear yesterday that inspection is not a finding of truth or guilt,” she added.

The editor leaned back in his chair.

Ananya kept her pen poised over her copy.

“Then what will the reader read?”

“The truth.”

“Truth speaks slowly, Ananya. News is needed at once.”

“If news given at once enlarges the meaning, it ceases to be information and becomes story-making.”

The room was silent for a few moments.

Ananya wrote a new headline: “Supplementary Plea on Limits of Using Sealed Material in Pending Special Leave Matter.”

The editor grimaced. “Will that sell?”

“We are not selling sensation as a commodity.”

“Then the subheading?”

“The defence seeks an adequate open summary; the State says that where material is to be used adversely, a testable basis will be shown.”

“Too long.”

“Cut words, not meaning.”

The editor finally said, “Fine. But the sealed envelope stays in the first paragraph.”

“It will. Along with the fact that the court made no finding about the truth of what is inside it.”

Ananya saved her copy. Sometimes journalism was the work of finding a new fact; today its work was to let a word remain only as large as the record allowed it to be.



By noon Vidyanand's supplementary application had been numbered in the Supreme Court Registry. The title remained that of the pending Special Leave Petition; below it were written only the words, “Additional Grounds and Limited Interim Prayer.”

Holding the copy, Ishan said, “It has been filed now.”

Vidyanand asked, “Time?”

“Twelve thirty-seven.”

“Service on the State?”

“Twelve forty-one.”

“Write down those four minutes. Later there should be no pointless dispute over what came first and what came after.”

Ishan laughed. “You turn everything into a chain-of-custody register.”

“Memory of time can also become an enemy of proof.”

He opened the copy. The supplementary grounds were divided into five parts.

First—“Limited Judicial Inspection and a Party's Right of Scrutiny.”

Second—“The Operative Limit of the Words ‘As Far as Possible.’”

Third—“Minimum Components of an ‘Adequate Summary.’”

Fourth—“Background versus Adverse Reliance.”

Fifth—“Recording Judicial Reasons Based on Undisclosed Material.”

Ishan asked, “In the fifth part, are we asking the court to disclose all of its reasons?”

“No. If some part of the reasoning cannot be disclosed because of security or privilege, the open order should at least say on which issue the closed material was used, and whether that use was decisive or merely supportive.”

“And if even that much cannot be disclosed?”

“Then the limits on adverse use must be examined strictly.”

Ishan wrote it down.

Vidyanand's eyes were red. But he did not lighten the weight of a word merely because he was tired.



By evening the matter was mentioned before the Supreme Court bench. Justice Pranay Shekhar and Justice Meera Vats were sitting.

Vidyanand rose. “My Lords, this is not a fresh Special Leave Petition. It is a limited supplementary question arising from yesterday's High Court order in the pending matter.”

Justice Shekhar said, “We have seen the record. The State has also placed the order on record.”

Devvrat rose. “Yes. The State's supplementary grounds have been filed with a copy of yesterday's order.”

Justice Vats asked, “Then which words are actually in dispute?”

Vidyanand replied, “Four—‘as far as possible’, ‘adequate summary’, ‘background’, and ‘limited use’.”

“The first two procedural, the latter two relating to evidentiary value?”

“In our submission, yes.”

Devvrat said, “The State would add only that the High Court itself did not treat inspection as a conclusion.”

Justice Shekhar said, “That is clear from the order. We are not examining guilt or the truth of the contents at this stage. We are examining only the manner of use.”

From the rear row Ananya wrote: “Supreme Court: not the contents at this stage, but the manner of use.”

That one sentence extinguished half the sensation.



Vidyanand said, “My Lords, if the words ‘as far as possible’ are left without a test, the State may say that a summary cannot be given; the defence will not know the reason.”

Justice Vats asked, “Your test?”

“First—the essential facts of the adverse conclusion being sought. Second—if not the source's name, then the source category. Third—the time range. Fourth—the distinction between the State's interpretation and the original statement. Fifth—clarity about what part is not being shared and why.”

Devvrat said, “The State is substantially in agreement on the first four. On the fifth, sometimes stating the reason itself may disclose the protected matter.”

Justice Shekhar asked, “Then the alternative?”

Mrinal Dhar rose. “The category of reason—privilege, source protection, an ongoing investigation, or an express order of the court—without the name or contents.”

Vidyanand said, “If the category is genuine, the defence will at least understand the nature of the question.”

Justice Vats made a note. “Very well. ‘As far as possible’ does not mean unguided discretion.”

Ishan whispered near Vidyanand’s ear, “That line is important.”

Vidyanand replied, “Write ‘important’, not ‘decisive’.”

Ishan changed the word at once.



The argument now moved to “adequate summary.”

Justice Shekhar said, “A summary cannot be so short that meaning disappears, nor so expansive that protected contents are exposed. Who draws the line between the two?”

Devvrat said, “The High Court in the first instance. If necessary, the Supreme Court may review it.”

Vidyanand said, “But the defence cannot call a summary ‘inadequate’ without any basis either. That is why the summary needs minimum factual components.”

Justice Vats asked, “For example?”

Vidyanand opened a paper. “If the State says, ‘a communication shows administrative control,’ that is not enough. At the least, it should state whether the communication was directive, advisory, informational, or merely copied; the time; the sender-recipient category; and which words the State relies on to interpret it as control.”

Devvrat said, “What if those very words disclose privileged legal advice?”

“Then not the original words—a functional summary.”

Justice Shekhar said, “Then all of you seem to be moving toward agreement.”

Vidyanand smiled faintly. “Disputes are often small in words, My Lord, but not in effect.”

Seated in the State’s row, Aditya heard the sentence. Gangesha’s method came to mind—qualifier, relation, delimitor. “Control” was a single word; but whose control, over which act, at what time, through what medium—without these, the word was incomplete.

Aditya wrote on a slip of paper to Malini: “In the summary, make the delimitor of the relation explicit.”

Malini read it and wrote back: “Otherwise the word becomes larger than the proposition to be proved.”



The third question concerned “background.”

Justice Vats looked toward the State. “Four items in your open summary are described as ‘background.’ The defence says that if at least one of them is removed, the inference sought becomes weaker. How, then, is it background?”

Devvrat looked at Aditya.

Aditya stood. “My Lady, on internal review we accept that part of the defence’s objection on this point is justified. One of the four entries is not merely background; it is a supporting basis for an inference. The State will correct the open summary.”

Vidyanand looked at Aditya for a moment.

Justice Shekhar asked, “The effect of this concession?”

Aditya said, “The inference does not disappear automatically; it has another open basis. But the State will now state its weight more modestly.”

“Guilt?”

“We are not seeking a finding of guilt on this question.”

Justice Vats said, “Very well. File the correction on the record.”

Ananya wrote: “State treats one ‘background’ entry as a supporting basis; weight of inference to be reduced; no conclusion on guilt.”

Another journalist seated behind her whispered, “This is a big moment—the State has admitted an error.”

Ananya replied softly, “The State corrected a classification. If you write ‘error’, write both what the error was and what effect it has.”

“Headline?”

“First hear the order.”

She turned her eyes to the front again. The truth had not yet reached the last line of the order.



The fourth question was “limited use.”

Vidyanand said, “My Lords, the word ‘limited’ can become meaningless without a subject-matter limit. For example, sealed material may be said to be used ‘only for direction’, yet the selection of later material gathered along that direction may itself have been influenced by the first concealed material.”

Justice Shekhar asked, “Then are you seeking a broad exclusion like the fruit-of-the-poisonous-tree doctrine?”

“No. We seek no such sweeping doctrine. We ask that the source-path be recorded—was the later open material found independently, or was it located through the sealed lead?”

Devvrat said, “Receiving direction in an investigation is ordinary. Direction alone does not taint a later independent record.”

“That is all I am saying as well,” Vidyanand replied. “But the court needs to know whether the word ‘independent’ truly refers to independent origin, or merely to an independent custodian.”

Malini immediately wrote in her notes: “Independent = origin? custodian? verification? Three different things.”

Justice Vats said, “That is a useful distinction. In its next affidavit, whenever the State uses the words ‘independent source’, it shall state the nature of the independence.”

Devvrat said, “Acceptable.”

Justice Shekhar looked at Vidyanand. “And you?”

“Satisfied to that extent.”

A brief silence fell across the bench.

Hours of argument had contracted into definitions of four words. Yet judicial fairness is sometimes made precisely by such contraction.



The bench began dictating a short order. Justice Shekhar read each sentence aloud.

“One—the present supplementary application is taken on record as part of the pending Special Leave Petition; it shall not be treated as a fresh Special Leave Petition.”

“Two—no blanket stay of the High Court’s order concerning sealed inspection is granted at this stage.”

“Three—where any party seeks an adverse judicial conclusion on the basis of sealed material, the nature of that use shall be separately identified on the record.”

“Four—the words ‘as far as possible’ do not create an unguided exception; the extent of the open summary shall be determined with regard both to the protected interest and to an effective opportunity to answer.”

“Five—where the original contents cannot be shared, the summary shall, as far as possible, state the nature of the facts, the time range, the source category, the State’s interpretation, and the category of reason for withholding the unavailable portion.”

“Six—if material described as ‘background’ changes the weight of the conclusion sought, its actual use shall be separately identified.”

“Seven—where an ‘independent source’ is invoked, the nature of the independence—origin, custodian, or separate verification—shall be made clear.”

“Eight—the court’s sealed inspection is not, by itself, a finding as to the truth, admissibility, authenticity, or proof of guilt of the contents.”

“Nine—no opinion on the merits of the case is expressed in this order.”

Justice Vats added, “And a revised open summary within five days. The defence may respond within three days.”

Devvrat said, “Grateful.”

Vidyanand said, “Grateful.”

Justice Shekhar asked, “Any further interim question?”

Vidyanand thought for a moment. “No. The words are sufficiently clear for now.”

The bench rose.



Outside on the steps there was a crowd of cameras, reporters, and mobile phones.

One reporter called out, “Sir, has the Supreme Court stopped the State’s sealed evidence?”

Vidyanand stopped. “No.”

Another asked, “Then is this a victory for the defence?”

“No such conclusion.”

A third asked, “Did the court say the State is concealing material?”

“No.”

“Then what happened?”

Vidyanand said, “The court clarified the words governing use. That is all.”

The answer was brief enough for a camera, but not alluring enough for a headline.

Ananya was standing there. She told her colleague, “Keep that sentence exactly in substance.”

“That is all’ too?”

“No. Keep the meaning.”

She wrote in her copy: “Bench declines blanket stay; directs clarity on open summary and category of use for adverse reliance on sealed material; no opinion on merits.”

A message came from the editor: “Any big line?”

Ananya replied: “The big line is that no big conclusion was given.”

Three dots appeared. No reply came.

As she descended the steps, she thought: truth speaks slowly, but once it speaks clearly, its voice endures for a long time.



Back at the State’s office, Malini added the Supreme Court’s nine points to her table.

“Sir,” she said to Aditya, “I looked at the word ‘independent’ again. It appears in eight places with three different meanings.”

“Which three?”

“Independent origin, independent custodian, independent verification.”

“And the fourth?”

Malini looked startled. “Fourth?”

“Independent interpretation. If two people read the same material and reach the same conclusion, the sources are not independent; only the readers are different.”

Malini immediately added a fourth column.

“These words keep multiplying.”

“No,” Aditya said, “the words are not multiplying. Their boundaries are becoming visible.”

Malini laughed. “Gangesha has arrived again.”

“When did he ever leave?”

For a few moments both were silent.

The entries in the table began to be reordered again—original source, source category, nature of independence, adverse use, open summary, reason for unavailable portion, State interpretation, alternative meaning, and “what this does not prove.”

The sealed envelope now lay in one corner of the file. But the questions it had generated were changing the language of the entire record.



In the evening Home Minister Shiveshwar Prasad received the Supreme Court’s brief order.

The secretary said, “Sir, the media are divided. Some call this a setback for the State, others relief for the defence.”

Shiveshwar read the order. “What does the order itself say?”

“No blanket stay; limits of use clarified; no opinion on merits.”

“Then say those three things.”

“Political reaction?”

“No.”

“The Opposition will ask questions.”

“Let them. A court’s confidence is not built by the speed of an answer, but by the truth of its words.”

The secretary wrote it down.

Shiveshwar added, “And nowhere use the words ‘State victorious.’”

“Understood.”

He began reading the order again. He knew that at the next hearing the offshore operators’ legal team would attack this new terminology table with all its force.



When Vidyanand returned to the office that night, Ishan was already seated with a long list.

“The defence team is being expanded for the next hearing,” Ishan said. “Two senior advocates, three technical consultants, and one expert familiar with foreign record-keeping systems.”

Vidyanand looked at the list. “Numbers are not arguments.”

“But the State now has its new table.”

“Then we will read the table. Not the crowd.”

Ishan said, “After today’s order, the client is excited.”

“Do not call excitement victory.”

“He will feel hurt.”

“Professional dignity sometimes also means lowering a client’s expectations.”

Vidyanand rose from his chair. His body was tired. He remembered Shailaja's morning sentence—do not turn your body into an annexure to the record.

He closed the file. "Enough for today."

Ishan looked at him in surprise. "So early?"

"I am going home today."

"The next hearing?"

"Tomorrow we will read the words again."

They both walked toward the door.



Ananya too was reviewing the final copy of her article that night.

The first paragraph read: "The Supreme Court today passed a nine-point interim order clarifying the manner in which sealed material may be used in the pending Special Leave Petition; the bench expressed no opinion on the merits."

The second read: "The defence sought an adequate open summary; the State accepted that one 'background' classification required correction."

The third read: "The bench directed that the meaning of 'independent source'—origin, custodian, or separate verification—be made explicit."

Nowhere were there the words "sensation", "setback", "victory", "defeat", or "secret proof of guilt."

The editor asked one last time, "Will the headline really remain this flat?"

Ananya replied, "The record is not flat; it is precise."

"The reader?"

"Do not underestimate the reader."

She sent the copy.

Far away in the city, the printing presses began to run. The court's nine points were descending onto newsprint—slowly, without drums, without a proclamation of victory.

Sometimes the voice of truth is just like that. At first it is scarcely heard; later one discovers that it was that very voice which drew the boundary.

At the next hearing, a large team of advocates would stand around that boundary. The touchstone of testimony was not finished yet.

052 The Touchstone of Testimony — Chapter 13

That morning, the steps of the Supreme Court complex were more crowded than on an ordinary day. Black coats, thick files, technical advisers, translators, specialists in computational records—the offshore operators’ side had arrived with an enormous team.

Vidyanand Mishra came last. Three senior advocates were already in consultation ahead of him; but he paused for a moment at the entrance, looked at the size of the team, and said to Ishan, “Numbers are not arguments. Do not forget that once we are inside.”

Ishan smiled. “And the State?”

“The State’s table is not an argument either. Every word in it needs a source.”

They went inside.

At the State’s table sat Attorney General Devavrat Sinha, Solicitor General Mrinal Dhar, Aditya Jha, and Malini Karna. Before Malini there were no markers in seven colours, only a grey file—“Limits of Language: Revised Open Summary.”

Aditya asked, “Nervous?”

“Yes,” Malini said, “but not as before. Today I am not afraid that I may forget something. I am afraid that I may say one word too much.”

A faint smile came into Aditya’s eyes. “That fear is useful.”

“When?”

“When fear does not make the truth smaller for you, but merely shows you its boundary.”

The court bell rang. Everyone rose.



Justice Pranay Shekhar and Justice Meera Vats took the bench. The matter was called.

Justice Shekhar looked at the long defence team before him. “Mr Mishra, the population on your side appears to have increased today.”

Vidyanand rose. “My Lord, the questions have not diminished. But I assure the Court—only one argument will speak at a time.”

A light ripple of laughter passed across the bench and died at once.

Arunesh Sen, the lead senior counsel for the defence, rose. “My Lords, in compliance with the previous order, the State has filed a revised open summary. Our objection is not to its length, but to its birth.”

Justice Vats asked, “Its birth?”

“Yes. What was once ‘control’ has now become an ‘indicator of administrative access’. What was once called a ‘confession’ has now become a ‘statement of personal regret’. What was once ‘independent confirmation’ is now ‘a record held by a separate custodian, independent origin unestablished’. Our question is simple—is this correction a clarification, or a new meaning manufactured after the event?”

The Attorney General rose. “The complete history of the corrections is on record. The old words have not been erased. The source and reason for every change have been provided.”

Sen said at once, “That is precisely the problem. The State is admitting that its earlier language said more than it should have.”

Devavrat Sinha replied, “Where it said too much, the State narrowed it. That is not contrary to credibility; it is a test of credibility.”

Justice Shekhar raised a hand. “I do not want speeches. I want the method. How was the revised summary prepared?”

Mrinal Dhar looked toward Malini. “With the Court’s permission, Malini Karna can explain the process.”

The bench consented.

Malini stood. At first her voice was slightly faint, but her sentences were short. “For every disputed expression, we created five levels—the words of the original source; where there is a rendering, the original and the rendered meaning; the investigator’s contemporaneous note; the term used in the judicial record; and the limited conclusion now being sought.”

Justice Vats asked, “Alternative meaning?”

“Sixth level.”

“What does it not prove?”

“Seventh.”

Sen rose. “There is an eighth level too, My Lady—when the correction was made.”

Malini looked at him. “Yes. The time of revision and the reason for it are recorded in a separate register.”

“In other words, several corrections were made after the Court’s objections?”

“Yes.”

“If the Court had not objected, would those words have remained?”

Malini was silent for a moment. “Some of them probably would have. I cannot conceal that.”

The courtroom suddenly became still.

Sen said, “That is enough, My Lords.”

Malini added at once, “But that is not the whole answer either.”

Justice Shekhar raised an eyebrow. “Go on.”

“Some corrections were discovered because of the Court’s order; some had already been identified by us before the order. The two are not the same category. The reason is recorded in the register.”

Justice Vats said, “Then we will look not merely at the existence of a correction, but at the genealogy of the correction.”

Malini bowed her head in agreement.



The defence team opened the first record.

Sen said, “Entry twenty-seven. The original external record says ‘primary administrative user’. The State’s first summary says ‘principal controller’. The revised summary now says ‘primary administrative user; ownership or complete control not established merely by this’. These are three different worlds.”

The Attorney General said, “The first formulation was broad, we accept that. The original record now stands before the Court exactly as it is.”

“Broad?” Sen’s voice was not harsh, but cold. “My Lords, the semantic leap from ‘user’ to ‘controller’ is not ordinary breadth.”

Justice Vats looked at Aditya. “How did this wording arise in the first place?”

Aditya rose. “The preliminary investigative note said ‘principal administrative role’. In a later condensed note it became ‘principal control’. The original note was from my team; the condensed rendering was from another unit.”

“Did you object?”

“I did not see it at the time. It was detected later while reviewing the full compilation.”

“Then responsibility?”

“The State cannot evade responsibility for what entered the State’s record.”

Sen looked at Vidyanand for a moment. Vidyanand said nothing.

Justice Shekhar wrote. “This is important. Admitting an error does not destroy the original source; but how the error arose is a question of judicial confidence.”

Mrinal Dhar said, “That is why we added a ‘word-chain’.”

Sen asked at once, “A word-chain?”

“The sequence of every transformation from the original source to the term used in court.”

Justice Vats said, “Do not imitate a hash chain. Words do not yield mathematical identity.”

Mrinal bowed his head. “Quite right. The name was only for convenience. We can call it the ‘genealogy of the term’.”

“More appropriate.”

On her copy, Malini struck out ‘word-chain’ and wrote ‘genealogy of the term’.



The second dispute concerned a statement.

The defence read from the record—an employee had written, “I should have known earlier.” In the State’s old presentation, this had been described as an “indicator of admission of guilt”. The revised summary now said—“a statement of regret or caution; knowledge of the offence not established merely by this.”

Sen asked, “My Lords, the same sentence once leaned toward guilt and has now become neutral. Which version is the Court to trust?”

Justice Shekhar said, “The Court will not look for reasons to trust a version. It will look for reasons to trust the original sentence.”

“But the State’s interpretation?”

“It is an interpretation. Not proof.”

Sen said, “Then why was that distinction not made clear in the State’s first affidavit?”

Devavrat Sinha replied, “It should have been.”

Silence returned to the courtroom.

Vidyanand wrote only one line on his paper—‘Admission ≠ surrender.’

Ishan leaned toward him. “That helps our side.”

Vidyanand said softly, "Leave aside the language of advantage. The boundary is becoming clearer."
"The client will not be satisfied."
"A client's satisfaction is not a judicial standard."



The third dispute concerned translation.

A term in a foreign payment record had first been rendered as "owner account". In its technical context, the original term could also mean "principal merchant account".

Sen said, "This is not merely a matter of style. 'Owner' pushes the meaning toward ownership."

Mrinal Dhar replied, "The original term, its literal meaning, its technical meaning, and the verified commercial context are now set out separately."

Justice Vats asked, "Who made the first translation?"

Malini said, "An external translation assistant. Later, a technical adviser pointed out a different meaning."

"The translation assistant's qualification?"

"General legal translation; not a specialist in payment systems."

"Was that limitation recorded at the outset?"

"No."

Justice Vats said, "Record it now. The Court is entitled to know not only the translation, but also the translator's field of competence when the meaning of a term may alter its legal effect."

Sen said, "My Lords, we seek a direction that this record not be used."

Devavrat Sinha objected. "The original record is available. The defective translation has been corrected. Complete exclusion is unnecessary."

Justice Shekhar said, "No exclusion for the present. But until there is an agreed or Court-accepted rendering, the State shall not rely on this term to draw a conclusion of 'ownership'."

Malini immediately drew a red line—"Not usable to establish ownership; verification pending."

Aditya watched. The line did not seem to him a defeat; it was the clarity of a boundary.



By noon, the defence team had reached five entries. Different specialists within the large team identified different defects—sometimes translation, sometimes timestamp, sometimes source classification, sometimes the context of a statement.

At last Justice Shekhar said, "Let us make one thing clear. Many advocates may raise many objections; the number of objections does not increase their truth. In the same way, many files of the State do not become many independent sources."

For a moment both sides were silent.

Justice Vats added, "The recurring problem in this case is the confusion between number and independence—five viewing points, three sources; seven files, two original records; twelve advocates, perhaps four arguments."

A light laugh moved through the courtroom.

Sen smiled too. "Not fewer than four, My Lady."

"Then state all four clearly."

Sen gathered his papers. "First—the State's revisions may be credibility manufactured after the event. Second—the limits of the translator's competence were previously concealed. Third—the word 'independent' has been used in several different senses. Fourth—the open summary is still, in some places, inadequate for the defence to identify the actual adverse material."

Justice Shekhar looked toward the Attorney General. "Answer?"

Devavrat Sinha rose. "First—every version of every revision has been preserved; this is not post-event explanation, but visible correction. Second—the failure to state the translator's limitation was an error; it is now explicit. Third—the nature of independence is now set out in a separate column. Fourth—where the summary is shown to be inadequate, we will expand it as the Court directs, without breaching privilege."

Justice Vats asked, "Will the State use the language of winning anything in this hearing?"

Devavrat Sinha smiled. "No, My Lady. Our Home Minister has already forbidden that word."

The bench smiled faintly again.



During the lunch recess, Malini left the corridor and went to a quiet corner. The same grey file was in her hand.

Aditya came after her. "Are you all right?"

"Yes."

"Your face says no."

Malini looked at the cold stone of the wall. “When they read my old words, I feel as though I damaged the material.”

“Did you alter the material?”

“No.”

“Did you conceal the original records?”

“No.”

“When you saw the error, did you erase it?”

“No. I preserved the versions.”

“Then your error may be serious, but the test of your honesty is still under way.”

Malini asked, “Where is the boundary between error and unreliability?”

Aditya thought for a few moments. “Not in a single error. Look at the method—how the error arose, how it was detected, how it was corrected, and whether, even after the correction, the original material can still stand independently.”

“Gangesha?”

“No. Today that is my own lesson.”

For the first time, Malini laughed.



The hearing resumed. This time Vidyanand himself rose.

“My Lords, I have two small points.”

Justice Shekhar said, “Looking at the size of your team, be careful with the word ‘small’.”

Vidyanand replied, “Then two limited points.”

The first concerned the wording of the privilege log. One entry had earlier been called a “commercial attachment”; later it was called “background to legal advice”.

Vidyanand said, “The State says the classification changed. Our objection is not why the correction was made; our question is whether the change in classification also changed the limits on use of the material.”

Mrinal Dhar said, “Yes. After the revised classification, the State does not rely on the contents of that material; it will use only external information available from an independent source.”

“In writing?”

“In today’s supplementary note.”

Vidyanand looked at the page. “Good.”

Justice Vats asked, “Do you seek exclusion?”

“If the State accepts the written limitation, no.”

Ishan looked at him in surprise. Outside, the client’s representatives might have wanted a more aggressive answer. Vidyanand’s face remained expressionless.

The second point concerned the language of revision.

“The State writes in one place—‘the earlier statement was corrected.’ We want it to read—‘the State’s earlier interpretation was corrected.’ The original statement did not change.”

Malini immediately looked at the paper. “That is proper.”

Devavrat Sinha said, “Accepted.”

Justice Shekhar stopped his pen and looked at Vidyanand. “Mr Mishra, you have corrected the State’s sentence.”

Vidyanand said, “My Lord, the touchstone of language belongs to neither side.”

This time no laughter rose in the courtroom. The sentence sat there under its own weight.



In the final stage, the bench placed the State’s revised table beside the defence’s list of objections.

Justice Vats said, “We are not entering the merits at this stage. But in this case language has itself become a procedural issue. Some minimum rules are therefore necessary.”

Justice Shekhar read them one by one.

“One—where the term used in the judicial record is not the language of the original source, the source term or a verifiable translation shall be made available.”

“Two—the field limitation of a translator or technical interpreter, where it may affect meaning, shall be recorded.”

“Three—the word ‘independent’ shall not be used without stating the type of independence—origin, custodian, verification, or interpretation.”

“Four—where an earlier broad term is corrected, the earlier version shall not be erased; the time and reason for revision shall be preserved.”

“Five—‘the original statement was corrected’ and ‘the State’s interpretation was corrected’ are different propositions; the record shall make that distinction clear.”

“Six—where something cannot be stated in the open summary because of sealed or privileged material, its absence shall not automatically be interpreted in the State’s favour.”

Aditya’s attention stayed on the sixth point.

Justice Vats read on, “Seven—the defence likewise cannot, merely by showing an error of wording, automatically deny the existence or authenticity of the original record; the effect of each objection shall be separately stated.”

“Eight—the size of either side’s legal team shall carry no judicial weight.”

Arunesh Sen smiled.

“Nine—none of these directions shall be treated as a finding on the merits.”

Justice Shekhar asked, “Anything unclear?”

Vidyanand rose. “The sixth point.”

“Go on.”

“If there is a gap in the open summary because of protected material, the Court will not interpret that gap in the State’s favour—correct. But the defence should not be allowed to interpret it in its own favour either?”

Justice Vats said, “The same rule. An absent statement is an empty space; it is not a vessel to be filled at the will of either party.”

Malini’s pen stopped for a moment.

Empty space.

The words were small, but within them lay the shadow of the method that was to come next.



When the hearing ended, a ring of reporters was waiting outside. An expensive legal team, a nine-point order, several corrections by the State—there was more than enough material for headlines.

Ananya Kashyap came down the steps looking at her notes. Her editor was on the telephone.

“Who lost—the big team or the State?”

Ananya stopped. “The Court reached no such conclusion about either.”

“Then the headline?”

“‘Supreme Court Directs Clarification of Source Terms, Translation, and Revision History.’”

“That is not attractive.”

“But it is accurate.”

“Mention the expensive legal team?”

“I will put it in the context. Not in the headline. The size of the team was not a reason for the order.”

The editor sighed. “You make life difficult for readers.”

“Truth has never contracted to make a reader’s life easy.”

She ended the call.

At the foot of the steps, Vidyanand was passing by. Ananya asked, “One line?”

Vidyanand stopped.

“Was today’s order a victory for the defence?”

“No.”

“A defeat for the State?”

“No.”

“Then?”

Vidyanand said, “Today the Court returned words to their sources.”

Ananya wrote it down. “May I use that?”

“At your discretion.”

He walked on.



The evening meeting at the Ministry was kept short. A copy of the order lay before Home Minister Shiveshwar Prasad. The Secretary, the legal adviser, and two officers were present.

The Secretary said, “The media are reporting that the State corrected several expressions.”

“Corrected them?” Shiveshwar asked.

“Yes.”

“Then why conceal that?”

“It may look politically weak.”

Shiveshwar closed the order. “Judicial confidence is not built by a State that looks strong. Confidence is built when the State can cut back even the words in which it has said too much.”

The legal adviser said, “The Opposition will say the investigation is collapsing.”

“Let them say it. We will state only the truth of the record.”

“A statement for the media?”

“Three lines. The State will comply with the order. It will preserve the history of revisions. The Court has made no finding on the merits.”

The Secretary wrote it down.

Shiveshwar added, “And no ‘victory’, ‘defeat’, ‘complete confirmation’, or ‘decisive turn’.”

“Understood.”

The meeting ended.

Shiveshwar remained seated alone for a few moments. Power usually prefers sentences of certainty. Justice needs sentences with limits. Between those two desires, the space in which trust can live is very narrow—he understood that now more clearly than ever.



That night in the State’s workroom, Malini opened the seven-level table again. The sixth point of the order kept drawing her back—the fact that something cannot be said in the open summary because of protected material does not permit either side to fill its absence according to desire.

She created a new column—“Reason for the Gap.”

Aditya asked, “An eighth now?”

“Yes.”

“What will you write there?”

“Privilege; sealed confidentiality; source still under verification; record unavailable; or, in fact, there is nothing there.”

Aditya paused at the last words. “The fifth reason is the hardest.”

“Why?”

“Because when the mind sees a gap, it wants to make a story.”

Malini said, “But sometimes a gap is only a gap.”

“Yes.”

“And sometimes?”

Aditya did not answer.

Malini asked again, “Sometimes two established facts do not fit together, and unless something is assumed between them, the two cannot stand side by side?”

Aditya looked at her.

“Then the question changes,” he said.

“How?”

“Then we do not fill the empty place with desire. We ask—what is the minimum fact that must be assumed for the two established facts to stand together?”

Malini stopped her pen. “Inference?”

Aditya said softly, “Not every time.”

Outside the workroom, the night had deepened. On the screen, after the seven columns, an eighth was shining—Reason for the Gap.

The touchstone of testimony had reached its final boundary. The question now concerned what had not been written, yet without which a story remained incomplete when certain established facts were placed together.

Aditya closed the file.

“We will speak of this tomorrow.”

Malini asked, “Its name?”

Aditya was silent for a moment.

“No name yet. First, look at the necessity.”

In the stillness of the night, words receded. The facts remained—and between them an empty space that was neither allegation, nor proof, nor the ordinary leap of inference.

The next stage would learn the discipline of that empty space.

053 The Turn of Postulation — Chapter 1

The next morning Malini Karna was the first to reach the workroom. The eighth column from the previous night — “Reason for the Gap” — was still open on the display. Beneath it were four lines: privilege, confidentiality, source under verification, record unavailable. A fifth line read — “In fact, nothing.”

Malini pulled out a chair and sat looking at that line.

Aditya Jha came in carrying two slim files.

“Were you awake all night?” he asked.

“No. But the question stayed awake.”

“Which question?”

Malini pointed toward the display. “If two established facts do not sit together, do we leave the gap empty? Or must we assume something within it?”

Aditya placed the files on the table. “First decide whether both are truly established facts, or whether only our words have called them established.”

Malini smiled. “The chapter on testimony is over, but words refuse to stop following us.”

“Why should they? The method changes chapters; responsibility does not.”

He opened the first file. At the top was written — “Chronology discrepancy: access suspension versus service request.”

Malini read. “Administrative access suspended at 18:05. At 18:32, a payment request related to the same customer-identification group was received at the service endpoint.”

“These two lines are our first exercise now,” Aditya said.

“So the request went through even after access had been suspended.”

Aditya shook his head. “You have added two things to that sentence.”

Malini paused. “Which two?”

“First—that ‘suspended access’ and ‘service-endpoint authority’ were the same thing. Second—that the request went through the same suspended route.”

Malini read the record again.

“Correct. The record says only that administrative browser access was suspended. A payment request arrived at the service endpoint. The relation between the two is still unproved.”

“Now make the question.”

Malini wrote — “If browser access was suspended at 18:05, through what lawful technical route was the 18:32 service request accepted?”

Aditya said, “Remove the word ‘lawful’ from that question.”

“Why?”

“Because whether it was accepted is a technical fact; whether it was lawful or unlawful is a legal characterization. Do not mix the two at the first stage.”

Malini struck out “lawful.”

“Then—through what technical route was it accepted?”

“Better.”



The second file contained separate timelines from three sources. First—the forensic image of the seized solid-state drive. Second—the payment gateway’s previously received report. Third—the external time log of the service-hosting provider, which until then had arrived only in summary form.

Malini read the first table. “Local browser history shows the administrative page until 17:51. After that, no local activity.”

“Was the computer shut down?”

“There is an orderly shutdown marker at 18:08.”

“What does that prove?”

“That there is no marker of new local use on that machine after 18:08.”

“What does it not prove?”

“It does not prove that another device, a remote session, or a service endpoint was not used.”

Aditya remained silent.

Malini understood that the answer had been accepted.

She read the second line. “The payment-gateway report says: service request at 18:32, related to customer-marker group ‘R-17’.”

“Related?”

“Yes. The report itself does not identify the user.”

“Good.”

The third line was incomplete. “The service-hosting provider wrote: access suspension applied to browser authentication. Time of service-key revocation unavailable.”

Malini looked up. “That is why we need a summons.”

“What will you ask?”

She began to write. “One—whether administrative browser access and the service key were separate authorization routes. Two—whether suspension at 18:05 automatically disabled an active service key. Three—the creation, last use, and revocation times of the service key for group R-17. Four—what time-synchronization source the server clock used. Five—provide the original logs, not merely a summary.”

Aditya added, “Six—the person answering must state the basis of his knowledge. Did he personally examine the system method, read the records, or rely on information from another employee?”

Malini wrote it down.

“Seven—the hash of the logs?”

“Ask for it. But remember—the hash will test whether the copy of the log matches the declared copy; it will not prove that the statements written inside the log are true.”

“I hear that sentence in my dreams now.”

“Then it is useful.”



When the draft summons was ready, Malini wrote the heading—“Test of Postulation.”

Aditya stopped her at once. “Not that word outside.”

“Why?”

“The service-hosting provider needs precise questions, not philosophy. The name of our internal method must not influence the answer.”

Malini changed the heading to—“Request for Technical Clarification and Original Records.”

Aditya looked at it. “Cleaner.”

Malini asked, “But what we are doing internally—is its name postulation?”

“Understand the boundary before the name.”

“Tell me.”

Aditya placed two sheets of paper on the table. On the first he wrote, “Access suspended.” On the second, “Service request received later.”

“If both are established, then all we may say at first is: ‘There must have been some additional state of affairs by which both could be true together.’ That necessity arises. But if five different states of affairs can explain both, we cannot call any one of them true in advance.”

“So postulation does not destroy the alternatives?”

“No. It tells us that some additional condition must be sought. Which condition—that is for external evidence to decide.”

Malini wrote—“Necessary explanation ≠ chosen story.”

“Good.”

“And if only one condition remains?”

“Then its evidentiary value increases, but we still test its source, limits, and alternative causes. In court, the word ‘only’ is exceedingly heavy.”

Malini looked again at the word. “Exceedingly heavy.”

Aditya smiled too.



By noon, the summonses had been issued. Copies went to the service-hosting provider, the payment-gateway operator, and the custodian of the time-synchronization service records. Each letter carried the same instruction: original record or verified copy; creation/extraction method; time zone; clock synchronization; hash; custodian; modification history; and where a question was not answered by the record, do not fill the gap with inference.

Malini read the final line. “If unknown, write ‘unknown.’”

Aditya said, “Those three words save many pages in an investigation.”

At that moment, a letter arrived from Vidyanand Mishra’s office. The defence requested that the State not interpret the service-hosting provider’s response alone; whatever portion of the original logs could be shared without breaching confidentiality should be made available.

Malini asked, "Is that reasonable?"

Aditya said, "To the extent the law permits, transparency reduces dispute. But sensitive customer-identification data will have to be redacted."

"Then a segregation list?"

"Yes. Write all three: what was redacted, why it was redacted, and whether the State relies on the redacted portion."

Malini opened a file.

She felt that the word "postulation" made the mind rush toward filling a gap; the method required the opposite—it asked her to draw boundaries around the gap.



By evening the first reply came from the payment gateway. It was brief, but not decisive.

"Request accepted through a service key related to customer group R-17," Malini read. "The key does not itself identify a person. Source network address for the request is in a separate record."

Aditya said, "Did we ask for the source network address?"

"Yes. It is attached."

She opened the page.

A network address, a time, a service path, a request marker.

Malini immediately opened the earlier list. "This network address is not the one used by the seized machine at the village office."

"What does that prove?"

"Only that the payment request was not recorded from the public network address used by that local machine."

"And what does it not prove?"

"It does not prove who sent the request. It does not prove that the network address permanently belonged to any particular person or institution. It does not prove that there was no remote route, intermediary service, shared egress, or roaming address."

"Good."

Malini asked, "Then has the conflict between the local computer being shut down and the later request been reduced?"

"One conflict has been reduced; the question has changed. Now ask how long the service key remained active, and what arrangement the source-network path belonged to."

"Postulation first showed the need for 'some additional route'; the reply points us toward discovering the nature of that route."

"Even 'showed' should be used carefully. I would say: the coexistence of the two established facts created the need to look for an additional technical condition."

Malini revised the sentence.



At eight that night, the service-hosting provider's reply arrived. Four attachments. First—a version of the authorization configuration. Second—the key-lifecycle log. Third—the time-synchronization log. Fourth—a sworn statement describing the extraction method.

Malini called Aditya as soon as she read the first page.

"It says here that administrative browser access and the service key were separate authentication routes."

"The next line?"

"Suspension of browser access did not automatically revoke a previously issued service key unless a separate revocation command was sent."

Aditya was silent.

Malini read the third line. "The service key for group R-17 was issued at 17:33; revoked at 18:59."

She looked at the clock, as though the recorded time had come alive before her eyes again.

"Then even after browser access was suspended at 18:05, the 18:32 service request was technically possible."

Aditya said, "Yes—if these logs are authentic and the time synchronization is reliable."

"The hash?"

"First compare it with the original extraction of the attachments."

Malini calculated the hash of the attachments received through the secure system and compared it with the hash stated in the summons response. They matched.

"A match," she said.

"What does that prove?"

"That the copy we are examining is identical to the copy declared in the provider's response."

"The contents?"

"The truth of the contents is a separate question."

“The time?”

Malini opened the time-synchronization log. Three points. Deviation of less than one second. The system clock had been regularly synchronized with an external time source.

“No substantial time deviation is immediately visible here.”

Aditya said, “Write: ‘The available time-synchronization log records no deviation greater than one second.’ Not: ‘The clock was perfectly accurate.’”

Malini wrote it down.

“The difference is so small,” she said.

“In court, even a small word can become a large boundary.”



The next morning, in the digital-evidence laboratory, the original seized solid-state drive remained secured. The work was to be done only on the previously authenticated forensic image.

Laboratory officer Devashish Karna opened the custody register. “Image number three, creation date, device, hash—everything is here.”

Malini asked, “We need to examine only the browser-session markers for that period and any residue relating to the service key.”

Devashish said, “We will not open the original medium. A working copy will be made from the image.”

Aditya said, “First verify the image hash again.”

Devashish compared it. The values matched.

Malini wrote in the notebook—“Image-integrity comparison passed; no conclusion as to truth of contents.”

Devashish glanced at her. “Is that line necessary?”

Malini laughed. “If we do not write what is unnecessary now, the mind may later add what suits it.”

The examination began.

Browser history until 17:51. A local-system shutdown marker at 18:08. But in the secure storage area they found a configuration record—the final four markers of a service-key identifier matched the R-17 response.

Devashish said, “This does not prove use. It shows only that the configuration for that identifier had at some point been stored on this system.”

Aditya said, “Write exactly that much.”

Malini asked, “Last use?”

“We cannot say from the local-system records. The service request came through an external path.”

At that moment, the limit of postulation became clear again. The additional condition—a separate service key—was now supported by records. But the person, the location, and the purpose remained open.

Malini drew three boxes in the table.

“Established: browser access and service key were separate. Established: service key remained active until 18:59. Established: an R-17-related service request was received at 18:32.”

Aditya asked, “And unproved?”

“Who used the key. From which device. Why. What the legal purpose of the request was.”

“And the minimum necessary explanation?”

Malini wrote—“A separate service-key route remained available after browser suspension; therefore the two time facts are not mutually inconsistent.”

Aditya read it. “That is sound. But do not make a horoscope out of it. Do not attach a person to that sentence.”

“I will not.”



At the next scheduled hearing in the High Court, a short status note from the State lay before Justice Arya. Its heading had deliberately been kept plain—“Chronology Clarification: Sources and Limits.”

Devvrat Sinha said, “My Lady, the State has attempted to clarify a discrepancy. We seek no new finding from this material as to guilt, ownership, or personal identity.”

Vidyanand Mishra immediately said, “That limitation should be recorded in the order.”

Justice Arya said, “Let me first see the material.”

Aditya entered the witness position.

Devvrat asked, “What was the record of access suspension at 18:05?”

“A log recording suspension of administrative browser authentication.”

“Was the service key also revoked at that time?”

“We could not say from the first record. That is why a summons was issued to the service-hosting provider.”

“The response?”

“According to the provider’s sworn statement and the verified copy of its original log, the two were separate authorization routes; the service key for group R-17 was revoked at 18:59.”

Devvrat asked, “The 18:32 request?”

“According to the payment gateway’s independent response, a request was received through a service key associated with R-17.”

“Then the State’s conclusion?”

Aditya said, “Only this: the 18:05 browser suspension and the 18:32 service request were not technically inconsistent. A separate service-key route remained active at that time.”

“What does that not prove?”

“It does not prove who used the service key; from which device; from which location; for what purpose; or what the legal character of the request was.”

For a few moments the courtroom was silent.

Justice Arya asked, “In other words, what the State had first understood as a contradiction ceased to be one because the authorization routes were different?”

“Yes, My Lady—within the limits of the available records.”

Vidyanand rose. “Cross-examination.”



“Mr Jha,” Vidyanand said, “you say a separate service key remained active. Do you have the identity of its user?”

“No.”

“Does the source network address establish any particular individual?”

“No.”

“Was the seized local computer running at 18:32?”

“Not according to the available system markers.”

“Then it is possible that the service key was used from another authorized device?”

“Possible.”

“Possible that the source network address belonged to several users because of a shared egress network?”

“Possible.”

“Possible that the service key had previously been configured for an automated process?”

“On the material presently available, I cannot completely exclude that.”

Vidyanand turned toward the court. “Then the State’s so-called explanation is not the only one.”

Aditya said, “The State has offered no single-person explanation. The State has shown only that the two time facts need not be treated as contradictory; the existence of a separate authorization route is established by the records.”

Vidyanand looked at him again. “So you did not fill the gap?”

“No.”

“Then where is postulation?”

Devvrat began to rise in objection, but Justice Arya raised a hand. “Let him answer.”

Aditya thought for a moment.

“When two established facts appeared unable to stand together, we recognized the need to look for some additional technical condition. But we did not choose that condition from our own minds. We issued a summons. We asked for external records. We tested the limits of the forensic image. We tested copy integrity through hash comparison. Then we learned that a separate service-key route did in fact exist.”

Vidyanand said, “And the user of that route?”

“Unproved.”

“The purpose?”

“Unproved.”

“Guilt?”

“Unproved.”

Vidyanand was silent for a few moments. “That is all.”

Then he smiled to himself. “That is all.”

A faint glint came into Justice Arya’s eyes.



Mrinal Dhar rose for the State. “My Lady, I have one further limited technical question—the forensic image.”

Justice Arya said, “Ask it.”

Mrinal asked, “Mr Jha, was the seized original medium opened again?”

“No. A working copy of the previously authenticated image was used.”

“The image hash?”

“It was compared again with the value in the earlier custody register; it matched.”

“What does that match tell us?”

“That the image used is identical to the previously authenticated image, within the limits of the specified hashing method.”

“What does it not tell us?”

“It does not tell us that every item of content on the original medium is a true statement. It does not tell us who created which material. It does not make the external service logs automatically true.”

Justice Arya looked toward Malini. “Were you part of this investigation?”

Malini stood. “Yes, My Lady.”

“What was your initial assumption?”

Malini was silent for a moment. “At first I wanted to assume that a request made after access suspension was, by itself, more suspicious. But that assumption was taking shape before I knew that the two authorization routes were separate.”

“Then?”

“We made the question smaller. Before asking ‘Who did this?’ we asked ‘How was this technically possible?’”

“And the answer?”

“A separate service-key route.”

“Does that answer prove guilt?”

“No.”

“Then the discipline of fact?”

“First, stop possibility from turning into a story of guilt. Then test the minimum explanation through available sources. Then clearly state what remains unproved.”

Justice Arya said, “Let that remain on the record.”



In the second part of the hearing, the court examined the time logs. Archit Sen, a senior colleague of Vidyanand, raised the question: “The time-synchronization log itself belongs to the service-hosting provider. Where is the independence?”

Devvrat said, “The State does not call it wholly independent evidence. The payment gateway’s time log is held by a different custodian; the difference between the two is less than one second.”

Archit said, “The two systems may use the same external time source.”

Mrinal replied, “A shared external source for time synchronization is not itself a problem; the question is whether the deviation of the two recording clocks is known.”

Justice Arya asked, “How strongly will the State put the accuracy of the time?”

Aditya said, “My Lady, we say only that the available time-synchronization log records deviation of less than one second; the twenty-seven-minute difference between 18:05 and 18:32 does not appear explicable merely by clock deviation.”

Vidyanand immediately said, “Does not appear explicable’—not ‘impossible.’”

“Yes,” Aditya said.

Justice Arya looked toward the order writer. “Write exactly those words.”

Malini drew a line on her page.

Postulation was not the mind’s quickest story; it was the minimum discipline required to keep the available facts standing together.



During the midday recess, Vidyanand and Aditya stood at opposite ends of the corridor. There was no crowd of media between them. Only two junior advocates, a security guard, and the distant sound of footsteps.

Vidyanand came closer. “May I ask you something?”

“Ask.”

“If you had wanted, you could have presented the 18:32 request much more aggressively.”

“Why would I?”

“The investigation would have looked stronger.”

Aditya said, “Making it look strong is not my work.”

“Then what is?”

“To call established what is established, and not to call established what is not.”

Vidyanand looked at him. “That sentence sounds simple in court.”

“It is difficult in the office.”

“And outside?”

“More difficult still.”

Vidyanand gave a faint laugh. “On that, we may agree.”

They went their separate ways.

When the hearing resumed, Justice Arya opened the final table in the State's status note. After seven columns came an eighth—"Question of Necessary Explanation." Ninth—"External Test." Tenth—"What Remains Unproved."

"These ninth and tenth columns were not there earlier," Justice Arya said.

Malini replied, "In the testimony phase, our attention was mainly on source and limits of meaning. Now we understood that when a gap arises, the route of testing and the unproved portion must be written alongside it."

Justice Arya asked, "What if the external test fails?"

"Then the proposed necessary explanation will be withdrawn or changed."

"What if two equally possible explanations remain?"

"We will not choose one and write it as established fact."

"What if the two established facts cannot stand together without some explanation?"

"Then we will identify the minimum necessary condition, but keep its limits explicit."

Vidyanand said, "My Lady, the defence would request that the expression 'minimum necessary condition' not become a synonym for guilt in the charge-sheet."

Justice Arya replied, "This court will insist on the same."

She began to dictate the order.

"First, according to the available records, the coexistence of the 18:05 suspension of administrative browser access and the 18:32 service request is technically possible because the authorization routes were separate."

"Second, this conclusion does not establish the actual user of the service key, location, purpose, ownership, or criminal culpability."

"Third, the service-hosting provider's response, the payment gateway's external record, the integrity test of the forensic image, and the time-synchronization log shall each be read within its separate limits."

"Fourth, the name 'postulation' or any other method of reasoning shall not take the place of a judicial conclusion; each proposition shall remain tied to its own source and test."

"Fifth, in the next status note the investigating officer shall separately state, with every proposed necessary explanation, the alternative causes and the facts that remain unproved."

She paused.

"And finally—the court is making no finding on the merits at this stage."

The order was complete.

Ananya Kashyap was waiting outside. Her phone kept vibrating. Her editor's message read—"Payment from a suspended account? Big headline."

Ananya read the copy of the order.

She replied—"Separate service key remained active after browser access was suspended; user unproved."

The answer came at once—"Too long."

Ananya wrote again—"Technical route for post-suspension request clarified; actor unproved."

This time the editor called. "Will readers understand it?"

"They will, if we do not manufacture the confusion ourselves."

"Mystery solved?"

"No."

"New fact?"

"No."

"Then where is the appeal?"

"In this: a technical distinction was found between two facts that had appeared contradictory, but the person remains unproved."

The editor was silent for a few moments. "Fine. Run it."

Ananya put the phone away.

At the foot of the stairs, Aditya was coming out. Malini was with him.

Ananya asked, "One line?"

Aditya stopped.

"Did the investigation win today?"

Aditya said, "Today, an apparent contradiction was removed."

"And guilt?"

"The question remains open."

"Then what was the victory?"

Aditya thought for a moment. "If there was any victory, it belonged to method—because it allowed us to cut away our first story."

Ananya wrote down the line.



By evening the file reached the Ministry. The Law Secretary read the five points of the order and added a short note —“Next strategy: necessary explanation, alternative cause, status of testing, and unproved conclusion to be stated separately.”

Home Minister Shiveshwar Prasad read the note and told the Secretary, “Do not turn this into a note of victory.”

“No, sir.”

“And no sentence like ‘the case is now clear?’”

The Secretary revised it himself. “One chronology discrepancy in the case has been clarified; actor and purpose remain unproved.”

“That is enough.”

The file moved toward the Law Department.

At that hour Aditya was leaving the office. Malini asked, “First lesson of postulation complete?”

“First question complete.”

“The difference?”

“A lesson ends. A question opens the next question.”

“And the next question?”

Aditya said, “If money moved, the service key remained active, the local machine was shut down, and the source network address was different—what alternative arrangements still remain? We are not to choose one; we are to eliminate them in sequence.”

Malini smiled faintly. “And then?”

Aditya looked at her. “Then whatever remains will still need proof.”

They walked out.

Night was falling.



It had rained that night in Garh En Arikel. The smell of the wet courtyard at Aditya’s maternal home could not travel through the small image on his phone, but in the photograph his mother had sent, the soaked earth in front of the veranda could be seen.

The message contained only three words—“It rained here.”

Aditya looked at the photograph for a while.

In childhood, after rain, water would stand in some parts of the fields and drain at once from others. His grandfather used to say: from above it looks like one field; within it, the layers of soil are different. Where water will remain cannot be known from the colour of the surface alone.

Aditya remembered the name of Gangesha Upadhyaya—not as a statue, but as a discipline of questioning. The limit of what is perceived; the reason for what is inferred; the source of what is stated; and whatever becomes silently necessary between established facts must pass not through the wish of the mind, but through the fire of testing.

He opened his notebook.

He wrote—“Postulation: not a licence to fill a gap; the minimum question raised by the coexistence of established facts.”

Then a second line—“External records will answer the question; not the investigator’s desire.”

He stopped before writing a third line.

The day’s hearing, Vidyand’s cross-examination, Malini’s admission, the court’s limited order—all came together in his mind.

He wrote—“Revenge requires a certain person; method requires only the boundary of truth.”

He put down the pen.

Outside, Delhi’s night was not quiet, but the papers in the workroom were still.

One chronology discrepancy had been clarified. No person had been proved guilty. No declaration of victory had been made.

Yet something had changed.

The investigation had been able to abandon its first easy story.

At that moment, it was not revenge but method that had prevailed.

054 The Turn of Postulation — Chapter 2

In the first watch of morning, the corridor of the Legal Division in the Ministry of Home Affairs had not yet fully awakened. Beyond the window lay a grey light; inside the record room, only one lamp burned over a long desk.

The brief note that had arrived during the night was already in the file. Today it was joined by the High Court's detailed order, the server provider's reply, the payment gateway's time log, the examination summary of the forensic image, and the investigating officer's status note.

The Law Secretary arranged the papers one by one.

He set one sheet apart at the top—"Postulation: necessary explanation, alternative cause, testing status, unproved conclusion."

Yesterday evening this had been only a note. Today it had to become a strategic framework.

Aditya Jha reached the Ministry a little before nine. Malini Karna was with him. Each carried a separate file, but both were fixed on the same question—when facts, placed together, appear contradictory, how are they to be tested without turning them into a story?

The Law Secretary gestured toward the chairs.

"What the Court said yesterday cannot be left merely as the language of a hearing," he said.

Aditya replied, "Yes. It has to be carried into the working method of the investigation."

"Then the first question—what authority does postulation give us?"

Aditya remained silent for a few moments.

"Not authority," he said, "discipline. If some minimum condition appears necessary for established facts to stand together, we identify it as a question. Then we test it externally. If it fails, we remove it."

The Law Secretary asked, "And if more than one condition is equally possible?"

Malini answered, "We keep them all in view. We do not choose one and turn it into a story."

The Secretary wrote the first line on his sheet—"Postulation = a testable minimum question; not a conclusion."

Home Minister Shiveshwar Prasad came into the meeting at ten. Before him lay not an ordinary political brief, but a seven-page legal summary.

He read the first page, then the second.

"Nowhere here does it say, 'the case is clear,'" he said.

The Law Secretary replied, "Deliberately."

"Good."

The Minister paused at the third page. "It says here—'after the suspension at 18:05, the service request at 18:32 was possible through a separate service key.' What does that prove?"

Aditya said, "Only that the apparent contradiction was not technically impossible."

"And what does it not prove?"

"The actual user of the key, location, purpose, ownership, or criminal culpability."

The Minister read the next line. "Then what is the strategic change?"

The Law Secretary opened a new table.

"Earlier we separated connection, source, dissimilarity, and alternative cause. Now, for every group of facts that appears contradictory, seven lines will be mandatory—established fact; apparent contradiction; minimum necessary condition; alternative arrangement; external test; failure condition; and 'what this does not prove.'"

Shiveshwar Prasad kept looking at the table.

"Add an eighth line," he said.

"What?"

"If the testing is incomplete, what limited relief is to be sought from the Court."

The Law Secretary looked at him.

The Minister said, "Do not fill an investigative gap with political insistence. Ask the Court only for as much as the source permits."

Aditya's eyes lifted for a moment.

The sentence seemed to him not separate from yesterday's order of the Court, but its administrative echo.

The first testing framework was built around the time discrepancy already discussed in court.

Malini opened the lines on the display.

"Established fact one—the browser-based administrative access was suspended at 18:05."

“Two—a service request was recorded at 18:32.”

“Three—the service request did not use browser access, but a separate service-key route.”

“Four—according to the time-synchronisation log, clock drift was less than one second.”

The Law Secretary asked, “The apparent contradiction?”

Malini said, “If ‘suspension’ is understood to mean the end of every form of access, the later request appears contradictory.”

“Minimum necessary condition?”

Aditya answered, “In addition to the suspended browser access, at least one separate technical route remained available.”

“Is that established?”

“The existence of the service-key route is established. The person who used it is not.”

“Alternative arrangements?”

Malini looked at the page. “A pre-scheduled automated task; another authorised user; an external service system; a request already placed in a queue; or unauthorised use of the service key. Each has a different evidentiary status.”

The Minister stopped her. “Be careful with the wording of the last option.”

Malini immediately wrote—“Possibility of unauthorised use—no independent confirmation.”

“Like that,” the Minister said. “Let the words state the limit first.”



The list of external tests was drawn up.

The server provider would be asked for the key’s creation time, scope of permissions, last modification, and the record of the service route used.

The payment gateway would be asked for a certified account of the request-acceptance sequence, delayed queues, and retransmission rules.

The forensic image of the local device would be searched for scheduled tasks, automated scripts, and key references.

IP-address records would be independently verified; two visual records from the same custodian would not be counted as two independent sources.

The Law Secretary asked, “Failure condition?”

Aditya replied, “If the key route was not active at the recorded time, the first minimum condition fails. If the request was already queued, the question of ‘active use later’ changes. If a local automated task is found, the inference of human use as to the actor becomes weaker.”

“In other words, the investigation will itself write down the route by which its proposition may be shown false?”

“It should.”

The Minister said, “Put that line at the beginning of the file—not in bold, but put it there.”

Malini smiled faintly. “Not in bold?”

“Trust is not built by the size of a heading.”



The second test turned to the payment record.

In an internal spreadsheet, an amount was marked “pending.” In the external payment-gateway record, the same amount later appeared as “completed.”

Earlier, some officers had treated this difference as suggesting the possibility of “double accounting.”

Aditya read that note again.

“That expression will be removed,” he said.

The Law Secretary asked, “Why?”

“Because ‘pending’ and ‘completed’ may have been recorded at different points in time. To call it ‘double accounting’ without first seeing the reconciliation time gives the difference more meaning than the source warrants.”

Malini showed the payment gateway’s daily reconciliation cycle.

“The internal spreadsheet was saved at 5:44 p.m. The external payment was marked ‘completed’ at 6:12 p.m.”

The Minister asked, “Then the contradiction?”

“For now, no contradiction is established,” Malini said. “The time difference itself may be explained by the ordinary reconciliation cycle.”

The Law Secretary asked, “Then where does postulation arise?”

Aditya said, “It does not arise here. Where the facts are adequately explained by the direct sequence of time, it would be improper to insert an unstated condition.”

The room remained quiet for a few moments.

The Minister said, “Write that down as well—‘Where the direct sequence is sufficient, postulation is prohibited.’”



The third test was more difficult.

There was an entry from a deleted mail archive whose subject line was unavailable, though the recipient list and timestamp survived in an external service record.

An internal note had earlier described it as “possibly an instructional email.”

Vidyanand Mishra had already objected to that wording.

Malini looked at the line. "The basis for this expression is weak."

Aditya asked, "What remains?"

"Only this—a contemporaneous external indication that mail passed among the specified addresses; the content is unavailable."

The Law Secretary said, "But the time is exactly seven minutes before the payment request."

"There is temporal proximity," Aditya said, "not instruction."

"Postulation?"

"No. To treat two events as causally related merely because they are close in time would be a defect of inference."

The Minister asked, "Then the test?"

Malini said, "Whether a lawful copy is available from the sender or recipient side; the service provider's preservation record; and any external response document. But without the content, we will not invent a subject."

The Law Secretary struck out the old sentence and wrote—"External indication of mail exchange; content unproved; causal relation unproved."

◆
In the third hour of the meeting, the junior legal officer, Neelabh Jha, spoke for the first time. Since yesterday he had been quietly taking notes.

"Sir," he said, looking toward the Home Minister, "there is a problem."

"Go on."

"If we write down alternative causes in this manner, the State's case may look weak."

The room fell silent again.

Shiveshwar Prasad looked at him for a few moments.

"Is the State's task to preserve the appearance of its case, or the Court's confidence?"

Neelabh's face tightened slightly. "Confidence."

"Then do not hide alternative causes."

Aditya added, "Writing down an alternative cause does not weaken evidence. It shows the evidence's real boundary."

Neelabh asked, "But the other side will use that line."

The Law Secretary replied, "Let them. If the line is true, why be afraid of its use?"

Malini wrote in her notebook—"An adverse fact is not the property of the adversary; it is part of the record."

She showed the line to Aditya.

Aditya only nodded.

◆
By afternoon, the character of the file had changed. Earlier, most pages had followed the sequence of events. Now each question was accompanied by a testing framework.

"Fact."

"Apparent contradiction."

"Minimum necessary condition."

"Alternative arrangement."

"External test."

"Failure condition."

"Unproved point."

"Limited judicial direction sought."

In the Ministry's old format there had been a separate section called "The State's Conclusion." The Law Secretary changed its name to "The State's Present Postulation."

Neelabh asked, "What difference does one word make?"

The Secretary said, "A great deal. 'Conclusion' sounds final to the reader. 'Present postulation' declares its provisional character."

Malini said, "And if a new source arrives?"

"Then the version changes. The old version is not erased."

Aditya asked, "Revision register?"

"Mandatory."

The Minister said, "A copy of this section should also remain available before the Court."

◆
The lunch hour had passed. Two cups of tea sat untouched in the room. Shiveshwar Prasad lifted one, then set it down again.

"One thing," he said. "Will every officer understand the word 'postulation'?"

The Law Secretary replied, "Understanding the word is not necessary; the method is."

"Then the internal instruction should not turn into a philosophical lecture."

Aditya smiled faintly. "There is no need."

“How much should we write?”

“Three sentences are enough.”

Malini wrote on the page—

“One—raise a question only when established facts appear unable to coexist without some minimum additional condition.”

“Two—write down every alternative condition, decide the external test, and state the failure condition in advance.”

“Three—even if the test succeeds, do not automatically treat person, purpose, ownership, or culpability as proved.”

The Minister read the lines.

“Leave it at that.”

◆
The meeting was about to end when Malini opened a new page.

“There is one uncomfortable point.”

Aditya looked at her.

“Yesterday, when discussing the service-key route, I wrote ‘separate authorised route.’ The word ‘authorised’ goes beyond the source.”

The Law Secretary immediately asked for the original sheet.

“What does the source say?”

“Key active, permission scope recorded, request accepted. It does not say that the person using it at that moment was lawfully authorised.”

“Then the correction?”

“‘Separate technical route.’”

Neelabh asked, “Will the version change for one small word?”

Malini replied, “A small word can become a large accusation.”

Aditya said, “Change it. Record the reason—‘authorised’ suggested legal validity as to the person; the source shows only technical permission.”

The Law Secretary made the entry in the revision register.

The Minister kept looking at the page.

“Will the defence read the reason for this correction?”

“Yes.”

“Good.”

◆
The internal meeting at the Home Ministry ended at four in the afternoon, but Aditya and Malini remained in the Legal Division. A questionnaire had to be prepared for the next stage.

“Will these questions be for the Attorney General and the Solicitor General?” Malini asked.

“Yes,” the Law Secretary said. “But first we must make them clear internally. They are already appearing for us; we are not seeking a new representation. We need a specific legal position.”

Aditya lifted the page.

The first question—“If the Court accepts the investigation’s minimum necessary condition as a provisional postulation, what should be the linguistic limits of that acceptance?”

The second—“How fully should alternative causes be placed on the open record?”

The third—“If a necessary condition arises from sealed or confidential material, how is the defence’s effective right of response to be preserved?”

The fourth—“If the external test fails, what part of an earlier supplementary submission should automatically be treated as revised?”

The fifth—“What judicial format should keep a postulation-based question distinct from the language of allegation or proved fact?”

The Law Secretary said, “These questions will be sent tomorrow.”

Aditya asked, “And today?”

“Today the strategic foundation of the file changes.”

◆
In the last hour of the evening, five copies were made in the Ministry’s record room. One for the court team, one for the Attorney General’s Office, one for the Solicitor General’s Office, one for the investigative team, and one sealed control copy.

Each bore not a different version number, but the same one.

Malini asked, “And if a word changes again tomorrow?”

The Law Secretary said, “A new version. The old one preserved.”

“Why?”

“So that the Court may see not only what we say now, but how what we said changed.”

Aditya thought: postulation was no longer merely a method for finding an unstated condition; it also demanded that the movement of one's own thought be made visible.

As soon as he stepped out of the office, Aditya's phone rang. It was his mother.

"How late will you work?"

"Only this much today, Ma. I'm leaving now."

"Have you eaten?"

Aditya smiled. "I will now."

His mother said, "After yesterday's rain, the edges of the fields have softened again here. Your father used to say—don't scatter seed after looking only at the topsoil; look at the moisture underneath."

Aditya fell silent.

"Are you listening?"

"Yes."

"Do you worry too much about your work?"

"Not the work. The boundary."

His mother laughed. "Understanding the boundary is work too."

The call ended.

There was less dust in Delhi that evening. It had not rained there, but the air had grown cooler than during the day. Aditya was coming down the Ministry steps.

Malini came up behind him.

"Garh En Arikel?"

"It was Ma."

"Rain?"

"Yesterday."

"Another lesson from the soil?"

Aditya stopped.

"The colour on the surface may be the same," he said, "while the moisture underneath is different."

Malini asked, "Postulation?"

"No. Direct test first."

Malini laughed. "Now you stop every example before it gets started."

"Why not? Examples cross boundaries too."

They walked toward the parking area.

That night at his residence, Aditya opened his private notes on the file. Separate from the State's official copy, these were only pages of thought.

He wrote—"Postulation is dangerous without patience."

Then he wrote—"To assume at once that what was not directly said was nevertheless said is storytelling; to turn a condition without which the facts cannot stand together into a testable question is method."

He paused at the third line.

The fields of Garh En Arikel came to mind. Water might appear to stand on the surface, yet the soil revealed only gradually how deep it had gone. The outer surface could look the same while the layers within differed.

He wrote—"Seed does not sprout because the soil is torn open; moisture needs time. Evidence too does not ripen under pressure."

Aditya set down his pen.

At that same hour in the Home Ministry, the Law Secretary was signing the final page. Its heading read—"Strategic Revision: Postulation-Testing Framework."

Below it were written eight mandatory sections.

Established fact.

Apparent contradiction.

Minimum necessary condition.

Alternative arrangement.

External test.

Failure condition.

Unproved point.

Limited judicial direction sought.

One sentence stood apart in the final note—"No necessary condition shall automatically be treated as proof of person, purpose, ownership, or criminal culpability."

The Law Secretary signed it.

The file was not closed.

A new slip was placed on top—“Attorney General/Solicitor General: Specific Supplementary Legal Questions—For Transmission.”

Tomorrow these questions would move forward.

Today only the strategy had changed.

In Aditya’s words—not one contradiction had diminished; the way to test it had become clearer.

The wet soil of Garh En Arikel was far away, but its patience had found a place in a State file in Delhi.

055 The Turn of Postulation — Chapter 3

Before seven in the morning, the final copy of yesterday's five questions lay open in the Legal Division of the Ministry of Home Affairs. Every page bore the same version number, the same date, and the same note—"For a specific supplementary legal opinion within the pending representation."

Law Secretary Suchitra Rai read the covering letter once more.

"Leave this sentence on the first page," she said. "No one should think that the Attorney General and the Solicitor General are being engaged afresh."

Aditya Jha agreed.

Malini Karna paused over the wording of the fifth question—"What judicial form should keep a postulation-based question distinct from the language of allegation or proved fact?"

She asked, "Is 'postulation-based' too large a term here?"

Aditya said, "It makes the source of the question clear, not its conclusion. Let it remain."

Suchitra signed the final page.

At five minutes past seven, the copy was sent to the offices of Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar.

The file was not closed. A new slip was affixed to it—"Awaiting response; investigation continuing."

Dawn had already entered Devvrat Sinha's library room. Mrinal Dhar had spread the five questions on separate sheets.

Devvrat read the first question. "How should the minimum necessary condition be placed in judicial language as a temporary postulation?"

Mrinal said, "First decide what we are asking the Court to 'accept.'"

"In my view, not acceptance. Permission to test."

"Right. Not permission to declare the postulation a proved fact, but permission to frame a limited question in order to test an apparent contradiction among established facts."

Devvrat wrote a line—"The Court is not requested to treat the necessary condition as fact; permission is sought to record it as a testable temporary proposition."

Mrinal added, "And the language of the proposition must be smaller than, or equal to, its foundation; never larger."

Devvrat looked at him. "Keep that sentence."

"Why?"

"Because this is the greatest danger in postulation—joining two small facts and making one large story."

For a few moments both were silent.

The first example was the same service-key route.

Mrinal read the facts again—the browser-based administrative access suspended at 18:05; the service request recorded at 18:32; the request travelling through a separate service-key route.

Devvrat said, "Yesterday's Ministry paper says, 'At least one separate technical route was available.'"

"The existence of the route is established."

"But that the request was sent at that moment through active human use is not established."

"A queued task is possible."

"A previously scheduled automated process is possible."

"Use by another authorised or unauthorised person is possible."

Devvrat stopped his pen. "Then make the necessary condition smaller."

Mrinal asked, "How much smaller?"

Devvrat wrote—"The existence of the later service request did not necessarily depend upon the continued active use of the suspended browser session."

Mrinal read the line and said, "This is safer. It does not say 'who used it'; it only breaks one dependency."

"And postulation should do no more than that—only as much as is necessary to remove the contradiction."

Mrinal wrote in the margin—"As alternative explanations increase, the scope of the necessary proposition decreases."

The second question concerned keeping alternative causes open.

Devvrat said, "If the State places its alternative causes on the open record, the defence will use them. That is natural."

Mrinal replied, "And if the State conceals them, the Court's confidence will diminish."

"Then the principle?"

"Any alternative cause that reasonably arises from the source material and can alter the weight of the State's proposition should not be suppressed."

Devvrat asked, "Every imagined possibility?"

"No. Only source-based competing arrangements. A list of baseless possibilities is itself a form of confusion."

Devvrat divided the page into two sections—"Source-based alternative arrangements" and "Merely imagined possibilities."

Mrinal said, "The second section should not go into the judicial submission. It may remain in the investigation's private question-book, but not at the same evidentiary level."

"That is an important distinction."

"Postulation is not a method for counting infinite possibilities; it is an examination of the minimum necessary condition."

Devvrat smiled. "Philosophy is now becoming a courtroom paragraph."

Mrinal said, "Keep the paragraph short."

◆
The third question concerned a necessary condition arising from sealed or confidential sources.

Mrinal turned a page. "This is where the defence's right to answer is most difficult."

Devvrat said, "The Court may inspect privately, but if the State's postulation depends on that material, the defence should at least be entitled to understand which established fact, which contradiction, and which limited condition are being proposed."

"Without disclosing the confidential portion of the source?"

"Where possible. Otherwise the scope of adverse use must shrink."

Mrinal read out a draft—"Confidentiality does not extinguish procedural justice; it may only alter the form of disclosure."

Devvrat said, "Keep it. But along with 'procedural justice', add this as well—'A confidential source is not, by itself, proof of truth.'"

"And 'the Court saw it' does not equal 'a party proved it.'"

"Exactly."

They placed before them the open summary of the previous sealed-inspection order.

Mrinal said, "This supplementary opinion is not contrary to that order; it is the next stage of it."

◆
The fourth question concerned the status of an earlier submission when external testing failed.

Devvrat asked, "If one proposition in the State's supplementary foundation is later shown to be false, should the Court treat it as automatically erased?"

Mrinal shook his head. "Not erased. Revised. The earlier version remains part of the history of the record."

"Then the judicial duty?"

"In the next filing, mark it clearly—which proposition failed, why, because of which source, and what conclusion is affected."

Devvrat said, "So even a failed investigation is a fact of record."

"Yes. A failed test does not automatically support or negate guilt; but it may reduce the weight of the State's earlier postulation."

Devvrat wrote—"Do not conceal failure; specify its effect."

Mrinal added—"And even if the test succeeds, do not draw a conclusion larger than the proposition."

Devvrat laughed. "The same discipline in both directions."

"The limits of evidence do not change with the side one chooses."

◆
At half past nine, Aditya and Malini reached Devvrat's office. Suchitra Rai joined by video link.

Without preamble, Devvrat placed the first page before them.

"Aditya-ji, in the service-key example, what is your 'minimum necessary condition' now?"

Aditya repeated yesterday's line—"A separate technical route was available."

"The existence of that route is established," Devvrat said. "But is even that much necessary to remove the contradiction?"

Aditya fell silent.

Malini opened her notes. "No. If a queued or previously scheduled request was possible, even the assumption of active use of a route may be unnecessary."

Mrinal asked, "Then the shorter sentence?"

Malini thought for a few moments. "The later request was not necessarily the result of the continued activity of the suspended browser session."

Devvrat said, "Good. Actor? Purpose?"

“Unproved.”

“Active human use?”

“Unproved.”

“Lawfully authorised use?”

“Unproved.”

Aditya said, “Yesterday I had written the proposition one step larger than necessity required.”

Suchitra said from the video screen, “Then change it in the revision register, with the reason recorded.”



Malini marked her earlier page in red.

“One thing,” she said. “This correction does not end the opposing side’s questions.”

Mrinal replied, “Nor should it. A correction serves the truth, not the convenience of one side’s victory.”

Aditya said, “The new line makes the investigation more difficult.”

Devvrat smiled. “Then it may be more useful.”

Suchitra asked, “Will the State place this correction before the Court itself?”

“Yes,” Devvrat said. “Why wait for the defence to discover it?”

Malini asked, “Will that not raise a question about the State’s credibility?”

Mrinal replied, “It will. But preserving an inaccurate line because one fears a question is more dangerous.”

At the bottom of the page Aditya wrote—“Postulation Proposition No. 1: scope reduced; reason—alternative automated/queued arrangement.”

Devvrat said, “Let the revision of every proposition remain visible in this manner.”



Before noon, discussion began on the fifth question—the judicial form by which a postulation-based question should remain distinct from the language of allegation or proved fact.

Mrinal laid out a seven-part framework.

“One—established foundational facts.”

“Two—apparent inconsistency.”

“Three—the minimum necessary temporary condition.”

“Four—a competing source-based arrangement.”

“Five—external test and failure condition.”

“Six—what this proposition does not prove.”

“Seven—the limited direction sought from the Court.”

Devvrat said, “Add an eighth—‘evidentiary status.’ Write it plainly: question, investigative postulation, indication, independent support, or proved fact.”

Malini wrote at once.

Aditya asked, “What if one part of a proposition is supported by an external source and another remains unproved?”

“Break the line,” Mrinal said. “Do not mix different evidentiary values in a single sentence.”

Devvrat added, “Grammar can become a science of evidence too. The word ‘and’ can make two unequal propositions stand on the same level.”

Malini circled the word ‘and’ on the page.



At the end of the meeting, Devvrat said, “We will not tell the Court, ‘Accept the postulation.’”

Suchitra asked, “Then what will the submission be?”

“That the Court approve this testing framework as a discipline of record—no more. Where specific external records are required, limited directions may be issued.”

Mrinal gave examples—“The server provider’s key-change register, the payment gateway’s queue details, the time-synchronisation record—where a complete certified copy is not available without judicial direction.”

Aditya asked, “And person-specific conclusions?”

“Not at this stage,” Devvrat said. “Where there is an independent basis, that is a separate question. Postulation is not a substitute for it.”

Malini asked, “And the allegation?”

“The allegation stands on its own legal foundation. This method does not strengthen it automatically.”

Suchitra was silent for a few moments. “This position paper narrows the State’s case.”

Devvrat replied, “A case without limits ceases to be a case in court; it becomes a story.”



At that time, a slim open copy reached Vidyanand Mishra’s office. It was not the State’s internal question paper, but the public notice seeking supplementary legal position and the proposed subjects for the next hearing.

Ishan read the copy and said, “The State is changing its theory again.”

Vidyanand raised his head. “Changing it, or limiting it?”

“Is there a difference?”

“A great one. Removing inaccurate words, inventing a new allegation, and changing a theory are three different things.”

Ishan put his thumb on the page. “It says ‘minimum necessary condition’ here. We can say that the State is filling an evidentiary gap with imagination.”

Vidyanand said, “If they sought a conclusion without testing, yes. But this copy says—temporary, testable, with a failure condition.”

“Then what do we challenge?”

“Whether the word ‘necessary’ is truly necessary. If two or three alternative arrangements remain open, it is difficult to call one condition indispensable.”

Ishan smiled. “So we use the State’s method against it?”

“No. The method is against no one. It is only a test.”

Two private envelopes also lay on Vidyanand’s desk at that moment. One was a monthly payment reminder from a financial institution; the other, a medical estimate for Shailaja’s forthcoming examination.

He opened the first envelope and closed it again.

Ishan asked nothing.

A short while later the office administrative assistant came in. “Sir, there is a message from the client’s head office about the outstanding fee. They want a public statement for the news media this evening.”

Vidyanand asked, “The draft?”

The assistant handed him a page.

The first line read—“It has now been proved that the State’s entire case rests on manufactured contradictions.”

Vidyanand read the page and set it down.

“This will not go.”

The assistant said hesitantly, “They want sharper language.”

“Sharpness cannot become a condition of professional fees.”

“But the payment may remain held up?”

Vidyanand’s gaze moved for a moment toward the private envelopes.

“Let it,” he said. “I will not say what is unproved.”

After the assistant left, Ishan remained silent for a few moments.

“Sir, the personal dues...”

Vidyanand raised a hand. “They are not an argument for the Court.”

“I only...”

“I understand.”

He struck out the first line of the public statement and wrote—“The State’s new postulation framework remains under examination; the defence will place before the Court its objections concerning the claim of necessity, alternative explanations, and evidentiary weight. No final conclusion is offered on the merits.”

Ishan read it. “This will sound weak to the client.”

“Perhaps.”

“And the fee?”

Vidyanand did not smile. “Professional dignity is sometimes expensive.”

Ishan did not answer.

Vidyanand opened the second envelope. The amount due was written on the final line of the medical estimate.

He folded the page and placed it in a private file.

“Now prepare the defence response.”

The defence’s first response was built around the service-key example.

Vidyanand said, “The State’s shorter proposition is better than the earlier one, but the question remains—if a queued task was possible, why was the active availability of a ‘separate route’ necessary to remove the contradiction?”

Ishan wrote.

“Second—if the time of the service request is certified but the actor is unproved, no person-specific postulation is admissible.”

“Third—if a necessary condition is drawn from a confidential source, the defence must have an adequate opportunity to know its foundational facts and chain of reasoning.”

“Fourth—the State must place the history of failed tests openly on the record.”

Ishan asked, “And fifth?”

Vidyanand thought for a few moments.

“Shall we say that the evidentiary value of a postulated proposition cannot exceed that of its foundational facts?”

“Careful,” Vidyanand said. “Sometimes the coexistence of two facts truly makes a third minimum condition necessary. But do not move beyond the subject-matter of that necessity.”

Ishan wrote a new line—“Where necessity concerns a particular subject, the proposition must remain confined to that subject.”

Vidyanand said, “On this we will stand.”

That afternoon, a draft supplementary position paper was prepared in the Attorney General’s office. Its title was deliberately short—“Procedural Limits of Postulation-Based Testing.”

Devvrat read the first paragraph—“This submission seeks no additional conclusion on the merits of the State’s allegations.”

Mrinal said, “Keep it.”

The second—“Where the coexistence of established foundational facts would be inconsistent without a specified limited condition, that condition may be identified as a testable temporary proposition.”

The third—“Where more than one source-based arrangement is available, no single arrangement should be called ‘necessary’ unless the others have been excluded or sufficiently narrowed.”

The fourth—“The language of the proposition should not extend to person, purpose, ownership, control, or culpability unless those matters are supported by an independent foundation.”

The fifth—“Where there is reliance on a confidential source, sufficient open foundation should be made available for an effective right of response; where that is impossible, adverse use should be limited.”

The sixth—“The successful or failed results of external testing, and the history of revision, should be preserved.”

The seventh—“In judicial orders, the levels of question, temporary postulation, allegation, evidence, and proved fact should be stated in distinct language.”

Devvrat set down the page. “That is enough.”

Mrinal said, “One line more—the Court is not the author of the investigation’s story.”

Devvrat smiled. “The thought is right. Change the language.”

The final line became—“Judicial direction should define the limits of testing; it should not itself fill an investigative gap.”

When the position paper reached the Ministry, Shiveshwar Prasad himself read the first page.

“Does this give us a victory?” he asked.

Suchitra Rai replied, “It gives the question its proper limits.”

“Then that is enough.”

Aditya circled a line on the second page—“Where more than one source-based arrangement is available...”

Malini said, “That is why our service-key proposition became smaller again yesterday.”

“And better,” Aditya said.

The Minister asked, “What will the State seek at the next hearing?”

Devvrat was connected by telephone. “Three limited directions—preservation and production of certified external records; permission to make the level of each proposition explicit; and approval to keep the revision history on the record.”

“Anything concerning guilt?”

“No new conclusion.”

The Minister said, “Protect that line.”

By evening, Vidyanand reached home. Shailaja was sitting on the veranda; in her hand was another copy of the medical estimate.

“You left this at the office,” she said.

Vidyanand pulled up a chair and sat down. “I saw it.”

“Worried?”

“About the amount.”

Shailaja looked straight at him. “And about work?”

“That too.”

“Do not mix the two.”

Vidyanand gave a faint smile. “I do not know whether I passed that test today.”

“What happened?”

He told her about the public statement.

Shailaja listened. “You refused?”

“Yes.”

“Then we will look at the payment tomorrow.”

“As simple as that?”

“No. But if a false sentence pays the bill, the illness will be of another kind.”

Vidyanand was silent for a few moments.

Shailaja asked, “What is the next hearing about?”

"The place of postulation between suspicion, allegation, and evidence."

"Then do not construct postulations about your own life," Shailaja said. "Do not make a story out of what you do not know."

Vidyanand laughed. "Now you too."

"You bring too much jurisprudence home."

At half past nine that night, an email from Ishan arrived. The subject line read—"State's Supplementary Position Paper—Open Copy."

Vidyanand went into his study. Shailaja had told him not to stay up late that night, but he opened the pages for only fifteen minutes.

After reading the first seven points, he picked up a red pen.

"Where more than one source-based arrangement is available..."

He circled the line.

Then he wrote—"The defence agrees—but the Court should clarify the test for 'sufficiently narrowed.'"

His second note—"Effective right of response where the foundation is confidential—the State's proposal is adequate, but the minimum elements of a 'sufficient open foundation' should be defined."

Third—"The effect on the record of a failed test does not automatically apply to every earlier allegation; the connection should be shown."

He looked at the clock. Fifteen minutes were over.

He capped the pen.

The door to Shailaja's room stood half open.

Vidyanand closed the file and went inside.

That night, at his residence, Aditya read the Attorney General's position paper once more. Nowhere among the pages did Gangesha Upadhyaya's name appear, but the shadow of the method was clear.

No qualifier without a qualified object.

No relational conclusion without a relation.

No inference without pervasion.

And no postulation without necessity.

In his private note Aditya wrote—"Find the smallest form of the proposition without which the facts cannot stand together; discard the proposition that merely makes the story more elegant."

Then he added—"If an alternative arrangement survives, necessity remains incomplete."

He put down his pen.

Outside, the sounds of the city were diminishing.

Aditya remembered an old scene from Garh En Arikel—a strip of water had failed to reach one part of a paddy field. His father had first assumed that the embankment had broken; later they discovered that the mouth of a narrow channel was blocked by leaves.

One result may have many possible causes.

The choice of cause is made by testing, not by desire.

The next morning, a short mention appeared in the Supreme Court list concerning the pending Special Leave Petition. There was no new petition; the matter was listed for hearing on the supplementary position paper and limited procedural directions.

Ananya Kashyap read the list and told her newsroom editor, "No 'new twist' in the headline this time."

The editor laughed. "Then what?"

"Supplementary Hearing on the Limits of Postulation."

"Will readers understand?"

"We will explain it. Sensation is easy; limits are difficult. That is why we will write the limits."

In her notes she separated five words—suspicion. Allegation. Indication. Temporary postulation. Proved fact.

Then she added a sixth—evidence.

She thought that the real question at the next hearing might lie here—how a proposition moves from one level to another, and where it must stop.

Before entering the courtroom, Devvrat Sinha and Mrinal Dhar met Vidyanand Mishra in the corridor.

They exchanged formal greetings.

Devvrat said, "Did you receive the open copy?"

"Yes."

"Any procedural difficulty?"

Vidyanand replied, "With a few words. 'Sufficiently narrowed' and 'sufficient open foundation'—both need a test."

Mrinal said, "We expected debate on precisely those expressions."

Vidyanand looked for a few moments at the papers in Devvrat's hand. "On one point we agree—postulation is not a shortcut to personal culpability."

Devvrat said, "That agreement can be recorded."

Ishan stood a little behind them. He watched both sides with mild surprise.

Opposing parties need not oppose every proposition. Sometimes agreement about a boundary makes the conflict clearer.



A few minutes before the Bench sat, Aditya and Malini were reading the State's formulation once more.

Malini asked, "Which question do you think the Court will ask first?"

Aditya said, "Probably—are these suspicions, allegations, or evidence?"

"The answer?"

"Not in one sentence."

"Where does postulation stand?"

"In between, as a testable question. To become evidence, it needs external support; to become an allegation, it needs a legal foundation; to become a proved fact, it must pass the judicial test."

Malini closed the page.

Far down the corridor Vidyanand Mishra was approaching with his team. His pace was normal, but the fatigue of the night was visible beneath his eyes.

Aditya looked at him, then back at his file.

Private crisis was not written into the court record. Yet professional dignity was visible in the effort not to let it affect the choice of words.



The bell outside the courtroom rang.

Everyone rose and moved inside.

On the first page of Devvrat's supplementary position paper, the final sentence read—"Postulation may be a path of investigative testing; it is not independent proof of allegation or guilt."

On the first page of Vidyanand's response was written—"Before calling any condition 'necessary', the competing source-based arrangements must be genuinely tested."

The two pages belonged to opposing sides, yet between them lay a shared boundary.

Whether the Court's next question would break that boundary or make it clearer remained uncertain.

But one thing was clear: giving words to what is unspoken is not, by itself, enough.

After words must come testing.

After testing must come the level of evidence.

And even after evidence, judicial determination remains a separate stage.

056 The Turn of Postulation — Chapter 4

The light of dawn had not yet spread fully across the long veranda of the High Court. Before the courtroom opened, Aditya Jha looked once more through his file. At the top were written five words from Justice Arya's previous order—suspicion, allegation, indication, evidence, proved fact. Beneath them was a line from Devvrat Sinha's supplementary position paper: "Postulation may be a path of testing; it is not independent proof of guilt."

Malini Karna came up from behind and asked, "Will those five words come up again today?"

"They will," Aditya said. "But this time a sixth term will stand between them—a necessary provisional condition."

"And how is that different from suspicion?"

"Suspicion opens a question. A provisional condition of postulation arises when, for established facts to coexist, some minimum proposition has to be assumed. But its subject-matter extends only as far as necessity requires."

Malini closed the file. "And if two alternative propositions are possible?"

"Then the word 'necessary' becomes smaller."

Inside the courtroom, the attendant was arranging the records in order. There was no major new seizure today, no announcement of a new name. The old files of three witnesses had been called for again—Manoj Mahato, Rajat Pal, Sudip Ghosh. But this time each file was accompanied by a slender supplementary folder of new external records.

After taking the bench, Justice Arya first looked toward both sides. "At the last hearing, I kept emotion separate from evidentiary status. I will not reopen that boundary today. The question now is this: when two or more established facts coexist, what is the minimum proposition without which their coexistence cannot be understood? And where does that minimum proposition move beyond suspicion, where does it reach allegation, and where does it remain merely a testable proposition?"

Devvrat Sinha rose. "The State agrees, My Lady."

Vidyanand Mishra rose as well. "So does the defence, subject to one condition—the word 'necessary' must not appear merely because it makes the State's story easier."

Justice Arya said, "Quite so. Convenience is not necessity."

Mrinal Dhar opened his notes. "The State will place fresh examination of external records relating to the three witnesses, but will not declare any element of the offence proved from anyone's mental state."

Vidyanand said, "And the defence will not contend that a witness's fear, financial interest, or remorse automatically makes all his statements false."

Justice Arya lifted her pen. "Record that agreement at the outset. Now, Manoj Mahato."

The first record in Manoj's supplementary file came from a telecommunications service provider. Earlier, the times of two incoming-call indicators had been found; the sender had not been fully identified. Now limited technical details had arrived from an international voice-gateway provider—the two indicators had been routed through the same intermediary service group, but the original subscriber identity for that period was unavailable.

With the Court's permission, Malini read: "The routes of the two indicators reach the same service group; original source number unavailable; content unavailable; similarity of route does not establish identity of sender."

Justice Arya asked, "What does the State wish the Court to infer from this?"

Devvrat answered, "Only that the routes of the two calls cannot be described as wholly unrelated. But no conclusion follows that they came from the same person, the same establishment, or the accused group."

Vidyanand said, "Good. The same gateway can serve thousands of subscribers."

"The State agrees."

The second supplementary record came from the school's transport-service provider. Manoj's son's bus route, class, and parent telephone number were stored on an external server. During that week, a support account had viewed the bus-route list. The record showed that the support account was valid; the available material did not establish which individual had used it.

Justice Arya asked, "Who ordinarily used this support account?"

The school's technical officer, present pursuant to summons, replied, "Three authorised members of the service-provider team. Sometimes they provided remote support at the school's request."

"Had the school made such a request that day?"

"Not in our local register."

"So, unauthorised access?"

The officer answered at once, "I cannot say that yet. The provider's own internal request register has been found incomplete."

Justice Arya nodded. "That answer has value."

Manoj sat at the back. Once again, his thumb rubbed against his forefinger.

Devvrat said, "The State's limited proposition is this—the school and bus-route information allegedly known to the caller must have come from some source; the school-transport server is one possible source. But the State does not say, at this stage, that this necessarily was the source."

Without smiling, Vidyand said, "Then that is possibility, not postulation."

"As to the specific source—yes," Devvrat replied. "But one minimum proposition is necessary: if Manoj's statement is correct that the caller knew the bus route, then the caller had some source for that information."

Justice Arya said, "At this stage, postulation is limited to: 'the caller had a source of information.' 'That source was the school server'—a testable possibility. 'A person from the accused group used that source'—at present, suspicion. These three levels are not to be merged."

Malini wrote down three lines.

A strange expression came over Manoj's face—as though the Court were once again cutting his fear into separate pieces.

Manoj was called forward for limited questioning.

Justice Arya said, "We are not debating the human truth of your fear today. The question concerns only the source of the information."

"I understand," Manoj said. But his voice suggested that understanding was not easy.

Devvrat asked, "On the call, was the exact bus-route number stated, or only the bus timing?"

Manoj thought for a few moments. "The time. And the name of the school."

"The class?"

"I remember—yes. But I am not completely certain now."

Vidyand immediately said, "Let the first statement on record be seen."

The first statement was called for. It clearly mentioned the school's name and the bus timing; it made no mention of the class.

Justice Arya looked at Manoj. "You are adding the class today, but it was not in your first statement. That memory may have formed later. I cannot at present treat that part as reliable."

Manoj's face reddened. "I am not lying."

"I am not calling you a liar," Justice Arya said. "Memory can grow, blur, or change under later information. That is human."

Manoj's eyes filled. "Then should I say what I remember, or not?"

"Say it. But do not turn 'I remember' into 'I was certain from the beginning.'"

Manoj drew a long breath. "All right."

Vidyand asked, "Outside your family, how many people knew your son's school and bus timing?"

Manoj paused. "Neighbours, some parents, the bus driver, the school..."

"So the server was not the only possible source?"

"No."

For a few moments, the room was silent.

Justice Arya said, "That answer narrows the subject of postulation. The necessary condition is only this: if the statement is correct, the caller had access to some source of the information. The identity of that source remains open."

Manoj asked softly, "And my fear?"

Justice Arya said, "I neither diminish your fear nor turn it into evidence against someone else."

Manoj bowed his head. His shoulders loosened a little. Perhaps for the first time he understood that the Court was not denying his experience; it was only refusing to extract someone's name from it.

When Rajat Pal's file was opened, the atmosphere changed. In place of fear stood a clear record of money. Five additional payments were undisputed. At the previous hearing, their purpose had been left contested. Now, pursuant to summons, the establishment's payroll-process records, incentive policy, and special-adjustment register had arrived.

Malini read the summary: "Written approval-reference numbers were expected for regular incentive payments. For four of the five payments, no such number appears. Against the fifth is a general adjustment marker, but the corresponding approval document has not been found."

Vidyand asked, "Does absence establish an unauthorised payment?"

"No," Malini replied. "In the older accounting process there are examples of valid adjustments being approved later."

Devvrat added, "And the possibility that some records were lost during migration has not been completely excluded."

Justice Arya asked, "Then what are the established facts?"

Mrinal Dhar said, "Five payments were made. For four, the ordinary register contains no regular approval marker. The linkage for the fifth is incomplete. Rajat received the money."

"And the necessary condition?"

Devvrat thought for a moment. "If the payments moved through the banking channel and originated from the establishment's system, then at some point a payment instruction entered through some procedural route. But whether that route was regular, special, erroneous, a later adjustment, or unauthorised remains open."

Vidyanand said at once, "The defence agrees with that sentence. That a payment came through 'some route' is almost a restatement; to call the route unlawful is not postulation."

Justice Arya said, "Correct. If a conclusion merely repeats the meaning of an established fact, its evidentiary value is low. But it can still give direction to the investigation—where did the instruction enter from?"

From the back, Aditya wrote: "Postulation does not create a new offence; sometimes it merely frames the question that seeks the missing procedural link."

When Rajat was called, his face looked more tired than at the previous hearing. After sitting down, he placed both palms flat upon his knees, as though restraining his hands from unnecessary movement.

Justice Arya asked, "You received additional money—that is established. Today we will ask not about your character, but about the process."

Rajat said, "All right."

"Before receiving a payment, did you get any written intimation?"

"Sometimes a short message—'an adjustment will come.' Sometimes nothing."

"From whom?"

"From the accounts team's shared address."

"Have those messages been preserved?"

"One or two, perhaps. I changed my old phone."

Vidyanand asked, "Did you ever ask where the approval documents for the four payments were?"

Rajat shrank a little at the question. "No."

"Why not?"

"Because the money came. I needed it."

The sound in the room seemed to fall slightly.

Rajat went on, "I am ashamed to hear myself say that. But it is true."

Vidyanand's voice was no longer hard. "And because you needed the money, did you know that the payment had an unlawful purpose?"

"No."

Devvrat asked, "Did your need for the money become the reason you asked no questions?"

Rajat lowered his eyes. "Perhaps."

"Certainly?"

"I do not want to invent my old reasons now. At the time I was simply pleased. I asked nothing."

Justice Arya stopped her pen. "That answer is important. We will not automatically reconstruct an earlier mental state from the language of later remorse."

Rajat half rose, then sat again. "My Lady, may I say one thing?"

"Go ahead."

"I used to think that if I admitted I needed the money, everyone would call me greedy. So I kept searching for some story of a 'task' behind every payment. Perhaps that is why I sounded more certain in my first statement."

Vidyanand immediately asked, "Are you saying your first statement was false?"

Rajat became anxious. "No. I am saying—I tried to fill what I did not know."

Justice Arya said, "Stop there. That human filling of a gap is not itself postulation. The judicial method is strict for precisely this reason—human beings fill uncomfortable gaps with stories."

Rajat drew a long breath. "Then today I say this: I took the money. I asked no questions. I did not know its purpose."

"Let that be recorded," Justice Arya said.

Sudip Ghosh's supplementary file was the thinnest of the three, yet its weight was the most uncomfortable. His private diary contained four dates, the notation 'R.S.', memories of certain meetings, and remorse. Now a building-entry register and a conference-room booking register had also arrived.

The building register showed that on two of the dates Sudip had in fact entered that building. The conference-room booking stood in the name of an outside consulting establishment. No list of participants had been preserved.

Malini said, "This gives external support for his presence on those two dates. The identity of 'R.S.' remains unproved."

Vidyanand asked, "The subject of the meeting?"

"The booking register says only 'financial coordination.'"

“Gambling?”

“No.”

“Offshore?”

“No.”

“Raghav Sethia?”

“No.”

Justice Arya said, “Then the fact of presence has gained strength; the subject and the identity of the person remain open.”

Devvrat said, “The State advances one limited postulation—if the diary records a meeting with ‘R.S.’ on those dates, and the building register supports Sudip’s presence, then at least this much is testable: the diary does not contain merely invented dates.”

Vidyanand replied, “That is corroboration, not postulation. Direct external support for presence is available.”

Justice Arya looked at Devvrat.

Devvrat immediately said, “The defence is right. The State withdraws that word. Here there is direct external support; there is no need to call it postulation.”

In her notes, Malini struck out “postulation” and wrote “independent support.”

Aditya paid particular attention to that small correction. Perhaps this was precisely the difficulty of Navya Nyaya: the availability of an impressive word did not mean it should be used everywhere.

Sudip came to the witness place and stood there. His eyes were not red, but his face was tired.

Justice Arya said, “Last time you said, ‘I am guilty in my own eyes.’ Today I will not ask again about the legal meaning of that emotion. I want only to understand whom you had in mind when you wrote ‘R.S.’ in the diary.”

Sudip raised a hand as though to hold his head, then stopped himself. “I remember that it was someone whose name began with ‘R’.”

“The full name?”

“No.”

“Raghav?”

Sudip’s eyes went to Vidyanand, then back to the Judge. “Now, after seeing all these papers, the name Raghav comes to mind. But I cannot say what I was certain of at the time I wrote it.”

Justice Arya said, “That distinction must be preserved.”

Devvrat asked, “Why are you remorseful?”

Sudip remained silent for a few moments. “We signed pages without reading all of them. I did not ask questions in the meetings. Later, when the news reports came, everything that had once been vague began to look frightening.”

“So later allegations may have changed the meaning of your earlier memories?”

“Yes.”

Vidyanand asked, “Does your sense of guilt now make you more certain about the identity of ‘R.S.’?”

Sudip’s voice thickened. “Perhaps. I want there to be a clear reason for my remorse. Remorse without a reason feels even worse.”

Silence spread through the room.

Justice Arya said softly, “The human mind fills gaps too. Legal postulation must remain separate from that human urge.”

Tears fell from Sudip’s eyes. “Then what am I to say?”

“Say what you know. What you remember, call memory. What seems so only in hindsight, call later interpretation. Do not make the three into one.”

Sudip nodded. “On two dates I was in that building. The diary is mine. I wrote ‘R.S.’. I cannot now say that the full name is proved. I remember that the meeting was financial. Whether it was unlawful—I do not directly know.”

“And the remorse?”

Sudip wiped his eyes. “That is mine. I will not place it in anyone else’s name.”

Justice Arya looked at him for a few moments. “Record that.”

After the midday recess, Justice Arya called for a large white sheet. Across the top were seven columns—“Established basis,” “Apparent inconsistency,” “Minimum necessary condition,” “Alternative arrangement,” “External test,” “Current level,” “What remains unproved.”

“This table is not a charge-sheet,” she said. “It is a discipline of thought.”

The first row—Manoj.

Mrinal read, “Basis—two calling incidents partially supported; the caller’s statement about the school/bus time rests on Manoj’s memory; school-transport information was accessible to numerous people and systems.”

Justice Arya asked, “The apparent inconsistency?”

Devvrat said, “The caller’s alleged specific knowledge, while the source remains unknown.”

“The minimum necessary condition?”

Vidyanand answered, "If the statement is correct, the caller had some source of the information."

"The alternative arrangements?"

Malini read, "Persons known outside the family, the school, the bus service, parent groups, the external server, other sources."

"The current level?"

Devvrat said, "Identification of the source—suspicion/investigative direction. Connection with the accused group—unproved."

Justice Arya wrote: "Postulation extends to the existence of a source, not to the identity of the source."

The second row—Rajat.

Malini read, "Basis—five additional payments proved; regular approval markers absent for four; examples exist in the old process of valid later adjustments."

Justice Arya asked, "The minimum condition?"

Devvrat said, "No bank payment can arise without some procedural instruction or entry; some route existed."

Vidyanand added, "But the route's lawfulness, purpose, actor, and Rajat's knowledge remain open."

"The current level?"

Mrinal said, "Additional payments—proved fact. Irregular process—indication. Unlawful purpose—a possible subject of allegation, but not proved by this material alone."

Justice Arya wrote: "Postulation extends to the existence of a procedural link, not to the quality of unlawfulness."

The third row—Sudip.

"Basis—presence in the building supported on two dates; 'R.S.' in the diary; 'financial coordination' in the booking register."

"The apparent inconsistency?"

Malini said, "No necessary inconsistency. Direct support and uncertain identity can coexist."

Justice Arya stopped her pen. "Then postulation is unnecessary here."

"The State agrees," Devvrat said.

"So does the defence," Vidyanand said.

Justice Arya wrote on the page: "Where direct or independent support gives an adequate description, postulation shall not be added merely to enlarge the appearance of proof."

At this point, Vidyanand Mishra rose. "My Lady, the defence has a broader question. If postulation is confined to the minimum necessary condition, when does an allegation based on that condition become proper?"

Justice Arya said, "Will the State answer?"

Devvrat thought for a few moments. "When the condition is sufficiently specific in the direction of the relevant legal element, when alternative source-based arrangements have weakened after testing, and when independent material supports the proposition. Logical necessity alone is not enough."

Vidyanand said, "Then there are at least three steps between suspicion and allegation—specificity, testing of alternative arrangements, and independent support?"

Mrinal added, "And relation to the legal element."

Justice Arya said, "Correct. But this is not a rigid mathematical formula. The stage of the case, the applicable standard, and the nature of the material must all be considered. Even so, the name of each level should remain clear."

Vidyanand asked, "And evidence?"

"Before using the word evidence, ask: evidence toward which proposition, from which source, for which legal use, and after surviving what challenge?"

Aditya listened from the back. Gangesha's Navya Nyaya seemed alive in the language of a modern courtroom—the delimitor of relation, the boundary of the proposition to be proved, the type of reason, the exclusion of alternatives.

In the margin of her page, Malini wrote: "Postulation does not itself change the level of a proposition; testing may change that level."

Aditya saw the line. "Keep it."

After noon, the three witnesses sat at separate places in the outer veranda. Manoj's wife had brought him tea. Rajat was folding a piece of paper in his palm. Sudip stared through the window at the sky.

Ananya Kashyap went toward them, but did not ask a question at once. As a journalist she had permission to speak with all three, but the Court's direction was clear—no sensationalising anyone's mental state.

Manoj himself said, "Will you write that I did not properly remember the class?"

Ananya said, "I will write that your first statement did not mention the class, and that today you acknowledged uncertainty in your memory."

Manoj frowned. "People will say I keep changing my story."

"Some will. But I will write what the record says."

Manoj set his cup of tea on the bench. "Earlier I wanted the Court to say—yes, you were threatened. Now I think, if it cannot say that, then at least it should say precisely what it does know."

Ananya did not write that down. "Is that private, or for publication?"

Manoj thought for a moment. "Private. Not yet."

"All right."

From across the veranda, Rajat called out, "Write my part—that I took the money."

Ananya looked at him. "That is already on the record."

"And this too—that I did not know the purpose."

"That too."

Rajat did not smile. "People will read the first part and leave the second."

"I will write both."

Sudip, still facing the window, said, "Write nothing about me."

Ananya nodded. "All right."

A few moments later, Sudip himself said, "Just write this—remorse does not identify a name."

Ananya looked at him. "Did you say that in Court?"

"Not in those exact words."

"Then I will not make it a quotation. If the thought is necessary to the report, I will express it in my own words and with its limits."

For the first time, Sudip looked a little at ease.

◆
In the next session, Justice Arya read out a draft of the brief procedural order concerning the three witnesses.

"One—A witness's fear, financial interest, remorse, or self-assessment may be a source of fact only to the extent that it describes direct experience; mental state does not by itself prove an external element of an offence."

"Two—Postulation may be considered where established foundational facts appear inconsistent or incomplete without a specified minimum condition; mere narrative convenience or investigative convenience is insufficient."

"Three—Where more than one source-based alternative arrangement remains live, the 'necessary' condition shall be confined to their common minimum."

"Four—A provisional condition raised by postulation shall not automatically be labelled suspicion, allegation, evidence, or proved fact; its level shall be determined only after independent testing."

"Five—In Manoj Mahato's case, if the alleged content is accepted, the existence of some source of information may be a minimum necessary condition; the specific identity of that source and its connection with the accused group remain unproved."

"Six—In Rajat Pal's payments, the existence of some procedural route is necessary; the lawfulness of that route, its purpose, the actor, and Rajat's knowledge are separate subjects of testing."

"Seven—Some external support is available for Sudip Ghosh's presence; the gap in the identity of 'R.S.' shall not be filled by postulation."

"Eight—A witness's later shame, fear, or sense of guilt may alter the meaning of an earlier memory; the original statement, later memory, external support, and the meaning later assigned through remorse shall be recorded separately."

Vidyanand rose. "My Lady, if the State issues a fresh summons on the basis of one of these provisional conditions, should its language say 'suspicion' or 'allegation'?"

Justice Arya replied, "Write the level as it actually stands. If it is only a testable question, the summons shall not give it the language of a proved offence."

"The State accepts that," Devvrat said.

Closing the order, Justice Arya said, "The discipline of words does not end here. Even after the word postulation, the questions of source, authority, and use remain."

Vidyanand's eyes lifted slightly. He could see where the next dispute would arise. Some of the sources were materials over which claims of privilege had already been recorded.

◆
After the hearing, Malini sat with Aditya in the records room. She looked again at the seven-column table.

"Sir, in all three witness matters today, postulation became very small."

"Its smallness is not its weakness," Aditya said.

"But readers and officers want large conclusions."

"Method does not grow large to satisfy the reader's desire."

Malini placed her thumb on Manoj's row. "There was a source of information—that much."

"Yes."

Rajat's row—"There was a procedural route for the payment."

"Yes."

Sudip's row—"Postulation unnecessary."

"That too is an answer."

Malini smiled. "Sometimes method says—do not use this tool here."
Aditya smiled faintly as well. "That is often the hardest lesson."
Closing the page, he said, "There is another difficulty now."
"What?"
"Some of the records needed to test the alternative arrangements are subject to claims of privilege."
Malini's smile disappeared. "Then does necessity create a right to know?"
"That is the question the Court will ask next."

◆
In the evening, Vidyanand Mishra stood alone for a few moments in the veranda of his office. Ishan was inside gathering papers. A message from Shailaja arrived: "Take your medicine. Do not stay too late tonight."

Vidyanand replied: "All right."

Then he called to Ishan. "Take out the privilege log again for tomorrow."

Ishan asked, "Why?"

"The State will now say that it needs to see certain mixed records in order to test alternative arrangements."

"And us?"

"We will say—necessity does not automatically destroy privilege."

Ishan thought for a moment. "But what if the State cannot exclude an alternative arrangement without the record?"

Vidyanand said, "Then perhaps the State has not yet established that its proposition is necessary. The burden concerning privilege may lie on the defence, but investigative inconvenience is not a substitute for it."

Ishan nodded. "And if the record is an original business record, merely copied to counsel?"

"Then look not at the label, but at purpose and origin. We have said that before. But at the postulation stage the State will bring a new argument—'we need it to test an alternative explanation.'"

Vidyanand's voice was tired, but clear. "We will need a new answer too—'the need to test' and 'legal entitlement' are not the same thing."

◆
That night, Aditya returned to his residence and opened his old notes on Gangesha Upadhyaya's method. On one page was written: "Anyathānupapatti."

He weighed the meaning of the term again in his mind. Where a fact cannot otherwise stand, a necessary condition arises. But saying "it cannot otherwise be" is easy; proving it is difficult.

In Manoj's matter, many sources remained possible. Therefore the necessary condition extended only to "some source."

In Rajat's matter, a payment route was necessary, but the moral or legal quality of that route remained open.

In Sudip's matter, direct external support existed; adding postulation there was unnecessary.

Aditya wrote: "The strength of postulation lies not in filling a gap, but in reducing the shape of necessity to its irreducible minimum."

Then a second line: "If alternatives remain alive, necessity is confined to their common part."

A third: "The human mind wants a reason; judicial method wants proof of the reason."

Outside, the night was deepening. Garh En Arikel returned to memory—when water failed to reach a paddy field, a farmer first examined the embankment, the channel, the fall of the soil, the blockage of leaves, each in turn. A dry field did not make "the embankment broke" necessary; what was necessary was only that somewhere the path of water had been obstructed or the supply had fallen. The specificity of the cause would come through testing.

Aditya said softly, "The minimum first."

He put down his pen.

◆
The next morning, Ananya Kashyap's report was published. Its headline read: "High Court: Emotion Cannot Replace Evidence; Postulation Confined to Minimum Necessary Condition."

In the first paragraph she wrote that the Court had declared no allegation either true or false. In the second, she set out the multiple possible sources of Manoj's information; in the third, Rajat's payment process; in the fourth, the limits of Sudip's uncertain reference to "R.S."

The editor sent a note: "The headline is heavy."

Ananya replied: "The subject is heavy."

A few minutes later another message came: "'Fear, Money, Remorse—Three Witnesses Break Down' better?"

Ananya wrote back: "No. They are people, not spectacle."

She put down her phone.

As she left for court, she remembered what Sudip had said the day before: "Remorse does not identify a name."

That line was not in the news report. There is dignity, too, in leaving some truths unpublished.

◆
At the Ministry, Suchitra Rai placed a copy of the Court's brief order before Shiveshwar Prasad. The Minister read the first page, then asked, "Has the State's position become stronger?"

Suchitra smiled slightly. “Yesterday Aditya called that question a disease.”

The Minister smiled too. “Then I have the disease as well.”

Aditya was present. “Some questions became smaller; some tests became clearer. That is all.”

The Minister asked, “Politically?”

Aditya did not answer; Suchitra said, “The Court has drawn no political conclusion.”

The Minister closed the page. “Then neither should we.”

He opened the next page. “Why is the privilege log being called for again?”

Aditya said, “The State team is considering whether certain mixed records may be needed to test alternative arrangements. But where privilege is claimed over material, the Court will determine its boundary.”

The Minister asked, “If postulation says the material is necessary, does privilege disappear?”

Devvrat, connected by telephone, answered, “No. Logical necessity and legal availability are separate questions.”

The Minister said, “Protect that distinction.”



At the day’s final meeting, Malini prepared a new table. First row—“Proposition: there was a source of information.” Current level—“minimum necessary condition.” Second—“Specific source: school service.” Level—“possibility.” Third—“Specific source used by accused group.” Level—“suspicion; independent connection required.”

Rajat’s row—“A procedural route for the payment existed”—minimum necessary. “The route lay outside ordinary process”—indication/testing. “The route served an unlawful purpose”—subject of an unproved allegation.

Sudip’s row—“Present in the building on two dates”—fact with independent support. “‘R.S.’ was Raghav Sethia”—unproved identification. “The meeting was unlawful”—unproved.

Malini created a final column: “Effect of emotion.”

Aditya asked, “Why this?”

“Manoj’s fear may have added the class to a later memory. Rajat’s shame may create a story about purpose. Sudip’s remorse may increase his certainty about the identity of ‘R.S.’ Emotion is not evidence, but it is part of the context in which memory is formed.”

Aditya looked at the page for a few moments. “Good. But change the heading to—‘Possible effect on memory/description.’ ‘Effect of emotion’ is too broad.”

Malini changed it at once.

“And add a line beneath it—‘Human context respected; legal weight assessed independently.’”

Malini wrote it down.



As evening fell, a new notice arrived from the Court’s records branch—a limited hearing the next day on three disputed entries in the privilege log.

Vidyanand received the notice. So did Devvrat. A copy reached Aditya’s desk.

Malini read: “Entry 9: copy of a pre-existing business record sent to counsel. Entry 11: external factual summary attached to legal advice. Entry 12: mixed communication—business instruction and legal question in the same chain.”

She asked, “Is this not again a question of words?”

Aditya said, “Words, authority, and purpose.”

“And postulation?”

“The State will say—certain facts are needed to test alternative arrangements. The defence will say—necessity does not break privilege.”

Malini closed the file. “Then tomorrow the boundary changes again.”

“The boundary does not change,” Aditya said. “Its other side becomes visible.”

He looked out of the window. The city’s lights were coming on one by one.

The method of Navya Nyaya seemed once again to place its stern demand before them—before calling the unstated necessary, test the alternatives; before treating the necessary as available, test authority; and before treating the available as true, test proof.

On the page before him, Aditya wrote the final line: “Necessity does not open the door; it only brings the question to the door.”

The next hearing was about the right to that door.

057 The Turn of Postulation — Chapter 5

The first light of dawn was falling across the High Court verandah. A copy of the previous day's order lay open in Aditya Jha's file, a red pencil line drawn beneath its final sentence—"Necessity is not a substitute for entitlement."

Malini Karna's gaze rested on that sentence. "Today the State will say that certain records are necessary to test the alternative arrangement. The defence will say that necessity does not break privilege. How, then, will the court move forward?"

Aditya said, "First it will ask how minimal that necessity truly is. Then whether an answer to that minimum question can be found somewhere else without breaking privilege."

"And if it cannot?"

"Even then, the next question will be one of entitlement, not convenience."

Malini closed the file. "Postulation has brought the question to the door. Today the court will decide who holds the key to open it."

Aditya said softly, "And how far it may be opened."

The courtroom opened. Justice Arya took the bench. Vidyanand Mishra rose with his team. For the State, Devvrat Sinha and Mrinal Dhar were present; Aditya and Malini sat in the row behind them.

Justice Arya said, "Yesterday I identified three disputed entries—9, 11 and 12. Today the question is not whether the investigation is difficult. The question is where the claim of privilege ends, and where the independent life of a pre-existing fact begins."

Devvrat rose. "My Lady, the State's submission is limited. We do not seek legal advice. We seek the facts necessary to test the alternative arrangement."

Vidyanand rose at once, though his voice remained measured. "And the boundary of the State's word 'necessary' is today's principal question. If the State says that it cannot test its inference without entering lawyer-client communications, that may reveal a weakness in the investigation; it does not automatically create an exception to privilege."

Justice Arya said, "Let both sides first accept one proposition—postulation may indicate logical necessity; it does not establish legal availability."

Devvrat said, "Accepted."

Vidyanand too inclined his head. "Accepted."

"Then begin with Entry 9."

The court clerk read Entry 9 of the privilege log—"Copy of a pre-existing business record, later sent to counsel for legal advice."

Devvrat said, "The State's submission is that the original business record is not, by its nature, privileged. Merely sending a copy to counsel does not alter the character of the underlying fact."

Vidyanand replied, "The existence of the original record and the copy within the scope of privilege are two different questions. The State may seek the original record from its original source. But which copy was selected for counsel's file, in what sequence, and with what annotation—the selection itself may reveal the direction of legal thought."

Justice Arya looked not at Malini but at Devvrat and asked, "What is the minimum proposition required by the State's postulation?"

Devvrat answered, "On two dates, the client's internal payment process appears to have departed from the ordinary route. One alternative arrangement is that the departure occurred for an ordinary business reason. For that reason, the original accounting records for that period are necessary."

"And the State's allegation?"

"Separate. A different process does not prove an unlawful purpose."

Justice Arya said, "Good. Now tell me—where, apart from counsel's file, ought the original accounting records to exist?"

The table prepared by Aditya was handed to Devvrat. He read, "The institution's accounting archive, an external payment integrator, the custodian of tax working papers, and bank records—four possible independent sources."

Vidyanand said, "That is the State's own answer. If there are four independent sources, why is counsel's file the first option?"

Devvrat said, "Because not all four are complete."

"Incompleteness does not create a right of access."

"We seek not access, but separation of fact."

Justice Arya intervened. “Changing the word does not change the entitlement. ‘Separation’ is possible only when separation itself is legally proper.”

She called for Aditya’s table and read it for a few moments.

“Here the bank has two dates, the payment integrator three, the tax working papers four, and one file from the accounting archive is unavailable. The State says that a particular internal code appears only in the copy described as being in counsel’s file?”

Devvrat answered, “The sealed log contains an indication to that effect; the State has not seen the copy.”

Justice Arya said at once, “Then do not use the word ‘appears’. The State has only read the description in the privilege log.”

Devvrat paused. “Correction accepted. The log contains such a description.”

Malini wrote in her notes—“Description in the log ≠ contents of the record.”

Justice Arya said, “The State will first exhaust the remaining routes to the independent sources. If the original record is available, the question of the copy in counsel’s file ends. If the original has been destroyed, is unavailable, or is incomplete, then at the next stage we may consider how far the pre-existing fact can be separated without disclosing privileged selection or annotation.”

Vidyanand said, “We have no objection to that boundary.”

Devvrat said, “Nor does the State.”

Justice Arya added, “And this order is not treating the truth of the contents as established for either side.”

Malini wrote again—“Entry 9: independent sources first.”

Entry 11 was read—“External factual summary attached to legal advice; source reference and counsel’s question contained in the same record.”

Mrinal Dhar rose. “Here the State’s difficulty is different. The facts are said to come from external sources. The legal question may be privileged, but the external facts retain an independent existence by virtue of their source.”

Vidyanand said, “In principle, yes. But which facts were chosen for the record, which were omitted, and the order in which they were arranged—the selection may reveal the mental direction of the legal advice.”

Justice Arya asked, “Then what does the State actually need?”

Mrinal said, “The dates of two external service records and one payment-reference number. The State’s proposition is that, without those three facts, the alternative arrangement cannot be fully tested.”

“Does the State know the sources?”

“One source is named in the log; the other is described only by category.”

Vidyanand said at once, “And that is the danger. The phrase ‘external payment source’ in the log can be linked by the State to any institution or gateway it chooses.”

Mrinal replied, “The State will not make an arbitrary linkage. We seek only the identity of the source.”

Justice Arya said, “Even identity may sometimes form part of legal selection. The question is this—can the court itself examine the record and separate only the pre-existing source identity, without revealing the direction of the legal advice?”

Vidyanand remained silent for a few moments. “If it truly is only source identity, and if that identity is independently pre-existing fact, limited separation may be possible. But the party must retain the right to object to the limits on the use of any fact disclosed.”

Devvrat said, “The State is prepared for that.”

Justice Arya called for the sealed record to be placed before her. For a few moments the courtroom was silent.

She opened the record, read it, then made marks in two colours.

“I will not make the contents public at this stage. But I will make one observation about the structure of the record—pre-existing external facts, the client’s question, and counsel’s analysis are interwoven here. Opening the entire paragraph would be improper. Nevertheless, two source identities and three dates can be separated as independent facts.”

Vidyanand rose. “My Lady, our request is that, before those facts are disclosed in open form, the defence be told whether they are capable of verification from pre-existing sources.”

Justice Arya said, “Reasonable. The court will prepare a short list of facts; both sides will see it first. No legal question, annotation, reason for selection, or counsel’s answer will be disclosed.”

Malini wrote beside Aditya—“Source of a fact ≠ route by which the fact is reached.”

Aditya added beneath it—“Privilege can protect the route; it does not erase the independent existence of a pre-existing fact.”

Malini whispered, “And postulation?”

“Postulation says only that certain facts may be necessary for testing. It does not say that those facts must be taken from this record.”

“Then necessity does not choose the source.”

“Exactly.”

Justice Arya seemed to echo the same thought. “The State’s logical necessity does not create an entitlement to a particular source. Where an independent route is available, it must be preferred.”

Entry 12 was the most difficult of all—“Mixed communication: business instructions, factual account, legal question, and advice in the same chain.”

Vidyanand rose first. “The principal purpose of this chain was legal advice.”

Devvrat said, “The opening portion contains practical instructions—whose payment to stop, which details to reconcile again, which account to match. Those appear to be ordinary business operations.”

“They appear so,” Vidyanand said, “but those instructions were given in the context of counsel’s legal advice.”

Justice Arya asked, “Must every sentence in the same chain have the same purpose?”

Vidyanand answered, “No. But separating them demands extreme care.”

Devvrat said, “The State is not seeking sentence-by-sentence disclosure either. We seek only the dates of the business acts that can be compared with records from external systems.”

Justice Arya asked, “Why would a date itself be privileged?”

Vidyanand said, “At times a date reveals when legal advice was sought, and when linked to external events it may permit the subject of the advice to be inferred.”

Justice Arya thought for a few moments. “Then again the same problem—a fact neutral in itself, but meaningful in relation.”

Malini looked up at that sentence. She remembered the Navya-Nyaya discussion—the object does not stand alone; its meaning changes in relation.

Justice Arya said, “The court will create three tiers. First—wholly legal communications: closed. Second—pre-existing business facts: where available from independent sources, to be obtained from those open sources. Third—mixed portions whose separation may disclose legal strategy: those will remain under limited judicial inspection.”

Devvrat said, “My Lady, one submission from the State—if a date is found in the external source, can the court confirm whether the mixed record contains the same date?”

Vidyanand objected. “That would turn sealed material into an authentication device for the State’s open records.”

Justice Arya said at once, “Objection sustained. The court will not use privileged material to verify the State’s open records. The State must prove its own sources.”

Malini wrote in large letters on her page—“Sealed material = not a verification device.”

Justice Arya continued, “The purpose of privilege is not to distance the court from judicial truth. But neither may the State shift its burden of proof onto lawyer-client communications.”

Vidyanand lowered his head.

Devvrat too said, “Clear.”

Justice Arya reserved orders on Entry 12, but directed the State to provide within forty-eight hours a list of independent sources, the efforts made, the results, and the reasons for any unavailability.

“And add one column to the list,” she said. “What this source does not prove.”

A faint look of recognition crossed Aditya’s face. It was the same discipline that had been adopted at the stage of analogy, but now used differently—to prevent postulation from expanding without control into the empty spaces left by privilege.

During the afternoon recess, Malini stood with Aditya in a corner of the court verandah. Outside, the sunlight was harsh; inside, the stone floor was cool.

Malini said, “I used to think that if a fact was necessary, the court would simply have the fact produced.”

Aditya asked, “And now?”

“Now I understand—first the court tests how large the word ‘necessary’ really is. Then whether the fact can be found somewhere else. Then whether disclosing the fact would reveal the direction of legal communication. Even after that, the limits on use are a separate question.”

“Exactly.”

“Postulation raises a question; privilege says that not every route to the answer is equal.”

Aditya smiled. “And evidence says that even after an answer is found, its weight must still be tested separately.”

Malini said, “These are not three walls. They are like three sieves.”

“A sieve is a good image. But remember—sometimes the holes in the sieve do not themselves make a story.”

Malini laughed. “Meaning we must not treat what did not pass through as guilt.”

“Yes.”

At that moment Vidyanand came out onto the verandah. He carried two files. Aditya greeted him.

Vidyanand stopped. “Officer, may I say something?”

“Please.”

“The State’s new table is more candid than the first one.”

Aditya replied, “Should I take that as praise?”

A tired smile appeared on Vidyanand's face. "In this profession even praise is offered cautiously. Take it as an acknowledgement that the language has improved."

Malini asked, "But your principal objection?"

"That the State sometimes treats a logical gap as a legal doorway."

Aditya said, "And the defence sometimes wants to use privilege as a curtain that erases the existence of facts."

Vidyanand replied without agitation, "That is why there is a court."

For a moment all three were silent.

Before moving on, Vidyanand said, "One more thing—if the State obtains the facts from independent sources, we will contest their evidentiary value; not in the name of privilege."

Aditya said, "That is all that is needed."

Vidyanand walked away. Malini said softly, "Opposing sides, yet agreement on method."

Aditya replied, "That is where method truly wins."

◆
The hearing resumed in the afternoon. The State placed before the court its preliminary list of independent source-paths.

Aditya's affidavit identified five source categories—the original institution's accounting archive, the external payment integrator, bank records, tax working papers, and the service provider's accounting register.

Devvrat said, "The State makes it clear that the existence of none of these five is being treated as established because of privileged material; the independent basis for each is separately stated."

Vidyanand read the list. "I have two objections. First—the source-independence of the 'service-provider accounting register' is still incomplete. Second—one entry in the tax working papers is based on the party's own statement, and should not therefore be described as independent support."

Justice Arya looked at Devvrat.

Without delay, Devvrat said, "Both corrections accepted. The service-provider row will read 'independence under examination'; the tax working paper will read 'repeated party source'."

Malini wrote the same words on her copy.

Justice Arya said, "This is not a small matter. In postulation, several facts may be placed together to create necessity. If two facts are in truth repetitions from the same original source, necessity may appear artificially stronger."

Aditya remembered the earlier hearing on source-independence—the lesson of five visible points but only three independent source-groups. The same discipline was now returning within another means of knowledge.

Justice Arya said, "Rebuild the list. Count original source-groups, not visible entries."

Devvrat answered, "It will be done."

Vidyanand said, "And if only two independent source-groups remain?"

Justice Arya said, "Then the court will treat them as two. Language has no authority to increase the number."

A faint rustle passed through the courtroom.

Justice Arya continued, "Postulation raises the question of what would otherwise be inexplicable. But one cannot declare something 'inexplicable otherwise' without honestly placing all surviving alternatives on the table."

Mrinal Dhar proposed a new column in the State's table—"Surviving alternative arrangement."

Justice Arya said, "Add it. And beside it—'Independent basis for rejecting the alternative arrangement.'"

Vidyanand said, "And if that basis consists only of privileged material?"

"Then, in the State's open case, the alternative will not be treated as rejected."

The answer was brief, but Malini understood the weight it placed upon the entire investigative method.

The State could not kill an alternative because it hoped to see something inside a private communication; it needed an open, admissible, independent basis.

At the end, Justice Arya said, "The court is today making no finding concerning any offence, person, ownership, control, or purpose. Today the law says only this—logical necessity, privilege, source-independence, and burden of proof are separate questions."

◆
When the hearing ended, Ananya Kashyap stood on the court steps. Another reporter from the news media was searching for a sharper headline.

One of them said, "So today the State lost—privilege survived."

Ananya said, "Some portions remained protected, some pre-existing facts were sent toward independent sources, and orders were reserved on some parts. Where is the victory or defeat in that?"

"Then the headline?"

"High Court: Necessity Is Not a Substitute for Privilege; Independent Sources First."

"Too legal."

"The issue is legal."

Another reporter asked, "Is there something explosive in the sealed record?"

Ananya answered directly, "I do not know. Nor did the court say anything of that kind publicly."

"But the court saw it."

"Seeing is not verification. That distinction is central to today's order."

She wrote a note—"The court's sight is not evidentiary weight."

A message came from the editor—"Need a human angle."

Ananya replied—"The human angle is that both sides are trying to stay within their respective limits."

"That will not sell."

Ananya wrote—"The value of truth is not determined by sales."

She switched off her phone.

At the foot of the steps, Vidyand Mishra was walking toward his car. Another message from Shailaja arrived—"Do not be late."

Ananya did not stop him. Today his tired gait was not an object of news, but the private boundary of a human being.



That evening, in a ministry conference room, Shivaishwar Prasad, Suchitra Rai, Devvrat Sinha, Mrinal Dhar, Aditya and Malini sat together.

The Minister asked, "Where does the State stand today?"

Suchitra replied, "Some routes are closed, some independent routes have become clear, and some questions remain open."

The Minister asked, "The political meaning?"

Devvrat said, "The court has given no political meaning."

The Minister remained silent for a few moments, then said, "Then neither will I."

Aditya placed a new table before them. Its heading read—"Postulation Test: Entitlement-Sensitive Source Path."

The first column—established fact. The second—apparent inconsistency. The third—minimum necessary condition. The fourth—surviving alternative arrangement. The fifth—independent source. The sixth—privilege status. The seventh—what it does not prove.

The Minister looked at the page. "Will this not slow the investigation?"

Aditya replied, "It may slow it. But running fast with unproved conclusions will cost judicial confidence more dearly."

The Minister said, "Good."

Malini asked, "What now for Entry 12?"

Mrinal replied, "First, the forty-eight-hour independent-source test. After that, the court will decide whether it is necessary to separate any part of the mixed record."

Suchitra said, "And if the independent sources are sufficient?"

"Then that portion of the privilege dispute may become irrelevant."

The Minister said softly, "Perhaps the safest victory is one in which the question ends without opening the case."

Aditya smiled. "Not victory. The end of an unnecessary dispute."

The Minister laughed. "Will you police my words too?"

"In this case, words are half the governance of evidence."

A light laugh spread through the room, but the table before them remained grave.



That night Aditya reached the bank of the Ganges. The day's arguments were still turning in his mind—necessity, entitlement, source, privilege, separation, use.

Distant lights trembled on the night water. The current flowed at its own pace; footprints along the sand ran some distance and then disappeared.

Aditya thought of Gangesha Upadhyaya—of Navya Nyaya, which does not leave a word merely a word, but asks about the boundary of its relation; which does not treat absence as mere emptiness, but asks, "Where, whose, in what relation?"

He said inwardly, "If a fact is necessary, it does not follow that any one particular route for obtaining it is necessary."

Then came a second thought—"If the existence of a fact lies outside privilege, it does not follow that its selection within counsel's file lies outside privilege."

A third—"If the court has seen something, it does not follow that the State has proved it."

With a stick, Aditya drew three circles in the sand. On the first he wrote—"Necessity." On the second—"Entitlement." On the third—"Evidence."

The three circles overlapped in places, but they were not one.

The water came up to the bank and erased half of the first circle. Aditya watched.

He remembered how elders in the village used to say that a river teaches boundaries; a line drawn on a map cannot stop the river, yet no boundary can be made without understanding the current.

Navya Nyaya too seemed to be teaching boundaries on this night.

He opened his notebook and wrote—"Postulation gives knowledge of a necessary condition; entitlement does not give its source; evidence verifies its truth."

Then he struck out one word and wrote it again—the future sense was correct.

He smiled; language too demanded boundaries.

He wrote a second line—“Privilege does not erase the birth of a fact, but it protects legal communication.”

A third—“Where an independent source is available, curiosity about protected communication is merely convenience.”

A fourth—“Even if independent sources fail, judicial inspection is not the State’s evidence.”

He stopped his pen.

Wind moved over the Ganges. Somewhere in the distance a bell sounded.

Aditya said softly, “Gangesha, even when a boundary is made, truth remains outside it; the boundary tells only the lawful method of reaching it.”

At that moment the next question became clear to him. Not merely the three privilege entries—sealed material, the case diary, confidential sources, and the court’s limited sight were together becoming a new problem.

How could an investigation proceed on the basis of material that was not public? How useful could the direction of a case diary be if the diary itself was not evidence? Where did the judicial weight end when the court had seen something the parties had not?

These were the questions that would arise at the next hearing.

The next morning the court’s order arrived. It was a short order of fifteen paragraphs, but every line was measured.

First—a claim of privilege would be tested not merely by the name of the record, but by the purpose and context of the communication.

Second—pre-existing business facts would not automatically become privileged merely because they had been sent to counsel; counsel’s selection, arrangement, annotation, or strategic compilation, however, could receive separate protection.

Third—the State could not break privilege merely by showing logical necessity; reasonable efforts toward independent sources must come first.

Fourth—sealed inspection was not a substitute for the State’s burden of proof.

Fifth—if a fact could be separated from privilege-protected communication, the court could consider the minimum separation; legal strategy, however, would not be disclosed.

Sixth—a surviving alternative arrangement would not be treated as rejected merely on the strength of material unavailable for testing by the parties and not converted into independent evidence by the State.

The final portion of the order directed an independent-source test for Entry 9, a limited fact-list for Entry 11, and a forty-eight-hour source test for Entry 12.

Malini read the order and came into Aditya’s room. “Is this decision in the State’s favour or the defence’s?”

Without looking up, Aditya said, “It is in favour of method.”

“You keep giving that answer.”

“Because the question keeps being asked in the wrong form.”

Malini laughed. “Very well. Then a new question—what is our first task after this order?”

Aditya pointed to page six of the order. “Recount the independent sources. Count original source-groups, not visible records.”

“Second?”

“For every unavailable source, record the reason. Do not leave a blank space by saying merely ‘not found’.”

“Third?”

“In the case diary, remove from the heading ‘evidence’ anything that is only direction.”

Malini paused. “Then the next battle is over the case diary?”

Aditya said, “Not a battle. A boundary.”

“Again a boundary.”

“Where do boundaries ever end in justice?”

Malini lifted the file.

Outside the window, morning light was spreading. The turn of postulation had now grown sharper—what was not directly stated could arise from circumstance; but before what arose could become judicial truth, it had to pass through source, entitlement, alternatives, and testing.

०५८ The Turn of Postulation — Chapter 6

Morning light had arrived, yet the question from the previous night still lingered in Aditya Jha's room. The court's order lay open before him—recount the independent sources, state the reasons for unavailable sources, and separate investigative direction from evidence in the case diary.

Malini Karn placed three thick files on the desk. The first was marked "Sealed Material"; the second, "Case Diary"; the third, "Independent Testing."

She said, "Until yesterday I thought the first two together opened the way to the third. Now I understand—opening a path and supplying proof are two different things."

Aditya said, "Today's entire work rests on that distinction."

Malini opened the first file. "The sealed material contains three indications—an unusual timing match involving a payment coordinator, the use of a service key, and an internal name-marker. On the basis of these three, five directions were entered in the diary."

"Five directions," Aditya said, "but how much proof?"

Malini replied, "At present, two independent external records. The remaining three directions are still under testing."

"And if the testing fails?"

"We record in the diary—failed. We do not delete it."

Aditya nodded. "Good. A failed direction is also part of the history of method. If we erase it, we create the later illusion that the investigation saw only the directions that succeeded."

Malini was silent for a few moments. Then she said, "In postulation, failed alternatives matter especially. If an alternative arrangement survives external testing, then 'inexplicability otherwise' weakens."

Aditya said, "Exactly. Alternatives must not merely be listed; they must be tested with equal seriousness."

Outside the window, Delhi morning was spreading. Inside the room, among the three files, a subtle discipline of Navya-Nyaya was taking shape—confidential direction, open testing, and the independent weight of proof.

At ten o'clock the High Court courtroom filled. Justice Arya entered. Before her lay the State's revised table, the defence's written objections, and the sealed envelope.

Devvrat Sinha rose. "My Lady, in accordance with the previous order, the State submits a separate record of the five investigative directions that arose from the sealed material. Of the five, two yielded independent facts through external testing, one was disproved, and two remain under examination."

Vidyanand Mishra rose. "I want the limits of the phrase 'independent facts' made clear. Do the external records support what the sealed material said, or did they merely reveal some separate facts along the same line of inquiry?"

Justice Arya looked at Devvrat.

Devvrat replied, "Only separate facts were found. The State says no more than that."

Justice Arya said, "Good. Because the word 'support' could create the impression that the original statement, which remains outside the court's view, is being proved true. There is no such conclusion at present."

Malini wrote in red ink on her copy—"Direction succeeds ≠ original statement true."

Vidyanand raised the next point. "Diary Entry 147 says, 'On the basis of the sealed material, the possibility of administrative control is strong.' Almost the same language was repeated in three later requisition notices. How independent, then, was the independent testing?"

A light hush settled over the courtroom.

Aditya rose. "My Lady, that is a fair question. In the first of the three requisition notices, the description of the subject was influenced by the diary's language. In the second and third, the source-description was independent, but that influence was not recorded. The State now makes that limitation explicit."

Justice Arya asked, "The consequence?"

Aditya replied, "The response obtained to the first requisition will be classified not as 'independent support' but as an 'external response prompted by confidential direction.' The source-independence of the second and third will be tested separately."

Vidyanand said, "That is an important concession."

Aditya replied, "It is an acknowledgment of a methodological limit, not an admission of fault."

Justice Arya said, "Correct. Even if the source of the investigative direction and the custodian of the response are different, a claim of independence requires greater caution if the question itself was framed under the control of an interpretation drawn from confidential material."

Mrinal Dhar noted—"Independence in question-framing."

Justice Arya continued, “At the stage of postulation this is especially important. If the necessary condition is framed at the outset in the language of a confidential inference, later facts may all be read inside that same frame.”

Vidyanand said, “Then merely mentioning an alternative arrangement is not enough.”

“Yes,” Justice Arya said. “It must be tested with equal seriousness.”

Malini wrote—“Not a list of alternatives; testing of alternatives.”

During the recess, Malini and Aditya stood in the court corridor.

Malini said, “I kept making one mistake—when a direction led to a correct external fact, I took that to mean the original direction itself was correct.”

Aditya said, “That temptation is natural in investigation. But an external fact speaks only for itself.”

“If the diary says ‘account control,’ and because of that we obtain records from the bank, but the bank shows only receipt of payments, then the bank’s response does not validate the conclusion about control.”

“Exactly.”

“And if receipt of payment is possible under an alternative arrangement without control?”

“Then postulation does not reach control.”

Malini watched people crossing the corridor. “Then postulation is an extremely restrained method.”

Aditya smiled. “A method that speaks of necessity requires the greatest restraint. The word ‘necessary’ is very heavy.”

Malini said, “The diary uses the word ‘necessary’ eight times.”

“Re-examine all eight.”

“I’ll do it by this evening.”

Aditya replied, “When the word is right, the thought has a better chance of being right as well.”

After the recess, the sealed envelope was not opened before the court; Justice Arya looked only at its index.

“State,” she said, “I do not want three kinds of confidentiality bundled together. Separate them—privilege-protected material, source-protection material, and the case diary.”

Devvrat said, “Separate tables for all three have been submitted.”

Vidyanand objected, “But two entries in the category called source-protection relate to information from individuals whose truthfulness has not been independently tested.”

Justice Arya asked, “State?”

Aditya replied, “Correct. Those entries may qualify for source protection, but their truth-status will be recorded separately—‘unverified source statement.’”

Justice Arya said, “That is important. Confidentiality is not a certificate of truth.”

Malini noted again—“Confidential ≠ true; protected ≠ proved.”

Vidyanand said, “And if such an unverified statement generated later directions in the diary?”

Aditya replied, “Then the entire chain of direction will be shown—the statement, the investigative question, the external test, the result, and the present status.”

Justice Arya said, “That is what is required. The court will not look inside the State’s mind. The methodological sequence must be clear on the record.”

“Further,” she said, “the case diary is not itself evidence. It may be used to see why an officer took a particular direction, what alternatives were tested, and what lines were abandoned. That is methodological transparency, not proof of guilt.”

Vidyanand said, “Then the defence needs an adequate summary of those portions where adverse external steps were taken on the basis of the diary.”

Devvrat replied, “The State agrees, provided source identity and legal privilege remain protected.”

Justice Arya said, “Both sides will prepare a joint format by this evening.”

In the first part of the evening, a small working group met at the Ministry. Suchitra Rai, Mrinal Dhar, Aditya, Malini, and two technical officers placed the list of diary entries before them.

Malini marked eight uses of the word ‘necessary.’

The first—“Without administrative access, this timing match is impossible.”

She said, “This is inaccurate. A service key, delegated access, an automated process—three alternative arrangements remain alive.”

Aditya said, “Write—‘The nature of access remains unproved in the absence of direct user identification.’”

The second—“The same person makes the payment and changes the account.”

The technical officer said, “The ledger records show two different service operators.”

Malini struck out the line. “Then the postulation, in this form, fails.”

“Correct,” Aditya said. “New facts may raise the question again in future, but not now.”

The third—“Deleted messages imply consciousness of guilt.”

Malini said, "Deletion may occur for many reasons. Consciousness of guilt is an interpretation of a particular person's state of mind, not a necessary condition."

Aditya said, "Exactly. The technical reason for deletion comes first."

The fourth—"The timing of the payment is impossible without prior coordination."

Mrinal Dhar asked, "Is it really impossible?"

Malini replied, "No. Automated scheduling, a pre-set cycle, coincidence—three alternatives."

Everyone fell silent at the fifth line. It read—"The second version of the source-tax worksheet is impossible without internal access."

Aditya said, "What do the external storage records say about this?"

The technical officer replied, "There is a possibility that the second version was downloaded from a publicly shared attachment; it is not conclusive."

Malini wrote—"Internal access not necessary."

Suchitra said, "In these five lines, the State is itself reducing three of its old inferences."

Aditya replied, "That does not make the State weaker; it makes the State more credible."

Minister Shiveshwar Prasad entered just then. Hearing the last sentence, he asked, "What makes it more credible?"

Suchitra replied, "Reducing the claim where the proof is smaller."

The Minister sat down. "Then do exactly that. I do not need a sentence of victory; I need the court's confidence."

By half past eight that night, the joint format was ready. Its heading read—"Confidential Direction Summary: Limits of Adverse Use."

In the first section, each confidential source was replaced by a neutral indicator number. The second said only what investigative question arose from that indicator. The third recorded the external test. The fourth, the result. The fifth, the surviving alternative arrangement. The sixth, the present evidentiary status.

Vidyanand Mishra was connected by video call.

He read the page and said, "I have one problem. In how many places have you used the phrase 'external test failed'?"

Malini replied, "Four."

"What does 'failed' mean? That no record was found, or that the answer contradicted the direction?"

Malini was silent for a moment. "Those should be separated."

Vidyanand said, "Exactly. 'Record unavailable,' 'answer inconclusive,' 'alternative arrangement supported,' 'original direction disproved'—four different states."

Mrinal Dhar said, "Agreed."

Aditya looked at Vidyanand. "You are improving the State's table."

Vidyanand smiled faintly. "Tomorrow this table may be placed against my client. It is in my interest that its language be accurate."

"Professional dignity?" Malini asked.

Vidyanand replied, "Professional self-preservation."

Everyone laughed.

Then his face grew serious. "One more thing. If a confidential statement proves false, the defence should at least have the right to know that the basis of that direction has collapsed—not the source's name."

Devvrat, who had by then joined the video call, said, "Agreed."

It was a small agreement, but Malini understood that truth could not remain solitary behind the wall of confidentiality; if its effect reached outside, the evidentiary status of that effect had to be disclosed.

At the hearing the next morning, the joint format was placed before the court.

Justice Arya read for five minutes without saying anything. Then she asked, "In this format, is the word 'confidential' used only for source identity and access to protected material?"

Devvrat said, "Yes, My Lady. The truth-status is in a separate column."

"Diary direction?"

"The investigator's provisional question; not evidence."

"External result?"

"According to the evidentiary value of the independent source itself."

"Postulation status?"

"Only this much—whether, among the established facts, some minimum additional condition appears necessary. It does not by itself establish a person, purpose, guilt, or entitlement."

Justice Arya looked at Vidyanand. "Defence?"

Vidyanand said, "The format is acceptable, subject to one condition—if an alternative arrangement is supported by external testing, the old diary direction should not remain marked 'alive'; its present status should clearly say 'weakened' or 'disproved'."

Devvrat said, "The State agrees."

Justice Arya said, “Then the order. An investigative direction arising from sealed material does not automatically become a judicial fact. A diary entry is not automatically evidence. Protection of a confidential source does not prove the truth of that source’s statement. If the State seeks adverse use on the basis of such a direction, it must show an independent, testable external basis.”

She paused.

“And if the external test fails?”

Malini involuntarily held her breath.

Justice Arya said, “Then the failure shall be recorded. An investigation cannot hide the directions in which it failed.”

A complete silence fell over the courtroom.

Vidyanand said, “That is an extremely necessary safeguard.”

Justice Arya replied, “It is not merely a safeguard for the defence. It is also a safeguard for the credibility of the investigation.”

After the hearing, Malini sat for a few moments on the court steps, reading her notes. Ananya Kashyap came over.

“What did you learn today?” Ananya asked.

Malini smiled. “You are a journalist; hear the facts first.”

“That is precisely what I want.”

Malini said, “A confidential statement may be true or false. A diary may be useful, but it is not proof. Sealed material may give direction, but it does not carry the State’s burden. And a failed search is not to be erased.”

Ananya made a note. “That last point is important.”

“Why?”

“News usually shows only what was found. What was searched for and not found can often change the story.”

Malini said, “The next question in Navya-Nyaya is probably there as well—the meaning of what was not found.”

Ananya asked, “Then today’s headline?”

Malini said, “‘Confidential Direction Is Not Proof; Failed Tests Must Also Be Recorded.’”

Ananya wrote it down. “Less catchy, more durable.”

Malini asked, “Will your editor accept it?”

“If not, I’ll explain it.”

That evening, when Aditya returned to his office, Malini’s new table lay on the desk. At the top was written — “Direction–Source–Test Register.”

First row: Confidential Indicator 1. Direction: administrative control. External test: bank, service provider, access records. Result: payment relationship established; control unproved. Alternative arrangement: delegated access remains alive.

Second row: Confidential Indicator 2. Direction: single user. External test: service key, timestamp, forensic image. Result: service key active; person unproved. Alternative arrangement: automated process remains alive.

Third: Source Statement 3. Direction: connection between deleted communications and consciousness of guilt. External test: recovery records, timestamps. Result: deletion established; mental reason unproved.

Fourth: Diary inference. Direction: prior coordination of payment. External test: scheduling records. Result: automated cycle possible; original direction weakened.

Fifth: Privilege-linked fact. Direction: internal origin of the source-tax worksheet. External test: shared-attachment history. Result: public sharing route possible; internal access not necessary.

Aditya kept reading the rows.

Malini entered the room. “Anything inaccurate?”

Aditya replied, “Add one thing—‘date on which current status changed.’ So that an old inference is not later read as though it were still alive.”

Malini wrote it down.

“One more—‘reason for change.’”

She wrote that too.

Malini said, “This is turning into the biography of an investigation.”

Aditya said, “Exactly. Method is not only the final conclusion; it is also the honest history of how one reached the conclusion.”

Malini rested her hand on the desk. “And if, in the end, nothing at all is proved?”

“Then that too is a truth.”

“The investigation failed?”

“Not necessarily. Sometimes reaching the correct limit is itself a result.”

Night was closing in. When Aditya left the building, the air was cool. There was no time to go to the riverbank, yet his mind travelled again toward Mithila.

He remembered the soil of Garh En Arikel, the smell of paddy, the old veranda, and his school days. His teacher had once said, “There is no shame in saying what we do not know; to claim knowledge of what we do not know is an insult to knowledge.”

Aditya felt that today the court had taught a modern form of that old lesson.

A sealed envelope is not knowledge. A diary is not proof. A direction is not a conclusion. Confidentiality is not truth.

But none of these things is meaningless either.

They may be the birthplace of questions, the history of method, the reason for caution, and sometimes the beginning of independent testing.

Between them, Navya-Nyaya’s postulation was drawing its severe line—accept only that minimum condition without which the established facts cannot stand together; everything else remains a matter for testing.

Aditya took out his phone and sent Malini a short message—“First task tomorrow: add a reason-list for every use of the word ‘necessary’ in the diary.”

Malini’s reply came immediately—“Will do. We’ll also separate the reasons for ‘not found.’”

Aditya stopped.

“Not found.”

In those two words lay the shadow of the next method. When something is expected but is not found after a search, when does that absence carry meaning? And when is it merely an incomplete search?

He said inwardly, “Postulation is not complete yet. First we must see how far this claimed necessity truly holds.”

The night sky was clear. Aditya walked toward home.

Behind him, three files lay closed in the office—sealed material, case diary, independent testing. All three were connected, yet none could substitute for another.

And within that distinction, the investigation’s next truth was not hiding; it was slowly becoming clear.

059 The Turn of Postulation — Chapter 7

At five fifty-five in the morning, the light in Vidyanand Mishra's office was already on. Traffic outside was still sparse. Before him lay three open copies: the High Court's latest order, the confidential direction-summary, and the previous supplementary order in the pending special-leave matter.

Ishan set two glasses of tea on the table. "Sir, should we prepare a fresh special-leave petition against yesterday's order?"

Vidyanand removed his spectacles and looked at him. "Another new matter? No. That question has already been settled. The matter is pending. Whatever new order has come will go into the same matter as a supplementary ground."

"Then what relief?"

Vidyanand placed his thumb on one line of the order: "An investigative direction arising from sealed material does not by itself become a judicial fact."

"This line helps the defence," Ishan said.

"It helps, but it is not the whole answer."

"What remains?"

Vidyanand read the next line: "If the State seeks adverse use, it shall show an independent, testable external basis."

He said slowly, "My question begins here. If the external basis is sufficient on its own, why is the confidential direction necessary? And if the external basis is not sufficient on its own, how can there be adverse use of the confidential direction without giving the defence a full opportunity to test it?"

Ishan picked up his pen. "So there are two paths?"

"Yes. If the open material is sufficient, the sealed material is not the basis of decision. If the open material is insufficient, an adverse conclusion cannot arise merely from the shadow of the sealed basis."

Ishan wrote: "Open sufficiency versus confidential inferential bridge."

Vidyanand corrected him at once. "Write 'inferential bridge', not 'confidential proof'. Do not let the word form the conclusion before the inquiry begins."

"And postulation?"

"That is what the entire dispute is about. The State may say: three established facts cannot stand together unless one additional condition is accepted. But if that 'additional condition' was born from a confidential statement, the court must ask whether the open facts themselves make that condition necessary."

Ishan nodded.

Vidyanand wrote the first heading of the supplementary grounds: "Minimum sufficiency of the open basis for postulation."

Second: "Limit on adverse use of a proposition born from undisclosed material."

Third: "Testing alternative arrangements and burden of proof."

Fourth: "Effect after failure of an investigative direction."

Fifth: "No negative burden on the defence."

Ishan asked, "Negative burden?"

"If the State's proposition is not itself fully open, the defence cannot be burdened with proving that proposition false. The State must first show the testable basis of its own proposition."

Light was spreading beyond the window. The question before Vidyanand was no longer confidentiality alone; it was who would bear the burden of necessity in postulation.

At seven forty, the first editorial meeting began in Ananya Kashyap's newsroom. A junior editor put a headline on the screen: "Explosive New Challenge in Supreme Court over Confidential Material."

Ananya read it and remained silent for a moment. "Where is the new case?"

"The defence is going to the Supreme Court."

"It is already there."

"Then 'new challenge'?"

"Supplementary grounds. 'Challenge' may work, but the reader should understand that it is within a pending matter."

Another editor said, "Can we keep 'explosive'? We have sealed material, a confidential diary, the Supreme Court—everything."

Ananya asked, "Where did the explosion occur?"

No one answered.

She changed the headline herself: "Supplementary Question on Adverse Use of Confidential Material in Pending Special-Leave Matter."

"That is terribly dry."

"The case is presently about a dry procedural question."

"Readers want drama."

Ananya smiled. "Readers read what we give them. Dressing an unproved matter in large words is not respect for the reader."

She opened her notes. Four lines from the High Court's order were written there: a confidential direction is not a judicial fact; a diary is not evidence by itself; an independent external basis is necessary; failed testing must be recorded.

Ananya said, "Two of these points will go in the first paragraph. Remove the rest of the dramatic adjectives."

The editor asked, "And what is the defence seeking?"

"Write that it 'seeks' it, not that 'the Supreme Court accepted' it. Filing and order are different events."

She wrote one sentence: "The defence submitted that where open material is insufficient on its own, an adverse conclusion should not be drawn with the aid of an undisclosed basis; the State's answer is still to come before the Court."

"Good," the senior editor said, "but shorten it."

Ananya replied, "Shorten the sentence, not the meaning."

Everyone laughed.

At that moment Ananya felt it again: truth never needs to raise its voice. It speaks slowly, but when its limits are clear, it endures for a long time.

At nine, Devvrat Sinha, Mrinal Dhar, Aditya Jha, and Malini Karn were seated together in the State's legal room. An advance copy of Vidyanand's supplementary grounds had already arrived.

Devvrat read the first page and said, "This is a serious question. This time the defence is not challenging the truth of the underlying material; it is asking for the open basis of the postulation."

Malini said, "I prepared the direction-source-testing register yesterday. Is that not enough?"

Mrinal replied, "The register shows an honest history of the investigation. But the question for an adverse judicial conclusion is different: how much open basis supports the conclusion being sought?"

Aditya said, "Then add a new column to the table."

"Which one?" Malini asked.

"State of the open material after removal of the confidential source."

Malini wrote it down at once.

Devvrat said, "And divide it into two parts: 'fact established' and 'inferential bridge established'. Sometimes all the facts are established, but the relationship among them is still only an inference."

Malini opened the first entry. "Payment connection established. Administrative control unproved. After removal of the confidential lead, the fact of payment survives; the proposition of control does not."

"Good," Aditya said.

"Second: service key active. Individual user unproved. After removal of the confidential lead, use of the service key survives; user identification does not."

"Third: deletion established. Mental reason unproved. After removal of the confidential statement, the fact of deletion survives; a guilt-based reason does not."

Mrinal said, "All three answer the defence's question."

Devvrat asked, "And the State's advantage?"

"Not advantage," Aditya replied. "The limit becomes clear. Whatever the open facts establish will remain. Whatever was born only from a confidential proposition will remain in that form."

Malini stopped at the fourth line. "Temporal matching of payments. Earlier we had written: prior coordination necessary. Now an automated cycle has been found possible."

"Then?"

"The postulation of prior coordination is defeated."

Devvrat said, "Write 'defeated'. Not 'weakened'. If an alternative arrangement is supported by actual records, the old proposition of necessity no longer survives."

Malini changed the word in red ink.

Aditya studied the register for a few moments. "This answer will make the State's file shorter."

Mrinal gave a faint laugh. "Sometimes a shorter file is more credible."

At ten thirty-two, Vidyanand's supplementary grounds were filed in the Supreme Court registry. Ishan recorded the time: ten thirty-two. Service on the State: ten thirty-six.

Vidyanand said, "Record those four minutes again."

Ishan smiled. "You will never give up your chain of custody for time."

"I want to prevent disputes based on memory."

“What is the interim prayer?”

“Extremely limited. One: for every postulated proposition sought to be used adversely, its open factual basis should be identified. Two: the State should state whether the proposition survives after the confidential material is removed. Three: the defence should not bear the burden of disproving an alternative arrangement; the State should show its own ‘necessity’. Four: if a proposition is later defeated by external testing, its earlier adverse effect should be treated as displaced.”

“No stay on the entire High Court order?”

“No. Many of the High Court’s disciplines are sound. Asking for a sweeping stay would waste both the Court’s time and our credibility.”

He read the final line of the supplementary grounds: “The object of the petition is not unnecessary disclosure of a confidential source, but clarification of the procedural limit on adverse effect flowing from an undisclosed basis.”

Ishan said, “Keep that line.”

Vidyanand replied, “It stays.”

At noon, Ananya reached the Supreme Court complex. Media crews had already gathered near the steps. One reporter was saying into a camera, “Today may see a decisive hearing in the Supreme Court on confidential material...”

Hearing the sentence, Ananya told her colleague, “Not ‘decisive’ in our broadcast.”

“What if it does turn out decisive?”

“Then we will write it afterwards. Not before.”

“Confidential evidence?”

“Confidential material’. Its evidentiary value is disputed.”

Her colleague said, “You spend all your time guarding words.”

“In this case, words have become half the judicial dispute.”

She went inside. On the back page of her notebook she wrote the first line: “Filing is not decision; listing is not hearing; hearing is not conclusion.”

She drew a circle around it.

At two ten, the matter came before the Bench of Justice Pranay Shekhar and Justice Meera Vats.

Vidyanand rose. “My Lords, I clarify again: this is not a fresh special-leave petition. It is a limited supplementary question arising from the High Court’s new order within the pending matter.”

Justice Shekhar said, “We have read the supplementary grounds. The State’s written response has also been received.”

Devvrat stood. “The State’s position is brief. Confidential material will not itself form the basis of an adverse conclusion. To the extent adverse use is sought, an independent open basis will be shown.”

Justice Vats asked, “Then what dispute remains?”

Vidyanand replied, “The dispute concerns the sufficiency of the ‘independent open basis’. Fact is one thing; inferential bridge another. The State may show three open facts and then say that, taken together, they require a fourth condition. My question is whether that ‘necessity’ arises from the open record or from the architecture of an undisclosed statement.”

Justice Shekhar looked toward Aditya. “Is the investigating officer for the State present?”

Aditya stood. “Yes, My Lord.”

“Give us one example.”

Aditya said, “Receipt of payment is established. One temporal match is established. Activation of a service key is established. Earlier, these three were used to record the possibility of ‘administrative control’. Subsequent testing showed that delegated access and an automated process remained viable alternatives. For that reason, the State no longer postulates control.”

Justice Vats asked, “What caused that change?”

“Open external records.”

“After removing the confidential material?”

“The proposition of control does not survive.”

Vidyanand said, “That is precisely the test we seek for every adverse postulation.”

Devvrat replied, “The State substantially agrees.”

Justice Shekhar smiled faintly. “Then the dispute has become smaller again?”

Vidyanand said, “Smaller, yes. But the question of burden remains.”

“Burden?” Justice Vats asked.

Vidyanand said, “If the State says, ‘Without this additional condition, the facts cannot stand together,’ the State should first show reasonable testing of alternative arrangements. The burden should not fall on the defence to prove every conceivable alternative.”

Devvrat said, “The State cannot test every imaginary alternative.”

“Nor do I ask it to,” Vidyanand replied. “But a real alternative emerging from the record, one signalled by the State’s own material, must be tested before ‘otherwise inexplicable’ can properly be said.”

Justice Shekhar looked toward Mrinal. “State?”

Mrinal Dhar stood. “We propose a threshold. An alternative should require mandatory testing only when there is some positive basis for it in the record; imagination alone is not enough.”

Vidyanand said, “Acceptable, provided ‘positive basis’ is not interpreted too rigidly. Sometimes an alternative arrangement emerges from the architecture of the system itself.”

Justice Vats said, “Then the expression may be: ‘a real, record-supported alternative arrangement.’”

Ishan wrote it down at once.

From the back, Ananya watched. A headline formed in her mind: “No ‘Necessary’ Conclusion Without Testing Record-Supported Alternatives.” Then she struck out her own words. The Court had not yet made an order.

She wrote instead: “Bench considers a threshold for testing alternatives.”

Justice Shekhar raised the next question. “Effect after failure of an investigative direction. The supplementary grounds say that the old proposition should remain in the diary only as ‘history’, not as a current basis. State?”

Devvrat said, “Agreed. The diary will not be erased, but the present table will clearly state the status: alive, weakened, defeated, or unresolved.”

“If a summons had earlier been issued on the basis of a proposition now defeated?”

Aditya replied, “The response to that summons may have independent evidentiary value of its own, but the origin of the question will remain recorded. The contents of the response do not become invalid merely for that reason; its independence will, however, be tested separately.”

Vidyanand said, “That is the necessary distinction. Something real may emerge from a flawed beginning, but the flaw in the beginning can alter the limits of what that later material means.”

Justice Vats said, “So we must avoid two extremes: first, discarding all later material merely because the direction was defeated; second, treating the original direction as correct merely because something real was later found.”

“Exactly,” Devvrat said.

The Bench read its notes for a few moments.

Justice Shekhar said, “The difficulty in this matter is that all sides now use almost the same words, but appear to understand their boundaries differently.”

Vidyanand replied, “That is why defining the words themselves has become a procedural safeguard.”

Justice Shekhar nodded.

There was a short recess in the hearing. In the court corridor, Ananya saw Aditya.

“One question,” she said.

“Ask.”

“The State reduced three of its earlier propositions today. Should I write that the ‘State retreated?’”

Aditya thought for a moment. “Write the fact: the evidentiary status of three propositions changed. ‘Retreated’ can add a political or strategic meaning.”

“Then, ‘State revises three inferences?’”

“Fine.”

“Is the revision a victory for the defence?”

“The Court did not say that.”

Ananya laughed. “Your answers have become predictable.”

“So have your questions.”

They both laughed.

Then Ananya grew serious. “People want drama. Put together ‘confidential source’, ‘Supreme Court’, and ‘offshore network’, and the story begins to run by itself.”

Aditya replied, “Then tether it before it runs: what is proved, what is a question, what is an allegation.”

Ananya closed her notebook. “Truth speaks slowly.”

“But when the listener has patience, it speaks clearly.”

After the recess, the Bench read out possible procedural directions on the “open basis of postulation”. Justice Vats went through them point by point.

“One: shall the State separately list the open established facts supporting any additional condition it calls ‘necessary?’”

Devvrat: “Yes.”

“Two: shall the underlying facts and the State’s inference be separated?”

“Yes.”

“Three: shall it be stated whether confidential material merely generated the direction or whether it plays an actual role in the adverse use?”

“Yes.”

“Four: what is the present status of the proposition after the confidential material is removed?”

Mrinal: “Alive, weakened, defeated, or unresolved.”

“Five: any real, record-supported alternative arrangement?”

“List it, along with its testing status.”

“Six: no burden on the defence to prove every possible alternative?”

Devvrat looked at Vidyanand for a moment. “The State agrees, provided the defence cannot halt an investigation merely by naming imaginary alternatives.”

Vidyanand said, “Agreed. The alternative must be supported by the record.”

“Seven: where a direction has been defeated by external testing, its old existence in the diary will remain preserved, but its current evidentiary status will be made explicit?”

“Yes.”

Justice Shekhar said, “These directions are, for the present, interim procedural disciplines. They shall not be understood as conclusions on the merits, on any individual’s role, or on the illegality of the alleged network.”

Ananya wrote the words down exactly: “Interim procedural disciplines; no conclusion on merits.”

Vidyanand rose again. “One small question remains: what if an adequate open summary cannot be given because of source-protection concerns?”

Justice Shekhar said, “Then the permissible adverse use does not expand; it contracts.”

A faint rustle passed through the courtroom.

Devvrat said, “The State does not disagree with that principle, but there may be cases where the Court itself can inspect the material and permit the investigative direction to continue.”

“Continuing an investigative direction is one thing,” Justice Vats said, “an adverse judicial conclusion against a party is another.”

Vidyanand said, “That is the division we seek.”

Dictating the order, Justice Shekhar said, “Confidentiality is not a reason to stop investigation; nor is confidentiality a device by which the defence’s right of testing may be reduced to nothing.”

He added, “Where an open summary is not possible, the Court will consider alternative safeguards: source category, time range, functional summary, independent external basis, or a limit on adverse use.”

Vidyanand sat down. His face was tired, but some of the tension had left his eyes.

Ishan asked quietly, “Sir, is this a victory?”

Vidyanand whispered, “No. The procedure has become clearer. Write only that.”

Ishan smiled. “If Ms Kashyap hears you, she will be pleased.”

At four in the evening, a short copy of the order came out. The media groups became active again.

One reporter asked Ananya, “Has the Supreme Court rejected the State’s confidential evidence?”

“No.”

“Has the defence received major relief?”

“Some procedural safeguards have been clarified. There is no conclusion on the merits.”

“Did the Court say confidential material cannot be used at all?”

“The Court said no such thing. It separated investigative direction from an adverse judicial conclusion.”

“Then what is the headline?”

Ananya looked at her notes.

“Supreme Court: Adverse Use of Postulation Requires Open Factual Basis and Testing of Real Alternatives.”

The reporter grimaced. “Too long.”

Ananya said, “Shorten it to: ‘Confidential Direction Alone Cannot Support Adverse Conclusion.’ But the limit must be in the subheading.”

She sent her copy to the newsroom. The first paragraph stated that the Bench had issued interim procedural directions in the pending special-leave matter; no conclusion had been reached on the alleged role, illegality, ownership, or guilt of the operators.

The second paragraph stated that whenever the State called an additional condition necessary by postulation, it should identify the open established basis, the alternative arrangements, and the status of the proposition after removing the confidential material.

The third: the defence does not bear the burden of proving every possible alternative; only a real, record-supported alternative requires testing.

Ananya reread the copy and deleted one word: “historic.”

In its place she wrote: “procedural.”

The editor asked, “Historic was more powerful.”

Ananya replied, “History can decide that later.”

◆
That evening in the State office, Malini opened a new seven-column table.

First column: open established fact.

Second: additional condition proposed by the State.

Third: why that condition appears necessary.

Fourth: status of the proposition after removal of confidential material.

Fifth: real, record-supported alternative.

Sixth: external testing.

Seventh: current evidentiary status.

She asked, "Do we need an eighth?"

Aditya said, "Yes: 'limit of adverse use.'"

Malini wrote it down.

"Ninth?"

"Date and reason for change.' An old conclusion should not later be read as though it were still current."

Malini laughed. "The table has grown large again."

"Let it grow. Do not let the meaning grow beyond the record."

They filled the first five rows. In three, the State's proposition had been reduced; one was defeated; one remained unresolved.

Malini said, "If we had made a table like this at the beginning, so much confusion could have been avoided."

Aditya replied, "Method is also learned during an investigation. The question is not whether everything was right at the start; the question is whether, when you discover an error, you record and correct it or conceal it."

"A failed direction cannot be concealed," Malini said.

"And a defeated necessity cannot be kept alive."

Malini wrote the sentence on paper and circled it.

◆
At eight that night, Vidyanand sat alone in his office. A message from Shailaja arrived: "Dinner is getting cold."

He replied: "Leaving in twenty minutes."

Then he read the order once more. He felt no sense of personal victory. The case still had a long way to go; allegations, facts, inferences, confidentiality, external testing—all were moving in their own places.

Ishan appeared at the door. "Sir, have you seen the news?"

"No."

"Some outlets are calling it a major victory for the defence."

Vidyanand kept his head lowered as he gathered the papers. "Do not cite that in court tomorrow."

"Why?"

"An adjective in a news report is not part of the judicial record."

Ishan laughed. "And Ananya Kashyap?"

"Her copy is likely to be more restrained."

"Will you read it?"

"When I get home."

Vidyanand switched off the light.

◆
At half past nine, Aditya stood for a few moments on the office roof. Delhi's sky was not as open as Mithila's, but the air was cool.

He remembered the sense of an old passage from Gangesha Upadhyaya: when we say a conclusion is necessary, is its 'otherwise' truly impossible, or merely unseen?

Postulation does not say, "Fill the blank." It asks: place the established facts together; can their coexistence stand without this additional condition? If an alternative remains alive, necessity weakens. If an alternative is supported by the record, it must be tested. If the proposition collapses once the confidential statement is removed, the open record is not carrying its weight.

Aditya felt that today the Supreme Court had seen a legal form of that philosophical discipline.

Ananya's report opened on his phone. The headline was restrained. The first paragraph was explicit: no conclusion on the merits.

Aditya smiled.

A message from Malini arrived: "New table complete. Three inferences reduced, one defeated, two under testing, one alive. Tomorrow we will examine the missing entries in the external record."

Aditya replied: "First record the reason—was the record actually expected, and was the search complete?"

Malini wrote back: "Right. We will not give immediate meaning to 'not found.'"

Aditya switched off his phone.

Within the night, the next question was becoming clear. The limits of what had been found had been examined. Now, where something had been expected but not found—when was that absence merely a lack, when an incomplete search, and when a meaningful indication?

But that point had not yet been reached. One stage of postulation still remained: whatever was being called necessary had to survive against every possible alternative supported by the record.

Aditya walked toward the stairs.

Behind him, the table remained open in the office—fact, proposition, alternative, testing, limit. No column bore the name of guilt.

Truth was still speaking slowly. But today the Court had written the limits of its voice.

06o The Turn of Postulation — Chapter 8

Morning light had not yet fully settled over the old building of the Delhi High Court, but the line of cars before the main entrance was already growing.

Aditya Jha paused for a moment as he climbed the steps. At the previous hearing, the Supreme Court had made it clear that the first question was whether the open record, by its own force, could sustain the necessary inferential bridge. Today, the High Court was to conduct the first broad test of that discipline.

Malini Karn came up beside him. She carried two thin files.

"Where are the rest of the papers?" Aditya asked.

"I left eight large files at the office," Malini said. "Today I have brought only the material without which we cannot state our proposition."

Aditya smiled. "Fewer papers, tighter limits."

"The defence has prepared in the opposite direction."

Malini gestured toward the main corridor.

There, besides Vidyanand Mishra's familiar team, stood five senior advocates, nine junior advocates, two technical consultants, and a separate group of record assistants. Everyone carried files marked with coloured tabs.

Ishan walked slowly behind Vidyanand. Vidyanand's face was tired, but steady.

A media reporter said quietly, "A formidable team."

Ananya Kashyap, standing two steps away, said at once, "Write 'legal team'. The number is a fact; the metaphor is not news."

The reporter fell silent.

Ananya wrote the first line in her notebook: 'A large defence team will question the necessity of postulation on separate grounds.'

She struck out the thought of writing 'the State surrounded'.

When Justice Arya entered the courtroom, the room fell silent at once.

The appearance list was read. The names on the defence side ran long.

Justice Arya waited until the list was complete, then said, "The Court has no comment on numbers. It will, however, have something to say about repetition. I will not hear the same argument in five voices."

Vidyanand rose. "Accepted, My Lady. We have divided the subjects."

"Divided them how?"

"First—the service key and scheduled process. Second—business records and the external service provider. Third—payments and supplementary accounts. Fourth—deleted mail material. Fifth—the distinction between administrative access and control."

Justice Arya looked toward the State. "Is the State's framework for testing postulation ready?"

Devvrat Sinha rose. "Yes. Against each proposition we have the established fact, the apparent inconsistency, the minimum additional condition, record-supported alternatives, external testing, the failure condition, and the present evidentiary status."

"And 'what this does not prove'?"

Malini looked at Aditya. Devvrat answered, "In a separate column."

Justice Arya inclined her head slightly. "Then begin. But remember—postulation is not a reward for imagination; it is the discipline of otherwise-inexplicability."

The defence's first senior advocate, Amogh Vats, rose. Only three pages lay before him.

"The State's first proposition," he said, "is that because the service key remained active after the scheduled time, some continuing operational arrangement must have existed."

"That is all," Devvrat said.

"No particular person?"

"No."

"No ownership?"

"No."

"No criminal purpose?"

"No."

Amogh lifted the first page. “Then the question is narrow. The system record shows a scheduled automated process at 2:12 a.m. The service-provider record says that this process could renew the key without direct customer intervention. Is that alternative alive?”

Malini looked at her table. “Yes, though the renewal period is not the same everywhere.”

“Quite. But if at least some of the activity can be explained by an automated process, ‘continuous human operation’ is no longer necessary?”

Before answering, Devvrat whispered something to Aditya.

Aditya wrote on a slip: ‘Not human operation; operational arrangement.’

Devvrat said, “The State does not say human operation was necessary. Its proposition is only that between the recorded inactivity and the later activity, some operational arrangement existed.”

Amogh said, “And ‘arrangement’ includes an automated process?”

“Yes.”

“Then what of the State’s earlier note, ‘active operator presence?’”

Malini rose. “That earlier interpretation has been revised. The revision register records the date and the reason.”

Amogh was silent for a moment. “That is all I wanted.”

Justice Arya wrote: “Where an automated alternative process is supported by the record, postulating human intervention is not necessary.”

Then she looked up. “The State’s proposition has narrowed, but the fact of system-level activity remains. Do not confuse the two.”



The second senior advocate, Mridula Sen, rose on the payment records.

“The State’s second proposition says that an intermediate reconciliation process is necessary to explain the inconsistency between the recorded accounting entry and the payment-gateway record.”

“Yes,” Devvrat said.

Mridula displayed two records. “The service provider says in its own rules that end-of-day adjustment may be consolidated on the next working day. Second, in the ledger the word ‘received’ is used not as a date marker but as a settlement status. If both are correct, why is an intermediate human reconciliation necessary?”

Malini answered, “They do not explain every entry.”

“But they explain some?”

“Yes.”

“Then the State’s single necessary condition breaks down?”

Malini was silent for a moment. “It is no longer singular. At least two arrangements remain alive.”

Justice Arya asked, “What will the State write in its table?”

Malini said, “We will remove ‘necessary’ and write ‘two arrangements under testing’.”

“And the payment itself?”

“Where the external record matches, the fact of payment remains; purpose is a separate question.”

Justice Arya said, “Good. Postulation does not increase the evidentiary weight of a fact. It merely looks for the minimum bridge needed to explain an inconsistency. If two bridges remain alive, do not call one of them necessary.”



The third subject was deleted mail material. Defence counsel Neelabh Rao placed a thin server-policy record before the Court.

“The investigation found some mail messages in a deleted state. The State’s earlier note mentioned the possibility of ‘conscious deletion’. In the last revision that was reduced to ‘deleted material’. What does the State say today by way of postulation?”

Devvrat answered, “A deletion process is necessary to explain the absence of some messages, but the actor and purpose remain unproved.”

Neelabh said, “The service policy provides for an automatic thirty-day retention limit.”

Malini said at once, “Not for every account.”

“Correct. It applies to three accounts, not to two.”

“Yes.”

“Then for the missing messages in those three accounts, conscious deletion is not necessary?”

“No.”

“The other two?”

Malini opened a timeline on the display. “In one, there is an indication of a user command, but who issued the command is unproved. In the other, the record is incomplete; we cannot say anything.”

Neelabh smiled. “That answer is acceptable to us as well.”

Justice Arya said, “Classification matters more than acceptance or rejection. Three—an automatic policy is possible. One—an indication of a deletion command, actor unproved. One—incomplete record. Do not give all five the same moral meaning merely by calling them ‘deleted’.”

Ananya wrote from the rear bench: ‘One word can become a covering over five different evidentiary states.’

Before the lunch recess, the fourth subject was administrative access.

Vidyanand himself rose.

“The State’s record contains surviving access indicators and dashboard history. We do not dispute their existence. The only question is this: does that fact make the postulation of ‘control’ necessary?”

Devvrat answered, “The State does not presently use the word ‘control’.”

“Then what?”

“Administrative-level access was available.”

“To whom?”

“To a session linked with a particular identifier.”

“Is an identifier a person?”

“No.”

“Ownership?”

“No.”

“Capacity to issue directions?”

“Possible for certain functions, but the scope of all privileges has not been verified.”

Vidyanand looked for a moment toward Justice Arya. “Then there is little dispute between the State and the defence here. The dispute is over the shadow cast by an earlier, heavier word that has now been removed.”

Justice Arya said, “The earlier word remains in the history; so does its correction. The Court will look at the present classification, but it will also look at why the revision was made.”

Vidyanand said, “That is all I ask.”

Justice Arya smiled faintly. “That is enough.”

A light ripple of laughter passed through the room.

Vidyanand smiled too. “That is all.”

During the recess, the size of the defence team was again preparing to become news in the court corridor.

A television reporter asked Ananya, “Isn’t it obvious that the operators have overwhelmed the State?”

Ananya said, “Which order have you read?”

“The order hasn’t come yet.”

“Then where did ‘overwhelmed’ come from?”

The reporter said nothing.

Ananya said, “The defence has narrowed some interpretations, kept some alternatives alive, and left some facts undisputed. This is a hearing, not the result of a contest.”

She sent a message to her newsroom: ‘Large defence team; Court curbs repetition; source-based testing of four lines of postulation.’

The editor replied: ‘Need a sharper headline.’

Ananya wrote back: ‘Find sharper facts.’

At the same time, three officials were seated in Home Minister Shiveshwar Prasad’s office in the North Block.

Before them lay a draft from a political adviser: ‘High-priced legal team fails before the State’s organised investigation.’

Shiveshwar Prasad read the page and set it on the desk.

“This will not be issued,” he said.

The adviser asked, “But Minister, some of the State’s points did survive the morning hearing.”

“Some were also narrowed.”

“If every qualification is written into the public message, the political impact will weaken.”

Shiveshwar Prasad looked at him directly. “I did not go to court to preserve impact. I went there to preserve the Court’s trust.”

Silence spread through the room.

The Law Secretary said, “Shall we include the revised interpretations as well in the State’s open position paper?”

“Of course.”

“Adverse facts?”

“First.”

The adviser grew uneasy. “The Opposition will use this much openness.”

Shiveshwar Prasad said, “If the State hides its errors for political convenience, it is not the defence but the Court that will distrust us. That loss is greater.”

With a red pen he struck out the first line of the draft and wrote: ‘The matter is sub judice; the State will place only a limited, record-dependent position.’

Then he said, “That is all the public statement will say.”

When the Court reassembled in the afternoon, the defence's fifth senior advocate, Tanuj Bharadwaj, rose with the KYC and tax-deduction computation ledger.

"The State says that some coordinating process was necessary between the computation ledger, the payment record, and the administrative dashboard."

Devvrat said, "Yes—a process, not a person."

"I show three possible arrangements. One—an internal employee. Two—an external accounting service. Three—automated import."

Malini said, "There are partial indications for all three."

"Then no single additional condition is necessary?"

"Not in a singular form. But without some coordinating arrangement, the timing correspondence is difficult to explain."

Tanuj said, "On that we agree. The only point is to prevent the leap from 'some arrangement' to 'which arrangement'."

Justice Arya asked, "Does the State's table say 'some arrangement' or 'central operation'?"

Malini opened the page at once. "The earlier version said 'central operation'. The current version says 'coordinating arrangement'."

"Reason?"

"Three independent possibilities remained alive."

"Date?"

"Wednesday, 6:14 p.m."

Justice Arya said, "A reasoned revision of that kind is useful. But remember—making the wording narrower does not automatically strengthen the fact; it merely corrects the scope of the claim."

This time the defence's technical consultant was called for a limited question.

The Court asked, "Can the same service key be used by several processes?"

The consultant answered, "It depends on the architecture. The configuration fragments available here indicate that a scheduled process, a service account, and an authorised manual function were all possible."

"Are the available configuration fragments complete?"

"No."

"Then what can you say with certainty?"

"The fact that the key remained active does not make a human user necessary."

Devvrat asked, "Can you also say that there was no human user?"

"No."

"Can the scheduled process explain all activity?"

"No."

Justice Arya said, "Then this evidence imposes limits in both directions. The State cannot say a human was necessary; the defence cannot say a human was impossible."

Aditya wrote in his notebook: "The limit runs both ways."

Malini read what he had written and said softly, "Shall we put that line in the table?"

"Put facts in the table; keep the line in mind."

In the third part of the afternoon, the argument moved from deleted mail material to a time gap involving a magnetic storage device.

The defence said there was a four-minute gap in the chain-of-custody register; why was the State's postulation that the medium remained in the secure room during that interval necessary?

Aditya himself rose.

"Because the access register shows that only two authorised persons entered the secure-room area during that period, and both were carrying other material. But we do not say that what happened during those four minutes is directly proved."

"Then 'it remained in the secure room'?"

"Possible, but not directly established. That is why the gap is marked in the chain-of-custody register."

"Postulation?"

Aditya said, "If the timestamps before and after the transfer show the same seal number and a matching hash, there is some support for integrity; but we cannot fill the blank in the physical location during those four minutes with imagination."

Justice Arya asked, "The hash?"

"Identical before and after."

"Truth of the contents?"

"Not proved."

“Guilt?”

“Not proved.”

“The four minutes?”

“An incomplete custody account.”

Justice Arya wrote: “The incompleteness is acknowledged. A missing custody entry shall not be invented through postulation.”

Vidyanand looked toward Aditya. There was no triumph on his face, only a slight acknowledgement.

◆
In the Court’s final hour, Justice Arya had both sides’ tables placed before her.

Of the State’s seven propositions, two had been reduced to ‘arrangements under testing’, one had failed, three remained alive in limited form, and one was still record-incomplete.

Of the defence’s nine alternative arrangements, four were record-supported, two partial, and three merely possible.

Justice Arya said, “The defence must be careful too. Saying ‘possible’ does not make an alternative record-supported.”

Vidyanand rose. “Accepted.”

“And the State—saying ‘one alternative has failed’ does not make the remaining alternative necessary.”

Devvrat said, “Accepted.”

“At the next hearing we will take only four points whose direct basis is on paper: the response to the summons; the limits of the forensic image; the precise meaning of a hash match; and the remaining gap in the chain-of-custody register.”

Aditya looked up. The next stage was clear.

Justice Arya continued, “Neither side may hide an evidentiary weakness beneath the covering of a philosophical term. Postulation is meaningful only when its ‘otherwise’ truly survives record-dependent testing.”

The order was dictated: today’s hearing reached no conclusion on the merits; it only classified propositions, alternatives, and the limits of testing.

◆
When the Court rose, cameras flashed again in the corridor.

A reporter asked Vidyanand, “Sir, did the strategy of the large legal team succeed?”

Vidyanand stopped. “The Court passed an order. You may add strategic adjectives; I will not.”

“Three of the State’s postulations survived?”

“Some remain under testing in limited form.”

“Has the operators’ position strengthened?”

Vidyanand said, “There is no conclusion on the merits. Write that sentence.”

He moved on.

Ananya recorded his answer word for word, but did not put his name in the headline.

Her headline read: ‘Court Separates Necessary Inference from Live Alternatives; Merits Remain Undecided.’

The editor sent another message: ‘Too long.’

Ananya replied: ‘Shorten the truth, not the meaning.’

◆
At seven that evening, Shiveshwar Prasad received the hearing summary at the Ministry.

The Law Secretary said, “Two of the State’s propositions were narrowed, one failed.”

The political adviser was silent this time.

The Minister asked, “And those that remain?”

“Three in limited form. One incomplete.”

“The public statement?”

“Matter sub judice; no conclusion on the merits; the State will answer four record-based questions at the next hearing.”

Shiveshwar Prasad read it. “Why is ‘the State’s case has strengthened’ not written here?” he asked the adviser.

The adviser looked slightly embarrassed. “You had forbidden it last time.”

A faint smile crossed the Minister’s face. “Good memory.”

Then he grew serious. “The strength of the State is not in winning every point. It lies in having the capacity to say that what is not proved is not proved.”

The Law Secretary said, “If two propositions have been narrowed, questions will be raised about the investigation team.”

“Let them be raised. If a method cannot withstand correction, it is not a method worthy of the Court’s trust.”

The Minister closed the file. “At the next hearing, no political representative will sit in the front row. The legal team will do its work.”

“Yes, sir.”

“And keep the revision register fully available.”

“Yes, sir.”

Shiveshwar Prasad looked toward the window. Darkness was spreading outside. “Power changes. The record remains.”

At half past eight that night, Malini sat in the investigation office with the new table open before her.

First row—service key. Current status: human intervention not necessary; operational arrangement remains alive; three alternatives under testing.

Second—payment reconciliation. Current status: a single intermediate human process not necessary; two record-supported arrangements remain alive.

Third—deleted mail material. Three consistent with automatic policy; one indicates a deletion command, actor unproved; one record incomplete.

Fourth—administrative access. Access is a fact; person, ownership, and broad control unproved.

Fifth—custody gap. Hash match; physical location during four minutes incomplete.

Malini said quietly, “When we write this many limits, it sometimes feels as if we are weakening our own case.”

Aditya, who was arranging the summons responses on the opposite desk, said, “The purpose of a case is not to look strong. It is to give the right weight to what survives.”

“And if very little survives in the end?”

“Then that too is an outcome of the method.”

Malini looked at him. “Not revenge?”

Aditya smiled. “That word was never useful in this room.”

He passed the first summons response toward Malini. “From tomorrow, four questions. First—what source did this response come from?”

Malini read the page. “Second?”

“Was this record actually present in the forensic image, or only in the analyst’s summary?”

“Third—what a hash proves, and what it does not.”

“Fourth—the time gap in the chain-of-custody register.”

Malini drew a deep breath. “After postulation, back to raw facts.”

“The method circles back to facts.”

At ten that night, before leaving for home, Shiveshwar Prasad opened a short note once more.

Its heading was: ‘The State’s Judicial Credibility.’

First point—do not hide adverse facts.

Second—preserve the date and reason for every revision.

Third—political statements must not run ahead of the judicial position.

Fourth—confidentiality is not proof of truth.

Fifth—postulation is not a shortcut to guilt.

Sixth—if an alternative remains alive, remove the word ‘necessary’.

He wrote the seventh point himself: ‘The Court’s trust is not a victory index; it is the State’s self-limitation.’

He set down the pen and sat silent for a few moments.

He understood politics very well—quick sentences, large headlines, the expectations of supporters, the opportunities of opponents. But a judicial proceeding demanded a different pace from all of them.

He picked up his phone and sent the Law Secretary a short message: “Put ‘what remains unproved’ on the first page of tomorrow’s presentation.”

The reply came: “Done.”

The Minister switched off the light.

For a moment, the white edges of the file remained visible in the darkened room.

Inside that file were three live propositions of the State, two narrowed propositions, one failed proposition, and one incomplete question.

No page bore the word ‘victory’.

For Shiveshwar Prasad, that was enough for today.

061 The Turn of Postulation — Chapter 9

At half past five in the morning, Aditya Jha reached the investigation office. Delhi's sky was still grey, but four slim files had already been laid in a row on his desk.

First—the response to the summons.

Second—the forensic image.

Third—the hash chain.

Fourth—the chain-of-custody register.

After yesterday's court order, these four questions were no longer merely technical tests. They were a test of how firm the basis was for the additional state of affairs the State was calling "necessary."

Malini Karn entered the room at six. She carried a new table in her hand.

"What remains unproved is on the first page," she said.

Aditya took the page. Across the top, in bold letters, it read: "Person, purpose, ownership, guilt—still unproved."

He nodded. "Good. Now begin with the questions."

Malini opened the first file. "Summons number seventeen. The service provider has replied that the service key was active during the disputed period."

"From which record was this response prepared?"

"The provider says—from the operational log and the automated event record."

"The original log?"

"A certified copy has arrived, but not yet a direct export from the original system."

Aditya said, "Then do not write 'independent confirmation.' Write: 'Certified response of an independent custodian; source provenance pending verification.'"

Malini wrote it down.

"And the second question?"

"Does the service key being active eliminate the need for a human being's immediate presence?"

"Does it eliminate it, or merely open an alternative?"

Malini paused. "It opens an alternative. An automated process is possible, but not proved."

"Postulation will turn on that distinction."

Outside the window, the first bird of dawn called. Inside the room, the word "necessary" was becoming smaller once again.

At half past seven the technical team arrived. Chief analyst Nilambar Pathak opened the index of the forensic image.

Aditya said, "I do not want the summary. Tell me the limit first."

Nilambar replied, "The image covers the complete sector range of the seized solid-state storage medium. But it is not an image of the entire service-computer system."

Malini noted it at once. "Then the phrase 'complete image' may be misleading."

"Yes," Nilambar said. "Complete—with reference to the seized medium."

Aditya asked, "The trace of the alleged administrative session found on that medium—was it an original record or an analytical reconstruction?"

Nilambar opened two entries on the display. "One is the original browser history. The other is an analytical time correlation."

"Why are both shown in the same colour?" Malini asked.

Nilambar fell silent.

"For convenience of visual presentation," he said at last.

Aditya's voice was not harsh, only level. "Convenience cannot erase evidentiary categories."

Nilambar lowered his head. "Agreed. The original record and the analytical correlation should remain in separate colours, under separate headings, and in separate exports."

Malini asked, "Does this error make the original record inaccurate?"

"No."

"But could it affect a reader's interpretation?"

"Yes."

Aditya said, "Then enter it in the correction log. Original material intact; presentation classification revised."

Nilambar wrote it down.

Then Aditya asked, "The entry that is an analytical correlation—do we remove it?"

"No," Malini replied. "It may be a useful interpretation, but not as an original fact."

Aditya smiled. “Now that is right.”

At eight, the examination of the hash chain began.

Malini placed three values before them—the one at the time of seizure, the one at laboratory intake, and the one from the later re-examination. All three were identical.

“What does this prove?” Aditya asked.

Nilambar replied, “That at the three stages compared, the bit-level content is identical.”

“What does it not prove?”

“Not the truth of the content. Not the author. Not the user. Not the purpose. Not how the material came into being before seizure.”

“And because the hash remains the same, the analyst’s interpretation?”

“Need not remain the same. Interpretation can change.”

Malini said, “Then the phrase ‘record authenticated by hash’ will be removed from yesterday’s State summary.”

Aditya said, “Yes. Write: ‘Integrity of the compared material supported by hash.’”

Nilambar asked, “Is that not excessively cautious language for the Court?”

Aditya replied, “Cautious language is very rarely the problem before a court. Overclaiming is.”

Malini smiled faintly.

At that moment she remembered what she had said yesterday—after postulation, back to the raw facts.

A raw fact was not really raw; it was a fact together with its limits.

At nine, the chain-of-custody register was opened.

The four-minute interval was there again. The seizure team’s entry said the medium was sealed at 11:42; the laboratory intake register recorded vehicle handover at 11:46. There was no separate entry for the physical location in between.

Aditya asked, “A direct record for those four minutes?”

Junior officer Ishan Jha replied, “There is a digital timestamp from the vehicle. Movement from the seizure room to the vehicle is recorded from 11:43 to 11:45.”

“Is that direct surveillance of the medium?”

“No. Only the vehicle door and premises-entry records.”

“Then?”

Ishan said, “The time interval is partly explained, but there is no direct custody record for every moment.”

Aditya said, “Good. Do not write ‘fully explained.’”

Malini asked, “The hash matches. Then how much evidentiary weight does this interval carry?”

Aditya replied, “The hash bears on sameness of the content. The custody register tells us the process. One does not take the place of the other.”

Nilambar said, “If the hash matches, the possibility of tampering is extremely low?”

Aditya asked, “What kind of tampering?”

Nilambar fell silent.

Aditya answered his own question. “If the compared bits had changed, the hash would have changed. But the question in a custody register is not only whether bits changed; it is also from which person to which person, at what time, and through what process the medium passed.”

Malini wrote: “Integrity and custody—related, not identical.”

At ten minutes past ten, the High Court courtroom was full.

Justice Arya took her seat. Before her lay the State’s four files, the defence note, and the correction log.

Devvrat Sinha rose. “My Lady, pursuant to the previous order, the State presents limited answers to the four questions.”

Vidyanand Mishra said at once, “I do not object to the word ‘answers,’ but let it be clear that in these answers the State has narrowed two of its earlier claims.”

Devvrat said, “The State itself has recorded that.”

Justice Arya turned a page. “We will begin with the first question. The summons response.”

Aditya went to the witness stand.

“Officer,” Justice Arya said, “the service provider says the service key was active. What does the State infer from that?”

Aditya replied, “Only this: the provider’s records show the service key as active during the specified period. The State does not claim that immediate human presence was necessary.”

“Then the earlier proposition that ‘human coordination was necessary?’”

“It does not survive in that broad form.”

A faint murmur passed through the courtroom.

Justice Arya said, “Defence?”

Vidyanand rose. “That limitation is proper. But has the provider’s response been independently verified against its original system?”

Aditya said, “A certified copy has been received; direct export from the original system is still awaited.”

“Then ‘independent confirmation?’”

“No. ‘Certified response of an independent custodian; source provenance pending verification.’”

Justice Arya wrote it down. “That wording shall be used in the order.”



The second question concerned the forensic image.

Devvrat said, “The State accepts that the phrase ‘complete image’ referred to the complete sector range of the seized medium, not the entire system.”

Vidyanand asked, “Was that limitation in the first report?”

Malini rose. “It was in the technical appendix, but it was not made clear in the main summary.”

“Then the main summary conveyed a broader impression?”

“Yes.”

“When was that corrected?”

Malini read out the date and time. “Entered in the correction log at 7:38 this morning.”

Vidyanand was silent for a moment. Then he said, “I commend the correction, but the Court should note that the previous argument also relied on the broader language of the main summary.”

Devvrat replied, “The State agrees that only the revised limitation will be used going forward.”

Justice Arya said, “Earlier judicial observations do not automatically become void, but where their basis was broader wording, their evidentiary weight will be read subject to the new limitation.”

She looked toward Malini. “Why were the analytical correlation and the original record placed in the same visual category?”

Malini replied, “A presentation error. The original material was not changed. The new export separates the categories.”

“Was the analytical correlation removed?”

“No. It has been retained as interpretation.”

“Good. The Court does not wish to erase the existence of interpretation; it wishes only for its identity to be clear.”

Vidyanand said, “That distinction is necessary.”



The third question concerned the hash chain.

Justice Arya asked directly, “The hashes match. What does the State prove by that?”

Aditya replied, “Bit-level sameness of the material compared, My Lady.”

“The truth of the content?”

“No.”

“The author?”

“No.”

“The user?”

“No.”

“The purpose?”

“No.”

“Guilt?”

“No.”

Justice Arya looked toward Vidyanand. “Defence?”

Vidyanand said, “No dispute as to that limit. But in an earlier report the State wrote ‘hash-authenticated administrative record.’”

Devvrat found the page. “Yes. The revised form is: ‘Hash-matched copy; interpretation of content separate.’”

Justice Arya said, “The earlier phrase shall not be used in future filings.”

Malini made a note.

In the back row of the courtroom, Ananya Kashyap kept writing rapidly. A headline was already forming in her mind—“Hash equality is not the same as truth: State clarifies limit in court.” But she did not settle on it yet. The order was not complete.



The fourth question was the four-minute interval in the chain-of-custody register.

Ishan Jha came to the witness stand.

“You were part of the seizure team?” Justice Arya asked.

“Yes, My Lady.”

“From 11:42 to 11:46?”

Ishan replied, “Sealed at 11:42; out of the seizure room at 11:43; digital record at the vehicle door at 11:45; vehicle-handover entry at 11:46.”

“Between 11:42 and 11:43, in whose hands was the medium?”

Ishan was silent for a few moments. “I directly remember that it was in the senior sub-inspector’s hands, but there is no separate written entry.”

Vidyanand rose at once. “Let memory and record be kept separate.”

Justice Arya said, “Agreed. Officer, your memory does not automatically fill an archival gap.”

Ishan said, “Accepted.”

“Does the vehicle-door digital record show the medium?”

“No. It shows the vehicle’s entry.”

“Then the State’s position?”

Aditya rose. “The four-minute interval is partly supported by circumstantial records, but there is no complete direct custody log. The matching hash supports sameness of the compared material, but it does not erase the procedural interval.”

Vidyanand said, “The defence agrees to that limitation. Argument about evidentiary weight will remain separate.”

Justice Arya closed the page. “Good. The gap has neither been concealed nor enlarged; it has been named. At this stage that is the proper method.”

During the noon recess, Aditya and Malini stood alone on the court veranda.

Malini said, “In four questions, two of the State’s earlier lines have been narrowed.”

“Yes.”

“One presentation error has been exposed.”

“Yes.”

“The custody interval has not been fully filled.”

“Yes.”

“Then were we successful?”

Aditya looked at the crowd beyond the veranda. “Change your definition of success.”

“How?”

“If an untrue broad claim is narrowed, a classification error corrected, a gap named, and the limits of what survives are made clear—the method has succeeded.”

Malini said softly, “But the public story will say—the State retreated.”

“Retreating and correcting are not the same thing.”

“In politics?”

“We are not doing politics.”

Malini smiled. “The Minister said the same thing yesterday.”

Aditya said, “Then he remembers the right thing.”

After the recess, Justice Arya came directly to the question of postulation.

“The State’s first proposition—immediate human coordination was necessary. The service-key record removes that necessity. Therefore the proposition does not survive in that broad form.”

Devvrat said, “Accepted.”

“Second—a single human user was necessary. The forensic image and service records keep at least one automated alternative alive. Therefore a single user is not necessary.”

“Accepted.”

“Third—for certain acts, does some pre-arranged operational arrangement appear necessary?”

Devvrat said, “Yes, but its form and the person behind it are unproved.”

Vidyanand rose. “I still challenge the word ‘necessary.’ A pre-set schedule and an external service cycle are two different arrangements.”

Justice Arya said, “Then let the State state not a single arrangement, but the minimum common condition.”

Aditya looked at the paper. “The sequence of the specified events did not depend solely on immediate human action; some pre-existing operational mechanism was active—that is the common minimum.”

Vidyanand asked, “This ‘mechanism’ is not a person?”

“No.”

“Not ownership?”

“No.”

“Not unlawful purpose?”

“No.”

“Not guilt?”

“No.”

Justice Arya said, “In that limited form, the question may remain under examination.”

Silence spread through the courtroom again.

It was not a victory for the State. Nor was it a victory for the defence.

In place of an overlarge proposition, one small, testable sentence remained.

Mrinal Dhar raised the next question. “My Lady, to test this common minimum, the State seeks permission for three new summonses—the original export from the service provider, the custodian of the scheduling arrangement, and the timestamp log of the external payment gateway.”

Vidyanand said, “We will object to any broad summons. Let the questions remain limited.”

Justice Arya asked, “State, does each summons separately state the material sought and the question to be tested?”

Aditya handed up three pages.

First—“On which system record is the service-key activation based?”

Second—“Was any automated schedule active before the time of the event?”

Third—“Do the payment-gateway timestamps independently correspond with the times in the source-tax worksheet?”

Justice Arya said, “The summonses are allowed, but limited to these questions. They are not an open warrant to search for the guilt of a particular person.”

Devvrat said, “Accepted.”

Vidyanand said, “Will the defence receive copies?”

“Where confidentiality or third-party protection does not bar it, yes. Otherwise, an adequate summary.”

Malini noted: “Postulation → limited testing, not an open fishing net.”

She read her own sentence and smiled.

Before the hearing ended, Justice Arya picked up the correction log.

“The State has itself entered four corrections. Let me make this clear—a correction is not by itself proof of unreliability. Concealing the reason, reusing the old wording, or removing adverse facts would be the more serious matter.”

Vidyanand said, “The defence wants the earlier versions preserved as well.”

Devvrat replied, “They are preserved.”

“Dates?”

“On every entry.”

“Reasons?”

“On every one.”

Justice Arya said, “Good. The Court wants to see the history of the method, not merely a clean final page.”

Malini remembered Aditya’s sentence from yesterday—the method is also the honest history of how one reaches a conclusion.

The order was dictated.

Its final line read: “No part of this order is a finding on the merits, the role of any particular person, ownership, purpose, or guilt.”

Ananya underlined that sentence twice.

A crowd of journalists was waiting in the corridor.

One reporter extended a recorder toward Aditya. “Sir, have two of the State’s main theories collapsed?”

Aditya stopped. “Two broad propositions were narrowed after the record was examined. ‘Collapsed’ is your word.”

“Then the investigation is weak?”

“The task of an investigation is not to look strong; it is to mark the proper limit.”

“Has anyone been held responsible?”

“Not today.”

“What next?”

“Three limited summonses.”

He walked on.

Ananya watched from a distance. Her editor’s message arrived: “Need headline on State retreat.”

She replied: “State narrows two broad propositions; Court allows three limited tests; no finding on guilt.”

The editor wrote: “Too long.”

Ananya replied: “I won’t make the meaning smaller.”

Then she wrote the headline: “Broad Postulation Narrowed; Three Limited Tests Continue, Guilt Undecided.”

That afternoon, Shivishwar Prasad was reading the hearing summary at the Ministry.

The political adviser said cautiously, “The opposition will say the State’s theory is falling apart.”

The Minister did not raise his eyes from the page. “What fell apart?”

“Two broad propositions.”

“Were they unsupported by the record?”

“Yes.”

"Then should they have been defended?"

The adviser fell silent.

The Minister asked, "The new limited questions?"

The Law Secretary replied, "Three summonses allowed. No finding on any person or on guilt."

"The first line of the public statement?"

"The Court permitted limited testing; the State will proceed within the revised evidentiary limits."

"Second?"

"No finding on the merits."

"Third?"

"The State itself narrowed two broad propositions."

The adviser looked startled. "That means leading with something adverse to ourselves."

Shivishwar Prasad said, "What is the gain in hiding now what is already in the order?"

The Law Secretary smiled faintly.

The Minister continued, "Trust in a court means the State can state its own adverse facts first."

Then he wrote in the margin of the file: "No retaliation. Method."

At five in the evening, the three new summonses were being finalized in the investigation office.

Malini read the first page. "From the service provider, only the original export, the system description, and the timestamp source."

Aditya said, "Good."

"From the second, the scheduling arrangement, activation history, and change log."

"Good."

"From the third, the payment gateway's original timestamp log and an independent time match against the source-tax worksheet."

"Good."

Malini asked, "No name of any particular person?"

"The Court has allowed limited questions."

"If the answer points toward a person?"

"Then a new fact will generate a new question. Filling in a name beforehand is not postulation."

Malini was silent for a few moments. "This method is slower."

"The proper speed."

"The news media are faster."

"A court does not run by the media's clock."

Malini laughed. "And us?"

"We run by the clock of evidence."

He checked the signature sequence on all three summonses.

Then Malini lifted the page about the four-minute interval in the chain-of-custody register. "This question?"

Aditya said, "It remains open. The hash matches, but the procedural interval will not be concealed. At the next inspection we will re-examine the original vehicle-door record, the seizure-room attendance register, and the sequence of handover."

"Those four minutes may never be completely filled."

"Possible."

"Then?"

"Then the Court will decide evidentiary weight. The investigator will not write a story into a gap."

At seven, Nilambar Pathak came in with a new visual layout.

This time the original record was in black lettering, the analytical correlation in a grey box, and inference under a separate heading.

Malini looked at it. "Now no reader will read all three as the same thing."

Nilambar said, "The old display was prettier."

Aditya replied, "This one is more honest."

Nilambar laughed. "Technical people want beauty."

Malini said, "Courts want source categories."

Aditya asked, "The hash of the new export?"

Nilambar looked surprised. "Of the new presentation?"

"Yes. One hash for the original image, another for the analytical export. So that later no one confuses the two."

Nilambar wrote it down at once. "Right."

Malini said, "That is the proper use of a hash after understanding its limits."

Aditya replied, "A method stays alive only if it learns from its own errors."

At eight that night, all three new summonses were sent.

The room fell quiet.

Malini closed her table. "Today the State narrowed two things, opened three new questions, kept one custody interval open, and corrected one visual classification."

Aditya said, "And what was proved?"

Malini counted them off. "There is a certified response showing service-key activation, but source provenance is not yet fully verified. The image of the seized medium is intact, not an image of the entire system. A hash supports sameness in comparison, not the truth of content. The custody interval is partly explained, not fully."

"And the person?"

"Unproved."

"Purpose?"

"Unproved."

"Ownership?"

"Unproved."

"Guilt?"

"Unproved."

Aditya smiled. "Then today's work is complete."

Malini asked, "Can we really say the work is complete after writing 'unproved' so many times?"

"Yes. Because what is proved has become clear, and what is not proved has become clear as well."

Malini slowly nodded.

When Aditya left the office that night, a light dust was blowing across Delhi's roads.

Once he was seated in the car, he remembered the old fields of Garh N Arikel.

As a child, once, he had searched for seed along the ridge of a field. When he could not find it, his grandfather had said, "Not finding something can mean two things. One—it is not there. Two—you did not look in the right place."

At the time the sentence had seemed ordinary. Today an entire method sounded inside it.

Postulation says: when an established fact would otherwise remain inconsistent, posit the minimum additional state of affairs and test it.

But the test also asks: how much did you search? In which source? At what time? Up to what limit? Was the thing you failed to find something whose presence could reasonably have been expected?

Before the stage of the method changed, the question itself was changing.

Aditya opened his notebook. He wrote: "Absence is meaningful only when presence was expected, the search was appropriate, and the limits are known."

Then he closed the page at once.

The section on postulation was not over yet. First, the replies to the three new summonses had to arrive. First, they had to see whether the limited "pre-existing operational mechanism" would hold on the record.

He said to himself, "Do not run ahead of the conclusion."

When he reached home, a message from Malini arrived: "All three dispatch receipts secured. Correction log updated. Four-minute interval remains open."

Aditya replied: "Good. Tomorrow we begin not with the result, but with the source."

After sending the message, he put down his phone.

No victory had been won over any accused that day. No defeat had been imposed on any defence. No political headline had gone beyond the Court's order.

Two broad claims had been narrowed. Three questions had become more precise. One error had been acknowledged. One gap had been left open.

In all of this, Aditya tasted no revenge.

There was only a quiet confidence—that the method was moving forward bearing its own weight.

And that night, after many days, it seemed to him that if the word victory belonged anywhere, it belonged not to a person, but to an honest method.

062 The Turn of Postulation — Chapter 10

At six in the morning, the first reply arrived in the investigation office's secure mailbox.

The moment Malini Karna saw the notification, she telephoned Aditya Jha.

"The first service provider's reply has arrived."

Aditya asked, "With the original export?"

"Yes. The timestamp source, system description, scheduler history, and the authentication-key change log as well."

"Any identification of a particular person?"

"Not yet."

"Then read the reply first, not the conclusion."

Malini smiled. "That sentence has become a habit."

"Not a habit. A safeguard."



At half past six, Aditya reached the office.

Malini had spread three differently coloured sets of papers across the desk—the original reply, the investigative summary, and the question log.

She said, "According to the provider, the scheduler process was activated at 03:17:22. The activation is recorded through the service account."

Aditya asked, "Which person used the service account?"

"The provider cannot say. Its logs do not separately record a human user."

"Then we will not write, 'someone activated it.'"

"I have written: 'The scheduler process was activated through the service account's authentication route.'"

"Good."

Malini lifted the next page.

"The authentication key was renewed twenty-eight minutes before activation."

Aditya remained silent.

Malini herself added, "But key renewal could also have occurred under an automated policy."

"What does the provider say?"

"For this account, the policy was mixed. Automatic renewal on schedule was possible, but administrative renewal in case of unusual use was also possible."

"So the event of renewal is established; the person who renewed it is unproved."

"Yes."

"And the reason?"

"Unproved."

Aditya wrote the first line in the table: "System level: event established. Person level: unproved. Purpose: unproved."

Malini watched closely.

"Where does postulation enter here?"

Aditya said, "If the established fact is that the process was activated, and if activation required a valid authentication route, then the minimum necessary state of affairs is this: some valid means of authentication was available."

"A person?"

"No."

"Purpose?"

"No."

"Ownership?"

"No."

Malini wrote: "Do not drag the necessary state of affairs as far as a person."



At a quarter past seven, the second reply arrived.

It came from the external computing-service provider connected with the scheduling system.

The original log contained three events—a configuration read at 02:49, process wake-up at 03:16, and task commencement at 03:17.

Malini said, "At first glance, this supports the first reply."

Aditya asked, "Are the sources independently generated?"

Malini immediately checked the original description.

“There is one limitation. The configuration read and task commencement come from the provider’s own logs, but the 03:16 process wake-up is a copy of an event signal sent from the customer side.”

“Then we will not call all three events three independent sources.”

“Two independent; one customer-generated copy.”

“Good.”

Malini asked, “But the 03:17 commencement is from the provider’s own log?”

“Yes. It independently supports the event at the system level.”

“It does not establish any user?”

“No.”

“Then again, postulation goes only as far as the system.”

“So far.”

Malini asked, “Why the words ‘so far?’”

Aditya said, “Because method is bound to facts that change with time. What is unproved today may be proved tomorrow; what appears necessary today may tomorrow be displaced by an alternative source.”

“Then only the limit is fixed?”

“The limit too becomes clearer with new facts. But one discipline remains fixed: the conclusion must never be larger than its source.”

◆
At twenty past eight, the third reply arrived from the payment gateway.

It came with the original time log, settlement sequence, an external summary of tax deduction at source, and a description of the automated batch process.

The financial analyst came in.

He said, “The timing match is almost exact.”

Aditya asked, “Almost?”

“The customer-identity verification worksheet appears to have been modified at 03:19. The payment gateway’s batch process began at 03:20.”

Malini asked, “Does that sequence establish purpose?”

The analyst paused.

“No. The sequence shows only temporal proximity.”

Aditya asked, “Can the batch process run without a human command?”

“Yes. It can run automatically at the scheduled time.”

“On this particular night?”

The analyst checked the original description. “The provider says the normal scheduled time was 03:20.”

Malini raised an eyebrow. “Then what I said earlier—‘the payment process ran immediately after the worksheet changed’—is linguistically accurate; but it would be improper to say, ‘the payment ran because the worksheet changed.’”

Aditya said, “Exactly.”

“So there is temporal sequence; causation is unproved.”

“Yes.”

The financial analyst asked, “But the same closeness in time keeps recurring. What weight does that have?”

Aditya said, “It has weight, but record its kind: ‘a reason for consistency testing,’ not ‘a reason for proving guilt.’”

Malini wrote in the table: “Temporal proximity: testable indicator; causation: unproved.”

◆
By nine o’clock, the preliminary classification of all three replies was complete.

Aditya called Nilambar Pathak.

“We need a new visual layout.”

Nilambar said, “Four columns?”

“Five this time.”

Malini counted them: “Established system fact. Source independence. Minimum necessary state. Alternative explanation. Limit on person/purpose/guilt.”

Nilambar asked, “Will it fit on one page?”

“If it does not, use two pages. Preserve clarity.”

Nilambar laughed. “Beauty loses again.”

Malini said, “That is not defeat. It is classification.”

Aditya smiled too.

◆
At five past ten, the supplementary reply concerning the four-minute gap in the custody log arrived.

The original vehicle-gate record showed the vehicle carrying the seized material entering at 18:42:11.

The seizure-room attendance log showed the officer entering at 18:45:09.

The handover sheet bore the time 18:46.

Malini calculated. “The gap is now roughly one minute.”

Aditya said, “If it is one minute, write one minute.”

“I think this may be rounding of timestamps.”

“It may be.”

“Then shall I write it that way?”

“No. Write: ‘Possible rounding is an alternative explanation; not confirmed by the original source.’”

Malini nodded slowly.

“No one’s guilt is proved by one minute.”

“Nor by four. The question concerns only the evidentiary value of the integrity of custody.”

“The hashes match.”

“Hash equality supports the integrity of the material; it does not explain the time gap.”

“Then both truths remain together.”

“That is why the method is difficult.”



At eleven, the secure file reached the Ministry.

On the cover page, Aditya had written only three lines: “Replies to three limited summons received. System-level operational facts clearer. Person, purpose, ownership, guilt—still unproved.”

The Law Secretary had barely read the first page when he said, “This line is not politically attractive.”

Home Minister Shiveshwar Prasad said, “Good.”

The Secretary smiled. “I was thinking the same.”

The Minister opened the file.

There was no red lettering in the first table. No “principal culprit,” no “decisive link,” no “centre of the network.”

Only sources, limits, alternative arrangements, and results of testing.

The Minister asked, “Will the strategy have to change?”

The Law Secretary said, “Yes. Earlier we were advancing a broad proposition of a ‘concealed control arrangement.’ The replies now show that some elements of a system-level operational mechanism appear necessary, but the sources are silent on personal ownership or criminal purpose in that mechanism.”

“Then?”

“We will make the State’s submission level-specific.”

The Minister asked, “How many levels?”

The Secretary wrote on a sheet of paper: “System. Account/key. Person. Purpose. Legal culpability.”

The Minister looked at it. “At which level is the State’s position strong?”

“At the system level.”

“Account/key?”

“The event is established; the user is unproved.”

“Person?”

“Not yet.”

“Purpose?”

“Not yet.”

“Guilt?”

“A question for the court; the investigative material is not yet sufficient.”

The Minister did not close the file. He returned to the first page.

“Make these five levels mandatory in every submission from now on.”

The Law Secretary said, “I will create a new standard table.”

The Minister added, “And adverse facts on the first page.”

“Which ones?”

“The possibility of automatic key renewal. The payment gateway’s scheduled time. The one-minute custody gap. The absence of personal identification.”

The Law Secretary wrote them down.

The Minister said, “If the State hides its adverse facts and constructs a postulation, that is not reasoning—it is prejudgment.”



At a quarter past twelve, Aditya and Malini reached the Ministry.

There were no speeches in the meeting.

The Law Secretary came straight to the question.

“Why does the postulation hold at the system level?”

Aditya replied, “Because the established events—the scheduler activation, the valid authentication route, the service provider’s independently logged task commencement, and the later computational outcome—taken together require the presence of an operational arrangement without which the sequence of events is difficult to explain.”

“Is the word ‘require’ too large?”

Aditya thought for a moment.

“I will write, ‘a minimum working arrangement appears necessary.’”

“Why not a person?”

Malini answered, “Because the service account does not identify a human being, key renewal may also be automatic, and the external provider’s log shows task commencement—not the actor.”

“Purpose?”

“The timing match in the payment process does not establish causation. The batch process ran at a scheduled time.”

“Guilt?”

Aditya said, “The aggregate of system facts gives reason to test one possible structure of the offence; it does not yield a judicial conclusion of guilt.”

The Law Secretary asked, “What if the defence says this operation was part of ordinary business process?”

Aditya replied, “Then we will seek the original records of the ordinary business configuration. Postulation does not grow stronger by hiding alternatives; it becomes properly limited by testing them.”

The Minister, Shiveshwar Prasad, had been silent until then.

He asked, “What if the alternative turns out to be supported by the records?”

Aditya said, “The State will narrow its proposition.”

“And if the alternative turns out unsupported?”

“Then we will place only the result of the test before the court; we will not say, ‘the alternative failed, therefore the State’s story is proved.’”

The Minister leaned back in his chair.

“Make that line the first principle of the written strategy.”

The Law Secretary wrote: “Failure of one alternative is not automatic proof of another proposition.”

◆
In the second part of the meeting, Malini displayed the new table.

The first column—“Established.”

The second—“Minimum necessary by postulation.”

The third—“Record-supported alternative.”

The fourth—“External testing.”

The fifth—“Limit on person/purpose/guilt.”

The Law Secretary asked, “A sixth column?”

Malini looked surprised.

“Which one?”

The Secretary said, “Facts that cut against the State’s proposition.”

Malini immediately wrote: “Adverse facts.”

Aditya said, “That should come earlier.”

“Why?”

“Because a person searches for support for his own proposition. If adverse facts do not have a separate column, they slowly drift to the edge of the page.”

The Minister said, “Then change the order. Adverse facts immediately after established facts.”

Malini rewrote the sequence.

“Established. Adverse. Minimum necessary. Alternative. Test. Limit.”

The Law Secretary said, “This will be the State’s new postulation table.”

Aditya added, “And a source for every row.”

“And source independence.”

“Yes.”

Malini asked, “This will become very heavy.”

The Secretary said, “Heavy paper is better than a light accusation.”

◆
At two in the afternoon there was a short break for lunch.

Aditya stepped out through the Ministry’s long corridor, almost like an osara.

The October sunlight in Delhi was not harsh, but the air was dry.

On his phone, he looked at an old photograph of his home in Garh N Arikel.

After the rains the previous year, the soil in the field had turned black.

On the ridge stood his grandfather, holding a hoe.

Aditya remembered an incident.

As a child, impatient to sow seed, he had begun breaking large clods of dry earth with his hands.

His grandfather had stopped him: “Not yet. Let it drink water once. Then the soil will open by itself.”

The child Aditya had said, “If I use force, it will break now.”

His grandfather had laughed. “It will break, but not the soil—you will ruin the place where the seed must lie.”

Today that sentence returned to him.
The soil of facts, too, is sometimes dry.
Hack at it by force and you may get a shape, not the truth.
Some answers need time. Some sources must be allowed to speak separately. Some gaps must be allowed the right to remain gaps.
With one hand on the railing, Aditya said softly, "Let it drink water first."
A faint laugh escaped him at his own words.



At half past two, the meeting resumed.

This time the question was: what would the State ask for in its next judicial submission?

The Law Secretary laid out three options.

"First—a broad conclusion about the role of a particular person."

Aditya immediately said, "Not yet."

"Second—preservation of the system-level operational configuration and additional source-specific records."

"Supported."

"Third—a broad adverse inference based on confidential or privilege-disputed material."

"Not yet."

The Minister asked, "Then the State chooses only the second option?"

The Law Secretary said, "Yes. And we will make clear to the court that this request is not a prejudgment of guilt."

Malini added, "And we will annex the source-independence table."

"Adverse facts?"

"Within the first two pages."

The Minister asked, "What will the media read?"

Aditya said, "We control what we write, not the headline that is made from it."

The Minister said, "Then we will keep our own language exact."

He turned to the Secretary.

"No submission is to use words such as 'decisive,' 'final,' 'owner of the network,' or 'definite control' unless the source can bear that weight."

"Understood."

"And show the new table to the Attorney General and the Solicitor General."

The Law Secretary said, "They are already in the matter. We will prepare a specific supplementary position paper."

Aditya understood—the next stage was taking shape.



At a quarter to four, a letter from the defence reached the Ministry.

The letter stated that the scheduler process and the payment gateway's timing match could be the result of ordinary operations; the State, it said, was not giving this ordinary alternative sufficient weight.

The Law Secretary passed the letter to Aditya.

"What response?"

Aditya said, "First ask for the records supporting the alternative."

"The language of the letter is sharp."

"Answer language not with language, but with sources."

Malini asked, "The ordinary-operation alternative is already in the table."

"Then write the next tests for it—the scheduled timetable, comparative logs from nights before and after, the key-renewal policy, and the regular timing of the payment batch process."

The Law Secretary said, "We will test the defence alternative, not reject it."

"Yes."

The Minister asked, "What if the defence does not provide the records?"

Aditya replied, "Where we may lawfully require them, issue a summons. Where we may not, state the limit created by their unavailability. Silence is not guilt."

The Minister said, "Write that sentence too."



At five in the evening, the draft of the new strategy paper was ready.

Its title was deliberately ordinary—"Supplementary Position on Limited Testing Based on Postulation."

The first paragraph contained the established facts.

The second, the adverse facts.

The third, the minimum system-level state that appeared necessary.

The fourth, record-supported alternatives.

The fifth, the results of external testing.

The sixth contained an express prohibition—no automatic conclusion as to person, purpose, ownership, or guilt.

The seventh contained the request—preservation of sources, limited additional records, and clear classification under judicial supervision.

After reading the whole draft, Malini said, “The State’s story has become smaller.”

Aditya replied, “Not the State’s story. The State’s claim has become smaller.”

“The difference?”

“A story may be large. A claim must be only as large as the evidence can carry.”

The Law Secretary said, “In court, that difference creates trust.”

The Minister did not sign.

He handed the pages back to Aditya.

“Read it once from the defence’s point of view.”

Aditya looked surprised.

The Minister said, “Wherever your own proposition seems too easy to you, perhaps too few questions have been asked.”

Aditya smiled slightly. “That is a useful instruction.”

◆
At half past five, Aditya, Malini, and the Law Secretary went through the pages again, line by line.

First objection—what does “a valid means of authentication was available” actually mean?

Malini wrote: “Valid for the system; the user’s authority remains unproved.”

Second—is the expression “operational mechanism” too broad?

Aditya changed it to: “A minimum working arrangement capable of making the recorded sequence of events possible.”

Third—how much weight does the timing match in the payment process carry?

The Law Secretary wrote: “For consistency testing; not for causation or unlawful purpose.”

Fourth—the one-minute gap in the custody log?

Malini wrote: “Open procedural gap; not automatically extinguished by hash equality.”

Fifth—where should adverse facts appear?

Aditya said, “Inside the principal summary, not in an annexure.”

Sixth—the defence’s ordinary-operation alternative?

The Law Secretary wrote: “Subject to source-based testing; not rejected in advance.”

Malini looked at the page.

“Now the record shines less.”

Aditya said, “But it will endure longer.”

◆
At seven in the evening, the Ministry meeting ended.

By the time Aditya stepped outside, the light had already faded.

Walking beside him, Malini asked, “Did the soil of your village return to your mind today?”

Aditya looked at her. “How did you know?”

“In the middle of the meeting you said three times, ‘give it time first.’”

Aditya laughed.

“As a child, I wanted to break a dry clod by force. My grandfather stopped me.”

“Why?”

“He said, let it drink water; otherwise you will spoil the place meant for the seed.”

Malini was silent for a few moments.

“The soil of facts.”

“Yes.”

“And in our hurry we sometimes strike it with a hoe.”

“That is why we need method.”

Malini said, “This time three replies came, but no person was found.”

Aditya replied, “Even ‘no person was found’ must be said carefully. Say: ‘These three sources did not establish the identity of a person.’”

Malini smiled. “Language has become the boundary again.”

“Language reveals the boundary; evidence creates it.”

◆
At eight that night, back in the office, Aditya wrote the final note on the new strategy paper.

“Postulation—limited to the minimum explanation at the system level. Independent material required for any person-level conclusion.”

Malini added: “Adverse facts and alternative arrangements mandatory in the principal summary.”

A message arrived from the Law Secretary: “Tomorrow the specific supplementary position paper will be sent to the Attorney General and the Solicitor General.”

Aditya replied: “Send the original source table with it.”

Malini asked, “What did this stage achieve?”

Aditya said, “Three new replies.”

“That is a fact.”

“Strategically?”

“The State narrowed the breadth of its own claim.”

Malini smiled. “Hard to call that an achievement.”

“That is why it matters.”

He looked once more at the final table.

Some system-level facts were now stronger than before. The person-level gap remained open. The payment timing match had not become causation. The one-minute custody gap had not been hidden. The defence’s ordinary-operation alternative remained under test.

For a political stage, the picture was incomplete.

For a court, perhaps useful.

And to the lesson of the soil in Garh N Arikel, utterly familiar—before sowing seed, learn the proper time of the earth.

Aditya gathered the papers.

Softly he said, “Where the evidence stops, the State too will stop.”

Then he switched off the light and left the room.

063 The Turn of Postulation — Chapter 11

At half past eight in the morning, the Ministry's secure file reached the office of Attorney General Devvrat Sinha.

There was only one line at the top: "Supplementary Position Paper on Limited Testing Based on Postulation."

Devvrat Sinha opened the cover, read the first page, and immediately told his assistant, "Ask Solicitor General Mrinal Dhar to come with this copy. This is not a new representation; it is the next limited question in the continuing matter."

Twenty minutes later, Mrinal Dhar entered the room.

He looked at the first table.

"Established facts. Adverse facts. Minimum necessary position. Record-supported alternatives. External testing. Limit."

Devvrat said, "This is more candid than the previous paper."

Mrinal asked, "And weaker?"

"The claim has become narrower. Not weaker."

Mrinal turned to the second page.

"At the system level, some part of an operational configuration appears necessary; identification at the individual level remains unproved."

He stopped his pen.

"'Necessary' is still a heavy word."

Devvrat said, "That is why we are here."

Mrinal asked, "What does the State want to seek?"

"Preservation of sources. Limited additional records. Classification under the Court's supervision. No conclusion as to any person or guilt."

Mrinal said, "Then the question is about authority to preserve, not a conclusion of guilt."

"Correct."

"And postulation?"

"A reason for raising the next limited investigative question. Not a substitute for judicial proof of guilt."

Mrinal wrote in the margin of the first page: "Necessary for what?"

Devvrat smiled.

"That will remain the first question."

At ten, the two senior law officers joined Aditya Jha, Malini Karn, and the Law Secretary by video conference.

At the outset Devvrat said, "We are already in this matter. So do not repeat the formal history. Tell us only what is newly different."

The Law Secretary replied, "Responses have come to three limited summonses. System-level operation is clearer; person, purpose, and culpability remain unproved."

Mrinal asked, "The first source?"

Malini said, "The service provider's original export. Scheduler activation, service-key renewal, and time of task initiation."

"What does that prove?"

"That a valid system-level means existed by which the recorded process could run."

"What does it not prove?"

"Who used the key, who the human user was, what the purpose was, or whether any offence occurred."

Devvrat asked, "The second source?"

Aditya replied, "The payment gateway's batch-processing log. The time aligns, but scheduled operation is also possible."

"Then what use is the time alignment?"

"Only for a consistency test. Not for causation or unlawful purpose."

Mrinal moved to the third page.

"The one-minute gap in the custody log?"

Malini said, "It has been left open. Hash identity supports integrity of the material; it does not explain the gap."

Devvrat set his pen on the table.

"There is one thing common to all three responses."

Aditya asked, "What?"

"They all clarify the system, not the person."

“Yes.”

“Then if the State, at this stage, uses postulation to move toward naming a particular person, it will go beyond its source.”

Aditya said, “That is my view as well.”

Mrinal asked, “Then should we remove the phrase ‘person-level postulation’ entirely from the supplementary position paper?”

The Law Secretary said, “We can retain: ‘No person-level postulation is available from these sources.’”

Devvrat inclined his head slightly.

“Write it directly: ‘On the basis of these sources, individual identification has not been established.’ Reduce the philosophical terminology; make the evidentiary limit clearer.”

Malini made a note.

At ten forty-five, Mrinal Dhar raised the defence’s general operational alternative.

“The defence says all this could be ordinary automated process.”

Aditya replied, “We have sought the records for that alternative—the regular schedule, comparative logs from the nights before and after, the key-renewal policy, and the routine timing of payment batch processing.”

“Have all of them been received?”

“Some have; some are still awaited.”

Mrinal asked, “What has not been received—do we treat that as absence?”

Aditya said, “Not yet. First we must see whether there was a legal or regular expectation that the record would be created, who the custodian was, what the retention assumption was, and whether the search was adequate.”

Devvrat said, “Good. The next limit of postulation lies exactly here—do not turn a gap into a fact.”

Malini asked, “Then how should unavailable material be described in the position paper?”

“Write ‘not yet received.’ Write ‘does not exist’ only where there is an independent basis for that.”

Mrinal added, “And write ‘was not provided’ only where the duty to provide is clear.”

Aditya said, “Otherwise the weight placed on silence will increase.”

Devvrat said, “Correct. We will not seek any direction from the Supreme Court that would place upon the defence a reverse burden to disprove an unproved proposition.”

The Law Secretary asked, “Then what do we seek?”

“Preservation of sources, limited directions on the lawful availability of specified records, and clear reasons for open or sealed classification.”

Mrinal said, “And with every request, state which fact it is meant to test.”

Malini immediately added a new column: “Purpose of request.”

Devvrat said, “This is important. An investigative request must not itself become an indication of guilt.”

At that hour, Vidyanand Mishra sat in his chamber with a thick file open before him.

In the outer room, junior counsel Ishan was comparing two copies.

Vidyanand’s telephone vibrated.

It was a message from Shailaja: “The medicine and medical-testing bill has gone up again this month. The bank instalment is due Monday. Do not worry; I am only letting you know.”

For a long while Vidyanand did not write a reply.

He picked up a small slip of paper lying at the corner of the table.

Two payments of professional fees for the month were still held up.

That very morning a client’s representative had said, “In front of the media, call the State’s postulation a deliberately fabricated story. We need a sharp line.”

Vidyanand read the sentence again.

Ishan came in.

“Mr Mishra, the draft supplementary response is ready.”

Vidyanand asked, “Does it contain the word ‘fabricated’?”

Ishan hesitated.

“The client’s representative wanted it.”

“Remove it.”

“But the State has changed its language several times.”

“A change in language is evidence that the earlier wording was broad. It is not evidence of a knowing falsehood.”

Ishan fell silent.

Vidyanand said, “We will dismantle the State’s argument. We will not invent the State’s intention.”

“The client may be angry.”

“Let him be.”

The telephone vibrated again.

It was an automated bank notice—the instalment date was near.

Vidyanand switched off the screen.

Ishan looked at his face.

“Everything all right?”

Vidyanand said, “The arithmetic at home is difficult.”

“Then angering this client...”

Vidyanand stopped him midway.

“Difficulty at home does not permit a professional false statement.”

Ishan lowered his head slowly.

Vidyanand changed the first line of the response: “The State’s postulatory proposition is testable only within the declared limits of its sources; to extend it to an individual or to guilt would be unsupported by the record.”

He read it.

“That is sharp enough.”



At noon, the defence team’s internal meeting began.

Five senior advocates, three juniors, two technical consultants, and Vidyanand.

The first senior said, “The State is narrowing its claim. That is its weakness.”

Vidyanand replied, “Sometimes narrowing a claim is also a strength of method.”

The second senior laughed.

“Are you going to praise the State?”

“No. I am going to remain credible before the Court.”

The technical consultant said, “Service-key renewal could occur through an automated process.”

Vidyanand asked, “Is the renewal policy for that particular system on the record?”

“Partly.”

“Completely?”

“No.”

“Then write ‘could occur,’ not ‘that is what occurred.’”

The third senior asked, “The timing of the payment?”

“There are records of scheduled batch processing. The time alignment, by itself, does not prove purpose.”

“The custody gap?”

“There is an open one-minute gap. The State is not hiding it either. We will question the significance of that gap, but we will not call the hash identity false.”

The first senior said irritably, “At this rate there will be nothing left for the media.”

Vidyanand said calmly, “We are retained for the Court, not for the media.”

Silence spread through the room.

Ishan slid a small note toward Vidyanand: “Another message from Shailaja ji.”

Vidyanand looked at the note and put it in his pocket.

The meeting continued.



At one in the afternoon, Devvrat Sinha and Mrinal Dhar returned to the language of the supplementary position paper.

Mrinal read the first draft: “For consistency among the available established facts, a coordinated operational arrangement appears necessary.”

He struck out the word “coordinated.”

Devvrat asked, “Why?”

“‘Coordinated’ casts the shadow of human direction. The sources show only a functioning arrangement.”

The new sentence read: “For consistency among the available established facts, a minimum functioning operational arrangement appears necessary.”

Devvrat said, “Now add the condition to ‘necessary.’”

Mrinal wrote: “Unless a record-supported alternative arrangement can explain the same set of events equally well.”

Devvrat asked, “Can this become the Court’s language?”

“We will not put words into the Court’s mouth. It can be the State’s limited submission.”

The second paragraph read: “At this stage, no conclusion is sought as to individual identification, ownership, purpose, or guilt.”

Devvrat said, “Move this line to the opening page.”

Mrinal asked, “That prominently?”

“Yes. A limit is not a footnote.”

The third paragraph set out the adverse facts—the possibility of automated renewal, scheduled payment timing, the custody gap, and the absence of individual identification.

Mrinal said, “If the State itself writes down its adverse material, the Court will understand that we are not turning postulation into a story-making device.”

Devvrat replied, "And the defence will understand that we are not enlarging the next request without hearing its alternatives."

Mrinal asked, "The material whose privilege is disputed?"

"What the open facts cannot prove on their own will not be imposed upon the defence through hints from sealed material."

"The investigation diary?"

"Direction. Not evidence."

"Failed directions?"

"Preserved. They too are part of the method."

Mrinal smiled.

"In this case, the failures are becoming more useful."

Devvrat said, "Because they show the boundary."



At half past two, seven pages of revised comments from the Attorney General's office reached the Ministry.

The Law Secretary called Aditya in.

"The two senior law officers have suggested three principal changes."

"The first?"

"The person-level prohibition on the first page."

"The second?"

"Replace 'coordinated operation' with 'minimum functioning arrangement.'"

"The third?"

"With every request for additional records, state the testable question."

Malini said, "That matches our table."

The Law Secretary asked, "There is also a fourth comment."

"What?"

"Where the State's testing of alternatives is incomplete, do not write 'necessary'; write 'minimum proposition under testing.'"

Aditya was silent for a few moments.

"That is more accurate."

Minister Shiveshwar Prasad came in.

He heard the last line.

"So we are going to diminish the name of our own proposition?"

Aditya said, "Yes."

The Minister asked, "How will that look politically?"

The Law Secretary smiled.

"Not very attractive."

The Minister said, "Good."

He looked at the revised page.

"My only concern is that the Court must not think the State is changing words merely to conceal the same broad conclusion."

Malini said, "That is why we have retained four columns: old language, new language, reason, and evidentiary effect."

The Minister said, "Do not remove that table."

Aditya replied, "It will remain."



At three, Vidyanand stepped onto the small veranda outside his chamber.

He telephoned Shailaja.

"I saw the copy of the bill."

Shailaja said, "I did not want to trouble you in the middle of a meeting."

"Trouble does not alter facts."

A soft laugh came from the other end.

"Are you in court, or speaking to me?"

"The habit is the same in both places."

"The bank instalment?"

Vidyanand was silent for a few moments.

"Two payments are held up. I will arrange it."

Shailaja asked, "Is that big client pressing you again?"

"Yes."

"What does he want?"

"A sentence I cannot prove from the record."

Shailaja said, "Then do not say it."

Vidyanand gripped the railing.

"So simple?"

"A crisis at home asks for money, not your name."

For a long while Vidyanand said nothing.

Shailaja continued, "The day you sell your name to bring home money, the crisis will not become smaller."

Vidyanand closed his eyes.

"You are right."

"Work now. We will look after the home together."

After the call ended, Vidyanand stood on the veranda for a few moments.

Then he went inside and changed one more line in the response: "The criticism of the expansion of the State's proposition is based on its source-relative limits, not on intention."

Ishan read it.

"The client will not like this line."

Vidyanand said, "The Court possibly will."

◆
At half past three, a scheduled record-exchange meeting took place between counsel for the State and the defence.

It was not a judicial hearing.

Its purpose was to narrow the list of disputed words and sources before the next filing.

Mrinal Dhar said for the State, "We have removed the phrase 'coordinated operation.'"

Vidyanand asked, "Why?"

"The sources do not prove human coordination."

Vidyanand said, "That is a proper correction."

One of the defence seniors looked at him as though he had not expected agreement.

Devvrat said, "We are also expressly not seeking a person-level conclusion."

Vidyanand asked, "Then why the additional records?"

Aditya replied, "To test the minimum system-level proposition."

"What proposition?"

Malini pushed the table forward.

"The recorded sequence of events appears inconsistent without a minimum functioning arrangement—that is the proposition under testing. If an alternative ordinary operational arrangement is available, it is to be tested against that."

Vidyanand asked, "And if the complete record for an alternative is not within our side's control?"

Devvrat said, "Then no adverse inference from non-production follows automatically."

"In writing?"

"Yes."

Vidyanand read the paper.

"And sealed material?"

Mrinal said, "A burden that the open facts cannot carry on their own will not be placed upon the defence by hints from sealed material."

For the first time, Vidyanand looked up from the paper.

"Then the dispute has narrowed."

Devvrat said, "A narrower dispute saves the Court's time."

Vidyanand replied, "And sometimes makes the boundary of truth clearer."

Aditya listened in silence.

It seemed to him that at that moment neither side had won.

But some needless smoke had cleared.

◆
As soon as the meeting ended, the defence client's representative stopped Vidyanand separately.

"You conceded far too much of what the State said."

Vidyanand said, "To oppose what the record accurately establishes would be foolish."

"We retained you to defend us."

"Yes. Not to lie."

The representative's voice hardened.

"For this fee, I expect every line of the State's case to be broken."

Vidyanand replied, "What breaks, I will break. What stands, I will show its limit."

"And if we want a more aggressive senior?"

"That is your right."

The representative was silent for a few moments.

"Do you not need the money?"

Vidyanand's face hardened for an instant.
At once he remembered Shailaja's message, the bank instalment, the held-up payments.
But his voice did not change.
"Need does not set the price of professional honour."
The representative left without replying.
Ishan stood two steps away.
"Mr Mishra..."
Vidyanand said, "Nothing."
"But..."
"This is the profession. Sometimes the fee survives; sometimes the name does."
He gathered the response papers together.

◆
At five in the evening, the final supplementary position paper was ready at the Ministry.

Five lines stood clear on the first page.
"One—the State seeks limited testing at the system level."
"Two—no conclusion as to individual identification, ownership, purpose, or guilt is sought from these sources."
"Three—adverse facts and record-supported alternatives are attached to the principal summary."
"Four—each request for additional records is tied to a specified testable question."
"Five—confidential or sealed material is not a substitute for the absence of open evidence."
Malini read the page.
"This is shorter than all the previous position papers."
The Law Secretary said, "And more useful."
Minister Shiveshwar Prasad asked, "Approval from the Attorney General and the Solicitor General?"
"Subject to a condition. They have said: use 'necessary' only where the testing of alternatives is adequate; elsewhere write 'minimum proposition under testing.'"
The Minister said, "Retain that condition exactly as it is."
Aditya said, "Yes."
The Minister signed the paper.
"This is not a victory paper for the State."
The Law Secretary replied, "No."
"Good. Then send it."
The secure transmission was logged.
The supplementary position paper formally reached the offices of the Attorney General and the Solicitor General.
It was not the first submission.
It was a new, narrower question within the continuing representation.

◆
At half past seven in the evening, Aditya was reading the final copy in his office.

Malini said, "Today the State's claim became narrower again."
Aditya looked at her.
Malini immediately smiled and said, "Today."
Aditya smiled too.
"Yes, today."
"Sometimes it feels as though instead of moving forward, we are stepping back."
"Reaching the boundary is not stepping back."
"What, in the end, does postulation do?"
Aditya thought for a few moments.
"It raises the minimum proposition without accepting which the established facts cannot be understood together.
But the moment the proposition is raised, it does not thereby become a fact."
"And if three alternatives remain?"
"Then choosing a person among those three alternatives is not postulation; it would be an excess of inference."
Malini asked, "What might the Court ask tomorrow?"
Aditya closed the file.
"Possibly this—where does doubt end, where does allegation begin, and where is the limit of necessary explanation?"
Malini fell silent.
Outside, the darkness had deepened.
Aditya remembered the smell of the earth at the house in Garh Ain Arikel, the earth that softened of itself after drinking water.
He understood that some answers open not under force, but with time and the right question.
Just then, a new message came on the telephone.

The defence's supplementary response had been formally filed from Vidyanand Mishra's office.

Malini asked, "Sharp?"

Aditya read the first paragraph.

"Sharp. But within the record."

"Then tomorrow's hearing will be difficult."

"Good, if it is difficult. Easy answers are dangerous now."

Before switching off the light, he looked once more at the final table.

Some facts held at the system level. At the person level, a gap still remained. Adverse facts were on the main page. The alternatives were alive.

And the next question could no longer be deferred—where does doubt end, where does allegation begin, and how far can evidence travel?

064 The Turn of Postulation — Chapter 12

The first light of dawn was fading as it fell across the high walls of the court.

Aditya Jha stood in a corner of the veranda, reading once more the final page of the file.

At the top of the page were three words—doubt, allegation, proof.

Beneath them, in red pencil, Malini had added a fourth—postulation.

Malini came over and asked, “Where does this fourth word sit among the other three?”

Aditya replied, “Where a necessary explanation arises, but the proof is not yet complete.”

“Then before allegation?”

“Sometimes. Sometimes within an allegation. Sometimes only as a direction for investigation. The sequence is not fixed; the boundary must be.”

Malini opened the file.

On the first page was a summary of the replies to the previous three limited summonses.

One—a temporary service key had been active during a specified period.

Two—of five additional entries in the payment process, four lay outside the ordinary approval path.

Three—a building-entry register and the timing of a remote-meeting facility partially coincided on two dates.

Beneath all three points Aditya had written: “Individual identity unproved. Purpose unproved. Culpability unproved.”

Malini asked, “Today will the court place the witnesses’ statements alongside these three points?”

“Yes.”

“Manoj’s fear, Rajat’s money, Sudip’s remorse?”

“Yes. But emotion will not be made a bridge to individual identity.”

Malini remained silent for a few moments.

“Then the hearing will be difficult.”

Aditya said, “A difficult hearing is good. An easy conclusion is dangerous now.”



When Justice Arya took the bench, an unusual stillness settled over the courtroom.

Devvrat Sinha and Mrinal Dhar appeared for the State.

In the first row for the defence sat Vidyanand Mishra, Ishan, and two senior advocates.

Separate seats had been kept at the back for the witnesses.

Manoj Mahato sat farthest to the left.

Rajat Pal in the middle.

Sudip Ghosh farthest to the right.

Their faces were different, but all three bore the mark of a sleepless night.

Justice Arya said, “In the previous hearings, we defined separate limits of proof. Today the question is more difficult.”

She lifted a page.

“One fact may generate suspicion. Two facts may form a basis for an allegation. Several facts may sometimes point towards proof. But number, by itself, is not proof.”

Vidyanand nodded.

Devvrat opened his notes.

The judge continued, “Postulation too is not a machine for increasing the number of facts. Only the minimum condition without which the established facts cannot stand together will be raised.”

Mrinal said, “The State agrees.”

“And allegation?”

Devvrat replied, “An allegation arises when the available material provides sufficient ground to formulate a testable proposition against someone; but the allegation itself is not an established fact.”

The judge looked towards Vidyanand.

Vidyanand said, “The defence would add that the existence of an allegation does not reduce the burden of proof.”

“Correct.”

The judge set down her pen.

“Today we shall read the statements of three witnesses alongside the new external material. No witness’s fear, greed, shame, or remorse will be treated as proof of culpability. But the cause of that emotion may affect the memory, language, selection, and degree of certainty in the statement.”

Manoj rubbed his thumb against his forefinger.

Rajat looked down.
Sudip closed his eyes.
The judge said, "Manoj Mahato first."



Manoj came forward.

A thin file was placed before him.

Devvrat said, "The State's new material is confined to three points."

"Read them," said the judge.

Devvrat read the first point.

"Two incoming telephone signals were routed through an intermediary service group; the identity of the original user is unavailable."

The second.

"On the school-transport service computer, the route list was viewed through a support account; the identity of the user is uncertain."

The third.

"A separate support record has now been found showing that, on that day, at least one member of the external service team was active in a remote session; but full details of the subject of that session are unavailable."

The judge asked, "What does the State propose?"

Devvrat said, "If Manoj's statement is accepted as reliable—that the caller knew the school and the transport timing—then some source of that information was necessary. The new material places the school service among the possible sources, but does not make it the only source."

Vidyanand rose at once.

"And who used the support account?"

"Unproved."

"Who made the call?"

"Unproved."

"The same person in both instances?"

"Unproved."

"A connection with the accused group?"

"Unproved from this source."

Vidyanand sat down.

The judge looked at Manoj.

"Your first statement contained the name of the school and the bus time. A later statement added the class. Does that difference still remain?"

Manoj's throat went dry.

"Yes, My Lady."

"What do you now remember with certainty?"

Manoj was silent for a few moments.

"The name of the school. The bus time."

"The class?"

"I seem to remember it, but I would no longer call it a certain memory from the first day."

The judge gave a slight nod.

"That answer matters."

Manoj's eyes filled.

"I thought that if I took anything back, people would say I had lied."

The judge said, "Acknowledging the limits of memory is not proof that you lied."

Manoj's shoulders trembled.

"I was frightened that night."

"There is no dispute about the reality of your fear."

"But the cause of the fear?"

"That is precisely where the court is being careful."

Manoj drew a long breath.

"I want my family never to be pulled into this again."

Vidyanand's voice softened.

"You need say only as much as you remember."

Manoj looked at him.

For a few moments, the line between defence and State faded before human pain.



Malini opened a table on the display screen.

First row—"The caller possessed information relating to the family"—current level: statement, partial external context.

Second—"School service as a possible source"—level: testable possibility.

Third—"The specific support-account user was the caller"—level: suspicion.

Fourth—"That user was a member of the accused group"—level: direction of an unproved allegation.

The judge said, "The first row says 'partial external context.' Why not 'support'?"

Malini paused.

"Because the existence of the service session does not prove that the information was actually transferred."

"Correct. Keep 'context.'"

Devvrat said, "The State agrees."

The judge said, "No leap is to be made between these four rows."

She closed Manoj's file.

"Fear may be a fact of experience; identifying the object of fear is a separate question."

Manoj returned to his seat.

As he sat, for the first time he kept his hands still.



Rajat Pal's file was thick.

Financial records looked more solid than emotion, but they too came with limits of their own.

Mrinal Dhar rose.

"The five additional payments are undisputed. Four have no ordinary approval number. The fifth carries a routine adjustment marker, but the related approval document is unavailable."

The judge said, "What is new?"

Mrinal opened another record.

"The response from the payment-gateway service provider. All five payments passed through the same consolidated process path, separate from the ordinary payroll path."

Vidyanand rose immediately.

"A separate path is not an unlawful path."

"The State agrees."

"Was that path used for special incentives?"

Mrinal said, "At times, for exceptional adjustments."

"Lawful adjustments?"

"Possibly."

"Unlawful payments?"

"Not proved by this record."

The judge asked, "Then what is the postulation?"

Mrinal replied, "If the payments are real, fall outside the ordinary payroll path, and four lack regular approval numbers, the necessity of some alternative process or authority path arises. But the lawfulness of that path, its purpose, and the identity of the person authorising it remain separate matters for testing."

Vidyanand said, "And the defence says the exceptional adjustment path is itself the alternative process. The State has no need for expressions such as 'secret incentive.'"

Devvrat said, "The State withdraws the expression 'secret incentive.'"

A faint stir ran through the courtroom.

The judge picked up her pen.

"Record that. Fewer words do not mean fewer facts; sometimes they make the limits of the facts clearer."

Rajat suddenly raised his head.

His face had gone pale.

"My Lady..."

The judge looked at him.

"Do you wish to say something?"

Rajat drew a long breath.

"I received all five payments."

"That fact is on record."

"I had earlier said they were for special work."

"Yes."

"I now want to say—I was never told exactly what work they were for."

Devvrat remained silent.

So did Vidyanand.

The judge asked, "Why were you more certain before?"

Rajat's lips trembled.

"Because... I was ashamed. I thought that if I had taken money, the reason for it must also have been bad."

The courtroom fell still.

“And now?”

“Now I understand—I was greedy, but greed by itself did not give me knowledge of everything.”

His eyes filled with tears.

He wiped them at once.

The judge said, “Your moral remorse and your legal knowledge are separate questions.”

Rajat asked, “Then I am not guilty?”

Justice Arya’s voice remained steady.

“The court is not reaching such a conclusion now. What you received, what you knew, what you understood, and what purpose is proved—those are four separate questions.”

Rajat lowered his head.

“I understand.”

Vidyanand said quietly, “Say only what you remember with certainty.”

Rajat nodded once more.



Malini prepared Rajat’s table.

“Five additional payments”—established fact.

“Consolidated path separate from ordinary payroll”—fact supported by an independent service record.

“Regular approval number absent”—recorded absence for four payments.

“Alternative process path necessary”—minimum condition of postulation.

“Unlawful purpose”—unproved.

“Rajat’s knowledge of an unlawful purpose”—unproved.

“Rajat’s greed”—admitted human context; not independent proof of legal culpability.

The judge read the last row.

“Admitted’ is correct, but is ‘greed’ Rajat’s own word?”

Malini looked at Rajat’s latest statement.

“Yes, My Lady.”

“Then add the quotation reference. Do not turn an analyst’s adjective into evidence.”

Malini added it at once.

It was a small correction.

But she understood that a single adjective could sometimes alter the entire judicial direction.



During the midday recess, Ananya Kashyap stood in the court veranda looking through her notes.

A message came from the newsroom—“Secret payment channel exposed?”

Ananya replied—“The State itself withdrew the word ‘secret’ in court.”

Another message—“Then ‘separate payment channel?’”

“Yes, but write that unlawful purpose is unproved.”

A third—“Rajat admitted greed?”

Ananya wrote—“He said, ‘I was greedy’; that is a moral self-assessment, not an admission of guilt.”

The editor replied—“The headline will become heavy.”

After a moment Ananya wrote—“If the facts are heavy, why should the headline be light?”

She switched off the phone.

At the other end of the veranda Manoj sat alone.

Ananya did not go over to him.

Sometimes a journalist’s discipline lies not in asking a question, but in withholding one.



After the recess, Sudip Ghosh came forward.

Two facts from the previous hearing remained in his file.

Independent support for building entry on two dates.

The time of the meeting facility partially coincided with those periods.

But “‘R.S.’ = Raghav Sethia” remained unproved.

And the unlawful purpose of the meeting remained unproved as well.

Today there was a new record—a limited technical response from the remote-meeting service provider.

Malini read, “On two dates, a temporary invitation token was active. Organiser identity is not preserved in the provider’s current records. The participant list is partial. No explicit entry under the name ‘R.S.’ is available.”

The judge asked, “Then what is new?”

Malini said, “The facility-session times now align more clearly with the meeting times described by Sudip.”

“Was Sudip present in the meeting?”

“Building entry and session time together make that possibility more consistent, but there is no direct record of participation.”

Vidyanand rose.
 “‘More consistent?’”
 Malini stopped at once.
 “Would ‘consistent with’ be more appropriate?”
 The judge said, “Yes.”
 Malini corrected it.
 Devvrat said nothing.
 Sudip kept looking at her.
 The judge turned towards him.
 “You had mentioned the name ‘R.S.’”
 “Yes.”
 “Did you see that person?”
 Sudip’s face tightened.
 “I seem to remember hearing a voice.”
 “Your first statement?”
 The file was opened.
 The first statement said—“Heard the name ‘R.S.’ in the meeting; did not see the person.”
 The judge said, “Now a memory of a ‘voice’ is being added.”
 Sudip closed his eyes.
 “Yes.”
 “Why?”
 “I do not know.”
 “Did you hear anyone’s voice later?”
 Sudip remained silent.
 Devvrat said, “My Lady, the State record contains two later news interviews in which Raghav Sethia’s voice was broadcast.”
 Vidyanand immediately said, “That does not mean Sudip’s memory was constructed.”
 The judge said, “Correct. But the possibility will be recorded.”
 Sudip’s eyes filled.
 “I feel as though I am ruining everything.”
 The judge replied, “Memory can change. Accepting its limits is not ruining it.”
 Sudip’s voice broke.
 “I am remorseful.”
 “For what?”
 “For going to those meetings. For not asking questions. For seeing money move and remaining silent.”
 “Does that remorse now prove anyone’s name?”
 After a few moments Sudip said, “No.”
 “That the meeting was unlawful?”
 “I cannot say that with certainty now.”
 “Did you see anything that appeared improper?”
 “Yes.”
 “Specifically?”
 Sudip took a long breath.
 “Some account codes, some discussion of payments, some language about concealing names. But at the time I did not understand the meaning of all of it.”
 Vidyanand asked, “Do you understand it today?”
 “I can infer some things.”
 “Inference and memory are different?”
 Sudip nodded.
 “Yes.”
 As he said the word, something inside him seemed to break.
 And perhaps something also came together.
 For the first time, he gave a separate name to the inference inside his remorse, apart from memory.



Justice Arya remained silent for a few moments.

Then she said, “Write this line regarding the witness—‘Human guilt may increase the moral weight of a statement; its legal probative value depends on independent support.’”

Malini wrote it down.

The judge continued, “And one more line—‘A familiar voice heard later may affect identification in an earlier memory; because of this possibility, present certainty is limited.’”

Vidyanand said, "The defence agrees."
So did Devvrat.
Sudip returned to his seat.
As he sat, Rajat looked towards him.
Neither spoke.
Manoj held out a vessel of water to him.
Sudip took it.
In that moment fear, greed, and remorse were not judicial categories.
They were burdens inside three human beings.

◆
In the afternoon Justice Arya had a new summary prepared.
She said, "I am clarifying the sequence. This is not rigid mathematics; it is a path of caution."
First—facts established directly or independently.
Second—testable indications arising from those facts.
Third—suspicion produced by the coherence of those indications.
Fourth—where sufficient basis exists, a clear allegation against a person.
Fifth—where established facts cannot stand together without accepting some minimum condition, a limited postulation.
Sixth—independent support, testing of alternative arrangements, source reliability, and legal admissibility.
Seventh—only then a conclusion of proof, and that too confined to the specific proposition proved.
Vidyanand rose.
"My Lady, the State must not use this sequence as a staircase—as though suspicion naturally becomes allegation, and allegation naturally becomes proof."
The judge said, "Correct. This is not a staircase. These are separate chambers. A fact does not move from one chamber to another by itself."
Devvrat said, "The State accepts that terminology."
Malini asked, "Where does postulation sit?"
"Postulation is a separate chamber," said the judge. "Sometimes before suspicion, sometimes after. But its subject-matter will remain minimal."
"And allegation?"
"A person-specific allegation requires person-specific grounds. A system-level postulation may not be smuggled into a person-level allegation."
Aditya's pen stopped for a few moments.
That single sentence gathered within it the confusion of many previous weeks.

◆
Mrinal Dhar opened the payment-gateway table again.
"The State wishes to raise one limited question."
The judge permitted it.
"Five additional payments, a separate process path, and the absence of regular approval numbers in four—does that not provide sufficient basis to say that Rajat's payments were outside ordinary policy?"
Vidyanand said, "Outside ordinary policy—yes, perhaps. Improper—a separate question. Unlawful—separate. Directed by the accused group—separate."
The judge asked, "What does the State seek?"
Mrinal said, "Only that 'departure from the ordinary process' be recorded as an independent fact."
Vidyanand examined the record for a few moments.
"For four payments, yes. The fifth contains a routine adjustment marker."
Mrinal said at once, "Correction accepted."
The judge said, "This is why precision is necessary. 'All five payments outside the ordinary process' would be too broad."
Malini changed the line.
"Four lack the regular approval path; the fifth carries a routine adjustment marker, with the related approval document unavailable."
"Correct."
Rajat listened from the back.
There was no relief on his face, only exhaustion.
The truth was not declaring him innocent.
But it was confining the shape of his guilt to its actual limits.

◆
Aditya noticed a new point in Sudip's file.
He passed a slip to Devvrat.

Devvrat sought the court's permission.

"There is one nuance regarding the overlap between session time and building entry."

"State it," said the judge.

"On one of the two dates, building entry was at 6:42 p.m. The meeting session ran from 6:15 to 7:05. On the other date, entry was at 5:58 and the session from 6:02 to 6:49."

Vidyanand asked, "Is it proved that Sudip was present at the beginning of the session on the first date?"

"No."

"Or that on the second date he heard the contents of the session?"

"No."

"Only time-consistent presence in the building?"

"Yes."

The judge said, "Then write 'present in the building during the time of the meeting session' instead of 'present at the meeting.'"

Malini corrected it.

Sudip lowered his face again.

A small verb had changed.

But within that verb lay the entire limit of the evidence.

◆
In the final part of the hearing, Vidyanand Mishra rose.

"My Lady, the defence wishes to place a broader objection on record."

"State it."

"When many things in this matter are placed together, the story becomes compelling—fear, additional payments, meeting times, a service key, deleted mail material, an external payment path. But a compelling story is not necessarily a proved story."

Devvrat rose.

"The State does not dispute that sentence."

For a moment Vidyanand looked surprised.

Devvrat continued, "The State's only objection is this: it would also be improper to call each item weak in isolation and thereby erase every relationship among them."

The judge said, "Both propositions may be true. The whole must be considered, but source independence and subject-matter limits must not disappear within the whole."

Vidyanand said, "Agreed."

He sat down.

Ishan whispered into his ear, "Today there was less argument and more boundary-making."

Vidyanand replied, "A good argument is one in which the boundary becomes clear."

◆
Before writing the order, Justice Arya looked towards all three witnesses.

"The court wishes to make one thing clear."

Manoj, Rajat, and Sudip all raised their heads.

"Your experiences are the human part of this case. But the court will not substitute your fear, shame about money, or remorse for proof of anyone's guilt."

Manoj's eyes filled again.

Rajat bit his lip.

Sudip remained still.

"Equally," the judge said, "your statements will not be discarded merely because of those emotions. Each statement will be tested by its source, timing, external support, and the limits of memory."

Rajat asked, "Then what we say has value?"

The judge replied, "Yes. But not equal value, and not value without limits."

Sudip said quietly, "Can justice be only this much?"

The judge remained silent for a few moments.

"Sometimes justice begins with only this much."

◆
A brief portion of the order was read out.

"One—the minimum condition that there was some source for the caller's information about Manoj's family is acceptable; the specific source and individual identity remain unproved."

"Two—four of Rajat's payments lack the regular approval path; the fifth carries a routine adjustment marker. Unlawful purpose remains unproved."

"Three—Sudip's presence in the building during the meeting-session times on two dates is consistent with external records; the contents of the sessions, the identity of 'R.S.', and any unlawful purpose remain unproved."

"Four—emotional state may form part of the context of a statement; it is not independent proof of guilt."

“Five—postulation extends only to the minimum necessary condition; a person-specific allegation requires separate person-specific grounds.”

“Six—the State and the defence shall, in all further submissions, place suspicion, allegation, testable proposition, independent support, postulation, and established fact under separate headings.”

Vidyanand asked, “My Lady, what is meant here by ‘established fact’?”

The judge said, “At this stage, only a fact that is undisputed or established by the court’s limited finding on the material presented. Not a final finding of criminal guilt.”

“Grateful.”

Devvrat too bowed his head.

◆
When the court rose, the three witnesses came out into the same veranda.

For a few moments none of them spoke.

Manoj spoke first. “I thought that because I was afraid, I was weak.”

Rajat said, “I thought that because I had taken money, I must have known everything.”

Sudip said, “I thought that because I felt remorse, I ought to remember everything clearly.”

The three fell silent again.

Manoj said quietly, “The court said it does not work like that.”

Rajat smiled bitterly.

“The court is harsher than our own minds.”

Sudip replied, “And perhaps kinder.”

The three smiled faintly.

It was the first natural smile among the three men in many weeks.

◆
Ananya wrote the first line of her report—

“The High Court today clarified that fear, shame relating to money, and remorse neither make a witness automatically unreliable nor automatically prove anyone’s guilt.”

She wrote a second line—

“The court kept system-level postulation separate from person-level allegation.”

The editor called.

“Headline?”

Ananya said, “Write: ‘Doubt, Allegation and Proof: The High Court Draws a New Boundary.’”

The editor asked, “Will that attract readers?”

Ananya said, “We report the news. We do not manufacture the conclusion.”

She ended the call.

◆
The evening meeting at the ministry was brief.

Shiveshwar Prasad read the order.

“Has the State’s position become stronger?”

Suchitra Rai looked towards Aditya.

Aditya smiled.

“The limits of some facts have become clearer.”

The minister said, “Was I asking the same improper question again?”

“The question is natural,” Aditya said. “The answer must remain careful.”

The minister read the fifth point of the order.

“A person-specific allegation requires separate person-specific grounds.”

He placed his thumb on the paper.

“This line must appear on the first page of every further submission.”

The Law Secretary said, “It will.”

“And political statements?”

“None.”

The minister said, “Good.”

He stood up.

◆
That night Aditya was alone in the office.

Before leaving, Malini had left behind a new table.

Six headings.

Suspicion.

Allegation.

Testable proposition.

Postulation.

Independent support.
Established fact.
And a seventh, smaller column—“What remains unproved.”
Aditya kept his eyes on the seventh column for some time.
Then an old formulation of Gangesha Upadhyaya came back to him—to understand a thing, one must know not only what is present, but also the precise limits of its relation.
He opened the window.
The city night was warm.
There were clouds somewhere in the distance, but no rain.
He remembered the house in Garh Ain Arikel.
Before the monsoon, when the first drop fell on dry earth, a fragrance rose; but one drop did not mean the field had been irrigated.
Aditya felt that suspicion was like that first drop.
An allegation, perhaps, was the direction of the clouds.
Proof came when the earth could actually be seen to have grown wet.
Postulation?
He wrote on the paper—
“The minimum acceptance of what must be assumed for the facts to stand together; not the fulfilment of what the mind wishes to find.”
He put down the pen.
The court’s next cause list arrived on his phone.
A new, limited question of privilege.
Copies of pre-existing business records, selection of lawyer communications, and the right to test alternative arrangements.
Aditya read the line.
The postulation section was moving towards its final turn.
The next hearing would once again ask—where does necessity end, and where does entitlement begin?

o65 The Turn of Postulation — Chapter 13

Before dawn, Aditya Jha reached the office.

Outside the window the city sky was grey; inside, seven files marked with seven colours lay on the desk.

Malini Karn was already there.

She had prepared a new chart.

First column—pre-existing business records.

Second—copies placed within lawyer communications.

Third—the lawyer's selection or ordering.

Fourth—mixed material.

Fifth—external independent sources.

Sixth—claim of privilege.

Seventh—what this does not prove.

Aditya read the chart.

“The last column is the most necessary.”

Malini asked, “Will the real question before the court today be this: how far does the State's authority extend in obtaining what postulation makes appear necessary?”

“Yes.”

“And does a document that already existed change its character merely because it was sent to a lawyer?”

“That question must be answered not by the word alone, but by origin and purpose.”

Malini lifted a page.

“This is a copy of a customer-identification ledger. The original copy was also found in the records of a payment-support institution.”

“Then the original fact can be tested from an independent source.”

“But in the lawyer communication only three lines have been selected and retained.”

Aditya said, “That selection may disclose legal thought. The meaning of the selection and the fact contained in the original record are not the same thing.”

Malini fell silent.

After a few moments she said, “Earlier I thought the question of privilege belonged to the document. Now I understand—it is a question of relationships within the document.”

Aditya smiled.

“Navya-Nyaya often asks the limits of a relation before it asks about the thing.”

When the hearing began in the High Court, Vidyanand Mishra set out a clear limit in his first sentence.

“My Lady, the defence does not seek to obstruct the State's lawful investigation.”

Justice Arya said, “Then what is the dispute?”

“The limit of the State's proposition that any pre-existing record, even after it has been sent to a lawyer, may be opened in full and without distinction.”

Devavrat Sinha rose.

“The State does not advance so broad a proposition.”

Vidyanand said at once, “Then we can dispose of half the dispute before we begin.”

A light laugh passed through the courtroom, but Justice Arya suppressed a smile and said, “The remaining half may be more difficult.”

She told the court secretary, “Put the chart up.”

Seven categories appeared on the screen.

The judge asked, “State, the first category—pre-existing business records?”

Devavrat said, “To the extent that such a record originated independently of lawyer communications, the State may seek its independent source.”

“The copy held by the lawyer?”

“If it is merely an identical copy, the existence of the underlying fact does not become privileged. But the context of the communication, the selection, any annotation, or the order are separate questions.”

Vidyanand inclined his head.

“Up to that sentence, I have no objection.”

Justice Arya said, “Very well. The second category.”

The court secretary brought the heading of the next category forward.

Malini opened her notebook.
Aditya's gaze rested on that small self-correction.
Care with words was not the work of one side alone.

◆
The second category concerned copies placed within lawyer communications.

Vidyanand said, "A large ledger contains five thousand entries. A lawyer selects only seven and asks the client questions about them. The original seven entries may be available from an independent source; but the choice of those seven reveals the legal question the lawyer was considering."

Devavrat said, "The State is not asking for the reason for the selection."

"But if the State seeks the complete communication, the selection is disclosed automatically."

Justice Arya asked, "Can the State's need be met without seeing the selection?"

Aditya rose.

"My Lady, in most situations, yes. The original records can be obtained from the independent custodian, and the time, account, amount, and source can be tested."

"Most?"

"In some situations the original source may be unavailable or incomplete. Then the State's question may be different; entitlement does not arise automatically."

Justice Arya said, "Record this distinction—necessity does not create entitlement; necessity may only create a question for judicial examination."

Malini wrote quickly.

Vidyanand said, "That sentence reduces my principal concern."

◆
The argument became sharper over the third category—the lawyer's selection and ordering.

One of the State's counsel said, "What if the selection itself became a means of concealing facts?"

Vidyanand answered directly, "Then first show an independent basis for that contention."

"To find that basis, it may be necessary to see the selection."

"That is circular reasoning—the selection is suspicious because it has not been seen, and it must be seen because it is suspicious."

Justice Arya looked towards Devavrat.

Devavrat said, "The State will not rely on that circular argument."

He signalled to Aditya.

Aditya said, "We have independent time records, payment-gateway paths, the period of service-key activation, and records from two external custodians. Those materials raise certain questions. The questions can be asked without seeing the lawyer's selection."

"Then the need for the selection?"

"Not established at present."

The courtroom became utterly still.

Vidyanand looked at Aditya.

Then he said softly, "I like that answer, even though it comes from the mouth of a State officer."

Aditya said, "The limit protects both sides."

◆
The fourth category was mixed material.

One mixed record was placed before the court.

Justice Arya said, "This single record contains four kinds of material."

Counsel for the State said, "Forgive me, My Lady. The first part is a pre-existing customer-identification table, the second the lawyer's annotation, the third the client's response, and the fourth an external bank message."

Vidyanand said, "It would be inaccurate to give all of these the same colour."

"Then the remedy?" the judge asked.

Vidyanand spread the five fingers of one hand.

"The original pre-existing facts separately. The lawyer's legal annotation separately. The client's confidential communication separately. Material from the external source separately. And if any line is mixed, judicial examination at the segment level."

Devavrat said, "The State agrees—subject to one condition."

"What?"

Justice Arya looked towards Devavrat.

Devavrat said, "The defence will provide a minimal description of the nature of every withheld segment without disclosing legal strategy."

A light laugh rose again.

"The description will state the date, sender, recipient, and general nature," Devavrat added.

Vidyanand said, “Date, sender, recipient, general nature, basis of privilege—yes. A summary of the contents—no, where the summary would itself reveal strategy.”

Justice Arya said, “The limit will be written into the order.”

Malini thought—how much weight even one word, ‘summary’, could carry.

◆
The fifth category concerned external independent sources.

Malini was called to the witness stand.

Under oath she said, “I separated four source groups—the payment custodian, the identity-verification service, the service-computer time records, and external header information from electronic mail.”

Vidyanand asked, “Four source groups means four independent facts?”

“No.”

“Why?”

“The same event may appear in records held by several custodians; whether separate custodians establish independent origin requires a separate examination.”

“An example?”

“The payment custodian’s time and the service computer’s time may both be generated by the same automated process if both depend upon an intermediary service.”

“So, apparently two sources, but originally one?”

“Possible.”

“And you recorded that possibility?”

“Yes. In the source-relationship column.”

Vidyanand looked at the chart.

“This column was not there at the last hearing.”

“It was added after a new examination.”

“In other words, the State changed its method?”

Malini said, “Corrected it.”

Vidyanand was silent for a moment.

“To admit correction is not defeat?”

Malini said, “Preserving an inaccuracy is not victory.”

The courtroom fell silent again.

Justice Arya said, “That sentence will remain on the record.”

◆
The court became more cautious over the sixth category—the claim of privilege.

The judge said, “No adverse inference will arise merely because someone claims privilege.”

Devavrat said, “The State agrees.”

“Even if the number of privilege claims is large?”

“Even then, no.”

“If the claim is made late?”

Devavrat answered, “The reason for delay, custody, prior disclosure, and the applicable legal rules may be examined; but delay, by itself, is not culpability.”

Vidyanand said, “That is important to me.”

The judge asked, “The question of waiver?”

Vidyanand answered, “It depends on the specific material, the circumstances of disclosure, and the applicable rule. A broad inference would be improper.”

Justice Arya said, “Very well.”

For a few moments she looked at the papers.

“Do you understand why the question of postulation can become dangerous here?”

No one answered.

She answered herself. “Because the mind may say: ‘If I do not see this document, the story remains incomplete; therefore I must have the right to see it.’ But the incompleteness of a story is not a source of entitlement.”

Aditya remembered Gangesha’s formulation—otherwise-inexplicability tells us about necessity, not entitlement.

◆
Justice Arya herself turned to the seventh column—“What this does not prove.”

She said, “Every side will provide a limiting line with its proposition.”

Counsel for the State asked, “With every proposition?”

“With every significant proposition.”

“An example?”

Justice Arya lifted Aditya’s chart.

“Pre-existing payment record obtained from an independent source—it may support the fact of payment; not, by itself, an unlawful purpose.”

“Service key active—a possibility of system-level access; not, by itself, a particular person.”

“Copy present within lawyer communication—the presence of the copy; not, by itself, the client’s culpability.”

“Claim of privilege—a claim to legal protection; not, by itself, culpability for concealment.”

Vidyanand said, “My Lady, I especially welcome the fourth example.”

Justice Arya said, “The court writes for limits, not for welcome.”

Vidyanand smiled.

“Still, it is welcome.”



After noon, three small sealed packets were brought into the courtroom.

It was not the entire collection.

Only samples—a copy of one pre-existing business record, one mixed communication, and one selection list.

Justice Arya first asked, “Does the State seek to see these samples?”

Devavrat said, “Only for judicial classification; no permission is presently sought to use the contents adversely.”

Vidyanand said, “The defence has no objection to that limited inspection, provided the order makes clear that inspection is not proof of truth or culpability.”

“It will.”

The seals were opened.

For several minutes the court read in silence.

Malini kept her eyes lowered.

Aditya thought—how strange it was that curiosity was strongest about the very material for which the right to see was limited.

But method was not governed by curiosity.

Justice Arya closed the first packet.

“Pre-existing business table. The mere fact that this copy is with the lawyer does not make the underlying fact privileged. The State may obtain it from the original independent source.”

She closed the second packet.

“Mixed. Factual external attachments may be separated; the lawyer’s annotations and the client’s answers concerning legal advice will remain protected, if the applicable legal conditions are met.”

She paused longer over the third packet.

“Selection list. In this form, the selection itself reveals the lawyer’s legal concern. The State has not presently shown an independent basis for seeking it.”

Devavrat inclined his head.

“Accepted.”

Aditya wrote in his notes—“Not found.”

Then he stopped his pen.

Those words were like the shadow of the next section.



In the final part of the hearing, Justice Arya read out the points of the order.

“One—pre-existing business records do not lose their original character merely because they were sent to a lawyer; the State may seek them from an independent lawful source.”

“Two—a lawyer’s selection, annotations, ordering, or direct indications of legal questions will be subject to a separate privilege examination.”

“Three—mixed material will be classified at the segment level; a single colour will not be applied to the entire record.”

“Four—the claim of privilege, by itself, will not generate an adverse inference.”

“Five—for facts obtainable from independent sources, the State will first show reasonable efforts to pursue those independent sources.”

“Six—investigative necessity arising from postulation does not, by itself, create a legal entitlement to open protected communications.”

“Seven—every significant presentation will state expressly ‘what this does not prove.’”

“Eight—if material is not found after the expected independent source has been searched, it will not be enough merely to write ‘not found’; the scope of the search, time, custodian, method, and basis for the expectation will be recorded.”

At the eighth point, Malini suddenly looked up.

Justice Arya looked towards her.

“Ms Karn, absence too may become a fact, but only when the expectation that something should be present has been reasonably established.”

Malini said, “I understand, My Lady.”

At that moment the chapter was not changing; the centre of the method was shifting.

When the court rose, Ananya Kashyap stopped Vidyanand in the corridor.

“One question?”

“One.”

“A victory for the defence today?”

Vidyanand looked at her for a few moments.

“Today the limits became clearer.”

“A defeat for the State?”

“The limits became clearer.”

“That makes a poor headline.”

Vidyanand smiled.

“Then the chances of good journalism have improved.”

Ananya smiled too.

Aditya was coming out from the rear.

Ananya asked him, “What would you say?”

“That where an independent source is available, we will test the independent source.”

“And where nothing is found?”

Aditya paused before answering.

“First we will establish that it ought to have been found.”

Ananya’s pen stopped on that sentence.

That evening the meeting at the Ministry was kept short.

Shiveshwar Prasad read the order.

“Have the State’s hands been tied?”

Devavrat Sinha said, “No. The limits of the hands have been made clear.”

“The difference?”

“Tied hands do not work. Limited hands work within the rules.”

The Minister looked towards Aditya.

“You?”

“The State’s first task now is not to break through the wall of privilege. Its first task is to test fully the facts available outside that wall.”

“And if nothing is found outside?”

Aditya said, “Then before deciding what ‘not found’ means, we ask—where did we search, what was expected, why was it expected, and was the search adequate?”

The Minister read the eighth point of the order again.

“This sounds like the language of the next stage.”

“Yes.”

“The name?”

Aditya said, “Non-apprehension.”

Two days later Aditya had to go to Patna.

There was a coordination meeting with an old record custodian of the Ministry, but the meeting ended by evening.

At night he went down to the bank of the Ganga.

The steps of the ghat were still releasing the heat of the day.

In the darkness the water did not look black; it looked deep.

Far away, a small lamp on a boat moved gently.

Aditya sat on the steps.

For many days the name of Gangesha Upadhyaya had arisen within him only as a formulation of judicial method.

Today, for the first time, the name came like the memory of an elder from home.

That tradition of Mithila in which an entire night could be spent over a subtle distinction between words; in which even between “is” and “is not” the conditions of proof were asked.

Aditya remembered his father.

After sowing seed in the field, he never went at once to look for a sprout.

First he waited for the conditions of soil, water, warmth, and time to be fulfilled.

The earth of Garh Aini Arikel had taught patience.

The water of the Ganga was placing that patience before him again in flowing form.

Aditya asked himself—when something is not visible, is it truly absent?

No answer came immediately from within.

He smiled.

That was exactly right.
No answer had come—to extract the meaning of that fact at once would not be Navya-Nyaya.
The first question had to be—was the answer expected to be found yet, or not?
The memory of Gangesha Upadhyaya seemed to stand within that question.
Perception said—see what is present.
Inference said—think of the relation through the sign.
Analogy said—understand the limit of resemblance.
Testimony said—how much does the sentence say, and how much does it not say?
Postulation said—if the facts cannot otherwise stand together, think of the minimum necessary condition.
And now a new current lay ahead.
What had not been found—when would its absence become proof?
Aditya kept looking at the water.
A wave touched the lower stone step and withdrew again.
For a moment the stone looked wet.
The next moment there was only darkness.
He opened his notebook.
He wrote—
“Before drawing meaning from absence, establish the expectation of presence.”
Beneath it, a second line—
“The silence of privilege is not the silence of culpability.”
A third—
“The meaning of what is not found in an independent source depends upon the adequacy of the search.”
He stopped his pen.
The distant lamp on the boat had become smaller now.
The night was deepening.
Aditya rose slowly.
The Ganga kept flowing.
The turn of postulation had not ended; it had shown its limit.
And just beyond that limit, the current of non-apprehension began.

066 The Edge of Non-Apprehension — Chapter 1

The light of dawn was spreading across Delhi's grey sky.

When Malini Karna entered Aditya Jha's chamber, she carried a table she had prepared the previous night.

Across the top, in bold letters, she had written: "Status of Unavailable Material."

Aditya asked, "How many entries?"

Malini said, "Twenty-seven."

"And in what states?"

Malini was silent for a few moments.

Then she said, "In twelve places the record was not found. In eight the response was inconclusive. In four an alternative arrangement is supported. In three the original line of inquiry has broken down."

Aditya took the table from her.

He read the first line.

"Record absent."

He looked up.

"Why this word?"

Malini said, "Two custodians reported that the record was not found."

"So its absence has been proved?"

Malini stopped short.

"No."

"Then?"

He picked up a red pen.

"Not found in the available records of the two custodians searched."

Aditya said, "The whole discipline of non-apprehension lives in the distance between those two sentences."

Malini sat down quietly.

Until yesterday, she had thought the difficulty of postulation began with what had not been said.

Today she understood: the difficulty of non-apprehension began with what had not been found.



The first dispute among the twenty-seven entries concerned a deleted mail message.

A month earlier the investigation diary had recorded: "The internal direction was probably in this message chain; the original message was not found."

Malini opened three sources.

First: the seized forensic image.

Second: the mail-service provider's response concerning its retention period.

Third: counsel's privilege log.

The forensic image contained part of the subject line, but not the original message.

The service provider had written that ordinarily deleted material could not be recovered after thirty days unless a prior preservation order had been in force.

The privilege log indicated two legal communications matching that subject line, but their contents had not been disclosed.

Malini said, "Then the material may be unavailable for three reasons—deletion, expiry of the retention period, or privilege."

Aditya said, "And a fourth?"

Malini thought again.

"It is also possible that we are looking in the wrong place."

Aditya said, "Exactly. If the expectation of presence has not been established, absence tells us nothing."

Malini added a new column to the table: "Reasonable expectation of presence."

Then a second: "Scope of search."

A third: "Time period."

A fourth: "Preservation status."

A fifth: "Alternative location."

A sixth: "Privilege/confidentiality."

A seventh: "Independent indication of deletion."

An eighth: "Limit of conclusion."

Aditya said, “Non-apprehension is not an empty space. It is the empty space that remains after these eight questions have been answered.”

By ten o'clock the High Court courtroom was full.

Before Justice Arya lay the sealed material, the investigation diary, the State's revised table, and the defence's objections.

Devrat Sinha rose.

“My Lady, in compliance with the previous order, the State has separately set out the status of the unavailable material.”

Justice Arya said, “I want to hear the word first. What does the State mean by ‘unavailable’?”

Devrat replied, “That within a defined scope of search, at a defined time, and by the method used, the record was not found.”

“Is that synonymous with ‘did not exist’?”

“No, My Lady.”

Vidyanand Mishra rose.

“That is our central objection. In several places the State's old diary read ‘not found’ as though it meant ‘was not there.’”

Aditya opened his copy.

“My Lady, the State has identified six such entries. In four, the language is being corrected; in two, further testing is required.”

Justice Arya asked, “An example?”

Aditya said, “An older version of a service key was not found in the local image. The diary said, ‘old key nonexistent.’ That overstates the evidence. The local image shows only the state of that device; an external key store, reconstruction, or a short-lived key may still have existed.”

Vidyanand said, “And on the basis of that earlier sentence, the State had said ‘the new key was deliberately created.’”

Aditya replied, “That conclusion has also been narrowed.”

Justice Arya was silent for a few moments.

Then she said, “Treat this as the first rule of non-apprehension: the limit of a search does not automatically become the limit of existence.”

Malini wrote: “Search-limit $\neq$ existence-limit.”

Vidyanand raised a second question.

“In the sealed material there is a name-tag for one individual. The State says no independent confirmation of that name was found in the open record. Does that non-apprehension make the name more suspicious, or less?”

A low murmur passed through the courtroom.

Justice Arya said, “State?”

Devrat replied, “The State seeks no adverse inference from that fact.”

Vidyanand said, “But the diary records: ‘Name absent from open sources; therefore possible alias.’”

Justice Arya looked toward Aditya.

Aditya rose.

“That line requires rewriting. Failure to find a name in open sources does not make an alias necessary. The scope of the search, transliteration of the name, time, country, and type of record all matter.”

“Then the present position?”

“Independent confirmation unavailable; identity unproved.”

Justice Arya said, “Good. To turn ‘not confirmed’ into ‘alias’, you need an additional basis.”

With her red pen, Malini wrote beside the old sentence in the diary-summary: “Non-apprehension does not become accusation.”

The third dispute arose from the privilege log.

Vidyanand said, “Entry 12 of the State's table says, ‘original message not found.’ But the original message is listed in our privilege log. The State has not seen its contents; calling it ‘not found’ is misleading.”

Mrinal Dhar said, “The State meant that it was unavailable in the open investigative collection.”

Vidyanand replied, “Then write that. Material withheld because of privilege and material genuinely unavailable are not the same category.”

Justice Arya agreed.

“Separate four classes—

One: searched for, but not found.

Two: there is an indication that it exists, but access is legally restricted.

Three: according to the custodian, the record was destroyed or the retention period expired.

Four: the search is inadequate, or an alternative location remains.
Even the first of these four does not, by itself, prove nonexistence.”
Malini kept writing.
Inside her, an old confidence was quietly collapsing.
For a month she had been seeing records in two colours: found and not found.
Now she could see an entire spectrum in between.

◆
During the recess, she stood alone in the courthouse veranda.

Aditya came up beside her.

“What happened?”

Malini said, “In two reports I wrote ‘absent’ where I should have written only ‘not found.’”

“Correct them.”

“But what if the defence says the analyst did not understand the meaning of the words?”

Aditya said, “Then the record will show that the analyst identified the error and corrected it.”

Malini looked at him.

“Does this seem like a small matter to you?”

“No.”

“Then why are you so calm?”

Aditya looked out toward the light beyond the veranda.

“Because a method breaks on the day an error is hidden. Once an error is recorded, it can become knowledge of the limit.”

Malini said nothing.

Aditya went on, “Respect for fact does not mean merely making the fact smaller. Knowing the limit of one’s own statement is also respect for fact.”

◆
After the recess the court turned to the investigation diary.

Justice Arya said, “Has the State retained the failed searches in the diary?”

Aditya replied, “It is doing so now. Two failed lines were omitted from the summaries of older entries; they remain in the original diary.”

Vidyanand said at once, “That is why we need the whole diary.”

Devrat objected.

“The complete diary contains source identities, unrelated third parties, and directions in an ongoing investigation.”

Justice Arya said, “Neither extreme is acceptable. The whole diary will not automatically be disclosed, and the State may not provide a curated summary containing only successful lines.”

She wrote something on the paper before her.

“A summary of failed searches shall be made available where the State draws an adverse meaning from the resulting non-apprehension. Sensitive details identifying sources or ongoing lines may be withheld, but not the existence of the failure itself.”

Vidyanand asked, “And if the failed line originated in a sealed source?”

“Even then, it shall be stated that the line arose, that external testing was undertaken, and what the result was. A summary of the original confidential statement will be required only where an effective answer to the adverse meaning is otherwise impossible.”

Mrinal Dhar wrote: “Confidentiality will not conceal the existence of failure.”

Justice Arya said, “Correct.”

◆
The argument then moved to the service-provider records.

The State relied on the fact that no access record had been found for a particular day.

Malini had earlier described that non-apprehension as “no human access.”

Vidyanand asked, “For how many days did the provider retain its logs?”

Malini replied, “Ninety days.”

“And after how many days was the summons issued?”

“One hundred and seven days later.”

The courtroom fell silent.

Vidyanand said only, “Then what does ‘not found’ mean?”

Malini replied, “The expectation of presence is not established. The retention period had already expired.”

“Then the absence of human access?”

“Unproved.”

Justice Arya said, “Put this example in bold in the record. A zero result from a search conducted outside the retention period does not prove absence within the retention period.”

Malini wrote in her notes: “Retention period changes the meaning of non-apprehension.”
Below it: “The silence of a question asked late is not the silence of the earlier time.”



The next entry was more difficult.

In the payment-aggregator records, the “decline reason” for a particular transaction had not been found.
The State’s earlier postulation had been: “The reason may have been deliberately removed.”

In a later response, the provider had written that the legacy system in use that year did not separately retain decline reasons at all.

Justice Arya asked, “How can deletion arise from the absence of something the system never generated?”

Devrat said, “It cannot. The State withdraws the earlier sentence.”

Vidyanand said, “That matters, because the phrase ‘deleted reason’ also appeared in the public report.”

Devrat replied, “A correction to the public report will be issued.”

Justice Arya paused for a moment.

Then she said, “Good. The correction should not remain confined to the copy before this Court. If the State’s earlier public language went too far, the revised public language must be equally clear.”

Malini looked up at that sentence.

Respect for fact was not merely a courtesy practiced inside a courtroom.

It also changed the weight of reputation, news, fear, and accusation outside it.



That afternoon a fresh sealed summary was placed before the Court.

It contained three items for which no independent external counterpart had been found.

First: an alias.

Second: the date of an alleged meeting.

Third: an alternative name for a payment route.

Justice Arya said, “What is the State’s position on these three?”

Devrat replied, “No independent confirmation for the first. The second has partial support as to time and place, but the identity of the person remains unproved. As to the third, there is similarity of name, but the custodial sources may depend on the same underlying fact.”

“Then where does non-apprehension carry meaning?”

Aditya replied, “In relation to the date of the meeting. If the building-entry records for the relevant period were shown to be complete and reliably preserved, the absence of an expected entry mark could carry limited meaning.”

Vidyanand immediately asked, “Has complete and reliable preservation been proved?”

Malini replied, “Partly. The building custodian says the main-entry log is complete, but the side-entry device was down for two hours.”

Justice Arya said, “Then not ‘the meeting did not occur.’ At most: ‘No expected mark was found in the main-entry log; the other-entry record is incomplete.’”

Malini wrote it down.

This time her hand was steady.

She was beginning to understand: a limited sentence was not a weak sentence.

A limited sentence was a sentence shaped to the dimensions of truth.



At the evening hearing, Justice Arya read out a preliminary test for non-apprehension.

“One: establish a reasonable expectation that the thing not found should have been present.

Two: the scope of the search must be adequate and defined.

Three: the time period must be relevant.

Four: the retention policy or record-creation method must be known.

Five: alternative locations or routes must, so far as possible, have been tested.

Six: material inaccessible because of privilege, confidentiality, or legal restriction must not be called ‘absent.’

Seven: an inference of deletion requires an independent indication.

Eight: the conclusion from absence must not exceed the limits of the search.”

She paused for a few moments.

“And nine: the investigation diary must not conceal failed searches and thereby manufacture a history of successful postulation.”

The courtroom was utterly still.

Vidyanand rose.

“My Lady, I would propose a tenth point.”

“Go on.”

“If an adverse meaning is to be drawn from non-apprehension, the defence must receive enough material to challenge the adequacy of the search effectively.”

Devrat Sinha said, “Subject to protection of sources, the State agrees in principle.”

Justice Arya said, "Add the tenth point."

At the top of the page Malini wrote: "Non-Apprehension Test: Ten Questions."

When the hearing ended, the Court made no final finding as to guilt, individual role, or the alleged offshore network.

The order was narrow.

The State would provide a fresh classification of the twenty-seven unavailable entries.

It would correct six overbroad sentences.

It would issue equally clear corrections to the language in two public reports.

The existence of failed investigative lines would remain preserved in the investigation diary.

Material withheld because of privilege would not be placed in the category "not found."

And if the State sought an adverse meaning from any non-apprehension, it would provide the defence with an adequate summary of the scope of the search, the time period, preservation, and alternative locations.

Justice Arya said at the end, "Silence too can be a fact; but first establish that there was reason to expect speech at that place."

As they came out of court, Ananya Kashyap stopped Malini.

"One line. Has the State's case become weaker?"

Malini thought for a few moments.

Earlier, questions like that had made her uneasy.

Today she said, "Some claims have narrowed; some questions have become clearer."

Ananya asked, "So did the State win today, or the defence?"

Malini replied, "Today no side won through words; the limits became clearer."

Ananya smiled.

"That headline won't sell."

Malini too gave a slight laugh.

"Then print it in small type."

Ananya closed her notebook.

"Sometimes truth survives longer in small type."

That night in the office, Malini reopened two of her old reports.

The first said: "Record absent."

She corrected it: "The record was not found in the material available within the defined search; nonexistence is not established."

The second said: "Deleted reason unavailable."

She corrected it: "The provider's system did not generate a record of the reason during that period; deletion is not supported."

Then she entered her own name in the correction log.

For the reason, she wrote: "Incorrect equivalence between non-apprehension and nonexistence."

Her hand stopped for a moment.

With that line, an old fear within her was also breaking.

An analyst's dignity did not lie in appearing flawless.

It lay in setting the weight of one's statement right.

Aditya had been watching from a distance.

He said nothing.

Malini herself closed the page.

Then she asked, "Sir, if something ought to be found, the search is adequate, preservation is sound, and alternative places have also been checked—then the fact that it is not found carries more meaning, doesn't it?"

Aditya said, "Yes. Then non-apprehension can acquire genuine evidentiary value."

"But absence too comes with limits?"

"All evidence comes with limits."

Malini looked out of the window.

Delhi night had spread across the city.

Among the lights of distant buildings, many windows were dark.

Some darkness meant the room was empty.

Some meant the lamp had been switched off.

Some meant the curtain had been drawn.

And in some cases she did not know what it meant.

She said quietly, "Seeing darkness, one cannot say there is nothing inside."

Aditya said, "Not until you establish a reasonable expectation that there should have been light inside."

Malini nodded.

That night, non-apprehension no longer appeared to her as emptiness, but as discipline.

And the copy of the Court's order, the investigation diary, the sealed summary, and the correction log lay together on the same desk.

The next morning Vidyanand Mishra was to receive a certified copy of that order.

Its effect in the pending special-leave matter would raise a different question.

But tonight, Malini read only one line again—

“Meaning arises from what is not found only when the expectation of finding it, the adequacy of the search, and the limits of absence are all established.”

067 The Edge of Non-Apprehension — Chapter 2

In the morning, a certified copy of the High Court's order lay open on Vidyanand Mishra's desk.

With a red pencil he had circled three lines—"reasonable expectation of presence," "adequacy of search," and "limits of absence."

Beside those three lines he had himself written—"weight of non-apprehension in the pending special-leave matter."

This was not a new special-leave petition.

The matter was already pending before the Supreme Court; the State's supplementary submission, the defence reply, and the limited dispute concerning sealed material were all proceeding within that same matter.

The only question now before Vidyanand was how the High Court's test of non-apprehension should be placed in that pending matter so that absent material was not made a substitute for evidence.

His junior counsel, Ishan, set down a bundle of papers and said, "Sir, the draft supplementary ground is ready."

Vidyanand raised his head.

Vidyanand smiled faintly. "Read it."

Ishan began: "The petitioner submits that numerous records are unavailable—"

Vidyanand raised a hand and stopped him.

"Not 'numerous.' State the number."

"Twenty-seven."

"Is the same claim being made about all twenty-seven?"

"No."

"Then even saying 'twenty-seven unavailable records' would be misleading. Give the categories of cause."

Ishan bent over the paper.

Vidyanand said, "A record that was never generated; one not found after the retention period expired; one not found because the search remained incomplete; one withheld on grounds of privilege; one technically inaccessible; one not found in the expected location despite an adequate search; and one absent along with an independent indicator of deletion—these are not the same thing."

Ishan kept writing.

Vidyanand continued, "If the cause is hidden inside the word 'unavailable,' silence appears uniform before the Court. But silence has different places of birth."

From the corridor outside came the soft sound of shoes and sandals.

Vidyanand's phone vibrated.

It was a message from Shailaja—an estimate of next month's medicine expenses.

He looked at it for a moment, then placed the phone face down.

The private worry was within him; its shadow should not fall upon the paper.

He told Ishan, "Write the heading: 'Limited Supplementary Ground Concerning Non-Apprehension in the Pending Special-Leave Matter.' Not a single phrase such as 'the State's evidence has collapsed.'"

Ishan asked, "The client wants sharper language."

"The client's anxiety is his right. The weight of the sentence placed before the Court is my responsibility."

By noon, the supplementary ground had been sent in advance to Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar.

On the first page Vidyanand set out five limited requests.

One—that where an adverse meaning was sought from non-apprehension, the category of cause should be stated.

Two—that the reasonable expectation of presence and the retention period should be made clear.

Three—that the defence should receive a summary of the scope of the search and the alternative locations examined.

Four—that material withheld because of privilege or confidentiality should not be described as "not found."

Five—that deletion should arise not from non-apprehension alone, but from an independent indicator.

Devvrat read the copy and looked toward Mrinal.

"The State should have no dispute with four of these points."

Mrinal asked, "And the fifth?"

"Not in principle with the fifth either. The dispute will be about how the examples are applied."

Mrinal opened his notebook.

"The service provider's ninety-day retention period?"

“There the State will not seek an adverse meaning. The old line has already been corrected.”

“The payment integrator’s decline reason?”

“The system did not generate a reason-record at that time. That too has been removed.”

“Building access?”

Devvrat said, “The expected marker is absent from the main-entry record; the side-entry device was down for two hours. The conclusion will remain limited.”

Mrinal turned the page.

“Then what kind of non-apprehension does the State actually intend to defend?”

Devvrat replied, “Two kinds. First—where, under the system’s ordinary design, a record ought to have been generated and an adequate search was conducted within the retention period. Second—where there is an independent computational indicator of deletion.”

“Up to personal culpability?”

“No. At most, up to a limited factual finding.”

Mrinal wrote on the paper—“Giving non-apprehension more evidentiary weight is not in the State’s interest; accepting a reliable limit is.”

Devvrat read the line and smiled.

“We will say that in Court.”

◆
The next day the pending special-leave matter was called before a two-judge Bench of the Supreme Court.

The appearance sheet was long, but at the outset the Bench made it clear that only the limited question of non-apprehension would be heard that day.

Vidyanand rose.

“My Lords, after the High Court’s order, I am placing a limited supplementary ground concerning five unavailable entries. This is not a fresh challenge; it is a supplementary submission on the limits of evidentiary weight within the pending matter.”

The senior judge on the Bench said, “Begin with classification. ‘Not found’ is not enough.”

Vidyanand read out the seven categories.

One—the item was never generated.

Two—the item may have been generated, but the retention period had expired.

Three—the search was incomplete or limited.

Four—the item exists, but is withheld because of privilege or confidentiality.

Five—the item is presently inaccessible for technical or custodial reasons.

Six—despite a reasonable expectation, an adequate search, the relevant time frame, and known preservation, the item was not found.

Seven—the item is absent and there is an independent indicator of its deletion or alteration.

The judge asked, “The State?”

Devvrat rose.

“The State accepts the basic structure of this classification. But the evidentiary value of categories six and seven will depend on context.”

“Naturally.”

The other judge on the Bench said, “And material in category four is to be called unavailable?”

Devvrat replied, “No. It should be described as ‘withheld/protected.’”

Vidyanand added, “Without that distinction, the defence bears a burden as though it must answer even for the absence of something it was never shown.”

The Bench took note.

“Very well. Now the examples.”

◆
The first example concerned the service provider’s access records.

Mrinal Dhar read the timeline.

“The summons went out one hundred and seven days after the relevant day. The provider retained access records for ninety days.”

The Bench asked, “Then what evidentiary value attaches to the fact that nothing was found?”

Mrinal replied, “None as proof of the absence of human access. At most this—that the record was unavailable when the summons was issued.”

Vidyanand said, “In the State’s earlier report, ‘no access record’ had been made to suggest that ‘human access was not established.’”

Devvrat immediately said, “The State has already corrected that language.”

The senior judge said, “A null result after the retention period has expired is not proof of a null presence earlier. That should not remain in dispute.”

Both sides agreed.

The judge added, “And in future filings, no table of non-apprehension will be accepted without the retention period.”

Across the courtroom, many pages turned at once.

The second example was the payment integrator’s reason for decline.

Vidyanand said, “The State had earlier treated the absence of a reason as suggestive of possible deletion.”

Devvrat replied, “The provider has now made it clear that the old system did not generate a separate record of the reason for decline. That postulation has been withdrawn.”

The Bench asked, “Deletion inferred from the absence of something that was never generated?”

“No.”

“Then write a general rule for this category—generation architecture first, non-apprehension afterward.”

Mrinal wrote it down.

Vidyanand was silent for a moment.

He knew that this admission was useful to the defence, but to call it “the State’s case has collapsed” would be as exaggerated as the State’s earlier language had been.

He said only, “All we ask is that the amended public record reflect this limitation as well.”

Devvrat replied, “The State agrees.”

The third example concerned building-access records.

The main-gate records had been preserved; the side-gate device was down for two hours during the relevant period.

The State’s sealed source gave the date of an alleged meeting, but there was no independent confirmation of a person’s identity.

Vidyanand said, “The name was not found at the main gate. It would be improper to say from that that ‘the meeting did not occur.’”

Devvrat replied, “The State no longer makes that claim. The present language is: ‘The expected marker was not found in the main-entry record; the record of other entry points is incomplete.’”

The other judge asked, “What use is to be made of this non-apprehension?”

Mrinal said, “It weakens support for the time and place of the alleged meeting; it does not establish that no meeting occurred, or that any particular person was absent.”

Vidyanand nodded.

“We have no dispute with that limited sentence.”

After a few moments’ thought, the senior judge said, “Appropriate. Put ‘appropriate’ on the record.”

A slight ripple of laughter passed through the courtroom, then subsided.

The fourth example concerned the contents of an email.

From an external provider, metadata was available showing time, sender address, recipient address, and message identifier, but not the original message content.

An old note in the investigation diary said—“Possibly an instructive message was deleted.”

Vidyanand said, “There is temporal proximity; the nature of the content remains unproved. What is the source of the word ‘instructive?’”

Aditya Jha rose from behind the State’s desk.

Devvrat sought permission.

Aditya said, “That word was an earlier investigator’s postulation. The external metadata says nothing about the subject matter of the content. The message content was not found in the forensic image, but the complete history of local storage is unavailable.”

The Bench asked, “Any independent indicator of deletion?”

“Not for this specific message.”

“Then the category?”

Aditya replied, “Technically inaccessible/incomplete search history; deletion not established.”

Vidyanand said, “That is the correction we required.”

The Bench directed—“Language such as ‘deleted instructive message’ shall be removed. The existence of metadata and the non-availability of content shall be stated separately.”

In the press gallery, Ananya Kashyap underlined that line twice.

Her news editor was already sending messages—“Deleted email?”

Ananya did not reply.

The fifth example was more difficult.

A system-configuration manual stated that every human administrative change ought to generate an immutable audit record.

The retention period was three hundred and sixty-five days.

The summons had gone out after one hundred and forty-two days.

The custodian had filed an affidavit stating that the complete export had been produced.

Two independent hash verifications showed that the exports matched.

No human administrative event record was found for the time of the specific change.

Vidyanand asked, "Alternative routes?"

Aditya said, "An automated task, a service key, another authorised process. Separate records exist for two of those."

"Then no human administrator?"

"No human administrative event was found in that specific audit path."

"No particular person was there?"

"That cannot be said."

"Why?"

"Because alternative technical routes remain possible; and the audit record marks human administrative action, not every possible mode of operation."

The senior judge said, "Here non-apprehension acquires evidentiary value, but its dimensions are only as large as the system's design."

Devvrat said, "The State agrees."

Vidyanand replied, "The defence will dispute it only if this limited absence is used to infer personal identity or purpose."

The Bench said, "It will not be."

For a few moments the courtroom was still.

For the first time that day, non-apprehension had become not merely a weakness, but an example of limited positive evidentiary value.

But its dimensions were enclosed within a clear boundary.



The Bench returned to the general test.

The senior judge said, "We find the seven categories useful, but we will add an eighth question."

Vidyanand inclined his head.

"Does the conclusion sought from non-apprehension exceed the nature of the system, the custodian, and the search?"

Mrinal wrote it down.

The other judge said, "And a ninth—if the defence identifies a genuine, record-supported alternative location, there shall be no adverse meaning until that location has been tested."

Devvrat said, "Acceptable."

Vidyanand asked, "Material withheld on grounds of privilege?"

"'Withheld' is a separate category. It is not non-apprehension."

"Confidential source?"

"The source may remain confidential; but where an adverse non-apprehension arises from that source, the question whether the defence must receive enough open basis to answer effectively will be considered separately."

Vidyanand said, "That is sufficient."

The senior judge removed his spectacles and placed them on the desk.

"No. One more point. In public discourse, the word 'unavailable' becomes a substitute for 'destroyed,' 'deleted,' 'concealed,' and 'never existed.' Both the State and the defence must avoid this linguistic laziness."

In the press gallery, Ananya looked again at her editor's message.

This time there was another: "Court questions deleted records?"

She switched off her phone.



The order was brief but significant.

No new petition was registered in the pending special-leave matter; Vidyanand's supplementary ground became part of the same pending record.

Within seven days, the State was to provide, for the five disputed unavailable entries, the category of cause, retention period, scope of search, and status of alternative locations.

Where material was never generated, its absence would not be used to draw an adverse meaning.

Where material was not found because the retention period had expired, that would not be treated as proving its absence at the relevant time.

A null result from an incomplete search would remain limited.

Material withheld because of privilege or confidentiality would not be described as unavailable.

If an expected record was not found after an adequate search, it might carry limited evidentiary value, but the conclusion would not exceed what the system itself was expected to produce.

An inference of deletion would require an independent indicator.

And in all public and judicial submissions, “not found,” “not generated,” “withheld,” “inaccessible,” “indicator of deletion,” and “absence supported” would be stated in distinct terminology.

At the end the Bench said, “This order contains no finding on the merits, on the role of any particular person, on ownership of the alleged offshore operation, on purpose, or on culpability.”

Devvrat said, “Grateful.”

Vidyanand too bowed.

He did not feel that he had won.

He felt only that five different meanings hidden inside one word were now acquiring separate names.

◆
Outside the Court, Ananya’s editor was not waiting; he was merely sending message after message.

“Another news outlet has already written—‘State cornered over vanished records.’”

Walking down the steps, Ananya began to reply, then saw the word “vanished” and deleted it.

She wrote—“Supreme Court lays down cause-based test for use of unavailable records; no finding on culpability.”

The message went.

The reply came at once—“Far too flat.”

Ananya stopped.

At the side of the steps, journalists were packing away their cameras.

She wrote again—“Shorten the headline: ‘Supreme Court sets limits on what “not found” means.’”

The editor wrote—“Will people open that story?”

Ananya replied—“If we write what is not in the order merely to get clicks, it ceases to be news.”

For a while there was no reply.

Ananya opened her notebook.

Beside the fourth example she had written—“Metadata exists; content does not; deletion unproved.”

Beside the fifth—“Limited value in absence of expected audit record; person unproved.”

Between those two lines lay the distance of an entire chapter.

In one, the reason something was not found remained unknown.

In the other, the expectation of finding it, preservation, adequate search, and the system’s design had all been established.

Truth spoke slowly, but not always in the same voice.

◆
That evening Ananya’s article was published.

The headline read—“‘Not Found’ Does Not by Itself Mean ‘Destroyed’: Supreme Court’s Cause-Based Test.”

The subheading—“Limited procedural order in pending special-leave matter; no finding on culpability, ownership, or personal role.”

Some readers commented—“This is a victory for the defence.”

Another wrote—“The State’s case has become stronger.”

Ananya read both and set her phone aside.

She had used neither the word victory nor defeat in her report.

That night her desire for sensation had not died completely.

The attraction of a quick, sharp, memorable headline always remains somewhere within a journalist.

But she was beginning to understand—the existence of an attraction and obedience to it are two different things.

Her professional dignity lay in recognising that attraction and refusing to follow it.

The discipline of words sometimes keeps one company even in solitude.

◆
At the same time, Devvrat Sinha’s brief report reached the Home Ministry.

Shiveshwar Prasad read—“Non-apprehension categories accepted; five entries reclassified; public language to be standardised.”

The Minister asked, “Will this make the State look weak?”

Mrinal Dhar replied, “Some claims will be reduced.”

“I was not asking about the State’s image. The Court’s trust?”

Mrinal said, “It will increase if we accept the limits.”

The Minister signed the report.

“Then accept the limits.”

For a few moments the room was silent.

The Minister then asked, “Why is the defence appearance sheet becoming so large for the next hearing?”

Mrinal said, “The group alleged to operate offshore is adding different senior counsel for different parties. The next list will have a very large team.”

The Minister closed the file.

“Whether the team is large or small—the State’s answer must remain only as large as the record.”

◆

Late that night, Vidyanand remained in his office looking over the next cause list.

Names of new senior counsel, instructions from different parties, new claims of privilege, new lists of unavailable records.

His phone vibrated again.

It was a message from Shailaja—"Do not worry about the medicines; arrangements were made today."

Vidyanand read it and closed his eyes.

He did not immediately have the courage to ask how the arrangement had been made.

Some non-apprehensions are professional; some are private.

But the Court's ten questions do not apply to private life.

He picked up the phone and called Shailaja.

"How was it arranged?"

An answer came from the other end.

Vidyanand listened for some time.

Then he said only, "All right. Tomorrow I will go myself."

After ending the call, he opened the Court's order again.

The final line read—"The meaning of absence shall not be extended beyond its cause, the expectation of presence, and the limits of the search."

He underlined it in red pencil.

Outside, the night was deepening.

At the next hearing, the team of lawyers would be larger.

The questions too would look larger.

But Vidyanand knew that method divides large questions into small, testable parts.

And non-apprehension, which people so often take for an empty space, had now become not a story, but a discipline of asking why.

068 The Edge of Non-Apprehension — Chapter 3

That morning, the Supreme Court's appearance sheet was thicker than on an ordinary day.

For different parties connected with the same alleged offshore operating group, senior counsel, junior counsel, instructing counsel, and technical advisers had entered their names line after line.

Vidyanand Mishra sat in his place, but the stack of papers before him showed not the size of his team, but the separate currents of argument.

Aditya Jha sat behind the State's counsel.

Beside him, Malini Karn had divided her notebook with three colours—"expectation," "search," "limit."

The number of people in the courtroom had increased, but Aditya did not let the pace of his breathing rise.

He had opened only a single page before him.

At the top was written—"Before asking about what was not found, ask the jurisdiction of the search."

He had taken that sentence from the order passed at the previous hearing.

But today it was to face its real test.



The Bench assembled.

Justice Arya glanced at the appearance sheet and then said, "The number of advocates does not increase the weight of the record. But if different parties have different questions, we will hear them."

Vidyanand rose.

"My Lady, the issue is connected not with number, but with the basis of non-apprehension."

Another senior counsel rose.

"The State writes in five places, 'the expected record was not found.' Our submission is—on whose knowledge of the system is that expectation based?"

A third counsel said, "And how far did the jurisdiction of the search extend?"

A fourth said, "If the original custodian was not before the State, how can silence in a copy-source be treated as absence from the original record?"

The fifth question was, "If retention periods differ, why should the same temporal standard apply to every system?"

The Bench looked towards Devvrat Sinha.

The Attorney General said, "The State will answer each of these questions separately, according to the record."

"No common answer?"

"No."

Justice Arya said, "Good. The first enemy of non-apprehension is generalisation."



The first dispute concerned a payment-service record.

An earlier State summary had said—"The administrative approval record for the specified period is unavailable."

Senior defence counsel asked, "Which locations were searched?"

Devvrat looked towards Aditya.

Aditya rose.

"In the seized forensic image, the local application records, the forensic copy of the available browser history, and the exported payment tables were searched."

"The service provider's original audit logs?"

"They were not then in the State's custody."

"Cloud-based prior versions?"

"No."

"Long-term archives?"

"No."

"Then what does 'the record is unavailable' mean?"

Aditya was silent for a moment.

"The record was not found in the sources that were in the State's custody and were searched."

"It was not in the original system?"

"I cannot say that."

"It was never generated?"

"Nor can I say that."

"It was deleted?"

"Not without an independent indication of deletion."

The senior Judge on the Bench said, “Then the sentence in the earlier summary was too broad.”
Devvrat said, “Yes. The State narrows it.”
Malini drew the first red line in her notebook.
She wrote—“A statement of non-apprehension is incomplete without a source-limit.”

A second defence team raised the question of a seized solid-state storage device.

“The State says that the specified instruction record was not found. Was the image complete?”

Aditya said, “The forensic image of the physical storage device is hash-verified.”

“That is not the question. Did the image contain every possible item of data available through the device?”

Before answering, Aditya looked towards Malini.

Malini opened the technical bundle.

“An image was taken of the readable area of the physical storage device. But volatile memory, external cloud sessions, remote service records, and material that was never copied onto the device were not part of it.”

Counsel said, “Then ‘complete image’?”

Malini said, “A complete image of the readable area of the physical storage device; not of the entire digital life surrounding it.”

Justice Arya asked, “Was that limitation stated in the first report?”

Malini turned a page.

“It was in the technical appendix, but not made explicit in the main summary.”

“Why?”

Malini was silent for a few moments.

“We had assumed that a reader of ‘complete image of the storage device’ would understand the limitation automatically.”

The Bench said, “A court will not read technical adjectives by assumption.”

Malini lowered her head.

“The proper correction would be—‘a hash-verified complete image of the readable area of the seized physical storage device.’”

Devvrat said, “The State accepts that correction.”

Defence counsel said, “Then the non-apprehension of the instruction record is limited to that physical source?”

Aditya said, “Yes, unless an independent source is separately connected.”

The third dispute concerned an alleged indicator of control.

The State’s table noted that no human administrative event log had been found for one period.

Defence technical counsel said, “No human event was found, but the service key was active. It would therefore be improper to say that human control was absent.”

Devvrat replied, “The State is not saying that human control was absent.”

“In an earlier oral submission, it was said that ‘there is no trace of a human administrator.’”

Devvrat looked towards Aditya.

Aditya rose.

“That sentence should have been technically narrower—‘no trace of human administrative action was found in the administrative event logs searched.’”

“Then human use was not impossible?”

“No.”

“Human use was proved?”

“No.”

“Automated use?”

“Possible; there is some support in separate service records.”

“Authorised use?”

“Technical permission is shown; legal or personal authorisation is a different question.”

The Bench said, “This answer respects the discipline of non-apprehension. From a missing event log, say only as much as that log would ordinarily have shown.”

Malini wrote—“The size of an absence = the size of the expected trace.”

The hearing entered its second hour.

Colour-tabbed record books lay open on the separate lecterns of the high-priced legal teams.

At times one senior counsel rose, at times another.

At times five minutes were spent deciding only whether the word “search” meant a full-text search or a search of indexed fields.

One counsel said, “The State’s search table says ‘all records.’”

Aditya said, “That line requires correction.”

“Why?”

“Because the search tool ran only over indexed and readable material. Encrypted, corrupted, unindexed, or external sources were not automatically included.”

“Then ‘all’ will be removed?”

“Yes.”

A stir ran through the courtroom.

Malini looked towards Aditya.

Such an admission could be presented in a public headline as weakness on the State’s part.

But Aditya’s face remained steady.

He repeated, “The limit of the conclusion must be the limit of the search.”

Justice Arya said, “The Court will treat this correction not as weakness, but as clarity in the record. But next time, the limitation must appear in the main summary.”

Devvrat bowed.

By then, two media headlines had already reached Shiveshwar Prasad’s office in the Home Ministry.

The first read—“Massive Legal Army for Offshore Group in Supreme Court.”

The second—“State Surrounded; Dozens of Senior Advocates Take the Field.”

The Minister placed the papers on the table.

A political adviser said, “We can say that hiring so many advocates itself shows how serious the matter is.”

The Minister looked directly at him.

“No.”

“But public perception—”

“The number of advocates is not proof of a crime.”

The adviser fell silent.

The Minister continued, “Nor is retaining an expensive legal team proof of guilt. Anyone has the right to defend himself.”

Mrinal Dhar, listening on the telephone link, said, “At the hearing, the State narrowed three sentences.”

Silence spread through the room again.

The adviser asked, “And if that gets out?”

Shiveshwar said, “Then it gets out.”

“The opposition will say the investigation has weakened.”

“If a sentence was too broad, making it smaller is not a weakness in the investigation; it protects the Court’s trust.”

He paused for a few moments.

“I do not want the Court’s language to preserve our hold on power. I want the State’s language to preserve the Court’s trust.”

Mrinal’s voice came through, “That is the line we will keep.”

The Minister said, “And no public statement will mention a ‘legal army,’ ‘siege,’ ‘fear,’ or fees.”

Back in court, the fourth issue concerned a missing sequence in a bank-like payment record.

The defence said that the State showed a three-day “zero” period, but the original custodian’s retention policy was event-based, not day-based.

Devvrat asked, “The basis?”

The defence produced an independent policy document, whose authenticity the State did not immediately dispute.

The policy stated that certain failed events were merged into an aggregated summary after a specified period.

Justice Arya asked, “Then what does the three-day zero mean?”

Aditya said, “If this policy applied during the disputed period, it would not be proper to say from the absence of the original event rows that the events did not occur.”

“Will the State change its table?”

“First, we will independently verify the period during which the policy was in force. If verified, yes.”

The defence said, “Our submission is only this—non-apprehension can sometimes result from the architecture of a system’s memory, not from the act of a party.”

Devvrat replied, “Agreed, if the system architecture is established.”

The Bench recorded—“Non-apprehension = act of the person: such a presumption is impermissible.”

The fifth dispute was more difficult.

Material for a specified week had not been found in an electronic correspondence account, though the metadata showed that the account was active.

The defence said, “An active account does not mean that correspondence occurred.”

The State agreed.

The defence continued, “Nor is there a deletion event in the metadata.”

The State agreed again.

“Then what is the basis for the State’s category ‘expected correspondence unavailable?’”

Aditya showed a list.

“In a separate meeting schedule there are three references—‘summary sent,’ ‘awaiting reply,’ and ‘resend attachment.’ Those references create an expectation that some communication existed.”

“Do those words themselves establish that the electronic correspondence account was the medium?”

“No.”

“Could there have been another medium?”

“Yes.”

“Then this non-apprehension?”

Aditya said, “An expectation of communication generally arises; non-apprehension in this specific correspondence account is not established.”

Malini changed the category in her table.

She struck out “absence from specific source” and wrote “communication expected; medium unproved.”

Vidyanand watched from a distance.

He understood that this small change in wording could alter the entire reach of an allegation.

During the midday recess, Devvrat, Mrinal, Aditya, and Malini sat in a small room.

Mrinal said, “The defence used five different advocates to expose the limits of five different sources.”

Aditya said, “Some of the limits are valid.”

“Some?”

“Yes. Some questions merely throw out possibilities, not alternatives supported by the record. Those will be marked separately.”

Malini said, “I want to make a new table.”

Devvrat asked, “Columns?”

Malini counted them off—“Expected item; basis of expectation; period; custodian; system; retention policy; locations searched; locations not searched; search method; technical limitation; privilege/confidentiality; alternative location; independent indication of deletion; permissible conclusion; prohibited conclusion.”

For a few moments the room was silent.

Mrinal smiled.

“Very long.”

Malini said, “Non-apprehension is a short word; its limits are long.”

Devvrat said, “Make it.”

Aditya added, “One more column—‘testing outstanding.’”

Malini wrote it down.

The table was becoming not an instrument for strengthening the State’s case, but an instrument for limiting the State’s sentences.

After the recess, the defence advanced a sharper proposition.

“If the State repeatedly narrows its own sentences, then all earlier postulations based on non-apprehension should be treated as unreliable.”

Devvrat rose.

“The existence of corrections does not automatically destroy every earlier conclusion; reconsideration is required to the extent that the basis has been affected.”

Vidyanand also rose.

“The defence is not asking that every conclusion be destroyed. But the correction log must show the real effect of each correction. It would be improper merely to change the words and leave the conclusion untouched.”

Justice Arya said, “On this point, the two sides are close.”

Dictating the order, she said, “The effect of a correction shall be classified in three categories—linguistic, evidentiary scope, and change in conclusion.”

Malini wrote again.

“If ‘all sources’ becomes ‘sources searched,’ that is not merely linguistic; the evidentiary scope changes.”

The Bench said, “Correct.”

“If ‘no human use’ becomes ‘no human event log was found,’ then?”

Aditya said, “The conclusion changes as well.”

“Then let that be explicit in the correction log.”

Devvrat said, “It will be.”

The size of the defence team was discussed explicitly only once inside the courtroom.

A junior State counsel whispered, “So many people on a single sentence.”

Aditya heard him.

He said quietly, “If a sentence contains five limits, five questions are natural.”

The junior counsel fell silent.

Aditya continued, “Pay attention to the question, not to the team.”

At that moment he remembered the fields near Gaurh En Arikel—five families’ water ran along a single embankment, but the height of the embankment determined how much water entered whose field.

The water was one; the limits were different.

Non-apprehension too was one word, but its meaning changed from source to source.

◆
Towards evening, the Bench pronounced its order.

First—the State shall file a “negative-search table” in which expectation, source, retention, search method, locations searched/not searched, technical limitation, alternative locations, independent indication of deletion, and limits of conclusion shall be separately stated.

Second—the phrase “not found” shall not be used without identifying the source-limit.

Third—the integrity of a hash-verified image of a physical storage device shall not establish the existence or non-existence of volatile, remote, or never-copied material outside that device.

Fourth—a record naturally lost because of a retention policy shall not be treated as an indication of deletion by a person unless there is an independent basis.

Fifth—the correction log shall identify the effect of every correction as “linguistic,” “evidentiary scope,” or “change in conclusion.”

Sixth—the State shall conduct limited testing of alternative locations supported by the defence record; endless searching on merely hypothetical alternatives is not required.

Seventh—no conclusion as to guilt, ownership, control, or purpose of any party, alleged operator, official, or specific person shall be drawn from this procedural order.

The Bench concluded, “There may be many advocates; the Court’s question remains one—what does the record say, and what does it not say?”

Silence spread through the courtroom.

◆
Outside the Court, the media were again counting the size of the legal teams.

“How many senior advocates?”

“How much in fees?”

“Is this a sign of fear?”

Ananya Kashyap closed her notebook.

She wrote down no estimate of anyone’s fees.

She drafted the first line of her report—“Supreme Court seeks source-specific search table for unavailable records; no finding on guilt.”

A colleague said, “Such a large team—that itself is a headline.”

Ananya replied, “The team is an event; it is not evidence.”

“Will people read that?”

“Whether they read it or not, I will not write what the Court did not say.”

She walked away.

◆
At the Home Ministry, Shiveshwar Prasad read the evening report.

Three corrections were marked in red.

One—“all records” replaced by “indexed and readable material searched.”

Two—“no trace of human use” replaced by “no trace of human action in the administrative event logs searched.”

Three—“specific correspondence unavailable” replaced by “communication expected; medium unproved.”

A senior official said, “Minister, the opposition will use all three corrections.”

Shiveshwar said, “Let them.”

“The political cost?”

“The cost of the Court’s trust is higher.”

“But we are under pressure.”

The Minister placed his palm on the table.

“Pressure will not become the source of our sentences.”

He turned to the last page of the report.

“What has the Court asked for at the next hearing?”

The official read—“Scope of the original summons; limited inventory of the seized forensic image; purpose of hash verification; locations searched/not searched; retention policy; and explanation of time gaps in the chain-of-custody log.”

The Minister said, “Tell Aditya—not to write ‘does not exist’ for what is not there. Write the limits of the search for what was not found.”

“And what was found?”

“Write only as much as was found.”

When Aditya returned to the office that night, Malini had already prepared the first version of the negative-search table.

Aditya did not laugh at the sight of fifteen columns.

He read the first row.

“Expected item: original administrative approval record.”

“Basis of expectation?”

“System manual, but verification of the version date remains outstanding.”

“Good.”

“Locations searched?”

“Seized storage device, local exports, payment summaries received.”

“Not searched?”

“Original service provider, long-term archive, cloud prior versions.”

“Conclusion?”

Malini read—“The specified record was not found in the searched sources in the State’s custody; existence or non-existence in the original system is unproved.”

Aditya said, “Here the non-apprehension is honest.”

Malini asked, “Because it says less?”

“Because it says only as much as it knows.”

Outside, the night was deepening.

At the next hearing, Aditya would have to reopen the summons, the forensic image, the hash chain, and the chain-of-custody log.

But this time the question would not merely be whether material had been found.

The question would be—where the search had been conducted, what could have been searched, what had not been searched, and how much meaning the law permitted to be drawn from that silence.

Non-apprehension was no longer an empty space.

It was becoming a mirror that showed the limits of the search.

069 The Edge of Non-Apprehension — Chapter 4

The grey light of dawn was falling across the glass of the Delhi courthouse.

Aditya Jha did not count his papers again.

That day, limits mattered more than numbers.

One file contained the replies to the summonses.

A second contained the details of the forensic image of the seized storage device.

A third contained hash-verification records and the chain-of-custody log.

The fourth contained the negative-search table prepared by Malini.

Between those four files, one question sat in silence—how far could the silence of what had not been found be allowed to speak?

Aditya did not presume that he already knew the answer.

The answer would have to emerge from the record, not from his wishes.

When Justice Arya took the Bench, she first read the seventh point of the previous order.

“The State says that the phrase ‘not found’ will not be used without a source-limit.”

Devvrat Sinha rose.

“Yes, My Lady.”

“Then today we will hear the source-limits. Conclusions can come later.”

Mrinal Dhar opened the next page.

Justice Arya looked towards Aditya.

“Investigating Officer, the first summons.”

Aditya rose.

“My Lady, the first summons sought from the service provider the administrative-access records, records of creation and modification of service keys, and remote-event logs for the specified period.”

“The period?”

Aditya read out the dates.

“And the response?”

“According to the service provider’s written response, the ordinary retention period for administrative-access records was ninety days. The period sought was older than that. Limited records concerning creation of service keys were available; the complete remote-event logs were not.”

A senior defence counsel rose at once.

“In other words, the State’s ‘not found’ really means ‘no longer available with the provider’?”

Aditya said, “For that source—yes.”

“And not ‘it never existed’?”

“No.”

“Deleted?”

“Not without an independent indication.”

The first line became clear in the courtroom.

Silence produced by an expired retention period was not proof of non-existence.

Justice Arya asked, “Does the State then maintain its earlier sentence, ‘there is no administrative approval record’?”

Devvrat Sinha replied, “No, My Lady. The State narrows it to this—‘the specified approval record was not found in the available service-provider sources searched by and in the custody of the State; the long-term original source is unavailable.’”

A few papers shifted along the defence lectern.

One counsel did not smile.

He merely wrote.

Justice Arya said, “This correction alters evidentiary scope, not merely language.”

Mrinal Dhar said, “Yes.”

“Let it remain in the correction log in that form.”

“It will.”

Aditya felt no inward sting.

Once, at a moment like this, he would have thought that a smaller sentence meant a weaker investigation.

Now he understood—the more exactly a sentence matched the measure of the record, the stronger the method became.

◆
“Second question,” Justice Arya said. “The forensic image.”

Malini sat behind them.

Aditya replied, “A bit-level image was made of the seized solid-state storage device. The hash of the original device matched the hash of the image.”

“What does that prove?”

“That, at the time the image was made, the bits on the original physical storage device were the same as the material in the image; and that, up to the point of verification, no indication of alteration in the image was found.”

“What does it not prove?”

Without pausing, Aditya said, “It does not prove that all material from remote servers, cloud storage, volatile memory, active sessions, or other devices was present on that physical storage device.”

A second defence counsel rose.

“Then the phrase ‘complete forensic image’?”

Aditya replied, “A complete bit-level image of the physical storage device. Not of the entire system.”

“Was the meaning of ‘complete’ expressly defined in the earlier report?”

Aditya looked at the page.

“It was defined in the paragraph describing the imaging method; in one summary line, the abbreviation was ambiguous.”

A few seats shifted in the courtroom.

Aditya continued, “The summary line has been clarified to read—‘a complete bit-level image of the physical storage device.’ The original measurement, original hash result, and original scope of acquisition have not changed.”

“What is the effect?”

“A clarification of the technical limit; no change in conclusion.”

Justice Arya observed, “A hash speaks to integrity; it does not speak to the completeness of the entire digital environment.”

Neither side objected to that sentence.

◆
The third question concerned the limits of hash identity. Justice Arya opened the hash chain.

“Where will the State not use the hash?”

Aditya said, “A hash will not be used to prove truth of content, identity of an author, intention, legal ownership, or the completeness of an entire system.”

“Where will it be used?”

“To verify bit-level identity or integrity of the specified digital object or image.”

“And if two export files come from the same source?”

“They will not be treated as two independent confirmations unless their source provenance is independent.”

“Good.”

Sitting behind them, Malini remembered an old note of hers—two views from the same custodian are not two witnesses.

That rule cast its shadow over this test of non-apprehension as well.

Giving one silence five names did not create five independent absences.

◆
The fourth question concerned the silence in the chain-of-custody log and the time gap.

The four-minute discrepancy came before the Court again.

Between the time of one officer’s signature and the time of technical receipt by another, the seized material showed an excess of four minutes.

Senior defence counsel asked, “What happened in those four minutes?”

Aditya said, “The log does not separately describe activity during those four minutes.”

“Then you do not know?”

“Not from the log.”

“And from any other source?”

“The building-entry video shows the officer carrying the material along the route to the technical room. The room-access records are consistent with the time range. But whether any internal operation was performed on the device during those four minutes is not proved merely by that visual material.”

“Then the chain of custody was broken?”

Aditya paused for a moment before answering.

“There is a descriptive gap in the chain-of-custody log. To call the chain ‘broken’ would require an additional basis—alteration, unauthorised access, or some deviation in the integrity of the material.”

“The hash is the same?”

“The image hash matches the first verified hash taken after seizure.”

“Was a hash of the device taken before those four minutes?”

“No.”

Senior counsel said, “Then you cannot say that alteration during those four minutes was impossible.”

“I cannot.”

“Nor can you say that alteration occurred?”

“No.”

Justice Arya said, “Then the proper classification of this gap is—an unproved event, a recorded time discrepancy, and subsequent integrity verification?”

Aditya said, “Yes, My Lady.”

There was neither the pride of defence nor the fear of defeat in that answer.

There was only a limit.

Malini wrote in her notebook—“Gap = not tampering; gap = absence of detail.”

Then she struck out the line.

She wrote a new one—“Gap is not, by itself, tampering; but it is a testable absence.”

She was beginning to understand that non-apprehension could concern not only an object, but also a description.

Yet the meaning of a missing description also depended on context.

If the system was expected to record every minute separately, silence carried one kind of weight.

If the system recorded only transfer points, the silence carried another.

The Court was searching for the basis of that expectation.

After the four original questions had been tested, argument widened to the negative-search table.

Mrinal Dhar placed before the Court a table with fifteen columns.

The first row—original administrative approval record.

The second—the user map for the specified service key.

The third—the approval message for the specified payment event.

The fourth—the original content of a deleted email message.

The fifth—the remote-event logs.

Against every row were entries for “why expected,” “where searched,” “where not searched,” “retention policy,” “technical limitation,” “alternative source,” “independent indication of deletion,” and “maximum permissible conclusion.”

One defence counsel placed a finger on the third row.

“The approval message for the payment event was not found. Why was it expected?”

Malini was called to the witness stand.

She said, “One version of the system manual states that such a message is generated.”

“Was that version in force on the date of the event?”

“No. The verified version is from eight months after the event.”

“Then was such a message mandatory on the event date?”

Malini replied, “The record does not prove that.”

“Then what is the meaning of its not being found?”

“At present, no adverse meaning. The basis for expectation has not been proved to be temporally applicable.”

For a moment, the courtroom was silent.

Justice Arya asked, “Will the row remain in the table?”

Malini said, “Yes, but it will be marked ‘expectation unproved.’”

“Why not remove it?”

“Because a failed expectation is also part of the history of the investigation. If it is removed, it may later appear that the question was never raised.”

Justice Arya did not nod; she merely wrote.

The email-message row was more difficult.

An external metadata record showed the transmission time, recipient address, and message identifier.

The original content had not been found.

At one point, an earlier State file had said—“an instructional message was probably deleted.”

The defence stopped at that line.

“Why ‘instructional?’”

Devvrat Sinha replied, “The State withdraws that word.”

“Deleted?”

“The original content is unavailable. Neither the reason for its disappearance nor the person responsible for it has been independently proved.”

“‘There was a message?’”

“External metadata indicates a message event.”

“Subject?”

“Unproved.”

“Instruction?”

“Unproved.”

“Connection with the offence?”

“Unproved.”

Justice Arya said, “Then unavailable content will not be filled with imagined content.”

“Yes, My Lady.”

“And the metadata will be heard only to the extent that it speaks.”

“Yes.”



During the midday recess, the defence team went outside.

Some people were calling it a defeat for the State.

Some journalists were calling it the collapse of the case.

Ananya Kashyap did not go over to Aditya.

She watched from a distance.

Aditya was bent over the papers.

Malini was showing him something.

Together, they were quite literally making their sentences smaller.

Ananya wrote in her notebook—“State narrows two overbroad investigative conclusions; clarifies the limit of one technical description; Court makes the meaning of unavailable material source-specific.”

She did not write “case collapses.”

Nor did she write “State victorious.”

That day truth was becoming not a headline, but a boundary.



After the recess, the Court raised a new question.

“Investigating Officer, after all these corrections, which of your propositions survive?”

Aditya replied, “My Lady, three limited propositions.”

“First?”

“The material that was present on the seized physical storage device at the verified time has been preserved intact in a bit-level image.”

“Second?”

“Some expected records were not found in the searched sources in the State’s custody, but their original system-level existence, or the reason for their deletion, is not proved in every instance.”

“Third?”

“Where an external source supplies, together, a reasonable expectation of presence, an adequate search, a possibility of retention, and an independent indication, non-apprehension may raise a limited, testable question; it is not, by itself, guilt.”

Senior defence counsel asked, “And use by a particular person?”

“Requires separate proof.”

“Purpose?”

“Separate proof.”

“Control?”

“Separate proof.”

“Guilt?”

“Not without a judicial finding.”

Counsel sat down.



The evening order was short, but sharp.

First—the State shall file the corrected negative-search table within seven days.

Second—every statement of “not found” shall identify the source searched, the period, the retention policy, and any possible source not searched.

Third—hash identity shall be confined to the integrity of the specified object; it shall not be presented as proof of system-wide completeness, truth of content, or personal guilt.

Fourth—the four-minute discrepancy in the chain-of-custody log shall be described neither as “tampering proved” nor as “tampering impossible”; the available visual record and the subsequent hash verification shall each be read within their own limits.

Fifth—where a temporally applicable expectation remains unproved, no adverse meaning shall be drawn from non-apprehension.

Sixth—unavailable content shall not be filled with inferred content.

Seventh—nothing in this order is a final conclusion as to the guilt, ownership, control, or purpose of any particular person.

Justice Arya said at the end, “Non-apprehension is not nothing; but neither is it a story written upon nothing.”

The Court rose.



Outside, the evening rain was falling softly.

Aditya paused for a moment on the steps.

A junior defence counsel came up to him.

“You reduced two conclusions and clarified one technical sentence.”

Aditya said, “The record reduced them.”

“And yet you look pleased.”

“Not pleased. Clear.”

“Has the State’s case become weaker?”

Aditya looked beyond the awning.

“The parts that were larger than the record have become smaller. The parts that are in the record have become clearer.”

“Is that a victory?”

“For whom?”

The junior counsel did not answer.

Aditya said, “If a method preserves facts that run against me as well, then it is a method. If it preserved only what helped my side, it would be merely a tool.”

Counsel fell silent.



That night in the office, Malini opened the new version of the correction log.

The corrections to the two overbroad conclusions were written in ordinary type; beneath them, a separate technical clarification of scope was recorded.

She asked, “Why not in red?”

Aditya said, “A correction is not a mark of shame.”

“Then what is it?”

“A mark of history.”

Malini read the first conclusion—from “there is no approval record” to “the specified record was not found in the available sources searched; the long-term source is unavailable.”

The second—from “an instructional message was probably deleted” to “external metadata shows a message event; content, cause, and actor unproved.”

A separate technical note stated that “complete forensic image” had been clarified to mean “complete bit-level image of the seized physical storage device”; the original measurement and hash result remained unchanged.

Malini said, “Two conclusions became smaller; the third line only clarifies the limit.”

“No,” Aditya said. “Two conclusions came within measure; the third description made explicit the limit that was already there.”

“And the non-apprehension that remains?”

“It is now a question, not an answer.”



The soil of Gaurh En Arikel came back to him again.

After the rains, when he was a child, one corner of a field sometimes showed no water.

As a boy, he would assume that no water had ever reached it.

His father would dig into the soil and show him the dampness within.

Sometimes the surface water had already run off.

Sometimes the earth had absorbed it.

Sometimes the embankment had prevented water from reaching that corner at all.

The same sight—a dry surface.

Many possible causes.

A sentence rose in Aditya’s mind—the discipline of non-apprehension is not the art of seeing what is absent, but the discipline of understanding the limit of expectation.

Inwardly, he recalled the name of Gangesha Upadhyaya.

The means of knowledge mattered no more than their limits.

Even what is not found has evidentiary value only when the reasonable conditions for finding it have first been established.

◆
In the last hour of the night, a message arrived from the Ministry.

On the basis of the previous hearing's order and the proceedings of that day, a new file had been requested.

In particular, five categories were to be kept strategically separate—sources lost after expiry of a retention period, incompletely searched sources, technically inaccessible sources, sources unavailable after an adequate search, and sources accompanied by an independent indication of deletion.

Aditya showed the message to Malini.

“The next phase belongs to the Ministry.”

Malini said, “Will the strategy change?”

“It will have to.”

“Why?”

“Because all silences are not the same.”

Outside, the rain had stopped.

Streaks of droplets remained on the glass, though the droplets themselves had already fallen.

Aditya did not treat those streaks as proof that the droplets were still there.

He understood only this—something had happened; to understand its precise meaning, the limits, time, and source would have to be examined again.

That night's final conclusion was only this—

Not revenge.

Method victorious.

070 The Edge of Non-Apprehension — Chapter 5

The morning sun had not yet fully broken free of Delhi's haze, but in the northern wing of the Home Ministry the telephones and secure mail channels were already active.

From the final message of the night, Aditya Jha had understood that the previous hearing had altered more than the court record; it was beginning to alter the very structure of the government's thinking.

At half past eight, a special messenger arrived from the court liaison branch carrying a sealed file.

On the outside of the file, in red letters, only this was written: For Limited Examination.

Inside were the court's order, certified extracts of the proceedings, a separate summary of the investigation diary, the correction register, source classifications, and an updated list of unavailable material.

For the first time, Malini Karn saw that list not as a single list, but as five distinct groups of questions.

Retention period expired.

Search incomplete.

Technically inaccessible.

Not found after an adequate search.

Unavailable together with an independent deletion indicator.

Until yesterday, all five had remained under the shadow of a single phrase—not found.

Today, five different legal possibilities were opening within that one phrase.

Aditya wrote no conclusion in pen at the top of the list.

He drew only five columns.

The first column—what is known.

The second—what is inferred.

The third—what was searched.

The fourth—what was not searched.

The fifth—what remains unproved.

Malini asked, "Could this fifth column become the largest of all?"

Aditya said, "If we state our limits correctly, yes."

"Then will the strategy not look weak?"

"A weak strategy is one that hides its limits in court."

By ten o'clock, a restricted meeting had begun in Home Minister Shiveshwar Prasad's conference room.

There was no crowd of political advisers in the room.

Only the Minister, the Home Secretary, the Joint Secretary of the Legal Wing, Aditya and Malini from the investigation team, and a senior officer of the forensic-computing cell were present.

There were no newspaper clippings at the centre of the table, no political commentary.

Only the file, the source map, the custody register, and the correction register.

The Minister asked the first question: "What was our first error?"

The room was silent for a moment.

Aditya did not turn a page of the file before answering.

"We were treating non-apprehension as though it were uniform."

The Home Secretary raised an eyebrow.

Aditya continued, "In some places, we were reading the silence of records whose retention period had expired as though it proved an active act by a person. In some places, although the search was incomplete, we used the language of a complete search. The court showed us our limits on both points."

The Minister asked, "And by admitting this, the State's position becomes?"

"Clearer."

"Stronger?"

Aditya paused for a moment.

"Clearer. 'Stronger' would be premature here."

A faint hardness came over Shiveshwar Prasad's face, then passed.

"Good. I do not want political adjectives."

The Joint Secretary pushed a note forward.

"The Legal Wing has suggested three possible paths. First—preserve the old argument, but soften its language. Second—for the present, abandon the argument from unavailable material and rely only on direct digital material. Third—reclassify source by source and retain only a limited argument."

The Minister looked at Aditya.

“Your view?”

“The third.”

“Why?”

“In the first, the problem is not language but scope. In the second, we would also discard valid indicators of non-apprehension for no reason. In the third, what withstands scrutiny will remain; what does not will fall away.”

Malini spoke for the first time in the meeting.

“And where the search of a source is incomplete, no person-specific conclusion should be drawn from silence.”

The Joint Secretary wrote it down.

“And where the retention period expired in the ordinary course?”

Malini said, “There, not ‘was deleted’; only ‘is unavailable.’”

The senior forensic officer added, “And if there is an independent deletion indicator, we must first determine which device, which account, which time, and which user that indicator is connected with.”

Aditya said, “Exactly. An indicator without proof linking it to an actor cannot carry the weight of an allegation.”

The Home Minister placed his palm on the table. “Write that sentence.”

The Joint Secretary asked, “In exactly those words?”

“No. You frame the legal language. But the principle must remain—the State will not dress its inference in the clothes of a proved fact.”

◆
In the second phase of the meeting, a large source map was displayed on the wall.

At the centre was the seized principal computer unit.

On one side were the solid-state storage device and the magnetic storage device.

On the other were browser history, the administrative control panel, customer-identification records, the tax-deduction ledger, and the payment-gateway trail.

Outside these were separate circles for service providers, mail communications, cloud storage, external copies, account replicas, and third-party records.

Aditya did not draw a red circle around the centre.

He pointed first toward the outer circles.

“Yesterday, the court’s question struck here.”

The Home Secretary asked, “Not at the centre?”

“The image of the central device is intact. But the integrity of the centre does not prove the completeness of the outer circles.”

The Joint Secretary said, “Then should the phrase ‘complete digital landscape’ be removed from the Ministry’s strategy note?”

“Yes.”

“Replaced by?”

“Digital image of the defined seized source.”

Malini said, “And where a direct external source has been obtained, name it separately.”

“Exactly.”

The senior officer raised another question. “Cloud storage is a possibility, but the response is still incomplete. How should it be mentioned?”

Aditya said, “As a possibility. Not as an acquisition.”

The Minister asked, “What is the practical effect of that distinction?”

“What we ask the court for will also change.”

The room became still again.

Aditya continued, “Targeted preservation instead of a broad order. A named source instead of an uncertain one. A defined period instead of an unspecified time. And where privilege is in question, a method of segregation.”

The Home Secretary said, “In other words, ask for less?”

“Ask clearly for exactly what is necessary.”

“The State often asks for more and leaves it to the court to narrow the relief.”

Aditya’s voice remained steady.

“Sometimes asking for more becomes the reason for receiving less.”

Shiveshwar Prasad nodded faintly.

“In this case, the State’s credibility will be determined not by the breadth of the order, but by the credibility of its reasoning.”

◆
The Legal Wing opened a copy of the old strategy paper.

Five pages carried yellow marks.

The first mark—‘all relevant records are unavailable.’

Aditya said, “Remove the word ‘all.’”

The second—‘the records appear to have been deleted.’

Malini said, “Which records? Which source? Which independent indicator?”

The Joint Secretary struck out the sentence.

The third—‘hash matching proves the integrity of the entire digital material.’

The senior officer said at once, “That is technically incorrect.”

A new sentence was framed: ‘Hash matching verifies the integrity and identity of the defined image.’

The fourth—‘the custody register is continuous.’

Aditya pointed to a time gap in the register.

“This sentence cannot survive.”

The Joint Secretary asked, “Then what?”

“State the period for which written custody exists. If the gap is explained by separate supporting material, state that separately; if not, leave the gap as a gap.”

The fifth—‘the unavailable material corroborates the central allegation of the investigation.’

The Minister himself picked up a pen and drew a line through the entire sentence.

“This does not corroborate the allegation. At times, it may only furnish a reason for the next question.”

Aditya looked toward the Minister.

Yesterday in court, he himself had reduced two overbroad conclusions.

Today, the Ministry was reducing five overbroad sentences in its strategy paper.

For the first time within the government, non-apprehension was becoming not a mark of defeat, but an instrument of measurement.



Near noon, the meeting was adjourned.

Walking down the corridor with Aditya, Malini said, “So much has been struck out. Do you never fear that people outside will say the State is retreating?”

Aditya looked through the window at the leaves of a dried tree.

“Retreating and correcting the limit are not the same thing.”

“Will that distinction survive in the media?”

“The media’s sentence is not under my control. The sentence in the record is.”

“Ananya Kashyap could probably write that distinction.”

“Perhaps. But our strategy should not depend on a journalist’s understanding.”

Malini smiled.

“You turn everything back into legal discipline.”

“No. Legal discipline keeps showing me the proper size of things.”

They did not go to the dining hall.

They sat in a small Ministry workroom and began rebuilding the summary of the five source categories.

Malini wrote the heading of the first group—sources whose retention period had expired.

Aditya said, “Keep three things separate in this group.”

“Which?”

“What the policy was. Whether the policy was actually applied. And automatic expiry versus targeted deletion.”

Malini wrote it down.

Second group—incomplete search.

“Here?”

“Hold the conclusion. Define the scope of the further search.”

Third—technically inaccessible.

“Write ‘not found’ here?”

“No. Write ‘could not yet be obtained,’ if that is the fact.”

Fourth—unavailable after an adequate search.

“Does non-apprehension have greater evidentiary value here?”

“It may, but first establish the basis for expected presence.”

Fifth—unavailable together with an independent deletion indicator.

Malini paused.

“In this group, people will want to identify the actor quickly.”

“That is why the first question is not the actor, but the nature of the indicator.”

“And the second?”

“Time.”

“Third?”

“Source.”

“Fourth?”

“Access rights.”

“Fifth?”

“Only then, the person.”

At the edge of the page, Malini wrote: Person is the final question.

Aditya made no mark beside the sentence, but it struck him as right.

◆
In the afternoon, a brief message came from the Home Minister’s private office—no political presentation was to be prepared.

Only a legal-strategy update.

Malini said, “Was it necessary to write that separately?”

Aditya replied, “Sometimes clarity about what is not to be done is useful too.”

At that sentence, Malini smiled.

“Non-apprehension again?”

“This time, a limit on conduct.”

A little later, the Home Secretary called them again.

The new draft had been divided into three parts.

First—what the State would no longer say in court.

Second—what limited proposition the State would say, with support.

Third—which sources required further investigation.

The first part was not the shortest.

It stated—

Mere non-apprehension does not prove deletion.

Mere hash identity does not prove completeness of the entire universe of material.

Mere silence in a custody register does not prove contamination.

Mere hypotheses in an investigation diary do not prove facts.

Mere sealed material does not prove truth.

The Home Secretary read the page and said, “This looks like a rebuttal written against the State.”

Aditya said, “It is an internal safety wall for the State.”

“What do you mean?”

“If we decide in advance what we must not say, we will not have to defend the indefensible in court.”

The Joint Secretary agreed.

“If the argument remains limited, the privilege dispute will also remain limited.”

“And the digital search?”

“Source-specific.”

“And sealed material?”

“Only as necessary, without any presumption of truth.”

The Home Secretary closed the page.

“What shall we call this strategy?”

Malini said almost without thinking, “The Source-Limit Method.”

Aditya looked at her.

The Joint Secretary wrote down the words.

The name was small on the page, but within it lay the errors, corrections, and judicial discipline of many preceding weeks.

◆
As evening descended, Delhi’s sky began to turn from grey to copper.

From the Ministry’s upper floor, the vehicles on the road looked like tiny points.

The meeting was over, but Aditya did not rise at once after gathering his copy.

He remembered Gaurh En Arikel.

The smell of earth after rain.

The smooth surface of the field before rice transplantation.

His father standing on the embankment.

As a child, Aditya would ask impatiently, “Why did no seed fall here?”

His father would not answer immediately.

First he would press the soil with his thumb.

Then he would examine the moisture.

Then he would see where the water had come from and where it had gone.

Sometimes no seed had truly fallen there.

Sometimes a bird had eaten it.

Sometimes water had carried it away.

Sometimes the seed had been pressed deep into the soil.

From above, the same absence.

Within it, four causes.

His father would say, “Do not name the cause of what you cannot see too quickly.”
 At the time, Aditya had understood it as a lesson of the field.
 Today, he understood that it was also a lesson of proof.
 The soil of Gaurh En Arikel had taught him not speed, but patience.
 Patience was not passivity.
 Patience was sequence.
 First touch the earth.
 Then see the moisture.
 Then trace the path of the water.
 Only then tell the story of the seed.
 Aditya rose from his chair.
 The impatience within him had diminished.
 The strategy had changed, but the objective had not.
 The objective remained only this—to say no more than what was proved, and to open the proper path toward what still had to be searched.



Malini returned with the final evening update.
 “Source classification is complete.”
 “How many sources in the fifth group?”
 “Three. But the independent deletion indicators are not of equal weight in all three.”
 “Then not one common sentence.”
 “No. Three separate comments.”
 “Incomplete search?”
 “Four sources.”
 “Conclusions removed immediately?”
 “Yes. Only the next search step is recorded.”
 “Technically inaccessible?”
 “Two. In one, the key is unavailable; in the other, the service provider’s response is awaited.”
 Aditya looked at the page.
 “‘Inaccessible’ is not accurate for the second. Write ‘service-provider response awaited.’”
 Malini corrected it at once.
 “Done.”
 “This distinction will matter later.”
 Malini gathered the papers and asked, “Will this note go tomorrow to the offices of Devavrat Sinha and Mrinal Dhar?”
 Aditya said, “The Legal Wing will first give it formal shape. They are already representing the State; the new strategy should go before them as an additional, limited submission.”
 “So this is not a new beginning.”
 “No. A more accurate limit within an ongoing proceeding.”
 After that sentence, both were silent for a few moments.
 Outside, the corridor lights began going out one by one.
 In the Ministry’s final workroom, only the source map, five categories, and three boxes remained—proved, under examination, unproved.
 Aditya did not hide the unproved box.
 He placed it where it could be seen most clearly.
 For the credibility of an investigation is built not only by what it finds, but also by its capacity to acknowledge what remains incomplete.
 Night had settled outside.
 The smell of Gaurh En Arikel’s soil existed only in memory, but because of that memory the ground beneath his feet felt firm.
 In the next phase, words would again move toward the doors of the court.
 But this time, the limits had already been written before the words.

071 The Edge of Non-Apprehension — Chapter 6

By eight in the morning, the draft of yesterday's source-limit methodology had become a formal note in the Legal Division of the Home Ministry.

Across the top of the note, in red letters, was written: Limited Strategy Update for the Pending Special-Permission Proceeding.

This was not a request for appointment.

Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar were already representing the State.

The new paper had only one purpose: to enable the State, within the pending proceeding, to restate the limits of its own assertions with precision.

The Home Secretary opened the final copy.

The first section was headed: What the State Will No Longer Say.

The second: Which assertions will be maintained with support from the record.

The third: Which questions remain under investigation.

The fourth: Which unavailable material can acquire meaning only after the source limit is understood.

The fifth: On which points targeted preservation or limited directions may be sought from the Court.

Aditya Jha saw the place reserved for his signature on the final page, but did not sign at once.

He first read the entire note again.

Malini Karna sat opposite him.

On her copy she had made three marks: established, conditional, unestablished.

The Home Secretary asked, "Does any other word still seem too broad to you?"

Aditya placed his thumb on the third page.

"Here it says 'the entire network architecture.'"

The Joint Secretary said, "The source map is extensive."

"The map may be extensive. The preserved material is not complete."

Malini said, "'Defined source architecture' would be more accurate here."

The wording was changed.

Aditya stopped at the fifth page.

"Here it says: 'The presence of deletion indicators creates a strong probability that the relevant records were knowingly removed.'"

The Home Secretary asked, "What is the problem with that?"

"The nature of the indicator and its relation to the actor are separate questions."

Malini opened her note.

"There are deletion indicators in three sources. In one, the time is known but user privileges are uncertain. In the second, user privileges are known, but the time interval is large. In the third, the indicator may itself be the result of an automated application process."

The Joint Secretary stopped his pen.

Aditya said, "Then one general sentence cannot govern all three."

The old sentence was struck out.

A new sentence was framed: "Distinct deletion indicators have been found in three sources; any conclusion as to actor, time, and the nature of the process depends on source-specific examination."

The Home Secretary nodded.

"Now will you sign?"

Aditya said, "Now."

The note first reached Devvrat Sinha's office through the secure communication channel.

At that time he was reading the old chronology of the pending matter.

An assistant placed the paper before him and said, "A limited update from the Home Ministry."

Devvrat looked at the first page.

Beneath the heading he wrote one word in pencil: non-apprehension.

A few moments later Mrinal Dhar joined through the secure video link.

Devvrat said, "This time the Ministry has not enlarged its case; it has narrowed it."

Mrinal replied, "If narrowing corrects the boundary, it is legally useful."

"First question: how does this note enter our pending application?"

"Not as a new proceeding. As a limited supplementary note."

"And our earlier generalisations?"

"Where they were improper, we correct them expressly."

Devvrat opened the second page.

"The State's earlier sentence: 'The widespread unavailability of records demonstrates operational secrecy.'"

Mrinal was silent for a few moments.

"That sentence cannot survive."

"Why?"

"Unavailability is an effect in need of a cause. Secrecy may be one possible cause; it is not a self-proving conclusion."

Devvrat drew a line through the sentence.

"What goes in its place?"

"Nothing."

"Leave it blank?"

"If the record does not support it, yes."

Devvrat smiled faintly.

"In a State application, 'nothing' can sometimes be a large decision."

Mrinal said, "Especially when the old words have already said too much."

They moved to the next page.

There was a summary of five source categories.

Retention period expired.

Search incomplete.

Currently technically inaccessible.

Not found at the expected location even after an adequate search.

Unavailable together with a separate deletion indicator.

Devvrat said, "Even the name of this fifth category needs care."

Mrinal asked, "Why?"

"Independent of what, exactly, is the word 'separate'?"

There was silence for a few moments.

Mrinal replied, "Separate from the conclusion of unavailability. But the source may still belong to the same custodian."

"Then write in the note: 'a deletion indicator distinct from the conclusion of unavailability.' Source independence must be established separately."

The wording was changed.

Without being named, a small rule of Navya-Nyaya was working on this table: the scope of an adjective must not travel beyond the boundary of its noun.



At ten forty-five, Aditya and Malini joined through the secure video link.

Devvrat put the first question.

"What sentence can the State now use about the image of the principal computer unit?"

Aditya replied, "The computational image of the defined seized source has been preserved intact, and the available hash match verifies the identity of that image."

"And what can it not say?"

"That this is the entire possible digital universe."

Mrinal asked, "Cloud storage?"

"A response from one service provider is pending. Another possible source has been identified, but is not in custody."

"Then 'unavailable'?"

"For the first: 'response pending.' For the second: 'possible source, presently outside custody.'"

Devvrat said, "Good."

Malini looked at her table.

Mrinal asked the next question. "Deleted mail material?"

Malini said, "There are some deletion indicators in the local image. But the long-duration original account-level records are not fully available."

"Which person deleted them?"

"Not established at present."

"At what time?"

"The time interval of some entries can be estimated; not all can be fixed with certainty."

"Then what will the State say?"

Aditya said, "Deletion indicators were found in the local source; the actor and the full temporal span remain unestablished."

Devvrat stopped his pencil.

"The shorter this sentence is, the safer it is."

Aditya replied, "Not merely safer. Closer to the truth."

Devvrat looked at him.

"Before saying 'closer to the truth,' say 'closer to the record.'"

Aditya smiled.

"Quite right."

Malini wrote that small correction into her note.

Mrinal moved to the payment-gateway trail.

"Are there differences here between some exported tables and the original service records?"

"Yes, but not every difference is an indication of fraud."

"For example?"

"Differences can also arise from time zones, grouped entries, fee adjustments, and limited fields at the time of export."

"And the differences that remain?"

"They require source-by-source examination."

Devvrat said, "In the State's supplementary note, the word 'difference' will remain. 'Manipulation' will not, unless there is separate evidence."

Malini nodded.

In this meeting the State was not impoverishing its language.

It was paying back the debt of its words.



At that same time, an advance copy of the Home Ministry's note reached Vidyanand Mishra's office.

Ishan came inside carrying the copy.

"Sir, a limited strategy update from the State."

Vidyanand adjusted his glasses.

"Read the title."

Ishan read it aloud.

"Limited Strategy Update for the Pending Special-Permission Proceeding."

Vidyanand asked, "A new petition?"

"No."

"A new appointment?"

"No. It has been sent to the offices of Devvrat Sinha and Mrinal Dhar within the pending proceeding itself."

"Good. Then our response will remain within that same limit."

Ishan opened the first three pages.

"The State has withdrawn five overbroad sentences."

Vidyanand said, "Do not celebrate the number."

"The client side wants this to be called a public defeat."

Vidyanand's face hardened.

"A correction by the State in court is not automatically a victory for the defence."

"But a strategic advantage?"

"It may be an advantage. We will call it an 'advantage' when we see its effect."

Ishan smiled faintly.

"You have reduced the weight of the word again."

"No. I have corrected it."

At that moment Vidyanand's phone vibrated.

It was a brief message from the bank: the medical-insurance reimbursement claim had again been held for review.

His finger remained still on the screen for a moment.

He remembered the calculation of the previous month's expenses.

The honoraria of two junior colleagues had to be paid tomorrow.

Household dues were separate.

Shailaja's treatment-related expenses were separate.

He turned the phone face down.

Ishan asked nothing.

A few moments later Vidyanand himself said, "Read on."

Ishan read the State's new sentence: "The hash match verifies the integrity and identity of the defined image."

Vidyanand picked up his pencil.

"That is a proper correction."

Ishan looked surprised.

"Will we accept that in our response?"

"If it is proper, why not?"

"The client will say we are helping the State."

"Accepting an accurate sentence in court is not helping the opponent. It is preserving our own credibility."

Vidyanand read the next sentence.

"The actor and the temporal span remain unestablished.' What do we want on this?"

Ishan said, "A request that the entire deletion argument be struck out?"

"No. First, particulars of source, time, access privileges, and automated processes."

"And if they do not provide them?"

"Then we oppose any adverse inference."

"And if they do?"

"Then we confront whatever is established."

Ishan fell silent.

Vidyanand said, "Defence is not merely the art of denial."

His voice was not harsh.

But the instability that private crisis had created within him required not a thin layer of professional discipline, but a deep foundation.

At eleven, a representative of one of the group's directors came to Vidyanand's office.

In his hand was a two-page statement prepared for the news media.

The first line read: "The State has withdrawn its entire digital case."

Vidyanand placed the paper on the table before finishing even the first page.

"This will not go out."

The representative asked, "Why? Five statements have been withdrawn."

"Correction of five statements is not withdrawal of the entire case."

"People want simple language."

"Simple and false are not the same thing."

The representative was silent for a few moments.

"The client is spending a great deal."

The bank message flashed again in Vidyanand's mind.

He knew that his office too depended on a part of that expenditure.

The list of unpaid professional fees lay in his drawer.

For a moment, two colours of paper seemed to dissolve into one another: private need and public statement.

But it was necessary to keep that dissolution apart.

Vidyanand said, "Expenditure does not enlarge the client's rights, and my fee does not alter the truth of a sentence."

The representative asked, "Then what will you write?"

"The State has narrowed certain overbroad assertions. The remaining assertions will be tested source by source. The defence will oppose conclusions that remain unestablished."

"So dull?"

"The judicial record is not entertainment."

The representative took the paper back.

He looked displeased, but Vidyanand did not take his displeasure as an insult.

A client wants a result.

Counsel cannot write the name of that result in advance.

As the representative was about to leave, he stopped.

"The accounts department has been spoken to about the outstanding payment."

Vidyanand raised his head.

"Let that matter remain separate from this statement."

"Naturally."

"In writing as well."

The representative looked at him for a moment, then said, "All right."

The door closed.

Ishan asked, "Did you think it necessary to say that?"

Vidyanand replied, "Today I did."

"Why?"

"Some boundaries are for the Court. Some are for oneself."

By the afternoon, a new draft had been prepared in the offices of Devvrat and Mrinal.

Not a single new case number was added to the heading.

The same pending special-permission proceeding number, the same parties, the same continuing sequence.

Only the subheading was new: Limited Supplementary Note Concerning Non-Apprehension.

In the first paragraph the State stated plainly that the scope of certain earlier assertions was being reduced.

The second gave the reason.

"The present status of the record depends upon source, custodian, retention period, search limit, and technical access."

The third paragraph stated: "Non-apprehension shall not by itself be treated as proof of deletion, secrecy, or attribution to an actor."

Mrinal asked, "Will the State itself write this?"

Devvrat said, "If the State asks the Court for discipline, it must apply that discipline to itself as well."

The fourth paragraph dealt with the computational image.

"Hash identity shows the integrity and identity of the defined image; it does not establish completeness as to external or out-of-custody possible sources."

The fifth concerned the chain-of-custody register.

"Gaps in the written register shall not be filled by language of continuous custody without separate supporting material."

The sixth dealt with deletion indicators.

"The presence of an indicator does not establish the actor."

The seventh dealt with sources whose search was incomplete.

"No person-specific adverse inference shall be drawn from the silence of an incomplete search."

The eighth dealt with material not found at the expected location even after an adequate search.

"The evidentiary value of such non-apprehension is to be considered only after a reasonable expectation of presence and the adequacy of the search are established."

Devvrat slid the page back.

"Now, the defence's likely objections?"

Mrinal made a list.

"First: the limit on sharing the source summary."

"Second?"

"Whether material withheld because of privilege has been placed in the incomplete-search category or kept separate."

"Third?"

"The original technical detail of the deletion indicators."

"Fourth?"

"The time gaps in the chain-of-custody register."

"Fifth?"

"On which sources the State will seek further preservation."

Devvrat said, "The Court itself may ask these five questions."

Mrinal replied, "Then our answers should be ready in advance, with their limits stated."

◆
Before evening, the defence's preliminary response arrived.

Vidyanand had deliberately kept its title short: Limited Response.

In the first paragraph he accepted two of the State's corrections.

The limit of the hash.

No broad inference from a source whose search was incomplete.

Ishan asked, "Will the word 'accept' remain?"

Vidyanand said, "Yes. Why waste time turning into a dispute what is not in dispute?"

In the second paragraph the defence requested that a summary be shared of the source, time, process, and access privileges relating to each deletion indicator.

In the third, it was stated that material withheld because of privilege or confidentiality should not be counted toward an adverse inference based on non-apprehension.

In the fourth, the basis for explaining every time gap in the chain-of-custody register was sought.

The fifth contained a very short sentence: "The State's correction is not itself a judicial finding on the truth or falsity of the underlying allegation."

Ishan read the sentence and said, "The client will not like this."

Vidyanand replied, "But the Court may find it useful."

At that moment another message arrived on his phone.

This time it was from Shailaja.

"I have sent the insurance papers again. Do not worry."

While Vidyanand was reading the message, a second line arrived.

"And pay the juniors' honoraria first."

His eyes closed for a moment.

Without asking, Shailaja had understood half of his crisis.

He raised his finger to type a reply, then stopped.
He wrote only: "All right."
The words seemed very small to him.
But sometimes the smallest words carry the greatest weight.
He put down the phone and told Ishan, "Send the Limited Response."
Ishan asked, "The press statement?"
"One line."
"What?"
"The proceeding is pending; the parties' limited assertions will remain subject to judicial scrutiny."
"That's all?"
"That's all."
Ishan went out.
Vidyanand remained alone.
Professional dignity is not always a grand speech.
Sometimes it is only this much: private need must not alter the meaning of a public statement.

◆
At six in the evening Devvrat Sinha signed the final copy.

Mrinal Dhar checked the order of every annexure once more.

One: Source Classification Summary.

Two: Search-Limit Table.

Three: List of Time Gaps in the Chain-of-Custody Register.

Four: Defined Limits of Hash Verification.

Five: Status of Pending Service-Provider Responses.

Six: Source-Specific Brief Description of Deletion Indicators.

Seven: Proposed Method for Segregation of Privileged Material.

Devvrat asked, "Have any failed searches been left out?"

Mrinal looked at the list.

"Two failed leads are included. One old external repository address proved inactive. A second service-account identification turned out to be incorrect."

"Keep them."

"They may be used against the State."

"Keep them nevertheless. If we erase failed leads, the successful ones will also become less credible."

Mrinal nodded.

Aditya, who had joined the secure link for the final five minutes, said, "Both are already in the investigation diary."

Devvrat replied, "Then they will have their proper place in the summary before the Court."

Malini asked, "Sir, one old record uses the words 'possible administrative approval.' Should we retain that in the new note?"

Devvrat asked, "Was the approval itself found directly?"

"No."

"What is the basis of the inference?"

"Two indirect entries, but both from the same custodian."

"Then even 'possible' must be used carefully. State expressly that there is no source-independent support."

Mrinal added, "A different visual form does not make it an independent source."

Malini said, "Understood."

The final copy was forwarded through the secure channel under the prescribed procedure of the pending proceeding.

It was not a new attack.

It was an attempt to weigh the burden of the old assertions.

◆
By nightfall, the limited papers of both sides lay before each other.

The State had replaced five overbroad sentences with source-specific assertions.

The defence had not treated the State's corrections as final conclusions.

Both sides preserved their respective disagreements.

But on some points, the dispute had narrowed.

A hash does not establish completeness.

The silence of an incompletely searched source does not establish an actor.

Material withheld because of privilege cannot be read in the same way as ordinary non-apprehension.

The silence of a chain-of-custody register does not create its own meaning without external material.

And allegation, suspicion, indication, and established fact do not stand in a single line.

Aditya stood by the window of the Ministry.

Malini closed the final table.

"What will be the Court's first question tomorrow?"

Aditya replied, "Probably the same one we should have asked ourselves today."

"What?"

"In this sentence, where does suspicion end, where does allegation begin, and where is the evidence?"

Malini remained silent for a few moments.

Outside, in the night sky, a point of light from an aircraft moved slowly forward.

"Then non-apprehension has become a boundary again?"

Aditya said, "Non-apprehension is not an empty space. Read properly, it tells us where an assertion must stop."

He looked again at the three boxes on the table: established, under examination, unestablished.

Today a fourth word had been added: disputed.

Established does not mean final truth.

Under examination does not mean allegation.

Unestablished does not mean false.

Disputed means that the Court's question still remains.

The next morning, that question was going to come before the Court.

072 The Edge of Non-Apprehension — Chapter 7

Long before the courtroom opened in the morning, the corridors were already filled with the rustle of paper.

The State's limited supplementary note, the defence's limited reply, the source-classification summary, the search-limit table, the time gaps in the chain-of-custody register, and the first statements of three witnesses lay in separate files.

Malini Karn opened her copy and underlined four words—suspicion, allegation, evidence, non-apprehension.

Until yesterday there had been three boxes—established, under examination, unestablished.

During the night a fourth box had been added—disputed.

Today it seemed to her that the boxes were multiplying, but the question remained as old as ever—where must an assertion stop?

Aditya Jha stood by the window overlooking the veranda.

Malini asked, "Which file do you think the Bench will open first?"

Aditya said, "Not a file. Probably a word."

"Suspicion?"

"Suspicion is the easiest word, because it carries the least burden."

"And allegation?"

"It makes a more definite assertion about a person or an event."

"Evidence?"

"Its meaning can change with context, but here, at least this much—material capable of forming a lawful basis for supporting or rebutting an assertion."

Malini placed her thumb on the fourth word.

"Non-apprehension?"

Aditya remained silent for a few moments.

"It is an empty space, but an empty space does not write any word by itself."

Malini closed the page.

"Then today the Court has to read the empty space."

"No," Aditya said, "it has to test what we have written into the empty space."



When Justice Arya took the Bench, everyone rose.

Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar appeared for the State.

For the defence sat Vidyanand Mishra, Ishan, and the other advocates.

The ticking of the clock behind the Bench could be heard distinctly in the stillness of the courtroom.

Justice Arya first picked up the two limited papers from yesterday.

"The State has narrowed the scope of some of its assertions."

Devvrat inclined his head.

"The defence has accepted certain corrections."

Vidyanand too inclined his head.

"That is useful to the Court, but it does not dispose of the central question."

She placed before her a page bearing four words.

"Suspicion. Allegation. Evidence. Non-apprehension."

No pen moved in the courtroom.

Justice Arya said, "Today I shall ask not about sequence, but about boundaries."

She looked at Devvrat.

"According to the State, what is suspicion?"

Devvrat answered, "A possibility arising from established material that is capable of being tested, but whose truth has not yet been established."

"And allegation?"

"A definite adverse assertion concerning a person, group, or event, which the State puts forward for examination or judicial consideration."

"And evidence?"

Devvrat paused.

"At this stage—lawfully obtained material whose reliability, source, context, and relationship can be tested, and which supports or rebuts a disputed assertion."

Justice Arya looked at Vidyanand.

"Defence?"

Vidyanand said, "I would add this—the precision of an allegation does not cure insufficiency of evidence. However precisely stated a suspicion may be, it is still not evidence."

"Where does non-apprehension stand?"

Vidyanand replied, "Non-apprehension becomes meaningful only when it is first established that the material was expected to be generated, to remain in that source, to survive until the relevant time, and to be found after an adequate search."

Devvrat said, "The State does not disagree with that general test."

Justice Arya drew a line on the page.

"Then write the first rule—non-apprehension may give rise to suspicion, but a separate bridge must be shown from suspicion to allegation."

Seated behind them, Malini wrote it down at once.

"Second rule—an allegation will not, by itself, fill an absence of evidence."

She paused.

"Third—non-apprehension will not by itself prove deletion, concealment, an actor, or a purpose unless there is a separate basis for that conclusion."

Aditya's pen came to rest on that line.

The limits framed in the Ministry yesterday were now entering the language of the Court.

Justice Arya said, "I shall take three examples. All three witnesses are already on the record. Today we are not re-examining their emotional states; we are examining the spaces of non-apprehension within their statements."

Manoj Mahato sat on a bench at the back.

His thumb was again rubbing against his forefinger.

Rajat Pal sat with his head bowed.

Sudip Ghosh had locked both hands together.

Justice Arya said, "First—Manoj's telephone call."

Devvrat opened a thin file.

"There is an incoming-call routing indicator. The original subscriber identity is unavailable. No audio recording was found."

Justice Arya asked, "Was there any system for making an audio recording?"

Mrinal answered, "Manoj's private mobile phone did not automatically record calls."

"The service provider?"

"It does not ordinarily retain the contents of subscriber conversations."

"Then what does the statement 'no audio recording was found' mean?"

Devvrat was silent for a few moments.

"Literally correct, but of almost no evidentiary value, because no such recording was expected to be generated in the first place."

Justice Arya said, "Exactly. The non-apprehension of something whose generation was not expected is not meaningful silence."

Vidyanand rose.

"The defence requests that the State delete the line 'audio recording unavailable' from its summary, because it gives the reader the impression of a recording that may never have existed at all."

Devvrat looked at Aditya.

Aditya nodded.

"The State agrees."

Malini struck out the line.

Justice Arya looked at Manoj.

"Do you still remember the voice on that call?"

Manoj's face tightened.

"Some of it."

"Can you identify the person?"

Manoj's breathing quickened.

"I think it was someone from the same group of people."

Justice Arya's voice remained steady.

"I asked whether you can identify the person from the voice."

Manoj lowered his eyes.

"No, My Lady."

"Do you remember any words?"

"The name of the school. The bus time. A reference to my family."

"And the exact words of the threat?"

Manoj's lips moved, but no sound came at once.

"I remember the fear. Not all the words."

Silence settled over the courtroom.

Justice Arya said, "The memory of fear may be real. An unavailable memory of the words does not, by itself, identify the source of that fear."

Manoj's eyes filled.

"May I at least say that I was frightened?"

"Certainly."

"But not that I know who frightened me?"

"Only to the extent supported by your memory and by external material."

Manoj took a long breath.

Some of the tension left his shoulders.

Sometimes narrowing a boundary does not make a person's statement smaller. It makes it truer.

◆
With the Court's permission, Malini opened a table on the display screen.

First column—expected record.

Second—generation system.

Third—custodian.

Fourth—time period.

Fifth—retention period.

Sixth—scope of search.

Seventh—alternative source.

Eighth—independent deletion indicator.

Ninth—maximum permissible conclusion.

Justice Arya asked, "Who added this last column?"

Malini said, "I did, after yesterday's Ministry review."

"Why?"

"Because I realised that recording the result of a search is not enough. If we state in advance the most that can be said from it, the language is less likely to expand beyond its limits."

Vidyanand asked, "And the minimum?"

Malini replied, "The minimum is simply the fact of the search—what was not found, and where."

Justice Arya said, "Good. But 'maximum' is not the Court's final conclusion. It is a discipline marker for the analyst."

"Yes, My Lady."

Manoj's row was filled in.

Expected audio recording—no.

Generation system—not ordinarily generated.

Maximum permissible conclusion—no adverse conclusion.

Incoming-call routing record—generated, partially available.

Original subscriber identity—unavailable because of the intermediary service route.

Maximum conclusion—limited fact concerning the routing of the call; identity of the person unestablished.

Looking at the page, Justice Arya said, "The first kind of non-apprehension—where there is no expectation, absence carries no meaning."

Aditya wrote it down.

The sentence was simple, but it could lighten the burden of many pages.

◆
The second example concerned Rajat Pal's payments.

Mrinal Dhar opened four payment entries in which the ordinary approval numbers were absent.

A fifth payment carrying the usual reconciliation indicator had already been kept separate.

Justice Arya asked, "Was an approval record expected for the four payments?"

Mrinal said, "Under the ordinary procedure, yes."

"Under an exceptional procedure?"

"In some circumstances, a separate approval route could have existed."

"The record of that route?"

"Not found in the principal financial repository."

"Was the search adequate?"

Aditya rose.

"The principal financial repository, the relevant departmental repository, the old message archive, and the approval register for the defined period have been examined."

Vidyanand asked at once, "External accounting archive?"

Aditya replied, "The location of one old external archive proved inactive. Its contents could not be obtained."

"Then were all possible sources searched?"

"No."

"Then the approval record did not exist?"

"No."

"Deleted?"

"Not established."

"Deliberately concealed?"

"Not established."

Vidyanand sat down.

Justice Arya looked at Devvrat.

"What is the State's allegation?"

Devvrat said, "At this stage the State says only this: the ordinary approval numbers for four payments are not in the principal record, and no separate approval record was found in the defined search. An alternative external source remains incomplete."

"Irregular payments?"

"The question of departure from the ordinary procedure arises."

"Illegal payments?"

"Not established by this non-apprehension."

"Rajat's knowledge of an unlawful purpose?"

"Not established."

Rajat suddenly raised his head.

There was something on his face suspended between relief and shame.

Justice Arya looked at him.

"Do you wish to say something?"

Rajat took a long breath.

"I took the money."

"That is on the record."

"I needed the money."

The courtroom remained still.

Rajat continued, "Yesterday I said I was greedy. I thought about it all night. It seems to me that if there is no paper, perhaps I knowingly took something for which no paper could ever have been made."

Justice Arya stopped him at once.

"After 'perhaps,' you are speculating."

Rajat stared at her, startled.

"But there is no paper."

"No paper was found. One external source is inaccessible. Those two statements are not the same."

Rajat fell silent.

"Your need for money, greed, or shame does not turn the non-apprehension of a document into knowledge of a crime."

Rajat's eyes filled again.

"Then my poor judgment means nothing?"

"It means something—but only in answer to the question it actually answers."

"I accepted the money."

"Yes."

"I asked too few questions."

"You may say that."

"But not that I knew the purpose was unlawful?"

"Not unless memory or other material supports it."

Rajat lowered his head.

His inward self-accusation did not become the Court's allegation.



Justice Arya had Rajat's row completed in the table.

Expected record—ordinary approval number; absent from four entries.

Separate approval record—not found in the defined principal sources.

Old external archive—inaccessible.

Independent deletion indicator—no specific indicator concerning an approval record for these four payments.

Maximum permissible conclusion—recorded absence of the ordinary approval route; existence or destruction of an alternative approval route unestablished.

Mrinal asked, "My Lady, does the 'recorded absence of the ordinary approval route' give rise to suspicion?"

"Certainly it does."

"An allegation?"

"To make an allegation, you must say—who, what, how, and on what basis. 'No paper was found' answers none of those four questions."

Devvrat wrote a note.

There was no expression of victory on Vidyanand's face.

He was looking at Rajat.

Rajat opened both hands and then clasped them again.

As though, for the first time, the question of money could be seen separately from legal burden and private shame.

During the midday recess, Ananya Kashyap stood on the veranda reading messages from the newsroom.

The first message said—"Approval record vanished; State's major revelation?"

Ananya immediately wrote—"Not 'vanished.' Not found in the defined search; one external source inaccessible."

The second message—"Rajat admitted taking illegal money?"

"He admitted accepting money; he did not admit knowledge of an unlawful purpose."

The third message—"Court finds State's case weak?"

Ananya's finger stopped.

Then she wrote—"The Court is classifying at this stage, not making a final assessment."

The editor replied—"The headline is becoming difficult."

Ananya wrote—"The facts are not simple."

She switched off the mobile phone.

At the other end of the veranda, Rajat stood alone.

Manoj went over to him and said nothing.

Rajat spoke first. "I used to think that the harsher the blame I placed on myself, the more seriously the Court would take me."

Manoj said, "I thought the opposite—the more certain I sounded, the more they would believe me about my fear."

Both fell silent.

Sudip was listening from a short distance away.

He came closer and said, "I thought the greater the regret, the clearer the memory."

The three looked at one another.

These sentences were not part of the court record.

But they were new boundaries forming within three human beings.

After the recess, the third example concerned Sudip Ghosh.

Before the Court were building-entry records for two dates, the times of remote sessions, and limited service records relating to meetings.

But no minutes of the meetings had been found.

The participant list too was incomplete.

Justice Arya asked, "Was there a rule requiring minutes to be prepared?"

Malini answered, "Ordinarily, for a formally scheduled meeting. Not necessarily for an ad hoc remote session."

"Into which category did these two sessions fall?"

"The service record calls them 'special sessions,' but it does not make clear whether they were formal meetings or ad hoc sessions."

"Then the non-apprehension of minutes?"

"Not determinative at present."

"The participant list?"

"The system ordinarily generated a list of connected accounts, but the available exports for these two dates are incomplete."

Vidyanand asked, "The original service records?"

"One portion is available; another is no longer in the service provider's long-term archive."

"Retention period?"

"Limited under the policy then in force."

"Then the list was deleted?"

"Not established."

"Deliberately?"

"Not established."

Justice Arya looked at Sudip.

"Do you remember who attended those meetings?"

Sudip's face hardened.

"I remember some names."

"The ones in your first statement?"

"Two names."

"And the one added later?"

Sudip was silent.

"R.S.," he said softly.

"In your first statement that was only a name you had heard. Later you added a memory of a voice. At the previous hearing that certainty was limited. What is your position today?"

Sudip lowered his eyes.

"I can now say with certainty only that I heard the name 'R.S.' I cannot say who the person was."

"Does the fact that no minutes were found strengthen the identification of the person?"

Sudip's lips trembled.

"Inside me, it feels that if the paper existed, everything would become clear."

"That is a wish. Not evidence."

Sudip's eyes filled.

"There were so many things I never asked."

"That regret is yours."

"Yes."

"Will that regret supply the contents of the unavailable paper?"

Sudip was silent for a few moments.

"No."

"That the paper would have contained R.S.'s full name?"

"I do not know."

"That the meeting was unlawful?"

"I do not know."

"That some document was deliberately removed?"

Sudip's breathing shook.

"I do not know."

As he said those three words, his head bowed.

Once, admitting "I do not know" had seemed to him a kind of breaking.

Today the same sentence was putting his statement back together.



Malini filled in the third row of the table.

Minutes—expectation of generation uncertain.

Participant list—systemic generation expected; available export incomplete; original long-term record partial.

Retention period—limited.

Independent deletion indicator—not specifically present.

Maximum permissible conclusion—participant-identification records for two dates are incomplete; the contents, cause, and actor relating to the unavailable portion are unestablished.

Justice Arya asked, "What suspicion does the State draw from this incompleteness?"

Devvrat said, "The identities of the participants in the sessions on two dates cannot be fully reconstructed. For that reason, person-specific conclusions are limited."

"That is not a suspicion. It is a limit."

Devvrat paused.

"Correct. An additional suspicion would arise only if expected lists are regularly present for other comparable sessions and absent only on the disputed dates."

Justice Arya asked, "Do you have such a comparison?"

Malini said, "Partially. Of eight comparable sessions, six have complete lists and two are incomplete. The two disputed dates are among those two incomplete sessions."

Vidyanand rose.

"A sample of eight. Systemic cause?"

"Still under examination."

"Selective deletion, then?"

"Not established."

"Suspicious?"

Malini paused.

Before Aditya could speak, Justice Arya herself said, "Suspicion may arise, but keep the object of suspicion precise—'Is the incompleteness accidental, systemic, or selective?' Not an allegation that a particular person deleted something."

Malini wrote down those very words.

In that one sentence, the object of suspicion changed.

From person to process.
From blame to examination.



Mrinal Dhar raised the next question.

"My Lady, if an expected record is not found after an adequate search, can that itself become a form of evidence?"

Justice Arya said, "The answer depends on the proposition to be proved."

She wrote three examples on the paper.

"One—a system ordinarily generates an entry record, but none is found."

A faint smile moved through the courtroom, then stopped at once.

"Two—an ordinary approval record is not found."

"Three—because of privilege, material is not disclosed in the ordinary court record."

She asked, "Is it proper to call all three the same 'non-apprehension'?"

Devvrat said, "No."

Vidyanand too said, "No."

"Why?"

Vidyanand replied, "In the third, the existence of the material may perhaps be known, but legal access is barred. That is not a failure of search."

Devvrat added, "And even in the first two, generation, retention, and source would have to be established separately."

Justice Arya said, "Then the Court distinguishes four kinds of silence."

Malini readied her pen.

"One—generation not expected; no evidentiary value."

"Two—generation expected, but the retention period expired in the ordinary course; limited or no adverse value."

"Three—generation and retention expected, not found after an adequate search; limited evidentiary value may be possible depending on context."

"Four—material exists or may exist, but is not disclosed because of privilege, confidentiality, or legal protection; this shall not be called search-failure non-apprehension."

Vidyanand said, "The defence seeks particular emphasis on the fourth point."

Devvrat replied, "The State does not oppose it, but the claim of privilege will still require examination."

Justice Arya said, "Very well. That is the next question, not today's conclusion."

Aditya's eyes met Vidyanand's at once.

It was as though the door to the next legal question had opened in the courtroom, but the time had not yet come to cross it.



Justice Arya returned to the central question.

"What are the boundaries among suspicion, allegation, and evidence?"

She signalled to Malini to change the table.

The new table had five columns.

First—established basis.

Second—status of non-apprehension.

Third—suspicion arising.

Fourth—additional bridge required for a person-specific allegation.

Fifth—present limit of the available evidence.

Manoj's row was filled first.

Established basis—reference to information about the family; incoming-call routing indicator.

Non-apprehension—original subscriber identity unavailable; no expectation that an audio recording would be generated.

Suspicion—who was the source of the information?

Additional bridge—subscriber identity or independent person-specific material.

Present limit of the evidence—the call and the context of the information; specific person unestablished.

Rajat's row.

Established basis—absence of ordinary approval numbers for four payments; separate procedural route.

Non-apprehension—separate approval record not found in the principal sources; one external source inaccessible.

Suspicion—did an alternative approval route exist?

Additional bridge—approval source, authority route, person-specific record, or other independent material.

Present limit of the evidence—procedural departure; unlawful purpose and knowledge unestablished.

Sudip's row.

Established basis—correspondence between building presence and the times of remote sessions on two dates.

Non-apprehension—complete participant list unavailable; generation of minutes uncertain.

Suspicion—is the incompleteness systemic or selective?

Additional bridge—original service records, independent participant identification, examination of the technical cause.

Present limit of the evidence—correspondence in session times; specific person, contents, and unlawful purpose unestablished.

Justice Arya said, "Why is there no allegation column in this table?"

Malini was startled.

"I thought that after the additional bridge, allegation—"

"It is not automatic."

Malini understood at once.

"Right. Even after the bridge is found, the State must decide whether there is a sufficient basis to raise an allegation."

"And the Court will test it later."

"Yes."

Justice Arya said, "There is no conveyor belt from suspicion to allegation."

A faint laugh passed through the courtroom.

She smiled herself.

"The language of a court should not become mechanical."

Then she grew serious again.

"Human judgment remains involved, but discipline is necessary."

◆
Devvrat Sinha picked up an old paragraph of the State's own filing.

"My Lady, the supplementary note has been filed, but for the Court's assistance it seems necessary to clarify one older sentence."

"Read it."

Devvrat read—"The continuing non-apprehension of records indicates an organised effort at concealment."

Vidyanand rose at once.

Devvrat gestured with his hand.

"The State will not rely on that sentence in its present form."

Justice Arya asked, "Why?"

"'Continuing non-apprehension' assumes a single cause. 'Organised effort at concealment' presupposes both an actor and a purpose."

"Then what is the revised position?"

Devvrat read the sentence prepared by Aditya.

"Different sources present different kinds of non-apprehension; some arise from the ordinary expiry of retention periods, some from incomplete searches, some from technical inaccessibility, and some fall into the category of expected material not found after an adequate search. Where specific deletion indicators exist, they are being examined separately."

Justice Arya said, "This correction will be recorded."

Vidyanand sat down.

Ishan said softly in his ear, "The State has narrowed its sentence again."

Vidyanand replied, "It has not merely narrowed it. It has changed the subject—from one cause to several causes."

"A benefit to the defence?"

"On some points. But more useful to the Court."

Vidyanand's voice was tired, but steady.

Yesterday's private pressure was still there.

But not a word of that pressure had entered his judicial language.

◆
In the next part of the hearing, the defence raised a question.

Vidyanand said, "My Lady, can non-apprehension ever operate against the State as well?"

Devvrat looked up.

Justice Arya said, "Certainly. Rules of evidence are not the property of one side."

Vidyanand showed a record.

"In the first month, the investigation diary says that a response was expected from an external service provider. Three weeks later it says 'no response.' In the fifth week, that line of inquiry was closed. Why?"

Aditya rose.

"The service-account identification was then found to be incorrect."

"Was that fact in the first supplementary summary?"

Aditya paused for a few moments.

"No."

"Why?"

"The summary was made too concise."

"Then a reader seeing 'no response' might think that no response came from the correct account."

"Yes."

"Does this non-apprehension strike at the limit of the State's assertion?"

Aditya replied, "Yes. That line of inquiry cannot serve as a reliable source."

Vidyanand said, "That is all I seek."

Justice Arya looked at Aditya.

"Was the failed line of inquiry retained?"

"Yes, in the diary and in yesterday's annexure."

"Very well. The Court will record—non-apprehension arising from an incorrect source identification is not evidence against anyone; rather, it records the limit of that investigative direction."

Malini wrote it down.

Aditya sat.

He felt no humiliation within him.

A Navya Nyaya test does not change when placed in the hands of the opposing side.

If a method protects only one's own side, it is not a method.

◆
The three witnesses were not called before the Court separately again.

Justice Arya addressed them together.

"Manoj Mahato."

Manoj raised his head.

"Your fear is a real experience. The Court will not mock that experience. But a name of which you are uncertain does not become certain because your fear was intense."

Manoj nodded.

"Rajat Pal."

Rajat raised his eyes.

"Your decisions concerning money and your self-directed shame are human circumstances worthy of consideration. But where you did not know the purpose, knowledge of that purpose cannot be generated from guilt."

Rajat's lips trembled.

"Sudip Ghosh."

Sudip sat upright.

"Your regret carries moral weight. But the Court cannot fill unavailable minutes with your later inference."

Sudip closed his eyes and opened them again.

"My Lady, then are our feelings meaningless in court?"

Justice Arya was silent for a few moments.

"Not meaningless. Emotion helps us understand the context of a statement—why someone spoke with greater certainty, why someone concealed something, why someone added something later, why someone withdrew something. But emotion is not a substitute for an unavailable fact in the external world."

Manoj's eyes filled.

Rajat looked down.

Sudip took a long breath.

Justice Arya continued, "Your dignity does not depend on having answers to every question. It also lies in being able to say 'I do not know' when you do not know."

The three remained silent.

After a few moments Manoj said softly, "It was hard to say that sentence before."

Rajat said, "It is still hard."

Sudip added, "But it makes the burden lighter."

No one laughed in the courtroom.

There was only a deep stillness that did not wholly mend the broken parts within the three witnesses, but gave them a place where those parts could be named.

◆
Justice Arya began to read the draft of the order.

"One—suspicion is a testable possibility arising from established material; it is not itself an allegation."

"Two—an allegation is a definite adverse assertion concerning a person, group, or event; it requires a subject-specific basis."

"Three—the value of evidence depends upon source, integrity, context, independence, legal admissibility, and relation to the proposition to be proved; number alone is not enough."

"Four—non-apprehension does not itself have a single cause. Expectation of generation, custodian, time, retention period, adequacy of search, technical access, alternative sources, legal protection, and independent deletion indicators shall be examined separately."

"Five—where generation was not expected, non-apprehension is not a basis for an adverse conclusion."

"Six—the absence of material whose retention period expired in the ordinary course shall not be treated as deliberate deletion unless there is a separate basis."

"Seven—expected material not found after an adequate search may carry limited evidentiary value, but its subject shall remain confined to the expectation relating to that unavailable material and the limits of the search."

"Eight—material not disclosed because of privilege, confidentiality, or legal protection shall not be treated as ordinary search-failure non-apprehension."

Vidyanand sat straighter at that line.

Devvrat too made a note.

"Nine—a witness's fear, greed, shame, regret, or sense of guilt may form part of the context of the statement; it is not independent evidence of anyone's guilt or of the contents of an unavailable fact."

"Ten—silence arising from an incomplete or incorrectly directed investigation shall not be used against the person concerned; it shall be recorded as a limit of the investigation."

Justice Arya turned the page.

"Eleven—there is no automatic progression from suspicion to allegation, from allegation to evidence, or from non-apprehension to guilt."

Malini underlined that sentence twice.

"Twelve—where the State or the defence corrects the scope of an assertion, the correction shall not automatically be read as victory, defeat, or an admission of fault."

Devvrat inclined his head.

Vidyanand did the same.

◆
Mrinal Dhar asked, "My Lady, the next step concerning material marked as privileged?"

Justice Arya did not close the papers.

"Some material had earlier been placed in the 'unavailable' category in the State's summary."

Mrinal said, "It has been separated in the supplementary note."

"The defence says it falls within lawyer-client privilege."

Vidyanand said, "Yes."

"The State says some portions are investigable facts or external records of transactions, not protected communications."

Devvrat said, "Yes."

Justice Arya clarified, "Today the Court expresses no final view on the merits of that dispute."

She set down her pen.

"But one thing is clear—silence arising because material is withheld under a claim of privilege shall not be used as adverse non-apprehension unless the boundary of the right is first determined."

Vidyanand said, "I am grateful."

Devvrat added, "The State accepts that limit as well, while reserving its right to seek examination of the claim."

"That question will arise at the High Court's next scheduled hearing."

A faint rustle passed through the courtroom.

Justice Arya continued, "There the question will be—where investigative necessity and the boundary of protected communication meet, and where they remain separate."

A line flashed in Aditya's mind like an old test of Gangesha—before deciding absence, know the limits of its locus. Here the locus concerned not only the place of the object, but also the domain of right.

◆
When the Court rose, the three witnesses met again on the same veranda.

Manoj looked first toward the light outside.

"Today I felt less ashamed to say 'I do not know.'"

Rajat smiled bitterly.

"It still hurts to say, 'I took the money.'"

Sudip said, "Pain and proof of a crime are different things—that settled in my mind today."

Rajat looked at him.

"Have you regretted it less?"

"No."

"Then?"

"I changed the object of the regret. I regret what I did. Not what I do not know."

Manoj nodded slowly.

From a short distance away, Ananya watched them, but did not raise her camera.

Three human beings outside a courtroom could have become a news image.

But not every image needed to be published.

In her notes Ananya wrote only—"The witnesses' emotions are not a substitute for evidence."

Then she closed the page.



The State's team came out.

Malini asked Aditya, "Whose side was the method on today?"

Aditya said, "Wherever the boundary of an assertion was corrected."

"The State stepped back in two or three places."

"The defence also accepted some established facts."

"Then who won?"

Aditya smiled.

"That question is not necessary yet."

Devvrat, walking ahead of them, turned and said, "And the Court made it clear that a correction does not mean victory or defeat."

Malini smiled.

"Right. I let the word spread beyond its boundary again."

Aditya said, "Keeping words from spreading is half the work in this case."

Closing his file, Mrinal asked, "And the other half?"

"Where words fall short, gather material."

For a few moments they were all silent.

Then Devvrat said, "The next hearing in the High Court is on privilege. There, the very act of gathering material will be the dispute."

Aditya's face grew serious.

"Yes. There the question will not be non-apprehension, but the right to obtain what is available."



That evening at the Ministry, Shiveshwar Prasad read the Court's brief order.

The Home Secretary sat before him.

The Minister asked, "The State's position?"

The Home Secretary replied, "Some assertions narrowed. The limits of some sources clarified. Some suspicions remain. The basis for some allegations is still incomplete."

"What are the media saying?"

"Mixed things. Some call it the State's retreat; some, a crisis for the defence."

Shiveshwar Prasad closed the order.

"Leave both headlines aside. What did the Court say?"

The Home Secretary read the central sentence—"There is no automatic progression from suspicion to allegation, from allegation to evidence, or from non-apprehension to guilt."

The Minister remained silent for a few moments.

"Put that sentence into the departmental instructions."

"Political response?"

"No."

"Why?"

"Because the State's task is not to turn suspicion into a slogan. It is to test it within the discipline of evidence."

The Home Secretary nodded.

"And privilege?"

"The legal team will speak within defined limits before the High Court. Not one word of political language about protected communication."

Evening was descending outside.

City lights gleamed on the glass of the chambers of power, but inside, the paper bearing the order seemed more solid.



When Aditya returned to the office that night, he placed four slips on his desk.

Suspicion.

Allegation.

Evidence.

Non-apprehension.

Malini added a fifth slip.

Privilege.

Aditya looked at her.

"That word does not belong in the same row."

"I know."

"Then why did you add it?"

"Because from tomorrow the problem changes. Today the question was—what does it mean when something is not found? Tomorrow the question will be—when something exists, who has the right to see it?"

For a few moments Aditya looked at the slips.

Non-apprehension was the silence of an object.

Privilege was a legal boundary.

From the outside the two could look the same—the paper was not before them.

But the cause was not the same.

And to write the consequence without the cause was contrary to Navya Nyaya.

Aditya said, "Keep the fifth slip separate."

Malini placed it a hand's breadth away.

"This much?"

"Not this much. Separate in meaning."

She smiled.

"The distance on the desk is only its symbol."

The night deepened.

The corridor outside emptied.

From somewhere far away came the faint sound of a printer.

Aditya wrote the final note—"The boundary of what was not found is made by the search; the boundary of what was deliberately not disclosed is made by right."

He put down his pen.

The next morning, the question would belong to the High Court.

The necessity of investigation would stand on one side.

The dignity of privilege would stand on the other.

And between them, once again, the same difficult task—giving boundary the language of evidence.

073 The Edge of Non-Apprehension — Chapter 8

The grey light of morning was spreading across the High Court's stone veranda.

As Aditya Jha climbed the steps, he remembered yesterday's four slips—suspicion, allegation, evidence, non-apprehension.

A fifth slip had been kept separate—privilege.

Today that separation was to become the Court's question.

Malini Karn was already waiting for him.

In her hand was a slim table.

At the top was written—"Classification of Reasons for Non-Produced Material."

Aditya looked at the page.

First category—searched for, not found.

Second—not expected to have been generated.

Third—technically inaccessible.

Fourth—retention period expired.

Fifth—not produced because of a claim of privilege or confidentiality.

Sixth—under the Court's sealed review.

Seventh—source identification incomplete.

Eighth—awaiting a separate legal order.

Malini asked, "Should I remove the word 'unavailable' from the fifth category?"

Aditya said, "Yes. Write 'not produced.'"

"Is the difference so great?"

"Here, it is. 'Unavailable' sounds like a failure of search. 'Not produced' says that the thing may exist, but has not been brought forward for a legal reason."

Malini changed the line.

"And if the claim is disputed?"

"Then disputed non-production. The question of existence, the question of entitlement, and the question of contents are separate."

Malini said softly, "Meaning: name the reason for the silence first."

"In Navya Nyaya, absence has no meaning without the locus of absence."

The footsteps of advocates were growing more frequent along the veranda.

Aditya handed the table back.

"Today categories will be more useful than many words."

◆
When Justice Arya took the Bench, the courtroom became still.

For the State were Attorney General Devvrat Sinha, Solicitor General Mrinal Dhar, Aditya, and Malini.

For the defence sat Vidyanand Mishra, Ishan, and their team.

Justice Arya read the final line of yesterday's order.

"Silence arising from material withheld under a claim of privilege shall not be used as adverse non-apprehension unless the boundary of the right is first determined."

She put the paper down.

"Today I want the practical meaning of this sentence."

Devvrat rose.

"The State is ready."

Vidyanand said, "So is the defence."

Justice Arya called for Malini's table.

After reading it for a few moments, she said, "This classification is useful. But first one question—material not produced because privilege is claimed must not be described by anyone as 'not found.'"

Devvrat said, "The State agrees."

Vidyanand too inclined his head.

"Second question," Justice Arya said. "Does the making of a privilege claim by itself establish that the claim is valid?"

Vidyanand replied, "No. The claim is reviewable, but the review should not begin by opening the protected contents themselves."

"The State?"

Devvrat said, “Agreed. The State may seek the minimum particulars of existence, date, sender and recipient, general nature, pre-existing attachments, external source, and the asserted basis of the claim, to the extent those particulars do not disclose privileged contents.”

Justice Arya looked toward Vidyanand.

“Objection?”

“Depends on the level of detail.”

“Very well. Then today we shall determine that level.”

Pens began moving across the courtroom.

Justice Arya added, “And third—on seeing silence caused by a privilege claim, the State shall not say that the silence itself proves anything adverse.”

Aditya’s eyes met Devvrat’s.

Devvrat answered plainly, “The State advances no such proposition.”



The first disputed group consisted of an email chain.

Eighteen entries in the defence privilege log bore the same description—“Confidential communication concerning legal advice.”

Justice Arya said, “Eighteen separate entries, one description. That may be insufficient for review.”

Vidyanand rose.

“My Lady, further detail can sometimes disclose the very subject of the advice.”

“I am not asking for the contents of the subject. Date?”

“That can be given.”

“Sender and recipient?”

“In most instances, yes.”

“Was any third person included?”

Vidyanand paused.

“Where there was one, the effect of that person’s involvement on the claim can be stated separately.”

“Was there an attachment?”

“The existence of an attachment can be stated, but its name may sometimes itself be sensitive.”

Justice Arya said, “Then not the name. Only this—pre-existing business record, note created by counsel, statement created by the client, or mixed material.”

After conferring in a whisper with his team, Vidyanand answered, “That level is possible.”

Devvrat said, “A sufficient beginning for the State.”

Justice Arya continued dictating the order.

“The privilege log shall make the claim capable of review without, in the name of review, disclosing the protected contents.”

Malini underlined the sentence.

She remembered that only a few months earlier, on seeing the word ‘privileged,’ she had treated the existence of the entire communication as one undifferentiated darkness.

Today even darkness was being classified.



Devvrat picked up the first sample.

“Item thirty-two. The privilege log says—‘attachment containing a pre-existing payment summary sent for legal advice.’ The State’s question concerns only the original source of the attachment.”

Vidyanand said, “Privilege does not attach to the fact of the original payment summary itself, but which version was sent to counsel, on what date, and in what context may disclose legal strategy.”

Justice Arya asked, “Did the State search for the original source?”

Aditya rose.

“Three sources were examined—the payment-gateway records, the institution’s accounting repository, and the records of the external coordinator.”

“Result?”

“Partly matching records were found in two sources. The third source’s retention period had expired.”

“Then why the lawyer’s file?”

Aditya replied, “The State’s initial request was broad. We are now narrowing it. To the extent the original payment summary can be verified from independent sources, there is no need for counsel’s communications.”

Vidyanand looked at Aditya.

“And the portion not found in the independent sources?”

“Its non-apprehension does not by itself establish that the copy in counsel’s file is true, complete, or evidence of anyone’s culpability.”

Justice Arya asked, “Then what does the State seek?”

“Only that the privilege log state whether the attachment is a copy of a pre-existing record or material created by counsel. Not its contents.”

Vidyanand said, “The defence agrees to that limited proposal.”

Justice Arya wrote, “Where an independent source is available, the copy within protected communications shall not be the investigation’s first route to a pre-existing payment record.”



The second sample was harder.

It was a chain of fourteen messages between a client and Vidyanand Mishra.

The privilege log said only, “Urgent legal advice.”

The State’s external records showed that immediately before the time of this chain an administrative user key had been activated and, a few hours later, deactivated.

Devvrat said, “The State does not seek the contents of the messages. The question is whether the chain contained any pre-existing system record as an attachment.”

Vidyanand replied, “The privilege log can state whether there was an attachment.”

“And the type of attachment?”

“A general category.”

Justice Arya asked, “Why does the State want that fact?”

Devvrat said, “Because part of the external system record is unavailable. If a matching pre-existing record was sent to counsel, the State may be able to identify a route for searching again for the original source.”

Vidyanand said at once, “This caution is essential. If the State says ‘it must be in counsel’s file,’ it will once again leap from non-apprehension to existence.”

Devvrat replied, “The State will not say ‘must.’”

Justice Arya looked toward Aditya.

“Investigative proposition?”

Aditya said, “There is a gap in time in the external source. A pre-existing record may have been generated during that gap—that much is suspicion. That it is in counsel’s file is not established. That the client sent it to counsel is also not established. The privilege log can clarify only the category of existence.”

“And if the privilege log says—no pre-existing system record was attached?”

“Then the State will test the truth of that answer against external sources to the extent possible, but it will not seek a right to open the messages merely because privilege is claimed.”

Justice Arya wrote, “The possibility of an unavailable external record does not create a general right to search within protected communications.”

Malini underlined that sentence too.



The third dispute centred on “silence.”

An old State search summary contained the line—“Internal correspondence relating to the period of legal advice unavailable.”

Vidyanand said, “My Lady, this line is misleading. The correspondence is not unavailable; the defence has claimed privilege over its production.”

Devvrat looked at the line.

“The State accepts the correction.”

Justice Arya asked, “The new line?”

Mrinal Dhar replied, “The existence of certain communications concerning the relevant period is recorded in the privilege log; contents not produced; claim under review.”

Vidyanand said, “Proper in that form.”

Justice Arya looked at Aditya.

“Is this merely a linguistic correction?”

Aditya said, “No, My Lady. It is a correction of evidentiary scope. The old line could be read as a failure of search; the new line records legal non-production.”

“Does the conclusion change?”

“To the extent the old summary treated silence as an indication based on non-apprehension, that part will change.”

For a moment the courtroom was silent.

Justice Arya said, “Let the record be clear—changing one word on paper may sometimes change the boundary of a conclusion.”

In her correction register, Malini wrote three categories—linguistic correction, correction of evidentiary scope, change of conclusion.

The lesson in that sequence had been running since Chapter 068 and had now become useful again, this time in relation to privilege.

During the recess, Vidyanand Mishra stood alone at one end of the veranda.

Two missed calls from Shailaja were glowing on his mobile phone.

He did not return them at once.

The private crisis that had accompanied him for the past few weeks had not ended.

But inside the courtroom he had never used that crisis as an argument for sympathy.

Aditya saw him from some distance away, but did not approach.

Vidyanand himself turned and said, "Officer, today your team chose the words 'not produced.' A good choice."

Aditya said, "After yesterday's order, no other wording would hold."

Vidyanand smiled.

"Many people think privilege is a convenience for lawyers."

"And you?"

"It marks the boundary of a party's legal trust. But if that boundary becomes opaque, suspicion of misuse is natural too."

Aditya said, "Which is why the claim must remain reviewable."

"Yes. Reviewable, but not destroyed by the very process of review."

For a few moments neither spoke.

Vidyanand looked at his mobile phone.

"Sometimes life is like that too. Not everything can be said, but silence does not mean whatever the person opposite wishes it to mean."

He added at once, "That is not a judicial argument. It is private weariness."

Aditya replied, "So long as the boundaries of the two remain separate, that is all right."

Vidyanand laughed softly.

"You look for boundaries in everything."

"In this case, for now, boundaries are about all that is keeping things intact."

Vidyanand called Shailaja and walked toward the other end of the veranda.

Aditya turned back toward the courtroom.

After the recess, Justice Arya raised a sensitive question.

"At one place in the State's written note it is said that if a communication was made for the purpose of furthering an alleged improper act, the claim of privilege may be limited."

Vidyanand rose immediately.

"My Lady, the defence objects strongly. If such an exception is opened merely on the basis of the investigation's allegation, privilege will become meaningless."

Devvrat said, "The State will not rely on allegation alone."

Justice Arya asked, "Then what is the test?"

Devvrat replied, "Without first seeing the contents of the protected communication, independent material already available must disclose a specific basis sufficient to justify judicial examination of the exception. Silence alone, a privilege claim alone, or temporal correspondence alone is not enough."

Vidyanand said, "And if examination is considered necessary, it should first be a limited judicial examination, not direct access by the investigative team."

Justice Arya said, "The State?"

"Agreed at this stage."

"Then the order will record—a claim of privilege is not by itself an adverse indication; an exception capable of defeating the claim does not arise merely from an allegation. An independent basis must come first."

She paused.

"And the Court is not at present finding that any such exception applies."

Aditya paid particular attention to that final line.

Filing was not an order.

Examination was not a conclusion.

Allegation was not an exception.

Five coloured slips now lay before Malini Karn.

Green—available from an independent source.

Yellow—privilege claimed; minimum log available.

Grey—claim under review.

Blue—possible sealed judicial review.

Red—independent investigative foundation required.

She showed the slips to Aditya.

"There is no 'not found' anywhere in this classification."

“Not in this group.”

“But some original records truly were not found in external sources.”

“They belong in a separate table.”

“Shall I link the two tables?”

“Link the reference numbers, not the conclusions.”

Malini smiled.

“Your favourite rule—two sources do not become independent merely because they appear on the same page.”

“And two legal states of the same record do not become one.”

She placed the two tables side by side.

The first—search non-apprehension.

The second—legal non-production.

Some entries would cross-reference one another, but no entry would move from one category into the other without a reason.

Malini asked, “What if a record is not found in an external source and the privilege log says that an attachment of a similar nature exists?”

Aditya replied, “Then there are two facts—the record was not found in the external source; an attachment of a similar nature is claimed to exist within a protected communication. A separate basis is needed to establish identity between the two.”

“The same name?”

“A name is not enough.”

“The same date?”

“Supportive, but not enough.”

“A hash?”

“If the hash of a lawfully available original copy and that of a separately available copy are identical, identity may be established. But whether one has the right to break privilege in order to obtain the hash is a separate question.”

Malini wrote on the slip—“The means of proving identity and the right to obtain that means are separate.”

Aditya nodded.

◆
In the next part of the afternoon, the Court put five hypothetical examples, based on facts agreed by the parties and making no finding against any person.

First—a tax table created earlier in the accounts department and later sent to counsel.

Justice Arya asked, “The underlying fact?”

Devvrat said, “It may be searched for from an independent source.”

Vidyanand added, “Counsel’s selection, comments, and context may be privileged.”

“Second—a purely legal opinion written by counsel to the client.”

Vidyanand said, “At the heart of privilege.”

Devvrat said, “The State does not seek the contents.”

“Third—a factual statement sent by the client to counsel, for which external support is unknown.”

Devvrat said, “The existence of the statement may be minimally recorded in the privilege log; the contents do not thereby become available.”

Vidyanand said, “And the State should test the facts through external sources.”

“Fourth—a chain including counsel, the client, and an unrelated third person.”

Vidyanand replied, “The scope of privilege depends on the third person’s role; no conclusion follows merely from seeing the name.”

“Fifth—a document exists, but is under sealed judicial review.”

Devvrat said, “Inaccessible to the investigative team, but not search-failure non-apprehension.”

Justice Arya said, “Exactly. These five examples serve one purpose—‘not before us’ is not a single-cause expression.”

The sentence settled in Aditya’s mind like a sutra of Gangesha Upadhyaya—one appearance, different relations.

◆
Ishan, a junior advocate for the defence, raised a new objection.

“My Lady, the State’s summary places great emphasis on gaps in time. If a message is sent at precisely the time when the external system record has a gap, the State calls the temporal correspondence an indication. Does that not place indirect pressure on privilege?”

Justice Arya looked toward Devvrat.

Devvrat said, “Temporal correspondence does not itself establish contents. But the sequence of external events may raise a question for examination.”

Vidyanand said, “Raising a question and acquiring a right to protected contents are separate.”

“Agreed,” Devvrat said.

Justice Arya asked Aditya, “If temporal correspondence is all there is, what will the State write?”

“The existence of a contemporaneous communication is recorded in the privilege log; contents unknown; relationship to the external event unestablished.”

“And what will it not write?”

“It will not say, ‘the communication proves the cause of, instruction for, approval of, or knowledge of the external event.’”

Justice Arya said, “Good.”

For a moment Malini looked toward Aditya.

Even that small self-correction reflected the discipline of the courtroom.

Justice Arya dictated into the order—“Temporal correspondence may furnish a reason to examine a relationship; it is not proof of the relationship.”



In the final hour of the hearing, the Court came to the intersection of the chain-of-custody register and privilege.

An image of magnetic storage obtained from an external collector contained certain communication references, but the actual message contents were held in a separate protected repository.

The hash of the State's image had been preserved.

The claim of privilege concerned the actual message contents.

Justice Arya asked, “What does hash identity establish?”

Aditya replied, “Integrity within the scope of the image that was acquired. Not the truth of the contents, and not the completeness of the external or protected repository.”

“The existence of the communication references?”

“To the extent the references appear in the image.”

“Are the actual messages available?”

“Not to the investigative team. They have been kept separately under a claim of privilege.”

“Then should the summary say ‘messages unavailable’?”

Aditya said, “That wording should be removed. ‘Message contents not produced to the investigative team; claim under review.’”

Vidyanand said, “The defence agrees.”

Justice Arya asked, “The chain-of-custody register?”

Mrinal Dhar said, “The chain of custody for the image is separately complete. The protected repository remains in the custody of the defence custodian; the State's register does not establish its history.”

Justice Arya said, “Then the State will draw no conclusion about the history of the protected repository from the silence of its own register.”

“Agreed.”

Malini wrote—“The scope of the chain-of-custody register is also a locus.”

Aditya looked at the line.

An old word from his student days—locus—was alive again amid modern computational records.



Justice Arya began reading the principal portions of the order.

“One—material not produced because of a claim of privilege or confidentiality shall not be classified as ordinary search-failure ‘non-apprehension.’”

“Two—a privilege claim does not itself establish the validity of the claim, but the existence of the claim is not itself an adverse indication either.”

“Three—a minimum privilege log may be used to make the claim reviewable, provided the log does not improperly disclose protected contents or legal strategy.”

“Four—where the facts contained in a pre-existing business or external record are available from an independent source, the State shall first use that route.”

“Five—counsel's selection, compilation, comments, questions, and legal response are to be examined separately from the underlying facts.”

“Six—the failure to find a record in an external source does not by itself establish that the same record exists within a protected communication.”

“Seven—the mention in a privilege log of an attachment of a similar nature does not by itself establish identity with an external record that was not found.”

“Eight—temporal correspondence, similarity of name, or similarity of subject may raise a question of relationship; they do not establish the relationship.”

“Nine—an independent basis is required before examining any exception to privilege; allegation alone, silence alone, or the claim alone is insufficient.”

“Ten—material under seal or judicial review may be inaccessible to the investigative team, but shall not be described as ‘non-existent’ or ‘not found in the search.’”

“Eleven—hash values, chain-of-custody registers, and computational images carry evidentiary value only within their respective scopes; they do not themselves determine the legal boundary of privilege.”

“Twelve—where the investigative team has not lawfully seen the contents of material, neither the State nor the defence shall make definite assertions about those contents.”

She closed the page.

“The purpose of this order is neither to stop the investigation nor to make privilege unlimited. It is to preserve distinctions between causes.”

Vidyanand inclined his head.

So did Devvrat.

◆
When the Court rose, Ananya Kashyap was waiting on the veranda.

She asked Devvrat, “Has the Court reduced the State’s access?”

Devvrat said, “The Court has clarified the limits of access.”

“A victory for the defence?”

Vidyanand, who was passing nearby, did not stop.

From behind them he said, “An attractive question for making a headline; less useful for understanding the order.”

Ananya smiled.

Aditya came out.

She asked him, “Then one line for today?”

Aditya said, “When something is not before you, ask first why it is not before you.”

“That short?”

“A short sentence leaves less room for improper enlargement.”

Ananya wrote in her notebook—“Not produced ≠ unavailable ≠ non-existent.”

Then she asked, “Can I print this?”

Aditya said, “Remove the symbols and put it into words.”

“Why?”

“Symbols on a working paper are not the language of news.”

Ananya wrote—“Material not produced, material not found in a search, and material that does not exist are three different conditions.”

“In this form?”

“Good.”

◆
That evening the State’s team gathered at the Ministry for a brief review.

Shiveshwar Prasad was reading a copy of the order.

He asked, “Loss to the State?”

Devvrat said, “Some broad language will be removed. Some searches for independent sources will expand. Some claim logs will become clearer.”

“Gain?”

Devvrat replied, “Whatever conclusions survive will be more durable.”

The Minister looked toward Aditya.

“And the political meaning?”

“To manufacture a political meaning for a judicial order at this stage would be improper.”

Shiveshwar Prasad smiled faintly.

“That is the answer I expected.”

He told the Home Secretary, “In the departmental summary, keep ‘not produced because of privilege’ as a separate category. No officer is to write ‘not found’ and attach an adverse indication to it.”

The Home Secretary wrote it down.

“And sealed material?”

“The Court’s boundary. No political comment.”

The Minister closed the order.

“Trust is preserved not by words, but by discipline in the record.”

◆
After the office had emptied for the night, Aditya remembered an old journey to Patna.

That night by the Ganges, when the first edge of non-apprehension had opened from the final stage of postulation, came alive within him again.

That night the waves had touched the stone and withdrawn, and he had asked—what is not visible, is it truly not there?

Today the question had changed slightly.

What is not before us—why is it not before us?

Was it searched for and not found?

Was it never generated at all?

Was it lost with time?
Is it technically inaccessible?
Or was it not opened because of a legal boundary?
The memory of Gangesha Upadhyaya returned not like a page of a book, but like a way of learning.
His teacher had once said—before you speak of absence, know its locus; before you speak of relation, know its delimitor.

Aditya looked into the darkness beyond the window.
The lights of the city were reflected in the glass.
In his mind was the Ganges.
The water flowed through darkness, but darkness was not the absence of water.
Not being visible and not existing are not the same thing.
Not being spoken and not being there are not the same thing.
Not being opened and not being found are not the same thing.
He opened his notebook.
He wrote—“The meaning of non-apprehension is bound to its cause.”
A second line—“Do not turn legal silence into factual absence.”
A third—“The boundary of privilege is not the defeat of investigation; it is a test of investigative method.”
He put down his pen.
From somewhere far away came the muted sound of a night train.
Only the smell of paper and the low hum of machines remained in the room.



Before leaving, Malini came in carrying a new file.

“For the next hearing.”

Aditya read the title—“Sealed Material and the Investigation Diary: Confidentiality, Access, Evidentiary Value.”

He looked up.

“The chapter is changing.”

Malini said, “Because the reason is changing again. This time the material exists, but the questions are who may see it and what evidentiary value attaches to what is written in the diary.”

Aditya opened the file.

On the first page Malini had written four lines—

Sealed ≠ true.

Diary ≠ evidence.

Confidentiality ≠ guilt.

Judicial observation ≠ final conclusion.

Aditya smiled.

“Keep these lines safe for tomorrow.”

“Why?”

“Because the Court will ask, and we will answer. We need not turn them into slogans in advance.”

Malini closed the page.

The night deepened further.

Aditya switched off the light.

As he stepped out onto the veranda, he remembered the water of the Ganges again—the scene changed, the boundaries changed, but method kept asking for the same thing.

What exists, say only as much of it as is established.

What does not exist, do not name its cause without a basis.

And what has not been opened, do not turn its silence into the language of guilt.

074 The Edge of Non-Apprehension — Chapter 9

The first light of morning had not yet spread fully.

Malini Karna sat in her room with three files open before her.

On the first was written—“Sealed Material.”

On the second—“Investigation Diary.”

On the third—“Facts Independently Established.”

All three files concerned the same case, but the evidentiary value of the three was not the same.

Until yesterday, that sentence had seemed to her like a principle.

Today it was to undergo its practical test in court.

She had prepared a table.

The first column—“What was observed.”

The second—“Where it was recorded.”

The third—“By whom it can be independently tested.”

Her hand stopped as she began the fourth column.

She wrote—“Evidentiary value.”

Then she struck the words out.

Aditya Jha entered the room.

He saw the crossed-out words.

“Why did you strike that out?”

Malini said, “Because I should not be the one to write the evidentiary value. I can state the status of the material, but the Court will determine its ultimate weight.”

Aditya gave a faint smile.

“There are many lessons in that one deletion.”

Malini changed the heading of the fourth column—“Present limit of use.”

Aditya looked at all three files.

“Today the relationship among these three will be questioned. Which file an item sits in is less important than the limit to which it may be used.”

Malini said, “What was seen in sealed material cannot be treated as an open fact.”

“Yes.”

“What is written in the investigation diary cannot be treated as evidence.”

“Yes.”

“What is found in an independent source may become evidence within its own limits.”

“If its source, custody, authenticity, and relationship are established.”

Malini added a new line—“Independent ≠ self-proving.”

Aditya said, “This time you are not writing a slogan first. You are writing a boundary.”

Malini asked, “The difference?”

“A slogan gives an answer. A boundary keeps the question alive.”

Footsteps were increasing in the veranda outside.

The hour of court was drawing near.



Justice Arya took the bench.

For the State were Attorney General Devvrat Sinha, Solicitor General Mrinal Dhar, Aditya, and Malini.

For the defence, Vidyanand Mishra and his team were seated.

A court officer placed a sealed box and two sealed envelopes before the Court.

Justice Arya said, “Yesterday we separated material rendered unavailable by privilege from material not found after a search. Today we shall examine another distinction.”

She lifted the first sheet of paper.

“The relationship among sealed material, the investigation diary, and independent evidence.”

Vidyanand rose.

“My Lady, the defence apprehends that the shadow of confidential material enters the diary, summons are then issued from the diary, and the answers that later arrive are called ‘independent corroboration.’”

Devvrat said, “The State does not oppose that apprehension in the abstract. The question should be examined entry by entry.”

Justice Arya looked at Aditya.

"Your revised table?"

Aditya signalled to Malini.

Malini stood.

"My Lady, the table contains five categories."

"Read them."

"One—investigative direction only; no evidentiary reliance on the contents."

She stopped at once.

Justice Arya raised an eyebrow.

Malini corrected herself. "Forgive me. Investigative direction only; no evidentiary claim as to the contents."

Justice Arya said, "Go on."

"Two—a question arising from a sealed source, but the answer obtained from an independent external record; the source of the question separately identified."

"Three—the State seeks direct reliance on some part of the sealed material; such a situation would require a separate judicial order."

"Four—a hypothesis or direction in the investigation diary; not itself evidence."

"Five—an independent record whose route of acquisition may have been prompted by confidential material, but whose existence, authenticity, and meaning are separately testable."

Justice Arya asked, "Why is there no sixth category?"

Malini was silent for a moment.

"Which one?"

"A failed direction."

Malini answered at once, "There should be. A direction that was disproved, or one for which no answer was found, should not be erased."

Aditya looked at her.

Malini added a sixth line—"Failed or inconclusive direction; recorded, but no adverse conclusion."

Justice Arya said, "Now I can regard this table as useful."

Vidyanand said, "I have one request as well—if the State truly relies on a proposition against someone, its essential meaning should not be concealed so completely that challenge becomes impossible."

Devvrat replied, "Where protection of source identity is necessary, complete disclosure may not be possible."

Justice Arya said, "Then the question will be whether the State can conceal the source while providing an adequate summary of the proposition; if not, the limit of the State's reliance will contract."

Silence spread through the courtroom.

That sentence was separating the question of the seal from the question of truth.

◆

The first disputed entry concerned an alternative administrative identifier.

In the sealed material, a confidential source had written that, in one service account of the alleged offshore group, a second identifier was used in addition to the regular identifier.

The investigation diary later recorded—"Two identifiers possibly indicate a single administrative control."

A summons was then sent to the service provider.

The response supplied login times for the two identifiers and some network addresses, but no definitive identity of the actual user.

Devvrat said, "The State relies on the correspondence of login times and the shared network address."

Vidyanand immediately asked, "And 'single control'?"

Devvrat replied, "That was a diary hypothesis. The State does not call it an established fact."

Justice Arya looked at Malini.

"What does your table say?"

Malini read, "Sealed information—two identifiers. Diary—possibility of one control. Independent response—some temporal correspondence and a shared network address. Conclusion—control confirmed."

She stopped as soon as she read the last words.

Aditya said nothing.

Justice Arya asked, "What is confirmed?"

Malini kept looking at the page.

"No, My Lady."

"Then what is confirmed?"

"Only that some logins under the two identifiers are recorded from the same network address, at times close to one another."

"And the same person?"

"Not established."

"The same administrative control?"

"Not established."

"The whole statement of the sealed source?"

"Not established."

Malini picked up her red pen.

She struck out "control confirmed" and wrote—"Login correspondence established; user/control unresolved."

Justice Arya said, "Record the reason for this amendment as well."

Malini wrote—"The independent record is consistent with only one part of the sealed statement; the remainder of the statement lacks independent support."

Vidyanand said, "My principal objection on this entry is at an end."

Devvrat nodded.

Justice Arya said, "Consistency is not complete corroboration. This Court—"

She stopped herself.

"This Court will not use words that say more than the record."

For the first time, the marks of deletion did not shame Malini.

It seemed to her that correction was not a defeat of fact, but the restoration of fact to its true dimensions.



The second entry concerned a change in the timing of a payment route.

A source memorandum was inside the sealed envelope.

The memorandum claimed that, after a particular date, the payment route had deliberately been changed.

The investigation diary recorded—"Route changed immediately after warning; causal relationship possible."

Independent bank records showed that the method of receiving payment changed during that week.

Vidyanand asked, "Do the bank records show the warning?"

Mrinal Dhar replied, "No."

"Do they show the cause?"

"No."

"Only the timing of the change?"

"Yes."

Vidyanand said, "Then 'after the warning' in the diary is chronology; 'because of the warning' is interpretation."

Justice Arya said, "State?"

Devvrat replied, "Accepted. The State relies on the chronology, not on the cause."

Malini wrote in her table—"Chronology ≠ cause."

Aditya said quietly, "That line is not only for this entry."

Justice Arya heard him.

"Correct. An investigation diary often records hypotheses about relationships among events. A hypothesis is the beginning of a test, not the end of proof."

Vidyanand asked, "Then what part of the sealed memorandum can come before the defence?"

Devvrat said, "With source identity removed, this summary—"There is a claim that a warning was received before the stated date."

Vidyanand replied, "If the State does not rely on causation, why must we contest the confidential claim of a warning?"

Justice Arya said, "Fair. If the State will use only the chronology in the bank record, the sealed claim is unnecessary in the open dispute. Record in the order that the State does not presently rely on the causal proposition."

Malini struck out another line.

This time she understood clearly that some facts, though seen by the Court, do not thereby become the basis of argument.

What has been seen and what may lawfully be used are not the same thing.



The third entry was more difficult.

It was a sealed digital image whose source identity had been kept confidential.

A portion of an administrative control panel was visible in the image.

A user marker, a time, and a service name could be read.

On that basis the investigation diary recorded—"Direct indication of internal administrative access."

Vidyanand said, "We know neither the source, nor the device, nor the method of collection, nor the full context of the original image. In that event the expression 'direct indication' is itself disputed."

Devvrat said, "Disclosure of the source's identity may create security-related difficulties."

Justice Arya asked, "At what level does the State seek to rely on this image?"

Devvrat was silent for a few moments.

"For now, as investigative direction and as a reason to search for independent sources."

"Direct evidence?"

"No."

"Then 'direct indication' in the diary?"

Aditya rose.

“My Lady, that language is too broad. The State proposes to amend it to ‘investigative direction arising from an image supplied by a confidential source.’”

Vidyanand said, “Let the original language remain in the correction register.”

“It will,” Aditya replied.

Justice Arya said, “And the hash of the image?”

Malini stood.

“The hash of the copy received and the copy deposited before the Court are identical.”

“What does that establish?”

Malini was about to answer at once.

Then she paused.

“It establishes that the two copies being compared are identical.”

“From what device was the image made?”

“The hash does not say.”

“Is what appears in the image true?”

“The hash does not say.”

“Was it a complete screen or a cropped portion?”

“The hash does not say.”

“Is the source reliable?”

“The hash does not say.”

Justice Arya said, “Good. Integrity may answer one question; origin, completeness, and truth are separate questions.”

Malini remembered the earlier hearing on hashes.

But today the distinction was being applied in a new place.

She wrote—“Hash: identity of material; not truth of source.”

Vidyanand said, “If in future the State seeks direct reliance on the contents of this image—”

“If the State seeks direct reliance on the contents of this image, an adequate opportunity to challenge it will be necessary.”

Justice Arya said, “Yes. Source protection may be important, but confidentiality does not itself generate evidentiary value. As the State’s proposed use grows, the question of the defence’s right to challenge grows with it.”

Devvrat said, “The State will not go beyond that limit at present.”

During the midday recess, Malini stood alone on the court veranda.

She held the three pages of the table in her hand.

From a distance the red deletions looked like wounds.

Aditya came and stood beside her.

Malini said, “How many times can one make the same mistake?”

“Which mistake?”

“If something corresponds, I treat the whole statement as confirmed. If a hash exists for a sealed image, I assume its truth has somehow increased. If something is entered in the diary, I add evidentiary value to its historical significance.”

Aditya looked out beyond the veranda.

“The mistake is not repeating. The level is changing.”

“The difference?”

“First you learned to separate an object from its absence. Then the unproduced from the unavailable. Today you are separating levels of fact.”

Malini remained silent.

Aditya said, “One time, one name, one network address—those may be facts. ‘Therefore this person controlled it’—that is a conclusion. ‘The reason for this conclusion is that a confidential source said so’—that is a description of the source. ‘This was written in the diary’—that is the history of the investigation. The problem begins when all four are folded into one sentence.”

Malini asked, “Then what is the discipline of fact?”

“To remain only as large as its source and its test permit.”

“And the discipline of the analyst?”

“Do not dress your conclusion in the clothes of fact.”

Malini laughed.

“That is severe.”

“Navya Nyaya draws hard boundaries in gentle words.”

The bell marking the end of the recess rang.

Malini gathered her pages.

The deletions no longer looked like wounds, but like lines on a map.

After the recess, Justice Arya asked for the investigation diary.

The entire diary was before the Court, but the defence had limited access to it.

Vidyanand said, "I am not asking for confidential source identities. I want to know which earlier diary hypothesis gave rise to each of the five things the State now calls independent facts."

Devvrat said, "If the whole diary is opened, many unrelated investigative directions, witness safety, and future steps may be affected."

Justice Arya said, "Then not the whole diary. Prepare an index of entries."

Mrinal Dhar asked, "With what particulars?"

"Date, the general subject of the question, whether the direction succeeded, failed, or remained inconclusive, and whether the State presently relies on its outcome."

Vidyanand said, "The original wording of the hypothesis?"

Justice Arya replied, "Where the State relies on a present conclusion, provide a summary sufficient for challenge. Where it does not rely, there is no reason to open unnecessary confidential material."

Devvrat said, "That can protect source identity."

Vidyanand said, "And leave us able to understand from what earlier direction each independent fact arose."

Justice Arya said, "That is precisely the purpose."

The court officer continued writing the order.

"An investigation diary is a history of investigation," Justice Arya continued, "but an entry in that history is not itself the event. It shows what the officer thought, what was tested, what was abandoned, what was changed. For that reason a transparent account of its limits is useful; for that same reason it is improper to turn every inference within it into evidence."

Aditya wrote on his copy—"Diary = history of method; event = independent test."

Malini asked, "My Lady, should failed directions remain in the index?"

"Certainly."

"Even if they weaken the State's present theory?"

Justice Arya looked directly at her.

"Especially then."

For a moment the courtroom was utterly still.

Malini underlined the sentence.

The discipline of fact was not only a boundary around what had been found.

What had been searched for and not found, what directions had failed, what inferences had been abandoned—all of that too formed part of the honesty of the method.

The next dispute concerned a "not found" entry.

The diary recorded—"Search for audio recording of internal meeting; instructions may possibly have been recorded there."

Three sources were examined—the seized computational image, the authorised shared repository, and the service provider's available retention.

No audio recording was found.

A later diary entry recorded—"Possibility that the audio recording was deleted."

Vidyanand said, "Any independent basis for this 'possibility'?"

Aditya rose.

"No. It was a hypothesis recorded at the time because the recording was not found in the expected locations."

"Was the meeting held?"

"There are independent calendar indicators that a meeting took place."

"Was an audio recording made?"

"Not established."

"Then 'was deleted'?"

"Not established."

Vidyanand sat down.

Justice Arya said, "In this part of non-apprehension, this is especially important. A diary may record a hypothesis about the cause of an absence; that hypothesis must not later be cited as though it were the established cause."

Malini asked, "Then the status in the index?"

Aditya waited for her answer.

Malini herself said, "Evidence that the meeting occurred is available. Whether an audio recording was ever created—unresolved. No audio recording was found in the three specified sources. No independent indication of deletion. Diary hypothesis—not evidence."

Justice Arya said, "The Court has no objection to that language."

Malini wrote it down.

It seemed to her that non-apprehension was no longer merely the absence of an object, but also a discipline concerning its cause.

◆
Before evening, the Court reached its final arrangement.

Justice Arya read out the principal points of the order.

“One—sealed material shall not be treated as true or authentic merely because it is sealed.”

“Two—a hypothesis, direction, suspicion, or interpretation recorded in the investigation diary is not itself evidence.”

“Three—an independent record obtained through a direction originating in sealed material or the diary shall be separately tested on the basis of its own source, authenticity, custody, and meaning.”

“Four—if the State seeks direct reliance on the contents of any confidential material, the Court will separately consider source protection, adequate opportunity to challenge, and the necessity of the proposed use.”

“Five—where the State relies only on independent external facts, unnecessary confidential contents shall not be introduced into open argument.”

“Six—failed, disproved, and inconclusive investigative directions shall remain recorded to the extent relevant; history shall not be rewritten by selecting only successful directions.”

“Seven—before ‘not found’ is treated as ‘was destroyed’ or as the act of a particular person, it is necessary to test expected creation, source, adequacy of search, retention, alternative location, and any independent indication of deletion.”

Vidyanand rose.

“My Lady, the defence seeks one clarification—if the index marks a direction as ‘not presently relied upon by the State,’ it should not later be used at a future hearing without prior notice.”

Devvrat said, “If circumstances change, the State will give written reasons for changing its position.”

Justice Arya said, “Make that assurance part of the order.”

Mrinal Dhar wrote it down.

Justice Arya closed the page.

“Confidentiality does not close the Court’s eyes; but the mere fact that the Court’s eyes have seen something does not turn the material into evidence.”

She rose.

The hearing ended.

◆
As they left the Court, Malini was unusually quiet.

Aditya walked some distance without asking anything.

At the foot of the stairs, Malini herself said, “I used to write the word ‘fact’ far too easily.”

Aditya said, “Every analyst does.”

“Today I understood that there are levels even within a fact.”

“An example?”

Malini counted them.

“One—what marker appears in the record.”

“Two—from what source that marker came.”

“Three—how testable that source is.”

“Four—how direct the relationship is between the marker and the proposition.”

“Five—whether we are stating a proposition or a conclusion.”

“Six—what limit the Court places on its use.”

Aditya said, “And seven?”

Malini thought.

“What we do not know among all these—we leave blank.”

Aditya smiled.

“That seventh line is the hardest to practise.”

Malini said, “When the mind sees a blank, it wants to fill it.”

“Non-apprehension is a lesson against that very temptation.”

They moved toward the car.

Malini looked back at the court building.

The sealed box had gone back inside.

The diary was being returned to custody.

But the boundaries drawn around them were now clearer.

◆
That evening, back at the office, Malini opened the old table again.

In place of the heading “Fact,” she wrote—“Established part.”

She left “Present limit of use,” already written in place of “Evidentiary value,” unchanged.

Then, instead of six colours, she created six verbal markers.

“Direction.”

“Hypothesis.”

“Independent record.”

“Unproduced.”

“Inconclusive.”

“Disproved.”

Aditya came into her room.

“Why did you remove the colours?”

“Colours are emphatic. Words demand reasons.”

Aditya read the table.

“It is time to apply this classification to the whole case.”

Malini asked, “The whole case?”

“Yes. Until now we have examined perception, inference, analogy, testimony, postulation, and non-apprehension in separate stages. Now we must see—which conclusion rests on which path of proof, which was only a direction, which has been disproved, which remains unresolved.”

Malini understood.

“A comprehensive evidence map.”

“By the method of Gangesha Upadhyaya.”

They were silent for a few moments.

The hearings, correction registers, hash tables, source limits, privilege lists, sealed orders, and categories of non-apprehension from the past several weeks seemed to stretch before them like one long line.

“We need this map before the next supplementary submission in the pending special-leave matter,” Aditya said.

“So that we do not say more about what remains than it bears.”

Malini added, “And do not conceal what has been disproved.”

“And what remains unresolved?”

“Call it unresolved.”

Aditya nodded.

Night was descending outside the building.

On a table in the room lay together the inventory of sealed material, the summary of diary entries, the register of independent records, and the correction register.

All four were separate.

All four were connected.

None was a substitute for another.

Malini wrote the final line—“The discipline of fact is formed by the limits of its source, relation, test, and use.”

Aditya read the line.

“Tomorrow we shall not begin with that sentence.”

Malini laughed.

“Why?”

“Tomorrow we build the whole map. At the end, we shall see whether the sentence still stands.”

They gathered the papers.

The city lights had spread outside.

Amid the darkness, some windows of the building were bright, some dark.

This time Malini did not infer the meaning of any dark window.

She only observed—there is some light; some things are not visible.

She left the remaining questions for tomorrow.

०७५ Gangesha Upadhyaya's Sutra

Aditya Jha reached the office before the morning light had fully spread.

Yesterday's four registers still lay on the writing table in the room.

The inventory of sealed material.

The investigation-diary summary.

The register of independent records.

The correction register.

Malini Karna arrived a little later.

She saw that Aditya had spread a large blank sheet of paper between the four registers.

At the top of the sheet only one line had been written—"Which conclusion by which path?"

Taking her seat, Malini asked, "The complete map?"

Aditya said, "Yes. But not merely a map of facts. A map of evidentiary paths."

He wrote six words—perception, inference, analogy, testimony, postulation, non-apprehension.

Malini kept looking at them intently.

Over the past several weeks, all six words had separately become the axis of different hearings.

Today, for the first time, they were all on the same page.

Aditya said, "We have gathered enough material. The question now is not how much there is. The question is—how far is it proper to go from which material to which proposition?"

Malini asked, "And where do we stop?"

"That is the central question."

Aditya drew the first circle.

Inside it he wrote—"What was directly observed."

The second circle—"The relation that was inferred."

The third—"What was understood from a similar structure."

The fourth—"What came through the words of a statement, order, or record."

The fifth—"What, if not assumed, would make the available facts inconsistent."

The sixth—"What was not found after an adequate search in the place where it was expected."

He left empty space between all six circles.

Malini asked, "You will not draw lines between them?"

Aditya said, "First we will see which lines actually exist."

The first file concerned the seized solid-state storage device.

Malini opened its chain-of-custody register, the hash summary of the forensic image, the time at which the image had been created, and the pages of the examination log.

Aditya asked, "What is perception here?"

Malini replied, "An image was created at the specified time with the specified equipment. The hashes of the original source and the image are identical. The material in the image is capable of examination."

"That much only?"

"That much is directly perceived."

"Truth?"

"The hash does not establish it."

"Completeness?"

"Not of the whole world. Only of the scope that was imaged."

Aditya drew a line from the first circle.

At the end of the line he wrote—"Integrity—up to the specified source."

Then beneath it, in smaller letters—"Not the truth of the contents; not the completeness of external sources."

Malini smiled.

"So the map will show limits too."

"If we hide the limits, the map becomes an advertisement."

The second file concerned an administrative control panel.

It contained secure-access indicators, certain timestamps, user privileges, and some customer-identification entries.

Malini said, "This is directly observed material."

Aditya asked, "Does this directly prove that 'such-and-such person exercised control'?"

Malini paused.

“No. Evidence that an access indicator was used is not proof of the physical presence of a particular person.”

“Then?”

“When time, device, access privileges, other independent sources, and statements are brought together, an inference may arise.”

Beside the second circle Aditya wrote—“Person-relation—-independent bridge required.”

“Do we have every piece of that bridge?”

“Not all of them.”

“Then the colour?”

Malini asked, “Colour?”

“I want the degree of each conclusion to be shown separately.”

He wrote four categories—“directly established,” “supported inference,” “open question,” “rebutted or limited.”

Malini added, “And ‘judicially proved?’”

Aditya shook his head.

“We will not write that phrase. That belongs to the Court.”



By noon, the first part of the map was ready.

But Aditya was not satisfied when he looked at it.

“This is still a list,” he said. “Not Gangesha’s method.”

Malini asked, “What is the difference?”

Aditya opened a second blank sheet.

“If we say, ‘This person is connected with this web,’ the sentence sounds small. But Navya Nyaya will ask—which person? Connected in what sense? At what time? On the basis of which source? What is the limit of the relation? And which alternatives still remain?”

He wrote—“Subject—attribute—relation—limit.”

Malini said, “So the larger the conclusion, the clearer the delimitor must be?”

Aditya was pleased.

“Exactly. Not the brilliance of the word, but the boundary of the relation.”

He took out an old sheet of paper containing his handwritten notes on Gangesha Upadhyaya.

One corner of the paper was folded.

The ink had faded a little.

On it was written—“An unclear relation produces an unclear conclusion.”

Malini asked, “Is that a quotation?”

Aditya answered at once, “No. My own note. I wrote it while studying Gangesha’s method.”

Malini made a mark beneath the line.

“Then this too will remain on the map with its source identified.”

Aditya laughed.

“Now you are putting me into a source-category as well.”

“After this case, I am afraid to write anything without a source.”

“Fear is useful if it becomes discernment.”



The next section concerned the payment-gateway path.

Some entries came from the records of a payment intermediary.

Some from customers’ bank entries.

Some from summaries displayed on the administrative control panel.

Earlier, the investigation diary had described all three alike as “transaction evidence.”

Aditya circled that line in red.

“Is this in the correction register?”

Malini immediately opened the relevant page.

“Yes. Classification error. A control-panel summary is not an independent bank record.”

“And two views generated from the same underlying source?”

“Not independent corroboration.”

Aditya drew a line on the map and then broke it in the middle.

“This line must remain broken.”

Malini asked, “Even in the final presentation?”

“Especially in the final presentation.”

“The State will itself display its weak line?”

Aditya said, “If it does not, the defence will. Then credibility will break twice over.”

Beside the broken line he wrote—“Same custodian—multiple views—not independent sources.”

Then he drew a separate line for the bank record.

“This is independent?”

Malini said, “Different custodian, different record system, different path of acquisition. But its meaning still depends on context.”

“Good. An independent source does not automatically mean a connection with an offence.”

He added another note—“Independence ≠ proof of culpability.”

Next came the customer-identification and tax-deduction-at-source spreadsheet.

Several inferences had earlier been built upon this material.

Names, mobile-phone numbers, electronic-transaction amounts, tax summaries, and certain code words appeared on the same page.

At one time Malini had regarded this page as the “central list” of the network.

Now she herself said, “Earlier I used far too large a phrase for this.”

Aditya asked, “And now?”

“It is a spreadsheet whose origin, user, and sources of entry must each be separately established.”

“The presence of a name?”

“Does not establish participation.”

“The presence of an amount?”

“Does not establish illegality.”

“The tax summary?”

“May indicate an accounting process; not its purpose.”

Aditya looked toward the third circle—analogy.

“The layout of this spreadsheet resembles records on another server. What follows from that similarity?”

Malini said, “A structural comparison. A direction for inquiry. Possibly a similar function. But not automatically common ownership or a common operator.”

“Analogy survives in this chapter.”

“How often analogy had earlier turned into inference.”

“That is why we need the map.”

He drew two lines showing similarity, but between them wrote—“Similarity, not identity.”

In the afternoon, Vidyanand Mishra was given a limited copy of the State’s proposed evidence map.

Because of privilege, protected portions were not disclosed in that copy.

But it showed the classification the State was considering placing supplementally before the Supreme Court in the pending special-leave proceeding.

Vidyanand read the first page.

Then the second.

Then he returned to the first.

His assistant asked, “Is there a problem?”

Vidyanand said, “There would have been a problem if all of this had been joined by a single line.”

“And now?”

“Now, at least, we can see which conclusion the State wants to place on which foundation.”

He wrote one note—“The map is not itself evidence.”

A second—“Classification is not a substitute for a judicial conclusion.”

A third—“The unavailability of material withheld because of privilege is not a basis for adverse inference.”

His hand paused for a moment.

There was a slight tremor in his wrist.

He put the pen down on the writing table.

The assistant looked at him.

Without saying anything, Vidyanand drank some water.

A few moments later, he picked up the pen again.

He did not speak of his private fatigue.

At that moment, his only concern was that the line of professional argument remain clear.

He wrote—“If the State clearly limits its proposition, the defence too will answer within that limit. The answer to an undefined allegation is infinite.”

Then he did not fold the paper.

He left it open.

That evening, Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar sat in the State side’s conference room.

Aditya and Malini sat opposite them.

A copy of the map lay on the writing table.

Devvrat asked the first question, “Is the purpose of this map to influence the Court, or to clarify the limits of the State’s propositions?”

Aditya said, “The latter.”

“And if it becomes the former?”

“We will have to remove it.”

Mrinal placed his thumb on one corner of the map.

“Here it says—‘supported inference.’ The Court will ask—supported by what?”

Malini opened the corresponding source list.

“Three independent records, one statement, and one temporal correspondence. But one part of the statement is uncorroborated, so we have not written ‘established.’”

“Alternative explanation?”

“Two remain alive at present.”

“On the map?”

Malini showed the second page.

Two thin lines went off in different directions.

Mrinal said, “Good. An inference does not become stronger by hiding alternatives from the Court.”

Devvrat opened the third page.

“This section on non-apprehension is the most sensitive.”

He read—“Expected, searched for, not found.”

Then the second line—“Basis for expectation disputed.”

The third—“Possibility that the retention period had expired.”

The fourth—“Alternative repositories not fully examined.”

Devvrat said, “All four refer to the same thing?”

“Yes,” Aditya replied.

“Then the conclusion?”

“We cannot say it was destroyed.”

“Deleted?”

“Not yet.”

“Does not exist?”

“Not that either.”

“Then what will the supplemental submission say?”

Aditya said, “Not found after the specified search in the specified source. Together with the limits of that statement.”

Devvrat was silent for a few moments.

“That language is less dramatic.”

Mrinal said, “That is why it is more durable.”

At eight that night, the first draft of the supplemental submission was ready.

At the top it was stated clearly—“Limited Supplemental Submission in the Pending Special-Leave Proceeding.”

No new petition.

No new proceeding.

In the first paragraph, the State limited its purpose—to place before the Court the classified material that had become available after the previous order, the correction register, and the limits of the evidentiary paths.

The second paragraph stated—“This submission does not claim a judicial conclusion.”

The third—“Certain earlier language of the investigation has been corrected.”

The fourth—“Where sources are not independent, that fact is expressly identified.”

The fifth—“Where non-apprehension is only the result of a limited search, no conclusion of universal absence has been drawn.”

Malini stopped while reading the line.

“What is the most important part of this document?”

Aditya asked.

Malini said, “What we are not saying.”

Devvrat was listening from a distance.

He said, “Correct answer.”

It was decided that the supplemental submission would not be accompanied by a full colour copy of the evidence map, but by a textual table.

Because colour would not determine meaning for the Court.

Four columns were created.

“Proposition.”

“Primary source.”

“Evidentiary path.”

“Limit/alternative explanation.”

The first proposition—the specified forensic image is hash-identical to the original source.

Evidentiary path—direct examination.

Limit—not the truth of the original contents, nor the completeness of external sources.

The second proposition—certain access indicators are associated with an account possessing administrative privileges.

Evidentiary path—direct record + inference.

Limit—an independent bridge is required to identify the account user with a particular person.

The third proposition—certain payment entries also appear in independent financial records.

Evidentiary path—direct evidence + comparison with an independent source.

Limit—the lawful or unlawful purpose of the transaction is not thereby established.

The fourth proposition—certain server structures resemble one another.

Evidentiary path—analogy.

Limit—similarity does not establish ownership, control, or identity.

The fifth proposition—certain statements partly correspond with documentary material.

Evidentiary path—testimony + independent corroboration.

Limit—the uncorroborated part remains separate.

The sixth proposition—between certain known events, the chronology appears inconsistent unless an intermediate administrative act is assumed.

Evidentiary path—postulation.

Limit—which person performed that act must be proved separately.

The seventh proposition—for the specified period, certain records that were expected were not found in the specified source.

Evidentiary path—non-apprehension.

Limit—questions remain concerning retention period, alternative repositories, technical access, and privilege.

Reading the table, Malini said, “Now all six methods can be seen performing different functions within the same case.”

Aditya said, “That is why we can call it a sutra. Not a slogan.”

That night, a different kind of pressure prevailed in Ananya Kashyap’s newsroom.

A source had said only that the State was preparing to place supplemental material in the pending Supreme Court proceeding.

The editor immediately said, “We could headline it—‘State’s Decisive Evidence Map Ready.’”

Ananya asked, “Who called it decisive?”

“It is supplemental material. It is a large document.”

“Size is not a decision.”

“Then—‘Complete Map of Gambling Web to Reach Court?’”

Ananya shook her head.

“Not ‘complete’ either. I do not know the scope of the map.”

The editor grew a little impatient.

“If you put every caution into the headline, what will readers read?”

Ananya said calmly, “What is true.”

“Truth speaks slowly; a newsroom does not.”

Ananya smiled.

“Then sometimes the newsroom will have to learn to speak slowly.”

She opened her draft.

She wrote the headline—“State Prepares Limited Supplemental Submission in Pending Special-Leave Proceeding.”

The first line—“Filing a supplemental submission is not a judicial conclusion.”

The second—“The defence may challenge the State’s classification.”

The third—“The meaning of unavailable material will depend on its expected source, the scope of the search, and the retention policy.”

The editor read the lines.

“Very little sensation.”

Ananya said, “This time I have found no evidence for sensation.”

Night deepened.

When Aditya left the office, clouds had spread across the sky.

He did not open his mobile phone.

He did not watch the news.
 He walked for some distance.
 At a bend in the road there was a faint smell of water.
 In that smell he remembered the wet earth of Garh En Arikel.
 But today memory did not give him only the tenderness of home.
 He remembered the name of Gangesha Upadhyaya.
 That tradition of Mithila in which even the relation of a single word is not left without a boundary.
 He understood that in a modern computational case, the difficulty is not merely the abundance of material.
 The difficulty is the abundance of relations.
 One entry connects with another.
 One name appears in a third list.
 One timestamp corresponds with a fourth record.
 One interface generates many views.
 One silence opens many meanings.
 If the type of relation is not made clear, everything begins to look connected with everything else.
 And then investigation may become not justice, but story-making.
 Aditya stopped.
 He said to himself, "Subject—attribute—relation—limit."
 Then added, "And source."
 He repeated those five words again in his mind.

◆
 The next morning, the evidence map underwent its final review.

Malini noticed a contradiction.

On one page an administrative control-panel entry had been described as an "independent source"; on another, the same entry was described as a derivative view of the original server.

She marked it at once.

"This is serious."

Aditya looked at it.

"Why?"

"If it is derivative, it is not independent."

"Whose error?"

Malini was silent for a few moments.

"Mine. While assembling the table last night."

Aditya opened the correction register.

"Write it down."

"The supplemental submission has not yet been filed."

"That does not make the error nonexistent."

Malini wrote—"Correction to source-independence classification."

Effect—"One fewer source corroborating an inference."

Change in conclusion—"Supported inference remains, but its weight is reduced."

She looked toward Aditya.

"Was it necessary to record this?"

"What if the defence asks tomorrow for the original working paper?"

Malini understood the answer.

"It was necessary to record it."

Aditya said, "Gangesha's sutra is not only an instrument for cutting through another person's argument. It is also a method for seeing the limits of one's own."

◆
 At ten o'clock, the State's revised table reached Vidyanand Mishra's chamber.

He placed the first version and the second side by side.

His gaze rested on the line concerning source independence.

His assistant asked, "The State has written down its own error?"

Vidyanand said, "Yes."

"Will that not weaken their case?"

"One line may become weaker. But the process may become stronger."

"Will we use this correction?"

Vidyanand smiled faintly.

"Certainly. We are the defence. But when the correction has been recorded, we will not call it 'concealed.'"

At the edge of the page he wrote—"Correction acknowledged; objection to the weight of the remaining inference maintained."

Then on the second page—"Postulation does not identify a particular person."
On the third—"Non-apprehension does not establish the person who caused destruction."
He put down the pen.
A momentary pain rose in his head.
He closed his eyes and sat for a few moments.
Then he straightened and gathered the papers.
Professional dignity did not lie in rejecting everything said by the other side.
To concede some things and remain rigorous about the remaining boundary—that too was dignity.



At noon, Devvrat Sinha read the final draft.

He stopped at one sentence—"The available material establishes the overall structure of the network."

He picked up a red pen and struck the sentence out.

Mrinal asked, "Too broad?"

"Too broad."

"In its place?"

Devvrat wrote—"The available material presents certain interrelated structural indicators; their legal meaning remains subject to judicial examination."

Aditya read it.

"This is correct."

Mrinal pointed to another sentence—"The deleted mail archive establishes a culpable operational purpose."

Aditya said at once, "That should not remain."

"Why?"

"The person who deleted the material and the purpose of deletion are not established. Some recovered material exists, but alternatives remain as to the reason for deletion."

The sentence was struck out.

In its place was written—"The contents of the recovered mail-archive material are independently examinable; the person responsible for deletion and the purpose of deletion are separate questions."

Devvrat said, "The credibility of this supplemental submission will rest on these struck-out sentences."

Malini thought that the history of the sentences that would not remain in the document was itself necessary.

Two new entries were added to the correction register.



That afternoon, the limited supplemental submission was filed through the electronic filing system in the pending special-leave proceeding.

An acknowledgement was received.

Malini looked at the screen.

There was a short line—"Filing accepted."

She looked toward Aditya.

Aditya said, "That only indicates that it has been filed."

"Not an order."

"Not a conclusion."

"Not a final decision on admissibility."

"Correct."

Malini placed the acknowledgement in the file.

She wrote nothing over it in red letters.

No "victory."

No "decisive turn."

Only the date, time, case number, and type of document.

A little later, Ananya found the filing information in the public listing.

She added one line to her report—"The Court has not yet reached any conclusion on the merits of this supplemental submission."

This time the editor did not cut the line.



That evening, a copy of the evidence map was opened once more.

Malini asked, "Is it complete now?"

Aditya said, "Never."

"Why?"

"The map is time-bound. New sources will arrive; some lines will change. The Court will reject some propositions and limit others. The defence will offer new alternative explanations."

"Then the word 'complete'?"

"A complete classification of the material available up to this time. Not eternal truth."

Beneath the title, in small letters, Malini added—“With date of update.”

Aditya agreed.

Then he looked among all six circles.

Perception.

Inference.

Analogy.

Testimony.

Postulation.

Non-apprehension.

All six were distinct.

All six spoke to one another.

But none substituted for another.

If perception crossed its boundary, it became inference.

If inference concealed alternatives, it became prejudice.

If analogy called similarity identity, it became error.

If testimony forgot speaker, authority, and context, it remained merely a sentence.

If postulation leapt without necessity, it became imagination.

If non-apprehension concluded without expectation and adequate search, it turned an empty space into an accusation.

Malini said, “And justice?”

Aditya replied, “Separate even after all this.”

“Why?”

“Because the Court does not look only at evidentiary paths. It also looks at law, procedure, rights, response, and standard.”

◆
A little later, Home Minister Shiveshwar Prasad received the administrative intimation that the supplemental submission had been filed.

One of his aides said, “The media may call this a major success for the State.”

Shiveshwar Prasad raised his eyes from the paper.

“Has the Court passed any order?”

“No.”

“Then who called it a success?”

The aide fell silent.

“I do not want celebration over a filing. I want confidence in the method.”

On the administrative note he wrote only—“Recorded.”

Then added—“No public comment on the investigative team.”

That line closed the door to political advantage.

◆
That night Aditya and Malini were again alone in the room.

It was time now to fold the evidence map and place it in the file.

Malini asked, “One question remains.”

“Ask.”

“What, after all, is Gangesha Upadhyaya’s sutra in one line?”

Aditya was silent for a few moments.

He did not answer at once.

Then he said, “If we make it one line, we commit the same error again—turning something complex into a slogan.”

Malini laughed.

“Then five words?”

“Subject, attribute, relation, limit, source.”

“And the six evidentiary paths?”

“They are the roads.”

“The destination?”

Aditya looked toward the window.

“A decision is not the destination; decision belongs to the Court. Our destination is a map clear enough for the Court to see which line holds and which does not.”

Malini asked, “And if tomorrow the defence begins cutting every line on this map?”

Aditya said, “That is their work.”

“Ours?”

“Defend, with its source, the line that actually exists. Do not draw a line that does not exist and then defend it.”

He placed the evidence map in the file.
The corridor outside was quiet.
Someone's footsteps could be heard in the distance.
Malini rose to switch off the light.
Just then, notice of the defence's detailed response arrived in the office's secure mailbox.
The list of annexures was long.
There were the names of many advocates.
A separate objection to every evidentiary path.
To the scope of perception.
To the bridge of inference.
To the similarity in analogy.
To the reliability of testimony.
To the necessity in postulation.
To the expectation underlying non-apprehension.
Malini read the list.
"Tomorrow will be difficult."
Aditya closed the file.
"Then the need for the map was proved today."
He switched off the light.
In the darkness, no line was visible.
But the sources of the lines had now been recorded.

076 The Edge of Non-Apprehension — Chapter II

On the morning of the next hearing in the Special Leave matter, there was unusual bustle in the court corridors.

A large team of advocates had come for the offshore group.

Some specialized in computational architecture.

Some were focused on questions of tax law.

Some were examining the chain of custody.

Some, the limits of privilege and confidentiality.

And amid them all Vidyanand Mishra sat quietly.

Before him lay open the detailed response from the previous night.

Beside each paragraph was a small notation—source, relation, limit.

Opposite those three words stood the six circles of Aditya Jha's evidence map.

Perception.

Inference.

Analogy.

Testimony.

Postulation.

Non-Apprehension.

Vidyanand Mishra said to his assistant, "Do not cut any line merely by looking at numbers."

The assistant looked at him.

"Then?"

"Where there is a line, ask its origin. Where there is a bridge, ask the weight it can bear. Where there is silence, ask what was expected."

He did not close the papers.

He merely rested the light pressure of his thumb on the top page.

"And one more thing."

"Yes?"

"Our team is large—that is no argument in itself."

The assistant nodded.

Vidyanand Mishra corrected him. "Not by nodding. This must not enter the answer either."

For the State, Devvrat Sinha and Mrinal Dhar were already present.

Aditya Jha sat two seats behind them.

Before Malini Karna lay a condensed copy of the evidence map.

There were not six colours.

There were six columns.

Colour does not become an argument before a court.

The column headings were—object, source, relation, limit, alternative explanation, status.

The previous night Malini had created three categories of words in the final column.

Holds.

Holds in limited form.

Does not hold.

Aditya looked at the page.

"This needs a fourth category."

Malini asked, "What?"

"Not yet fit for decision."

She added it at once.

"Why?"

"Because sometimes the question is not defective; the answer is incomplete."

Malini wrote—"Additional source required."

Aditya said, "Good."

The Bench took its seat.

Everyone rose.

The formalities were completed.

But behind the formalities, the real question today was not number but relation.

◆

Vidyanand Mishra rose.

“My Lords, I have no objection to the beauty of the comprehensive evidence map the State presented yesterday.”

He paused for a moment.

“My objection is to its evidentiary value.”

Devvrat Sinha continued writing.

The Bench asked, “Specifically?”

“The State names six paths of evidence. But six names do not mean six independent sources.”

The silence in the courtroom grew dense.

Vidyanand Mishra opened the next page.

“For example, browser history, saved access markers, and the administrative panel may be three visually distinct things.”

“But if all three emerged from the same forensic image, they are not three independent origins.”

The Bench said, “Does the State disagree with that?”

Devvrat Sinha rose.

“Not in principle.”

Vidyanand Mishra’s gaze rested on him for a moment.

Devvrat Sinha continued, “We do not call multiplicity independence. The question is whether different records within the same underlying source can give meaning to one another.”

The Bench asked, “Give meaning—to what extent?”

Mrinal Dhar rose.

“To the limit of that source.”

“Meaning?”

“Five indicators within one forensic image do not become five external corroborations.”

The Bench wrote that down.

Vidyanand Mishra said, “I consider that concession important.”

Devvrat Sinha said at once, “Not a concession. A classification.”

Vidyanand Mishra smiled faintly.

“We may come to the word later.”

The Bench said, “No. Today, use words too within their limits.”

A light ripple of laughter rose in the courtroom and stopped at once.

◆

Vidyanand Mishra placed his first objection.

“There are several lines of ‘non-apprehension’ in the State’s map.”

He read them one by one.

“One expected authorization record was not found.”

“One audio record for a specified period was not found.”

“One entry in a meeting register was not found.”

“Certain messages were not found in the original repository.”

He lowered the page.

“Four non-apprehensions.”

Then he asked, “Do four silences together become one voice?”

The Bench looked toward Devvrat Sinha.

Devvrat Sinha said, “Sometimes they may. Sometimes not.”

“The standard?”

“First, whether the expectation of all four objects is independently established.”

“And?”

“Whether all four sources are truly separate, or merely different views of the same record system.”

“And?”

“Whether the cause of non-apprehension may be the same or different.”

Vidyanand Mishra said, “That is where my objection begins.”

He signalled to an advocate seated behind him.

A slim register came forward.

“The meeting register and the authorization record—two different names.”

“But both are exports from the same internal administrative system.”

Malini immediately checked her copy.

The fact was correct.

Aditya watched the movement of her pen.

He said nothing.

Vidyanand Mishra continued.

"The expectation of an audio record was also based on an automated setting of that same meeting system."

"So the State counts three non-apprehensions."

"I say—perhaps three forms of the same underlying expectation."

The Bench asked Mrinal Dhar, "Your answer?"

Mrinal Dhar turned a page.

"This objection is partly valid."

There was no movement in the State's row.

Malini merely made a mark in her column.

Mrinal Dhar said, "The underlying system for the meeting register and the authorization record is the same."

"The audio-recording configuration was driven by that system, but the storage location was separate."

Vidyanand Mishra asked, "The storage location was separate—was the origin of the expectation separate as well?"

Mrinal Dhar paused for a moment.

"Not entirely."

"Then three independent non-apprehensions?"

"The State will not put it that way."

Malini drew a small circle around two of the three lines on her map.

Same origin.

Aditya did not stop her.



The Bench said, "Make this point clear. Multiplicity and independence are separate questions."

Devvrat Sinha agreed.

So did Vidyanand Mishra.

The Bench continued, "If ten documents are copies from the same source, the number is ten; the source is one."

"If ten different sources repeat the same story, independence is still not automatically established—it is possible that all depend upon the same prior information."

"And two inconsistent records within a single source may sometimes raise separate questions."

Malini kept writing.

Aditya said softly, "Origin and route."

Malini looked at him.

He whispered again, "Who is the source? How did the information travel?"

She wrote—"Origin ≠ route."

The Bench's questions were now moving in another direction.

"Which line in the State's map actually rests on an external independent source?"

Devvrat Sinha opened the list.

"The payment gateway's timestamp."

"A specific entry in the KYC and tax-deduction computation ledger."

"A correspondence record obtained from a separate custodian."

"And certain bank-like transaction information, over which there is presently a separate dispute as to scope."

Vidyanand Mishra said at once, "I object to the fourth."

Devvrat Sinha said, "That is why I said 'a separate dispute as to scope.'"

The Bench said, "Very well. Let the status be recorded in the list."

Malini used her fourth category—"Additional source required."



Vidyanand Mishra came to his second objection.

"The State says, at the same time, that certain things were not found, but that other things permit an inference of their possible existence."

"That line of reasoning is possible."

"But if the basis of the inference is itself born from the same non-apprehension, a circle is formed."

The Bench asked, "An example?"

Vidyanand Mishra said, "The authorization record was not found."

"The State says—because payment occurred, an authorization ought to exist."

"Then, because the authorization was not found, it says—something unusual happened."

"Then it uses that very unusualness as a reason to increase suspicion about the payment."

He made a circle in the air with his two thumbs.

"This is not independent corroboration. It may be a pair of mutually nourished inferences."

Malini looked at two arrows on her map.

One arrow did indeed return toward the other.

Aditya saw it too.

The previous night, this circle had escaped his notice.

The Bench asked, "The State?"

Before Devvrat Sinha answered, he looked toward Aditya.
Aditya wrote two words on his page and slid it forward.
“Circular support.”
Devvrat Sinha read them.
Then he said to the Bench, “The State accepts that caution.”
Vidyanand Mishra asked, “Then will the line be removed?”
“The part that rests only on circular support will be removed.”
“The part that rests on an external timestamp and the record of a separate custodian will be tested separately.”
The Bench said, “Let this correction be recorded.”
Malini opened the correction register.
She wrote—“Evidence-scope correction: circular support removed.”
She did not write ‘conclusion change.’
There had not yet been a conclusion to change.



The third advocate for the defence rose.

His subject was computational architecture.

“Within one forensic image, browser history, saved access markers, cache, and administrative-panel indicators are found.”

“The State places all of these in separate rows.”

“But the image is one.”

Mrinal Dhar said, “We have already accepted that limit.”

The advocate said, “I am going further.”

“What if the original image was incomplete?”

The courtroom fell silent again.

“What if an external repository, cloud storage, a separate partition, or another device was not included?”

“Then multiplicity within the image does not establish completeness outside it.”

Aditya’s eyes rose for a moment.

He had stated this principle before.

But today the question was different.

The Bench asked, “Where in its map has the State used the word ‘complete?’”

Devvrat Sinha checked the list.

“In an old note.”

“In the present supplemental submission?”

“No.”

“Then the defence may question the old note, but the present position must remain clear.”

Vidyanand Mishra said, “I accept that.”

The Bench said, “Let the record state—the integrity of an image and the completeness of a search are separate questions.”

Malini wrote it down.

“Hash identity shows integrity.”

“Not the whole universe of possible sources.”

Aditya looked at the page.

“Remove ‘universe.’”

Malini struck it out and wrote—“Not the complete set of possible sources.”



By noon, the character of the hearing had changed.

At the beginning, the spectators had been watching the large team of advocates.

Now the Bench was looking only at lines.

Which line arose from which source.

Which line, midway, became dependent on another line.

Which line was independent.

Which line had merely returned under another name.

And which line was not yet evidence at all, but only a question.

Vidyanand Mishra raised a page.

“My Lords, twelve advocates are present on my side.”

A few people looked toward him.

He said, “Let neither side treat that number as evidence of anything.”

The Bench’s voice was neutral.

“The Court does not.”

Devvrat Sinha also said, “Nor does the State.”

Vidyanand Mishra lowered the page.

“Then I shall proceed.”

At that sentence Malini glanced for a moment toward Aditya.

The previous night, some media headlines had described the size of the team as a sign of fear.

In this courtroom that sign had no value at all.



The fourth objection concerned the boundary between postulation and non-apprehension.

Vidyanand Mishra said, “The State says—a result is present, the ordinary process is not visible, and therefore it may be necessary to posit some unrecorded link.”

“We say—‘some link’ and ‘this particular link’ are not the same thing.”

The Bench asked, “The State?”

Devvrat Sinha answered, “Agreed.”

Vidyanand Mishra’s eyebrows rose slightly.

“Then the name of a person?”

“Where there is no independent basis, the State will not attach a name.”

“And where there is?”

“Where perception or a separate source provides a bridge, that bridge will be shown separately.”

The Bench said, “This needs plain language.”

Mrinal Dhar said, “Postulation fills a gap, but not with a person of one’s choosing.”

The Bench wrote that down.

Vidyanand Mishra said, “That sentence deserves to be on the record.”

Devvrat Sinha said, “For the State as well.”

Before Aditya, the point was becoming clear like an old formula of the Gangeshian method.

Define the object of the absence.

Define the basis of the expectation.

Define the locus.

Define the time.

Define the custodian.

Then ask—what precisely is the non-apprehension established by what was not found.

And what is not.



During the recess, Malini Karna stood beside the glass corridor.

Aditya came out.

Malini said, “Yesterday I was pleased to see six circles.”

“Why?”

“Everything looked orderly.”

“Order is not a synonym for truth.”

“And disorder?”

“Nor is it a synonym for falsehood.”

Malini was silent for a few moments.

“Then what is the use of the map?”

“To see where the lines collide.”

“And today?”

“Today two lines were cut.”

“Did the State become weaker?”

Aditya looked toward the outer stairs.

“If an unsound line is removed, the map does not become weaker. It becomes more reliable.”

“But in the news?”

“The Court reads the record, not the sentences of the news.”

Malini smiled.

“Ananya Kashyap would be pleased to hear that.”

“She already knows it.”



In the newsroom, Ananya Kashyap did indeed have two possible headlines before her.

The first—“Offshore Group’s Vast Legal Army Overwhelms State.”

The second—“Hearing Raises Question over Independence of Evidentiary Sources.”

She set the first page aside.

The editorial assistant asked, “The first headline was more attractive.”

Ananya said, “And less true.”

“The team is large.”

“That may be a fact for a news report. It is not an indication of crime.”

“Then?”

“Today the Court counted sources, not lawyers.”

She placed her pen on the second headline.

“There is less drama in this.”

“But less confusion too.”

She added to the opening paragraph of the report—“The supplemental submission is not yet a judicial conclusion.”

Then one more line—“The defence response is not a judicial conclusion either.”

The assistant asked, “Is it necessary to write both?”

Ananya said, “Only then will the reader understand that argument and decision are different things.”



The hearing resumed in the afternoon.

This time the defence carried the question of source independence as far as the payment gateway.

One advocate said, “The State calls the payment gateway’s timestamp external corroboration.”

“But the payment-gateway record was a response to what request?”

Mrinal Dhar checked the report.

“A specific records request.”

“What account identifier had already been supplied in that request?”

“An account identifier obtained in the investigation.”

“Then is the response independent, or merely confirmation of an account the State had already selected?”

The Bench’s pen stopped.

The question was subtle.

Aditya turned a page.

A copy of that request was there.

Devvrat Sinha said, “The source is independent; the selection was the State’s.”

Vidyanand Mishra said at once, “Then this is not independent discovery.”

“We do not say that it is.”

“But an independent record?”

“Yes, if the provider answered from its ordinary system and the material is separately verified.”

The Bench said, “Keep two expressions separate—*independent source*, *independent discovery*.”

Malini wrote it down.

“*Independent source* ≠ *independent discovery*.”

The Bench continued, “And the risk of selection bias by the State?”

Devvrat Sinha answered, “It remains. Therefore the scope of the request, the reason for the selection, and negative results must also be shown.”

Aditya made a red mark in his file.

Negative results.

The account identifiers for which nothing was found would remain in the record as well.

Not merely a list of successful searches.



At this point Vidyanand Mishra showed one of Aditya’s old notes.

“Here it says—‘*payment pattern confirmed*.’”

Devvrat Sinha looked at the page.

“An old investigation-diary summary.”

“And the present position?”

Mrinal Dhar said, “One segment has been confirmed; the entire pattern has not.”

Vidyanand Mishra said, “Then was the language corrected?”

“Yes.”

The Bench asked, “In the correction register?”

Malini rose.

“It is recorded—*evidence-scope correction*.”

“*Conclusion change*?”

“No, because the earlier line was itself not a judicial conclusion.”

The Bench said, “Very well.”

Vidyanand Mishra marked his copy.

“I have no further objection to that answer at present.”

Aditya took note.

The defence was not denying everything.

The State was not trying to defend everything.

Between the two, method was making room for itself.

◆
In the final hour of the hearing, the Bench posed a common question.

“Assume there are three facts.”

“First, an expected record was not found.”

“Second, there is a timestamped transaction from an external source.”

“Third, one person held specified access rights at that time.”

“Do the three together establish as fact that this same person deleted the record?”

Vidyanand Mishra said at once, “No.”

Devvrat Sinha also said, “No.”

The Bench asked, “Why?”

Vidyanand Mishra answered, “The intervening link is missing.”

Devvrat Sinha added, “Access rights show opportunity, not action.”

Mrinal Dhar said, “The transaction supplies context, not the act of deletion.”

The Bench asked, “And the non-apprehension of the record?”

Seated behind Aditya, Malini held her breath.

Devvrat Sinha said, “If expectation and an adequate search are established, it gives the fact of absence. Not the actor.”

The Bench wrote it down.

“Fact of absence ≠ identity of actor.”

The sentence remained in the courtroom for a few moments.

Aditya wrote it above his map.

◆
A young advocate for the defence rose again.

“My Lords, I have one broader objection against the State.”

“Go on.”

“The State repeatedly narrows its own propositions.”

“That shows the original investigation was unreliable.”

Devvrat Sinha rose to answer, but the Bench asked first, “Is a correction in an investigation, by itself, proof of unreliability?”

The young advocate said, “If the correction changes the fundamental point?”

“Then its nature must be examined.”

The Bench was looking not at Malini, but at the record.

“Linguistic correction.”

“Evidence-scope correction.”

“Conclusion change.”

“The three are not the same.”

Vidyanand Mishra looked toward his colleague.

The young advocate sat down.

Vidyanand Mishra rose.

“I agree with that classification, provided the State actually follows it.”

Devvrat Sinha said, “That obligation rests equally upon the State.”

The Bench said, “And the Court’s obligation is to see that the classification is not merely a label.”

◆
Before the hearing ended, Vidyanand Mishra made a final submission.

“Our side requires clear answers on the scope of the original summons, the details of creation of the forensic image, the hash list of the original and working copies, and the chronology of the custody register.”

Mrinal Dhar wrote something down.

The Bench asked, “Are these matters in the present response?”

“Yes, but in fragmented form.”

Vidyanand Mishra said, “The State has brought a comprehensive map. We are asking for the comprehensive source chain.”

The structure of the next hearing became clear in Aditya’s mind at once.

What the summons had actually asked for.

What the forensic image had actually encompassed.

What the hash actually proved.

What silences the custody register left behind.

These questions had arisen before.

But today, after the combined challenge to the evidence map, they were returning in a new relationship to one another.

The Bench said, “The State shall give an integrated answer on the next occasion.”

Devvrat Sinha agreed.
Vidyanand Mishra sat down.

When news of the hearing reached the Ministry, the first comment in Home Minister Shiveshwar Prasad's office was political, not legal.

An aide said, "Such a large team of advocates has been engaged. We can say publicly that the opposition has become frightened."

Shiveshwar Prasad's gaze hardened at once.

"Frightened of what?"

The aide fell silent.

"Is retaining advocates a right or not?"

"It is."

"Is retaining a large team an indication of crime?"

"No."

"Then let that sentence never come before me again."

The aide folded the page over.

The Minister said, "We are trying to preserve the Court's confidence, not conduct an election rally."

He looked at the file.

"The State narrowed some lines today?"

"Yes."

"Why?"

"On an objection concerning source independence."

"Then it did right, if the record says no more than that."

"But that will weaken the political narrative."

Shiveshwar Prasad closed the page.

"Let the political narrative weaken. Judicial confidence must not."

Silence spread through the room.

He wrote the next direction—"No public comment on the size, expense, or prestige of the advocates' team."

Then a second—"Only factual information concerning recorded judicial developments."

He put down the pen.

Power, at that moment, was asking for no slogan.

Only restraint.

In the evening, Aditya and Malini returned to the office.

The previous day's evidence map was opened again on the table.

Malini did not erase two lines.

She made them thinner and wrote beside them—"Same origin."

Aditya asked, "Why did you not erase them?"

"Because these lines were once drawn. The history of the correction should remain."

Aditya agreed.

"And the circular support?"

Malini made a red mark between those two arrows.

"Inactive."

"Not removed?"

"No. Because a future reader should understand that this route failed under testing."

Aditya smiled.

"Now you understand the language of the investigation register."

Malini said, "Perhaps now I understand a little of the language of silence as well."

"Silence is not one language."

"Then?"

"The source gives silence its grammar."

In the margin of the evidence map he wrote five words.

Expectation.

Locus.

Time.

Custodian.

Search.

Malini added—"Independence."

Aditya looked at it.

"Good. Today that word has been earned."

The night deepened.

The memory of Garh En Arikel suddenly rose within Aditya.
In the village, the water of two ponds looked the same colour from a distance.
But one pond was filled by the course of rainwater.
The other by seepage from underground.
The same colour did not mean the same source.
And sometimes two separate drains ultimately came from the same stream.
To count only numbers without seeing their origin was an illusion.
He stood by the window.
Delhi's night was not a pond in Mithila.
But Gangesha's question was alive in this city too.
Something is present—whose quality is it?
Something is absent—what was expected?
Two indicators correspond—are they truly independent?
Three sources speak—does each speak of what it saw for itself?
Or is the same sentence returning through three mouths?
Navya Nyaya asks about relation before number.
And about the subject before relation.
Malini said from behind him, “The list for the next answer is ready.”
Aditya turned.
He read it.
Original copy of the summons.
Proof of receipt.
Clear scope of the items requested.
Time of creation of the forensic image.
Identification of the original medium.
Hash list.
Hash of the working copy.
Entry and exit times in the custody register.
Explanation for delay.
Separate list of external sources.
Malini asked, “Anything missing?”
Aditya said, “Add one line.”
“What?”
“Write first what this list will not prove.”
Malini looked at him.
Then she wrote—“This list will not, by itself, prove the guilt of any person.”
Aditya said, “Now it is right.”

In the final hour of the night, a secure message came from Devvrat Sinha.

The questions for the next hearing were arranged in order.
First—the scope of the summons.
Second—the limits of the forensic image.
Third—the meaning of the hash.
Fourth—the chronology of the custody register.
Fifth—which external sources are truly independent.
Sixth—which conclusions are, for now, only the investigator's interpretation.
Aditya read the list.
Malini asked, “Now?”
“Now the register will speak, not words.”
“And if the register remains silent?”
“Then we shall ask the reason for its silence.”
“And if no reason is found?”
“Then we shall narrow the conclusion.”
Malini gathered the empty tea cups.
The corridor outside was empty.
Aditya folded the evidence map.
Today the large team of advocates had not been able to tear the map apart.
But it had shown the true thickness of some of its lines.

That was not defeat.

It was testing.

Perhaps this is how a court's confidence is built—

A party that wishes to preserve its line must first accept its limit.

And when a line crosses that limit, it must have the courage to make it shorter.

The next morning the summons, the forensic image, the hash, and the custody register would again be before the Court.

This time, not as separate objects.

As the examination of one integrated source chain.

077 The Edge of Non-Apprehension — Chapter 12

Delhi's morning was grey.

The chill of the night still clung to the steps of the old High Court building.

Aditya Jha stepped out of the car with a thin case-file folder in his hand.

Until yesterday, the evidence map had been a collection of many lines.

Today it had to descend into a single question—

where one line truly joined another, and where it merely became the other's shadow.

Malini Karna came up to him and said quietly, "Every list has been tested again."

Aditya asked, "The limits of every conclusion as well?"

"Yes."

"Then we are ready."

Malini was silent for a few moments.

"One thing is still on my mind."

"Say it."

"If the same material stands before us in four forms—the original medium, the image, the working copy, the export—the same thing appears four times. The mind wants to count it as four pieces of evidence."

Aditya said, "Today we shall count not what the mind wants, but the relationships."

He walked toward the building.

In the glass of the entrance door, his reflection appeared for two moments like two figures.

He did not smile.

He said only within himself—

Two reflections, not two men.



Justice Arya's courtroom was full.

Several advocates for the defence had opened their respective files.

Vidyanand Mishra sat in the first row.

Devvrat Sinha and Mrinal Dhar appeared for the State.

Aditya was seated not near the witness stand, but behind the State's row of counsel.

Malini placed the record index beside him.

As soon as the proceedings began, Justice Arya said, "Yesterday's arguments left one question behind."

Everyone fell silent.

"If several records are transformations of the same original source, does an increase in their number increase the independence of the evidence?"

Senior defence counsel rose.

"Our submission is—no."

Devvrat Sinha said, "The State too does not disagree with that general principle."

Justice Arya looked at him.

"Then where is the dispute?"

Devvrat answered, "The dispute lies in determining which records are transformations of the same original source, and which records came into existence independently."

"Good. Today we shall examine not the number, but the genealogy of the sources."

For a moment, the atmosphere of the courtroom changed.

Until yesterday the argument had been about the thickness of the lines.

Today it was about their birth.



The first subject was the summons.

The court assistant placed the original before the Court.

The items sought in the summons were numbered.

One—access records for a specified period.

Two—administrative activity relating to specified accounts.

Three—computational records relating to specified payment routes.

Four—stored material for a specified communication period, excluding material within the limits of legal privilege.

Five—the available structure of the seized media and details of their copying.

Justice Arya asked, "Does this summons seek 'all computational material'?"

Devvrat read Aditya's written answer. "No."

"Does it seek every device?"

"No."

"Does it seek every external cloud repository, every alternative account, every archived copy?"

"No."

Senior defence counsel said, "Then why should the State give broad meaning to whatever was not produced by calling it non-apprehension?"

Aditya asked permission to rise.

The judge indicated that he might.

Aditya said, "Where an item lay outside the scope of the summons, it would be improper to treat its non-production as proof either of non-compliance with this summons or of its absence."

One of the defence advocates immediately asked, "Then what of the earlier consolidated table that used the word 'unavailable'?"

"The classification has been changed in three of its rows."

"Why?"

"Because 'not sought' and 'sought but not found' do not mean the same thing."

The sound of pens moving could be heard in the courtroom.

Justice Arya asked, "The new classification?"

Malini passed the list forward.

Aditya read—

"Sought and produced."

"Sought and not produced."

"Sought, but withheld for legal reasons."

"Outside scope."

"Technically inaccessible."

"Expected existence unverified."

"Search in another source required."

Justice Arya said, "Keep the boundaries among these categories clear."

Aditya answered, "This time, the boundaries in the consolidated map are shown not by colour but by written reasons."

The defence asked, "Why abandon colour?"

"Because colour creates an impression. A reason creates accountability."



The second subject was the forensic image.

The custody identification of the solid-state storage device was read before the Court.

Time of seizure.

Seal number.

Initial inspection.

Time of image creation.

Hash of the image.

Separate hash of the working copy.

Time analysis began.

Vidyanand Mishra rose.

"I want the answer in one sentence only. What does this image prove?"

Aditya said, "It makes available a computational form of the material copied, at a specified time, from a specified medium, by a specified method."

"Does it prove that everything that ever existed on the original medium is present in the image?"

"No."

"Does it prove that there was no external medium?"

"No."

"No cloud repository?"

"No."

"No other account?"

"No."

"That the possibility of recovering any deleted segment is exhausted?"

"No."

Vidyanand sat down.

Another defence advocate rose.

"Then why had the State used the expression 'complete computational environment' on the basis of this image?"

Aditya took a correction sheet from his folder.

"That expression has been removed."

"The State is changing its case?"

"The State is correcting the scope of its statement."

"What is the difference?"

"If the underlying conclusion remains, but its boundary was written inaccurately and too broadly, the boundary is corrected. If the underlying conclusion itself changes, the change in conclusion is recorded."

Justice Arya asked, "Which category is this?"

"Correction of evidentiary scope."

"Has anything been concealed?"

"No. The original sentence, the revised sentence, and the reason are all in the register."

Justice Arya examined the register.

"Good."

Malini did not look at Aditya.

But an old fear loosened within her.

The evidence had not become smaller because an error had been acknowledged.

It had merely come into its true size.



The third subject was the hash.

Three values were placed before the Court.

The hash of the original medium at the time the image was created.

The hash of the safely stored copy.

The hash of the working copy.

The defence's technical consultant said, "The three values are identical. What conclusion does the State draw from that?"

Aditya answered, "That at the specified points of comparison, the three computational copies were intact representations of the same bit sequence."

"That the material is true?"

"The hash does not say that."

"That the material is complete?"

"The hash does not say that."

"That the material was lawfully created?"

"The hash does not say that."

"Who created the material?"

"The hash does not say that."

"So the hash proves only sameness?"

Aditya paused for a moment.

"Sameness and integrity—among the specified copies."

"And beyond that?"

"Beyond that, other evidence is required."

Justice Arya wrote.

Mrinal Dhar said, "The State does not treat this hash match as independent proof of the truth of the material."

The defence asked, "Then why is there a hash line on the consolidated map?"

Aditya answered, "To establish the source relationship."

"Not to establish guilt?"

"No."

"Independent corroboration?"

"No, if all three copies descend from the same original image."

At that answer, several faces in the defence row lifted.

Aditya continued, "The consistency of descendant copies is useful, but it would be erroneous to call them three independent sources."

Justice Arya asked, "Has the State made that clear on the map?"

Malini opened the new table.

All three copies were placed within one bracket under the same original.

Above the bracket were the words—

"One source class; multiple copies."

Justice Arya merely nodded.



The fourth subject was the custody register.

Here the defence's tone hardened.

There was a forty-minute interval between the time of seizure and entry into secure storage. The register clearly accounted for the first twenty minutes. For the remaining twenty minutes there was only a brief notation.

“In transit.”

Senior defence counsel said, “Is that phrase sufficient?”

Aditya answered, “Not by itself.”

“Then the chain is broken?”

“That conclusion cannot be drawn immediately either.”

“Then what?”

“Independent explanation for the interval was sought.”

“Where?”

“In the vehicle-entry register, building-entry time, timestamp of the photograph of the sealed bag, and secure-room entry record.”

“Were all of those made by the same officer?”

“No.”

“All from the same system?”

“No.”

“All under the prosecution’s control?”

Aditya said, “Some are institutional records within State structures, but their processes of generation are separate. The degree of independence has therefore been recorded separately for each.”

The defence asked, “Has the entire forty minutes been accounted for?”

Aditya answered, “Twenty minutes are clearly registered. The next thirteen minutes are consistent with external time records. For the remaining seven minutes, there is no direct record.”

The courtroom went still.

Malini held her breath.

The defence asked again, “Seven minutes?”

“Yes.”

“Then an unbroken chain of custody?”

Aditya said, “I will not call it an ‘uninterrupted visual record.’”

Devvrat Sinha looked at Aditya for a moment.

Aditya continued, “I will say only that there is a seven-minute documentary gap; after that, the seal condition, entry records, and hash consistency are concordant. The existence of the gap does not by itself prove tampering, but neither would it be proper to treat the gap as though it had vanished.”

Justice Arya asked, “Does the State show these seven minutes on the map?”

“Not as a red warning. It says only: ‘documentary interval—unsupported segment: seven minutes.’”

“Why not red?”

“Because colour may be read as a signal of judgment. Words state the boundary.”

Justice Arya said, “Maintain that method.”



Vidyanand Mishra rose now.

His voice was not tired, but there was a faint shadow of the burden within it.

“My question goes beyond custody.”

The judge indicated that he might proceed.

“If there is no direct record of those seven minutes, and the later hash speaks only to later integrity, what can the State say about the earlier condition?”

Aditya said, “Only this much: the photograph at seizure, the initial seal details, and the later seal condition are mutually consistent. There is no direct account of every moment in between.”

“So, inference?”

“A limited inference.”

“Postulation?”

“No, if sufficient grounds for inference are available.”

“Non-apprehension?”

“Only in classifying the absence of a direct register entry for those seven minutes.”

Vidyanand asked, “And guilt?”

“No one’s guilt follows from this gap.”

Vidyanand’s eyes remained still for a moment.

“Good.”

He sat down.

Malini wrote—

“Silence in the custody register ≠ proved fact of tampering.”

Then a second line—
“Later hash ≠ direct knowledge of every earlier moment.”
Aditya saw what she had written.
He said nothing.
This time no correction was needed.

◆
During the midday part of the proceedings, the consolidated source map was brought forward.

Malini handed a large printed table to the court assistant.

First column—proposition.

Second—original source.

Third—intermediate form.

Fourth—type of support.

Fifth—independence.

Sixth—limitation.

Seventh—what is not yet proved.

Justice Arya asked, “Why is the last column necessary?”

Aditya said, “Because the map must show not only what is, but also what is not yet proved.”

Defence counsel came to row number seven.

An administrative access record.

An export of browser history.

Counsel did not smile.

“Both relate to the same account?”

“Yes.”

“Then independent?”

Aditya said, “Their processes of origin are different; their subject relationship is the same. Not fully independent; partial independence is recorded.”

“Is ‘partial independence’ a legal category?”

“It is not a judicial conclusion; it is an investigative classification, used so that we do not overstate our claim.”

Justice Arya said, “Keep the use of that classification explanatory only.”

Devvrat Sinha agreed.

Row nine contained a payment-gateway record.

Alongside it was an entry from a local workbook.

The defence asked, “Did the workbook come from the payment gateway?”

“No.”

“Who created it?”

“In a separate computational environment.”

“Then independent?”

Aditya answered, “Their source origins appear independent, but the authenticity of their subject-matter relationship requires separate testing.”

“In other words, merely because two numbers match, that is not independent corroboration?”

“No. Identity, time, account reference, and custody are also required.”

Mrinal Dhar said, “The State does not rely on numerical matching alone.”

Justice Arya wrote—

“Same result is not synonymous with independent source.”

◆
After lunch the argument sharpened.

The defence’s technical expert lifted a printed diagram.

“Five exports were made from this original image.”

“Yes.”

“Access list.”

“Yes.”

“History list.”

“Yes.”

“Administrative table.”

“Yes.”

“List of deleted items.”

“Yes.”

“Timeline.”

“Yes.”

“In the State’s earlier presentation, all five were shown as five separate forms of support.”

Aditya said, "That presentation has been revised."

"Why?"

"Because all five were derived views of the same original image."

"Then the State has gone from five to one?"

Aditya answered, "In counting sources, yes. Their analytical uses may still be five."

"Explain the difference."

"Five indexes to the same book are not five books. But five indexes may show five different aspects of the book."

Justice Arya immediately said, "The analogy is useful, but only within its limits."

Aditya inclined his head.

"Yes. The analogy of the book is only to explain unity of source; it does not imply technical equivalence with computational processes."

Vidyanand Mishra wrote something on a sheet of paper.

Something like the faintest assent appeared at the corner of his mouth.

Navya Nyaya does not leave even analogy without a boundary.



This time the defence raised a larger question.

"If five derivative forms of the same image constitute one source class, will their weight on yesterday's consolidated evidence map diminish?"

Devvrat Sinha rose to answer.

But Aditya wrote something and handed it to him.

Devvrat read it.

"The State's answer—yes, wherever the earlier presentation depended upon the number of independent forms of support."

A stir moved through the courtroom.

Senior defence counsel asked, "How many propositions are affected?"

Devvrat said, "The support count for two propositions will change."

"The conclusions?"

"One proposition remains supported by other independent sources, though by fewer of them. The status of the second proposition is reduced to investigative postulation."

Justice Arya asked, "Which propositions?"

Malini handed over the list.

First—the relationship of administrative access within a specified period.

Here an external access record was independently available.

Second—the direct causal relationship between an alleged internal instruction and a payment event.

Here the five derivative views all came from the same original image.

And the external source showed only temporal proximity, not causation.

Justice Arya asked, "Then what will the State call the second proposition?"

Aditya answered, "Not a proved causal relationship. An investigative hypothesis."

"And an allegation?"

"Not on this material alone."

Another stir moved along the defence row.

Justice Arya said only, "Record it."

As Malini wrote, she felt—

one line had become shorter.

The map had not become weaker.

The map had become honest.



During the recess, the media were waiting in the corridor.

Ananya Kashyap saw Aditya from a distance.

She did not ask him a question directly.

Devvrat Sinha came out first.

A reporter asked, "Is the State withdrawing its principal claim?"

Devvrat answered, "I will say nothing beyond what has been recorded in Court."

Another asked, "Has the defence gained the upper hand?"

Devvrat stopped.

"This is not a contest of weight."

Ananya wrote in her notebook—

"Reduced support count = prosecution defeated" is not the headline.

Then she struck it out.

She wrote a new line—

“Court tests source independence; State downgrades one conclusion.”

A message came from her newsroom—

“We need something sharper.”

Ananya replied—

“I’ll send a sharp fact. Not an adjective.”

Malini, standing at a distance, watched the exchange.

She thought—

words too require custody.

If a headline passes into improper hands, no hash can preserve its meaning.

She immediately smiled at her own analogy.

A hash does not preserve truth.

Only sameness.

Her mind was learning the boundary again.



The proceedings resumed.

This time the question concerned external sources.

A payment-gateway record.

A telecommunications time record.

A building-entry register.

An e-mail header segment.

All four had separate institutional origins.

The defence asked, “Separate institutions therefore mean independent sources?”

Aditya answered, “Not necessarily.”

“Why?”

“Some institutions may depend upon the same customer-supplied identity. Some timestamps may come from the same synchronisation source. Some records may influence one another because they concern the same event.”

“Then how was independence tested?”

“By origin, custodian, process of creation, source of input data, time, and interdependence.”

Justice Arya asked, “Is that test shown on the map?”

“Yes.”

“An example?”

Aditya said, “A building-entry register independently records a time of entry. But if its identification rests only on the name written by the visitor, its strength for proving personal identity is limited.”

“Telecommunications?”

“A network event is generated in a separate system, but ownership of the device does not by itself prove the identity of the user.”

“Payment gateway?”

“It may show a system-generated transaction event, but whose mental direction caused it is a separate question.”

“E-mail header?”

“It may show route, time, and transmission structure; not the truth of the intended meaning.”

Justice Arya said, “Keep all these distinctions clear in the written submissions.”

Devvrat Sinha said, “We will.”



As afternoon declined, a difficult question arose.

Defence counsel came to an indicator of a deleted communication.

“The State says there is a header indicator of a communication, but the original message has not been found.”

“Yes.”

“Then non-apprehension?”

“Non-apprehension of the original message.”

“What meaning does the State draw from that non-apprehension?”

Aditya said, “First we test the expectation.”

“Why the expectation?”

“The header indicator suggests that a communication event may have occurred. But where the original message was expected to be stored, for how long, what the retention policy was, whether it was deleted or transferred—without those matters, it would be improper to say ‘it was destroyed.’”

“By whom?”

“That is an even more distant question.”

“Then at present?”

“Event indicator present. Original material unavailable. Cause uncertain.”

“That much only?”

“That much.”

The defence asked, “So much investigation for such a short sentence?”

Aditya’s voice remained steady.

“Earning a short sentence is sometimes harder than writing a long one.”

A complete silence spread through the courtroom.

Vidyanand Mishra stopped his pen.

The sentence was not an argument.

It was the character of the method.



Toward evening, Justice Arya put a consolidated question.

“Assume this: the summons is limited. The image is of a limited medium. The hash goes only to the integrity of copies. There is a seven-minute gap in the custody register. The external sources have differing degrees of independence. What, then, is the State’s safe conclusion?”

Devvrat Sinha looked at Aditya.

Aditya rose.

“First—the integrity of the image created at the specified time from the specified seized medium is supported by the available hash consistency.”

“Second—the image is limited to that medium; the existence or non-existence of other possible sources is not established by it.”

“Third—compliance with the summons can be tested only against what the summons sought; non-production of items outside its scope cannot be called non-compliance.”

“Fourth—there is a seven-minute documentary gap in the custody register; other time records provide some consistency, but do not erase the gap.”

“Fifth—multiple derivative views of the same original image are not independent sources.”

“Sixth—the evidentiary value of each external source must be tested separately according to its origin, input data, custody, and subject-matter limits.”

“Seventh—the cause of the unavailable original message is not yet proved; deletion, transfer, expiry of the retention period, or some other cause remain open questions.”

“Eighth—this combined material alone cannot be treated as proving the guilt of any person.”

Justice Arya asked, “Does the State wish to say more than these eight lines?”

Aditya said, “Not at this stage.”

“Less?”

Aditya thought for a moment.

“If the foundation diminishes on further testing, then less.”

Justice Arya leaned back in her chair.

“Record it.”



Vidyanand Mishra rose again.

“One matter remains.”

The judge indicated that he might proceed.

“The State says that narrowing a conclusion is part of method. But at an early stage of the investigation, larger statements entered the public domain. What of the damage caused by them?”

Devvrat Sinha rose to answer, but the judge raised a hand to stop him.

“Will the investigating officer answer?”

Aditya rose.

“If an official statement was broader than the evidence, the correction should be made clear not only in the internal register but through the appropriate official channel as well.”

“Has that been done?”

“Some corrections have been made. Some remain.”

“Why do some remain?”

“Because some earlier summaries had circulated through several offices. Receipt of the corrections has not been verified at every location.”

Vidyanand asked, “Then?”

“Verification of receipt is under way.”

“Non-apprehension there too?”

Aditya inclined his head slightly.

“Yes—where it has not been verified whether the correction arrived, we cannot treat it as having arrived.”

Justice Arya said, “That is important. Let the method apply to its own corrections as well.”

Aditya answered, “It will.”

Vidyanand sat down.

There was no look of victory on his face.
There was only the fatigue of a difficult profession.
Judicial dignity is not always a shining slogan.
Often it is merely an insistence upon the correct boundary.



The hearing moved toward its close.

Justice Arya began to write the order.
For several minutes there was only the sound of pen and paper.
Then she said—

“Today’s examination is not a final conclusion.”

“The Court records only this much: in its consolidated presentation, the State has made clear the independence of sources, the limits of the image, the limited meaning of the hash, the custody interval, and the uncertainty as to the cause of non-apprehension.”

“The defence may continue to question the evidentiary value of all these foundations.”

“Neither side shall present this interim examination as a conclusion of guilt or innocence.”

Ananya Kashyap, seated in the back row, wrote the sentence down word for word.

So did Malini.

Devvrat Sinha closed his file.

Aditya did not fold his evidence map.

It remained open.

Because the map was not yet complete.

Because some lines were still awaiting examination.

Because in a courtroom, “not yet” was also a valid answer.



Outside, evening had already descended.

A brief report was sent to Home Minister Shiveshwar Prasad.

An officer with him said, “The State’s eight points have been recorded.”

The Minister asked, “What did the Court say?”

“No final conclusion.”

“Then the public statement?”

“A draft can be prepared.”

The Minister nodded.

“Head.”

The officer did not understand.

The Minister corrected himself. “I said—keep your head cool.”

Then he said plainly, “No victory statement. Not one word beyond what the Court said.”

“But the opposition—”

“The opposition will do its work. The government’s work is not to destroy the Court’s confidence.”

He read the report again.

Seven-minute interval.

Downgraded conclusion.

Uncertain cause.

No final conclusion.

He said, “Do not hide any of this.”

The officer asked, “Politically, it will be difficult.”

The Minister answered, “The price of being judicially improper is higher.”



That night in the office, Malini and Aditya were reconciling the final register.

Malini asked, “Did we win today?”

Aditya looked up from the papers.

“What?”

“The Court recorded eight points. Some defence objections were accepted, some were not. Some of the State’s lines survived.”

Aditya looked at her for a few moments.

“You are looking for a victory?”

Malini did not smile.

“Perhaps.”

Aditya said, “Today we learned one thing—how long a line survives.”

“Is that not victory?”

“It is responsibility.”

“And if something diminishes further at the next hearing?”

“If it diminishes, we shall diminish it.”

“And if something becomes firm?”

“Then we shall write down why it may be called firm.”

“And if something is not found at all?”

Aditya said, “First we shall ask—where was it expected to be found?”

Malini laughed.

She knew that answer by heart now.

But there was a difference between an answer learned by heart and a method earned.



Aditya remained alone in the office for a while.

The earth of Garh En Arikel returned to his memory.

Walking along the field boundary after rain, the boy Aditya had once heard his father say—

“The field is only as large as its boundary.”

The boy had asked—

“If we cut away the boundary, will the field become larger?”

His father had laughed.

“On paper. Not on the earth.”

Today that old sentence returned with a new meaning.

Cutting away the boundary of evidence does not make the truth larger.

It makes only the claim larger.

And when a large claim runs beyond its foundation, it collapses in the first rain.

At the edge of the evidence map he wrote—

“A boundary is not the enemy of evidence; it is its shape.”

Then he put down his pen.

Outside, the Delhi night was still.

Somewhere in the distance, the sound of a vehicle.

Somewhere, a dog barked.

Somewhere, a file was closed.

Somewhere, a question remained open.



In the final register, Aditya wrote five headings.

Summons—scope.

Image—limit.

Hash—integrity.

Custody—time interval.

Non-apprehension—expectation and cause.

Malini added the list of external sources for the next day.

Building entry.

Payment gateway.

Telecommunications time record.

E-mail header.

Different sources.

Different limits.

Different questions.

Aditya asked, “Is there one line beneath them all?”

Malini read—

“No source shall say more than its capacity permits.”

“Good.”

Before switching off the light, he looked at the copy of the Court’s order.

No final conclusion.

There was no defeat in that sentence.

There was restraint in it.

Within restraint, method.

Within method, the possibility of justice.

And within the possibility of justice, no seat for vengeance.

Not vengeance.

Method victorious.

078 The Edge of Non-Apprehension — Chapter 13

By the time the Court's latest order reached Delhi, the day was fading.

In the northern wing of the Home Ministry, the evening light lay still upon grey paper.

The sealed dispatch brought by the secure courier bore neither a mark of victory nor a red band of warning.

It said only—Certified Copy for Restricted Use.

Aditya Jha did not look at the clock before opening the envelope.

He looked at Malini Karna.

"One thing has changed since yesterday's hearing."

Malini asked, "The evidence?"

"Not the evidence. The way we speak of it."

He opened the first page of the order.

At three places the Court had accepted the State's narrow formulation.

At two places it had added an express limitation.

At one place it had said that non-apprehension must be viewed not as independent material, but within the surrounding circumstances to which it relates.

Malini read on slowly.

The words were few.

Their effect was large.

Many lines of the investigation were still alive before the Court.

But no line could remain larger than its source.

Aditya said, "Now the Ministry must decide—what we preserve, what we narrow, and what we abandon."

Malini asked, "Abandon?"

"Yes. Preserving what the record does not support is not method."

At eight that night, the special legal room was opened.

The old source-map hung on the wall.

Upon it were small paper strips in six colours—perception, inference, analogy, testimony, postulation, non-apprehension.

No seventh colour was added today.

Aditya had said—tarka has not yet begun.

First, the account of non-apprehension must be closed.

Malini opened a new register.

Its name was—Register of Living Propositions.

Below it were four columns.

Clear support.

Limited interpretation.

Unproved—do not press further.

Undetermined—further source required.

Vasudev Chaudhary, Joint Secretary in the Ministry, looked at the register.

"Why is there no column here called 'the State's case'?"

Aditya replied, "Because the case will be built upon facts, not facts upon the case."

The room was silent for a few moments.

Vasudev leaned back in his chair.

"All right. The first proposition?"

Malini read—

"Using a specified administrative identity, the service-server's administrative panel was opened at the stated time."

Aditya said, "Sources?"

"The service-server access log, the external security-gateway time log, and the authorised-user list."

"Three independent sources?"

Malini paused.

"The access log and the security-gateway time log are held by different custodians. The authorised-user list shows capacity only, not actual access."

"Then write the third not as support, but as background."

Malini wrote.

The first proposition became smaller.
But more solid.



The second proposition concerned the payment gateway.

One file contained a customer-identification-verification number.
A second export contained a transaction sequence matching that number.
A third screen capture showed the same name.
Vasudev said, “Three matches.”
Malini did not answer at once.
She looked at the source-map.
“Two of the exports come from the same underlying payment-gateway repository.”
“Meaning?”
“Two views, one source.”
A trace of satisfaction entered Aditya’s face.
“This is no longer the first test; it is a lesson that survived the last hearing.”
Vasudev asked, “Then where does the proposition go?”
“Limited interpretation.”
“Why?”
“The transaction record exists. But a name-match alone does not establish the controlling person.”
Malini wrote—
Existence of the transaction supported.
Individual control unproved.
Alternative authorised use possible.
Underlying source one.
After those four lines, the page seemed lighter.
Aditya said, “A lighter page is not a weaker page.”
“Sometimes such a page is more trustworthy.”



The third proposition concerned a missing audio record.

An old investigative note said that the audio record of an important meeting appeared to have been ‘deleted.’
Malini had marked that line in red.
Aditya asked, “Was its expected existence established?”
“No.”
“Was audio recording mandatory?”
“No. Only two witnesses said that meetings were recorded from time to time.”
“Retention period?”
“No fixed policy was found.”
“Any independent deletion indicator?”
“No.”
Vasudev raised his brows.
“Then the old note?”
Aditya said, “It goes.”
“Entirely?”
“Yes.”
“The State has already referred to it before the Court.”
“Which makes the duty to correct it even clearer.”
Against the old sentence, Malini wrote—
Unproved. Do not press further.
Vasudev said nothing.
He simply kept his eyes on the line.
The State was withdrawing its own words.
But the room did not feel like defeat.
The weight of what lacked evidentiary support was being removed.



The fourth proposition concerned an email chain.

Some emails had been recovered.
There was no correspondence for two intervening days.
The old inference was—the intervening messages may have been deleted.
Aditya asked, “Do the email headers contain sequential numbering?”
“Some service providers do not preserve it in that form.”

“Alternative repository of sender or recipient?”

“One is available. The other side’s repository is under privilege review.”

“Then what does the gap say?”

Malini answered, “Only that no messages for that period were found in the collection we received.”

“That is all.”

Vasudev asked, “Can nothing be inferred from the circumstances?”

Aditya said, “An inference is possible, but the gap alone cannot be its basis. External event, responsive reference, temporal relation—each must be separate.”

Malini changed the column.

Undetermined.

Outcome of privilege review and alternative repository awaited.

Her pen stopped.

“And if nothing is found in the other repository either?”

Aditya replied, “Then first examine the adequacy of the search. Then expected existence. Then cause. ‘Not in two places’ does not, by itself, become ‘deleted.’”

At ten that night, Home Minister Shiveshwar Prasad arrived.

He had no publicity staff with him.

Only his private secretary remained outside.

Shiveshwar looked at the register displayed inside the room.

“What is this?”

Vasudev said, “The basis of the State’s new legal strategy.”

Shiveshwar read the first column.

Then the third.

“Unproved—do not press further.”

He repeated the words.

“How many?”

Malini read out the number.

“Seven so far.”

“The State will abandon seven propositions?”

Aditya said, “What the record does not support is not fit to remain a proposition of the State.”

Shiveshwar looked at him.

“Outside, people will call this a retreat.”

“They may.”

“The opposition will say the investigation is collapsing.”

“They may.”

“The media will say the Ministry bent under pressure.”

“They may say that too.”

Shiveshwar’s voice did not harden.

“And what will you say?”

Aditya replied, “That before the Court I shall say only as much as the record permits me to say.”

Shiveshwar remained silent for a long moment.

Then he said, “Keep this register away from politics.”

“Its numbers will not go into any speech.”

“No victory list.”

“No defeat list either.”

“Legal use only.”

Vasudev wrote it down.

For the first time Malini saw that a ministerial direction could sometimes reduce words rather than enlarge them.

Shiveshwar turned the next page.

“What is the largest part of the living propositions?”

Malini said, “Temporal relations and external payment records.”

“And the weakest?”

“Conclusions of individual control.”

“Why?”

“In many systems shared or delegated access is possible. Some identity material may be securely retained, but the actual user is a separate question.”

Shiveshwar looked at Aditya.

“Was the investigation saying this so clearly until yesterday?”

Aditya replied, “No. It will now.”

“Why now?”

“Because the last hearing exposed the error of treating multiple views of the same underlying source as separate support.”

“And you will put your own error in writing?”

“Yes.”

Shiveshwar left his chair and went to the window.

Outside was the Delhi night.

“The State’s reputation will not survive by concealing error.”

He turned back.

“The ability to identify error is also reputation.”

Aditya said nothing.

But the sentence remained above the register like an invisible heading.



After the Minister left, the room seemed smaller again.

Malini reread the list of seven unproved propositions.

In one, the cause of deletion had been inferred.

In another, individual control rested only on a name-match.

In a third, two exports from a shared repository had been treated as independent support.

In a fourth, a time-gap in the custody register had been called proof of alteration of the material.

In a fifth, silence from a service provider had been treated as a negative response.

In a sixth, material unavailable because of privilege had been treated as nonexistent.

In a seventh, a failed search direction had been left outside the record.

Aditya asked, “The correction to the seventh?”

Malini said, “The failed direction has been put back.”

“In full?”

“Time, source, search method, result—everything.”

“Good.”

Vasudev asked, “A failed direction may be used against the State.”

Aditya did not smile.

“It may.”

“And you will still retain it?”

“If we remove it, the method conceals its own history.”

“The history of an investigation is not only the history of successful paths.”

The sentence could be heard clearly beneath the low hum of the room’s air-conditioning.



At eleven, Anuradha Sen, Deputy Secretary in the Legal Division, arrived.

She carried a summary of all the previous judicial orders.

The moment she saw the register, she said, “If the strategy changes, the presentation must change too.”

Vasudev asked, “In what form?”

Anuradha placed four pages on the desk.

“First—established facts.”

“Second—limited inferences.”

“Third—undetermined questions.”

“Fourth—propositions the State will no longer press.”

Malini asked, “Will the fourth page be given to the Court?”

Anuradha said, “Where an earlier statement is already on the record, the correction cannot remain concealed.”

Aditya agreed.

“Some propositions existed only in internal notes.”

“Those will remain in the internal correction register.”

“Where something has already become the State’s voice before the Court, formal correction is required.”

Vasudev asked, “That will give the defence additional ground.”

Anuradha replied, “If it does, it does. The State’s purpose before a court is not to reduce the other side’s grounds, but to preserve the accuracy of its own statement.”

Malini did not write the sentence down.

She kept it in memory.



Near midnight, the shadow of the trees could be seen only on the Ministry glass.

The most difficult proposition in the room remained.

A seven-minute proximity between an external payment record and a service-server time record.

The old conclusion was—coordinated action by the same operator.

Malini opened the sources.

“Payment instruction: 21:14:08.”

“Administrative access: 21:20:51.”

Vasudev said, “Seven minutes.”

Aditya asked, “Are the time sources on the same standard?”

Malini paused.

“The payment gateway uses Indian Standard Time. The service-server time-zone indicator is available, but testing of synchronisation drift is incomplete.”

“How much possible drift?”

“There are examples of up to two minutes in the record. The maximum limit is not established.”

“Then say seven minutes, but not ‘immediately after.’”

Malini corrected it.

Vasudev asked, “Coordinated action?”

Aditya said, “Temporal correspondence is one circumstance. A conclusion of coordination requires an independent person-link or instruction.”

“Meaning limited interpretation.”

“Yes.”

“It remains alive?”

“The temporal relationship remains alive. Operator coordination is, for now, unproved.”

Two separate lines were entered in the register.

Two different strengths emerged from the same event.

This time, the strength did not increase.

The boundary became clearer.



Malini opened the next paper.

It concerned the custody register.

One collection was recorded as sealed at 01:32 at night.

The next laboratory entry was at 09:18.

The intervening signatures were incomplete.

An old note said—custody doubtful.

Aditya asked, “What is the basis for the word ‘doubtful?’”

“The missing intervening signature.”

“Any indication that the seal was broken?”

“No.”

“Any difference in weight or package identification?”

“No.”

“Any objection recorded at the time of receipt?”

“No.”

“Then?”

Malini said, “The custody register is incomplete. Alteration of the material is not established.”

“Write exactly that.”

Vasudev asked, “Is the incompleteness insignificant?”

“No.”

Aditya replied, “Incompleteness is a reason for examination. But a reason for examination cannot be turned into the result.”

Anuradha added, “The Court will need that distinction stated plainly.”

Malini wrote—

Time-gap in the custody record.

No independent indication of physical seal-break.

Integrity hash matches the initial image.

The hash does not establish the truth of the material or the completeness of the original.

Four lines.

Four different limits.



In the last watch of the night, Aditya went up to the Ministry roof.

The Delhi air was dry.

There was the faint shadow of a smell as though rain had fallen somewhere far away.

He placed a hand on the railing.

He did not close his eyes.

Yet Garh En Arikel came before him.
The village earth released a deep smell before it received the rain.
A foot would sink on the ridge of a field, but a person would not fall.
Because the foot had to be placed not with force, but with balance.
In childhood his father had told him—
“Run on the earth and you will slip; understand its gait and you will cross.”
The sentence had not been about law.
Nor about philosophy.
But today its meaning was different.
An investigation too was like earth.
Even where it looked hard, moisture lay within.
Where a foot sank, increasing force was not always the remedy.
Sometimes the weight had to be reduced.
Sometimes the direction changed.
Sometimes one had to stand still and understand the nature of the ground.
The pressure of the past several weeks had not ended inside Aditya.
But its pace had changed.
Patience is not passivity.
Patience is the strength to restrain an improper conclusion until the proper moment.
The earth of Garh En Arikel was no longer only a memory.
It had become the pace of method.



When he came back downstairs, Malini was sitting with a new problem.

“Look at this.”

She showed him an export from an administrative panel.

The same username appeared on three consecutive nights.

But the original screen image for the third night was missing.

There was only an exported table.

Aditya asked, “The original record?”

“The service provider says the old live repository was removed during rotation.”

“Whose export?”

“An internal compliance officer’s.”

“When was it exported?”

“Two days after the original event.”

“Hash?”

“The hash is from the time the export was received, not from the original repository.”

Vasudev too had returned.

“Then the username is not accepted?”

Malini replied, “The exported table is available material. But re-examination of the original source is impossible. That limitation must be stated.”

Aditya said, “Correct.”

“And also that this is one compliance officer’s export. Even if another view is found, it does not thereby become an independent source.”

Malini wrote in the register—

Existence: exported table supported.

Original-repository verification: unavailable.

Hash: limited to integrity of the export as received.

Individual control: unproved.

Non-apprehension: possibility linked to the original repository’s retention cycle; deliberate deletion not established.

She stopped after reading the fifth line.

“Is ‘possibility’ correct?”

Aditya said, “If the service provider’s written retention policy is its basis, yes. The policy does not prove what actually happened, but it provides a natural alternative.”



By the first hour of dawn, all four columns were filled.

Clear support—thirteen.

Limited interpretation—nineteen.

Unproved—do not press further—nine.

Undetermined—further source required—twelve.

Vasudev looked at the numbers.

“If this gets out, everyone will build a story around the numbers.”

Anuradha said, “Which is why the numbers will not go out.”

“For the Court, the reason will go proposition by proposition.”

Malini asked, “Should we also write the competing possibility beside every limited interpretation?”

Aditya answered at once, “Yes.”

Vasudev looked at him.

“That is new.”

“It is necessary now.”

“Why?”

“Because in the next section the question will no longer be only, ‘What is our inference?’”

“The question will be—if our inference is wrong, what other meaning of the available material is consistent with the record?”

Anuradha smiled faintly.

“So before tarka begins, the competing possibility enters the register.”

Aditya said, “Preparation for tarka. Not tarka itself.”

Malini added a new column—

Consistent alternative explanation.

The face of the entire register changed the moment that column was added.

The State’s proposition no longer stood alone.

Its possible answer stood written before it as well.



The first alternative explanation was written opposite administrative access.

Shared authorised use.

The second, opposite the payment-time relationship.

Automated payment process.

The third, opposite the email gap.

Communication may have occurred through another medium, or there may have been no communication at all.

The fourth, opposite the missing audio record.

The meeting may never have been recorded.

The fifth, opposite the custody time-gap.

Recording error without alteration of the material.

Malini asked, “The other side will use all of these.”

Aditya said, “If they are consistent with the record, why should writing them be left to the other side?”

“An investigation should see the possibilities opposed to its own inference first.”

Vasudev said, “Will that reduce the strength of the prosecution?”

Aditya replied, “A strength that collapses the moment it sees an alternative explanation should not properly be called strength.”

This time Anuradha wrote the sentence down.

“This could become the foundation of tarka.”

“At the next stage.”

Aditya’s voice was even.

He kept the boundary.

When the stage of proof changes, the method will change.

But the debt of the preceding stage of proof will travel with it.



Dawn had reached the glass.

The secure file began to be tied up again.

Anuradha said, “The draft submission for Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar is ready.”

Aditya asked, “Has it been sent?”

“No. After final approval by the Ministry.”

“Good. Do not send it yet.”

Vasudev did not laugh, but his voice lightened.

“Saving work for the next stage?”

Aditya said, “Sequence has meaning.”

“First let non-apprehension be completed.”

Malini opened the last page of the register.

She wrote the heading—

Closing Summary of the Non-Apprehension Section.

She read the lines one by one.
Not found does not mean nonexistent.
Not found does not mean deleted.
Not seen because of privilege does not mean absent.
Hash match does not mean truth.
Custody gap does not establish alteration.
Multiple views of the same source do not constitute independent support.
A failed search is not fit to be removed from the history of the investigation.
An alternative explanation is not weakness; it is a necessary part of testing.
Aditya added the final line—
“Without accepting limits, tarka cannot be fair.”



Before the room emptied, Shiveshwar Prasad came in once more.

He had not gone home during the night.
His private secretary was gathering documents outside.
Shiveshwar read the last page of the register.
“After all this, the State’s strategy in one sentence?”
Vasudev looked toward Aditya.
Aditya thought for a few moments.
“Where there is a direct basis, state it plainly.”
“Where there is inference, call it inference.”
“Where there is non-apprehension, state it with the limits of the search.”
“Where an alternative explanation is consistent, acknowledge its existence.”
“And where there is no basis—remain silent.”
Shiveshwar asked, “Silent?”
“Yes.”
“People will take the State’s silence for weakness.”
“Before a court, silence is stronger than an unsupported word.”
Shiveshwar sat down.
“Then what do we do politically?”
“That question is outside my authority.”
“But legally?”
“Make no claim that would compromise the fairness of the case.”
Shiveshwar nodded.
“All right.”
“No victory statement will come out of this file.”
“And no attempt to call any person guilty merely on the basis of what is unavailable.”
Aditya said, “That is what is needed.”



Shiveshwar left.

Malini opened the window.
The dawn air came in.
She asked, “Is non-apprehension finished?”
Aditya said, “The account of this stage is finished. The questions are not.”
“Meaning these limits will remain with us ahead as well?”
“Everywhere.”
“In tarka too?”
“Especially in tarka.”
He did not fold the source-map.
He left it on the wall.
The six colours had not merged into one another.
Each had its own boundary.
Yet all the lines were now moving toward a new blank space.
There was no colour over that blank space.
Only one word remained to be written there—tarka.
Malini asked, “Shall we write that word today?”
Aditya said, “No.”
“The final work of non-apprehension still remains.”
“What?”
“To accept that what has not been known must not be spoken of as though it were known.”

Malini set down her pen.
Some sentences are meant to be written.
Sometimes not writing a sentence is itself method.



The day had begun in the Ministry corridors.
Employees were arriving.
Telephones were ringing.
The secure mail room had opened.
But Aditya was not in a hurry.
He closed his bag.
He placed a copy of the register inside.
He folded a small piece of paper separately.
The name Garh En Arikel was written on it.
There was no legal maxim beneath the name.
Only one line—
“The earth teaches the foot its pace.”
He put the paper in his bag.
As they walked out, Malini asked, “Will you rest?”
Aditya said, “For a while.”
“Then?”
“Then we shall place what remains before tarka.”
There was the fatigue of the night in his feet as he descended the stairs.
But his pace was even.
The earth of Garh En Arikel was not beneath Delhi’s marble.
Yet its patience was within him.
Behind him in the Ministry, the Register of Living Propositions was closed.
There was no list of victories inside it.
Nor any list of defeats.
Only boundaries.
Support.
Unprovedness.
Uncertainty.
And open space for alternative meaning.
Non-apprehension had completed its work.
Instead of giving a voice to the silence of what had not been found, its boundary had been given.
Without that boundary, the tarka ahead would have been mere verbal skill.
With that boundary, tarka could become a test.
Aditya came out and stood in the light.
The sky was clearing.
In the next watch, the advocates’ array and the officers’ method would stand face to face.
But that was the next watch.
For now, there was only patience.
The memory of earth.
And this much was certain—
Method would move forward, but with its boundaries.

079 The Thunderbolt of Tarka — Chapter 1

As the first light of dawn entered the Ministry's special law room, Malini Karn placed a seventh paper strip on the table.

Only one word was written on it—Tarka.

Six strips were already on the wall.

Perception.

Inference.

Analogy.

Testimony.

Postulation.

Non-apprehension.

The seventh strip had not yet been put up on the wall.

Aditya Jha took it in his hand and looked at it.

"We will not give it a place yet."

Malini asked, "Why?"

"Because tarka is not itself a means of knowledge."

"Then the thunderbolt of the seventh section?"

There was the fatigue of the night in Aditya's eyes, but his voice was steady.

"If the thunderbolt seats itself in the place of evidence, it will shatter the method."

He opened the register of live propositions.

At the end of the previous stage, four categories had remained.

Clear support.

Limited interpretation.

Unestablished.

Undetermined.

Today a fifth column was added.

Alternative explanation.

Malini wrote the heading.

Aditya said, "A proposition that survives only because we have not thought of a contrary possibility is not a living proposition."

"And if the contrary possibility is mere imagination?"

"Then tarka will filter it."

"How?"

"We ask—if that possibility were accepted, what would we expect to find in the record?"

"And if the expected thing is not found?"

"Then again the rule of non-apprehension. Not found is not the same as—was not there."

Malini smiled.

"So tarka will discipline non-apprehension too?"

"Tarka will discipline every path of evidence, including itself."

For the first time, the meaning of the seventh strip became clear in the room.

It was not on the wall.

It was in the form of a question.

At half past nine the secure communication line opened.

Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar were already representing the matter.

For that reason, the Ministry's submission concerned examination, not appointment.

Vasudev Chaudhary made it clear at the outset, "This is not a new brief."

Devvrat Sinha said, "I understand. Supplementary strategy material?"

"Yes. A tarka-test of the propositions that remain after the stage of non-apprehension."

Mrinal Dhar turned the page.

On the first page, in bold type, was written—

"Use of tarka: not to generate evidence; to test inconsistent or insufficient alternative explanations."

Devvrat stopped after reading it.

"This line can be placed before the Court as well."

Aditya said, "If the record supports it."

"The record?"

"We must apply tarka to our own theory too."

A faint satisfaction came over Mrinal's face.

"Good. The State will not make an exception of its own position."

Malini read the summary of the five live propositions.

A limited statement concerning administrative access.

A limited relation in the payment-gateway record.

A structural match between the customer-identification and tax-deduction-at-source spreadsheets.

An undetermined line concerning the deleted mail archive.

Partial support found in the external custodian's time records.

Devvrat interrupted.

"The word 'deleted'?"

Malini corrected herself at once. "Material unavailable in the mail archive. Independent indicators of deletion are limited."

"Insert that correction into the page."

Aditya said, "It is already there."

Devvrat smiled.

"Then I shall have fewer occasions to argue with our own language before the defence does."

Mrinal said, "Send the submission, but on one condition."

Vasudev asked, "What?"

"The alternative explanations must not be written in a conveniently weakened form for the State."

Aditya answered without delay, "Agreed."

"Write each in the strongest possible form."

"Agreed."

"Then whatever survives will be fit for the Court."

The secure connection closed.

Before sending the submission, Aditya changed the heading.

Not "The State's Tarka."

"Contrary-Proposition Testing."

At that same hour, on the other side of the city, Vidyanand Mishra was separating old papers in his office.

Three registers lay open before him.

Privilege.

Source independence.

Alternative explanation.

Junior advocate Arunesh said, "The State has now come to tarka."

Vidyanand raised his head.

"Not the State. The matter's next test."

"Is there a difference?"

"An immense one."

"We will oppose every conclusion of the State."

"Every one?"

Arunesh stopped.

Vidyanand put down his pen.

"If we deny the existence of a fact whose source is undisputed, we destroy our own credibility."

"Then?"

"Accept the existence. Question the meaning."

"And where the meaning itself is limited?"

"Respect the limit."

There was dissatisfaction on Arunesh's face.

"It is not the defence's job to protect the State's limits."

Vidyanand's voice did not harden.

"The defence's job is to prevent the State from crossing its limits."

"Is that not the same thing?"

"No."

He turned a page of the first register.

"If we call a clear fact false, our objection to an unestablished allegation will grow weaker."

There was a soft knock at the door.

An assistant came in and left an envelope.

Vidyanand did not open it.
The name of a pharmacy was printed on top.
Shailaja's monthly account for her regular medicines.
He slid the envelope beneath the register.
Arunesh saw it but said nothing.
Vidyanand returned his eyes to the page.
"The dignity of the profession is not visible when everything is in your favour."
"Then when?"
"When a private crisis tempts you toward exaggeration, and you refuse."
Arunesh slowly put down his pen.
Outside the office came the sound of traffic.
Inside, the first lesson of tarka was under way.



By noon, the first proposition was placed before the Ministry's tarka-testing room.

"Using the specified administrative identity, the administrative panel of the service computer was opened at the specified time."

Malini read out the sources.
Access log.
External security-gateway time record.
Authorised-user list.
Aditya asked, "Alternative explanation?"
A senior computational analyst said, "The identity was shared."
Another said, "It may have been an automated action."
A third said, "Remote maintenance."
Malini wrote down all three.
Aditya took the first.
"Assume the identity was shared. What would we then expect?"
"A pattern of use of the same identity from multiple devices."
"Found?"
"There is access from two devices."
"Two devices equals two persons?"
"No."
"Then has the possibility of a shared identity been eliminated?"
"No."

The first proposition had not been weakened.
But its person-specific meaning remained limited.
The second alternative—automated action.
The analyst said, "The event of opening the administrative panel occurs within a human session."
"Automation impossible?"
"Not entirely. Some auxiliary actions may be automated."
Aditya made a red mark.
"Remove 'human access established'."
Malini asked, "Then what remains?"
"An administrative session was established using the specified identity."
The third alternative—remote maintenance.
There was no entry in the authorised maintenance register for that day.
An analyst said at once, "Then no remote maintenance took place."
Aditya looked at him.
"Does the register's completeness stand proved?"
The analyst fell silent.
"The possibility of unauthorised or unregistered maintenance?"
"Unestablished, but not zero."
"Good. Tarka does not erase a contrary possibility by magic."
Malini wrote—

"No positive record of remote maintenance; its impossibility is not established merely by the absence of such a record."

The first test ended.
The proposition survived.
Its person-specific meaning did not.
Its session-specific fact did.

◆
The second proposition concerned the payment gateway.

The same combination of an account sequence, customer-identification number, and tax-deduction-at-source spreadsheet had been found.

In the previous stage, two exports had been shown to derive from the same source store.

Their apparent multiplicity had therefore already been reduced.

Today the question was different.

“What if this match is merely a copying practice?” Malini read.

Vasudev Chaudhary asked, “Copying practice?”

“A column from one source table may automatically flow into several files.”

The analyst said, “Possible.”

Aditya asked, “Then what is the independent source?”

“The external payment gateway’s settlement record.”

“The same account sequence there?”

“Yes.”

“Customer identification?”

“Partially.”

“Name?”

“In abbreviated form.”

Vasudev said, “Then a third independent match.”

Aditya stopped him at once.

“Not ‘third’. The first two were shadows of one source.”

Malini wrote—one partially independent support.

Tarka brought the next question.

“What if the abbreviated name belongs to two different persons?”

The analyst said, “Possible.”

“What if the account sequence belongs to an intermediary institution?”

“That too is possible.”

“Then person-specific control?”

“Not established.”

“Transactional relation?”

“Supported to a limited extent.”

In the Ministry register, the proposition grew smaller again.

Vasudev shook his head.

“We keep cutting things away.”

Aditya replied, “What survives the cutting will have greater value.”

“Politically?”

“We are not preparing a political file.”

Vasudev was silent for a few moments.

Then he said, “All right. Next.”

◆
The third proposition concerned the customer-identification verification and tax-deduction-at-source spreadsheets.

Malini placed a printed certified copy before them.

Within the same period, the customer-identification rows and the tax-deduction calculations rose in the same sequence.

At first sight, the relation appeared close.

In the room of tarka, first sight was not enough.

Aditya asked, “Alternative explanation?”

Malini said, “Two separate processes may be fed from the same common customer list.”

“Then?”

“Similarity of sequence would not establish operational control.”

“Anything else?”

“The spreadsheet may be a training or sample copy.”

The analyst objected, “It contains figures that match actual amounts.”

Aditya asked, “All the figures?”

“No.”

“How many?”

“Twenty-nine out of thirty-seven.”

“The remaining eight?”

“Two rounding differences. Three delayed entries. The source of three is unclear.”

Malini asked, "What if a sample copy was later filled with actual data?"

"Possible."

"What if it was a genuine working sheet?"

"Possible."

Aditya said, "Remember this point of tarka—saying that two possibilities are equal is itself not a conclusion."

"Then what do we compare?"

"Which possibility generates the greater set of record-based expectations, and whether those expectations are fulfilled."

If it was a working sheet, regular revision marks would be expected.

If it was a sample, standardised fixed formulae would be expected.

The file contained a mixed pattern of both.

The room fell silent.

Malini said, "Then this classification is undetermined?"

"Yes."

Vasudev asked, "After all this work?"

Aditya said, "Being able to say 'undetermined' is also the result of work."

◆
By afternoon, the corridors of the Supreme Court were crowded.

The hearing that day was limited and procedural, but the attendance of counsel was formidable.

Expensive attire, thick registers, rows of assistants.

The media's gaze could easily settle upon the spectacle.

Ananya Kashyap told her colleague, "Write the number, not a conclusion."

"Such a large legal team is itself news."

"It is news. It is not proof of crime."

"What will people read?"

"What is true."

In her notes she wrote—

"An extensive defence legal team was present; its size has no independent evidentiary value on the merits of the case."

The junior correspondent smiled.

"That line is not attractive."

Ananya replied, "Attraction is not one of my legal categories."

Inside, Devvrat Sinha was having a brief discussion with Mrinal Dhar.

The Ministry's contrary-proposition testing paper had reached them that morning.

Devvrat said, "Three propositions have grown smaller."

Mrinal replied, "Which is why two have become more defensible."

"The Court will ask—why has the State retreated from its earlier statement?"

"We will say—the limits of the record became clearer."

"Weakness?"

"No. An obligation of method."

On the other side, Vidyanand Mishra sat in his place.

Arunesh pushed a page forward.

At the top was written—"The State's contradiction."

Vidyanand struck out the word.

In its place he wrote—"The State's revised delimitation."

Arunesh asked, "So generous?"

"If we call a correction a contradiction, why should the Court trust us?"

"Then where do we attack?"

Vidyanand replied, "Where even the narrowed statement crosses its limit."

◆
A limited prayer came before Justice Arya's Bench.

The State was not asking for any new conclusion at this stage.

It sought only permission to place a revised list of propositions on the record for the next hearing.

Devvrat Sinha said, "My Lady, the State has reduced the scope of three earlier statements."

Justice Arya asked, "Why?"

"After the earlier examination of the record, the alternative explanations were formally tested."

"Is that test evidence?"

"No."

"Then what is its use?"

"To determine the limits of the meaning the State places upon its material."

Vidyanand rose.

“My Lady, the defence’s list of objections may also be taken on record.”

“Place it.”

“The State’s phrase ‘alternative-explanation testing’ is attractive, but a name does not establish rigour.”

Devvrat said nothing.

Justice Arya asked, “A specific example?”

Vidyanand opened the first proposition.

“The fact of the administrative session.”

“Yes.”

“The State is abandoning person-specific control, but the phrase ‘administrative session’ still carries the shadow of human action.”

Mrinal Dhar said, “The State is prepared to limit itself to ‘a session was established’.”

Vidyanand did not answer at once.

Arunesh whispered something near his ear.

Vidyanand stopped him with a gesture.

“We have no objection to that correction.”

A slight stir passed through the courtroom.

Justice Arya said, “Let it be recorded.”

In that single sentence, the nature of tarka became clear.

The defence’s object was not to destroy every statement.

The State’s object was not to save every statement.

Whatever survived had to survive within its proper limit.

On the second proposition, Vidyanand was sharper.

The external settlement record of the payment gateway.

The State had called it partial independent support.

Vidyanand asked, “Independent in what sense?”

Devvrat said, “A different custodian.”

“Different custodian equals different source?”

Devvrat paused.

Mrinal looked at the paper.

The external settlement record itself had arisen from the same underlying payment instruction.

In other words, the custodian was different.

The underlying event was the same.

Vidyanand said, “Then this may be independent recording, not an independent event.”

Justice Arya asked, “State?”

Devvrat replied, “The distinction is proper.”

“Correction of wording?”

“‘Partial record-based support from a different custodian’.”

Vidyanand said, “In that form, I have no immediate objection.”

Arunesh’s expression changed again.

Vidyanand did not look at him.

Justice Arya asked, “Mr Mishra, your broader objection?”

Vidyanand replied, “In this matter, multiplicity has repeatedly been presented as though it were independence. The defence asks only that the Court keep source, custodian, event, and interpretation separate.”

“Fair.”

Devvrat said, “The State agrees.”

“Does agreement end the dispute?” Justice Arya asked.

A faint smile came over Vidyanand’s face.

“No, My Lady. Tarka has only just begun.”

For the first time, an intellectual clarity entered the tension of the Bench.

During the recess, Vidyanand stood at one end of the corridor.

His mobile phone vibrated.

It was a message from Shailaja—the medicine was available today, but the outstanding amount from the previous month had also been added.

Vidyanand kept looking at the small screen for a few moments.

Arunesh stood at a distance.

He did not come forward.

Vidyanand typed a reply—“I’ll look at it this evening. Don’t worry.”

He sent the message.
Then a reminder came from a financial institution.
He did not read it.
He switched off the phone and put it into his pocket.
At last Arunesh came nearer.
“If you want, I can take the next point.”
Vidyanand asked, “Why?”
“You look tired.”
“I am tired.”
“Then?”
“Fatigue is not a substitute for tarka.”
Arunesh remained silent.
Vidyanand pushed himself away from the wall.
“But you were right about one thing.”
“What?”
“You open the next point.”
Arunesh’s eyes brightened.
“The customer-identification spreadsheet?”
“Yes. But remember the first sentence.”
“Which one?”
“Do not call ‘undetermined’ ‘false’.”
“Will the defence ever accept that?”
“Today it will.”
“Why?”
“Because the dignity of the profession ought to be greater than private convenience.”
He walked back toward the courtroom.
His private crisis followed behind him.
But it did not enter the argument.



After the recess, Arunesh rose.
At first his voice trembled slightly.
Vidyanand said nothing.
Arunesh opened the page.
“My Lady, the State is describing the relation between the customer-identification and tax-deduction-at-source spreadsheets as undetermined.”
Justice Arya said, “Then what is the defence’s objection?”
“While its status remains undetermined, this material should not be used toward person-specific culpability.”
Devvrat said, “The State is not presently making that claim.”
Arunesh stopped.
The next three lines he had prepared became unnecessary.
Vidyanand drew a small line with his pen.
Arunesh understood.
He left the page aside.
“Then my next point.”
Justice Arya’s gaze moved for a moment toward Vidyanand.
Perhaps she understood that the junior had been restrained from exaggeration.
Arunesh said, “If material classified as undetermined is later used to support another proposition, its undetermined status must remain explicit.”
Mrinal replied, “Agreed.”
“And two files generated from the same source customer list must not be called two independent supports.”
“Agreed.”
Arunesh sat down.
His submission had been short.
But clear.
Vidyanand said softly, “That is enough.”
Arunesh asked, “I could have said more.”
“Saying more and proving more are different things.”
For the first time, Arunesh smiled.



At the Ministry, not a verbatim account of the hearing but an authorised brief note arrived.

Vasudev Chaudhary read it.
 Three corrections of wording.
 Two approvals of limits.
 One restriction on the use of an undetermined proposition.
 He asked Aditya, "Has the State's position become weaker or stronger?"
 Aditya replied, "That is not the right direction for the question."
 Vasudev raised an eyebrow.
 "Then what is the right question?"
 "Has the State's statement come within the measure of the record?"
 Malini said, "To a large extent."
 "To a large extent?"
 "Some alternative explanations remain open."
 "For example?"
 "Person-specific use of the administrative identity."
 "And?"
 "Whether the spreadsheet was an actual working sheet."
 Vasudev said, "Then what do we write in the next submission?"
 Aditya said, "What is undetermined is undetermined."
 "So simple?"
 "Simple sentences are the hardest when an institution wants a result."
 Vasudev looked toward the window.
 "No political instruction has come from above."
 "Good."
 "The Home Minister said only one sentence—preserve the Court's trust."
 Aditya remained silent.
 The weight of that sentence was great.
 Because trust is built not by speeches, but by self-restraint.

◆
 In the evening session came the more difficult part of tarka.

The unavailable mail archive.
 Earlier examinations had already made clear that non-apprehension was not the same as destruction.
 Now the alternative explanations were placed together.
 Natural expiry of the retention period.
 Material deleted by the user.
 An automatic-synchronisation error.
 Transfer to a separate archive.
 Material withheld on grounds of privilege.
 A source outside the limits of the forensic image.
 Malini asked, "With so many alternatives, what will tarka do?"
 Aditya said, "First it will ask which of them the record supports."
 The retention period was supported by a written policy.
 There was an indication of a separate archive in an old administrative reference.
 There was no independent indicator of a synchronisation error.
 Independent indicators of user-specific deletion were limited.
 The privilege claim applied to some categories, not all.
 The limits of the forensic image were established.
 Vasudev asked, "Then which is most probable?"
 Aditya said, "We will not rank probabilities without a quantitative basis."
 "Then what does tarka do?"
 "It shows that a single story is not inevitable."
 Malini added, "And a story that is not inevitable cannot be given the language of an established fact."
 Aditya nodded.
 This was the negative power of tarka.
 It was not constructing truth.
 It was removing excessive conclusions.
 At last Malini put the seventh strip on the wall.
 Not above the six strips of evidence.
 Beside them.

◆
 At nine that night, it was time to send the revised testing paper to Devvrat Sinha and Mrinal Dhar.

Malini read the subject line—

“Limited Supplementary Tarka Summary for Pending Special Leave Proceedings.”

Aditya said, “Good.”

Vasudev asked, “Should we write ‘the State’s final position’ in the submission?”

“No.”

“Why?”

“At the first stage of tarka, the word ‘final’ would be improper.”

Malini wrote—

“This summary is a test based on the present record; classifications may change upon receipt of new independent material or judicial directions.”

Vasudev read it.

“The defence will say this shows the State is uncertain.”

Aditya replied, “Where uncertainty exists, writing certainty is more dangerous.”

The submission was sent through the secure channel.

There was no celebration.

No message of victory.

Only a transmission confirmation arrived.

A brief reply from Devvrat Sinha—“Received. We will conduct a joint review before the next hearing.”

Mrinal Dhar added—“Keep the alternative explanations in their strongest form.”

Aditya replied—“They will be kept so.”

Malini asked, “Has this become a rule of tarka?”

“Not a rule. It is the minimum condition of honesty.”

◆
That night, when Vidyanand reached home, Shailaja was sitting with tea ready.

The envelope of medicines lay on the table.

Beside it were two demand notices.

Vidyanand took off his coat and placed it on a chair.

Shailaja asked, “How was the hearing?”

“Short.”

“But your face says it was not short.”

Vidyanand took the cup of tea in his hand.

“Today I accepted two corrections by the State.”

Shailaja smiled.

“The way you say that, it sounds as though you have committed an offence.”

Vidyanand laughed too.

“Perhaps in the junior’s eyes.”

“In your eyes?”

“If the other side is accepting the proper limit, why oppose it merely because it is the other side?”

Shailaja slid the medicine envelope toward him.

“Do these limits apply to household accounts too?”

Vidyanand opened the envelope.

He looked at the amount.

For a few moments he was silent.

“Household accounts are harsher.”

“We will manage.”

“I have to manage too.”

Shailaja said, “Then eat first.”

Vidyanand asked, “Did you take your medicine?”

“I did.”

He was not reassured.

But he did not repeat the question.

Somewhere far away, the sound of vehicles was falling away into the night.

Vidyanand thought—the dignity of the profession is sometimes no grand declaration.

Sometimes it is only this: that a person does not allow his private crisis to enter his argument.

◆
Before dawn, Aditya prepared to leave the office.

The seven strips were now in one row on the wall.

Perception.

Inference.

Analogy.

Testimony.

Postulation.

Non-apprehension.

Tarka.

Malini asked, "Where is the thunderbolt of tarka?"

Aditya looked at the strips for a moment.

"The thunderbolt is not in the word."

"Then where?"

"When a side subjects even its favoured conclusion to the same hard questions it directs at the opposing conclusion."

Malini closed the register.

"What will the Court ask at the next hearing?"

"Probably about the boundary."

"Which boundary?"

Aditya opened the window.

The outside air came in.

"Where suspicion ends."

"Where allegation begins."

"Where evidence becomes sufficient."

Malini said, "Then the first true test of tarka is still to come."

"Yes."

He switched off the lights in the secure room.

The papers did not vanish into the darkness.

Each remained within its own boundary.

Aditya stepped outside.

The corridor was empty.

Ahead lay the Court.

Behind, the investigation.

Between them ran a thin line—

what could be said, and what could not yet be said.

For the first time, the thunderbolt of tarka flashed along that line.

But it delivered no judgment.

It only made the next question clear.

o8o The Thunderbolt of Tarka — Chapter 2

The courtroom was full, but today neither side spoke at the outset.

Justice Arya straightened four sheets of paper before her.

On the first was written—Established foundation.

On the second—Logical alternative.

On the third—Person-bridge.

On the fourth—Permissible language.

She raised her head.

“By the last hearing, both the State and the defence had accepted this much: tarka is not itself evidence.”

Devvrat Sinha inclined his head.

So did Vidyanand Mishra.

“Today the question is not whose reasoning is more ingenious.”

The courtroom remained still.

“The question is how far suspicion may lawfully advance, what more is required for an allegation, and when the word proof becomes proper.”

Malini Karna wrote the first line.

Aditya Jha looked at that line but added nothing.

Justice Arya said, “First, one caution.”

“An alternative explanation must not be mere imagination.”

“It must fit the established facts, be possible in context, and have a real bearing upon the disputed conclusion.”

Vidyanand said, “The defence agrees.”

Devvrat added, “So does the State.”

“Second caution—an alternative explanation being possible does not mean it has been proved true.”

Mrinal Dhar wrote that down.

“Third—the moment one possible alternative is found, the original suspicion does not vanish.”

Justice Arya paused.

“But if a bridge necessary to the allegation is being crossed without testing that alternative, the language of allegation will not advance.”

Malini wrote the second line.

This was the first judicial edge of tarka.

It gave no answer.

It marked the thorn on the road to an answer.



Devvrat Sinha placed the first proposition.

“The State wishes to begin with Manoj Mahto’s circumstances.”

Manoj sat in the row behind.

The fingers of his hands were interlocked.

Justice Arya said, “Manoj will not be called again for extended testimony.”

“Questions will be confined to the point where his earlier statement, the available external material, and the logical alternatives meet.”

Manoj was brought to the seat in front.

He sat down.

Justice Arya asked, “Your earlier statement mentioned certain information concerning your family?”

“Yes.”

“Information that caused you fear?”

For a moment Manoj’s throat caught.

“Yes.”

“Could that information have been obtained from ordinary public sources or not?”

Manoj looked toward Aditya.

Aditya rose.

“Some parts could have been obtained from public sources. Some parts could also have been connected with limited customer information.”

Vidyanand immediately asked, “Some parts from the family’s social acquaintances?”

“Possible.”

"Some parts from an old distribution list?"

"Possible."

"Some parts from internal customer records?"

"Possible."

Justice Arya asked, "Which of these four sources has been proved?"

Aditya answered, "No specific source has yet been proved."

Manoj's fingers tightened further.

Devvrat said, "The State's suspicion is that limited information was used to create fear."

"Does that suspicion arise from the record?"

"Yes."

"The actor?"

Devvrat paused.

"Unknown."

"A specific group?"

"Not yet certain."

"A specific person?"

"No."

Justice Arya looked toward Manoj.

"You had earlier said that you heard the initial of a name?"

Manoj said softly, "Yes."

"Does that initial prove the identity of a person?"

"No."

"Does your fear turn it into personal identification?"

Manoj's eyes filled.

He drew a long breath before answering.

"No."

"Was your fear false?"

Manoj raised his head at once.

"No."

Justice Arya said, "Good."

"The function of tarka here is not to deny the fear."

"Tarka asks—which among the several possible sources of that fear is connected with independent material?"

Malini wrote—

Fear: a real experience.

Source: several possibilities.

Specific actor: unestablished.

Bridge to a personal allegation: absent.

Manoj looked at the line.

There was no relief on his face.

But for the first time his fear seemed to have been given both a name and a boundary.



Vidyanand rose.

"My Lady, the defence wishes to ask a difficult question."

"Ask it."

"If the State says the person-bridge is absent, does the State's suspicion end?"

Devvrat rose to answer.

Justice Arya stopped him with a hand.

"Manoj, you need not answer."

Then she looked toward Vidyanand.

"No."

"Can suspicion survive without a person?"

"Suspicion may remain concerning a process, a source, a system, or an unknown actor."

"Then suspicion lives, while allegation is suspended?"

"If the necessary bridge to the allegation is absent, yes."

Devvrat said, "The State will remain within that boundary."

Vidyanand asked, "And if new independent material is found tomorrow?"

"Then a fresh test on the value of that new material."

"Adding the old fear to it?"

"As context. Not as independent proof of a person's identity."

Manoj lowered his eyes.

The human weight of his fear had not diminished.
But its legal weight had become clear.
The two were not the same thing.



The second proposition concerned Rajat Pal's payment reference.

When Rajat came forward, the old hesitation remained in his gait.

But today his hands were not trembling.

Justice Arya said, "You will be questioned only on the limits of logical alternatives."

Rajat nodded.

Mrinal Dhar placed a summary of four payments.

"Established foundation—in four payments there is no regular approval number."

"Rajat Pal accepted the money."

"Under the ordinary process, this route was unusual."

Vidyanand said, "And the old external repository is inaccessible."

"Yes," Mrinal answered.

Justice Arya asked, "Alternative explanations?"

Mrinal stated them one by one.

"One—there was an alternative approval path, but its record is unavailable."

"Two—there was a procedural lapse."

"Three—the regular path was knowingly bypassed."

"Four—an improper arrangement was made for someone's private benefit."

Vidyanand added, "Five—a later adjustment altered the form of the record, while the original approval may have remained elsewhere."

Aditya said, "That alternative too is testable."

Justice Arya looked toward Rajat.

"What do you know?"

Rajat answered, "I accepted the money."

"And?"

"I did not ask every question required by the ordinary process."

"Why?"

Rajat fell silent.

His face tightened.

"I needed the money."

"That is your personal motive."

"Yes."

"Did you know the ultimate purpose of the payment?"

Rajat drew a long breath.

"I cannot now say that with certainty."

"Earlier you had made a harsher allegation against yourself."

"Yes."

"Why not today?"

Rajat raised his eyes.

"Because I am ashamed, but shame is not memory."

A deep silence entered the courtroom.

Vidyanand's pen stopped.

Devvrat looked toward Rajat.

Justice Arya said, "Keep that sentence verbatim on the record."

Malini wrote—

Shame is not memory.

Greed is not a substitute for an inference of purpose.

Receipt of money: established.

Knowledge of an unlawful purpose: unestablished.



Devvrat Sinha said, "My Lady, the State's suspicion concerns the procedural deviation."

"An allegation against a particular person?"

"Rajat accepted the money—that is established."

"Knowledge of an improper purpose?"

"The material is limited at present."

"Knowing participation in an unlawful arrangement?"

Devvrat remained silent for a few moments.

"The State will not presently advance the allegation to that extent."

Rajat immediately looked toward Devvrat.

There was no victory on his face.

Only exhaustion.

Vidyanand asked, "Is the State withdrawing its allegation?"

Devvrat answered, "Where an allegation has not formally been established on the record, it would itself be improper to call this a 'withdrawal.' The State is clarifying only that the available material does not permit a conclusion as to knowledge."

Justice Arya said, "Good."

"The discipline of tarka is clear here."

"The alternative approval path has not been proved true."

"But when it is genuinely possible and tied to a source that has not been used, the bridge to a larger knowledge-based allegation remains incomplete."

Malini wrote—

The possibility of an alternative is not exoneration.

An insufficient bridge prevents expansion of the allegation.

Rajat opened his hands.

He did not clasp them again.

◆
During the afternoon recess, Ananya Kashyap stood in the court veranda.

A message came from the newsroom—

"State drops payment allegation?"

Ananya wrote—

"The State will not rely on a broad conclusion concerning knowledge; the facts of receipt of money and procedural deviation remain distinct."

A second message—

"Witness retracts?"

She wrote—

"The witness is separating the limits of direct memory from emotional inference."

A third message—

"Court collapses case?"

For a few moments Ananya kept looking at the screen.

Then she wrote—

"The Court is presently defining limits; there is no final finding of guilt or exoneration."

The editor replied—

"Need shorter headline."

Ananya wrote—

"A bridge is needed from suspicion to allegation."

The reply came—

"Too difficult."

"Also true."

Ananya switched off her mobile phone.

From a distance she saw Manoj standing by a window.

Rajat sat alone in the veranda.

Sudip Ghosh had not yet been called inside.

The stories of all three human beings were larger than the news.

Ananya did not raise the camera.

◆
After the recess came the matter of Sudip Ghosh.

Malini placed a summary of two dates.

Building-entry time.

Remote-session time.

Incomplete participant list.

Uncertain provenance of the minutes.

Limited retention period.

Justice Arya asked, "What is established?"

Malini answered, "Sudip entered the building during the specified period. The times of two particular sessions partially overlap that period."

"His actual participation in the sessions?"

"For one date there is a limited service indicator; for the other, there is no complete participant record."

"Content?"

"Unestablished."

"Full identity of R.S.?"

"Unestablished."

Justice Arya looked toward Sudip.

"What can you now say with certainty?"

Sudip said, "I had heard the initial of a name."

"The person?"

"I do not know."

"What discussion?"

"I do not fully remember."

"Why did you speak with greater certainty earlier?"

Pain came over Sudip's face.

"Because I had not asked all the necessary questions."

He stopped of his own accord.

Justice Arya said nothing.

Sudip went on.

"Later, when everything became so large, I felt I had to supply even the answers to the questions I had never asked."

"And where did those answers come from?"

Sudip's eyes filled.

"From regret."

"From memory?"

"No."

"From the record?"

"No."

"Then?"

"It was fear, not tarka."

Justice Arya said, "Fear too is a human experience."

"But tarka does not allow it to become an external fact."

Sudip lowered his head.



Vidyanand Mishra rose.

"My Lady, the defence places three alternative explanations here."

"Place them."

"One—this was not a formal meeting but a special technical session; minutes may never have been created."

"Two—the incompleteness of the participant list resulted from a systemic retention limit."

"Three—Sudip was in the building but was not connected with the disputed remote session."

Mrinal Dhar said, "The State objects to the third alternative. On one date there is a service indicator and temporal correspondence."

Vidyanand answered, "Temporal correspondence is not complete identification of participation."

"Correct," Justice Arya said.

"The tarka-test begins precisely here."

She signalled Malini to open a new page.

"Against each alternative, write which facts support it, which facts oppose it, and which source is absent."

Malini wrote the first alternative.

Special technical session.

Support—the service classification says 'special session.'

Opposition—one internal schedule contains a designated slot.

Absent—complete event details.

The second alternative.

Systemic retention limit.

Support—other exports from the same period are incomplete as well.

Opposition—the incompleteness on the two disputed dates is especially notable.

Absent—a complete copy of the original long-retention service record.

The third alternative.

Presence in the building, but connection to the session unestablished.

Support—the entry record shows only presence in the building.

Opposition—a service indicator and temporal correspondence on one date.

Absent—complete participant identification.

Justice Arya asked, "Has any one of these three been proved?"

Malini answered, "No."

"Is any one impossible?"

"No."

"Then a larger allegation against a particular person?"

Devvrat answered, "It will remain limited for now."

"Suspicion?"

"As to the true nature of the session, participant identity, and the cause of the incomplete record."

"Good."

Sudip drew a long breath.

His regret had not ended.

But regret was no longer writing the vocabulary of the allegation.



Justice Arya placed the three matters together.

Manoj—fear.

Rajat—greed and shame.

Sudip—regret and guilt.

She said, "Human emotion can affect the reliability of a statement."

"At times a person may conceal something."

"At times a person may speak with excessive certainty."

"At times a person may place too much blame upon himself."

"At times a person may fill a gap not with memory, but with fear or shame."

Vidyanand listened closely.

Devvrat had stopped his pen.

Justice Arya continued, "But emotion does not itself create an external event."

"The work of tarka is not to erase emotion."

"It asks—which statement continues to stand on an external source even after the emotion is set aside?"

Malini wrote four lines.

Manoj—reference to family information established; source unestablished.

Rajat—receipt of money established; knowledge of unlawful purpose unestablished.

Sudip—partial correspondence of presence; full nature of disputed session and personal identification unestablished.

The fourth line remained blank.

Justice Arya asked, "Why is it blank?"

Malini answered, "Because there is no basis for writing any witness's emotion as independent proof."

"Correct."



Devvrat Sinha rose.

"The State wishes to propose a general formulation."

"Let it be stated."

"For suspicion—a testable adverse possibility arising from an established foundation."

"For allegation—an adverse assertion concerning a specific person, act, or relation, requiring an independent bridge."

"For proof—material capable of surviving an admissible judicial test, with its source, integrity, context, and relation to the proposition to be proved made clear."

Vidyanand immediately said, "The defence seeks one refinement to the words 'independent bridge.'"

"What?"

"Repetition of the same source is not an independent bridge."

Devvrat nodded.

"Correct."

Vidyanand continued, "Nor are two exports from the same original source."

"Correct."

"A media repetition of the same statement?"

"No."

"A different view of the same administrative entry?"

"No."

Justice Arya said, "The central tarka lies here."

Then she changed the sentence.

"The central tarka of this hearing lies here."

Malini immediately wrote—

Number is not independence.

Difference of view is not difference of source.

Repetition is not corroboration.

An independent bridge requires an independent origin, or a distinct source-path that gives a separate basis for the disputed fact.

Aditya drew a short line beneath these four sentences.

Mrinal Dhar asked, “My Lady, if the defence presents an alternative explanation, must the State prove it impossible?”

Justice Arya said, “Not every conceivable possibility.”

“Then the test?”

“The alternative must be real, consistent with the established facts, and capable of affecting a bridge necessary to the allegation.”

“If such an alternative remains unanswered?”

“Its effect will then be considered upon the scope of the allegation.”

“Does suspicion end?”

“Not necessarily.”

“Does proof become nil?”

“Not necessarily.”

“Then?”

“The language is limited.”

Vidyanand smiled.

“Only the language?”

Justice Arya looked toward him.

“In law, language is never ‘only’ language, Mishra ji.”

Vidyanand’s smile stopped.

He inclined his head.

Justice Arya said, “When ‘possible’ is written as ‘proved,’ the burden upon a person changes.”

“When ‘unknown’ is written as ‘concealed,’ a cause is created.”

“When ‘alongside’ is written as ‘done together,’ a relationship is created.”

“That is why language is not ornament added after proof.”

“Language shows the boundary of proof.”

No voice rose in the courtroom.

Vidyanand said softly, “The defence agrees.”

In the second part of the hearing, Aditya was asked to stand.

Justice Arya asked, “Which statements in your live-proposition register remain at the level of suspicion?”

Aditya opened the page.

“One—the possibility that some limited customer information was used without authorisation.”

“Actor?”

“Unknown.”

“Two—deviation from the regular approval path in four payments.”

“Purpose?”

“Unclear.”

“Three—the participant identity in two special sessions is incomplete.”

“Selective deletion?”

“Not established.”

“Four—some computational administrative actions show temporal correspondence.”

Vidyanand rose.

“An independent source for this fourth point?”

Aditya answered, “Partially. One part is a service record, one part a local administrative log, but the time-origin of both may be affected by the same system clock.”

Justice Arya immediately asked, “Then independence?”

“Not complete.”

“In the register?”

Aditya looked at the page.

“It says ‘two sources.’”

“Is that sufficient?”

Aditya was silent for a few moments.

“No.”

“Why?”

"There are two record-paths, but their underlying dependence for time-reference may be shared."

"Then the correction?"

Aditya lifted his pen.

"Two record-paths; temporal independence incomplete."

Justice Arya said, "Let it be recorded."

Vidyanand sat down.

There was no victory on his face.

There was no defeat on Aditya's.

Only one line had become more exact.

That was the work of tarka.

Justice Arya asked, "Does your register contain any point framed as an allegation against a particular person?"

Aditya answered, "There are some behavioural propositions, but no language assigning guilt to a particular person."

"One example?"

"Receipt of money by Rajat."

"Is that an allegation or a fact?"

"The receipt of money itself is an established fact."

"Knowledge of an improper purpose?"

"Unestablished."

"A particular person responsible for creating Manoj's fear?"

"Unestablished."

"The disputed person in Sudip's session?"

"Unestablished."

"Then does the State's register answer the Court's question?"

"To some extent, by separating suspicion from established foundation."

"Allegation?"

"Not where the bridge is insufficient."

Justice Arya said, "Good."

Then she turned toward Vidyanand.

"Defence?"

Vidyanand rose.

"I would add one point."

"Let it be stated."

"An insufficient allegation does not mean that the underlying event never occurred."

Devvrat looked toward him.

Vidyanand continued, "The defence too should not be permitted to treat the opposite proposition as proved merely because the State's bridge is incomplete."

A faint sign of approval came over Justice Arya's face.

"Correct."

"Tarka cuts in both directions."

Vidyanand sat down.

Ishan tried to whisper something in his ear, but Vidyanand stopped him with a hand.

In that moment, his professional dignity was being made not by a defence victory, but by accepting a boundary.

After noon, his private crisis caught him again.

During the recess, a message came from Shailaja.

"I took the medicine. Do not worry."

A second line—

"Part of the debt has been paid."

For a few moments Vidyanand kept looking at the mobile phone.

Ishan asked, "Everything all right?"

Vidyanand switched off the phone.

"A matter at home."

"If you wish, I can take the next part."

Vidyanand looked at him.

"You take it."

Ishan was startled.

"Me?"

"Yes."

"The main cross-examination?"

"Not the main one. A limited tarka-test."

Enthusiasm came over Ishan's face, but Vidyanand immediately said, "On one condition."

"What?"

"Where the record is absent, do not fill the gap with rhetoric."

Ishan nodded.

"And if you find an error by the State, do not enlarge it into an admission of guilt."

"All right."

"And if the State accepts the correct boundary, do not oppose it merely for the sake of opposition."

Ishan was silent for a few moments.

"All right."

For a moment Vidyanand leaned his back against the wall of the veranda.

Fatigue was in his body.

But the private crisis did not enter his reasoning.

He went back into the courtroom.



Ishan's first question was to Malini.

"Your summary uses the phrase 'temporal correspondence.'"

"Yes."

"Is temporal correspondence causation?"

"No."

"Is temporal correspondence participation?"

"Not by itself."

"Is temporal correspondence identity?"

"No."

"Then what is its evidentiary value?"

Malini answered, "It creates context when read with other sources. Standing alone, it is limited."

"If the other sources depend on the same system clock?"

"Their independence diminishes."

"If clock drift is known?"

"Then time-based inference is further limited."

Ishan turned the page.

"The times in two records differ by three minutes."

Malini looked at them.

"Yes."

"Are those three minutes significant?"

"That depends on the nature of the event."

"In your present proposition?"

Malini did not look toward Aditya.

She answered for herself.

"At this point, the temporal correspondence is only within a broad period. The State does not claim minute-level causation."

Ishan paused.

He had perhaps expected a hard rebuttal.

Instead he found a clear boundary.

Vidyanand watched from behind.

Ishan said, "The defence seeks that clarity on the record."

Justice Arya said, "Let it be recorded."

Ishan sat down.

His first test did not become a speech.

It remained a question.



Justice Arya returned to the principal boundary.

"Up to this point, three levels of language are before us."

She lifted the first sheet.

"Established foundation."

The second.

"Testable suspicion."

The third.

"An adverse assertion concerning a particular person."

The fourth sheet was blank.
Devvrat asked, "The fourth?"

"Judicial conclusion."

The courtroom fell silent.

"The Court will not fill that fourth sheet yet."

Mrinal Dhar nodded.

Justice Arya continued, "There is distance between an allegation and a judicial conclusion as well."

"An allegation is advanced by a party."

"A judicial conclusion is given by the Court after testing."

"The word proof is sometimes used for a category of material and sometimes for an evaluation of its weight; the context must therefore remain clear."

Malini wrote—

Material being available ≠ its contents being true.

Being admissible ≠ being decisive.

Being relevant ≠ being sufficient.

Having multiple sources ≠ those sources being independent.

Being an allegation ≠ being a judicial conclusion.

Aditya's gaze rested on those five lines.

This was the new grammar of the hearing.



Devvrat Sinha opened a file.

"My Lady, the State seeks the Court's direction on one point."

"Let it be stated."

"For the person-bridge of one live proposition, certain external transaction records are available."

Vidyanand rose immediately.

Devvrat continued, "But a communication indicator associated with it has been marked by the defence as falling within lawyer-client privilege."

The air in the courtroom changed.

Justice Arya asked, "Does the State seek to rely upon the contents of the privileged communication?"

"No."

"Then?"

"The State submits that external facts—the time, the identity of sender and recipient within lawful limits, the external sequence of transactions—may themselves remain investigable."

Vidyanand said, "The defence submits that under the name of external facts, the State is drawing meaning from the privileged relationship itself."

"A specific dispute?"

"Yes."

Justice Arya changed the sheet before her.

"No decision on that point today."

Devvrat inclined his head.

So did Vidyanand.

"Because one part of the person-bridge by which the State seeks to move from suspicion to allegation is itself disputed as to legal availability."

Malini wrote.

"Where privilege is claimed over a bridge, tarka cannot fill in its contents by imagination."

The sentence became clear in Aditya's mind.

Do not fill absence with inference.

Nor privileged silence.



Mrinal Dhar asked, "My Lady, then the scope of the next hearing?"

Justice Arya said, "Extremely narrow."

"One—which material is in fact a communication."

"Two—which external facts are separable from the content of the communication."

"Three—who holds the privilege."

"Four—whether the claim has been sufficiently classified."

"Five—whether the State's investigatory need can be met without opening the protected content."

Vidyanand said, "The defence will prepare within that boundary."

Devvrat said, "So will the State."

Justice Arya added, "And one more thing."

"The claim of privilege shall not be treated as an indication of crime."

“Nor shall external, unprotected facts be treated as automatically obscured merely because privilege has been invoked.”

Both sides wrote.

“The next hearing will be confined to that.”

◆
When the Court rose, Manoj, Rajat, and Sudip were again in the same veranda.

This time the three did not immediately go toward one another.

At first Manoj stood by the window.

Rajat sat on a bench.

Sudip kept looking at the clock on the wall.

After a few moments Manoj spoke.

“I am still afraid.”

Rajat looked toward him.

“I am still ashamed.”

Sudip said, “I still regret it.”

The three were silent.

Manoj spoke again, “But now I do not make a name out of fear.”

Rajat said, “I do not make a purpose out of shame.”

Sudip said, “I do not make memory out of regret.”

There was no legal order in those three sentences.

But three human beings were giving new names to the burdens within them.

Ananya Kashyap heard them from a distance.

She opened her notebook.

Then closed it again.

Those sentences were not for the news.

◆
On the way back to the office, Malini asked Aditya, “What did tarka win today?”

Aditya said, “Nothing.”

“Then what did it do?”

“It showed the boundary of what was demanding the language of victory.”

“Did suspicion survive?”

“On some points.”

“Allegation?”

“Where the bridge is sufficient, in limited form. Where it is not, no.”

“Proof?”

“That word too must be read according to the proposition to be proved.”

Malini laughed.

“Then everything has become difficult.”

“Clarity is often difficult.”

They reached the secure room.

Seven strips were on the wall.

Perception.

Inference.

Analogy.

Testimony.

Postulation.

Non-apprehension.

Tarka.

Malini placed three small slips beneath the strip for tarka.

The first—Alternative explanation.

The second—Person-bridge.

The third—Permissible language.

Aditya added a fourth slip.

Legal availability.

Malini asked, “Why the fourth?”

Aditya answered, “Because in the search for truth, the right to look at the material that exists is itself bounded.”

The slip remained fixed upon the wall.

The evening light in the room was fading.

The next question was no longer merely the factual value of the evidence.

The next question was—where lies the boundary between investigatory need and protected communication?

The thunderbolt of tarka had reached that door.
It did not break the door.
It only made the threshold clearly visible.

o8r The Thunderbolt of Tarka — Chapter 3

The morning light entered the High Court chamber not directly, but filtered.

Justice Arya placed four thin files upon the bench.

On one was written—Privileged Communications.

On the second—External Facts.

On the third—Independent Sources.

On the fourth—Alternatives in Tarka.

Aditya Jha sat on the rear bench beside Malini Karna.

Vidyanand Mishra stood at the front for the defence.

Devvrat Sinha and Mrinal Dhar appeared for the State.

The chamber was full, but at the beginning there was no impatience in it.

Justice Arya said, “At the previous hearing, one boundary came into view.”

“The State says that certain external facts may be investigable separately from privileged communications.”

“The defence says that, in the name of external facts, the State is drawing the meaning of a privileged relationship from within it.”

She paused.

“This time I shall not rewrite the definition of privilege.”

“We shall apply the touchstone of tarka.”

Vidyanand inclined his head.

So did Devvrat.

Justice Arya opened the first file.

“Question one—if an innocent or ordinary legal explanation of an external fact is possible, how will the State carry that fact to an adverse meaning against a particular person?”

The second file opened.

“Question two—if a fact is obtained from an independent, non-privileged source, does it become unusable merely because lawyer-client communication also occurred at the same time?”

The third.

“Question three—how much classification is sufficient to test a claim of privilege without opening the contents?”

The fourth.

“Question four—if the State points toward an exception to privilege, from what independent basis will that indication arise, rather than from imagined contents of privileged material?”

Paper rustled through the chamber.

Malini wrote down all four questions.

Aditya added not a word.

Vidyanand said, “The defence accepts this framework, subject to one caution.”

“State it.”

“Tarka must not become a means of filling a gap in proof.”

Devvrat said at once, “The State does not disagree with that proposition either.”

Justice Arya looked up.

At once she herself stopped.

“Good.”

No one in the chamber laughed, but some of the hardness went out of the tone.

“Tarka is not new evidence here.”

“It will test only whether a proposed meaning can stand before its strongest alternative explanation.”

Malini wrote—

Tarka ≠ a new source.

Tarka = a test of the resilience of meaning.

Aditya saw the line.

He remembered the sense of an old formulation of Gangesha—that an inference does not mature until the contrary possibility has been tested.

But for now that memory remained within him.

In court, the material had to speak first.



Devvrat Sinha placed the first record before the Court.

“This is the external time-record from the payment gateway.”

Vidyanand said, “Source?”

“An independent custodian of the service.”

“Contents?”

“No privileged legal communication.”

“What does the State seek to prove?”

Devvrat paused.

“Only this much: that at the specified time an external transaction was recorded from the specified account.”

“Purpose?”

“Not from this record alone.”

“The mental state of any particular person?”

“No.”

“Crime?”

“No.”

Justice Arya said, “Then keep the sentence about this material short.”

Devvrat read: “At the stated time, a transaction was recorded from the stated source.”

“That is all.”

“Yes.”

Vidyanand lifted the next paper.

“Immediately after this transaction, there was contact with counsel.”

Devvrat said, “That is an external sequence.”

Vidyanand asked, “And what meaning does the State draw from this sequence?”

Mrinal Dhar answered, “An earlier draft said—a plan to protect the transaction was devised through legal consultation.”

The chamber fell silent.

Justice Arya asked, “And the independent basis?”

Mrinal said, “Not sufficient for that specific sentence.”

“Then?”

Devvrat said plainly, “The State withdraws that sentence.”

No gleam of victory appeared on Vidyanand’s face.

He simply moved to the next question.

“The contact itself?”

Devvrat said, “Its occurrence in time, to the extent lawfully shown by an external record.”

“The contents?”

“Subject to the claim of privilege; the State does not rely upon them.”

Justice Arya wrote.

“This is the first tarka-based reduction.”

“An ordinary explanation—that the person sought legal advice—is available.”

“The State cannot write consciousness of guilt into privileged silence.”

Malini wrote in bold letters upon the paper—

Do not imagine the contents of silence.

Aditya wrote in smaller letters beneath the line—

The external fact may survive; the adverse meaning does not, unless there is an independent bridge.



During the recess, five slips lay spread across the State’s room.

Malini read the first—“External time.”

The second—“Independent custodian.”

The third—“Alternative ordinary explanation.”

The fourth—“Bridge to the person.”

The fifth—“Limit of conclusion.”

Aditya said, “No point that lies near privilege will go into the next argument without these five.”

Mrinal Dhar asked, “What if the bridge to the person comes from a non-privileged source?”

“Then make it stand on its own source.”

“Do not strengthen it with privileged communication.”

Devvrat opened an older draft.

It said—"After legal consultation, a decision was taken to delete factual material."
 Aditya asked, "Any independent deletion indicator?"
 Malini looked at the list.
 "There is a deletion event in one server record, but the identity of the actor is not established."
 "Time?"
 "After the time of the consultation."
 "Does that much establish the source of the decision?"
 "No."
 "Then the sentence?"
 Malini lifted her pen.
 She struck out the old sentence.
 She wrote a new one—"A deletion event is recorded within the specified period; the actor, purpose, and relationship to privileged communication remain unproved."
 Devvrat read the line.
 "It sounds weak."
 Aditya said, "It is as strong as what has been proved."
 Mrinal Dhar smiled.
 "What will the defence say against this sentence?"
 Malini said, "System-level automatic deletion, another administrator, expiry, or an external synchronisation process."
 "Which alternative can be excluded by the record?"
 She looked at the list.
 "Automatic expiry does not fit this particular event."
 "Another administrator?"
 "Possible."
 "An external process?"
 "Less likely, but not completely excluded."
 Aditya said, "Then this is the work of tarka—keep on the page every alternative that is still alive."
 "Do not kill it merely to manufacture a conclusion."
 Malini made a new table.
 Proposition.
 Contrary alternative.
 Support for the alternative.
 Weakness of the alternative.
 Independent bridge.
 Conclusion that survives.
 Devvrat said, "The real weight of Section Seven begins here."
 Aditya did not answer.
 In the first line he wrote only—"The boundary of privilege is not an easy road for tarka."



That evening, Vidyanand Mishra sat in his office with an old account book open before him.
 An envelope Shailaja had sent from home lay in his bag.
 There was no prescription inside it, only a notice of insurance renewal and a short list of household expenses.
 The figures were not large, but their timing was inconvenient.
 Vidyanand looked at them for a few moments.
 The telephone rang.
 It was Shailaja's voice.
 "Finished with work?"
 "Not yet."
 "Food?"
 "In a little while."
 "Did you see the list?"
 "Yes."
 "Do not worry; we shall deal with it in order."
 Vidyanand laughed.
 "In order."
 Shailaja asked, "What happened in court?"
 "The State withdrew one sentence."

"Then are you pleased?"

Vidyanand answered after a pause, "I shall be pleased if the Court makes us withdraw an improper sentence too."

There was silence at the other end of the line.

Shailaja said, "Then test your own sentences as well."

The call ended.

Vidyanand read the defence note lying on the desk.

In one line, his junior had written—"All the State's external facts are unreliable because they are tainted by privilege."

Vidyanand picked up a red pen.

He struck out the entire line.

Beneath it he wrote—"Privilege protects the contents and the boundary of the privileged relationship; the value of an independent external fact shall be tested on its own source."

The junior advocate came in.

He saw the line.

"Mishra ji, will this not weaken our argument?"

Vidyanand looked at him.

"Abandoning an improper extension is not weakness."

"But the State will take advantage of it."

"The Court will take advantage of the verification."

The junior fell silent.

Vidyanand placed the envelope back in his bag.

Private expenses, professional pressure, the client's expectations—everything was present at once.

Yet his objection was now narrower and cleaner.

It seemed to him that the dignity of the profession lay not only in the posture of victory, but also in the discipline of limits.



The next day in court, Vidyanand himself raised the first question.

"My Lady, the defence withdraws one overstatement."

Justice Arya asked, "Which one?"

"We shall not say that the mere assertion of privilege renders every external record unusable."

Devvrat looked toward him.

Vidyanand continued, "But the meaning of any external record used by the State must not be enlarged by imagining privileged contents."

Justice Arya said, "Recorded."

Malini saw a single word on Aditya's paper—symmetry.

She gave the slightest nod.

Justice Arya said, "At this hearing, both the State and the defence are reducing their respective excesses."

"Tarka may be useful here."

"Now, the privilege log."

Vidyanand handed up a table.

It contained no substantive contents.

Serial number.

Date.

Type of communication.

General identifying category of the parties.

Claim of privilege.

Brief basis of the claim.

Devvrat asked, "Why is the recipient's full identity omitted from some entries?"

Vidyanand answered, "Some names may themselves reveal a subtle aspect of the privileged relationship; we are prepared, under the Court's direction, to provide a narrower classification."

Justice Arya asked, "What is the State's actual need?"

Mrinal Dhar said, "The chronology of certain communications, in order to test the bridge to a particular person."

"The contents?"

"No, if the external chronology can be independently verified."

"Then the independent source first."

"Yes."

Justice Arya spoke not in the language of an order but as a direction for the hearing—"Where an external chronology can be verified through another custodian, the State shall first use that source."

“A gap in the privilege log shall not be made the basis of an adverse inference.”

Vidyanand said, “Acceptable.”

Devvrat too said, “Acceptable.”

Malini wrote—

The less intrusive route first.

Aditya saw the line.

To him, it was not merely procedure but the discipline of tarka.



Devvrat raised a difficult point.

“My Lady, the State has a contention that certain communications may have fallen outside the boundary of ordinary legal advice.”

Vidyanand rose at once.

“Basis?”

Devvrat said, “Not the privileged contents.”

“Then?”

“An independent accounting record, a time indicator, and a non-privileged statement by a third party.”

Vidyanand asked, “Are all three independent original sources?”

Mrinal Dhar answered, “The accounting record and the time indicator may be connected to the same service chain; the third-party statement comes from an independent custodian.”

Justice Arya said, “So the number is three, but the independent origins may be only two.”

“Yes.”

“The reliability of the statement?”

“Still under examination.”

“Then the conclusion that an exception applies?”

Devvrat said, “The State seeks no conclusion; it seeks permission only for a limited examination.”

Vidyanand said, “The defence submits that, to open the door to an exception, the State cannot rely upon material that is itself merely an inference about privileged contents.”

Justice Arya asked, “Does the State’s independent basis survive without adding the supposed meaning of the privileged communication?”

The chamber fell silent.

Devvrat looked at the papers.

Mrinal Dhar showed him a few lines.

Aditya remained still on the rear bench.

After a few moments Devvrat said, “A limited basis survives, but the language of the earlier draft is too broad.”

“The new language?”

“Independent external material raises a question fit for examination concerning specified conduct; that material does not itself establish an exception to privilege.”

Vidyanand said, “The defence will argue about that sentence, but at least the boundary is clear.”

Justice Arya wrote.

“Suspicion of an exception ≠ exception established.”

“Independent basis for examining an exception ≠ automatic entitlement to open privileged contents.”

Malini kept writing.

“And one more thing,” Justice Arya said.

“The State shall not display the same suspicion in several forms and create the illusion of independent support.”

Devvrat inclined his head.

So did Vidyanand.

The test of plurality and independence from the previous hearing returned here, but in a new role.

The question now was not the number of sources, but the lawful basis of the tarka by which privilege might be pierced.



At the next stage Justice Arya called Malini to the witness stand.

“You are an analyst with the investigative team?”

“Yes, My Lady.”

“Your table contained the phrase ‘activity after legal contact’?”

Malini answered, “It did in an earlier version.”

“And now?”

“I have changed it to ‘external temporal sequence.’”

“Why?”

“Because the word ‘after’ states only chronology; it does not state purpose.”

“And ‘legal contact?’”

“Only to the extent its identity can be established from external sources; not its contents.”

Justice Arya asked, “What do you regard as the strongest alternative explanation of your earlier sentence?”

Malini thought for a few moments.

“Ordinary legal advice, compliance advice, or preparation for a dispute.”

“Which of those alternatives has been excluded by the record?”

“None at present, My Lady.”

“Then is it proper to write an adverse purpose?”

“No.”

Vidyanand looked toward Malini.

There was no victory in that gaze, only acknowledgment.

Devvrat asked the next question.

“If an independent payment record itself shows a transaction by a particular person, does a claim of privilege erase it?”

Malini said, “No. That record will be tested by its own source, integrity, and limits of meaning.”

“What if the time of the privileged communication lies around the same transaction?”

“That chronology may be a separate fact; purpose cannot be created by imagining the contents.”

Justice Arya said, “Keep that answer clear on the record.”

Malini stepped down.

When Aditya reached her, he said only, “Good.”

Malini asked, “Even though I admitted the error?”

“Because you admitted the boundary of the error.”

“Tarka is difficult.”

“The difficulty of tarka is that one must place even one’s favourite meaning before the contrary alternative.”

Malini made a note of it.

For her, respect for fact now meant not only respect for confidentiality, but also respect for the limits of language.



After noon the Court placed five hypothetical situations before the parties.

“First.”

“A person meets counsel after receiving a summons.”

“The State says—this indicates consciousness of guilt.”

“The defence says—this is ordinary legal assistance.”

Justice Arya asked, “Without an additional independent fact, which meaning prevails?”

Devvrat said, “No adverse meaning prevails.”

Vidyanand said, “Agreed.”

“Second.”

“After receipt of a summons, some administrative activity is recorded in an independent service record.”

“Privilege?”

Vidyanand said, “Not if the activity itself is a non-privileged fact from an independent source; but its purpose shall not be drawn from privileged communication.”

“Third.”

“A privilege log provides an entry, but not the contents.”

“The State says—the description is sparse, therefore there is suspicion.”

Vidyanand said, “The legal sufficiency of the description may be tested; it shall not be treated as an adverse fact.”

Devvrat said, “The State will challenge the sufficiency of the log, not assign to it a meaning indicative of crime.”

“Fourth.”

“A third party independently states a fact that raises a question about the possible misuse of privileged communication.”

“The State?”

Mrinal Dhar said, “First we test the third party’s source, reliability, independence, and relevance.”

“The defence?”

Vidyanand said, “And we do not assume in advance the contents of the privileged communication.”

“Fifth.”

“The Court itself sees sealed material.”

The tone of the chamber changed.

Justice Arya said, “Does the mere fact that the Court sees it increase the truth-value of the material?”

Devvrat said, “No.”
Vidyanand too said, “No.”
“Is it easy to draw a final adverse conclusion from material wholly concealed from the defence?”
Both sides remained silent.
Justice Arya said, “That question will be taken up at the next hearing.”
Malini wrote at once—
Sealed character ≠ truth.
Judicial inspection ≠ automatic adverse conclusion.
Investigation diary ≠ automatic evidence.
Aditya’s gaze moved toward the next door.
The shadow of the next argument had become clear.



As the hearing neared its end, Vidyanand made one final submission.

“My Lady, the defence asks that the mere assertion of privilege not be turned into a psychological narrative against the party.”

Justice Arya said, “Recorded.”

Devvrat added, “The State asks that a claim of privilege not become an all-encompassing cover that prevents investigation of independent external sources.”

“Recorded.”

Justice Arya read the two sentences together.

“Between these two sentences lies the place of tarka.”

“On one side, the temptation to imagine crime within silence.”

“On the other, the temptation to deny the existence of external facts in the name of protection.”

“Both are improper.”

She dictated five directions.

“One—privileged contents shall not be imagined in order to create an adverse bridge.”

“Two—an independent non-privileged source shall be tested on its own criteria.”

“Three—the sufficiency of a privilege log and a conclusion of criminality shall be treated as separate questions.”

“Four—any examination of an exception must be supported by an independent factual basis.”

“Five—what cannot be established without privileged material shall not be treated as established through privileged silence.”

Vidyanand wrote.

Devvrat wrote.

Mrinal Dhar wrote.

Malini wrote.

Aditya only listened.

At the end Justice Arya said, “Next day: sealed material and the investigation diary.”

“The question will be—how far does confidentiality assist judicial examination, and how far may it form the basis of an adverse conclusion?”

The Court rose.



Outside in the corridor, Ananya Kashyap was waiting.

Several people from the news media surrounded her.

“Has privilege been broken?”

Ananya said, “No.”

“Has the State lost?”

“No.”

“Has the defence won?”

“No.”

“Then what is the headline?”

Ananya thought for a few moments.

“The Court continues a narrow examination of the boundary between external facts and privileged communications.”

One reporter said, “That headline will not sell.”

Ananya answered, “The job of a fact is not to sell.”

She wrote three lines in her notebook.

Claim ≠ privilege broken.

External fact ≠ privileged contents.
Direction of hearing ≠ final conclusion.
Then she added a fourth line.
Tarka ≠ judgment.
She closed the notebook.



That night, sleep did not come at once in Aditya's room.
City lights shone outside the window.
But within him an old night on the bank of the Ganges opened again.
His feet sank into the sand.
Far away was the shadow of a boat.
A line of moonlight on the water broke apart and joined itself again.
From that night he remembered one sentence of his teacher: "When you read Gangesha, lessen your hunger for an answer; look instead at the purity of the relation."
Now that sentence returned.
Aditya closed his eyes.
In Gangesha's method, tarka is not itself a means of knowledge.
On the path of evidence, it reveals the thorn of a contrary possibility.
If the thorn is alive, the foot must fall with care.
If the thorn exists only in imagination, the path must not be abandoned in its name.
If one part of the path is privileged, the traveller cannot invent a story inside it.
He will look at the path outside.
He will look at independent footprints.
What he did not see, he cannot call seen.
And what he did see, he cannot deny merely because a privileged door stands nearby.
The Ganges continued to flow through memory.
He remembered the earth of Garh En Arikel as well.
The earth taught that a line may be drawn, but water will come and test the line.
Privilege was a boundary of restraint.
Investigation was a necessity.
Tarka had come not to set the two against each other, but to test the boundary.
Aditya rose and wrote seven words on a sheet of paper.
Perception.
Inference.
Analogy.
Testimony.
Postulation.
Non-apprehension.
Tarka.
Beneath tarka he wrote—"Keep the contrary possibility honestly alive."
Then a second line—"Do not manufacture fact inside privileged silence."
A third—"Do not forget the source of an independent external fact."
A fourth—"Test separately the truth-value of confidential material."
His pen stopped on that fourth line.
That was where the subject of the next hearing lay.
Sealed material.
Investigation diary.
Confidentiality.
Adversarial testing.
The limits of judicial use.
For a moment, the memory of the bank of the Ganges and the courtroom joined upon a single line.
Aditya did not fold the paper.
He left it open.
Some questions should not be answered at once.
Some questions must first be seen in their proper form.
The thunderbolt of tarka had not yet been able to break the door of privilege.
It had only shown where the door stood, where the wall stood, and where the open path lay.
The next morning, a sealed envelope would be placed before that open path.

082 The Thunderbolt of Tarka — Chapter 4

For the first time that morning, a sealed box was brought into the courtroom before the chamber opened.

The box was not large.

But the formal silence that formed around it was.

One clerk entered the time in the custody register.

Another clerk checked the seal number.

Aditya watched from a distance.

Malini opened her notebook.

On the first line she wrote—“Sealed material.”

Then she stopped.

Until yesterday, the words themselves had seemed weighty to her.

Today she remembered: the weight lies not in the words, but in the source and the use.

On the second line she wrote—“Seal ≠ truth.”

The third—“Judicial observation ≠ proved fact.”

The fourth—“Confidentiality ≠ an independent basis for adverse inference.”

And the fifth—“Investigation diary ≠ evidence by itself.”

She stopped her pen.

Across from her, Vidyanand Mishra was reviewing his papers again and again.

For the State, Devvrat Sinha and Mrinal Dhar were seated.

Three files lay open before Aditya.

One contained the public record.

One was under restricted access.

One was for the Court’s inspection alone.

All three formed part of the same case.

But their evidentiary value was not the same.

Today that inequality was to be tested.



Justice Arya took the bench.

The sound in the courtroom subsided of its own accord.

She said, “Yesterday we examined the limits of privilege. Today we shall examine the limits on the use of sealed material and the investigation diary.”

Vidyanand rose.

“My Lady, the defence’s first objection is not to the existence of the material, but to its use.”

Justice Arya said, “Clarify.”

Vidyanand lifted a sheet of paper.

“In its written summary, the State has placed the words ‘sealed annexure’ after three propositions.”

“The defence has not seen the contents of the annexure.”

“If an adverse statement is built upon that annexure, how are we to answer it?”

Devvrat Sinha rose.

“The State’s submission is not that material should be treated as true merely because it is sealed.”

“Certain portions are restricted because of source identification and third-party confidentiality.”

Vidyanand immediately said, “Then what use does the State seek to make of those portions against the defence?”

The courtroom fell silent again.

Justice Arya looked toward Devvrat.

“That is the central question.”

Devvrat lowered his papers.

“For two propositions, the State relies upon independent public sources.”

“The sealed portion is only an aid in understanding source protection and investigative direction.”

“For the third proposition, the sealed material contributes more substantially.”

Vidyanand said, “Then the defence requires a fair means of answering the third proposition.”

Justice Arya nodded.

“On this point, we shall create a classification.”

She said to the clerk, “Eight columns.”

A table was drawn on the writing board.
Material.
Original source.
Access status.
Proposed use.
Independent support.
Adverse consequence.
Minimum summary necessary for a response.
What remains unproved.
Malini kept looking at the table.
She understood that confidentiality was not the end of the question.
Confidentiality was only the beginning of a new one.



The first item was an external confirmation from a payment gateway.

It was not public, but it could be made available to the parties in restricted form.

The State's proposition was this: on a specified day, a request had gone to the payment gateway under a particular merchant identifier.

The defence asked, "Does this request prove operation by a particular person?"

Aditya answered, "No."

"It is material only to establish the time of the request, the merchant identifier, and the technical destination."

Vidyanand asked, "Then how is Raghav Sethia's name connected to this proposition?"

Aditya said, "Not from this material alone."

Several heads in the courtroom lifted.

Malini wrote—"First reduction: external confirmation $\neq$ person."

Mrinal Dhar showed the second record.

"The allocation file for the merchant identifier comes from a separate source."

Vidyanand asked, "A separate custodian?"

"Yes."

"A separate origin?"

Mrinal paused.

"One part of the original allocation information comes from the same commercial registry."

Vidyanand said, "Then two records appear before us, but their underlying source is partly shared."

Justice Arya wrote—"Visible plurality; partial source commonality."

Aditya said, "The State limits its claim of independent support on this point."

Justice Arya asked, "Limits it how?"

"The timing of the payment request is independent."

"The historical allocation of the merchant identifier is not wholly independent."

"Control by a particular person is not proved from this."

Vidyanand sat down.

Malini saw that the State's statement had become smaller, but purer.

The thunderbolt of tarka did not make a sound.

It cut away the surplus words.



The second item was a direction recorded in the investigation diary.

In the first week, an officer had written: "Possibly the payment route is linked to the administrative panel."

Vidyanand sought permission to read that line.

Devvrat said, "Opening the entire diary may disclose confidential investigative routes and the names of third parties."

Justice Arya said, "The question of opening it in full does not arise at this stage."

"Does the State rely on this line?"

Mrinal answered, "Not as evidence."

"Then why is this line in the table?"

Aditya said, "Because that direction was later tested, and the history of a failed direction should not be concealed."

Justice Arya looked at him.

"In other words, the diary is here not to prove truth, but to show the sequence of the investigation?"

"Yes."

Vidyanand asked, "And if a 'possibly' written in the diary later becomes 'was linked' in a public summary?"

Aditya said, "That would be erroneous."

"Then the State accepts that an investigative possibility is not a judicial fact?"

"It does."

Malini wrote in her notebook—"Direction ≠ result."

Then another line—"Possibility ≠ proved relationship."

At that moment she remembered one of her old notes.

She had once written—"The diary found the connection."

Today the sentence made her uneasy.

The diary had not found a connection.

The diary had recorded a direction in which to search for a connection.

The difference between the two lay in only a few words.

But in legal meaning, a deep gulf opened between them.



Justice Arya lifted the third item.

It was a sealed source memorandum.

The identity of the source had been restricted.

On the basis of this source, the State had written—"An external input indicates the existence of a specified repository."

Vidyanand said, "The defence does not seek the source's identity if there is a lawful security reason."

"But if the State draws an adverse meaning from the indication, then at the least we need the substance of the allegation, the time, the place, and the result of the test."

Devvrat said, "The State does not seek to use the source's statement directly."

"After that statement, an independent search was conducted."

"What was found in the search?" Justice Arya asked.

Aditya said, "The repository was not found in the form described."

Vidyanand remained silent.

A strange stillness spread through the courtroom.

Justice Arya asked, "Then what is the present use of the sealed source memorandum?"

Aditya answered, "Only to explain the investigative direction."

"For an adverse proposition?"

"No."

"For an inference that non-apprehension means deletion?"

"No."

"For an allegation against a particular person?"

"No."

Justice Arya wrote in the table—"Direction-producing; not adverse evidence."

Malini exhaled.

She understood that the very existence of a sealed source might increase suspicion, but when the test failed, the legal limit of that suspicion had to be made explicit.

The work of tarka was not to preserve suspicion.

The work of tarka was to test the reason for suspicion.



The fourth item was an export from browser history.

The hash of the original image from which it came had been preserved.

But the export itself was an analytical view.

Malini had already worked on this export.

Devvrat asked, "Malini Karna, will you explain this view?"

Malini stood.

Her notebook was in her hand.

"The original forensic image contains a very large number of entries."

"For analysis, an export was generated by selecting certain time ranges and indicator terms."

Vidyanand asked, "Is the export the complete image?"

"No."

"Is the hash the same?"

Malini said, "The export has its own hash; the hash of the original image is a separate integrity identifier."

"Then the truth of the export is not established merely by the original hash?"

“No. The method by which the export was generated, the selection criteria, and reproducibility must also be examined.”

Vidyanand asked again, “Could relevant material exist outside the indicator terms you selected?”

“It could.”

“Then would you call the selected view representative of the complete behaviour?”

Malini paused.

“I would not.”

Justice Arya asked, “Have you previously used language of that kind?”

Malini’s eyes dropped for a moment.

“In the preliminary analysis, at one place I wrote ‘the overall pattern.’”

“And now?”

“I would remove that language.”

“Why?”

“Because a selected export does not establish completeness.”

“And does that change the fact?”

“Not the underlying fact. It changes the scope of the conclusion.”

Justice Arya said, “That is an important distinction.”

Malini sat down.

She felt not shame, but a kind of lightness.

Accuracy sometimes demands the courage to abandon one’s own earlier sentence.



The argument returned to the investigation diary.

Vidyanand said, “The State calls the diary confidential. But if that diary contains failures that favour the defence, can the State conceal them and place only successful directions outside?”

Devvrat immediately said, “No.”

“The State does not support selective use.”

Justice Arya asked, “Then what is the process?”

Mrinal Dhar proposed one.

“Wherever the State seeks to rely on any part of the diary’s sequence, the relevant direction, its result, and any material failed alternative should be placed before the Court in summary form.”

“As much unprotected summary as is necessary for the defence should be made available.”

Vidyanand said, “And if the failed direction itself weakens the State’s proposition?”

“Then it should not be omitted.”

Justice Arya looked toward Aditya.

Aditya said, “I agree.”

“Concealing investigative failures does not strengthen a case; it weakens the method.”

Malini wrote—“Failed direction = recorded limitation.”

Then she struck that out and wrote—“A failed direction is not evidence, but it may be relevant to understanding the limits of a conclusion.”

She looked at the words she had crossed out.

She was beginning to understand that the same thing could assume different legal roles for different purposes.

If the role was not stated, confusion was born.



The Court took a short recess.

Outside in the corridor, Ananya Kashyap was standing.

People from the news media gathered around her.

“A great secret inside the sealed envelope?”

Ananya said, “The Court has made no such finding.”

“Did the judge see the material?”

“There was a limited inspection of some material.”

“Then has the truth been confirmed?”

“Inspection is not verification.”

A journalist asked, “Then what is the headline?”

Ananya said, “Court examines limits on the use of sealed material.”

“That is terribly flat.”

“Facts are sometimes flat.”

“Readers need curiosity.”

“Turning an unproved matter into a proved one for the sake of curiosity is not journalism.”
In her notebook she wrote—“Seen ≠ accepted.”
Then—“Seal ≠ reliability.”
Third—“Diary ≠ evidence.”
Fourth—“Confidentiality ≠ guilt.”
She closed the notebook.



After the recess, the Court came to one particular line.

The investigation diary said—“Third payment route possible.”
In the later test, two external service sources had been examined.
One source was available.
The other had retained no record because its retention period had expired.
In its written summary, the State had said—“Indication of a third payment route confirmed.”
Vidyanand said, “Where did the word ‘confirmed’ come from?”
Mrinal looked at the paper.
Aditya looked at it too.
There was silence for a few moments.
Aditya said, “That word should be removed.”
Devvrat looked at him, but did not stop him.
Justice Arya asked, “The new language?”
Aditya answered, “A related technical indicator was found in one available external source; the second expected source is unavailable because its retention period had expired; the existence of a third payment route is not proved from this.”

Vidyanand said, “That is more accurate.”
Justice Arya said, “And longer.”
A faint smile passed through the courtroom.
“But legal language must not shorten meaning in its desire to shorten sentences.”
Malini underlined that sentence.
She remembered her earliest summaries.
They had contained many short sentences.
Short, sharp, attractive.
But in some of them, limitation was absent.
Now she understood: limitation too is part of the fact.



The fifth item was connected with a sealed witness identity.

The witness’s identity was not public for security reasons.
The State did not seek to rely directly on the witness’s statement.
But after that statement, a location had been inspected.
During the inspection, a solid-state storage device was found.
Vidyanand said, “Then the recovery of the device is an independent physical fact.”
“But the reason for looking for it was a confidential source.”
Aditya said, “Correct.”
“Is the witness’s statement necessary to prove the truth of the contents of the device?”
“No. The seizure of the device, the image, the hash, custody, and the material within it each require separate examination.”
“Did the witness say that a particular person kept the device?”
Devvrat objected.
“The State is not presently using the contents of that statement.”
Justice Arya said, “Then it will not be discussed.”
Vidyanand nodded.
“My purpose was only to clarify the boundary.”
Justice Arya wrote in the table—“Source prompting search protected; recovered physical material independently testable; person-link to be proved separately.”
Malini read the line.
She understood that confidentiality of source and testability of object were not opposites.
One question was—why was it searched for?
Another—what was found?

A third—whose was it?
A fourth—what did it mean?
One answer could not take the place of another question.



The argument now came to the right of fair response.

Vidyanand said, “If the State seeks an adverse consequence on the basis of sealed material, then the defence must at least receive the factual substance of the consequence it is being asked to answer.”

Devvrat said, “What if giving that summary would easily identify the source?”

Justice Arya said, “Then the State has choices.”

“Rely on independent open material.”

“Or find a form of minimum summary that makes a response possible.”

“Or abandon the adverse use.”

Those three choices settled heavily over the courtroom.

Malini wrote—“Confidentiality does not extinguish the need for a fair response.”

Then she added—“Sometimes the solution is not complete access, but a limit on use.”

She remained over that line for a few moments.

Fair treatment of confidential material often required a path between total disclosure and total exclusion.

She understood that language was not only expression; it was also an instrument for measuring legal boundaries.

One imprecise word could enlarge the scope of a proposition.



Mrinal Dhar proposed a separate table for the investigation diary.

Entry.

Time of entry.

Officer who made the entry.

Nature of entry—information, direction, hypothesis, test, result, or failure.

Later independent material.

State’s proposed use.

Necessary opportunity for the defence to respond.

What remains unproved.

Justice Arya said, “This classification is useful.”

Vidyanand said, “One more column is needed—the source of the officer’s knowledge at the time the entry was written.”

Devvrat agreed.

So did Aditya.

Malini continued copying the table.

Suddenly she realised that an investigation diary was not a story; it was a chronological path of work.

That path would contain assumptions, false directions, incomplete indicators, successful tests, and failed tests.

To extract only the successful lines and place them before the Court would distort the history.

But making the entire diary public was not necessarily required either.

Tarka restrained both extremes.



At one entry, Malini herself became the centre of the question.

Aditya had written in the diary—“Have Malini re-test the browser timeline; source independence unclear.”

Vidyanand asked, “When was this direction given?”

Aditya stated the time.

“Why?”

“In the first analysis, three visual exports had been generated from the same underlying image, but in presentation they appeared as though they were three sources.”

Justice Arya looked toward Malini.

“Did you conduct the re-test?”

“Yes.”

“The result?”

“It was erroneous to treat the three exports as independent support.”

“Was it corrected?”

“Yes.”

Vidyanand asked, “Is that correction recorded in the diary?”

“Yes,” Aditya said.

“In the public analytical summary?”

Malini said, “It is now.”

“In the first version?”

“It was not.”

The courtroom was silent.

Malini kept her voice steady.

“That was an omission.”

Justice Arya said, “Acknowledging an omission is not a weakness in evidence; if the correction is made clearly and in time, it may become a mark of the method’s reliability.”

Malini nodded.

The sentence no longer felt like mercy toward her.

It felt like responsibility.



The sealed box was now opened before the Court.

Only authorised persons remained near it.

The defence and the State stayed at their respective places.

Justice Arya looked at several pages.

Those pages were not read aloud in the courtroom.

A few moments passed.

Malini did not try to read the judge’s face.

Earlier, at moments like this, she would have tried to infer meaning from a judge’s expression.

Today she knew—the expression on a face is not evidence.

The silence of judicial inspection is not a conclusion either.

Justice Arya directed that the box be closed again.

Then she said, “The Court’s first conclusion after inspection is not that the material is true.”

“The first question is: for what proposition does the State seek to use this material?”

“Second: what independent basis exists for that proposition?”

“Third: what arrangement exists for a fair response by the defence?”

“Fourth: where a response is not possible, what limitation on adverse use is required?”

Vidyanand continued writing.

Devvrat continued writing.

Malini continued writing.

Aditya continued listening.

The thunderbolt of tarka was not an instrument for breaking seals.

It was an instrument for cutting the boundaries of use.



After noon, the argument came to a sensitive payment record.

The record contained personal details of a third party.

The State did not wish to make the entire record public.

The defence said, “We do not need the personal details; we need the line on the basis of which the State constructs the temporal connection.”

Mrinal Dhar said, “A redacted copy of that kind can be provided.”

Justice Arya asked, “Will redaction alter the meaning?”

Aditya said, “No, if the time, merchant identifier, transaction type, and verification marker remain.”

Vidyanand asked, “Will the person’s identity be removed?”

“That of the third party.”

“And that of a party to the case?”

“Where the proposition depends on the link to a person, it will remain to the extent necessary.”

Justice Arya said, “In other words, redact what confidentiality requires, but do not conceal the basis of the adverse statement.”

Devvrat said, “Correct.”

Malini wrote—“Redaction ≠ distortion of meaning.”

Then she added—“Meaning must remain; response must remain possible.”

Those two conditions seemed important to her.

◆
At one point Vidyanand's voice sounded tired.

He drank water and sat down.

A message from Shailaja arrived on his mobile phone, but he did not look at it immediately.

The pressure of his private life was waiting outside the courtroom.

Inside, he was only an advocate.

Malini looked at him.

Earlier she had regarded Vidyanand's sharp questions as obstacles to the investigation.

Today she understood—proper questions are not the enemy of an investigation.

Proper questions are the enemy of improper certainty.

Vidyanand rose.

"My Lady, the defence wishes to make one thing clear."

"We do not claim a general right to the entire diary, the entire sealed box, or the identity of every source."

"We say only this: where the State formulates an adverse proposition, a real opportunity to answer it must not be destroyed."

Devvrat said, "The State does not disagree with that general principle."

Justice Arya said, "Then the dispute is less about principle and more about application."

Vidyanand smiled.

"That is where most difficult legal disputes live."

◆

In the final hour, the Court returned to the table.

First proposition—the time of the payment request.

Independent external source available.

Restricted document capable of being made available to the parties.

Sealed material unnecessary.

Proposition survives.

Second—control by a particular person.

Independent bridge insufficient.

Statement of the sealed source not used directly.

Proposition limited.

Third—third payment route.

One indicator available; second source unavailable because of retention expiry.

Word "confirmed" removed.

Existence unproved.

Fourth—browser pattern.

Three exports are selected views of the same underlying image.

No independent plurality.

Language "overall pattern" removed.

Fifth—recovery of the solid-state storage device.

Physical seizure independently testable.

Confidential source only the impetus for the search.

Person-link to be proved separately.

Sixth—possible connection in the investigation diary.

Direction only.

No evidentiary value without the later result.

Justice Arya said, "This list is not an order; it is a working classification."

"The parties will submit written comments on this classification."

"Some material may remain confidential."

"Some summaries will be made available."

"Some propositions will proceed on independent sources."

"Some will be abandoned."

"And some will remain undecided for now."

Malini wrote—"Remaining undecided is also a valid result."

◆

Before the hearing ended, Justice Arya addressed Malini again.

"You are a young analyst."

Malini stood.

“Yes, My Lady.”

“What did you learn today?”

The question was unexpected.

Malini remained silent for a few moments.

Then she said, “A fact does not reside only inside the material; its source, limit, acquisition, selection, and use also define the dignity of the fact.”

Justice Arya said nothing.

Malini continued, “That sealed material was seen—this may be one fact.”

“That it is true—is a separate question.”

“That a direction was written in the diary—is one fact.”

“That the direction succeeded—is a separate question.”

“That the hash matches—is a fact about integrity.”

“That the contents are true—is a separate question.”

“That nothing was found—is the result of a search.”

“That it never existed—is a separate question.”

The courtroom was utterly silent.

Justice Arya said, “Enough.”

“Do not forget these distinctions.”

Malini sat down.

There was sweat in her palm.

But her mind was steady.

That answer had not been for an examination.

It had been for method.



After the Court rose, Devvrat Sinha stopped with Aditya in the corridor.

Mrinal Dhar was there too.

Devvrat said, “In the pending special-leave proceeding before the Supreme Court, we will have to prepare the next limited supplementary submission.”

Aditya said, “Without repeating the contents of the sealed material?”

“Yes.”

“Only today’s High Court limits on use, the summaries available, the independent sources, and the propositions the State is withdrawing or limiting.”

Mrinal said, “Do not write the filing as though it were a conclusion.”

Aditya said, “And do not write the High Court’s working classification as though it were a final order.”

Devvrat nodded.

“Correct.”

“This time language itself is part of the discipline of evidence.”

Vidyanand was standing some distance away, listening.

He said, “And state the defence’s disagreement accurately as well.”

Devvrat said, “Certainly.”

Vidyanand replied, “Then the next argument will be more useful.”

He walked away.



Ananya was waiting outside.

“A new petition in the Supreme Court?” a journalist asked.

Ananya said, “No.”

“A limited supplementary submission will be prepared in the pending special-leave proceeding.”

“Then a major turn?”

“‘Turn’ is your word.”

“Did the Court today accept the truth of the sealed material?”

“No.”

“Did it open the investigation diary?”

“No.”

“Did all the State’s propositions survive?”

“No.”

“Were all the defence objections accepted?”

“No.”

The journalist asked in a tired voice, “Then what happened today?”

Ananya said, “The limits of use became clearer.”

“That’s all?”

“Sometimes clarifying a boundary is a large thing.”

In her notebook she wrote—“Filing ≠ order ≠ conclusion.”

Then a new line—“Confidentiality ≠ truth.”

And another—“Judicial sight ≠ judicial acceptance.”



That evening, Malini sat alone in the office for a while.

Everyone else had left.

Today’s table remained open on the display.

Material.

Source.

Access.

Use.

Independent support.

Adverse consequence.

Opportunity to respond.

What remains unproved.

She looked at each column in turn.

Earlier, evidence had seemed to her like an object.

Now it seemed like a web of relationships.

Object.

Source.

Time.

Person.

Acquisition.

Integrity.

Interpretation.

Limit.

She opened a new page.

At the top she wrote—“The dignity of fact.”

Below it, eight lines.

Write only what was seen.

What is inferred, call inference.

Where a source is confidential, do not turn confidentiality into proof of truth.

What is a direction in the diary, call a direction.

Do not conceal a test that failed.

Where material is selected, do not call it complete.

Where a party cannot answer, examine the limit on adverse use.

What remains unproved, let it remain unproved.

Malini looked at those eight lines for a long time.

Then she wrote a ninth—“Tarka is not evidence; tarka tests the endurance of a claim made from evidence.”

At that moment, the night air came in from outside.

The corner of the paper lifted, then settled again.

Malini did not press it down.



At night, before leaving the office, Aditya stopped beside Malini’s desk.

“You are still here?”

Malini said, “I was finishing the summary.”

Aditya looked at the page.

“The dignity of fact.”

He did not smile.

He only said, “Keep this title.”

Malini asked, “Why?”

“It will grow harder ahead.”

“Why?”

“Because now, after the sealed material, tarka will move to the Court’s next step.”

“The Supreme Court?”

“A supplementary submission in the pending proceeding.”

“There, language will be tested again.”

Malini said, “And journalism too.”

Aditya said, “Ananya administers her own examination.”

Both fell silent.

Aditya went out.

Malini switched off the display.

She put her notebook into her bag.

The sealed box was in the Court’s custody.

The investigation diary remained under restricted access.

The table was in the office file.

But the day’s principal gain lay in no box, diary, or file.

It was a distinction.

Between seen and proved.

Between direction and result.

Between confidentiality and truth.

Between judicial inspection and judicial conclusion.

Malini closed the door.

She knew that words would again travel onward, from the High Court to the pending proceeding in the Supreme Court.

But this time one thing was clear to her.

The distance between truth and sensation can sometimes look very small.

Method is the name for measuring that distance.

o83 The Thunderbolt of Tarka — Chapter 5

Delhi at dawn was not yet fully awake.

Night dew still clung to the leaves of the trees outside the Supreme Court.

Vidyanand Mishra stepped out of the vehicle and stood for a few moments looking towards the steps.

There was no thick file in his hand.

Only a limited supplementary application, three annexures, and a short note of argument.

Shailaja had said at night, “Only as much as is necessary.”

Vidyanand had not replied.

But today that sentence made the burden of the papers lighter.

He walked towards the Registry.

The number of the pending special-leave proceeding was already on the file.

Not a new case.

Not a new Special Leave Petition.

A limited supplementary ground and an interim submission within that pending proceeding.

This was written in bold letters on the first page.

Vidyanand wanted the language not to run ahead of the process.

The Registry clerk examined the papers.

“A request to place this with the original proceeding?”

“Yes.”

“New relief?”

Vidyanand paused for a moment.

“Not new relief; an interim request to clarify the limits of adverse use.”

The clerk turned another page.

“Against the High Court’s new order?”

“In part. Not against the existence of the order, but against the consequences of its classification for use.”

The clerk entered a note in the register.

Vidyanand repeated within himself—filing is a process.

Not yet judicial acceptance.

Not yet a judicial conclusion.

For now, only the formal route by which a question is placed before the Court.



At that same time, Aditya was in his office with Malini, looking at the table prepared the previous day.

Sealed material.

Investigation diary.

Independent external source.

Limited adverse use.

Opportunity to answer.

Unproved remainder.

Malini said, “The defence is filing a supplementary application in the Supreme Court.”

Aditya did not take his eyes from the display.

“Has it been filed?”

“It has gone to the Registry.”

“Then do not say ‘is filing’; say ‘has been presented to the Registry.’”

Malini changed the words at once.

Aditya said, “Language draws the boundary first.”

Malini asked, “What will be the basis of our answer?”

“First understand what the defence is actually challenging.”

“The sealed material?”

“Not only that.”

Aditya wrote seven points.

First—on which proposition is adverse use sought.

Second—what open or shared source supports that proposition.

Third—how far the proposition survives without the sealed portion.

Fourth—is the investigation diary merely directional, or is the State using it as support.
Fifth—what is the record-based foundation for the defence’s alternative explanation.
Sixth—what still remains undetermined.
Seventh—what the State itself will not say.
Malini stopped at the seventh line.
“What the State itself will not say?”
“Tarka is not merely the catching of an opponent’s error.”
“It is also the work of restraining one’s own excess.”



By ten o’clock, a certified copy of the supplementary application had reached the State’s legal team.

Devvrat Sinha read the first page.

Mrinal Dhar examined the index of annexures.

The principal request was limited.

Before any adverse proposition was accepted on the basis of sealed material, the defence should be given an adequate summary sufficient to answer it.

The investigation diary should not be read as independent proof.

Where the State relied on an independent source, that source should be separately identified.

Where material could not be shared, the limits of adverse use should be made clear.

Devvrat said, “On these four points, I disagree with very little.”

Mrinal asked, “Then where is the dispute?”

Devvrat opened the second annexure.

“Here.”

The defence note of argument contained one sentence—‘No part of material whose contents the defence has not seen may be used in the State’s adverse case.’

Mrinal shook his head.

“That is an extremely broad proposition.”

“Yes.”

“Because some facts can be established from independent sources without disclosing the contents.”

“And some material may be seen by the Court only to understand process or source protection.”

Devvrat drew two columns on the paper.

The defence’s legitimate demand.

The defence’s excess.

Mrinal added a third column.

The State’s own excess.

Devvrat smiled.

“Do not remove that column.”

“Why?”

“Because in the Supreme Court, the credibility of our argument will depend on that too.”



Before noon, the media corridor had heated up.

A bold headline appeared on one news screen—“NEW CHALLENGE AGAINST STATE IN SUPREME COURT.”

The moment Ananya Kashyap saw the headline, she sent a message to the editorial room.

“‘New challenge’ is fine; do not write ‘new Special Leave Petition.’”

The reply came—“Will viewers understand the difference?”

Ananya wrote—“Our job is not to erase the difference, but to explain it.”

A second message came—“Will the State’s confidential file be opened?”

“No order yet.”

“Has the defence won?”

“There has not even been a hearing yet.”

“Then what is the headline?”

Ananya thought for a few moments.

Then she wrote—“Supplementary submission in pending proceeding on limits of use of sealed material.”

The reply came—“Far too slow.”

Ananya did not smile.

She wrote—“Truth sometimes speaks slowly; if the headline makes it run faster, the fact does not change.”

A young journalist sitting opposite asked, “People will not click.”

Ananya said, “For the sake of curiosity, I cannot turn a filing into an order.”

She opened her notebook.

It already contained the line—"Filing ≠ order ≠ conclusion."
Beneath it she added a new line—"Supplementary submission ≠ new case."
Then another—"A question raised ≠ a question answered."



That afternoon, a small group of advocates gathered in Vidyanand's office.

A junior advocate said, "We can write in the supplementary application that the State is hiding its weak case behind sealed material."

Vidyanand looked up.

"No."

"But the argument—"

"Argument is the discipline of inference, not an independent licence to accuse."

The junior fell silent.

Vidyanand placed his thumb on the page of the application.

"We may say that the defence has not seen the contents."

"We may say that an adequate summary is necessary for adverse use."

"We may say that the diary is not independent proof."

"But we cannot say that the State is knowingly concealing the truth—unless we have an independent basis for that statement."

Another advocate asked, "Then what is the strongest argument?"

Vidyanand said, "The strongest argument is not the one spoken in the loudest voice."

"The strongest argument is the one that survives even after conceding the opponent's strongest lawful ground."

He drew three circles on the writing board.

First—shared fact.

Second—disputed interpretation.

Third—confidential material.

"We will not deny the first."

"We will offer an alternative explanation for the second."

"For the third, we will ask for a structure that allows a fair answer."

The junior advocate said, "That will look less aggressive."

Vidyanand replied, "Restraint in court is never weakness."

After that sentence, his private fatigue showed on his face for a moment.

But he bent over the papers again at once.



By evening, Devvrat, Mrinal, Aditya and Malini sat together in joint preparation.

Mrinal said, "Shall we write that we are prepared to accept the defence's four legitimate demands?"

Aditya said, "First test the propositions one by one."

Malini opened the table they had prepared earlier.

Proposition one—a payment request went from a specified merchant identity.

Primary source—the payment gateway's external record.

Role of sealed material—supplementary context relating to source protection.

Adverse use—not to establish operation by a particular individual.

Devvrat said, "This falls within the defence's legitimate boundary."

Proposition two—an administrative access was recorded at a specified time.

Primary source—the record in the forensic image.

Hash—only as far as the integrity of the image.

Sealed portion—the identity of a third party.

Mrinal asked, "Does the proposition survive without the identity of the third party?"

Aditya said, "The time and the event of access survive; the actor does not."

Malini wrote—"Event survives; actor unproved."

Proposition three—a possible connection to a meeting.

Basis—a direction in the investigation diary, a partial match in travel records, and one witness's memory.

Devvrat asked, "Independent corroboration?"

Aditya replied, "Insufficient."

"Then?"

"The State will not put forward an adverse proposition in that form."

Malini looked up.

Mrinal said, "This reduction must be stated clearly in the Supreme Court response."

Aditya said, "To hide the reduction would be the defeat of tarka."



By nightfall, the supplementary application passed the Registry's preliminary scrutiny and was placed with the pending file.

Notice of this procedural step reached the parties.

The newsroom stirred again.

One headline was proposed—"SUPREME COURT TO HEAR STATE'S CONFIDENTIAL EVIDENCE."

Ananya asked, "Has it been listed?"

"It has only been placed with the pending file for now."

"Then why 'will hear'?"

"It will probably be listed soon."

"Do not write 'probably' as fact."

The young journalist said in a tired voice, "You slow everything down."

Ananya replied, "I do not slow it down; I measure the distance."

"What distance?"

"The distance between filing and hearing."

"Between hearing and order."

"Between order and conclusion."

"And between allegation and established fact."

She sent her headline.

"Supplementary ground registered in pending proceeding; limited question over use of sealed material."

The editor replied—"This will do."

Ananya did not switch off the screen.

She kept waiting.



Two days later, the matter was listed for limited directions.

The Supreme Court Bench made clear that there would be no final hearing on the merits that day.

Vidyanand rose.

"Our interim request is narrow."

One of the judges on the Bench asked, "How narrow?"

"Wherever the State advances an adverse proposition against the defence, there must be an adequate structure by which that proposition can be answered."

"Are you seeking full disclosure of the sealed material?"

"No."

"Are you seeking removal of the investigation diary?"

"No."

"Then the question is one of use?"

"Yes."

Vidyanand continued, "We ask that four possibilities be kept separate."

"One—the State's proposition rests entirely on an independent shared source."

"Two—there is a shared source, but sealed material affects the interpretation."

"Three—the principal basis is sealed."

"Four—there is only a direction in the investigation diary, without independent support."

The Bench said, "State?"

Devvrat Sinha rose.

"The State does not, in principle, oppose these four categories."

A faint rustle passed through the courtroom.

Vidyanand kept his face still.

Devvrat continued, "But one sentence in the defence application is excessively broad."

"Which one?"

"That anything whose contents the defence has not seen cannot be used by the State in any related manner at all."

The Bench looked towards Vidyanand.

"What do you say to that?"

Vidyanand said, "We are prepared to narrow the sentence."

"How far?"

"To the basis of a direct adverse conclusion."

The Bench made a note.

Ananya sat in the back row listening to everything.

It seemed to her that the first result of tarka was not victory, but the cutting away of excess from both sides' sentences.



The Bench looked towards Mrinal Dhar.

"Give us three examples from the State."

Mrinal read the first proposition.

"A request from a specified merchant identity on the payment gateway."

"Is sealed material necessary?"

"No, not for the primary event."

"Operation by a particular individual?"

"Not from this material alone."

The Bench asked for the second.

Mrinal gave the example of administrative access.

"What does the hash establish?"

"The integrity and identity of the image, not the truth or completeness of its contents."

"The identity of the actor?"

"A separate question; presently unproved."

The Bench asked for the third.

Mrinal read the possible connection to a meeting.

"Does the State seek adverse use of this proposition?"

For a moment, Mrinal looked towards Aditya.

Then she said, "No. After joint review, the State places this proposition in the undetermined category."

A rustle again passed through the courtroom.

The Bench asked, "Did this change occur after the supplementary application?"

Devvrat replied, "The review had begun earlier; the questions in the application made it necessary to state the change expressly."

The Bench said, "Good. The function of tarka is not to win an opponent's sentence; it is also to make one's own proposition capable of withstanding scrutiny."

For the first time, Aditya looked directly towards the Bench.

Malini wrote on the paper—"Tarka = test of resilience."



Vidyanand rose again.

"I have an alternative explanation."

The Bench said, "Show us its basis in the record."

Vidyanand said, "The administrative access may have occurred through a shared service account."

"What is the basis for saying the service account was shared?"

Vidyanand showed a shared extract from an internal policy page.

"It says here that, for emergency maintenance, two administrators could use a common credential."

On behalf of the State, Mrinal examined the page.

"The policy existed; whether it was active on that day is a separate question."

The Bench said, "Then the defence explanation is not merely imaginary."

"But neither is it proved."

Vidyanand said, "That is all we say."

Aditya wrote in his note—"Alternative explanation: record-based foundation exists; connection to event incomplete."

Malini leaned forward to ask something, then stopped.

She had understood the answer.

Tarka shows the existence of an alternative.

Evidence tests the reality of that alternative.

The two are not the same.

The Bench asked, "Has the State tested this alternative?"

Aditya's name was called.

He stood.

"In part."

"Why not fully?"

"Two maintenance records were unavailable; a response from one external service provider has still not arrived."

"Then the State's conclusion on the actor?"

"Will remain limited for now."

The Bench made a note.
Vidyanand sat down.
There was no expression of victory on his face.
Only a professional satisfaction—the question had come into its proper size.



In the middle of the hearing, the defence junior said something into Vidyanand's ear.
Vidyanand nodded.
He rose again.
“I wish to clarify one point.”
The Bench looked at him.
“We do not present the State's decision to withdraw its third proposition as a judicial finding of exoneration.”
Several people in the press row stopped writing at once.
The Bench said, “That is proper.”
Vidyanand continued, “The fact that one proposition remains unproved does not mean that the entire case is false.”
Devvrat inclined his head.
Ananya underlined the sentence in her notebook.
She knew that, for the news, this would probably not be the most attractive sentence.
But judicial truth often revealed itself through restraint of this kind.



At the final stage, the Bench gave only procedural directions.
“The State shall file a proposition-by-proposition summary.”
“Where the principal basis is shared material, the source shall be identified.”
“Where the principal basis is confidential, the State shall state its position on the limits of adverse use and on an adequate summary sufficient to answer it.”
“The investigation diary shall not be cited as independent proof unless independent material supports the proposition recorded in it.”
“The defence shall identify the available record-based foundation for its alternative explanations.”
“These directions shall not be treated as findings on the merits.”
The court clerk read out the last sentence.
Vidyanand listened carefully.
Devvrat listened carefully.
Mrinal listened carefully.
Aditya listened carefully.
So did Ananya.
Each understood the value of that single sentence for a different reason.
No finding on the merits.
Meaning—not victory or defeat for the news.
Not a victory for the State.
Not a victory for the defence.
A process.
A touchstone.
Preparation for the next question.



The moment they stepped out of court, the media groups surged forward.
One journalist asked Vidyanand, “Has the Supreme Court rejected the State's sealed evidence?”
Vidyanand stopped.
“No.”
“Has the State retreated?”
“The State narrowed one proposition; the Court asked for a procedural summary.”
“Did you win?”
Vidyanand looked at the journalist with tired eyes.
“Today the question came into its proper shape.”
He moved on.
Another group surrounded Devvrat.
“Has the Court accepted the State's submissions?”
Devvrat replied, “The Court made no finding on the merits.”

"Then what happened today?"

"The limits of the process became clearer."

Ananya stood a little distance away, listening to every answer.

She knew that restraint on both sides might reduce the excitement of the news.

But fact survives inside such restraint.



When Ananya returned to the newsroom, three proposed headlines were waiting for her.

The first—"SUPREME COURT SETBACK."

The second—"MAJOR VICTORY FOR STATE."

The third—"COURT TAKES TOUGH LINE ON SECRET EVIDENCE."

Ananya struck out all three.

The editor asked, "Then what do you want?"

Ananya wrote—"Limits of use clarified in pending proceeding; no finding on merits."

The editor said, "That headline is extremely dull."

Ananya replied, "If the order is dull, I cannot make it glitter and thereby change it."

A colleague said, "But the State withdrew one proposition."

"Yes."

"Is that not the headline?"

"Certainly part of the news."

"But one proposition withdrawn ≠ the whole case collapsed."

"And procedural directions from the Court ≠ the State's guilt established."

Ananya prepared her copy.

In the first paragraph she wrote—the supplementary application is part of the pending special-leave proceeding.

In the second—the Bench made no finding on the merits.

In the third—the State placed one proposition in the undetermined category.

In the fourth—one broad sentence of the defence was also narrowed.

In the fifth—procedural clarification that the diary is not independent proof.

In the sixth—the next summary will proceed proposition by proposition.

She wrote in the final line—"On a day of tarka, perhaps the largest event was that both sides made their own sentences smaller."



That evening in the office, Malini placed before Aditya the Supreme Court's short procedural summary.

"No finding on the merits."

Aditya said, "Keep that line at the top."

Malini said, "The shared-service-account policy page has also come in support of the defence's alternative explanation."

"Put its examination on a separate list."

"The response from the external service provider has not yet arrived."

"Then do not call it non-apprehension; call it a pending response."

Malini wrote it down.

Aditya said again, "For what has not arrived, the reason is not yet known."

"Yes."

"Do not write that an alternative is proved merely because it is possible."

"Yes."

"Do not write that the proposition the State withdrew has been 'proved false.'"

Malini looked up.

"Only 'undetermined for insufficient support'?"

"Correct."

Malini was silent for a few moments.

"Tarka cuts away a great deal."

Aditya said, "The thunderbolt of tarka should fall first upon the excess in one's own hand."



That night, when Vidyanand reached home, Shailaja was sitting in the veranda.

The moment she saw him, she asked, "How did the day go?"

Taking off his shoes, Vidyanand said, "No victory."

Shailaja said, "Did I ask about victory?"

Vidyanand was silent for a moment.

“The question became smaller.”

“Is that good?”

“In court, often yes.”

Shailaja pushed the cup of tea towards him.

Vidyanand took the cup in his hand.

His thumb trembled slightly.

Shailaja saw it, but said nothing.

Vidyanand himself said, “Today I had to narrow a sentence from my own side as well.”

“Was it difficult?”

“For a moment.”

“Then?”

“Then I understood—the dignity of the profession is not only in cutting down the opposing side.”

“If one’s own sentence grows larger than the record, it too must be made smaller.”

Shailaja set down her cup of tea.

“That is why you have remained in this profession for so many years.”

Vidyanand did not answer.

He kept looking out into the darkness.



The night deepened.

After her article was published, Ananya looked at the reactions.

Some people had written—“This is a defeat for the State.”

Some—“The defence got nothing.”

Some—“The sealed material has been opened.”

Some—“All allegations are over.”

All four statements were inaccurate.

Ananya resisted the temptation to reply.

She read her article again.

What was there was limited.

About what was not there, she had remained silent.

She remembered—truth speaks slowly.

To speak slowly is not to remain silent.

It is only to accept that words must not run ahead of evidence.

She closed her notebook.



Aditya too left the office late that night.

Malini had already gone.

The file contained the Supreme Court’s procedural summary.

One proposition with clear support.

One under limited interpretation.

One undetermined.

One alternative explanation under examination.

One external response pending.

On paper these categories looked fixed.

But Aditya knew that the defence’s large team would now attack each category from a different angle.

The numbers would increase.

The sentences would increase.

The alternative explanations would increase.

But the rule of tarka would not change.

A single question may have many answers.

In a crowd of many answers, evidentiary value does not increase by itself.

One significant objection, spoken in the voices of many advocates, does not thereby become many independent objections.

And one State proposition, repeated across many files, does not thereby become many independent sources.

Before switching off the light, Aditya wrote one line on the paper—“Do not count; examine the relation.”

Then another—“Not the number of voices, but the independence of the foundations.”

He closed the page.

The next day, the phalanx of advocates and the method would again stand face to face.

The thunderbolt of tarka had only just been raised.

o84 The Thunderbolt of Tarka — Chapter 6

That morning, there were more footsteps than usual in the High Court corridor.

Not one or two.

Team after team.

One person carried a thick file.

Another had a slim note tucked under an arm.

Another had coloured markers across a display.

Another carried only one question in his mind.

The defence benches were crowded today.

But Aditya was not looking at the numbers.

He was looking at the direction from which the questions came.

Malini said softly, "There are more of them today."

Aditya replied, "Do not count the numbers."

"Then?"

"Count the roots of the questions."

Malini did not smile.

She opened her notebook at once.

On the first line she wrote—"Number of voices ≠ independence of foundations."

On the second—"One new question, one new test."

On the third—"Repetition of the same question is not new evidence."

From a distance, Vidyanand Mishra glanced towards them once.

Five advocates sat beside him with separate files.

One focused on computational material.

One on privilege.

One on chronology.

One on independence of sources.

One on alternative explanations.

Before Vidyanand lay only a thin sheet of paper.

At the top was written—"Which arguments are truly distinct?"

The court orderly gave the signal.

Everyone rose.

Justice Arya took the bench.

The courtroom fell silent.



Justice Arya first looked towards the defence benches.

Then towards the State.

"Many advocates are present today."

A faint stir passed through the courtroom.

Justice Arya said, "That is merely attendance."

"Not an indication of guilt."

"Not an indication of innocence."

"Not a measure of the quantity of evidence."

"Not a measure of pressure upon the Court."

Vidyanand rose.

"My Lady, the defence makes the same submission."

Mrinal Dhar rose.

"That is also the State's position."

Justice Arya said, "Good. Then political or moral suggestion on this point will not enter this courtroom."

She lifted one page from the papers.

"We shall proceed proposition by proposition."

"One advocate, one principal objection at a time."

"If the next advocate's objection rests on a genuinely different foundation, it will be heard."

"If only the wording has changed, it will be treated as repetition."

Vidyanand inclined his head.
So did Devvrat Sinha.
Justice Arya said, "Tarka does not mean noise."
"Tarka means a possibility capable of coexisting with the accepted facts while unsettling the proposed conclusion."
"But imagination alone will not become tarka."
"There must be a basis in the record."
Malini wrote down the line.
"Imagination ≠ testable alternative."



The first advocate for the defence rose.

Before him lay a table of computational sources.
"The State says the secure-access indicator, browser history and administrative control panel support one another."
Aditya made a note—this was not merely an old question in new form.
This was an attack upon the combined map itself.
The advocate said, "My question is: are these three actually three sources?"
Mrinal Dhar said, "Not always."
Several heads rose in the courtroom.
Justice Arya looked towards the State.
"Clarify."
Mrinal Dhar said, "Some entries come from the same user environment on the same device."
"To that extent, three entries may still amount to one source."
The defence advocate said, "Then the combined support diminishes?"
Devvrat Sinha rose.
"For that subset, yes—it cannot be called independent support."
"But the external payment-gateway record comes from a different custodian."
The advocate responded at once, "A different custodian does not by itself mean a different originating source."
Aditya's pen stopped.
That was the right question.
Devvrat Sinha said, "The State agrees."
"That is why difference of custodian and difference of original provenance are kept in separate columns."
Justice Arya looked at the page.
"Then the first conclusion?"
Mrinal Dhar read, "Three views from the same device are not three independent sources."
"An external record—its independence remains under examination; difference of custodian alone is not enough."
Justice Arya said, "Record that."
Malini wrote.
"Multiplicity removed."
"Origin remains."



The second advocate rose.

His subject was chronology.
"One version of the customer-identification and tax-deduction-at-source spreadsheet is present in the image."
"The State calls it an indicator of business activity."
Devvrat Sinha said, "Up to the fact of its presence and structure."
The advocate said, "Not authorship?"
"No."
"On whose instructions was it created?"
"Not proved."
"Who used it?"
"There are indicators limited to the device environment; use by a particular person is a separate question."
The advocate was silent for a few moments.
"Then this spreadsheet could also be a generic template?"
Mrinal Dhar said, "If there is a record-based foundation for such a generic template."
The advocate showed a policy page.
It contained a sample format used by the service provider.
Justice Arya asked, "The date?"
The advocate showed the date.
Malini immediately matched the timing against her own table.

Aditya looked towards her papers.
 The sample format had been available before the period of the events.
 The alternative was no longer mere imagination.
 It had become an alternative grounded in the record.
 Mrinal Dhar said, "The State accepts that limitation."
 Devvrat Sinha added, "But the spreadsheet before the Court contains completed material distinct from the sample."
 The defence asked, "The source of the completed material?"
 The State replied, "Authorship by any particular person is not yet proved."
 Justice Arya said, "Then make the conclusion smaller."
 "The existence of the spreadsheet—only to the extent proved."
 "Authorship by a particular person—not proved."
 "The possibility that it began from a generic template—testable."
 "The meaning of the completed material—a separate matter if supported by other sources."
 Malini kept writing.
 She understood that tarka was not merely an instrument for destroying conclusions.
 At times it revealed their proper size.



The third advocate rose on privilege.
 Vidyanand signalled to him to remain seated.
 He rose himself.
 "There is a blank space in the State's combined map."
 Justice Arya said, "What kind of blank space?"
 Vidyanand said, "An undisclosed area caused by privileged communications."
 "It is already clear that the State will draw no adverse meaning from that area."
 "But the external event that follows it is placed on the combined map as though the intervening bridge were self-evident."
 Aditya immediately found the page.
 Vidyanand was right on the point.
 An external payment instruction.
 Before it, a period of privileged communication.
 After it, an indicator of an attempted transaction.
 In the State's summary, the connection between them appeared too smooth.
 Devvrat Sinha asked, "What is your alternative explanation?"
 Vidyanand said, "I will not disclose the substance of legal advice."
 "But there is a record of an independent business reason for the external event."
 He showed the public portion of a board summary.
 That portion referred to a general compliance change.
 Mrinal Dhar read the paper.
 "Could this explain the event?"
 Vidyanand said, "Possibly."
 "Does it prove it?"
 "No."
 "Then?"
 "It unsettles the State's claim that there is only one bridge."
 Justice Arya said, "Here tarka is doing its proper work."
 "An alternative explanation need not itself be proved true if its record-based foundation unsettles the State's claim of a 'single' explanation."
 "But that does not make the defence explanation proved."
 Vidyanand said, "Agreed."
 Malini wrote—"Uniqueness defeated ≠ alternative proved."



The fourth advocate rose with a fine distinction in the timeline.
 One entry from an administrative control panel.
 One payment-gateway entry.
 Seven minutes between them.
 The State's earlier summary had described them as an "immediate sequence."
 The advocate said, "Seven minutes is immediate?"

Mrinal Dhar said, "It depends on the context."

"What context?"

"System timestamps, time zones, and record synchronisation."

The advocate said, "Have all three been fully tested?"

Malini looked at her papers.

One system's timestamp was local.

The other used Coordinated Universal Time.

The conversion had been made.

But independent testing of synchronisation drift remained incomplete.

Aditya rose.

"The State is prepared to remove the word 'immediate.'"

Another stir passed through the courtroom.

Justice Arya asked, "Why?"

Aditya said, "Because the limits of system synchronisation have not been fully established so as to assign meaning to a seven-minute interval."

"The State will say only that the two entries fall within the same broader period of time."

The defence advocate said, "Does that prove sequence?"

"No."

"Causation?"

"No."

"The same person?"

"No."

Aditya sat down.

Malini felt that the State had not become smaller in the room.

The sentence had become smaller.

The two were not the same thing.



The fifth advocate rose on the recovered deleted-mail material.

"The State's map says 'deleted material.'"

Aditya looked up.

The advocate said, "Deleted material was found—that is one proposition."

"Who deleted it—a second."

"Why it was deleted—a third."

"When it was deleted—a fourth."

"Who knew of the deletion—a fifth."

Justice Arya said, "State?"

Mrinal Dhar said, "Agreed."

"The distinction is reflected in the colour coding of the map."

The advocate said, "Colour is not a judicial conclusion."

Mrinal Dhar smiled.

"Correct."

"Then read the words."

He read—"Recovered deleted-mail material; person who deleted it not established; reason not established; period of deletion partially determined."

The advocate asked, "Are the contents of that material true?"

Devvrat Sinha said, "The contents depend on their source and authentication. Their deleted state does not establish their truth."

Justice Arya said, "Recorded."

Malini added another line—"Deleted ≠ guilty hand."



The Court rose for the midday recess.

Media personnel gathered in the corridor.

One reporter stopped Ananya Kashyap.

"So many advocates—is the State under pressure?"

Ananya said, "How does the number of advocates establish that conclusion?"

"This is an extremely expensive team."

"Is expense evidence?"

The reporter fell silent.

Another asked, "The State reduced its language four times. Is that defeat?"
Ananya said, "Reducing language may be the result of testing the evidence."
"Then who is winning?"
"The Court is still hearing questions."
"We need a headline."
Ananya said, "Facts are not servants of headlines."
She walked on.
Someone called from behind, "At least write that the large team surrounded the State."
Ananya did not turn.
Once again she understood how compelling the image was.
Ten advocates on one side.
A limited State team on the other.
But an image carries no judicial weight.
She wrote in her notebook—"A crowd makes a picture; a foundation makes a conclusion."



At midday, three political aides were present in Home Minister Shiveshwar Prasad's office.
One said, "The media are questioning the cost of this legal team."
Another said, "We can ask why so many expensive advocates are needed."
Shiveshwar Prasad said at once, "No."
The room fell silent.
"Why not?" an aide asked.
The Minister said, "A person's decision about how many advocates to retain for a defence does not establish guilt."
"But politically—"
"Politically too, the cost of destroying the Court's confidence is very high."
He turned over the summary note on the table.
"The State is making its sentences smaller?"
The Secretary said, "Yes."
"Wherever the record requires it?"
"Yes."
"Then that is not weakness."
He paused.
"If we say outside that the number of defence advocates is an indication of guilt, tomorrow the Court will ask whether the State trusts its evidence or the spectacle."
There was no answer.
Shiveshwar Prasad said, "I do not want spectacle."
"I want credibility."
He closed the page.
"One line only for the media—the matter is sub judice; the State will make a record-based presentation."
The Secretary wrote it down.
"Counsel fees?"
"No comment."
"Size of the team?"
"No comment."
"Political victory?"
"No comment."



After the recess, the sixth advocate rose.
His subject was the secure-access indicator.
"A secure-access indicator was found in a browser."
Malini paid close attention.
The advocate said, "The State treats this indicator as support for a link to a user."
Devvrat Sinha said, "Limited support."
"Use proved?"
"No."
"Access by a particular person proved?"
"No."
"Whose access credential?"
"The record does not establish that by itself."

“Then what exactly does it support?”

Mrinal Dhar replied, “That a secure entry associated with the account existed in the device environment.”

“That is all?”

“To the limit of that source.”

The advocate said, “Then why does its arrow on the combined map reach a particular person?”

Aditya looked at the table.

One arrow did indeed go too far.

He rose.

“That arrow will be removed.”

Malini looked towards him.

Aditya said, “A separate bridge is required from the device environment to a particular person. The secure-access indicator alone is not enough.”

Justice Arya said, “That is the effect of tarka.”

“The conclusion has not been destroyed.”

“Its reach has been reduced.”

Malini wrote—“Device association $\neq$ use by a person.”



The seventh advocate rose on the payment gateway.

“An external payment-gateway record shows a routing structure.”

“The State says it corresponds with the offshore network.”

Mrinal Dhar said, “Up to similarity of route.”

“Control?”

“A separate question.”

“Beneficiary?”

“A separate question.”

“Who gave the instruction?”

“A separate question.”

The advocate said, “Then what does the State seek to establish from similarity of route?”

Devvrat Sinha said, “An indicator of a structural relationship.”

“Guilt?”

“No.”

“A person?”

“No.”

“Intent?”

“No.”

Justice Arya looked towards the defence.

“Your alternative explanation?”

The advocate said, “The same payment service is used by many lawful businesses.”

“Foundation?”

He produced the service provider’s public customer categories.

Devvrat Sinha said, “The State does not dispute that general fact.”

“But the particular combination of routes before the Court is a separate matter for examination.”

Justice Arya said, “Record both.”

“General use is possible.”

“The meaning of the particular combination remains under examination.”

“Neither sentence will swallow the other.”



The eighth advocate rose on the chain-of-custody register.

“There is a three-minute interval.”

Aditya marked the page.

“This chapter has arisen before,” Mrinal Dhar said.

The advocate replied, “Earlier on integrity. Today on the weight of the combined map.”

Justice Arya said, “Proceed.”

The advocate said, “There is this interval in the custody register for a source the State treats as important.”

“If integrity is protected by an independent hash, does the time interval become meaningless?”

Aditya rose.

“No.”

“Then?”

“A hash establishes sameness of material.”

“A custody register records the history of handling.”

“They are different questions.”

“Is the reason for the three-minute interval in the record?”

“Not fully.”

“Then what will the State say?”

“The available hash chain supports integrity.”

“But we will not erase the time interval in the custody register by treating it as silence.”

“It will remain recorded.”

The advocate said, “Then the combined weight diminishes?”

Aditya said, “Where continuity of custody history is itself part of the foundation for a conclusion, the question remains. Where the question is only whether a copy is identical, the hash provides a separate answer.”

Justice Arya said, “One defect does not place the same weight upon every conclusion.”

“The work of tarka is to see the relation.”

Malini wrote—“Define the field of the defect.”



The ninth advocate rose.

There was only one line on his paper.

“The State’s combined map is extremely clear.”

A faint laugh moved through the courtroom.

Justice Arya did not laugh.

The advocate said, “The actual investigation was not this clean.”

“Some directions failed.”

“Some responses never came.”

“Some sources remained inaccessible.”

“Some were limited by privilege.”

“On some points the State reduced its own language.”

“But in the map before the Court, all these things are pushed to the margins.”

Aditya’s face remained still.

It was a difficult question.

Malini looked at her copy.

True.

The principal lines were densely drawn.

Failed directions appeared only in faint notes.

Devvrat Sinha looked towards Aditya.

Aditya rose.

“The State will change the visual order of the map.”

A stir moved along the defence benches.

Aditya said, “Failed directions, pending responses, privilege limits and withdrawn propositions will be marked at the same visual level as the principal map, not relegated to an annexure.”

The advocate asked, “Why?”

“Because tarka does not look only at the lines that survived.”

“It also looks at the lines that were cut.”

Justice Arya said, “Record that.”

Malini wrote—“Do not hide failure.”

Then she struck it out and wrote—“Failed directions are also part of the record.”



The tenth advocate was preparing to rise.

Vidyanand raised a hand.

“My Lady, if permitted, I would place a consolidated question at this point.”

Justice Arya said, “Please do.”

Vidyanand said, “The State has made many of its sentences smaller today.”

“I do not praise it for that; it is its duty.”

“But my question is this—when does repeated tarka remove so many bridges that the remaining proposition becomes only a collection of separate facts?”

The courtroom fell silent.

Devvrat Sinha did not answer at once.

Justice Arya looked towards the State.

Aditya closed his papers.

Devvrat Sinha said, "When every necessary bridge in the relation is left without a foundation in the record."

Vidyanand asked, "And if some bridges survive?"

"Then the proposition survives to the limit of those bridges."

"And if there are two possible routes?"

"The State will not say 'only one.'"

"And if there is no bridge to a particular person?"

"Then there will be no conclusion as to that particular person."

Vidyanand inclined his head.

"That is all I wanted."

Justice Arya said, "No."

Every gaze turned towards her.

"The Court is not satisfied with that alone."

"The defence too must connect its alternative explanation to the record, not merely to the force of words."

"It is easy to cut the State's bridges if one bears no responsibility for an alternative."

"Tarka runs in both directions."

Vidyanand said, "Agreed."



The Court took a short recess.

Vidyanand sat behind his row of counsel.

A junior advocate said softly, "Mishra ji, today the numbers had their effect."

Vidyanand looked at him at once.

"Numbers?"

The junior fell silent.

Vidyanand said, "Which objections made the State reduce its language?"

The junior named two points.

"The first of those?"

"The chronology point."

"The second?"

"The bridge from the secure-access indicator to a person."

"Would those two questions have existed even without so many advocates?"

"Yes."

Vidyanand said, "Then it was not the number that had effect. It was the question."

The junior lowered his head.

Vidyanand softened his voice.

"The dignity of the profession does not lie in displaying a crowd."

"It lies in making each genuinely distinct question distinctly clear."

"And cutting away what is repetition."

The junior said, "Yes."

Vidyanand opened his thin sheet again.

His eyes fell on the line at the top— "Which arguments are truly distinct?"

He remembered what Shailaja had said the previous day.

Sometimes when the question becomes smaller, justice becomes larger.



The Court reconvened in the later afternoon.

Justice Arya said, "Twelve oral submissions have been recorded so far today."

Malini was startled.

She had lost count.

Justice Arya said, "Of those twelve, the Court sees five independent arguments."

A stir passed through the courtroom.

"Three were different forms of the time-and-synchronisation point."

"Two repeated the person-bridge issue arising from the secure-access indicator."

"Two rested on the general-use proposition concerning the payment gateway."

"One concerned an external alternative cause in the context of privilege."

"One concerned the limits of use arising from the custody register."

"One concerned the visual presentation of failed investigative directions."

"One concerned the generic-template basis of the spreadsheet."

"One was the consolidated question concerning the bridges of relationship."

She paused.
“Twelve voices.”
“Five independent arguments.”
“The rest were repetition or sub-forms.”
The defence did not object.
Nor did the State.
Justice Arya said, “The Court does not count voices here.”
“It counts foundations.”
Malini wrote the line down.
“Twelve voices, five independent questions.”



Justice Arya looked at the State’s revised table.
“What remains after these five arguments?”
Devvrat Sinha read.
“First—some computational material is interrelated, but different views of the same originating source will not be treated as independent support.”
“Second—the existence of the spreadsheet is established only to the proved limit; authorship by a particular person is not proved; the generic-template alternative is testable.”
“Third—for the external event following the privileged blank area, the possibility of an independent general business reason is grounded in the record; the State will not say ‘only one explanation.’”
“Fourth—the word ‘immediate’ has been removed from the chronology; only broader temporal proximity remains.”
“Fifth—the secure-access indicator shows an association with the device environment; use by a particular person remains unproved without a separate bridge.”
“Sixth—similarity of payment-gateway route is a structural indicator; control, directing party and beneficiary are separate questions.”
“Seventh—the time interval in the custody register remains recorded; hash identity does not erase it, though it gives separate support on the question of integrity.”
“Eighth—failed directions will receive equal visual prominence on the principal map.”
Vidyanand listened.
Justice Arya asked, “Defence?”
Vidyanand said, “At this stage, I raise no general objection to that classification.”
“We will raise specific points in the next examination.”
“Particularly on the relationship among the summons, the image, the hash chain and the custody register.”
Aditya’s pen stopped again.
The next edge of the dispute was clear.
Justice Arya said, “Then tomorrow we shall proceed on that limited subject.”
“Whether the team is small or large—one foundation at a time.”



The Court rose.
The crowd spread through the corridor again.
This time Ananya received a short statement from the Home Minister’s office.
“The State will make a record-based presentation before the Court; no comment will be made on the number or expense of defence counsel.”
Ananya read the sentence twice.
Short.
Not dramatic.
She placed it in the middle of her report.
She wrote the headline—“Five Independent Arguments Test Combined Evidence Map in High Court.”
Her editor said over the telephone, “The team was enormous. Why is that not in the headline?”
Ananya said, “Because the Court identified five independent arguments, not twelve voices.”
“Readers will notice the number.”
“I will write about the foundation.”
The editor was silent for a few moments.
“All right.”
Ananya sent the copy.
She chose the method of decision over the spectacle.



In the evening, Shiveshwar Prasad received the Court summary in the Ministry office.

He did not look at the first page; he looked at the revision register.

“How many sentences were reduced?”

The Secretary said, “At four principal points.”

“How many remain?”

“Eight limited propositions.”

“How many failed directions were added to the principal map?”

“Six.”

The Minister asked, “Will showing those failed directions make the State look weak?”

The Secretary thought for a moment.

“The media may say so.”

Shiveshwar Prasad said, “I asked about the Court’s confidence.”

The Secretary said, “That may increase.”

“Then that is enough.”

He placed not his thumb but his pen on the page.

“Tomorrow’s subject?”

“The summons, the forensic image, the hash chain, the custody register.”

The Minister said, “No political comment on any of that.”

“Why?”

“Because here even a small technical word may carry a large judicial consequence.”

Shiveshwar Prasad said, “Good.”

“Let the method speak.”



That night, Aditya and Malini sat together in the office again.

There were fewer papers on the table today.

Malini said, “Twelve voices, five arguments.”

Aditya said, “And tomorrow, even five arguments may narrow into three questions.”

“Which three?”

“What did the summons ask for?”

“What did the image capture?”

“What does the hash prove?”

Malini said, “Custody?”

Aditya said, “That is the history of handling between all three questions. It remains separate, but it casts a shadow over each of them.”

Malini divided the paper into four sections.

“Summons.”

“Image.”

“Hash.”

“Custody.”

Aditya said, “Do not write any conclusion in advance tomorrow.”

“Only questions.”

Malini said, “And if the defence team is large again?”

Aditya smiled.

“There will still be only four sections on the table.”

“How many people there are, and how many questions there are—those are different things.”

Malini switched off the display.

On the final page Aditya wrote—

“Not counting, but relation.”

Then beneath it—

“Not retaliation, but testing.”

He put down his pen.

Outside, night was falling.

The next morning, the thunderbolt of tarka would descend into technical words.

o85 The Thunderbolt of Tarka — Chapter 7

The light of dawn had not yet fully spread.

On the courthouse steps, the sheen of the night's dew still remained.

Aditya Jha climbed the steps carrying a thin four-page file in his hand.

Those four pages bore four headings.

Summons.

Forensic image.

Hash chain.

Custody register.

Until yesterday, these four words had been limits.

Today all four were to become touchstones of tarka.

Malini Karna reached him and said, "All the original records have been cross-checked again."

Aditya asked, "The list of limits too?"

"Yes."

"Alternative explanations?"

Malini showed him another page.

"I prepared it on the basis of the defence's five independent arguments from yesterday."

Aditya did not take the page.

"We shall hear them in Court first."

"Why not use our own list?"

"Because we must not decide in advance what our opponent's argument means."

Malini was silent for a few moments.

Aditya said, "Whatever alternative is placed before us, understand it in its strongest form."

"To defeat a weakened version is not tarka."

Malini nodded.

The two of them moved toward the courtroom.



Justice Arya took the bench.

Devvrat Sinha appeared for the State.

Mrinal Dhar sat beside him with his notebook open.

Vidyanand Mishra was in the first row for the defence.

A number of advocates sat behind him.

Justice Arya looked around the courtroom.

"Yesterday we separated number from voice."

"Today we shall look at the reasoning inside four technical terms."

Vidyanand rose.

"My Lady, my submission is very limited."

"The State has already accepted that the scope of the summons is limited."

"The image is of a limited medium."

"The hash is a limited indicator of integrity."

"The custody register contains a seven-minute documentary gap."

"What I ask today is this: are these four limits leaning on one another so as to conceal their own weaknesses?"

The courtroom fell silent.

Justice Arya said, "A proper question."

Devvrat Sinha said, "The State is ready."

Justice Arya looked at Aditya.

"Investigating officer, keep your answers short."

"Where there is a limit, say there is a limit."

"Where an alternative is possible, say it is possible."

"Where the State's sentence must shrink, shrink it."

Aditya rose.

"Yes, My Lady."



Vidyanand lifted the first page.

“Summons.”

“This summons sought, from the service provider, administrative access logs for a specified period, service-key creation and modification records, and remote event logs?”

Aditya said, “Yes.”

“Did it seek ‘all possible approval sources?’”

“No.”

“And ‘all external repositories?’”

“No.”

“‘All sub-custodians?’”

“No.”

Vidyanand said, “Then accept one alternative explanation.”

“What the State could not obtain may have remained in some source outside the scope sought.”

“Is that possibility impossible on the face of the summons?”

Aditya said, “No.”

“Then is there any reasoning from ‘not found’ to ‘never existed?’”

“No.”

“From ‘not found’ to ‘deliberately concealed?’”

“Not without an independent basis.”

“From ‘not found’ to ‘non-compliance with the summons?’”

“Only for an item that was expressly sought and for which there is an adequate basis to believe it was available.”

Vidyanand set the page down.

“So the first limit is still alive?”

“Yes.”

Justice Arya asked, “The State’s consolidated summary contains this sentence: ‘Required approval records were not produced.’”

Devvrat Sinha looked at the page.

Mrinal Dhar leaned forward to say something.

Devvrat stopped him with a slight gesture of the hand.

“My Lady, that sentence is too broad.”

“The State narrows it.”

Justice Arya said, “The new sentence?”

Devvrat answered—

“‘The required approval records were not found among the available response sources expressly sought by the specified summons; possible sources outside its scope are excluded from this conclusion.’”

Vidyanand said, “In that form, I have no general objection.”

Justice Arya looked toward the clerk.

“Record it.”

One sentence had grown smaller.

Neither side had been defeated.

The record had merely become more exact.



The second page concerned the forensic image.

Vidyanand said, “An image was made of the seized solid-state storage device.”

Aditya said, “Yes.”

“At the time the image was created, the original medium was identified?”

“Yes.”

“Its capacity, serial number, and seal identification were recorded?”

“Yes.”

“The image is the specified computational representation of the contents of that medium?”

“Yes.”

“According to the technical report available at that time.”

Vidyanand immediately asked, “Why did you add those words?”

Aditya said, “Because the meaning of a forensic image depends upon its acquisition method and the limits of its source.”

“Good.”

Vidyanand turned the page.

“Assume this device stood in a shared office.”
 “Assume several people could touch it.”
 “Assume some access occurred remotely.”
 “Does the mere fact that a record is found inside the image prove which person authored it?”
 Aditya said, “No.”
 “The image shows the state of the device.”
 “A separate bridge is needed for authorship.”
 Justice Arya asked, “A bridge?”
 Aditya said, “Temporal correspondence, account identity, an independent source, capacity for access, and other material as the context may require.”
 “The hash?”
 “A hash is not a bridge to authorship.”
 “Custody?”
 “Custody is not a bridge to authorship.”
 “The summons?”
 “That too is not a bridge to authorship.”
 Justice Arya said, “Then how far does the defence’s alternative explanation—a shared device—remain alive?”
 Aditya said, “Where there is no independent bridge to a particular person, it remains alive.”
 Vidyanand asked, “Does any proposition on the State’s map rest only on the proximity between material inside the device and the name of a particular person?”
 Malini looked at Aditya.
 Aditya opened a page.
 “Two propositions did.”
 “Did?”
 “Not now.”
 Devvrat Sinha said, “After yesterday’s testing, the State removed both from the category of person-specific propositions.”
 “One has gone into the device-state category.”
 “The other into the indeterminate category.”
 Justice Arya said, “Record it.”
 Vidyanand did not sit down.
 “My Lady, this is important.”
 Justice Arya said, “Important, but not dramatic.”
 “Two sentences of the State have shrunk. That is all.”
 A few pens moved through the courtroom.
 Ananya Kashyap, seated in the visitors’ row, was writing everything down.
 She did not write a headline.
 Only two words—
 “Device ≠ person.”



Mrinal Dhar rose.

“My Lady, the State seeks one clarification.”
 “The defence has placed the possibility of a shared device.”
 “The State wishes to present one independent source—not to increase the number of proofs, but to show temporal correspondence.”
 Vidyanand said, “Which source?”
 “The payment gateway’s time record.”
 Vidyanand immediately said, “That is not an independent source of authorship.”
 Mrinal answered, “The State does not say that it is.”
 “We say only temporal correspondence.”
 Justice Arya asked, “For what purpose in the reasoning?”
 Mrinal said, “The defence’s alternative explanation is that material on the device may have arisen from shared access by several persons.”
 “The State says that at certain points in time, an external payment record and the device record lie close together.”
 “This proximity does not eliminate the possibility of shared access.”
 “But it raises an independent question of temporal correspondence.”
 Vidyanand said, “Proximity is not authorship.”
 Mrinal said, “Agreed.”
 Justice Arya did not smile.

“Then the dispute is not over the word.”
“It is over weight.”
Both sides agreed.
“This issue will remain reserved for decision.”



The third page concerned the hash chain.
Vidyanand closed the page for a moment.
“This word is very attractive.”
Justice Arya said, “Leave attraction aside.”
“Tell me what it means.”

Vidyanand said, “The State’s record contains the hash of the original image, the hash of the preserved copy, the hash of the working copy, and the hashes of certain exports.”

Aditya said, “Yes.”
“Within copies of the same lineage, sameness?”
“At the specified level, yes.”
“Then accept an alternative explanation.”
“Up to the moment the original image was created, the hash is silent about whatever may have happened before that?”

Aditya said, “The hash itself is silent.”
“Integrity of a copy after the image is created?”
“It can answer that through the relevant comparison.”
“Whether the contents are true or false?”
“It does not tell us.”
“Whether the contents represent the whole universe of material?”
“No.”
“Who authored them?”
“No.”
“What they mean?”
“No.”
“What their purpose was?”
“No.”

Vidyanand paused after each question.

Inside the courtroom, the words were becoming smaller.

The shine of the hash was receding until only its actual work remained.

Vidyanand said, “Then the question of reasoning is this: if a State proposition moves from hash sameness to the phrase ‘reliable material,’ is that leap proper?”

Aditya asked, “Reliable in what sense?”

“True material.”

“Then no.”

“An unchanged copy?”

“To the limit of the specified comparison, yes.”

Justice Arya looked toward the clerk.

“The word ‘reliable’ shall not be used without specifying its meaning.”

“Where integrity is meant, write integrity.”

“Where truth has not been proved, do not write truth.”

Devvrat Sinha agreed.

Malini wrote in large letters on her copy—

“Integrity ≠ truth.”

Then beneath it—

“Sameness ≠ independence.”



Vidyanand placed the next argument.

“Assume five exports were made from the same original image.”

“The five hashes may be different because the contents or structure of the exports may differ?”

Malini looked at Aditya.

Aditya said, “Yes, depending on the method of export.”

“Then do five different hashes prove five independent sources?”

“No.”

“Why?”

“Because the source genealogy leads back to the same original image.”

“So if tomorrow an advocate points to five hashes and calls them five corroborations?”

“He will be counting numbers without examining the source genealogy.”

Justice Arya said, “Yesterday’s principle applies here as well.”

“Number ≠ independence.”

Vidyanand sat down.

It seemed to Malini that the same principle was being born again in different objects.

Tarka was not creating new evidence.

It was putting the weight of old evidence in its proper place.



The fourth page concerned the custody register.

Justice Arya herself opened the page.

“The seven-minute documentary gap.”

Everyone was silent.

“This gap was acknowledged in the previous chapter.”

“Today the question of reasoning is: what is the strongest alternative explanation for this gap?”

Vidyanand rose.

“An ordinary transfer, a timestamp discrepancy, or a delay in making the register entry.”

Devvrat Sinha said, “The State says all three are possible.”

Justice Arya asked, “The State’s strongest adverse explanation?”

Devvrat answered, “The possibility of unauthorised access.”

“Proved?”

“No.”

“Is the defence’s ordinary explanation proved?”

Vidyanand said, “No.”

Justice Arya said, “Then what are the seven minutes?”

Aditya answered, “A documentary gap.”

“That much?”

“That much, until independent material enlarges its meaning.”

Justice Arya asked, “Any independent material?”

Aditya said, “There is a building-entry record, but it does not tell us in whose hands the medium was inside the room.”

“Timestamp?”

“There is a slight difference between the times of separate systems; its correction range can be estimated, but it cannot fully account for the seven minutes.”

“Video record?”

“The available portion reaches only as far as the entrance; not inside the room.”

Vidyanand said, “Then will the State remove the phrase ‘unbroken custody?’”

Devvrat Sinha thought for a moment.

“The State will not use the word ‘unbroken.’”

“The State will say: ‘There is a seven-minute gap in the recorded chain of custody; the subsequent records and hash consistency are available.’”

Justice Arya said, “That is more precise.”

Vidyanand said, “Agreed.”

Malini wrote another line—

“Gap ≠ tampering.”

Then—

“Gap ≠ completeness.”



Before the midday recess, Justice Arya placed all four pages together.

“What has shrunk so far?”

Mrinal Dhar said, “One broad non-production sentence.”

Devvrat said, “Two person-specific propositions.”

Aditya said, “One ambiguous use of the word ‘reliable.’”

Malini said, “One sentence saying ‘unbroken custody.’”

Justice Arya asked, “What remains?”

Aditya opened a new page.

“One—the scope of the specified summons.”

“Two—the specified image of the seized medium.”

“Three—the limited integrity sameness of the image and its copies.”

“Four—the custody history, including the seven-minute documentary gap.”

“Five—the separate temporal correspondences of external sources.”

“Six—any proposition that reaches a particular person requires an independent person-bridge.”

Justice Arya said, “Place the defence’s strongest alternative against each of these six propositions.”

Vidyanand said, “After the recess.”

The Bench rose.



In the corridor, several advocates surrounded Ananya Kashyap.

One young advocate said, “The State retreated at four points.”

Another said, “The defence won four points.”

Ananya asked, “At which point did the Court record victory or defeat?”

There was no answer.

One advocate said, “Sentences were removed.”

Ananya said, “Sentences were narrowed.”

“Difference?”

“There is.”

“How much?”

“The sentences that remain will tell you.”

In her report she wrote—

“Court narrows evidentiary reach of technical terms; stresses need for an independent bridge for person-specific conclusions.”

Her editor said over the telephone, “That headline is heavy.”

Ananya said, “The subject is not light.”

“Write: ‘State retreats.’”

“Some sentences were narrowed.”

“Then: ‘State’s case narrowed?’”

“The Court has not decided the case yet.”

The editor fell silent.

Ananya said, “A filing is not an order.”

“A correction is not a defeat.”

“And an argument is not a conclusion.”

The editor said, “All right. Send it.”

Ananya sent the file.



After the recess, Vidyanand placed six alternatives against the six propositions.

“First—the response to the summons appears incomplete, but the reason may be a retention period or a source outside its scope.”

Aditya said, “A live alternative.”

“Second—there is material on the seized medium, but the device may have been shared.”

“Where there is no person-bridge, a live alternative.”

“Third—the hash matches, but the truth of the original material and its authorship are not proved.”

“A correct limit.”

“Fourth—there is a gap in the custody register, but an ordinary delay in making the register entry is possible.”

“A live alternative.”

“Fifth—there is external temporal correspondence, but the correspondence may be coincidence or a shared workflow.”

“Where there is no additional bridge, a live alternative.”

“Sixth—the record described as a person-bridge may itself depend upon input material from another system.”

Aditya was silent for a few moments.

“For this alternative, the genealogy of each bridge will have to be examined separately.”

Vidyanand said, “Exactly.”

Justice Arya asked, “Does the State at this stage call any alternative impossible?”

Devvrat Sinha said, “No, not as a general matter.”

“Then what use is tarka?”

Devvrat said, “To place each alternative beside the available record and test how well it endures.”

“Meaning?”

“An alternative that can coexist with the established facts will not be removed.”

“If an alternative is inconsistent with an independent fact, that inconsistency will be recorded.”

“But inconsistency is not, by itself, proof of guilt.”

Justice Arya said, “Good.”

“In that form, tarka does not take the place of evidence.”

“It reveals inconsistencies among the evidence.”



Mrinal Dhar presented a table.

Four columns.

“Proposition.”

“Alternative explanation.”

“Contrary independent fact.”

“Unresolved remainder.”

Justice Arya said, “Add a fifth column.”

“Which?”

“Safe language for the State.”

Mrinal wrote it down.

Vidyanand said, “A sixth as well.”

Justice Arya looked at him.

“Which?”

“Safe language for the defence.”

Justice Arya said, “Add it.”

The table now had six columns.

Malini felt as though the Court were writing both conflict and restraint upon the same page.

The first row concerned the summons.

The State’s safe language—

“Among the sources sought and available, the specified records were not found.”

The defence’s safe language—

“The possibility of sources outside the scope or beyond the retention period is not eliminated.”

The second row concerned the image.

The State—

“The specified state of the seized medium is available in the preserved image.”

The defence—

“Device state does not prove person-level authorship.”

The third row concerned the hash.

The State—

“Integrity correspondence among the specified copies.”

The defence—

“Truth, completeness, authorship, and intention are not proved.”

The fourth row concerned custody.

The State—

“Remaining custody records produced with the seven-minute gap expressly disclosed.”

The defence—

“Because of the gap, complete continuity is not proved.”

The fifth row concerned external temporal correspondence.

The State—

“Temporal correspondence in certain independent systems.”

The defence—

“Temporal correspondence does not prove authorship or causation.”

The sixth row concerned the person-bridge.

The State—

“Where an independent person-bridge is available, it is being tested separately.”

The defence—

“The bridge’s original source, input material, and shared access require examination.”

Justice Arya read the page.

“Where, in this table, is victory or defeat?”

No one answered.

“Good.”

“The first benefit of tarka is that it shows language its limits.”



Vidyanand said, “My Lady, I would like to place a difficult example.”

“Go ahead.”

“Assume the seized medium contains a payment-reference number.”

“An external payment gateway contains an entry matching that number.”

“The State will say—two sources.”

Mrinal said, “Depending on the circumstances.”

Vidyanand said, “But what if the external payment gateway’s reference number was itself generated from the same customer flow that was also imported into the device?”

Aditya asked, “Then the relationship of origin between the two sources must be examined.”

“Apparently independent?”

“Possibly.”

“In reality?”

“That depends on the genealogy of the input material.”

Justice Arya said, “Yesterday’s ‘multiplicity ≠ independence’ returns here.”

Vidyanand said, “Yes.”

Devvrat Sinha said, “In this example, the State will not use the phrase ‘two independent sources’ unless the genealogy of the input material is independently established as separate.”

Justice Arya said, “Record it.”

It seemed to Malini that another bright line had dimmed.

But the map had become truer.



Aditya was now permitted to put questions on behalf of the State.

He looked not at Vidyanand, but at the Court.

“My Lady, must every alternative explanation offered by the defence remain tied to the record?”

Justice Arya said, “Tarka is not imagination.”

“It requires a basis.”

Aditya said, “Then what basis is there for the shared-device alternative?”

Vidyanand said, “The office access list, multiple valid accounts, and shared maintenance rights.”

“Good.”

“For the alternative of a source beyond the retention period?”

“The service provider’s declared retention policy.”

“Good.”

“For the timestamp-discrepancy alternative?”

“A report of the known clock difference between the two systems.”

“Good.”

“For an ordinary delay in making the register entry?”

Vidyanand paused for a few moments.

“There is no direct basis for that specific seven-minute period.”

“There is a general possibility.”

Aditya said, “Then the State will call it ‘possible,’ but not ‘record-supported.’”

Vidyanand answered, “I have no objection.”

Justice Arya said, “That distinction is important.”

“A possible alternative and a record-supported alternative are not the same thing.”

Malini drew a new set of marks in the table.

“Possible.”

“Supported.”

“Inconsistent.”

“Indeterminate.”



A senior defence advocate rose.

“My Lady, the State’s officer is himself creating categories for the alternatives.”

“Is that not the Court’s task?”

Justice Arya said, “The State is describing the limits of its own case.”

“The final classification will belong to the Court.”

“This list of the investigating officer is not a judicial conclusion.”

Aditya said at once, “Yes.”
Justice Arya looked at him.
“Remember those words.”
“Yes.”
“An investigator’s interpretation ≠ judicial conclusion.”
Malini wrote it down.
Beneath that line, without being told, she added another—
“Tarka ≠ evidence.”



Evening was drawing near.
Justice Arya put one final question.
“Investigating officer, after all these tests, which person-specific proposition does the State maintain without qualification?”
Aditya looked at his page.
Then he closed it.
“My Lady, without qualification—none.”
A stir passed through the courtroom.
Devvrat Sinha looked at Aditya but did not stop him.
Justice Arya asked, “Clarify.”
Aditya said, “Every person-specific proposition carries its own foundation and its own limits.”
“Where there is an independent bridge to authorship, that bridge carries qualifications concerning source, time, access, and genealogy.”
“Where there is only device state, we do not name a particular person.”
“Where there is only temporal correspondence, we do not call it causation.”
“Where there is a hash, we do not call it truth.”
“Where there is a custody gap, we do not call it completeness.”
“Where there is non-apprehension, we do not call deletion proved.”
Justice Arya asked, “Then does the State still have a case?”
Devvrat Sinha rose.
“My Lady, the State’s case will remain to the extent the record can bear it.”
“No more, and no less.”
Vidyanand Mishra looked at Devvrat for a few moments.
Then he said, “I have no general objection to that sentence.”
The courtroom became quiet again.



Justice Arya began to write the order.
“Today the Court does not decide guilt or innocence.”
“The Court records only the classification of propositions, alternative explanations, independent foundations, and unresolved remainders.”
“Non-production of material outside the scope of the summons shall not be treated as non-compliance.”
“The forensic image shall remain limited to the specified state of the seized medium.”
“Hash correspondence shall be read as a limited indicator of integrity, not as independent proof of truth, completeness, authorship, or intention.”
“The seven-minute documentary gap in the custody register shall remain expressly recorded; it shall be treated neither as a proved fact of tampering nor as though it had disappeared.”
“Derived forms of the same original image shall not be treated as independent sources.”
“An alternative explanation may be separately classified as ‘possible,’ ‘record-supported,’ ‘inconsistent with an established fact,’ or ‘indeterminate’; but the final judicial meaning of this administrative classification shall remain subject to the order.”
Justice Arya stopped her pen.
“And one more thing.”
Everyone waited.
“Neither side shall make its language larger than the evidence.”
She signed the order.



After the Court rose, an unusual quiet lay in the corridor.
The large team of advocates was still present.

But today no one's numbers had become the subject of news.

Ananya went over to Vidyanand.

"One question?"

Vidyanand said, "Ask."

"The State's officer said there is 'no person-specific proposition without qualification.'"

"Is that a victory for the defence?"

Vidyanand smiled faintly.

"If you ask in terms of victory and defeat, the whole of today will be wasted."

"Then what should I write?"

"Write—the words grew smaller."

"And?"

"What remains must now endure a harder test."

Ananya asked, "Is the defence satisfied?"

"The defence's task is not to be satisfied."

"It is to keep the question alive."

He walked away.

Ananya wrote in her notebook—

"Not the language of retaliation."

"The language of method."



By evening, word reached the Ministry.

Shiveshwar Prasad read the summary list first, not the entire order.

The Secretary said, "The State narrowed some sentences."

The Minister asked, "Why?"

"The limits of the record."

"The defence placed some alternatives."

"How many are supported?"

"Some supported, some merely possible, some indeterminate."

The Minister asked, "What should be said politically?"

The Secretary was silent.

Shiveshwar Prasad answered his own question.

"Nothing."

"Preserve the Court's confidence."

"Let the method speak."

The Secretary said, "The file will be placed before the Ministry's legal cell tomorrow morning."

The Minister said, "With all the corrections."

"Yes."

"Failed lines of inquiry?"

"Those too."

"Supported alternatives of the defence?"

"Those too."

"Unresolved remainders?"

"Those too."

Shiveshwar Prasad said, "Then the file will be complete."



When Aditya returned to the office that night, the four pages once again lay on the desk.

Malini sat beside them.

Summons.

Image.

Hash.

Custody.

Malini said, "At dawn these four words felt like a weight."

Aditya asked, "And now?"

"Like limits."

"Do limits lessen the weight?"

Malini thought.

"Limits tell us where the weight truly lies."

Aditya said, "That is why tarka is needed."

Malini looked at the table.
 “The State narrowed four sentences.”
 “Two person-specific propositions had already been removed.”
 “One word—‘unbroken’—is gone.”
 “Some alternative explanations remain alive.”
 “Then where is the victory?”
 Aditya gathered the papers.
 “If we go looking for victory, tarka itself becomes a party.”
 Malini said, “Then what happened today?”
 Aditya answered—
 “Where we said too much, we narrowed it.”
 “Where the defence’s alternative had a foundation, we accepted it.”
 “Where there was only possibility, we called it possibility and left it there.”
 “Where the record endures, we kept it—with its limits.”
 Malini was silent for a few moments.
 Outside, night was falling.
 In the distance, the corridors of the building were emptying.
 Aditya tied the cord around the file.
 Malini asked, “Tomorrow the file goes to the Ministry?”
 “Yes.”
 “Will the legal strategy change?”
 “The record has not changed.”
 “The language has.”
 “The strategy will have to change with that language.”
 In the final margin of the page, Malini wrote—
 “No retaliation.”
 Aditya wrote beneath it—
 “Method victorious.”
 For a few moments, both of them looked at those two lines.
 There was no cry of victory.
 No confession.
 No conviction.
 Only the limits were clear.
 Only the next page belonged to the Ministry.

o86 The Thunderbolt of Tarka — Chapter 8

The first light of dawn had come to rest upon the high window of the Home Ministry's northern wing.

The summary file of the night-long arguments arrived from the court liaison branch in the hands of a secure courier.

Only one line was written outside—Updated Record after the Test of Tarka.

Before opening the envelope, Aditya Jha examined the signature register.

The time was recorded.

The sender was recorded.

The recipient was recorded.

The seal was intact.

He said, "First, the truth of arrival. After that, the meaning of what lies inside."

Malini Karna nodded.

She entered the receipt in the register.

The file contained not a copy of the court's order, but the certified summary of the previous proceedings, a revised proposition register, the defence's supported alternative explanations, custody corrections, and a list of investigative paths that had failed.

On a separate page, four words had been written—

Established.

Limited.

Undetermined.

Abandoned.

Malini asked, "Will the word 'abandoned' remain in the Ministry file?"

Aditya said, "It will."

"Why?"

"The history of a proposition on which the State itself has ceased to rely is also part of legal honesty."

"If we remove it, the file will look cleaner."

"Not cleaner. Incomplete."

Malini turned the page.

At the previous hearing, the State had reduced four overstatements.

Two person-specific propositions had been withdrawn.

The phrase "unbroken custody" had been qualified.

The tendency to treat multiple visual forms of a single source as independent support had been abandoned.

Aditya wrote in the margin of the page—

"After tarka, strategy is not merely the defence of what survives."

"Strategy is also knowing what we shall not defend."

Malini read it and remained silent.

Outside, Delhi's dawn was opening.

Inside the Ministry, it was not simply another day beginning; the burden of an old claim was growing lighter.



At nine, a restricted meeting convened in the legal room.

The Home Secretary, the Joint Secretary of the legal branch, a senior officer of the computational examination unit, Aditya, and Malini were present.

No political adviser.

No clipping from the news media.

At the centre of the table lay only the Tarka Resilience Register.

The Home Secretary looked at the first page.

"How is this register different from the living proposition register on non-apprehension?"

Aditya said, "That register told us what survived."

"This one will tell us whether what survived can withstand an opposing explanation."

The Joint Secretary asked, "Meaning a defence strategy?"

"No."

"A testing strategy."

"The difference?"

“A defence strategy saves its own proposition.”
 “A testing strategy lets a proposition fall if the record cannot bear its weight.”
 A brief silence spread through the room.
 The senior officer said, “Language like that will make the Ministry’s written position look weak.”
 Aditya looked at him.
 “Weakness and limitation are not the same thing.”
 “If the court sees the limits, will confidence not diminish?”
 “Confidence will diminish if the limits are concealed.”
 The Home Secretary said, “Then create categories.”
 Malini opened five columns on the display.
 First—the original direct material.
 Second—the inferable relation.
 Third—the strongest alternative explanation.
 Fourth—the record support for that alternative.
 Fifth—the State’s maximum lawful statement.
 The Joint Secretary asked, “A sixth?”
 Aditya said, “The boundary of abandonment.”
 Malini added a sixth column.
 “If the alternative explanation is supported up to this point, which proposition will the State abandon?”
 For a few moments, the senior officer kept looking at the register.
 “Does tarka mean helping the other side?”
 Aditya answered, “Tarka means testing one’s own conclusion.”
 “If a sound question from the other side helps our conclusion survive, the question is not our enemy.”
 The Home Secretary wrote at the top of the register—
 “Resilience cannot be established in the absence of opposition.”



The first test concerned the secure-access indicator.

The forensic image contained a trace of administrative access.
 Hash correspondence supported the integrity of the image in a limited sense.
 But the question of use by a particular person remained open.
 Malini filled the first column—“Device-level access indicator present.”
 The second—“Possibility of administrative access.”
 The third—“Shared access rights or previously stored credential markers.”
 She paused at the fourth column.
 Aditya asked, “Support for the alternative?”
 “Two witness accounts contain indications of shared access.”
 “Established?”
 “No.”
 “Unestablished?”
 “Not that either.”
 “Then?”
 “A supported possibility.”

Aditya said, “The State’s maximum statement?”

Malini wrote—“Device-level administrative access is indicated; the identity of the actor is not established by this alone.”

The Home Secretary asked, “Its effect on the State’s principal theory?”

Aditya said, “The bridge to a particular person must come from separate material—or it will not be built.”

“And if there is no separate material?”

“Then there will be no person-specific proposition.”

The Joint Secretary wrote—“First strategic change: the fact about the device shall remain separate from language attributing conduct to a person.”

The second test concerned the route through the payment gateway.

The record showed the direction of transactions.

There were certain account indicators.

But the chain of beneficiary control was incomplete.

The defence alternatives were commercial intermediation, automated settlement, and an external service provider.

Malini recorded separate support against each of the three alternatives.

One alternative was merely conceivable.

One had some support in the record.

One was inconsistent with the material currently available.

Aditya said, "Do not melt all three alternatives into the single word 'possible.'"

Malini corrected it.

"Record-dependent possibility is one thing; undifferentiated conjecture is another."

The Home Secretary said, "Second strategic change—the status of an alternative explanation shall be recorded, not merely its existence."



The third test came to rest upon the accounting workbook.

The old pages contained customer-identification details, tax-deduction-at-source entries, payment splits, and formulae for time intervals.

Some rows appeared to have been filled manually.

Others looked like automated exports.

The defence question was: "Why should it be assumed that one person controlled both kinds of rows?"

Malini began to answer, but Aditya raised a hand and stopped her.

"First, the basis of the question."

He looked at the paper.

The timestamps of the two rows had come from different systems.

One name recurred, but the direct access-rights register was incomplete.

Aditya said, "Tarka says: the recurrence of one name does not establish one actor."

The senior officer asked, "Then is the accounting workbook useless?"

"No."

"It shows structure."

"The limits of authorship are separate."

"Strategy?"

Malini wrote—"Present the structural relation; limit any claim of personal control to the extent supported by independent access material."

The Joint Secretary said, "This will make the submission shorter."

The Home Secretary answered, "Let it be shorter, but let it endure."

The fourth test concerned the deleted email material.

Here the problem was reversed.

Certain deletion indicators were independent.

But the deleted contents had not been fully recovered.

An officer said, "Deletion itself is indicative of guilt."

Aditya said at once, "No."

"Deletion, without actor, time, reason, and contents, is only an event."

"What if there was a retention-period rule?"

"Then routine deletion is possible."

"What if there is an independent indicator of manual deletion?"

"Then the question of deliberate action arises, but purpose remains a separate question."

Malini wrote in the fifth column—"Even if the event of deletion is established, a criminal purpose is not thereby established automatically."

The Home Secretary said, "Third strategic change—the truth of an event and the inference as to its purpose shall remain separate."



In the afternoon, Home Minister Shiveshwar Prasad entered the meeting.

He looked first not at the entire file but at the six-column register.

"Which is the largest column here?"

Malini said, "Alternative explanation."

The Minister asked, "A problem for the State?"

Aditya said, "If the alternative is record-dependent, it is not a problem; it is a limit to be acknowledged."

"And if it is only conjecture?"

"Then its status is different."

The Minister looked at the column headed 'Boundary of Abandonment.'

"Why is this necessary?"

The Joint Secretary said, "If a defence alternative receives sufficient support, the State should decide in advance which overstatement it will no longer defend."

Shiveshwar Prasad looked toward Aditya.

“The media will say the State is retreating.”

Aditya remained silent.

The Minister himself said, “Let them.”

No one in the room answered.

The Minister continued, “For political victory, I do not want more sentences in court.”

“Fewer sentences, stronger foundations.”

“And if not a single sentence survives?”

The Home Secretary said, “Then that too will be a result of the record.”

The Minister nodded.

“The prestige of the State does not depend on the number of accusations.”

“It depends on the courage to reduce its own error.”

Malini did not write down that sentence.

She merely straightened the frame of the register.

The Minister asked, “The next formal step?”

The Joint Secretary said, “We are preparing to send the Tarka Resilience Summary to Attorney General Devvrat Sinha and Solicitor General Mrinal Dhar.”

The Minister said, “Do not word it as though this were a new appointment.”

“They are already representing the State.”

“A supplementary strategic summary within the ongoing proceedings.”

The Joint Secretary wrote it down.

“And the abandoned propositions?”

“Do not hide them.”

“Send them along with it.”

The Minister rose.

As he left, he said only one sentence—

“If the court’s trust survives, the face of the State survives.”



After the meeting, Malini and Aditya went to the room of the computational examination unit.

An old source-genealogy map was still pinned to the wall there.

Four exports derived from the same original source were shown in four different colours.

Malini said, “This map has made one confusion clear.”

“What?”

“The appearances are different; the source is one.”

Aditya said, “Tarka cuts through this confusion first of all.”

He added the same original-source marker beside all four exports.

“Now these are not four supports.”

“They are four forms of one source.”

Malini looked at the second part.

There, a bank indicator, a service-provider response, and a local computational register came from three different sources.

“Here?”

“Greater independence, but test separately why their meanings correspond.”

“If three independent sources tell the same story, is it established?”

“No.”

“First test truthfulness, temporal correspondence, access, and alternative explanation.”

“Then multiplicity is only one criterion?”

“Yes.”

Malini wrote in the register—“Source independence $\neq$ establishment of the conclusion.”

Aditya did not smile.

He only said, “Correct.”

Meanwhile, the senior officer came in carrying a technical note.

“Within the seven-minute custody interval, we have found an indicator of automatic system-clock resynchronisation.”

Malini started.

“Then the interval disappears?”

Aditya said, “No.”

“A new explanation has appeared.”

“The interval remains a fact of the record.”

“Clock resynchronisation is one possible cause.”

“Established?”

The senior officer said, “The system log supports it, but confirmation of the device’s external time source is still pending.”

Aditya wrote—“Custody interval: undetermined; inference of tampering prohibited; clock resynchronisation a supported alternative.”

Malini said, “Meaning the strategy will change again.”

“Strategy follows the record.”

“The record does not follow strategy.”



The first rain of evening fell in the Ministry courtyard.

Outside the glass, the dust settled.

The smell of wet earth came all the way inside.

Aditya stood by the window for a few moments.

The soil of Delhi was not Garh En Arikel.

Yet one point in that scent carried him far back.

The first night of rain.

Wet earth along the edge of the courtyard.

Water falling from the eaves of the veranda.

The ground slick beneath his feet.

The elders in the village used to say: do not step quickly on wet earth; the feet will learn their own pace.

Aditya remembered the sentence.

Perhaps tarka was like that too.

It was not a way to run.

It was the discipline of knowing where the foot might slip.

From behind him Malini asked, “What are you thinking about?”

Aditya turned.

“Soil.”

“Garh En Arikel?”

“Yes.”

Malini looked outside for a few moments.

“The rain here is not like the rain there.”

“No.”

“And yet the scent?”

“A scent gives memory a road.”

Malini said, “And memory gives patience?”

Aditya said, “Sometimes.”

He returned to the table.

The rain remained outside.

Inside him, the soil of Garh En Arikel became a pace—neither hurried nor halted; only measured.



At the night meeting, they debated the language of the strategic summary.

One draft said—“The State’s case stands decisively corroborated.”

Aditya drew a red line through it.

The Joint Secretary asked, “Why?”

“Which conclusion is decisive?”

“Several propositions have survived.”

“Surviving propositions and a decisive case are not the same thing.”

A second draft came—“The principal alternatives of the defence have failed.”

Aditya stopped that too.

“All of them?”

“No, three.”

“Then what is the basis for the word ‘principal?’”

No one answered.

The word was removed.

The third draft—“The chain of custody is generally secure.”

Malini asked, “The seven-minute interval?”

“It is in the note.”

“Why not in the main sentence?”

Aditya said, “A limit that changes the character of a conclusion must not be hidden in a footnote.”

The sentence was changed—“There is one recorded time interval in the custody path; the available material does not establish tampering, and clock resynchronisation remains under examination as a supported alternative.”

The Home Secretary read it.

“Long.”

Aditya said, “But accurate.”

“The court will want a shorter sentence.”

“Then write a shorter truth, not a larger overstatement.”

Malini proposed a shorter form—“Seven-minute undetermined interval in the custody path; tampering not established.”

Everyone agreed.

In this way, the language of the summary diminished sentence by sentence.

The file did not grow thicker.

It grew thinner.

But beneath every surviving sentence its source was recorded.

Beside every inference, an alternative explanation.

Beside every limit, the State’s acknowledgment.

Beside every abandoned proposition, the reason.

Malini asked, “What shall we call this?”

Aditya said, “A tarka-tested strategic summary.”

The Joint Secretary wrote it down.



At ten that night, Shiveshwar Prasad came back into the room.

He read the final draft.

There was no sentence of victory on the first page.

On the second, categories of support.

On the third, alternative explanations.

On the fourth, abandoned propositions.

On the fifth, the next legal questions.

The Minister asked, “What do we need from the Attorney General on this?”

The Joint Secretary said, “Within the ongoing proceedings, they will realign the State’s language to these limits.”

“And the Solicitor General?”

“A concise summary of source sequence, alternative explanations, and the defence’s likely arguments will be kept ready.”

The Minister asked, “Meaning the next stage is advocacy?”

Aditya said, “No.”

“Before advocacy, a resilience test.”

“Why?”

“A proposition that cannot withstand the defence’s strongest argument should not be given a louder voice in court.”

For a few moments, the Minister looked at Aditya.

“Does the soil of your village still give you patience?”

The question was unexpected.

Aditya was silent for a moment.

“Yes.”

“How much?”

“Enough not to search for victory in haste.”

There was a light weariness on the Minister’s face.

He said, “Good.”

“No sentence of retaliation shall go out in the name of the State.”

“No public statement larger than the court’s order.”

“Where it is undetermined, say undetermined.”

“Where it is abandoned, say abandoned.”

“Where it is established, give the source with it.”

The Home Secretary wrote it down.

The Minister left.

The room fell quiet again.



The final task was only to prepare the dispatch.

Two identical copies were prepared for the offices of Devvrat Sinha and Mrinal Dhar.

Across the top was written—Supplementary Strategic Summary for the Ongoing Proceedings.

Malini asked, “Shall we send it today?”

The Joint Secretary looked at the clock.

“No. After legal authentication in the morning.”

Aditya said, “Good.”

“Words should not run at night.”

Malini smiled.

“The pace of the soil?”

“Perhaps.”

She read the final page.

There were five lines—

“The limits of direct material are clear.”

“The bridge of inference remains separate.”

“The status of alternative explanations is recorded.”

“Abandoned propositions are preserved.”

“Undetermined points shall not be concealed from the court.”

Malini asked, “Is the fifth line necessary?”

Aditya said, “More than all the rest.”

“Why?”

“Because changing strategy does not mean changing the truth.”

“Only the language around the truth changes.”

Outside, the rain had stopped.

The earth in the courtyard was wet.

The night light lay steady upon it.

Aditya went as far as the door, then turned once more to look at the file.

There was no victory of the State in that file.

Nor was there a defeat of the defence.

Some propositions had survived.

Some had been reduced.

Some had been abandoned.

Some remained undetermined.

And beside each, the reason had been written.

The soil of Garh En Arikel grew wet again in his memory.

The boy Aditya, placing his feet upon that soil, did not run.

He first understood the earth’s grip.

Now the officer Aditya was doing the same thing.

To carry the method into the next judicial watch, its grip first had to be tested.

In the morning, the file would go to Devvrat Sinha and Mrinal Dhar.

That would be the work of the next watch.

For now, inside the Ministry, there was only a changed strategy.

And at its root, an old patience—

The soil of Garh En Arikel.

o87 The Thunderbolt of Tarka — Chapter 9

At seven in the morning, the Home Ministry's special law room opened once again.

The supplementary strategic brief prepared during the night was sealed in two envelopes.

One was for Devvrat Sinha.

The other for Mrinal Dhar.

The same line was written on both—Limited Argument Summary for the Pending Proceedings.

Aditya Jha examined the seals.

Malini Karna opened the dispatch register.

The Home Secretary asked, "Has the language been checked again?"

Aditya said, "Three times."

"And the abandoned propositions?"

"Preserved in a separate list."

"The undetermined ones?"

"Marked as undetermined."

The Home Secretary nodded.

"Then send them."



A secure courier delivered the first envelope to the office of Attorney General Devvrat Sinha.

At that moment Devvrat was reading marginal notes on an earlier order.

An assistant placed the envelope on the desk.

"The Ministry's supplementary argument brief."

Devvrat looked at the clock.

"Has Mrinal Dhar's copy arrived?"

"Yes. Both were dispatched at the same time."

Devvrat examined the seal.

He signed the receipt register.

Then he opened the envelope.

There were five headings on the first page.

Source.

Proposition.

Strongest alternative explanation.

The State's answer.

Maximum valid statement.

At the first line, Devvrat stopped his assistant.

"This brief will not be used to decorate an argument."

The assistant asked, "Then for what?"

"Where the State has narrowed its language, we shall not widen it again."

"And where the alternative explanation is weak?"

"We shall first look at the record."

"Simply calling it weak is not an argument."

He opened the first section.

Secure-access indicator.

Primary fact—access from a defined device at a specified time.

The State's earlier interpretation—access by a particular person.

Revised interpretation—an independent bridge is required between device use and personal agency.

Alternative explanation—shared authorised access.

Support—partial.

Devvrat stopped his pen.

"The word 'partial' is not enough."

He said to the assistant, "Ask: what is the record-based foundation for shared access?"

"Is it only a possibility, or is there something in the access register?"

The assistant wrote down the question.

The second section concerned the payment gateway.

Primary fact—transaction indicators at three time-points.
 Alternative explanation—automatic adjustment by the service intermediary.
 The State’s answer—indications of human initiation at two time-points; the third remains undetermined.
 Devvrat said, “Do not bind the third to the first two.”
 “Three instances do not become one merely because there are three of them.”
 The assistant separated the third time-point.
 The third section concerned the computational worksheet.
 Its structure was clear.
 Control by any particular person was uncertain.
 The original copy was available.
 Authorship was undetermined.
 Devvrat drew a line across the page.
 “Here the State will place only the fact of structure.”
 “No inference of authorship.”
 The fourth section concerned a deletion indicator.
 The event was recorded.
 Agency was uncertain.
 Purpose was unproved.
 An automated process was possible in one source.
 Devvrat said quietly, “Keep this line the clearest of all.”
 “Deletion is an event; a culpable purpose is a separate proposition.”
 The fifth section concerned a seven-minute gap in the chain-of-custody register.
 The Ministry’s new note—clock resynchronisation possible, with partial record-based support.
 Devvrat leaned slightly forward from the back of his chair.
 “Possible’ is correct.”
 “But if the source for the clock resynchronisation is not independent, we shall call it only an alternative, not an answer.”
 The assistant wrote down a second question.



In Mrinal Dhar’s office, the second copy of the same brief was opened.
 Mrinal’s method was different.
 He did not first read the State’s answer.
 He read only the defence’s strongest alternative explanation.
 Then, on a blank sheet of paper, he wrote—“If this were true, what would one expect to find in the record?”
 The first question concerned shared authorised access.
 If the device had truly been subject to shared authorised access, one might expect an authorisation register, a user list, time limits, or at least confirmation by the custodian.
 Mrinal wrote—“Expected ≠ mandatory.”
 Then he added—“Non-apprehension does not establish negation.”
 The second question concerned automatic payment adjustment.
 If the third time-point arose from an automated process, the system rules or service records might shed some light on it.
 He wrote—“Ask about the limits of the search.”
 The third question concerned authorship.
 If the computational worksheet was a shared working file, signs of multiple users might be possible.
 He wrote—“Do not assert sole authorship.”
 The fourth question concerned deletion.
 If an automated process was possible, one might expect a time-history of the process configuration.
 He wrote—“The language of purpose must remain removed.”
 The fifth question concerned the custody gap.
 If clock resynchronisation had occurred, one might expect divergence between time sources.
 He wrote—“Examine source genealogy.”
 Only then did Mrinal read the Ministry’s answer.
 At three places his eyebrows lifted slightly.
 At two places he wrote yes.
 At one, a question mark.
 At one, “Narrow.”
 At one, “Abandon.”
 He called Devvrat over the secure telephone.

"I am sending five questions."
Devvrat said, "I have five as well."
"Do they match?"
"We shall see."

The two lists were compared.
Four questions were almost identical.
The fifth was different.

Devvrat's fifth question was—what is the record-based basis of the defence's alternative explanation?

Mrinal's fifth question was—what is the source independence of the State's own answer?

There was silence for a moment.

Devvrat said, "We need both."

Mrinal replied, "Then the submission will be useful."



At ten o'clock, five joint questions reached the Ministry.

Malini pinned them to the wall.

First—the actual record-based basis for shared access.

Second—the testing limits for an automated process at the payment gateway's third time-point.

Third—the State's maximum valid statement on authorship of the computational worksheet.

Fourth—whether all language concerning purpose in relation to the deletion indicator had been removed completely.

Fifth—whether support for clock resynchronisation came from an independent source or was merely a repetition of the same record.

Aditya began with the first question.

Malini opened the authorisation register.

"Two names are clear."

"The third access category is collective."

Aditya asked, "Which persons are included in that collective category?"

"There is no complete list."

"A statement from the custodian?"

"He says only that the category may have included more than one authorised user."

"Then shared access is not merely imagined."

"But the list of persons is not complete either."

Aditya wrote—"Supported possibility; does not exclude any particular person."

Malini nodded.

The second question was harder.

The copy of the system rules for the third payment point was incomplete.

An older version was available.

The version applicable on the relevant date was not.

Malini said, "The older rules permit automatic adjustment."

Aditya asked, "Is the behaviour on the relevant date established?"

"No."

"Then the State will not say that the automated explanation is false."

"What will it say?"

"It will say that the alternative is record-based and possible, but confirmation for the relevant date remains undetermined."

Malini wrote it down.

The third question was simple.

There was no independent signature, authentication, or sole-user marker establishing authorship of the computational worksheet.

Aditya said, "The proposition of authorship is abandoned."

Malini looked at him for a moment.

"Completely?"

"Yes."

"The structural facts remain?"

"Yes. Structure, timestamps, the existence of the contents—to the extent supported by direct sources."

"The person?"

"No."

A new line was added to the register of abandoned propositions.

On the fourth question, the language of purpose had already been removed.

Malini reread three documents.
 In one place an older phrase remained—“knowing deletion.”
 She marked it at once.
 Aditya said, “That cannot remain.”
 The old sentence was struck out.
 The new sentence read—“Deletion indicator present; agency and purpose remain under separate examination.”
 The fifth question was the most subtle.
 The basis for clock resynchronisation lay in two records.
 The first—the local device’s time schedule.
 The second—a service-provider export.
 Malini had earlier treated them as two independent sources.
 Aditya reopened the source genealogy.
 Both ultimately drew their indication from the same time server.
 Malini fell silent.
 “Then these are not two independent sources.”
 “Correct.”
 “They are two recordings.”
 “Correct.”
 “I had earlier written ‘independent support.’”
 Aditya looked at her.
 “What will you write now?”
 Malini answered herself—“Two recordings from one underlying time source.”
 “And the clock resynchronisation?”
 “A possible alternative. No independent second support.”
 Aditya did not smile.
 He said only, “That is why the question was sent.”



At noon, the revised answer was sent to both Devvrat and Mrinal.
 Devvrat read the first page.
 Then the second.
 On the third page he saw that the proposition of authorship had been abandoned.
 In pencil, he wrote in the margin—“Proper.”
 On the fourth page he saw that the language of knowing deletion had been removed.
 Again he wrote—“Proper.”
 On the fifth was written: two recordings from one underlying time source.
 He stopped his pencil.
 The assistant asked, “Has the State’s position become weaker?”
 Devvrat said, “One proposition has been narrowed.”
 “Is that weakness?”
 “Keeping an unsupported sentence before the Court would be the real weakness.”
 “Then?”
 “Now we know the limits of what remains.”
 Mrinal was connected by telephone.
 He said, “I propose a structure.”
 “Go on.”
 “The submission should have three parts.”
 “First—what the State treats as established fact.”
 “Second—what limited interpretation the State seeks.”
 “Third—on which points the State seeks the Court’s direction.”
 Devvrat said, “Add a fourth.”
 “What?”
 “What the State is not saying.”
 Mrinal was silent for a moment.
 “Agreed.”
 The assistant wrote down four headings.



At that same time, an internal defence meeting was under way in Vidyanand Mishra’s office.
 Four junior advocates were reading separate copies.

One junior said, "The State has narrowed two more propositions."
 Another said, "That can be turned into an admission."
 Vidyanand looked up.
 "An admission of what?"
 "That the earlier statement was excessive."
 "Narrowing an excessive statement and admitting guilt are not the same thing."
 The junior fell silent.
 A third advocate said, "We can say that the investigators are continually retreating."
 Vidyanand's voice was not harsh, but it was clear.
 "Not against the person."
 "Question the method."
 "Where they have narrowed their language, ask what legal consequence follows from that narrowing."
 "But do not turn it into a defect of character."
 A representative who had come on behalf of the offshore group's instructing side looked dissatisfied.
 He said, "Public perception matters too."
 Vidyanand replied, "Inside the Court, the record matters."
 "We will not distort a legal statement for the sake of perception outside."
 The representative said again, "If the State's three revisions are presented together, the effect will be considerable."
 "Effect of what?"
 "That the State's story is collapsing."
 Vidyanand turned a page.
 "One proposition of authorship has been abandoned."
 "One expression concerning purpose has been removed."
 "One claim of source independence has been narrowed."
 "The legal consequence of each of those three acts is different."
 "I will not turn them into a single slogan."
 Silence spread through the room.
 Within that silence, Vidyanand's private anxiety rose again.
 The office administrator had slid a small sheet of paper toward him.
 A summary of amounts due in the final week of the month.
 Office rent.
 The juniors' remuneration.
 Library contribution.
 Outstanding medical expenses at home.
 An old insurance-reimbursement claim had still not been settled in full.
 The final line of the sheet showed the available amount.
 The shortfall was plain.
 Vidyanand folded the paper and placed it to one side.
 The representative spoke again. "If an additional team is brought in, the group will bear the expense."
 Vidyanand looked at him.
 "Keep expense and argument separate."
 "I need more advocates only if there is more independent work to be done."
 "The same point spoken by five mouths does not become five arguments."
 One of the junior advocates smiled faintly.
 Vidyanand did not smile.
 He looked once more at the summary of dues.
 The private crisis was still there.
 But there was no need to let it enter the argument.
 He turned the sheet face down.
 "Now prepare the likely response to the State's four headings."
 "Do not raise needless disputes over established facts."
 "On limited interpretation, ask for the bridge."
 "On directions sought from the Court, ask about proportionality."
 "And request that the section 'what the State is not saying' be made an explicit part of the record."
 A junior asked, "Would that not make things easier for the State?"
 Vidyanand said, "It will make the limits clear."
 "Clarity of limits is not the defence's enemy."
 "Ambiguity is more dangerous."



In the afternoon, Devvrat and Mrinal sat down with the joint draft.

The first heading—Established Facts.

Under it went only points supported by their sources.

An access indicator from a defined device.

Three payment time-points, the process character of the third remaining undetermined.

The existence and structure of the computational worksheet.

The presence of a deletion indicator.

A seven-minute time gap in the chain-of-custody register.

The second heading—Limited Interpretation.

There, after every line, the basis was written down.

Which source.

Which relation.

Which alternative explanation.

Which limit.

The third heading—Direction Sought from the Court.

First request—that the limits on the use of sealed material remain clear.

Second—that hypotheses in the investigation diary not be given the place of independent evidence.

Third—permission for targeted answers to defined record-based questions.

The fourth heading—What the State Is Not Saying.

Devvrat wrote it himself—

“The State does not at present assert authorship of the computational worksheet by any particular person.”

“The State does not say that a culpable purpose is established by the deletion indicator.”

“The State does not treat two recordings from one underlying time source as independent second confirmation.”

“The State does not say that the mere possibility of shared access excludes any particular person.”

“The State does not treat unresolved points in the ongoing investigation as established facts.”

Mrinal read the page.

“The defence may be pleased with this section.”

Devvrat replied, “Let them be.”

“The State’s task is not to produce displeasure in the defence.”

“It is to give the Court useful limits.”

Mrinal nodded.

“We need one more line.”

“What?”

“Argument is not itself evidence.”

Devvrat smiled.

“Put it at the beginning, not the end.”

A sentence was added to the first paragraph of the first page—

“In this supplementary submission, argument is used to test propositions arising from the material available; argument is not being presented as independent evidence.”



At four o’clock, the defence draft was ready in Vidyanand’s office.

The heading had deliberately been kept short—Limited Response.

The first part raised no unnecessary dispute over the five established facts.

The second part questioned the bridge to the individual.

The third concerned source independence.

The fourth concerned adverse use of sealed material.

The fifth requested that unresolved points remain unresolved.

A junior advocate asked, “No separate attack on the State’s abandoned propositions?”

Vidyanand said, “They have been abandoned.”

“Why revive an abandoned sentence merely to argue with it?”

“But it can be shown that the earlier statement was excessive.”

“Where necessary, as history.”

“Not as present evidence.”

The office administrator again reminded him of the summary of dues.

Vidyanand said, “I will look at it this evening.”

“Pay the juniors first.”

The administrator asked, “And the office rent?”

“Ask for two days.”

“At home?”

Vidyanand was silent for a moment.

“I will deal with that.”

His eyes returned to the legal draft.

The private crisis had not gone away.

Professional dignity was not its solution.

But it was within his power not to let the crisis become a reason for a false argument.

On the final page he wrote—

“The defence requests that the limits of the State’s restricted assertions be fixed clearly on the record; however, acceptance of a limit should not be read either as an admission of guilt or as a declaration of innocence.”

The junior advocate read the sentence.

“This applies to both sides.”

Vidyanand said, “That is why it is useful.”



In the first part of the evening, the supplementary submission was filed on the record of the pending special-leave proceedings.

It was not a new Special Leave Petition.

It was a limited supplementary submission within proceedings already pending.

The receipt number was recorded.

The time was recorded.

A copy was supplied to the defence.

A little later, Vidyanand’s limited response too was entered in the receipt register.

The court officer compared the titles of the two documents.

One—the State’s Supplementary Limited Submission.

The other—the Defence’s Limited Response.

No order had yet been passed.

No conclusion had yet been recorded.

Only two limited legal positions had come onto the record.

Before leaving the office, Devvrat read the receipt notice.

He said to Mrinal, “Now the Court will ask questions.”

Mrinal replied, “And the questions will be larger than the sentences.”

“Which questions?”

“How far suspicion may go.”

“Where evidence begins.”

“And where the boundary of an allegation lies.”

Devvrat looked out of the window.

“Good.”

“Then no additional words are needed now.”



At nine that night, the receipt notice reached the Ministry.

Malini entered the time in the register.

“The submission is on the record.”

Aditya said, “That is all.”

“And the defence’s response as well.”

“Good.”

“You will not read it?”

“I will.”

“Now?”

“First complete this register.”

Malini smiled.

“The Thunderbolt of Tarka has still not gone up on the wall?”

Aditya looked toward the wall.

The seventh strip still lay on the desk.

“No.”

“Why?”

“Because the day argument begins to regard itself as evidence, the method will have lost.”

Malini closed the receipt register.

Silence spread through the room.
From somewhere far away came the faint sound of a vehicle.
Aditya opened the copy of the supplementary submission.
On the first page was Devvrat's sentence—argument is not independent evidence.
On the second, the abandoned propositions were clear.
On the third, the unresolved points.
On the fourth, the limited direction sought from the Court.
He closed the document.
“Is this enough?” Malini asked.
Aditya replied, “Enough for the Court's questions to begin.”
“To win?”
“That word is not necessary yet.”
“Then what?”
“To make the limits clear.”
Outside, the night deepened.
The record of the pending proceedings now contained both the State's limited submission and the defence's limited response.
No victory of either side was written there.
No defeat of either side.
Only proposition, basis, alternative, and limit.
In the next judicial watch, questions would arise among these four.
How far suspicion may go.
Where evidence begins.
And when an allegation crosses its boundary.

o88 The Thunderbolt of Tarka — Chapter 10

In the morning, two documents were first placed before the Bench.
The State's limited supplementary submission.
The defence's limited reply.
Both bore receipt numbers.
Both bore times.
In both, many sentences had deliberately been made shorter.
Justice Arya fixed her eyes on the first page.
"Both sides agree that tarka is not independent evidence?"
Devvrat Sinha rose.
"Yes, My Lady."
Vidyanand Mishra rose as well.
"The defence agrees too."
Justice Arya said, "Then today we shall examine not the sharpness of words, but their limits."
Mrinal Dhar opened his notebook.
Aditya Jha sat still in the row behind.
Before Malini Karna lay the Ministry's tarka-resilience register.
Justice Arya had four headings written down.
First—established fact.
Second—the suspicion arising from the fact.
Third—the bridge required for a person-specific allegation.
Fourth—the distance between evidentiary value and proved fact.
She set down her pen.
"No fact changes its own name by itself."
"An investigator may call it a suspicion."
"The prosecution may make it the basis of an allegation."
"The Court examines its evidentiary value."
"But the merger of these four stages into one another is not law."
Vidyanand bowed his head.
Devvrat said, "The State is prepared to proceed on this classification."
Justice Arya replied, "Not the State alone."
"The defence as well."
"Because merely offering an alternative does not erase the underlying fact."
Vidyanand said, "Agreed."
"And merely because the underlying fact survives does not prove a person-specific allegation."
Devvrat said, "Agreed."
For the first time, complete silence spread through the courtroom.
The silence was not convenient for either side.
It was the beginning of placing the sentences of both sides upon the same touchstone.



Malini was asked to read the first record.
She opened the secure-access indicator summary.
"Within the specified time window, a successful access from an authorised device is recorded."
Justice Arya asked, "Established fact?"
Malini answered, "The access entry, the time, the device identifier, and their correspondence with the central computational record."
"Suspicion?"
"That the access may be connected with the disputed activity."
"Allegation?"
Malini paused.
"Knowing access by a particular person, if a person-specific bridge is found."
"The person-specific bridge at present?"
"Incomplete."

Vidyanand rose.

"Is the possibility of shared access on the record?"

Malini said, "Yes."

"Limited access by an administrative assistant?"

"Yes."

"The possibility of automatic re-authentication?"

"For certain time windows, yes."

"Then does an access entry establish the person?"

"Not by itself."

Devvrat interjected, "But the access entry is not meaningless either."

Vidyanand replied, "The defence does not say it is meaningless."

Justice Arya looked toward both sides.

"Good. Then write the line."

Mrinal wrote.

"A secure-access indicator establishes a computational event; personal agency requires an independent bridge."

Justice Arya added, "And merely saying there was shared access does not erase the event."

Malini drew two arrows in her register.

One arrow toward the event.

The other toward the person.

She left a blank space between them.

Aditya looked at that blank space.

The work of tarka was not to fill that space with words.

It was to examine whether the bridge truly existed, or whether it was merely the desire of inference.



The second record concerned the payment gateway.

On specified dates, three payments had passed through a common intermediary identifier.

Devvrat said, "The State regards this correspondence as significant."

Justice Arya asked, "What does the word 'significant' mean?"

Devvrat thought for a moment.

"A correspondence worthy of investigation."

"Does it prove control?"

"No."

"Does it prove knowledge?"

"No."

"A suspicion of connection?"

"Yes."

"How far does the suspicion go?"

Devvrat answered, "As far as the structure of the transactions."

"As far as the person?"

"Only if bridges of beneficiary, instruction, time, and independent communication are joined."

Vidyanand lifted a sheet of paper.

"The intermediary service used the same identifier for several customers; that response is on the record."

Mrinal said, "It is."

"Then does the same identifier mean the same controller?"

"Not necessarily."

Justice Arya dictated—

"A suspicion of connection may arise from structure; an allegation of control cannot arise without a person-specific bridge."

Malini placed a small mark beside the line.

The second edge of tarka.

Similarity had given birth to suspicion.

The alternative structure had not erased it.

But it had shortened the road to allegation.



The third record concerned the computational ledger.

Certain coded entries corresponded with payment times.

The defence had already objected to person-specific authorship.

The State had already abandoned that proposition.

Justice Arya asked, "Will the abandoned sentence be raised again?"

Devvrat said, "No."

Vidyanand too said, "The defence will refer to it only as history, not as a present foundation."

"Good."

"Then the living question?"

Mrinal answered, "Whether the temporal correspondence in the computational ledger affects the interpretation of other records."

Justice Arya asked, "The limit of that effect?"

Mrinal said, "As far as the relation between events."

"Author?"

"Undetermined."

"Purpose?"

"Undetermined."

"Person?"

"Undetermined."

Vidyanand did not smile.

He merely wrote a note.

There was no need to kill an abandoned proposition again.

Method had already removed it from the list of living claims.

Justice Arya said, "This is important."

"A party's revision is not its defeat."

"Nor is it useful, after a revision, to attack the same old excess as though it were the present proposition."

"The Court decides upon living sentences."

Ananya Kashyap, in the press gallery behind, underlined that line.

The news colleague seated beside her whispered, "There is a headline here—the State retreats."

Ananya replied, "That is not the order."

"But the State narrowed its sentence."

"That is a fact."

"Defeat?"

"That is interpretation."

Ananya wrote: 'Court continues proposition-by-proposition scrutiny of State's limited submission.'

The news colleague wrinkled his nose.

Ananya folded the paper.

Truth once again looked smaller than sensation.

But it carried greater weight.



In the first session after noon, the witness portion began.

Justice Arya first made the boundary clear.

"A witness's emotional state may be a real human fact."

"But fear by itself does not identify the actor."

"Greed by itself does not provide the whole meaning of conduct."

"Guilt-feeling by itself is not a finding of legal guilt."

Vidyanand said, "The defence agrees."

Devvrat did as well.

Manoj Mahato was called first.

Today he looked steadier than before.

But the fingers of his hands were still caught in one another.

Justice Arya asked, "Is your fear less now?"

Manoj answered, "A little."

"Has your memory changed?"

"The fear has lessened, not the memory."

"Do you understand the difference between those two things?"

"I do now."

Devvrat asked, "The message after which you became afraid—you saw that message?"

"Yes."

"Do you remember the time?"

"Approximately."

"Does the recorded copy support the time?"

Malini looked at the papers.

“The time window is supported; as to the exact minute, the two records differ.”

Vidyanand asked, “Has the sender’s identity been verified?”

“No.”

“The name you joined to it in your mind—was that name written in the message?”

Manoj remained silent.

“No.”

“Then where did the name come from?”

Manoj said slowly, “I joined it because I was afraid.”

For a few moments, the courtroom was silent.

Vidyanand’s voice was not harsh.

“Was your fear false?”

Manoj answered at once, “No.”

“The defence does not say that either.”

Justice Arya looked at Manoj.

“Remember this line.”

“The reality of fear and the reliability of identification are separate questions.”

Manoj’s eyes grew moist.

He nodded.

“Before, I treated the two as the same thing.”

“And now?”

“Not now.”

Manoj stepped down.

His fear had not been diminished.

But the name formed out of fear had not become a name in the record.



Rajat was called.

His part concerned the expectation of gain.

In his first statement he had said that he had been promised an additional benefit.

Later, his memory of the wording of that promise had changed twice.

Devvrat asked, “You received an offer of gain?”

Rajat said, “Yes.”

“From whom?”

“From an intermediary.”

“Name?”

“I had heard a nickname.”

“Full identity?”

“No.”

“What was the offer about?”

“Additional money for bringing in more customers.”

Vidyanand asked, “You wanted the gain?”

Rajat lowered his eyes.

“Yes.”

“Did that desire affect your decisions?”

“It did.”

“Because of it, did you exaggerate anything in the beginning?”

Rajat drew a long breath.

“One thing.”

Devvrat rose.

“Which thing?”

“I had said that the person who made the offer was extremely close to the operator.”

“What was the basis for that conclusion?”

“He described himself as close.”

“Independent support?”

“None with me.”

Justice Arya asked, “Because of your greed, does the event of the offer become false?”

“No.”

“Because of your greed, does the recorded payment disappear?”

“No.”

"Because of your greed, are all your statements untrue?"
Rajat raised his head.
"No."
"Then what does method do?"
Rajat did not answer.
Justice Arya herself said, "What is supported by an external record is to rest upon that external record."
"What is only self-description remains within that limit."
"What was exaggerated is to be corrected."
Greed should be treated neither as complete unreliability nor as reliability.
A shadow of shame passed across Rajat's face.
He said, "I accept the correction."
Devvrat asked, "Even after your correction, does the underlying fact in the payment record remain?"
"Yes."
Vidyanand added, "But the assertion of closeness to the operator is not independently proved?"
"Yes."
Both sentences came from the same witness.
One survived.
One was limited.
The thunderbolt of tarka did not fall upon the witness.
It fell upon the sentence.



Sudip's turn came last.

He had long held himself responsible for having introduced an acquaintance.
Because of that guilt, his later statements had been extremely severe.
Justice Arya asked, "Tell us the fact of what you did."
Sudip said, "I gave two acquaintances the number of a business contact."
"Is that much established?"
"Yes."
"What happened after that—did you personally see it?"
"Not all of it."
"What happened in your mind?"
Sudip's throat grew heavy.
"I kept thinking that if I had not given the number, none of this would have happened."
Justice Arya said, "That is remorse."
"Yes."
"Legal proof of the causal chain?"
Sudip was silent.
"No."
Devvrat asked, "You had spoken of a meeting."
"Yes."
"Did the meeting take place?"
"It did."
"Date?"
"I remember approximately."
"Who was present?"
"Three people for certain; I am no longer certain about a fourth."
Vidyanand asked, "In your first statement, you had said four people for certain?"
"Yes."
"Why did that change?"
Sudip closed his eyes.
"Later I realised that I had joined the fourth person from a memory of seeing him on another day."
Justice Arya asked, "Did anyone tell you to make this correction?"
"No."
"Did the correction reduce your guilt?"
"No."
"Then why did you correct it?"
Sudip opened his eyes.
"Because I want to say what I saw, not what I added."
Silence spread through the courtroom again.

For the first time, Aditya moved his pen.
He wrote—‘Self-correction is not the end of credibility; sometimes it is its beginning.’
Devvrat asked Sudip, “Is there external support for the presence of the three people?”
Malini answered, “The entry register supports two; for the third there is a temporally proximate audio record, but voice identification is not independently complete.”
Justice Arya said, “Then the sentence again.”
Mrinal wrote.
“The existence of the meeting is supported by multiple sources; the complete attendance list remains undetermined.”
Vidyanand agreed.
Sudip was trembling as he stepped down from the witness seat.
His guilt did not become doctrine in court.
But his correction found a place in the record.



Outside, the witnesses met again in the same veranda.
Manoj stood near the door.
Rajat leaned against the wall.
Sudip sat on a bench.
For a while no one spoke.
Manoj said first, “I am still afraid.”
Rajat replied, “I am still ashamed of my greed.”
Sudip said, “I still feel remorse.”
Manoj asked, “Then why did all of us become less certain in court?”
Rajat looked at him.
“Perhaps because certainty in the mind and certainty in fact are not the same.”
Sudip said slowly, “And admitting one’s error does not make the event disappear.”
Manoj said, “No.”
“But the event does not by itself produce a name either.”
All three fell silent again.
Fear, greed, and guilt were all present in that silence.
But no person became guilty merely because of any one emotion.
Ananya stood at the far end of the veranda.
This time too she did not open her notebook.
Some sentences were too small for news.
Large in human terms.



In the second session after noon, the Court returned to the register of living propositions.
Justice Arya said, “Now I want the status of each line.”
Malini read the first line.
“During the disputed period, access occurred from an authorised device.”
“Status?”
Devvrat said, “Established computational fact.”
Vidyanand agreed.
“Person-specific agency?”
“Undetermined.”
Second line.
“A common intermediary identifier appears in the payment gateway.”
“Status?”
“Established documentary fact.”
“Control?”
“Ground for suspicion, not proved.”
“Person?”
“Not without an independent bridge.”
Third line.
“Certain time entries in the computational ledger correspond with payment times.”
“Status?”
“Temporal correspondence.”

“Author?”

“Undetermined.”

“Purpose?”

“Undetermined.”

Fourth line.

“Certain messages caused fear.”

Manoj’s face changed slightly.

Justice Arya did not look toward him.

“Status?”

Devvrat said, “The existence and receipt of the messages have external support to a certain extent.”

“Sender?”

“Undetermined.”

“Fear?”

“The witness’s experienced state.”

“Agency?”

“Not from fear.”

Fifth line.

“Rajat received an offer of gain.”

“Status?”

“Supported by witness testimony and a partial payment record.”

“Was the offeror close to the operator?”

“No independent support.”

Sixth line.

“The meeting described by Sudip took place.”

“Status?”

“The existence of the meeting is supported.”

“Complete attendance?”

“Undetermined.”

“Fourth person?”

“Not a living allegation.”

Justice Arya stopped her pen.

“No single word applies to all six of these lines.”

“Some are established facts.”

“Some are correspondences worthy of suspicion.”

“Some are incomplete person-specific bridges.”

“Some are abandoned allegations.”

“Some are undetermined points.”

“The word ‘evidence’ does not permit these different states to be painted in one colour.”

Mrinal kept writing.

So did Vidyanand’s junior advocate.

Aditya listened without writing.



Justice Arya raised another question.

“When does an allegation lawfully become person-specific?”

Devvrat said, “When a sufficient bridge is available between an established fact and the particular person.”

“The word ‘sufficient’ is again unclear.”

Mrinal answered, “A source-supported, temporally coherent bridge that survives testing of alternative explanations.”

Vidyanand said, “And one against which an opportunity of rebuttal is available.”

Justice Arya said, “And no adverse consequence may be drawn from a foundation kept invisible in the name of confidentiality or privilege.”

For a moment there was movement in the courtroom.

The direction of that sentence was clear.

The next legal question was moving toward the boundary of privilege.

But Justice Arya did not go there yet.

“Today, only the boundary.”

She said again—

“Suspicion may begin an investigation.”

“An allegation requires a person-specific foundation.”

“The evidentiary value of material is determined by source, authenticity, admissibility, independence, context, and rebuttal.”

“A proved fact is the result of judicial testing, not an adjective supplied by a party.”

Devvrat bowed his head.

Vidyanand did as well.

At the top of her register, Malini wrote four words.

Suspicion.

Allegation.

Evidentiary value.

Proved fact.

Aditya added a fifth word beside them.

Boundary.



When they reached the Ministry in the evening, Malini read all the lines again.

“I understood one thing,” she said.

Aditya asked, “What?”

“I used to think evidence was strong or weak.”

“And now?”

“Now I understand that first one must ask: evidence of which proposition?”

Aditya smiled.

“And?”

“The same material may be useful for one proposition and insufficient for another.”

“And?”

“A witness’s fear, greed, shame, guilt—these are all parts of that person’s humanity.”

“But?”

“But none of them creates agency.”

Aditya looked toward the strip of tarka on the wall.

Beneath it there were already four slips of paper.

Alternative explanation.

Person-specific bridge.

Inferential language.

Legal availability.

Malini added a fifth slip.

Proposition-specific evidentiary value.

Aditya wrote a sixth slip.

Emotion ≠ identification.

Malini said, “That sounds harsh.”

Aditya replied, “Not harsh.”

“Just.”

“It would be unjust to call Manoj’s fear false.”

“It would be unjust to destroy all of Rajat’s statements because of his greed.”

“It would also be unjust to turn Sudip’s guilt into proof of a crime.”

Malini straightened the slip.

“Then tarka does not make a human being smaller?”

“No.”

“It makes the claim in a sentence smaller when its foundation is smaller.”



At that time, a brief summary of the court proceedings reached the office of Home Minister Shiveshwar Prasad.

An aide said, “Two headlines are running in the media.”

“One says the State’s foundation has weakened.”

“The other says the defence witnesses have broken down.”

Shiveshwar Prasad turned the page.

“Both are exaggerations?”

“Yes.”

“Then the Ministry’s response?”

“It is ready.”

“Read it.”

The aide read—

“The State welcomes the Court’s questions and stands by its limited submission.”

Shiveshwar Prasad said, “That is enough.”

“On the witnesses?”

“No comment.”

“On the defence?”

“No comment.”

“Political response?”

“No.”

The aide asked, “The opposition is calling this a retreat by the State.”

Shiveshwar Prasad replied, “The Court’s confidence is greater than a political answer.”

“If a sentence has narrowed, that is visible in the record.”

“If it has survived, that too.”

“We are to enlarge neither.”

The aide folded the paper.

The Minister looked out of the window.

Evening was deepening.

There was light at some distance.

It was not the light of victory.

It was the light of visibility.



That night Ananya wrote the final paragraph of her news report.

“Today the Court neither accepted nor rejected either side’s entire narrative.”

“It asked, separately, for the status of each living proposition.”

“The witnesses’ fear, desire for gain, and guilt were heard as human states, but were not treated as independent bridges to person-specific agency.”

“Some of the State’s foundations survived as facts; some conclusions remained limited; some points remained undetermined.”

“Some of the defence’s alternative explanations were supported by the record; some remained only possibilities.”

She stopped her pen.

Her news colleague asked, “Headline?”

Ananya said—

“From Suspicion to Allegation—Court Asks the Limits of the Foundation.”

“Not much sensation in that.”

“Truth moves slowly.”

“The readers?”

“Those who read will understand the difference.”

She sent the final copy.



Even at ten that night, Aditya was still in the office.

Malini had already left.

The slips of tarka on the wall were still.

On the desk lay a copy of the State’s supplementary submission.

Beside it, the summary of the Court’s oral questions from that day.

Aditya read the first line again—

‘Tarka is not independent evidence.’

Then the day’s line—

‘A proved fact is not a party’s adjective.’

He drew a short line between the two sentences.

Above the line he wrote—

‘Boundary.’

At that moment the telephone rang.

It was Devvrat Sinha.

“Tomorrow the question will arise about the outer boundary of privilege.”

Aditya replied, “The record is ready.”

“Protected communications?”

“Where the claim exists, with its limits.”

“Independent external facts?”

“Separate.”

“Confidentiality?”

“Separate.”

“Exception?”

“Not without an independent foundation.”

Devvrat was silent for a few moments.

“Good.”

The call ended.

Aditya looked toward the door.

Outside was night.

Inside, seven strips.

Perception.

Inference.

Analogy.

Testimony.

Postulation.

Non-apprehension.

Tarka.

The strip of tarka now stood fully in place upon the wall.

But beneath it, the smallest word written there was once again the same—

Boundary.

In the next judicial session, the question would change.

Crossing the line between suspicion, allegation, and evidence, the argument would now ask—

How far may investigative necessity go,

and where does the threshold of protected communication begin?

o89 The Thunderbolt of Tarka — Chapter II

At daybreak, seven slender paper slips lay before Justice Arya in the High Court courtroom.

On the first was written—privileged content.

The second—external fact.

The third—independent source.

The fourth—path of origin.

The fifth—derivative investigative direction.

The sixth—independent reproduction.

The seventh—undetermined.

Aditya Jha sat beside Malini Karna.

Devvrat Sinha and Mrinal Dhar were at the front for the State.

Vidyanand Mishra stood for the defence.

The limited submissions from the previous hearing lay open before both sides.

Justice Arya said, “On the last day, I asked about the boundary between suspicion, allegation, and proof.”

“Today the question lies one step inside that boundary.”

“If privilege protects the content of a communication, which investigative direction is independent of that privileged content?”

The courtroom fell silent.

“And if an investigator first saw an indication in privileged material and later found an external fact—how is the path by which that external fact originated to be tested?”

Vidyanand inclined his head.

Devvrat uncapped his pen.

Justice Arya lifted the seventh slip.

“This is the word that interests me most—undetermined.”

“If the path of origin is not clear, the Court’s task is not to fill the gap by conjecture.”

“Nor is it the State’s task.”

“Nor the defence’s.”

A faint pressure rose inside Aditya.

He knew that the answer to this question would expose not only the defence’s claim but the investigative team’s own method.

Justice Arya said, “Tarka here is not an instrument for breaking down a privileged door.”

“It will ask whether the footprints visible outside the door were already outside, or whether they were sought only after someone had glimpsed what lay within.”

Malini wrote—

Path of origin ≠ truth of the fact.

Path of origin = testing the route by which the fact was reached.

Aditya looked at the line.

This time no answer came to him at once.

The truth was that the answer had to be found in the record.



Vidyanand took up the first disputed item.

“Entry seventeen in the State’s list—an accounting entry.”

Devvrat said, “Yes.”

“Amount, date, and time?”

“From an external accounting system.”

“The description line?”

Devvrat paused.

“One part of the description line indicates the nature of legal advice.”

“Where did that part come from?”

Mrinal Dhar said, “Not from the original accounting system. From an internal summary note.”

Vidyanand asked, “Whose note?”

“The party’s office.”

“Claim of privilege?”

"There is such a claim."

Justice Arya said, "Then divide the entry into two parts."

"Amount, date, time—if an independent external source is established, they have their own value."

"The nature of the legal advice—if it comes only from the privileged note, its use is a separate matter."

Vidyanand said, "The defence agrees to that division."

Devvrat said, "So does the State."

Justice Arya asked, "How did the State first reach this external accounting entry?"

Mrinal opened the file.

"Summons number eight."

"Date?"

"Three days before the privilege claim was raised."

"Subject of the summons?"

"Transactions through the specified payment gateway."

Vidyanand looked at the page.

"Then the origin of this external entry does not depend on privileged material?"

Mrinal said, "Not according to this record."

"The defence does not dispute that one point."

A slight stir moved through the courtroom.

Justice Arya said, "That is the first point of clarity."

"A claim of privilege does not make an external entry disappear."

"But an external entry cannot draw the meaning of a privileged note into itself."

Malini wrote—

External fact survives.

Privileged qualifier separate.

Origin independent.

Conclusion limited.



The second item was a meeting schedule.

In the defence list it had been described as privileged.

In the State's list it was an external fact.

Justice Arya asked, "What does this schedule contain?"

Vidyanand answered, "The date of the meeting, its duration, two names, and a subject indicator."

"One claim over all of it?"

"Previously, yes."

"Now?"

Vidyanand was silent for a few moments.

"The defence now says this: no broad privilege claim is necessary over the date and duration; the claim remains over the subject indicator."

Mrinal Dhar asked, "The two names?"

Vidyanand said, "The value of the names depends on context; but the names alone do not reveal the content."

Justice Arya said, "Then the claim will not proceed on an 'all or nothing' basis."

"A mixed record will require segment-specific examination."

Devvrat placed a page before the Court.

"The State also has the building-entry record."

Vidyanand immediately asked, "From what source was that record obtained?"

"The building's independent security system."

"Was it ever requested only after the privileged list had been seen?"

Mrinal checked the timeline.

"The request was sent earlier; the response arrived later."

"Reason for the request?"

"The building had been named in an earlier witness statement."

Vidyanand asked for the page containing the witness statement.

The page was handed over.

He read it.

"This witness statement itself is not privileged."

"No."

Vidyanand said, "Then the origin of the entry record appears independent."

Justice Arya added, "But the subject of the meeting is not established by this."

Devvrat said, "The State agrees to that limitation."

Malini wrote again—
Presence ≠ content.
Time ≠ purpose.
Independent source ≠ right to privileged meaning.
The pressure inside Aditya eased a little.
But the third item was not so simple.



The third item was a computational line of inquiry.

That line had later yielded records from three external servers.

The State described all three as independent material.

The defence asked: how had the State first learned the names of those servers?

Justice Arya looked directly at Aditya.

“Investigating officer.”

Aditya stood.

“Yes, My Lady.”

“Where is the first mention of these three server names?”

Aditya opened the provenance register before him.

Against the first server there was a clear entry.

“Witness statement, dated the fourteenth.”

“Before the privileged material was seen?”

“Yes.”

“The second?”

“A sub-address in the payment gateway’s public response.”

“Date?”

“The sixteenth.”

“Privileged material?”

“Before the claim was raised.”

“The third?”

Aditya’s finger stopped on the line.

In the provenance register, two possible starting points were recorded against the third name.

One—an analyst’s working paper.

The other—a prior sighting of an indicator concealed within a privilege-claim list.

The silence in the courtroom deepened.

Vidyanand asked, “The first certain source?”

Aditya answered, “Not certain.”

“Can the State say that the search for the third server was entirely independent?”

“Not at present.”

Devvrat looked at Aditya but did not intervene.

Justice Arya asked, “Could the server record itself be genuine?”

“Yes.”

“But the path of origin?”

“Unclear.”

“Then what does the State propose?”

Aditya said, “That line should be held in abeyance for any adverse conclusion.”

Vidyanand’s gaze sharpened.

“Merely held in abeyance?”

Aditya said, “If an independent reproduction is found—a source that does not depend on the privileged indication—we will place it before the Court again.”

“And if none is found?”

“Then the State will not rely on that line.”

The sound of paper moved through the room.

Justice Arya wrote.

“This is the real use of tarka.”

“The existence of a fact and the lawful route by which one reaches that fact are different questions.”

“An unclear route does not make a fact in the world false.”

“But neither does a right of judicial use arise automatically.”

Malini wrote—

Existence ≠ lawful route of use.

Unclear origin → suspension.

Independent reproduction → renewed examination.

A light sweat had formed in Aditya's palm.

He did not change his answer.

In that moment he understood clearly that method sometimes demands the courage to set aside even one's favoured material.



During the recess, there was no note of victory in the State's room.

Devvrat Sinha placed the provenance register before them.

"The third server line is now separate."

Mrinal Dhar said, "The two subsidiary lines connected to it must also be tested."

Malini immediately took out two pages.

One subsidiary line led to a payment message.

The other to an external storage service.

Aditya asked, "The first origin of each?"

Malini looked at the first page.

"The payment message can also be reached through an independent witness statement concerning the first server."

"Can be reached—or was in fact reached?"

Malini paused.

"At present I can say this: an alternative independent route exists in the record, but the register does not clearly show which route the investigative team actually took first."

Devvrat said, "Then this too is suspended?"

Aditya answered, "Where the origin is unclear, yes—until the reproduction is clear."

Mrinal Dhar lifted the second page.

"The storage service?"

Malini said, "The name of this service appears on a public indicator page that the investigative team preserved five days before it saw the privileged list."

"Hash?"

"It matches the preserved copy."

Aditya said, "A hash shows only that the copies correspond."

Malini immediately said, "Not truth or completeness."

Aditya nodded.

"Origin?"

"Clearly independent."

Devvrat wrote—"Survives."

Aditya said, "Add one word—limited."

Devvrat smiled.

"Survives, limited."

Malini circled the two words.

She was beginning to understand that the strength of an investigation lies not in accumulation but in classification.

"And if we had made this provenance register earlier?"

Aditya answered, "Then today would have taken less time."

"Is that my error?"

"It is a place where the method can improve."

"Are the two different?"

"A person may accept fault and stop."

"A method accepts correction and moves forward."

Malini wrote a new heading—

Provenance Register.

Beneath it, five columns—

First indication.

First independent source.

Temporal relation to privileged material.

Actual investigative path.

Independent reproduction.

Mrinal Dhar said, "This should be mandatory for all future technical lines."

Aditya answered, "Do not write 'mandatory.'"

"Why?"

"The legal language will depend on what the Court directs."

“And our internal method?”
“There write—standard.”
Malini wrote—“Internal standard.”



At the same time, pruning was under way in the defence room as well.
Before Vidyanand Mishra lay thirty-seven entries in the privilege register.
The junior advocate said, “Shall we maintain the full claim over all of them?”
Vidyanand continued reading the lines one by one.
“No.”
The junior was startled.
“Why?”
“Because seven of the thirty-seven entries are merely accounting information.”
“But they were created in the context of legal services.”
“That alone is not enough.”
“The ten entries?”
“Schedules and attendance.”
“Claim?”
“Over the subject indicator, if it reveals the substance of a communication; not over the bare time.”
The junior asked, “That will enlarge the State’s external facts.”
Vidyanand said, “Calling what is external privileged does not strengthen privilege.”
“And the client?”
“We protect the client’s right; we do not inflate the claim.”
The junior fell silent.
Vidyanand examined the third group.
“These five mixed notes.”
“Business instructions and legal advice on the same page.”
“Then the whole page?”
“No.”
“Segment-specific claim.”
Lines of concern appeared on the junior’s forehead.
“The Court will see parts of the material that way.”
“Where it has a lawful right to see, we cannot prevent it.”
“But the privileged portion?”
“Its boundary must be clear.”
Vidyanand wrote on a slip—
Broad claim = broad distrust.
Precise claim = credible boundary.
The junior asked, “Will you say that sentence in Court?”
Vidyanand answered, “No.”
It was a small correction for himself, not for display.
For a moment, his eyes fell upon the old household-expense list kept on the writing stand.
The private crisis still remained.
So did the client’s expectations.
But he was not prepared, under that pressure, to turn privilege into an all-consuming cover.
He remembered Shailaja’s last sentence—test your own sentence too.
He struck out seven claims.
He narrowed nine.
For the remainder, he clarified the line stating the basis.
The junior asked, “Is this courage or risk?”
Vidyanand answered, “Sometimes they are the same thing.”



At the afternoon hearing, Justice Arya examined the revised registers of both sides.
“The State has suspended three lines?”
Devvrat said, “Yes.”
“The defence has abandoned seven claims and narrowed nine?”
Vidyanand said, “Yes.”
Justice Arya said, “These numbers are not a result.”

"They show only that both sides have reduced the breadth of their initial positions."

"Now the question is the basis of the claims that remain."

She lifted one mixed note.

"On this page there is a line concerning business pricing and a line assessing legal risk."

Vidyanand said, "The defence claims privilege only over the latter portion."

Devvrat asked, "May the State use the first portion?"

"If it is independently relevant and lawfully obtained."

"The time at which the second portion existed?"

Vidyanand said, "The time may be stated in the register; not the content."

Justice Arya said, "A register of this kind will be useful for testing sufficiency."

"The ultimate question of the burden of establishing privilege is not for decision yet; classification comes first."

Mrinal Dhar said, "The State asks that the register also identify the custodian and the functional nature of the document."

Vidyanand answered, "Agreed, where that does not disclose the content."

Justice Arya wrote—

Time.

Source/custodian.

Functional category.

Basis of claim.

Not content.

Malini copied the lines down.

Justice Arya said, "A privilege register is not itself proof of truth."

"But without adequate classification the Court cannot test the boundary."

"Sparse detail does not mean crime."

"Nor does a demand for excessive detail mean that protection may be pierced."

"The word balance is not enough; there must be process."

The line lodged in Aditya's mind—

Not balance, but process.



The next question concerned a derivative investigative direction.

Justice Arya said, "Suppose an investigator sees an indication in privileged material."

"That indication leads him to an external repository."

"The material in the repository is itself unprivileged."

"Does its merely being external automatically make its use lawful?"

Devvrat said, "No; the question of the path of origin remains."

Vidyanand added, "And the defence must have an opportunity to show dependence."

Justice Arya asked, "The State's cure?"

Mrinal Dhar said, "An independent source or an independent reproduction."

"Only a possible independent source?"

"Not sufficient."

"Merely saying, 'We would have reached it anyway?'"

Devvrat said, "Not sufficient."

"Then?"

"A recorded route."

Justice Arya looked at Aditya.

"Investigating officer, can independent reproduction be shown for one of your three suspended lines?"

Aditya said, "For one, yes."

"Tell me."

"The name of the external storage service appears on a public indicator page preserved in a copy five days before the privilege claim over the material was raised."

"The origin of that page?"

"Open-web indicator investigation; timestamp record and copy hash preserved."

"What does the hash establish?"

"Only the identity of the preserved copy."

"The truth of the page?"

"No."

"But the service name was seen there?"

"That text appears in the copy, My Lady."

"The next step?"

“A summons concerning that name was later issued.”

“Before or after the privileged material was seen?”

“The summons was issued later, but the independent discovery of the name had been recorded earlier.”

Vidyanand asked, “Was the actual decision to issue the summons made after the privileged indication was seen?”

Aditya paused.

“Yes.”

The courtroom was silent again.

Vidyanand said, “Then is the independent availability of the name enough?”

Aditya answered, “Not for this question.”

“Why?”

“Because the name was available earlier, but the privileged indication may have influenced the actual reason for taking the operative step.”

Justice Arya asked, “Then is the independent reproduction complete?”

“No.”

Devvrat closed the page.

“The State will continue to hold this line in abeyance.”

Vidyanand looked at Aditya.

This time his gaze was sharp, but without mockery.

Justice Arya said, “That concession is important.”

“A fact being available earlier and the actual investigative impetus are not the same thing.”

Malini wrote—

Prior availability ≠ actual independent origin.

Possible route ≠ route actually taken.

Reproduction = recorded reconstruction, not imagination.

Pressure rose again inside Aditya.

But this time the pressure felt less like fear than purification.



For the third suspended line, the defence itself brought forward a fact.

Vidyanand said, “In the State’s provenance register, the beginning of one email group is unclear.”

“The defence has a letter from an external custodian showing that the group address had already appeared in an old public registration.”

Devvrat asked, “Source of the letter?”

“A third-party custodian.”

“Was it ever given to the State?”

“No.”

“Today for the first time?”

“Yes.”

Justice Arya said, “Then this is a possible independent source supplied by the defence.”

“Does that make the State’s actual origin clear?”

Vidyanand said, “No.”

“Then?”

“It shows only that an independent route was in fact available; whether the State actually took it is separate.”

Devvrat said, “The State will seek verification of this material.”

“Properly so.”

Justice Arya added, “A fact supplied by the defence does not automatically cure the State’s provenance.”

“But it makes the possibility of independent reproduction concrete.”

“We will look again after verification.”

Aditya made a note.

In that moment, material from the opposing side was becoming a possible lawful path for the investigation.

He liked this aspect of tarka.

An adversary is not always merely an obstruction.

When the right question is asked, the adversary reveals a defect in method—and sometimes a real path as well.



In the final stage of the hearing, Justice Arya read seven questions in the nature of directions.

“One—privileged content and external fact shall not be merged into the same sentence.”

“Two—in a mixed record, both the claim and the use shall be segment-specific.”

“Three—for a claim of independent source, the mere existence of the source is not enough; the actual path of origin must be recorded.”

“Four—where provenance is unclear, adverse use shall be suspended; independent reproduction may be demonstrated.”

“Five—‘we could have reached it’ is not enough; show ‘by what recorded route did we reach it.’”

“Six—the privilege register shall provide sufficient classification, but shall not become a means of disclosing privileged content.”

“Seven—a claim of privilege is not itself an indicator of crime; the existence of an independent external fact does not itself create a right to pierce privileged content.”

Both sides continued writing.

Justice Arya said, “This is not a final decision.”

“It is the working boundary for the next examination.”

Vidyanand asked, “The sealed material?”

“The next day.”

Devvrat asked, “The investigation diary?”

“With it.”

Justice Arya said, “Because some gaps in the provenance path may be recorded there.”

“But it is already clear that an investigative direction written in a diary is not itself evidence.”

Malini wrote—

Diary = aid to direction/time/provenance.

Diary ≠ truth by itself.

Sealed status ≠ truth.

Confidentiality ≠ adverse conclusion.

She understood that the next question would no longer be confidentiality alone, but the limited use of confidential material in testing the path of origin.



Outside in the corridor, the media crowd waited.

As soon as Ananya Kashyap came out, the questions began—

“Has privilege been broken?”

“No.”

“Has the investigation been stopped?”

“No.”

“Are three of the State’s lines tainted?”

Ananya said, “The Court did not use the word ‘tainted.’”

“Then?”

“Some provenance paths are unclear; adverse use has been suspended.”

“Is that a defeat for the State?”

“No.”

“A victory for the defence?”

“No.”

“Then what will the reader understand?”

Ananya opened her notebook.

“That the truth of a source and the lawful route by which one reaches that source are two different questions.”

A reporter said, “That will not make a headline.”

Ananya answered, “Then shorten it—‘Court asks for provenance path.’”

“And privilege?”

“‘Privileged silence is not crime; external facts do not disappear either.’”

She sent her copy.

Too little for sensation.

Enough for truth.



That night, sleep came late to Aditya again.

The light in the room was off.

Outside the window, a grey moon hung in the sky.

All day the words “path of origin” had kept circling inside him.

For a moment, the darkness of the city receded.

In memory, the Ganges opened before him.

It was night.
The cool surface of the sand.
Across the water, the broken line of the moon stretched into the distance.
Two trails of footprints lay along the bank.
One clear.
The other half-erased by the water.
He remembered an evening from his student days.
Gangesha Upadhyaya's text had not been in his hand; there had been only the sense of a sutra in his teacher's voice

"It is not enough to name an opposing possibility; look at its path."
At the time, the sentence had been a philosophical exercise.
Today it stood before him as judicial discipline.
In memory, Aditya looked toward the water of the Ganges.
One trail of footprints began at the bank.
The other appeared midway.
If the beginning cannot be seen, a traveller's story can be made merely by looking at the direction.
But a story is not proof.
The path of origin seeks that beginning.
Where the beginning lies behind a privileged door, the investigator will not peer inside and invent a story.
He will search outside again.
If an independent path reaches the same fact, he will record that path.
If it does not, he will abandon adverse use of the fact.
There is no defeat in that abandonment.
There is discipline in it.
The water of the Ganges kept flowing softly in memory.
Suddenly he understood—the thunderbolt of tarka is not a thunderbolt for breaking doors.
It strikes at false bridges.
A bridge standing on an independent foundation survives the blow.
One hanging only from the rope of conjecture breaks and falls.
And where the path is privileged, the work of the thunderbolt is to stop.
Aditya rose and sat at the writing table.
On a sheet of paper he wrote five lines—
Privileged content—inside.
External fact—outside.
Path of origin—the question between the two.
Independent reproduction—not conjecture, but a recorded route.
Undetermined—an honest answer.
He looked at the fifth line for a long time.
Undetermined.
Once the word had carried discomfort.
Today there was patience in it.
Again came the memory of Gangesha Upadhyaya—less hunger for an answer, more purity of relation.
Aditya did not fold the paper.
He left it open.
Beside it on the writing table lay the list of sealed material.
Beneath that, the timeline from the investigation diary.
In the next judicial hour, the question would change again.
Now it would be asked—
how far confidential material may assist in understanding the path of origin,
without granting it a privilege of truth,
without extinguishing the defence's opportunity to answer,
and without turning the investigation diary into evidence.
The Ganges kept flowing in memory.
The fear inside Aditya had not vanished completely.
But its form had changed.
Now it was not fear of the result, but fear of failing the method.
And with that fear there was patience too—
if the path is not clear, call it unclear.
if there is a boundary, call it a boundary.
if an external fact is independent, show its source.

if something is privileged, do not invent a story inside it.
That night the thunderbolt of tarka broke no door.
It merely removed a false bridge between two banks.
The sealed envelope before him was still closed.
And the judicial question waited outside it.

090 The Thunderbolt of Tarka — Chapter 12

That morning at the High Court, the air still held the dampness left by rain.

The corridor shone like washed stone.

Inside the courtroom, three sealed envelopes lay to the left of the Bench.

Beside them were two thick volumes of the investigation diary.

Malini Karna was not in the front row; she sat in the row behind Aditya Jha.

In her hand was yesterday's source-path register.

But today she had added a new sheet on top of it—

"Limits of Visual Material."

Justice Arya took her seat.

The murmur in the courtroom ceased at once.

She looked first not at the sealed envelopes, but at the parties.

"Yesterday, I asked about the path of origin."

She said, "Today I shall ask about the path of use."

Senior counsel for the defence rose.

Counsel for the State rose as well.

Justice Arya motioned for both to sit.

"Listen to the question first."

The courtroom fell silent again.

"If sealed material reaches the Court's eyes, does that increase its truth?"

The State did not answer at once.

"No, My Lady," came the answer at last.

"If a direction is written in the investigation diary, does that direction become evidence?"

"No."

"Does confidentiality make anyone's statement more credible?"

"No."

"Then today I want four things kept separate—source, path of origin, proposed use, and opportunity to answer."

Malini drew four columns on her sheet.

Then she added a fifth—

"What still remains unproved."



The State's first application concerned sealed envelope "A."

The envelope contained the identity of a witness and the witness's detailed statement.

The State said that disclosure of the identity could endanger the witness's safety.

The defence said that if an adverse conclusion against any person was to be drawn from the statement, an opportunity to answer was necessary.

Justice Arya asked, "For what purpose does the State seek to use this material?"

Counsel for the State gave three answers—

"To understand the direction of the investigation, to understand the chronology, and to compare it with independent records."

"To establish the guilt of a particular person?"

"Not at this stage."

"Then that sentence will remain explicit in the order."

Defence counsel said, "But the word 'compare' is dangerous. How are we to answer a comparison with something we are not permitted to see at all?"

Justice Arya did not interrupt him.

"A fair question."

She turned to the State.

"The identity of the source may remain concealed. But can a source-neutral summary of the facts necessary for comparison be given?"

The State asked for time.

Justice Arya said, "I do not want time. I want a structure."

Malini wrote down the sentence.

The State then read a four-point summary—date, time window, type of conduct, and category of the related external record.

No person's name.

No words from any conversation.

No indicator from which the witness's identity could readily be inferred.

The defence asked for a fifth point—the general category of the place.

At first the State hesitated.

Justice Arya asked, "Without it, is an answer possible?"

The defence said, "Only incompletely."

The State finally agreed not to name the city, and to say only "commercial premises."

Justice Arya dictated—

"Confidentiality shall not erase the opportunity to answer; the opportunity to answer shall not require unnecessary disclosure of the source."

In her fifth column Malini wrote—

"Witness's identity known to the Court, undisclosed to the defence. Truth of the statement still subject to independent testing."



The second envelope, "B," contained selected portions of a computational export.

Malini had seen this export before.

Seven lines in it had been marked in red.

Until yesterday, those seven lines had seemed to her exceptionally important.

Today Justice Arya's first question was—

"From what part of the original image did these seven lines come?"

The State gave a page number.

"What search term led you to that page?"

The State answered.

"Was that search term fixed beforehand, or was it formulated after the sealed statement was read?"

Silence spread through the courtroom.

Aditya turned through his records.

So did Malini.

The first written mention of the search term was in the investigation diary.

The time—6:18 in the evening.

The time of the sealed witness's initial statement—6:12 in the evening.

A gap of six minutes.

Defence counsel said at once, "Then the search term arose from the protected indication."

Aditya stood.

"Possible. Not established."

"Six minutes later?"

"The chronology indicates; it does not prove origin."

Justice Arya asked, "An independent prior source?"

Aditya produced a handwritten working sheet.

It contained half of the same search term, but no time was recorded on it.

The defence said, "Without a time, this is not a prior source."

Aditya replied, "I agree on that point."

The State's junior counsel looked at him in surprise.

Aditya said again, "This does not establish independent prior origin."

Justice Arya asked, "Then the seven lines?"

Aditya answered, "Those lines exist in the original image. Their existence has been independently verified. But the search path by which they were reached has not yet been shown to be independent of the protected indication."

"Adverse use?"

"At this stage, it can be withheld."

Malini stopped her pen.

The brilliance of those seven lines did not suddenly fade.

But their judicial weight changed.

For the first time, she understood clearly—

A visible object and its lawful use are not the same thing.



Then the investigation diary was opened.

It contained day-by-day directions, names, suspicions, failed searches, renewed searches, and officers' comments.

The defence said that the State treated the diary as evidence when convenient and as a confidential paper when convenient.

The State objected.

Justice Arya said, "Objection recorded. But the question is useful."

She did not lift the diary.

"What is the diary a record of?"

Aditya answered, "The continuing direction of the investigation and the working memory of the officer."

"The event itself?"

"No."

"A verified statement of a witness?"

"No, unless separately recorded in accordance with law."

"An officer's inference?"

"In several places, yes."

Justice Arya asked, "Then if the diary says 'possibly on Raghav's instructions'?"

Without hesitation Aditya said, "That is the officer's contemporaneous interpretation, not proof of Raghav's instruction."

"And if an independent payment record is found the next day?"

"The payment record will have value according to its own source and meaning. The diary will not become the original source of its truth."

The defence asked, "Then for what purpose is the diary?"

Aditya said, "For chronology, investigative path, steps taken and not taken, failed directions, and testing the path of origin."

"To prove guilt?"

"Not in place of independent evidence."

Justice Arya said, "Underline that sentence."

Malini drew a line beneath it.

The diary now seemed to her not less powerful, but more clearly defined.

It was not a throne of proof.

It was the footprint of an investigation.

From a footprint, one may understand the direction of a traveller.

Not the traveller's mind.



The next turn in the hearing concerned envelope "C."

It contained the name of a technical consultant and an analysis relating to network configuration.

The State sought to keep the consultant's identity confidential.

The defence said, "This is not a witness but a person being used like an expert. How can we answer without knowing the person's qualifications, method, and basis?"

Justice Arya asked, "Does the State seek any adverse conclusion on the basis of this analysis?"

The State said, "One limited conclusion—that two network addresses may form part of the same structural cluster."

"May?"

"Yes."

"The same operator?"

"Not proved."

"The same person?"

"No."

The defence said, "Then show us the method."

The State proposed to disclose a summary of the method without identifying the source—name-resolution history, certificate timing, public network components, and known shared infrastructure.

Malini was startled.

Two items on that list were things she herself had earlier written down as "independent indicators."

Justice Arya asked, "How many of these four came from the same underlying public export?"

The State's technical officer answered, "Two."

"Then two indicators, or one?"

He hesitated.

Malini wrote on her sheet—

“Two visible items; one source lineage.”

Justice Arya said, “Multiplicity does not become independence merely by being counted twice.”

Aditya inclined his head slightly.

The defence asked, “Then the cluster relationship?”

The State said, “A limited indication of structural similarity. Not unity of operator.”

Justice Arya dictated into the order note—

“Confidential expertise does not increase evidentiary weight; the method and its basis remain subject to testing.”

Here Malini learned a second lesson.

An identity may be concealed.

A method cannot be wholly concealed and still be given adverse weight.



During the midday recess, Malini stood by a corridor window.

Outside, the peepal tree was wet.

She looked again at the five columns in her register.

There had been a time when facts seemed to her to come in only two kinds—present or absent.

Now many boundaries had emerged between those two poles.

“Seen.”

“Source known.”

“Source concealed.”

“Origin independent.”

“Origin unclear.”

“Method testable.”

“Not fit for adverse use.”

“For investigative direction only.”

“Interpretation.”

“Undetermined.”

Aditya came over to her.

“Tired?”

Malini smiled.

“I am. But I am beginning to understand something.”

“What?”

“I used to see material and think at once: this is a fact. Now I understand that seeing the material is only the first question.”

Aditya said, “The second?”

“How it was found.”

“The third?”

“For what purpose we use it.”

“The fourth?”

“Whether the other side can answer it.”

“The fifth?”

Malini showed him her sheet.

“What still remains unproved.”

A faint satisfaction appeared on Aditya’s face.

“The discipline of fact begins there.”

Malini asked, “And where does it end?”

Aditya said, “Perhaps nowhere. Every new relation asks for a new boundary.”

The bell rang.

They both moved back toward the courtroom.



The afternoon session began with an erroneous time entry in the investigation diary.

One page said, “9:14 p.m.—consultation received.”

The page immediately after it said, “9:12 p.m.—independent network source verified.”

The defence said, “According to the State’s narrative, the independent verification occurred before the consultation. But these entries may have been written together later.”

The State accepted that the precise moment at which each line of the diary had been written was not separately verified.

Justice Arya asked, “Then what does 9:12 prove?”

Aditya answered, “It is the time recorded by the officer. It does not by itself prove the actual moment of the act.”

“The independent network source?”

“Its separate system record is from 8:56 p.m.”

“Does that record depend on the diary?”

“No.”

“On the sealed consultation?”

“No.”

The defence asked for the origin of that record.

The State gave a source-neutral description—automated system record, time of collection, hash verification, and custody register.

The defence asked about the hash. “Only a match?”

Aditya said, “Yes—integrity correspondence of the recorded object. Not truth, completeness, or personal authorship.”

Justice Arya said, “Then dependence on the diary’s 9:12 entry has diminished.”

The State said, “Yes.”

“Do not delete it.”

“No.”

“Why?”

“Because it shows what the investigator recorded, even if it is not the best evidence of the actual moment of the act.”

Justice Arya said with satisfaction, “Let the diary perform its limited function.”

Malini wrote that sentence down too.



The defence now made a broader submission—that any portion of sealed material not fully disclosed should not be used at all.

The State opposed it.

Justice Arya stopped both extremes at once.

“There are many procedures between complete secrecy and complete disclosure.”

She enumerated five levels—

“First—only the identity of the source is protected.”

“Second—a source-neutral factual summary.”

“Third—sufficient disclosure of method and basis.”

“Fourth—controlled inspection by defence counsel, where necessary and appropriate.”

“Fifth—if a fair answer is impossible, adverse use is barred.”

No one in the courtroom spoke immediately.

Senior counsel for the State said, “Most disputes can be resolved at the first three levels.”

The defence said, “For some items, the fourth will be necessary.”

Justice Arya said, “Then make item-specific applications. Not general slogans.”

Here Malini found a third lesson.

Judicial confidentiality was not a system with only two states—fully open or fully closed.

It had levels.

Each level carried a different reason, a different risk, and a different opportunity to answer.

At the top of her register she wrote—

“Confidentiality = boundary; not weight.”

And below it—

“Disclosure = process; not proof of truth.”



The hearing sharpened again when the defence sought permission to quote a sentence from a sealed annexure.

The State objected—the sentence could allow the source’s identity to be inferred.

Justice Arya asked the defence, “What do you need: the words, or the fact?”

The defence said, “The fact—whether the witness was personally present or heard it from someone else.”

The State said, “That can be given in source-neutral form.”

“Then there is no need for the words themselves.”

Justice Arya ordered that the source-neutral summary state only this—

“One part of the witness’s statement is based on direct experience; another part is based on a third-party account.”
The defence said at once, “That is important.”
Justice Arya replied, “Importance is not proof of truth.”
The State too fell silent.
Malini saw that the same sentence applied equally to both sides.
A portion based on direct experience was not automatically credible.
A portion based on a third-party account was not automatically false.
Both required source, consistency with circumstances, external support, and an opportunity for cross-examination.
The thunderbolt of tarka was falling here not upon the material, but upon exaggeration.



As afternoon waned, the Court began preparing an “Adverse-Use Register.”
One line was entered against each disputed item.
“Item—Envelope A.”
“Proposed use—investigative direction and chronology.”
“Adverse conclusion against a person—No.”
“Opportunity to answer—source-neutral summary.”
“Unproved—truth of the statement.”
“Item—Envelope B.”
“Proposed use—existence of the lines in the original image.”
“Independent search path—not yet proved.”
“Adverse use—deferred.”
“Unproved—personal authorship.”
“Item—Envelope C.”
“Proposed use—limited analysis of structural similarity.”
“Method summary—disclosed.”
“Source identity—protected.”
“Unproved—same operator, same person, common control.”
“Item—Investigation Diary.”
“Proposed use—chronology, investigative path, failed directions, testing origin.”
“Substitute for independent evidence—No.”
“Unproved—truth of inferences written in the diary.”
Justice Arya said, “The parties shall refine this register within two days.”
The defence asked, “Is this a finding of the Court?”
“No. It is a working register of limits on use.”
The State asked, “Will this bar the receipt of future evidence?”
“No. If independent material emerges, the position may change.”
“And if none emerges?”
“Then the limit remains.”
Here Malini found a fourth lesson.
A limit may be provisional.
But it cannot be ignored merely because it is provisional.



Before the session ended, Justice Arya did not address Malini directly.
Yet one question entered her as though spoken straight to her.
She asked Aditya, “When a young analyst prepares selected extracts, what does the analyst record?”
Aditya looked at Malini, then answered, “The original source, reason for selection, search term, time, export method, hash, and the general scope of what was left out.”
Justice Arya asked, “Why was what was left out omitted?”
Malini felt something stir within her.
Aditya said, “For reasons of relevance, volume, confidentiality, or scope.”
“Then is the selection itself neutral?”
Aditya paused.
“Selection is a human decision. It can be made verifiable; it cannot simply be assumed neutral.”
Malini tightened her grip on her pen.
That one sentence brought back many nights from the previous month.
On her screen she would choose twenty lines out of a thousand.
At the time, she had taken pride in her skill.

Today she understood that skill also carried responsibility for selection.
The context of the line selected.
The possible meaning of what was not selected.
What the search term had been.
What the time range had been.
What the language had been.
Whether two exports from the same source had been counted as two independent supports.
She wrote on her sheet—
“The analyst is not the owner of the fact; the analyst is the recorder of the path.”
And as she wrote it, her hand did not tremble.



In the last hour of the evening, the State itself abandoned the adverse use of one item.
It seemed a small event, yet for a moment every voice in the courtroom stopped.
The material showed a temporal correspondence with a private legal adviser.
The State had earlier been linking it to computational activity.
Testing the path of origin showed that the assumption of temporal correspondence had arisen after a sentence in the protected consultation was read.
Independent reproduction was incomplete.
Senior counsel for the State rose and said—
“We shall not, at this stage, make adverse use of this relationship.”
The defence immediately said, “Then the State accepts that—”
Justice Arya stopped him.
“The State accepts a limit. Not guilt, innocence, or falsehood.”
The defence fell silent.
Justice Arya looked toward the State.
“And that limit will remain explicit in the record.”
“Yes.”
Malini learned a fifth lesson.
Leaving something aside is not contrary to truth.
Sometimes leaving something aside clears the road toward truth.
Remove one weak bridge and the entire structure may become smaller.
But the weight borne by what remains becomes clearer.



After the Court rose, groups of advocates gathered again in the corridor.
Some called it the State “retreating.”
Some called it “half a victory” for the defence.
Ananya Kashyap stood at one side and listened.
A fellow journalist asked her, “Headline—‘State Defeated over Sealed Material?’”
Ananya shook her head.
“The Court has not declared either side’s account true.”
“Then?”
“‘A Seal Is Not a Seal of Truth: High Court Draws Limits on Use.’”
“That is severe.”
“Not severe. Precise.”
“The State dropped one claim.”
“It dropped one adverse use. There was no finding on the truth or falsehood of the claim as a whole.”
“The defence was not shown the material.”
“Some source identities were not disclosed. Source-neutral summaries and method summaries were given. Some disputes remain.”
Her colleague laughed.
“Your truth is always a long sentence.”
Ananya said, “A long truth is better than a short false sentence.”
She sent her copy.



Malini did not go outside.

She remained in the emptying courtroom, gathering her papers.
The sealed envelopes on the Bench were being counted again.
Each seal was being checked.
The time was being entered in the custody register.
It was an ordinary scene.
But today its meaning had changed.
A seal does not say that what lies inside is true.
It says only: this object has been preserved in this form.
The diary does not say that an officer's suspicion is true.
It says: at this time, the investigation was thinking in this direction.
A hash does not say that the material is the complete world.
It says: the recorded object does not appear to have changed.
A source-neutral summary does not say that the statement is credible.
It merely opens one path toward a fair opportunity to answer.
Malini read again the five columns on her sheet.
Then she added a sixth—
“What I did not see.”
And a seventh—
“What I am assuming.”
She drew a heavy line between the two.
Aditya watched from a distance.
He said nothing.
Some lessons become smaller when put into words.



That night at the office, Malini prepared a new draft of the selection method.

First section—original source.
Second—source genealogy.
Third—search term and time of search.
Fourth—selected extract.
Fifth—general scope of material omitted.
Sixth—whether independent reproduction is available.
Seventh—the analyst's interpretation.
Eighth—alternative general explanation.
Ninth—proposed judicial use.
Tenth—what remains unproved.
She showed the draft to Aditya.
Aditya read it.
“Add one more line.”
“What?”
“What the other side minimally needs in order to answer.”
Malini added it.
“Eleventh—minimum requirement for an opportunity to answer.”
Aditya said, “This is no longer merely an analysis sheet.”
“Then what is it?”
“A charter of the limits of fact.”
Malini laughed.
“That is a heavy name.”
“The work is not light.”
That night, for the first time, Malini decided to review her own earlier selections.
No one had ordered her to do so.
No one had accused her of error.
But the method now demanded it of her.



At the beginning of the next day, the State and the defence jointly submitted a refined use register.
There was no complete agreement.
But the points of disagreement were now clear.
Two disputes concerning envelope “A.”

One concerning envelope “B.”

Two methodological points concerning envelope “C.”

Three limits concerning the investigation diary.

Justice Arya examined the register.

“Yesterday there were two dozen broad assertions.”

She said, “Today there are eight clear questions.”

Senior counsel for the defence said, “Clear questions are difficult to answer.”

Counsel for the State replied, “But fair.”

Justice Arya said, “The function of tarka is not to reduce difficulty; it is to reduce ambiguity.”

She reserved orders on the first dispute, directed an additional source-neutral summary on the second, and sought a revised copy of the technical method summary on the third.

For the investigation diary she gave explicit directions—

“Call an officer’s interpretation an interpretation.”

“Do not remove failed directions.”

“Do not rewrite an old entry in the light of later events.”

“If the chronology is uncertain, say that it is uncertain.”

“If there is an independent external source, show its path of origin separately.”

Malini wrote down each sentence.

She understood that improving a diary did not mean making the diary beautiful.

It meant preserving its inconveniences.



Near the end of the hearing, Vidyanand Mishra rose.

He said, “My Lady, one limited request.”

Justice Arya gestured for him to proceed.

“Some parts of these limits on use overlap with questions already under consideration in the pending special-leave proceedings. Once a copy of this order is available, we seek liberty to place supplementary grounds.”

The State did not oppose.

The representative from the Attorney General’s office said, “If the supplementary grounds remain confined to this order, the State will respond.”

Justice Arya said, “Liberty reserved. This Court makes no comment on the outcome of those proceedings.”

Vidyanand sat down.

Malini wrote that sentence down with particular care—

“Pending proceedings—supplementary grounds; not a new Special Leave Petition.”

Aditya looked at her sheet.

“Correct.”

Outside, the evening light was turning grey.

The sealed envelopes were returned to the secure box.

The investigation diary was closed.

But the question was not closed.

At the next level, the questions would now be—

what supplementary challenge would survive in the pending Supreme Court proceedings against the limited-use order,

what would remain merely disagreement,

and what fact, by the time it reached public language, would lose the limits that belonged to it.

Malini closed her register.

Earlier, she had searched for facts.

Now she was searching for the limits of facts as well.

Between those two searches, her professional maturity was slowly taking shape.

The courtroom emptied.

Only one line remained on the Bench—

“A seal is not a seal of truth.”

And beneath it, another line in Malini’s hand—

“Without boundaries, even a fact can become an exaggeration.”

091 The Thunderbolt of Tarka — Chapter 13

Dawn had not yet fully broken when the outer corridor of the Supreme Court's records branch stirred awake.

Vidyanand Mishra carried not a thick file but a slender bound submission.

On its cover, in clear letters, was written—

“Consolidated Supplementary Grounds in the Already-Pending Special-Leave Proceedings.”

Below that title was another line—

“Not a New Special-Leave Petition.”

Vidyanand read that line once more.

The words were brief.

But the legal boundary was large.

After the High Court's previous order, four limited questions remained before the defence.

Adverse use of sealed material.

The evidentiary value of entries in the investigation diary.

A discovery path arising from a privilege-protected indication.

And the minimum summary necessary to permit an answer.

A junior counsel asked, “Should we seek a broad stay?”

Vidyanand shook his head.

“No.”

“This filing does not furnish grounds to halt the entire investigation.”

“Where the path to adverse use is unclear, we ask that such use be restrained.”

“Where an independent discovery path exists, the investigation may continue.”

The junior counsel was silent for a moment.

“Then the heading will sound less forceful.”

Vidyanand's gaze settled on him.

“In court, force comes not from the height of the words but from the weight of the grounds.”

He walked towards the records branch.

The filing stamp was affixed.

A copy was separated for service upon the State.

And one new page of supplementary grounds was added to the record of the pending proceedings.

Not a new case.

Not a new dramatic beginning.

A narrower form of an old question.

When the copy reached Attorney General Devvrat Sinha's office, Mrinal Dhar read it from the first page to the last.

Aditya Jha and Malini Karna sat before him.

On one side of the table lay the High Court's use-register.

On the other, the Ministry's tarka-tolerance register.

Between them lay the supplementary challenge.

Mrinal Dhar said, “This time the defence is not seeking a broad prohibition.”

Devvrat Sinha said, “That is also its strength.”

“Why?” Malini asked.

“Because a narrow plea has to be answered on narrow grounds.”

He read the first ground.

“No adverse use of sealed portion ‘B’ until the State demonstrates an independent discovery path.”

Devvrat looked towards Aditya.

“Can we demonstrate it?”

Aditya did not answer at once.

He turned three pages of the register.

“For one part of the portion, yes.”

He paused.

“For the other part, no.”

Silence spread through the room.

Mrinal Dhar picked up his pen.

“Then the reply must separate the two parts.”

“We will not try to save them together.”

Malini wrote—

“Mixed material = mixed answer.”

Devvrat read the next ground.

The investigation diary.

The defence said that some lines of inquiry had been recorded after protected consultation and that, therefore, the later collection too should be treated as tainted.

Aditya said, “That proposition is far too broad.”

Mrinal Dhar asked, “Is it enough to call it broad?”

Aditya shook his head.

“No.”

He opened the chronology register.

The first external bank information predated the protected consultation by three days.

A server record predated it by two days.

But the first clear form of a third line of inquiry appeared after the protected indication.

Malini was about to apply three coloured marks, then stopped.

Colour would supply a conclusion.

She wrote words instead—

“Pre-existing.”

“Arising later.”

“Origin unresolved.”

Devvrat looked at the page.

“That will be the answer.”

“Where we do not know, we say, ‘We do not know.’”



Before noon, five possible headlines had already appeared on Ananya Kashyap’s screen in the newsroom.

“Decisive Challenge Against the State in the Supreme Court.”

“New Explosion Over Sealed Secret.”

“Investigation in Crisis.”

“State Theory Collapses?”

“Offshore Web Case at a Turning Point.”

Ananya deleted them one by one.

The news editor said over the phone, “Write something big, at least.”

Ananya said, “There is no big fact yet.”

“Supplementary grounds have been filed.”

“No order.”

“No stay.”

“No conviction.”

“No defeat of the State.”

“No victory for the defence.”

The news editor laughed.

“Readers will run away if we write like this.”

Ananya typed one line on the screen—

“Limited supplementary challenge in pending proceedings; use of sealed material and discovery path in question.”

“That is a headline?”

“That is a fact.”

“Where is the sensation?”

Ananya looked out of the window.

“Truth speaks softly.”

“To make its voice louder, we cannot change its words.”



The next day, the first question before the Supreme Court Bench concerned the scope of the application.

The Bench asked—

“Learned counsel, are you seeking to halt the entire investigation?”

Vidyanand Mishra rose.

“No, Your Lordships.”

“We seek restraint on four limited adverse uses until the State demonstrates an independent discovery path or provides an adequate minimum disclosure.”

“Do you also contend that the existence of the sealed material itself is inadmissible?”

“No.”

“Existence and adverse use are separate questions.”

The Bench looked towards the State.

Devvrat Sinha rose.

“The State does not disagree with that distinction either.”

“But two of the defence grounds extend the test of an independent discovery path too far.”

The Bench asked, “Then where does the dispute lie?”

Devvrat opened a page.

“Three points.”

“First—an independent custodian and an independent discovery path are not the same thing, but an independent discovery path is not determined solely by the initial impulse.”

“Second—the investigation diary is not evidence, but its chronology may have limited utility in showing the origin of an external source.”

“Third—a minimum summary must not be framed so as to reveal the actual substance of privileged material.”

Vidyanand said, “I agree on the third point.”

A member of the Bench said, “Clear.”

Vidyanand immediately added, “Your Lordships, I would prefer ‘clear’ to any stronger word—the dispute is now concentrated on two points.”

The Bench smiled faintly.

“You began with discipline in language; maintain discipline in language.”

The questions before the Bench had now narrowed.



The first dispute concerned sealed portion ‘B’.

The State said that the name of one merchant entity mentioned in that portion had already appeared in external bank information.

The defence said that what emerged after the protected consultation was not the name of the merchant entity, but the direction for linking it to the alleged payment chain.

The Bench asked, “Is the independent existence of the name enough?”

Devvrat said, “No.”

“Independent reproduction of the connection must also be shown.”

“Can you show it?”

Mrinal Dhar placed a table before the Bench.

First column—bank information.

Second—external record of the payment gateway.

Third—time.

Fourth—time of the protected consultation.

Fifth—entry in the investigation diary.

Sixth—status of independent reproduction.

The first row of the table made the position clear—

The merchant entity’s existence was independent.

One payment connection had been independently reproduced.

The discovery path for the second connection remained unresolved.

Vidyanand placed his thumb on the second row.

“That is precisely our submission.”

“The State must not save the second connection by borrowing the strength of the first.”

Devvrat said, “The State is not trying to do so.”

“No adverse use of the second connection is presently being sought.”

The Bench wrote.

One broad dispute broke into two limited conclusions.

The first connection—fit for consideration, not final truth.

The second—presently insufficient for adverse use.

The thunderbolt of tarka fell on neither side.

It merely kept cutting away the excess from the sentence.



The second dispute concerned the investigation diary.

Vidyanand said, “The diary records the officer’s inference—‘This is possibly a control indicator.’ The investigation later proceeded in that direction. The State now points to external material. The question is: is that external material independent, or is it the fruit of the inference?”

Without naming Aditya, the Bench asked, “Is the investigating officer present?”

Aditya rose.

“Yes, Your Lordships.”

"Did you write this sentence in the diary?"

"Yes."

"What was before you at that time?"

Aditya's answer was brief.

"One piece of external bank information, one incomplete access record, and an indication that may fall within a protected category."

"Will you state the substance of that indication here?"

"No, Your Lordships."

"Why?"

"Because the State does not rely upon its substance, and the claim of privilege remains under consideration."

The Bench asked again, "Where did the later external material come from?"

Aditya said, "From the response to a summons."

"When was the summons issued?"

Aditya gave the date.

"Before or after the protected indication?"

"After."

"Then how is it independent?"

Aditya paused.

"Independence is not established by that fact alone."

The Bench's gaze remained steady.

Aditya continued—

"But the subject of the summons was confined to the merchant entity and period already mentioned in the bank information."

"The first draft of the summons had been prepared before the protected indication."

"The final issuance occurred later."

Vidyanand immediately said, "Is the first draft on the record?"

Aditya said, "It is."

"Timestamp?"

"Yes."

"Author?"

"Recorded."

"Revision history?"

"Recorded."

Vidyanand looked at the page.

"Then I will not call this bare possibility."

"But two additional words were added to the final summons."

Devvrat said, "The State will not rely on any additional material obtained because of those two words."

The Bench wrote.

Again, one portion remained.

One portion was removed.

And the diary itself did not become evidence.



Malini sat in the back row, listening to everything.

She had once thought that the answer to the question of independence was simply 'it exists' or 'it does not exist.'

Now she understood that independence too had layers.

Independent source.

Independent time.

Independent impulse.

Independent discovery path.

Independent reproduction.

The presence of one does not automatically prove another.

She wrote a note—

"Independence is not a word; it is the structure of a relationship."

A junior counsel seated behind her glanced at the page.

Malini did not cover it.

This was no confidential conclusion.

It was a lesson in method.



The third issue turned to the minimum summary.

The defence said: if the State intended to rely on some part of the sealed material, it must provide a sufficient summary to permit an answer.

The State said: the summary must not reveal protected strategy, the identity of a witness, or a confidential direction of an ongoing investigation.

The Bench asked, "Can both things be done at once?"

Mrinal Dhar said, "For some portions, yes."

Vidyanand said, "For some portions, no."

The Bench said, "Then we proceed portion by portion."

For one envelope, only the date, source-category, and nature of the alleged connection would be supplied.

For another, the payment range and time period.

For a third, only this much: that the material was proposed to be used not for identification, but for chronology.

On the fourth portion, the Bench said—

"Here, providing an adequate summary would reveal the actual substance of the privilege."

"If the State cannot provide a summary, it shall not make adverse use of this portion either."

Devvrat Sinha said, "Accepted."

Vidyanand Mishra remained silent for a moment.

Then he said, "That limit is consistent with our principal submission."

The Bench wrote—

"Confidentiality shall not become judicial weight."

"The price of nondisclosure shall not be recovered from the defence in the form of an adverse inference."

"Nor may the defence, in the name of confidentiality, make independently sourced external facts disappear."

Three sentences.

Three limits.

One balance.

During the afternoon recess, Vidyanand sat in a quiet corner of the corridor.

There were two unanswered notifications from home on his mobile phone.

He called back.

Shailaja's voice sounded tired.

"The second instalment for the medicines has to be paid today."

Vidyanand closed his eyes.

"I'll do it by evening."

"Are you all right?"

"Yes."

His voice was steady, but it could not hide the fatigue.

Shailaja said, "Eat something on time."

The call ended.

Vidyanand's junior counsel came over.

"The client wants us to tell the media outside that the State is withdrawing its main evidence."

Vidyanand opened his eyes.

"No."

"The State has abandoned two limited uses."

"The record does not say that the main evidence has collapsed."

"But the client will not be pleased."

Vidyanand rose from the seat.

"I am not counsel for the client's pleasure."

"I am counsel for his legal rights."

"The two are not the same."

The junior fell silent.

Vidyanand's private crisis could have made him harsher.

But at that moment it kept him from becoming narrower.

Professional dignity sometimes stands in exactly the opposite direction from convenience.

After the recess, the Bench raised the question of the strongest alternative explanation.

"The defence says that because of shared administrative services, the same access indicator may be linked to several entities."

"What is the record basis for this alternative?"

Vidyanand said, "Two service agreements, one administrative access list, and a declaration from a third party."

"Has the declaration been tested?"

"Not yet."

"Then its status?"

"A supported possibility; not a proved fact."

The Bench looked towards the State.

"The State says continuity in time points towards control."

"The bridge to a particular person?"

Mrinal Dhar said, "At present there are two independent records, but no direct material of authorship."

"Then the status?"

"Incomplete for an allegation against a particular person."

The Bench said, "In this argument both sides are leaving half a sentence unsaid."

"That is why the sentence is becoming clearer."

Aditya listened.

He remembered an old line from his register—

"Even if one possibility is stronger than a competing possibility, it is still not proof."

Tarka can weigh the strength of alternatives.

But it cannot manufacture proof out of an empty space.



By evening, the Bench pronounced limited interim directions.

First—the part of sealed portion 'B' for which the State demonstrated an independent discovery path would remain fit for consideration only for the limited purposes of chronology and connection; neither truth nor personal authorship would thereby be treated as automatically proved.

Second—where the path of origin remained unresolved, adverse use would remain stayed until independent reproduction.

Third—the investigation diary was not itself evidentiary proof; its use was confined to chronology, investigative path, and testing of origin.

Fourth—where providing the minimum summary would disclose protected substance, the State would not make adverse reliance upon that portion.

Fifth—the investigation may continue on the basis of independent external sources.

Sixth—nothing in these directions declared any person guilty or innocent.

Seventh—the supplementary grounds in the pending special-leave proceedings would remain recorded only for these limited questions.

At the end, the Bench said—

"We are not at this stage deciding the final merits of the case."

"We are merely ensuring that the limits of use are clear for whatever material travels along the path to decision."

Vidyanand bowed.

Devvrat Sinha did the same.

No declaration of victory.

No language of defeat.

Only a few sentences became shorter.

A few paths closed.

A few paths became clear.

And some questions still remained questions.



Outside, the media crowd was waiting.

One reporter shouted—

"Has the Supreme Court rejected the State's sealed evidence?"

Another asked—

"Has the investigation been stopped?"

A third—

"A major victory for the defence?"

Ananya switched on her audio recorder, but did not answer at once.

She waited to see the written copy of the order.

A little later, the copy became available.

She read the first line.

Then the directions.

Then the final caution.

She wrote to her news desk—

"Supreme Court issues limited directions on use; investigation continues, no finding on final merits."

The news desk replied—

"There is no dramatic word in this."

Ananya wrote—

"Because the order is not dramatic."
"Truth speaks softly."
"Do not alter its meaning in the name of making its voice louder."
She prepared the report.
The filing in the first paragraph.
The Court's limited directions in the second.
What the Court had not said in the third.
A brief statement of both sides' grounds in the fourth.
At the end, one line—
"The proceedings remain pending."
Ananya read that line again.
There was no sensation in it.
But it carried the necessary weight of truth.



At night, a copy of the order reached the Ministry.
Shiveshwar Prasad read it.
An officer said, "We can say that the Court allowed the investigation to continue."
The Minister did not lift his eyes from the page.
"Say only that much."
"Do not say that the Court accepted our theory."
"It did not."
"Do not say either that the defence challenge failed."
"That too would not be the whole truth."
The officer asked, "Then the public statement?"
Shiveshwar Prasad said—
"The State will comply with the Court's limited directions, continue investigation through independent sources, and place its response on the record in the pending proceedings."
He closed the page.
"That is all."
Power looks for opportunities to add words.
Trust demands the courage to subtract them.



Late that night, Aditya read the order once more in his office.
Malini had opened the factual-boundaries sheet before her.
She added a new column—
"Current status of judicial use."
Against some entries she wrote, "Fit for consideration, limited."
Against some, "Adverse use stayed."
Against some, "Chronology only."
Against some, "Independent reproduction required."
Against one, "Abandoned."
Malini asked, "Is this a defeat?"
Aditya looked at her.
"Whose?"
Malini did not answer.
Aditya said, "If one of our sentences was larger than the record and the Court shortened it, the method corrected us."
"If one broad claim by the defence did not survive an independent fact, the method corrected them."
"This is not a game in which one side's point is the other side's defeat."
At the top of the register, Malini wrote—
"Tarka's final gain = a sentence fit for decision."
Aditya read the line.
"Right."
He opened the window.
The night air entered.
Far away, the city lights were steady.
Behind him on the table lay the thirteen-stage tarka register.
The path that had begun with perception had crossed inference, analogy, testimony, postulation, non-apprehension, and reached tarka.
Tarka did not become final proof.

It shortened the sentences of the proofs.
It cut away excess meaning.
It demanded a record basis for competing possibilities.
It exposed uncertain origins.
It did not turn silence into guilt.
It did not turn confidentiality into weight.
And it did not permit an alternative narrative to remain mere imagination.
Malini left the room.
Aditya remained alone for a while.
He saw no image of Gangesha Upadhyaya before him.
No miracle.
Only the method's quiet insistence—
Know the limits of what you say.
What you do not know, do not declare as known.
If you raise an alternative, show its basis.
If you seek a decision, keep its path clear.
Outside, the night was thinning.
The eastern sky had not yet brightened.
But one part of the darkness had already grown lighter.
Tarka had done its work.
And the questions now stood at the door of decision.

092 The Dawn of Judgment — Chapter 1

Dawn had not yet fully opened.

A grey light was spreading across the sky above the Supreme Court, and the sheen of the night's dew still remained on the steps.

Outside the main entrance, vehicles were stopping one after another.

From some, advocates stepped out.

From some, record boxes.

From some, assistants, research staff, and representatives of the parties.

A large team of advocates was present today on behalf of the offshore operators.

The team was more expensive, more prominent, and larger in number than the State's team.

But on the stone steps of the Court, number was only number.

Not proof.

Not truth.

And certainly not a forecast of defeat or victory.

Ananya Kashyap stood at a distance with her notebook open.

A news colleague whispered, "So many advocates together—that is news in itself."

Ananya asked, "What is the news?"

"That the operators have fielded the largest team."

"The team is large—that is a fact."

"What does it mean?"

The colleague was silent for a moment.

Ananya wrote—

"Size of team ≠ judicial weight."

Beneath that line she added another—

"At the dawn of judgment, noise will not be counted; reasons will."

◆
At the Ministry, Home Minister Shiveshwar Prasad's chamber had opened earlier than usual.

News images were running on the wall, but the sound was off.

One screen showed the crowd outside the Court.

Another showed the team of advocates.

A third cycled through old headlines.

"A question of the State's prestige."

"Decisive encirclement of the offshore network."

"Final clash in the Supreme Court."

Shiveshwar Prasad had the screens switched off.

Devvrat Sinha, Mrinal Dhar, Aditya Jha, and Malini Karna were present in the chamber.

The Minister asked, "What is the State's objective today?"

Mrinal Dhar answered, "Judicial testing of the propositions that remain."

"Political objective?"

The room was silent.

The Minister himself said, "There is no political objective."

He placed his palm on the table.

"In this matter, the State's prestige will not be preserved by my speech."

"It will be preserved by the Court's confidence that the State knows the limits of its evidence."

Aditya listened in silence.

The Minister continued, "If any sentence is too large, make it smaller."

"If any connection remains undecided, call it undecided."

"If an investigative path failed, do not hide it."

"If the defence identifies a valid limit, accept that limit."

Devvrat Sinha asked, "And if there is a political reaction?"

"Let there be."

The Minister's voice was steady.

"Power may last five years, ten years, however many years."

"If the Court's confidence is broken once, it may take a generation to restore."

He looked at Aditya.

“Officer, your task is not to save the prosecution’s story.”

“Your task is to preserve the dignity of the record.”

Aditya bowed his head.

“Yes, sir.”

The Minister said again, “Not ‘yes, sir’—take this inside you.”

“Whether judgment comes today or later, the State’s sentence must not be larger than the Court.”



The courtroom filled.

Justice Arya took the bench.

On the right, the State’s limited team.

On the left, the defence’s extended rows.

Behind them were files, indices, computational exports, the privilege register, the custody register, and binders of supplementary submissions.

Justice Arya first looked at the number of advocates.

Then at the thin sheet placed before her.

She said, “Today we will not measure the length of argument.”

“We will measure sentences fit for decision.”

The courtroom grew quiet.

“In these proceedings, perception, inference, analogy, testimony, postulation, non-apprehension, and tarka have all been sufficiently argued.”

“The question now is not how much more the parties can say.”

“The question is what the Court can say on the basis of the record.”

A senior defence advocate rose.

“My Lady, on the reliability of the investigation as a whole—”

Justice Arya raised her hand.

“Use the word ‘whole’ carefully now.”

“Which part?”

The advocate paused for a moment.

“Computational material, payment indicators, the calculation workbook, investigation diaries—”

“Four different source classes.”

Justice Arya said.

“The reliability of all four will not be measured in one sentence.”

She signalled to the court officer.

“Open the first table in the decision sheet.”

Seven columns appeared on the screen.

“Proposition.”

“Primary source.”

“Connection path.”

“Opposing alternative explanation.”

“Record basis of the alternative explanation.”

“Present judicial status.”

“Unproved remainder.”

Several pens moved at once in the courtroom.

On her copy Malini added an eighth column—

“Maximum language permissible in the judgment.”

Aditya saw it.

“This is necessary.”

Malini asked softly, “Why?”

“Because a judgment does not merely state what is known.”

“It also chooses the limits of what is known.”



The first proposition concerned a secure access indicator.

The State’s supplementary submission said—

“Within the specified time interval, a secure access indicator was generated from the specified device session.”

The defence said, “A device session is not a person.”

Devvrat Sinha said, “The State agrees.”

Justice Arya asked, “Then the bridge to the person-specific allegation?”

Mrinal Dhar answered, “Independent external material—a contemporaneous record, role-related communications, and one limited witness statement.”

"All three independent?"

"Not completely."

There was some movement in the courtroom.

Mrinal Dhar did not stop.

"The contemporaneous record and part of the communications depend upon the same time source."

"The witness statement is an independent human source, but it gives role context, not agency."

Justice Arya wrote.

"Then the maximum language?"

Devvrat Sinha answered, "The State asks that the fact of the device session be treated as established; person-specific agency remains undecided."

The senior defence advocate said, "We do not object to that much."

A junior advocate seated behind him looked toward him.

The senior advocate whispered, "Do not weaken the real point by fighting what need not be fought."

Malini heard the sentence.

She understood that at the dawn of judgment, the defence too was shortening its sentences.

Justice Arya wrote in the table—

"Device event—fit for consideration."

"Person-specific agency—unproved."

She looked toward the courtroom.

"The distance between these two lines is half the dispute in this matter."

◆
The second proposition concerned the chronology of the payment gateway.

The State said, "The records of three different custodians show temporal correspondence."

The defence rose at once.

"Three custodians, but two records were generated from the same external time source."

Malini had already written this limit in her register.

Devvrat Sinha said, "For that reason the State has already abandoned the words 'three independent corroborations.'"

Justice Arya asked, "What is the State's sentence now?"

"Temporal correspondence across records held by three custodians; source independence is partial."

"What does this temporal correspondence mean?"

"Support for the sequence of transactions."

"Purpose?"

"No."

"Actor?"

"No."

"Crime?"

"Not by itself."

Justice Arya stopped her pen.

"These four 'noes' will remain in the reasons for decision."

No discomfort appeared in the State's row.

Instead, a kind of lightness came over Aditya.

The limits that had repeatedly been preserved during the hearing were now becoming the language of decision.

◆
The third proposition concerned the structure of the calculation workbook.

The defence said, "Authorship is not established."

The State said, "Agreed."

"Control is not established."

"Agreed in limited part."

"Meaning?"

Mrinal Dhar said, "There is material to establish the workbook's computational structure, formula layout, and update times."

"Not person-specific authorship."

"There are external indicators of some access rights, but those alone do not establish complete control."

The defence offered another alternative explanation—

"Use within a shared work environment."

Justice Arya asked, "Record basis?"

The defence showed three documents.

One referred to a shared access group.

The second to division of work.

The third to an old access permission.
The State said, "This alternative is not merely possible; it is supported by the record."
Malini looked at Aditya.
Aditya signalled with his eyes—write it.
Malini wrote—
"Alternative explanation: record-supported."
"Result: claim of person-specific control not fit for decision."
Justice Arya accepted exactly that limit in the table.
No note of victory rose in the courtroom.
Because one proposition had grown smaller, but the record had grown clearer.

◆
The fourth proposition concerned a deleted message thread.

The State's first investigative interpretation had been much larger long ago.
Now only this much remained in the supplementary submission—
"At the specified time, the specified message thread became unavailable."
The defence said, "Non-availability may also result from natural expiry."
The State said, "For some accounts, yes; for this account, the expiry policy is not clear."
"Then deletion?"
"A technical event is possible; person-specific agency is unproved."
"Purpose?"
"Unproved."
Justice Arya asked, "Will you use the word 'deleted'?"
Devvrat Sinha said, "Where the system record shows removal, we can say 'removed entry.'"
"Where it was simply not found, 'unavailable.'"
"We will not make the two the same."
Justice Arya said, "That distinction will remain explicit in the judgment."
Malini noted—
"Unavailable ≠ removed."
"Removed ≠ removed by a particular person."
"Removal ≠ culpable purpose."
Aditya saw the lines.
"Whatever lies between these three steps will require proof."

◆
During the midday recess, the court corridor was crowded.

The offshore operators' team of advocates had split into separate groups.
Some on privilege.
Some on computational material.
Some on the limits of judicial use.
Some on interim protection.
Ananya asked a senior defence advocate, "Why are there so many people in your team?"
The advocate smiled.
"There are many subjects in the matter."
"Will the size of the team affect the outcome?"
"In court?"
He shook his head.
"It should not."
Ananya wrote—
"Defence itself accepts: number does not take the place of argument."
At that moment a State officer told Ananya, "Write the headline—the State's side is heavier."
Ananya looked at him.
"In which order?"
The officer was silent.
"In which finding?"
Silence.
"Then this headline is not a fact."
She closed the notebook.
"Writing the decision before the decision is not journalism."

◆
During the recess, the Ministry screens were switched on again.

The news channels were counting the number of advocates.
 Some called it “a display of legal strength.”
 Some, “an answer to the State’s pressure.”
 Shiveshwar Prasad again had the sound turned off.
 A political colleague said, “We should issue a statement too.”
 “Why?”
 “People will understand that the State is firm.”
 The Minister answered, “We will not weaken the process inside the Court merely to appear firm outside it.”
 “But the opposition—”
 “The opposition will say what it wishes.”
 “We will not politicise the Court’s confidence.”
 The colleague tried to say something more.
 The Minister stopped him.
 “Today’s statement will be one line only.”
 He told the secretary—
 “The State respects the process of the Court; it will not comment on questions under consideration.”
 The secretary wrote the line.
 The Minister added, “That is all.”



The Court sat again in the afternoon.

Justice Arya said, “The parties will now give their final five propositions each.”

There was movement on the defence side.

“Five?”

“Yes.”

“No more than five.”

“With each proposition, three things.”

“Primary source.”

“The opposing side’s strongest answer.”

“And why your proposition survives even after that answer is accepted.”

The final examination of actual tarka now began in the courtroom.

The State’s first proposition was—

“The chronology of some computational events is consistent across multiple records.”

The defence’s strongest answer—

“Some records depend upon the same time source or the same underlying fact.”

The State’s remaining sentence—

“Even though source independence is partial, the core chronological correspondence survives across two independent custodian paths.”

Justice Arya asked, “Are the two paths truly independent?”

A slight tension entered Aditya’s throat.

Mrinal Dhar answered, “The response to the summons and the original record of one external custodian—on this point, yes; not the selected views from the computational export.”

Justice Arya wrote.

“We will hear the investigating officer at the next sitting on the technical basis of this answer.”

Aditya understood—the centre of the next hearing had now become clear here itself.

He heard only the questions—summons, original record, forensic image, hash, custody.



The State’s second proposition—

“Some payment sequences are consistent with the specified commercial structures.”

The defence—

“Such consistency may also arise from a lawful service relationship.”

The State—

“For that reason, no conclusion as to purpose; only structural correspondence.”

Justice Arya said, “Then not the words ‘crime-consistent.’”

Devvrat Sinha answered, “No.”

The third proposition—

“Some role-related communications correspond with the specified chronology.”

The defence—

“Role communications may also be ordinary administrative work.”

The State—

“No claim of person-specific agency or culpable purpose; only role context.”

The fourth proposition—

“Some investigative paths were reproduced from independent external sources.”

The defence—

“Not all.”

The State—

“Not all; those that were not shall not be used adversely.”

The fifth proposition—

“The record as a whole makes some questions sufficient for judicial consideration.”

The defence immediately said, “That is far too broad.”

Justice Arya looked at Devvrat Sinha.

Devvrat Sinha thought for a moment.

“The State abandons its fifth proposition.”

“Without identifying the specific question, a sentence of ‘overall sufficiency’ is unnecessary.”

There was movement again in the courtroom.

Justice Arya wrote—

“Abandoned.”

Shiveshwar Prasad was not present in court.

But when this information reached the Ministry, the sentence he had spoken returned to mind—

Fewer sentences, more foundation.



Now came the defence’s five propositions.

First—

“Where the path of origin of privileged material is unclear, adverse use is prohibited.”

The State answered—

“Where unclear, agreed; where independent reproduction is recorded, disagreed.”

Justice Arya said, “Then the dispute is not over the rule, but its application.”

Second—

“Records dependent on the same time source are not independent corroboration.”

The State—

“Agreed.”

Third—

“A device session does not establish person-specific agency.”

The State—

“Agreed.”

Fourth—

“A time gap in the custody register renders the computational material wholly unreliable.”

The State—

“Disagreed; the effect of the gap must be measured by source, hash, reverification, and explainability.”

Justice Arya said, “On this we require a specific answer from the investigating officer.”

Fifth—

“The prosecution structure as a whole has collapsed.”

Justice Arya immediately asked, “As a whole?”

The senior defence advocate fell silent.

The co-counsel seated to his left wrote something on a sheet and slid it forward.

The senior advocate read it.

Then he said, “We limit the language.”

“The foundation for some person-specific allegations is insufficient.”

The State said, “On this limited form we will answer proposition by proposition.”

Justice Arya wrote—

“Broad form abandoned; limited form fit for consideration.”

Malini drew a line in her register.

One broad sentence from each side had become smaller on the same day.

Here she saw the method of decision.

Not to search for a winner.

To search for the limits of the sentence.



The first shadow of evening was falling across the courtroom windows.

Justice Arya read the final directions.

“The next hearing will remain limited.”

“One—the actual scope of the summons.”

“Two—what was included in the forensic image, and what was not.”
“Three—what the hash establishes, and what it does not.”
“Four—the actual effect of the time gap in the custody register.”
“Five—which external sources stand on independent discovery paths.”
“Six—after all this, the maximum lawful limit of any person-specific conclusion.”
She looked toward the State.
“The investigating officer shall be present.”
Aditya rose and bowed his head.
“Yes, My Lady.”
Justice Arya looked toward the defence.
“Your questions too shall not go beyond these six limits.”
The senior advocate agreed.
“And one final point.”
The courtroom became quiet again.
“The number of advocates, the prestige of the Ministry, headlines in the news media, an officer’s confidence, a witness’s fear—none of these carries judicial weight.”
“The weight belongs to the record.”
“And to reasons.”
She rose.
The Court adjourned.



Outside, darkness was descending.
Ananya was walking down the steps.
A question came from the editorial desk over the phone—
“What do we write? State ahead?”
Ananya said, “No.”
“Defence ahead?”
“No.”
“Then the headline?”
For a moment Ananya looked back at the Court building.
“Before judgment, the Court counted the limits.”
“Will that sell?”
“Truth is not a thing for sale.”
She ended the call.
At that moment Malini came out.
Ananya asked, “Who won today?”
Malini smiled.
“You are asking that knowing what you are doing?”
“Yes.”
“Then you know the answer too.”
“No one.”
Ananya wrote—
“Before judgment, limits win.”



At the Ministry, the evening summary reached Shiveshwar Prasad.
The secretary read—
“The State’s broad fifth proposition abandoned.”
“The defence’s broad fifth proposition also abandoned.”
“The next hearing limited to six technical-judicial questions.”
A colleague said anxiously, “The news media will pick up the sentence the State abandoned.”
The Minister asked, “Was the sentence larger than the record?”
“Yes.”
“Then it was right to abandon it.”
“But the political cost—”
The Minister went to the window.
Outside, the city lights were shining.
“There are many people to measure political cost.”
“My task is to measure the Court’s confidence.”
He told the secretary, “No victory statement.”
“No defeat statement.”

“Only this—the State will answer the next limited questions from the record.”
The secretary wrote.
Shiveshwar Prasad said again, “And do not place additional pressure on the officer.”
“What he does not know, he should say, ‘I do not know.’”
“Where there is a limit, he should call it a limit.”
“That will not make the State smaller.”
“It will keep the Court larger.”



At night Aditya sat alone in his chamber.
Malini placed six paper slips before him.
Summons.
Forensic image.
Hash.
Custody register.
Independent external source.
Person-specific limit.
Malini said, “Now everything has come down to these six.”
Aditya answered, “Not everything.”
“What is necessary for decision.”
Malini lifted the first slip.
“The scope of the summons again?”
“Not again.”
“This time through the eyes of decision.”
The second slip.
“Forensic image?”
“What was included, what was left out—clear.”
The third.
“Hash?”
“Correspondence and integrity—not truth or completeness.”
The fourth.
“Custody?”
“History—not proof of wrongdoing.”
The fifth.
“Independent source?”
“Show the genealogy.”
The sixth.
Malini was silent for a while.
“Person-specific limit?”
Aditya said, “Where there is no bridge, no.”
“Where there is a limited bridge, limited language.”
“Where there is an independent foundation, its actual weight.”
Malini asked, “And the judgment?”
Aditya looked toward the window.
In the darkness of night, the eastern direction was invisible.
“The judgment belongs to the Court.”
“Our task is to answer the questions.”
He placed the six slips in a straight line.
After a few moments he added—
“The dawn of judgment does not mean that judgment comes in our favour.”
“It means that whatever was blurred in the darkness has its limits made visible in the light.”
Malini said softly, “Then tomorrow the questions will be smaller, the answers harder.”
Aditya smiled.
“Exactly.”
“Small questions are often difficult.”
The six slips lay still upon the table; the discipline of Mithila’s old judicial reason—know the limits of what you say—now stood before them not as a claim of cultural triumph, but as the path of reasons toward decision.
The thirteen stages of tarka had fallen behind them.
Now the first dawn of judgment was opening.
And its first light fell not upon a banner of victory, but upon the limits of the questions.

093 The Dawn of Judgment — Chapter 2

The light of dawn had only now reached the high walls of the court.

Yesterday's grey sky was now taking on a muted golden hue.

The crowd outside the main entrance was no smaller than yesterday's, but its tone was different.

Yesterday the questions had been narrowed.

Today the limits of the answers would be seen.

Ananya Kashyap stood to one side of the steps.

A notebook in her hand.

On the first page she had written six words—

Summons.

Image.

Hash.

Custody.

Independent source.

Person-bridge.

She had left a blank space opposite each word.

A fellow journalist asked, "Will there be a decision today?"

Ananya said, "Today the weight of some questions may be settled."

"Meaning a decision?"

"No."

"Then the headline?"

Ananya looked at him.

"The headline should not be larger than the question."

Her colleague smiled.

"Readers want short sentences."

"Justice also wants short sentences."

"But behind a short sentence there must be a long path of reasons."

She wrote in her notebook—

"Today not the object, but the limit, is at the centre of judgment."



The courtroom was full.

The defence had again appeared with a large team.

There were fewer papers on the State's table.

Devvrat Sinha had a thin file before him.

Before Mrinal Dhar lay six marked strips.

Aditya Jha sat behind them.

Malini Karna was to his left.

The six strips were arranged in exactly the same order in which they had been placed on the table the previous night.

Justice Arya took the bench.

The room fell silent.

She looked at yesterday's order.

"Today I will not hear the whole narrative of either side."

"There are six limited questions."

"Each answer must contain four things."

She picked up her pen.

"Admissible fact."

"Limited support."

"Unproved remainder."

"And prohibited leap."

Lead counsel for the defence rose.

"Your Ladyship, the overall reliability of the State's material—"

Justice Arya raised a hand.

"Overall reliability is not today's question."

“Where a specific answer is available, there is no need for an overall adjective.”
Devvrat Sinha said, “The State agrees.”
Justice Arya looked at Aditya.
“Is the investigating officer present?”
Aditya stood.
“Yes.”
Justice Arya looked at him for a few moments.
“Your task today is not to defend your investigation.”
“Your task is to state its limits.”
Aditya said, “I will answer in that form.”
“Where I do not know, I will say so.”
“Where the record imposes a limit, I will state the limit.”
Justice Arya nodded.
“First question.”



“What did the summons require?”

Mrinal Dhar unfolded the first strip.
Aditya answered, “Three categories of records within a specified period.”
“First—a computational summary of identified customer transactions.”
“Second—available records relating to specified user access.”
“Third—a list of communications relating to specified payment gateways, not their contents.”
Justice Arya asked, “Did the summons require every device, every cloud repository, every auxiliary file?”
“No.”
“Did the summons seek records on the premise that any particular person was a criminal?”
“No.”
“Then what does non-production mean?”
Aditya was silent for a few moments.
“Only that some records in the requested categories were not produced.”
A defence lawyer rose at once.
“Is there a difference between ‘was not produced’ and ‘existed?’”
“Yes.”
“Between ‘existed’ and ‘was deliberately withheld?’”
“Yes.”
“Between ‘was withheld’ and ‘was withheld in order to conceal a crime?’”
“Yes.”
“Does the State make any of those three leaps?”
Aditya answered, “No.”
Counsel looked at Mrinal Dhar.
“The State’s earlier written summary used the phrase ‘absence of expected records.’”
Mrinal Dhar said, “The revised summary adds source, period, retention policy and search scope behind that phrase.”

“And if those four things are not established?”
“Then the weight of the absence diminishes.”
Justice Arya wrote.
“Summons—admissible fact: scope of the request.”
“Limited support: some non-production within the requested categories.”
“Unproved remainder: existence, control, deliberate withholding, purpose.”
“Prohibited leap: from non-production to a conclusion of crime.”
She looked at the defence.
“Your objection?”
Lead counsel said, “One.”
“If the request itself was ambiguous, the weight of non-production falls further.”
Justice Arya said, “That is a record question.”
“Read the words of the summons.”
Mrinal Dhar opened the original copy.
Two lines were read.
The defence demonstrated ambiguity in one subcategory.
The State accepted that the subcategory was not sufficiently clear.
Justice Arya wrote—
“No adverse use of subcategory three.”

No dramatic sound rose in the courtroom.
Only one sentence became smaller.
Malini wrote on her page—
“Ambiguity in request = not the respondent’s fault.”
Aditya saw the line.
He said nothing.



“Second question.”

Justice Arya said, “What is a forensic image?”

Aditya answered, “A bit-level, as-is copy of a specified storage medium, within the scope available at the time of acquisition.”

“What is it not?”

“Not a copy of every possible device.”

“Not every cloud repository.”

“Not every deletion history.”

“Not proof of all user activity.”

“And certainly not the entire computational world of the organisation.”

A second defence lawyer rose.

“Whose device was imaged?”

Aditya gave the device identification, seizure record and serial number.

“In whose physical custody was the device at the time of seizure?”

“In a common-use area of the office.”

“Whose private ownership was proved?”

“Not by seizure alone.”

“Whose exclusive use was proved?”

“Not by the image alone.”

“Then are the files found on the device Raghav Sethia’s?”

Aditya said, “A separate bridge is required for a person-specific statement of that kind.”

“Is there such a separate bridge?”

Mrinal Dhar intervened.

“For some files there are limited external account records; not for all.”

Justice Arya said, “Not all at once.”

“First, the image.”

She asked Aditya, “What lay outside the acquisition?”

Aditya showed the list.

“One external storage medium was unavailable.”

“Credentials for one cloud account were not found.”

“Only partial remnants of two deleted partitions were found.”

“One encrypted file could not be opened.”

There was movement on the defence side.

A lawyer said, “Then the image is incomplete.”

Aditya answered, “The image may be complete as a copy of the medium acquired, but not complete as the universe of all possible material.”

Justice Arya wrote at once.

“Preserve that distinction exactly in the judgment.”

She said, “Completeness of the image and completeness of the investigative universe are not the same thing.”

Malini made two columns in her notes.

“Image-completeness.”

“Universe-completeness.”

She drew a thick line between the two columns.



At the third question, the courtroom grew quieter still.

“Hash.”

Justice Arya said only the one word.

Aditya answered, “At acquisition, a mathematical digest value was generated.”

“A working copy was then made.”

“It was compared at every identified transfer point.”

“According to the available records, the value remained the same.”

“What does that prove?”

“That between the points tested, the digital content of the identified copy does not appear to have changed.”

“What does it not prove?”

Aditya answered without pausing.

“It does not prove that the contents of the file are true.”

“It does not prove who created the file.”

“It does not prove that what was not on the device existed nowhere else.”

“It does not prove that the material was not altered before acquisition.”

“It does not prove that all possible material was acquired.”

“And it certainly does not prove person-specific culpability.”

Lead counsel for the defence said, “Then the judicial value of the hash is minimal?”

Devvrat Sinha rose.

“No.”

“Its value is limited, not zero.”

“It can be strong on the question of integrity.”

“Not, by itself, on the question of truth.”

Justice Arya looked at Devvrat.

“The State had been using the word ‘authentic’.”

Devvrat Sinha answered, “In this context the State will say ‘integrity-consistent’.”

“‘Authentic’ will be removed?”

“Where the word suggests source or authorship, yes.”

A defence lawyer smiled.

“So the State is shrinking its sentence again.”

Devvrat Sinha said, “Where a word is larger than the record, it must be reduced.”

Justice Arya looked at defence counsel.

“Should that reduction be called an admission of fault?”

“I—”

“Answer only yes or no.”

Counsel was silent for a few moments.

“No.”

Justice Arya wrote—

“Hash: support for integrity.”

“Hash: not independent proof of truth/authorship/completeness/culpability.”

Malini wrote beneath that line—

“Narrower limit = not zero value.”



The fourth question concerned the custody register.

Because of the old seven-minute discrepancy, the question was already sensitive.

Justice Arya said, “Read the chronology.”

Aditya read the initial seizure time.

Then the sealing time.

Then entry into storage.

Then receipt at the laboratory.

Then image acquisition.

Then release of the working copy.

“The disputed discrepancy?”

“There is a seven-minute difference between the clock source used by the seizure team and the storage register.”

“The explanation for that difference?”

“In later testing, the two clocks were found not to have been synchronised to the same time source.”

“Is that explanation supported by records?”

“Partly.”

“To what extent?”

Aditya said, “There is a clock-correction record for the storage facility.”

“The synchronisation record for the seizure team’s device is incomplete.”

The defence rose at once.

“Then the State cannot eliminate the seven-minute discrepancy.”

Aditya said, “I am not eliminating it.”

“I am saying this—the discrepancy exists; there is support for differing clock sources; there is no independent indication of tampering.”

“Is tampering impossible?”

“I would not say that.”

"Is tampering proved?"

"No."

Justice Arya asked, "Would any change to the material during that interval break the hash consistency?"

"Not after acquisition."

"Before acquisition?"

"The hash does not answer that question."

The courtroom fell silent again.

Justice Arya wrote—

"Custody register: support for transfer history."

"Seven-minute discrepancy: partly explained by clock-source conflict, not wholly eliminated."

"Tampering: neither proved nor inferable from the discrepancy alone."

A defence lawyer said, "We want the Court to record that the chain was not intact."

Mrinal Dhar said, "The State wants the Court to record that the chain was intact."

Justice Arya looked from one side to the other.

"Both sentences are larger than this record."

"I will record this—the identified transfers and hash points are supported; a seven-minute timing conflict remains."

Malini wrote—

"Remove absolute adjectives; retain measured sentences."



The midday recess was short.

Aditya stood by a window in the courthouse corridor.

Malini gave him water.

He took a sip.

"Four questions done."

Malini said, "Two remain."

"The hardest?"

"The first four were about the limits of things."

"The remaining two are about the limits of relationships."

Aditya smiled.

"Relationships are often harder than things."

Malini opened her notebook.

"Independent external source."

"And person-specific bridge."

She asked, "What if the Court does not regard some sources as independent?"

"Then they will not be treated as independent."

"Our analysis?"

"Will shrink accordingly."

"And if the person-bridge collapses?"

"Then the person-specific sentences will be removed."

Malini studied his face.

"Aren't you afraid?"

After a few moments Aditya said, "I am."

"Of what?"

"That in the desire to preserve a structure we built ourselves, I may cross a limit."

"Then courage?"

"To let what should be cut, be cut."

Malini slowly nodded.

"The dignity of fact."

"Yes."

"Not the officer's?"

"The officer's dignity lies there too."



After recess, the fifth question began.

Justice Arya said, "Independent external source."

Devvrat Sinha placed three groups of records before the Court.

First—the custodian records of a payment gateway.

Second—a time-stamped summary from a financial intermediary.

Third—access information from an external communications service.

Lead counsel for the defence rose.

“Three names, but how many original sources?”

Justice Arya said, “I want the answer to that question.”

Malini listened, holding her breath.

Aditya said, “Some timestamps in the first and second groups originate from the same underlying payment request.”

“So they are not wholly independent?”

“Not as to that part of the timestamp.”

“The rest?”

“Fee assessment, reversal indicators and the custodian’s internal reference number were generated in independent systems.”

The defence said, “But the underlying transaction is the same.”

“Yes.”

“Then three documents are not three independent events.”

“Yes.”

Justice Arya wrote.

“One event, multiple records = multiplicity; not necessarily independence.”

She moved to the third source.

“External communications service?”

Aditya said, “Its access information came from a separate custodian, a separate system and a separate acquisition path.”

The defence asked, “Was the discovery path independent?”

“The initial account identifier was found in the payment records.”

“So the discovery was prompted?”

“Yes.”

“Independent reproduction?”

“From the service provider’s own records.”

Justice Arya asked, “Then at what level does independence exist?”

Aditya answered, “The discovery of the event was not independent; the origin of the record and the custodian were.”

Justice Arya did not smile, but her voice softened.

“Keep that sentence.”

“‘Independent source’ is not one concept; it contains three questions—discovery, origin, custodian.”

Malini immediately wrote—

“Independence is multi-layered.”

A junior defence lawyer rose.

“Your Ladyship, if the discovery was prompted by the payment records, is the external communications service fruit of a tainted tree?”

Justice Arya asked, “Were the initial payment records themselves unlawfully obtained?”

Counsel said, “I am not saying that here.”

“Then mere prompting does not taint an independently held record.”

“But caution is required before calling it independent corroboration.”

Devvrat Sinha agreed.

“The State will say ‘independent custodian-source’, not ‘wholly independent discovery’.”

Justice Arya wrote.

“The phrase has become smaller again.”

Outside in the waiting area, Ananya received word of that line and wrote—

“Independence, too, has levels.”



The sixth question was the hardest of all.

“Person-specific bridge.”

Justice Arya said, “Between device, account, timestamp, payment request and person, what sentence does the State want in the judgment?”

Mrinal Dhar opened a page.

“The State retains only three person-specific propositions.”

“First—contact information registered in Raghav Sethia’s name was associated with an identified payment account.”

“Second—during the specified period, a confirmation message was sent to that contact information.”

“Third—that account was mentioned in an independent financial-planning communication.”

The defence rose at once.

“Authorship from those three?”

Mrinal Dhar said, “The State does not ask for the word authorship.”

“Control?”

“Not comprehensive control.”

“Criminal purpose?”

“No.”

“Operation of offshore gambling?”

“Not from these three propositions.”

Justice Arya looked at Aditya.

“Investigating officer, did your earlier summary use the phrase ‘active operational relationship?’”

Aditya said, “It did.”

“And now?”

“That phrase is larger than these three foundations.”

“I abandon it.”

The courtroom stirred again.

A defence lawyer leaned toward a colleague.

From a distance Ananya tried to read their faces, but wrote nothing.

Justice Arya asked, “Then what remains?”

Aditya answered, “A limited association.”

“Name registration.”

“Message transmission.”

“Mention in a financial-planning communication.”

“The Court will weigh each of the three separately.”

“Does this prove culpability?”

“No.”

“Does it reduce the relationship to zero?”

“No.”

“Then?”

“Only a limited bridge for person-specific investigation.”

Justice Arya wrote.

“Person-bridge limited.”

“Authorship unproved.”

“Control unproved.”

“Criminal purpose unproved.”

“Some facts of association remain decision-relevant.”

Lead counsel for the defence said, “We would like to offer an alternative explanation for the registration.”

“Proceed.”

Counsel said, “The contact information could have been added by a shared administrator in the office.”

Justice Arya asked, “Record basis?”

Counsel showed a service policy, a shared-administration list and two witness statements.

The State accepted that those materials existed.

Justice Arya wrote—

“Alternative explanation: not merely possible, but supported by some records.”

“Accordingly, the weight of registration as proof of person-specific control is limited.”

Mrinal Dhar did not object.

Devvrat Sinha said only, “The State’s submission may be treated as modified to that extent.”



The hearing could have ended there.

But Justice Arya placed the six strips before her again.

“I will now read the reasoning path of the order.”

Everyone in the courtroom sat upright.

“First—the summons.”

“The clear portions of the request may be used as facts in the judgment.”

“No adverse inference from the ambiguous subcategory.”

“Non-production does not, by itself, establish existence, control, purpose or crime.”

“Second—the forensic image.”

“The image shows the identified material on the medium acquired.”

“It is not independent proof of every possible device, cloud repository, deletion history or person-specific use.”

“Third—the hash.”

“Digital sameness and integrity at the identified points are supported.”

"Not truth, authorship, overall completeness or culpability."

"Fourth—custody."

"The identified transfers are supported."

"A seven-minute timing conflict remains, with a partial clock-source explanation."

"Tampering is not inferable from that discrepancy alone."

"Fifth—external source."

"When one event is repeated across several records, multiplicity is not independence."

"Independent discovery, independent origin and independent custodian are separate questions."

"Sixth—the person-bridge."

"Limited facts of association remain decision-relevant."

"Authorship, control and criminal purpose are not established by this material alone."

Justice Arya did not close the papers.

She added—

"These six conclusions do not mean that the final outcome of the entire case has now been declared."

"They define the technical limits of the judgment's reasoning path."

"At the next stage, the Court will connect the whole record only to those propositions that have survived within today's limits."

Lead counsel for the defence rose.

"Your Ladyship, many of the State's earlier assertions have now fallen away."

"Yes."

"For that reason—"

Justice Arya stopped him.

"An assertion removed is not a victory for the State."

"Nor is an assertion removed a victory for the defence."

"It is judicial cleaning."

Devvrat Sinha nodded.

Mrinal Dhar gathered his papers.

Aditya remained still.

There was no smile of victory on any face.



The moment they emerged, the press crowd closed in from all sides.

Questions came at once.

"Has the State's principal technical claim collapsed?"

"Have the defence objections failed?"

"Was the hash accepted?"

"Was the chain of custody broken?"

"Was Raghav Sethia's connection proved?"

Ananya stood a little way off and listened.

A colleague asked her, "What will you write?"

Ananya opened her notebook.

"The Court clarified six technical limits."

"That's all?"

"Not all."

"That is the main thing."

"Anything more sensational?"

Ananya looked at him.

"Sensation is not a judicial category."

She wrote the headline—

"Hash Supports Integrity, Not Truth; Person-Bridge Limited."

Her colleague said, "That's very restrained."

Ananya struck out a word.

"It is restrained enough."

She then added—

"Order confined to technical limits; overall outcome still pending."



The evening brief reached the Ministry.

Shiveshwar Prasad read it in full.

The secretary sat before him.

The Minister asked, "Which sentences of the State were cut?"

The secretary read four points.
 “Adverse use of the ambiguous summons subcategory.”
 “The broad meaning of the word ‘authentic’.”
 “The absolute adjective in ‘intact custody’.”
 “The person-specific assertion of an ‘active operational relationship’.”
 The Minister asked, “Which sentences survived?”
 The secretary read.
 “The clear scope of the request.”
 “The limited contents of the acquired image.”
 “Hash-consistent integrity.”
 “The identified custody history.”
 “Some independently held custodian records.”
 “A limited person-specific association.”
 The Minister asked, “What is the press saying?”
 The secretary read several headlines.
 Some called it a defeat for the State.
 Some called it a defeat for the defence.
 Some called it a decisive technical victory.
 Shiveshwar Prasad put the paper down.
 “No response.”
 “But—”
 “No.”
 “The State will shape its next strategy within the limits written by the Court.”
 “A political statement will not add weight to this order.”
 After a few moments he added—
 “And no public spectacle of thanking the officer either.”
 The secretary looked surprised.
 “Why?”
 “Because the officer’s task was to answer with the courage to reduce his own sentences.”
 “He did that.”
 “If we turn that into a medal, the person will once again become larger than the method.”
 The secretary remained silent.
 The Minister said, “Open the file again tomorrow.”
 “From now on, strategy will change according to the limits of the decision.”



That night, Malini and Aditya again sat facing one another in the office.

There were no six strips on the table today.
 In their place lay a copy of the judicial order.
 Malini read it again from the first page to the last.
 “Four sentences were cut.”
 Aditya said, “Yes.”
 “The weight of three was reduced.”
 “Yes.”
 “Two defence alternatives were accepted as record-supported.”
 “Yes.”
 “Then why are you pleased?”
 Aditya smiled.
 “Am I pleased?”
 “Your face is lighter than yesterday.”
 Aditya turned a page of the order.
 “Because now I know which sentences I am entitled to say.”
 “And which I am not.”
 “Yes.”
 Malini asked, “What if the Court had accepted every sentence?”
 Aditya thought for a while.
 “Then perhaps I would not have tested my own limits rigorously enough.”
 “Did the State lose in this order?”
 “No.”
 “Did the defence lose?”
 “No.”

“Then who won?”

Aditya placed his thumb on the line in the order that read—when one event is repeated across several records, multiplicity is not independence.

“The sentence the record could bear survived.”

“The sentence it could not bear was cut.”

“I need no greater victory than that.”

Malini said slowly, “Now the Ministry will change strategy.”

“It should.”

“And the opposition?”

“They will too.”

“And the Court?”

“It will carry its reasoning path forward.”

Malini looked toward the window.

The city's night was still dense, but in the darkness it was possible to imagine the east.

She asked, “After so many years of investigation, are you not angry with anyone?”

Aditya took time before answering.

“Anger enters a human being.”

“But it has no right over the record.”

“If someone who challenged me asked the right question, that question protected my method.”

“And if a sentence of the State was too large, cutting it is not an insult to the State.”

“Then revenge?”

Aditya shook his head.

“No.”

Malini closed the copy of the order.

For a few moments the room remained silent.

One sentence remained on the table—the search for truth within limits.

That night, no one's revenge won.

Method prevailed.

094 The Dawn of Judgment — Chapter 3

The first light of dawn fell upon the northern window of the Home Ministry.
Last night's order was no longer merely paper inside a file.
It had become the boundary of the State's next sentence.
The special law room opened before eight o'clock.
Malini Karna arrived first.
Three copies lay on the table.
The Court's order.
Yesterday's technical response-summary.
And the Ministry's old legal strategy.
She placed all three in a single row.
For some time she only looked at them.
On the first page of the old strategy was written—the State's principal proposition.
There were red marks along the margin of the Court's order.
Four sentences had been struck out.
The weight of three had been reduced.
Two alternative explanations had been treated as supported by the record.
Malini opened a blank page.
At the top she wrote—State Position Conforming to the Judgment.
Then Aditya Jha entered the room.
There was no additional file in his hand.
Malini asked, "A new strategy today?"
Aditya looked at the copy of the order.
"Not new."
"Then?"
"A reduced strategy."
"Reduced?"
"Only as much as can survive the judgment."
Malini stopped her pen.
"The State generally wants expansion."
"At the judgment stage, what is needed is not expansion but precision."



At nine o'clock Shiveshwar Prasad arrived.
With him were the Home Secretary, the Law Secretary and two senior officers.
No one gave an opening statement.
The Minister opened directly to page seven of the order.
"Here the Court says—hash consistency supports integrity, not truth or authorship."
He raised his head.
"What does our old strategy say?"
The Law Secretary turned through the old file.
"Computational material reliably authenticated."
The Minister asked, "Will this sentence survive?"
The room remained silent.
Aditya said, "No."
"How much survives?"
"The identified contents of the acquired image remain unchanged in a hash-consistent manner."
The Minister asked again, "And truth?"
"A separate bridge is required."
"Authorship?"
"A separate bridge."
"Completeness?"
"A separate question."
The Minister drew a red line through the old sentence.
"Then the first change is here."

Malini wrote—

“Reduce the language of integrity; truth, authorship and completeness do not follow automatically.”

The Home Secretary said, “In the public summary as well?”

The Minister answered at once, “If a summary is issued, not one word beyond the order.”

“Political reaction?”

“No.”

“The opposition’s statement?”

“That is their right.”

“The State?”

“The State will speak within the Court’s boundary.”



The second page concerned the summons.

Aditya placed a list in front of them.

Clear demand.

Ambiguous subcategory.

Produced material.

Unproduced material.

Alternative storage location.

Malini asked, “Into which category does non-production under the summons fall?”

Aditya said, “First establish the expectation.”

“Meaning the material was expected to exist?”

“Yes.”

“Under the control of the identified custodian?”

“Yes.”

“Within the time period?”

“Yes.”

“Was the search adequate?”

“Yes.”

“Alternative location?”

“That must be tested.”

The Law Secretary interjected, “The Court has barred an adverse inference from the ambiguous subcategory.”

Aditya nodded.

“So in the Ministry’s strategy, the word ‘non-production’ will not remain one undifferentiated category.”

Malini made four subheadings—

“Non-production under a clear demand.”

“Non-production under an ambiguous demand.”

“Material available elsewhere.”

“Material whose very existence remains unresolved.”

The Home Secretary said, “This will become more complicated.”

Aditya replied, “If the reasons for judgment are complicated, we cannot manufacture confusion by shortening the sentence.”

The Minister said, “Good.”

“The State will not cut truth for the sake of simplicity.”

“But neither will it add more than truth.”



The third question concerned the scope of the computational image.

Malini opened the old map.

One device.

Two partitions.

One acquired image.

Some cloud-storage indicators.

Some references to external accounts.

The Court had already made it clear—the integrity of the acquired image did not prove the completeness of the entire computational universe.

The Law Secretary asked, “Then will the reference to cloud storage be removed?”

Aditya said, “Not the reference.”

“The conclusion will be reduced.”

“The distinction?”

“The indicator is in the record.”

“The limit of the material presently available is also in the record.”

“We do not know the contents of cloud storage that was not obtained.”

“So to say ‘the complete computational conduct’ would be inconsistent.”

Malini read the old sentence—

“A complete picture of the device and associated storage.”

She picked up her pen on her own.

“This goes.”

Aditya said, “Yes.”

The new sentence became—

“The acquired image shows the contents of the identified medium at the identified time; the completeness of other possible sources remains unproved.”

The Minister read it.

“Will this sentence make the State look weak?”

No one had the courage to answer.

Aditya said, “The nature of the State is determined not by the size of its sentence but by its reliability.”

Shiveshwar Prasad smiled faintly.

“Do not write that line in the file.”

“But keep it in mind.”



The fourth question concerned the custody register.

The seven-minute gap came before them again.

Support for clock resynchronisation was available.

Complete confirmation from an external time source was still absent.

Malini said, “Yesterday the Court did not treat this gap as tampering.”

The Law Secretary added, “But neither did it declare integrity complete.”

Aditya said, “Correct.”

“Then the strategy?”

Malini tried to answer.

“Where the custody entries exist, accept that history.”

“The seven-minute gap is explicit.”

“Clock resynchronisation is a supported alternative.”

“Tampering is unproved.”

“Complete integrity also unproved?”

She stopped.

Aditya said, “That last line requires care.”

“Why?”

“The overall chain and a single time discrepancy are not the same thing.”

“Then?”

“Write only the discrepancy that exists.”

“Write the alternatives as to its cause.”

“And write as a forbidden leap the conclusion that does not follow from it.”

Malini wrote—

“Existence of the time discrepancy accepted; conclusion of tampering barred; cause and effect remain separately under examination.”

The Home Secretary said, “Will the State itself mention this discrepancy in the judgment?”

The Minister said, “If the State does not, the Court will.”

“Then the State should say it first.”

For a few moments the room remained silent.



The fifth question concerned the independence of external sources.

A payment-gateway record.

An access-gateway register.

A telecommunications timestamp.

A computational export.

In the old strategy, all four had been called four independent confirmations.

Yesterday the Court had reduced the weight of two sources because their underlying event was the same.

Malini asked, “What is the count now?”

Aditya answered, “Not count.”

“Then?”

“Genealogy.”
 He opened a new page.
 At the top he wrote—Source Genealogy.
 Against each record, its original origin was written.
 Whose system?
 Whose control?
 Whose timestamp?
 Whose export?
 Whose selection?
 Whose interpretation?
 The Law Secretary said, “If two exports came from the same underlying register?”
 “Not two independent sources.”
 “If two separate custodians?”
 “Even then, test the underlying event.”
 “If there are independent discovery paths?”
 “Then the weight may increase.”
 “If the discovery path was prompted by a privileged indication?”
 “Then write the path of origin.”
 Malini wrote in bold letters on the paper—
 “Genealogy before multiplicity.”
 The Minister read the line.
 “Keep this.”



The sixth question concerned the person-specific connection.

Here the tone of the room changed.
 Because the distance between institution-level indicators and person-level allegations was the most difficult.
 The old file contained one sentence—
 “Active use of the device demonstrates operational control by the identified person.”
 The Court had reduced the weight of this sentence.
 Aditya said, “Material present on a device is not person-specific authorship.”
 The Law Secretary asked, “Then will the person-connection be removed entirely?”
 “No.”
 “Why?”
 “Some independent external connections remain.”
 “For example?”
 “A time-consistent access register.”
 “Some financial instructions.”
 “Some direct witness statements.”
 “But?”
 “Each has its own limit.”
 Malini wrote—
 “Person-connection: limited.”
 “Authorship: separate test.”
 “Control: separate test.”
 “Criminal purpose: separate test.”
 The Minister asked, “What does the State seek in the final judgment?”
 The room again fell silent.
 This was the first time the real strategic question had been opened.
 Aditya answered, “A conclusion where the record permits it.”
 “A limit where the person-bridge is incomplete.”
 “Where only an investigable question remains, no language of guilt.”
 The Minister asked, “And relief?”
 The Law Secretary straightened the paper.
 “Judicial directions that the categories of proof be kept separate.”
 “That investigation continue on independent material.”
 “No adverse inference from privileged or undisclosed material.”
 “The weight of technical material only within its limits.”
 “Person-specific conclusions only on an independent bridge.”
 The Minister asked, “Is the State asking for conviction?”
 The Law Secretary paused.

Aditya said, “Not at this stage of these proceedings.”

“Then write that clearly.”

Shiveshwar Prasad’s voice was firm.

“There must be no confusion even about what the State is not seeking.”

By noon the old strategy had been reduced to less than half.

Some pages disappeared entirely.

Some sentences were halved.

Some footnotes came into the main text.

Some principal claims went not into footnotes but directly into the abandoned-propositions register.

Malini asked, “Why keep abandoned propositions in the final file?”

Aditya said, “Because erasing the history would reduce the credibility of the judgment.”

“Let the Court see which sentence the State changed and why.”

“Could this not be used against the State?”

“Correcting oneself is not an offence.”

“If the statement was erroneous?”

Aditya thought for a few moments.

“If a statement was erroneous, its correction is necessary.”

“Concealing the record would be more damaging.”

The Minister had been listening to the exchange.

He said, “The abandoned-propositions register will remain.”

“But the title?”

Malini suggested—

“Revised or Abandoned Propositions and Reasons.”

The Law Secretary agreed.

Another question arose—the boundary between administrative action and judicial conclusion.

The Home Secretary asked, “If some systemic defects are clear, should departmental reform stop?”

Aditya said, “No.”

“But without person-specific fault?”

“Person-specific fault is not necessary for system reform.”

“For example, the custody register?”

“Yes.”

“Time synchronisation?”

“Yes.”

“Recording source genealogy?”

“Yes.”

“Recording independent discovery paths?”

“Yes.”

The Minister asked, “Should these reforms be described as victory in the case?”

“No.”

“Then?”

“Procedural reform.”

Shiveshwar Prasad looked toward the Secretary.

“Prepare a separate order.”

“Separate from the file of the judicial case.”

“Without language establishing anyone’s guilt.”

The Home Secretary wrote it down.

Malini found the distinction important.

Experience from an investigation can produce institutional reform.

But the need for reform is not proof of a person-specific crime.

In the margin of the page she wrote—

“System defect ≠ person fault.”

After noon there was a meeting on public communication.

Many headlines were spreading through the news media.

Some said—the State had retreated.

Some—the defence had collapsed.

Some—the case was proved by the hash.

Some—the seven-minute gap had ended everything.
 Shiveshwar Prasad read all the headlines.
 Then he turned the paper over.
 “The State will issue no victory statement now.”
 The media adviser asked, “Then one line?”
 The Minister said, “The Court’s order is available.”
 “That’s all?”
 “That’s all.”
 “Will the State not clarify its position?”
 “It will do so in Court.”
 “The news media?”
 “They will read the order.”
 The adviser looked dissatisfied.
 The Minister added, “We want to preserve the Court’s trust.”
 “Not the day’s headline.”
 “No victory over anyone’s name.”
 “No politics upon anyone’s fear.”
 “No guilt from anyone’s silence.”
 “No comment on anyone’s lawyer’s fee.”
 The Home Secretary nodded.



In the evening Malini was alone, counting the pages of the new strategy.
 The old file was thick.
 The new position paper was thin.
 But beneath every page was one question—
 “Why can this sentence be written in the judgment?”
 Where there was no answer, the sentence was removed.
 Where the answer was half, the sentence was reduced.
 Where an alternative explanation was strong, uncertainty was written.
 Where independent support existed, its source was written.
 Malini felt some unease.
 She went to Aditya’s room.
 Aditya was standing near the window.
 There was a light cloud cover outside.
 Malini asked, “Do you not feel that we are making our own case smaller?”
 Aditya did not answer immediately.
 “Smaller?”
 “Earlier the claim was larger.”
 “And now?”
 “Less.”
 “So?”
 “We are accepting what the Court has cut away.”
 “So?”
 Malini became a little impatient.
 “The State’s story is growing thinner.”
 Aditya opened the window.
 Outside air came in.
 There was a faint smell of earth.
 “Let the story grow thinner.”
 “A judgment rests on reasons, not on thickness.”
 Malini remained silent.



The smell of the air carried Aditya far back in time.
 Garh N. Arikel.
 The season of transplanting paddy.
 There was not knee-deep water in the field, but enough for the feet to sink.
 As a boy, Aditya once tried impatiently to cross the embankment.
 The mud caught his foot.
 He tried to wrench himself free.

His foot sank deeper.
 His grandfather called from a distance—
 “Not with force.”
 “First let the water enter around the foot.”
 The boy stopped.
 Slowly the water made space within the mud.
 The foot came free.
 There was no great teaching in this memory.
 Only a bodily knowledge—
 Fight the mud and the mud grips harder.
 Understand its structure and the foot comes free.
 Aditya now stood by a window in Delhi.
 Malini asked, “Garh N. Arikel again?”
 Aditya smiled.
 “Yes.”
 “What does the mud say?”
 “Use less force.”
 “And?”
 “Understand the grip.”
 Malini looked toward the position paper.
 “Is that why we are reducing the claims?”
 “That is why we are accepting limits.”
 “The two are different?”
 “Very different.”
 “Reducing a claim can be weakness.”
 Aditya said, “It is weakness when truth is left out.”
 “Accepting a limit is not weakness when falsehood is removed.”



The night meeting began again.
 This time there were only seven pages on the table.
 First—the facts accepted by the Court.
 Second—limited support.
 Third—the remainder unproved.
 Fourth—forbidden leaps.
 Fifth—revised or abandoned propositions.
 Sixth—the State's limited relief.
 Seventh—procedural reform, separate from the case.
 The Law Secretary read every page.
 The last sentence on the first page was—
 “The basis of judgment only to the extent supported by the record.”
 On the second—
 “The weight of support according to source genealogy, independence and direct connection.”
 On the third—
 “Unresolved points shall not be filled against the State.”
 On the fourth—
 “From integrity to truth, from device to person, from multiplicity to independence, from non-availability to deletion—not automatically.”
 On the fifth—
 “The history of revision preserved.”
 On the sixth—
 “The State seeks only such relief as the record at this stage can sustain.”
 On the seventh—
 “Institutional reform is not a conclusion of person-fault.”
 The Minister read all seven.
 “Anything concealed here?”
 Malini said, “No.”
 “Anything embellished?”
 “No.”
 “Anything political?”
 “No.”

The Minister looked toward Aditya.
“Then this is not a strategy but a confession?”
Aditya said, “An acceptance of limits.”
“Of crime?”
“No.”
“Of defeat?”
“No.”
“Then?”
“A State position fit for judgment.”
Shiveshwar Prasad nodded.



The Home Secretary still had a question.
“What should be sent to Devvrat Sinha and Mrinal Dhar?”
The Law Secretary said, “All seven pages.”
Aditya added, “Attach the source-summary.”
Malini said, “And the abandoned-propositions register.”
The Home Secretary asked, “The abandoned-propositions register too?”
“Yes.”
“Why?”
“So that in Court they do not inadvertently repeat an old, broader sentence.”
The Minister said, “That is necessary.”
“A sentence the State has abandoned must not be revived by the State’s senior legal representatives.”
The Law Secretary wrote—
“Transmission: State Position Conforming to the Judgment, Source Summary, Abandoned-Propositions Register,
Limited Relief.”
The Home Secretary asked, “When?”
“At dawn.”
The Minister said.
“Final authentication tonight.”
“No haste.”



After the meeting ended, Malini remained at the table.
Aditya did too.
Outside, the night had grown deep.
Malini asked, “Are you reassured now?”
“Somewhat more.”
“What will the judgment be?”
“I do not know.”
“Then why reassured?”
“Because now the State will tell the Court only as much as the record gives it the right to say.”
“And if that much is not enough?”
“Then it is not enough.”
Malini looked at him.
“So many years of work?”
“Work is not a warrant for a conclusion.”
“Expense?”
“No.”
“Political expectation?”
“No.”
“Public anger?”
“No.”
“Then only the record?”
“The record, law, and reason.”
Malini remained silent for a few moments.
Then she said softly, “Does the mud of Garh N. Arikel still catch your feet?”
Aditya looked out the window.
“It does.”
“But now I do not wrench myself free.”
Malini smiled.

Before midnight the final copy was ready.

At the top was written—

“Limited State Position Conforming to the Judgment.”

Beneath it—

“For the ongoing proceedings.”

No sentence of victory.

No declaration of person-specific guilt.

No abandoned proposition concealed.

No unresolved point filled in.

No adverse meaning drawn from privileged silence.

No claim beyond the limits of a hash.

No automatic person-authorship from a device indicator.

No independence merely from the number of records.

Malini checked the source marker on every page.

Aditya read the abandoned-propositions register once more.

The Law Secretary tested the language of limited relief.

The Home Secretary left space for signature in the transmission register.

On the final page Shiveshwar Prasad wrote only one line—

“The Court’s trust is greater than the State’s immediate advantage.”

He signed it.

The file was closed.

At dawn it would go to Devvrat Sinha and Mrinal Dhar.

That was the work of the next watch.

For now, one thing was clear within the Ministry—

The strategy had changed.

Truth had not.

And beneath the changed strategy, in Aditya’s memory, the wet mud of Garh N. Arikel remained still.

That mud did not give him the speed to win.

It gave him the patience to stand.

095 The Dawn of Judgment — Chapter 4

The first light of dawn had not yet spread fully across the Delhi sky.

On the desk in Attorney General Devvrat Sinha's chamber lay four sets of material.

First—the decision-conforming limited State position.

Second—the source summary.

Third—the abandoned-propositions register.

Fourth—the proposal for limited relief.

Mrinal Dhar was already seated.

Before him were three columns drawn in pencil.

“Permissible.”

“Limited.”

“Must not be said.”

Devvrat Sinha entered.

He read the first page.

Then the second.

After that he opened the abandoned-propositions register directly.

Mrinal Dhar asked, “The abandoned-propositions register first?”

Devvrat Sinha said, “Yes.”

“Why?”

“Before we understand what the State will say, we must understand what the State will not say.”

Mrinal Dhar smiled.

“At the decision stage, is a negative boundary also part of tarka?”

“Not merely part of tarka. Part of reason.”

He read the first abandoned sentence—

“Hash identity proves the truth of the material.”

Against it was written—

“Abandoned: a hash supports only the integrity-consistency of acquired material; not truth, authorship, completeness, or culpability.”

Devvrat Sinha picked up his pencil and wrote in the margin—

“This language stays exactly as it is.”

The second abandoned sentence—

“A secure-access indicator proves person-specific operation.”

Correction—

“A device/account-level indicator supports a limited association; an independent bridge is required for person-specific agency.”

Mrinal Dhar said, “The defence will attack this sentence most strongly.”

“It should.”

“The State's answer?”

“Only what is supported.”

“And if the Bench asks—then where is the person-bridge?”

Devvrat Sinha opened the third page of the source summary.

“Here.”

Mrinal Dhar read.

Temporal consistency.

External records from two separate custodians.

One limited contact indicator.

One witness statement, whose reliability was itself under separate examination.

One financial transaction, for which an alternative lawful explanation was available on the record.

He nodded.

“So not one point is sufficient by itself.”

“Correct.”

“And taken together?”

“Taken together too, only as far as the limit of each link permits.”

“Number does not automatically create strength.”

“No.”

“Then the State’s first discipline at the decision stage—to avoid the illusion of aggregation.”

Devvrat Sinha drew a line with his pencil.

“Write that.”

Mrinal Dhar wrote—

“The sum of multiple limited indicators does not automatically produce an unlimited conclusion.”

Devvrat Sinha said, “The weight of this sentence will apply to us as well.”

“To the defence as well.”

“To both.”



At a quarter past eight, the entry in the Ministry’s dispatch register was completed.

The Law Secretary obtained confirmation of receipt through a secure channel.

Aditya was informed of this process from a distance.

He gave no reaction.

Malini asked, “Are you waiting?”

“Yes.”

“For what?”

“For their cuts.”

“You want them to cut the State’s sentences?”

“If necessary, certainly.”

Malini remained silent for a few moments.

“An ordinary investigator would want to preserve the sentences he prepared.”

“That desire exists within me too.”

“Then?”

“Desire and law are not the same thing.”

“If the Attorney General says the basis for a sentence is insufficient?”

“That sentence goes.”

“After so much work?”

“The weight of labour does not fall upon the Court.”

Malini closed her notebook.

“I will remember that sentence.”

Aditya looked toward the window.

The morning sunlight was only now touching the upper edge of the building.

“Do not remember the sentence.”

“Then?”

“Remember its limit.”

“What do you mean?”

“Never increase evidentiary value because of the amount of labour invested.”

Malini nodded.

“And never reduce the value of an argument because of the defence’s resources.”

“Correct.”



Devvrat Sinha and Mrinal Dhar got stuck on the first paragraph of the decision-conforming State position.

The sentence was—

“The available material provides sufficient structural indicators of the organised operation of the offshore network.”

Mrinal Dhar asked, “Organised operation—by whom?”

Devvrat Sinha remained silent for a while.

“That question is necessary.”

“We must keep structure and person separate.”

“Change the sentence.”

The new sentence became—

“The available material provides limited support for multi-source structural associations; person-specific operation will depend, for each individual, upon a separate evidentiary path.”

Mrinal Dhar read it.

“The State’s claim has been reduced here.”

“Not the claim. The language has come down to its foundation.”

“The defence will say the State retreated.”

“That is their statement.”

“Ours?”

“We have to give reasons.”

The second paragraph discussed the payment gateway.

The financial records showed a relationship between two parties.

But an alternative lawful commercial explanation for the relationship was also available.

Mrinal Dhar said, “Remove the word ‘suspicious’ here.”

Devvrat Sinha asked, “Why?”

“Because the record itself shows only a transaction. Suspicion arises from context.”

“Then write—‘Transaction established; purpose undetermined.’”

“Person-specific role?”

“Undetermined, absent an additional bridge.”

They examined the additional bridge.

There was temporal consistency.

There was a message indicator.

There was one witness statement.

But in his first statement the witness had been unable to fix the time.

Mrinal Dhar said, “Do not make this witness the decisive bridge.”

“No.”

“Supplementary support?”

“Limited, with his unstable memory of time made explicit.”

The line was changed.

The third paragraph concerned the ledger.

Authorship unproved.

The internal structure of the material established.

Some entries matched external records.

Some did not.

Mrinal Dhar said, “Do not hide what does not match.”

Devvrat Sinha said, “That is why the source summary is with it.”

They wrote—

“Partial external correspondence; complete authorship or completeness unproved.”

The fourth paragraph concerned indications relating to deleted messages.

Mrinal Dhar asked, “Deletion established?”

“In some places.”

“Actor?”

“No.”

“Purpose?”

“No.”

“Then the term ‘destruction of evidence’ goes.”

“Yes.”

The new sentence became—

“Technical indicators consistent with the unavailability/deletion of some material are available; actor and purpose are not independently proved.”

Devvrat Sinha turned the page.

“Now this can survive in court.”

Mrinal Dhar said, “To survive does not mean it will be accepted.”

“Correct.”

“To survive means—it can be tested with reasons.”

Devvrat Sinha smiled.

“That is the correct definition of the decision stage.”



In the first part of the afternoon, Vidyanand Mishra was alone in his office.

An envelope lay beside his chair.

A bank notice.

He did not open it.

A second envelope contained a statement of medical expenses.

He placed that too at the corner of the desk.

On his mobile phone was a short message from Shailaja—

“Do not worry about the medicine. Eat on time.”

He read the message twice.

Then placed the mobile phone face down.

The assistant came in.
 "The State's new limited position has been received."
 Vidyanand said, "Put it down."
 "We have also received instructions from the client side."
 "What?"
 "To say publicly that the State has abandoned its original allegations."
 Vidyanand Mishra looked up.
 "Has the State abandoned all its original allegations?"
 "No."
 "Then should I say this?"
 The assistant fell silent.
 "No."
 "But the strategic advantage—"
 "Strategic advantage does not create a right to a false sentence."
 "The client will be angry."
 "Let him be."
 "The fee?"
 For a moment Vidyanand's gaze went to the two envelopes at the corner of the desk.
 Then he looked at the assistant.
 "A fee does not buy the dignity of the profession."
 The assistant remained silent.
 Vidyanand opened the State's limited position.
 He read the first page.
 The second.
 The third.
 When he reached the abandoned-propositions register, he stopped.
 He said softly, "This is useful."
 The assistant asked, "For us?"
 "For the Court."
 "Isn't the State's abandonment an advantage to our side?"
 "Where the State has abandoned a broad sentence, we will take the clear advantage."
 "Then?"
 "But what the State has not abandoned, we cannot call abandoned."
 "And what is undetermined?"
 "We will not call the undetermined an acquittal."
 "Why?"
 "Because undetermined means only this—the basis fit for decision is still insufficient or incomplete."
 "The client wants stronger language."
 Vidyanand did not laugh.
 "The Court will look for reasons, not severity."
 He picked up his pencil.
 "Write the first line of our response."
 The assistant prepared himself.
 Vidyanand said—
 "The defence welcomes each limitation acknowledged by the State; but it urges the Court that any person-specific adverse conclusion be based only upon an independent, testable bridge."
 The assistant wrote.
 "The second?"
 "Do not call the State's narrowing an admission of guilt."
 The assistant was startled.
 "We will write that?"
 "Yes."
 "In the defence brief?"
 "Yes."
 "Why?"
 "Because if we call the State's legal restraint an admission of guilt, tomorrow the Court may call our restraint an admission of guilt as well."
 The assistant stopped his pencil.
 Vidyanand said, "Method does not choose sides."

After noon, Devvrat Sinha joined the Ministry's Law Secretary on a secure call.

Mrinal Dhar was present as well.

The Law Secretary asked, "Are seven pages enough?"

Devvrat Sinha said, "No."

Silence fell for a moment.

"Too little?"

"Seven pages are too many."

Mrinal Dhar added, "At the decision stage, the State's principal position should be no more than four pages."

The Law Secretary asked, "The rest?"

"The source summary in an appendix."

"The abandoned-propositions register?"

"Separate."

"Why?"

Devvrat Sinha said, "So that the principal sentences are given no opportunity to conceal their own foundation."

The Law Secretary asked, "What will be in four pages?"

Mrinal Dhar counted—

"One—the facts already accepted by the Bench."

"Two—the associations capable of limited support."

"Three—the separate status of person-specific questions."

"Four—the State's limited relief."

"Five?"

"Five will not be on the main pages."

"The unproved remainder?"

"Under each association."

Devvrat Sinha said, "Do not push the unproved remainder into an appendix."

"Why?"

"Because the path of reasons is incomplete without that remainder."

The Law Secretary agreed.

"What is the limited relief?"

Devvrat Sinha answered—

"Where person-specific agency is not sufficiently supported, no broad adverse declaration."

"Where a structural violation is supported by independent records, a limited legal conclusion."

"Where there is a procedural error, its correction by a separate administrative direction."

"Where questions of confidentiality or privilege remain, no adverse inference."

The Law Secretary asked, "Will this not weaken the State's case?"

Mrinal Dhar said, "It will make the State's language precise."

Devvrat Sinha added, "Removing a weak sentence does not weaken a case; it keeps the Court from being misled."

The Law Secretary was silent.

Then he said, "The Minister will agree to this language."

Devvrat Sinha said, "I do not want an assumption about the Minister. I want written approval."

"You will have it."

By evening, a new four-page draft was ready.

Its title was—

"Limited State Submission for the Decision Stage."

The first paragraph—

"The State respects the Bench's earlier classifications."

The second—

"The State will rely only upon those facts and associations whose source-path, evidentiary value, and limits are testable on the record."

The third—

"The State will not present hash identity as proof of truth, authorship, or completeness."

The fourth—

"The State will not infer person-specific agency automatically from device/account-level indicators."

The fifth—

"The State will not seek an adverse inference from protected silence or undisclosed material."

The sixth—

"The State will use the investigation diary not as independent evidence, but only to the extent of permitted procedural purposes."

The seventh—

"The State will not revive abandoned propositions."

The eighth—

"The State seeks limited relief, with the reasoning path for each component shown separately."

At the bottom of the page Mrinal Dhar wrote—

"Unproved remainder: certain person-specific agency links, the actor/purpose behind some unavailable material, and the complete independence of some external sources."

Devvrat Sinha did not strike it out.

He added only one word—

"Explicit."

The new line became—

"Explicit unproved remainder."

Mrinal Dhar looked at him.

"This word will carry weight in the decision."

"That is why it is needed."

"The State itself will write 'unproved remainder'?"

"If it is in the record, it will."

"Why?"

"Because the State has no right to ask the Court for only half the truth."

The evening light was fading in Vidyanand Mishra's office.

Another message from Shailaja arrived—

"I have taken the medicine. Do not worry."

This time Vidyanand replied—

"Thank you. I will be late."

At once the bank notice opened again.

He read it.

For a few moments he closed his eyes.

Then he shut the screen.

The assistant asked, "The financial matter first?"

"No."

"Is it not necessary?"

"It is."

"Then?"

"The response for the next hearing is time-bound."

"The client has spoken of an additional advance."

Vidyanand's face hardened slightly.

"Condition?"

"That the public statement be more aggressive."

Vidyanand raised his head from the paper.

"Language in exchange for an advance?"

"It was not said so explicitly."

"The meaning is clear."

The assistant was silent.

Vidyanand said, "Send this reply—the commercial fee will not determine the language of the legal opinion."

"This may make the client—"

"So be it."

"You are under personal pressure."

"I am."

"Then..."

"Does that make it right to sell the boundary?"

The assistant lowered his gaze.

Vidyanand softened his voice.

"No. The question is not yours. The question is mine."

He opened the draft response.

He marked one paragraph in red.

It said—

"The State's case has collapsed."

Vidyanand struck out the entire sentence.

He wrote a new sentence—

“Some of the State’s broad propositions have themselves been narrowed; the evidentiary value of the remaining propositions is under the Bench’s examination.”

The second sentence said—

“The investigating officer’s repeated corrections prove his unreliability.”

He struck that out as well.

The new sentence—

“The reasons and record basis for the investigating officer’s revisions are separately testable; revision alone does not automatically prove reliability or unreliability.”

The assistant asked, “Will this language not help the State?”

Vidyanand said, “This language will help the Court.”

“Whose advocate am I?”

“The client’s.”

“Then the Court?”

“The client’s interest is not protected by misleading the Court.”

He paused for a moment.

“The dignity of the profession lies in that distinction.”

◆
In the first watch of the night, written approval arrived from the Ministry.

Shiveshwar Prasad’s comment was brief—

“Limited language approved. The Court’s trust is paramount.”

Devvrat Sinha read the comment.

Mrinal Dhar asked, “Final?”

“Not yet.”

“What remains?”

“One question.”

“Which?”

“If the Bench asks me—what is the State’s most important proposition?”

Mrinal Dhar thought for a while.

“That the structural associations are corroborated by independent sources?”

“Incomplete.”

“That person-specific associations require an independent bridge?”

“That is a limit.”

“Then?”

Devvrat Sinha said—

“The State’s most important proposition is this: the Court should accept only as much as the record can sustain with reasons.”

Mrinal Dhar remained silent.

Then he said, “That sounds less like a prosecution sentence and more like a sentence of judicial discipline.”

“At the decision stage, the State’s role reaches that point.”

“The State does not seek its victory?”

“The State seeks a legal conclusion.”

“The difference?”

“Victory is a party’s word. Conclusion is the Court’s.”

Mrinal Dhar closed the page.

“Send it in this form.”

Devvrat Sinha signed.

Mrinal Dhar did too.

The time was entered in the dispatch register.

The submission was forwarded for placement on the record of the ongoing proceeding.

No new proceeding.

No new special-leave petition.

A limited State position at the decision stage within the same pending proceeding.

◆
At that time Vidyanand Mishra was on the final page of his draft.

The bank envelope was still open.

The statement of medical expenses lay beside it.

Shailaja’s message was not on the screen, but in his memory.

He read the final paragraph—
 “The defence urges the Bench to test the State’s limited propositions as well against separate standards of person-specific allegations, source independence, privilege, unavailability, temporal consistency, and alternative explanation.”
 After it was a line—
 “The State’s narrowing proves the failure of its original case.”
 Vidyanand struck it out.
 He left the space blank.
 The assistant asked, “You will write nothing?”
 “No.”
 “A forceful line could have been here.”
 “The blank space is more truthful.”
 “The client will not be satisfied.”
 “Possibly.”
 “And you?”
 Vidyanand looked once at the bank paper.
 Then at the medical statement.
 Then at his draft.
 “My crisis does not give me the right to write a falsely forceful sentence.”
 The assistant remained silent.
 Vidyanand signed.
 At that moment his face was tired.
 But his voice was steady.
 “Send it.”



Late at night Aditya received two pieces of information.
 First—the State’s limited submission had been forwarded.
 Second—the defence response too was coming onto the record.
 Malini asked, “Will you read them?”
 “In the morning.”
 “Why not now?”
 “Because a tired mind can mistake an alternative explanation for an enemy.”
 Malini smiled lightly.
 “Is that also method?”
 “Understanding human limits is also method.”
 “What will the next question be?”
 Aditya wrote four words on the paper—
 “Suspicion.”
 “Allegation.”
 “Evidence.”
 “Decision.”
 Malini looked at them.
 “The same boundary again?”
 “Not again. Now the boundary of the final decision.”
 “The difference?”
 “Earlier we were asking whether an allegation could be made or not.”
 “Now?”
 “Now the Court will ask—which sentence can be written in the decision.”
 Malini was silent for a few moments.
 “The witnesses?”
 “Their fear, greed, guilt—all of it will come before us again.”
 “Are those evidence?”
 “No.”
 “But irrelevant?”
 “Not that either.”
 “Then?”
 “Human context. It has to be understood separately from the evidentiary path.”
 Malini drew a line beneath the four words.
 Outside, the night was still.
 Dawn was no longer far away.
 The State had sent its limited sentences.

The defence its limited rejoinder.

One advocate, even in the midst of private crisis, had chosen not to sell his dignity.

And the next test of judgment now stood before the Court—

The final boundary among suspicion, allegation, evidence, and a proved proposition.

096 The Dawn of Judgment — Chapter 5

The light of dawn had reached the high windows of the courtroom.
The corridor was not yet completely full.
But five thin files had already been placed in the courtroom of the Bench.
Each bore the same heading—
“Decision-Ready Propositions.”
Justice Arya took her seat.
Devvrat Sinha and Mrinal Dhar were at the State’s table.
Vidyanand Mishra was on the defence side.
Aditya Jha sat in the rear row beside Malini Karna.
Justice Arya opened the first file.
“Today we will not ask what direction the investigation has been taking.”
The room remained silent.
“Nor will we ask what the parties believe.”
She placed not her thumb but the tip of her pen upon the page.
“The question is small, but its weight is great.”
“In the final path of reasoning, what place can each proposition occupy?”
Vidyanand Mishra began to write.
Devvrat Sinha kept looking directly toward the Bench.
Justice Arya said—
“Five categories.”
“Established fact.”
“Fact providing limited support.”
“Undetermined proposition.”
“Mere allegation.”
“Prohibited inferential leap.”
She paused for a few moments.
“This classification is not a victory-list for the prosecution or the defence.”
“It is a boundary meant to protect the language of judgment.”



Devvrat Sinha lifted the first page.

“The State places its first proposition: hash consistency of the acquired forensic image of the seized device has been established.”

Justice Arya asked, “To what extent?”

“To the extent of integrity consistency of the bit-level material that lay within the defined acquisition scope at the time of acquisition.”

“Truth?”

“No.”

“Authorship?”

“No.”

“Completeness?”

“No.”

“Person-specific use?”

“No.”

Vidyanand Mishra rose.

“The defence does not dispute this limited sentence.”

Justice Arya wrote—

“Category One: hash consistency of the defined acquired material—established fact.”

Beneath it she wrote—

“This fact does not establish truth, authorship, completeness, or guilt.”

Malini drew a line between those two sentences in her notebook.

Aditya said softly, “Integrity ≠ truth.”

Malini wrote, “And integrity ≠ person.”

◆
The second proposition concerned a secure login indicator.

Mrinal Dhar said, "A successful login to one account is recorded at the specified time."

Justice Arya asked, "Source?"

"Server logs."

"Custodian?"

"External service provider."

"Time consistency?"

"Consistent with the acquired records."

"Person?"

Mrinal Dhar paused.

"The account level is established. Additional bridging evidence is required for person-specific agency."

Vidyanand Mishra said, "The defence wishes to add that the record does not completely exclude the alternative possibilities of shared account access, automated sessions, saved credentials, and remote operation."

Devvrat Sinha said, "The State accepts that limitation."

Justice Arya asked, "Then the judicial sentence?"

Mrinal Dhar answered—

"Successful login to the specified account established; actor undetermined."

Justice Arya wrote—

"Login—Category One."

"Person-specific agency—Category Three."

"Agency of a named person based solely on the login—Category Five."

The sound of pens moving could be heard in the room.

The same material had become three different sentences.

The evidentiary value of all three sentences was different.

◆
The fifth proposition concerned unavailable material.

A set of messages had been expected to exist.

It was not found at the specified storage location.

The earlier order, the custodian's policy, and the relevant period were all on the record.

But one alternative cloud-storage path had not been fully available.

Justice Arya asked, "What does the State wish to say?"

Mrinal Dhar said, "The expected set of messages was not found at the specified storage location."

"That is all?"

"For now, that is all."

Vidyanand Mishra said, "The defence wants the word 'deleted' expressly rejected."

Devvrat Sinha said, "Where there is no independent indicator of deletion, the State will not say 'deleted.'"

Justice Arya asked—

"Expectation?"

"There is a record-based foundation."

"Custodian?"

"Partly identified."

"Location?"

"One primary, one alternative."

"Search of the alternative location?"

"Incomplete."

"Then?"

Mrinal Dhar said, "Unavailability is a limited fact; destruction, actor, and purpose are undetermined."

Justice Arya wrote—

"'Not found' ≠ 'was destroyed.'"

She paused.

"And even if 'was destroyed' is established, 'was destroyed by X' does not follow automatically."

Malini underlined that sentence twice.

◆
In the first part of the afternoon, the Bench opened the list of witness statements.

The atmosphere changed at this list.

Behind every line on the paper was a human being.

The first witness was a former accounts assistant.

In his first statement, he had come forward three weeks late.

In his second statement, he had said that he feared losing his job.
 In his third explanation, he had acknowledged that he was also seeking unpaid dues from his former employer.
 The defence had raised this dual motive against his credibility.
 The State had said that fear and financial interest were both human context.
 Justice Arya asked, "What did he see directly?"
 Mrinal Dhar read—
 "He saw two people in one office on three occasions."
 "What did he hear?"
 "A discussion of business payments."
 "Illegal gambling?"
 "Not in express words."
 "Account operation?"
 "No."
 "Authorship?"
 "No."
 "Then what does his fear establish?"
 Devvrat Sinha said, "A possible reason for the delay."
 "His unpaid dues?"
 Vidyanand Mishra said, "A possible basis for bias."
 "And the offence?"
 Both sides were silent at the same moment.
 Devvrat Sinha said, "No."
 Justice Arya wrote—
 "Emotion is relevant to testing the circumstances of a statement; it is not independent proof of an offence."



The second witness was a technical employee.
 While giving his statement, he had repeatedly pressed his hands together.
 The investigation diary recorded: "Guilt plainly visible."
 Vidyanand Mishra had objected to those words.
 Justice Arya read the original diary entry.
 "'Guilt plainly visible'—whose perception is this?"
 Aditya was asked to answer.
 He rose.
 "An assessment by an officer on my team."
 "Did the witness say that he felt guilty?"
 "No."
 "What did he say?"
 "That after a configuration change, the server became unstable for some time."
 "Did he make that change?"
 "Yes, as part of routine maintenance."
 "Unauthorized?"
 "The record does not say so."
 "Then 'guilt plainly visible'?"
 Aditya answered without delay, "It was interpretation. Not a decision-ready fact."
 Justice Arya asked, "Which category would you place it in now?"
 "I would remove it."
 "Why?"
 "Facial tension does not establish person-specific guilt."
 Vidyanand Mishra looked toward Aditya.
 There was less challenge than acknowledgement in that look.
 Justice Arya wrote—
 "An investigator's reading of emotion is not decisional evidence."
 "Configuration change—established to the extent supported by the record."
 "Unlawful purpose—undetermined."
 "Guilt—not a judicial conclusion."
 Aditya sat down.
 Malini asked softly, "Was it difficult to cut your own diary?"
 Aditya said, "It was."
 "Then?"
 "Difficulty has no evidentiary value."

◆
During the recess, Ananya Kashyap stood on the courthouse steps.
Three representatives of the media had surrounded her.
One asked, “Has the court caught the witnesses lying?”
Ananya immediately said, “No.”
Another asked, “Is the State’s principal theory collapsing?”
“That was not said either.”
The third said, “Then what is the headline?”
Ananya opened her notebook.
She had written—
“The court is testing the boundaries of decision-ready sentences.”
A journalist laughed.
“That headline will not sell.”
Ananya said, “I do not write the question of what sells.”
“People want a clear answer.”
“Clarity and exaggeration are different things.”
“Did the State win or the defence?”
“For now, five categories have been made.”
“That is not an answer.”
“That is all the answer presently available.”
She closed the notebook.
The sunlight on the steps had grown stronger.
All the colours needed for sensation were present.
But judgment had not yet become black and white.

◆
After the recess, the Bench turned to the “person-specific bridge.”
That phrase had arisen repeatedly in many earlier hearings.
But today the question was different.
Which bridge could carry weight in the judgment?
Devvrat Sinha placed five sources before the court.
External financial records.
Login indicators.
Temporal consistency.
Limited witness statements.
One contact record.
Justice Arya asked, “Are these five independent discoveries?”
“No.”
“Independent sources?”
“Some.”
“Derived from one another?”
“Some share an investigative direction.”
“Then does calling the number five increase their weight?”
“No.”
Vidyanand Mishra said, “The defence specifically asks that multiple views derived from one source not be treated as multiple corroborations.”
Justice Arya said, “Accepted.”
She drew a table.
First column—original source.
Second—path of acquisition.
Third—relationship with other sources.
Fourth—person-specific capacity.
Fifth—alternative explanation.
Malini watched from a distance.
The entire case had not become smaller within those five columns.
Its confusion had.

◆
The first source was the bank record.
Independent custodian.
Independent business necessity.

Existence before the investigative question arose.
Justice Arya wrote—
“Independent original source.”
But person-specific capacity?
Up to identification of the account holder.
Not up to the purpose of the payment.
The second source was the server log.
Independent custodian.
But an account indicator did not, by itself, establish personal agency.
The third source was an exported view.
From the same server as the original source.
Justice Arya said, “This is not a second independent source.”
Mrinal Dhar said, “Accepted.”
The fourth was a photographed screen view.
Again, the same original source.
Vidyanand Mishra said, “Three presentations, one source.”
Justice Arya wrote—
“Multiplicity ≠ independence.”
The fifth was a witness statement.
An independent human source.
But his knowledge was limited.
Justice Arya wrote—
“Independent source ≠ sufficient person-specific bridge.”
Devvrat Sinha turned the page.
“The State will confine its submission within this limit.”



Vidyanand Mishra rose.
His voice was not tired; it was measured.
“The defence sees an inverse danger.”
Justice Arya asked, “What?”
“Where the State is narrowing its proposition, the court must not assume that the narrower sentence has thereby become established.”
Devvrat Sinha immediately said, “The State agrees.”
Vidyanand paused for a moment.
“I had not expected that answer.”
Devvrat Sinha said, “Accepting a limitation is not evidence.”
Justice Arya said, “Correct.”
“Removing an exaggeration does not make the remaining sentence automatically true.”
“The remaining sentence needs its own source.”
She wrote—
“Narrative reduced = evidence not increased.”
Then she changed the wording herself.
“Scope of narrative reduced = evidentiary value does not automatically increase.”
Ananya, seated in the rear row, fixed her attention on that correction.
The precision of a single word was changing judicial meaning.



The Bench now came to a person-specific sentence in the charge.
The sentence said that an office-bearer directly controlled the offshore operation.
Justice Arya asked, “Source for direct control?”
The State cited five pages.
First—a designation.
Second—a copy of an email.
Third—a meeting list.
Fourth—a login indicator.
Fifth—a payment.
Justice Arya tested each one in turn.
The designation showed role, not action.
Authorship of the email was not disputed, but its language was ordinary business language.
The meeting list showed attendance, not subject matter.

The login indicator showed the account, not the person.
 The payment showed a transaction, not its purpose.
 Devvrat Sinha himself said, “Even collectively, a sentence of direct control would go too far.”
 Vidyanand Mishra asked, “Then?”
 “Limited support for a structural relationship.”
 “Person-specific direct control?”
 “Undetermined.”
 Justice Arya wrote—
 “Broad allegation—Category Four, where an independent bridge is absent.”
 “Direct control inferred from the sum of these five limited facts—risk of Category Five.”
 She struck out the word “risk.”
 She wrote a new word—
 “Prohibited, unless there is an additional bridge.”



At this point, Vidyanand Mishra took a deep breath.
 Before him lay the client-side instructions from the previous night.
 The instruction said—
 “Have all the State’s person-specific allegations declared failed.”
 Vidyanand folded the paper and put it aside.
 Justice Arya asked, “Defence?”
 He rose.
 “We too accept one limitation.”
 Several eyes in the room turned toward him.
 “Where presence, a transaction, or an account-level event is established by an independent record, the defence cannot deny that fact merely because a person-specific offence has not been established.”
 Devvrat Sinha gave a slight nod.
 Vidyanand continued—
 “We contest the inference of guilt, not the existence of the record.”
 Justice Arya said, “That distinction is necessary for the judgment.”
 For a moment, Vidyanand’s voice sounded tired.
 But the sentence remained steady.
 “The defence too must not devour facts in its hunger for victory.”
 Silence descended upon the room.
 That sentence was a professional concession.
 And also a small act of resistance against a private burden.



A small but difficult question now came before the Bench.
 The investigation diary recorded of one witness—
 “Repeated silence, eyes lowered, obvious fear.”
 The State had not used this line in its written submissions.
 The defence wanted the court to treat it as an example of a wholly unreliable investigative method.
 Justice Arya asked, “Aditya Jha, whose entry is this?”
 “An officer on the team.”
 “Had you approved it?”
 “I saw it during consolidation of the diary, yes.”
 “What would you say today?”
 Aditya rose.
 “It mixes behavioural description with interpretation.”
 “How much of it is usable?”
 “Remained silent,’ if the temporal context is verified, may be a behavioural description.”
 “‘Obvious fear’?”
 “Interpretation.”
 “And even if fear is established?”
 “What caused that fear is a separate question.”
 “Guilt?”
 “No.”
 “Knowledge of the offence?”
 “No.”
 “Person-specific connection?”

“No.”

Justice Arya said, “In other words, emotion ≠ identity.”

“Yes.”

“Emotion ≠ agency.”

“Yes.”

“Emotion ≠ guilt.”

“Yes.”

Before sitting down, Aditya said, “And diary ≠ independent evidence.”

Justice Arya looked at him for a few moments.

“This limitation will remain on the record.”



The afternoon declined.

The list of five categories kept filling.

But the Bench kept cautioning—

“This is not the final judgment.”

“This is a delimitation of decision-ready material.”

“The legal consequence of each established fact is a separate question.”

“Each undetermined proposition does not automatically determine acquittal or conviction.”

“And every mere allegation does not acquire the right to become a judicial fact.”

At one point Devvrat Sinha said, “The State asks the Bench to record a clear finding on the existence of a structural network.”

Justice Arya asked, “A network in what sense?”

“An operational relationship among interconnected servers, payment gateways, promotional channels, and accounts.”

“A criminal organization?”

“That is a separate legal conclusion.”

“Person-specific participation?”

“Separate for each person.”

“Then is the word ‘network’ itself not weighted?”

Devvrat Sinha paused.

“It may be.”

Justice Arya said, “In the judgment, state the relationships first; name them later.”

Mrinal Dhar wrote a new sentence—

“Certain structural facts concerning interrelationships among multiple servers, payment paths, and accounts are established.”

Vidyanand Mishra said, “We do not object to the word ‘certain.’”

“But its criminal meaning does not follow automatically.”

Justice Arya said, “Correct.”



The Bench then took up a difficult proposition—

“After receipt of the summons, gaps in the records increased.”

The State said the chronology showed this.

The defence said that retention policy and automated cycles were also active at the same time.

Justice Arya asked, “Were the gaps measured?”

Malini said, “In some storage locations, yes.”

“Across the entire system?”

“No.”

“Who knew of the summons?”

The State named several people.

“Who had the technical capacity to create the gaps?”

The list turned out to be longer.

“Automated policy?”

“Active.”

“Was the policy’s effect measured separately?”

“Partly.”

“Then summons + gaps = knowing deletion?”

Devvrat Sinha said, “The State is not asking for so direct an inference.”

Vidyanand Mishra said, “Language of that kind was used earlier in the record.”

Aditya rose on his own.

"That language was too broad."

Justice Arya asked, "Today?"

"Gaps established to the extent measured. Cause has multiple possibilities. Person-specific agency undetermined."

"Temporal relation to the summons?"

"Limited supporting context, not independent proof."

Justice Arya wrote—

"Gap ≠ tampering."

"Temporal consistency ≠ purpose."

"Capacity ≠ agency."



After those three propositions, a strange lightness entered the courtroom.

The complexity had not diminished.

But each sentence was finding its own boundary.

Aditya remembered the old courtyard of Garh N. Arikel.

There his teacher had once said—

"A judgment is not that which closes every question."

"A judgment is that which says what is known as it is known, and does not say what is not known as if it were."

The memory came for a moment.

Then Aditya returned to the present.

In court, memory was not evidence.

But it was certainly a private foundation for methodological discipline.

He wrote on the paper—

"To write the undetermined as undetermined is also part of judgment."



The evening light leaned against the window.

The Bench's five files were now filled with markings.

The number of established facts was not smaller than expected.

But their language was narrow.

There were many facts providing limited support.

But they were not given the status of independent proof.

The undetermined propositions remained open.

Some parts of the allegations remained in their place.

Some inferential leaps were expressly excluded.

Justice Arya said, "There is one danger in this delimitation."

Every gaze turned toward her.

"The parties will go outside and quote only the categories favourable to them."

Ananya Kashyap, seated at the back, stopped her pen.

"Therefore the court makes this clear—"

"The legal meaning of established facts will be stated with reasons at a separate stage."

"A fact providing limited support will not be used beyond its limit."

"An undetermined proposition will not be filled with imagination."

"An allegation will not be turned into a judicial fact by dropping the word 'allegation.'"

"A prohibited leap will not enter the reasoning path of the judgment."

A long silence remained in the room.

This was not the final judgment.

But the grammar of the final judgment was being formed.



Devvrat Sinha rose.

"The State makes one request."

"Go ahead."

"Where a proposition is undetermined, the court should make clear that 'undetermined' does not mean that the opposing side's contrary proposition stands automatically proved."

Justice Arya said, "Correct."

Vidyanand Mishra also rose.

"The defence makes a parallel request."

"Where the State establishes a limited fact, the existence of that fact should not be treated as automatically establishing the allegation in its entirety."

"Correct."

Justice Arya wrote—

“Undetermined A ≠ established not-A.”

Then she clarified it in Devanagari—

“The failure to establish one proposition does not automatically establish its opposite.”

A second line—

“Establishing a limited fact does not automatically establish the broader allegation.”

Seated behind them, Aditya watched the symmetry between those two lines.

The discipline of judgment was not a weapon against one side.

It restrained the sentences of both sides equally.



The Bench was now about to conclude the day’s proceedings.

But Justice Arya looked toward a sealed envelope.

Argument concerning that envelope had been reserved for the next stage.

Questions of privilege, independent source, and the investigative origin-path still remained.

Vidyanand Mishra’s gaze also went there.

Devvrat Sinha closed the page.

Justice Arya said, “The classification we have made today does not prejudge the question of privilege.”

“The existence of sealed material does not establish its truth.”

“A claim of privilege is not a guilt-indicating gap.”

“And an independent external fact does not by itself extinguish the basis of privilege.”

Both sides nodded.

“At the next test, the source-path will be examined.”

The envelope remained closed.

Today’s proceedings were ending not by opening that closed object, but by marking its boundary.



When Aditya returned to the office at night, he reopened his copy of the five-column table.

Malini had already left.

The room was quiet.

He looked at each proposition in turn.

Some had not reached the category in which he would have placed them months earlier.

There had been a time when he had understood a secure login indicator as a direct bridge to a person.

There had been a time when he had given greater meaning to fear written into the diary.

There had been a time when he had treated deletion-consistent traces as close to purpose.

Today all of them stood at different distances.

He did not experience this reduction as defeat.

He experienced clarity.

He wrote five lines on the paper—

“Fact.”

“Suspicion.”

“Person-specific allegation.”

“Evidentiary value.”

“Established fact.”

Then he began drawing arrows.

An arrow from fact to suspicion.

An arrow from suspicion to allegation.

An arrow from allegation to evidentiary value.

An arrow from evidentiary value to established fact.

Then he crossed out all the arrows.

In their place he wrote—

“Independent reason for every transition.”

He rose from his chair.



Outside the window, the night was deepening.

In Aditya’s memory, Gangesha Upadhyaya’s method appeared not like an ancient picture but like a discipline of questioning.

“What is the qualificand?”

“On what basis the qualifier?”

“What is the relation?”

“Is that relation perceived or inferred?”

“What is the reason for the inference?”

“How far does the invariable concomitance extend?”

“What is the defeater?”

“What is the locus of absence?”

“Is the contrary possibility present on the record?”

“How far, at most, can the final sentence go?”

He felt that judgment was not merely the name of an answer.

Judgment was also the final discipline in the ordering of questions.

If one bridge in the middle was unproved, the final sentence could not leap across it.

If an alternative explanation was supported by the record, it could not be erased by silence.

If a witness cried, the court could ask why.

But it could not turn tears into a signature.

If someone was afraid, the source of that fear could be investigated.

But fear could not be turned into person-identification.

If someone sought gain, bias would be tested.

But the desire for gain was not by itself proof of a false statement.

The human mind enters the world of evidence.

But not by breaking the rules of evidence.



In the final watch of the night, the court’s order-summary reached the parties through a secure channel.

The heading was brief—

“Interim Directions on Classification of Decision-Ready Propositions.”

The first paragraph made clear—

This was not a final determination of guilt.

The second set out the five categories.

The third addressed the limits of human emotional states.

The fourth distinguished source independence from multiplicity.

The fifth addressed the need for a person-specific bridge.

The sixth marked the boundary between unavailability and deletion.

The seventh stated—

“Cutting away one side’s exaggeration does not automatically establish the opposing side’s broader proposition.”

The eighth—

“Separate hearing remains on privilege, sealed material, and the investigative origin-path.”

Aditya read the entire order.

He paused at the final line—

“Judicial reasons shall be written only as far as the evidentiary path can lawfully carry them.”

He closed the page.

Outside, it was night.

The dawn of judgment had not yet fully risen.

But a boundary between darkness and light had become clear.

Suspicion would remain under its own name.

Allegation under its own.

Limited fact within its own measure.

An undetermined question with its own blank space.

And established fact only as far as the path of reasoning could reach without a leap.

097 The Dawn of Judgment — Chapter 6

The morning sun was falling obliquely across the old High Court building.

The voices in the corridor were still restrained.

But inside Courtroom No. 7, four slips of different colours lay before the Bench.

On the first was written—

“Privileged communication.”

The second—

“Independent external fact.”

The third—

“Reproducible external fact.”

The fourth—

“Path of origin unresolved.”

Justice Arya took her seat.

Devvrat Sinha and Mrinal Dhar sat for the State.

Vidyanand Mishra sat for the defence.

Aditya Jha and Malini Karna were in the row behind.

Justice Arya lifted the first slip.

“I will not rewrite the definition of privilege.”

Vidyanand inclined his head.

Devvrat uncapped his pen.

“Today’s question arises after the definition.”

“At the stage of writing the decision, on which external facts may the Court rely if some stage of the investigation came close to privileged communication?”

The courtroom fell silent.

Justice Arya continued—

“The question is not whether privileged content should be opened.”

“The question is how far its shadow entered the Court’s chain of reasons.”

Malini wrote in her notebook—

“Shadow ≠ content.”

Aditya said softly, “But a shadow may also reveal a path.”

Malini added a second line—

“The source of the path is testable.”



Justice Arya read the opening paragraphs of the draft order.

“The proceeding pending before the Supreme Court remains where it is.”

“This hearing will address the limited questions in the privilege dispute that remain before this Court.”

“The purpose of this hearing is not to determine the overall guilt or innocence of either side.”

“It is only to mark the boundary of material that may properly be used in the decision.”

Vidyanand rose.

“The defence agrees to that limited scope.”

Devvrat said, “So does the State.”

Justice Arya asked, “Then shall the first point of agreement be recorded?”

“A claim of privilege is not an incriminating gap.”

Both sides agreed.

“The second?”

Devvrat said, “An independent external fact does not disappear merely because there is also privileged legal communication on the same subject.”

Vidyanand added, “Provided that the source of the external fact and the path by which it was reached are genuinely independent.”

“Good.”

Justice Arya wrote—

“Independence will be tested not by label, but by origin and path of access.”

Aditya’s eyes remained on that sentence.

The question was familiar now.

But this time the answer was not to determine the direction of the investigation; it was to determine the wording of the judgment.



The first disputed item was a payment entry.

The amount was undisputed.

The date was undisputed.

The existence of the external payment-service record, analogous to a bank record, was undisputed.

The dispute concerned purpose.

An older State note had said—

“Payment made under cover of legal advice.”

Vidyanand read the line.

“What is the source of that characterization?”

Mrinal Dhar answered, “An internal communication.”

“Subject to a claim of privilege?”

“Yes.”

Justice Arya asked, “Had the external payment record been called for before that communication was ever seen?”

Mrinal opened the timeline.

“Yes. The summons had been issued four days earlier.”

“The basis of the summons?”

“An independent accounting summary derived from a third party’s records.”

Vidyanand examined the accounting summary.

“The defence does not dispute that the payment existed.”

“But ‘under cover of legal advice’ cannot enter the judgment.”

Devvrat said, “The State withdraws that characterization.”

Several pens moved at once across the courtroom.

Justice Arya asked, “Then what is the maximum permissible sentence?”

Mrinal answered—

“On the specified date, the specified amount was transferred.”

“Purpose?”

“Unresolved on this record.”

“Person-specific criminal intent?”

“Unresolved.”

Justice Arya wrote—

“The external fact survives; the privileged characterization does not.”

Malini wrote beneath it—

“Existence of fact ≠ privileged meaning.”



The second dispute concerned a telephone-contact list.

The list had come from an independent service provider.

The numbers, times, and duration were external records.

But what was said in the conversations was not shown by those records.

An older investigative note had stated—

“Contact intensified immediately after the legal strategy.”

Vidyanand asked, “Where does the phrase ‘legal strategy’ come from?”

Aditya’s shoulders stiffened slightly.

Mrinal said, “From an indicator associated with a privileged meeting.”

Justice Arya looked directly at Aditya.

“Investigating Officer, do you stand by that sentence?”

Aditya rose.

“No, Your Ladyship.”

The silence in the courtroom deepened.

“Why?”

“The timing of contact is an external fact.”

“But calling it ‘after the legal strategy’ would import the meaning of privileged context into the judgment.”

“Meaning?”

“The old note went too far.”

Justice Arya asked, “The State?”

Devvrat said, “The State will not rely upon that note.”

Vidyanand looked at Aditya for a moment.

There was no triumph in the look.
There was recognition of a difficult concession.
Justice Arya wrote—
“Timing of contact is an external fact.”
“Subject of the conversations unresolved.”
“Deriving purpose by adding privileged context is prohibited.”
Aditya sat down again.
There was a slight ache within him.
But it was not the ache of defeat.
It was the ache of cutting away one’s own sentence.



The third item was not simple.

The name of an external service server had never before been recorded by the investigation team.

The record was unclear whether that name had been seen while the segregation list for privileged legal communications was being prepared.

Later, three useful records had been obtained from that service server.

Devvrat said, “The records themselves come from an external source.”

Vidyanand replied, “But where did the name that led to the external source come from?”

Justice Arya asked, “The timeline?”

Malini was called.

She set out five dates.

First—a witness statement containing the words ‘foreign service.’

Second—the beginning of privilege segregation.

Third—the full name of the service server appearing in a search note.

Fourth—the external request.

Fifth—receipt of the records.

Justice Arya asked, “An independent earlier source for the full name?”

Malini said, “Not clear at present.”

“The witness said ‘foreign service’; not the full name.”

Vidyanand said, “Then the third date is decisive.”

Devvrat said, “The State wishes to present an independent reproduction.”

“How independent?”

“A separate payment-gateway export contains a destination marker for that service server.”

“When was that export obtained?”

“Two days before the privilege segregation.”

Vidyanand asked for the page.

The page was produced.

The destination marker was abbreviated.

It did not contain the full name.

Mrinal said, “Technical mapping could have yielded the full name.”

Justice Arya asked, “Did it?”

The courtroom was silent.

“Possibility and actual origin are not the same thing.”

Devvrat lowered his head.

“The record does not show any actual prior mapping.”

“Then?”

“The State asks that the external records be preserved, but that their use in the judgment be withheld until independent reproduction is established on the record.”

Vidyanand said, “The defence agrees to that limited solution.”

Justice Arya wrote—

“The external nature of the source is not sufficient; the origin of access to that source is also relevant.”

“A possible independent path ≠ a proved independent path.”



The fourth dispute concerned a computational search term.

The investigation team had used a specific terminology to find numerous records.

The defence said that the terminology came from the language of privileged advice.

The State said that the same term also appeared in a public commercial contract.

Justice Arya called for both copies.

The public contract was older.

The investigation team had obtained its copy before the seizure.
But the search term first appeared in the investigative diary on the day after the privileged review.
Vidyanand said, "That is the problem of the path of origin."
Devvrat replied, "The term was independently available."

"Available, yes. Was it used?"

Mrinal examined the diary.

"No earlier use is recorded."

Justice Arya asked, "Is independent reproduction possible even now?"

Aditya answered, "Yes, Your Ladyship."

"How?"

"A separate team can see only the public contract and the external records already available, remain unaware of the privileged list, and formulate its own search terms."

"Has that been done?"

"Not yet."

"Then the Court will not assume the result of a hypothetical test."

"Yes."

Justice Arya corrected him, "Say—accepted."

Aditya said, "Accepted."

"Until separate reproduction occurs, in which category do the results obtained through this search term fall for purposes of the judgment?"

Mrinal answered, "Path of origin unresolved."

"Good."

Malini wrote—

"Available source ≠ source actually used."

"Proposed reproduction ≠ reproduction proved."



Before noon, the Bench turned to the privilege log.

There were thirty-seven entries.

Some contained dates.

Some identified sender and recipient.

Some gave a general subject category.

Some said only 'legal advice.'

Vidyanand said, "The log can say no more than that a claim exists."

Devvrat said, "But for the claim to be testable, some minimum description is necessary."

Justice Arya asked, "What minimum description is sufficient without opening the content?"

Vidyanand set out the sequence—

"Date."

"Parties to the communication."

"General legal character."

"Claim-holder."

"And, if necessary, the separate existence of any attachment."

Mrinal added, "And custodian of the record."

Justice Arya wrote.

"The purpose of the log is not to reveal protected meaning; it is to provide an external framework for testing the claim."

She asked again, "An incomplete log?"

Devvrat said, "The Court may require correction."

"An incriminating adverse inference?"

"No."

Vidyanand asked, "Repeated incompleteness?"

Justice Arya answered, "It may raise a question of procedural compliance."

"But the truth of the alleged offence is a separate question."

Malini wrote—

"Procedural defect ≠ personal culpability."

Aditya saw the line and did not smile.

He merely nodded.



After that, the Court came to a difficult mixed record.

A meeting summary contained five lines.

The first—the date.
The second—persons present.
The third—a general commercial subject.
The fourth—advice concerning legal risk.
The fifth—a practical task list for the following week.
The defence claimed privilege over the entire record.
The State wanted the first, second, and fifth lines.

Justice Arya asked, “Is the task list in the fifth line an implementation of legal advice, or an independent business instruction?”

Vidyanand said, “Difficult to answer without seeing the content.”

Devvrat said, “That is precisely why judicial review is needed.”

Justice Arya placed the page before herself.

The courtroom waited.

She read for a few moments.

Then she closed the page.

“Seeing it under seal does not make it true.”

“I have looked only at the classification question.”

Vidyanand listened closely.

“The first two lines may be copied separately as external facts.”

“The third, a general business matter, will have its external value tested separately if it is also available from an independent record.”

“The fourth is privileged.”

“The fifth is mixed; no ruling on it yet.”

Devvrat asked, “An independent external implementation record for the fifth?”

“If one exists, it may be tested by reference to its own source.”

“The meaning of this page must not be poured into that external record.”

Vidyanand said, “The defence agrees.”

Justice Arya added—

“One privileged line in a mixed document does not make the entire external world privileged.”

“Nor does the existence of the external world open the door to the privileged line.”



During the midday recess, Aditya and Malini walked to the last window in the corridor.

Below was a line of vehicles.

Malini asked, “I had thought independent reproduction was merely a technical test.”

Aditya said, “No.”

“Then?”

“It is a discipline against memory.”

“Memory?”

“If an investigator has once seen a privileged indication, it is not enough to say later that he has forgotten it and is thinking independently.”

“Then a separate team?”

“Sometimes useful.”

“And sometimes?”

“Insufficient, if the starting facts given to the separate team themselves came through a tainted path.”

Malini wrote—

“Independent team ≠ independent starting basis.”

“Exactly.”

She asked again, “And if the same result is found again?”

“The result being the same does not by itself prove either common origin or independent origin.”

“Then reproduction must show not merely the result, but the process?”

“Yes.”

Malini looked out of the window.

“This is very strict.”

Aditya said, “At the decision stage, strictness is not punishment.”

“It is the price of avoiding confusion.”



After the recess, Vidyanand advanced a broad submission.

“Wherever the investigation team came near privileged material, all subsequent discoveries should be treated as unreliable.”

Devvrat rose at once.

“That is the opposite exaggeration.”

Justice Arya looked at Vidyanand.

“Will you give a basis for the word ‘all’?”

Vidyanand was silent for a few moments.

“The influence of privileged material is difficult to measure.”

“Difficulty is not proof of a broad conclusion.”

Vidyanand lowered his head.

“I limit the submission.”

“To what limit?”

“Where there is a genuine dispute about the path of origin of a decision-relevant fact, the State should show an independent source or independent reproduction.”

Devvrat said, “The State is prepared to answer in that form.”

Justice Arya wrote—

“Proximity to privileged material $\neq$ contamination of every later fact.”

“But a genuine dispute as to origin $\neq$ something that may be ignored.”

Malini looked at Aditya.

Both sides were shortening their largest sentences.

At the dawn of judgment, no one’s language retained the shape of total victory.



The next item was a page from the investigative diary.

That page listed three possible directions of inquiry.

One succeeded.

Two failed.

The successful direction had passed close to the privilege dispute.

In its final summary, the State had mentioned only the successful direction.

Vidyanand asked, “Why not the two failed directions?”

Mrinal Dhar said, “Because they did not become decision-relevant facts.”

“But for understanding the path of origin?”

Aditya himself rose.

“Those two directions should be shown.”

Devvrat looked at him.

Aditya continued, “Because the failed branches may be relevant to understanding whether the successful direction arose suddenly or from the sequence of earlier searches.”

Justice Arya asked, “Are you asking to change the State’s summary?”

“Yes, Your Ladyship.”

“Why?”

“If failed investigations are omitted, the successful direction may appear more independent than it was.”

Silence returned to the courtroom.

Vidyanand stopped his pen.

Justice Arya wrote—

“A failed branch, where relevant to understanding the path of origin, shall not be kept outside the visible record.”

Malini said softly, “Failure too can be evidence of limits.”

Aditya answered, “Sometimes.”

“But neither success nor failure is truth by itself.”



The afternoon was declining.

Now a witness statement came before the Court.

The witness had said that a senior official had told him, “What the lawyer says must not go outside.”

The State described the sentence as a behavioural indication of confidentiality.

The defence said it supported the privileged nature of the legal advice.

Justice Arya asked, “Did the witness hear the conversation?”

“No.”

“Did he know the subject of the legal advice?”

“No.”

“The context of the remark?”

Mrinal said, “In the corridor after the meeting.”

Vidyanand said, “At least that much shows that confidentiality was expected.”

Justice Arya said, “Confidentiality and legal privilege are not the same thing.”

“The witness is a direct source only for the words that were spoken.”

“He does not prove the legal character of the conversation, its contents, or the completeness of the privileged relationship.”

Devvrat said, “The State limits the sentence to behavioural context.”

Vidyanand too narrowed his submission.

“The defence does not seek to prove privilege from this witness alone.”

Justice Arya wrote—

“Confidentiality indicator = limited context.”

“Privilege = separate legal test.”

“Witness impression or tone = not proof of content.”



A little later, the Court raised a question that had not appeared clearly on anyone’s list.

“If the claim of privilege is later held to fail, does an earlier unauthorized reliance by the investigation automatically become valid?”

There was movement in the courtroom.

Devvrat did not answer first.

Nor did Vidyanand.

Justice Arya said, “I am not declaring a general proposition of law.”

“I am asking about the decision-path on this record.”

Mrinal Dhar said, “If the claim fails, the question of availability of the material may change.”

Vidyanand added, “But the legality of the earlier method must be judged in the context of the time at which it occurred.”

Justice Arya said, “Correct.”

“A later classification does not erase history.”

“Nor does earlier caution make the later classification permanently true.”

Malini wrote—

“Temporal context is necessary.”

Aditya added—

“The judgment will look at the present record, but will not forget the sequence of the path.”



A page of private notes lay before Vidyanand.

At the top was written—

“Dignity versus defence.”

His phone vibrated several times, but he did not pick it up.

There was a short message from Shailaja—

“I have taken the medicine. Do not worry.”

Vidyanand closed his eyes for a moment.

Then he closed the message and looked toward the Bench.

His private pressure would not take the place of his legal argument.

He rose.

“Your Ladyship, the defence wishes to make one thing clear.”

“Go ahead.”

“We are not asking privilege to erase every external fact.”

“We ask only that the State not smuggle the meaning of privileged communication into external facts.”

Devvrat said, “The State agrees, and asks the same discipline from the defence.”

“What discipline?”

“That the claim of privilege not be converted into proof that the entire investigation is unreliable.”

Vidyanand answered, “Accepted.”

Justice Arya wrote—

“Both exaggerations prohibited.”

For a few moments, the courtroom was so quiet that the dignity of argument seemed larger than private exhaustion.



Before evening, the Court created five categories for use in the judgment.

First—

“Independent external fact whose source and path of access are already established.”

Second—

“External fact whose independent reproduction is complete and recorded.”

Third—

“Mixed fact from which privileged meaning can be separated.”

Fourth—

“Path of origin unresolved; unusable in the judgment for now.”

Fifth—

“Privileged content; no adverse use without a lawful exception or clear waiver.”

Devvrat asked, “What is required for reproduction under the second category?”

Justice Arya set out the sequence—

“Source of the starting basis.”

“Separation of team or analyst where relevant.”

“Search terms or method used.”

“Timeline.”

“Original external source.”

“And a showing that privileged meaning did not enter the reproduction question by concealment.”

Mrinal kept writing.

Vidyanand asked, “Is the same result sufficient?”

“No.”

“A different result?”

“That too does not by itself prove contamination.”

“The Court will examine the process.”

Malini wrote—

“Result ≠ path.”



A small dispute arose again.

One of the State’s presentation pages said—

“Confirmed by independent source.”

Vidyanand asked, “Independent source, or independent search?”

Mrinal Dhar looked at the page.

“The source is with a different custodian.”

“The direction of search?”

“From an indication given by the first team.”

“That indication?”

Mrinal paused.

“After the privilege dispute had begun.”

Justice Arya said, “Then correct the language.”

Devvrat asked, “How?”

“External source in a different custodian’s possession; independence of search disputed.”

Devvrat wrote it down at once.

Malini remembered her earlier formula—

Different custodian ≠ independent originating source.

Now its new form stood before her—

Different custodian ≠ independent path of search.

Aditya said, “The words became shorter, and the truth clearer.”



The final technical item was a computational export.

The export itself was not a privileged communication.

But how its selected time period had been chosen was disputed.

The State said the time period came from payment records.

The defence said the precise limits of that period matched the dates of privileged advice.

Justice Arya asked, “What period do the payment records provide?”

Mrinal said, “Twelve days.”

“The export?”

“Four days.”

“How were the four days chosen?”

Aditya examined the file.

The answer was not clear.

An analyst’s note said only—

“Relevant period.”

Justice Arya asked, “Relevant why?”

Malini examined the document.

"The reason is not recorded."

"Then the selection of four days?"

"Origin unresolved."

Devvrat said, "The State is prepared to generate a fresh export on the independent twelve-day basis."

Vidyanand said, "By a separate team?"

Aditya answered, "Yes."

Justice Arya said, "Then no final adverse conclusion will presently be drawn from the selected four-day export."

"Let the independent twelve-day reproduction come; its value can then be assessed."

Malini wrote—

"Selection of scope is itself part of the evidentiary path."



Before the hearing ended, Justice Arya called Aditya again.

"Investigating Officer."

"Yes—"

Aditya stopped at once.

"Accepted, Your Ladyship."

The faint severity in Justice Arya's eyes softened.

"You withdrew three of your old sentences."

"Yes."

"Did that weaken the investigation?"

Aditya thought for a few moments.

"The narrative of the investigation became shorter."

"The evidence?"

"It remained exactly what it was."

"Your success?"

Aditya took time before answering.

"To the extent that the Court does not rely upon a defective bridge."

Devvrat looked at him.

So did Vidyanand.

Justice Arya did not write.

She only said—

"At the decision stage, that answer from an investigator is worth remembering."

Aditya sat down.

Within him rose an old steadiness, like the smell of earth at Garh En Arikel.

But the night still remained.



After evening fell, the draft order was prepared.

The first line—

"Investigative necessity does not by itself confer a right to open privileged communication."

The second—

"A claim of privilege is not, by its own force, an incriminating gap."

The third—

"Independent external facts do not disappear merely because privileged communication exists."

The fourth—

"For decisional use of an external fact, its source and path of access may both require examination."

The fifth—

"A possible independent source and a proved independent source are different."

The sixth—

"Independent reproduction is not merely a result; it is a documented process."

The seventh—

"Mixed records require segment-specific examination."

The eighth—

"Where the path of origin remains unclear, adverse use is deferred."

The ninth—

"A failed investigative branch, where relevant to testing the path of origin, shall not be concealed."

The tenth—

"This order reaches no conclusion on overall guilt or innocence."

Mrinal Dhar read the entire draft.

Vidyanand removed two sentences from his objection note.

Devvrat shortened one adjective in the State's formulation.
Justice Arya added the final line—
"The Court's chain of reasons will not fill privileged silence with imagined sentences."



Late in the night, Aditya reached the bank of the Ganga.

The day in Delhi had fallen behind.
The fatigue of travel was in his body, but his mind was not yet completely tired.
Moonlight broke and spread across the water.
The air on the bank was cool.
Far away, someone had left a lamp.
The waves broke its reflection again and again, then joined it again.
Aditya sat silently.
In his memory, Gangesha Upadhyaya returned not like a statue, but like a sequence of questions.
What is the object?
What is the relation?
What is the basis of the qualifier?
In what locus does absence reside?
Where is the reason for inference?
What is the defeater?
Is the opposing possibility merely imagined, or does it too have a basis in the record?
And the sentence ultimately written—does it bear the weight of the sentence before it, or does it leap across an
intervening gap?

The four slips from today's hearing rose again before Aditya.
Privileged communication.
Independent external fact.
Reproducible external fact.
Path of origin unresolved.
He understood—Navya Nyaya does not merely make words precise.
It also makes the limits of authority precise.
The authority of investigation.
The authority of defence.
The Court's authority to speak.
The three are not the same.
The Ganga kept flowing.
Its flow was not proof that the bank was stable.
The stability of the bank was also not proof that every object within the water moved in the same direction.
There must be a relation between perception and conclusion.
There must be a basis for the relation.
And there must be the courage to accept the limits of that basis.
Aditya closed his eyes.
A blurred image of the old school at Garh En Arikel arose.
Pages of books.
Not the teacher's voice, but the pauses of questions.
"Why assume what was not said?"
"How far should what was said be accepted?"
"What was found—where was it found from?"
"The path that became visible—where did that path begin?"
An answer formed within Aditya—
A judgment does not manufacture truth.
It measures the carrying capacity of evidence.



The night wind grew stronger.

Aditya rose.
The line of moonlight across the water had grown longer.
A message from Malini arrived on his mobile phone—
"Order secured. The list of starting material for the separate reproduction team is ready."
Aditya wrote back—
"Give only independent prior sources. No disputed indications."
A few moments later, a message from Devvrat arrived—

“State summary revised. Three exaggerated sentences removed.”

There was no message from Vidyanand.

But none was necessary.

The Court’s order had already written the limits for both sides.

Aditya looked toward the Ganga one last time.

The darkness had not entirely lifted.

Nor had the light fully spread.

The dawn of judgment still stood in that intermediate hour when things were taking on their shape.

Privilege had not been turned into a criminal meaning of silence.

The investigation had not broken down a protected door in the name of its own authority.

External facts had not been destroyed merely because they stood near the privileged world.

But where the path remained unclear, it had not yet been given the weight of a judicial sentence.

The memory of Gangesha Upadhyaya slowly dissolved into thought.

Only one formula remained—

“Knowing the limit is not weakness; it is a qualification for judgment.”

Aditya left the riverbank and walked away.

At the next dawn, the sealed material and the investigative diary would again come before the Court.

But for now, the night remained in its place.

And the judgment, with its remaining questions, was not yet complete.

098 The Dawn of Judgment — Chapter 7

In the morning courtroom, the first light of the day had caught on the window glass.
There were footsteps in the corridor, but inside the courtroom a different kind of silence had settled.
Three sealed envelopes lay to the left of Justice Arya's bench.
To the right were two volumes of the investigation diary.
In the middle lay a thin file, on which red letters read: "Decision-Entry Test."
Malini Karna kept looking at that file.
Until yesterday, she had thought that once the source, integrity, and custody of the material had been made clear, her technical work was almost complete.
Today she understood that the doorway to judicial decision began there.
Aditya Jha sat beside her.
A small register lay open before him.
First line—"Material seen."
Second—"Who had the right to see it?"
Third—"Use against whom?"
Fourth—"Opportunity to rebut?"
Fifth—"Maximum lawful sentence in the decision?"
Malini stopped at the fifth line.
In factual analysis she had often written, "This is so."
In a judgment, the Court had to ask, "How far may this be said?"



Justice Arya took the bench.
Devvrat Sinha and Mrinal Dhar appeared for the State.
Vidyanand Mishra sat in the front row for the defence.
Ananya Kashyap had opened her notebook in the row reserved for the media.
Justice Arya first looked at the sealed envelopes, then at the diaries.
"Yesterday we set down the limits of the source-path."
Her voice was steady.
"Today the question is not what the Court may see."
She paused.
"The question is—of what has been seen, what may enter the reasons for decision."
The scratch of pens could be heard in the courtroom.
"To see and to write into the decision are not the same act."
"A seal may control the Court's access; it does not prove truth."
"An investigation diary shows the direction of an investigation; it is not, by itself, proved fact."
"A hash establishes integrity; not the truth of a statement, authorship, person-specific use, or culpability."
"And confidentiality does not make any material more probative."
Vidyanand placed his pen on the desk.
Devvrat nodded.
Malini felt that today it was not the limits of her science that were being tested, but the language in which those limits were stated.
Justice Arya said, "Let the State place its proposed decision-entry table."
Mrinal Dhar rose.
"Your Ladyship, the State proposes six categories."
He opened the first page.
"One—open-record material to which both sides had equal access and an opportunity to respond."
"Two—material subject to limited disclosure, where the necessary summary was supplied to the party and a response was possible."
"Three—sealed material for which independent external reproduction is available."
"Four—sealed material for which external reproduction remains incomplete."
"Five—directions, hypotheses, or an officer's interpretation recorded in the investigation diary."
"Six—privileged communication or any portion whose adverse use is prohibited."
Justice Arya asked, "Does assigning a category create evidentiary value?"
Mrinal answered at once, "No, Your Ladyship. It is only an initial sorting of the route of use."

“Good. Then state the maximum lawful use of each category as well.”

The first difficult turn came before Mrinal.

Devvrat said, not softly but clearly, “The State wishes to narrow the language of category three.”

Malini immediately looked toward him.

Devvrat said, “It is not enough to say that independent reproduction exists. It must also be examined whether the reproduction truly arose from an independent prior source, or merely followed the trail of the sealed indication.”

Justice Arya said, “Record that amendment.”

Malini wrote in her register: “Reproduction ≠ independent origin.”



Vidyanand rose.

“Your Ladyship, the defence’s principal objection is to category two.”

“What does limited disclosure mean? If the Court sees the whole material and the party receives only a summary, the Court may unknowingly be influenced by portions to which the party had no opportunity to respond.”

Justice Arya said, “Correct. Then the Court itself must state the limit of its own use.”

“Facts once seen cannot simply be erased from the mind,” Vidyanand said.

“But the reasoning-path of the judgment can be controlled.”

Justice Arya’s voice held no harshness, only discipline.

“Where there was no opportunity to rebut, there shall be no use for an adverse person-specific conclusion.”

“Where only a summary was disclosed, use shall be confined to the limits of that summary.”

“Where an independent external copy is available, the Court shall consider the external copy on its own footing; its value shall not increase merely because a sealed portion resembles it.”

“Where the origin-path is disputed, the material shall not become a decisive link in the judgment.”

Vidyanand said, “And the diary?”

“An officer’s view recorded in the diary shall be read as the officer’s view.”

“Not as fact?”

“Not as fact.”

Those two words sounded very light in the courtroom.

But Malini understood that sometimes the great weight of judicial discipline rests in a sentence that small.

Ananya wrote in her notebook: “Diary ≠ independent evidence.”

Then she circled it.

If she had wanted a sensational headline, she could have written: “Court Doubts Sealed Record.”

But she knew this was not doubt. It was classification.

The distance between truth and headline was being measured again.



The first sealed envelope was opened.

Inside was a certified copy of a timestamp list obtained from a service server.

A portion of that list had already been filed by the State in the open record.

Malini was asked, “What is the relationship between the two copies?”

She rose.

“Your Ladyship, the sealed copy and the open copy visibly contain the same rows, but I cannot yet say that they came from independent sources.”

“Why?”

“Because the supply-path of the open copy is clear, while the early collection-path of the sealed copy contains an intermediate export whose origin details are incomplete.”

Devvrat asked, “Hash?”

“They match.”

“Then similarity?”

“There is similarity. Independence is not proved.”

Malini fell silent for a moment after answering.

Once, she had taken particular confidence in answering a question about hash matching.

Today, stating the limit immediately after that answer was part of her professional duty.

Vidyanand asked, “Does this list prove use by any person?”

“No.”

“Account identifier?”

“It shows an account identifier.”

“Are account identifier and person the same?”

“No.”

“Device link?”

“Some sessions contain device identifiers.”

“Are device and person the same?”

“No.”

“Then what is the maximum the State may say from this list?”

Malini looked toward Justice Arya.

She said, “That at the specified time, the specified service record contains the specified account identifier and, in some sessions, specified device identifiers.”

“Control?”

“Not from this list alone.”

“Authorship?”

“No.”

“Criminal intent?”

“No.”

Justice Arya said, “Record this: technical clarity is not synonymous with a person-specific conclusion.”

Malini sat down.

There was a light sheen of sweat in her palm.

It was not fear.

It was the weight of the answer.



The second envelope contained a route-summary from a payment gateway.

In an earlier State presentation, one line from it had been linked to the words “unified control.”

Looking at the page, Justice Arya asked, “Whose words are these?”

Mrinal Dhar said, “From an older summary prepared by the investigation team.”

“From the original record?”

“No.”

“Then what does the original record show?”

Malini rose again.

“Three intermediate service identifiers in the transaction route, two time segments, and one settlement signal.”

“Unified control?”

“That is a conclusion, not an original field.”

“Person-specific basis for that conclusion?”

“Not in this record alone.”

Devvrat immediately said, “The State withdraws the phrase ‘unified control’ insofar as it was based on this material.”

Vidyanand looked toward him.

“Late, but better than never.”

Devvrat replied, “At the decision stage, a late narrowing is still better than allowing an overstatement to continue.”

Justice Arya intervened. “In this Court, it is not a party’s prestige but the lawfulness of the sentence that is under examination.”

Malini struck out the old phrase in her register.

“Unified control” disappeared.

In its place she wrote: “Structural consistency in the transaction route.”

Then, in brackets: “Person-specific control unproved.”

Something in that line was changing her.

An analyst’s credibility does not always lie in defending an initial conclusion.

Sometimes it lies in having the courage to strike it out.



The investigation diary was opened.

In the first volume was an old note: “Possibly the payment structure is directed from a single operating centre.”

Vidyanand asked, “Fact?”

Aditya himself rose.

“No. An investigative hypothesis at that time.”

“Later?”

“Some structural links were found, but the person-specific form of a ‘single operating centre’ was not proved.”

“Was that correction recorded in the diary?”

Aditya turned the pages and said, “Yes. A later entry narrows the hypothesis.”

Vidyanand said, “If the first entry had reached the media, the effect of that initial hypothesis would have been considerable.”

Ananya sat a little straighter in her seat.

Justice Arya said, “That is why the confidentiality of an investigation diary and its evidentiary value are separate questions.”

“Confidentiality may protect an incomplete investigative direction.”

“But it does not transform an incomplete direction into evidence.”

“And if the diary ever comes before the Court, the Court’s looking at it does not turn its hypothesis into proved fact.”

Aditya said, “The State agrees.”

Vidyanand asked, “Then what place does this entry have in the judgment?”

Devvrat said, “Limited background for understanding the investigative path; not an independent basis for determining guilt.”

Justice Arya dictated: “Diary-direction ≠ factual determination.”

Malini repeated the line.

She remembered how often, inside an analysis room, the word “direction” is spoken with such confidence that the listener begins to hear it as “fact.”

Today the Court was measuring the distance between those sounds.



Before the third envelope was opened, Vidyanand objected.

“A claim of privilege is still pending over this portion.”

Devvrat said, “The State does not seek to use the original communication. It seeks only to show the sequence of independent external steps taken after the date of that communication.”

Justice Arya asked, “Was the origin-path of those external steps tested under yesterday’s order?”

Mrinal Dhar said, “Partly.”

“What does ‘partly’ mean?”

“Two steps were reproduced from independent prior sources. The initial trigger for one step remains unclear.”

“Then the third step?”

“No adverse use at present.”

Vidyanand said, “And the privileged silence?”

“No incriminating gap,” Devvrat said.

Justice Arya looked toward Vidyanand.

“Any dispute left on this point?”

Vidyanand considered for a moment.

“Not on this limited point, if the order expressly states that no adverse inference shall be drawn from privileged silence.”

Justice Arya said, “It shall.”

Malini understood the importance of that sentence more deeply than any technical list.

Absence, silence, confidentiality—all three can look like empty spaces.

But not every empty space means “destroyed.”

Not every silence means “admission.”

Not every protected portion means “hidden truth.”

Sometimes the law itself says: there is a right to silence here.

To turn that right into an evidentiary absence would be a legal leap.



During the short midday recess, Malini stood in the rear corridor of the courthouse.

Ananya came up to her.

“May I ask one question?”

Malini smiled. “Outside the courtroom you may ask. I do not have to answer.”

Ananya smiled too.

“Fair enough. Today, twice, you narrowed your own earlier wording. Did that feel bad?”

Malini did not answer at once.

Through the corridor window, the road below was visible.

“I used to think an analyst’s job was to provide strong conclusions.”

“And now?”

“Now I understand—a strong conclusion is one that knows the limit of its own weight.”

Ananya raised her pen to write, then stopped.

“Can I publish that?”

Malini said, “That is a general statement. It is not case material.”

Ananya wrote it down.

Then she asked, “Isn’t the question of what happens in a judge’s mind after seeing sealed material extremely difficult?”

“Extremely.”

“Then what is the solution?”

“To write the reasoning-path. To identify the source of every sentence. Not to increase the weight of what could not be answered. Where there is external reproduction, to test it through the external source.”

“And what has already been seen in the mind?”

Malini said, “The human mind cannot be emptied. That is precisely why judicial discipline demands written reasons.”

Ananya fell silent.

After a moment she said, “A headline could be: ‘Court Refuses to Rely on Sealed Material.’”

Malini shook her head.

“That too would say more than what happened.”

“Then?”

“Write: ‘Court Sets Limits on Decisional Use of Sealed Material.’”

Ananya said, “Less dramatic.”

“More accurate.”

They both laughed for a few moments.

Then the bell rang.

Court was about to resume.



In the afternoon session, Justice Arya placed a new table before them.

“This Court’s decision-entry test will rest on seven questions.”

She read the first: “What is the source?”

Second—“What is the path by which the source was reached?”

Third—“To what extent are custody and integrity proved?”

Fourth—“What independent support exists for the truth or relevance of the material?”

Fifth—“Did the party receive necessary disclosure and an adequate opportunity to respond?”

Sixth—“Does a strong alternative explanation find support in the record?”

Seventh—“What is the maximum lawful sentence that may be based on this material?”

She lowered the page.

“Without the seventh question, the first six remain incomplete for judicial reasoning.”

Vidyanand said, “The defence wishes to add: if material is only supporting, it should not be given decisive language in the judgment.”

“Accepted.”

Devvrat said, “The State wishes to add: absence of a supporting fact does not by itself erase a principal fact proved independently.”

“That too is correct. Reduction in evidentiary weight and extinction of a fact are not the same thing.”

Malini wrote: “Limits operate in both directions.”

It suddenly became clear to her—the discipline of evidence was not merely a tool for cutting down the State’s claim.

It also cut down exaggeration by the defence.

If a sealed portion was unusable, independently established open-record material did not vanish with it.

If a diary hypothesis was not evidence, that did not make an externally proved timestamp false.

If privileged silence could not support an adverse inference, that did not prohibit an independent third-party record.

Navya Nyaya turned a limit not into one side’s weapon, but into a discipline of relations.



The State placed the next material—a summary of customer-identity verification.

Malini had earlier paid particular attention to two fields in that summary.

One was a name variation.

The other a contact indicator.

Vidyanand asked, “Original source of this summary?”

“A third-party service provider,” Malini said.

“Original record available?”

“Partly. Original entries for some fields; exports for others.”

“Whose exports?”

“The service provider’s system exports.”

“Person-specific verification?”

Malini looked at the page.

“There is a copy of an identity document, but the direct identity of the person who uploaded it is not established by this record alone.”

“Then what category does this name variation fall into?”

“A limited supporting fact—if the relationship is confirmed by other independent sources.”

Justice Arya asked, “What is the limit of the word ‘supporting’?”

Malini said, “Here, only to supporting the proposed account-link.”

“Good. But even ‘supporting’ carries weight. Supporting what?”

Malini answered, “Only the proposed link to the account; not person-specific operation or intent.”

“Make that limit explicit in the table.”

Malini wrote it down.

There was a time when she would have regarded such a sentence as excessive caution.

Now she understood that without such caution, a fact grows larger than its original shape.



The next dispute arose over a missing mail-archive segment.

The State’s first report had said, “Message later unavailable.”

A later note had used the phrase “possible deletion.”

Justice Arya asked, “Independent indication of deletion?”

Aditya rose.

“Not complete. The record contains two alternative causes: retention policy and account synchronisation.”

“Then ‘deleted’?”

“The maximum we can say is: the expected segment was not found in the stated archive location.”

“Why was it expected?”

Aditya briefly set out the source, the time range, and the retention-policy basis.

Vidyanand asked, “Was the search complete?”

“No. One remote archival copy was technically unavailable.”

“Then unavailability?”

“Limited. Up to ‘not found.’ Not up to ‘was destroyed.’”

Justice Arya said, “The judgment will state that distinction expressly.”

Malini wrote in her register: “Gap ≠ tampering.”

Beside it she added: “Incomplete search ≠ complete unavailability.”

An old suspicion could remain in the diary.

Only a tested sentence would enter the judgment.



Near evening, Justice Arya said, “The Court will now read a sample of the proposed reasoning-path.”

The clerk handed up the first draft.

The first sentence read: “The record clearly establishes the defendant’s control.”

Justice Arya stopped.

“Which record?”

The State’s row was silent.

She asked again, “Which relationship?”

Devvrat looked at the draft.

“This sentence is too broad.”

“Then strike it.”

The sentence was struck out.

Second draft: “The timestamps, account identifiers, and payment path correspond with one another.”

Justice Arya asked, “What does ‘correspond’ prove?”

Malini said, “Chronological consistency.”

“Person?”

“No.”

“Intent?”

“No.”

“Then write: ‘The specified records display chronological consistency; that consistency does not by itself prove person-specific operation or intent.’”

The clerk wrote it down.

Third draft: “The sealed material confirms the State’s case.”

Vidyanand rose immediately.

Justice Arya raised a hand. “No objection is necessary. That sentence will not survive.”

She said, “To the extent that a specific sealed portion is reproduced from an independent external source, the Court will consider only the externally reproduced portion.”

“The seal itself confirms nothing.”

Fourth draft: “The investigation diary has reflected the same theory from the beginning.”

Aditya himself said, “That is factually incorrect. The theory changed in the diary.”

There was a small stir in the courtroom.

Justice Arya looked toward Aditya.

“Does the State seek to conceal changes in its investigation?”

“No, Your Ladyship. Failed branches will remain part of the record.”

“Good. A changing theory is not proof of weakness; a concealed change may become a question of credibility.”

Malini underlined that sentence.

Scientific testing was like that too.

A hypothesis survives, breaks, changes.

Respect for truth does not lie in preserving the first idea; it lies in accepting the result of the test.



At one point Justice Arya asked Malini directly, “What do you regard as the greatest lesson in this entire record?”

Malini was startled.

The question felt more personal than evidentiary.

Before answering, she did not look toward Aditya.

“Your Ladyship, I once thought that after a fact was found, the principal task was to preserve it and read it correctly.”

“And now?”

“Now I understand—the discipline governing a fact is formed together with its source, relation, disclosure, opportunity to rebut, and the limits of lawful use.”

“And sealed material?”

“What we are permitted to see does not give us the right to write all of it into the judgment.”

“The diary?”

“It shows direction; to become proved fact, it needs external evidence.”

“Hash?”

“Only as far as integrity.”

“Account?”

“As far as the account, not the person—unless a separate relationship-path is proved.”

“Unavailability?”

“As far as the scope of the search.”

Justice Arya nodded.

“Record that the analyst’s answer is a proper summary of evidentiary limits.”

Malini sat down.

It did not feel like a victory.

It felt like a responsibility.

Because the Court had respected her science by also writing down its limits.



In the final hour of the session, Vidyanand raised a difficult question.

“If an external fact is independent, but the Court understood its significance only because it had first seen sealed material, then what?”

Justice Arya said, “Discovery of significance and origin of the fact are separate questions.”

Vidyanand said, “But in adverse use, the two may converge.”

Devvrat agreed.

“In such a situation the State must show either that an independent reason for the importance of the external fact was also available in the record, or that adequate disclosure and an opportunity to respond were given to the party.”

Justice Arya added, “And if that cannot be shown, the Court may reduce the adverse weight of the fact, even though the fact itself came from an independent source.”

Malini wrote: “Independent source $\neq$ independent discovery $\neq$ independent significance.”

The line was new.

Aditya looked at it.

There was approval in his eyes, not excitement.

The final stage of Navya Nyaya was now finding relationships within relationships.

Where the fact came from.

Why the investigation reached it.

Why that fact was treated as significant.

Whether the party was able to answer that significance.

And, finally, how much weight the Court could give it.

Justice Arya read the day's interim directions.

"One—the existence of sealed material or the Court's judicial inspection of it is not independent proof of truth."

"Two—a direction, suspicion, hypothesis, or officer's interpretation recorded in an investigation diary shall not be received as proved fact."

"Three—where the necessary summary or basis has not been adequately disclosed to a party, there shall be no adverse person-specific use."

"Four—where independent external reproduction is available, the Court shall consider the evidentiary value of the external source; similarity to sealed material shall not automatically increase its weight."

"Five—privileged silence shall not be treated as an incriminating gap."

"Six—failed or altered investigative branches recorded in the diary, to the extent relevant to decisional assessment, shall not be concealed."

"Seven—integrity, custody, similarity, or multiplicity of appearances are not independent equivalents of person-specific truth, authorship, control, intent, or guilt."

"Eight—the source, relationship-path, and opportunity to rebut shall be clear for every adverse sentence in the judgment."

She closed the page.

"This is not the final judgment."

"This is the boundary of the reasoning-path."

Vidyanand said, "The defence seeks clarification of two words, but does not disagree with the structure."

Devvrat said, "The State is prepared to make its remaining submissions within this structure."

Justice Arya said, "Then that is enough for today."

When the Court rose, Malini did not leave immediately.

She remained seated with her register open.

On the first page was the old word: "Verification."

On the second: "Source."

On the third: "Integrity."

On the fourth: "Independence."

Today she added a fifth page: "Decisional use."

She wrote: "Finding a fact is one event."

"Determining the meaning of the fact is another."

"Judicial use of the fact is a third."

"To collapse all three into one is error."

Aditya had come back behind her.

"Shall we go?"

Malini said, "One line remains."

She wrote: "There is no rule that material is more true merely because it is more hidden or more protected."

Aditya read it.

"And the other direction?"

Malini understood.

She added: "If material is unusable, that does not make an independent open fact false."

Aditya said, "Now it is complete."

They both walked out.

That evening in the media room, Ananya was writing her report.

She struck out the first headline: "Court Distrusts Sealed Evidence."

She struck out the second as well: "State's Key Evidence Weakened."

She wrote a third: "High Court Sets Out Eight Limits on Decisional Use."

She looked at it for a few moments.

The headline was not dramatic.

But the day's hearing had not been a dramatic event either.

It had been a discipline of increasing and reducing the weight of words.

Inside the report she wrote clearly: "No final decision on guilt or innocence has yet been made."

Then she added: "The Court is deciding only what material may be used, and to what extent, in the reasoning-path."

Ananya read the whole report once before publishing it.

There was no "big victory" in it.

No "crushing defeat."

No “sensational revelation.”

Only limits.

And perhaps the hardest report in this case was to make limits themselves news.



At night, Aditya and Malini were reviewing the final table in the office.

The table had no five-colour coding; only five clear words.

“Decision-ready.”

“Limited support.”

“Undetermined.”

“Allegation only.”

“Adverse use prohibited.”

Malini tested each line one by one.

Some facts went into the first category.

Some into the second.

Many stopped in the third.

Some older claims fell into the fourth category.

And some material remained outside judicial reasoning in the fifth.

She asked, “After so much sorting, doesn’t the story become less clear?”

Aditya said, “The story, perhaps. Not the decision.”

Malini smiled.

“I am an analyst. I want clarity more than story.”

“Then call this ambiguity clarity.”

“What do you mean?”

“To write what is undetermined as undetermined is itself clarity.”

Malini closed the register.

Beyond the door, it was night.

The office light reflected in the glass.

Behind that reflection was the real light of the city.

The two seemed to merge into one another.

But Malini now knew—visual blending is not proof of source blending.

She rose.

Aditya gathered the files.

A message arrived on the phone that counsel’s supplementary papers for the pending Supreme Court proceeding were being prepared.

Aditya read only one line and did not reply.

That question belonged to the next morning.

The lesson of today’s proceedings was clear enough before Malini—

“Seal ≠ truth.”

“Diary ≠ independent evidence.”

“Integrity ≠ truth.”

“Material seen ≠ decision-ready material.”

And the final line—

“Discipline does not weaken a fact; it reveals its lawful shape.”

099 The Dawn of Judgment — Chapter 8

The first grey light of dawn had not yet fully risen over the roofs of the city's buildings.

Only one lamp was burning in Vidyanand Mishra's office.

On the desk lay open the High Court's directions from yesterday, the concise summary of the privilege register, the limits on use of sealed material, and the record of the special-leave proceedings already pending before the Supreme Court.

A thin draft lay before Vidyanand.

On the cover page was written—

"Consolidated Supplementary Grounds and Limited Interim Prayer in the Pending Special-Love Proceedings."

Below it, a line had been added in red pencil—

"Not a new special-leave petition."

Vidyanand read that line twice.

Then he put down the red pencil.

His junior counsel asked, "Is this line necessary on the cover page?"

"Necessary."

"Why?"

"Because changing the name of a procedure does not change its nature."

He placed his thumb on the third paragraph of yesterday's High Court order.

"Our question is not the existence of the order."

"Then?"

"Before any person-specific adverse sentence enters the decision, the minimum test of its source-path, disclosure, and opportunity to answer."

The junior said, "We can seek a broad restraint."

Vidyanand shook his head.

"Broad words often conceal a weak prayer."

"Then a limited one?"

"As far as the record supports, and no farther."

He opened the first page of the draft again.

The first ground read—

"The contents of privileged communications cannot directly or indirectly form the basis of an adverse conclusion unless independent external reproduction is clearly recorded."

Vidyanand underlined the words "adverse conclusion."

"Do not write 'offence' here."

The junior asked, "Why?"

"Because the present question is not guilt, but decisional use."

The second ground—

"If sealed review causes the significance of any open fact to become apparent, the Court should examine that fact's independent path of significance."

The third—

"An officer's hypothesis recorded in an investigation diary should not, without an independent basis, become a person-specific proved fact."

The fourth—

"Where the essential basis is not sufficiently known to the opposing party, its adverse weight should remain limited or deferred."

Vidyanand paused at the fifth ground.

It read—

"The High Court's decisional classification be set aside."

He struck out the entire line.

The junior was startled.

"But that was the principal prayer."

"No."

"Then?"

"The principal prayer is that no opaque bridge remain within the classification."

He wrote a new line—

“Use of the decisional classification be treated as valid only to the extent that the source, relational path, disclosure status, and maximum evidentiary value of each adverse proposition are clearly recorded.”

The junior remained silent.

Vidyanand did not smile.

He only said, “The defence, too, will not go beyond the limits of truth.”



At seven o'clock, a digital copy of that draft reached the office of Attorney General Devvrat Sinha.

Mrinal Dhar was already there.

Devvrat read the first page and said, “This time they are not seeking to stop the entire investigation.”

Mrinal replied, “And it would be proper to make that clear on the record.”

Aditya Jha sat across from them.

Malini Karna had her register open.

Devvrat asked, “The first sentence of the State’s reply?”

Aditya did not speak immediately.

He reread the fourth point of the supplementary grounds.

“The State does not disagree with the principle that an undisclosed basis cannot become an independent bridge to a person-specific adverse conclusion.”

Mrinal looked at him.

“That is very close to the defence’s sentence.”

“If the sentence is correct, closeness is not a defect.”

Devvrat asked, “Where is our real disagreement?”

Malini pushed one page of her register forward.

“Here.”

She had made four columns.

The first—“Privileged subject matter.”

The second—“Independent external source.”

The third—“Path by which significance became apparent.”

The fourth—“Judicial use.”

Malini said, “The defence is questioning the relationship between the first and third columns.”

“The State’s answer will be that a fact in the second column does not disappear merely because the first column exists.”

Mrinal said, “Correct.”

Devvrat added, “And if the third column is unclear, the weight may diminish.”

Aditya said, “If it is actually unclear.”

“The ‘if’ matters here.”

Malini wrote it down.

Then Aditya struck out one line from the State’s previously prepared draft.

It read—

“Because the same external record was obtained from an independent source, it is wholly unaffected.”

Devvrat asked, “Why strike it out?”

“‘Wholly’ is not yet proved by the record.”

“Then?”

“The origin of the independent source is established; independence of the path of significance remains under examination on some points.”

Mrinal let out a light breath.

“The State keeps making its sentences shorter.”

Aditya said, “As a decision approaches, a sentence should not grow larger; it should become more limited.”

Devvrat picked up his pen.

“Put that line in the preface to the reply.”

Malini asked, “Which line?”

“As a decision approaches, a sentence should become more limited.”

Aditya shook his head.

“No.”

“Why?”

“That is a literary sentence. Put facts in a judicial reply.”

Devvrat laughed for the first time.

“Very well, Officer.”



At nine o'clock, Vidyanand’s junior reached the Registry of the Supreme Court.

He was not carrying a heavy box.
 Only a thin bound set, an index, a certified copy of the High Court's latest order, and the number of the pending proceeding.
 The registry officer looked at the cover page.
 "Consolidated supplementary grounds?"
 "Yes."
 "A new petition?"
 "No."
 "Within the pending proceeding?"
 "Yes."
 She affixed the filing stamp.
 The time was recorded.
 A copy was marked for the State's authorised counsel.
 On a separate sheet, the prayer for limited interim relief was entered—
 "Until final hearing, no person-specific adverse proposition whose essential source-path is not sufficiently known to the opposing party shall receive decisive weight merely on the indication of sealed or privilege-adjacent material."
 The registry officer read the words.
 "Decisive weight."
 The junior said, "Yes."
 "Not a complete prohibition?"
 "No."
 "A stay of the investigation?"
 "No."
 "A prayer to destroy or remove material?"
 "No."
 The registry officer added a note to the record—
 "Limited supplementary grounds; pending matter; request for urgent listing."
 She put the sheet aside.
 The filing was complete.
 No bell rang.
 No door suddenly opened.
 Most papers in judicial history enter the record quietly in exactly this way.



Ten minutes after the filing, a line began circulating on the mobile phones of media groups—
 "New challenge in Supreme Court."
 Ananya Kashyap saw the line on her screen.
 She deleted it at once.
 The news editor said from behind her, "What is inaccurate about 'new challenge'?"
 "'New' is inaccurate."
 "The supplementary grounds are new."
 "The proceeding is not."
 "Why would the reader understand that distinction?"
 "Because we will explain it."
 The news editor leaned back in his chair.
 "Will that make a headline?"
 Ananya wrote—
 "Limited supplementary grounds in pending special-leave proceedings; limits on adverse decisional use in issue."
 The news editor held his head.
 "That is not a headline; it is a law text."
 Ananya asked, "Then should I write an inaccurate headline?"
 "Something sharper."
 She made a second line—
 "Supplementary challenge in Supreme Court over use of evidence."
 The news editor read it.
 "A little better."
 Ananya added, "In the subheading I will write—no new petition, no request to stop the investigation, no new finding on guilt."
 "Three 'no's?"
 "The three 'no's may be the most important facts in today's story."
 The news editor said nothing.

Ananya looked again at the copy of the cover page she had received from her source.

At the top, in bold letters, it itself said—“Not a new special-leave petition.”

She began the story—

“The supplementary grounds filed in the already pending proceedings do not ask the Court to stop the entire investigation; the dispute is confined to the source-path of adverse facts in the decision and the limits of disclosure.”

She resisted the urge to write “decisive turn.”

A turn is decisive only when its result is known.

For now, only the direction was clear.



In the first session of the afternoon, the matter came before the Bench for limited mentioning.

The pending record was already before the Court.

Vidyanand rose.

For the State, Devvrat Sinha and Mrinal Dhar were present.

The Bench asked, “Is this a new special-leave petition?”

Vidyanand said, “No, Your Lordships.”

“Then let the record be clear.”

“Yes.”

The Bench looked toward the State.

Devvrat said, “The State also understands this as consolidated supplementary grounds within the pending proceeding.”

“The immediate prayer?”

Vidyanand replied, “Extremely limited.”

“Proceed.”

“We do not oppose in its entirety the boundary on decisional use drawn by the High Court.”

One member of the Bench asked, “Then why are you here?”

Vidyanand was silent for a moment.

“Because writing a boundary and applying a boundary are two different things.”

“Specifically?”

“If the Court treats an external fact as independent, but the path by which its significance came to the investigation was influenced by privileged or undisclosed material, the adverse weight of its use should not automatically be complete.”

Devvrat rose.

“The State does not disagree with parts of that general proposition.”

Vidyanand looked at him.

The Bench asked, “Then what is the dispute?”

Devvrat said, “At some points the defence is making the ‘path of significance’ equivalent to the ‘source of the fact.’”

“Clarify the distinction.”

Mrinal opened a page.

“An external bank record may be obtained under an independent lawful demand.”

“Its source is independent.”

“But where the officer first heard the name of that bank may be a separate question.”

“If the name came from protected material, a question may arise about the discovery path.”

“But the bank record does not thereby become false in itself, because it has its own independent custody and lawful demand.”

The Bench said, “So source, discovery, and significance are three levels?”

Sitting behind them, Malini wrote in her register—

“Source ≠ discovery ≠ significance.”

Devvrat said, “Yes.”

Vidyanand added, “And a fourth level—adverse judicial use.”

The Bench looked at him.

“That is your principal concern?”

“Yes.”

“Then why not ask for the entire material to be excluded?”

“Because what is independent does not lose its independence merely because some prior direction of the investigation is disputed.”

Devvrat gave a slight nod.

For a few moments there was silence before the Bench.

Malini looked toward Aditya.

Aditya’s face was still.

The opposing side was itself acknowledging its boundary.
Whether that acknowledgement benefited the State or the defence was secondary.
The important thing was that the proposition was narrowing to the shape of the record.



The Bench asked, “The State’s reply uses the words ‘independent significance.’”

Devvrat said, “Yes.”

“How will you establish that?”

For a moment an old impatience rose within Aditya.

There were many papers.

Many dates.

Many recorded directions.

But he did not rise.

Mrinal answered, “Where there is a documentary path, the State will show it.”

“And where there is none?”

“There the State will not claim complete independence.”

The Bench immediately said, “Let that be recorded.”

Devvrat said, “The State agrees.”

Vidyanand stopped his pen.

He had perhaps expected the State to make a larger claim.

Devvrat did not look toward him.

The Bench moved to the next question.

“The privilege register?”

Vidyanand said, “We are not asking for the contents.”

“Then?”

“Only this much: if the State claims an independent origin for an external fact, the minimum chronology and identification of the external source should be sufficient for us to test that claim.”

Devvrat said, “The State will oppose disclosure of summaries of protected communications.”

“We are not asking for that either.”

The Bench said, “Then the dispute has narrowed again.”

Vidyanand replied, “At the decision stage, a narrow dispute may be the most important one.”

A member of the Bench asked, “Why?”

“Because one small opaque bridge in the final reasons may enlarge a person-specific conclusion.”

Mrinal immediately said, “And conversely, the mere possible opacity of a bridge does not reduce an independent open fact to zero.”

“Record both propositions,” the Bench said.

Malini wrote two lines in her register—

“Opaque bridge ≠ established connection.”

“Possible opacity ≠ nullity of an independent fact.”

She slid the page toward Aditya.

Aditya read it.

He wrote only “Correct” and returned it.



In the afternoon, the Bench heard argument on the limited interim prayer.

Vidyanand said, “We do not seek a stay.”

“We do not seek an order stopping the investigation.”

“We do not pray for sealed material to be destroyed or removed from the record.”

“We ask only that, until final decision, an undisclosed source-path not become the silent basis of person-specific adverse weight.”

The Bench looked toward Devvrat.

“State?”

Devvrat said, “According to the State, yesterday’s High Court directions already preserve this boundary adequately.”

“So no additional order is necessary?”

“That is our position.”

“But the defence says the framework of application is unclear.”

“Then we will not oppose a clarified procedure, provided it does not stay the independent investigation.”

The Bench wrote notes for a few moments.

Then it said, “We will not pass an elaborate order on merits at this stage.”

Ananya, seated in the press gallery, stopped her pen.

“Not an elaborate order”—that line would probably drain half the excitement from the evening’s headlines.

The Bench read—

“One—the consolidated supplementary grounds are taken on the record of the pending proceedings.”

“Two—the State shall file a limited reply within the prescribed period.”

“Three—this filing shall not be understood as a new special-leave petition, a new proceeding, or a challenge to the investigation as a whole.”

“Four—the parties shall provide, for decisional adverse propositions, a concise table identifying source, discovery path, disclosure status, and proposed evidentiary value.”

“Five—no general direction for disclosure of privileged subject matter is issued at this stage.”

“Six—investigation of independent external material may continue.”

“Seven—no person has been declared guilty or innocent.”

“Eight—this order does not mean that the filed supplementary grounds have been accepted; they have only been taken on record for hearing.”

The Bench paused.

Then it added a ninth line—

“Filing ≠ endorsement.”

Several pens in the gallery moved at once.

Ananya drew a circle around it on her page.

The Bench said, “At the next listing, the parties will begin with this limited table.”

Vidyanand said, “Grateful.”

Devvrat bowed his head.

The hearing ended.

No final decision.

But the language of decision had narrowed by one more step.



On the steps of the Court, cameras and mobile-phone microphones were already waiting.

Vidyanand came out.

A reporter asked, “Has the Supreme Court accepted the defence’s supplementary challenge?”

Vidyanand stopped.

“It has been taken on record.”

“Meaning accepted?”

“No.”

“A restraint on the State’s evidence?”

“No.”

“A restraint on the investigation?”

“No.”

“Then what did you achieve?”

Vidyanand looked at him for a few moments.

“The question was recorded in the correct words.”

Some people in the crowd laughed.

Some cameras turned in another direction.

Ananya did not laugh.

She understood that, in judicial proceedings, this small achievement is often the hardest one.

Devvrat came out.

Another reporter asked, “A win for the State?”

Devvrat said, “There is no order of victory or defeat at this stage.”

“But the investigation continues.”

“It was already continuing.”

“Then is the State satisfied?”

“The State will read the order and file its limited reply.”

There was little broadcast-ready excitement in that answer.

But there were enough facts.

Ananya stopped her audio recording.

Then a voice from the crowd called out—

“Ma’am, what will the headline be?”

Ananya turned.

“What happened.”

“But that speaks very softly.”

Ananya said, “If we change truth’s words to make its voice louder, it will no longer be truth.”

◆
As soon as Ananya returned to the newsroom, five proposed headlines were already on her screen.

“Major defence victory in Supreme Court.”

“Crack in wall of State evidence.”

“Supreme Court questions sealed record.”

“New setback to investigation.”

“Decisive turn in offshore-web case.”

She deleted all five.

The news editor asked, “Then?”

Ananya wrote—

“Supplementary grounds taken on record; Supreme Court seeks limited table of source-path and adverse use.”

The news editor read it.

“Can we add ‘Filing ≠ endorsement’?”

Ananya looked at him.

“You have become careful today?”

“The Bench itself wrote it.”

“Then add it.”

The subheading became—

“No new petition; investigation continues; no finding on guilt or innocence.”

The news editor said, “Three ‘no’s again.”

“Three boundaries.”

In the body of the story, Ananya wrote the sequence of the hearing.

First, the nature of the filing.

Then the defence’s limited prayer.

Then the State’s partial agreement and actual disagreement.

Then the Bench’s nine lines.

She did not write “historic” anywhere.

Not “unprecedented.”

Not “sensational.”

Not “demolished.”

Not “victory.”

Because not one such conclusion was in the record.

When the story was complete, she reread the first paragraph.

It contained one sentence—

“The Court has agreed to hear the supplementary grounds.”

Ananya deleted “has agreed to hear.”

She wrote—

“The Court has taken the supplementary grounds on the record of the pending proceedings and sought a limited reply from the State.”

The news editor asked, “That much difference?”

“Yes.”

“Why?”

“The first sentence describes a state of mind.”

“The second describes procedure.”

“We cannot read the Court’s mind.”

The news editor was silent for a few moments.

Then he said, “Publish it.”

Ananya pressed the publication key.

The story went out.

Softly.

Without trumpets.

Without a declaration of war.

Carrying only as much weight as the record gave it.

◆
In the evening, the Bench’s brief order lay before Shiveshwar Prasad in the Home Ministry’s legal room.

Devvrat, Mrinal, Aditya, and Malini were present.

An officer read a proposed public statement—

“The Supreme Court has endorsed the State’s position that the investigation should continue.”

Shiveshwar Prasad stopped him at once.

“Delete ‘endorsed.’”

The officer asked, “But the investigation will continue.”

“That is a fact.”

“Then?”

The Minister said, “Write—‘The Court clarified that investigation of independent external material may continue; the State will file a limited reply to the supplementary grounds.’”

The officer wrote it down.

Shiveshwar Prasad said again, “And add at the end—‘The order is not a finding of guilt or innocence.’”

For a few moments the room was silent.

Malini wrote in her register—

“The boundary of the order is also the boundary of the public statement.”

Mrinal saw the line on her page.

“Keep that line.”

Shiveshwar Prasad asked Aditya, “Preparation for the next hearing?”

Aditya said, “The source-path table.”

“Difficult?”

“Not where the path is clear.”

“And where it is not?”

“There we will write ‘unclear.’”

The Minister kept looking at him.

“Officers generally do not like writing that word.”

“In this matter, it is necessary.”

“Why?”

“Because calling the unclear clear will not strengthen the State’s case; it will weaken the Court’s trust.”

Shiveshwar Prasad closed the copy of the order.

“Then do exactly that.”



As the night deepened, most of the office lights went out.

Malini and Aditya were still working on the source-path table.

The first row—

“Payment-gateway records.”

Source—independent lawful demand.

Discovery path—partly prior open transaction indicators; some directions independently recorded in the chronology.

Path of significance—mixed; separate analysis required.

Disclosure—principal external records available.

Proposed evidentiary value—limited; person-specific control not thereby established.

The second row—

“Administrative control-panel export.”

Source—computational image of seized device.

Integrity—image equivalence supported by hash.

Authorship—undetermined.

Person-specific use—additional bridge required.

Malini asked, “Should I write ‘hash verification?’”

Aditya said, “Write ‘image equivalence.’”

“Why?”

“Hash is not truth.”

The third row—

“Existence of communication recorded in privilege register.”

Source—register.

Contents—protected; adverse decisional use prohibited unless independently reproduced externally.

Malini stopped after writing it.

“This line will strengthen the defence.”

“If it is correct, write it.”

“The fourth row?”

“Investigation diary.”

Malini typed—

“Officer’s contemporaneous direction and hypothesis; not independent evidence.”

Aditya added—

“Including failed branches.”

Malini looked at him.

"Is it necessary to include failed branches?"

"Yes."

"Even if that makes our first inference look weaker?"

"Then that inference's actual weight was only that much."

Malini did not close the register.

She opened the fifth row.

"Deleted message thread?"

Aditya said, "Unavailable message thread."

"Independent indication that it was deleted?"

"Not complete."

"Then?"

"Record expected existence, expiry, retention policy, alternative location, and access limits separately."

Malini kept writing.

The night outside grew deeper.

The table was not becoming larger.

Instead, some rows were becoming shorter.

Looking at it, Aditya said, "That is a good sign."

Malini asked, "Why?"

"Because whatever sentence survives for decision will have to bear all the weight."

◆
At that time, Shailja placed a cup of tea in Vidyanand's office.

Vidyanand had been looking at the same page for a long time.

Shailja asked, "Did the hearing go well?"

"Well."

"Did you win?"

Vidyanand looked at her.

Then he smiled faintly.

"Not yet."

"Did you lose?"

"Not that either."

"Then?"

"The Court kept the question in the correct shape."

Shailja slid the cup of tea closer to him.

"You spend every day measuring the shape of questions."

"Sometimes the answer is hidden inside that very thing."

"And sometimes?"

"There is no answer."

Shailja was silent for a few moments.

"Then that too has to be written?"

"Yes."

Vidyanand's voice was tired, but not hard.

He closed the copy of the supplementary grounds.

The red line on the cover page was still clear—

"Not a new special-leave petition."

Shailja read it.

"Even after writing it this clearly, will people still call it a new petition?"

Vidyanand took a sip of tea.

"Words that run too fast often lose their meaning at the first turn."

◆
At ten that night, Ananya looked at the reactions to her story.

Some readers had written, "What happened in this?"

Some had written, "The headline is weak."

One comment said, "Say it plainly—who won?"

Ananya switched off the screen.

She went to the window.

Traffic below had now thinned.

Far-off red and yellow lights rose and fell one after another.

She opened her register.

From today's hearing she had written five lines—

"Filing ≠ endorsement."

"Hearing ≠ conclusion."

"Supplementary grounds ≠ new proceeding."

"Investigation continuing ≠ allegation proved."

"Limited question ≠ limited significance."

She paused at the last line.

Beneath it she wrote—

"Truth speaks softly because it must carry the weight of every word."

She looked at the line for a few moments.

This would not go into the news story.

It was a line for her private register.

She knew the boundary between journalism and poetry.

But knowing the boundary did not mean an absence of feeling.

It meant only knowing its proper place.



Before the next dawn, the first draft of the State's limited reply was ready.

Devvrat Sinha asked Aditya only one question on the telephone—

"Is there any line in the table where we are claiming more than before?"

Aditya replied, "I am checking two lines."

"If they need to be cut, cut them."

"Yes."

"The next hearing may not be the final decision, but the language of the final decision will be formed from there."

Aditya said, "I understand."

The call ended.

Malini placed those two lines before him.

The first read, "Establishes control."

She deleted "establishes" and wrote, "Provides limited support on the question of control; person-specific bridge remains."

The second read, "Deleted contact."

She deleted it and wrote, "Contact record unavailable in the specified source; person responsible for deletion undetermined."

Aditya read it.

"Correct."

Malini asked, "After so many corrections, I sometimes feel the first draft was far too confident."

"It was."

"Do you regret it?"

Aditya was silent for a few moments.

"Regret is useful when it changes the method of the next sentence."

"And if it does not?"

"Only emotion."

Malini wrote in her register—

"Emotion ≠ evidence."

Aditya added—

"But emotion can be the beginning of responsibility."

They looked at each other.

This line would not enter the record.

But its effect would remain in their work.



In the last darkness before dawn, the outline of the Supreme Court building could be seen from afar.

Inside the Registry, the supplementary grounds filed yesterday lay secure under their assigned number.

That paper was not yet an order.

Not a conclusion.

Not evidence.

Not a victory.

It was only an organised question.

And the use of a question, too, requires limits.

In Navya Nyaya, decision is not a rush toward the final word.

It is the discipline of placing a proposition among its source, relation, pervasion, and opposing possibilities.
Within that discipline, yesterday's filing remained in its correct shape—
"Supplementary grounds."
No less.
No more.
And before the city awoke, truth spoke softly once again—
"A sentence filed is not a sentence proved."

100 Judgment's Light upon the Ganges

The light of dawn was unusually clear over Delhi's sky today.
The thin mist of night was slowly lifting from the court's white stone.
Outside the main gate, media vans had already formed a line.
On the screens, the same question flashed again and again—
"Who wins at the final hearing?"
Ananya Kashyap saw the line and said to her colleague—
"The question is still malformed."
"Then what is the right question?"
"What sentence can the Court write?"
Her colleague laughed.
"Who will read a headline that long?"
Ananya did not answer.
She closed her register.
The darkness was receding.
But the day of judgment does not begin with light alone.
It begins with a boundary.



Inside the courtroom, Attorney General Devvrat Sinha was arranging his papers in order.
Solicitor General Mrinal Dhar sat beside him.
Aditya Jha was in the second row behind them.
Before Malini Karna lay only a thin chart.
At the top of that chart was written—
"Maximum judicial sentence."
Mrinal read the words.
"Maximum?"
Malini said, "What the record can actually bear."
Devvrat looked at her.
"And what it cannot bear?"
"That will not become a sentence."
Aditya drew a small line in his register.
Until last night, the State's presentation had been seventeen pages long.
By dawn, it had become twelve pages.
Five pages had been cut.
No evidence had disappeared.
Only excess assertion had disappeared.
Devvrat said—
"The absence of these five pages is not a weakness in the State's case."
Aditya answered—
"If those five pages were larger than the record, their removal is the State's credibility."
Mrinal smiled.
"On the final day, the officer himself is reducing his own statement."
"On the day of judgment, claims are not counted; weight is measured."
At that moment, the court attendant signalled entry.
Everyone rose.
The conversation stopped.
So did the rustle of paper.
Only the steady sound of the fan remained.



After the Bench sat, the first question was put to the State.
"What is your final structure?"
Devvrat rose.
His voice was neither loud nor celebratory.
"My Lords, the State will present five categories of propositions separately."

He opened the first page.

“One—facts established together with their source and chain of preservation.”

“Two—facts that provide limited support but do not reach a person-specific conclusion.”

“Three—questions that remain unresolved.”

“Four—allegations that are on the record but are not proved facts.”

“Five—inferential leaps that ought not to enter judicial reasoning.”

A member of the Bench asked—

“Does the State apply the fifth category against itself as well?”

Devvrat answered without delay—

“Especially against itself.”

For a moment, silence spread through the courtroom.

Vidyanand Mishra lifted his eyes from his papers.

There was no surprise on his face.

Only attention.

Devvrat continued—

“The State’s request is not for victory, but for clarity about the limits of use.”

“Where integrity is established, let integrity be written.”

“Truthfulness must be tested separately.”

“Where there is a device record, let it be written as a device record.”

“Before writing a person’s name, require a person-specific bridge.”

“Where there is a gap, let a gap be written.”

“Do not write an agent of deletion unless there is an independent indicator.”

“Privileged silence must not be turned into an incriminating absence.”

“A hypothesis written in an investigative diary must not be treated as independent evidence.”

“The fact that a judge has seen sealed material does not prove that material true.”

The Bench asked—

“And multiple computational views?”

Malini Karna’s thumb paused upon her register.

Devvrat said—

“Multiple views of the same original source are not independent corroboration.”

“Different custodians?”

“Not proof of an independent original source unless provenance is separate.”

“Hash?”

“Up to the identity and integrity of the imaged material.”

“Culpability?”

“No.”

The whole journey of the State was contained in that “no.”

Its language on the first day had not been so brief.

Aditya knew this.

His own early register contained many lines that could no longer be spoken in court.

Their deletion did not feel like defeat to him.

The death of some sentences preserves the life of truth.



Devvrat opened the second chart.

“First category—established facts.”

He paused.

“A forensic image of the defined portion of the record was lawfully created.”

“Its hash match supports the stability of the image.”

“To the extent documented, the chain of preservation is intact.”

“The existence of certain computational service structures, payment paths, and administrative interfaces is supported by external sources.”

Vidyanand rose.

“‘Independently’ at every point?”

Devvrat looked at his page.

“No. At three points the sources are independent, but the independence of the significance-path is not fully clear.”

“Then the sentence?”

Devvrat struck out a line.

“‘Is supported by external sources’; independence will be stated separately in the note for each point.”

Vidyanand sat down.

A member of the Bench said—

“Record that correction.”
The clerk wrote it down.
No dramatic sound followed the removal of one word.
But the evidentiary weight changed.
Malini marked the change in her chart.
She understood how often scientific restraint hides in the removal of a single adjective.



“Second category—limited support.”

Devvrat said—
“Certain accounts, contact paths, and payment indicators show systemic relationships.”
“They do not establish person-specific control.”
“Certain customer-identification and tax-deduction-at-source records indicate organized business activity.”
“They do not by themselves establish authorship, control, or criminal intent.”
“Certain administrative access records show events of use.”
“On that basis alone they do not tell us which person was the user, absent an independent identification path.”
The Bench asked—
“What is the status of the State’s person-specific allegations?”
Devvrat opened the third page.
“Some remain unresolved.”
“Some are allegations only.”
“Investigation may continue in respect of some.”
“Some are being narrowed from the State’s earlier language.”
Vidyanand’s eyebrow rose slightly.
“Names?”
Devvrat said—
“It is unnecessary to repeat the list of names in open court. The classification is on the record.”
The Bench agreed.
“The reputations of fictional persons, too, need not be dragged unnecessarily outside the process.”
Ananya was listening from the visitors’ gallery.
A line entered her notebook—
“Repetition of an allegation also creates weight.”
That line would not become a news headline.
But it would change the tone of her report.



Mrinal Dhar rose for the next part of the State’s presentation.

“Fourth category—allegations only.”
“Where a person-specific relationship path has not been proved, the State does not ask the Court to write a proved fact.”
“Where a witness is in an emotional state—fear, greed, shame, guilt, hesitation—that may help explain the context of conduct.”
“But it is not an independent bridge to identity, authorship, control, intent, or culpability.”
The Bench asked—
“If the witness is crying?”
“Human context.”
“If the witness is silent?”
“The reason may be asked; silence by itself is not culpability.”
“If the statement changes?”
“Credibility will be tested; both emotional pressure and external causes will be examined.”
“If the witness stood to gain financially?”
“Motive is a matter for testing; it is not substitute evidence for the event or a person-specific act.”
Vidyanand put his pen down on the desk.
At this point he had no need to respond.
The State itself was voicing the boundary for which the defence had argued for months.
But this agreement was not friendship.
It was shared methodological ground.
In court, opposing sides sometimes come closest when both accept the same boundary.



Mrinal came to the fifth category.

“Prohibited inferential leaps.”

He read the lines one by one—
“More expensive legal counsel ≠ culpability.”
“Computational integrity ≠ truthfulness of content.”
“Device ≠ person.”
“Same view ≠ independent source.”
“Gap ≠ act of deletion.”
“Privilege ≠ incriminating silence.”
“Seal ≠ truth.”
“Diary ≠ independent evidence.”
“Disclosure ≠ proof of truthfulness.”
“System fault ≠ personal fault.”
“Emotion ≠ identification.”
“Suspicion ≠ allegation.”
“Allegation ≠ proved fact.”
The presiding judge said—
“Is the State reading all these propositions to the Court, or to itself?”
A faint smile came to Mrinal’s face.
“To both, My Lord.”
A subtle ripple of suppressed laughter moved through the courtroom.
It subsided at once.
Because the list was not a joke.
It was a compressed history of errors that had unfolded over months.
The final line on the paper before Aditya was blank.
He wrote—
“Judgment = a sentence proportionate to what the record can bear.”
Then he put down his pen.



It was the defence’s turn.

Vidyanand Mishra rose.
There was fatigue in his movement, not in his voice.
“My Lords, the defence agrees with several of the State’s limitations.”
“But that agreement is not because the dispute is over.”
“It is because the dispute has now acquired its proper shape.”
He opened his first point.
“The contents of privileged communications must not become, directly or indirectly, an adverse bridge in judicial reasoning.”
“If an external fact has been obtained from an independent source, its source must be recorded.”
“But the mere fact that the source is separate does not mean that the significance attached to that fact was itself uninfluenced by protected material.”
The Bench asked—
“Then the remedy?”
“Test the provenance-path and the significance-path separately.”
“And if the significance-path is unclear?”
“Reduce the adverse weight, or use the material only after adequate disclosure and an opportunity to answer.”
Devvrat said—
“The State does not disagree with that general principle.”
Vidyanand looked at him.
“The disagreement will remain over factual application.”
“Correct.”
The Bench directed it to be recorded—
“Agreement in principle; application fact-specific.”
Once again, the sentence became shorter.
And clearer.



Vidyanand moved to the second point.

“Sealed material.”
“The Court’s private view cannot replace the opposing party’s opportunity to answer.”
“The essential substance of any basis on which an adverse sentence is written must be known to the other side, save for narrowly confined lawful exceptions.”

“And even those exceptions must be supported by reasons.”

The Bench asked—

“What if disclosure creates a real danger to source protection?”

“Then the minimum necessary summary, a substituted description, independent external reproduction, or a limitation on adverse weight.”

“Complete secrecy and complete adverse use cannot coexist.”

Mrinal nodded.

“The State also accepts the principle of minimum necessary disclosure here.”

Vidyanand said—

“Then let that sentence be stated expressly in the order.”

The Bench wrote it down.

Ananya added to her register—

“Confidentiality may protect process; it cannot create invisible culpability.”

That line, too, would not become a headline.

But perhaps it would reach the reader.



Vidyanand paused slightly at the third point.

“Investigative diary.”

“A diary may be a necessary work record.”

“But an officer’s suspicion, direction, question, or hypothesis written in it is not independent evidence unless external material supports it.”

“I think’ in a diary must not become ‘it is proved’ in a judgment.”

A member of the Bench looked toward Aditya.

“Does the investigating officer wish to say something?”

Devvrat turned around.

Aditya rose.

“My Lords, the diary preserves the investigator’s memory, sequence, and path of reasoning.”

“It is not the Court’s evidence list.”

“Where the language in my earlier diary is more certain, the State does not seek as much weight for it as the words themselves appear to claim.”

The Bench asked—

“Are you retreating from your own written words?”

Aditya answered—

“Where the evidence tells me to retreat, yes.”

The courtroom went still.

The question had been simple.

The answer was not.

An investigator’s reputation is often sought in defending his first statement.

Aditya was defending not his first statement, but the method.

The presiding judge said—

“Record that.”

The clerk wrote again.

“Where the evidence tells me to retreat, yes.”

Aditya sat down.

Malini did not look at him.

She merely made a mark in her chart.

It meant—

“Claim narrowed.”



At the first recess in the afternoon, the court corridor filled.

Media people surrounded Ananya.

“Has the State backed down?”

“Has the defence won?”

“Did the Court make a harsh observation?”

“Will the names be removed?”

Ananya raised a hand and said—

“The order has not yet been delivered.”

“But the State has reduced its claims.”

“Is reducing them a defeat?”

"If an excessive claim was inaccurate, reducing it is a correction."

A reporter asked—

"Then the headline?"

Ananya said—

"Parties converge on evidentiary limits at final hearing."

"That headline won't sell."

"Truth does not depend on a condition of sale."

She left the corridor.

Behind her, cameras were still flashing.

But only one question remained in her register—

"What is the maximum sentence the Bench will write?"



During the recess, Devvrat, Mrinal, Aditya, and Malini sat in a small consultation room.

Food boxes were open on the table, but no one was really eating.

Malini said—

"Three propositions are still unclear."

Devvrat asked—

"Which ones?"

"First—the person-specific relationship in some administrative access records."

"Second—the meaning of one unavailable mail archive."

"Third—the significance-path of two external records."

Mrinal said—

"Can the State seek a ruling on all of them?"

Malini answered—

"On the questions, yes. On person-specific conclusions, no."

Aditya said—

"Read the sentence on the unavailable mail archive again."

Malini read—

"No material was found in the specified source for the expected period."

"Next?"

"Technical access was not limited."

"Next?"

"The retention policy was not fully verified."

"Then the word 'deleted'?"

"No."

"Destroyed?"

"No."

"Agent?"

"Unresolved."

Aditya said—

"Good."

Devvrat watched him silently.

"What now seems to you the greatest gain in this case?"

Aditya closed the food box.

"That I learned to write, 'I do not know.'"

No one in the room spoke immediately.

Malini did not write that sentence in her register.

Some sentences are not for the record.

They are for training the mind.



The hearing resumed after the afternoon recess.

This time the Bench changed the order of its questions.

"State, tell us the failed branches of the investigation."

Mrinal paused for a moment.

Then he opened a separate list.

"One foreign service computer's expected records could not be obtained in full."

"Two, the original records of an old payment intermediary were unavailable."

"Three, the complete contents of two mobile devices were unavailable for the defined period."

"Four, conflicting answers were received regarding the retention policy of one mail archive."

“Five, actual human control of certain account names could not be independently established.”

The Bench asked—

“Where are these failures reflected in the State’s final statement?”

Devvrat answered—

“In the notes where the weight of the relevant proposition has been reduced.”

“A separate paragraph?”

Devvrat looked toward Aditya.

Aditya nodded.

“A separate paragraph would be appropriate.”

Mrinal immediately wrote—

“Failed or incomplete branches of investigation.”

The presiding judge said—

“Hiding failure does not increase the strength of evidence.”

Vidyanand added—

“And failure by itself does not prove innocence either.”

The Bench looked at him.

“Correct.”

Devvrat said—

“The State agrees.”

Another boundary became shared.

Again, no one cheered.



As the hearing moved toward its close, the Bench put the final question.

“What does the State seek?”

Devvrat answered—

“That the lawful remaining part of the investigation continue.”

“That the evidentiary value of independent external sources be considered according to their source-path.”

“That privilege remain protected.”

“That adverse use of sealed material not go beyond the prescribed limits.”

“That the investigative diary not become independent evidence.”

“And that the Court state clearly in its reasons the maximum evidentiary value of each proposition.”

“Conviction?”

“This proceeding is not the final forum for conviction.”

“Declared person-specific conclusions?”

“Only to the extent the record supports them.”

The Bench looked toward Vidyanand.

“Defence?”

Vidyanand rose.

“Our prayer, too, is for limits.”

“Lawful external sources of investigation should not be blocked.”

“But the shadow of protected communications, undisclosed sealed material, or diary hypotheses must not become a person-specific adverse bridge.”

“Let the unresolved be written as unresolved.”

“And let allegations not be given the language of proved facts.”

The Bench asked—

“Then how much real distance remains between the parties?”

Vidyanand looked at Devvrat.

Devvrat looked at Vidyanand.

Mrinal turned a page.

At last Vidyanand said—

“Little in principle.”

Devvrat added—

“Enough in factual application.”

The Bench said—

“That is precisely where the Court’s work lies.”



The order was not reserved.

The Bench returned after a short recess.

The courtroom filled again.

Outside, the cameras became alert.
Inside, the papers lay still.
The presiding judge began to read.
“The central question in these proceedings is not to declare the moral victory of either side.”
“The question is which proposition may enter judicial reasoning, and with what evidentiary value.”
Ananya stopped her pen.
She wanted to hear the first sentence in full.
The Bench continued reading—
“The Court considers the following distinctions essential—”
“Fact.”
“Suspicion.”
“Person-specific allegation.”
“Evidentiary value.”
“Proved fact.”
“A leap between these categories cannot take the place of judicial reasoning.”
Something settled inside Aditya.
This was the compressed form of those months in which words had repeatedly tried to cross their own boundaries.



The first conclusion in the order followed—

“A forensic image and hash match support the integrity and identity of the imaged material.”
“They do not by themselves establish the truthfulness of content, authorship, person-specific use, completeness, or culpability.”
“Second—”
“To the extent documented, the chain of preservation shows the handling history of the material.”
“It does not establish criminality.”
“Third—”
“Multiple views, exports, copies, or screens of the same original source are not independent corroboration.”
“Fourth—”
“A different custodian, without a different original source, is not proof of independent discovery.”
Malini blinked.
These lines had become the backbone of her training.
Now they were finding their proper shape in judicial reasoning.



The next part of the order dealt with privilege.

“Silence arising from privileged communications cannot be treated as an incriminating gap.”
“Investigative need does not by itself create a legal entitlement to open protected communications.”
“An external fact does not become invisible merely because protected communications also exist.”
“But the provenance-path, significance-path, and adverse use of an external fact must be tested separately.”
“Where there is a real possibility that significance was influenced by viewing protected or sealed material, and independent reproduction is unclear, adverse weight shall remain limited until adequate process is completed.”
Vidyanand took a deep breath.
It was not a smile of victory.
It was the sensation of a sentence’s weight lifting.
Devvrat marked his copy.
The State’s genuine external facts had survived.
The protected shadow had not been given their place.
Both things could be true at once.
Navya Nyaya had not erased the tension here.
It had marked its boundary.



On sealed material, the order was explicit.

“A seal may be a process of judicial examination; it is not proof of truthfulness.”
“A judge’s inspection is not a complete substitute for the opposing party’s opportunity to answer.”
“Where full disclosure is not possible because of security, confidentiality, or privilege, the Court shall adopt measures such as the minimum necessary summary, an independent source, a substituted description, or a limitation on weight.”
“Save in exceptional circumstances, a person-specific adverse conclusion shall not be written on an invisible basis; and any such circumstance shall be recorded with reasons.”
Ananya copied the entire paragraph.

She knew that outside, half of this sentence could be cut away and turned into a headline.
She decided she would not do that.
An incomplete quotation often produces incomplete justice.



On the investigative diary, the Bench said—

“A diary records the sequence, direction, decisions, and memory of an investigation.”
“An officer’s suspicion, question, or hypothesis written in it is not independent evidence without external support.”
“The Court shall distinguish between the existence of an officer’s thought and the truth of that thought.”
Malini wrote in her register—
“Record of a thought ≠ truth of the thought.”
It was a new proposition.
Aditya saw it.
“Keep it.”
Malini smiled faintly.



The order’s language on non-apprehension was the most careful of all.

“Before saying that something was not found, the scope of the search, expected existence, source, custodian, location, time, retention policy, technical access, and alternative locations must be examined.”

“Not found” cannot, without additional basis, be turned into ‘does not exist,’ ‘was deleted,’ ‘was destroyed,’ or ‘was deleted by a particular person.’”

“A gap may result from systemic, technical, policy-based, temporal, human, or deliberate causes.”

“A person-specific conclusion as to the actor requires an independent bridge.”

Aditya lowered his eyes.

There had been a line in his first report—

“Deleted correspondence.”

Now the Court was writing—

“Correspondence unavailable in the specified source; the actor of deletion unresolved.”

Between those two lines lay months of learning.

That learning had not arrived by defeating anyone.

It had arrived by making the sentence smaller.



The Bench made a specific observation on the emotional states of witnesses.

“Fear, greed, shame, guilt, hesitation, silence, or emotional breakdown are human context.”

“They may assist in understanding conduct, delay, inconsistency, vulnerability, or reasons for a decision.”

“But they are not by themselves independent evidence of identity, authorship, control, intent, or culpability.”

“If emotion is turned into evidence, the Court will make a human being guilty by the look on that person’s face.”

For a moment the courtroom was completely silent.

Vidyanand closed his eyes.

Devvrat drew a line on his copy.

Malini wrote only two words in her register—

“Emotion = context.”

And beneath it—

“Emotion ≠ identification.”



Then the order came to the classification of person-specific allegations.

The Bench did not unnecessarily repeat the names in open court.

Looking at the coded chart on the record, it said—

“Some propositions shall remain in the category of established facts.”

“Some in the category of limited support.”

“Some unresolved.”

“Some allegations only.”

“Some inferential leaps outside judicial use.”

“To write what is unresolved as unresolved is not a weakness of the Court.”

“It is judicial honesty.”

An old intuition of Gangesha Upadhyaya returned to Aditya’s mind—

An adjective only when the delimitor is clear.

A relation only when the path of relation is clear.

A conclusion only when the reason can bear its own limit.

He did not hear it as anyone’s verse.

He saw its living method in the sentences of the Court.



The Bench read its final direction regarding the High Court's structure.

"The proposition-classification developed by the High Court is fundamentally useful."

"It shall operate subject to the clarifications in this order concerning privilege, disclosure, source-path, significance-path, non-apprehension, and the person-specific bridge."

"The pending special-leave proceedings are disposed of with these limited directions."

A faint rustle of paper rose in the courtroom.

Outside, the cameras had probably begun to roll.

But the Bench had not yet finished.

"The lawful remaining part of the investigation may continue."

"This order shall not be read as a conviction, an acquittal, or a final criminal conclusion against any person."

"Further investigative steps shall remain within the evidentiary limits and procedural protections stated in this order."

"If action against any person becomes necessary, it shall depend on separately available material and lawful process."

This was the final boundary.

Neither excess of judgment.

Nor emptiness of investigation.

Only a path of reasons.



Before rising, the presiding judge added one sentence—

"Justice is not a more refined name for revenge."

"Justice is the discipline that keeps the State, the parties, and the Court—each of the three—within the limits of its own sentence."

No order required such a sentence.

But this order contained it.

Everyone rose.

The Bench left.

The final hearing was over.

No one applauded.

No one cheered.

A courtroom was not a place for cheering.



Outside, the media crowd broke into motion.

Phones began ringing all at once.

"Did the State win?"

"Did the defence win?"

"Special-leave petition dismissed?"

"Investigation continuing?"

"Have the names survived?"

Ananya paused on the steps.

Five microphones surrounded her.

She said—

"The Court declared no one victorious."

"The pending proceedings were disposed of with limited directions."

"The investigation may continue within lawful limits."

"Privilege remains protected."

"Sealed material is not automatically true."

"A diary is not independent evidence."

"A hash goes only as far as integrity."

"A gap is not proof of deletion."

"And unresolved questions may remain unresolved."

A journalist interrupted—

"Then who won?"

Ananya looked at him.

"If you need one word—the method."

"That as the headline?"

"No."

“Then?”

“Write: ‘Court clarifies limits of evidence; investigation to continue within restricted framework.’”

“Too flat.”

“Being dull and being inaccurate are not the same thing.”

She went down the steps.



Devvrat Sinha did not stop outside to take questions from reporters.

Neither did Mrinal Dhar.

Aditya and Malini left by the rear passage.

After they sat in the car, both were silent for a few moments.

Malini finally asked—

“Is this success?”

Aditya kept looking outside.

Yellow leaves were falling by the roadside.

“What success?”

“Our work.”

“Some parts were accepted.”

“Some?”

“Some were reduced.”

“Some?”

“Some remained unresolved.”

Malini laughed.

“Why don’t you give a straight answer?”

Aditya said—

“Because a straight answer here would be larger than the record.”

Malini opened her register.

“Then shall I write, ‘Success = the correct boundary?’”

Aditya thought for a moment.

“Write, ‘The correct boundary is also success.’”

“Is ‘also’ important?”

“Very.”



Home Minister Shiveshwar Prasad received a copy of the order before evening.

A secretary came to his office with a draft statement.

The first line read—

“Judicial victory for the State’s determined effort.”

Shiveshwar Prasad read the line and picked up his pen.

He struck out the whole sentence.

The secretary asked—

“Then what should we write?”

The Minister said—

“A summary of the Court’s order.”

“Political reaction?”

“No.”

“‘The investigation will continue’—that?”

“Yes, but add ‘within the limits prescribed by the Court.’”

“Success for the State?”

“Remove that word.”

The secretary looked slightly uncertain.

“Minister, the public message will sound weak.”

Shiveshwar Prasad rose from his chair.

He went and stood by the window.

“The State’s message is strong only when it is not larger than the Court’s language.”

“But the opposition will say the State backed down.”

“Let them.”

“You won’t respond?”

“We have to preserve the Court’s trust, not one night of news.”

The secretary fell silent.

The Minister returned to the desk.

He wrote a new sentence—

“The State shall carry forward the remaining investigation in full compliance with the evidentiary limits, privilege protections, and procedural boundaries prescribed by the Court.”

He put down the pen.

“That is all.”



When Vidyanand Mishra reached his office in the evening, Shailaja was already there.

A copy of the order lay on the desk.

Beside it were two cups of tea.

Shailaja asked—

“So, did you win?”

Vidyanand took off his shoes and sat down.

“You too begin with that question?”

“I am not a journalist.”

“That makes the answer harder.”

Shailaja slid the tea toward him.

“Give me the hard answer.”

Vidyanand opened the paragraph on privilege in the order.

“This is the line I wanted.”

“Did you get it?”

“To a sufficient extent.”

“And the State?”

“Its external investigation was not stopped.”

“So?”

Vidyanand took a sip of tea.

“The Court made the desires of both sides smaller.”

Shailaja laughed.

“For this, so many months?”

Vidyanand also smiled faintly.

“Making human desire smaller is the longest litigation of all.”

Shailaja read the final sentence of the order.

“Justice is not a more refined name for revenge.”

She was silent for a few moments.

“Is this in your favour?”

Vidyanand said—

“If justice is only in my favour, it is not justice.”

With that, he began drinking his tea.

Night was descending outside.

The office door stood half open.

For the first time in months, he was in no hurry to close it.



The media again began speculating about Raghav Sethia.

Some headlines declared him innocent.

Some declared him guilty.

Ananya’s report was different from both.

She wrote—

“The Court gave no final person-specific criminal conclusion in these proceedings.”

“A proposition that is unresolved shall remain unresolved unless separately available lawful material changes its status.”

The editor asked—

“Add names?”

“Not where they are unnecessary.”

“Readers will want them.”

“Readers also need limits, even if they do not know that beforehand.”

The editor kept looking at the screen.

“Headline?”

Ananya wrote—

“Judgment’s Light: Court Deepens the Line Between Evidence and Allegation.”

The editor said—

“That will work.”

For the first time all day, Ananya smiled.



At nine that night, Aditya, Malini, and two officers were still seated in the investigation team’s office.

On the desk lay a copy of the order, the old report, and a new compliance list.

Malini said—

“Some headings in the old report will now have to change.”

Aditya answered—

“Do not change the old report.”

“Then?”

“Add a supplemental limitation note.”

“Why?”

“Do not erase history.”

“Let the record show where we had said too much.”

“Otherwise how will the next officer learn?”

Malini agreed.

She opened a new document.

She typed the title—

“Post-Judgment Evidentiary-Limits Compliance Note.”

First point—

“Hash: up to integrity.”

Second—

“Image: up to the defined acquisition scope.”

Third—

“Non-apprehension: up to the scope of the search.”

Fourth—

“Diary: up to the direction of investigation.”

Fifth—

“Privilege: the boundary of protected communications.”

Sixth—

“Sealed material: not independent proof of truthfulness.”

Seventh—

“Multiple views: not independence unless the original source is separate.”

Eighth—

“Emotion: human context.”

Ninth—

“Person-specific conclusion: independent relationship path required.”

Tenth—

“Unresolved: unresolved.”

Malini paused.

“The final point is very short.”

Aditya said—

“But the hardest.”



That night Aditya opened his old register.

On the first page was written—

“Perception.”

Then—

“Inference.”

“Analogy.”

“Testimony.”

“Postulation.”

“Non-apprehension.”

“Tarka.”

“Judgment.”

Eight words.

One hundred chapters.

A journey of months.

So many questions.

So many sentences struck out.
So many records that had first seemed large, then proved limited.
So many small indicators that became significant when an independent source was found.
So many silences that remained only silences.
So much fear that was human context, not evidence.
So many gaps that were saved from becoming stories of deletion.
So many seals that did not become seals of truth.
So many diary lines that became nothing more than hypotheses.
So many disputes that kept making the Court's language smaller.
Aditya opened the last page of the register.
There was space left to write.
He wrote—
"Judgment = the correct size of what is proved."
Then added—
"And the courage to call what is not proved, not proved."
He capped the pen.



As Malini was leaving the office, she asked—

"When are you going home?"
"There is a train tonight."
"Garh En Arikel?"
"Yes."
"So soon?"
"The work is not over."
"Then?"
"I want to see the place where it began."
Malini understood.
She asked no more questions.
"Will you take the register?"
Aditya patted his bag.
"This will stay with me."
"And the report?"
"In the office."
"Good."
Malini folded her hands.
"Safe journey."
Aditya said—
"Start a new compliance list tomorrow."
Malini smiled.
"Even after judgment?"
"Judgment does not stop method."
"It makes the method more accountable."



The train kept moving eastward through the darkness of night.

Outside the window, the fields were indistinguishable in the dark.
Sometimes the yellow light of a station flashed past.
Sometimes a single lamp in a distant village.
Aditya sat between sleep and wakefulness.
There was no courtroom before him.
No paper.
No camera.
Only the dawn of the first day was returning.
The dawn when he had left the village and the first shadow of the computational material had appeared before him.
Then, evidence had seemed to him like an object.
Now he understood—
Evidence is not merely an object.
It is a relation.
A source.

A boundary.
A contrary possibility.
Disclosure.
An opportunity to answer.
And, in the end, responsibility for the sentence.
The train kept moving.
The night was waning.



In the first light of dawn, the earth of Garh En Arikel came into view.
Aditya got down at the station and did not go straight home.
With his bag over his shoulder, he set out toward the Ganges.
There was a slight chill in the air.
The steps of the ghat were not yet crowded.
A few boats were tied along the bank.
Grey light lay spread across the water.
The eastern part of the sky was slowly turning yellow.
Aditya sat midway down the steps.
He took the register out of his bag.
He opened the final page.
The two lines written during the night were there—
“Judgment = the correct size of what is proved.”
“And the courage to call what is not proved, not proved.”
The water of the Ganges kept flowing before him.
No sound gave him an answer.
But the silence was not empty.
Within that silence, the memory of Gangesha Upadhyaya returned once more.
Not like an idol.
Not like a miracle.
Like a question.
“What delimits what you are saying?”
“What is the relation?”
“How far does the reason extend?”
“What is the contrary possibility?”
“What name will you give to what you do not know?”
Aditya closed his eyes.
Before him rose the Court’s final sentence—
“Justice is not a more refined name for revenge.”
Then the Minister’s struck-out statement.
Vidyanand’s limited prayer.
Malini’s chart.
Ananya’s dull but accurate headline.
The witnesses’ fear.
The list of incomplete branches of investigation.
The limits of sealed material.
Certainty struck out of the diary.
All had come to stand upon the same path.
Method.
Restraint.
Evidentiary discipline.
Limited proposition.
The path of judicial reasoning.



The first ray of the sun fell upon the water.
The Ganges did not turn to gold.
Water remained water.
The light merely changed the way its surface could be seen.
The scene became completely clear in Aditya’s mind.
A judgment does not change the nature of evidence.
It says only how far, in the available light, we have been able to see it.

Where there is water, write water.
Where there is shadow, shadow.
Where the bottom cannot be seen, do not invent a story of the bottom.
Where the direction of the current is an inference, write inference.
Where the bank is clear, call it clear.
And when new light comes, look again.
This is not defeat.
It is the etiquette of knowledge.
It is judicial humility.
It is the living method of Navya Nyaya.
Aditya closed the register.
He kept looking at the water.
Far away, a boat put out.
The boatman untied the rope and lowered his oar into the water.
The boat slowly entered the current.
No trumpet sounded.
No flag was raised.
The day simply began.
And over the Ganges spread the light of judgment.

NAVYA NYAYA AND THE OFFSHORE GAMBLING WEB



A Maithili courtroom novel in which questions of evidence are tested through the disciplines of Navya Nyaya. Across one hundred chapters, perception, inference, analogy, testimony, postulation, non-apprehension, and tarka meet questions of forensic integrity, attribution, privilege, lawful process, and proof.

ORIGINAL MAITHILI NOVEL TRANSLATED INTO ENGLISH BY THE AUTHOR HIMSELF

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GAJENDRA THAKUR



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